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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker.

MORNING-HOUR DEBATE

The SPEAKER. Pursuant to the order of the House of January 5, 2011, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 25 minutes and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes each, but in no event shall debate continue beyond 10:50 a.m.

HISTORIC SPENDING CUTS

The SPEAKER. The Chair recognizes the gentleman from Texas (Mr. OLSON) for 5 minutes.

Mr. OLSON. Mr. Speaker, I rise today in strong support of H.R. 1473, a continuing resolution which will fund our government and, most importantly, our troops' families for the rest of the fiscal year and will help generate a better environment for job creation.

While this final agreement is far from perfect—more cuts going forward are absolutely needed—this agreement is a victory for the American people. At $38.5 billion in cuts, H.R. 1473 represents the largest spending cut since World War II. Domestic spending will actually fall by 4 percent this year with the passage of this CR.

We accomplished this historic cut just months after President Obama asked Congress for a spending freeze. That would have meant zero, nada, nil, cuts in spending this year. In fact, our Federal Government will spend $78.5 billion less than President Obama proposed this year with the passage of H.R. 1473.

These historic cuts would not be possible without the strong and constant support of the American people to end the out-of-control spending in Washington. Their voices were heard loud and clear on November 2.

House Republicans were able to translate the people's call for reining in spending into the largest non-defense spending cut in history. Washington is no longer talking about if we should cut spending; we are talking about how much we should cut spending. This is the American people's victory, and they deserve the credit for providing the support and momentum to change our debate.

This bill is also a victory for my home State of Texas and for the good people of the 22nd Congressional District, whom I am honored to represent here in Washington. Importantly, H.R. 1473 repeals the Doggett amendment, a heavy-handed regulation that was forcing Texas, and only Texas, to violate its own constitution and spend education funds as the Federal Government dictated while giving every other State in the Nation the flexibility to spend their funds as they see fit.

The Doggett amendment, which was inserted in last summer's State government bailout bill, singled out Texas by attaching unconstitutional strings to $830 million in funding. No other State faced such treatment.

Teachers across Texas have faced the threat of losing their jobs with this expected shortfall in education money. But passage of this bill will right this egregious wrong for the great State of Texas.

Mr. Speaker, passage of this measure today means we will have succeeded in reducing discretionary spending to prebailout stimulus levels. We will be lowering the baseline for next year's budget, which will result in hundreds of billions of dollars in savings over the next decade.

Most importantly, we are setting the stage for the real challenge that comes next: cutting trillions in spending through the new Republican budget, the Path to Prosperity. We didn't get into this financial crisis overnight, and we are not getting out of it overnight.

But today, for the first time in years, Washington will begin to tighten its belt, just as families across America do every day. This is just the beginning of an important first step forward in changing the culture of spending the people's tax dollars with reckless abandon. America is open for business again.

I urge my colleagues to vote for H.R. 1473.

REPEAL DME COMPETITIVE BIDDING

The SPEAKER pro tempore (Mrs. HARTZLER). The Chair recognizes the gentleman from Pennsylvania (Mr. ALTMIRE) for 5 minutes.

Mr. ALTMIRE. Madam Speaker, 4 years ago I began to express my concerns about the competitive bidding program that CMS proposed for durable medical equipment. The goal of the program was laudable—to save money and to cut waste, fraud, and abuse from the Medicare program—but the implementation of the program has been fraught with problems.

This issue is of particular importance to me because the Pittsburgh region, which I represent, was one of the first nine regions chosen by CMS to implement the competitive bidding demonstration. As I learned more about the design of the program, it became clear that CMS did not foresee the unintended consequences that could result, including the possibility that patients could lose the personal relationship they've developed with their local provider, in turn compromising their quality of care; or the possibility that small suppliers, which make up well over 90 percent of the Nation's medical equipment providers, would not be able to compete in the new market.

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I also realized that western Pennsylvania would be disproportionately impacted by competitive bidding because of our large Medicare population and the growing medical device industry that is key to the success of our region's economy.

After a poor start to the competitive bidding program in 2008, Congress intervened and passed legislation that I helped introduce to direct CMS to delay the program for 18 months. Critical flaws in the initial bidding process produced fewer competitors, fewer home care services, and a substantial decrease in the quality of care offered to seniors and individuals with disabilities. Congress also instructed CMS to redesign the program to avoid these programs when it conducted the re-bid.

Last fall, CMS launched the re-bid and this past January the program went into effect in the nine regions in the country, including western Pennsylvania. In the first few months of implementation, the worst fears expressed by patients, providers, and Members of Congress from both sides of the aisle have been realized. It is clear that despite the delay and the direction from Congress, no significant improvements have been made to the program or the bidding process. Providers who have served beneficiaries for years are closing their doors, and patients have been left confused and unsure where to turn for their care.

While CMS hopes the program will ensure beneficiary access to quality medical supplies and services and improve the effectiveness of payments, the results suggest otherwise. So 2 weeks ago, CMS announced it would delay the second round of its competitive bidding program for 6 months, until the summer of 2013. Additionally, the chief Medicare expert at the Congressional Budget Office recently said the CMS competitive bidding process is ''seriously flawed.''

This is a good sign, but the round two delay does nothing to help the beneficiaries and small businesses that have already been negatively impacted by round one. The program continues to be a bad deal for seniors and small business owners. That's why I joined with my colleague from Pennsylvania, GLENN THOMPSON, to introduce legislation to repeal the DME competitive bidding program. Our bill would fully repeal the program in a budget-neutral manner, not adding one penny to the Federal deficit. To date, we have 75 bipartisan cosponsors and over 30 advocacy groups that have endorsed our legislation.

I cannot support the DME competitive bidding program when it has become evident the program will unravel the DME small business community and compromise quality of care for seniors and others who rely on durable medical equipment devices. I will continue to work with Congressman THOMPSON to advance this legislation, and I would ask my colleagues to join us in this effort to repeal DME competitive bidding.

□ 1010

SUPPORTING FINANCIAL LITERACY MONTH

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Illinois (Mrs. BIGGERT) for 5 minutes.

Mrs. BIGGERT. Madam Speaker, I rise today to recognize this April as Financial Literacy Month.

Each year my good friend and fellow chair of the House Financial and Economic Literacy Caucus, Mr. HINOJOSA, and I work to bring Financial Literacy Month to Capitol Hill. In that effort we are joined by our longtime Senate allies, Senator AKAKA and Senator ENZI.

Traditionally, we have offered a resolution as a way to showcase the latest trends in financial and economic literacy. This year, however, the House is taking an understandable break from debating commemoratory resolutions in order to focus attention on pressing items like the budget.

Nonetheless, I want to take a brief opportunity today to encourage my colleagues to take part in this year's Financial Literacy Month. It's a time when nonprofits, educational institutions, financial organizations, government agencies, and others work together to protect consumers and prepare our children to prosper in today's sophisticated marketplace.

For example, from April 17 through 23, America's credit unions will hold National Credit Union Youth Week, which focuses on teaching young Americans about the benefits of setting goals and saving to reach them. In a parallel effort, the American Bankers Association Education Foundation held Teach Children to Save Day on April 12. It's an annual event during which America's banking professionals have volunteered to teach money skills to 4 million young people.

Madam Speaker, this is a trend we should applaud, one that I encourage my colleagues to participate in by joining the Financial and Economic Literacy Caucus. Members and their staffs can also join us this Friday in the Cannon Caucus Room from noon to 3 for a Financial Literacy Day Fair featuring information and constituent outreach materials from 55 of the Nation's leading financial literacy organizations, including the Jump$tart Coalition, Junior Achievement, and the Council for Economic Education.

Madam Speaker, too many Americans continue to enter the workforce unprepared to handle money, buy a home, or save for retirement. According to the Jump$tart Coalition's most recent survey, our high school seniors are now scoring lower on financial literacy than they have during any years since 2000; and yet, according to a 2009 survey from the Council for Economic Education, only 34 States require school districts to include personal finance in their education standards for students K–12.

These are troubling numbers, and that's why we must work together to give Americans the tools they need to prepare against economic uncertainty, recognize deceptive practices, build credit, and make dozens of other day-to-day financial decisions. These are skills that everyone must learn to prosper in today's complex marketplace, and that's what Financial Literacy Month is all about.

So I encourage my colleagues who are interested in learning more to join us this Friday from noon to 3 in the Cannon Caucus Room for our annual Financial Literacy Day Fair.

PUERTO RICO GAS PIPELINE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIERREZ) for 5 minutes.

Mr. GUTIERREZ. Madam Speaker, I rise today to talk once again about Puerto Rico, but this time it's a little different.

I rise to note that Governor Luis Fortuño of Puerto Rico has actually said something I can agree with. Speaking about a proposed gas pipeline, the Republican Governor of Puerto Rico said, ''We cannot continue to depend on fossil fuels. Gasoducto is fossil fuels.''

He went on to say, ''Tying us down to natural gas for 30 years would be a grave mistake.''

He was referring to the construction of a natural gas pipeline on an island where beautiful beaches, mountains, and rain forests are both irreplaceable natural resources and part of the economic engine that drives tourism. A gas pipeline, that sounds like a dubious proposition. And I agree.

Mr. Fortuño spoke those words 2 years ago as a candidate. Sadly, now that he's safely in office, Governor Fortuño has changed his mind. Now he enthusiastically supports not just gas pipelines but a much bigger, environmentally disruptive, and more expensive pipeline.

And how the construction of this gigantic, supersized pipeline is being handled is another reason why I must speak out again on the civil rights crisis in Puerto Rico. The ruling party would rather people not notice that Mr. Fortuño and Governor Fortuño have opposite positions on the same gas pipeline, so they are working hard to move this project forward under the cover of night.

Every day the ruling party answers this question: If you wanted to undertake a potentially dangerous, economically dubious, environmentally disastrous, and extremely unpopular project, how would you go about doing it?

Here's the ruling party's answer: You circumvent feasibility studies. You avoid environmental impact studies. You ignore the standard permitting and licensing procedures. And you take every step possible to eliminate public hearings and public scrutiny.

But how do you proceed without these necessary safeguards and information? Well, if you're the government

of Puerto Rico and you want to build a 92-mile natural gas pipeline over mountains and through forests and lakes and rivers and across critical groundwater systems in Puerto Rico, you would amend a law designed to deal with natural resources so that you can bypass the normal permitting and public process.

What the ruling party does is declare an ''energy emergency'' on the island. This government's energy emergency allows the pipeline to proceed, despite warnings from the Sierra Club, the environmental group Casa Pueblo, and even the U.S. Fish and Wildlife Service; despite residents' concerns that it would be constructed near schools and churches and residential areas; despite geologists noting that it is near earthquake faults and that there have been 2,500 seismic events in the last 3 years on the island, and one just felt all over the island just 2 days ago.

The self-described ''energy emergency'' also helps hide the fact that you've given a $10 million contract to a pal of the Governor who has no experience at constructing gas pipelines. He does, however, have experience skiing with the Governor. And maybe that's why you run a slick, taxpayer-funded PR campaign that renames the project ''The Via Verde''—''The Green Way.''

So instead of speaking to huge financial, human, and environmental costs, this Orwellian ad campaign calls a gas pipeline over mountains and through the woods and rivers a ''green way.'' Like a lot of people, I think it would be better to be named just ''Green Away,'' a magical cleanser that you apply to your forests, rivers, and lakes, and it makes them go away, along with the millions of green tax dollars.

Here's an even more honest name for this project: ''The Wrong Way.'' Because it's wrong to spend the people's money on a project they don't want and hasn't been appropriately studied, as the newspaper El Nuevo Dia has shown in a series of reports.

Candidate Fortuño was right; Governor Fortuño is wrong. It's time to shine some light on this matter.

I have sent Freedom of Information Act requests to every and all Federal agencies that have addressed the pipeline in Puerto Rico. I will release the results so that the people know whom their government is meeting with, what documents exist, and what studies have been done to show the need for this project. Furthermore, I have already urged the Army Corps of Engineers to deny the permit request for the pipeline until experts testify, permits are applied for, community meetings are held, and environmental impact studies are done.

Maybe the government can make the case for this project in the light of day, but they shouldn't be asking for a verdict without presenting their facts to the people first. It's time they stop doing things the ''Via Verde'' way and start doing things the right way.

The 1st of May all to Adjuntas.

RAMON CORTINES

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. CHU) for 2 minutes.

Ms. CHU. Today I want to honor a man, Ramon Cortines, for his many years serving students in our public school system.

Ramon recently announced he was retiring as superintendent of the Los Angeles Unified School District. During his distinguished 55-year career in education, he has served as superintendent of schools in Los Angeles, San Francisco, San Jose, Pasadena, and New York City.

I had the great privilege to work with Ramon last year when the Los Angeles Unified School District passed a resolution calling for immediate passage of the DREAM Act.

But Ramon was not only a superintendent and advocate, he was a teacher in Aptos and Covina, which is in my district, and senior adviser to the U.S. Secretary of Education under President Clinton.

A lifelong educator, Ramon has taught at every level in the public school system—elementary, middle, and senior high school—and has shaped education policy as a consultant to every entity from Stanford University to the University of California.

Ramon came to the Los Angeles Unified School District at a time of great challenge; yet he was able to improve school safety, increase attendance, and reduce the dropout rate. Ramon Cortines has had an extraordinary record of service, and he changed the lives of thousands of children.

Although he will be greatly missed, we must all continue the mission he strived for during his 55-year career, and that is to ensure that every child receives a quality education.

□ 1020

2012 BUDGET

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. DEUTCH) for 5 minutes.

Mr. DEUTCH. Tomorrow, my Republican colleagues will bring a 2012 budget to the floor of the House, a budget that rolls back generations of progress and, quite simply, ends Medicare as we know it.

Fifty years ago, before Medicare and Medicaid were signed into law, Americans preparing to retire faced tremendous uncertainty. Private health insurance was simply out of reach. Savings put away during years of employment could barely cover those bills, if they could cover them at all. Seniors were forced to rely on their own children, many of whom were struggling to raise families of their own, to pay for medical care.

When the financial support of family and relatives was not an option, elderly Americans found themselves with the choice of a life without the care of doctors or a life of destitution. This was the status quo before Medicare and Medicaid were signed into law, and the American people found it unacceptable.

We believed then, as we believe now, that we have a responsibility to ensure that seniors, children, and the permanently disabled, the most vulnerable in our society, have access to quality health care. It was this sense of shared responsibility that Congress codified in 1965 through the creation of Medicare and Medicaid.

As President Lyndon B. Johnson said as he signed this historic legislation, ''No longer will older Americans be denied the healing miracle of modern medicine. No longer will illness crush and destroy the savings that they have so carefully put away over a lifetime so that they might enjoy dignity in their later years.''

Today, 45 million seniors depend on Medicare's guaranteed quality benefits. Now this year, as in every year, we find ourselves in the middle of a budget debate. At times, both Republicans and Democrats can be accused of hyperbole. However, it is no exaggeration to say that the Republican budget headed to the House floor tomorrow abandons America's seniors and does away with the concept of guaranteed Medicare benefits. It is no overstatement to say that it hands Medicare over to the private health insurance industry, and it is no lie to say that this plan ends Medicare as we know it.

This budget is no Path to Prosperity; for seniors, it is a path to the poor house. You can call it premium support; you can call it a voucher; you can call it a coupon; you can call it the golden ticket if you'd like; but changing the name won't change the fact that this Republican plan will force America's seniors to hand over most of their income to America's insurers. Maybe instead of ''premium support,'' this plan should be called ''insurance company profit assistance.''

By the time the Republican plan begins distributing coupons to seniors in 2022, most retirees will be unable to afford health care. After all, these coupons will be worth only 32 percent of the insurance bill. According to the nonpartisan analysts at the Congressional Budget Office, in less than two decades a private health insurance plan as good as Medicare will cost about $30,000. Unfortunately, the Republican voucher that will be sent out under this budget plan will only be worth $9,700. This means that there will be an insurance bill worth about $21,000 sitting in the mailboxes of America's seniors.

The Republican budget plan is no work of genius; it just shifts the burden of rising health care costs from the Federal Government to seniors and calls it a day. Through Medicare, Americans made a moral commitment as a people to ensure that seniors are not bankrupted by a hip replacement or diabetes medication. Likewise, with Medicaid, we made a moral commitment to ensure that elderly nursing

home patients, impoverished children, the permanently disabled, and the neediest in our society can afford basic care. In fact, two-thirds of all Medicaid spending goes to caring for older adults and people with disabilities. The cost of long-term care, like in rehabilitation centers and nursing homes, is prohibitive. Medicaid serves as a lifeline for these individuals. And it is not an expensive program. In fact, compared to private sector health care costs, Medicaid is cheap, growing half as fast.

The GOP plan cuts Medicaid when physicians and hospitals can barely afford to treat these patients because of such low reimbursement rates. It is no mystery why Medicaid is beginning to strain State and Federal budgets. With so many Americans out of work, enrollment in Medicaid has skyrocketed as more and more families come to rely upon this safety net.

I have said it before and I will say it again: Medicaid is not too expensive. People are too poor. That's why we should be focused on creating new jobs. One hundred days into this new Republican Congress and not a single jobs bill.

Madam Speaker, this plan is not a price that I'm willing to pay. We can do better. We will do better. America's seniors are watching.

FUTURE OF MEDICARE

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. KISSELL) for 4 minutes.

Mr. KISSELL. Madam Speaker, from the time that I first came to Congress, I have continued to be a strong supporter of our seniors' issues and standing by our seniors. Today, I rise in support of another issue that our seniors are facing today, the issue of the future of Medicare.

We must stand by those who have stood by us as they enter into their senior years, and we must be strong in making sure that Medicare stays as a solid medical safety net for our seniors.

Madam Speaker, we have heard a lot about the Greatest Generation, that generation that fought World War II and worked in industries and raised families and came back and did so much to make America the great Nation as we know today. But, Madam Speaker, America is a great Nation, has been for many years, and will be for many years to come. And there is not just one Greatest Generation; there is a continuum of great generations.

I grew up in a very small town in North Carolina, and my heroes were those people—many of whom had fought in World War II—those teachers and those storekeepers and those people in a small town that raised many of my friends and myself and looked after us, whether in the school or church or wherever it might be. As these people that took care of us become seniors and they continue this throughout the Nation for generations to come, we must take care of those that took care of us.

I was a high school history teacher for 7 years before coming to Congress, and I always told my students that you're not studying history by looking at pages in a book or looking at old pictures or paintings or whatever it might be; you are studying about people that have a story. As we talk today about our seniors and Medicare, we cannot forget that these are the people who took care of us. They cannot become just political bargaining chips and political theories. They are real people. They have real stories.

I want to talk briefly about two people that are especially important to me—my mom and dad. My dad grew up in that same small town that I did in North Carolina, fought in World War II, won a Bronze Star, came back, worked in the post office, and was happy just to be a part of helping in those ways that I talked about before. My mom grew up in Carroll County in Huntingdon, Tennessee, and came to North Carolina as a teacher and taught many generations. She is 96 years old, her birthday being last March 18. These are the heroes. These are the stories that we know, that all of us have. Whether our parents or grandparents, great-grandparents, aunts and uncles, whatever they may be, we cannot forget about them as individuals; we cannot forget about their stories, and we cannot let them become just political bargaining chips.

The question that we must ask, Madam Speaker, is: Why did we need Medicare in the first place? What in our system didn't work, that didn't take care of our seniors, that required Medicare to come into being? We know the answer to that. And we must continue to have that guarantee of a strong support structure when our medical needs for our seniors must be met this way. We must stand by our seniors.

□ 1030

REPUBLICAN 2012 BUDGET PLAN

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. MATSUI) for 4 minutes.

Ms. MATSUI. Madam Speaker, I rise today to voice my strong opposition to the Republican budget plan and its effects on America's seniors. I believe that we must address our national deficit, but I believe we can do it in a responsible manner that does not hinder our fragile economy and does not risk important programs.

I support the Democratic budget proposal, which makes practical cuts to reduce our Nation's deficit but without hurting America's seniors and sacrificing their health and financial security.

Madam Speaker, the Republican plan is irresponsible. It would hurt America's seniors while giving enormous tax breaks to the top 2 percent of the wealthiest Americans. It does nothing to create jobs but gives billions in corporate loopholes and subsidies to Big Oil. Most notably, the Republican plan would literally end Medicare. And while this may be a new plan, these are not new ideas.

The Republicans' 2012 budget attempts to do to Medicare what President Bush wanted to do to Social Security in 2005—privatize it and severely cut benefits. Madam Speaker, can you imagine if we had privatized Social Security in 2005 the way the Republicans wanted to do just before the biggest financial collapse since the Great Depression? Is that what we really want to do with Medicare? We cannot afford to have Wall Street control the fate of our seniors.

The Republican plan would convert Medicare into a voucher program that forces seniors to buy costly private insurance plans. It asks seniors, half of whom have less than $19,000 a year in total income, to pay more and get less. If this plan were put in place, the nonpartisan Congressional Budget Office has estimated that the average senior would end up paying nearly three times more out-of-pocket expenses.

Meanwhile, the health care law enacted last year is already helping to close the gap in prescription drug coverage known as the doughnut hole and provides annual exams and preventive services. But a repeal of the health care law, as the Republican budget plan calls for, would eliminate these benefits. Madam Speaker, these benefits for Medicare patients are making a real difference in the lives of my constituents.

I recently heard from a 71-year-old woman from Sacramento who requires several expensive drugs to maintain her health. In October of 2010, she was worried about her ability to pay for her medication because she fell into the coverage gap. But she was relieved to learn that she would get $250 in 2010 and that 50 percent of her costs would be reimbursed this year and even more would be reimbursed in the future. But now Republicans want to pull the rug out from under our seniors and their families.

What is astonishing to me is that in addition to privatization of Medicare, the Republican plan also goes after Medicaid. Instead of making real reform to the Medicaid program, the Republican budget calls for converting Medicaid into a block grant program. That would sharply reduce funding for seniors and low-income Americans on Medicaid so that it would not keep up with health care costs.

Medicaid helps keep our seniors in their homes and helps them afford nursing homes if they need them, but the Republican plan would leave seniors on their own and ignores the promise that our country has made from one generation to another.

Madam Speaker, the Federal budget should reflect our American values that have been passed down for generations where seniors earn the benefits

that they have paid into and have been promised and are able to enjoy their retirement after working hard in their careers.

That is why I will continue to fight to protect the dignity of America's seniors and protect them against the devastating effects of the Republican budget proposal.

REPUBLICAN 2012 BUDGET PLAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. RANGEL) for 1½ minutes.

Mr. RANGEL. Thank you, Madam Speaker.

As we're about to close this part of the legislative morning expressions of belief, I would just like to say that for decades, so many people have said that we can't tell the difference between Democrats and Republicans. Well, I think that is over, that the Republicans, in their Ryan-projected budget, have made it abundantly clear that there is a big difference.

All Americans—Democrats, Republicans, and independents—know that we have a tremendous deficit, that the interest is just blocking out programs that we have to support. While it's abundantly clear that there is an emergency that we have to deal with, the Republicans' method of doing this, through the Ryan budget, is to look for the most vulnerable people that we have—the poor that are sick, the older people that are sick, our young people that are trying to get an education.

It seems to me if we take a look at the alternative, in investing now for the future of this great country of ours, to make certain that education is a part of what we're doing, investing in our infrastructure so that as we pay off the debt we are still investing for the future, this is what the Democratic Party is all about. And, Madam Speaker, I truly believe this is what America is all about.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until 11 a.m. today.

Accordingly (at 10 o'clock and 36 minutes a.m.), the House stood in recess until 11 a.m.

□ 1100

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. HASTINGS of Washington) at 11 a.m.

PRAYER

Rev. Arthur Cavitt, St. Charles Lwanga Center, St. Louis, Missouri, offered the following prayer:

In times like these, we need the Almighty Good Shepherd to be with us. Lead us, Lord, through valleys and shadows onwards to straight paths. In times like these, we need the God of the breakthrough to give us the ability to see transforming possibilities.

Guide us, Lord, through the challenges of our modern lives where sometimes hope is juxtaposed with despair. Grant that this august body will continue to move towards the common good, mindful of the inherent dignity that You, God, have placed within us.

Grant that our hearts will resound blessed are we among nations. Blessed are we who dwell in this place and claim the potential for more love, peace, and inclusion for all people to partake of the fruits of this magnificent land.

Shepherd us, Lord. The promise of Your goodness and compassion sustains our work and sustains our offering of thanksgiving this hour and evermore. Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. POE of Texas. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER pro tempore. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. POE of Texas. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER pro tempore. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Georgia (Mr. WOODALL) come forward and lead the House in the Pledge of Allegiance.

Mr. WOODALL led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

WELCOMING REV. ARTHUR CAVITT

The SPEAKER pro tempore. Without objection, the gentleman from Missouri (Mr. CLAY) is recognized for 1 minute.

There was no objection.

Mr. CLAY. Mr. Speaker, I rise today to honor our guest chaplain, one of my outstanding constituents, Father Arthur Cavitt.

Father Art, as he is known in St. Louis, is a leader in religious outreach and educational development efforts within the African American Catholic community. His St. Charles Lwanga Center, located in North St. Louis City, offers Bible study, pastoral care, and conducts an outstanding youth ministry.

Father Art's spiritual leadership, through his center and as an educator at Cardinal Ritter College Preparatory, is reaching thousands of young people, changing lives, and helping to reclaim neighborhoods that have seen far too much violence, intolerance and pain.

Father Art is bringing the church's message of love, truth, tolerance, and mutual understanding to those in our community who need it most. I am very honored to salute him today as our special guest.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

THE VICTIMS OF CRIMES ACT

(Mr. POE of Texas asked and was given permission to address the House for 1 minute.)

Mr. POE of Texas. Mr. Speaker, the Victims of Crimes Act, or VOCA, as it's called, is a wonderful idea that requires convicted criminals to pay into a fund that is used by crime victims. It is the idea that criminals pay for the system they have created. They pay rent on the courthouse, so to speak, by putting money in a fund that goes to these victims. This VOCA fund is about $6 billion. This is not taxpayer money. It is money that belongs to victims. But Federal bureaucrats seem to want to rob this fund and pay for other Federal programs.

We cannot allow this money to be taken from victims of violent crime. This money should be placed in a lockbox so it is only used by crime victims and victim services.

During this National Crime Victims Week, our Nation must constantly be sensitive to the needs of people who have been robbed, assaulted, and harmed by criminals. We as a nation are judged not by the way we treat the rich, the powerful, and the famous, but by the way we treat the innocent, the children, the elderly, and victims of crime. And that's just the way it is.

SPEECHLESS

Mr. CROWLEY. Mr. Speaker, I ask unanimous consent to address the House for 1 minute and to revise and extend my remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

The SPEAKER pro tempore. The time of the gentleman has expired.

MONTH OF THE MILITARY CHILD

(Ms. JENKINS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Ms. JENKINS. I have the honor and privilege of representing Fort Riley, home of the Big Red One; Fort Leavenworth, host to the Army Command and General Staff College; the 190th Coyotes out at Forbes Field; and nearly 12,000 National Guard and Reserve members.

With this strong military presence comes a large number of military families and children. I rise today in recognition of April as the Month of the Military Child. This is a time for all my colleagues to applaud the strength, sacrifice, heroism, and continued resilience shown by the children of our service men and women.

Kansas is proud to have more than 33,000 children with at least one parent serving in the military, and this month we recognize that when parents serve in the military, their children also serve.

I will continue to do everything I can to support not only our men and women in uniform but their children who sacrifice equally for our country.

RYAN REPUBLICAN MEDICARE PLAN

(Mr. COURTNEY asked and was given permission to address the House for 1 minute.)

Mr. COURTNEY. Mr. Speaker, in 1965, when Medicare was passed, only 50 percent of America's seniors could afford to buy health insurance. That was not an accident. It was because the high risk of people over age 65 made that market basically uninsurable.

I'm from Connecticut. We know a little bit about insurance in the State of Connecticut. Looking at the Ryan Republican Medicare plan which would give seniors vouchers to go out and buy insurance, all we're asking for is to repeat history, which is where this country was in 1965.

We must protect a guaranteed benefit for seniors. We learned that lesson throughout the early 1900s through 1965. The Ryan plan takes us back to a time when seniors will be paying massive out-of-pocket costs. The CBO estimates it will triple out-of-pocket costs for seniors. It is the wrong way to go. President Obama's plan that he laid out yesterday, which is a thoughtful, intelligent approach to lower health care costs but protects a guaranteed benefit for seniors, is what this country needs and what our senior citizens need.

□ 1110

H.R. 25—THE FAIR TAX

(Mr. WOODALL asked and was given permission to address the House for 1 minute.)

Mr. WOODALL. Mr. Speaker, tomorrow is Tax Day. I am sure there are some folks out there who haven't quite filled out all of their forms yet, who haven't quite finished up all of that paperwork yet, but it doesn't have to be that way. There are alternatives to change the Tax Code in this country, and one of those alternatives is the Fair Tax, H.R. 25, which was introduced in this House.

The Fair Tax, H.R. 25, is the only bill in Congress to eliminate the incentive that American companies have to move American jobs overseas. The Fair Tax is the only bill in Congress to change the Tax Code so that those jobs that have moved overseas and so that those dollars that have gone overseas have an incentive to return. The Fair Tax is the only bill in Congress that abolishes the payroll tax—that 15.3 percent FICA tax, which is the highest tax that 80 percent of working American families pay.

The Fair Tax, H.R. 25, is a different way and a better way, and we can make April 15 just another spring day.

PRESERVE MEDICARE

(Mr. INSLEE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. INSLEE. Mr. Speaker, we have an obligation to our generations who built America. That's why we will not allow the Republicans to terminate Medicare with extreme prejudice.

We will not allow them to turn a guarantee for seniors into a voucher program for the insurance industry. We will not allow them to turn Medicare into ''Medi-gone.'' We will not allow them to give us 6,000 reasons to vote against their hair-brained scheme because they want to put $6,000 worth of more costs on our senior citizens.

This is a noble obligation. It should not be shredded. We should reduce medical inflation, not put this burden on senior citizens. Preserve Medicare and reject the Republican scheme.

OBAMA'S BUDGET GROUNDHOG DAY

(Mr. PALAZZO asked and was given permission to address the House for 1 minute.)

Mr. PALAZZO. Mr. Speaker, the White House has presented its sequel budget plan for America, but this sequel looks strangely like the prequel—filled with rhetoric, flat on vision for economic growth, and heavy on new taxes for America's small business owners and job creators.

As a CPA who operated my own practice, I have filed thousands of tax returns for individuals and small businesses. I have not only met payroll myself, but I have examined the bottom line of businesses that are trying to keep their doors open. The sequel plan offered by the White House will tax those who are trying to expand and invest. It will ultimately cripple job growth and recovery in America.

Chairman PAUL RYAN has presented a plan with a vision for job growth. It supports many of the concepts that as a CPA I have long advocated for, such as simplifying the Tax Code and reducing tax levels for small businesses and families. As a CPA, I know the Ryan plan presents a path to prosperity for America, and I will support it tomorrow.

NATIONAL AUTISM AWARENESS MONTH

(Mr. SIRES asked and was given permission to address the House for 1 minute.)

Mr. SIRES. Mr. Speaker, I rise today to recognize National Autism Awareness Month and to express my support for ongoing efforts across the Nation that are devoted to improving the treatment of those individuals with autism, and their families.

Today, one in 110 children is affected by autism, and my home State of New Jersey has the highest rate of autism in the country. With the help of treatment and support centers, the lives of individuals and families affected by autism are improving every day. I am proud that such a facility exists in my district.

The Center for Autism at The North Ward Center provides the highest quality of care to individuals and families in the greater Newark area. Under one roof, the center offers a seamless and comprehensive range of services for the lifespans of individuals with autism, treating the whole person and the whole family, focusing on strength-based interventions. The center represents a one-stop approach in relieving the burden on already stressed families dealing with autism.

The Center for Autism at The North Ward Center in Newark is only one example of how concentrated care can greatly better the lives of individuals and families affected by autism.

IT IS, PERHAPS, THE END OF THE BEGINNING

(Mr. BENISHEK asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BENISHEK. Mr. Speaker, this day marks an historic moment for our country. The rise in Federal spending that has defined the last 3 years has ended.

The bill that we will pass in the House today contains the largest cuts in our budget since the end of World War II. This bill is by no means perfect, and I, like many Americans, want more cuts, and I believe we will get them. These cuts are just the start.

The words of Winston Churchill, which were spoken during a different battle, echo true today. He stated, ''This is not the end. It is not even the beginning of the end; but it is, perhaps, the end of the beginning.''

Mr. Speaker, it is time to move beyond last year's business and start doing the work the American people sent us here to do. Tomorrow, we will take up legislation that will save us not billions but trillions; and as this House considers addressing the debt ceiling, the Senate and the President need to know that these cuts do not represent the end—they represent our resolve to continue the fight.

MEDICAID BLOCK GRANTS PROGRAM

(Mrs. CAPPS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. CAPPS. Mr. Speaker, I rise today in strong opposition to the Republican plan to gut Medicaid. This plan isn't about finding cost-effective ways to improve Medicaid. It's about limiting health care for some of the most vulnerable members of our society.

It's telling seniors they no longer qualify for their nursing home care. It's taking away access to well child visits. The Medicaid program isn't just numbers on a balance sheet; it's the only access to care for millions of low-income seniors, poor children and people with disabilities.

Under the Republican proposal, there will be less access and less care, especially in times of economic stress, like what we are going through today. Medicaid rolls swell as people lose jobs and families lose income. Under the Republican block grant scheme, tough times would mean even tougher times for the newly unemployed, the frail and the young.

As a nurse, I believe a key moral measure of our society is how we treat the least among us. This irresponsible Republican proposal just doesn't measure up.

CREATING JOBS

(Mr. COHEN asked and was given permission to address the House for 1 minute.)

Mr. COHEN. Mr. Speaker, I want to commend our President for taking a mature and comprehensive approach to the problems we face.

When people have a need to lose weight, they both reduce their caloric content and they increase their exercise. It's the same thing with the deficit we have. You have to have cuts or reforms, but you also have to have more revenue.

The President's proposal yesterday about finally getting around to taxing the millionaires and the billionaires and having them contribute to the need to reduce our deficit is so important, while at the same time reforming Medicare, not eliminating Medicare. That's what is scary: eliminating Medicare for seniors, threatening Social Security, and not providing an innovative program to create jobs. Jobs is the issue. We need to create jobs in this country, and we haven't seen it coming forth.

I praise the President for his mature approach to the situation, and I encourage others to fall in line.

IN THE PEOPLE'S HOUSE, ONLY THE BIG DOGS EAT

(Ms. BROWN of Florida asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. BROWN of Florida. Mr. Speaker, my name is Congresswoman CORRINE BROWN, and I'm from the great State of Florida, the home of Claude Pepper.

Claude Pepper was the champion for senior citizens and the elderly, and he would be so appalled by the bill that the Republicans are bringing to the House floor tomorrow, which will gut and privatize Medicaid and Medicare in order to give tax cuts to the millionaires and billionaires. That's shocking—that's shocking to me—but Republicans are doing it after one hearing, which is unacceptable.

You talk about open government. Why is it that we have not had hearings where we bring in our stakeholders and talk about how this would affect senior citizens?

How can you dare to propose that people who may not even make $6,000 a year have to pay an additional $6,000 a year for health care insurance?

It's so sad that, in the people's House, only the big dogs eat.

□ 1120

REPUBLICAN BUDGET ENDS MEDICARE AS WE KNOW IT

(Mr. PALLONE asked and was given permission to address the House for 1 minute.)

Mr. PALLONE. Mr. Speaker, it's sort of ironic that today we're going to bring up a budget, the Republican budget, that would end Medicare as we know it, but at the same time seek to repeal the health care reform legislation, or at least defund it.

I don't understand how my Republican colleagues keep talking about repealing or defunding health care reform and yet have nothing to replace it with, and in this case are trying to gut or end as we know it the existing health care programs that we have for senior citizens and the disabled in the case of Medicare, and in the case of Medicaid for low-income people.

They would tell seniors, in their budget, that they're supposed to go out and buy their own health insurance, and somehow they're going to give them some help. They call it premium support from the Federal Government. But they're now going to have to pay out of pocket to just buy their insurance more and more. So they have to pay out of pocket for the premium, they have to pay out of pocket for a deductible, and they have to pay out of pocket for the copay. Where does it end?

THE AMERICAN DREAM

(Mr. CLARKE of Michigan asked and was given permission to address the House for 1 minute.)

Mr. CLARKE of Michigan. Mr. Speaker, I am here to talk about the American Dream.

The American Dream, that's what motivated the Asian American hotel owners to come to this country. Many of those hotel owners came here under circumstances similar to that of my dad. They came here to live the American Dream, but not just for us. By providing over half a million jobs to Americans throughout this great country, the Asian American Hotel Owners Association helped to provide the American Dream to all of us.

PROVIDING FOR CONSIDERATION OF H. CON. RES. 34, CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2012

Mr. SCOTT of South Carolina. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 223 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 223

Resolved, That at any time after the adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the concurrent resolution (H. Con. Res. 34) establishing the budget for the United States Government for fiscal year 2012 and setting forth appropriate budgetary levels for fiscal years 2013 through 2021. The first reading of the concurrent resolution shall be dispensed with. All points of order against consideration of the concurrent resolution are waived. General debate shall not exceed four hours, with three hours confined to the congressional budget equally divided and controlled by the chair and ranking minority member of the Committee on the Budget and one hour on the subject of economic goals and policies equally divided and controlled by Representative Brady of Texas and Representative Hinchey of New York or their respective designees. After general debate the concurrent resolution shall be considered for amendment under the five-minute rule. It shall be in order to consider as an original concurrent resolution for the purpose of amendment under the five-minute rule the amendment in the nature of a substitute printed in part A of the report of the Committee on Rules accompanying this resolution. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in part B of the report of the

Committee on Rules. Each amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to amendment. All points of order against the amendments printed in part B of the report are waived except that the adoption of an amendment in the nature of a substitute shall constitute the conclusion of consideration of amendments to the amendment in the nature of a substitute made in order as original text. After the conclusion of consideration of the concurrent resolution for amendment and a final period of general debate, which shall not exceed 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on the Budget, the Committee shall rise and report the concurrent resolution to the House with such amendment as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the concurrent resolution or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the concurrent resolution and amendments thereto to final adoption without intervening motion except amendments offered by the chairman of the Committee on the Budget pursuant to section 305(a)(5) of the Congressional Budget Act of 1974 to achieve mathematical consistency. The concurrent resolution shall not be subject to a demand for division of the question of its adoption.

The SPEAKER pro tempore. The gentleman from South Carolina is recognized for 1 hour.

Mr. SCOTT of South Carolina. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from New York (Ms. SLAUGHTER), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SCOTT of South Carolina. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from South Carolina?

There was no objection.

Mr. SCOTT of South Carolina. House Resolution 223 provides for a structured rule for consideration of House Concurrent Resolution 34. This rule makes in order every complete substitute submitted to the Rules Committee. Continuing a bipartisan tradition, we are making in order four Democratic substitutes and one Republican substitute, providing 4 hours of general debate, with ample debate on each substitute. This will allow the House to work its will and adopt a budget blueprint for fiscal year 2012.

Mr. Speaker, I rise today in support of this rule and the underlying bill. The underlying legislation is our budget for 2012. Our 2012 budget is our blueprint for a strong and secure future for the next generation.

Each of us is here today because those who came before us made amazing sacrifices for the next generation—us—keeping alive the American Dream. In the last century alone, our parents and grandparents have won two world wars, overcome the Great Depression, defeated communism, and created the most prosperous and vibrant society in the history of mankind.

Today it is our turn. It is our turn to take a bold and necessary step to ensure that we pass on to our children this great blessing called America, and even a stronger America than the one we received from our parents.

PAUL RYAN calls his plan The Path to Prosperity. I call it leadership. It is what our country has been thirsting for. It confronts our problems head on, and it proposes reasonable and responsible solutions to get us back on track.

Our plan creates jobs, real jobs, 1 million new jobs in America in the first year alone. It stimulates our economy, increasing our GDP by $1.5 trillion in the next 10 years. It protects and strengthens Social Security and Medicare. Let me say that one more time because so many people are trying to demagogue the issue: Our plan strengthens and protects Social Security and Medicare for the next generation of Americans. And it also reduces job-killing government spending by $6.2 trillion in the next 10 years.

Yesterday, our President, he got on board. Two months ago, he gave us his 2012 budget, and now we have 2012 2.0, the second time around. But the plan hasn't changed much, sir. The plan is basically the same. So let's compare our plan in the next 10 years to President Obama's plan over the next 12 years.

President Obama would add $4 trillion to our debt, leaving us at the end of the next decade with $26 trillion of debt, according to the CBO. Even our Democratic colleagues in the House agree, and they have presented a plan that breaks from their own President, cutting an additional $1.2 trillion off the deficit. The Republican budget cuts $6.2 trillion, bringing spending to under 20 percent of our economy.

The Republican plan proposes specific and responsible solutions to strengthen Medicare, Social Security, and Medicaid. The President talks very vaguely about a plan to cut waste and streamline Medicare and Medicaid, proposing to create yet another unelected commission to solve all of our problems. We don't need more unelected bureaucrats in Washington, sir, enlarging the scope of government. That's not real leadership.

The President tries to tax our way out of debt, placing the burden on those earning more than $100,000. But the problem, sir, is a simple one. If we were to tax these individuals 100 percent of their income, we still cannot cover our deficits this year alone. As a matter of fact, to tax our way out of debt, we would need to increase taxes across the board on every man, on every woman, and on every business by 60 percent. You simply cannot tax your way out of this debt. Imagine the effects this would have on our economy.

□ 1130

The President's budget cuts $400 billion out of our military. In the time that he has led us into Libya, in the time that we have two conflicts going on, it cuts $400 billion away from the men and women who are fighting for freedom, dying for liberty.

I encourage my colleagues to vote ''yes'' on the rule. I encourage my colleagues to vote ''yes'' on the underlying resolution.

I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I thank my colleague from South Carolina (Mr. SCOTT) for yielding me the 30 minutes, and I yield myself such time as I may consume.

Mr. Speaker, we all recognize the urgent need to cut the Nation's deficit. We need to have serious discussions and make tough decisions about how we prevent a fiscal crisis in our country, and certainly we are beginning those discussions.

But, sadly, today—and I must emphasize this—sadly, today this bill will end Medicare and cost shift to seniors $6,000 more a year. And why are they doing that? They get to pay for more tax breaks for Big Oil and millionaires, who are untouched in this country. That really is strange deficit reduction to me.

Frankly, if I had my druthers, I would start by ending the war in Afghanistan. That war is costing us $8 billion a month, and we're paying to rebuild Iraq and Afghanistan while our own infrastructure crumbles and while we feel we cannot afford to spend any of our money on those of us who live here and pay the costs.

Just yesterday, the President presented another way to solve our fiscal crisis, as he laid out a budget that will responsibly reduce the spending and that simplifies the Tax Code, which is so important, so that, as the President said, and this is critical to understand, the taxes you pay are not going to be determined by the accountant you can afford. This is good news for all Americans.

The President's budget puts us on the right track to ending the deficit crisis while investing in the long-term success of our economy and our country. Unfortunately, the thought is far too prevalent in this House that we need not invest in ourselves, that we can just shut down programs and everybody will be happy and singing in the streets. Not likely.

But despite the responsible vision the President presented yesterday, we stand here today debating a reckless Republican budget that will destroy programs like Medicare while extending the tax cuts to corporations and America's rich.

The budget starts with Medicare, eliminating the program that provides secure and affordable health care in old age. And it is eliminated. People who

are on Medicare now will be grandfathered in. In the future what they will get will be a voucher with a certain amount of Federal money that goes with it. They are then required to go do the best they can in the private market to meet their health care needs.

As we watch the cost in the private market climb, we would have to ask ourselves, Would this government help out, as Medicare would, by raising the money that the government puts in to replace it? No, it wouldn't. So under this plan a senior in the year 2021, and I hope there are a lot of them in this House who will follow me on this, will pay $6,000 more for the private insurance than they would have under Medicare. Now, if your insurance costs more than that, you had better find a way to pay your creditors because you're going to be on your own.

Today's budget bill also threatens the future of Social Security. It includes a trigger mechanism that would allow Social Security cuts to be rushed through the Congress at a future date. This trigger is an abuse of the legislative process and puts Social Security on the chopping block for future cuts.

Furthermore, in an act that defies all logic, this bill cripples the watch dogs that we created just last year to police the big banks who created the financial crisis. Why in the world would we want to do that?

In addition to Medicare and Social Security, it cuts 70 percent of our investments in clean energy. It cuts 25 percent of our education funding. It cuts out 30 percent of our transportation funding, including significantly less money for a high-speed rail network designed to free us from foreign oil.

By stopping investments in key competitive areas, our Nation is abandoning jobs and future economic opportunities that come with clean energy, with a new transportation network, and the invaluable work of educating our children. This is the burden 90 percent of Americans are asked to share.

Meanwhile, the Republican budget would make permanent the Bush-era tax cuts that further cut taxes for corporations and America's richest individuals, including the oil companies. Do they need a Federal subsidy? I think not. Had the Bush tax cuts been allowed to expire in December, we would almost be able to cut our deficit in half within a few months from now.

The Republican majority apparently believes that the ones who have the most should sacrifice the least. Some have claimed tax cuts create jobs. We hear that a lot around here. But analysis by respected experts, such as Pulitzer Prize winner and former New York Times tax expert David Clay Johnston, have shown that tax cuts do nothing to spur the economy and create jobs; they simply pad the wallets of the wealthiest among us in times of a national need.

As we shape a budget for 2012, we must craft legislation that truly shares the entire Nation's sacrifice, not a budget that ends Medicare while handing more tax giveaways to those who need it the least and in many cases are asking not to be given it.

Accordingly, I urge my colleagues to vote ''no'' on the rule and the underlying resolution.

I reserve the balance of my time.

Mr. SCOTT of South Carolina. I yield myself such time as I may consume, Mr. Speaker, and I just want to address a few points that Congresswoman SLAUGHTER brought up.

I have scoured the budget looking for this notion of a voucher system for Medicare. I've scoured the budget and simply cannot find anything that is, in fact, a voucher system. I have seen things about premium support.

But let's just talk about Medicare for a quick second. $800 billion the President has suggested must come out of Medicare in order to pay for national health care. So we are going to take benefits from our senior citizens in an attempt to provide health care benefits for 19- and 20-year-olds. In fact, that $800 billion is one way to actually increase the cost to every senior citizen in our country. Increasing taxes by $2 trillion in the next 12 months is a wonderful way to make our economy stumble, and that's what the President has suggested.

Finally, you cannot increase taxes on the very job creators themselves and then ask them to continue to create jobs.

□ 1140

Mr. Speaker, I yield 5 minutes to the gentleman from Georgia (Mr. KINGSTON).

Mr. KINGSTON. I thank the gentleman for yielding.

Mr. Speaker, we are facing a crisis in the country today. Imagine back home in your family budget if for every dollar you spent, 40 cents was borrowed. Surely you would bring your entire family to the kitchen table and say, okay, what can we cut out? We cannot continue to borrow 40 cents for every dollar we spend. You would make changes in your household budget. But for some reason, many in Washington, D.C. want to stick their head in the sand and say, no, we really don't have to do this. And yet right now the national debt is 90 percent of the GDP.

We borrow billions of dollars a year from China, which is not exactly a great idea in terms of national security. I sit on the Defense Subcommittee of Appropriations. We watch China year in, year out building up their army, and yet we go to them over and over again for more money. And yet, while we do that, those in Washington, D.C., don't want to do anything.

We heard yesterday the President's mulligan budget. As you know, Mr. Speaker, the President of the United States is responsible to submit his budget to Congress each year, which the President did in February, totally ignoring his own deficit commission's recommendations. The Simpson-Bowles language was not in there. And yet, yesterday, the President decided, oh, well, give me one more chance, I'm going to introduce another budget, which has a lot of phony numbers in there and a lot of false promises and calls for more studies and commissions. I ask my Democrat friends, is that budget going to be on the floor today? Are we going to be able to offer it?

I yield to my friend from Maryland.

Mr. VAN HOLLEN. If the Speaker would allow, we are going to be offering a Democratic alternative today, and everyone will have a chance to see the alternative.

Mr. KINGSTON. You will be offering the budget the President talked about yesterday? I'm going to yield back to my friend from Maryland, but I want to say this: Unlike when you guys were in charge, we are offering the Democrats opportunities to offer budgets. We think it's very important, because we want the best of your ideas, and we think the best of our ideas can be combined together for the best of America.

Mr. VAN HOLLEN. Will the gentleman yield for 5 seconds? Because you will have that opportunity to vote on a Democratic alternative.

Mr. KINGSTON. I am going to yield to my friend, but here's what I want to say, that we keep hearing over and over again in the last 24 hours about the President's wonderful mulligan budget that he offered yesterday, but I don't believe it's going to be offered on the floor of the House.

Now let me yield to my friend.

Mr. VAN HOLLEN. As I indicated, you will have a Democratic alternative budget that we're going to put forward, and it will present a very clear choice for the Members. We will present a budget that achieves steady, predictable deficit reduction. Again, we make different choices in how we do it, and that is the center of the debate. So everyone will have an opportunity to vote on an alternative budget.

Mr. KINGSTON. Let me ask specifically, the mulligan budget that the President offered yesterday, will it be on the floor of the House today?

Mr. VAN HOLLEN. The President did not offer what we call a budget. He offered what was an outline, an approach, that he wants people to look at on a bipartisan basis. That's what the President proposed yesterday.

Mr. KINGSTON. Let me thank my friend from Maryland for answering this, because I do think it's important for the Democrats to be given an opportunity to offer an alternative budget, and I'm glad that you will be, and there will be five such budgets. And I'm hoping even if your budgets don't pass, that we can still pick and choose some parts of those, and there will be some parts of our budget that you like and want to support as well.

But I want to emphasize over and over again that the President, who yesterday tried to reclaim some territory

because he did not take on the recommendations of his own deficit reduction commission, he was not offering a budget yesterday. What he did was give a speech. Now, the President is kind of becoming the Spectator in Chief or the Speaker in Chief. He's the guy who offers a budget, and then yesterday decides to give a speech. Well, the time has come and gone for speeches.

What our budget does is take on some serious changes in our spending habit. It does tackle the difficult choices that we have on Medicaid and Medicare. It does not create a voucher system; it is a supplemental system which will give seniors more choices. And it doesn't affect anybody 55 years or older, which is very important.

But we will hear from the liberals in this community the cage rattling of senior citizens over and over again, and that's why we can't make progress in this town, because we always reduce policy to politics.

The time to put policy first is now. We've got to tone down our rhetoric and say, you know what, here is a plan to save and protect and preserve Medicaid and Medicare, not for the next election, not for politicians, but for America's future seniors. The baby boomers who are under 55 years old will have a Medicare/Medicaid plan that they can count on because it will be there. If we don't change, it will not be there for them.

Ms. SLAUGHTER. Mr. Speaker, later in this debate, if we defeat the previous question, I will offer an amendment to the rule to make in order Mr. TONKO's amendment to protect Medicare, TRICARE, and veterans' health care from privatization or arbitrary spending caps.

I am pleased to yield 3 minutes to the gentleman from Maryland (Mr. VAN HOLLEN), the ranking member of the Budget Committee.

Mr. VAN HOLLEN. I thank the ranking member.

I'm glad my colleague raised the issue of the bipartisan fiscal commission, because the fiscal commission took a look at the Republican budget plan and said it was not balanced and not comprehensive and not a way to achieve deficit reduction in a responsible way. That was the verdict of the bipartisan commission.

Why did they say it was unbalanced? Because the Republican budget provides big tax breaks for special interests. You don't get rid of the subsidies to the big oil companies. You want to give additional tax breaks to the very wealthy, including millionaires. And what do you do for the tradeoff? You cut funding for education for kids and you do end the Medicare guarantee. We're going to have time to talk about other parts of the bill later on, but I want to talk about that now because it's going to be the subject of the previous question.

What this budget does is say to seniors, you no longer may stay in the Medicare program today; you have to go into the private insurance market. And the way it saves money is it says, as those costs in the private insurance market continue to go up, you are not going to get premium support that will keep up with it. You're going to get something that's a relatively fixed value compared to the rapidly rising health care costs, which is why, as the President said yesterday, in the year 2022 seniors would pay more under the Republican budget plan by over $6,300 than they do under current Medicare. And that continues to rise and rise and rise.

I want to put an end today to this other talking point we keep hearing, that somehow they're offering seniors what Members of Congress have. It's not true. What Members of Congress have is something called a fair share formula under the Federal Employees Health Benefit Plan. So as premiums go up, the risk to Members of Congress and other Federal employees is fixed at a certain percentage. Not true under the Republican Medicare plan. The way it saves money in the out years is in fact to make sure that share between Medicare and the senior is not fixed, that the senior has to pick up more of the cost. That is a fact. And that is how they make money in the out years, by putting it on the backs of seniors, even while they say they're going to bring down the top tax rate by 30 percent for the wealthiest people in this country. That's the kind of choices we're facing here.

The gentleman from New York (Mr. TONKO) had an amendment before the Rules Committee on exactly this issue of ending Medicare and the guarantee that it provides in saying you've got to go into the private system.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. SLAUGHTER. I yield the gentleman an additional 30 seconds.

Mr. VAN HOLLEN. His amendment makes the point that if you think this is a good idea, if the Republicans think this is such a good idea, why don't you apply it to veterans? Why don't you apply it to active service personnel? If it is such a great thing, why don't you turn them into voucher premium support—whatever you want—a kind of plan where they have to eat the rising cost of health care?

Members are going to have an opportunity. If you vote ''no'' on the previous question, you will be able to vote to say, let's not turn Medicare into a voucher premium support, let's not end the guarantee, and let's not do that for our military personnel or our veterans either.

Mr. SCOTT of South Carolina. I yield myself such time as I may consume.

Mr. Speaker, let's just clear up a simple point here. The only specified savings in this budget are from raising taxes and cutting the military. If we really wanted to have an opportunity to make Medicare last longer, we could simply repeal ObamaCare, repeal national health care, and put the $800 billion back into Medicare.

Mr. VAN HOLLEN. Will the gentleman yield?

Mr. SCOTT of South Carolina. I yield to the gentleman from Maryland.

Mr. VAN HOLLEN. The Democratic alternative says, yes, we should ask the highest income earners, the folks at the top 2 percent, to simply pay the same rate that they paid during the Clinton administration when the economy was roaring and we created 20 million jobs.

□ 1150

That's what the choices are before us, and that's exactly the point you're making. You want to end the Medicare guarantee for seniors at the same time you want to give tax breaks to folks at the very top. That's your choice. You can make it, but we don't think that's the choice the American people want to make.

Mr. SCOTT of South Carolina. Congressman, the fact is simple. We could tax those over $100,000 a year 100 percent and we still simply could not close the deficit for this year.

The fact of the matter is people talk about this government getting smaller, and the President's original budget spent $47 trillion in the next 10 years—an $8.7 trillion increase in spending. We're talking about a $2 trillion increase in spending in the next 12 months in taxes. We're not talking about reducing the size and scope of this government.

We must get ourselves on a completely different trajectory. We must bend the trajectory back towards the American people, back towards the private sector, and eliminate the disincentive for growth in our economy called taxation.

So to the extent that we can flatten the tax, spread the risk, we find ourselves in a more prosperous society with a stronger economy led by those folks in the private sector. Entrepreneurs have an opportunity to take those dollars and reinvest them in such a way to create more jobs. It is a simple formula.

Mr. Speaker, I yield 5 minutes to the gentleman from South Carolina (Mr. MULVANEY).

Mr. MULVANEY. I thank my colleague for the opportunity to speak.

Mr. Speaker, it's been roughly a hundred days since I've been here. I'm one of the new folks in Congress. I began with my very first presentation several months ago congratulating my opponents across the aisle for saying all of the right things about where we're going to go this year, about how concerned they were about cutting spending, how concerned they were about balancing the budget. And I was actually excited at that time to hear folks across the aisle using a lot of the same language that we were using. Apparently, by now, I guess I have to expose myself for being somewhat naive.

Here we are again today hearing the exact same language, that the other side is deathly serious about cutting

spending, the other side is deathly serious about balancing the budget, and I've come to realize, as I think most of America has, that the words simply don't match up to the language.

I guess, to a certain extent, I should be happy that we are here at least having this debate. We are here today discussing the 2012 budget for the first time. This will be the first time in 2 years this debate has taken place on this floor since there was no budget last year offered by my colleagues across the way.

I can simply ask them: If you are indeed serious today about balancing the budget, serious today about getting spending under control, where have you been for the last 4 years? Where were you last year when this debate was not even allowed to take place on the floor of the House of Representatives?

But let's put that behind us now. Let's move on to the 2012 budget. What are we seeing? We're seeing some wonderful language out of our colleagues on the other side. We saw the President in his State of the Union say a lot of the things that folks like me wanted to hear. And then we saw a budget that did absolutely nothing out of the White House—nothing. A budget that was decried by The Washington Post as actually being void of ideas and failing to lead.

So what did our side do? We led. And in our budget, we actually introduced specific proposals on how to solve the problem. Did you like them? No. Did I like all of them? No. Are we all going to like all of the proposals? No chance. But at least we offered ideas, specific ideas.

Then yesterday we heard the President was going to do the same thing, that he was going to meet us, that he wasn't going to attack us. He was actually going to put specific ideas on the table and invited my colleagues to sit in the front row while he called them un-American and again refused to give any specifics.

Mr. Speaker, you will not see the President's budget offered today or tomorrow as an amendment. You will not see the budget that the President discussed yesterday offered as an amendment because it simply does not meet the specific requirements of being a budget amendment. It doesn't even come close.

What the President talked about last night was more empty ideas and political rhetoric. The speech was introduced by his campaign manager, not by his Director of the Office of Management and Budget, not by the Secretary of the Treasury. It was a political speech. I'm extraordinarily frustrated with that.

I have an economics background. I'd love to sit and talk about the economic realities that face our Nation. It is so difficult to do when the other side, led by the President, simply wants to engage in politics.

Here again today we've seen it. We've seen talking points that somehow our proposal is going to require seniors to pay $6,000 out of pocket. We've looked for the last 12 hours to try and find that, Mr. Speaker, and we can't find it. What we did find, however, was the CBO report that says that the payment under our proposed system for 65-year-olds in 2020, 10 years on, would be the exact same as it would be under Medicare, that the spending per capita on seniors under our proposal 10 years on would be the same as it is under the current law.

I'm not sure where the $6,300 is coming from. My guess is it's coming from somebody's political office and not from some economic think tank.

You heard my esteemed colleague from Maryland, whom I've enjoyed working with on the Budget Committee, talk about the fiscal commission. I think lost in a lot of the discussion yesterday about the President's speech were the comments that one of the cochairs of that committee made as he walked out of the room after the President gave his speech, and they said, ''Mr. Simpson, what do you think the course of action should be from here on out?'' And his answer was, ''Pray.''

Is that what we've come to as a Nation, that the best chance we have to balance our budget is prayer? I'm a big believer in prayer, don't get me wrong, but we need to be met on the real issues. We cannot have the other side continuing to meet our specific proposals with rhetoric.

To the extent that we will see specific proposals, I think we saw a brief introduction to it during the amendment process in the committee. Every single Democrat amendment—that's not fair. There were three or four, including one or two that I think I voted for. We did have a couple of bipartisan amendments pass. But the large majority of the Democrat proposals of amendments to this budget during the budget process were fairly simply described as increased taxes and increased spending. It was a series of increased taxes and increased spending.

My fear, Mr. Speaker, is that's what we're going to see for the next few days, and it's a tremendous loss that here we are able to discuss the budget for the first time in 2 years that the debate will be purely political.

Ms. SLAUGHTER. Mr. Speaker, I yield 1 minute to the gentleman from Maryland (Mr. VAN HOLLEN).

Mr. VAN HOLLEN. I thank the ranking member.

If my colleague would remember, one of the first amendments that was offered was to say let's be serious about the deficit. Let's have shared sacrifice. Let's ask those folks paying over a million dollars to go back to the same tax rates that they were during the Clinton administration and put some of that money to deficit reduction.

We offered other amendments by saying let's let the big oil companies do a little less with the taxpayer subsidies and focus that on higher priorities.

The gentleman asked where the figure was that a senior would have to pay $6,000 more in the year 2022 under the Republican proposal. That is from the CBO letter to the chairman of the Budget Committee where they did their analysis of the long-term impact. It was not a Republican outfit. It was not a Democratic outfit. In fact, the chairman of the committee has made it clear that he has used the CBO baseline for the purpose of his own budget. This is out of a CBO report. And I think we need to take it seriously, because we can all have our own arguments and opinions, but there are certain facts that we can't run away from, and that's one of them.

Mr. SCOTT of South Carolina. Mr. Speaker, I yield 2 minutes to the gentleman from California, Chairman DREIER.

(Mr. DREIER asked and was given permission to revise and extend his remarks.)

Mr. DREIER. Mr. Speaker, let me begin by expressing my appreciation not only to the gentleman from North Charleston for his superb management of this rule, but also to salute my friend from Lawrenceville, Georgia (Mr. WOODALL), who serves from the Rules Committee to the Committee on the Budget.

We actually have clearly changed the entire trajectory with the budget that we are going to consider with this rule. And I should say that, as I listened to the exchange that took place between Messrs. VAN HOLLEN and KINGSTON earlier, we've changed the debate.

In the last session of Congress, Mr. Speaker, there was not a budget considered. We didn't go through this. Yet we are going to have every single substitute—from the Congressional Progressive Caucus, the Congressional Black Caucus, Mr. COOPER, the Democratic substitute—all considered, and we're going to have a free-flowing debate today and tomorrow on that.

Now, Mr. Speaker, let me just say that yesterday I stood here at 1:30 just as the President was getting ready to deliver his speech, and I indicated some real hope and optimism by virtue of the fact that early indications were that the President would be talking about the need for entitlement reform. I have to say that I was more than disappointed in the fact that the speech was a little more political than I thought it could have been, and it was at best a very first step, but a little too modest for my tastes.

□ 1200

Madam Speaker, it is essential that we work in a bipartisan way to take on the burden and the cost of Medicare especially, and Social Security as well. Why? So that we can save, not abolish, Medicare and Social Security. The American people have been compelled throughout their entire lifetimes to pay the FICA tax. They in fact should have an opportunity to have what are much needed health care and retirement benefits. And the course that

we're on right now, Madam Speaker, has created a scenario whereby they will be lost. That's why we are working to save it. It can only be done, I believe, Madam Speaker, if we do it in a bipartisan way.

Ms. SLAUGHTER. Madam Speaker, I yield 2 minutes to a former member of the Rules Committee, the gentlewoman from Maine (Ms. PINGREE).

Ms. PINGREE of Maine. I thank my colleague from New York, former chair of the Rules Committee, who I had the privilege of serving under, for allowing me this time.

Madam Speaker, I am here today to speak against the rule and against the Republican budget. Last year was a good year for CEOs at America's biggest companies. The average CEO got a 12 percent raise and made about $10 million. Now the Republicans want to give that same CEO a 30 percent tax cut. That's right. While the average American family is struggling with gas prices that went up 93 cents in the last year, while working Americans tried to figure out how to afford health care or how to send their children to college, the Republicans have been busy trying to figure out how to cut taxes for CEOs by one-third.

Of course, you can't cut taxes that dramatically for the richest Americans without cutting spending somewhere else. Someone has to pay for the tax cuts. And in the Republican budget, the people who pay the price are seniors and the middle class. Under their budget, seniors will pay when Medicare as we know it is ended and replaced with a voucher system that will be a windfall for insurance companies but will double health care costs for seniors. And the middle class will pay when deductions for home mortgages or health insurance are repealed to pay for those CEO tax cuts.

Madam Speaker, Republicans simply have the wrong priorities, putting the burden of the budget on seniors and the middle class while giving big tax breaks to the wealthy and handing out handouts to insurance companies. I don't share those values. This is not a budget that serves the American people well.

Mr. SCOTT of South Carolina. I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 3 minutes to a member of the Committee on Rules, the gentleman from Massachusetts (Mr. MCGOVERN).

Mr. MCGOVERN. Madam Speaker, I rise in strong opposition to the Ryan budget before the House today. I am pleased that the Rules Committee has made the submitted substitute budgets in order so that we can have a full debate on our Nation's priorities over the next several years. And in my view, the Ryan budget represents exactly the wrong priorities.

It would eliminate Medicare as we know it, forcing seniors to pay thousands of dollars more every year for their health care. It would bring back the doughnut hole, allow insurance companies to once again discriminate based upon preexisting conditions, and kick young people off their parents' insurance plans. It would slash needed investments in education, infrastructure, medical research, environmental protection, and hunger programs. And it would still result in deficits as far as the eye can see.

And at the same time, the Ryan budget would give a massive tax cut to the wealthiest Americans. The top rate under the Ryan budget would be the lowest since 1931, which is appropriate, Madam Speaker, because this is a budget that only Herbert Hoover could love. Apparently, the Republican leadership of this House would like to reverse the last 80 years of social progress in this country.

In short, I believe this budget would represent the largest redistribution of wealth from the middle class and the poor to the wealthy in American history. Now, some have called this approach trickle-down economics on steroids. But it's worse than trickle-down, Madam Speaker; it's gusher-up. Over the last several years, working families have been struggling, struggling to find a job, struggling to pay their mortgages, to pay the utility bills and their health care bills, struggling to put food on the table and put their kids through college. To them, the Republicans would say, ''Tough luck.''

At the same time, the very wealthiest Americans and corporations have enjoyed record profits. And to them the Republicans would say, ''You need more help.'' As President Obama said so eloquently yesterday, ''That's not the America that I grew up in. That's not the America I want for my children and for my grandchildren.''

We can and we must do better. The Democratic alternative offered by Mr. VAN HOLLEN is a sensible, practical, and, most importantly, fair way to address our long-term fiscal challenges while at the same time investing in our future. I urge my colleagues to support that alternative and to reject the Ryan budget.

Mr. SCOTT of South Carolina. I continue to reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I yield 2 minutes to a member of the Budget Committee and my colleague from New York (Mr. TONKO).

Mr. TONKO. I thank my colleague for yielding.

Madam Speaker, in the last week I have twice offered an amendment to protect health care for seniors, veterans, and active duty military and military families. And to my great disappointment, the Republican majority has twice blocked this effort, first in committee, where Republicans voted unanimously on a party line vote to end Medicare, and again yesterday, when the Republican leadership refused to allow this amendment to be heard, debated, and voted on in this Chamber.

I have twice asked my Republican colleagues to honor the Constitution. They must allow the democratically elected representatives of the American people to have an honest up or down vote on whether or not we support privatizing Medicare, a trend that could lead to similar privatized plans for the health coverage provided to our troops and veterans. For if they honestly believe that seniors will receive quality care at a more affordable price to the taxpayer, what's to stop them from going after TRICARE and the VA?

My amendment will protect health care provided to seniors and the disabled from being privatized or being subject to arbitrary spending caps. It would extend the same protection to health coverage for active duty military and their families, as well as veterans. This amendment would protect Medicare, TRICARE, and VA health care from being eliminated and replaced with voucher or premium support programs.

The Road to Ruin budget ends Medicare. This is a program that 46 million seniors and disabled individuals rely on for their health care. Rather than guaranteed benefits, seniors and the disabled will be left with a voucher, or so-called premium support, that by design cannot and will not keep up with rising health care costs. The private market views seniors as a risky and expensive investment. So too the disabled. So too military servicemembers and veterans who have unique health needs earned through their sacrifice in service to America.

The question before us today is not whether to reduce the deficit, but how. We have balanced the budget before without ending Medicare. We can do it again without the painful consequences that the Republican plan would initiate, where our seniors would pay 68 cents of every dollar of insurance required as compared to Congress paying 28 cents on every dollar.

Forty-six million people rely on Medicare today. Even more will depend on it in the future. Those many millions deserve a vote. That vote has been denied to them by the Republican leadership of the House.

Mr. SCOTT of South Carolina. Madam Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. DOLD).

Mr. DOLD. I thank my colleague for yielding.

Madam Speaker, I think it's time that we roll up our sleeves and get to work. I am delighted that we are having this debate. We hear a lot about job creators and business owners. Well, I am a small business owner, and I know what this crushing Federal debt does to small businesses all across our Nation and to job creators as well. It reduces certainty and stability, it scares away private sector investment that leads to growth for our economy, and it crushes the hopes of job creation.

Small businesses need to be able to forecast what their expenses will be in

the long term. Small businesses are reluctant to take risks when they don't know what their costs will be in the future. And if you listen to what the President said from his speech just yesterday, he made it clear that his vision of the future includes taking money out of the pockets of small businesses and job creators by increasing taxes on these very small businesses. This is the President's plan for addressing the deficit.

Increasing taxes on small businesses will have a devastating effect on job creation in this country. Two-thirds of all net new jobs in our Nation are created by small business, and 75 percent of those small businesses file their returns as an independent return on their individual tax forms. Rather than introduce the specter of uncertainty and increased taxes on our business community, we must instead make the choice to be relentless in our effort to support small businesses and actually encourage economic growth.

Last week PAUL RYAN, the chairman of the House Budget Committee, put forward a budget that cuts $6.2 trillion over the decade, preventing the President's proposed tax increases from going into effect and putting the Nation on a fiscally sustainable path to give job creators and entrepreneurs all across the country the confidence to grow their business, to invest, and to create jobs.

□ 1210

Federal deficits, Madam Speaker, have ballooned over the last 3 years, and this budget blueprint for fiscal year 2012 starts to repair the damage and takes the serious steps to put ourselves on a path to paying off the debt and reducing our deficits.

Mr. MCGOVERN. Madam Speaker, I yield 2 minutes to the gentleman from New Jersey (Mr. ANDREWS).

(Mr. ANDREWS asked and was given permission to revise and extend his remarks.)

Mr. ANDREWS. Madam Speaker, we need to work together to change America, to stop borrowing so much money and jeopardizing the future of our country. We agree on that.

But it's important that we understand that it's not the way to do that to end Medicare, and here is what ending Medicare means to the seniors and disabled people of this country. Today, if a person on Medicare has a medical problem, they choose their doctor. The doctor and the patient decide what should happen next and Medicare pays the lion's share of the bill. This is a system that works for America's seniors and works for America's disabled.

How do the Republicans want to change Medicare and end Medicare? This is what they want to do.

You won't choose your doctor, the insurance company will. If a doctor decides that a certain test or procedure is necessary, he or she will have to ask the insurance company's permission to get that test done. And the bill won't be paid by Medicare. The bill will be paid by the insurance company when they feel like it, if they feel like it, for the amount that it should.

The Congressional Budget Office has looked at this issue at the request of Chairman RYAN and concluded that by the end of the implementation of this plan, seniors will pay an extra $6,000 a year out of pocket for health care expenses: $6,000 a year, $500 a month, $125 a week, beyond what they are paying right now for health care.

We will stand for Medicare. We will not stand for this budget. We will defeat it.

Mr. SCOTT of South Carolina. I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I yield 2 minutes to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. This Republican budget does offer a path to prosperity. Unfortunately, it's China's prosperity.

For America, they offer a fast track to mediocrity, a descent into economic insecurity. It's the wrong path to global competitiveness. It's not that the level of our debt or the size of our tax rates is unimportant; it's that when you have such a narrow focus that you talk about little else, you forget America's other competitive strengths, our workforce, the need to invest to ensure the strongest and best-educated workforce anywhere in the world, and our infrastructure that allows American businesses to prosper across our country. It's also about preserving a broad middle class so that more Americans share in the bounty of this country instead of going to some third-world extreme where all the wealth is concentrated at those at the top of the ladder.

Today we have to choose. Instead of eliminating $4 billion from early education and student financial assistance so that students can achieve all of their God-given potential, why not ask General Electric to at least pay the level of taxes that the mail clerks that work for it pay?

Instead of eliminating $3 billion from our crumbling roads and bridges, why not ask those giant corporations that currently get a $3 billion annual deduction when they borrow money to build a factory overseas without recognizing any of the income from that factory, to begin to pay their fair share. And instead of accepting this Republican nonsense that we have to have more tax breaks for the very wealthy in our country, why not use the same money to ensure a little dignity for our seniors in nursing homes across the country?

We need to stop exporting jobs and manufacturing and stop exporting our tax revenues overseas and begin developing a more competitive workforce right here in America.

The SPEAKER pro tempore (Mrs. BIGGERT). The time of the gentleman has expired.

Ms. SLAUGHTER. I yield the gentleman an additional 10 seconds.

Mr. DOGGETT. I will yield my time, but I will never yield to those Republicans who don't demand any sacrifice from Wall Street and all those big-bonus recipients but do demand that the rest of us pay for balancing their budget.

Oppose this Republican budget.

Mr. SCOTT of South Carolina. Madam Speaker, I yield 1 minute to the gentleman from Oklahoma (Mr. LANKFORD).

(Mr. LANKFORD asked and was given permission to revise and extend his remarks.)

Mr. LANKFORD. I sit and listen to the conversation and the debate, and it is as if we are reading two entirely different documents. I feel like the Republicans are being portrayed as if they are going to have a horn grow out of their heads and immediately rush into homes and jerk out the poor and those that are on Social Security and the needy.

If you read the document, we are dealing with two central issues. The first of those issues is $14 trillion in debt. Now, we can ignore that fact or we can begin to take it on and make serious decisions and have serious adult conversations.

The second issue that we take on is this one simple principle: Do we have a spending problem, or do we have a tax problem in America? In other words, do we need to tax a lot more, or do we need to spend less?

I think if you look at the rate of how we have been spending in America versus how we are taxing in America, you would say we have a spending issue. In our current time there are all these statements that are being made that Republicans want to protect the corporations, Republicans want to be able to give all these benefits to the wealthy.

Here's what we want to do with the tax rate: Leave it where it is now. That's not a 30 percent cut. That's not anything else. Where it is right now, that's the rate that we need to keep.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 2 minutes to the gentleman from Virginia (Mr. CONNOLLY).

Mr. CONNOLLY of Virginia. I thank my good friend from New York.

Madam Speaker, I rise on behalf of the seniors in my community.

Before we enacted Medicare in 1965, almost half of all seniors in our country had no health insurance coverage. That's why the creation of Medicare was so important, and now every one of America's seniors has access to quality health care coverage.

But today their care is at risk and under assault. The America we enjoy, as the result of the lifetimes of hard work by our seniors, and as they enter their well-deserved retirements, there are those who would callously rip away the commitment this Nation made to them.

The Republican budget for fiscal year 2012 is a Path to the Past and will return us to the dark days when seniors

agonized over access to health care. The Republican budget ends the guaranteed coverage of Medicare and replaces it with a grossly inadequate voucher system, subjugating seniors once again to the whims of private insurance companies and forcing them to bear the brunt of spiraling health care costs by themselves.

The nonpartisan Congressional Budget Office said seniors in 2030 would pay three times more for coverage under the Republican plan. The Republican budget reopens the doughnut hole in Medicare part D, forcing seniors once again to pay thousands of dollars of out-of-pocket expenses for prescription drug medication.

I was proud to fix that inequity and eliminate the doughnut hole last year. But the Path to the Past brings it back, roaring back, costing seniors thousands more.

But this Republican budget isn't just a cost-shifting trick to transfer the financial burden onto seniors, though it is that. The Republicans would also repeal the important reforms prohibiting insurers from denying coverage for preexisting conditions.

That puts every single senior with preexisting conditions at risk. Even those who can afford the increased costs of privatized care, they could find themselves denied that care in the Republican plan. The Path to the Past needs to be rejected, Madam Speaker.

Mr. SCOTT of South Carolina. I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 2 minutes to one of our new Members, the gentleman from Rhode Island (Mr. CICILLINE).

Mr. CICILLINE. I thank the gentlewoman from New York.

I rise in opposition to this rule and against this budget. This Republican budget no longer honors our commitment to our seniors and doesn't reduce our deficit. The nonpartisan Congressional Budget Office says that the Republican plan will add $8 trillion to the deficit over the next decade because the proposed cuts in spending are outpaced by gigantic tax cuts for the richest Americans.

□ 1220

You also can't say you care about seniors and then fight to enact policies that hurt seniors. Under their plan, they'll slash support for seniors in nursing homes while giving away tax breaks to companies that ship our jobs overseas.

And what else? American seniors will literally be paying more for their health care and getting less in order to finance additional tax breaks to the wealthiest Americans, also reflected in this Republican budget.

A budget is more than just about dollars and cents. It's a statement of our values and our priorities as a Nation. This Republican budget does not reflect the values of our great Nation. My friends on the other side of the aisle would rather cut benefits to seniors than cut subsidies to big oil companies and big corporations that ship our jobs overseas.

They can quarrel with that argument, but these are the choices made in this budget. It ends Medicare as we know it. It slashes funding for nursing homes. It preserves tax cuts for the richest Americans and makes it even more generous. And it increases our debt. We have a responsibility to honor our commitment to our seniors. I ask my colleagues on the other side of the aisle, if we can't protect our Greatest Generation and keep our promise to them, what is next?

Mr. SCOTT of South Carolina. Madam Speaker, I yield 3 minutes to the gentleman from Georgia (Mr. WOODALL).

Mr. WOODALL. I thank my colleague from the Rules Committee for yielding.

We've got a good freshman class up there on the Rules Committee. And what we've been able to do under the leadership of Chairman DREIER is bring open processes to the floor. Can you imagine, we've got a multitude of budgets down here on the floor. If you want to look at the Congressional Black Caucus budget, you can vote for that today. If you want to vote for the Republican Study Committee budget, you can vote for that today. If you want to vote for Mr. VAN HOLLEN's budget, you can vote for that today. You have your choices today about what your priorities are and about what your vision for America's future is.

And when we have that conversation—and we've had it in the Budget Committee. I'm proud to be able to serve on both the Rules Committee and the Budget Committee—we've had that on the Budget Committee, an honest back and forth. So it pains me to come to the floor today and hear what can only be described as nonsense. Nonsense.

Have you heard anybody on the House floor today say that the Republican budget would change things for seniors? Have you heard that today? I believe you have because I've heard it over and over again. The truth of the matter is the Republican budget changes nothing, nothing for seniors. It says you don't even have to be a senior. If you're age 55 or older, we change nothing in Medicare for you. Nothing.

Yet my colleagues on the left are scaring today's seniors, scaring the folks who have the fewest number of choices in our society, scaring them into believing that folks are coming for them. Not true.

Our colleagues on the left would say $6,000 is what we're going to charge additional to seniors. Well, two things: Number one, again, we're not doing anything for seniors. You've got to be 55 or younger. You've got to be my age to even begin to have a program change.

And more importantly, that $6,000 figure comes from a CBO report looking at things 12 years down the road, which is 2 years after the Medicare program has gone bankrupt entirely. Hear that. Hear that misinformation: $6,000 per beneficiary, a number that comes from a report looking at the program 2 years after our trustees tell us it's going to go bankrupt entirely.

Folks, this is about choices. This is about your vision for America. You have to put forward your plan. I applaud Mr. VAN HOLLEN for putting a plan forward. He could have said, no, I don't have any ideas. That's what the White House has chosen to do. Mr. VAN HOLLEN did better. The Congressional Black Caucus did better. The Republican Study Committee did better.

Look at these budgets. Look at the open process. Make the choice for you about what you believe a better America would look like. The Wall Street Journal talked about the Path to Prosperity and called it the most serious attempt at reforming government in a generation. It absolutely is. I applaud Chairman RYAN for getting that done.

I thank my friend from South Carolina for the time, and I appreciate the Rules Committee giving us this open process that we have today.

Ms. SLAUGHTER. I am pleased, Madam Speaker, to yield 2 minutes to the gentleman from Texas (Mr. GREEN).

(Mr. GENE GREEN of Texas asked and was given permission to revise and extend his remarks.)

Mr. GENE GREEN of Texas. I want to thank my colleague from New York for allowing me to speak.

The gentleman before me was correct: we have lots of options today, and that's great. We have the Republican budget, we have a Democratic budget, we have a Black Caucus budget and we have a Progressive Caucus budget. We have lots of options.

I'm going to talk about the Republican budget.

The Republican proposal we're debating today is reckless and misguided. It slashes taxes for the wealthy and pays for them by gutting Medicare. Let me explain that. It cuts over $30 billion in the first 10 years and will end Medicare by forcing seniors into private health insurance plans after 2022. They're right, if you're 54 years old now and you have high blood pressure and you're diabetic or prediabetic, you won't get Medicare. You'll get a voucher. And insurance companies don't want to cover those of us that may be diabetic or prediabetic or have high blood pressure. They're waiting to get on Medicare. They're not waiting to get a voucher.

It gradually excludes seniors and eventually raises the age to 67 for Medicare. The CBO says that in 2022, the Republican's proposal will more than double the cost paid by Medicare enrollees. We are throwing seniors out of Medicare and into the uncertainty of the private insurance market while providing tax breaks to the wealthy. And it doesn't make sense.

I also represent the Port of Houston, the 10th busiest port in the world. The

port is facing a dredging crisis. Ensuring dredging means ensuring jobs. But the Republican budget contains deep cuts in programs like the Army Corps of Engineers. Dredging cannot be funded privately. It has to come from the Corps and the Federal Government. Hundreds of thousands of jobs not only in our Port of Houston but also across the country under this plan will be put at risk.

There's one high point in the budget, and I commend Chairman RYAN for including language to put NASA on track with the authorization bill Congress passed last year and provide for an immediate transition for our next generation of human space flight program once the shuttle missions are concluded.

Despite that, I'm unable to support the plan that allows massive cuts for the wealthiest Americans and pays for them by ending Medicare while neglecting our ports.

This budget proposal makes over $30 billion in cuts to Medicare over 10 years, seeks to eliminate Medicare, and shifts all seniors over to private insurance plans after 2022.

Beginning in 2022, Congressman RYAN's budget proposal would convert the current Medicare system to a system of premium support payments. Individuals, when they turn 65 and Disability Insurance beneficiaries who become eligible for Medicare in 2022 or later, would not enroll in the current Medicare program but would receive vouchers to purchase private insurance plans. In addition, the proposal would increase the age of eligibility for Medicare for 2 months per year until it reaches 67 in 2033.

According to the Congressional Budget Office (CBO), the Ryan budget proposal would more than double Medicare beneficiary costs in 2022, from $5,538 to $12,513, which is an increase of nearly $7,000 per year in beneficiary premiums and co-insurance. Not one dollar of that increase in beneficiary costs goes to reducing the deficit—it all goes to cover the higher costs of private plans that the Republicans would force seniors to join. Additionally, the average 65-year-old in 2030 would have to pay about 68 percent of their health care costs (through premiums and copayments), compared with 25 percent under current rules.

This is not the type of system we want for our seniors. Shifting individuals from a program like Medicare that works to private insurance plans that are only interested in making a profit is no way to reduce government spending and our deficit. In fact, the Ryan proposal once again shifts the burden of reducing the deficit onto the taxpayer and our seniors.

I represent the Port of Houston, the busiest port in the United States in terms of foreign tonnage, second-busiest in the United States in terms of overall tonnage, and tenth-busiest in the world. Unfortunately, the Port of Houston, like many Ports in this country, is facing a dredging crisis.

In my district, ensuring dredging means ensuring jobs. By maintaining our shipping channel we lower the cost of importing and exporting. We move more commerce through our city and into communities across the country. Workers at distribution centers, longshoremen, truck drivers, tug boat operators, and many other professions rely on a functional port.

The Port has identified over $80 million in dredging needs and they were only receiving $20 million of that in the President's budget request. The Republican Budget contains deep cuts, beyond the President's Budget, to programs like the Army Corps of Engineers. No other entity can fund these dredging projects but the Corps. Hundreds of thousands of jobs rely on the Port of Houston being one of the busiest in the world. Our oil and gas industry relies on a well-maintained, functioning port. It is critical to our economy and our Nation's strategic interests to maintain this port in the best condition possible, but under this plan, the budget will be cut.

We have heard a lot from the Republican side about freeing our private sector to create jobs, but now we see their budget, and we find out this just isn't the case.

While I am disappointed with nearly the Republicans' entire budget, I am pleased with one portion of it. I commend Chairman RYAN for including language that would put NASA on track to follow the Authorization bill Congress passed last year.

The plan in the authorization, and reaffirmed in this budget, would provide for an immediate transition to our next generation human space flight program.

If NASA follows its own plan, human space flight will be put into limbo once the Space Shuttle missions conclude.

By incorporating the compromise of the NASA authorization bill, we can use the valuable work accomplished during the Constellation program for the next generation of human space flight.

We can maximize cost-savings and offer the best value by leveraging tax payer dollars that have already been spent for the biggest benefit. These are goals that we must pursue during such difficult fiscal times.

If we do not effectively guide NASA back toward a plan that is within the confines of the law, it will result in significant duplicative costs and unnecessary job losses.

Local economies, like my own in Houston, home of Johnson Space Center, will be hit hard when we have just begun to recover.

It is estimated by the Human Space Flight industry that at least 10,000 employees will be laid off under the more expensive, less effective, NASA budget proposal.

A failure to maintain preeminence in human space flight will have ripple effects that damage our education system, our technology industry's ability to innovate, and could handicap our global competitiveness for years to come.

We spend so much time talking about the importance of inspiring our students to pursue science, technology, engineering, and math disciplines. NASA serves as the single biggest catalyst for this inspiration.

Under the NASA budget proposal, there will be no new jobs for our STEM students. We must change the trajectory at NASA. The plan in the authorization bill costs less, does more, and will allow our Nation to maintain its role as the leader in space.

Despite this, I am unable to support any plan that allows massive tax cuts for the wealthiest Americans and pays for them by ending Medicare while also neglecting maintaining our Ports, which are critical national interests.

Mr. SCOTT of South Carolina. I reserve the balance of my time.

Ms. SLAUGHTER. Madam Speaker, I am pleased to yield 2 minutes to the gentleman from Massachusetts (Mr. MARKEY).

Mr. MARKEY. I thank the gentlelady.

Republicans say their budget is a ''Path to Prosperity.'' But it's really a ''Path to More Prosperity for the Already Prosperous.'' The Republican budget picks high-rolling oil executives over low-income families. It favors CEOs over senior citizens. It helps the wealthy over the working class.

How do Republicans pay for this gigantic goodie bag for the rich? Well, they eviscerate Medicare, turning it into an underfunded voucher program. Medicare becomes ''Medicare-less.'' And to help seniors to pay for their medicines, GOP stands for ''Grandma's Out of Prescriptions.''

This budget is the same tired tune Republicans have been trotting out for decades. It's ''Play It Again, Uncle Sam.'' In the 1980s, Ronald Reagan tried to slash the social safety net programs. In 2005, President Bush tried to privatize Social Security. And today, the same Republicans are trying to shred the social safety net they've opposed since it was created. It is not just déjà vu all over again. It's déjà voodoo economics all over again.

Vote down this misguided budget so that we can protect Medicare, Medicaid, and Social Security now and into the future. Do not let Medicare become ''Medicare-less.'' We don't want these people who always opposed Medicare, always opposed Social Security, opposed Medicaid as we put it on the books, to now come back and say, we're very courageous, we want to end those programs as we know it. But, by the way, where their courage has to be shown, they show none. They will not tax the rich. They only want to harm the poor.

Ms. SLAUGHTER. I yield myself the balance of my time.

Madam Speaker, the Republicans have shown with their budget proposal that they're intent on using the deficit as a pretense to end Medicare. Democrats proposed an amendment in the Budget Committee to protect Medicare, TRICARE for the military and VA health care from privatization or arbitrary spending caps. The Republicans all voted against it. Democrats tried again in the Rules Committee last night, but this rule does not allow the amendment to be brought to the House floor.

Madam Speaker, if we defeat the previous question, I will offer an amendment to the rule to make in order Mr. TONKO's amendment to protect Medicare, TRICARE and veterans' health care from privatization or arbitrary spending caps.

□ 1230

I ask unanimous consent to insert the text of the amendment in the RECORD along with extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. SLAUGHTER. Madam Speaker, I urge my colleagues to vote ''no'' and defeat the previous question so we can put every Member of the House on record as to where they stand on health care and if they want to end Medicare or not.

I urge a ''no'' vote on the rule, and I yield back the balance of my time.

Mr. SCOTT of South Carolina. I yield myself the balance of my time.

Madam Speaker, finally, the Democrats do get it. What they get is, if they do not find a way to scare our senior citizens, they have no chance. When you cover the expenses of running this government and when you think about the fact that what the Democrats have proposed and what President Obama has proposed in his original budget is an increase of $8.7 trillion of new spending and $47 trillion of new spending in the next 10 years, the Democrats have finally found a way to cover their tracks, and it is on the backs of our senior citizens.

There is no doubt that the 2012 budget plan that we have proposed has no impact, not only on our senior citizens who are receiving benefits today, but on those over the age of 55.

Not only are the Democrats willing to scare our seniors based on nothing, but they want to go to 2 years after Medicare is bankrupt and then start having a conversation about numbers when Medicare would not exist under their plan.

What we do under our plan is a simple thing. We strengthen and preserve Social Security and Medicare for the next generation. We understand that it is time to roll up our sleeves and to get serious about preserving the American Dream for the next generation. Our budget does that by cutting $6.2 trillion out of the deficit in the next 10 years and by creating more than 1 million jobs in the next 12 months—but we go further. We simply say that you do not create more disincentives or higher taxes in order to improve our economy.

Let us do exactly what the previous generation, the Greatest Generation, has done for us—pass on the American Dream in its entirety. We have a responsibility to the next generation in taking the tough road today in order to make the American Dream stronger tomorrow.

The material previously referred to by Ms. SLAUGHTER is as follows:

AN AMENDMENT TO H. RES. 223 OFFERED BY MS. SLAUGHTER OF NEW YORK

At the end of the resolution, add the following new sections:

SEC. 2. Notwithstanding any other provision of this resolution or the adoption of an amendment printed in part B of the report of the Committee on Rules, it shall be in order to consider the amendment specified in section 3 as though printed as the last amendment in part B if offered by Representative Tonko of New York or a designee. That amendment shall be debatable for 10 minutes equally divided and controlled by the proponent and an opponent and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

SEC. 3. The amendment referred to in section 2 is as follows:

At the end of title VI, add the following new section:

SEC. ___ SENSE OF THE HOUSE ON SAVING HEALTH CARE FOR SENIORS, MILITARY, AND VETERANS.

(a) FINDINGS.—The House finds that—

(1) senior citizens and persons with disabilities highly value the Medicare program and rely on Medicare to guarantee their health security; and

(2) active duty military servicemembers and their families value the high-quality health care they receive through Tricare and other programs run by the Department of Defense, and veterans rely on the health service network run by the Department of Veterans Affairs to address their unique health needs.

(b) SENSE OF THE HOUSE.—It is the sense of the House that—

(1) the Congress should reject legislation that—

(A) protects tax cuts for the wealthy and special interests while shifting health care costs onto seniors through a policy to replace Medicare with vouchers or premium support for the purchase of private insurance; or

(B) damages the excellent care provided to the men and women who are serving and who have served the country in uniform; and

(2) any future health care legislation that eliminates quality Federal health care programs and—

(A) replaces them with vouchers or premium support for the purchase of private insurance; or

(B) sets caps on Federal health care spending,

should exclude programs for seniors, military servicemembers and their families, and veterans.

___

(The information contained herein was provided by the Republican Minority on multiple occasions throughout the 110th and 111th Congresses.)

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the opposition, at least for the moment, to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

Because the vote today may look bad for the Republican majority they will say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. SCOTT of South Carolina. I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adoption of House Resolution 223, if ordered; and approval of the Journal, if ordered.

The vote was taken by electronic device, and there were—yeas 238, nays 183, not voting 11, as follows:

[Roll No. 265]

YEAS—238

Adams	Bass (NH)	Boustany
Aderholt	Benishek	Brady (TX)
Akin	Berg	Brooks
Alexander	Biggert	Broun (GA)
Amash	Bilbray	Buchanan
Austria	Bilirakis	Bucshon
Bachmann	Bishop (UT)	Buerkle
Bachus	Black	Burgess
Barletta	Blackburn	Burton (IN)
Bartlett	Bonner	Calvert
Barton (TX)	Bono Mack	Camp

Campbell
Canseco
Cantor
Capito
Carter
Chabot
Chaffetz
Cleaver
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Heller
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—183

Ackerman
Altmire
Andrews
Baca
Baldwin
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Holden
Holt
Honda
Hoyer
Inslee
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Michaud
Miller (NC)
Miller, George
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Ross (AR)
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Weiner
Welch
Wilson (FL)
Woolsey
Wu
Yarmuth

NOT VOTING—11

Cassidy
Diaz-Balart
Giffords
Meeks
Moore
Olver
Reichert
Richmond
Schock
Sewell
Towns

□ 1256

Mr. SERRANO changed his vote from ''yea'' to ''nay.''

Mr. FORBES changed his vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated for:

Mr. CASSIDY. Madam Speaker, on rollcall No. 265, I was unavoidably detained. Had I been present, I would have voted ''yea.''

Stated against:

Ms. MOORE. Madam Speaker, on rollcall No. 265, had I been present, I would have voted ''nay.''

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 243, nays 181, not voting 8, as follows:

[Roll No. 266]

YEAS—243

Adams
Aderholt
Akin
Alexander
Amash
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carney
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cooper
Costa
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Heller
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
Matheson
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—181

Ackerman
Altmire
Andrews
Baca
Baldwin
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Connolly (VA)
Conyers
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Holden
Holt
Honda
Hoyer
Inslee
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)

Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Ross (AR)
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Watt
Waxman
Weiner
Welch
Wilson (FL)
Woolsey
Wu
Yarmuth

NOT VOTING—8

Cohen
Garrett
Giffords
Meeks
Olver
Reichert
Towns
Waters

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining on this vote.

□ 1305

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

THE JOURNAL

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the question on agreeing to the Speaker's approval of the Journal, which the Chair will put de novo.

The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. SCOTT of South Carolina. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 311, nays 106, answered ''present'' 2, not voting 13, as follows:

[Roll No. 267]

YEAS—311

Ackerman
Adams
Aderholt
Akin
Alexander
Austria
Baca
Bachmann
Bachus
Barletta
Barrow
Bartlett
Barton (TX)
Bass (NH)
Becerra
Benishek
Berg
Berkley
Berman
Biggert
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blumenauer
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Braley (IA)
Brooks
Broun (GA)
Brown (FL)
Buchanan
Bucshon
Buerkle
Burton (IN)
Butterfield
Calvert
Camp
Campbell
Canseco
Cantor
Cardoza
Carnahan
Carney
Carter
Cassidy
Chabot
Chaffetz
Chandler
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Coffman (CO)
Cohen
Cole
Conaway
Connolly (VA)
Cooper
Costa
Costello
Courtney
Crawford
Crenshaw
Critz
Crowley
Culberson
Davis (CA)
Davis (KY)
DeGette
DeLauro
Denham
DesJarlais
Deutch
Diaz-Balart
Dicks
Dingell
Doggett
Doyle
Dreier
Duncan (SC)
Duncan (TN)
Edwards
Ellmers
Emerson
Engel
Eshoo
Farenthold
Farr
Fattah
Flake
Fleischmann
Fleming
Flores
Fortenberry
Frank (MA)
Franks (AZ)
Frelinghuysen
Gallegly
Garamendi
Garrett
Gibbs
Gingrey (GA)
Gonzalez
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Green, Al
Griffin (AR)
Guinta
Guthrie
Hall
Hanabusa
Harper
Hartzler
Hastings (WA)
Hayworth
Heinrich
Hensarling
Herger
Higgins
Himes
Hinojosa
Hirono
Holden
Holt
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Issa
Jenkins
Johnson (GA)
Johnson (IL)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Kaptur
Kelly
Kildee
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kissell
Kline
Labrador
Lamborn
Lance
Lankford
Larsen (WA)
Larson (CT)
Latham
LaTourette
Levin
Lewis (CA)
Lipinski
Loebsack
Lofgren, Zoe
Long
Lowey
Lucas
Luetkemeyer
Luján
Lummis
Lungren, Daniel E.
Lynch
Mack
Manzullo
Marino
Matheson
Matsui
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McCollum
McHenry
McIntyre
McKeon
McMorris Rodgers
McNerney
Mica
Michaud
Miller (FL)
Miller (MI)
Miller (NC)
Miller, Gary
Moran
Mulvaney
Murphy (CT)
Murphy (PA)
Myrick
Nadler
Neal
Neugebauer
Noem
Nunes
Nunnelee
Olson
Owens
Palazzo
Pascrell
Paul
Paulsen
Payne
Pearce
Pence
Perlmutter
Petri
Pingree (ME)
Pitts
Platts
Polis
Pompeo
Posey
Price (GA)
Price (NC)
Quayle
Quigley
Rangel
Rehberg
Reyes
Ribble
Richardson
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Roybal-Allard
Royce
Runyan
Ruppersberger
Rush
Ryan (WI)
Sanchez, Loretta
Scalise
Schiff
Schilling
Schmidt
Schrader
Schweikert
Scott (SC)
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sewell
Sherman
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Speier
Stark
Stearns
Stutzman
Sullivan
Sutton
Thompson (PA)
Thornberry
Tierney
Tonko
Tsongas
Turner
Upton
Van Hollen
Walsh (IL)
Walz (MN)
Wasserman Schultz
Watt
Waxman
Webster
Welch
West
Westmoreland
Whitfield
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Woolsey
Yarmuth
Yoder
Young (FL)
Young (IN)

NAYS—106

Altmire
Andrews
Baldwin
Bass (CA)
Bilbray
Bishop (NY)
Boswell
Brady (PA)
Capuano
Carson (IN)
Chu
Clyburn
Conyers
Cravaack
Cuellar
Cummings
Davis (IL)
DeFazio
Dent
Dold
Donnelly (IN)
Duffy
Ellison
Filner
Fincher
Fitzpatrick
Forbes
Foxx
Fudge
Gardner
Gerlach
Gibson
Graves (MO)
Green, Gene
Griffith (VA)
Grimm
Gutierrez
Hanna
Harris
Hastings (FL)
Heck
Heller
Herrera Beutler
Hinchey
Honda
Hoyer
Inslee
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (OH)
Keating
Kucinich
Landry
Langevin
Latta
Lee (CA)
Lewis (GA)
LoBiondo
Maloney
Marchant
Markey
McCotter
McDermott
McGovern
McKinley
Meehan
Miller, George
Moore
Napolitano
Nugent
Pallone
Pastor (AZ)
Pelosi
Peters
Peterson
Poe (TX)
Rahall
Reed
Renacci
Richmond
Rooney
Rothman (NJ)
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schock
Schwartz
Serrano
Sires
Slaughter
Stivers
Terry
Thompson (CA)
Thompson (MS)
Tiberi
Tipton
Velázquez
Visclosky
Walberg
Walden
Waters
Weiner
Wu
Young (AK)

ANSWERED ''PRESENT''—2

Amash
Gohmert

NOT VOTING—13

Burgess
Capito
Capps
Castor (FL)
Coble
Giffords
Grijalva
Hurt
Meeks
Olver
Reichert
Scott (VA)
Towns

□ 1313

So the Journal was approved.

The result of the vote was announced as above recorded.

PROVIDING FOR AN ADJOURNMENT OR RECESS OF THE TWO HOUSES

Mr. SCOTT of South Carolina. Madam Speaker, I send to the desk a privileged concurrent resolution and ask for its immediate consideration.

The Clerk read the concurrent resolution, as follows:

H. CON. RES. 43

Resolved by the House of Representatives (the Senate concurring), That when the House adjourns on the legislative day of Friday, April 15, 2011, or Saturday, April 16, 2011, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand adjourned until 2 p.m. on Monday, May 2, 2011, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first; and that when the Senate recesses or adjourns on any day from Thursday, April 14, 2011, through Friday, April 29, 2011, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand recessed or adjourned until noon on Monday, May 2, 2011, or such other time on that day as may be specified in the motion to recess or adjourn, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first.

SEC. 2. The Speaker of the House and the Majority Leader of the Senate, or their respective designees, acting jointly after consultation with the Minority Leader of the House and the Minority Leader of the Senate, shall notify the Members of the House and the Senate, respectively, to reassemble at such place and time as they may designate if, in their opinion, the public interest shall warrant it.

The SPEAKER pro tempore. The question is on the concurrent resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MORAN. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

DEPARTMENT OF DEFENSE AND FULL-YEAR CONTINUING APPROPRIATIONS ACT, 2011

Mr. ROGERS of Kentucky. Madam Speaker, pursuant to House Resolution 218, I call up the bill (H.R. 1473) making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, and for other purposes, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 218, the bill is considered read.

The text of the bill is as follows:

H.R. 1473

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Department of Defense and Full-Year Continuing Appropriations Act, 2011''.

SEC. 2. TABLE OF CONTENTS.

The table of contents for this Act is as follows:

Division A—Department of Defense Appropriations, 2011
Division B—Full-Year Continuing Appropriations, 2011
Division C—Scholarships for Opportunity and Results Act

DIVISION A—DEPARTMENT OF DEFENSE APPROPRIATIONS, 2011

The following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for the fiscal year ending September 30, 2011, for military functions administered by the Department of Defense and for other purposes, namely:

TITLE I

MILITARY PERSONNEL

MILITARY PERSONNEL, ARMY

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Army on active duty, (except members of reserve components provided for elsewhere), cadets, and aviation cadets; for members of the Reserve Officers' Training Corps; and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $41,403,653,000.

MILITARY PERSONNEL, NAVY

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Navy on active duty (except members of the Reserve provided for elsewhere), midshipmen, and aviation cadets; for members of the Reserve Officers' Training Corps; and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $25,912,449,000.

MILITARY PERSONNEL, MARINE CORPS

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Marine Corps on active duty (except members of the Reserve provided for elsewhere); and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $13,210,161,000.

MILITARY PERSONNEL, AIR FORCE

For pay, allowances, individual clothing, subsistence, interest on deposits, gratuities, permanent change of station travel (including all expenses thereof for organizational movements), and expenses of temporary duty travel between permanent duty stations, for members of the Air Force on active duty (except members of reserve components provided for elsewhere), cadets, and aviation cadets; for members of the Reserve Officers' Training Corps; and for payments pursuant to section 156 of Public Law 97–377, as amended (42 U.S.C. 402 note), and to the Department of Defense Military Retirement Fund, $27,105,755,000.

RESERVE PERSONNEL, ARMY

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Army Reserve on active duty under sections 10211, 10302, and 3038 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $4,333,165,000.

RESERVE PERSONNEL, NAVY

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Navy Reserve on active duty under section 10211 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $1,940,191,000.

RESERVE PERSONNEL, MARINE CORPS

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Marine Corps Reserve on active duty under section 10211 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty, and for members of the Marine Corps platoon leaders class, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $612,191,000.

RESERVE PERSONNEL, AIR FORCE

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Air Force Reserve on active duty under sections 10211, 10305, and 8038 of title 10, United States Code, or while serving on active duty under section 12301(d) of title 10, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing reserve training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $1,650,797,000.

NATIONAL GUARD PERSONNEL, ARMY

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Army National Guard while on duty under section 10211, 10302, or 12402 of title 10 or section 708 of title 32, United States Code, or while serving on duty under section 12301(d) of title 10 or section 502(f) of title 32, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $7,511,296,000.

NATIONAL GUARD PERSONNEL, AIR FORCE

For pay, allowances, clothing, subsistence, gratuities, travel, and related expenses for personnel of the Air National Guard on duty under section 10211, 10305, or 12402 of title 10 or section 708 of title 32, United States Code, or while serving on duty under section 12301(d) of title 10 or section 502(f) of title 32, United States Code, in connection with performing duty specified in section 12310(a) of title 10, United States Code, or while undergoing training, or while performing drills or equivalent duty or other duty, and expenses authorized by section 16131 of title 10, United States Code; and for payments to the Department of Defense Military Retirement Fund, $3,060,098,000.

TITLE II

OPERATION AND MAINTENANCE

OPERATION AND MAINTENANCE, ARMY

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Army, as authorized by law; and not to exceed $12,478,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of the Army, and payments may be made on his certificate of necessity for confidential military purposes, $33,306,117,000.

OPERATION AND MAINTENANCE, NAVY

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Navy and the Marine Corps, as authorized by law; and not to exceed $14,804,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of the Navy, and payments may be made on his certificate of necessity for confidential military purposes, $37,809,239,000.

OPERATION AND MAINTENANCE, MARINE CORPS

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Marine Corps, as authorized by law, $5,539,740,000.

OPERATION AND MAINTENANCE, AIR FORCE

For expenses, not otherwise provided for, necessary for the operation and maintenance of the Air Force, as authorized by law; and not to exceed $7,699,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the

Secretary of the Air Force, and payments may be made on his certificate of necessity for confidential military purposes, $36,062,989,000.

OPERATION AND MAINTENANCE, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For expenses, not otherwise provided for, necessary for the operation and maintenance of activities and agencies of the Department of Defense (other than the military departments), as authorized by law, $30,210,810,000: *Provided*, That not more than $50,000,000 may be used for the Combatant Commander Initiative Fund authorized under section 166a of title 10, United States Code: *Provided further*, That not to exceed $36,000,000 can be used for emergencies and extraordinary expenses, to be expended on the approval or authority of the Secretary of Defense, and payments may be made on his certificate of necessity for confidential military purposes: *Provided further*, That of the funds provided under this heading, not less than $31,659,000 shall be made available for the Procurement Technical Assistance Cooperative Agreement Program, of which not less than $3,600,000 shall be available for centers defined in 10 U.S.C. 2411(1)(D): *Provided further*, That none of the funds appropriated or otherwise made available by this Act may be used to plan or implement the consolidation of a budget or appropriations liaison office of the Office of the Secretary of Defense, the office of the Secretary of a military department, or the service headquarters of one of the Armed Forces into a legislative affairs or legislative liaison office: *Provided further*, That $8,251,000, to remain available until expended, is available only for expenses relating to certain classified activities, and may be transferred as necessary by the Secretary of Defense to operation and maintenance appropriations or research, development, test and evaluation appropriations, to be merged with and to be available for the same time period as the appropriations to which transferred: *Provided further*, That any ceiling on the investment item unit cost of items that may be purchased with operation and maintenance funds shall not apply to the funds described in the preceding proviso: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

OPERATION AND MAINTENANCE, ARMY RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Army Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $2,840,427,000.

OPERATION AND MAINTENANCE, NAVY RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Navy Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $1,344,264,000.

OPERATION AND MAINTENANCE, MARINE CORPS RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Marine Corps Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $275,484,000.

OPERATION AND MAINTENANCE, AIR FORCE RESERVE

For expenses, not otherwise provided for, necessary for the operation and maintenance, including training, organization, and administration, of the Air Force Reserve; repair of facilities and equipment; hire of passenger motor vehicles; travel and transportation; care of the dead; recruiting; procurement of services, supplies, and equipment; and communications, $3,291,027,000.

OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD

For expenses of training, organizing, and administering the Army National Guard, including medical and hospital treatment and related expenses in non-Federal hospitals; maintenance, operation, and repairs to structures and facilities; hire of passenger motor vehicles; personnel services in the National Guard Bureau; travel expenses (other than mileage), as authorized by law for Army personnel on active duty, for Army National Guard division, regimental, and battalion commanders while inspecting units in compliance with National Guard Bureau regulations when specifically authorized by the Chief, National Guard Bureau; supplying and equipping the Army National Guard as authorized by law; and expenses of repair, modification, maintenance, and issue of supplies and equipment (including aircraft), $6,454,624,000.

OPERATION AND MAINTENANCE, AIR NATIONAL GUARD

For expenses of training, organizing, and administering the Air National Guard, including medical and hospital treatment and related expenses in non-Federal hospitals; maintenance, operation, and repairs to structures and facilities; transportation of things, hire of passenger motor vehicles; supplying and equipping the Air National Guard, as authorized by law; expenses for repair, modification, maintenance, and issue of supplies and equipment, including those furnished from stocks under the control of agencies of the Department of Defense; travel expenses (other than mileage) on the same basis as authorized by law for Air National Guard personnel on active Federal duty, for Air National Guard commanders while inspecting units in compliance with National Guard Bureau regulations when specifically authorized by the Chief, National Guard Bureau, $5,963,839,000.

UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES

For salaries and expenses necessary for the United States Court of Appeals for the Armed Forces, $14,068,000, of which not to exceed $5,000 may be used for official representation purposes.

ENVIRONMENTAL RESTORATION, ARMY

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Army, $464,581,000, to remain available until transferred: *Provided*, That the Secretary of the Army shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of the Army, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Army, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, NAVY

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Navy, $304,867,000, to remain available until transferred: *Provided*, That the Secretary of the Navy shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of the Navy, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Navy, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, AIR FORCE

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Air Force, $502,653,000, to remain available until transferred: *Provided*, That the Secretary of the Air Force shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of the Air Force, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Air Force, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For the Department of Defense, $10,744,000, to remain available until transferred: *Provided*, That the Secretary of Defense shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris of the Department of Defense, or for similar purposes, transfer the funds made available by this appropriation to other appropriations made available to the Department of Defense, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

ENVIRONMENTAL RESTORATION, FORMERLY USED DEFENSE SITES

(INCLUDING TRANSFER OF FUNDS)

For the Department of the Army, $316,546,000, to remain available until transferred: *Provided*, That the Secretary of the Army shall, upon determining that such funds are required for environmental restoration, reduction and recycling of hazardous waste, removal of unsafe buildings and debris at sites formerly used by the Department of Defense, transfer the funds made available by this appropriation to other appropriations made available to the Department of the Army, to be merged with and to be available for the same purposes and for the same time period as the appropriations to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority provided elsewhere in this Act.

OVERSEAS HUMANITARIAN, DISASTER, AND CIVIC AID

For expenses relating to the Overseas Humanitarian, Disaster, and Civic Aid programs of the Department of Defense (consisting of the programs provided under sections 401, 402, 404, 407, 2557, and 2561 of title 10, United States Code), $108,032,000, to remain available until September 30, 2012.

COOPERATIVE THREAT REDUCTION ACCOUNT

For assistance to the republics of the former Soviet Union and, with appropriate authorization by the Department of Defense and Department of State, to countries outside of the former Soviet Union, including assistance provided by contract or by grants, for facilitating the elimination and the safe and secure transportation and storage of nuclear, chemical and other weapons; for establishing programs to prevent the proliferation of weapons, weapons components, and weapon-related technology and expertise; for programs relating to the training and support of defense and military personnel for demilitarization and protection of weapons, weapons components and weapons technology and expertise, and for defense and military contacts, $522,512,000, to remain available until September 30, 2013: *Provided*, That of the amounts provided under this heading, not less than $13,500,000 shall be available only to support the dismantling and disposal of nuclear submarines, submarine reactor components, and security enhancements for transport and storage of nuclear warheads in the Russian Far East and North.

DEPARTMENT OF DEFENSE ACQUISITION WORKFORCE DEVELOPMENT FUND

For the Department of Defense Acquisition Workforce Development Fund, $217,561,000.

TITLE III

PROCUREMENT

AIRCRAFT PROCUREMENT, ARMY

For construction, procurement, production, modification, and modernization of aircraft, equipment, including ordnance, ground handling equipment, spare parts, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $5,254,791,000, to remain available for obligation until September 30, 2013.

MISSILE PROCUREMENT, ARMY

For construction, procurement, production, modification, and modernization of missiles, equipment, including ordnance, ground handling equipment, spare parts, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $1,570,108,000, to remain available for obligation until September 30, 2013.

PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY

For construction, procurement, production, and modification of weapons and tracked combat vehicles, equipment, including ordnance, spare parts, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $1,461,086,000, to remain available for obligation until September 30, 2013.

PROCUREMENT OF AMMUNITION, ARMY

For construction, procurement, production, and modification of ammunition, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including ammunition facilities, authorized by section 2854 of title 10, United States Code, and the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $1,847,066,000, to remain available for obligation until September 30, 2013.

OTHER PROCUREMENT, ARMY

(INCLUDING TRANSFER OF FUNDS)

For construction, procurement, production, and modification of vehicles, including tactical, support, and non-tracked combat vehicles; the purchase of passenger motor vehicles for replacement only; communications and electronic equipment; other support equipment; spare parts, ordnance, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $8,145,665,000, to remain available for obligation until September 30, 2013: *Provided*, That of the funds made available in this paragraph, $15,000,000 shall be made available to procure equipment, not otherwise provided for, and may be transferred to other procurement accounts available to the Department of the Army, and that funds so transferred shall be available for the same purposes and the same time period as the account to which transferred.

AIRCRAFT PROCUREMENT, NAVY

For construction, procurement, production, modification, and modernization of aircraft, equipment, including ordnance, spare parts, and accessories therefor; specialized equipment; expansion of public and private plants, including the land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway, $16,170,868,000, to remain available for obligation until September 30, 2013.

WEAPONS PROCUREMENT, NAVY

For construction, procurement, production, modification, and modernization of missiles, torpedoes, other weapons, and related support equipment including spare parts, and accessories therefor; expansion of public and private plants, including the land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway, $3,221,957,000, to remain available for obligation until September 30, 2013.

PROCUREMENT OF AMMUNITION, NAVY AND MARINE CORPS

For construction, procurement, production, and modification of ammunition, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including ammunition facilities, authorized by section 2854 of title 10, United States Code, and the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $790,527,000, to remain available for obligation until September 30, 2013.

SHIPBUILDING AND CONVERSION, NAVY

For expenses necessary for the construction, acquisition, or conversion of vessels as authorized by law, including armor and armament thereof, plant equipment, appliances, and machine tools and installation thereof in public and private plants; reserve plant and Government and contractor-owned equipment layaway; procurement of critical, long lead time components and designs for vessels to be constructed or converted in the future; and expansion of public and private plants, including land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title, as follows:

Carrier Replacement Program, $1,721,969,000;

Carrier Replacement Program (AP), $908,313,000;

NSSN, $3,430,343,000;

NSSN (AP), $1,691,236,000;

CVN Refueling, $1,248,999,000;

CVN Refuelings (AP), $408,037,000;

DDG–1000 Program, $77,512,000;

DDG–51 Destroyer, $2,868,454,000;

DDG–51 Destroyer (AP), $47,984,000;

Littoral Combat Ship, $1,168,984,000;
Littoral Combat Ship (AP), $190,351,000;
LHA–R, $942,837,000;
Joint High Speed Vessel, $180,703,000;
Oceanographic Ships, $88,561,000;
LCAC Service Life Extension Program, $83,035,000;
Service Craft, $13,770,000; and
For outfitting, post delivery, conversions, and first destination transportation, $295,570,000.

In all: $15,366,658,000, to remain available for obligation until September 30, 2015: *Provided*, That additional obligations may be incurred after September 30, 2015, for engineering services, tests, evaluations, and other such budgeted work that must be performed in the final stage of ship construction: *Provided further*, That none of the funds provided under this heading for the construction or conversion of any naval vessel to be constructed in shipyards in the United States shall be expended in foreign facilities for the construction of major components of such vessel: *Provided further*, That none of the funds provided under this heading shall be used for the construction of any naval vessel in foreign shipyards.

OTHER PROCUREMENT, NAVY

(INCLUDING TRANSFER OF FUNDS)

For procurement, production, and modernization of support equipment and materials not otherwise provided for, Navy ordnance (except ordnance for new aircraft, new ships, and ships authorized for conversion); the purchase of passenger motor vehicles for replacement only, and the purchase of seven vehicles required for physical security of personnel, notwithstanding price limitations applicable to passenger vehicles but not to exceed $250,000 per vehicle; expansion of public and private plants, including the land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway, $5,804,963,000, to remain available for obligation until September 30, 2013: *Provided*, That of the funds made available in this paragraph, $15,000,000 shall be made available to procure equipment, not otherwise provided for, and may be transferred to other procurement accounts available to the Department of the Navy, and that funds so transferred shall be available for the same purposes and the same time period as the account to which transferred.

PROCUREMENT, MARINE CORPS

For expenses necessary for the procurement, manufacture, and modification of missiles, armament, military equipment, spare parts, and accessories therefor; plant equipment, appliances, and machine tools, and installation thereof in public and private plants; reserve plant and Government and contractor-owned equipment layaway; vehicles for the Marine Corps, including the purchase of passenger motor vehicles for replacement only; and expansion of public and private plants, including land necessary therefor, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title, $1,236,436,000, to remain available for obligation until September 30, 2013.

AIRCRAFT PROCUREMENT, AIR FORCE

For construction, procurement, and modification of aircraft and equipment, including armor and armament, specialized ground handling equipment, and training devices, spare parts, and accessories therefor; specialized equipment; expansion of public and private plants, Government-owned equipment and installation thereof in such plants, erection of structures, and acquisition of land, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes including rents and transportation of things, $13,483,739,000, to remain available for obligation until September 30, 2013: *Provided*, That none of the funds provided in this Act for modification of C–17 aircraft, Global Hawk Unmanned Aerial Vehicle and F–22 aircraft may be obligated until all C–17, Global Hawk and F–22 contracts funded with prior year ''Aircraft Procurement, Air Force'' appropriated funds are definitized unless the Secretary of the Air Force certifies in writing to the congressional defense committees that each such obligation is necessary to meet the needs of a warfighting requirement or prevents increased costs to the taxpayer, and provides the reasons for failing to definitize the prior year contracts along with the prospective contract definitization schedule: *Provided further*, That the Secretary of the Air Force shall expand the current HH–60 Operational Loss Replacement program to meet the approved HH–60 Recapitalization program requirements.

MISSILE PROCUREMENT, AIR FORCE

For construction, procurement, and modification of missiles, spacecraft, rockets, and related equipment, including spare parts and accessories therefor, ground handling equipment, and training devices; expansion of public and private plants, Government-owned equipment and installation thereof in such plants, erection of structures, and acquisition of land, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes including rents and transportation of things, $5,424,764,000, to remain available for obligation until September 30, 2013.

PROCUREMENT OF AMMUNITION, AIR FORCE

For construction, procurement, production, and modification of ammunition, and accessories therefor; specialized equipment and training devices; expansion of public and private plants, including ammunition facilities, authorized by section 2854 of title 10, United States Code, and the land necessary therefor, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; and procurement and installation of equipment, appliances, and machine tools in public and private plants; reserve plant and Government and contractor-owned equipment layaway; and other expenses necessary for the foregoing purposes, $731,487,000, to remain available for obligation until September 30, 2013.

OTHER PROCUREMENT, AIR FORCE

(INCLUDING TRANSFER OF FUNDS)

For procurement and modification of equipment (including ground guidance and electronic control equipment, and ground electronic and communication equipment), and supplies, materials, and spare parts therefor, not otherwise provided for; the purchase of passenger motor vehicles for replacement only, and the purchase of two vehicles required for physical security of personnel, notwithstanding price limitations applicable to passenger vehicles but not to exceed $250,000 per vehicle; lease of passenger motor vehicles; and expansion of public and private plants, Government-owned equipment and installation thereof in such plants, erection of structures, and acquisition of land, for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon, prior to approval of title; reserve plant and Government and contractor-owned equipment layaway, $17,568,091,000, to remain available for obligation until September 30, 2013: *Provided*, That of the funds made available in this paragraph, $15,000,000 shall be made available to procure equipment, not otherwise provided for, and may be transferred to other procurement accounts available to the Department of the Air Force, and that funds so transferred shall be available for the same purposes and the same time period as the account to which transferred.

PROCUREMENT, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For expenses of activities and agencies of the Department of Defense (other than the military departments) necessary for procurement, production, and modification of equipment, supplies, materials, and spare parts therefor, not otherwise provided for; the purchase of passenger motor vehicles for replacement only; expansion of public and private plants, equipment, and installation thereof in such plants, erection of structures, and acquisition of land for the foregoing purposes, and such lands and interests therein, may be acquired, and construction prosecuted thereon prior to approval of title; reserve plant and Government and contractor-owned equipment layaway, $4,009,321,000, to remain available for obligation until September 30, 2013: *Provided*, That of the funds made available in this paragraph, $15,000,000 shall be made available to procure equipment, not otherwise provided for, and may be transferred to other procurement accounts available to the Department of Defense, and that funds so transferred shall be available for the same purposes and the same time period as the account to which transferred.

DEFENSE PRODUCTION ACT PURCHASES

For activities by the Department of Defense pursuant to sections 108, 301, 302, and 303 of the Defense Production Act of 1950 (50 U.S.C. App. 2078, 2091, 2092, and 2093), $34,346,000, to remain available until expended.

TITLE IV

RESEARCH, DEVELOPMENT, TEST AND EVALUATION

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY

For expenses necessary for basic and applied scientific research, development, test and evaluation, including maintenance, rehabilitation, lease, and operation of facilities and equipment, $9,710,998,000, to remain available for obligation until September 30, 2012.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, NAVY

For expenses necessary for basic and applied scientific research, development, test and evaluation, including maintenance, rehabilitation, lease, and operation of facilities and equipment, $17,736,303,000, to remain available for obligation until September 30, 2012: *Provided*, That funds appropriated in this paragraph which are available for the V–22 may be used to meet unique operational requirements of the Special Operations Forces: *Provided further*, That funds appropriated in this paragraph shall be available for the Cobra Judy program.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, AIR FORCE

For expenses necessary for basic and applied scientific research, development, test

and evaluation, including maintenance, rehabilitation, lease, and operation of facilities and equipment, $26,517,405,000, to remain available for obligation until September 30, 2012.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE

For expenses of activities and agencies of the Department of Defense (other than the military departments), necessary for basic and applied scientific research, development, test and evaluation; advanced research projects as may be designated and determined by the Secretary of Defense, pursuant to law; maintenance, rehabilitation, lease, and operation of facilities and equipment, $20,797,412,000, to remain available for obligation until September 30, 2012: *Provided*, That of the funds made available in this paragraph, $3,200,000 shall only be available for program management and oversight of innovative research and development.

OPERATIONAL TEST AND EVALUATION, DEFENSE

For expenses, not otherwise provided for, necessary for the independent activities of the Director, Operational Test and Evaluation, in the direction and supervision of operational test and evaluation, including initial operational test and evaluation which is conducted prior to, and in support of, production decisions; joint operational testing and evaluation; and administrative expenses in connection therewith, $194,910,000, to remain available for obligation until September 30, 2012.

TITLE V

REVOLVING AND MANAGEMENT FUNDS

DEFENSE WORKING CAPITAL FUNDS

For the Defense Working Capital Funds, $1,434,536,000.

NATIONAL DEFENSE SEALIFT FUND

For National Defense Sealift Fund programs, projects, and activities, and for expenses of the National Defense Reserve Fleet, as established by section 11 of the Merchant Ship Sales Act of 1946 (50 U.S.C. App. 1744), and for the necessary expenses to maintain and preserve a U.S.-flag merchant fleet to serve the national security needs of the United States, $1,474,866,000, to remain available until expended: *Provided*, That none of the funds provided in this paragraph shall be used to award a new contract that provides for the acquisition of any of the following major components unless such components are manufactured in the United States: auxiliary equipment, including pumps, for all shipboard services; propulsion system components (engines, reduction gears, and propellers); shipboard cranes; and spreaders for shipboard cranes: *Provided further*, That the exercise of an option in a contract awarded through the obligation of previously appropriated funds shall not be considered to be the award of a new contract: *Provided further*, That the Secretary of the military department responsible for such procurement may waive the restrictions in the first proviso on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes.

TITLE VI

OTHER DEPARTMENT OF DEFENSE PROGRAMS

DEFENSE HEALTH PROGRAM

For expenses, not otherwise provided for, for medical and health care programs of the Department of Defense as authorized by law, $31,382,198,000; of which $29,671,764,000 shall be for operation and maintenance, of which not to exceed 1 percent shall remain available until September 30, 2012, and of which up to $16,212,121,000 may be available for contracts entered into under the TRICARE program; of which $534,921,000, to remain available for obligation until September 30, 2013, shall be for procurement; and of which $1,175,513,000, to remain available for obligation until September 30, 2012, shall be for research, development, test and evaluation: *Provided*, That, notwithstanding any other provision of law, of the amount made available under this heading for research, development, test and evaluation, not less than $10,000,000 shall be available for HIV prevention educational activities undertaken in connection with United States military training, exercises, and humanitarian assistance activities conducted primarily in African nations.

CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE

For expenses, not otherwise provided for, necessary for the destruction of the United States stockpile of lethal chemical agents and munitions, to include construction of facilities, in accordance with the provisions of section 1412 of the Department of Defense Authorization Act, 1986 (50 U.S.C. 1521), and for the destruction of other chemical warfare materials that are not in the chemical weapon stockpile, $1,467,307,000, of which $1,067,364,000 shall be for operation and maintenance, of which no less than $111,178,000, shall be for the Chemical Stockpile Emergency Preparedness Program, consisting of $35,130,000 for activities on military installations and $76,048,000, to remain available until September 30, 2012, to assist State and local governments; $7,132,000 shall be for procurement, to remain available until September 30, 2013; and $392,811,000, to remain available until September 30, 2012, shall be for research, development, test and evaluation, of which $385,868,000 shall only be for the Assembled Chemical Weapons Alternatives (ACWA) program.

DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE

(INCLUDING TRANSFER OF FUNDS)

For drug interdiction and counter-drug activities of the Department of Defense, for transfer to appropriations available to the Department of Defense for military personnel of the reserve components serving under the provisions of title 10 and title 32, United States Code; for operation and maintenance; for procurement; and for research, development, test and evaluation, $1,156,957,000: *Provided*, That the funds appropriated under this heading shall be available for obligation for the same time period and for the same purpose as the appropriation to which transferred: *Provided further*, That upon a determination that all or part of the funds transferred from this appropriation are not necessary for the purposes provided herein, such amounts may be transferred back to this appropriation: *Provided further*, That the transfer authority provided under this heading is in addition to any other transfer authority contained elsewhere in this Act.

OFFICE OF THE INSPECTOR GENERAL

For expenses and activities of the Office of the Inspector General in carrying out the provisions of the Inspector General Act of 1978, as amended, $306,794,000, of which $305,794,000 shall be for operation and maintenance, of which not to exceed $700,000 is available for emergencies and extraordinary expenses to be expended on the approval or authority of the Inspector General, and payments may be made on the Inspector General's certificate of necessity for confidential military purposes; and of which $1,000,000, to remain available until September 30, 2013, shall be for procurement.

TITLE VII

RELATED AGENCIES

CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM FUND

For payment to the Central Intelligence Agency Retirement and Disability System Fund, to maintain the proper funding level for continuing the operation of the Central Intelligence Agency Retirement and Disability System, $292,000,000.

INTELLIGENCE COMMUNITY MANAGEMENT ACCOUNT

For necessary expenses of the Intelligence Community Management Account, $649,732,000.

TITLE VIII

GENERAL PROVISIONS

SEC. 8001. No part of any appropriation contained in this Act shall be used for publicity or propaganda purposes not authorized by the Congress.

SEC. 8002. During the current fiscal year, provisions of law prohibiting the payment of compensation to, or employment of, any person not a citizen of the United States shall not apply to personnel of the Department of Defense: *Provided*, That salary increases granted to direct and indirect hire foreign national employees of the Department of Defense funded by this Act shall not be at a rate in excess of the percentage increase authorized by law for civilian employees of the Department of Defense whose pay is computed under the provisions of section 5332 of title 5, United States Code, or at a rate in excess of the percentage increase provided by the appropriate host nation to its own employees, whichever is higher: *Provided further*, That, in the case of a host nation that does not provide salary increases on an annual basis, any increase granted by that nation shall be annualized for the purpose of applying the preceding proviso: *Provided further*, That this section shall not apply to Department of Defense foreign service national employees serving at United States diplomatic missions whose pay is set by the Department of State under the Foreign Service Act of 1980: *Provided further*, That the limitations of this provision shall not apply to foreign national employees of the Department of Defense in the Republic of Turkey.

SEC. 8003. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year, unless expressly so provided herein.

SEC. 8004. No more than 20 percent of the appropriations in this Act which are limited for obligation during the current fiscal year shall be obligated during the last 2 months of the fiscal year: *Provided*, That this section shall not apply to obligations for support of active duty training of reserve components or summer camp training of the Reserve Officers' Training Corps.

(TRANSFER OF FUNDS)

SEC. 8005. Upon determination by the Secretary of Defense that such action is necessary in the national interest, he may, with the approval of the Office of Management and Budget, transfer not to exceed $4,000,000,000 of working capital funds of the Department of Defense or funds made available in this Act to the Department of Defense for military functions (except military construction) between such appropriations or funds or any subdivision thereof, to be merged with and to be available for the same purposes, and for the same time period, as the appropriation or fund to which transferred: *Provided*, That such authority to transfer may not be used unless for higher

priority items, based on unforeseen military requirements, than those for which originally appropriated and in no case where the item for which funds are requested has been denied by the Congress: *Provided further*, That the Secretary of Defense shall notify the Congress promptly of all transfers made pursuant to this authority or any other authority in this Act: *Provided further*, That no part of the funds in this Act shall be available to prepare or present a request to the Committees on Appropriations for reprogramming of funds, unless for higher priority items, based on unforeseen military requirements, than those for which originally appropriated and in no case where the item for which reprogramming is requested has been denied by the Congress: *Provided further*, That a request for multiple reprogrammings of funds using authority provided in this section shall be made prior to June 30, 2011: *Provided further*, That transfers among military personnel appropriations shall not be taken into account for purposes of the limitation on the amount of funds that may be transferred under this section.

SEC. 8006. (a) With regard to the list of specific programs, projects, and activities (and the dollar amounts and adjustments to budget activities corresponding to such programs, projects, and activities) contained in the tables titled ''Explanation of Project Level Adjustments'' in the explanatory statement regarding this Act, the obligation and expenditure of amounts appropriated or otherwise made available in this Act for those programs, projects, and activities for which the amounts appropriated exceed the amounts requested are hereby required by law to be carried out in the manner provided by such tables to the same extent as if the tables were included in the text of this Act.

(b) Amounts specified in the referenced tables described in subsection (a) shall not be treated as subdivisions of appropriations for purposes of section 8005 of this Act: *Provided*, That section 8005 shall apply when transfers of the amounts described in subsection (a) occur between appropriation accounts.

SEC. 8007. (a) Not later than 60 days after enactment of this Act, the Department of Defense shall submit a report to the congressional defense committees to establish the baseline for application of reprogramming and transfer authorities for fiscal year 2011: *Provided*, That the report shall include—

(1) a table for each appropriation with a separate column to display the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if appropriate, and the fiscal year enacted level;

(2) a delineation in the table for each appropriation both by budget activity and program, project, and activity as detailed in the Budget Appendix; and

(3) an identification of items of special congressional interest.

(b) Notwithstanding section 8005 of this Act, none of the funds provided in this Act shall be available for reprogramming or transfer until the report identified in subsection (a) is submitted to the congressional defense committees, unless the Secretary of Defense certifies in writing to the congressional defense committees that such reprogramming or transfer is necessary as an emergency requirement.

(TRANSFER OF FUNDS)

SEC. 8008. During the current fiscal year, cash balances in working capital funds of the Department of Defense established pursuant to section 2208 of title 10, United States Code, may be maintained in only such amounts as are necessary at any time for cash disbursements to be made from such funds: *Provided*, That transfers may be made between such funds: *Provided further*, That transfers may be made between working capital funds and the ''Foreign Currency Fluctuations, Defense'' appropriation and the ''Operation and Maintenance'' appropriation accounts in such amounts as may be determined by the Secretary of Defense, with the approval of the Office of Management and Budget, except that such transfers may not be made unless the Secretary of Defense has notified the Congress of the proposed transfer. Except in amounts equal to the amounts appropriated to working capital funds in this Act, no obligations may be made against a working capital fund to procure or increase the value of war reserve material inventory, unless the Secretary of Defense has notified the Congress prior to any such obligation.

SEC. 8009. Funds appropriated by this Act may not be used to initiate a special access program without prior notification 30 calendar days in advance to the congressional defense committees.

SEC. 8010. None of the funds provided in this Act shall be available to initiate: (1) a multiyear contract that employs economic order quantity procurement in excess of $20,000,000 in any one year of the contract or that includes an unfunded contingent liability in excess of $20,000,000; or (2) a contract for advance procurement leading to a multiyear contract that employs economic order quantity procurement in excess of $20,000,000 in any one year, unless the congressional defense committees have been notified at least 30 days in advance of the proposed contract award: *Provided*, That no part of any appropriation contained in this Act shall be available to initiate a multiyear contract for which the economic order quantity advance procurement is not funded at least to the limits of the Government's liability: *Provided further*, That no part of any appropriation contained in this Act shall be available to initiate multiyear procurement contracts for any systems or component thereof if the value of the multiyear contract would exceed $500,000,000 unless specifically provided in this Act: *Provided further*, That no multiyear procurement contract can be terminated without 10-day prior notification to the congressional defense committees: *Provided further*, That the execution of multiyear authority shall require the use of a present value analysis to determine lowest cost compared to an annual procurement: *Provided further*, That none of the funds provided in this Act may be used for a multiyear contract executed after the date of the enactment of this Act unless in the case of any such contract—

(1) the Secretary of Defense has submitted to Congress a budget request for full funding of units to be procured through the contract and, in the case of a contract for procurement of aircraft, that includes, for any aircraft unit to be procured through the contract for which procurement funds are requested in that budget request for production beyond advance procurement activities in the fiscal year covered by the budget, full funding of procurement of such unit in that fiscal year;

(2) cancellation provisions in the contract do not include consideration of recurring manufacturing costs of the contractor associated with the production of unfunded units to be delivered under the contract;

(3) the contract provides that payments to the contractor under the contract shall not be made in advance of incurred costs on funded units; and

(4) the contract does not provide for a price adjustment based on a failure to award a follow-on contract.

Funds appropriated in title III of this Act may be used for a multiyear procurement contract as follows:

Navy MH–60R/S Helicopter Systems.

SEC. 8011. Within the funds appropriated for the operation and maintenance of the Armed Forces, funds are hereby appropriated pursuant to section 401 of title 10, United States Code, for humanitarian and civic assistance costs under chapter 20 of title 10, United States Code. Such funds may also be obligated for humanitarian and civic assistance costs incidental to authorized operations and pursuant to authority granted in section 401 of chapter 20 of title 10, United States Code, and these obligations shall be reported as required by section 401(d) of title 10, United States Code: *Provided*, That funds available for operation and maintenance shall be available for providing humanitarian and similar assistance by using Civic Action Teams in the Trust Territories of the Pacific Islands and freely associated states of Micronesia, pursuant to the Compact of Free Association as authorized by Public Law 99–239: *Provided further*, That upon a determination by the Secretary of the Army that such action is beneficial for graduate medical education programs conducted at Army medical facilities located in Hawaii, the Secretary of the Army may authorize the provision of medical services at such facilities and transportation to such facilities, on a nonreimbursable basis, for civilian patients from American Samoa, the Commonwealth of the Northern Mariana Islands, the Marshall Islands, the Federated States of Micronesia, Palau, and Guam.

SEC. 8012. (a) During fiscal year 2011, the civilian personnel of the Department of Defense may not be managed on the basis of any end-strength, and the management of such personnel during that fiscal year shall not be subject to any constraint or limitation (known as an end-strength) on the number of such personnel who may be employed on the last day of such fiscal year.

(b) The fiscal year 2012 budget request for the Department of Defense as well as all justification material and other documentation supporting the fiscal year 2012 Department of Defense budget request shall be prepared and submitted to the Congress as if subsections (a) and (b) of this provision were effective with regard to fiscal year 2012.

(c) Nothing in this section shall be construed to apply to military (civilian) technicians.

SEC. 8013. None of the funds made available by this Act shall be used in any way, directly or indirectly, to influence congressional action on any legislation or appropriation matters pending before the Congress.

SEC. 8014. None of the funds appropriated by this Act shall be available for the basic pay and allowances of any member of the Army participating as a full-time student and receiving benefits paid by the Secretary of Veterans Affairs from the Department of Defense Education Benefits Fund when time spent as a full-time student is credited toward completion of a service commitment: *Provided*, That this section shall not apply to those members who have reenlisted with this option prior to October 1, 1987: *Provided further*, That this section applies only to active components of the Army.

SEC. 8015. (a) None of the funds appropriated by this Act shall be available to convert to contractor performance an activity or function of the Department of Defense that, on or after the date of the enactment of this Act, is performed by Department of Defense civilian employees unless—

(1) the conversion is based on the result of a public-private competition that includes a most efficient and cost effective organization plan developed by such activity or function;

(2) the Competitive Sourcing Official determines that, over all performance periods

stated in the solicitation of offers for performance of the activity or function, the cost of performance of the activity or function by a contractor would be less costly to the Department of Defense by an amount that equals or exceeds the lesser of—

(A) 10 percent of the most efficient organization's personnel-related costs for performance of that activity or function by Federal employees; or

(B) $10,000,000; and

(3) the contractor does not receive an advantage for a proposal that would reduce costs for the Department of Defense by—

(A) not making an employer-sponsored health insurance plan available to the workers who are to be employed in the performance of that activity or function under the contract; or

(B) offering to such workers an employer-sponsored health benefits plan that requires the employer to contribute less towards the premium or subscription share than the amount that is paid by the Department of Defense for health benefits for civilian employees under chapter 89 of title 5, United States Code.

(b)(1) The Department of Defense, without regard to subsection (a) of this section or subsection (a), (b), or (c) of section 2461 of title 10, United States Code, and notwithstanding any administrative regulation, requirement, or policy to the contrary shall have full authority to enter into a contract for the performance of any commercial or industrial type function of the Department of Defense that—

(A) is included on the procurement list established pursuant to section 2 of the Javits-Wagner-O'Day Act (section 8503 of title 41, United States Code);

(B) is planned to be converted to performance by a qualified nonprofit agency for the blind or by a qualified nonprofit agency for other severely handicapped individuals in accordance with that Act; or

(C) is planned to be converted to performance by a qualified firm under at least 51 percent ownership by an Indian tribe, as defined in section 4(e) of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b(e)), or a Native Hawaiian Organization, as defined in section 8(a)(15) of the Small Business Act (15 U.S.C. 637(a)(15)).

(2) This section shall not apply to depot contracts or contracts for depot maintenance as provided in sections 2469 and 2474 of title 10, United States Code.

(c) The conversion of any activity or function of the Department of Defense under the authority provided by this section shall be credited toward any competitive or outsourcing goal, target, or measurement that may be established by statute, regulation, or policy and is deemed to be awarded under the authority of, and in compliance with, subsection (h) of section 2304 of title 10, United States Code, for the competition or outsourcing of commercial activities.

(TRANSFER OF FUNDS)

SEC. 8016. Funds appropriated in title III of this Act for the Department of Defense Pilot Mentor-Protege Program may be transferred to any other appropriation contained in this Act solely for the purpose of implementing a Mentor-Protege Program developmental assistance agreement pursuant to section 831 of the National Defense Authorization Act for Fiscal Year 1991 (Public Law 101–510; 10 U.S.C. 2302 note), as amended, under the authority of this provision or any other transfer authority contained in this Act: *Provided,* That subsection (j) of section 831 of the National Defense Authorization Act for Fiscal Year 1991 is amended by striking ''September 30, 2010'' and inserting ''September 30, 2011'', and by striking ''September 30, 2013'' and inserting ''September 30, 2014''.

SEC. 8017. None of the funds in this Act may be available for the purchase by the Department of Defense (and its departments and agencies) of welded shipboard anchor and mooring chain 4 inches in diameter and under unless the anchor and mooring chain are manufactured in the United States from components which are substantially manufactured in the United States: *Provided*, That for the purpose of this section, the term ''manufactured'' shall include cutting, heat treating, quality control, testing of chain and welding (including the forging and shot blasting process): *Provided further*, That for the purpose of this section substantially all of the components of anchor and mooring chain shall be considered to be produced or manufactured in the United States if the aggregate cost of the components produced or manufactured in the United States exceeds the aggregate cost of the components produced or manufactured outside the United States: *Provided further*, That when adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis, the Secretary of the service responsible for the procurement may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations that such an acquisition must be made in order to acquire capability for national security purposes.

SEC. 8018. None of the funds available to the Department of Defense may be used to demilitarize or dispose of M–1 Carbines, M–1 Garand rifles, M–14 rifles, .22 caliber rifles, .30 caliber rifles, or M–1911 pistols, or to demilitarize or destroy small arms ammunition or ammunition components that are not otherwise prohibited from commercial sale under Federal law, unless the small arms ammunition or ammunition components are certified by the Secretary of the Army or designee as unserviceable or unsafe for further use.

SEC. 8019. No more than $500,000 of the funds appropriated or made available in this Act shall be used during a single fiscal year for any single relocation of an organization, unit, activity or function of the Department of Defense into or within the National Capital Region: *Provided*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the congressional defense committees that such a relocation is required in the best interest of the Government.

SEC. 8020. In addition to the funds provided elsewhere in this Act, $15,000,000 is appropriated only for incentive payments authorized by section 504 of the Indian Financing Act of 1974 (25 U.S.C. 1544): *Provided*, That a prime contractor or a subcontractor at any tier that makes a subcontract award to any subcontractor or supplier as defined in section 1544 of title 25, United States Code, or a small business owned and controlled by an individual or individuals defined under section 4221(9) of title 25, United States Code, shall be considered a contractor for the purposes of being allowed additional compensation under section 504 of the Indian Financing Act of 1974 (25 U.S.C. 1544) whenever the prime contract or subcontract amount is over $500,000 and involves the expenditure of funds appropriated by an Act making Appropriations for the Department of Defense with respect to any fiscal year: *Provided further*, That notwithstanding section 430 of title 41, United States Code, this section shall be applicable to any Department of Defense acquisition of supplies or services, including any contract and any subcontract at any tier for acquisition of commercial items produced or manufactured, in whole or in part by any subcontractor or supplier defined in section 1544 of title 25, United States Code, or a small business owned and controlled by an individual or individuals defined under section 4221(9) of title 25, United States Code.

SEC. 8021. Funds appropriated by this Act for the Defense Media Activity shall not be used for any national or international political or psychological activities.

SEC. 8022. During the current fiscal year, the Department of Defense is authorized to incur obligations of not to exceed $350,000,000 for purposes specified in section 2350j(c) of title 10, United States Code, in anticipation of receipt of contributions, only from the Government of Kuwait, under that section: *Provided*, That upon receipt, such contributions from the Government of Kuwait shall be credited to the appropriations or fund which incurred such obligations.

SEC. 8023. (a) Of the funds made available in this Act, not less than $30,374,000 shall be available for the Civil Air Patrol Corporation, of which—

(1) $27,048,000 shall be available from ''Operation and Maintenance, Air Force'' to support Civil Air Patrol Corporation operation and maintenance, readiness, counterdrug activities, and drug demand reduction activities involving youth programs;

(2) $2,424,000 shall be available from ''Aircraft Procurement, Air Force''; and

(3) $902,000 shall be available from ''Other Procurement, Air Force'' for vehicle procurement.

(b) The Secretary of the Air Force should waive reimbursement for any funds used by the Civil Air Patrol for counter-drug activities in support of Federal, State, and local government agencies.

SEC. 8024. (a) None of the funds appropriated in this Act are available to establish a new Department of Defense (department) federally funded research and development center (FFRDC), either as a new entity, or as a separate entity administrated by an organization managing another FFRDC, or as a nonprofit membership corporation consisting of a consortium of other FFRDCs and other nonprofit entities.

(b) No member of a Board of Directors, Trustees, Overseers, Advisory Group, Special Issues Panel, Visiting Committee, or any similar entity of a defense FFRDC, and no paid consultant to any defense FFRDC, except when acting in a technical advisory capacity, may be compensated for his or her services as a member of such entity, or as a paid consultant by more than one FFRDC in a fiscal year: *Provided*, That a member of any such entity referred to previously in this subsection shall be allowed travel expenses and per diem as authorized under the Federal Joint Travel Regulations, when engaged in the performance of membership duties.

(c) Notwithstanding any other provision of law, none of the funds available to the department from any source during fiscal year 2011 may be used by a defense FFRDC, through a fee or other payment mechanism, for construction of new buildings, for payment of cost sharing for projects funded by Government grants, for absorption of contract overruns, or for certain charitable contributions, not to include employee participation in community service and/or development.

(d) Notwithstanding any other provision of law, of the funds available to the department during fiscal year 2011, not more than 5,750 staff years of technical effort (staff years) may be funded for defense FFRDCs: *Provided*, That of the specific amount referred to previously in this subsection, not more than 1,125 staff years may be funded for the defense studies and analysis FFRDCs: *Provided further*, That this subsection shall not apply to staff years funded in the National Intelligence Program (NIP) and the Military Intelligence Program (MIP).

(e) The Secretary of Defense shall, with the submission of the department's fiscal year

2012 budget request, submit a report presenting the specific amounts of staff years of technical effort to be allocated for each defense FFRDC during that fiscal year and the associated budget estimates.

(f) Notwithstanding any other provision of this Act, the total amount appropriated in this Act for FFRDCs is hereby reduced by $125,000,000.

SEC. 8025. None of the funds appropriated or made available in this Act shall be used to procure carbon, alloy or armor steel plate for use in any Government-owned facility or property under the control of the Department of Defense which were not melted and rolled in the United States or Canada: *Provided*, That these procurement restrictions shall apply to any and all Federal Supply Class 9515, American Society of Testing and Materials (ASTM) or American Iron and Steel Institute (AISI) specifications of carbon, alloy or armor steel plate: *Provided further*, That the Secretary of the military department responsible for the procurement may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes: *Provided further*, That these restrictions shall not apply to contracts which are in being as of the date of the enactment of this Act.

SEC. 8026. For the purposes of this Act, the term ''congressional defense committees'' means the Armed Services Committee of the House of Representatives, the Armed Services Committee of the Senate, the Subcommittee on Defense of the Committee on Appropriations of the Senate, and the Subcommittee on Defense of the Committee on Appropriations of the House of Representatives.

SEC. 8027. During the current fiscal year, the Department of Defense may acquire the modification, depot maintenance and repair of aircraft, vehicles and vessels as well as the production of components and other Defense-related articles, through competition between Department of Defense depot maintenance activities and private firms: *Provided*, That the Senior Acquisition Executive of the military department or Defense Agency concerned, with power of delegation, shall certify that successful bids include comparable estimates of all direct and indirect costs for both public and private bids: *Provided further*, That Office of Management and Budget Circular A–76 shall not apply to competitions conducted under this section.

SEC. 8028. (a)(1) If the Secretary of Defense, after consultation with the United States Trade Representative, determines that a foreign country which is party to an agreement described in paragraph (2) has violated the terms of the agreement by discriminating against certain types of products produced in the United States that are covered by the agreement, the Secretary of Defense shall rescind the Secretary's blanket waiver of the Buy American Act with respect to such types of products produced in that foreign country.

(2) An agreement referred to in paragraph (1) is any reciprocal defense procurement memorandum of understanding, between the United States and a foreign country pursuant to which the Secretary of Defense has prospectively waived the Buy American Act for certain products in that country.

(b) The Secretary of Defense shall submit to the Congress a report on the amount of Department of Defense purchases from foreign entities in fiscal year 2011. Such report shall separately indicate the dollar value of items for which the Buy American Act was waived pursuant to any agreement described in subsection (a)(2), the Trade Agreement Act of 1979 (19 U.S.C. 2501 et seq.), or any international agreement to which the United States is a party.

(c) For purposes of this section, the term ''Buy American Act'' means chapter 83 of title 41, United States Code.

SEC. 8029. During the current fiscal year, amounts contained in the Department of Defense Overseas Military Facility Investment Recovery Account established by section 2921(c)(1) of the National Defense Authorization Act of 1991 (Public Law 101–510; 10 U.S.C. 2687 note) shall be available until expended for the payments specified by section 2921(c)(2) of that Act.

SEC. 8030. (a) Notwithstanding any other provision of law, the Secretary of the Air Force may convey at no cost to the Air Force, without consideration, to Indian tribes located in the States of Nevada, Idaho, North Dakota, South Dakota, Montana, Oregon, Minnesota, and Washington relocatable military housing units located at Grand Forks Air Force Base, Malmstrom Air Force Base, Mountain Home Air Force Base, Ellsworth Air Force Base, and Minot Air Force Base that are excess to the needs of the Air Force.

(b) The Secretary of the Air Force shall convey, at no cost to the Air Force, military housing units under subsection (a) in accordance with the request for such units that are submitted to the Secretary by the Operation Walking Shield Program on behalf of Indian tribes located in the States of Nevada, Idaho, North Dakota, South Dakota, Montana, Oregon, Minnesota, and Washington. Any such conveyance shall be subject to the condition that the housing units shall be removed within a reasonable period of time, as determined by the Secretary.

(c) The Operation Walking Shield Program shall resolve any conflicts among requests of Indian tribes for housing units under subsection (a) before submitting requests to the Secretary of the Air Force under subsection (b).

(d) In this section, the term ''Indian tribe'' means any recognized Indian tribe included on the current list published by the Secretary of the Interior under section 104 of the Federally Recognized Indian Tribe Act of 1994 (Public Law 103–454; 108 Stat. 4792; 25 U.S.C. 479a–1).

SEC. 8031. During the current fiscal year, appropriations which are available to the Department of Defense for operation and maintenance may be used to purchase items having an investment item unit cost of not more than $250,000.

SEC. 8032. (a) During the current fiscal year, none of the appropriations or funds available to the Department of Defense Working Capital Funds shall be used for the purchase of an investment item for the purpose of acquiring a new inventory item for sale or anticipated sale during the current fiscal year or a subsequent fiscal year to customers of the Department of Defense Working Capital Funds if such an item would not have been chargeable to the Department of Defense Business Operations Fund during fiscal year 1994 and if the purchase of such an investment item would be chargeable during the current fiscal year to appropriations made to the Department of Defense for procurement.

(b) The fiscal year 2012 budget request for the Department of Defense as well as all justification material and other documentation supporting the fiscal year 2012 Department of Defense budget shall be prepared and submitted to the Congress on the basis that any equipment which was classified as an end item and funded in a procurement appropriation contained in this Act shall be budgeted for in a proposed fiscal year 2012 procurement appropriation and not in the supply management business area or any other area or category of the Department of Defense Working Capital Funds.

SEC. 8033. None of the funds appropriated by this Act for programs of the Central Intelligence Agency shall remain available for obligation beyond the current fiscal year, except for funds appropriated for the Reserve for Contingencies, which shall remain available until September 30, 2012: *Provided*, That funds appropriated, transferred, or otherwise credited to the Central Intelligence Agency Central Services Working Capital Fund during this or any prior or subsequent fiscal year shall remain available until expended: *Provided further*, That any funds appropriated or transferred to the Central Intelligence Agency for advanced research and development acquisition, for agent operations, and for covert action programs authorized by the President under section 503 of the National Security Act of 1947, as amended, shall remain available until September 30, 2012.

SEC. 8034. Notwithstanding any other provision of law, funds made available in this Act for the Defense Intelligence Agency may be used for the design, development, and deployment of General Defense Intelligence Program intelligence communications and intelligence information systems for the Services, the Unified and Specified Commands, and the component commands.

SEC. 8035. Of the funds appropriated to the Department of Defense under the heading ''Operation and Maintenance, Defense-Wide'', not less than $12,000,000 shall be made available only for the mitigation of environmental impacts, including training and technical assistance to tribes, related administrative support, the gathering of information, documenting of environmental damage, and developing a system for prioritization of mitigation and cost to complete estimates for mitigation, on Indian lands resulting from Department of Defense activities.

SEC. 8036. (a) None of the funds appropriated in this Act may be expended by an entity of the Department of Defense unless the entity, in expending the funds, complies with the Buy American Act. For purposes of this subsection, the term ''Buy American Act'' means chapter 83 of title 41, United States Code.

(b) If the Secretary of Defense determines that a person has been convicted of intentionally affixing a label bearing a ''Made in America'' inscription to any product sold in or shipped to the United States that is not made in America, the Secretary shall determine, in accordance with section 2410f of title 10, United States Code, whether the person should be debarred from contracting with the Department of Defense.

(c) In the case of any equipment or products purchased with appropriations provided under this Act, it is the sense of the Congress that any entity of the Department of Defense, in expending the appropriation, purchase only American-made equipment and products, provided that American-made equipment and products are cost-competitive, quality competitive, and available in a timely fashion.

SEC. 8037. None of the funds appropriated by this Act shall be available for a contract for studies, analysis, or consulting services entered into without competition on the basis of an unsolicited proposal unless the head of the activity responsible for the procurement determines—

(1) as a result of thorough technical evaluation, only one source is found fully qualified to perform the proposed work;

(2) the purpose of the contract is to explore an unsolicited proposal which offers significant scientific or technological promise, represents the product of original thinking, and was submitted in confidence by one source; or

(3) the purpose of the contract is to take advantage of unique and significant industrial accomplishment by a specific concern, or to insure that a new product or idea of a specific concern is given financial support: *Provided*, That this limitation shall not apply to contracts in an amount of less than $25,000, contracts related to improvements of equipment that is in development or production, or contracts as to which a civilian official of the Department of Defense, who has been confirmed by the Senate, determines that the award of such contract is in the interest of the national defense.

SEC. 8038. (a) Except as provided in subsections (b) and (c), none of the funds made available by this Act may be used—

(1) to establish a field operating agency; or

(2) to pay the basic pay of a member of the Armed Forces or civilian employee of the department who is transferred or reassigned from a headquarters activity if the member or employee's place of duty remains at the location of that headquarters.

(b) The Secretary of Defense or Secretary of a military department may waive the limitations in subsection (a), on a case-by-case basis, if the Secretary determines, and certifies to the Committees on Appropriations of the House of Representatives and Senate that the granting of the waiver will reduce the personnel requirements or the financial requirements of the department.

(c) This section does not apply to—

(1) field operating agencies funded within the National Intelligence Program;

(2) an Army field operating agency established to eliminate, mitigate, or counter the effects of improvised explosive devices, and, as determined by the Secretary of the Army, other similar threats; or

(3) an Army field operating agency established to improve the effectiveness and efficiencies of biometric activities and to integrate common biometric technologies throughout the Department of Defense.

SEC. 8039. The Secretary of Defense, notwithstanding any other provision of law, acting through the Office of Economic Adjustment of the Department of Defense, may use funds made available in this Act under the heading ''Operation and Maintenance, Defense-Wide'' to make grants and supplement other Federal funds in accordance with the guidance provided in the explanatory statement regarding this Act.

(RESCISSIONS)

SEC. 8040. Of the funds appropriated in Department of Defense Appropriations Acts, the following funds are hereby rescinded from the following accounts and programs in the specified amounts:

''Procurement of Weapons and Tracked Combat Vehicles, Army, 2009/2011'', $86,300,000.

''Other Procurement, Army, 2009/2011'', $147,600,000.

''Aircraft Procurement, Navy, 2009/2011'', $26,100,000.

''Aircraft Procurement, Air Force, 2009/2011'', $387,700,000.

''Aircraft Procurement, Army, 2010/2012'', $14,000,000.

''Procurement of Weapons and Tracked Combat Vehicles, Army, 2010/2012'', $36,000,000.

''Missile Procurement, Army, 2010/2012'', $9,171,000.

''Aircraft Procurement, Navy, 2010/2012'', $464,847,000.

''Procurement of Ammunition, Navy and Marine Corps, 2010/2012'', $11,576,000.

Under the heading, ''Shipbuilding and Conversion, Navy, 2010/2014'': DDG–51 Destroyer, $22,000,000.

''Other Procurement, Navy, 2010/2012'', $9,042,000.

''Aircraft Procurement, Air Force, 2010/2012'', $340,600,000.

''Other Procurement, Air Force, 2010/2012'', $36,600,000.

''Research, Development, Test and Evaluation, Army, 2010/2011'', $163,400,000.

''Research, Development, Test and Evaluation, Air Force, 2010/2011'', $198,600,000.

''Other Procurement, Army, 2010/2012'', $50,000,000.

''Research, Development, Test and Evaluation, Defense-Wide, 2010/2011'', $10,000,000.

SEC. 8041. None of the funds available in this Act may be used to reduce the authorized positions for military (civilian) technicians of the Army National Guard, Air National Guard, Army Reserve and Air Force Reserve for the purpose of applying any administratively imposed civilian personnel ceiling, freeze, or reduction on military (civilian) technicians, unless such reductions are a direct result of a reduction in military force structure.

SEC. 8042. None of the funds appropriated or otherwise made available in this Act may be obligated or expended for assistance to the Democratic People's Republic of Korea unless specifically appropriated for that purpose.

SEC. 8043. Funds appropriated in this Act for operation and maintenance of the Military Departments, Combatant Commands and Defense Agencies shall be available for reimbursement of pay, allowances and other expenses which would otherwise be incurred against appropriations for the National Guard and Reserve when members of the National Guard and Reserve provide intelligence or counterintelligence support to Combatant Commands, Defense Agencies and Joint Intelligence Activities, including the activities and programs included within the National Intelligence Program and the Military Intelligence Program: *Provided*, That nothing in this section authorizes deviation from established Reserve and National Guard personnel and training procedures.

SEC. 8044. During the current fiscal year, none of the funds appropriated in this Act may be used to reduce the civilian medical and medical support personnel assigned to military treatment facilities below the September 30, 2003, level: *Provided*, That the Service Surgeons General may waive this section by certifying to the congressional defense committees that the beneficiary population is declining in some catchment areas and civilian strength reductions may be consistent with responsible resource stewardship and capitation-based budgeting.

SEC. 8045. (a) None of the funds available to the Department of Defense for any fiscal year for drug interdiction or counter-drug activities may be transferred to any other department or agency of the United States except as specifically provided in an appropriations law.

(b) None of the funds available to the Central Intelligence Agency for any fiscal year for drug interdiction and counter-drug activities may be transferred to any other department or agency of the United States except as specifically provided in an appropriations law.

SEC. 8046. None of the funds appropriated by this Act may be used for the procurement of ball and roller bearings other than those produced by a domestic source and of domestic origin: *Provided*, That the Secretary of the military department responsible for such procurement may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate, that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes: *Provided further*, That this restriction shall not apply to the purchase of ''commercial items'', as defined by section 4(12) of the Office of Federal Procurement Policy Act, except that the restriction shall apply to ball or roller bearings purchased as end items.

SEC. 8047. None of the funds in this Act may be used to purchase any supercomputer which is not manufactured in the United States, unless the Secretary of Defense certifies to the congressional defense committees that such an acquisition must be made in order to acquire capability for national security purposes that is not available from United States manufacturers.

SEC. 8048. None of the funds made available in this or any other Act may be used to pay the salary of any officer or employee of the Department of Defense who approves or implements the transfer of administrative responsibilities or budgetary resources of any program, project, or activity financed by this Act to the jurisdiction of another Federal agency not financed by this Act without the express authorization of Congress: *Provided*, That this limitation shall not apply to transfers of funds expressly provided for in Defense Appropriations Acts, or provisions of Acts providing supplemental appropriations for the Department of Defense.

SEC. 8049. (a) Notwithstanding any other provision of law, none of the funds available to the Department of Defense for the current fiscal year may be obligated or expended to transfer to another nation or an international organization any defense articles or services (other than intelligence services) for use in the activities described in subsection (b) unless the congressional defense committees, the Committee on Foreign Affairs of the House of Representatives, and the Committee on Foreign Relations of the Senate are notified 15 days in advance of such transfer.

(b) This section applies to—

(1) any international peacekeeping or peace-enforcement operation under the authority of chapter VI or chapter VII of the United Nations Charter under the authority of a United Nations Security Council resolution; and

(2) any other international peacekeeping, peace-enforcement, or humanitarian assistance operation.

(c) A notice under subsection (a) shall include the following:

(1) A description of the equipment, supplies, or services to be transferred.

(2) A statement of the value of the equipment, supplies, or services to be transferred.

(3) In the case of a proposed transfer of equipment or supplies—

(A) a statement of whether the inventory requirements of all elements of the Armed Forces (including the reserve components) for the type of equipment or supplies to be transferred have been met; and

(B) a statement of whether the items proposed to be transferred will have to be replaced and, if so, how the President proposes to provide funds for such replacement.

SEC. 8050. None of the funds available to the Department of Defense under this Act shall be obligated or expended to pay a contractor under a contract with the Department of Defense for costs of any amount paid by the contractor to an employee when—

(1) such costs are for a bonus or otherwise in excess of the normal salary paid by the contractor to the employee; and

(2) such bonus is part of restructuring costs associated with a business combination.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8051. During the current fiscal year, no more than $30,000,000 of appropriations made in this Act under the heading ''Operation and Maintenance, Defense-Wide'' may be transferred to appropriations available for the pay of military personnel, to be merged with, and to be available for the same time period as the appropriations to which transferred, to be used in support of such personnel in connection with support and services for eligible organizations and activities outside the Department of Defense pursuant to section 2012 of title 10, United States Code.

SEC. 8052. During the current fiscal year, in the case of an appropriation account of the Department of Defense for which the period of availability for obligation has expired or which has closed under the provisions of section 1552 of title 31, United States Code, and which has a negative unliquidated or unexpended balance, an obligation or an adjustment of an obligation may be charged to any current appropriation account for the same purpose as the expired or closed account if—

(1) the obligation would have been properly chargeable (except as to amount) to the expired or closed account before the end of the period of availability or closing of that account;

(2) the obligation is not otherwise properly chargeable to any current appropriation account of the Department of Defense; and

(3) in the case of an expired account, the obligation is not chargeable to a current appropriation of the Department of Defense under the provisions of section 1405(b)(8) of the National Defense Authorization Act for Fiscal Year 1991, Public Law 101–510, as amended (31 U.S.C. 1551 note): *Provided*, That in the case of an expired account, if subsequent review or investigation discloses that there was not in fact a negative unliquidated or unexpended balance in the account, any charge to a current account under the authority of this section shall be reversed and recorded against the expired account: *Provided further*, That the total amount charged to a current appropriation under this section may not exceed an amount equal to 1 percent of the total appropriation for that account.

SEC. 8053. (a) Notwithstanding any other provision of law, the Chief of the National Guard Bureau may permit the use of equipment of the National Guard Distance Learning Project by any person or entity on a space-available, reimbursable basis. The Chief of the National Guard Bureau shall establish the amount of reimbursement for such use on a case-by-case basis.

(b) Amounts collected under subsection (a) shall be credited to funds available for the National Guard Distance Learning Project and be available to defray the costs associated with the use of equipment of the project under that subsection. Such funds shall be available for such purposes without fiscal year limitation.

SEC. 8054. Using funds made available by this Act or any other Act, the Secretary of the Air Force, pursuant to a determination under section 2690 of title 10, United States Code, may implement cost-effective agreements for required heating facility modernization in the Kaiserslautern Military Community in the Federal Republic of Germany: *Provided*, That in the City of Kaiserslautern and at the Rhine Ordnance Barracks area, such agreements will include the use of United States anthracite as the base load energy for municipal district heat to the United States Defense installations: *Provided further*, That at Landstuhl Army Regional Medical Center and Ramstein Air Base, furnished heat may be obtained from private, regional or municipal services, if provisions are included for the consideration of United States coal as an energy source.

SEC. 8055. None of the funds appropriated in title IV of this Act may be used to procure end-items for delivery to military forces for operational training, operational use or inventory requirements: *Provided*, That this restriction does not apply to end-items used in development, prototyping, and test activities preceding and leading to acceptance for operational use: *Provided further*, That this restriction does not apply to programs funded within the National Intelligence Program: *Provided further*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that it is in the national security interest to do so.

SEC. 8056. None of the funds made available in this Act may be used to approve or license the sale of the F–22A advanced tactical fighter to any foreign government: *Provided*, That the Department of Defense may conduct or participate in studies, research, design and other activities to define and develop a future export version of the F–22A that protects classified and sensitive information, technologies and U.S. warfighting capabilities.

SEC. 8057. (a) The Secretary of Defense may, on a case-by-case basis, waive with respect to a foreign country each limitation on the procurement of defense items from foreign sources provided in law if the Secretary determines that the application of the limitation with respect to that country would invalidate cooperative programs entered into between the Department of Defense and the foreign country, or would invalidate reciprocal trade agreements for the procurement of defense items entered into under section 2531 of title 10, United States Code, and the country does not discriminate against the same or similar defense items produced in the United States for that country.

(b) Subsection (a) applies with respect to—

(1) contracts and subcontracts entered into on or after the date of the enactment of this Act; and

(2) options for the procurement of items that are exercised after such date under contracts that are entered into before such date if the option prices are adjusted for any reason other than the application of a waiver granted under subsection (a).

(c) Subsection (a) does not apply to a limitation regarding construction of public vessels, ball and roller bearings, food, and clothing or textile materials as defined by section 11 (chapters 50–65) of the Harmonized Tariff Schedule and products classified under headings 4010, 4202, 4203, 6401 through 6406, 6505, 7019, 7218 through 7229, 7304.41 through 7304.49, 7306.40, 7502 through 7508, 8105, 8108, 8109, 8211, 8215, and 9404.

SEC. 8058. (a) None of the funds made available by this Act may be used to support any training program involving a unit of the security forces or police of a foreign country if the Secretary of Defense has received credible information from the Department of State that the unit has committed a gross violation of human rights, unless all necessary corrective steps have been taken.

(b) The Secretary of Defense, in consultation with the Secretary of State, shall ensure that prior to a decision to conduct any training program referred to in subsection (a), full consideration is given to all credible information available to the Department of State relating to human rights violations by foreign security forces.

(c) The Secretary of Defense, after consultation with the Secretary of State, may waive the prohibition in subsection (a) if he determines that such waiver is required by extraordinary circumstances.

(d) Not more than 15 days after the exercise of any waiver under subsection (c), the Secretary of Defense shall submit a report to the congressional defense committees describing the extraordinary circumstances, the purpose and duration of the training program, the United States forces and the foreign security forces involved in the training program, and the information relating to human rights violations that necessitates the waiver.

SEC. 8059. None of the funds appropriated or made available in this Act to the Department of the Navy shall be used to develop, lease or procure the T–AKE class of ships unless the main propulsion diesel engines and propulsors are manufactured in the United States by a domestically operated entity: *Provided*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that adequate domestic supplies are not available to meet Department of Defense requirements on a timely basis and that such an acquisition must be made in order to acquire capability for national security purposes or there exists a significant cost or quality difference.

SEC. 8060. None of the funds appropriated or otherwise made available by this or other Department of Defense Appropriations Acts may be obligated or expended for the purpose of performing repairs or maintenance to military family housing units of the Department of Defense, including areas in such military family housing units that may be used for the purpose of conducting official Department of Defense business.

SEC. 8061. Notwithstanding any other provision of law, funds appropriated in this Act under the heading ''Research, Development, Test and Evaluation, Defense-Wide'' for any new start advanced concept technology demonstration project or joint capability demonstration project may only be obligated 30 days after a report, including a description of the project, the planned acquisition and transition strategy and its estimated annual and total cost, has been provided in writing to the congressional defense committees: *Provided*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying to the congressional defense committees that it is in the national interest to do so.

SEC. 8062. The Secretary of Defense shall provide a classified quarterly report beginning 30 days after enactment of this Act, to the House and Senate Appropriations Committees, Subcommittees on Defense on certain matters as directed in the classified annex accompanying this Act.

SEC. 8063. During the current fiscal year, none of the funds available to the Department of Defense may be used to provide support to another department or agency of the United States if such department or agency is more than 90 days in arrears in making payment to the Department of Defense for goods or services previously provided to such department or agency on a reimbursable basis: *Provided*, That this restriction shall not apply if the department is authorized by law to provide support to such department or agency on a nonreimbursable basis, and is providing the requested support pursuant to such authority: *Provided further*, That the Secretary of Defense may waive this restriction on a case-by-case basis by certifying in writing to the Committees on Appropriations of the House of Representatives and the Senate that it is in the national security interest to do so.

SEC. 8064. Notwithstanding section 12310(b) of title 10, United States Code, a Reserve who is a member of the National Guard serving on full-time National Guard duty under

section 502(f) of title 32, United States Code, may perform duties in support of the ground-based elements of the National Ballistic Missile Defense System.

SEC. 8065. None of the funds provided in this Act may be used to transfer to any nongovernmental entity ammunition held by the Department of Defense that has a center-fire cartridge and a United States military nomenclature designation of ''armor penetrator'', ''armor piercing (AP)'', ''armor piercing incendiary (API)'', or ''armor-piercing incendiary tracer (API–T)'', except to an entity performing demilitarization services for the Department of Defense under a contract that requires the entity to demonstrate to the satisfaction of the Department of Defense that armor piercing projectiles are either: (1) rendered incapable of reuse by the demilitarization process; or (2) used to manufacture ammunition pursuant to a contract with the Department of Defense or the manufacture of ammunition for export pursuant to a License for Permanent Export of Unclassified Military Articles issued by the Department of State.

SEC. 8066. Notwithstanding any other provision of law, the Chief of the National Guard Bureau, or his designee, may waive payment of all or part of the consideration that otherwise would be required under section 2667 of title 10, United States Code, in the case of a lease of personal property for a period not in excess of 1 year to any organization specified in section 508(d) of title 32, United States Code, or any other youth, social, or fraternal nonprofit organization as may be approved by the Chief of the National Guard Bureau, or his designee, on a case-by-case basis.

SEC. 8067. None of the funds appropriated by this Act shall be used for the support of any nonappropriated funds activity of the Department of Defense that procures malt beverages and wine with nonappropriated funds for resale (including such alcoholic beverages sold by the drink) on a military installation located in the United States unless such malt beverages and wine are procured within that State, or in the case of the District of Columbia, within the District of Columbia, in which the military installation is located: *Provided*, That in a case in which the military installation is located in more than one State, purchases may be made in any State in which the installation is located: *Provided further*, That such local procurement requirements for malt beverages and wine shall apply to all alcoholic beverages only for military installations in States which are not contiguous with another State: *Provided further*, That alcoholic beverages other than wine and malt beverages, in contiguous States and the District of Columbia shall be procured from the most competitive source, price and other factors considered.

SEC. 8068. Funds available to the Department of Defense for the Global Positioning System during the current fiscal year, and hereafter, may be used to fund civil requirements associated with the satellite and ground control segments of such system's modernization program.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8069. Of the amounts appropriated in this Act under the heading ''Operation and Maintenance, Army'', $147,258,300 shall remain available until expended: *Provided*, That notwithstanding any other provision of law, the Secretary of Defense is authorized to transfer such funds to other activities of the Federal Government: *Provided further*, That the Secretary of Defense is authorized to enter into and carry out contracts for the acquisition of real property, construction, personal services, and operations related to projects carrying out the purposes of this section: *Provided further*, That contracts entered into under the authority of this section may provide for such indemnification as the Secretary determines to be necessary: *Provided further*, That projects authorized by this section shall comply with applicable Federal, State, and local law to the maximum extent consistent with the national security, as determined by the Secretary of Defense.

SEC. 8070. Section 8106 of the Department of Defense Appropriations Act, 1997 (titles I through VIII of the matter under subsection 101(b) of Public Law 104–208; 110 Stat. 3009–111; 10 U.S.C. 113 note) shall continue in effect to apply to disbursements that are made by the Department of Defense in fiscal year 2011.

SEC. 8071. In addition to amounts provided elsewhere in this Act, $4,000,000 is hereby appropriated to the Department of Defense, to remain available for obligation until expended: *Provided*, That notwithstanding any other provision of law, that upon the determination of the Secretary of Defense that it shall serve the national interest, these funds shall be available only for a grant to the Fisher House Foundation, Inc., only for the construction and furnishing of additional Fisher Houses to meet the needs of military family members when confronted with the illness or hospitalization of an eligible military beneficiary.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8072. Of the amounts appropriated in this Act under the headings ''Procurement, Defense-Wide'' and ''Research, Development, Test and Evaluation, Defense-Wide'', $415,115,000 shall be for the Israeli Cooperative Programs: *Provided*, That of this amount, $205,000,000 shall be for the Secretary of Defense to provide to the Government of Israel for the procurement of the Iron Dome defense system to counter short-range rocket threats, $84,722,000 shall be for the Short Range Ballistic Missile Defense (SRBMD) program, including cruise missile defense research and development under the SRBMD program, $58,966,000 shall be available for an upper-tier component to the Israeli Missile Defense Architecture, and $66,427,000 shall be for the Arrow System Improvement Program including development of a long range, ground and airborne, detection suite, of which $12,000,000 shall be for producing Arrow missile components in the United States and Arrow missile components in Israel to meet Israel's defense requirements, consistent with each nation's laws, regulations and procedures: *Provided further*, That funds made available under this provision for production of missiles and missile components may be transferred to appropriations available for the procurement of weapons and equipment, to be merged with and to be available for the same time period and the same purposes as the appropriation to which transferred: *Provided further*, That the transfer authority provided under this provision is in addition to any other transfer authority contained in this Act.

SEC. 8073. None of the funds available to the Department of Defense may be obligated to modify command and control relationships to give Fleet Forces Command administrative and operational control of U.S. Navy forces assigned to the Pacific fleet: *Provided*, That the command and control relationships which existed on October 1, 2004, shall remain in force unless changes are specifically authorized in a subsequent Act.

SEC. 8074. Notwithstanding any other provision of law or regulation, the Secretary of Defense may exercise the provisions of section 7403(g) of title 38, United States Code, for occupations listed in section 7403(a)(2) of title 38, United States Code, as well as the following:

Pharmacists, Audiologists, Psychologists, Social Workers, Othotists/Prosthetists, Occupational Therapists, Physical Therapists, Rehabilitation Therapists, Respiratory Therapists, Speech Pathologists, Dietitian/Nutritionists, Industrial Hygienists, Psychology Technicians, Social Service Assistants, Practical Nurses, Nursing Assistants, and Dental Hygienists:

(A) The requirements of section 7403(g)(1)(A) of title 38, United States Code, shall apply.

(B) The limitations of section 7403(g)(1)(B) of title 38, United States Code, shall not apply.

SEC. 8075. Funds appropriated by this Act, or made available by the transfer of funds in this Act, for intelligence activities are deemed to be specifically authorized by the Congress for purposes of section 504 of the National Security Act of 1947 (50 U.S.C. 414) during fiscal year 2011 until the enactment of the Intelligence Authorization Act for Fiscal Year 2011.

SEC. 8076. None of the funds provided in this Act shall be available for obligation or expenditure through a reprogramming of funds that creates or initiates a new program, project, or activity unless such program, project, or activity must be undertaken immediately in the interest of national security and only after written prior notification to the congressional defense committees.

SEC. 8077. The budget of the President for fiscal year 2012 submitted to the Congress pursuant to section 1105 of title 31, United States Code, shall include separate budget justification documents for costs of United States Armed Forces' participation in contingency operations for the Military Personnel accounts, the Operation and Maintenance accounts, and the Procurement accounts: *Provided*, That these documents shall include a description of the funding requested for each contingency operation, for each military service, to include all Active and Reserve components, and for each appropriations account: *Provided further*, That these documents shall include estimated costs for each element of expense or object class, a reconciliation of increases and decreases for each contingency operation, and programmatic data including, but not limited to, troop strength for each Active and Reserve component, and estimates of the major weapons systems deployed in support of each contingency: *Provided further*, That these documents shall include budget exhibits OP–5 and OP–32 (as defined in the Department of Defense Financial Management Regulation) for all contingency operations for the budget year and the two preceding fiscal years.

SEC. 8078. None of the funds in this Act may be used for research, development, test, evaluation, procurement or deployment of nuclear armed interceptors of a missile defense system.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8079. In addition to the amounts appropriated or otherwise made available elsewhere in this Act, $65,200,000 is hereby appropriated to the Department of Defense: *Provided*, That upon the determination of the Secretary of Defense that it shall serve the national interest, he shall make grants in the amounts specified as follows: $20,000,000 to the United Service Organizations; $24,000,000 to the Red Cross; $1,200,000 to the Special Olympics; and $20,000,000 to the Youth Mentoring Grants Program: *Provided further*, That funds available in this section for the Youth Mentoring Grants Program may be available for transfer to the Department of Justice Youth Mentoring Grants Program.

SEC. 8080. None of the funds appropriated or made available in this Act shall be used to reduce or disestablish the operation of the 53rd Weather Reconnaissance Squadron of the Air Force Reserve, if such action would reduce the WC–130 Weather Reconnaissance mission below the levels funded in this Act: *Provided*, That the Air Force shall allow the 53rd Weather Reconnaissance Squadron to perform other missions in support of national defense requirements during the non-hurricane season.

SEC. 8081. None of the funds provided in this Act shall be available for integration of foreign intelligence information unless the information has been lawfully collected and processed during the conduct of authorized foreign intelligence activities: *Provided*, That information pertaining to United States persons shall only be handled in accordance with protections provided in the Fourth Amendment of the United States Constitution as implemented through Executive Order No. 12333.

SEC. 8082. (a) At the time members of reserve components of the Armed Forces are called or ordered to active duty under section 12302(a) of title 10, United States Code, each member shall be notified in writing of the expected period during which the member will be mobilized.

(b) The Secretary of Defense may waive the requirements of subsection (a) in any case in which the Secretary determines that it is necessary to do so to respond to a national security emergency or to meet dire operational requirements of the Armed Forces.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8083. The Secretary of Defense may transfer funds from any available Department of the Navy appropriation to any available Navy ship construction appropriation for the purpose of liquidating necessary changes resulting from inflation, market fluctuations, or rate adjustments for any ship construction program appropriated in law: *Provided*, That the Secretary may transfer not to exceed $100,000,000 under the authority provided by this section: *Provided further*, That the Secretary may not transfer any funds until 30 days after the proposed transfer has been reported to the Committees on Appropriations of the House of Representatives and the Senate, unless a response from the Committees is received sooner: *Provided further*, That any funds transferred pursuant to this section shall retain the same period of availability as when originally appropriated: *Provided further*, That the transfer authority provided by this section is in addition to any other transfer authority contained elsewhere in this Act.

SEC. 8084. For purposes of section 7108 of title 41, United States Code, any subdivision of appropriations made under the heading ''Shipbuilding and Conversion, Navy'' that is not closed at the time reimbursement is made shall be available to reimburse the Judgment Fund and shall be considered for the same purposes as any subdivision under the heading ''Shipbuilding and Conversion, Navy'' appropriations in the current fiscal year or any prior fiscal year.

SEC. 8085. (a) None of the funds appropriated by this Act may be used to transfer research and development, acquisition, or other program authority relating to current tactical unmanned aerial vehicles (TUAVs) from the Army.

(b) The Army shall retain responsibility for and operational control of the MQ–1C Sky Warrior Unmanned Aerial Vehicle (UAV) in order to support the Secretary of Defense in matters relating to the employment of unmanned aerial vehicles.

SEC. 8086. Notwithstanding any other provision of law or regulation, during the current fiscal year and hereafter, the Secretary of Defense may adjust wage rates for civilian employees hired for certain health care occupations as authorized for the Secretary of Veterans Affairs by section 7455 of title 38, United States Code.

SEC. 8087. Up to $15,000,000 of the funds appropriated under the heading ''Operation and Maintenance, Navy'' may be made available for the Asia Pacific Regional Initiative Program for the purpose of enabling the Pacific Command to execute Theater Security Cooperation activities such as humanitarian assistance, and payment of incremental and personnel costs of training and exercising with foreign security forces: *Provided*, That funds made available for this purpose may be used, notwithstanding any other funding authorities for humanitarian assistance, security assistance or combined exercise expenses: *Provided further*, That funds may not be obligated to provide assistance to any foreign country that is otherwise prohibited from receiving such type of assistance under any other provision of law.

SEC. 8088. None of the funds appropriated by this Act for programs of the Office of the Director of National Intelligence shall remain available for obligation beyond the current fiscal year, except for funds appropriated for research and technology, which shall remain available until September 30, 2012.

SEC. 8089. For purposes of section 1553(b) of title 31, United States Code, any subdivision of appropriations made in this Act under the heading ''Shipbuilding and Conversion, Navy'' shall be considered to be for the same purpose as any subdivision under the heading ''Shipbuilding and Conversion, Navy'' appropriations in any prior fiscal year, and the 1 percent limitation shall apply to the total amount of the appropriation.

SEC. 8090. Notwithstanding any other provision of law, not more than 35 percent of funds provided in this Act for environmental remediation may be obligated under indefinite delivery/indefinite quantity contracts with a total contract value of $130,000,000 or higher.

SEC. 8091. The Director of National Intelligence shall include the budget exhibits identified in paragraphs (1) and (2) as described in the Department of Defense Financial Management Regulation with the congressional budget justification books:

(1) For procurement programs requesting more than $20,000,000 in any fiscal year, the P–1, Procurement Program; P–5, Cost Analysis; P–5a, Procurement History and Planning; P–21, Production Schedule; and P–40, Budget Item Justification.

(2) For research, development, test and evaluation projects requesting more than $10,000,000 in any fiscal year, the R–1, RDT&E Program; R–2, RDT&E Budget Item Justification; R–3, RDT&E Project Cost Analysis; and R–4, RDT&E Program Schedule Profile.

SEC. 8092. The Secretary of Defense shall create a major force program category for space for each future-years defense program of the Department of Defense submitted to Congress under section 221 of title 10, United States Code, during fiscal year 2011. The Secretary of Defense shall designate an official in the Office of the Secretary of Defense to provide overall supervision of the preparation and justification of program recommendations and budget proposals to be included in such major force program category.

SEC. 8093. (a) Not later than 60 days after enactment of this Act, the Office of the Director of National Intelligence shall submit a report to the congressional intelligence committees to establish the baseline for application of reprogramming and transfer authorities for fiscal year 2011: *Provided*, That the report shall include—

(1) a table for each appropriation with a separate column to display the President's budget request, adjustments made by Congress, adjustments due to enacted rescissions, if appropriate, and the fiscal year enacted level;

(2) a delineation in the table for each appropriation by Expenditure Center and project; and

(3) an identification of items of special congressional interest.

(b) None of the funds provided for the National Intelligence Program in this Act shall be available for reprogramming or transfer until the report identified in subsection (a) is submitted to the congressional intelligence committees, unless the Director of National Intelligence certifies in writing to the congressional intelligence committees that such reprogramming or transfer is necessary as an emergency requirement.

SEC. 8094. The Director of National Intelligence shall submit to Congress each year, at or about the time that the President's budget is submitted to Congress that year under section 1105(a) of title 31, United States Code, a future-years intelligence program (including associated annexes) reflecting the estimated expenditures and proposed appropriations included in that budget. Any such future-years intelligence program shall cover the fiscal year with respect to which the budget is submitted and at least the four succeeding fiscal years.

SEC. 8095. For the purposes of this Act, the term ''congressional intelligence committees'' means the Permanent Select Committee on Intelligence of the House of Representatives, the Select Committee on Intelligence of the Senate, the Subcommittee on Defense of the Committee on Appropriations of the House of Representatives, and the Subcommittee on Defense of the Committee on Appropriations of the Senate.

SEC. 8096. The Department of Defense shall continue to report incremental contingency operations costs for Operation New Dawn and Operation Enduring Freedom on a monthly basis in the Cost of War Execution Report as prescribed in the Department of Defense Financial Management Regulation Department of Defense Instruction 7000.14, Volume 12, Chapter 23 ''Contingency Operations'', Annex 1, dated September 2005.

SEC. 8097. The amounts appropriated in title II of this Act are hereby reduced by $1,983,000,000 to reflect excess cash balances in Department of Defense Working Capital Funds, as follows: (1) From ''Operation and Maintenance, Army'', $700,000,000; and (2) From ''Operation and Maintenance, Defense-Wide'', $1,283,000,000.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8098. During the current fiscal year, not to exceed $11,000,000 from each of the appropriations made in title II of this Act for ''Operation and Maintenance, Army'', ''Operation and Maintenance, Navy'', and ''Operation and Maintenance, Air Force'' may be transferred by the military department concerned to its central fund established for Fisher Houses and Suites pursuant to section 2493(d) of title 10, United States Code.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8099. Of the funds appropriated in the Intelligence Community Management Account for the Program Manager for the Information Sharing Environment, $24,000,000 is available for transfer by the Director of National Intelligence to other departments and agencies for purposes of Government-wide information sharing activities: *Provided*, That funds transferred under this provision are to be merged with and available for the same purposes and time period as the

appropriation to which transferred: *Provided further*, That the Office of Management and Budget must approve any transfers made under this provision.

SEC. 8100. Funds appropriated by this Act for operation and maintenance may be available for the purpose of making remittances to the Defense Acquisition Workforce Development Fund in accordance with the requirements of section 1705 of title 10, United States Code.

SEC. 8101. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public website of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

SEC. 8102. (a) None of the funds appropriated or otherwise made available by this Act may be expended for any Federal contract for an amount in excess of $1,000,000 unless the contractor agrees not to—

(1) enter into any agreement with any of its employees or independent contractors that requires, as a condition of employment, that the employee or independent contractor agree to resolve through arbitration any claim under title VII of the Civil Rights Act of 1964 or any tort related to or arising out of sexual assault or harassment, including assault and battery, intentional infliction of emotional distress, false imprisonment, or negligent hiring, supervision, or retention; or

(2) take any action to enforce any provision of an existing agreement with an employee or independent contractor that mandates that the employee or independent contractor resolve through arbitration any claim under title VII of the Civil Rights Act of 1964 or any tort related to or arising out of sexual assault or harassment, including assault and battery, intentional infliction of emotional distress, false imprisonment, or negligent hiring, supervision, or retention.

(b) None of the funds appropriated or otherwise made available by this Act may be expended for any Federal contract unless the contractor certifies that it requires each covered subcontractor to agree not to enter into, and not to take any action to enforce any provision of, any agreement as described in paragraphs (1) and (2) of subsection (a), with respect to any employee or independent contractor performing work related to such subcontract. For purposes of this subsection, a ''covered subcontractor'' is an entity that has a subcontract in excess of $1,000,000 on a contract subject to subsection (a).

(c) The prohibitions in this section do not apply with respect to a contractor's or subcontractor's agreements with employees or independent contractors that may not be enforced in a court of the United States.

(d) The Secretary of Defense may waive the application of subsection (a) or (b) to a particular contractor or subcontractor for the purposes of a particular contract or subcontract if the Secretary or the Deputy Secretary personally determines that the waiver is necessary to avoid harm to national security interests of the United States, and that the term of the contract or subcontract is not longer than necessary to avoid such harm. The determination shall set forth with specificity the grounds for the waiver and for the contract or subcontract term selected, and shall state any alternatives considered in lieu of a waiver and the reasons each such alternative would not avoid harm to national security interests of the United States. The Secretary of Defense shall transmit to Congress, and simultaneously make public, any determination under this subsection not less than 15 business days before the contract or subcontract addressed in the determination may be awarded.

(e) By March 1, 2011, or within 60 days after enactment of this Act, whichever is later, the Government Accountability Office shall submit a report to the Congress evaluating the effect that the requirements of this section have had on national security, including recommendations, if any, for changes to these requirements.

SEC. 8103. (a) PROHIBITION ON CONVERSION OF FUNCTIONS PERFORMED BY FEDERAL EMPLOYEES TO CONTRACTOR PERFORMANCE.—None of the funds appropriated by this Act or otherwise available to the Department of Defense may be used to begin or announce the competition to award to a contractor or convert to performance by a contractor any functions performed by Federal employees pursuant to a study conducted under Office of Management and Budget (OMB) Circular A–76.

(b) EXCEPTION.—The prohibition in subsection (a) shall not apply to the award of a function to a contractor or the conversion of a function to performance by a contractor pursuant to a study conducted under Office of Management and Budget (OMB) Circular A–76 once all reporting and certifications required by section 325 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84) have been satisfactorily completed.

SEC. 8104. (a)(1) No National Intelligence Program funds appropriated in this Act may be used for a mission critical or mission essential business management information technology system that is not registered with the Director of National Intelligence. A system shall be considered to be registered with that officer upon the furnishing notice of the system, together with such information concerning the system as the Director of the Business Transformation Office may prescribe.

(2) During the current fiscal year no funds may be obligated or expended for a financial management automated information system, a mixed information system supporting financial and non-financial systems, or a business system improvement of more than $3,000,000, within the Intelligence Community without the approval of the Business Transformation Office, and the designated Intelligence Community functional lead element.

(b) The Director of the Business Transformation Office shall provide the congressional intelligence committees a semi-annual report of approvals under paragraph (1) no later than March 30 and September 30 of each year. The report shall include the results of the Business Transformation Investment Review Board's semi-annual activities, and each report shall certify that the following steps have been taken for systems approved under paragraph (1):

(1) Business process reengineering.

(2) An analysis of alternatives and an economic analysis that includes a calculation of the return on investment.

(3) Assurance the system is compatible with the enterprise-wide business architecture.

(4) Performance measures.

(5) An information assurance strategy consistent with the Chief Information Officer of the Intelligence Community.

(c) This section shall not apply to any programmatic or analytic systems or programmatic or analytic system improvements.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8105. Of the funds appropriated in this Act for the Office of the Director of National Intelligence, $50,000,000, may be transferred to appropriations available to the Central Intelligence Agency, the National Security Agency, and the National Geospatial Intelligence Agency, the Defense Intelligence Agency and the National Reconnaissance Office for the Business Transformation Transfer Funds, to be merged with and to be available for the same time period and the same purposes as the appropriation to which transferred: *Provided*, That the transfer authority provided under this provision is in addition to any other transfer authority contained in this Act.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8106. In addition to funds made available elsewhere in this Act, there is hereby appropriated $538,875,000, to remain available until transferred: *Provided*, That these funds are appropriated to the ''Tanker Replacement Transfer Fund'' (referred to as ''the Fund'' elsewhere in this section): *Provided further*, That the Secretary of the Air Force may transfer amounts in the Fund to ''Operation and Maintenance, Air Force'', ''Aircraft Procurement, Air Force'', and ''Research, Development, Test and Evaluation, Air Force'', only for the purposes of proceeding with a tanker acquisition program: *Provided further*, That funds transferred shall be merged with and be available for the same purposes and for the same time period as the appropriations or fund to which transferred: *Provided further*, That this transfer authority is in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary of the Air Force shall, not fewer than 15 days prior to making transfers using funds provided in this section, notify the congressional defense committees in writing of the details of any such transfer: *Provided further*, That the Secretary shall submit a report no later than 30 days after the end of each fiscal quarter to the congressional defense committees summarizing the details of the transfer of funds from this appropriation.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8107. From within the funds appropriated for operation and maintenance for the Defense Health Program in this Act, up to $132,200,000, shall be available for transfer to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund in accordance with the provisions of section 1704 of the National Defense Authorization Act for Fiscal Year 2010, Public Law 111–84: *Provided*, That for purposes of section 1704(b), the facility operations funded are operations of the integrated Captain James A. Lovell Federal Health Care Center, consisting of the North Chicago Veterans Affairs Medical Center, the Navy Ambulatory Care Center, and supporting facilities designated as a combined Federal medical facility as described by section 706 of Public Law 110–417: *Provided further*, That additional funds may be transferred from funds appropriated for operation and maintenance for the Defense Health Program to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund upon written notification by the Secretary of Defense to the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 8108. (a) Of the amounts made available in this Act under the heading ''Operation and Maintenance, Navy'', not less than

$2,000,000, shall be made available for leveraging the Army's Contractor Manpower Reporting Application, modified as appropriate for Service-specific requirements, for documenting the number of full-time contractor employees (or its equivalent) pursuant to United States Code title 10, section 2330a(c) and meeting the requirements of United States Code title 10, section 2330a(e) and United States Code title 10, section 235.

(b) Of the amounts made available in this Act under the heading ''Operation and Maintenance, Air Force'', not less than $2,000,000 shall be made available for leveraging the Army's Contractor Manpower Reporting Application, modified as appropriate for Service-specific requirements, for documenting the number of full-time contractor employees (or its equivalent) pursuant to United States Code title 10 section 2330a(c) and meeting the requirements of United States Code title 10, section 2330a(e) and United States Code title 10, section 235.

(c) The Secretaries of the Army, Navy, Air Force, and the Directors of the Defense Agencies and Field Activities (in coordination with the appropriate Principal Staff Assistant), in coordination with the Under Secretary of Defense for Personnel and Readiness, shall report to the congressional defense committees within 60 days of enactment of this Act their plan for documenting the number of full-time contractor employees (or its equivalent), as required by United States Code title 10, section 2330a.

(INCLUDING TRANSFER OF FUNDS)

SEC. 8109. In addition to amounts provided elsewhere in this Act, there is appropriated $250,000,000, for an additional amount for ''Operation and Maintenance, Defense-Wide'', to be available until expended: *Provided*, That such funds shall only be available to the Secretary of Defense, acting through the Office of Economic Adjustment of the Department of Defense, or for transfer to the Secretary of Education, notwithstanding any other provision of law, to make grants, conclude cooperative agreements, or supplement other Federal funds to construct, renovate, repair, or expand elementary and secondary public schools on military installations in order to address capacity or facility condition deficiencies at such schools: *Provided further*, That in making such funds available, the Office of Economic Adjustment or the Secretary of Education shall give priority consideration to those military installations with schools having the most serious capacity or facility condition deficiencies as determined by the Secretary of Defense.

SEC. 8110. In addition to amounts provided elsewhere in this Act, there is appropriated $300,000,000, for an additional amount for ''Operation and Maintenance, Defense-Wide'', to remain available until expended. Such funds may be available for the Office of Economic Adjustment, notwithstanding any other provision of law, for transportation infrastructure improvements associated with medical facilities related to recommendations of the Defense Base Closure and Realignment Commission.

SEC. 8111. Section 310(b) of the Supplemental Appropriations Act, 2009 (Public Law 111–32; 124 Stat. 1871) is amended by striking ''1 year'' both places it appears and inserting ''2 years''.

SEC. 8112. The Office of the Director of National Intelligence shall not employ more Senior Executive employees than are specified in the classified annex: *Provided*, That not later than 90 days after enactment of this Act, the Director of National Intelligence shall certify that the Office of the Director of National Intelligence selects individuals for Senior Executive positions in a manner consistent with statutes, regulations, and the requirements of other Federal agencies in making such appointments and will submit its policies and procedures related to the appointment of personnel to Senior Executive positions to the congressional intelligence oversight committees.

SEC. 8113. For all major defense acquisition programs for which the Department of Defense plans to proceed to source selection during the current fiscal year, the Secretary of Defense shall perform an assessment of the winning bidder to determine whether or not the proposed costs are realistic and reasonable with respect to proposed development and production costs. The Secretary of Defense shall provide a report of these assessments, to specifically include whether any cost assessments determined that such proposed costs were unreasonable or unrealistic, to the congressional defense committees not later than 60 days after enactment of this Act and on a quarterly basis thereafter.

SEC. 8114. (a) The Deputy Under Secretary of Defense for Installations and Environment, in collaboration with the Secretary of Energy, shall conduct energy security pilot projects at facilities of the Department of Defense.

(b) In addition to the amounts provided elsewhere in this Act, $20,000,000, is appropriated to the Department of Defense for ''Operation and Maintenance, Defense-Wide'' for energy security pilot projects under subsection (a).

SEC. 8115. None of the funds appropriated or otherwise made available by this Act may be obligated or expended to pay a retired general or flag officer to serve as a senior mentor advising the Department of Defense unless such retired officer files a Standard Form 278 (or successor form concerning public financial disclosure under part 2634 of title 5, Code of Federal Regulations) to the Office of Government Ethics.

SEC. 8116. Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense, the Chief of the Air Force Reserve, and the Director of the National Guard Bureau, in collaboration with the Secretary of Agriculture and the Secretary of the Interior, shall submit to the Committees on Appropriations of the House and Senate, the House Committee on Agriculture, the Senate Committee on Agriculture, Nutrition and Forestry, the House Committee on Natural Resources, and the Senate Committee on Energy and Natural Resources a report of firefighting aviation assets. The report required under this section shall include each of the following:

(1) A description of the programming details necessary to obtain an appropriate mix of fixed wing and rotor wing firefighting assets needed to produce an effective aviation resource base to support the wildland fire management program into the future. Such programming details shall include the acquisition and contracting needs of the mix of aviation resources fleet, including the acquisition of up to 24 C–130Js equipped with the Mobile Airborne Fire Fighting System II (in this section referred to as ''MAFFS''), to be acquired over several fiscal years starting in fiscal year 2012.

(2) The costs associated with acquisition and contracting of the aviation assets described in paragraph (1).

(3) A description of the costs of the operation, maintenance, and sustainment of a fixed and rotor wing aviation fleet, including a C–130J/MAFFS II in an Air National Guard tactical airlift unit construct of 4, 6, or 8 C–130Js per unit starting in fiscal year 2012, projected out through fiscal year 2020. Such description shall include the projected costs associated with each of the following through fiscal year 2020:

(A) Crew ratio based on 4, 6, or 8 C–130J Air National Guard unit construct and requirement for full-time equivalent crews.

(B) Associated maintenance and other support personnel and requirement for full-time equivalent positions.

(C) Yearly flying hour model and the cost for use of a fixed and rotor wing aviation fleet, including C–130J in its MAFFS capacity supporting the United States Forest Service.

(D) Yearly flying hour model and cost for use of a C–130J in its capacity supporting Air National Guard tactical airlift training.

(E) Any other costs required to conduct both the airlift and firefighting missions, including the Air National Guard unit construct for C–130Js.

(4) Proposed program management, utilization, and cost share arrangements for the aircraft described in paragraph (1) for primary support of the Forest Service and secondary support, on an as available basis, for the Department of Defense, together with any proposed statutory language needed to authorize and effectuate the same.

(5) An integrated plan for the Forest Service and the Department of the Interior wildland fire management programs to operate the fire fighting air tanker assets referred to in this section.

SEC. 8117. Notwithstanding any other provision of this Act, to reflect savings from revised economic assumptions, the total amount appropriated in title II of this Act is hereby reduced by $532,000,000, the total amount appropriated in title III of this Act is hereby reduced by $564,000,000, and the total amount appropriated in title IV of this Act is hereby reduced by $381,000,000: *Provided*, That the Secretary of Defense shall allocate this reduction proportionally to each budget activity, activity group, subactivity group, and each program, project, and activity, within each appropriation account.

SEC. 8118. The total amount available in this Act for pay for civilian personnel of the Department of Defense for fiscal year 2011 shall be the amount otherwise appropriated or made available by this Act for such pay reduced by $723,000,000.

SEC. 8119. None of the funds appropriated or otherwise made available to the Department of Defense may be used for the disestablishment, closure, or realignment of the Joint Forces Command unless within 120 days of the enactment of this Act—

(1) the Secretary of Defense notifies the congressional defense committees of the proposed disestablishment, closure, or realignment of the Joint Forces Command; and

(2) the Secretary submits to the congressional defense committees a plan for the disestablishment, closure, or realignment of the Joint Forces Command, which plan shall contain at a minimum—

(A) an explanation of the projected savings of the proposed disestablishment, closure, or realignment;

(B) a cost-benefit analysis of the proposed disestablishment, closure, or realignment;

(C) the budgetary impact of the proposed disestablishment, closure, or realignment;

(D) the strategic and operational consequences of the proposed disestablishment, closure, or realignment; and

(E) an appropriate local economic assessment of the proposed disestablishment, closure, or realignment, which shall include at a minimum—

(i) a list of Federal, State, and local government departments and agencies that are required by statute or regulation to provide assistance and outreach for the community affected by the proposed disestablishment, closure, or realignment; and

(ii) a list of the contractors and businesses affected by the proposed disestablishment, closure, or realignment.

SEC. 8120. The explanatory statement regarding this Act, printed in the House of Representatives section of the Congressional Record on or about April 13, 2011, by the Chairman of the Committee on Appropriations of the House of Representatives, shall have the same effect with respect to the allocation of funds and implementation of this Act as if it were a Report of the Committee on Appropriations.

TITLE IX

OVERSEAS CONTINGENCY OPERATIONS

MILITARY PERSONNEL

MILITARY PERSONNEL, ARMY

For an additional amount for ''Military Personnel, Army'', $11,107,033,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

MILITARY PERSONNEL, NAVY

For an additional amount for ''Military Personnel, Navy'', $1,308,719,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

MILITARY PERSONNEL, MARINE CORPS

For an additional amount for ''Military Personnel, Marine Corps'', $732,920,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

MILITARY PERSONNEL, AIR FORCE

For an additional amount for ''Military Personnel, Air Force'', $1,843,442,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESERVE PERSONNEL, ARMY

For an additional amount for ''Reserve Personnel, Army'', $268,031,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESERVE PERSONNEL, NAVY

For an additional amount for ''Reserve Personnel, Navy'', $48,912,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESERVE PERSONNEL, MARINE CORPS

For an additional amount for ''Reserve Personnel, Marine Corps'', $45,437,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESERVE PERSONNEL, AIR FORCE

For an additional amount for ''Reserve Personnel, Air Force'', $27,002,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

NATIONAL GUARD PERSONNEL, ARMY

For an additional amount for ''National Guard Personnel, Army'', $853,022,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

NATIONAL GUARD PERSONNEL, AIR FORCE

For an additional amount for ''National Guard Personnel, Air Force'', $16,860,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE

OPERATION AND MAINTENANCE, ARMY

For an additional amount for ''Operation and Maintenance, Army'', $59,162,782,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, NAVY

For an additional amount for ''Operation and Maintenance, Navy'', $8,970,724,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, MARINE CORPS

For an additional amount for ''Operation and Maintenance, Marine Corps'', $4,008,022,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, AIR FORCE

For an additional amount for ''Operation and Maintenance, Air Force'', $12,969,643,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, DEFENSE-WIDE

For an additional amount for ''Operation and Maintenance, Defense-Wide'', $9,276,990,000: *Provided*, That each amount in this section is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010: *Provided further*, That of the funds provided under this heading:

(1) Not to exceed $12,500,000 for the Combatant Commander Initiative Fund, to be used in support of Operation New Dawn and Operation Enduring Freedom.

(2) Not to exceed $1,600,000,000, to remain available until expended, for payments to reimburse key cooperating nations for logistical, military, and other support, including access provided to United States military operations in support of Operation New Dawn and Operation Enduring Freedom, notwithstanding any other provision of law: *Provided*, That such reimbursement payments may be made in such amounts as the Secretary of Defense, with the concurrence of the Secretary of State, and in consultation with the Director of the Office of Management and Budget, may determine, in his discretion, based on documentation determined by the Secretary of Defense to adequately account for the support provided, and such determination is final and conclusive upon the accounting officers of the United States, and 15 days following notification to the appropriate congressional committees: *Provided further*, That the requirement to provide notification shall not apply with respect to a reimbursement for access based on an international agreement: *Provided further*, That these funds may be used for the purpose of providing specialized training and procuring supplies and specialized equipment and providing such supplies and loaning such equipment on a non-reimbursable basis to coalition forces supporting United States military operations in Iraq and Afghanistan, and 15 days following notification to the appropriate congressional committees: *Provided further*, That the Secretary of Defense shall provide quarterly reports to the congressional defense committees on the use of funds provided in this paragraph.

OPERATION AND MAINTENANCE, ARMY RESERVE

For an additional amount for ''Operation and Maintenance, Army Reserve'', $206,784,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, NAVY RESERVE

For an additional amount for ''Operation and Maintenance, Navy Reserve'', $93,559,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, MARINE CORPS RESERVE

For an additional amount for ''Operation and Maintenance, Marine Corps Reserve'',

$29,685,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, AIR FORCE RESERVE

For an additional amount for ''Operation and Maintenance, Air Force Reserve'', $188,807,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD

For an additional amount for ''Operation and Maintenance, Army National Guard'', $497,849,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OPERATION AND MAINTENANCE, AIR NATIONAL GUARD

For an additional amount for ''Operation and Maintenance, Air National Guard'', $402,983,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

AFGHANISTAN INFRASTRUCTURE FUND

(INCLUDING TRANSFER OF FUNDS)

There is hereby established in the Treasury of the United States the ''Afghanistan Infrastructure Fund''. For the ''Afghanistan Infrastructure Fund'', $400,000,000, to remain available until September 30, 2012: *Provided*, That such sums shall be available for infrastructure projects in Afghanistan, notwithstanding any other provision of law, which shall be undertaken by the Secretary of State, unless the Secretary of State and the Secretary of Defense jointly decide that a specific project will be undertaken by the Department of Defense: *Provided further*, That the infrastructure referred to in the preceding proviso is in support of the counterinsurgency strategy, requiring funding for facility and infrastructure projects, including, but not limited to, water, power, and transportation projects and related maintenance and sustainment costs: *Provided further*, That the authority to undertake such infrastructure projects is in addition to any other authority to provide assistance to foreign nations: *Provided further*, That any projects funded by this appropriation shall be jointly formulated and concurred in by the Secretary of State and Secretary of Defense: *Provided further*, That funds may be transferred to the Department of State for purposes of undertaking projects, which funds shall be considered to be economic assistance under the Foreign Assistance Act of 1961 for purposes of making available the administrative authorities contained in that Act: *Provided further*, That the transfer authority in the preceding proviso is in addition to any other authority available to the Department of Defense to transfer funds: *Provided further*, That any unexpended funds transferred to the Secretary of State under this authority shall be returned to the Afghanistan Infrastructure Fund if the Secretary of State, in coordination with the Secretary of Defense, determines that the project cannot be implemented for any reason, or that the project no longer supports the counterinsurgency strategy in Afghanistan: *Provided further*, That any funds returned to the Secretary of Defense under the previous proviso shall be available for use under this appropriation and shall be treated in the same manner as funds not transferred to the Secretary of State: *Provided further*, That contributions of funds for the purposes provided herein to the Secretary of State in accordance with section 635(d) of the Foreign Assistance Act from any person, foreign government, or international organization may be credited to this Fund, to remain available until expended, and used for such purposes: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to making transfers to or from, or obligations from the Fund, notify the appropriate committees of Congress in writing of the details of any such transfer: *Provided further*, That the ''appropriate committees of Congress'' are the Committees on Armed Services, Foreign Relations and Appropriations of the Senate and the Committees on Armed Services, Foreign Affairs and Appropriations of the House of Representatives: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

AFGHANISTAN SECURITY FORCES FUND

For the ''Afghanistan Security Forces Fund'', $11,619,283,000, to remain available until September 30, 2012: *Provided*, That such funds shall be available to the Secretary of Defense, notwithstanding any other provision of law, for the purpose of allowing the Commander, Combined Security Transition Command—Afghanistan, or the Secretary's designee, to provide assistance, with the concurrence of the Secretary of State, to the security forces of Afghanistan, including the provision of equipment, supplies, services, training, facility and infrastructure repair, renovation, and construction, and funding: *Provided further*, That the authority to provide assistance under this heading is in addition to any other authority to provide assistance to foreign nations: *Provided further*, That up to $15,000,000 of these funds may be available for coalition police trainer life support costs: *Provided further*, That contributions of funds for the purposes provided herein from any person, foreign government, or international organization may be credited to this Fund and used for such purposes: *Provided further*, That the Secretary of Defense shall notify the congressional defense committees in writing upon the receipt and upon the obligation of any contribution, delineating the sources and amounts of the funds received and the specific use of such contributions: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to obligating from this appropriation account, notify the congressional defense committees in writing of the details of any such obligation: *Provided further*, That the Secretary of Defense shall notify the congressional defense committees of any proposed new projects or transfer of funds between budget sub-activity groups in excess of $20,000,000: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

IRAQ SECURITY FORCES FUND

For the ''Iraq Security Forces Fund'', $1,500,000,000, to remain available until September 30, 2012: *Provided*, That such funds shall be available to the Secretary of Defense, notwithstanding any other provision of law, for the purpose of allowing the Commander, United States Forces-Iraq, or the Secretary's designee, to provide assistance, with the concurrence of the Secretary of State, to the security forces of Iraq, including the provision of equipment, supplies, services, training, facility and infrastructure repair, and renovation: *Provided further*, That the authority to provide assistance under this heading is in addition to any other authority to provide assistance to foreign nations: *Provided further*, That contributions of funds for the purposes provided herein from any person, foreign government, or international organization may be credited to this Fund and used for such purposes: *Provided further*, That the Secretary shall notify the congressional defense committees in writing upon the receipt and upon the obligation of any contribution, delineating the sources and amounts of the funds received and the specific use of such contributions: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to obligating from this appropriation account, notify the congressional defense committees in writing of the details of any such obligation: *Provided further*, That the Secretary of Defense shall notify the congressional defense committees of any proposed new projects or transfer of funds between budget sub-activity groups in excess of $20,000,000: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PAKISTAN COUNTERINSURGENCY FUND

(INCLUDING TRANSFER OF FUNDS)

For the ''Pakistan Counterinsurgency Fund'', $800,000,000, to remain available until September 30, 2012: *Provided*, That such funds shall be available to the Secretary of Defense, with the concurrence of the Secretary of State, notwithstanding any other provision of law, for the purpose of allowing the Secretary of Defense, or the Secretary's designee, to provide assistance to Pakistan's security forces; including program management and the provision of equipment, supplies, services, training, and funds; and facility and infrastructure repair, renovation, and construction to build the counterinsurgency capability of Pakistan's military and Frontier Corps: *Provided further*, That the authority to provide assistance under this provision is in addition to any other authority to provide assistance to foreign nations: *Provided further*, That the Secretary of Defense may transfer funds provided herein to appropriations for operation and maintenance; procurement; research, development, test and evaluation; defense working capital funds; and to the Department of State, Pakistan Counterinsurgency Capability Fund to accomplish the purpose provided herein: *Provided further*, That the transfer authority in

the preceding proviso is in addition to any other authority available to the Department of Defense to transfer funds: *Provided further*, That funds so transferred shall be merged with and be available for the same purposes and for the same time period as the appropriation or fund to which transferred: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to making transfers from this appropriation account, notify the Committees on Appropriations in writing of the details of any such transfer: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT

AIRCRAFT PROCUREMENT, ARMY

For an additional amount for ''Aircraft Procurement, Army'', $2,720,138,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

MISSILE PROCUREMENT, ARMY

For an additional amount for ''Missile Procurement, Army'', $343,828,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY

For an additional amount for ''Procurement of Weapons and Tracked Combat Vehicles, Army'', $896,996,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT OF AMMUNITION, ARMY

For an additional amount for ''Procurement of Ammunition, Army'', $369,885,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OTHER PROCUREMENT, ARMY

For an additional amount for ''Other Procurement, Army'', $6,401,832,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

AIRCRAFT PROCUREMENT, NAVY

For an additional amount for ''Aircraft Procurement, Navy'', $1,169,549,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

WEAPONS PROCUREMENT, NAVY

For an additional amount for ''Weapons Procurement, Navy'', $90,502,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT OF AMMUNITION, NAVY AND MARINE CORPS

For an additional amount for ''Procurement of Ammunition, Navy and Marine Corps'', $558,024,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OTHER PROCUREMENT, NAVY

For an additional amount for ''Other Procurement, Navy'', $316,835,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT, MARINE CORPS

For an additional amount for ''Procurement, Marine Corps'', $1,589,119,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

AIRCRAFT PROCUREMENT, AIR FORCE

For an additional amount for ''Aircraft Procurement, Air Force'', $1,991,955,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

MISSILE PROCUREMENT, AIR FORCE

For an additional amount for ''Missile Procurement, Air Force'', $56,621,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT OF AMMUNITION, AIR FORCE

For an additional amount for ''Procurement of Ammunition, Air Force'', $292,959,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OTHER PROCUREMENT, AIR FORCE

For an additional amount for ''Other Procurement, Air Force'', $2,868,593,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

PROCUREMENT, DEFENSE-WIDE

For an additional amount for ''Procurement, Defense-Wide'', $1,262,499,000, to remain available until September 30, 2013: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

NATIONAL GUARD AND RESERVE EQUIPMENT

For procurement of aircraft, missiles, tracked combat vehicles, ammunition, other weapons and other procurement for the reserve components of the Armed Forces, $850,000,000, to remain available for obligation until September 30, 2013, of which $250,000,000 shall be available only for the Army National Guard: *Provided*, That the Chiefs of National Guard and Reserve components shall, not later than 30 days after the enactment of this Act, individually submit to the congressional defense committees the modernization priority assessment for their respective National Guard or Reserve component: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

MINE RESISTANT AMBUSH PROTECTED VEHICLE FUND

(INCLUDING TRANSFER OF FUNDS)

For the Mine Resistant Ambush Protected Vehicle Fund, $3,415,000,000, to remain available until September 30, 2012: *Provided*, That such funds shall be available to the Secretary of Defense, notwithstanding any other provision of law, to procure, sustain, transport, and field Mine Resistant Ambush Protected vehicles: *Provided further*, That the Secretary shall transfer such funds only to appropriations made available in this or any other Act for operation and maintenance; procurement; research, development, test and evaluation; and defense working capital funds to accomplish the purpose provided herein: *Provided further*, That such transferred funds shall be merged with and be available for the same purposes and the same time period as the appropriation to which transferred: *Provided further*, That this transfer authority is in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary shall, not fewer than 10 days prior to making transfers from this appropriation,

notify the congressional defense committees in writing of the details of any such transfer: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY

For an additional amount for ''Research, Development, Test and Evaluation, Army'', $143,234,000, to remain available until September 30, 2012: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, NAVY

For an additional amount for ''Research, Development, Test and Evaluation, Navy'', $104,781,000, to remain available until September 30, 2012: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, AIR FORCE

For an additional amount for ''Research, Development, Test and Evaluation, Air Force'', $484,382,000, to remain available until September 30, 2012: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

RESEARCH, DEVELOPMENT, TEST AND EVALUATION, DEFENSE-WIDE

For an additional amount for ''Research, Development, Test and Evaluation, Defense-Wide'', $222,616,000, to remain available until September 30, 2012: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

REVOLVING AND MANAGEMENT FUNDS

DEFENSE WORKING CAPITAL FUNDS

For an additional amount for ''Defense Working Capital Funds'', $485,384,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OTHER DEPARTMENT OF DEFENSE PROGRAMS

DEFENSE HEALTH PROGRAM

For an additional amount for ''Defense Health Program'', $1,422,092,000, of which $1,398,092,000 shall be for operation and maintenance, to remain available until September 30, 2011, and of which $24,000,000 shall be for research, development, test and evaluation, to remain available until September 30, 2012: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE

For an additional amount for ''Drug Interdiction and Counter-Drug Activities, Defense'', $440,510,000, to remain available until September 30, 2012: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

JOINT IMPROVISED EXPLOSIVE DEVICE DEFEAT FUND

(INCLUDING TRANSFER OF FUNDS)

For the ''Joint Improvised Explosive Device Defeat Fund'', $2,793,768,000, to remain available until September 30, 2013: *Provided*, That such funds shall be available to the Secretary of Defense, notwithstanding any other provision of law, for the purpose of allowing the Director of the Joint Improvised Explosive Device Defeat Organization to investigate, develop and provide equipment, supplies, services, training, facilities, personnel and funds to assist United States forces in the defeat of improvised explosive devices: *Provided further*, That the Secretary of Defense may transfer funds provided herein to appropriations for military personnel; operation and maintenance; procurement; research, development, test and evaluation; and defense working capital funds to accomplish the purpose provided herein: *Provided further*, That this transfer authority is in addition to any other transfer authority available to the Department of Defense: *Provided further*, That the Secretary of Defense shall, not fewer than 15 days prior to making transfers from this appropriation, notify the congressional defense committees in writing of the details of any such transfer: *Provided further*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

OFFICE OF THE INSPECTOR GENERAL

For an additional amount for the ''Office of the Inspector General'', $10,529,000: *Provided*, That each amount in this paragraph is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

GENERAL PROVISIONS—THIS TITLE

SEC. 9001. Notwithstanding any other provision of law, funds made available in this title are in addition to amounts appropriated or otherwise made available for the Department of Defense for fiscal year 2011.

(INCLUDING TRANSFER OF FUNDS)

SEC. 9002. Upon the determination of the Secretary of Defense that such action is necessary in the national interest, the Secretary may, with the approval of the Office of Management and Budget, transfer up to $4,000,000,000 between the appropriations or funds made available to the Department of Defense in this title: *Provided*, That the Secretary shall notify the Congress promptly of each transfer made pursuant to the authority in this section: *Provided further*, That the authority provided in this section is in addition to any other transfer authority available to the Department of Defense and is subject to the same terms and conditions as the authority provided in the Department of Defense Appropriations Act, 2011.

SEC. 9003. Supervision and administration costs associated with a construction project funded with appropriations available for operation and maintenance or the ''Afghanistan Security Forces Fund'' provided in this Act and executed in direct support of overseas contingency operations in Afghanistan, may be obligated at the time a construction contract is awarded: *Provided*, That for the purpose of this section, supervision and administration costs include all in-house Government costs.

SEC. 9004. From funds made available in this title, the Secretary of Defense may purchase for use by military and civilian employees of the Department of Defense in Iraq and Afghanistan: (a) passenger motor vehicles up to a limit of $75,000 per vehicle; and (b) heavy and light armored vehicles for the physical security of personnel or for force protection purposes up to a limit of $250,000 per vehicle, notwithstanding price or other limitations applicable to the purchase of passenger carrying vehicles.

SEC. 9005. Not to exceed $500,000,000 of the amount appropriated in this title under the heading ''Operation and Maintenance, Army'' may be used, notwithstanding any other provision of law, to fund the Commander's Emergency Response Program (CERP), for the purpose of enabling military commanders in Iraq and Afghanistan to respond to urgent, small scale, humanitarian relief and reconstruction requirements within their areas of responsibility: *Provided*, That projects (including any ancillary or related elements in connection with such project) executed under this authority shall not exceed $20,000,000: *Provided further*, That not later than 45 days after the end of each fiscal year quarter, the Secretary of Defense shall submit to the congressional defense committees a report regarding the source of funds and the allocation and use of funds during that quarter that were made available pursuant to the authority provided in this section or under any other provision of law for the purposes described herein: *Provided further*, That, not later than 30 days after the end of each month, the Army shall submit to the congressional defense committees monthly commitment, obligation, and expenditure data for the Commander's Emergency Response Program in Iraq and Afghanistan: *Provided further*, That not less than 15 days before making funds available pursuant to the authority provided in this section or under any other provision of law for the purposes described herein for a project with a total anticipated cost for completion of $5,000,000 or more, the Secretary shall submit to the congressional defense committees a written notice containing each of the following:

(1) The location, nature and purpose of the proposed project, including how the project is intended to advance the military campaign plan for the country in which it is to be carried out.

(2) The budget, implementation timeline with milestones, and completion date for the proposed project, including any other CERP funding that has been or is anticipated to be contributed to the completion of the project.

(3) A plan for the sustainment of the proposed project, including the agreement with either the host nation, a non-Department of Defense agency of the United States Government or a third party contributor to finance the sustainment of the activities and maintenance of any equipment or facilities to be provided through the proposed project.

SEC. 9006. Funds available to the Department of Defense for operation and maintenance may be used, notwithstanding any other provision of law, to provide supplies, services, transportation, including airlift and sealift, and other logistical support to coalition forces supporting military and stability operations in Iraq and Afghanistan: *Provided*, That the Secretary of Defense shall provide quarterly reports to the congressional defense committees regarding support provided under this section.

SEC. 9007. None of the funds appropriated or otherwise made available by this or any other Act shall be obligated or expended by the United States Government for a purpose as follows:

(1) To establish any military installation or base for the purpose of providing for the permanent stationing of United States Armed Forces in Iraq.

(2) To exercise United States control over any oil resource of Iraq.

(3) To establish any military installation or base for the purpose of providing for the permanent stationing of United States Armed Forces in Afghanistan.

SEC. 9008. None of the funds made available in this Act may be used in contravention of the following laws enacted or regulations promulgated to implement the United Nations Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (done at New York on December 10, 1984):

(1) Section 2340A of title 18, United States Code.

(2) Section 2242 of the Foreign Affairs Reform and Restructuring Act of 1998 (division G of Public Law 105–277; 112 Stat. 2681–822; 8 U.S.C. 1231 note) and regulations prescribed thereto, including regulations under part 208 of title 8, Code of Federal Regulations, and part 95 of title 22, Code of Federal Regulations.

(3) Sections 1002 and 1003 of the Department of Defense, Emergency Supplemental Appropriations to Address Hurricanes in the Gulf of Mexico, and Pandemic Influenza Act, 2006 (Public Law 109–148).

SEC. 9009. (a) The Secretary of Defense shall submit to the congressional defense committees not later than 45 days after the end of each fiscal quarter a report on the proposed use of all funds appropriated by this or any prior Act under each of the headings Iraq Security Forces Fund, Afghanistan Security Forces Fund, Afghanistan Infrastructure Fund, and Pakistan Counterinsurgency Fund on a project-by-project basis, for which the obligation of funds is anticipated during the 3-month period from such date, including estimates for the accounts referred to in this section of the costs required to complete each such project.

(b) The report required by this subsection shall include the following:

(1) The use of all funds on a project-by-project basis for which funds appropriated under the headings referred to in subsection (a) were obligated prior to the submission of the report, including estimates for the accounts referred to in subsection (a) of the costs to complete each project.

(2) The use of all funds on a project-by-project basis for which funds were appropriated under the headings referred to in subsection (a) in prior appropriations Acts, or for which funds were made available by transfer, reprogramming, or allocation from other headings in prior appropriations Acts, including estimates for the accounts referred to in subsection (a) of the costs to complete each project.

(3) An estimated total cost to train and equip the Iraq, Afghanistan, and Pakistan security forces, disaggregated by major program and sub-elements by force, arrayed by fiscal year.

SEC. 9010. Funds made available in this title to the Department of Defense for operation and maintenance may be used to purchase items having an investment unit cost of not more than $250,000: *Provided*, That, upon determination by the Secretary of Defense that such action is necessary to meet the operational requirements of a Commander of a Combatant Command engaged in contingency operations overseas, such funds may be used to purchase items having an investment item unit cost of not more than $500,000.

(INCLUDING TRANSFER OF FUNDS)

SEC. 9011. Of the funds appropriated by this Act for the Office of the Director of National Intelligence, $3,375,000 is available, as specified in the classified annex, for transfer to other departments and agencies of the Federal Government.

SEC. 9012. (a) The Task Force for Business and Stability Operations in Afghanistan may, subject to the direction and control of the Secretary of Defense and with the concurrence of the Secretary of State, carry out projects in fiscal year 2011 to assist the commander of the United States Central Command in developing a link between United States military operations in Afghanistan under Operation Enduring Freedom and the economic elements of United States national power in order to reduce violence, enhance stability, and restore economic normalcy in Afghanistan through strategic business and economic opportunities.

(b) The projects carried out under paragraph (a) may include projects that facilitate private investment, industrial development, banking and financial system development, agricultural diversification and revitalization, and energy development in and with respect to Afghanistan.

(c) The Secretary may use up to $150,000,000 of the funds available for overseas contingency operations in ''Operation and Maintenance, Army'' for additional activities to carry out projects under paragraph (a).

SEC. 9013. (a) Not more than 85 percent of the funds provided in this title for Operation and Maintenance may be available for obligation or expenditure until the date on which the Secretary of Defense submits the report under subsection (b).

(b) Not later than 120 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a report on contractor employees in the United States Central Command, including—

(1) the number of employees of a contractor awarded a contract by the Department of Defense (including subcontractor employees) who are employed at the time of the report in the area of operations of the United States Central Command, including a list of the number of such employees in each of Iraq, Afghanistan, and all other areas of operations of the United States Central Command; and

(2) for each fiscal year quarter beginning on the date of the report and ending on September 30, 2012—

(A) the number of such employees planned by the Secretary to be employed during each such period in each of Iraq, Afghanistan, and all other areas of operations of the United States Central Command; and

(B) an explanation of how the number of such employees listed under subparagraph (A) relates to the planned number of military personnel in such locations.

SEC. 9014. From funds made available in this title to the Department of Defense for operation and maintenance, up to $129,100,000 may be used by the Secretary of Defense, notwithstanding any other provision of law, to support the United States Government transition activities in Iraq by undertaking facilities renovation and construction associated with establishing Office of Security Cooperation locations, at no more than four sites, in Iraq: *Provided*, That not less than 15 days before making funds available pursuant to the authority provided in this section, the Secretary shall submit to the congressional defense committees a written notice containing a detailed justification and timeline for each proposed site and the source of funds.

SEC. 9015. Any reference to ''this Act'' in this division shall apply solely to this division.

This division may be cited as the ''Department of Defense Appropriations Act, 2011''.

DIVISION B—FULL-YEAR CONTINUING APPROPRIATIONS, 2011

The following sums are hereby appropriated, out of any money in the Treasury not otherwise appropriated, and out of applicable corporate or other revenues, receipts, and funds, for the several departments, agencies, corporations, and other organizational units of Government for fiscal year 2011, and for other purposes, namely:

TITLE I—GENERAL PROVISIONS

SEC. 1101. (a) Such amounts as may be necessary, at the level specified in subsection (c) and under the authority and conditions provided in applicable appropriations Acts for fiscal year 2010, for projects or activities (including the costs of direct loans and loan guarantees) that are not otherwise specifically provided for, and for which appropriations, funds, or other authority were made available in the following appropriations Acts:

(1) The Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2010 (Public Law 111–80).

(2) The Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85).

(3) The Department of Homeland Security Appropriations Act, 2010 (Public Law 111–83).

(4) The Department of the Interior, Environment, and Related Agencies Appropriations Act, 2010 (division A of Public Law 111–88).

(5) The Legislative Branch Appropriations Act, 2010 (division A of Public Law 111–68).

(6) The Consolidated Appropriations Act, 2010 (Public Law 111–117).

(7) Section 102(c) (except the last proviso relating to waiver of fees) of chapter 1 of title I of the Supplemental Appropriations Act, 2010 (Public Law 111–212) that addresses guaranteed loans in the rural housing insurance fund.

(b) For purposes of this division, the term ''level'' means an amount.

(c) The level referred to in subsection (a) shall be the amounts appropriated in the appropriations Acts referred to in such subsection, including transfers and obligation limitations, except that—

(1) such level shall not include any amount previously designated as an emergency requirement and necessary to meet emergency needs pursuant to sections 403(a) and 423(b) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010; and

(2) such level shall be calculated without regard to any rescission or cancellation of funds or contract authority.

SEC. 1102. Appropriations made by section 1101 shall be available to the extent and in the manner that would be provided by the pertinent appropriations Act.

SEC. 1103. Appropriations provided by this division that, in the applicable appropriations Act for fiscal year 2010, carried a multiple-year or no-year period of availability shall retain a comparable period of availability.

SEC. 1104. Except as otherwise expressly provided in this division, the requirements, authorities, conditions, limitations, and other provisions of the appropriations Acts referred to in section 1101(a) shall continue in effect through the date specified in section 1106.

SEC. 1105. No appropriation or funds made available or authority granted pursuant to section 1101 shall be used to initiate or resume any project or activity for which appropriations, funds, or other authority were specifically prohibited during fiscal year 2010.

SEC. 1106. Unless otherwise provided for in this division or in the applicable appropriations Act, appropriations and funds made available and authority granted pursuant to this division shall be available through September 30, 2011.

SEC. 1107. Expenditures made pursuant to the Continuing Appropriations Act, 2011 (Public Law 111–242), shall be charged to the applicable appropriation, fund, or authorization provided by this division.

SEC. 1108. Funds appropriated by this division may be obligated and expended notwithstanding section 10 of Public Law 91–672 (22 U.S.C. 2412), section 15 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2680), section 313 of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (22 U.S.C. 6212), and section 504(a)(1) of the National Security Act of 1947 (50 U.S.C. 414(a)(1)).

SEC. 1109. (a) For entitlements and other mandatory payments whose budget authority was provided in appropriations Acts for fiscal year 2010, and for activities under the Food and Nutrition Act of 2008, the levels established by section 1101 shall be the amounts necessary to maintain program levels under current law and under the authority and conditions provided in the applicable appropriations Acts for fiscal year 2010.

(b) In addition to the amounts otherwise provided by section 1101, the following amounts shall be available for the following accounts for advance payments for the first quarter of fiscal year 2012:

(1) ''Department of Labor, Employment Standards Administration, Special Benefits for Disabled Coal Miners'', for benefit payments under title IV of the Federal Mine Safety and Health Act of 1977, $41,000,000, to remain available until expended.

(2) ''Department of Health and Human Services, Centers for Medicare and Medicaid Services, Grants to States for Medicaid'', for payments to States or in the case of section 1928 on behalf of States under title XIX of the Social Security Act, $86,445,289,000, to remain available until expended.

(3) ''Department of Health and Human Services, Administration for Children and Families, Payments to States for Child Support Enforcement and Family Support Programs'', for payments to States or other non-Federal entities under titles I, IV–D, X, XI, XIV, and XVI of the Social Security Act and the Act of July 5, 1960 (24 U.S.C. ch. 9), $1,200,000,000, to remain available until expended.

(4) ''Department of Health and Human Services, Administration for Children and Families, Payments to States for Foster Care and Permanency'', for payments to States or other non-Federal entities under title IV–E of the Social Security Act, $1,850,000,000.

(5) ''Social Security Administration, Supplemental Security Income Program'', for benefit payments under title XVI of the Social Security Act, $13,400,000,000, to remain available until expended.

SEC. 1110. Amounts incorporated by reference in this division that were previously designated as available for overseas deployments and other activities pursuant to S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010, are designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

SEC. 1111. Any language specifying an earmark in an appropriations Act for fiscal year 2010, or in a committee report or joint explanatory statement accompanying such an Act, shall have no legal effect with respect to funds appropriated by this division. For purposes of this section, the term ''earmark'' means a congressional earmark or congressionally directed spending item, as defined in clause 9(e) of rule XXI of the Rules of the House of Representatives and paragraph 5(a) of rule XLIV of the Standing Rules of the Senate.

SEC. 1112. Notwithstanding section 1101, none of the funds appropriated or otherwise made available in this division or any other Act (including division A of this Act) may be used to transfer, release, or assist in the transfer or release to or within the United States, its territories, or possessions Khalid Sheikh Mohammed or any other detainee who—

(1) is not a United States citizen or a member of the Armed Forces of the United States; and

(2) is or was held on or after June 24, 2009, at the United States Naval Station, Guantanamo Bay, Cuba, by the Department of Defense.

SEC. 1113. (a)(1) Notwithstanding section 1101, except as provided in paragraph (2), none of the funds appropriated or otherwise made available in this division or any other Act (including division A of this Act) may be used to transfer any individual detained at Guantanamo to the custody or effective control of the individual's country of origin, any other foreign country, or any other foreign entity unless the Secretary of Defense submits to Congress the certification described in subsection (b) by not later than 30 days before the transfer of the individual.

(2) Paragraph (1) shall not apply to any action taken by the Secretary of Defense to transfer any individual detained at Guantanamo to effectuate an order affecting the disposition of the individual that is issued by a court or competent tribunal of the United States having lawful jurisdiction. The Secretary of Defense shall notify Congress promptly upon issuance of any such order.

(b) The certification described in this subsection is a written certification made by the Secretary of Defense, with the concurrence of the Secretary of State, that the government of the foreign country or the recognized leadership of the foreign entity to which the individual detained at Guantanamo is to be transferred—

(1) is not a designated state sponsor of terrorism or a designated foreign terrorist organization;

(2) maintains effective control over each detention facility in which an individual is to be detained if the individual is to be housed in a detention facility;

(3) is not, as of the date of the certification, facing a threat that is likely to substantially affect its ability to exercise control over the individual;

(4) has agreed to take effective steps to ensure that the individual cannot take action to threaten the United States, its citizens, or its allies in the future;

(5) has taken such steps as the Secretary determines are necessary to ensure that the individual cannot engage or re-engage in any terrorist activity; and

(6) has agreed to share any information with the United States that—

(A) is related to the individual or any associates of the individual; and

(B) could affect the security of the United States, its citizens, or its allies.

(c)(1) Except as provided in paragraph (3), none of the funds appropriated or otherwise made available in this division or any other Act (including division A of this Act) may be used to transfer any individual detained at Guantanamo to the custody or effective control of the individual's country of origin, any other foreign country, or any other foreign entity if there is a confirmed case of any individual who was detained at United States Naval Station, Guantanamo Bay, Cuba, at any time after September 11, 2001, who was transferred to the foreign country or entity and subsequently engaged in any terrorist activity.

(2) The Secretary of Defense may waive the prohibition in paragraph (1) if the Secretary determines that such a transfer is in the national security interests of the United States and includes, as part of the certification described in subsection (b) relating to such transfer, the determination of the Secretary under this paragraph.

(3) Paragraph (1) shall not apply to any action taken by the Secretary to transfer any individual detained at Guantanamo to effectuate an order affecting the disposition of the individual that is issued by a court or competent tribunal of the United States having lawful jurisdiction. The Secretary shall notify Congress promptly upon issuance of any such order.

(d) For the purposes of this section:

(1) The term ''individual detained at Guantanamo'' means any individual who is located at United States Naval Station, Guantanamo Bay, Cuba, as of October 1, 2009, who—

(A) is not a citizen of the United States or a member of the Armed Forces of the United States; and

(B) is—

(i) in the custody or under the effective control of the Department of Defense; or

(ii) otherwise under detention at United States Naval Station, Guantanamo Bay, Cuba.

(2) The term ''foreign terrorist organization'' means any organization so designated by the Secretary of State under section 219 of the Immigration and Nationality Act (8 U.S.C. 1189).

SEC. 1114. (a) Notwithstanding section 1101, none of the funds appropriated or otherwise made available by this division or any other Act (including division A of this Act) may be used to construct or modify any facility in the United States, its territories, or possessions to house any individual described in subsection (c) for the purposes of detention or imprisonment in the custody or under the effective control of the Department of Defense.

(b) The prohibition in subsection (a) shall not apply to any modification of facilities at United States Naval Station, Guantanamo Bay, Cuba.

(c) An individual described in this subsection is any individual who, as of June 24, 2009, is located at United States Naval Station, Guantanamo Bay, Cuba, and who—

(1) is not a citizen of the United States or a member of the Armed Forces of the United States; and

(2) is—

(A) in the custody or under the effective control of the Department of Defense; or

(B) otherwise under detention at United States Naval Station, Guantanamo Bay, Cuba.

SEC. 1115. Section 1(b)(2) of the Passport Act of June 4, 1920 (22 U.S.C. 214(b)(2)) shall be applied by substituting the date specified in section 1106 of this division for ''September 30, 2010''.

SEC. 1116. (a) Section 1115(d) of Public Law 111–32 shall be applied by substituting the date specified in section 1106 of this division for ''October 1, 2010''.

(b) Section 824(g) of the Foreign Service Act of 1980 (22 U.S.C. 4064(g)) shall be applied by substituting the date specified in section 1106 of this division for ''October 1, 2010'' in paragraph (2).

(c) Section 61(a) of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2733(a)) shall be applied by substituting the date specified in section 1106 of this division for ''October 1, 2010'' in paragraph (2).

(d) Section 625(j)(1) of the Foreign Assistance Act of 1961 (22 U.S.C. 2385(j)(1)) shall be applied by substituting the date specified in section 1106 of this division for ''October 1, 2010'' in subparagraph (B).

SEC. 1117. The authority provided by section 1334 of the Foreign Affairs Reform and Restructuring Act of 1998 (22 U.S.C. 6553) shall remain in effect through the date specified in section 1106 of this division.

SEC. 1118. With respect to any discretionary account for which advance appropriations were provided for fiscal year 2011 or 2012 in an appropriations Act for fiscal year 2010, in addition to amounts otherwise made available by this Act, advance appropriations are provided in the same amount for fiscal year 2012 or 2013, respectively, with a comparable period of availability.

SEC. 1119. (a) ACROSS-THE-BOARD RESCISSIONS.—There is hereby rescinded an amount equal to 0.2 percent of—

(1) the budget authority provided for fiscal year 2011 for any discretionary account of this division; and

(2) the budget authority provided in any advance appropriation for fiscal year 2011 for any discretionary account in any prior fiscal year appropriation Act.

(b) PROPORTIONATE APPLICATION.—Any rescission made by subsection (a) shall be applied proportionately—

(1) to each discretionary account and each item of budget authority described in such subsection; and

(2) within each such account and item, to each program, project, and activity (with programs, projects, and activities as delineated in the appropriation Act or accompanying reports referenced in section 1101 covering such account or item).

(c) EXCEPTIONS.—This section shall not apply to—

(1) discretionary authority appropriated or otherwise made available by division A of this Act; or

(2) discretionary authority appropriated or otherwise made available by division B of this Act and designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

(d) OMB REPORT.—Within 30 days after the date of the enactment of this section, the Director of the Office of Management and Budget shall submit to the Committees on Appropriations of the House of Representatives and the Senate a report specifying the account and amount of each rescission made pursuant to this section.

TITLE II—AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION, AND RELATED AGENCIES

SEC. 1201. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of the Secretary'' shall be $5,061,000.

SEC. 1202. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of Tribal Relations'' shall be $499,000.

SEC. 1203. Notwithstanding section 1101, the level for ''Agricultural Programs, Executive Operations, Office of Chief Economist'' shall be $12,032,000.

SEC. 1204. Notwithstanding section 1101, the level for ''Agricultural Programs, Executive Operations, National Appeals Division'' shall be $14,254,000.

SEC. 1205. Notwithstanding section 1101, the level for ''Agricultural Programs, Executive Operations, Office of Homeland Security'' shall be $1,499,000.

SEC. 1206. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of Advocacy and Outreach'' shall be $1,425,000.

SEC. 1207. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of the Chief Information Officer'' shall be $40,000,000.

SEC. 1208. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of the Chief Financial Officer'' shall be $6,260,000.

SEC. 1209. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of Civil Rights'' shall be $22,737,000.

SEC. 1210. Notwithstanding section 1101, the level for ''Agricultural Programs, Agriculture Buildings and Facilities and Rental Payments'' shall be $246,970,000, of which $178,470,000 shall be available for payments to the General Services Administration for rent; of which $13,500,000 shall be for payment to the Department of Homeland Security for building and security activities; and of which $55,000,000 shall be for buildings operations and maintenance expenses.

SEC. 1211. Notwithstanding section 1101, the level for ''Agricultural Programs, Hazardous Materials Management'' shall be $4,000,000.

SEC. 1212. Notwithstanding section 1101, the level for ''Agricultural Programs, Departmental Administration'' shall be $29,706,000.

SEC. 1213. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of the Assistant Secretary for Congressional Relations'' shall be $3,877,000.

SEC. 1214. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of Communications'' shall be $9,499,000.

SEC. 1215. Notwithstanding section 1101, the level for ''Agricultural Programs, Office of the General Counsel'' shall be $41,499,000.

SEC. 1216. Notwithstanding section 1101, the level for ''Agricultural Programs, Economic Research Service'' shall be $81,978,000.

SEC. 1217. Notwithstanding section 1101, the level for ''Agricultural Programs, National Agricultural Statistics Service'' shall be $156,761,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$33,139,000'' for ''$37,908,000''.

SEC. 1218. Notwithstanding section 1101, the level for ''Agricultural Programs, Agricultural Research Service, Salaries and Expenses'' shall be $1,135,501,000.

SEC. 1219. Notwithstanding section 1101, the level for ''Agricultural Programs, Agricultural Research Service, Buildings and Facilities'' shall be $0.

SEC. 1220. Notwithstanding section 1101, the level for ''Agricultural Programs, National Institute of Food and Agriculture, Research and Education Activities'' shall be $700,140,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$236,808,000'' for ''$215,000,000''; by substituting ''$33,000,000'' for ''$29,000,000''; by substituting ''$51,000,000'' for ''$48,500,000''; by substituting ''$265,000,000'' for ''$262,482,000''; by substituting ''$2,844,000'' for ''$89,029,000''; by substituting ''$19,375,000'' for ''$18,250,000''; and by substituting ''$11,253,000'' for ''$45,122,000''.

SEC. 1221. Notwithstanding section 1101, the level for ''Agricultural Programs, National Institute of Food and Agriculture, Extension Activities'' shall be $480,092,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$294,500,000'' for ''$297,500,000'' and by substituting ''$8,565,000'' for ''$20,396,000''.

SEC. 1222. Notwithstanding section 1101, the level for ''Agricultural Programs, National Institute of Food and Agriculture, Integrated Activities'' shall be ''$37,000,000'': *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$29,000,000'' for ''$45,148,000''; by substituting ''$9,000,000'' for ''$12,649,000''; by substituting ''$11,000,000'' for ''$14,596,000''; by substituting ''$3,000,000'' for ''$4,096,000''; by substituting ''$0'' for ''$4,388,000''; by substituting ''$0'' for ''$1,365,000''; by substituting ''$2,000,000'' for ''$3,054,000''; by substituting ''$4,000,000'' for ''$5,000,000''; by substituting ''$1,000,000'' for ''$3,000,000''; by substituting ''$0'' for ''$732,000''; by substituting ''$1,000,000'' for ''$1,312,000''; and by substituting ''$6,000,000'' for ''$9,830,000''.

SEC. 1223. Notwithstanding section 1101, the level for ''Agricultural Programs, Animal and Plant Health Inspection Service, Salaries and Expenses'' shall be $865,000,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$40,000,000'' for ''$60,243,000'' and by substituting ''$21,000,000'' for ''$23,390,000''.

SEC. 1224. Notwithstanding section 1101, the level for ''Agricultural Programs, Animal and Plant Health Inspection Service, Buildings and Facilities'' shall be $3,536,000.

SEC. 1225. Notwithstanding section 1101, the level for ''Agricultural Programs, Agricultural Marketing Service, Marketing Services'' shall be $86,711,000.

SEC. 1226. Notwithstanding section 1101, the level for ''Agricultural Programs, Agricultural Marketing Service, Limitation on Administrative Expenses'' shall be $60,947,000 (from fees collected).

SEC. 1227. The amounts included under the heading ''Agricultural Programs, Agricultural Marketing Service, Funds for Strengthening Markets, Income, and Supply (Section 32)'' in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$10,000,000''.

SEC. 1228. Notwithstanding section 1101, the level for ''Agricultural Programs, Grain Inspection, Packers and Stockyards Administration, Salaries and Expenses'' shall be $40,342,000.

SEC. 1229. Notwithstanding section 1101, the level for ''Agricultural Programs, Grain Inspection, Packers and Stockyards Administration, Limitation on Inspection and Weighing Services Expenses'' shall be $47,500,000 (from fees collected).

SEC. 1230. Notwithstanding section 1101, the level for ''Agricultural Programs, Food

Safety and Inspection Service'' shall be $1,008,520,000: *Provided*, That the Food Safety and Inspection Service shall continue implementation of section 11016 of Public Law 110–246.

SEC. 1231. Notwithstanding section 1101, the level for ''Agricultural Programs, Farm Service Agency, Salaries and Expenses'' shall be $1,210,711,000.

SEC. 1232. Notwithstanding Section 1101, the level for ''Agricultural Programs, Farm Service Agency, State Mediation Grants'' shall be $4,185,000.

SEC. 1233. Notwithstanding section 1101, the level for ''Agricultural Programs, Farm Service Agency, Grassroots Source Water Protection Program'' shall be $4,250,000.

SEC. 1234. The amounts included under the heading ''Agricultural Programs, Farm Service Agency, Agricultural Credit Insurance Fund Program Account'' in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$1,975,000,000'' for ''$2,150,000,000''; by substituting ''$475,000,000'' for ''$650,000,000''; by substituting ''$2,572,343,000'' for ''$2,670,000,000''; by substituting ''$122,343,000'' for ''$170,000,000''; by substituting ''$950,000,000'' for ''$1,000,000,000''; by substituting ''$0'' for ''$150,000,000''; by substituting ''$0'' for ''$75,000,000'' the first and second place it appears; by substituting ''$0'' for ''$10,000,000''; by substituting ''$38,570,000'' for ''$32,070,000''; by substituting ''$32,870,000'' for ''$26,520,000''; by substituting ''$5,700,000'' for ''$5,550,000''; by substituting ''$109,410,000'' for ''$106,402,000''; by substituting ''$57,540,000'' for ''$47,400,000''; by substituting ''$34,950,000'' for ''$35,100,000''; by substituting ''$16,920,000'' for ''$23,902,000''; by substituting ''$0'' for ''$1,065,000''; by substituting ''$0'' for ''$1,343,000''; by substituting ''$0'' for ''$278,000''; by substituting ''$0'' for ''$793,000''; by substituting ''$313,508,000'' for ''$321,093,000''; and by substituting ''$305,588,000'' for ''$313,173,000''. Funds appropriated by this division to such heading for farm ownership, operating, direct and guaranteed loans may be transferred among these programs: *Provided*, That the Secretary of Agriculture shall notify the Committees on Appropriations of the House of Representatives and the Senate at least 15 days in advance of any transfer.

SEC. 1235. Notwithstanding section 1101, the level for ''Agricultural Programs, Risk Management Agency'' shall be $79,000,000.

SEC. 1236. Notwithstanding section 1101, the level for ''Conservation Programs, Natural Resources Conservation Service, Conservation Operations'' shall be $872,247,000.

SEC. 1237. Notwithstanding section 1101, the level for ''Conservation Programs, Natural Resources Conservation Service, Watershed and Flood Prevention Operations'' shall be $0.

SEC. 1238. Notwithstanding section 1101, the level for ''Conservation Programs, Natural Resources Conservation Service, Watershed Rehabilitation Program'' shall be $18,000,000.

SEC. 1239. Notwithstanding section 1101, the level for ''Conservation Programs, Natural Resources Conservation Service, Resource Conservation and Development'' shall be $0.

SEC. 1240. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Development, Salaries and Expenses'' shall be $191,987,000.

SEC. 1241. The amounts included under the heading ''Rural Development Programs, Rural Housing Service, Rural Housing Insurance Fund Program Account'' in Public Law 111–80 for gross obligations for the principal amount of direct and guaranteed loans as authorized by title V of the Housing Act of 1949 shall be applied to funds appropriated by this division by substituting ''$25,121,406,000'' for ''$13,121,488,000''; by substituting ''$1,121,406,000'' for ''$1,121,488,000''; by substituting ''$24,000,000,000'' for ''$12,000,000,000''; by substituting ''$23,360,000'' for ''$34,412,000''; by substituting ''$30,960,000'' for ''$129,090,000''; by substituting ''$5,052,000'' for ''$5,045,000''; and by substituting ''$4,966,000'' for ''$4,970,000''.

SEC. 1242. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rural Housing Insurance Fund Program Account'' for the cost of direct and guaranteed loans, including the cost of modifying loans, authorized by section 502 of the Housing Act of 1949 shall be $70,200,000: *Provided*, That the amounts included for such costs under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$70,200,000'' for ''$40,710,000'' in the case of direct loans and by substituting ''$0'' for ''$172,800,000'' in the case of unsubsidized guaranteed loans.

SEC. 1243. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rural Housing Insurance Fund Program Account'' for the cost of repair, rehabilitation, and new construction of rental housing authorized by section 515 of the Housing Act of 1949 shall be $23,446,000.

SEC. 1244. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rural Housing Insurance Fund Program Account'' for the cost of multi-family housing guaranteed loans authorized by section 538 of the Housing Act of 1949 shall be $3,000,000.

SEC. 1245. In addition to amounts otherwise appropriated or made available by this division, there is appropriated to the Secretary of Agriculture $288,000 for section 523 self-help housing land development loans authorized by section 523 of the Housing Act of 1949 and $294,000 for site development loans authorized by section 524 of such Act.

SEC. 1246. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rural Housing Insurance Fund Program Account'' for administrative expenses necessary to carry out the direct and guaranteed loan programs shall be $454,383,000.

SEC. 1247. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rental Assistance Program'' shall be $955,635,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$5,958,000''; and by substituting ''$3,000,000'' for ''$3,400,000''.

SEC. 1248. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Multi-Family Housing Revitalization Program Account'' shall be $30,000,000: *Provided*, That the amounts included under such heading in Public Law 111-80 shall be applied to funds appropriated by this division by substituting ''$14,000,000'' for ''$16,400,000''; by substituting ''$15,000,000'' for ''$25,000,000''; and by substituting ''$1,000,000'' for ''$1,791,000''.

SEC. 1249. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Mutual and Self-Help Housing Grants'' shall be $37,000,000.

SEC. 1250. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rural Housing Assistance Grants'' shall be $40,400,000: *Provided*, That the amounts included under such heading in Public Law 111-80 shall be applied to funds appropriated by substituting ''$0'' for ''$4,000,000''.

SEC. 1251. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Housing Service, Rural Community Facilities Program Account'' shall be $41,462,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$5,000,000'' for ''$6,256,000''; and by substituting ''$7,000,000'' for ''$13,902,000''.

SEC. 1252. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Business–Cooperative Service, Rural Business Program Account'' shall be $85,451,000.

SEC. 1253. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Business–Cooperative Service, Rural Development Loan Fund Program Account'' for the principal amount of direct loans as authorized by Rural Development Loan Fund shall be $19,181,000; and for the cost of direct loans, $7,400,000.

SEC. 1254. Notwithstanding section 1101, in connection with the ''Rural Development Programs, Rural Business–Cooperative Service, Rural Economic Development Loans Program Account'', of the funds derived from interest on the cushion of credit payments, as authorized by section 313 of the Rural Electrification Act of 1936, $207,000,000 shall not be obligated and $207,000,000 is rescinded.

SEC. 1255. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Business–Cooperative Service, Rural Cooperative Development Grants'' shall be $30,254,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$300,000''; by substituting ''$0'' for ''$2,800,000''; and by substituting ''$18,867,000'' for ''$20,367,000''.

SEC. 1256. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Business–Cooperative Service, Rural Microenterprise Investment Program Account'' shall be $0.

SEC. 1257. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Business–Cooperative Service, Rural Energy for America Program'' shall be $5,000,000.

SEC. 1258. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Utilities Service, Rural Water and Waste Disposal Program Account'' shall be $529,002,000: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$12,000,000'' for ''$17,500,000''.

SEC. 1259. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Utilities Service, Rural Electrification and Telecommunications Loans Program Account'' for the cost of guaranteed underwriting loans pursuant to section 313A shall be $700,000: *Provided*, That, notwithstanding section 6106(b) of the Food, Conservation, and Energy Act of 2008, a guaranteed underwriting loan may not be issued until the Secretary of Agriculture certifies to the Committees on Appropriations of the House and Senate that the regulations governing the program fully implement the requirements of section 6106(a) of the Food, Conservation, and Energy Act of 2008.

SEC. 1260. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Utilities Service, Rural Electrification and Telecommunications Loans Program Account'' for administrative expenses necessary to carry out the direct and guaranteed loan programs shall be $38,374,000.

SEC. 1261. Notwithstanding section 1101, the level for ''Rural Development Programs, Rural Utilities Service, Distance Learning, Telemedicine, and Broadband Program'' for the cost of grants for telemedicine and distance learning services in rural areas, as authorized by 7 U.S.C. 950aaa et seq. shall be $32,500,000.

SEC. 1262. Notwithstanding section 1101, the level for ''Rural Development, Rural Utilities Service, Distance Learning, Telemedicine, and Broadband Program'' for the cost of broadband loans, as authorized by section 601 of the Rural Electrification Act shall be $22,320,000. In addition, $13,406,000, to remain available until expended, for a grant program to finance broadband transmission in rural areas eligible for Distance Learning and Telemedicine Program benefits authorized by 7 U.S.C. 950aaa.

SEC. 1263. Notwithstanding the section 1101, the level for ''Domestic Food Programs, Food and Nutrition Service, Child Nutrition Programs'' in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$1,000,000'' and by substituting ''$0'' for ''$5,000,000'', and shall be applied to funds made available under section 32 of the Act of August 24, 1935 (7 U.S.C. 612c) by substituting ''$5,277,574,000'' for ''$6,747,877,000'' and by substituting ''$0'' for ''$242,022,000''.

SEC. 1264. Notwithstanding section 1101, the level for ''Domestic Food Programs, Food and Nutrition Service, Special Supplemental Nutrition Program for Women, Infants, and Children (WIC)'' shall be $6,747,522,000: *Provided*, That the amounts included under such heading in Public Law 111-80 shall be applied to funds appropriated by this division by substituting ''$35,000,000'' for ''$60,000,000''.

SEC. 1265. Notwithstanding section 1101, the level for ''Domestic Food Programs, Food and Nutrition Service, Commodity Assistance Program'', shall be $246,619,000, of which $176,049,000 shall be for the Commodity Supplemental Food Program: *Provided*, That the amounts included under such heading in Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$6,000,000''.

SEC. 1266. Notwithstanding section 1101, the level for ''Foreign Assistance and Related Programs, Foreign Agricultural Service, Salaries and Expenses'' shall be $186,000,000.

SEC. 1267. Notwithstanding section 1101, the level for ''Foreign Assistance and Related Programs, Foreign Agricultural Service, Food for Peace Title II Grants'' shall be $1,500,000,000.

SEC. 1268. Notwithstanding section 1101, the level for ''Foreign Assistance and Related Programs, Foreign Agricultural Service, McGovern-Dole International Food for Education and Child Nutrition Program Grants'' shall be $199,500,000.

SEC. 1269. Notwithstanding section 1101, the level for ''Related Agencies and Food and Drug Administration, Food and Drug Administration, Salaries and Expenses'' shall be $3,655,687,000: *Provided*, That of the amount provided under this heading, $667,057,000 shall be derived from prescription drug user fees authorized by section 736 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 379h), shall be credited to this account and remain available until expended, and shall not include any fees pursuant to paragraphs (2) and (3) of section 736(a) of such Act (21 U.S.C. 379h(a)(2) and (a)(3)) assessed for fiscal year 2012 but collected in fiscal year 2011; $61,860,000 shall be derived from medical device user fees authorized by section 738 of such Act (21 U.S.C. 379j), and shall be credited to this account and remain available until expended; $19,448,000 shall be derived from animal drug user fees authorized by section 740 of such Act (21 U.S.C. 379j–12), and shall be credited to this account and remain available until expended; $5,397,000 shall be derived from animal generic drug user fees authorized by section 741 of such Act (21 U.S.C. 379f), and shall be credited to this account and shall remain available until expended; and $450,000,000 shall be derived from tobacco product user fees authorized by section 919 of such Act (21 U.S.C. 387s) and shall be credited to this account and remain available until expended: *Provided further*, That in addition and notwithstanding any other provision under this heading, amounts collected for prescription drug user fees that exceed the fiscal year 2011 limitation are appropriated and shall be credited to this account and remain available until expended: *Provided further*, That fees derived from prescription drug, medical device, animal drug, animal generic drug, and tobacco product assessments for fiscal year 2011 received during fiscal year 2011, including any such fees assessed prior to fiscal year 2011 but credited for fiscal year 2011, shall be subject to the fiscal year 2011 limitations: *Provided further*, That none of these funds shall be used to develop, establish, or operate any program of user fees authorized by 31 U.S.C. 9701: *Provided further*, That of the total amount appropriated under this heading: (1) $837,358,000 shall be for the Center for Food Safety and Applied Nutrition and related field activities in the Office of Regulatory Affairs; (2) $957,116,000 shall be for the Center for Drug Evaluation and Research and related field activities in the Office of Regulatory Affairs; (3) $325,647,000 shall be for the Center for Biologics Evaluation and Research and for related field activities in the Office of Regulatory Affairs; (4) $161,730,000 shall be for the Center for Veterinary Medicine and for related field activities in the Office of Regulatory Affairs; (5) $359,781,000 shall be for the Center for Devices and Radiological Health and for related field activities in the Office of Regulatory Affairs; (6) $60,664,000 shall be for the National Center for Toxicological Research; (7) $421,463,000 shall be for the Center for Tobacco Products and for related field activities in the Office of Regulatory Affairs; (8) not to exceed $136,239,000 shall be for Rent and Related activities, of which $41,951,000 is for White Oak Consolidation, other than the amounts paid to the General Services Administration for rent; (9) not to exceed $183,048,000 shall be for payments to the General Services Administration for rent; and (10) $212,642,000 shall be for other activities, including the Office of the Commissioner of Food and Drugs; the Office of Foods; the Office of the Chief Scientist; the Office of Policy, Planning and Budget; the Office of International Programs; the Office of Administration; and central services for these offices: *Provided further*, That none of the funds made available under this heading shall be used to transfer funds under section 770(n) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 379dd): *Provided further*, That not to exceed $25,000 of the amount provided under this heading shall be for official reception and representation expenses, not otherwise provided for, as determined by the Commissioner: *Provided further*, That funds may be transferred from one specified activity to another with the prior approval of the Committees on Appropriations of both Houses of Congress.

In addition, mammography user fees authorized by 42 U.S.C. 263b, export certification user fees authorized by 21 U.S.C. 381, and priority review user fees authorized by 21 U.S.C. 360n may be credited to this account, to remain available until expended.

In addition, food and feed recall user fees, food reinspection user fees, and voluntary qualified importer program user fees authorized by section 743 of the Federal Food, Drug, and Cosmetic Act, as amended by Public Law 111–353, may be credited to this account in an amount not to exceed the amount determined under subsection (b) of such section 743, to remain available until expended.

SEC. 1270. Notwithstanding section 1101, the level for ''Food and Drug Administration, Buildings and Facilities'' shall be $10,000,000.

SEC. 1271. Notwithstanding section 1101, the level for ''Related Agencies and Food and Drug Administration, Independent Agencies, Farm Credit Administration, Limitation on Administrative Expenses'' shall be $59,400,000 (from assessments collected from farm credit institutions, including the Federal Agricultural Mortgage Corporation).

SEC. 1272. Notwithstanding any other provision of this division, the following setasides included in Public Law 111–80 for ''Congressionally Designated Projects'' in the following accounts for the corresponding amounts shall not apply to funds appropriated by this division:

(1) ''Agricultural Programs, Agricultural Research Service, Salaries and Expenses'', $44,138,000.

(2) ''Agricultural Programs, National Institute of Food and Agriculture, Research and Education Activities'', $120,054,000.

(3) ''Agricultural Programs, National Institute of Food and Agriculture, Extension Activities'', $11,831,000.

(4) ''Agricultural Programs, Animal and Plant Health Inspection Service, Salaries and Expenses'', $24,410,000.

(5) ''Conservation Programs, Natural Resources Conservation Service, Conservation Operations'', $37,382,000.

SEC. 1273. Notwithstanding any other provision of this division, the following provisions included in Public Law 111–80 shall not apply to funds appropriated by this division:

(1) The first proviso under the heading ''Agricultural Programs, Agriculture Buildings and Facilities and Rental Payments''.

(2) The second proviso under the heading ''Departmental Administration''.

(3) The second proviso under the heading ''Conservation Programs, Natural Resources Conservation Service, Conservation Operations''.

(4) The second proviso under the heading ''Rural Development Programs, Rural Utilities Service, Rural Water and Waste Disposal Account''.

(5) The first proviso under the heading ''Domestic Food Programs, Food and Nutrition Service, Commodity Assistance Program''.

(6) The first proviso under the heading ''Foreign Assistance and Related Programs, Foreign Agricultural Service, McGovern-Dole International Food for Education and Child Nutrition Program Grants''.

SEC. 1274. Sections 718, 723, 727, 728, and 738 of Public Law 111–80 shall be applied to funds appropriated by this division by substituting $0 for the dollar amounts included in those sections.

SEC. 1275. Section 741 of Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$2,000,000'' for ''$2,600,000'' and by substituting ''$0'' for ''$3,000,000''.

SEC. 1276. Sections 716, 721(2), 721(3), 724, 725, 726, 729, 735, 743, and 748 of Public Law 111–80 shall not apply for fiscal year 2011.

SEC. 1277. Sections 730, 734, 737, 740, 745, 747, and 749 of Public Law 111–80 authorized or required certain actions that have been performed before the date of the enactment of this division and need not reoccur.

SEC. 1278. Appropriations to the Department of Agriculture made available in fiscal year 2005 to carry out section 601 of the Rural Electrification Act of 1936 (7 U.S.C. 950bb) for the cost of direct loans shall remain available until expended to disburse valid obligations made in fiscal years 2005, 2006, and 2007.

SEC. 1279. In the case of each program established or amended by the Food, Conservation, and Energy Act of 2008 (Public Law 110–246), other than by title I or subtitle A of

title III of such Act, or programs for which indefinite amounts were provided in that Act that is authorized or required to be carried out using funds of the Commodity Credit Corporation: (1) such funds shall be available for salaries and related administrative expenses, including technical assistance, associated with the implementation of the program, without regard to the limitation on the total amount of allotments and fund transfers contained in section 11 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714i); and (2) the use of such funds for such purpose shall not be considered to be a fund transfer or allotment for purposes of applying the limitation on the total amount of allotments and fund transfers contained in such section.

SEC. 1280. With respect to any loan or loan guarantee program administered by the Secretary of Agriculture that has a negative credit subsidy score for fiscal year 2011, the program level for the loan or loan guarantee program, for the purposes of the Federal Credit Reform Act of 1990, shall be the program level established pursuant to such Act for fiscal year 2010.

SEC. 1281. Section 721(1) of Public Law 111–80 (123 Stat. 2122) is amended by striking ''$1,180,000,000'' and inserting ''$1,238,000,000''.

SEC. 1282. Section 742 of Public Law 111–80 (123 Stat. 2128) is amended by striking ''$11,000,000'' and inserting ''$15,000,000''.

SEC. 1283. The following provisions of Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''2010'', ''2011'', and ''2012'' for ''2009'', ''2010'', and ''2011'', respectively, in each instance that such terms appear:

(1) The second paragraph under the heading ''Agricultural Programs, Animal and Plant Health Inspection Service, Salaries and Expenses''.

(2) The second proviso under the heading ''Agricultural Programs, Food Safety and Inspection Service''.

(3) The first proviso in the second paragraph under the heading ''Rural Development Programs, Rural Housing Service, Rural Housing Insurance Fund Program Account''.

(4) The fifth proviso under the heading ''Rural Development Programs, Rural Housing Service, Rental Assistance Program''.

(5) The proviso under the heading ''Rural Development Programs, Rural Housing Service, Mutual and Self-Help Housing Grants''.

(6) The first proviso under the heading ''Rural Development Programs, Rural Housing Service, Rural Housing Assistance Grants''.

(7) The seventh proviso under the heading ''Rural Development Programs, Rural Housing Service, Rural Community Facilities Program Account''.

(8) The third proviso under the heading ''Rural Development Programs, Rural Business—Cooperative Service, Rural Business Program Account''.

(9) The four availability of funds clauses under the heading ''Rural Development Programs, Rural Business—Cooperative Service, Rural Development Loan Fund Program Account''.

(10) The fifth proviso under the heading ''Rural Development Programs, Rural Utilities Service, Rural Water and Waste Disposal Program Account''.

(11) Sections 713, 717, and 732.

(12) The paragraph under the heading ''Food and Nutrition Service, Child Nutrition Programs''.

(13) The third proviso under the heading ''Food and Nutrition Service, Commodity Assistance Program''.

SEC. 1284. None of the funds appropriated or otherwise made available by this division or any other Act shall be used to pay the salaries and expenses of personnel to carry out the Wetlands Reserve Program authorized by sections 1237–1237F of the Food Security Act of 1985 (16 U.S.C. 3837–3837f) to enroll in excess of 202,218 acres in fiscal year 2011.

SEC. 1285. None of the funds appropriated or otherwise made available by this division or any other Act shall be used to pay the salaries and expenses of personnel to carry out the Conservation Stewardship Program authorized by sections 1238D–1238G of the Food Security Act of 1985 (16 U.S.C. 3838d–3838g) in excess of $649,000,000.

SEC. 1286. None of the funds appropriated or otherwise made available by this division or any other Act shall be used to pay the salaries and expenses of personnel to carry out the program authorized by section 14 of the Watershed Protection and Flood Prevention Act (16 U.S.C. 1012).

SEC. 1287. None of the funds appropriated or otherwise made available by this Act or any other Act shall be used to pay the salaries and expenses of personnel to carry out a program under subsection (b)(2)(A)(iii) of section 14222 of Public Law 110–246 in excess of $1,098,000,000: *Provided*, That none of the funds made available in this Act or any other Act shall be used for salaries and expenses to carry out section 19(i)(1)(D) of the Richard B. Russell National School Lunch Act as amended by section 4304 of Public Law 110–246 in excess of $33,000,000, including the transfer of funds under subsection (c) of section 14222 of Public Law 110–246, until October 1, 2011: *Provided further*, That $117,000,000 made available on October 1, 2011, to carry out section 19(i)(1)(D) of the Richard B. Russell National School Lunch Act as amended by section 4304 of Public Law 110–246 shall be excluded from the limitation described in subsection (b)(2)(A)(iv) of section 14222 of Public Law 110–246.

SEC. 1288. None of the funds appropriated or made available by this division or any other Act shall be used to pay the salaries and expenses of personnel to carry out the Biomass Crop Assistance Program authorized by section 9011 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8111) in excess of $112,000,000.

SEC. 1289. Of the unobligated balances available for ''Agricultural Programs, Agricultural Research Service, Buildings and Facilities'' $229,582,000 is rescinded.

SEC. 1290. Of the unobligated balances available for the cost of broadband loans, as authorized by section 601 of the Rural Electrification Act of 1936, $39,000,000 is rescinded.

SEC. 1291. None of the funds made available by this Act may be used to pay the salaries and expenses of personnel of the Department of Agriculture to provide nonrecourse marketing assistance loans for mohair under section 1201 of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 8731).

SEC. 1292. The unobligated balances available for the Outreach for Socially Disadvantaged Farmers account, as identified by Treasury Appropriation Fund Symbol 12X0601, are rescinded; for the Rural Community Advancement Program, as identified by Treasury Appropriation Fund Symbol 12X0400, are rescinded; for the Payments to States program, as identified by Treasury Appropriation Fund symbol 12X2501, are rescinded; for the Common Computing Environment account, as identified by Treasury Appropriation Fund Symbol 12X0113, $3,111,000 are rescinded; for Agriculture Buildings and Facilities and Rental Payments, as identified by Treasury Appropriation Fund Symbol 12X0117, $45,000,000 are rescinded; and for the Animal and Plant Health Inspection Service—Buildings and Facilities account, as identified by Treasury Appropriation Fund Symbol 12X1601, $629,000 are rescinded. In addition, from prior year unobligated balances of Animal and Plant Health Inspection Service—Salaries and Expenses account $10,887,000 are rescinded as follows: Sudden Oak Death, $295,000; Sirex Woodwasp, $408,000; Avian Influenza, $8,000,000; Information Technology Infrastructure, $86,000; Screwworm, $1,000,000; HUB Relocation, $98,000; and Contingency Funds, $1,000,000.

SEC. 1293. Of the unobligated balances available for Cooperative State Research, Education, and Extension Service, Buildings and Facilities, $1,037,000 are rescinded.

SEC. 1294. The unobligated balances available for the wildlife habitat incentives program under section 1240N of the Food Security Act of 1985 (16 U.S.C. 3839bb-1), as identified by Treasury Appropriation Fund Symbol 12X3322, are rescinded; for the program under the Water Bank Act (16 U.S.C. 1301 et seq.), as identified by Treasury Appropriation Fund Symbol 12X3320; and for the wetlands reserve program under section 1237 of the Food Security Act of 1985 (16 U.S.C. 3837), as identified by Treasury Appropriation Fund Symbol 12X1080, are rescinded.

SEC. 1295. Of the unobligated balances available for the broadband grant program for rural areas eligible for Distance Learning and Telemedicine Program benefits authorized by 7 U.S.C. 950aaa, $25,000,000 are rescinded.

SEC. 1296. Of the unobligated balances available for the Export Credit Guarantee Program under section 101 of the Agricultural Trade Act of 1978 (Public Law 95-501), $331,000,000 are hereby permanently canceled.

SEC. 1297. None of the funds appropriated by this Act or any other Act may be used to carry out section 508(d)(3) of the Federal Crop Insurance Act (7 U.S.C. 1508 (d)(3)) to provide a performance-based premium discount in the crop insurance program.

SEC. 1298. Section 739 of Public Law 111–80 shall be applied to funds appropriated by this division by substituting ''$640,000'' for ''$800,000''.

TITLE III—COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES

SEC. 1301. Notwithstanding section 1101, the level for ''Department of Commerce, International Trade Administration, Operations and Administration'' shall be $450,989,000.

SEC. 1302. Notwithstanding section 1101, the level for ''Department of Commerce, Economic Development Administration, Economic Development Assistance Programs'' shall be $246,000,000.

SEC. 1303. Notwithstanding section 1101, the level for ''Department of Commerce, Minority Business Development Agency, Minority Business Development'' shall be $30,400,000.

SEC. 1304. Notwithstanding section 1101, the level for ''Department of Commerce, National Telecommunications and Information Administration, Salaries and Expenses'' shall be $40,649,000.

SEC. 1305. Notwithstanding section 1101, the level for ''Department of Commerce, National Institute of Standards and Technology, Scientific and Technical Research and Services'' shall be $508,000,000.

SEC. 1306. Notwithstanding section 1101, the level for ''Department of Commerce, National Institute of Standards and Technology, Industrial Technology Services'' shall be $173,600,000.

SEC. 1307. Notwithstanding section 1101, the level for ''Department of Justice, General Administration, National Drug Intelligence Center'' shall be $34,023,000.

SEC. 1308. Notwithstanding section 1101, the level for ''Department of Justice, General Administration, Justice Information Sharing Technology'' shall be $60,285,000.

SEC. 1309. Notwithstanding section 1101, the level for ''Department of Justice, General Administration, Tactical Law Enforcement Wireless Communications'' shall be $100,000,000.

SEC. 1310. Notwithstanding section 1101, the level for ''Department of Justice, General Administration, Detention Trustee'' shall be $1,518,663,000.

SEC. 1311. Notwithstanding section 1101, the level for ''Department of Justice, Legal Activities, Salaries and Expenses, General Legal Activities'' shall be $865,097,000.

SEC. 1312. Notwithstanding section 1101, the level for ''Department of Justice, United States Marshals Service, Construction'' shall be $16,625,000.

SEC. 1313. Notwithstanding section 1101, the level for ''Department of Justice, Federal Bureau of Investigation, Salaries and Expenses'' shall be $7,834,622,000.

SEC. 1314. Notwithstanding section 1101, the level for ''Department of Justice, Federal Bureau of Investigation, Construction'' shall be $107,310,000.

SEC. 1315. Notwithstanding section 1101, the level for ''Department of Justice, Federal Prison System, Salaries and Expenses'' shall be $6,295,000,000.

SEC. 1316. Notwithstanding section 1101, the level for ''Office of Science and Technology Policy'' shall be $6,660,000.

SEC. 1317. Notwithstanding section 1101, the level for ''National Science Foundation, Research and Related Activities'' shall be $5,575,025,000.

SEC. 1318. Notwithstanding section 1101, the level for ''National Science Foundation, Education and Human Resources'' shall be $862,760,000.

SEC. 1319. Notwithstanding section 1101, the level for ''Department of Commerce, Bureau of the Census, Periodic Censuses and Programs'' shall be $893,000,000.

SEC. 1320. Notwithstanding section 1101, the level for each of the following accounts shall be $0: ''Department of Commerce, National Telecommunications and Information Administration, Public Telecommunications Facilities, Planning and Construction''; ''Department of Justice, Bureau of Alcohol, Tobacco, Firearms, and Explosives, Construction''; and ''Department of Justice, Office of Justice Programs, Weed and Seed Program Fund''.

SEC. 1321. Notwithstanding any other provision of this division, the following setasides included in division B of Public Law 111–117 for projects specified in the explanatory statement accompanying that Act in the following accounts for the corresponding amounts shall not apply to funds appropriated by this division: (1) ''Department of Commerce, International Trade Administration, Operations and Administration'', $5,215,000; (2) ''Department of Commerce, Minority Business Development Agency, Minority Business Development'', $1,100,000; (3) ''Department of Commerce, National Institute of Standards and Technology, Scientific and Technical Research and Services'', $10,500,000; (4) ''Department of Commerce, National Institute of Standards and Technology, Construction of Research Facilities'', $47,000,000; (5) ''Department of Commerce, National Oceanic and Atmospheric Administration, Operations, Research, and Facilities'', $99,295,000; (6) ''Department of Commerce, National Oceanic and Atmospheric Administration, Procurement, Acquisition and Construction'', $18,000,000; (7) ''Department of Justice, Office of Justice Programs, State and Local Law Enforcement Assistance'', $185,268,000; (8) ''Department of Justice, Office of Justice Programs, Juvenile Justice Programs'', $91,095,000; (9) ''Department of Justice, Community Oriented Policing Services'', $25,385,000; (10) ''Department of Justice, Community Oriented Policing Services'', $168,723,000; and (11) ''National Aeronautics and Space Administration, Cross Agency Support'', $63,000,000.

SEC. 1322. The Departments of Commerce and Justice, the National Aeronautics and Space Administration, and the National Science Foundation are directed to submit spending plans, signed by the respective department or agency head, to the House and Senate Committees on Appropriations within 60 days of enactment of this division.

SEC. 1323. Notwithstanding any other provision of this division, the set-aside included in division B of Public Law 111–117 under the heading ''Department of Commerce, United States Patent and Trademark Office, Salaries and Expenses'' for policy studies related to activities of United Nations Specialized Agencies related to international protection of intellectual property rights shall not apply to funds appropriated by this division.

SEC. 1324. Of the amount provided by section 1306 for ''National Institute of Standards and Technology, Industrial Technology Services'', $44,900,000 shall be for the Technology Innovation Program, and $128,700,000 shall be for the Manufacturing Extension Partnership Program.

SEC. 1325. (a) Notwithstanding section 1101, the level for ''Department of Commerce, National Institute of Standards and Technology, Construction of Research Facilities'' shall be $70,000,000.

(b) The set-asides included in division B of Public Law 111–117 under the heading ''Department of Commerce, National Institute of Standards and Technology, Construction of Research Facilities'' for a competitive construction grant program for research science buildings and for projects specified in the explanatory statement accompanying that Act shall not apply to funds appropriated by this division.

SEC. 1326. (a) Notwithstanding section 1101, the level for ''Department of Commerce, National Oceanic and Atmospheric Administration, Operations, Research, and Facilities'' shall be $3,185,883,000.

(b) The set-aside included in division B of Public Law 111–117 under the heading ''Department of Commerce, National Oceanic and Atmospheric Administration, Operations, Research, and Facilities'' for projects specified in the explanatory statement accompanying that Act shall not apply to funds appropriated by this division.

SEC. 1327. (a) Notwithstanding section 1101, the level for ''Department of Commerce, National Oceanic and Atmospheric Administration, Procurement, Acquisition and Construction'' shall be $1,335,353,000.

(b) The set-aside included in division B of Public Law 111–117 under the heading ''Department of Commerce, National Oceanic and Atmospheric Administration, Procurement, Acquisition and Construction'' for projects specified in the explanatory statement accompanying that Act shall not apply to funds appropriated by this division.

SEC. 1328. Notwithstanding section 1101, the level for ''Department of Commerce, Departmental Management, Herbert C. Hoover Building Renovation and Modernization'' shall be $15,000,000.

SEC. 1329. Notwithstanding section 1101, the level for ''Department of Commerce, United States Patent and Trademark Office, Salaries and Expenses'' shall be $2,090,000,000, to remain available until expended: *Provided*, That the sum herein appropriated from the general fund shall be reduced as offsetting collections assessed and collected pursuant to 15 U.S.C. 1113 and 35 U.S.C. 41 and 376 are received during fiscal year 2011, so as to result in a fiscal year 2011 appropriation from the general fund estimated at $0: *Provided further*, That during fiscal year 2011, should the total amount of offsetting fee collections be less than $2,090,000,000, this amount shall be reduced accordingly.

SEC. 1330. Notwithstanding section 1101, the level for ''Department of Justice, State and Local Law Enforcement Activities, Salaries and Expenses'' shall be $187,000,000.

SEC. 1331. (a) Notwithstanding section 1101, the level for ''Department of Justice, Office of Justice Programs, State and Local Law Enforcement Assistance'' shall be $1,120,085,000.

(b) Notwithstanding section 1101, the level for ''Department of Justice, Office of Justice Programs, Juvenile Justice Programs'' shall be $275,975,000.

(c)(1) Notwithstanding section 1101, the level for ''Department of Justice, Community Oriented Policing Services'' shall be $495,925,000.

(2) Amounts included under the heading ''Department of Justice, Community Oriented Policing Services'' in division B of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$15,000,000'' for ''$40,385,000'' and ''$1,500,000'' for ''$170,223,000''.

(d) Except as otherwise provided in section 1321, each set-aside included in an account, the level of which is established by subsection (a), (b), or (c) of this section, shall be reduced proportionately to reflect the level provided in the respective subsection for each account.

SEC. 1332. Notwithstanding any other provision of law, section 20109(a), in subtitle A of title II of the Violent Crime Control and Law Enforcement Act of 1994 (42 U.S.C. 13709(a)), shall not apply to amounts made available by this division.

SEC. 1333. (a) Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Exploration'' shall be $3,808,300,000.

(b) Notwithstanding sections 1104 and 1105, the provisos under the heading ''National Aeronautics and Space Administration, Exploration'' in division B of Public Law 111–117, as amended, shall not apply to funds appropriated by this division.

(c) Of the amounts appropriated by this division for ''National Aeronautics and Space Administration, Exploration'', not less than $1,200,000,000 shall be for the multipurpose crew vehicle to continue existing vehicle development activities to meet the requirements described in paragraph (a)(1) of section 303 of Public Law 111–267, and not less than $1,800,000,000 shall be for the heavy lift launch vehicle system which shall have a lift capability not less than 130 tons and which shall have an upper stage and other core elements developed simultaneously.

SEC. 1334. (a) Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Space Operations'' shall be $5,508,500,000.

(b) The proviso specifying amounts under the heading ''National Aeronautics and Space Administration, Space Operations'' in division B of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1335. Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Science'' shall be $4,945,300,000.

SEC. 1336. Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Aeronautics'' shall be $535,000,000.

SEC. 1337. Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Education'' shall be $145,800,000.

SEC. 1338. (a) Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Cross Agency Support'' shall be $3,111,400,000.

(b) The provisos specifying amounts under the heading ''National Aeronautics and Space Administration, Cross Agency Support'' in division B of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1339. (a) Notwithstanding section 1101, the level for ''National Aeronautics and Space Administration, Construction and Environmental Compliance and Remediation'' shall be $394,300,000.

(b) This level shall not include amounts made available by section 1101 from lease proceeds under such account.

(c) The first proviso under the heading ''National Aeronautics and Space Administration, Construction and Environmental Compliance and Remediation'' in division B of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1340. (a) None of the funds made available by this division may be used for the National Aeronautics and Space Administration or the Office of Science and Technology Policy to develop, design, plan, promulgate, implement, or execute a bilateral policy, program, order, or contract of any kind to participate, collaborate, or coordinate bilaterally in any way with China or any Chinese-owned company unless such activities are specifically authorized by a law enacted after the date of enactment of this division.

(b) The limitation in subsection (a) shall also apply to any funds used to effectuate the hosting of official Chinese visitors at facilities belonging to or utilized by the National Aeronautics and Space Administration.

SEC. 1341. Notwithstanding section 1101, amounts are provided for ''Legal Services Corporation, Payment to the Legal Services Corporation'' in division B of Public Law 111–117 in the manner authorized in Public Law 111–117 for fiscal year 2010, except that for fiscal year 2011 the amounts specified in division B of Public Law 111–117 shall be modified by substituting—

(1) ''$405,000,000'' for ''$420,000,000''; and

(2) ''$379,400,000'' for ''$394,400,000''.

SEC. 1342. Section 505(a)(1) of division B of Public Law 111–117 is amended by inserting '', unless the House and Senate Committees on Appropriations are notified 15 days in advance of such reprogramming of funds'' before the semicolon.

SEC. 1343. Of the unobligated balances available to the Department of Justice from prior appropriations, the following funds are rescinded, not later than September 30, 2011, from the following accounts in the specified amounts: (1) ''Office of Justice Programs'', $42,000,000; (2) ''Community Oriented Policing Services'', $10,200,000; and (3) ''Legal Activities, Assets Forfeiture Fund'', $495,000,000.

SEC. 1344. Of the unobligated balances available to the Department of Justice for the ''Working Capital Fund'', $26,000,000 is hereby permanently rescinded.

SEC. 1345. Of the unobligated balances available to the Bureau of the Census for the Census Working Capital Fund, $50,000,000 is hereby permanently rescinded.

SEC. 1346. Of the unobligated balances available to the National Telecommunications and Information Administration for reimbursable spectrum management activities, $4,800,000 is hereby rescinded.

SEC. 1347. Notwithstanding any other provision of law, in fiscal year 2012 and thereafter payments for costs described in subsection (a) of section 404 of Public Law 107–42, as amended, shall be considered to be, and included in, payments for compensation for the purposes of sections 406(b) and (d)(1) of such Act.

SEC. 1348. None of the funds made available by this division may be used to implement, establish, or create a NOAA Climate Service as described in the ''Draft NOAA Climate Service Strategic Vision and Framework'' published at 75 Federal Register 57739 (September 22, 2010) and updated on December 20, 2010: *Provided*, That this limitation shall expire on September 30, 2011.

SEC. 1349. None of the funds made available by this division may be used to approve a new limited access privilege program (as that term is used in section 303A of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1853a)) for any fishery under the jurisdiction of the South Atlantic, Mid-Atlantic, New England, or Gulf of Mexico Fishery Management Councils in fiscal year 2011: *Provided*, That nothing in this section shall prevent development activities related to limited access privilege programs.

TITLE IV—ENERGY AND WATER DEVELOPMENT AND RELATED AGENCIES

SEC. 1401. All of the provisos under the heading ''Corps of Engineers—Civil, Department of the Army, Construction'' in the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1402. The proviso under the heading ''Corps of Engineers—Civil, Department of the Army, Mississippi River and Tributaries'' in the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1403. The fifth proviso (regarding the San Gabriel Basin Restoration Fund), seventh proviso (regarding the Milk River Project) and eighth proviso (regarding the Departmental Irrigation Drainage program) under the heading ''Department of the Interior, Bureau of Reclamation, Water and Related Resources'' in the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1404. All of the provisos under the heading ''Department of Energy, Energy Programs, Energy Efficiency and Renewable Energy'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1405. All of the provisos under the heading ''Department of Energy, Energy Programs, Electricity Delivery and Energy Reliability'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1406. The proviso under the heading ''Department of Energy, Energy Programs, Nuclear Energy'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1407. All of the provisos under the heading ''Department of Energy, Energy Programs, Fossil Energy Research and Development'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1408. All of the provisos under the heading ''Department of Energy, Energy Programs, Science'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1409. The thirteenth proviso (regarding Commission funding) under the heading ''Department of Energy, Energy Programs, Nuclear Waste Disposal'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1410. All of the provisos under the heading ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Weapons Activities'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1411. The proviso under the heading ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Defense Nuclear Nonproliferation'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1412. All of the provisos under the heading ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Office of the Administrator'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1413. The proviso under the heading ''Department of Energy, Atomic Energy Defense Activities, Environmental and Other Defense Activities, Defense Environmental Cleanup'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1414. The proviso under the heading ''Department of Energy, Atomic Energy Defense Activities, Environmental and Other Defense Activities, Other Defense Activities'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1415. The fifth proviso under the heading ''Department of Energy, Power Marketing Administrations, Construction, Rehabilitation, Operation and Maintenance, Western Area Power Administration'' in title III of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85) shall not apply to funds appropriated by this division.

SEC. 1416. Sections 105, 106, 107, 110 through 125, 205 through 211, 502, and 506 of the Energy and Water Development and Related Agencies Appropriations Act, 2010 (Public Law 111–85), to the extent the sections direct funds, shall not apply to funds appropriated by this division.

SEC. 1417. In addition to amounts otherwise made available by this division, $180,000,000 is appropriated for ''Department of Energy, Energy Programs, Advanced Research Projects Agency—Energy''.

SEC. 1418. No appropriation, funds, or authority made available pursuant to section 1101 for the Department of Energy or Corps of Engineers, Civil shall be used to initiate or resume any program, project or activity or to initiate Requests For Proposals or similar arrangements (including Requests for Quotations, Requests for Information, and Funding Opportunity Announcements) for a program, project or activity if the program, project or activity has not been funded by Congress, unless prior approval is received from the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 1419. Notwithstanding section 1101, the level for ''Independent Agencies, Appalachian Regional Commission'' shall be $68,400,000.

SEC. 1420. Notwithstanding section 1101, the level for ''Independent Agencies, Delta Regional Authority'' shall be $11,700,000.

SEC. 1421. Notwithstanding section 1101, the level for ''Independent Agencies, Denali Commission'' shall be $10,700,000.

SEC. 1422. Notwithstanding section 1101, the level for ''Defense Nuclear Facilities Safety Board'' shall be $23,250,000.

SEC. 1423. Notwithstanding section 1101, for the ''Nuclear Regulatory Commission, Salaries and Expenses'', for necessary expenses in carrying out the purposes of the Energy Reorganization Act of 1974, as amended, and the Atomic Energy Act of 1954, as amended, including official representation expenses (not to exceed $25,000), $1,043,483,000, to remain available until expended: *Provided*, That of the amount appropriated herein, $10,000,000 shall be derived from the Nuclear Waste Fund: *Provided further*, That revenues from licensing fees, inspection services, and other services and collections estimated at $906,220,000 in fiscal year 2011 shall be retained and used for necessary salaries and expenses in this account, notwithstanding 31 U.S.C. 3302, and shall remain available until expended: *Provided further*, That the sum herein appropriated shall be reduced by the amount of revenues received during fiscal year 2011 so as to result in a final fiscal year 2011 appropriation estimated at not more than $137,263,000: *Provided further*, That the last proviso under such heading in title IV of Public Law 111–85 shall not apply to funds appropriated by this division.

SEC. 1424. Section 15751(b) of title 40, United States Code, shall not apply to funds appropriated by this division.

SEC. 1425. Notwithstanding section 1101, and subject to section 502 of the Congressional Budget Act of 1974, commitments to guarantee loans for renewable energy or efficient end-use energy technologies under title XVII of the Energy Policy Act of 2005 shall not exceed a total principal amount of $1,183,000,000, to remain available until committed: *Provided*, That, in addition to the amounts above, for the cost of loan guarantees for renewable energy or efficient end-use energy technologies under section 1703 of the Energy Policy Act of 2005, $170,000,000 is appropriated, to remain available until expended: *Provided further*, That the amounts provided in this section are in addition to those provided in any other Act: *Provided further*, That, notwithstanding section 1703(a)(2) of the Energy Policy Act of 2005, funds appropriated for the cost of loan guarantees and loan guarantee authority provided by this section are also available for projects for which an application has been submitted to the Department of Energy prior to February 24, 2011, in whole or in part, for a loan guarantee under section 1705 of the Energy Policy Act of 2005: *Provided further*, That of the authority provided for commitments to guarantee loans for renewable and/or energy efficient systems and manufacturing, and distributed energy generation, transmission and distribution projects under the heading ''Department of Energy, Title 17 Innovative Technology Loan Guarantee Authority Loan Program'', in title III of division C of Public Law 111–8, $18,183,000,000 is rescinded: *Provided further*, That for amounts collected pursuant to section 1702(b)(2) of the Energy Policy Act of 2005, the source of such payment received from borrowers may not be a loan or other debt obligation that is guaranteed by the Federal Government: *Provided further*, That none of such loan guarantee authority made available by this division shall be available for commitments to guarantee loans for any projects where funds, personnel, or property (tangible or intangible) of any Federal agency, instrumentality, personnel, or affiliated entity are expected be used (directly or indirectly) through acquisitions, contracts, demonstrations, exchanges, grants, incentives, leases, procurements, sales, other transaction authority, or other arrangements, to support the project or to obtain goods or services from the project: *Provided further*, That the previous proviso shall not be interpreted as precluding the use of the loan guarantee authority by this division for commitments to guarantee loans for (1) projects as a result of such projects benefitting from otherwise allowable Federal income tax benefits; (2) projects as a result of such projects benefitting from being located on Federal land pursuant to a lease or right-of-way agreement for which all consideration for all uses is (A) paid exclusively in cash, (B) deposited in the Treasury as offsetting receipts, and (C) equal to the fair market value as determined by the head of the relevant Federal agency; (3) projects as a result of such projects benefitting from Federal insurance programs, including under section 170 of the Atomic Energy Act of 1954 (42 U.S.C. 2210; commonly known as the ''Price-Anderson Act''); or (4) electric generation projects using transmission facilities owned or operated by a Federal Power Marketing Administration or the Tennessee Valley Authority that have been authorized, approved, and financed independent of the project receiving the guarantee: *Provided further*, That none of the loan guarantee authority made available by this division shall be available for any project unless the Director of the Office of Management and Budget has certified in advance in writing that the loan guarantee and the project comply with the provisions under this section: *Provided further*, That an additional amount for necessary administrative expenses to carry out this Loan Guarantee program, $58,000,000 is appropriated, to remain available until expended: *Provided further*, That $58,000,000 of the fees collected pursuant to section 1702(h) of the Energy Policy Act of 2005 shall be credited as offsetting collections to this account to cover administrative expenses and shall remain available until expended, so as to result in a final fiscal year 2011 appropriation from the general fund estimated at not more than $0.

SEC. 1426. Of the unobligated balances available for ''Corps of Engineers—Civil, Department of the Army, Mississippi River and Tributaries'', $22,000,000 is rescinded, to be derived by cancelling unobligated balances for the Yazoo Basin, Backwater Pump, Mississippi project.

SEC. 1427. Notwithstanding section 1101, the level for ''Corps of Engineers—Civil, Department of the Army, Investigations'' shall be $127,000,000.

SEC. 1428. Notwithstanding section 1101, the level for ''Corps of Engineers—Civil, Department of the Army, Construction'' shall be $1,793,409,000.

SEC. 1429. Notwithstanding section 1101, the level for ''Corps of Engineers—Civil, Department of the Army, Mississippi River and Tributaries'' shall be $264,435,000.

SEC. 1430. Notwithstanding section 1101, the level for ''Corps of Engineers—Civil, Department of the Army, Operation and Maintenance'' shall be $2,370,500,000.

SEC. 1431. Notwithstanding section 1101, the level for ''Corps of Engineers—Civil, Department of the Army, Formerly Utilized Sites Remedial Action Program'' shall be $130,000,000.

SEC. 1432. Notwithstanding section 1101, the level for ''Department of the Interior, Central Utah Project, Central Utah Project Completion Account'' shall be $32,004,000.

SEC. 1433. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Reclamation, Water and Related Resources'' shall be $913,500,000.

SEC. 1434. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Reclamation, Central Valley Project Restoration Fund'' shall be $49,915,000.

SEC. 1435. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Energy Efficiency and Renewable Energy'' shall be $1,835,000,000.

SEC. 1436. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Electricity Delivery and Energy Reliability'' shall be $145,000,000.

SEC. 1437. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Nuclear Energy'' shall be $737,092,000.

SEC. 1438. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Fossil Energy Research and Development'' shall be $586,000,000.

SEC. 1439. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Naval Petroleum and Oil Shale Reserves'' shall be $23,000,000.

SEC. 1440. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Strategic Petroleum Reserve'' shall be $209,861,000: *Provided*, That of the funds appropriated in Public Law 110–161 under this heading for new site land acquisition activities, $14,493,000 is rescinded: *Provided further*, That of the funds appropriated in Public Law 110–329 under this heading for new site expansion activities, beyond land acquisition, $31,507,000 is rescinded: *Provided further*, That of the funds appropriated in Public Law 111–85 under this heading, $25,000,000 is rescinded.

SEC. 1441. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Northeast Home Heating Oil Reserve'' shall be $11,000,000.

SEC. 1442. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Energy Information Administration'' shall be $95,600,000.

SEC. 1443. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Non-Defense Environmental Cleanup'' shall be $225,200,000.

SEC. 1444. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Uranium Enrichment Decontamination and Decommissioning Fund'' shall be $509,000,000.

SEC. 1445. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Science'' shall be $4,884,000,000.

SEC. 1446. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Nuclear Waste Disposal'' shall be $0.

SEC. 1447. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Departmental Administration'' shall be $268,640,000: *Provided*, That miscellaneous revenues under this appropriation may be $119,740,000 so as to result in a final fiscal year 2011 appropriation from the general fund estimated at no more than $148,900,000.

SEC. 1448. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Advanced Technology Vehicles Manufacturing Loan Program'' shall be $9,998,000.

SEC. 1449. Notwithstanding section 1101, the level for ''Department of Energy, Energy Programs, Office of the Inspector General'' shall be $42,850,000.

SEC. 1450. Notwithstanding section 1101, the level for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Weapons Activities'' shall be $6,993,419,000.

SEC. 1451. Notwithstanding section 1101, the level for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear

Security Administration, Defense Nuclear Nonproliferation'' shall be $2,326,000,000.

SEC. 1452. Notwithstanding section 1101, the level for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Naval Reactors'' shall be $967,000,000.

SEC. 1453. Notwithstanding section 1101, the level for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Office of the Administrator'' shall be $399,793,000.

SEC. 1454. Notwithstanding section 1101, the level for ''Department of Energy, Environmental and Other Defense Activities, Defense Environmental Cleanup'' shall be $5,016,041,000, of which $33,700,000 shall be transferred to the ''Uranium Enrichment Decontamination and Decommissioning Fund''.

SEC. 1455. Notwithstanding section 1101, the level for ''Department of Energy, Environmental and Other Defense Activities, Other Defense Activities'' shall be $790,000,000.

SEC. 1456. Notwithstanding section 1101, the level for ''Department of Energy, Environmental and Other Defense Activities, Defense Nuclear Waste Disposal'' shall be $0.

SEC. 1457. Of the unobligated balances from prior year appropriations available for ''Corps of Engineers—Civil, Department of the Army, Construction'', $100,000,000 is rescinded, to be derived from the Continuing Authorities Program: *Provided*, That of the unobligated balances made available for accounts under the heading ''Corps of Engineers—Civil, Department of the Army'' in Public Law 110–161 or any appropriation Act prior to such Act, $76,000,000 is rescinded (in addition to funds rescinded in the previous proviso).

SEC. 1458. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Energy Efficiency and Renewable Energy'', $30,000,000 is rescinded.

SEC. 1459. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Electricity Delivery and Energy Reliability'', $3,700,000 is rescinded.

SEC. 1460. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Nuclear Energy'', $6,300,000 is rescinded.

SEC. 1461. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Fossil Energy Research and Development'', $140,000,000 is rescinded.

SEC. 1462. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Naval Petroleum and Oil Shale Reserves'', $2,100,000 is rescinded.

SEC. 1463. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Clean Coal Technology'', $16,500,000 is rescinded.

SEC. 1464. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Strategic Petroleum Reserve'', $15,300,000 is rescinded in addition to funds rescinded elsewhere in this division.

SEC. 1465. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Energy Information Administration'', $400,000 is rescinded.

SEC. 1466. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Non-Defense Environmental Cleanup'', $900,000 is rescinded.

SEC. 1467. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Uranium Enrichment Decontamination and Decommissioning Fund'', $9,900,000 is rescinded.

SEC. 1468. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Science'', $15,000,000 is rescinded.

SEC. 1469. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Nuclear Waste Disposal'', $2,800,000 is rescinded.

SEC. 1470. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Energy Programs, Departmental Administration'', $81,900,000 is rescinded.

SEC. 1471. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Weapons Activities'', $50,000,000 is rescinded.

SEC. 1472. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Defense Nuclear Nonproliferation'', $45,000,000 is rescinded.

SEC. 1473. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Naval Reactors'', $1,000,000 is rescinded.

SEC. 1474. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Atomic Energy Defense Activities, National Nuclear Security Administration, Office of the Administrator'', $5,700,000 is rescinded.

SEC. 1475. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Environmental and Other Defense Activities, Defense Environmental Cleanup'', $11,900,000 is rescinded.

SEC. 1476. Of the unobligated balances from prior year appropriations available for ''Department of Energy, Environmental and Other Defense Activities, Other Defense Activities'', $3,400,000 is rescinded.

SEC. 1477. Of the unobligated balances from prior year appropriations available for ''Independent Agencies, Denali Commission'', $15,000,000 is rescinded.

SEC. 1478. Within 30 days of enactment of this division, the Department of Energy; Corps of Engineers, Civil; Nuclear Regulatory Commission; and Bureau of Reclamation shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spending, expenditure, or operating plan for fiscal year 2011 at a level of detail below the account level.

SEC. 1479. No rescission made in this title shall apply to any amount previously designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 1480. None of the funds made available by this division or prior appropriation Acts (other than Public Law 111–5) for Energy and Water Development may be used to pay the costs of employment (such as pay and benefits), or termination (such as severance pay), of any employee or contractor of the Department of Energy who is appointed, employed, or retained under the authority of, or using funds provided by, Public Law 111–5, or whose functions or operations (including programmatic responsibilities) are substantially or entirely funded under Public Law 111–5: *Provided*, That this section shall not apply to any employee or contractor of the Department of Energy whose functions or operations are primarily or wholly to provide oversight for funds provided by Public Law 111–5.

SEC. 1481. None of the funds made available by this division may be used for the study of the Missouri River Projects authorized in section 108 of the Energy and Water Development and Related Agencies Appropriations Act, 2009 (division C of Public Law 111–8).

SEC. 1482. Notwithstanding section 1101, the levels made available by this division for the following accounts of the Department of Energy are reduced by the following amounts, to reflect savings resulting from the contractor pay freeze instituted by the Department: ''Energy Programs, Energy Efficiency and Renewable Energy'', $5,700,000; ''Energy Programs, Nuclear Energy'', $3,500,000; ''Energy Programs, Fossil Energy Research and Development'', $300,000; ''Energy Programs, Non-Defense Environmental Cleanup'', $400,000; ''Energy Programs, Uranium Enrichment Decontamination and Decommissioning Fund'', $1,000,000; ''Energy Programs, Science'', $16,600,000; ''Energy Programs, Departmental Administration'', $18,000,000; ''Environmental and Other Defense Activities, Defense Environmental Cleanup'', $14,400,000; ''Atomic Energy Defense Activities, National Nuclear Security Administration, Weapons Activities'', $33,100,000; ''Atomic Energy Defense Activities, National Nuclear Security Administration, Defense Nuclear Nonproliferation'', $2,700,000; and ''Atomic Energy Defense Activities, National Nuclear Security Administration, Naval Reactors'', $4,900,000.

TITLE V—FINANCIAL SERVICES AND GENERAL GOVERNMENT

SEC. 1501. Notwithstanding section 1101, the level for ''Department of the Treasury, Departmental Offices, Salaries and Expenses'' shall be $307,002,000, of which $100,000,000 shall be for terrorism and financial intelligence activities; and the requirement under this heading to transfer funds to the National Academy of Sciences for a carbon audit of the tax code and the funding designations related to executive direction program activities, economic policies and program activities, financial policies and program activities, Treasury-wide management policies and program activities, and administration program activities shall not apply to funds appropriated by this division; and funding under this heading is available for international representation commitments of the Secretary, and for contribution to the Global Forum on Transparency and Exchange of Information for Tax Purposes.

SEC. 1502. Notwithstanding section 1101, the level for ''Department of the Treasury, Departmental Offices, Department-wide Systems and Capital Investments Programs'' shall be $4,000,000, and the first proviso under such heading shall not apply to funds appropriated by this division.

SEC. 1503. Notwithstanding section 1101, the level for ''Department of the Treasury, Departmental Offices, Special Inspector General for the Troubled Asset Relief Program, Salaries and Expenses'' shall be $36,300,000.

SEC. 1504. Of the unobligated balances available for ''Department of the Treasury, Treasury Forfeiture Fund'', $400,000,000 are rescinded.

SEC. 1505. Notwithstanding section 1101, the level for ''Department of the Treasury, Financial Management Service, Salaries and Expenses'' shall be $233,253,000.

SEC. 1506. Notwithstanding section 1101, the level for ''Department of the Treasury, Alcohol and Tobacco Tax and Trade Bureau, Salaries and Expenses'' shall be $101,000,000, and the first proviso under such heading shall not apply to funds appropriated by this division.

SEC. 1507. Notwithstanding section 1101, the level for ''Department of the Treasury, Bureau of the Public Debt, Administering the Public Debt'' shall be $184,985,000.

SEC. 1508. Notwithstanding section 1101, the level for ''Department of the Treasury,

Community Development Financial Institutions Fund Program Account'' shall be $227,000,000 for financial assistance, technical assistance, training outreach programs, and administrative expenses, of which $22,000,000 shall be for the Bank Enterprise Award program; and under such heading the requirement to transfer funds to the Capital Magnet Fund and the funding designations for pilot project grants and administration shall not apply to funds appropriated by this division.

SEC. 1509. Notwithstanding section 1101, the funding designations for tax enforcement under the heading ''Department of the Treasury, Internal Revenue Service, Operations Support'' shall not apply to funds appropriated by this division.

SEC. 1510. Notwithstanding section 1101, section 105 of division C of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1511. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, The White House, Salaries and Expenses'' shall be $58,552,000.

SEC. 1512. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Executive Residence at the White House, Operating Expenses'' shall be $13,700,000.

SEC. 1513. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, White House Repair and Restoration'' shall be $2,005,000.

SEC. 1514. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, National Security Council, Salaries and Expenses'' shall be $13,074,000.

SEC. 1515. The amounts included under the heading ''Executive Office of the President and Funds Appropriated to the President, Office of Administration, Salaries and Expenses'' in division C of Public Law 111-117 shall be applied to funds appropriated by this division by substituting ''$12,777,000'' for ''$16,768,000''.

SEC. 1516. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Office of Management and Budget, Salaries and Expenses'' shall be $91,934,000.

SEC. 1517. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Office of National Drug Control Policy, Salaries and Expenses'' shall be $27,138,000.

SEC. 1518. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Office of National Drug Control Policy, Counterdrug Technology Assessment Center'' shall be $0.

SEC. 1519. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Office of National Drug Control Policy, Other Federal Drug Control Programs'' shall be $140,900,000, of which $9,000,000 shall be for anti-doping activities; of which $35,000,000 shall be for a national media campaign; and the amounts included under such heading shall be applied to funds appropriated by this division by substituting ''$0'' for ''$10,000,000'', ''$1,000,000'', ''$1,250,000'', and ''$250,000''.

SEC. 1520. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Partnership Fund for Program Integrity Innovation'' shall be $0.

SEC. 1521. Of the unobligated balances available for ''Executive Office of the President and Funds Appropriated to the President, Partnership Fund for Program Integrity Innovation'', $5,000,000 are rescinded.

SEC. 1522. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Special Assistance to the President, Salaries and Expenses'' shall be $4,558,000.

SEC. 1523. Notwithstanding section 1101, the level for ''Executive Office of the President and Funds Appropriated to the President, Official Residence of the Vice President, Operating Expenses'' shall be $327,000.

SEC. 1524. Notwithstanding section 1101, the level for ''The Judiciary, Supreme Court of the United States, Care of the Building and Grounds'' shall be $8,175,000.

SEC. 1525. Notwithstanding section 1101, the level for ''The Judiciary, Courts of Appeals, District Courts, and Other Judicial Services, Salaries and Expenses'' shall be $5,013,583,000.

SEC. 1526. The amount included in the second paragraph under the heading ''The Judiciary, Courts of Appeals, District Courts, and Other Judicial Services, Salaries and Expenses'' in division C of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$4,785,000'' for ''$5,428,000''.

SEC. 1527. Notwithstanding section 1101, the level for ''The Judiciary, Courts of Appeals, District Courts, and Other Judicial Services, Defender Services'' shall be $1,027,748,000.

SEC. 1528. Notwithstanding section 1101, the level for ''The Judiciary, Courts of Appeals, District Courts, and Other Judicial Services, Fees of Jurors and Commissioners'' shall be $52,410,000.

SEC. 1529. Notwithstanding section 1101, the level for ''The Judiciary, Courts of Appeals, District Courts, and Other Judicial Services, Court Security'' shall be $467,607,000.

SEC. 1530. Section 203(c) of the Judicial Improvements Act of 1990 (Public Law 101–650; 28 U.S.C. 133 note) is amended—

(1) in the third sentence (relating to the District of Kansas) by striking ''19 years'' and inserting ''20 years''; and

(2) in the seventh sentence (relating to the District of Hawaii), by striking ''16 years'' and inserting ''17 years''.

SEC. 1531. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment to the District of Columbia Courts'' shall be $243,420,000, of which $57,760,000 shall be for capital improvements.

SEC. 1532. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment to the District of Columbia Water and Sewer Authority'' shall be $11,499,000.

SEC. 1533. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment to the Criminal Justice Coordinating Council'' shall be $1,800,000.

SEC. 1534. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment to the Office of the Chief Financial Officer for the District of Columbia'' shall be $0.

SEC. 1535. (a) Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment for School Improvement'' shall be $77,700,000 and shall remain available until expended, of which $42,200,000 shall be for the District of Columbia Public Schools, $20,000,000 shall be to expand quality public charter schools, and $15,500,000 shall be for opportunity scholarships, and the second reference to ''$1,000,000'' under such heading shall be applied to funds appropriated by this division by substituting ''$0''.

(b) The authority and conditions provided in the District of Columbia Appropriations Act, 2010 (Public Law 111–117; 123 Stat. 3181) under the heading described in subsection (a) shall apply with respect to the funds made available under this division, with the following modifications:

(1) The first proviso under such heading shall not apply.

(2) Notwithstanding the second proviso under such heading, the funds may be made available for scholarships to students, without regard to whether any student received a scholarship in any prior school year.

(3) The fourth proviso under such heading shall not apply.

(4) Notwithstanding the fifth proviso under such heading, the Secretary of Education shall ensure that site inspections of participating schools are conducted annually.

SEC. 1536. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment for Consolidated Laboratory Facility'' shall be $0.

SEC. 1537. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment for Housing for the Homeless'' shall be $10,000,000.

SEC. 1538. Notwithstanding section 1101, the level for ''District of Columbia, Federal Funds, Federal Payment for Youth Services'' shall be $0.

SEC. 1539. Notwithstanding any other provision of this division, except section 1106, the District of Columbia may expend local funds for programs and activities under the heading ''District of Columbia Funds'' for such programs and activities under title IV of S. 3677 (111th Congress), as reported by the Committee on Appropriations of the Senate, at the rate set forth under ''District of Columbia Funds'' as included in the Fiscal Year 2011 Budget Request Act (D.C. Act 18–448), as modified as of the date of the enactment of this division.

SEC. 1540. Section 805(b) of division C of Public Law 111–117 is amended by striking ''November 1, 2010'' and inserting ''November 1, 2011''.

SEC. 1541. Notwithstanding section 1101, the level for ''Independent Agencies, Administrative Conference of the United States, Salaries and Expenses'' shall be $2,750,000.

SEC. 1542. Notwithstanding section 1101, the level for ''Independent Agencies, Christopher Columbus Fellowship Foundation, Salaries and Expenses'' shall be $500,000.

SEC. 1543. Notwithstanding section 1101, the level for ''Related Agencies and Food and Drug Administration, Independent Agencies, Commodity Futures Trading Commission'' shall be $202,675,000, to remain available until September 30, 2012: *Provided*, That the proviso under such heading in Public Law 111–80 shall not apply to funds provided by this division: *Provided further*, That not less than $37,200,000 shall be for the highest priority information technology activities of the Commission.

SEC. 1544. Notwithstanding section 1101, the level for ''Independent Agencies, Consumer Product Safety Commission, Salaries and Expenses'' shall be $115,018,000, of which $1,000,000 shall remain available until September 30, 2012 for the Virginia Graeme Baker Pool and Spa Safety Act grant program.

SEC. 1545. Notwithstanding section 1101, the level for ''Independent Agencies, Election Assistance Commission, Salaries and Expenses'' shall be $16,300,000, of which $3,250,000 shall be transferred to the National Institute of Standards and Technology for election reform activities authorized under the Help America Vote Act of 2002 (Public Law 107–252).

SEC. 1546. Notwithstanding section 1101, the level for ''Independent Agencies, Election Assistance Commission, Election Reform Programs'' shall be $0.

SEC. 1547. Any expenses incurred by the Election Assistance Commission using

amounts appropriated under the heading ''Election Assistance Commission, Election Reform Programs'' in the Transportation, Treasury, and Independent Agencies Appropriations Act, 2004 (Public Law 108–199; 118 Stat. 327) for any program or activity which the Commission is authorized to carry out under the Help America Vote Act of 2002 shall be considered to have been incurred for the programs and activities described under such heading.

SEC. 1548. Notwithstanding section 1101, the level for ''Independent Agencies, Federal Deposit Insurance Corporation, Office of the Inspector General'' shall be $42,942,000.

SEC. 1549. (a) Notwithstanding section 1101, the aggregate amount of new obligational authority provided under the heading ''Independent Agencies, General Services Administration, Real Property Activities, Federal Buildings Fund, Limitations on Availability of Revenue'' for Federal buildings and courthouses and other purposes of the Fund shall be $7,597,540,000, of which: (1) $82,000,000 is for ''Construction and Acquisition''; and (2) $280,000,000 is for ''Repairs and Alterations''.

(b) The General Services Administration shall submit a detailed plan, by project, regarding the use of funds to the Committees on Appropriations of the House of Representatives and the Senate within 30 days of enactment of this section and will provide notification to the Committees within 15 days prior to any changes regarding the use of these funds.

SEC. 1550. Notwithstanding section 1101, the level for ''Independent Agencies, General Services Administration, General Activities, Government-Wide Policy'' shall be $66,621,000.

SEC. 1551. Notwithstanding section 1101, the level for ''Independent Agencies, General Services Administration, General Activities, Operating Expenses'' shall be $70,022,000, and matters pertaining to the amount of $1,000,000 under such heading shall not apply to funds appropriated by this division.

SEC. 1552. Notwithstanding section 1101, the level for ''Independent Agencies, General Services Administration, General Activities, Electronic Government Fund'' shall be $8,000,000.

SEC. 1553. Notwithstanding section 1101, the level for ''Independent Agencies, General Services Administration, General Activities, Allowances and Office Staff for Former Presidents'' shall be $3,800,000.

SEC. 1554. Notwithstanding section 1101, the level for ''Independent Agencies, General Services Administration, General Activities, Federal Citizen Services Fund'' shall be $34,184,000.

SEC. 1555. Of the unobligated balances available under the heading ''Independent Agencies, General Services Administration, Real Property Activities, Federal Buildings Fund, Limitations on Availability of Revenue'', $25,000,000 are rescinded and shall be returned to the General Fund of the Treasury.

SEC. 1556. Notwithstanding section 1101, the level for ''Independent Agencies, Harry S Truman Scholarship Foundation, Salaries and Expenses'' shall be $750,000.

SEC. 1557. Notwithstanding section 1101, the level for ''Independent Agencies, National Archives and Records Administration, Office of Inspector General'' shall be $4,250,000.

SEC. 1558. Notwithstanding section 1101, the level for ''Independent Agencies, National Archives and Records Administration, Electronic Records Archives'' shall be $72,000,000, of which $52,500,000 shall remain available until September 30, 2013.

SEC. 1559. Notwithstanding section 1101, the level for ''Independent Agencies, National Archives and Records Administration, Repairs and Restoration'' shall be $11,848,000.

SEC. 1560. Of the unobligated balances available under the heading ''Independent Agencies, National Archives and Records Administration, Repairs and Restoration'', $3,198,000 are rescinded, which shall be derived from amounts made available for a new regional archives and records facility in Anchorage, Alaska.

SEC. 1561. Notwithstanding section 1101, the level for ''Independent Agencies, National Archives and Records Administration, National Historical Publications and Records Commission, Grants Program'' shall be $7,000,000.

SEC. 1562. The amounts included under the heading ''Independent Agencies, Office of Personnel Management, Salaries and Expenses'' in division C of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$97,970,000'' for ''$102,970,000''.

SEC. 1563. Notwithstanding section 1101, the level for ''Independent Agencies, Privacy and Civil Liberties Oversight Board, Salaries and Expenses'' shall be $1,000,000.

SEC. 1564. Of the unobligated balances available for ''Independent Agencies, Privacy and Civil Liberties Oversight Board, Salaries and Expenses'', $1,500,000 are rescinded.

SEC. 1565. Notwithstanding section 1101, the level for ''Independent Agencies, Securities and Exchange Commission, Salaries and Expenses'' shall be $1,185,000,000, and the proviso under such heading pertaining to prior year unobligated balances shall not apply to funds appropriated by this division.

SEC. 1566. Notwithstanding section 1101, the level provided under section 523 of division C of Public Law 111–117 shall be $0.

SEC. 1567. Notwithstanding section 1101, the level for ''Independent Agencies, Small Business Administration, Surety Bond Guarantees Revolving Fund'' shall be $0.

SEC. 1568. The amounts included under the heading ''Independent Agencies, Small Business Administration, Disaster Loans Program Account'' in division C of Public Law 111–117 shall be applied to funds appropriated by this division as follows:

(1) By substituting ''$0'' for ''$1,690,000''.

(2) By substituting ''$0'' for ''$352,357''.

(3) By substituting ''$0'' for ''$1,337,643''.

(4) By substituting ''$45,463,000'' for ''$76,588,200''.

(5) By substituting ''$35,463,000'' for ''$65,278,200''.

(6) By substituting ''$0'' for ''$1,310,000''.

SEC. 1569. Notwithstanding section 1118, the amounts included under the heading ''Independent Agencies, United States Postal Service, Payment to the Postal Service Fund'' in division C of Public Law 111–117 shall be applied to funds appropriated by this division as follows:

(1) By substituting ''$86,705,000'' for ''$118,328,000''.

(2) By substituting ''$74,905,000'' for ''$89,328,000''.

(3) By substituting ''2011'' for ''2010''.

SEC. 1570. Notwithstanding section 1101, the level for ''Independent Agencies, United States Tax Court, Salaries and Expenses'' shall be $52,093,000, of which $2,852,000 shall be for security improvements.

SEC. 1571. Section 617 of Public Law 111–117 is amended by striking ''December 31, 2009'' and inserting ''December 31, 2010''.

SEC. 1572. Section 814 of division C of Public Law 111–117 shall be applied to funds appropriated by this division by striking ''Federal''.

SEC. 1573. (a) The Consumer Financial Protection Act of 2010 is amended by adding after section 1016 the following new sections:

''SEC. 1016A. ANNUAL AUDITS.

''(a) ANNUAL INDEPENDENT AUDIT.—The Bureau shall order an annual independent audit of the operations and budget of the Bureau.

''(b) ANNUAL GAO AUDIT.—The Comptroller General of the United States shall conduct an annual audit of the Bureau's financial statements in accordance with generally accepted government accounting standards.

''SEC. 1016B. GAO STUDY OF FINANCIAL REGULATIONS.

''(a) STUDY.—Not later than the end of the 180-day period beginning on the date of the enactment of this Act, and annually thereafter, the Comptroller General of the United States shall conduct a study of financial services regulations, including activities of the Bureau. Such study shall include an analysis of—

''(1) the impact of regulation on the financial marketplace, including the effects on the safety and soundness of regulated entities, cost and availability of credit, savings realized by consumers, reductions in consumer paperwork burden, changes in personal and small business bankruptcy filings, and costs of compliance with rules, including whether relevant Federal agencies are applying sound cost-benefit analysis in promulgating rules;

''(2) efforts to avoid duplicative or conflicting rulemakings, including an evaluation of the consultative process under subparagraphs (B) and (C) of section 1022(b)(2), information requests, and examinations; and

''(3) other matters related to the operations of financial services regulations deemed by the Comptroller General to be appropriate.

''(b) REPORT.—Not later than the end of the 30-day period following the completion of a study conducted pursuant to subsection (a), the Comptroller General shall issue a report to the Congress containing a detailed description of all findings and conclusions made by the Comptroller General in carrying out such study, together with such recommendations for legislative or administrative action as the Comptroller General may determine to be appropriate.''.

(b) The table of contents for the Dodd-Frank Wall Street Reform and Consumer Protection Act is amended by inserting after the item relating to section 1016 the following new items:

''Sec. 1016A. Annual audits.
''Sec. 1016B. GAO study of financial regulations.''.

(c) The initial audits described under section 1016A of the Consumer Financial Protection Act of 2010 shall be completed not later than the end of the 180-day period beginning on the date of the enactment of this Act.

SEC. 1574. The Government Accountability Office is directed to report to the Committees on Appropriations of the House of Representatives and the Senate on the data collected by the Consumer Product Safety Commission (CPSC) under section 6A of the Consumer Product Safety Act (15 U.S.C. 2055a) within 180 days of enactment of this division. This study shall include an analysis of:

(1) Whether the information submitted is required to be from first-hand knowledge.

(2) Whether the information required for submission of a complaint is sufficient to enable the CPSC, where appropriate, to investigate the facts surrounding the incident and determine the material accuracy of the report.

(3) Whether the information submitted to the database with respect to a product is sufficient to enable consumers, the CPSC, and manufacturers to identify such product.

(4) Whether the length of time before posting complaints is a reasonable timeframe for adjudicating pending claims of material inaccuracy.

SEC. 1575. Notwithstanding section 1101, the limits set forth in section 702 of Public Law 111–117 shall not apply to any vehicle

that is a commercial item and which operates on emerging motor vehicle technology, including but not limited to electric, plug-in hybrid electric, and hydrogen fuel cell vehicles.

SEC. 1576. (a) Section 1403(8) of the Virginia Graeme Baker Pool and Spa Safety Act (15 U.S.C. 8002(8)) is amended by adding at the end the following: ''For purposes of eligibility for the grants authorized under section 1405, such term shall also include any political subdivision of a State.''.

(b) Section 1405(e) of the Virginia Graeme Baker Pool and Spa Safety Act (15 U.S.C. 8004 (e)) is amended by striking ''2010'' and inserting ''2011''.

TITLE VI—HOMELAND SECURITY

SEC. 1601. Within 24 days after the date of enactment of this division, the Secretary of Homeland Security shall submit to the Committees on Appropriations of the Senate and the House of Representatives an expenditure plan for fiscal year 2011 that displays the level of funding by program, project, and activity consistent with the table of detailed funding recommendations contained at the end of the joint explanatory statement accompanying the Department of Homeland Security Appropriations Act, 2010 (Public Law 111-83) and the classified annex accompanying this division: *Provided*, That all plans for expenditure required in Public Law 111-83 shall be updated for fiscal year 2011 budget authority and submitted to the Committees on Appropriations of the Senate and House of Representatives within 45 days after the date of enactment of this division, notwithstanding the specified withholding of funds and associated approval requirements.

SEC. 1602. Notwithstanding section 1101, the level for ''Department of Homeland Security, Office of the Secretary and Executive Management'' shall be $136,818,000.

SEC. 1603. Notwithstanding section 1101, the level for ''Department of Homeland Security, Office of the Under Secretary for Management'' shall be $239,933,000.

SEC. 1604. Notwithstanding section 1101, for an additional amount under the heading ''Department of Homeland Security, Office of the Under Secretary for Management'', $77,400,000, to plan, acquire, construct, renovate, remediate, equip, furnish, and occupy buildings and facilities for the consolidation of the Department of Homeland Security headquarters.

SEC. 1605. Notwithstanding section 1101, the level for ''Department of Homeland Security, Office of the Chief Financial Officer'' shall be $53,430,000, of which $4,000,000 shall remain available until September 30, 2014, for financial systems consolidation efforts.

SEC. 1606. Notwithstanding section 1101, the level for ''Department of Homeland Security, Office of the Chief Information Officer'' shall be $333,393,000.

SEC. 1607. Notwithstanding section 1101, the level for ''Department of Homeland Security, Office of the Federal Coordinator for Gulf Coast Rebuilding'' shall be $0.

SEC. 1608. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Customs and Border Protection, Salaries and Expenses'' shall be $8,212,626,000: *Provided*, That for fiscal year 2011, the Border Patrol shall achieve an active duty presence of not less than 21,370 agents protecting the border of the United States by September 30, 2011.

SEC. 1609. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Customs and Border Protection, Automation Modernization'' shall be $336,575,000, of which $148,090,000 shall be for the Automated Commercial Environment.

SEC. 1610. (a) Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Customs and Border Protection, Border Security Fencing, Infrastructure, and Technology'' shall be $574,173,000.

(b) Paragraph (11) of the first proviso and the third and fourth provisos under the heading ''Border Security Fencing, Infrastructure, and Technology'' of Public Law 111-83 shall not apply to funds appropriated by this division.

SEC. 1611. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Customs and Border Protection, Air and Marine Interdiction, Operations, Maintenance, and Procurement'' shall be $516,326,000.

SEC. 1612. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Customs and Border Protection, Construction and Facilities Management'' shall be $260,000,000.

SEC. 1613. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Immigration and Customs Enforcement, Salaries and Expenses'' shall be $5,437,643,000: *Provided*, That U.S. Immigration and Customs Enforcement shall maintain a level of not fewer than 33,400 detention beds throughout fiscal year 2011.

SEC. 1614. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Immigration and Customs Enforcement, Automation Modernization'' shall be $74,000,000.

SEC. 1615. Notwithstanding section 1101, the level for ''Department of Homeland Security, U.S. Immigration and Customs Enforcement, Construction'' shall be $0.

SEC. 1616. Notwithstanding section 1101, the level for ''Department of Homeland Security, Transportation Security Administration, Aviation Security'' shall be $5,219,546,000: *Provided*, That the amounts included under such heading in Public Law 111–83 shall be applied to funds appropriated by this division as follows: by substituting ''$5,219,546,000'' for ''$5,214,040,000''; by substituting ''$4,307,793,000'' for ''$4,358,076,000''; by substituting ''$629,297,000'' for ''$1,116,406,000''; by substituting ''$911,753,000'' for ''$855,964,000''; by substituting ''$291,191,000'' for ''$778,300,000''; by substituting ''9 percent'' for ''28 percent''; and by substituting ''$3,119,546,000'' for ''$3,114,040,000'': *Provided further*, That none of the funds in this division may be used for any recruiting or hiring of personnel into the Transportation Security Administration that would cause the agency to exceed a staffing level of 46,000 full-time equivalent screeners: *Provided further*, That the preceding proviso shall not apply to personnel hired as part-time employees: *Provided further*, That not later than August 15, 2011, the Secretary of Homeland Security shall submit to the Committees on Appropriations of the Senate and House of Representatives a detailed report on: (1) the Department's efforts and the resources being devoted to develop more advanced integrated passenger screening technologies for the most effective security of passengers and baggage at the lowest possible operating and acquisition costs; (2) how the Transportation Security Administration is deploying its existing screener workforce in the most cost effective manner; and (3) labor savings from the deployment of improved technologies for passengers and baggage screening and how those savings are being used to offset security costs or reinvested to address security vulnerabilities.

SEC. 1617. Notwithstanding section 1101, the level for ''Department of Homeland Security, Transportation Security Administration, Surface Transportation Security'' shall be $105,961,000.

SEC. 1618. Notwithstanding section 1101, the level for ''Department of Homeland Security, Transportation Security Administration, Transportation Threat Assessment and Credentialing'' shall be $162,999,000.

SEC. 1619. Notwithstanding section 1101, the level for ''Department of Homeland Security, Transportation Security Administration, Transportation Security Support'' shall be $988,638,000.

SEC. 1620. Notwithstanding section 1101, the level for ''Department of Homeland Security, Transportation Security Administration, Federal Air Marshals'' shall be $929,802,000.

SEC. 1621. Notwithstanding section 1101, the level for ''Department of Homeland Security, Coast Guard, Operating Expenses'' shall be $6,907,338,000, of which $254,000,000 is designated as being for contingency operations directly related to the global war on terrorism pursuant to section 3(c)(2) of H. Res. 5 (112th Congress) and as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010: *Provided*, That the Coast Guard may decommission one Medium Endurance Cutter, two High Endurance Cutters, four HU-25 aircraft, and one Maritime Safety and Security Team, and may make necessary staffing adjustments at the Coast Guard Investigative Service and other support units, as specified in the budget justification materials for fiscal year 2011 as submitted to the Committees on Appropriations of the Senate and House of Representatives.

SEC. 1622. Notwithstanding section 1101, the level for ''Department of Homeland Security, Coast Guard, Acquisition, Construction, and Improvements'' shall be $1,519,783,000, of which $42,000,000 shall be for vessels, small boats, critical infrastructure, and related equipment; of which $36,000,000 shall be for other equipment; of which $69,200,000 shall be for shore, military housing, and aids to navigation facilities, including waterfront facilities at Navy installations used by the Coast Guard, of which $2,000,000 may be derived from the Coast Guard Housing Fund established pursuant to 14 U.S.C. 687; of which $106,083,000 shall be available for personnel compensation and benefits and related costs; and of which $1,266,500,000 shall be for the Integrated Deepwater Systems program: *Provided*, That of the funds made available for the Integrated Deepwater Systems program, $101,000,000 is for aircraft and $1,010,000,000 is for surface ships: *Provided further*, That of the funds provided for surface ships, $692,000,000 is available for the procurement of the fifth National Security Cutter, including procurement of the production of such cutter and production-related activities and post-delivery activities associated with such cutter.

SEC. 1623. Notwithstanding section 1101, the level for ''Department of Homeland Security, Coast Guard, Alteration of Bridges'' shall be $0.

SEC. 1624. Notwithstanding section 1101, the level for ''Department of Homeland Security, Coast Guard, Research, Development, Test, and Evaluation'' shall be $24,745,000, of which $4,000,000 shall be for research, development, test, and evaluation of technologies to prevent and respond to oil and hazardous substance spills.

SEC. 1625. Notwithstanding section 1101, the level for ''Department of Homeland Security, United States Secret Service, Salaries and Expenses'' shall be $1,514,361,000.

SEC. 1626. Notwithstanding section 1101, the level for ''Department of Homeland Security, National Protection and Programs Directorate, Management and Administration'' shall be $43,577,000.

SEC. 1627. Notwithstanding section 1101, the level for ''Department of Homeland Security, National Protection and Programs

Directorate, Infrastructure Protection and Information Security'' shall be $840,444,000.

SEC. 1628. Notwithstanding section 1101, under the heading ''Department of Homeland Security, National Protection and Programs Directorate, Federal Protective Service'', the revenues and collections of security fees credited to this account shall be available until expended for necessary expenses related to the protection of federally-owned and leased buildings and for the operations of the Federal Protective Service: *Provided*, That, no later than September 30, 2011, the Federal Protective Service shall maintain not fewer than 1,250 full-time staff and 935 full-time Police Officers, Inspectors, Area Commanders, and Special Agents who, while working, are directly engaged on a daily basis protecting and enforcing laws at Federal buildings (referred to as ''in-service field staff'').

SEC. 1629. Notwithstanding section 1101, the level for ''Department of Homeland Security, National Protection and Programs Directorate, United States Visitor and Immigrant Status Indicator Technology'' shall be $334,613,000.

SEC. 1630. Notwithstanding section 1101, the level for ''Department of Homeland Security, Office of Health Affairs'' shall be $139,734,000, of which $27,053,000 is for salaries and expenses.

SEC. 1631. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, Management and Administration'' shall be $788,400,000, of which $35,250,000 shall be for the Urban Search and Rescue Response System: *Provided*, That the directed obligations under such heading for capital improvements at the Mount Weather Emergency Operations Center in Public Law 111–83 shall have no force or effect to funds appropriated by this division.

SEC. 1632. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, State and Local Programs'' shall be $2,229,500,000: *Provided*, That of the amount provided by this division for the State Homeland Security Grant Program under such heading, $55,000,000 shall be for Operation Stonegarden; $45,000,000 shall be for the Driver's License Security Grant Program; $10,000,000 shall be for the Citizen Corps Program; and $35,000,000 shall be for the Metropolitan Medical Response System: *Provided further*, That the amounts provided by this division for the Citizen Corps Program under such heading shall not be subject to the requirements of subtitle A of title XX of the Homeland Security Act of 2002 (6 U.S.C. 603 et seq.): *Provided further*, That of the amount provided by this division for Public Transportation Security Assistance and Railroad Security Assistance under such heading, no less than $20,000,000 shall be for Amtrak security and no less than $5,000,000 shall be for Over-the-Road Bus Security: *Provided further*, That the amounts included under such heading in Public Law 111-83 shall be applied to funds appropriated by this division as follows: in paragraph (1), by substituting ''$725,000,000'' for ''$950,000,000''; in paragraph (2), by substituting ''$725,000,000'' for ''$887,000,000''; in paragraph (3), by substituting ''$15,000,000'' for ''$35,000,000''; in paragraph (4), by substituting ''$0'' for ''$41,000,000''; in paragraph (5), by substituting ''$0'' for ''$13,000,000''; in paragraph (6), by substituting ''$250,000,000'' for ''$300,000,000''; in paragraph (7), by substituting ''$250,000,000'' for ''$300,000,000''; in paragraph (8), by substituting ''$0'' for ''$12,000,000''; in paragraph (9), by substituting ''$0'' for ''$50,000,000''; in paragraph (10), by substituting ''$0'' for ''$50,000,000''; in paragraph (11), by substituting ''$0'' for ''$50,000,000''; in paragraph (12), by substituting ''$15,000,000'' for ''$60,000,000'' and by substituting ''$0'' for each following amount in such paragraph; in paragraph (13), by substituting ''$249,500,000'' for ''$267,200,000'', of which $155,500,000 shall be for training of State, local, and tribal emergency response providers: *Provided further*, That the directed obligations provisions in paragraphs 13(A), 13(B), and 13(C) under such heading in Public Law 111-83 shall have no force or effect to funds appropriated in this division: *Provided further*, That 5.8 percent of the amount provided for ''Department of Homeland Security, Federal Emergency Management Agency, State and Local Programs'' by this division shall be transferred to ''Department of Homeland Security, Federal Emergency Management Agency, Management and Administration'' for program administration.

SEC. 1633. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, Firefighter Assistance Grants'' for programs authorized by the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2201 et seq.) shall be $810,000,000, of which $405,000,000 shall be available to carry out section 33 of that Act (15 U.S.C. 2229) and $405,000,000 shall be available to carry out section 34 of that Act (15 U.S.C. 2229a): *Provided*, That the proviso included under ''Federal Emergency Management Agency, Firefighter Assistance Grants'' in the Department of Homeland Security Appropriations Act, 2010 (Public Law 111-83) shall have no force or effect: *Provided further*, That 5.8 percent of the amount available under this heading shall be transferred to ''Department of Homeland Security, Federal Emergency Management Agency, Management and Administration'' for program administration: *Provided further*, That none of the funds made available in this division may be used to enforce the requirements in—

(1) section 34(a)(1)(A) of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229a(a)(1)(A));

(2) section 34(a)(1)(E) of such Act; and

(3) section 34(c)(1) of such Act.

SEC. 1634. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, Disaster Relief'' shall be $2,650,000,000: *Provided*, That the Administrator of the Federal Emergency Management Agency shall submit quarterly reports to the Committees on Appropriations of the Senate and the House of Representatives providing estimates of funding requirements for ''Disaster Relief'' for the current fiscal year and the succeeding three fiscal years: *Provided further*, That the report shall provide (a) an estimate, by quarter, for the costs of all previously designated disasters; (b) an estimate, by quarter, for the cost of future disasters based on a five year average, excluding catastrophic disasters; and (c) an estimate of the date on which the ''Disaster Relief'' balance will reach $800,000,000.

SEC. 1635. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, Flood Map Modernization Fund'' shall be $182,000,000.

SEC. 1636. Notwithstanding section 1101, in fiscal year 2011, funds shall not be available from the National Flood Insurance Fund under section 1310 of the National Flood Insurance Act of 1968 (42 U.S.C. 4017) for operating expenses in excess of $110,000,000, and for agents' commissions and taxes in excess of $963,339,000: *Provided*, That notwithstanding section 1101, for activities under the National Flood Insurance Act of 1968 (42 U.S.C. 4001 et seq.) and the Flood Disaster Protection Act of 1973 (42 U.S.C. 4001 et seq.), the level shall be $169,000,000, which shall be derived from offsetting collections assessed and collected under 1308(d) of the National Flood Insurance Act of 1968 (42 U.S.C. 4015(d)), of which not to exceed $22,145,000 shall be available for salaries and expenses associated with flood mitigation and flood insurance operations; and not less than $146,855,000 shall be available for floodplain management and flood mapping, which shall remain available until September 30, 2012.

SEC. 1637. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, National Predisaster Mitigation Fund'' shall be $50,000,000: *Provided*, That the directed obligations under such heading in Public Law 111–83 shall have no force or effect to funds appropriated in this division.

SEC. 1638. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Emergency Management Agency, Emergency Food and Shelter'' shall be $120,000,000.

SEC. 1639. Notwithstanding section 1101, the level for ''Department of Homeland Security, United States Citizenship and Immigration Services'' shall be $146,593,000, of which $25,000,000 is for processing applications for asylum and refugee status, and of which $103,400,000 shall be for the E-Verify Program.

SEC. 1640. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Law Enforcement Training Center, Salaries and Expenses'' shall be $235,919,000.

SEC. 1641. Notwithstanding section 1101, the level for ''Department of Homeland Security, Federal Law Enforcement Training Center, Acquisitions, Construction, Improvements, and Related Expenses'' shall be $35,456,000.

SEC. 1642. Notwithstanding section 1101, the level for ''Department of Homeland Security, Science and Technology, Management and Administration'' shall be $141,200,000.

SEC. 1643. Notwithstanding section 1101, the level for ''Department of Homeland Security, Science and Technology, Research, Development, Acquisition, and Operations'' shall be $688,036,000, of which $40,000,000 shall remain available until September 30, 2013, for construction of the National Bio- and Agro-defense Facility central utility plant: *Provided*, That the final proviso included under the heading ''Department of Homeland Security, Science and Technology, Research, Development, Acquisition, and Operations'' in the Department of Homeland Security Appropriations Act, 2010 (Public Law 111–83) shall have no force or effect: *Provided further*, That funding for university programs shall not be reduced by more than twenty percent from the fiscal year 2010 enacted level.

SEC. 1644. Notwithstanding section 1101, the level for ''Department of Homeland Security, Domestic Nuclear Detection Office, Management and Administration'' shall be $36,992,000.

SEC. 1645. Notwithstanding section 1101, the level for ''Department of Homeland Security, Domestic Nuclear Detection Office, Research, Development, and Operations'' shall be $275,437,000.

SEC. 1646. Notwithstanding section 1101, the level for ''Department of Homeland Security, Domestic Nuclear Detection Office, Systems Acquisition'' shall be $30,000,000.

SEC. 1647. (a) Section 560 of Public Law 111–83 shall not apply to funds appropriated by this division.

(b) No funding provided in this division shall be used for construction of the National Bio- and Agro-defense Facility until the Department of Homeland Security has, pursuant to the schedule submitted by the

Department of Homeland Security on March 31, 2011, to the Committees on Appropriations of the Senate and House of Representatives—

(1) completed 50 percent of design planning for the National Bio- and Agro-defense Facility, and

(2) submitted to the Committees on Appropriations of the Senate and the House of Representatives a revised site-specific biosafety and biosecurity mitigation risk assessment that describes how to significantly reduce risks of conducting essential research and diagnostic testing at the National Bio- and Agro-defense Facility and addresses shortcomings identified in the National Academy of Sciences' evaluation of the initial site-specific biosafety and biosecurity mitigation risk assessment.

(c) The revised site-specific biosafety and biosecurity mitigation risk assessment required by subsection (b) shall—

(1) include a quantitative risk assessment for foot-and-mouth disease virus, in particular epidemiological and economic impact modeling to determine the overall risk of operating the facility for its expected 50-year life span, taking into account strategies to mitigate risk of foot-and-mouth disease virus release from the laboratory and ensure safe operations at the approved National Bio- and Agro-defense Facility site;

(2) address the impact of surveillance, response, and mitigation plans (developed in consultation with local, State, and Federal authorities and appropriate stakeholders) if a release occurs, to detect and control the spread of disease; and

(3) include overall risks of the most dangerous pathogens the Department of Homeland Security expects to hold in the National Bio- and Agro-defense Facility's biosafety level 4 facility, and effectiveness of mitigation strategies to reduce those risks.

(d) The Department of Homeland Security shall enter into a contract with the National Academy of Sciences to evaluate the adequacy and validity of the risk assessment required by subsection (b). The National Academy of Sciences shall submit a report on such evaluation within four months after the date the Department of Homeland Security concludes its risk assessment.

SEC. 1648. Section 503 of the Department of Homeland Security Appropriations Act, 2010 (Public Law 111-83) is amended by adding at the end the following:

''(e) The notification thresholds and procedures set forth in this section shall apply to any use of deobligated balances of funds provided in previous Department of Homeland Security Appropriations Acts.''.

SEC. 1649. For fiscal year 2011, sections 529, 541, and 545 of the Department of Homeland Security Appropriations Act, 2010 (Public Law 111-83; 123 Stat. 2174, 2176) shall have no force or effect.

SEC. 1650. Section 550(b) of the Department of Homeland Security Appropriations Act, 2007 (Public Law 109-295; 6 U.S.C. 121 note) is amended by striking ''on October 4, 2010'' and inserting ''on October 4, 2011''.

SEC. 1651. Section 831 of the Homeland Security Act of 2002 (6 U.S.C. 391) is amended—

(1) in subsection (a), by striking ''Until September 30, 2010'' and inserting ''Until September 30, 2011''; and

(2) in subsection (d)(1), by striking ''September 30, 2010'' and inserting ''September 30, 2011''.

SEC. 1652. Section 532(a) of Public Law 109-295 (120 Stat. 1384) is amended by striking ''2010'' and inserting ''2011''.

SEC. 1653. For an additional amount for necessary expenses for reimbursement of the actual costs to State and local governments for providing emergency management, public safety, and security at events, as determined by the Administrator of the Federal Emergency Management Agency, related to the presence of a National Special Security Event, $7,500,000, to remain available until September 30, 2012.

SEC. 1654. Notwithstanding the 10 percent limitation contained in section 503(c) of the Department of Homeland Security Appropriations Act, 2010 (Public Law 111-83), the Secretary of Homeland Security may transfer to the fund established by 8 U.S.C. 1101 note, up to $20,000,000 from appropriations available to the Department of Homeland Security: *Provided*, That the Secretary shall notify the Committees on Appropriations of the Senate and House of Representatives 5 days in advance of such transfer.

SEC. 1655. Of the funds transferred to the Department of Homeland Security when it was created in 2003, the following funds are hereby rescinded from the following accounts and programs in the specified amounts:

(1) $1,692,000 from ''Operations'';

(2) $4,871,492 from ''Violent Crime Reduction Program'';

(3) $17,195,677 from ''U.S. Customs and Border Protection, Salaries and Expenses''; and

(4) $10,568,934 from ''Office for Domestic Preparedness''.

SEC. 1656. The following unobligated balances made available to the Department of Homeland Security pursuant to section 505 of Department of Homeland Security Appropriations Act, 2010 (Public Law 111-83; 123 Stat. 2174) are rescinded:

(1) $1,437,015 from ''Office of the Secretary and Executive Management'';

(2) $821,104 from ''Office of the Under Secretary for Management'';

(3) $242,720 from ''Office of the Chief Financial Officer'';

(4) $23,143 from ''Office of the Chief Information Officer'';

(5) $440,847 from ''Analysis and Operations'';

(6) $76,498 from ''Office of the Federal Coordinator for Gulf Coast Rebuilding'';

(7) $223,301 from ''Office of Inspector General'';

(8) $12,503,273 from ''U.S. Customs and Border Protection, Salaries and Expenses'';

(9) $18,214,469 from ''U.S. Immigration and Customs Enforcement, Salaries and Expenses'';

(10) $2,429,978 from ''Transportation Security Administration, Federal Air Marshals'';

(11) $13,508,196 from ''Coast Guard, Operating Expenses'';

(12) $3,411,505 from ''Coast Guard, Reserve Training'';

(13) $150,499 from ''National Protection and Programs Directorate, Management and Administration'';

(14) $861,290 from ''National Protection and Programs Directorate, Infrastructure Protection and Information Security'';

(15) $602,956 from ''United States Secret Service, Salaries and Expenses'';

(16) $814,153 from ''Federal Emergency Management Agency, Management and Administration'';

(17) $831,400 from ''Office of Health Affairs'';

(18) $7,945,983 from ''United States Citizenship and Immigration Services'';

(19) $1,010,795 from ''Federal Law Enforcement Training Center, Salaries and Expenses'';

(20) $425,465 from ''Science and Technology, Management and Administration''; and

(21) $42,257 from ''Domestic Nuclear Detection Office, Management and Administration''.

SEC. 1657. Of the funds appropriated to the Department of Homeland Security, the following unobligated balances are hereby rescinded from the following accounts and programs in the specified amounts:

(1) $10,000,000 from ''U.S. Customs and Border Protection, Automation Modernization'';

(2) $129,000,000 from ''U.S. Customs and Border Protection, Border Security Fencing, Infrastructure, and Technology'';

(3) $19,603,000 from ''Federal Emergency Management Agency, National Predisaster Mitigation Fund'';

(4) $60,600,000 from ''Science and Technology, Research, Development, Acquisition, and Operations'';

(5) $10,886,000 from ''Domestic Nuclear Detection Office, Research, Development, and Operations''; and

(6) $10,122,000 from ''Coast Guard, Acquisition, Construction, and Improvements''.

SEC. 1658. Of the unobligated balances made available under section 44945 of title 49, United States Code, $800,000 is rescinded.

SEC. 1659. Of the unobligated balances available for ''Department of Homeland Security, Transportation Security Administration'', $15,000,000 is rescinded: *Provided*, that the Transportation Security Administration shall not rescind any unobligated balances from the following programs: explosives detection systems, checkpoint support, aviation regulation and other enforcement, and air cargo.

SEC. 1660. Of the unobligated balances available for ''Department of Homeland Security, National Protection and Programs Directorate, Infrastructure Protection and Information Security'', the following amounts are rescinded—

(1) $6,000,000 from Next Generation Networks; and

(2) $9,600,000 to be specified in a report submitted to the Committees on Appropriations of the Senate and the House of Representatives no later than 15 days after the date of enactment of this division, which describes the amounts rescinded and the original purpose of such funds.

SEC. 1661. From the unobligated balances of funds made available in the Department of the Treasury Forfeiture Fund established by section 9703 of title 31, United States Code, which was added to such title by section 638 of Public Law 102–393, $22,600,000 is rescinded.

SEC. 1662. From the unobligated balances of prior year appropriations made available for ''Department of Homeland Security, National Protection and Programs Directorate, United States Visitor and Immigrant Indicator Technology'', $32,795,000 is rescinded.

SEC. 1663. From the unobligated balances of prior year appropriations made available for ''Department of Homeland Security, United States Citizenship and Immigration Services'', $13,000,000 is rescinded: *Provided*, That United States Citizenship and Immigration Services shall not rescind any unobligated balances from the following programs and activities: E-Verify, data center migration, and processing applications for asylum and refugee status.

SEC. 1664. Of the unobligated balances available for ''Department of Homeland Security, U.S. Immigration and Customs Enforcement, Construction'', $10,000,000 is rescinded.

TITLE VII—INTERIOR, ENVIRONMENT, AND RELATED AGENCIES

SEC. 1701. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Land Management, Management of Lands and Resources'' shall be $963,706,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$963,706,000'' for ''$959,571,000'' the second place it appears.

SEC. 1702. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Land Management, Construction'' shall be $4,626,000.

SEC. 1703. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Land Management, Land Acquisition'' shall be $22,000,000: *Provided,* That the proviso under such heading in division A of Public Law 111–88 shall not apply to funds appropriated by this division.

SEC. 1704. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, Resource Management'' shall be $1,247,356,000.

SEC. 1705. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, Construction'' shall be $20,846,000.

SEC. 1706. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, Land Acquisition'' shall be $55,000,000.

SEC. 1707. Of the unobligated amounts available for ''Department of the Interior, United States Fish and Wildlife Service, Landowner Incentive Program'' from prior year appropriations, all remaining amounts are rescinded.

SEC. 1708. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, Cooperative Endangered Species Conservation Fund'' shall be $60,000,000: *Provided,* That amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division as follows: by substituting ''$4,987,297'' for ''$5,145,706''; and by substituting ''$31,000,000'' for ''$56,000,000''.

SEC. 1709. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, North American Wetlands Conservation Fund'' shall be $37,500,000.

SEC. 1710. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, Neotropical Migratory Bird Conservation'' shall be $4,000,000.

SEC. 1711. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, Multinational Species Conservation Fund'' shall be $10,000,000.

SEC. 1712. Notwithstanding section 1101, the level for ''Department of the Interior, United States Fish and Wildlife Service, State and Tribal Wildlife Grants'' shall be $62,000,000.

SEC. 1713. Before the end of the 60-day period beginning on the date of enactment of this Act, the Secretary of the Interior shall reissue the final rule published on April 2, 2009 (74 Fed. Reg. 15123 et seq.) without regard to any other provision of statute or regulation that applies to issuance of such rule. Such reissuance (including this section) shall not be subject to judicial review and shall not abrogate or otherwise have any effect on the order and judgment issued by the United States District Court for the District of Wyoming in Case Numbers 09–CV–118J and 09–CV–138J on November 18, 2010.

SEC. 1714. Notwithstanding section 1101, the level for ''Department of the Interior, National Park Service, Operation of the National Park System'' shall be $2,254,559,000.

SEC. 1715. Notwithstanding section 1101, the level for ''Department of the Interior, National Park Service, Park Partnership Project Grants'' shall be $0 and the matters pertaining to such account in division A of Public Law 111–88 shall not apply to funds appropriated by this division.

SEC. 1716. Notwithstanding section 1101, the level for ''Department of the Interior, National Park Service, National Recreation and Preservation'' shall be $57,986,000, of which $0 shall be for projects authorized by section 7302 of Public Law 111–11.

SEC. 1717. Notwithstanding section 1101, the level for ''Department of the Interior, National Park Service, Historic Preservation Fund'' shall be $54,500,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$25,000,000'': *Provided further,* That the proviso under such heading in division A of Public Law 111–88 shall not apply to funds appropriated by this division.

SEC. 1718. Notwithstanding section 1101, the level for ''Department of the Interior, National Park Service, Construction'' shall be $210,066,000: *Provided,* That the last proviso under such heading in division A of Public Law 111–88 shall not apply to funds appropriated by this division.

SEC. 1719. The contract authority provided for fiscal year 2011 by 16 U.S.C. 460l-10a is rescinded.

SEC. 1720. Notwithstanding section 1101, the level for ''Department of the Interior, National Park Service, Land Acquisition and State Assistance'' shall be $95,000,000: *Provided,* That section 113 of division A of Public Law 111–88 shall not apply to funds appropriated by this division.

SEC. 1721. Of the unobligated amounts available for ''Department of the Interior, National Park Service, Urban Park and Recreation Fund,'' $625,000 is rescinded.

SEC. 1722. Notwithstanding section 1101, the level for ''Department of the Interior, United States Geological Survey, Surveys, Investigations, and Research'' shall be $1,085,844,000: *Provided,* That none of the matter after ''September 30, 2011'' and before the first proviso under such heading in division A of Public Law 111–88 shall apply to funds appropriated by this division.

SEC. 1723. Notwithstanding section 1101, the level for ''Department of the Interior, Minerals Management Service, Royalty and Offshore Minerals Management'' shall be $239,478,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division as follows: by substituting ''$109,494,000'' for ''$89,374,000''; by substituting ''$154,890,000'' for ''$156,730,000'' each place it appears; and by substituting ''2011'' for ''2010'' each place it appears.

SEC. 1724. Notwithstanding section 1101, the level for ''Department of the Interior, Minerals Management Service, Oil Spill Research'' shall be $11,768,000.

SEC. 1725. During fiscal year 2011, the Secretary of the Interior, in order to implement a reorganization of the Bureau of Ocean Energy Management, Regulation and Enforcement, may establish accounts and transfer funds among and between the offices and bureaus affected by the reorganization only in conformance with the Committees on Appropriations of the House of Representatives and the Senate reprogramming guidelines described in the joint explanatory statement of managers accompanying Public Law 111–88.

SEC. 1726. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Indian Affairs, Operation of Indian Programs'' shall be $2,334,515,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division as follows: by substituting ''$220,000,000'' for ''$166,000,000''; by substituting ''$585,411,000'' for ''$568,702,000''; and by substituting ''$46,373,000'' for ''$43,373,000''.

SEC. 1727. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Indian Affairs, Construction'' shall be $210,000,000.

SEC. 1728. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Indian Affairs, Indian Land and Water Claim Settlements and Miscellaneous Payments to Indians'' shall be $46,480,000, of which $0 shall be for the matter pertaining to Public Law 109-379.

SEC. 1729. Notwithstanding section 1101, the level for ''Department of the Interior, Bureau of Indian Affairs, Indian Land Consolidation'' shall be $0.

SEC. 1730. Notwithstanding section 1101, the level for ''Department of the Interior, Departmental Offices, Insular Affairs, Assistance to Territories'' shall be $84,295,000: *Provided,* That the amounts included under such heading in division A of Public Law 111-88 shall be applied to funds appropriated by this division by substituting ''$75,015,000'' for ''$75,915,000''.

SEC. 1731. Notwithstanding section 1101, the level for ''Department of the Interior, Departmental Offices, Office of the Special Trustee for American Indians, Federal Trust Programs'' shall be $161,000,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88, as amended by Public Law 111–212, shall be applied to funds appropriated by this division by substituting ''$31,534,000'' for ''$47,536,000''.

SEC. 1732. Notwithstanding section 1101, the level for ''Department of the Interior, Department-wide Programs, Wildland Fire Management'' shall be $919,897,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$125,000,000'': *Provided further,* That of the unobligated balances available under such heading in division A of Public Law 111–88 and prior appropriations Acts, $200,000,000 is rescinded: *Provided further,* That no amounts in this section may be rescinded from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget Emergency Deficit Control Act of 1985.

SEC. 1733. Section 121 of division A of Public Law 111–88 (123 Stat. 2930), concerning joint ticketing at the Pearl Harbor Naval Complex, is amended in subsection (b)(1) by striking ''may enter'' and inserting ''may, for this fiscal year and each fiscal year thereafter, enter''.

SEC. 1734. Notwithstanding section 1101, the level for ''Environmental Protection Agency, Science and Technology'' shall be $815,110,000.

SEC. 1735. Notwithstanding section 1101, the level for ''Environmental Protection Agency, Environmental Programs and Management'' shall be $2,761,994,000: *Provided,* That of the funds included under this heading $416,875,000 shall be for Geographic Programs: *Provided further,* That of such amounts for Geographic Programs, $300,000,000 shall be for the Great Lakes Restoration Initiative.

SEC. 1736. Notwithstanding section 1101, the level for ''Environmental Protection Agency, Buildings and Facilities'' shall be $36,501,000, of which $0 shall be for the planning and design of a high-performance green building to consolidate the multiple offices and research facilities of the Environmental Protection Agency in Las Vegas, Nevada.

SEC. 1737. Notwithstanding section 1101, the level for ''Environmental Protection Agency, Hazardous Substance Superfund'' shall be $1,283,475,000: *Provided,* That the matter under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division as follows: by substituting ''$1,283,475,000'' for ''$1,306,541,000'' the second place it appears; and by substituting ''September 30, 2010'' for ''September 30, 2009''.

SEC. 1738. Notwithstanding section 1101, the level for ''Environmental Protection Agency, State and Tribal Assistance Grants''

shall be $3,766,446,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division as follows: by substituting ''$1,525,000,000'' for ''$2,100,000,000''; by substituting ''$965,000,000'' for ''$1,387,000,000''; by substituting ''$10,000,000'' for ''$17,000,000''; by substituting ''$10,000,000'' for ''$13,000,000''; by substituting ''$0'' for ''$156,777,000''; by substituting ''$50,000,000'' for ''$60,000,000''; by substituting ''$0'' for ''$20,000,000''; by substituting ''$1,106,446,000'' for ''$1,116,446,000''; and by substituting ''$0'' for ''$10,000,000'' the second place it appears (pertaining to competitive grants for communities).

SEC. 1739. Notwithstanding section 1101, the amounts authorized to transfer under the heading ''Environmental Protection Agency, Administrative Provisions, Environmental Protection Agency'' in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$300,000,000'' for ''$475,000,000''.

SEC. 1740. Of the unobligated balances available for ''Environmental Protection Agency, State and Tribal Assistance Grants'', $140,000,000 is rescinded: *Provided*, That the Administrator of the Environmental Protection Agency shall submit to the Committees on Appropriations of the House of Representatives and the Senate a proposed allocation of such rescinded amounts among programs, projects, and activities and such allocation shall take effect 30 days after such submission: *Provided further*, That no amounts may be rescinded from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Act of 1985.

SEC. 1741. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, Forest and Rangeland Research'' shall be $307,252,000.

SEC. 1742. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, State and Private Forestry'' shall be $278,151,000: *Provided*, That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$53,000,000'' for ''$76,460,000''.

SEC. 1743. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, National Forest System'' shall be $1,545,339,000, of which $15,000,000 shall be deposited into the Collaborative Forest Landscape Restoration Fund for ecological restoration treatments as authorized by 16 U.S.C. 7303(f), and of which $336,722,000 shall be for forest products.

SEC. 1744. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, Capital Improvement and Maintenance'' shall be $473,591,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$45,000,000'' for ''$90,000,000''.

SEC. 1745. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, Land Acquisition'' shall be $33,000,000.

SEC. 1746. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, Wildland Fire Management'' shall be $2,172,387,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division as follows: by substituting ''$0'' for ''$75,000,000''; by substituting ''$11,500,000'' for ''$11,600,000''; and by substituting ''$65,000,000'' for ''$71,250,000''.

SEC. 1747. Notwithstanding section 1101, the level for ''Department of Agriculture, Forest Service, FLAME Wildfire Suppression Reserve Fund'' shall be $291,000,000. *Provided,* That of the unobligated balances available under such heading in division A of Public Law 111-88, $200,000,000 is rescinded.

SEC. 1748. The authority provided by section 337 of the Department of the Interior and Related Agencies Appropriations Act, 2005 (Public Law 108–447; 118 Stat. 3102), as amended, shall remain in effect until September 30, 2011.

SEC. 1749. Notwithstanding section 1101, the level for ''Department of Health and Human Services, Indian Health Service, Indian Health Services'' shall be $3,672,618,000.

SEC. 1750. Notwithstanding section 1101, the level for ''Department of Health and Human Services, Indian Health Service, Indian Health Facilities'' shall be $404,757,000.

SEC. 1751. Notwithstanding section 1101, the level for ''Chemical Safety and Hazard Investigation Board, Salaries and Expenses'' shall be $10,799,000: *Provided,* That the matter pertaining to methyl isocyanate in the last proviso under such heading in division A of Public Law 111–88 shall not apply to funds appropriated by this division.

SEC. 1752. Notwithstanding section 1101, the level for ''Smithsonian Institution, Legacy Fund'' shall be $0.

SEC. 1753. Notwithstanding section 1101, the level for ''National Gallery of Art, Repair, Restoration and Renovation of Buildings'' shall be $48,221,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$42,250,000'' for ''$40,000,000''.

SEC. 1754. Notwithstanding section 1101, the level for ''John F. Kennedy Center for the Performing Arts, Operations and Maintenance'' shall be $22,500,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$500,000'': *Provided further,* That the first proviso under such heading in division A of Public Law 111–88 is amended by striking ''until expended'' and all that follows and inserting ''until September 30, 2011''.

SEC. 1755. Notwithstanding section 1101, the level for ''John F. Kennedy Center for the Performing Arts, Capital Repair and Restoration'' shall be $13,920,000.

SEC. 1756. Notwithstanding section 1101, the level for ''Woodrow Wilson International Center for Scholars, Salaries and Expenses'' shall be $11,225,000.

SEC. 1757. Notwithstanding section 1101, the level for ''National Foundation on the Arts and the Humanities, National Endowment for the Arts, Grants and Administration'' shall be $155,000,000.

SEC. 1758. Notwithstanding section 1101, the level for ''National Foundation on the Arts and the Humanities, National Endowment for the Humanities, Grants and Administration'' shall be $155,000,000: *Provided,* That the amounts included under such heading in division A of Public Law 111–88 shall be applied to funds appropriated by this division by substituting ''$140,700,000'' for ''$153,200,000''.

SEC. 1759. Notwithstanding section 1101, the level for ''Commission of Fine Arts, National Capital Arts and Cultural Affairs'' shall be $3,000,000.

SEC. 1760. Notwithstanding section 1101, the level for ''Presidio Trust, Presidio Trust Fund'' shall be $15,000,000.

SEC. 1761. Notwithstanding section 1101, the level for ''Dwight D. Eisenhower Memorial Commission, Salaries and Expenses'' shall be $0.

SEC. 1762. Notwithstanding section 1101, the level for ''Dwight D. Eisenhower Memorial Commission, Capital Construction'' shall be $0.

SEC. 1763. Section 409 of division A of Public Law 111–88 (123 Stat. 2957) is amended by striking ''and 111–8'' and inserting ''111–8, and 111–88'', and by striking ''2009'' and inserting ''2010''.

SEC. 1764. Notwithstanding section 1101, the level for section 415 of division A of Public Law 111–88 shall be $0.

SEC. 1765. Section 423 of division A of Public Law 111–88 (123 Stat. 2961), concerning the distribution of geothermal energy receipts, shall have no force or effect and the distribution formula contained in section 3003(a) of Public Law 111–212 (124 Stat. 2338) shall apply for fiscal year 2011.

SEC. 1766. Section 433 of division A of Public Law 111–88 (123 Stat. 2965) is amended by striking ''2010'' and ''2009'' and inserting ''2011'' and ''2010'', respectively.

SEC. 1767. Section 7 of Public Law 99–647, as amended by section 702(d) of Public Law 109–338, is further amended by striking ''5 years'' and inserting ''6 years''.

SEC. 1768. Not later than 30 days after the date of enactment of this division, each of the following departments and agencies shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spending, expenditure, or operating plan for fiscal year 2011 at a level of detail below the account level:

(1) Department of the Interior.

(2) Environmental Protection Agency.

(3) Department of Agriculture, Forest Service.

(4) Department of Health and Human Services, Indian Health Service.

(5) Smithsonian Institution.

(6) National Endowment for the Arts.

(7) National Endowment for the Humanities.

SEC. 1769. For the fiscal year ending September 30, 2011, none of the funds made available by this division or any other Act may be used to implement, administer, or enforce Secretarial Order No. 3310 issued by the Secretary of the Interior on December 22, 2010.

TITLE VIII—LABOR, HEALTH AND HUMAN SERVICES, EDUCATION, AND RELATED AGENCIES

SEC. 1801. (a) Notwithstanding section 1101, the level for ''Department of Labor, Employment and Training Administration, Training and Employment Services'' shall be $1,575,648,000 plus reimbursements, of which—

(1) $543,079,000 shall be available for obligation for the period July 1, 2011, through June 30, 2012, of which $59,040,000 shall be available for adult employment and training activities, $203,840,000 shall be available for dislocated worker employment and training activities, $24,160,000 shall be available for the dislocated worker assistance national reserve, $10,000,000 shall be available for pilots, demonstrations, and research activities of which no funds shall be available for Transitional Jobs activities, and $85,561,000 shall be available for reintegration of ex-offenders of which no funds shall be available for Transitional Jobs activities: *Provided,* That the amounts included for national activities under such heading in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$48,889,000'';

(2) $907,569,000 shall be available for obligation for the period April 1, 2011, through June 30, 2012, including $827,569,000 for youth activities and $80,000,000 for YouthBuild;

(3) $125,000,000 shall remain available until September 30, 2012, and shall be available to the Secretary of Labor for the Workforce Innovation Fund, as established by this division to carry out projects that demonstrate innovative strategies or replicate effective evidence-based strategies that align and

strengthen the workforce investment system in order to improve program delivery and education and employment outcomes for program beneficiaries: *Provided*, That amounts shall be available for awards to States or State agencies that are eligible for assistance under any program authorized under the Workforce Investment Act of 1998 (''WIA''), consortia of States, or partnerships, including regional partnerships: *Provided further*, That notwithstanding section 128(a)(1) of the WIA, the amount available to the Governor for statewide activities shall not exceed 5 percent of the amount allotted to the State from the appropriation under this subparagraph;

(4) no funds shall be available for the Green Jobs Innovation Fund; and

(5) no funds shall be available for the Career Pathways Innovation Fund.

(b) Of the funds made available in division D of Public Law 111–117 for the Career Pathways Innovation Fund, $125,000,000 is rescinded.

SEC. 1802. Of the funds made available by section 1101 of this division for ''Department of Labor, Departmental Management, Office of Job Corps'' for construction, rehabilitation, and acquisition of Job Corps centers, the Secretary of Labor may transfer up to 25 percent to meet the operational needs of Job Corps centers: *Provided*, That no funds shall be available to initiate a competition for any new Job Corps center not previously approved through a competitive selection process by the Secretary of Labor: *Provided further*, That of the unobligated balances of the funds made available for ''Department of Labor, Departmental Management, Office of Job Corps'', $75,000,000 is rescinded.

SEC. 1803. Notwithstanding section 1101, the level for ''Department of Labor, Employment and Training Administration, Community Service Employment for Older Americans'' shall be $450,000,000, and for purposes of funds appropriated by this division, the amounts under such heading in division D of Public Law 111–117 shall be applied by substituting ''$0'' for ''$225,000,000'', and the first and second provisos under such heading in such division shall not apply.

SEC. 1804. Notwithstanding section 1101, the level which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund for administrative expenses of ''Department of Labor, Employment and Training Administration, State Unemployment Insurance and Employment Service Operations'' shall be $4,024,490,000 (which includes all amounts available to conduct in-person reemployment and eligibility assessments and unemployment insurance improper payment reviews), of which $3,245,645,000 shall be available for unemployment compensation State operations, $50,519,000 shall be available for Federal administration of foreign labor certifications, and $15,129,000 shall be available for grants to States for the administration of such activities. For purposes of this section, the first proviso under such heading in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''2011'' and ''6,180,000'' for ''2010'' and ''5,059,000'', respectively.

SEC. 1805. Funds appropriated by section 1101 of this division to the Department of Labor's Employment and Training Administration for technical assistance services to grantees may be transferred to ''Department of Labor, Employment and Training Administration, Program Administration'' if it is determined that those services will be more efficiently performed by Federal staff.

SEC. 1806. Notwithstanding section 1101, the level for ''Department of Labor, Employment Standards Administration, Salaries and Expenses'' shall be $485,255,000, together with $2,124,000 which may be expended from the Special Fund in accordance with sections 39(c), 44(d), and 44(j) of the Longshore and Harbor Workers' Compensation Act: *Provided*, That funds provided in this section may be allocated among the agencies included in this account and may be transferred to any other account within the Department of Labor for program direction and support of the agencies funded in this section.

SEC. 1807. Notwithstanding section 1101, the level for ''Department of Labor, Mine Safety and Health Administration, Salaries and Expenses'' shall be $363,843,000, of which up to $3,000,000 shall be available to the Secretary of Labor to be transferred to ''Departmental Management, Salaries and Expenses'' for activities related to the Department of Labor's caseload before the Federal Mine Safety and Health Review Commission, and the amounts included under the heading ''Department of Labor, Mine Safety and Health Administration, Salaries and Expenses'' in division D of Public Law 111–117 shall be applied to funds appropriated in this division by substituting ''$0'' for ''$1,450,000'' and by substituting ''$1,350,000'' for ''$1,000,000''.

SEC. 1808. Notwithstanding section 1101, the level for ''Department of Labor, Departmental Management'' shall be $367,827,000, together with not to exceed $327,000, which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund, and the third proviso under such heading in division D of Public Law 111–117 shall not apply to funds appropriated in this division: *Provided*, That of the funds made available by this section, not less than $21,332,000 may be used by the Secretary of Labor for the purposes of program evaluation, initiatives related to the identification and prevention of worker misclassification, and other worker protection activities, and may be transferred by the Secretary (in addition to any other transfer authority available by this division) to other agencies of the Department subject to a 15-day advance notification to the Committees on Appropriations of the House of Representatives and the Senate.

SEC. 1809. (a) Of the unobligated balances available in ''Department of Labor, Working Capital Fund'', $3,900,000 is rescinded, to be derived solely from amounts available in the Investment in Reinvention Fund (other than amounts that were designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985).

(b) The language under the ''Working Capital Fund'' heading in Public Law 85–67, as amended, is further amended by striking ''*Provided further*, That within the Working Capital Fund,'' through and including '', to be available without further appropriation action:''.

SEC. 1810. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Health Resources and Services Administration, Health Resources and Services'' shall be $6,274,790,000 of which (1) not more than $100,000,000 shall be available until expended for carrying out the provisions of Public Law 104–73 and for expenses incurred by the Department of Health and Human Services pertaining to administrative claims made under such law; (2) $300,000,000 shall be for the program under title X of the Public Health Service Act (''PHS Act'') to provide for voluntary family planning projects; (3) not less than $1,982,865,000 shall remain available through September 30, 2013 for parts A and B of title XXVI of the PHS Act, of which not less than $885,000,000 shall be for State AIDS Drug Assistance Programs under the authority of section 2616 or 311(c) of such Act; and (4) no funds are provided for section 340G–1 of the PHS Act.

(b) The sixteenth, eighteenth, nineteenth, twenty-second, and twenty-fifth provisos under the heading ''Department of Health and Human Services, Health Resources and Services Administration, Health Resources and Services'' in division D of Public Law 111– 117 shall not apply to funds appropriated by this division.

(c) Sections 747(c)(2), and 751(j)(2) of the PHS Act, and the proportional funding amounts in paragraphs (1) through (4) of section 756(e) of such Act shall not apply to funds made available by this division for ''Department of Health and Human Services, Health Resources and Services Administration, Health Resources and Services''.

(d) For any program operating under section 751 of the PHS Act on or before January 1, 2009, the Secretary of Health and Human Services may waive any of the requirements contained in sections 751(d)(2)(A) and 751(d)(2)(B) of such Act.

(e) For purposes of this section, section 10503(d) of Public Law 111–148 shall be applied as if '', over the fiscal year 2008 level,'' were stricken from such section.

SEC. 1811. (a) Notwithstanding section 1101, the level for the first undesignated paragraph under the heading ''Department of Health and Human Services, Centers for Disease Control and Prevention, Disease Control, Research, and Training'' in division D of Public Law 111–117 shall be $5,660,291,000, of which $523,533,000 shall remain available until expended for the Strategic National Stockpile under section 319F–2 of the PHS Act.

(b) The matter included before the first proviso under the heading ''Department of Health and Human Services, Centers for Disease Control and Prevention, Disease Control, Research, and Training'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$20,620,000'', by substituting ''$22,000,000'' for ''$70,723,000'', and as if ''of which $69,150,000 shall remain available until expended for acquisition of real property, equipment, construction and renovations of facilities;'' were stricken from such paragraph.

(c) Paragraphs (1) through (3) of section 2821(b) of the PHS Act shall not apply to funds made available by this division.

(d) Notwithstanding section 1101, funds appropriated for ''Department of Health and Human Services, Centers for Disease Control and Prevention, Disease Control, Research, and Training'' shall also be available to carry out title II of the Immigration and Nationality Act.

(e) Notwithstanding section 1101, funds made available by this division may be available for acquisition of real property and necessary repairs of facilities owned, leased, or operated by the Centers for Disease Control and Prevention: *Provided*, That such facilities relate to mine safety research: *Provided further*, That the Committees on Appropriations of the House of Representatives and the Senate are notified of the amounts to be obligated no less than 15 days in advance.

SEC. 1812. Notwithstanding section 1101, the level for ''Department of Health and Human Services, National Institutes of Health, National Institute of Allergy and Infectious Diseases'' shall be $4,818,275,000, and the requirement under ''National Institute of Allergy and Infectious Diseases'' in division D of Public Law 111–117 for a transfer from Biodefense Countermeasures funds shall not apply.

SEC. 1813. The amount provided by section 1101 for ''Department of Health and Human

Services, National Institutes of Health'' is reduced by $210,000,000, through a pro rata reduction in all of the Institutes, Centers, and Office of the Director accounts within ''Department of Health and Human Services, National Institutes of Health'' based on the total funding provided.

SEC. 1814. Notwithstanding section 1101, the level for ''Department of Health and Human Services, National Institutes of Health, Buildings and Facilities'' shall be $50,000,000.

SEC. 1815. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Substance Abuse and Mental Health Services Administration, Substance Abuse and Mental Health Services'' shall be $3,386,311,000, of which (1) not less than $40,800,000 shall be for the National Child Traumatic Stress Initiative; and (2) no funds shall be available for the National All Schedules Prescription Electronic Reporting system.

(b) The amount included before the first proviso under the heading ''Department of Health and Human Services, Substance Abuse and Mental Health Services Administration, Substance Abuse and Mental Health Services'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$14,518,000''.

(c) The second proviso under the heading ''Department of Health and Human Services, Substance Abuse and Mental Health Services Administration, Substance Abuse and Mental Health Services'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1816. Notwithstanding section 1101, the amount included under the heading ''Department of Health and Human Services, Agency for Healthcare Research and Quality, Healthcare Research and Quality'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$372,053,000'' for ''$397,053,000''.

SEC. 1817. Notwithstanding section 1101, for payment to the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund, as provided under sections 217(g), 1844, and 1860D–16 of the Social Security Act, sections 103(c) and 111(d) of the Social Security Amendments of 1965, section 278(d) of Public Law 97–248, and for administrative expenses incurred pursuant to section 201(g) of the Social Security Act, $229,464,000,000.

SEC. 1818. (a) Notwithstanding section 1101, the level for amounts transferred from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Medical Insurance Trust Fund for ''Department of Health and Human Services, Centers for Medicare and Medicaid Services, Program Management'' shall be $3,470,242,000, of which the level for the Research, Demonstration, and Evaluation program shall be $35,600,000.

(b) The amount under the third proviso under the heading ''Department of Health and Human Services, Centers for Medicare and Medicaid Services, Program Management'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$9,120,000'' for ''$65,600,000''.

(c) The sixth proviso under the heading ''Department of Health and Human Services, Centers for Medicare and Medicaid Services, Program Management'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1819. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Administration for Children and Families, Low Income Home Energy Assistance'' shall be $4,710,000,000, of which $4,509,672,000 shall be for payments under subsections (b) and (d) of section 2602 of the Low-Income Home Energy Assistance Act of 1981 (42 U.S.C. 8621); and of which $200,328,000 shall be for payments under subsection (e) of such Act, to be made notwithstanding the designation requirements of such subsection.

(b) The second proviso under the heading ''Department of Health and Human Services, Administration for Children and Families, Low Income Home Energy Assistance'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1820. Of the unobligated balances available for ''Department of Health and Human Services, Administration for Children and Families, Refugee and Entrant Assistance'' from funds appropriated under this heading in fiscal year 2010 and prior fiscal years, $25,000,000 is rescinded.

SEC. 1821. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Administration for Children and Families, Payments to States for the Child Care and Development Block Grant'' shall be $2,227,081,000.

(b) The amount included in the first proviso under the heading ''Department of Health and Human Services, Administration for Children and Families, Payments to States for the Child Care and Development Block Grant'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$1,000,000''.

(c) The amounts included in the second proviso under the heading ''Department of Health and Human Services, Administration for Children and Families, Payments to States for the Child Care and Development Block Grant'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$284,160,000'' for ''$271,401,000'', and by substituting ''$104,213,000'' for ''$99,534,000''.

SEC. 1822. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Administration for Children and Families, Children and Families Services Programs'' shall be $9,538,433,000, of which (1) $7,574,783,000 shall be for making payments under the Head Start Act; and (2) $703,000,000 shall be for making payments under the Community Services Block Grant (''CSBG'') Act, of which $23,350,000 shall be for sections 680 and 678E(b)(2), of which $18,000,000 shall be for section 680(a)(2), and not less than $5,000,000 shall be for section 680(a)(3)(B) of the CSBG Act.

(b) For purposes of allocating such funds under the Head Start Act, the term ''base grant'' as used in subsection (a)(7)(A) of section 640 of such Act with respect to funding provided to a Head Start agency (including each Early Head Start agency) for fiscal year 2010 shall be deemed to include 50 percent of the funds appropriated under ''Department of Health and Human Services, Administration for Children and Families, Children and Families Services Programs'' in Public Law 111–5 provided to such agency for carrying out expansion of Head Start programs, as that phrase is used in subsection (a)(4)(D) of such section 640, and provided to such agency as the ongoing funding level for operations in the 12 month budget period beginning in fiscal year 2010.

(c) The fourteenth and fifteenth provisos under the heading ''Department of Health and Human Services, Administration for Children and Families, Children and Families Services Programs'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1823. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Administration on Aging, Aging Services Programs'' shall be $1,500,323,000, of which $440,783,000 shall be for congregate nutrition, $217,676,000 shall be for home-delivered nutrition, and $27,708,000 shall be for Native American nutrition: *Provided,* That the total amount available for fiscal year 2011 under this and any other Act to carry out activities related to Aging and Disability Resource Centers under subsections (a)(20)(B)(iii) and (b)(8) of section 202 of the Older Americans Act shall not exceed the amount obligated for such purposes for fiscal year 2010 from funds available under Public Law 111–117.

(b) The first proviso under the heading ''Department of Health and Human Services, Administration on Aging, Aging Services Programs'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

(c) None of the funds appropriated by this division for ''Department of Health and Human Services, Administration on Aging, Aging Services Programs'' shall be used to carry out sections 1701 and 1703 of the PHS Act (with respect to chronic disease self-management activity grants), except that such funds may be used for necessary expenses associated with administering any such grants awarded prior to the date of the enactment of this division.

SEC. 1824. Notwithstanding section 1101, the level for ''Department of Health and Human Services, Office of the Secretary, General Departmental Management'' from the General Fund shall be $651,786,000: *Provided,* That amounts included under such heading in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$5,789,000'': *Provided further,* That the second and seventh provisos under such heading in division D of Public Law 111–117 shall not apply to funds appropriated by this division: *Provided further,* That none of the funds made available in this division shall be for carrying out activities specified under section 2003(b)(2) or (3) of the PHS Act: *Provided further,* That of the amount included under the heading ''Department of Health and Human Services, Office of the Secretary, General Departmental Management'' up to $175,905,000 may be transferred to other appropriation accounts within the Department of Health and Human Services to carry out the Secretary's responsibilities: *Provided further,* That amounts included under such heading in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting in the third proviso ''$105,000,000'' for ''$110,000,000''.

SEC. 1825. (a) Notwithstanding section 1101, the level for ''Department of Health and Human Services, Office of the Secretary, Public Health and Social Services Emergency Fund'' shall be $676,180,000, of which $65,578,000 shall be for expenses necessary to prepare for and respond to an influenza pandemic, none of which shall be available past September 30, 2011, and $35,000,000, to remain available until expended, shall be for expenses necessary for fit-out and other costs related to a competitive lease procurement to renovate or replace the existing headquarters building for Public Health Service agencies and other components of the Department of Health and Human Services: *Provided,* That in addition, $415,000,000 of the funds transferred to the account under the heading ''Department of Health and Human Services, Office of the Secretary, Public Health and Social Services Emergency Fund'' in Public Law 111–117 under the fourth paragraph under such heading may be used to support advanced research and development pursuant to section 319L of the PHS Act and other administrative expenses of the Biomedical Advanced Research and Development Authority: *Provided further,* That the

first proviso in the first paragraph under such heading in division D of Public Law 111–117 and the language in such paragraph designating $10,000,000 to support delivery of medical countermeasures shall not apply to funds provided in this section: *Provided further,* That the fourth paragraph under such heading shall not apply to funds appropriated by this division.

(b) Of the amounts provided under the heading ''Department of Health and Human Services, Office of the Secretary, Public Health and Social Services Emergency Fund'' in Public Laws 111–8 and 111–117 and available for expenses necessary to prepare for and respond to an influenza pandemic, $170,000,000 may also be used—

(1) to plan, conduct, and support research to advance regulatory science to improve the ability to determine safety, effectiveness, quality, and performance of medical countermeasure products against chemical, biological, radiological, and nuclear agents including influenza virus; and

(2) to analyze, conduct, and improve regulatory review and compliance processes for such products.

SEC. 1826. Of the funds made available for ''Department of Health and Human Services, Office of the Secretary, Public Health and Social Services Emergency Fund'' in Public Law 111–32, $1,259,000,000 is rescinded, to be derived only from those amounts which have not yet been designated by the President as emergency funds.

SEC. 1827. Hereafter, no funds appropriated by this division or by any previous or subsequent Act shall be subject to the allocation requirements of section 1707A(e) of the PHS Act.

SEC. 1828. Hereafter, no funds appropriated by this division or by any previous or subsequent Act shall be available for transfer under section 274 of the PHS Act.

SEC. 1829. (a) Notwithstanding section 1101, the level for ''Department of Education, Education for the Disadvantaged'' shall be $4,725,891,000, of which $4,628,056,000 shall become available on July 1, 2011, and remain available through September 30, 2012 for academic year 2011–2012: *Provided,* That not more than $8,167,000 shall be available to carry out sections 1501 and 1503 of the Elementary and Secondary Education Act of 1965 (''ESEA'').

(b) The seventh proviso under the heading ''Department of Education, Education for the Disadvantaged'' in division D of Public Law 111–117 shall be applied by substituting ''$535,633,000'' for ''$545,633,000'' and the tenth, eleventh and twelfth provisos shall not apply to funds appropriated by this division.

SEC. 1830. For purposes of this division, the proviso under the heading ''Department of Education, Impact Aid'' in division D of Public Law 111–117 shall be applied by substituting ''2010–2011'' for ''2009–2010''.

SEC. 1831. (a) Notwithstanding section 1101, the level for ''Department of Education, School Improvement Programs'' shall be $2,924,791,000, of which $2,754,244,000 shall become available on July 1, 2011, and remain available through September 30, 2012 for academic year 2011–2012: *Provided,* That of the amounts available for such heading: (1) no funds shall be available for activities authorized under part D of title II of the ESEA, or subpart 6 of part D of title V of the ESEA, or part Z of title VIII of the Higher Education Act of 1965; (2) $26,928,000 shall be available to carry out part D of title V of the ESEA; (3) for purposes of this section, up to $11,500,000 shall be available for activities described in the twelfth proviso under such heading in division D of Public Law 111–117; (4) $380,732,000 shall be for State assessments authorized under section 6111 of the ESEA and $10,000,000 shall be for enhanced assessment instruments authorized under section 6112 of the ESEA; and (5) up to 1 percent of the funds for subpart 1 of part A of Title II of the ESEA shall be reserved by the Secretary of Education for competitive awards for teacher training or professional enhancement activities to national not-for-profit organizations.

(b) The seventh proviso shall be applied by substituting ''$51,313,000'' for ''$56,313,000'' and the second, third, fifth, sixth, eighth and thirteenth provisos under the heading ''Department of Education, School Improvement Programs'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1832. (a) Notwithstanding section 1101, the level for ''Department of Education, Innovation and Improvement'' shall be $1,859,899,000, of which—

(1) $850,000,000 shall become available on the date of enactment of this division, and remain available through December 31, 2011, $440,982,000 shall be available to carry out part D of title V of the ESEA, and no funds shall be available for activities authorized under section 2151(c) of the ESEA, section 1504 of the ESEA, or part F of title VIII of the Higher Education Act of 1965; and

(2) not more than $150,000,000 may be used to make awards under section 14007 of division A of Public Law 111–5 and not more than $700,000,000 may be used to make awards to States under section 14006 of division A of Public Law 111–5, as amended by subsection (b) of this section: *Provided,* That none of such funds shall be made available prior to the submission of a detailed spending plan outlining the proposed competitions and priorities to the Committees on Appropriations of the House of Representatives and the Senate: *Provided further,* That awards may be made on the basis of previously submitted applications: *Provided further,* That the Secretary of Education shall administer grants for improving early childhood care and education jointly with the Secretary of Health and Human Services on such terms as such Secretaries set forth in an interagency agreement: *Provided further,* That the Secretary of Education shall be responsible for obligating and disbursing funds and ensuring compliance with applicable laws and administrative requirements with regard to such awards: *Provided further,* That the Secretary shall provide, on a timely and periodic basis, the findings from evaluations, including impact evaluations and interim progress evaluations, of activities conducted using funds previously obligated under sections 14006 and 14007 of division A of Public Law 111–5, including Race to the Top and the Investing in Innovation Fund, to the Committees on Appropriations of the House of Representatives and the Senate.

(b) Division A of Public Law 111–5, as amended, is further amended—

(1) in section 14005(d), by adding at the end the following:

''(6) IMPROVING EARLY CHILDHOOD CARE AND EDUCATION.—The State will take actions to—

''(A) increase the number and percentage of low-income and disadvantaged children in each age group of infants, toddlers, and preschoolers who are enrolled in high-quality early learning programs;

''(B) design and implement an integrated system of high-quality early learning programs and services; and

''(C) ensure that any use of assessments conforms with the recommendations of the National Research Council's reports on early childhood.''; and

(2) in section 14006—

(A) in subsection (b), by striking ''and (5)'' and inserting ''(5), or (6)''; and

(B) in subsection (c)(2), by inserting before the period '', or to a State or States for improving early childhood care and education''.

(c) The first, third, fourth, seventeenth and eighteenth provisos under the heading ''Department of Education, Innovation and Improvement'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1833. (a) Notwithstanding section 1101, the level for ''Department of Education, Safe Schools and Citizenship Education'' shall be $289,043,000, of which, notwithstanding section 2343(b) of the ESEA, $1,157,000 is for the continuation costs of awards made on a competitive basis under section 2345 of the ESEA, $161,500,000 shall be available to carry out part D of title V, and $126,386,000 shall be for subpart 2 of part A of title IV of the ESEA : *Provided,* That $30,000,000 shall be available for Promise Neighborhoods and be available through December 31, 2011.

(b) The first, second, and third provisos under the heading ''Department of Education, Safe Schools and Citizenship Education'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1834. Notwithstanding section 1101, the level for ''Department of Education, English Language Acquisition'' shall be $735,000,000.

SEC. 1835. (a) Notwithstanding section 1101, the level for ''Department of Education, Special Education'' shall be $3,975,665,000, of which $3,726,354,000 shall become available on July 1, 2011, and remain available through September 30, 2012 for academic year 2011–2012.

(b) The first and second provisos under the heading ''Department of Education, Special Education'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

(c) The third proviso under such heading shall be applied by substituting ''2010'' for ''2009''.

SEC. 1836. (a) Notwithstanding section 1101, the level for ''Department of Education, Rehabilitation Services and Disability Research'' shall be $3,475,500,000.

(b) The second proviso under the heading ''Department of Education, Rehabilitation Services and Disability Research'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1837. Notwithstanding section 1101, the level for ''Department of Education, Special Institutions for Persons with Disabilities, National Technical Institute for the Deaf'' shall be $65,677,000, of which $240,000 shall be available for construction.

SEC. 1838. (a) Notwithstanding section 1101, the level for ''Department of Education, Career, Technical, and Adult Education'' shall be $951,432,000 which shall become available on July 1, 2011, and remain available through September 30, 2012 for academic year 2011–2012: *Provided*, That of the amounts available for such heading, no funds shall be available for activities authorized under subpart 4 of part D of title V of the ESEA, or part D of title VIII of the Higher Education Amendments of 1998.

(b) The first, second, third, seventh and eighth provisos under the heading ''Department of Education, Career, Technical, and Adult Education'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1839. (a) Notwithstanding section 1101, the level for ''Department of Education, Student Financial Assistance'' shall be $24,719,957,000, of which $23,002,000,000 shall be available to carry out subpart 1 of part A of title IV of the Higher Education Act of 1965 and no funds shall be available for activities authorized under subpart 4 of part A of title IV of the Higher Education Act of 1965.

(b) The maximum Pell grant for which a student shall be eligible during award year 2011–2012 shall be $4,860.

SEC. 1840. Of the unobligated balances of funds made available in subparagraphs (A) through (E) of section 401A(e)(1) of the Higher Education Act of 1965, $560,000,000 is rescinded.

SEC. 1841. Notwithstanding sections 1101 and 1103, the level for ''Department of Education, Student Aid Administration'' shall be $994,000,000, which shall remain available through September 30, 2012.

SEC. 1842. (a) Notwithstanding section 1101, the level for ''Department of Education, Higher Education'' shall be $1,907,760,000, of which no funds shall be available for activities authorized under section 428L of part B of title IV of the Higher Education Act of 1965 (''HEA''), subpart 6 of part A of title IV of the HEA, subpart 1 of part D of title VII of the HEA, subpart 3 of part A of title VII of the HEA, section 1543 of the Higher Education Amendments of 1992, part H of title VIII of the Higher Education Amendments of 1998, or part I of subtitle A of title VI of the America COMPETES Act: *Provided,* That the first proviso under the heading ''Department of Education, Higher Education'' in division D of Public Law 111–117 shall be replaced by the following: ''*Provided,* That $8,100,000, to remain available through September 30, 2012, shall be available to fund fellowships for academic year 2012–2013 under subpart 1 of part A of title VII of the Higher Education Act, under the terms and conditions of such subpart 1'': *Provided further,* That the last proviso under such heading in division D of Public Law 111–117 shall not apply to funds appropriated by this division, except that $1,000,000 shall be available for competitive grants under section 872 of the HEA.

(b) The seventh, eighth, ninth, tenth, eleventh, twelfth, and thirteenth provisos under the heading ''Department of Education, Higher Education'' in division D of Public Law 111–117 shall not apply to funds appropriated by this division.

SEC. 1843. Notwithstanding section 1101, the level for ''Department of Education, Historically Black College and University Capital Financing Program Account'' shall be $20,582,000: *Provided,* That these funds are available to subsidize total loan principal, any part of which is to be guaranteed, not to exceed $279,393,000.

SEC. 1844. (a) Notwithstanding section 1101, the level for ''Department of Education, Institute of Education Sciences'' shall be $610,006,000 and shall remain available through September 30, 2012.

(b) Notwithstanding subsections (d) and (e) of section 174 of the Education Sciences Reform Act of 2002, up to $57,650,000 may be used to extend any contracts to administer the Regional Educational Laboratories that were in effect on, or entered into, after January 1, 2011, for a period of not more than 12 months.

SEC. 1845. Notwithstanding section 1101, the level for ''Corporation for National and Community Service, Operating Expenses'' shall be $782,374,000, of which $307,374,000 shall be to carry out the Domestic Volunteer Service Act of 1973 and $475,000,000 shall be to carry out the National and Community Service Act of 1990 and notwithstanding sections 198B(b)(3), 198S(g), 501(a)(4)(C), and 501(a)(4)(F) of the 1990 Act.

SEC. 1846. Notwithstanding section 1101, the level for ''Corporation for National and Community Service, National Service Trust'' shall be $199,659,000.

SEC. 1847. The amounts included under the heading ''Corporation for Public Broadcasting'' in division D of Public Law 111–117 shall be applied to funds appropriated by this division as follows: by substituting ''$6,000,000'' for ''$86,000,000''; by substituting ''$0'' for ''$25,000,000''; by substituting ''$6,000,000'' for ''$36,000,000''; and by substituting ''$0'' for ''$25,000,000''.

SEC. 1848. Notwithstanding section 1101, the level for ''Institute of Museum and Library Services, Office of Museum and Library Services: Grants and Administration'' shall be $237,869,000: *Provided,* That the amounts included under such heading in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$16,382,000''.

SEC. 1849. Notwithstanding section 1101, the level for ''Medicare Payment Advisory Commission, Salaries and Expenses'' shall be $12,450,000.

SEC. 1850. Notwithstanding section 1101, the level for ''Railroad Retirement Board, Dual Benefits Payments Account'' shall be $57,000,000.

SEC. 1851. Notwithstanding section 1101, the level for ''Social Security Administration, Payments to Social Security Trust Funds'' shall be $21,404,000, and in addition such funds may be used to carry out section 217(g) of the Social Security Act.

SEC. 1852. Notwithstanding section 1101, the level for the first paragraph under the heading ''Social Security Administration, Supplemental Security Income Program'' in division D of Public Law 111–117 shall be $39,983,273,000, of which $3,493,273,000 shall be for administrative expenses.

SEC. 1853. Notwithstanding section 1101, the level for the first paragraph under the heading ''Social Security Administration, Limitation on Administrative Expenses'' in division D of Public Law 111–117 shall be $10,775,500,000. In addition, the amount included in the fourth paragraph under such heading in division D of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$186,000,000'' for ''$160,000,000'' each place it appears.

SEC. 1854. Of the funds appropriated for ''Social Security Administration, Limitation on Administrative Expenses'' for fiscal years 2010 and prior years and available without fiscal year limitation (other than funds appropriated in Public Law 111–5) for investment in information technology and telecommunications hardware and software infrastructure, $75,000,000 is rescinded.

SEC. 1855. All funds transferred under the authority of section 4002 of Public Law 111–148 shall be subject to the terms and conditions of section 503 of division D of Public Law 111–117.

GAO REPORTS AND AUDITS ON PPACA IMPLEMENTATION AND COMPARATIVE EFFECTIVENESS RESEARCH FUNDING AND MEDICARE ACTUARIAL ANALYSIS OF IMPACT OF CERTAIN PPACA INSURANCE CHANGES ON PREMIUMS

SEC. 1856. (a) GAO REPORT ON PPACA IMPLEMENTATION.—Not later than 90 days after the date of the enactment of this Act, the Comptroller General of the United States shall submit to Congress a report on the costs and processes of implementing PPACA. Such report shall include the following (as of the date of preparation of the report):

(1) A list of the contracts, including the name of the contractors, their general areas of expertise, and the amount of money expended on each such contract, entered into by the Department of Health and Human Services and other Federal departments and agencies to provide services related to authority under PPACA that was not previously authorized.

(2) A list of any firms hired by such a Department or agency to facilitate contracting with such contractors.

(3) A list of consultants who have been hired by such a Department or agency to assist in implementing PPACA, including their areas of expertise and the total cost for such consultants.

(b) GAO AUDIT OF ANNUAL LIMIT WAIVER REQUESTS.—Not later than 60 days after the date of the enactment of this Act, the Comptroller General shall submit to Congress a report that includes the results of an audit of requests for administrative waiver of the annual limit requirements of section 2711(a) of the Public Health Service Act (as inserted by section 1001(5) of the Patient Protection and Affordable Care Act). Such report shall include an analysis of the number of approvals and denials of such requests and the reasons for such approval or denial.

(c) MEDICARE ACTUARIAL ANALYSIS OF PROJECTED PREMIUM IMPACTS OF APPLYING CERTAIN REQUIREMENTS.—Not later than 90 days after the date of the enactment of this Act, the Chief Actuary of the Centers for Medicare & Medicaid Services shall submit to Congress a report that contains an estimate of the impact of the guaranteed issue, guaranteed renewal, and community rating requirements under sections 2701 through 2703 of the Public Health Service Act, as inserted by section 1201 of the Patient Protection and Affordable Care Act, on premiums for individuals and families with employer-sponsored health insurance. Such estimate shall cover the 10-year period beginning with 2014 and shall include an estimate of the number of such individuals and families who will experience a premium increase as a result of such requirements and the number of such individuals and families who will experience a premium decrease as a result of such requirements.

(d) GAO AUDIT OF COMPARATIVE EFFECTIVENESS RESEARCH FUNDING.—Not later than 60 days after the date of the enactment of this Act, the Comptroller General shall submit to Congress a report that includes the results of an audit of expenditures made for comparative effectiveness research through funds provided to the Agency for Healthcare Research and Quality, the National Institutes of Health, or any other agency within the Department of Health and Human Services under title VIII of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5) or under PPACA. Such report shall include a description of the expenditures made, the entities who received such funding, and the purpose of the funding.

(e) PPACA DEFINED.—In this section, the term ''PPACA'' means the Patient Protection and Affordable Care Act (Public Law 111–148) and includes the amendments made by such Act, title I and subtitle B of title II of the Health Care and Education Reconciliation Act of 2010 (Public Law 111–152), and the amendments made by such title and subtitle.

SEC. 1857. Of the funds made available for the Consumer Operated and Oriented Plan Program under Section 1322(g) of the Patient Protection and Affordable Care Act, $2,200,000,000 are hereby permanently cancelled.

FREE CHOICE VOUCHERS

SEC. 1858. (a) IN GENERAL.—Subsections (a), (b), (c), (d), and (e) of section 10108 of the Patient Protection and Affordable Care Act are repealed.

(b) CONFORMING CHANGES TO TAX CODE.—

(1) Section 36B(c)(2) of the Internal Revenue Code of 1986 is amended by striking subparagraph (D).

(2)(A) Section 139D, as added by section 10108 of PPACA, of such Code is repealed.

(B) The table of sections for part III of subchapter B of chapter 1 of such Code is amended by striking the item relating to section 139D, as added by section 10108 of PPACA.

(3) Section 162(a) of such Code is amended by striking the last sentence.

(4) Section 4980H(b) of such Code is amended by striking paragraph (3).

(5) Section 6056 of such Code is amended—

(A) by striking ''and every offering employer'' in subsection (a),

(B) in subsection (b)(2)(C)—

(i) by striking ''in the case of an applicable large employer,'' in clause (i),

(ii) by inserting ''and'' at the end of clause (iii),

(iii) by striking ''and'' at the end of clause (iv), and

(iv) by striking clause (v),

(C) by striking ''or offering employer'' in subsections (d)(2) and (e), and

(D) by amending subsection (f) to read as follows:

''(f) DEFINITIONS.—For purposes of this section, any term used in this section which is also used in section 4980H shall have the meaning given such term by section 4980H.''.

(c) OTHER CONFORMING CHANGE.—Section 18B(a)(3) of the Fair Labor Standards Act of 1938 (29 U.S.C. 218B) is amended by striking ''and the employer does not offer a free choice voucher''.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of, and the amendments made by, the provisions of the Patient Protection and Affordable Care Act to which they relate.

SEC. 1859. Of the funds made available for performance bonus payments under section 2105(a)(3)(E) of the Social Security Act, $3,500,000,000 are hereby permanently cancelled.

SEC. 1860. (a) Section 401(b) of the Higher Education Act of 1965 (20 U.S.C. 1070a(b)) is amended—

(1) in paragraph (2)(A)(ii), by striking ''paragraph (8)(B)'' and inserting ''paragraph (7)(B)'';

(2) by striking paragraph (5);

(3) in paragraph (8)—

(A) in subparagraph (A), by amending clause (iv) to read as follows:

''(iv) to carry out this section—

''(I) $13,500,000,000 for fiscal year 2011;

''(II) $3,183,000,000 for fiscal year 2012;

''(III) $0 for fiscal year 2013;

''(IV) $0 for fiscal year 2014;

''(V) $0 for fiscal year 2015;

''(VI) $0 for fiscal year 2016;

''(VII) $1,060,000,000 for fiscal year 2017;

''(VIII) $1,125,000,000 for fiscal year 2018;

''(IX) $1,125,000,000 for fiscal year 2019;

''(X) $1,140,000,000 for fiscal year 2020; and

''(XI) $1,145,000,000 for fiscal year 2021 and each succeeding fiscal year.''; and

(B) in subparagraph (C)—

(i) in clause (i)(I), by striking ''clause (v)(II)'' and inserting ''clause (iv)(II)''; and

(ii) in clause (ii)(I), by striking ''clause (v)(II)'' and inserting ''clause (iv)(II)''; and

(4) by redesignating paragraphs (6), (7), and (8) as paragraphs (5), (6), and (7), respectively.

(b) The amendment made by subsection (a)(2) shall be effective with respect to the 2011–2012 award year and succeeding award years.

(c) Sections 482(c) and 492 of the Higher Education Act of 1965 (20 U.S.C. 1089(c), 1098a) shall not apply to the amendments made by subsection (a)(2), or to any regulations promulgated under those amendments.

(d) The requirements of 34 C.F.R. 690.64(b) shall not apply with respect to 2011 cross-over payment periods.

SEC. 1861. Section 101 of Public Law 111–226 (124 Stat. 2389) is amended by striking paragraph (11).

SEC. 1862. Of the unobligated balances of funds made available in section 458(a)(7)(B) of the Higher Education Act of 1965, $31,000,000 is rescinded.

SEC. 1863. Within 30 days of the enactment of this division, each of the departments and related agencies funded in this title shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spending, expenditure, or operating plan for fiscal year 2011 at a level of detail below the account level.

TITLE IX—LEGISLATIVE BRANCH

SEC. 1901. Notwithstanding section 1101, the level for each of the following accounts of the Senate shall be as follows: ''Salaries, Officers and Employees'', $185,982,000; ''Salaries, Officers and Employees, Office of the Sergeant at Arms and Doorkeeper'', $77,000,000; ''Contingent Expenses of the Senate, Secretary of the Senate'', $6,200,000, of which $4,200,000 shall remain available until September 30, 2015; and ''Contingent Expenses of the Senate, Sergeant at Arms and Doorkeeper of the Senate'', $142,401,000.

SEC. 1902. Notwithstanding section 1101, the level for each of the following accounts of the Senate under the heading ''Contingent Expenses of the Senate'' shall be as follows: ''Miscellaneous Items'', $21,145,000; ''Senators' Official Personnel and Office Expense Account'', $410,000,000: *Provided*, That each Senator's official personnel and office expense allowance (including the allowance for administrative and clerical assistance, the salaries allowance for legislative assistance to Senators, as authorized by the Legislative Branch Appropriation Act, 1978 (Public Law 95–94), and the office expense allowance for each Senator's office for each State) in effect immediately before the date of enactment of this section shall be reduced by 5 percent.

SEC. 1903. Of the unobligated amounts appropriated for fiscal year 2009 under the heading ''Senate'', $33,500,000 are rescinded.

SEC. 1904. Section 8 of the Legislative Branch Appropriations Act, 1990 (31 U.S.C. 1535 note) is amended by striking paragraph (3) and inserting the following:

''(3) Agreement under paragraph (1) shall be in accordance with regulations prescribed by the Committee on Rules and Administration of the Senate.''.

SEC. 1905. Notwithstanding section 1101, the level for ''House of Representatives, Salaries and Expenses'' shall be $1,314,025,000.

SEC. 1906. Notwithstanding section 1101, the level for ''House of Representatives, House Leadership Offices'' shall be $24,861,969, and the levels under that heading shall be as follows:

(1) For the Office of the Speaker, $4,877,851.

(2) For the Office of the Majority Floor Leader, $2,432,808.

(3) For the Office of the Minority Floor Leader, $4,378,238.

(4) For the Office of the Majority Whip, $2,105,373.

(5) For the Office of the Minority Whip, $1,628,873.

(6) For the Speaker's Office for Legislative Floor Activities, $497,619.

(7) For the Republican Steering Committee, $940,674.

(8) For the Republican Conference, $1,679,970.

(9) For the Republican Policy Committee, $344,485.

(10) For the Democratic Steering and Policy Committee, $1,319,273.

(11) For the Democratic Caucus, $1,659,696.

(12) For nine minority employees, $1,487,455.

(13) For the training and program development—majority, $277,807.

(14) For the training and program development—minority, $277,439.

(15) For Cloakroom Personnel—majority, $477,469.

(16) For Cloakroom Personnel—minority, $476,939.

SEC. 1907. Notwithstanding section 1101, the level for ''House of Representatives, Members' Representational Allowances'' shall be $613,052,000.

SEC. 1908. Notwithstanding section 1101, the level for ''House of Representatives, Committee Employees, Standing Committees, Special and Select'' shall be $134,549,103, and the period of applicability referred to in the proviso under that heading shall be December 31, 2012.

SEC. 1909. Notwithstanding section 1101, the level for ''House of Representatives, Committee on Appropriations'' shall be $28,483,000, and the period of applicability referred to in the proviso under that heading shall be December 31, 2012.

SEC. 1910. Notwithstanding section 1101, the level for ''House of Representatives, Salaries, Officers and Employees'' shall be $193,326,000, and the level under that heading—

(1) for the Office of the Clerk shall be $28,589,000;

(2) for the Office of the Sergeant at Arms shall be $9,034,000; and

(3) for the Office of the Chief Administrative Officer shall be $127,782,000.

SEC. 1911. Notwithstanding section 1101, the level for ''House of Representatives, Allowances and Expenses'' shall be $319,752,928, and the level under that heading—

(1) for Government contributions for health, retirement, Social Security, and other applicable employee benefits shall be $282,976,856;

(2) for Business Continuity and Disaster Recovery shall be $22,912,072, of which $5,000,000 shall remain available until expended; and

(3) for the Wounded Warrior Program shall be $2,000,000.

SEC. 1912. Notwithstanding section 1101, the level for ''Joint Items, Joint Economic Committee'' shall be $4,499,000.

SEC. 1913. Notwithstanding section 1101, the level for ''Joint Items, Joint Committee on Taxation'' shall be $10,551,150.

SEC. 1914. Notwithstanding section 1101, the level for ''Office of the Attending Physician'' shall be $3,407,000, and the level under that heading for reimbursement to the Department of the Navy for expenses incurred for staff and equipment shall be $2,426,000.

SEC. 1915. Notwithstanding section 1101, the level for ''Capitol Police, Salaries'' shall be $277,688,000.

SEC. 1916. Notwithstanding section 1101, the level for ''Office of Compliance, Salaries and Expenses'' shall be $4,085,150, and the period of availability referred to under such heading shall be September 30, 2012.

SEC. 1917. Notwithstanding section 1101, the level for ''Congressional Budget Office, Salaries and Expenses'' shall be $46,865,000.

SEC. 1918. Notwithstanding section 1101, the period of availability for each item under the heading ''Architect of the Capitol'' may not extend beyond September 30, 2015.

SEC. 1919. Of the unobligated amounts appropriated from prior year appropriations under the heading ''Architect of the Capitol'' for the Capitol Visitor Center project, $14,600,000 are rescinded.

SEC. 1920. Notwithstanding section 1101, the level for ''Library of Congress, Salaries and Expenses'' shall be $439,000,000, and the amount applicable under the fifth and seventh provisos under that heading shall be $0.

SEC. 1921. Notwithstanding section 1101, the level for ''Library of Congress, Copyright Office, Salaries and Expenses'' shall be $54,476,000, of which not more than $30,751,000, to remain available until expended, shall be derived from collections credited to such appropriation during fiscal year 2011 under section 708(d) of title 17, United States Code, and the amount applicable under the third proviso under such heading shall be $36,612,000.

SEC. 1922. Notwithstanding section 1101, the level for ''Library of Congress, Congressional Research Service, Salaries and Expenses'' shall be $111,240,000.

SEC. 1923. Notwithstanding section 1101, the level for ''Library of Congress, Books for the Blind and Physically Handicapped, Salaries and Expenses'' shall be $68,182,000.

SEC. 1924. Notwithstanding section 1101, the level for ''Government Printing Office, Government Printing Office Revolving Fund'' shall be $1,659,000.

SEC. 1925. Notwithstanding section 1101, the level for ''Government Printing Office, Office of Superintendent of Documents, Salaries and Expenses'' shall be $39,911,000, and the amounts authorized for producing and disseminating Congressional serial sets and other related publications to depository and other designated libraries shall apply to publications for fiscal years 2009 and 2010.

SEC. 1926. (a) Section 309(c) of the Legislative Branch Appropriations Act, 1999 (44 U.S.C. 305 note) is amended by striking paragraph (5).

(b) The amendment made by subsection (a) shall take effect as if included in the enactment of the Legislative Branch Appropriations Act, 1999.

SEC. 1927. Notwithstanding section 1101, the level for ''Government Accountability Office, Salaries and Expenses'' shall be $547,349,000, the amount applicable under the first proviso under that heading shall be $9,400,000, the amount applicable under the second proviso under that heading shall be $3,100,000, and the amount applicable under the third proviso under that heading shall be $7,000,000.

SEC. 1928. Notwithstanding section 1101, the level for ''Open World Leadership Center Trust Fund'' shall be $11,400,000.

TITLE X—MILITARY CONSTRUCTION, VETERANS AFFAIRS, AND RELATED AGENCIES

SEC. 2001. Notwithstanding section 1101, the level for each of the following accounts of the Department of Defense for funding, including incremental funding, of programs, projects and activities authorized in division B of Public Law 111-383, excluding funds designated by section 1110 of this division, shall be as follows: ''Military Construction, Army'', $3,787,598,000; ''Military Construction, Navy and Marine Corps'', $3,303,611,000; ''Military Construction, Air Force'', $1,106,995,000; ''Military Construction, Defense-Wide'', $2,873,062,000; ''Military Construction, Army National Guard'', $873,664,000; ''Military Construction, Air National Guard'', $194,986,000; ''Military Construction, Army Reserve'', $318,175,000; ''Military Construction, Navy Reserve'', $61,557,000; and ''Military Construction, Air Force Reserve'', $7,832,000: *Provided*, That not later than 30 days after the date of the enactment of this section, the Secretary of Defense shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spending plan for fiscal year 2011 at a level of detail below the account level.

SEC. 2002. Notwithstanding section 1101, the level for each of the following accounts of the Department of Defense shall be as follows: ''Family Housing Construction, Army'', $92,369,000; ''Family Housing Construction, Navy and Marine Corps'', $186,444,000; ''Family Housing Construction, Air Force'', $78,025,000; ''Family Housing Construction, Defense-Wide'', $0; and ''Family Housing Improvement Fund'', $1,096,000.

SEC. 2003. Notwithstanding section 1101, the level for each of the following accounts of the Department of Defense shall be as follows: ''North Atlantic Treaty Organization Security Investment Program'', $258,884,000; ''Homeowners Assistance Fund'', $16,515,000; ''Chemical Demilitarization Construction, Defense-Wide'', $124,971,000; ''Department of Defense Base Closure Account 1990'', $360,474,000; and ''Department of Defense Base Closure Account 2005'', $2,354,285,000.

SEC. 2004. Notwithstanding section 1101, the level for each of the following accounts of the Department of Defense shall be as follows: ''Family Housing Operation and Maintenance, Army'', $518,140,000; ''Family Housing Operation and Maintenance, Navy and Marine Corps'', $366,346,000; ''Family Housing Operation and Maintenance, Air Force'', $513,792,000; and ''Family Housing Operation and Maintenance, Defense-Wide'', $50,464,000.

SEC. 2005. Of the funds designated by section 1110 of this division, funds available for the Department of Defense shall be as follows: ''Military Construction, Army'', $981,346,000; ''Military Construction, Air Force'', $195,006,000; and ''Military Construction, Defense-Wide'', $46,500,000.

SEC. 2006. Notwithstanding any other provision of this division, the following provisions included in title I of division E of Public Law 111–117 shall not apply to funds made available by this division: the first, second, and last provisos, and the set-aside of $350,000,000, under the heading ''Military Construction, Army''; the first and last provisos under the heading ''Military Construction, Navy and Marine Corps''; the first, second, and last provisos under the heading ''Military Construction, Air Force''; the second, third, fourth, and last provisos under the heading ''Military Construction, Defense-Wide'', the first, second and last provisos, and the set-aside of $30,000,000, under the heading ''Military Construction, Army National Guard''; the first, second, and last provisos, and the set-aside of $30,000,000, under the heading ''Military Construction, Air National Guard''; the first, second, and last provisos, and the set-aside of $30,000,000, under the heading ''Military Construction, Army Reserve''; the first, second, and last provisos, the set-aside of $20,000,000, and the set-aside of $35,000,000, under the heading ''Military Construction, Navy Reserve''; the first, second, and last provisos, and the set-aside of $55,000,000, under the heading ''Military Construction, Air Force Reserve''; the proviso under the heading ''Family Housing Construction, Army''; the proviso under the heading ''Family Housing Construction, Navy and Marine Corps''; the proviso under the heading ''Family Housing Construction , Air Force''; the proviso under the heading ''Family Housing Construction, Defense-Wide''; and the proviso under the heading ''Chemical Demilitarization Construction, Defense-Wide''.

SEC. 2007. Notwithstanding any other provision of this division, the following provisions included in title IV of division E of Public Law 111–117 shall not apply to funds appropriated by this division: the proviso under ''Military Construction, Army'' and the proviso under ''Military Construction, Air Force''.

SEC. 2008. Of the funds made available for ''Military Construction, Defense-Wide'' in title I of division E of Public Law 110–329, $23,000,000 are rescinded.

SEC. 2009. Of the funds made available for ''Military Construction, Defense-Wide'' in title I of division E of Public Law 111–117, $125,500,000 are rescinded.

SEC. 2010. Of the funds made available for ''Military Construction, Army'' in title I of division E of Public Law 111–117, $263,000,000 are rescinded.

SEC. 2011. Of the funds made available for ''Military Construction, Navy and Marine Corps'' in title I of division E of Public Law 111-117, $61,050,000 are rescinded.

SEC. 2012. Of the funds made available for ''Military Construction, Air Force'' in title I of division E of Public Law 111-117, $121,700,000 are rescinded.

SEC. 2013. Of the unobligated balances available for ''Department of Defense Base Closure Account 2005'' from prior appropriations (other than appropriations designated by law as being for contingency operations directly related to the global war on terrorism or as an emergency requirement), $232,363,000 are rescinded.

SEC. 2014. (a) Of the funds made available in title II of division E of Public Law 111-117, the following amounts which became available on October 1, 2010 are hereby rescinded from the following accounts in the amounts specified:

(1) ''Department of Veterans Affairs, Medical Services'', $1,000,000,000;

(2) ''Department of Veterans Affairs, Medical Support and Compliance'', $100,000,000; and

(3) ''Department of Veterans Affairs, Medical Facilities'', $100,000,000.

(b) In addition to amounts provided elsewhere in this Act, an additional amount is appropriated to the following accounts in the amounts specified, to remain available until September 30, 2012:

(1) ''Department of Veterans Affairs, Medical Services'', $1,000,000,000;

(2) ''Department of Veterans Affairs, Medical Support and Compliance'', $100,000,000; and

(3) ''Department of Veterans Affairs, Medical Facilities'', $100,000,000.

SEC. 2015. Notwithstanding section 1118, the levels for each of the following accounts for fiscal year 2012 shall be as follows:

(1) ''Department of Veterans Affairs, Medical Services'', $39,649,985,000, which shall become available on October 1, 2011, and shall remain available until September 30, 2012.

(2) ''Department of Veterans Affairs, Medical Support and Compliance'', $5,535,000,000, which shall become available on October 1, 2011, and shall remain available until September 30, 2012.

(3) ''Department of Veterans Affairs, Medical Facilities'', $5,426,000,000, which shall become available on October 1, 2011, and shall remain available until September 30, 2012.

SEC. 2016. Of the discretionary funds made available to the Department of Veterans Affairs for fiscal year 2011, $34,000,000 are rescinded from ''Medical Support and Compliance'' and $15,000,000 are rescinded from ''Medical Facilities'', which shall be derived from amounts estimated for the January 2011 civilian pay raise.

SEC. 2017. Of the amounts appropriated to the Department of Veterans Affairs for fiscal year 2011 for ''Medical Services'', ''Medical Support and Compliance'', ''Medical Facilities'', ''Construction, Minor Projects'', and ''Information Technology Systems'', up to $235,360,000, plus reimbursements, may be transferred to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund, established by section 1704 of title XVII of division A of Public Law 111–84 and may be used for operation of the facilities designated as combined Federal medical facilities as described by section 706 of Public Law 110–417: *Provided*, That additional funds may be transferred from accounts designated in this section to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund upon written notification by the Secretary of Veterans Affairs to the Committees on Appropriations of both Houses of Congress.

SEC. 2018. Such sums as may be deposited to the Medical Care Collections Fund pursuant to section 1729A of title 38, United States Code, for health care provided at facilities designated as combined Federal medical facilities as described by section 706 of Public Law 110–417 shall also be available: (1) for transfer to the Joint Department of Defense-Department of Veterans Affairs Medical Facility Demonstration Fund, established by

section 1704 of title XVII of division A of Public Law 111–84; and (2) for operations of the facilities designated as combined Federal medical facilities as described by section 706 of Public Law 110–417.

SEC. 2019. Notwithstanding section 1101, the level for ''Department of Veterans Affairs, Departmental Administration, General Operating Expenses'' shall be $2,534,276,000, of which not less than $2,136,776,000 shall be for the Veterans Benefits Administration: *Provided*, That no funds shall be available for the printer on every desk initiative.

SEC. 2020. Notwithstanding section 1101, the level for ''Department of Veterans Affairs, Departmental Administration, Information Technology Systems'' shall be $3,146,898,000.

SEC. 2021. Of the funds made available for ''Department of Veterans Affairs, Departmental Administration, Information Technology Systems'' in title II of division E of Public Law 111–117, $147,000,000 are rescinded.

SEC. 2022. Notwithstanding section 1101, the level for ''Department of Veterans Affairs, Departmental Administration, Construction, Major Projects'' shall be $1,151,036,000: *Provided*, That not later than 30 days after the date of the enactment of this section, the Secretary of Veterans Affairs shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spending plan for fiscal year 2011 at a level of detail below the account level: *Provided further*, That the last proviso included in title II of division E of Public Law 111–117 under the heading ''Department of Veterans Affairs, Departmental Administration, Construction, Major Projects'' shall not apply to funds appropriated by this division.

SEC. 2023. Of the unobligated balances available under ''Department of Veterans Affairs, Departmental Administration, Construction, Major Projects'' to be derived from accounts in prior appropriations Acts and that were not designated by the Congress in such Acts as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985, $75,000,000 are rescinded.

SEC. 2024. Notwithstanding section 1101, the level for ''Department of Veterans Affairs, Departmental Administration, Construction, Minor Projects'' shall be $467,700,000.

SEC. 2025. Notwithstanding section 1101, the level for ''Department of Veterans Affairs, Departmental Administration, Grants for Construction of State Extended Care Facilities'' shall be $85,000,000.

SEC. 2026. Notwithstanding section 1101, the level for ''American Battle Monuments Commission, Salaries and Expenses'' shall be $64,200,000, to remain available until expended.

SEC. 2027. Notwithstanding section 1101, the level for ''United States Court of Appeals for Veterans Claims, Salaries and Expenses'' shall be $27,615,000, of which $2,320,000 shall be available for the purpose of providing financial assistance as described under this heading in Public Law 102–229.

SEC. 2028. Notwithstanding section 1101, the level for ''Department of Defense—Civil, Cemeterial Expenses, Army, Salaries and Expenses'' shall be $45,100,000, to remain available until expended.

SEC. 2029. Notwithstanding section 1101, the level for ''Armed Forces Retirement Home, Trust Fund'' shall be $71,200,000, of which $2,000,000 shall be for construction and renovation of physical plants.

SEC. 2030. In the Senate, section 902 of Public Law 111–212, the Supplemental Appropriations Act, 2010, shall be subject to section 3002 of that Act and accordingly is designated as an emergency requirement and necessary to meet emergency needs pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

TITLE XI—DEPARTMENT OF STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS

SEC. 2101. For purposes of this title, the term ''division F of Public Law 111–117'' means the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2010 (division F of Public Law 111–117).

SEC. 2102. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Administration of Foreign Affairs, Diplomatic and Consular Programs'', $8,790,000,000, of which $1,500,000,000 is for Worldwide Security Protection (to be available until expended); ''Administration of Foreign Affairs, Capital Investment Fund'', $59,499,000; ''Administration of Foreign Affairs, Emergencies in the Diplomatic and Consular Service'', $9,499,000; ''Administration of Foreign Affairs, Representation Allowances'', $7,499,000; ''Administration of Foreign Affairs, Payment to the American Institute in Taiwan'', $21,150,000; and ''Administration of Foreign Affairs, Civilian Stabilization Initiative'', $35,000,000.

SEC. 2103. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Related Programs, United States Institute of Peace'', $39,499,000, which shall not be used for construction activities; ''Related Programs, East-West Center'', $21,000,000; ''International Commissions, International Fisheries Commissions'', $50,500,000; ''International Organizations, Contributions to International Organizations'', $1,581,815,000; and ''International Organizations, Contributions for International Peacekeeping Activities'', $1,887,706,000.

SEC. 2104. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''International Commissions, International Boundary and Water Commission, United States and Mexico, Salaries and Expenses'', $43,300,000; ''International Commissions, International Boundary and Water Commission, United States and Mexico, Construction'', $26,500,000; and ''Related Programs, The Asia Foundation'', $17,900,000.

SEC. 2105. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Related Agency, Broadcasting Board of Governors, International Broadcasting Operations'', $731,500,000; and ''Related Agency, Broadcasting Board of Governors, Broadcasting Capital Improvements'', $6,875,000.

SEC. 2106. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Administration of Foreign Affairs, Educational and Cultural Exchange Programs'', $600,000,000; ''Bilateral Economic Assistance, Independent Agencies, Inter-American Foundation'', $22,499,000; and ''Bilateral Economic Assistance, Independent Agencies, African Development Foundation'', $29,500,000.

SEC. 2107. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''United States Agency for International Development, Funds Appropriated to the President, Operating Expenses'', $1,350,000,000; ''United States Agency for International Development, Funds Appropriated to the President, Civilian Stabilization Initiative'', $5,000,000; ''United States Agency for International Development, Funds Appropriated to the President, Capital Investment Fund'', $130,000,000; and ''United States Agency for International Development, Funds Appropriated to the President, Office of Inspector General'', $45,000,000.

SEC. 2108. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Bilateral Economic Assistance, Funds Appropriated to the President, Development Assistance'', $2,525,000,000; ''Bilateral Economic Assistance, Funds Appropriated to the President, Complex Crises Fund'', $40,000,000; ''Bilateral Economic Assistance, Funds Appropriated to the President, Assistance for Europe, Eurasia and Central Asia'', $697,134,000; ''Bilateral Economic Assistance, Independent Agencies, Peace Corps'', $375,000,000; and ''Bilateral Economic Assistance, Independent Agencies, Millennium Challenge Corporation'', $900,000,000.

SEC. 2109. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Bilateral Economic Assistance, Funds Appropriated to the President, Economic Support Fund'', $5,958,101,000; ''Bilateral Economic Assistance, Funds Appropriated to the President, Democracy Fund'', $115,000,000; ''Department of the Treasury, International Affairs Technical Assistance'', $25,499,000; and ''Department of the Treasury, Debt Restructuring'', $50,000,000.

SEC. 2110. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Bilateral Economic Assistance, Funds Appropriated to the President, International Disaster Assistance'', $865,000,000; ''Bilateral Economic Assistance, Department of State, Migration and Refugee Assistance'', $1,690,000,000; and ''Bilateral Economic Assistance, Department of State, United States Emergency Refugee and Migration Assistance Fund'', $50,000,000: *Provided*, That the authorities and requirements under section 2(c)(1) of the Migration and Refugee Assistance Act of 1962 (22 U.S.C. 2601(c)(1)) may be exercised and fulfilled by the Secretary of State for the purpose of meeting unexpected, urgent refugee and migration needs, and with respect to funds appropriated to carry out section 2(c) of such Act in this division and in prior Acts making appropriations for the Department of State, foreign operations, and related programs.

SEC. 2111. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''International Security Assistance, Department of State, Nonproliferation, Anti-terrorism, Demining and Related Programs'', $740,000,000; and ''International Security Assistance, Department of State, Peacekeeping Operations'', $305,000,000: *Provided*, That division F of Public Law 111–117 shall be applied to funds appropriated by this division under the heading ''Peacekeeping Operations'' by adding the following at the end: '': *Provided further*, That funds appropriated under this heading that are available for assistance for Chad, Sudan, Somalia, and the Democratic Republic of the Congo should not be used to support any military training or operations that include child soldiers''.

SEC. 2112. (a) Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''International Security Assistance, Funds Appropriated to the President, International Military Education and Training'', $106,000,000; and ''International Security Assistance, Funds Appropriated to the President, Foreign Military Financing Program'', $5,385,000,000, of which not less than $3,000,000,000 shall be available for grants only for Israel, $1,300,000,000 shall be available for grants only for Egypt, $300,000,000 shall be available for assistance for Jordan, and up to $50,000,000 should be available for assistance for Colombia: *Provided*, That the dollar amount in the fourth proviso of the first paragraph under the

heading ''International Security Assistance, Funds Appropriated to the President, Foreign Military Financing Program'' of division F of Public Law 111–117 shall be deemed to be for the purposes of this Act, $789,000,000: *Provided further*, That the second paragraph under the heading ''International Security Assistance, Funds Appropriated to the President, Foreign Military Financing Program'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division by inserting after the second proviso in such paragraph the following: '': *Provided further*, That funds appropriated under this heading shall not be disbursed for assistance for Chad until the Secretary of State reports to the Committees on Appropriations on steps being taken by the Government of Chad to implement a plan of action to end the recruitment and use of child soldiers, including the demobilization of child soldiers''.

(b) The authorities contained under the heading ''International Security Assistance, Funds Appropriated to the President, Pakistan Counterinsurgency Capability Fund'' in title XI of Public Law 111–32 shall remain in effect until September 30, 2012.

SEC. 2113. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Multilateral Assistance, Funds Appropriated to the President, International Organizations and Programs'', $355,000,000, of which up to $10,000,000 may be made available for the International Panel on Climate Change/United Nations Framework Convention on Climate Change; ''Multilateral Assistance, International Financial Institutions, Global Environment Facility'', $90,000,000; ''Multilateral Assistance, International Financial Institutions, Contribution to the International Development Association'', $1,235,000,000; ''Multilateral Assistance, International Financial Institutions, Contribution to the Clean Technology Fund'', $185,000,000; ''Multilateral Assistance, International Financial Institutions, Contribution to the Strategic Climate Fund'', $50,000,000; ''Multilateral Assistance, International Financial Institutions, Contribution to the Inter-American Development Bank'', $21,000,000; ''Multilateral Assistance, International Financial Institutions, Contribution to the African Development Fund'', $110,000,000; and ''Multilateral Assistance, International Financial Institutions, International Fund for Agricultural Development'', $29,499,000.

SEC. 2114. Notwithstanding section 1101, the level for each of the following accounts shall be as follows: ''Export and Investment Assistance, Overseas Private Investment Corporation, Program Account'', $18,115,000; and ''Export and Investment Assistance, Funds Appropriated to the President, Trade and Development Agency'', $50,000,000.

SEC. 2115. (a) Notwithstanding section 1101, the amounts included under the heading ''Administration of Foreign Affairs, Embassy Security, Construction and Maintenance'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division as follows: by substituting ''$825,000,000'' for ''$876,850,000'' in the first paragraph; and by substituting ''$795,000,000'' for ''$847,300,000'' in the second paragraph.

(b) Notwithstanding section 1101, the amounts included under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Development Credit Authority'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division as follows: by substituting ''$30,000,000'' for ''$25,000,000'' in the first paragraph; and by substituting ''$8,300,000'' for ''$8,600,000'' in the second paragraph.

SEC. 2116. Notwithstanding section 1101, the amounts included under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Global Health and Child Survival'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division as follows: by substituting in the first paragraph ''$2,500,000,000'' for ''$2,420,000,000''; and by substituting in the second paragraph ''$5,345,000,000'' for ''$5,359,000,000''.

SEC. 2117. Notwithstanding section 1101, the level for each of the following accounts shall be $0: ''Administration of Foreign Affairs, Buying Power Maintenance Account''; ''Bilateral Economic Assistance, Funds Appropriated to the President, International Fund for Ireland''; and ''Multilateral Assistance, International Financial Institutions, Contribution to the Asian Development Fund''.

SEC. 2118. (a) Of the unobligated balances available from funds appropriated under the heading ''Export and Investment Assistance, Export-Import Bank of the United States, Subsidy Appropriation'' in the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2009 (division H of Public Law 111–8) and under such heading in prior Acts making appropriations for the Department of State, foreign operations, and related programs, $275,000,000 are rescinded.

(b) Of the unobligated balances from funds appropriated or otherwise made available for the Buying Power Maintenance Account, $17,000,000 are rescinded.

(c) Of the unobligated balances available for the Development Assistance account, as identified by Treasury Appropriation Fund Symbols 7206/111021, $1,000,000 are rescinded.

(d) Of the unobligated balances available for the Assistance for the Independent States of the Former Soviet Union account, as identified by Treasury Appropriation Fund Symbols 7206/111093, 7207/121093, and 72X1093, $11,700,000 are rescinded.

(e) Of the unobligated balances available for the International Narcotics Control and Law Enforcement account, as identified by Treasury Appropriation Fund Symbols, 11X1022, 1106/121022, and 191105/111022, $7,183,000 are rescinded.

(f) Of the funds appropriated in prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Diplomatic and Consular Programs'', $55,000,000, which shall be from amounts made available for Worldwide Security Protection, are rescinded: *Provided*, That no amounts may be rescinded from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

(g) Of the funds appropriated in prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Economic Support Fund'', $120,000,000 are rescinded: *Provided*, That no amounts may be rescinded from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

(h) Of the unobligated funds made available to the Secretary of State pursuant to section 286(v)(2)(A) of the Immigration and Nationality Act (8 U.S.C. 1356(v)(2)(A)), $140,000,000 are hereby permanently canceled.

(i) Of the unobligated funds appropriated in prior Acts making appropriations for the Department of State, foreign operations, and related programs under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Assistance for Europe, Eurasia and Central Asia'', $19,000,000 are rescinded: *Provided*, That no amounts may be rescinded from amounts that were designated by Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 2119. (a) Notwithstanding section 653(b) of the Foreign Assistance Act of 1961 (22 U.S.C. 2413(b)), the President shall transmit the report required under section 653(a) of that Act with respect to the provision of funds appropriated or otherwise made available by this division for the Department of State, foreign operations, and related programs: *Provided*, That such report shall include a comparison of amounts, by category of assistance, provided or intended to be provided from funds appropriated for fiscal years 2010 and 2011, for each foreign country and international organization.

(b) Not later than 30 days after the date of enactment of this Act, each department, agency or organization funded by this title or by division F of Public Law 111–117 shall submit to the Committees on Appropriations an operating plan for such funds that provides details at the program, project, and activity level: *Provided*, That the report required under subsection (a) shall be considered to have met the requirements of this subsection with respect to funds made available to carry out the Foreign Assistance Act of 1961 and the Arms Export Control Act: *Provided further*, That the spending reports required in division F of Public Law 111–117 for assistance for Afghanistan, Pakistan, Iraq, the Caribbean Basin, Lebanon, Mexico, and Central America, and spending reports required for funds appropriated under the headings ''Diplomatic and Consular Programs'', ''Embassy Security, Construction, and Maintenance'', ''International Narcotics Control and Law Enforcement'', ''Civilian Stabilization Initiative'', and ''Peace Corps'' shall be considered to have met the requirements of this subsection.

(c) The reports required under subsection (b) shall not be considered as meeting the notification requirements under section 7015 of division F of Public Law 111–117 or under section 634A of the Foreign Assistance Act of 1961.

(d) The Secretary of State shall consult with the Committees on Appropriations prior to implementing the rescissions made pursuant to section 2118 of this division, other than rescissions made pursuant to subsection (a) of such section.

SEC. 2120. (a) Notwithstanding any other provision of this division, the dollar amounts under paragraphs (1) through (4) under the heading ''Administration of Foreign Affairs, Diplomatic and Consular Programs'' in division F of Public Law 111–117 shall not apply to funds appropriated by this division: *Provided*, That the dollar amounts to be derived from fees collected under paragraph (5)(A) under such heading shall be ''$1,702,904'' and ''$505,000'', respectively.

(b)(1) Division F of Public Law 111–117 shall be applied to funds appropriated by this division under the heading ''International Organizations, Contributions for International Peacekeeping Activities'' by adding at the end before the period the following: '': *Provided further*, That the Secretary of State should work with the United Nations and governments contributing peacekeeping troops to develop effective vetting procedures to ensure that such troops have not violated human rights: *Provided further*, That notwithstanding any other provision of law, funds provided under the heading ''International Organizations, Contributions for International Peacekeeping Activities'' shall be available for United States assessed contributions up to the amount specified in Annex IV accompanying United Nations

General Assembly Resolution 64/220: *Provided further*, That such funds may be made available only if the Secretary of State determines that it is in the national interest of the United States''.

(2) Division F of Public Law 111–117 shall be applied to funds appropriated by this division under the heading ''United States Agency for International Development, Funds Appropriated to the President, Operating Expenses'' by substituting ''USAID mission, bureau, or office'' for ''USAID overseas mission or office'' in the sixth proviso.

(3) Division F of Public Law 111–117 shall be applied to funds appropriated by this division under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Development Assistance'' by substituting ''should'' for ''shall'' each place it appears.

(c) Division F of Public Law 111–117 shall be applied to funds appropriated by this division under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Economic Support Fund''—

(1) by substituting—

(A) ''should'' for ''shall'' in the fourth proviso;

(B) ''$200,000,000'' for ''$150,000,000'' in the seventh proviso; and

(C) ''$195,000,000 should'' for ''$209,790,000 shall'' in the sixteenth proviso; and

(2) by adding at the end before the period the following: '': *Provided further*, That funds appropriated under this heading may be made available for activities to support the economic and social development and reconciliation goals of Public Law 99-415, and should not be made available for a contribution: *Provided further*, That not less than $15,500,000 of the funds appropriated under this heading should be made available for remediation activities, and not less than $3,000,000 should be made available for related health activities, referenced in section 7071(j) of this Act''.

(d) Notwithstanding any other provision of this division, the following provisions in division F of Public Law 111–117 shall not apply to funds appropriated by this division:

(1) Section 7034(l).

(2) Section 7042(a), (b)(1), (c), and (d)(1).

(3) Section 7044(d).

(4) In section 7045:

(A) Subsection (b)(2).

(B) The first sentence of subsection (c).

(C) The first sentence of subsection (e)(1).

(D) The first sentence of subsection (f).

(E) Subsection (h).

(5) Section 7070(b).

(6) Section 7071(f)(6).

(7) The third proviso under the heading ''Administration of Foreign Affairs, Civilian Stabilization Initiative''.

(8) The fourth proviso under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Assistance for Europe, Eurasia and Central Asia''.

(e) Section 7060 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$575,000,000'' for ''$648,457,000'': *Provided*, That notwithstanding section 1101, section 7078(a) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting in lieu thereof the matter contained in section 660(a) of division J of Public Law 110–161, the Consolidated Appropriations Act, 2008, except that ''$40,000,000 should'' shall be substituted for ''not less than $7,000,000 shall''.

(f) Sections 7045(a), 7061, 7064(a)(1) and (b), and 7071(g)(3) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''should'' for ''shall'' each place it appears.

(g)(1) Section 7081 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting—

(A) ''should'' for ''shall'' each place it appears in subsections (b), (c), and (d);

(B) ''$35,000,000'' for ''$25,000,000'' in the first sentence of subsection (d); and

(C) ''For fiscal year 2011, up to $185,000,000'' for ''For fiscal year 2010, up to $300,000,000'' in subsection (g)(1).

(2) The second proviso of section 7081(d) of division F of Public Law 111–117 is amended to read as follows: '': *Provided further*, That funds appropriated by this division that are made available for tropical forest programs shall be used for purposes including to implement and enforce section 8204 of Public Law 110–246, shall not be used to support or promote the expansion of industrial logging into primary tropical forests, and shall be subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations''.

(h) Section 7042 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$552,900,000'' for the dollar amount in subsection (f)(1).

(i) The third proviso of section 7034(s) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''shall include, in a manner the Secretary determines appropriate,'' for ''should include''.

(j) Section 7070(i)(2) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''health, education, and macroeconomic growth'' for ''macroeconomic growth''.

(k) Notwithstanding any other provision of this division, section 7015(c) of division F of Public Law 111–117 shall not apply to funds appropriated by this division under the headings ''Complex Crises Fund'' and ''Migration and Refugee Assistance''.

(l) Section 7046(a) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$459,000,000'' for ''$521,880,000''.

(m) Not later than 90 days after enactment of this Act, and prior to the obligation of funds appropriated in this division under the headings ''Administration of Foreign Affairs, Diplomatic and Consular Programs'', ''Bilateral Economic Assistance, Funds Appropriated to the President, Development Assistance'', ''Bilateral Economic Assistance, Funds Appropriated to the President, Economic Support Fund'', and ''Bilateral Economic Assistance, Funds Appropriated to the President, Assistance for Europe, Eurasia and Central Asia'' for historic and cultural preservation projects, the Secretary of State, in consultation with the Administrator of the United States Agency for International Development (USAID), shall submit to the Committees on Appropriations a report detailing, by agency, account, purpose, and amount, all historic and cultural preservation projects supported in fiscal year 2010 and planned for fiscal year 2011 by the Department of State and USAID.

SEC. 2121. (a) Notwithstanding section 1101, the amounts included under the heading ''Administration of Foreign Affairs, Office of Inspector General'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$22,000,000'' for ''$23,000,000'' for the Special Inspector General for Iraq Reconstruction, and ''$24,000,000'' for ''$23,000,000'' for the Special Inspector General for Afghanistan Reconstruction.

(b) The tenth proviso under the heading ''Economic Support Fund'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting the following: ''*Provided further*, That funds appropriated or otherwise made available by this division for assistance for Afghanistan and Pakistan may not be made available for direct government-to-government assistance unless the Secretary of State certifies to the Committees on Appropriations that the relevant implementing agency has been assessed and considered qualified to manage such funds and the Government of the United States and the government of the recipient country have agreed, in writing, to clear and achievable goals and objectives for the use of such funds, and have established mechanisms within each implementing agency to ensure that such funds are used for the purposes for which they were intended:''.

(c) The second proviso under the heading ''International Security Assistance, Department of State, Peacekeeping Operations'' in division F of Public Law 111–117 shall be applied by substituting the following: ''*Provided further*, That up to $55,918,000 may be used to pay assessed expenses of international peacekeeping activities in Somalia, except that up to an additional $35,000,000 may be made available for such purpose subject to prior consultation with, and the regular notification procedures of, the Committees on Appropriations:''.

(d) Section 7004 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by adding at the end the following new subsection:

''(d) For the purposes of calculating the fiscal year 2011 costs of providing new United States diplomatic facilities in accordance with section 604(e) of the Secure Embassy Construction and Counterterrorism Act of 1999 (22 U.S.C. 4865 note), the Secretary of State, in consultation with the Director of the Office of Management and Budget, shall determine the annual program level and agency shares in a manner that is proportional to the Department of State's contribution for this purpose.''.

(e) The second proviso in the second paragraph under the heading ''International Security Assistance, Funds Appropriated to the President, Foreign Military Financing Program'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division by inserting ''Bahrain, Yemen,'' after ''Nepal,''.

(f) Section 7034(n) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by adding at the end before the period the following: '': *Provided*, That none of the funds appropriated or otherwise made available by this division or any other Act making appropriations for the Department of State, foreign operations, and related programs may be used to implement phase 3 of such authority''.

(g) Section 7034(m) of division F of Public Law 111–117 shall be applied to funds appropriated by this division by—

(1) substituting ''not less than $20,000,000'' for ''$30,000,000'' in paragraph (5); and

(2) adding the following new paragraph at the end:

''(6) The level otherwise provided by this Act for 'Related Agency, Broadcasting Board of Governors, International Broadcasting Operations' is hereby increased by $10,000,000, to remain available until September 30, 2012, to expand unrestricted access to information on the Internet.''.

(h) Section 7042 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting the following for the proviso in subsection (d)(2): '': *Provided*, That funds may not be made available for obligation until the Secretary of State determines and reports to the Committees on Appropriations that such funds to be provided are in the national security interest of the United States and provides the Committees on Appropriations a detailed spending plan''.

(i) Section 7043 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting the following for subsection (b):

''(b) LIMITATION.—None of the funds appropriated or otherwise made available in this Act under the heading 'Export-Import Bank of the United States' may be used by the Export-Import Bank of the United States to provide any new financing (including loans, guarantees, other credits, insurance, and reinsurance) to any person that is subject to sanctions under paragraph (2) or (3) of section 5(a) of the Iran Sanctions Act of 1996 (Public Law 104–172).''.

(j) For purposes of the amount made available by this division for ''Export and Investment Assistance, Export-Import Bank of the United States, Administrative Expenses'', project specific transaction costs, including direct and indirect costs incurred in claims settlements, and other costs for systems infrastructure directly supporting transactions, shall not be considered administrative expenses: *Provided*, That the Export-Import Bank of the United States may expend not more than $5,000,000 in fiscal year 2011 for such transaction costs.

(k) The first proviso under the heading ''Department of the Treasury, Debt Restructuring'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''should'' for ''shall''.

(l) Section 7059 of division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting—

(1) ''should'' for ''may'' in subsection (c); and

(2) ''65'' for ''30'' the first place it appears in subsection (l).

(m) The Foreign Operations, Export Financing, and Related Programs Appropriations Act, 1990 (Public Law 101–167) is amended—

(1) in section 599D (8 U.S.C. 1157 note)—

(A) in subsection (b)(3), by striking ''and 2010'' and inserting ''2010, and 2011''; and

(B) in subsection (e), by striking ''October 1, 2010'' each place it appears and inserting ''June 1, 2011''; and

(2) in section 599E (8 U.S.C. 1255 note) in subsection (b)(2), by striking ''2010'' and inserting ''2011''.

SEC. 2122. (a) IN GENERAL.—Subsections (b) through (d) of this section shall apply to funds appropriated by this division in lieu of section 7076 of division F of Public Law 111–117.

(b) LIMITATION.—None of the funds appropriated or otherwise made available by this division under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' may be obligated for assistance for the Government of Afghanistan until the Secretary of State, in consultation with the Administrator of the United States Agency for International Development (USAID), certifies and reports to the Committees on Appropriations the following:

(1) The Government of Afghanistan is—

(A) demonstrating a commitment to reduce corruption and improve governance, including by investigating, prosecuting, and sanctioning or removing corrupt officials from office and to implement financial transparency and accountability measures for government institutions and officials (including the Central Bank);

(B) taking significant steps to facilitate active public participation in governance and oversight; and

(C) taking credible steps to protect the internationally recognized human rights of Afghan women.

(2) There is a unified United States Government anti-corruption strategy for Afghanistan.

(3) Funds will be programmed to support and strengthen the capacity of Afghan public and private institutions and entities to reduce corruption and to improve transparency and accountability of national, provincial, and local governments, as outlined in the spending plan submitted to the Committees on Appropriations on October 26, 2010 (CN 10–298).

(4) Representatives of Afghan national, provincial, or local governments, local communities, and civil society organizations, as appropriate, will be consulted and participate in the design of programs, projects, and activities, including participation in implementation and oversight, and the development of specific benchmarks to measure progress and outcomes.

(5) Funds will be used to train and deploy additional United States Government direct-hire personnel to improve monitoring and control of assistance.

(6) A framework and methodology is being utilized to assess national, provincial, local, and sector level fiduciary risks relating to public financial management of United States Government assistance.

(c) ASSISTANCE AND OPERATIONS.—(1) Funds appropriated by this division under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' that are available for assistance for Afghanistan—

(A) shall be made available, to the maximum extent practicable, in a manner that emphasizes the participation of Afghan women, and directly improves the security, economic and social well-being, and political status, and protects the rights of, Afghan women and girls and complies with sections 7062 and 7063 of division F of Public Law 111–117, including support for the Afghan Independent Human Rights Commission, the Afghan Ministry of Women's Affairs, and women-led nongovernmental organizations;

(B) may be made available for a United States contribution to an internationally-managed fund to support the reconciliation with and disarmament, demobilization, and reintegration into Afghan society of, former combatants who have renounced violence against the Government of Afghanistan: *Provided*, That funds may be made available to support reconciliation and reintegration activities only if—

(i) Afghan women are participating at national, provincial, and local levels of government in the design, policy formulation and implementation of the reconciliation or reintegration process, and such process upholds steps taken by the Government of Afghanistan to protect the internationally recognized human rights of Afghan women; and

(ii) such funds will not be used to support any pardon or immunity from prosecution, or any position in the Government of Afghanistan or security forces, for any leader of an armed group responsible for crimes against humanity, war crimes, or other violations of internationally recognized human rights;

(C) may be made available as a United States contribution to the Afghanistan Reconstruction Trust Fund (ARTF) unless the Secretary of State determines and reports to the Committees on Appropriations that the World Bank Monitoring Agent of the ARTF is unable to conduct its financial control and audit responsibilities due to restrictions on security personnel by the Government of Afghanistan; and

(D) may be made available for a United States contribution to the North Atlantic Treaty Organization/International Security Assistance Force Post-Operations Humanitarian Relief Fund.

(2) Funds appropriated under the headings ''Economic Support Fund'' and ''International Narcotics Control and Law Enforcement'' by this division that are available for assistance for Afghanistan that provide training for foreign police, judicial, and military personnel shall address, where appropriate, gender-based violence.

(3) The authority contained in section 1102(c) of Public Law 111–32 shall continue in effect during fiscal year 2011 and shall apply as if included in this division.

(4) The Coordinator for Rule of Law at the United States Embassy in Kabul, Afghanistan, shall be consulted on the use of all funds appropriated by this division for rule of law programs in Afghanistan.

(5) None of the funds made available by this division may be used by the United States Government to enter into a permanent basing rights agreement between the United States and Afghanistan.

(6) The Secretary of State, after consultation with the USAID Administrator, shall submit to the Committees on Appropriations not later than 45 days after enactment of this division, and prior to the initial obligation of funds for assistance for Afghanistan, a detailed spending plan for such assistance which shall include clear and achievable goals, benchmarks for measuring progress, and expected results: *Provided*, That such plan shall not be considered as meeting the notification requirements under section 7015 of division F of Public Law 111–117 or under section 634A of the Foreign Assistance Act of 1961.

(d) OVERSIGHT.—(1) The Special Inspector General for Afghanistan Reconstruction, the Inspector General of the Department of State, and the Inspector General of the United States Agency for International Development, shall jointly develop and submit to the Committees on Appropriations within 45 days of enactment of this division a coordinated audit and inspection plan of United States assistance for, and civilian operations in, Afghanistan.

(2) Of the funds appropriated by this division under the heading ''Economic Support Fund'' for assistance for Afghanistan, $3,000,000 shall be transferred to, and merged with, funds appropriated by this division under the heading ''Administration of Foreign Affairs, Office of Inspector General'', for increased oversight of programs in Afghanistan and shall be in addition to funds otherwise available for such purposes: *Provided*, That $1,500,000 shall be for the activities of the Special Inspector General for Afghanistan Reconstruction.

(3) Of the funds appropriated by this division under the heading ''Economic Support Fund'' for assistance for Afghanistan, $1,500,000 shall be transferred to, and merged with, funds appropriated by this division under the heading ''United States Agency for International Development, Funds Appropriated to the President, Office of Inspector General'' for increased oversight of programs in Afghanistan and shall be in addition to funds otherwise available for such purposes.

(e) MODIFICATION TO PRIOR PROVISIONS.—(1) Section 1004(c)(1)(C) of Public Law 111–212 is amended to read as follows:

''(C) taking credible steps to protect the internationally recognized human rights of Afghan women.''.

(2) Section 1004(d)(1) of Public Law 111–212 is amended to read as follows:

''(1) Afghan women are participating at national, provincial, and local levels of government in the design, policy formulation, and implementation of the reconciliation or reintegration process, and such process upholds steps taken by the Government of Afghanistan to protect the internationally recognized human rights of Afghan women; and''.

(3) Section 1004(e)(1) of Public Law 111–212 is amended to read as follows:

''(1) based on information available to the Secretary, the Independent Electoral Commission has no members or other employees

who participated in, or helped to cover up, acts of fraud in the 2009 presidential election in Afghanistan, and the Electoral Complaints Commission is a genuinely independent body with all the authorities that were invested in it under Afghan law as of December 31, 2009; and''.

SEC. 2123. (a) The first and second provisos under the heading ''Bilateral Economic Assistance, Funds Appropriated to the President, Economic Support Fund'' in division F of Public Law 111–117 shall be applied to funds appropriated by this division by substituting the following: ''*Provided*, That of the funds appropriated under this heading, up to $250,000,000 shall be made available for assistance for Egypt for activities that support democratic elections, promote representative and accountable governance, protect human rights, strengthen civil society and the rule of law, reduce poverty, promote equitable economic development, and expand educational opportunities for disadvantaged Egyptian youth, including through scholarship programs: *Provided further*, That the Secretary of State shall submit a spending plan, including a comprehensive strategy to promote democracy and development, to the Committees on Appropriations for funds provided for Egypt under this heading: *Provided further*, That such plan shall not be considered as meeting the notification requirements under section 7015 of division F of Public Law 111–117 or under section 634A of the Foreign Assistance Act of 1961: *Provided further*, That such funds shall be subject to the regular notification procedures of the Committees on Appropriations: *Provided further*, That funds appropriated under this heading shall be made available to support democratic transitions in the Middle East and North Africa, including assistance for civil society organizations and the development of democratic political parties:''.

(b) Not later than 45 days after enactment of this Act, the Secretary of State shall submit to the Committees on Appropriations a report on Egypt detailing whether—

(1) a transparent, political transition is occurring that includes the participation of a wide range of democratic opposition and civil society leaders and is responsive to their views;

(2) the emergency law and other laws restricting human rights have been abrogated; protesters, political and social activists and journalists are not being arrested, detained or prosecuted for the peaceful exercise of their rights; and the government is respecting freedoms of expression, assembly and association; and

(3) legal and constitutional impediments to free and fair presidential and parliamentary elections are being removed.

SEC. 2124. Notwithstanding section 1101, the level for ''Multilateral Assistance, International Financial Institutions, Contribution to the Global Agriculture and Food Security Program'', shall be $100,000,000 for payment to the Global Agriculture and Food Security Program by the Secretary of the Treasury, to remain available until expended.

SEC. 2125. None of the funds made available in this division for the United Nations Capital Master Plan may be used for the design, renovation, or construction of the United Nations Headquarters in New York in excess of the agreed upon assessments of the United States pursuant to paragraph 10 of United Nations General Assembly Resolution 61/251.

SEC. 2126. (a) CONTRIBUTION TO THE ASIAN DEVELOPMENT BANK.—In addition to amounts otherwise made available by this division, $106,586,000, to remain available until expended, is appropriated for payment to the Asian Development Bank by the Secretary of the Treasury for the United States share of the paid-in portion of the increase in capital stock.

(b) LIMITATION ON CALLABLE CAPITAL SUBSCRIPTIONS.—The United States Governor of the Asian Development Bank may subscribe without fiscal year limitation to the callable capital portion of the United States share of such capital stock in an amount not to exceed $2,558,048,769.

(c) REPORTING ON REFORMS.—Funds shall not be made available for a United States contribution to the Asian Development Bank (ADB) until the Secretary of the Treasury reports to the Committees on Appropriations that the ADB is making substantial progress toward the following policy goals—

(1) implementing procurement guidelines that maximize international competitive bidding in accordance with sound procurement practices, including transparency, competition, and cost-effective results for Borrowers;

(2) providing greater public disclosure of loan documents, with particular attention to persons affected by ADB projects;

(3) implementing best practices in domestic laws and international conventions against corruption for whistleblower and witness disclosures, and protections against retaliation for internal and lawful public disclosures by ADB employees and others affected by ADB operations who report illegality or other misconduct that could threaten the ADB's mission, including best practices for legal burdens of proof; access to independent adjudicative bodies; and results that eliminate the effects of proven retaliation;

(4) ensuring that the Investigations Office, Auditor General Office, and Evaluation Office are functionally independent, free from interference when determining the scope of investigations and audits, performing work and communicating results, and regularly report to the ADB's board of directors and, as appropriate and in a manner consistent with such functional independence of the Investigations Office and the Auditor General Office, to the ADB President;

(5) requiring that each candidate for adjustment or budget support loans provide an assessment of reforms to budgetary and procurement processes to encourage transparency, including budget publication and public scrutiny, prior to loan or grant approval;

(6) ensuring that the ADB's Accountability Mechanism provides transparency and protects local residents affected by ADB projects; and

(7) making publicly available external and internal performance and financial audits of ADB projects on the ADB's website.

(d) REPORT DATES.—Not later than 180 days after enactment of this Act, and every 6 months thereafter until September 30, 2013, the Secretary of the Treasury shall submit to the Committees on Appropriations a report detailing the extent to which the ADB has made progress on each policy goal listed in subsection (c).

(e) AMENDMENT.—The Asian Development Bank Act (22 U.S.C. 285 et seq.), is amended by adding at the end the following:

''SEC. 33. NINTH REPLENISHMENT.

''(a) The United States Governor of the Bank is authorized to contribute, on behalf of the United States, $461,000,000 to the ninth replenishment of the resources of the Fund, subject to obtaining the necessary appropriations.

''(b) In order to pay for the United States contribution provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, $461,000,000 for payment by the Secretary of the Treasury.

''SEC. 34. FIFTH CAPITAL INCREASE.

''(a) SUBSCRIPTION AUTHORIZED.—

''(1) The United States Governor of the Bank may subscribe on behalf of the United States to 1,104,420 additional shares of the capital stock of the Bank.

''(2) Any subscription by the United States to capital stock of the Bank shall be effective only to such extent or in such amounts as are provided in advance in appropriations Acts.

''(b) AUTHORIZATION OF APPROPRIATIONS.—

''(1) In order to pay for the increase in the United States subscription to the Bank provided for in subsection (a), there are authorized to be appropriated, without fiscal year limitation, $13,323,173,083, for payment by the Secretary of the Treasury.

''(2) Of the amount authorized to be appropriated under paragraph (1)—

''(A) $532,929,240 is authorized to be appropriated for paid-in shares of the Bank; and

''(B) $12,790,243,843 is authorized to be appropriated for callable shares of the Bank, for payment by the Secretary of the Treasury.''.

TITLE XII—TRANSPORTATION, HOUSING AND URBAN DEVELOPMENT, AND RELATED AGENCIES

SEC. 2201. Notwithstanding section 1101, the level for ''Department of Transportation, Office of the Secretary, Transportation Planning, Research, and Development'' shall be $9,819,000.

SEC. 2202. Notwithstanding section 1101, the level for ''Department of Transportation, Office of the Secretary, National Infrastructure Investments'' shall be $528,000,000: *Provided*, That the amounts included under such heading in division A of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$0'' for ''$35,000,000''.

SEC. 2203. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Aviation Administration, Operations'' shall be $9,533,028,000, of which $4,559,000,000 shall be derived from the Airport and Airway Trust Fund, of which not less than $7,473,299,000 shall be for air traffic organization activities and not less than $1,253,020,000 shall be for aviation safety activities.

SEC. 2204. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Aviation Administration, Facilities and Equipment'' shall be $2,736,203,000, of which $2,226,203,000 shall remain available through September 30, 2013, and of which $470,000,000 shall remain available through September 30, 2011.

SEC. 2205. Notwithstanding section 1101, the amounts included under the heading ''Department of Transportation, Federal Aviation Administration, Grants-in-Aid for Airports, Liquidation of Contract Authorization'' in division A of Public Law 111–117 shall be applied to funds appropriated by this division by substituting ''$3,550,000,000'' for ''$3,000,000,000''.

SEC. 2206. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Aviation Administration, Research, Engineering, and Development'' shall be $170,000,000.

SEC. 2207. Of the unobligated balances of funds apportioned to each State under chapter 1 of title 23, United States Code, $2,500,000,000 are permanently rescinded: *Provided*, That such rescission shall not apply to the funds distributed in accordance with sections 130(f) and 104(b)(5) of title 23, United States Code; sections 133(d)(1) and 163 of such title, as in effect on the day before the date of enactment of Public Law 109–59; and the first sentence of section 133(d)(3)(A) of such title: *Provided further*, That notwithstanding

section 1132 of Public Law 110–140, in administering the rescission required under this heading, the Secretary of Transportation shall allow each State to determine the amount of the required rescission to be drawn from the programs to which the rescission applies.

SEC. 2208. Notwithstanding section 1101, no funds made available by this division shall be for activities described in section 122 of title I of division A of Public Law 111–117.

SEC. 2209. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Highway Administration, Surface Transportation Priorities'' shall be $0.

SEC. 2210. Unobligated balances of funds made available for obligation under section 320 of title 23, United States Code, section 147 of Public Law 95–599, section 9(c) of Public Law 97–134, section 149 of Public Law 100–17, and sections 1006, 1069, 1103, 1104, 1105, 1106, 1107, 1108, 6005, 6015, and 6023 of Public Law 102–240 are permanently rescinded.

SEC. 2211. The unobligated balance available on September 30, 2011, under section 1602 of the Transportation Equity Act for the 21st Century (Public Law 105–178) for each project for which less than 10 percent of the amount authorized for such project under such section has been obligated is permanently rescinded.

SEC. 2212. Of the amounts authorized for fiscal years 2005 through 2009 in section 1101(a)(16) of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (Public Law 109–59) to carry out the high priority projects program under section 117 of title 23, United States Code, that are not allocated for projects described in section 1702 of such Act, $8,190,335 are permanently rescinded.

SEC. 2213. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Motor Carrier Safety Administration, Motor Carrier Safety Operations and Programs, (Liquidation of Contract Authorization), (Limitation on Obligations), (Highway Trust Fund)'' shall be $245,000,000.

SEC. 2214. Of the amount made available for ''Department of Transportation, Motor Carrier Safety Grants, (Liquidation of Contract Authorization), (Limitation on Obligations), (Highway Trust Fund)'' for the commercial driver's license information system modernization program, $3,000,000 shall be made available for audits of new entrant motor carriers to carry out section 4107(b) of Public Law 109–59, and 31104(a) of title 49, United States Code, and $5,000,000 shall be made available for the commercial driver's license improvements program to carry out section 31313 of title 49, United States Code.

SEC. 2215. Of the unobligated amounts available for Safety Belt Performance Grants under section 406 of title 23, United States Code, $76,000,000 are permanently rescinded.

SEC. 2216. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Railroad Administration, Railroad Safety Technology Program'' shall be $0.

SEC. 2217. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Railroad Administration, Safety and Operations'' shall be $176,950,000.

SEC. 2218. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Railroad Administration, Railroad Research and Development'' shall be $35,100,000.

SEC. 2219. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Railroad Administration, Rail Line Relocation and Improvement Program'' shall be $10,532,000.

SEC. 2220. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Railroad Administration, Capital and Debt Service Grants to the National Railroad Passenger Corporation'' shall be $923,625,000.

SEC. 2221. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Railroad Administration, Capital Assistance for High Speed Rail Corridors and Intercity Passenger Rail Service'' shall be $0.

SEC. 2222. Of the prior year unobligated balances available for ''Department of Transportation, Federal Railroad Administration, Capital Assistance for High Speed Rail Corridors and Intercity Passenger Rail Service'', $400,000,000 is rescinded.

SEC. 2223. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Transit Administration, Grants for Energy Efficiency and Greenhouse Gas Reductions'' shall be $50,000,000.

SEC. 2224. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Transit Administration, Capital Investment Grants'' shall be $1,600,000,000.

SEC. 2225. Of the funds made available for ''Department of Transportation, Federal Transit Administration, Capital Investment Grants'' in division A of Public Law 111–117, $280,000,000 is rescinded.

SEC. 2226. Notwithstanding section 1101, the level for ''Department of Transportation, Federal Transit Administration, Research and University Research Centers'' shall be $59,000,000.

SEC. 2227. Notwithstanding section 1101, the level for ''Department of Transportation, Maritime Administration, Operations and Training'' shall be $151,750,000, of which $11,240,000 shall remain available until expended for maintenance and repair of training ships at State Maritime Academies; $15,000,000 shall remain available until expended for capital improvements at the United States Merchant Marine Academy; and $59,057,000 shall be available for operations at the United States Merchant Marine Academy: *Provided*, That of the funds made available under such heading in division A of Public Law 111–117, up to $6,000,000 may be used for the reimbursement of overcharged midshipmen fees for academic years 2003–2004 through 2008–2009, to remain available until expended: *Provided further*, That the reimbursement decisions of the Secretary pursuant to the previous proviso shall be final and conclusive: *Provided further*, That of the funds made available under such heading by this division, $1,000,000 shall be for the information technology requirements of Public Law 111–207, to be available until expended.

SEC. 2228. Notwithstanding section 1101, the level for ''Department of Transportation, Maritime Administration, Assistance to Small Shipyards'' shall be $10,000,000.

SEC. 2229. Notwithstanding section 1101, the level for each of the following accounts under the heading ''Department of Transportation, Pipeline and Hazardous Materials Safety Administration'' shall be as follows: ''Operational Expenses, (Pipeline Safety Fund)'', $21,496,000; ''Hazardous Materials Safety'', $39,098,000, of which $1,699,000 shall remain available until September 30, 2013; and ''Pipeline Safety (Pipeline Safety Fund) (Oil Spill Liability Trust Fund)'', $106,919,000, of which $18,905,000 shall be derived from the Oil Spill Liability Trust Fund and shall remain available until September 30, 2013, and of which $88,014,000 shall be derived from the Pipeline Safety Fund, of which $47,332,000 shall remain available until September 30, 2013.

SEC. 2230. Notwithstanding section 1101, section 186 of title I of division A of Public Law 111–117 shall not apply in fiscal year 2011.

SEC. 2231. Notwithstanding section 1101, none of the funds made available by this division shall be available for activities described in section 195 of title I of division A of Public Law 111–117.

SEC. 2232. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Management and Administration, Administration, Operations and Management'' shall be $525,040,000: *Provided*, That the Secretary shall adjust other amounts specified under this heading to stay within the level provided under this section.

SEC. 2233. Notwithstanding section 1101, section 231 of title II of division A of Public Law 111–117 (123 Stat. 3105) is amended to read as follows: ''The Secretary of Housing and Urban Development is authorized to transfer up to 5 percent or $5,000,000, whichever is less, of the funds made available for personnel or nonpersonnel expenses under any account under this title under the general heading 'Personnel Compensation and Benefits', or under any set-aside within the accounts under the headings 'Executive Direction' and 'Administration, Operations and Management', to any other such account or set-aside: *Provided*, That no appropriation for personnel or non-personnel expenses in any such account or set-aside shall be increased or decreased by more than 5 percent or $5,000,000, whichever is less, without prior written approval of the House and Senate Committees on Appropriations.''.

SEC. 2234. Notwithstanding section 1101, the level for each of the following accounts under the heading ''Department of Housing and Urban Development, Personnel Compensation and Benefits'' shall be as follows: ''Public and Indian Housing'', $189,074,000; ''Community Planning and Development'', $96,989,000; ''Housing'', $381,887,000; and ''Policy Development and Research'', $19,138,000.

SEC. 2235. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Public and Indian Housing, Tenant-Based Rental Assistance'' shall be $14,407,688,000, to remain available until expended, which shall be available on October 1, 2010 (in addition to the $4,000,000,000 previously appropriated under such heading that became available on October 1, 2010), and, notwithstanding section 1118, an additional $4,000,000,000, to remain available until expended, shall be available on October 1, 2011: *Provided*, That of the amounts available for such heading, $16,702,688,000 shall be for activities specified in paragraph (1) under such heading of title II of division A of Public Law 111–117; $110,000,000 shall be for activities specified in paragraph (2) under such heading in such Public Law; $1,450,000,000 shall be for activities specified in paragraph (3) under such heading in such Public Law, of which $1,400,000,000 shall be allocated as provided in the first proviso of such paragraph (3); and $50,000,000 shall be for activities specified in paragraph (6) under such heading in such Public Law: *Provided further*, That paragraph (5) under such heading in such Public Law is amended by striking ''$15,000,000'' and all that follows through the end of such paragraph and inserting ''$35,000,000 for amendment and renewal of tenant-based assistance contracts under section 811 of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 8013), including necessary administrative expenses;''.

SEC. 2236. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Public and Indian Housing, Public Housing Operating Fund'' shall be $4,626,000,000.

SEC. 2237. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Public and Indian Housing, Revitalization of Severely Distressed Public Housing (HOPE VI)'' shall be $100,000,000.

SEC. 2238. Notwithstanding section 1101, the level for ''Department of Housing and

Urban Development, Public and Indian Housing, Public Housing Capital Fund'' shall be $2,044,200,000.

SEC. 2239. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Public and Indian Housing, Native American Housing Block Grants'' shall be $650,000,000.

SEC. 2240. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Community Planning and Development, Community Development Fund'' shall be $3,508,000,000, of which $3,343,000,000 shall be for carrying out the community development block grant program under title I of the Housing and Community Development Act of 1974 (42 U.S.C. 5301 et seq.): *Provided*, That none of the funds made available under such heading by this division may be used for grants for the Economic Development Initiative or Neighborhood Initiatives activities, Rural Innovation Fund, or for grants pursuant to section 107 of the Housing and Community Development Act of 1974 (42 U.S.C. 5307): *Provided further*, That of the amounts made available under such heading by this division, $100,000,000 shall be for a Sustainable Communities Initiative, of which $70,000,000 shall be for Regional Integrated Planning Grants and $30,000,000 shall be for Community Challenge Planning Grants: *Provided further*, That of such amount made available for Regional Integrated Planning Grants, $17,500,000 shall be for activities specified in the second proviso of the last paragraph under such heading in title II of division A of Public Law 111–117 and $0 shall be for activities specified in the sixth proviso of such paragraph.

SEC. 2241. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Community Planning and Development, Homeless Assistance Grants'' shall be $1,905,000,000, of which at least $225,000,000 shall be for the Emergency Solutions Grant program.

SEC. 2242. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Community Planning and Development, HOME Investment Partnerships Program'' shall be $1,610,000,000.

SEC. 2243. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Community Planning and Development, Brownfields Redevelopment'' shall be $0.

SEC. 2244. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Housing Programs, Project-Based Rental Assistance'' shall be $8,882,328,000, to remain available until expended, which shall be available on October 1, 2010 (in addition to $393,672,000 previously appropriated under such heading that became available on October 1, 2010), and, notwithstanding section 1118, an additional $400,000,000, to remain available until expended, shall be available on October 1, 2011: *Provided*, That of the amounts available for such heading, $8,950,000,000 shall be for activities specified in paragraph (1) under such heading of title II of division A of Public Law 111–117 and $326,000,000 shall be available for activities specified in paragraph (2) under such heading of such Public Law.

SEC. 2245. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Housing Programs, Housing Counseling Assistance'' shall be $0.

SEC. 2246. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Housing Programs, Housing for the Elderly'' shall be $400,000,000: *Provided*, That of such amounts, up to $100,000,000 shall be available for capital advance and project-based rental assistance awards, and none of such amounts shall be available for activities specified in the third proviso under such heading in title II of division A of Public Law 111–117.

SEC. 2247. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Housing Programs, Housing for Persons with Disabilities'' shall be $150,000,000, of which up to $50,000,000 shall be for capital advances and project-based rental assistance contracts and up to $32,000,000 shall be available for amendments or renewal of tenant-based assistance contracts entered into prior to fiscal year 2007.

SEC. 2248. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Housing Programs, Energy Innovation Fund'' shall be $0.

SEC. 2249. The heading ''Department of Housing and Urban Development, Housing Programs, Other Assisted Housing Programs, Rental Housing Assistance'' shall be applied by also being available for extensions of up to one year for expiring contracts under such sections of law.

SEC. 2250. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Housing Programs, Rent Supplement (Rescission)'' shall be $40,600,000.

SEC. 2251. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Federal Housing Administration, Mutual Mortgage Insurance Program Account'' for administrative contract expenses shall be $207,000,000.

SEC. 2252. The first proviso in the first paragraph under the heading ''Department of Housing and Urban Development, Federal Housing Administration, General and Special Risk Program Account'' in division A of Public Law 111–117 shall be applied in fiscal year 2011 by substituting ''$20,000,000,000'' for ''$15,000,000,000''.

SEC. 2253. Notwithstanding section 1101, the level for ''Department of Housing and Urban Development, Office of Lead Hazard Control and Healthy Homes, Lead Hazard Reduction'' shall be $120,000,000.

SEC. 2254. Notwithstanding section 1101, the level under the heading ''Related Agencies, United States Interagency Council on Homelessness, Operating Expenses'' shall be $2,680,000.

SEC. 2255. Section 209 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11319) is amended by striking all that follows ''on'' and inserting ''October 1, 2013.''.

SEC. 2256. The first proviso under the heading ''Housing for the Elderly'' and under the heading ''Housing for Persons with Disabilities'' in division A of Public Law 111–117 are each amended to read as follows: ''*Provided*, That amounts obligated for initial project rental assistance contracts from amounts appropriated in fiscal year 2003 and thereafter shall remain available for the purpose of paying such obligations incurred prior to the expiration of such amounts for a 10 year period following such expiration:''.

SEC. 2257. The amounts provided by section 1101 for ''Department of Housing and Urban Development, Housing Programs, Housing for Persons with Disabilities'' shall, in addition to use as provided under such heading in title II of division A of Public Law 111–117, be available for project assistance contracts pursuant to section 202(h) of the Housing Act of 1959 (12 U.S.C. 1701q).

SEC. 2258. Notwithstanding section 1101, the level under the heading ''Department of Housing and Urban Development, Management and Administration, Transformation Initiative'' for combating mortgage fraud shall be $0.

SEC. 2259. The heading ''Department of Housing and Urban Development, Management and Administration, Transformation Initiative'' in title II of division A of Public Law 111–117 is amended by striking the second paragraph and inserting the following: ''For necessary expenses of information technology modernization, including development and deployment of a Next Generation of Voucher Management System and development and deployment of modernized Federal Housing Administration systems, $71,000,000, to remain available until September 30, 2013: *Provided*, That not more than 35 percent of the funds made available for information technology modernization may be obligated until the Secretary submits to the Committees on Appropriations a plan for expenditure that (1) identifies for each modernization project (A) the functional and performance capabilities to be delivered and the mission benefits to be realized, (B) the estimated lifecycle cost, and (C) key milestones to be met; (2) demonstrates that each modernization project is (A) compliant with the Department's enterprise architecture, (B) being managed in accordance with applicable lifecycle management policies and guidance, (C) subject to the Department's capital planning and investment control requirements, and (D) supported by an adequately staffed project office; and (3) has been reviewed by the Government Accountability Office. In addition, of the amounts made available in this division under each of the following headings under this title, the Secretary may transfer to, and merge with, this account up to 1 percent from each such account, and such transferred amounts shall be available until September 30, 2013, for (1) research, evaluation, and program metrics; (2) program demonstrations; (3) technical assistance and capacity building; and (4) information technology: 'Revitalization of Severely Distressed Public Housing', 'Section 108 Loan Guarantees', 'Housing Opportunities for Persons With AIDS', 'Community Development Fund', 'HOME Investment Partnerships Program', 'Self-Help and Assisted Homeownership Opportunity Program', 'Housing for the Elderly', 'Housing for Persons With Disabilities', 'Payment to Manufactured Housing Fees Trust Fund', 'Mutual Mortgage Insurance Program Account', 'General and Special Risk Program Account', 'Research and Technology', 'Lead Hazard Reduction', 'Rental Housing Assistance', and 'Fair Housing Activities': *Provided further*, That of the amounts made available under this heading, not less than $45,000,000 shall be available for technical assistance and capacity building: *Provided further*, That technical assistance activities shall include, technical assistance for HUD programs, including HOME, Community Development Block Grant, homeless programs, HOPWA, HOPE VI, Public Housing, the Housing Choice Voucher Program, Fair Housing Initiative Program, Housing Counseling, Healthy Homes, Sustainable Communities, Energy Innovation Fund and other technical assistance as determined by the Secretary: *Provided further*, That any amounts available for research, evaluation, and program metrics and program demonstrations shall be used to complete ongoing projects, evaluations, and assessments: *Provided further*, That the Secretary shall submit a plan to the House and Senate Committees on Appropriations for approval detailing how the funding provided under this section will be allocated to each of the four categories identified under this section and for what projects or activities funding will be used: *Provided further*, That following the initial approval of this plan, the Secretary may amend the plan with the approval of the House and Senate Committees on Appropriations.''.

SEC. 2260. Notwithstanding section 1101, the level for ''National Railroad Passenger Corporation, Office of Inspector General, Salaries and Expenses'' shall be $19,350,000.

SEC. 2261. No rescission made in this title shall apply to any amount previously designated by the Congress as an emergency requirement pursuant to a concurrent resolution on the budget or the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 2262. None of the funds made available by this division may be used to pay the salaries and expenses for the following positions:

(1) Director, White House Office of Health Reform.

(2) Assistant to the President for Energy and Climate Change.

(3) Senior Advisor to the Secretary of the Treasury assigned to the Presidential Task Force on the Auto Industry and Senior Counselor for Manufacturing Policy.

(4) White House Director of Urban Affairs.

This division may be cited as the ''Full-Year Continuing Appropriations Act, 2011''.

DIVISION C—SCHOLARSHIPS FOR OPPORTUNITY AND RESULTS ACT

SEC. 3001. SHORT TITLE.

This division may be cited as the ''Scholarships for Opportunity and Results Act'' or the ''SOAR Act''.

SEC. 3002. FINDINGS.

Congress finds the following:

(1) Parents are best equipped to make decisions for their children, including the educational setting that will best serve the interests and educational needs of their child.

(2) For many parents in the District of Columbia, public school choice provided under the Elementary and Secondary Education Act of 1965, as well as under other public school choice programs, is inadequate. More educational options are needed to ensure all families in the District of Columbia have access to a quality education. In particular, funds are needed to provide low-income parents with enhanced public opportunities and private educational environments, regardless of whether such environments are secular or nonsecular.

(3) While the per student cost for students in the public schools of the District of Columbia is one of the highest in the United States, test scores for such students continue to be among the lowest in the Nation. The National Assessment of Educational Progress (NAEP), an annual report released by the National Center for Education Statistics, reported in its 2009 study that students in the District of Columbia were being outperformed by every State in the Nation. On the 2009 NAEP, 56 percent of fourth grade students scored ''below basic'' in reading, and 44 percent scored ''below basic'' in mathematics. Among eighth grade students, 49 percent scored ''below basic'' in reading and 60 percent scored ''below basic'' in mathematics. On the 2009 NAEP reading assessment, only 17 percent of the District of Columbia fourth grade students could read proficiently, while only 13 percent of the eighth grade students scored at the proficient or advanced level.

(4) In 2003, Congress passed the DC School Choice Incentive Act of 2003 (Public Law 108–199; 118 Stat. 126), to provide opportunity scholarships to parents of students in the District of Columbia to enable them to pursue a high-quality education at a public or private elementary or secondary school of their choice. The DC Opportunity Scholarship Program (DC OSP) under such Act was part of a comprehensive 3-part funding arrangement that also included additional funds for the District of Columbia public schools, and additional funds for public charter schools of the District of Columbia. The intent of the approach was to ensure that progress would continue to be made to improve public schools and public charter schools, and that funding for the opportunity scholarship program would not lead to a reduction in funding for the District of Columbia public and charter schools. Resources would be available for a variety of educational options that would give families in the District of Columbia a range of choices with regard to the education of their children.

(5) The DC OSP was established in accordance with the Supreme Court decision, Zelman v. Simmons-Harris, 536 U.S. 639 (2002), which found that a program enacted for the valid secular purpose of providing educational assistance to low-income children in a demonstrably failing public school system is constitutional if it is neutral with respect to religion and provides assistance to a broad class of citizens who direct government aid to religious and secular schools solely as a result of their genuine and independent private choices.

(6) Since the inception of the DC OSP, it has consistently been oversubscribed. Parents express strong support for the opportunity scholarship program. Rigorous studies of the program by the Institute of Education Sciences have shown significant improvements in parental satisfaction and in reading scores that are more dramatic when only those students consistently using the scholarships are considered. The program also was found to result in significantly higher graduation rates for DC OSP students.

(7) The DC OSP is a program that offers families in need, in the District of Columbia, important alternatives while public schools are improved. This program should be reauthorized as 1 of a 3-part comprehensive funding strategy for the District of Columbia school system that provides new and equal funding for public schools, public charter schools, and opportunity scholarships for students to attend private schools.

SEC. 3003. PURPOSE.

The purpose of this division is to provide low-income parents residing in the District of Columbia, particularly parents of students who attend elementary schools or secondary schools identified for improvement, corrective action, or restructuring under section 1116 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6316), with expanded opportunities for enrolling their children in other schools in the District of Columbia, at least until the public schools in the District of Columbia have adequately addressed shortfalls in health, safety, and security, and the students in the District of Columbia public schools are testing in mathematics and reading at or above the national average.

SEC. 3004. GENERAL AUTHORITY.

(a) OPPORTUNITY SCHOLARSHIPS.—

(1) IN GENERAL.—From funds appropriated under section 3014(a)(1), the Secretary shall award grants on a competitive basis to eligible entities with approved applications under section 3005 to carry out a program to provide eligible students with expanded school choice opportunities. The Secretary may award a single grant or multiple grants, depending on the quality of applications submitted and the priorities of this division.

(2) DURATION OF GRANTS.—The Secretary may make grants under this subsection for a period of not more than 5 years.

(b) DC PUBLIC SCHOOLS AND CHARTER SCHOOLS.—From funds appropriated under paragraphs (2) and (3) of section 3014(a), the Secretary shall provide funds to the Mayor of the District of Columbia, if the Mayor agrees to the requirements described in section 3011(a), for—

(1) the District of Columbia public schools to improve public education in the District of Columbia; and

(2) the District of Columbia public charter schools to improve and expand quality public charter schools in the District of Columbia.

SEC. 3005. APPLICATIONS.

(a) IN GENERAL.—In order to receive a grant under section 3004(a), an eligible entity shall submit an application to the Secretary at such time, in such manner, and accompanied by such information as the Secretary may require.

(b) CONTENTS.—The Secretary may not approve the request of an eligible entity for a grant under section 3004(a) unless the entity's application includes—

(1) a detailed description of—

(A) how the entity will address the priorities described in section 3006;

(B) how the entity will ensure that if more eligible students seek admission in the program of the entity than the program can accommodate, eligible students are selected for admission through a random selection process which gives weight to the priorities described in section 3006;

(C) how the entity will ensure that if more participating eligible students seek admission to a participating school than the school can accommodate, participating eligible students are selected for admission through a random selection process;

(D) how the entity will notify parents of eligible students of the expanded choice opportunities in order to allow the parents to make informed decisions;

(E) the activities that the entity will carry out to provide parents of eligible students with expanded choice opportunities through the awarding of scholarships under section 3007(a);

(F) how the entity will determine the amount that will be provided to parents under section 3007(a)(2) for the payment of tuition, fees, and transportation expenses, if any;

(G) how the entity will seek out private elementary schools and secondary schools in the District of Columbia to participate in the program;

(H) how the entity will ensure that each participating school will meet the reporting and other program requirements under this division;

(I) how the entity will ensure that participating schools submit to site visits by the entity as determined to be necessary by the entity, except that a participating school may not be required to submit to more than 1 site visit per school year;

(J) how the entity will ensure that participating schools are financially responsible and will use the funds received under section 3007 effectively;

(K) how the entity will address the renewal of scholarships to participating eligible students, including continued eligibility; and

(L) how the entity will ensure that a majority of its voting board members or governing organization are residents of the District of Columbia; and

(2) an assurance that the entity will comply with all requests regarding any evaluation carried out under section 3009(a).

SEC. 3006. PRIORITIES.

In awarding grants under section 3004(a), the Secretary shall give priority to applications from eligible entities that will most effectively—

(1) in awarding scholarships under section 3007(a), give priority to—

(A) eligible students who, in the school year preceding the school year for which the eligible students are seeking a scholarship, attended an elementary school or secondary school identified for improvement, corrective action, or restructuring under section 1116 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6316);

(B) students who have been awarded a scholarship in a preceding year under this division or the DC School Choice Incentive Act of 2003 (sec. 38–1851.01 et seq., D.C. Official Code), as such Act was in effect on the day before the date of the enactment of this division, but who have not used the scholarship, including eligible students who were provided notification of selection for a scholarship for school year 2009-2010, which was later rescinded in accordance with direction from the Secretary of Education; and

(C) students whose household includes a sibling or other child who is already participating in the program of the eligible entity under this division, regardless of whether such students have, in the past, been assigned as members of a control study group for the purposes of an evaluation under section 3009(a);

(2) target resources to students and families that lack the financial resources to take advantage of available educational options; and

(3) provide students and families with the widest range of educational options.

SEC. 3007. USE OF FUNDS.

(a) OPPORTUNITY SCHOLARSHIPS.—

(1) IN GENERAL.—Subject to paragraphs (2) and (3), an eligible entity receiving a grant under section 3004(a) shall use the grant funds to provide eligible students with scholarships to pay the tuition, fees, and transportation expenses, if any, to enable the eligible students to attend the District of Columbia private elementary school or secondary school of their choice beginning in school year 2011–2012. Each such eligible entity shall ensure that the amount of any tuition or fees charged by a school participating in such entity's program under this division to an eligible student participating in the program does not exceed the amount of tuition or fees that the school charges to students who do not participate in the program.

(2) PAYMENTS TO PARENTS.—An eligible entity receiving a grant under section 3004(a) shall make scholarship payments under the entity's program under this division to the parent of the eligible student participating in the program, in a manner which ensures that such payments will be used for the payment of tuition, fees, and transportation expenses (if any), in accordance with this division.

(3) AMOUNT OF ASSISTANCE.—

(A) VARYING AMOUNTS PERMITTED.—Subject to the other requirements of this section, an eligible entity receiving a grant under section 3004(a) may award scholarships in larger amounts to those eligible students with the greatest need.

(B) ANNUAL LIMIT ON AMOUNT.—

(i) LIMIT FOR SCHOOL YEAR 2011–2012.—The amount of assistance provided to any eligible student by an eligible entity under the entity's program under this division for school year 2011–2012 may not exceed—

(I) $8,000 for attendance in kindergarten through grade 8; and

(II) $12,000 for attendance in grades 9 through 12.

(ii) CUMULATIVE INFLATION ADJUSTMENT.—Beginning with school year 2012–2013, the Secretary shall adjust the maximum amounts of assistance described in clause (i) for inflation, as measured by the percentage increase, if any, from the preceding fiscal year in the Consumer Price Index for All Urban Consumers, published by the Bureau of Labor Statistics of the Department of Labor.

(4) PARTICIPATING SCHOOL REQUIREMENTS.—None of the funds provided under this division for opportunity scholarships may be used by an eligible student to enroll in a participating private school unless the participating school—

(A) has and maintains a valid certificate of occupancy issued by the District of Columbia;

(B) makes readily available to all prospective students information on its school accreditation;

(C) in the case of a school that has been operating for 5 years or less, submits to the eligible entity administering the program proof of adequate financial resources reflecting the financial sustainability of the school and the school's ability to be in operation through the school year;

(D) agrees to submit to site visits as determined to be necessary by the eligible entity pursuant to section 3005(b)(1)(I);

(E) has financial systems, controls, policies, and procedures to ensure that funds are used according to this division; and

(F) ensures that each teacher of core subject matter in the school has a baccalaureate degree or equivalent degree, whether such degree was awarded in or outside of the United States.

(b) ADMINISTRATIVE EXPENSES.—An eligible entity receiving a grant under section 3004(a) may use not more than 3 percent of the amount provided under the grant each year for the administrative expenses of carrying out its program under this division during the year, including—

(1) determining the eligibility of students to participate;

(2) selecting eligible students to receive scholarships;

(3) determining the amount of scholarships and issuing the scholarships to eligible students;

(4) compiling and maintaining financial and programmatic records; and

(5) conducting site visits as described in section 3005(b)(1)(I).

(c) PARENTAL ASSISTANCE.—An eligible entity receiving a grant under section 3004(a) may use not more than 2 percent of the amount provided under the grant each year for the expenses of educating parents about the entity's program under this division, and assisting parents through the application process, under this division, including—

(1) providing information about the program and the participating schools to parents of eligible students;

(2) providing funds to assist parents of students in meeting expenses that might otherwise preclude the participation of eligible students in the program; and

(3) streamlining the application process for parents.

(d) STUDENT ACADEMIC ASSISTANCE.—An eligible entity receiving a grant under section 3004(a) may use not more than 1 percent of the amount provided under the grant each year for expenses to provide tutoring services to participating eligible students that need additional academic assistance. If there are insufficient funds to provide tutoring services to all such students in a year, the eligible entity shall give priority in such year to students who previously attended an elementary school or secondary school that was identified for improvement, corrective action, or restructuring under section 1116 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6316).

SEC. 3008. NONDISCRIMINATION AND OTHER REQUIREMENTS FOR PARTICIPATING SCHOOLS.

(a) IN GENERAL.—An eligible entity or a school participating in any program under this division shall not discriminate against program participants or applicants on the basis of race, color, national origin, religion, or sex.

(b) APPLICABILITY AND SINGLE SEX SCHOOLS, CLASSES, OR ACTIVITIES.—

(1) IN GENERAL.—Notwithstanding any other provision of law, the prohibition of sex discrimination in subsection (a) shall not apply to a participating school that is operated by, supervised by, controlled by, or connected to a religious organization to the extent that the application of subsection (a) is inconsistent with the religious tenets or beliefs of the school.

(2) SINGLE SEX SCHOOLS, CLASSES, OR ACTIVITIES.—Notwithstanding subsection (a) or any other provision of law, a parent may choose and a school may offer a single sex school, class, or activity.

(3) APPLICABILITY.—For purposes of this division, the provisions of section 909 of the Education Amendments of 1972 (20 U.S.C. 1688) shall apply to this division as if section 909 of the Education Amendments of 1972 (20 U.S.C. 1688) were part of this division.

(c) CHILDREN WITH DISABILITIES.—Nothing in this division may be construed to alter or modify the provisions of the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.).

(d) RELIGIOUSLY AFFILIATED SCHOOLS.—

(1) IN GENERAL.—Notwithstanding any other provision of law, a school participating in any program under this division that is operated by, supervised by, controlled by, or connected to, a religious organization may exercise its right in matters of employment consistent with title VII of the Civil Rights Act of 1964 (42 U.S.C. 2000e–1 et seq.), including the exemptions in such title.

(2) MAINTENANCE OF PURPOSE.—Notwithstanding any other provision of law, funds made available under this division to eligible students, which are used at a participating school as a result of their parents' choice, shall not, consistent with the first amendment of the Constitution, necessitate any change in the participating school's teaching mission, require any participating school to remove religious art, icons, scriptures, or other symbols, or preclude any participating school from retaining religious terms in its name, selecting its board members on a religious basis, or including religious references in its mission statements and other chartering or governing documents.

(e) RULE OF CONSTRUCTION.—A scholarship (or any other form of support provided to parents of eligible students) under this division shall be considered assistance to the student and shall not be considered assistance to the school that enrolls the eligible student. The amount of any scholarship (or other form of support provided to parents of an eligible student) under this division shall not be treated as income of the child or his or her parents for purposes of Federal tax laws or for determining eligibility for any other Federal program.

(f) REQUESTS FOR DATA AND INFORMATION.—Each school participating in a program funded under this division shall comply with all requests for data and information regarding evaluations conducted under section 3009(a).

(g) RULES OF CONDUCT AND OTHER SCHOOL POLICIES.—A participating school, including the schools described in subsection (d), may require eligible students to abide by any rules of conduct and other requirements applicable to all other students at the school.

(h) NATIONALLY NORM-REFERENCED STANDARDIZED TESTS.—

(1) IN GENERAL.—Each participating school shall comply with any testing requirements determined to be necessary for evaluation under section 3009(a)(2)(A)(i).

(2) MAKE-UP SESSION.—If a participating school does not administer a nationally norm-referenced standardized test or the Institute of Education Sciences does not receive data on a student who is receiving an opportunity scholarship, then the Secretary (through the Institute of Education Sciences of the Department of Education) shall administer such test at least one time during a

school year for each student receiving an opportunity scholarship.

SEC. 3009. EVALUATIONS.

(a) IN GENERAL.—

(1) DUTIES OF THE SECRETARY AND THE MAYOR.—The Secretary and the Mayor of the District of Columbia shall—

(A) jointly enter into an agreement with the Institute of Education Sciences of the Department of Education to evaluate annually the performance of students who received scholarships under the 5-year program under this division;

(B) jointly enter into an agreement to monitor and evaluate the use of funds authorized and appropriated for the District of Columbia public schools and the District of Columbia public charter schools under this division; and

(C) make the evaluations described in subparagraphs (A) and (B) public in accordance with subsection (c).

(2) DUTIES OF THE SECRETARY.—The Secretary, through a grant, contract, or cooperative agreement, shall—

(A) ensure that the evaluation under paragraph (1)(A)—

(i) is conducted using the strongest possible research design for determining the effectiveness of the opportunity scholarship program under this division; and

(ii) addresses the issues described in paragraph (4); and

(B) disseminate information on the impact of the program—

(i) in increasing the academic growth and achievement of participating eligible students; and

(ii) on students and schools in the District of Columbia.

(3) DUTIES OF THE INSTITUTE OF EDUCATION SCIENCES.—The Institute of Education Sciences of the Department of Education shall—

(A) use a grade appropriate, nationally norm-referenced standardized test each school year to assess participating eligible students;

(B) measure the academic achievement of all participating eligible students; and

(C) work with the eligible entities to ensure that the parents of each student who applies for a scholarship under this division (regardless of whether the student receives the scholarship) and the parents of each student participating in the scholarship program under this division, agree that the student will participate in the measurements given annually by the Institute of Educational Sciences for the period for which the student applied for or received the scholarship, respectively, except that nothing in this subparagraph shall affect a student's priority for an opportunity scholarship as provided under section 3006.

(4) ISSUES TO BE EVALUATED.—The issues to be evaluated under paragraph (1)(A) shall include the following:

(A) A comparison of the academic growth and achievement of participating eligible students in the measurements described in paragraph (3) to the academic growth and achievement of the eligible students in the same grades who sought to participate in the scholarship program under this division but were not selected.

(B) The success of the program in expanding choice options for parents of participating eligible students, improving parental and student satisfaction of such parents and students, respectively, and increasing parental involvement of such parents in the education of their children.

(C) The reasons parents of participating eligible students choose for their children to participate in the program, including important characteristics for selecting schools.

(D) A comparison of the retention rates, high school graduation rates, and college admission rates of participating eligible students with the retention rates, high school graduation rates, and college admission rates of students of similar backgrounds who do not participate in such program.

(E) A comparison of the safety of the schools attended by participating eligible students and the schools in the District of Columbia attended by students who do not participate in the program, based on the perceptions of the students and parents.

(F) Such other issues with respect to participating eligible students as the Secretary considers appropriate for inclusion in the evaluation, such as the impact of the program on public elementary schools and secondary schools in the District of Columbia.

(G) An analysis of the issues described in subparagraphs (A) through (F) by applying such subparagraphs by substituting ''the subgroup of participating eligible students who have used each opportunity scholarship awarded to such students under this division to attend a participating school'' for ''participating eligible students'' each place such term appears.

(5) PROHIBITION.—Personally identifiable information regarding the results of the measurements used for the evaluations may not be disclosed, except to the parents of the student to whom the information relates.

(b) REPORTS.—The Secretary shall submit to the Committees on Appropriations, Education and the Workforce, and Oversight and Government Reform of the House of Representatives and the Committees on Appropriations, Health, Education, Labor, and Pensions, and Homeland Security and Governmental Affairs of the Senate—

(1) annual interim reports, not later than April 1 of the year following the year of the date of enactment of this division, and each subsequent year through the year in which the final report is submitted under paragraph (2), on the progress and preliminary results of the evaluation of the opportunity scholarship program funded under this division; and

(2) a final report, not later than 1 year after the final year for which a grant is made under section 3004(a), on the results of the evaluation of the program.

(c) PUBLIC AVAILABILITY.—All reports and underlying data gathered pursuant to this section shall be made available to the public upon request, in a timely manner following submission of the applicable report under subsection (b), except that personally identifiable information shall not be disclosed or made available to the public.

(d) LIMIT ON AMOUNT EXPENDED.—The amount expended by the Secretary to carry out this section for any fiscal year may not exceed 5 percent of the total amount appropriated under section 3014(a)(1) for the fiscal year.

SEC. 3010. REPORTING REQUIREMENTS.

(a) ACTIVITIES REPORTS.—Each eligible entity receiving funds under section 3004(a) during a year shall submit a report to the Secretary not later than July 30 of the following year regarding the activities carried out with the funds during the preceding year.

(b) ACHIEVEMENT REPORTS.—

(1) IN GENERAL.—In addition to the reports required under subsection (a), each eligible entity receiving funds under section 3004(a) shall, not later than September 1 of the year during which the second school year of the entity's program is completed and each of the next 2 years thereafter, submit to the Secretary a report, including any pertinent data collected in the preceding 2 school years, concerning—

(A) the academic growth and achievement of students participating in the program;

(B) the high school graduation and college admission rates of students who participate in the program, where appropriate; and

(C) parental satisfaction with the program.

(2) PROHIBITING DISCLOSURE OF PERSONAL INFORMATION.—No report under this subsection may contain any personally identifiable information.

(c) REPORTS TO PARENTS.—

(1) IN GENERAL.—Each eligible entity receiving funds under section 3004(a) shall ensure that each school participating in the entity's program under this division during a school year reports at least once during the year to the parents of each of the school's students who are participating in the program on—

(A) the student's academic achievement, as measured by a comparison with the aggregate academic achievement of other participating students at the student's school in the same grade or level, as appropriate, and the aggregate academic achievement of the student's peers at the student's school in the same grade or level, as appropriate;

(B) the safety of the school, including the incidence of school violence, student suspensions, and student expulsions; and

(C) the accreditation status of the school.

(2) PROHIBITING DISCLOSURE OF PERSONAL INFORMATION.—No report under this subsection may contain any personally identifiable information, except as to the student who is the subject of the report to that student's parent.

(d) REPORT TO CONGRESS.—Not later than 6 months after the first appropriation of funds under section 3014, and each succeeding year thereafter, the Secretary shall submit to the Committees on Appropriations, Education and the Workforce, and Oversight and Government Reform of the House of Representatives and the Committees on Appropriations, Health, Education, Labor, and Pensions, and Homeland Security and Governmental Affairs of the Senate, an annual report on the findings of the reports submitted under subsections (a) and (b).

SEC. 3011. DC PUBLIC SCHOOLS AND DC PUBLIC CHARTER SCHOOLS.

(a) CONDITION OF RECEIPT OF FUNDS.—As a condition of receiving funds under this division on behalf of the District of Columbia public schools and the District of Columbia public charter schools, the Mayor shall agree to carry out the following:

(1) INFORMATION REQUESTS.—Ensure that all the District of Columbia public schools and the District of Columbia public charter schools comply with all reasonable requests for information for purposes of the evaluation under section 3009(a).

(2) AGREEMENT WITH THE SECRETARY.—Enter into the agreement described in section 3009(a)(1)(B) to monitor and evaluate the use of funds authorized and appropriated for the District of Columbia public schools and the District of Columbia public charter schools under this division.

(3) SUBMISSION OF REPORT.—Not later than 6 months after the first appropriation of funds under section 3014, and each succeeding year thereafter, submit to the Committee on Appropriations, the Committee on Education and the Workforce, and the Committee on Oversight and Government Reform of the House of Representatives, and the Committee on Appropriations, the Committee on Health, Education, Labor, and Pensions, and the Committee on Homeland Security and Governmental Affairs of the Senate, information on—

(A) how the funds authorized and appropriated under this division for the District of Columbia public schools and the District of

Columbia public charter schools were used in the preceding school year; and

(B) how such funds are contributing to student achievement.

(b) ENFORCEMENT.—If, after reasonable notice and an opportunity for a hearing for the Mayor, the Secretary determines that the Mayor has not been in compliance with 1 or more of the requirements described in subsection (a), the Secretary may withhold from the Mayor, in whole or in part, further funds under this division for the District of Columbia public schools and the District of Columbia public charter schools.

(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to reduce, or otherwise affect, funding provided under this division for the opportunity scholarship program under this division.

SEC. 3012. TRANSITION PROVISIONS.

(a) REPEAL.—The DC School Choice Incentive Act of 2003 (sec. 38–1851.01 et seq., D.C. Official Code) is repealed.

(b) SPECIAL RULES.—Notwithstanding any other provision of law—

(1) funding appropriated to provide opportunity scholarships for students in the District of Columbia under the heading ''Federal Payment for School Improvement'' in title IV of division D of the Omnibus Appropriations Act, 2009 (Public Law 111–8; 123 Stat. 653), the heading ''Federal Payment for School Improvement'' in title IV of division C of the Consolidated Appropriations Act, 2010 (Public Law 111–117; 123 Stat. 3181), or any other Act, may be used to provide opportunity scholarships under section 3007(a) for the 2011–2012 school year to students who have not previously received such scholarships;

(2) the fourth and fifth provisos under the heading ''Federal Payment for School Improvement'' of title IV of Division C of the Consolidated Appropriations Act, 2010 (Public Law 111–117; 123 Stat. 3181) shall not apply; and

(3) any unobligated amounts reserved to carry out the provisos described in paragraph (2) shall be made available to an eligible entity receiving a grant under section 3004(a)—

(A) for administrative expenses described in section 3007(b); or

(B) to provide opportunity scholarships under section 3007(a), including to provide such scholarships for the 2011–2012 school year to students who have not previously received such scholarships.

(c) MULTIYEAR AWARDS.—The recipient of a grant or contract under the DC School Choice Incentive Act of 2003 (sec. 38–1851.01 et seq., D.C. Official Code), as such Act was in effect on the day before the date of the enactment of this division, shall continue to receive funds in accordance with the terms and conditions of such grant or contract, except that—

(1) the provisos relating to opportunity scholarships in the Acts described in subsection (b)(1) shall not apply; and

(2) the memorandum of understanding described in subsection (d), including any revision made under such subsection, shall apply.

(d) MEMORANDUM OF UNDERSTANDING.—The Secretary and the Mayor of the District of Columbia shall revise the memorandum of understanding entered into under the DC School Choice Incentive Act of 2003 (sec. 38–1851.01 et seq., D.C. Official Code), as such Act was in effect on the day before the date of the enactment of this division, to address—

(1) the implementation of the opportunity scholarship program under this division; and

(2) how the Mayor will ensure that the District of Columbia public schools and the District of Columbia public charter schools comply with all the reasonable requests for information as necessary to fulfill the requirements for evaluations conducted under section 3009(a).

(e) ORDERLY TRANSITION.—Subject to subsections (c) and (d), the Secretary shall take such steps as the Secretary determines to be appropriate to provide for the orderly transition to the authority of this division from any authority under the provisions of the DC School Choice Incentive Act of 2003 (sec. 38–1851.01 et seq., D.C. Official Code), as such Act was in effect on the day before the date of enactment of this division.

SEC. 3013. DEFINITIONS.

As used in this division:

(1) ELEMENTARY SCHOOL.—The term ''elementary school'' means an institutional day or residential school, including a public elementary charter school, that provides elementary education, as determined under District of Columbia law.

(2) ELIGIBLE ENTITY.—The term ''eligible entity'' means any of the following:

(A) A nonprofit organization.

(B) A consortium of nonprofit organizations.

(3) ELIGIBLE STUDENT.—The term ''eligible student'' means a student who is a resident of the District of Columbia and comes from a household—

(A) receiving assistance under the supplemental nutrition assistance program established under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.); or

(B) whose income does not exceed—

(i) 185 percent of the poverty line; or

(ii) in the case of a student participating in the opportunity scholarship program in the preceding year under this division or the DC School Choice Incentive Act of 2003 (sec. 38–1851.01 et seq., D.C. Official Code), as such Act was in effect on the day before the date of enactment of this division, 300 percent of the poverty line.

(4) MAYOR.—The term ''Mayor'' means the Mayor of the District of Columbia.

(5) PARENT.—The term ''parent'' has the meaning given that term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(6) PARTICIPATING ELIGIBLE STUDENT.—The term ''participating eligible student'' means an eligible student awarded an opportunity scholarship under this division, without regard to whether the student uses the scholarship to attend a participating school.

(7) PARTICIPATING SCHOOL.—The term ''participating school'' means a private elementary school or secondary school participating in the opportunity scholarship program of an eligible entity under this division.

(8) POVERTY LINE.—The term ''poverty line'' has the meaning given that term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(9) SECONDARY SCHOOL.—The term ''secondary school'' means an institutional day or residential school, including a public secondary charter school, that provides secondary education, as determined under District of Columbia law, except that the term does not include any education beyond grade 12.

(10) SECRETARY.—The term ''Secretary'' means the Secretary of Education.

SEC. 3014. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—There are authorized to be appropriated $60,000,000 for fiscal year 2012 and for each of the 4 succeeding fiscal years, of which—

(1) one-third shall be made available to carry out the opportunity scholarship program under this division for each fiscal year;

(2) one-third shall be made available to carry out section 3004(b)(1) for each fiscal year; and

(3) one-third shall be made available to carry out section 3004(b)(2) for each fiscal year.

(b) APPORTIONMENT.—If the total amount of funds appropriated under subsection (a) for a fiscal year does not equal $60,000,000, the funds shall be apportioned in the manner described in subsection (a) for such fiscal year.

The SPEAKER pro tempore. The gentleman from Kentucky (Mr. ROGERS) and the gentleman from Washington (Mr. DICKS) each will control 30 minutes.

The Chair recognizes the gentleman from Kentucky.

GENERAL LEAVE

Mr. ROGERS of Kentucky. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on H.R. 1473, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

Mr. ROGERS of Kentucky. I yield myself such time as I may consume.

Madam Speaker, I'm pleased to bring to the floor today H.R. 1473, the full year spending agreement for fiscal year 2011.

This final CR makes nearly $40 billion of real spending cuts compared to fiscal year 2010 levels while funding the government's critical services and programs and supporting our Nation's troops for the rest of this fiscal year.

After weeks of hard fought negotiations, all sides were able to come together in this final agreement to find common ground and take steps to help balance our budget.

This legislation is a bold move for Congress, one that points us in the right direction on Federal spending. Never before has any Congress made dramatic cuts such as these that are in this final bill.

The near $40 billion reduction in nondefense spending is tens of billions of dollars larger than any other cut in history and is the result of this new Republican majority's commitment to bring about real change in the way Washington spends the people's money.

My committee went line-by-line through agency budgets to execute the agreement reached by our Speaker crafting deep but responsible reductions in virtually all areas of government. Our bill targets wasteful and duplicative spending, makes strides to rein in out-of-control Federal bureaucracies, and will help bring our Nation one step closer to eliminating our job-crushing level of debt.

This led to the following cuts from the President's budget request: Agriculture accounts were reduced by 14 percent; Commerce, Justice, and Science reduced by 12 percent; Energy and Water reduced by 10 percent; Financial Services, General Government,

13 percent; Interior and Environment by 9 percent; Labor, Health and Human Services, Education, 8 percent; Legislative Branch, 11 percent cut; State and Foreign Operations, 15 percent cut; and Transportation and HUD, 19 percent cut.

The Department of Defense is funded at $513 billion, which is a $5 billion increase over fiscal year 2010 to provide the necessary resources for our troops and the success of our Nation's military actions.

□ 1320

In this bill, Madam Speaker, we've defunded Obama administration czars—we said, ''Nyet''—ended unsuccessful education programs, advanced efforts to repeal ObamaCare, and reduced Congress's own budget. We've also put into place mandatory audits for the Consumer Financial Protection Bureau, banned taxpayer funding of abortion in Washington, D.C., and continued the global fight against terrorism.

In addition, with this legislation we have ended the stimulus spending spree and have taken the next step to cutting trillions of dollars in the years to come. We stood by our commitment to eliminate earmarks, terminated unnecessary and ineffective programs, and made real spending cuts that will help right our fiscal ship. And we will continue to hold the government to a standard of responsible, sustainable spending in the future.

Our goal is and has been to keep precious taxpayer dollars where they are needed most—in the hands of our small businesses and individuals so they can create jobs and grow our economy. I hope, Madam Speaker, that my colleagues will take the opportunity to support this historic bill and finally close the book on the fiscal year 2011 budget.

For those who have been saying in their career here in this body, ''I came here to cut spending and to bring down the size of the government,'' I say to them here's your chance. If you believe in cutting spending, you can vote for $40 billion of it today, the largest any Member of Congress has ever been able to vote for.

This is historic, a historic reduction in Federal spending after a 2-year spending spree that increased discretionary spending by 82 percent. This bill will reverse that rise and will start us back down toward responsible spending in the government.

Madam Speaker, before I close, I would like to take a moment and thank these hardworking individuals who have been toiling behind the scenes now on this bill for the last several months, with little fanfare, and they get no credit in public, that made this legislation possible. Our legislative counsels deserve our appreciation.

I want to say thanks to Ira Forstater, Tom Cassidy, Ryan Greenlaw, and their group of appropriations coordinators. I would like also to thank Janet Airis and the staff at the CBO. I also want to thank the floor staff, the parliamentarians, the Capitol Police, and all those support staff who have put in the extra hours to keep this institution running at its very best.

Finally, I want to offer a special thanks to the Appropriations Committee's fine staff on both sides of this aisle, those in our full committee, the subcommittee clerks, the subcommittee staffs in both majority and minority. They have been given impossible task after impossible task, facing untenable deadlines, gone for days and weeks working around the clock, and yet have miraculously produced all that we have asked of them and more.

I want to especially say a real thanks to the clerk of the committee, Bill Inglee; the deputy clerk, Will Smith; and all of the other staff that's worked on the majority side. And Mr. DICKS and his wonderful staff have been just magnanimous in their support and hard work. I want to say thank you to them as well.

Mr. DICKS. If you would yield just for a brief second.

Mr. ROGERS of Kentucky. I yield to the gentleman from Washington.

Mr. DICKS. I just want to commend the chairman for the way the two staffs have worked together, and the leadership of Bill Inglee and David Pomerantz and all the staff members. They have really done a phenomenal job under very difficult circumstances, and we applaud all of them. And I appreciate the chairman mentioning this.

Mr. ROGERS of Kentucky. Well, they have hardly slept in 3 months. And they worked around the clock, on weekends, at 4 o'clock in the morning you would find them still there. It's an amazing performance that they have contributed to this great body.

I reserve the balance of my time.

Mr. DICKS. I yield 3 minutes to the gentleman from Virginia (Mr. MORAN), the ranking member of the Interior Subcommittee on Appropriations.

Mr. MORAN. Madam Speaker, I also share the chairman's congratulatory sentiments to all those who made this happen, particularly the staff, who did work 24/7 around the clock.

Madam Speaker, politics is the art of compromise, and this continuing resolution is the epitome of compromise. Members on the other side of the aisle dislike many aspects of this deal, as many Members on this side of the aisle dislike other aspects of this deal. The compromise reached by the negotiators produced a bill that was imperfect at best. However, it was the responsibile thing to do with a government shutdown looming.

It does fund the Department of Defense for the remainder of the fiscal year, which is absolutely necessary for our troops currently in combat around the world. In the Interior and Environment portion, where I serve as ranking member, the details of the deal do show constructive compromise at work. I am pleased that all of EPA's environmental riders were dropped. But the agency was cut by $1.6 billion, mostly on the backs of States, with cuts to the safe drinking water and wastewater infrastructure programs. I guess when many Republican Governors have claimed that the stimulus money was wasteful spending, then they will not object too much to a reduction in these important infrastructure programs, even though it's coming out of the pockets of their States.

In a compromise agreement, we have accepted delisting of the gray wolves from the endangered species list, but we have also secured increased funding for Indian Health, which is certainly the right thing to do. As Mo Udall once said, if you can find something everyone agrees on, you can count on it being wrong. Well, everyone in this body, as I said, can find something, in fact many things even, that they disagree with in this resolution. But in my judgment, it does contain more good than bad.

It may represent the only kind of legislation that can be enacted in this time of heightened partisanship and fundamental differences in political philosophy. The deal reached is a vast improvement from what this House voted on on H.R. 1 just a few weeks ago. For example, Women, Infants and Children's, the WIC nutrition programs, are funded at $6.7 billion, nearly $250 million above H.R. 1; Legal Services Corporation at $405 million, that's $55 million over H.R. 1; Head Start is $7.6 billion, $34 million above the enacted level and $1.4 billion above H.R. 1; title X Family Planning is funded at $300 million, $17 million below the enacted level. But this is in stark contrast to H.R. 1, which zeroed out title X.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. DICKS. I yield the gentleman an additional 15 seconds.

Mr. MORAN. Only because H.R. 1 set such a low bar could this CR be looked at as a significant improvement. While far from perfect, we need to bring the fiscal year 2011 to a conclusion and provide agencies with some certainty and stability so they can go about conducting the people's business. Members will have to decide for themselves whether elements that disappoint them outweigh the good in this bill, but this may not be the time to let the perfect be the enemy of the good, Madam Speaker.

Mr. ROGERS of Kentucky. Madam Speaker, I yield 1 minute to the distinguished Speaker of the House, the gentleman from Ohio, who toiled long and hard to bring us the largest spending cut in the history of the country, Speaker JOHN BOEHNER.

Mr. BOEHNER. Let me thank the chairman of the Appropriations Committee, Mr. ROGERS, and his staff, and all the staff for the sacrifices and hard work that they have put forward over the last several months in order to get us to this point.

□ 1330

For years now, our economy has been stalled and stumbling. In the private sector, jobs are not being created. Something's clogging the engine of our economy. That ''something'' is uncertainty, uncertainty being caused by the actions that are being taken in this town.

One of the prime causes of uncertainty is spending. Our failure to deal with the spending binge has been chipping away at the economic confidence that Americans want to have in their country.

Washington's spending addiction is a bipartisan problem. It didn't start under the current administration, but the current administration clearly made it worse.

This problem is not going to be fixed overnight, and this bill does not fix it. The budget proposed by the chairman of the Budget Committee, Mr. RYAN, the Path to Prosperity, does deal with the long-term problem.

What this bill does is stop the bleeding. It halts the spending binge and starts us moving back in the right direction.

Does it cut enough? No. Do I wish it cut more? Absolutely. And do we need to cut more? Absolutely.

There are some who claim that the spending cuts in this bill aren't real, that they are gimmicks. I just think that's total nonsense. A cut is a cut, and this bill will cut an estimated $315 billion over the next 10 years, the largest non-defense discretionary cut in the history of our country.

You want discretionary cuts? This bill has billions of them.

You want mandatory cuts? They are in here too, clearing out some of the underbrush in the Federal budget while we get ready to debate the Path to Prosperity.

Every dime in this bill that is cut is a dime that Washington will spend if we leave it on the table. And if you vote ''no'' on this bill, you are voting to do exactly that, leaving this money on the table to be spent by unelected bureaucrats.

There are some who say that the spending cuts in this bill aren't real, that they were ''already scheduled.''

Let me show you what was ''already scheduled.'' This chart is based on a chart produced last week by an economist at Stanford University, John Taylor. What it shows is the difference between what President Obama wanted to spend this year and what we will actually spend this year when this bill passes.

The difference? It is $78.5 billion less than what the President requested.

Now, there are some who want to say that this bill is just more of the same. Well, if you believe that it's more of the same, this chart will show you the direction of Federal spending over the last couple of years, on that one-third of the budget that we call discretionary spending that we fight over all year.

It couldn't be more stark. It's like driving down the highway and throwing your car into reverse. Instead of spending more and more and more, guess what? We are actually going to spend less in the discretionary budget this year.

Now, there are some press articles that have picked up on some spin from our colleagues across the aisle, suggesting that the bill will result in smaller savings than advertised between now and September, and it's just not the case.

It comes down to the fact that there is a difference between budget authority and budget outlays. Budget authority is how much an agency is allowed to spend on a given program; it's the license to spend taxpayer dollars.

Outlays show how much an agency will spend over time based on current and prior budget authority. These are the results of how quickly taxpayer dollars are spent.

The final agreement cuts nearly $40 billion in budget authority, taking away the license to spend the money, which will result in deficit savings of an estimated $315 billion over next decade. When we pass this bill, Washington will spend $315 billion less than it is currently on track to spend over the next 10 years, and it is just that simple.

The Path to Prosperity is the plan that will take us where we truly need to go. This bill doesn't do that, but this bill starts us moving in the right direction.

It eliminates one program from the President's health care law and cuts another program in his health care law nearly in half.

It eliminates funding for some of the administration's czars, bureaucrats that were charged with implementing the bailouts and takeovers, and guarantees that they won't be coming back.

It bans taxpayer funding of abortion in the District of Columbia, ensuring that taxpayer funds won't be used to fund the destruction of human life.

It saves the D.C. Opportunity Scholarship Program, giving thousands of children here in this city a chance at a decent education. Is it perfect? No. I would be the first one to admit that it's flawed. Welcome to divided government.

The negotiations that went on over the last 4 or 5 weeks weren't easy, especially when you've got another body on the other side of this Capitol that doesn't want to cut spending and clearly an administration that doesn't want to cut spending. But I will tell you that this is the best we could get out of divided government.

The gentleman referred to it earlier as a compromise. Well, I would say it was a hard fight to get the kinds of spending cuts that we got, but these are real spending cuts.

I think this bill sets the stage for us to begin making the fundamental changes that need to be made to put our Nation back on a path to prosperity, and I would urge all of you to join me in supporting this bill.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will remind all persons in the gallery that they are here as guests of the House and that any manifestation of approval or disapproval of proceedings is in violation of the rules of the House.

Mr. DICKS. I yield 3 minutes to the distinguished gentlewoman from Connecticut (Ms. DELAURO), ranking member of the Appropriations Labor-HHS Subcommittee.

Ms. DELAURO. Madam Speaker, governing is about choices. Everyone in this body agrees that we need to get our fiscal house in order, bring down the deficit and cut programs that do not work. The question before us is how we choose to get there.

Unfortunately, at almost every turn of this continuing resolution, the majority has chosen to keep special interest giveaways to big corporate lobbyists while making middle class and working families bear the brunt of the spending cuts.

Instead of ending $40 billion in oil company subsidies that this country gives out every year—they are giving them out right now—this resolution cuts $1.6 billion from our attempts to protect the environment, prevent climate change; and it slashes education and infrastructure funding, biomedical research, and food safety.

The chairman of the full committee said a moment ago that we are going to cut this deficit by $40 billion by cutting those programs. We could have made up that difference with the $40 billion in the subsidies that we give to the oil companies today.

Instead of ending billions in subsidies to big agribusiness, it cuts funding for food safety inspections, women's health care under Title X and virtually eliminates the National Health Service.

Instead of ending billions in tax loopholes for corporations who ship our jobs overseas, it slashes funding for vital job training services by a billion dollars.

It ends education programs that our children rely on like Even Start and Teach for America. It ends literacy programs for children in the United States, and at the same time we are providing dollars in Afghanistan to train their youngsters in literacy by cutting it out in the United States of America.

Instead of ending the billions in tax breaks for the wealthiest Americans, it guts community health centers by $600 million. It cuts funding for Women with Infant Children by $500 million. It shortchanges public safety. It cuts biomedical research and cuts the Centers for Disease Control by 11 percent.

The American people expect better from us. They want our budget to reflect commonsense, mainstream priorities that are good for our country and good for the middle class. Instead, this

resolution offers the status quo on special-interest waste, and that hurts people who are trying to do the right thing.

This budget will hurt our economy, cost us jobs, and put the health and the safety of middle class and working class families at risk. It may be an improvement on the Tea Party budget that this House passed several weeks ago, but that was not the standard we should apply here.

This resolution still gives oil companies and special interests a pass while hurting American families. These are not the right choices for the American people.

I urge my colleagues to oppose this misguided resolution. That would be the right thing to do. We can and must do better.

□ 1340

Mr. ROGERS of Kentucky. Madam Speaker, I yield 3 minutes to the chairman of the Defense Subcommittee on Appropriations, the gentleman from Florida (Mr. YOUNG).

Mr. YOUNG of Florida. Madam Speaker, today I will limit my comments to the Division A of this bill, which is basically the Defense Appropriations bill for fiscal year 2011. This is a bill that should have been passed last year, but for some strange reason, it didn't get passed. And I would tell you that as chairman of the Defense Subcommittee this year, I'm happy that it's going to become law under my watch. But it wouldn't be fair if I didn't point out that the bill basically is the one that we crafted together with Chairman NORMAN DICKS last year. And as I said, it should have been passed.

We have been functioning, our Defense Department and our national defense, on a continuing resolution since last year. That is not good. A CR is not good period. But a CR for national defense could become extremely serious. We were getting very close to the point of affecting readiness, of affecting our troops and of affecting our families. And so passing this bill into law today is something that we will do that is right, and hopefully it will go through the process and go to the President, everybody will keep their deal and sign off on the bill.

I compliment Speaker BOEHNER and his leadership team, and I compliment Chairman ROGERS and his team. We looked at this bill very closely, and they asked me if we in the subcommittee could reduce some of the Defense spending in this bill. The answer is yes. We were diligent. We spent hours, days, and weeks making sure that we found sources of money that we really could eliminate without having a negative effect.

And I will say to my colleagues I would never support an appropriations bill or any other bill that will affect our readiness or that will affect our troops. I just won't do it. I can't do it. The defense of this Nation and our soldiers who provide the defense is too important. But when Chairman ROGERS asked if we could go to this number, we were very careful. There is a reduction in the Defense bill in this bill. And for those of you who are concerned that it might have had an adverse effect on our Nation's defense, it will not.

We don't want to make very many more cuts in the Defense bill because today we don't know what the requirement is. There is discussion at the White House and with the Secretary of Defense, who almost seems to disagree now that there should be more cuts, more draconian cuts. You can't do that. You can't just pick out a number for Defense out of the air. You can't roll the dice. You can't spin the wheel. You've got to make your funding and your investment in national defense based on what is the threat to this country.

Mr. DICKS. I yield 3 minutes to Congressman MIKE ROSS, a distinguished leader here in the House from Arkansas.

Mr. ROSS of Arkansas. I've heard several references this afternoon to this 2-year spending spree, and I would take issue with that, Madam Speaker. It took George Washington through Jimmy Carter to put this country $1 trillion in debt. We've added the other $13 trillion not in the last 2 years, but we have added it since 1981. So I think if we're going to be honest with the American people, we've got to say we've been on a 30-year spending spree, with the exception of 4 years during the Clinton administration where we had back-to-back balanced budgets.

I rise today to discuss the importance of education funding to our children and our Nation's future success and prosperity. While I commend all sides for coming together to make spending cuts, I also believe that there are important investments in education that must be protected, prioritized, and maintained. Proven programs like Title I, IDEA, TRIO and education technology should be maintained and prioritized because they provide essential services to the students with the greatest needs throughout our Nation.

I'm concerned that we are moving away from basic education aid to all States and increasingly relying on competitive grants, which often disadvantage rural school districts and rural students in many States like my home State of Arkansas.

Ultimately, I believe that how we choose to invest our Nation's resources reflects our priorities as a people and as a nation, and if we truly want to grow our economy and create jobs in an ever-increasing global economy, our priority must be on our Nation's education system and ensuring that all students receive a world class education.

As we continue working together to reduce our debt and to reduce spending, I hope that we can put an emphasis on the educational needs of our children and continue to invest in their futures. Our children did not get us in this fiscal mess. Let's not punish them. Rather, let's make the difficult choices and the tough decisions that the people sent us here to make to ensure that we can put this Nation on a path toward a balanced budget.

Mr. ROGERS of Kentucky. I yield 2 minutes to the distinguished gentleman from Virginia, FRANK WOLF, who is chair of the Commerce, Justice, Science appropriations subcommittee.

Mr. WOLF. I want to begin by acknowledging and thanking the Speaker and his staff—I think JOHN BOEHNER has done an incredible job—and also Mr. ROGERS and the appropriations staff on both sides of the aisle for their good work. This has never really been done before.

I rise in very strong support of the bill that provides the appropriations for the Defense Department and other agencies. The bill before the House is the long-overdue conclusion to the fiscal year 2011 appropriations process which the previous Congress had failed to really address. The new Congress has crafted a package of thoughtful and necessary reductions to discretionary spending which will put the country back on a path of fiscal responsibility.

The bill includes a total of $53.4 billion under the jurisdiction of the Commerce, Justice, Science Subcommittee, a reduction of $11 billion, or 17 percent, from fiscal year 2010 and a reduction of $7 billion, or 12 percent, from the President's request.

At the same time, the bill preserves strong funding levels for critical national priorities, such as FBI national security programs and the basic scientific research supported by the National Science Foundation, NIST and others.

Also, the bill includes the funding and language needed to allow NASA to move forward with the new space exploration programs that were outlined in the authorization bill. This takes care of NASA, and Members on both sides asked for it with regard to that.

There's also, I will let Members know, language prohibiting NASA and the Office of Science and Technology in the White House from participating in bilateral cooperation with China. The Chinese regime is engaged in an aggressive espionage program to steal sensitive technologies from the Federal Government and American companies. Every day, they engage in cyberattacks against sometimes almost all of the agencies, but also the Defense Department and Congress included.

This bill contains the tough but responsible decisions on discretionary spending that are necessary. It's easy to condemn and complain, but this is a good bill, and I urge all Members to support it.

Mr. DICKS. I yield 2 minutes to the distinguished gentlelady from Ohio,

Congresswoman KAPTUR, who is a senior member of the Appropriations Committee and the senior woman in the House.

Ms. KAPTUR. I thank the gentleman for yielding.

Now, Madam Speaker, here ends the slow, sad, and silly fiscal year 2011 appropriations process. It ends on a day when unemployment claims are going up, not down, when gas prices are rising and when food prices are dramatically on the rise. I say to my colleagues that it is mathematically impossible to balance a $1.5 trillion deficit by only cutting from the 12 percent of total federal discretionary spending and with no tax-breaks' spending on the table.

For the largest accounts, Defense and Homeland Security, they're not even included in the reductions. Yet job-creating accounts like Transportation and Housing are cut by 18 percent, one-fifth. How does this make sense when 40 percent of America's building trades' workers are out work, and when housing is in the doldrums? Agriculture's food programs for the unemployed, seniors, children, and the needy are cut by 13 percent when Wall Street is walking away with billions.

If we are going to be serious in this Congress about balancing the Federal budget, then we need to put everything on the table, all programs, all revenue accounts, entitlement programs, mandatory programs, farm subsidies, and outdated direct federal subsidies to the West.

□ 1350

We must address tax expenditure spending and nonpayment of taxes by some of the most well-endowed corporations and individuals in our country. Corporate profits are at all-time highs; yet they're not hiring. Shareholders benefit but not workers.

The chairman of the Appropriations Committee, Mr. ROGERS, and the ranking member, Mr. DICKS, have tried to do everything they can to get us to this point. They are to be highly commended for holding an open process and for working with both sides of the aisle. It is now time for the other chairmen of this institution to look at their accounts as well as tax spending under their jurisdictions and make the necessary cuts to bring our accounts into balance.

I have been part of a Congress that in the past has balanced budgets year after year; but back in the '90s, what we did was we focused on jobs and job creation, and we used the budget and appropriations bills to aid in the creation of jobs and in the revenue they generate.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. DICKS. I yield the gentlewoman an additional 15 seconds.

Ms. KAPTUR. For the sake of this institution and our Republic, I hope a final vote on this CR can end the slow, sad, and silly process we have endured. I will not be able to support the bill because it really is a bill that will cost jobs, not create jobs; but at least we will end the budget whiplash we've been through, and have subjected the American public to, in our country for the last several months.

The American people want to work. This Congress needs to act to that end. A focus on jobs is what is lacking in this legislation before us today. The bill cuts vital transportation projects, like the elimination of High Speed Rail ($2.9 Billion in funding cut), that will cost America new jobs, not create them. Cutting back on food to children and needy families by half a billion dollars ($504 million cut) will not save money—it will result in less healthy citizens, more illnesses and higher medical costs as diabetes, poor health, and hypertension rise. Meanwhile Lloyd Blankfien, the head of Wall Street GS just scooped another $25 million from stock options.

Mr. ROGERS of Kentucky. I yield 2 minutes, Madam Speaker, to the distinguished chairman of the Energy and Water Subcommittee on Appropriations, the gentleman from New Jersey (Mr. FRELINGHUYSEN).

Mr. FRELINGHUYSEN. I thank the gentleman for yielding.

Madam Speaker, at the outset, let me say I share the desire to apply additional spending cuts to this continuing resolution. However, even though this measure cuts more Federal spending than any other bill in the history of our Nation, I recognize the President and the Senate will not support additional reductions. This is unfortunate because, like many of us in this House, I recognize that our Nation has compiled a public debt of $14 trillion and that our annual budget deficit will total $1.5 trillion into the foreseeable future—an unsustainable amount. Simply put, we are broke, and this bill is but a first step toward putting us on a much more sound fiscal path.

The 2012 appropriations package lies ahead, and we need to take another critical step to cut spending and to do it in a rational way to promote jobs and economic growth. The Energy and Water portion of this legislation totals $31.75 billion, a 10 percent cut from the President's budget request. Our approach was simple: Every program in our jurisdiction was scrutinized for savings while protecting national security and while providing appropriate support for job growth and a balanced energy supply.

Overall funding for the National Nuclear Security Administration is $697 million, a 7 percent increase from fiscal year 2010, the only significant increase in this section. This funding will ensure that our nuclear weapons remain reliable and that our programs to stop the spread of fissile material overseas stay strong. There is no more important mandate for the Department of Energy.

Funding for the Army Corps of Engineers is $4.9 billion, $48 million below the fiscal year 2011 request. Program dollars were concentrated where they should be—in the operation, maintenance and construction accounts—to ensure that the Corps had sufficient funding for its key missions.

Madam Speaker, these cuts are only the beginning. We need to do more, and I support the measure.

Mr. DICKS. I yield 3 minutes to the distinguished gentleman from Pennsylvania (Mr. FATTAH), the ranking member of the Appropriations Subcommittee on Commerce, Justice, and Science.

Mr. FATTAH. Let me thank the ranking member, the gentleman from Washington, and let me thank the chairman.

I have had the opportunity to work with Chairman WOLF on the Commerce, Science, Justice activities contained in this CR. I think, notwithstanding the very challenging fiscal circumstances, Chairman WOLF has worked towards a set of priorities that will help move our country forward, and I thank him for working with me on a bipartisan basis.

I want to point out our highest priority within that section of the Commerce Department, which is that of the Manufacturing and Extension Partnerships, which will see an increase above the 2010 enacted and also the Senate amendment, or H.R. 1. I am very pleased about that. There are major increases for the FBI in its important role related to national security.

There have been a lot of discussions about the cuts here. We passed an omnibus on the floor of the House on December 10, which was when the Democratic Party was in the majority. We cut some $45 billion from the President's request in appropriate ways that we felt were necessary. The new majority has reduced some accounts—some we would agree with, some we would disagree with. What is critically important is to focus on the fact that the CR, even though it makes cuts, actually authorizes appropriations of over $1 trillion. These are needed appropriations in critical areas facing our country.

In our section of this bill, which is relative to NASA and the International Space Station, to NOAA and its severe weather warnings and tsunami predictions, and which focuses on the Commerce Department and a whole range of agencies, it's very, very important that we get out of the temporary CR business. We can't run the greatest country on the face of the Earth on a week-by-week basis. The bill will bring this to its final conclusion.

Finally, as we approach FY12, even though there has been a lot of talk about cutting, I would hasten to add that we are not shadowboxing as a Nation. We are in an international, global competition with countries that are investing a great deal of money in research, innovation and technology. We cannot sell future generations of our country short by being unwilling to make decisions to appropriate money where we need to appropriate it—in

educating future generations and in investing in technology, innovation and research—so that we can both provide for our national security as well as for our national prosperity.

Mr. ROGERS of Kentucky. Madam Speaker, I yield 2 minutes to the distinguished chairman of the Homeland Security Subcommittee on Appropriations, the gentleman from Alabama (Mr. ADERHOLT).

Mr. ADERHOLT. Thank you, Mr. Chairman, for yielding.

Madam Speaker, as many have said here today, our government has a spending problem, and the American people are demanding we find a solution. The bill before us today is a step toward finding that solution.

The bill that we are voting on this afternoon is truly historic. It contains discretionary spending cuts that are nearly five times larger than any other cuts in history. The Homeland Security title of this CR strikes the right balance between funding priority programs that are essential to our Nation's security and keeping our discretionary spending in check. In fact, this bill marks the first time the annual discretionary budget for the Department of Homeland Security has been reduced from the previous fiscal year. This CR provides a total of $41.75 billion in discretionary funding for the Department of Homeland Security. This funding level is $784 million below the FY 2010 and $1.89 billion below the President's FY 2011 request.

In contrast to previous annual spending bills, this CR provides funding for the actual costs of disasters from within the existing budget. So, rather than our relying upon an emergency supplemental to fund the disaster relief fund the White House was maneuvering for, the CR responsibly addresses the shortfall in disaster relief costs that the President failed to address in the FY 2011 budget request. Supporting the cost of security demands truth in budgeting, and this Congress is delivering where the President and OMB have failed.

Having said that, the Department of Homeland Security is not immune from fiscal discipline, and underperforming programs have been significantly cut in this CR. By implementing these cuts, we are not choosing between homeland security and fiscal responsibility. Both are serious national security issues that must be dealt with immediately.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. ROGERS of Kentucky. I yield the gentleman an additional 30 seconds.

Mr. ADERHOLT. This is precisely why this CR also includes sufficient funding to sustain the critical operations at front line agencies, such as CBP, the Coast Guard, ICE, the Secret Service, TSA, and the department's intelligence office.

Madam Speaker, homeland security is far too important to be subjected to budget gimmicks and to inadequate justifications. The Homeland Security title of this CR responsibly funds programs that are vital to our Nation's security, programs that will help get our Federal budget on track.

□ 1400

Mr. DICKS. I yield 3 minutes to the distinguished gentleman from California (Mr. FARR), the ranking member of the Appropriations Subcommittee on Agriculture and Rural Development.

Mr. FARR. I thank the gentleman from Washington for yielding me this time.

Madam Speaker, I rise today in appreciation for the hard work that has gone on in our Appropriations Committee. When you think about it, this Saturday will mark 2 months from the day this House passed H.R. 1, which was a really draconian bill that put all kinds of riders and eliminated all kinds of family planning money for things like Planned Parenthood. It sort of knew the price of everything and the value of nothing.

I would like to compliment the Republican leadership for coming around on this agricultural bill. It certainly is an improvement over what it was in H.R. 1. It also shows that they are not wedded to H.R. 1. The message goes out that they make adjustments. They restored nearly all of the $1.9 billion, 9 percent higher than H.R. 1, in overall spending.

The WIC program, the program that feeds low-income women expecting children or who have children, is funded at a level sufficient to support what we think will be the participation levels this year when a lot of people are unemployed and in poverty.

The food safety activities at the USDA are increased by more than 8 percent over H.R. 1. They broke the H.R. 1 hold and have come up, and I compliment them for that.

The Food and Drug Administration was increased by nearly 17 percent; 17 percent in an era when we are really worried about food safety and the issues of food safety.

The McGovern-Dole program, which is food aid to foreign countries, provides our American food to needy countries. It is nearly twice what it was in H.R. 1.

The rural water and waste programs are 30 percent higher than they were in H.R. 1.

But the agriculture title really falls short from the President's request of 2011, particularly for emergency food for people around the world who are in desperate need. We take surplus American food and give it to countries that are really starving. When we are trying to win the hearts and minds of people and fight the war on poverty, we need to have this program not decreased but increased when the world is in a lot of hurt.

Lastly, I would just like to point out that what really bothers me is we are putting $5 billion more in the Defense Department, at the same time cutting $25 million from the Peace Corps. The Peace Corps is only $400 million. It is a small weapons system for the military, the entire thing. We have 7,000 Peace Corps volunteers in 77 countries. Ten more countries want us; 14,000 Americans want to be in the Peace Corps, and we're cutting it? You can't win the war without winning the hearts and minds. The war corps with $5 billion isn't going to do as much as the Peace Corps with another $25 million.

Mr. ROGERS of Kentucky. I yield 2 minutes to the distinguished gentlewoman from Missouri (Mrs. EMERSON), chairwoman of the Financial Services Subcommittee on Appropriations.

Mrs. EMERSON. Madam Speaker, when I took hold of the gavel of the Subcommittee on Financial Services and General Government, I took to heart the responsibility to reduce Federal spending on behalf of future generations of Americans.

The Financial Services section of this act provides a total of $22 billion, a $2.4 billion or 10 percent reduction from fiscal year 2010 levels, and a reduction of $3.4 billion, or 14 percent, from the President's fiscal year 2011 request.

Deciding how and where to apply these reductions was challenging but necessary. Our propensity to spend now and repay later with interest has already saddled our children and grandchildren with $14 trillion of debt. As such, the funding in this act is directed at high priority programs such as court security, counterterrorism, drug control task forces, and small business assistance. Funding for new construction by the General Services Administration is dramatically reduced to gain control over the management and operation of the Federal building inventory. Other programs are selectively reduced, including programs within the Executive Office of the President and the Treasury Department because these two agencies should be the model of efficiency and economy for the rest of the executive branch.

The act measurably improves oversight and accountability of the executive branch by requiring a new annual GAO study of all financial services regulations, including the Consumer Finance Protection Bureau; a new GAO study on the usefulness and accuracy of the Consumer Product Safety Commission's flawed consumer complaint database; and the elimination of four executive branch czars who are not confirmed by the Senate and, therefore, not accountable to the people.

The act also includes $77.7 million for school improvement in the District of Columbia, including a $2.3 million increase for Opportunity Scholarships. This funding, along with the Speaker's language to reauthorize the program, will increase educational opportunities for low-income students in the Nation's capital.

This effort represents an important starting point for our committee and our Congress, and I look forward to

continuing to work with my colleagues on both sides of the aisle.

Mr. DICKS. I yield 3 minutes to the distinguished gentleman from Georgia (Mr. BISHOP), the ranking member on the Appropriations Subcommittee on Military Construction and Veterans Affairs.

Mr. BISHOP of Georgia. I thank the gentleman from Washington for yielding.

Madam Speaker, today marks the end of the FY11 process, a process that should have been completed a long, long time ago. Failing to stop a government shutdown would have destroyed the American people's confidence in the ability of Congress to govern.

Thankfully, with only minutes to spare last week, the House, the Senate, and the White House came together to avoid a government shutdown, striking a compromise to keep our Federal Government running for the remainder of FY11.

This bill is by no means perfect. I am particularly concerned about the impact of funding reductions to several areas, including a $35 billion cut in Pell Grants for our students; $700 million in cuts for our local and State law enforcement personnel, the people who keep us safe; and I am also very concerned about our rural agricultural communities and the $433 million cut to the Farm Service Agency for direct and indirect loans.

But, Madam Speaker, this bill is a far cry from the draconian meat-cleaver approach of H.R. 1, and I hope my colleagues will think about what we just went through and use this final resolution as an example of how we should approach FY12. Our country cannot afford to repeat the irresponsible process going forward that we resolve here today. Democrats and Republicans on both sides of Capitol Hill must work in a bipartisan fashion to produce a responsible budget that will help grow our economy and responsibly reduce our deficit.

If this spending package becomes law, Congress will have made the largest cut to discretionary spending in the history of this body, cutting nearly $40 billion from the FY10 budget.

The CR provides $73.1 billion for Military Construction and Veterans Affairs, which is $3.4 billion below the FY10 enacted level.

Construction accounts are conformed to the FY11 National Defense Authorization Act, which included reductions to the budget request for FY11. Savings were found by taking reductions in unobligated appropriations from years past, as well as capturing bid savings from projects that have been coming in under budget.

The CR also includes a reduction of $160 million below both the request and the FY10 level for the Department of Veterans Affairs to reflect cancellation of information technology development programs as well as IT program pauses resulting from portfolio management reviews.

The CR also removes funding for the civilian pay raise that was included in the FY11 advances for the VA following the President's decision to freeze pay. In addition, the bill rescinds $75 million from prior year unobligated construction balances. It also rescinds $12 million from the Veterans Benefits Administration for an initiative to place a printer on every desk. Some of these are commonsense reforms that save taxpayer dollars and help put us on a path to fiscal sustainability, and many of these reductions in MilCon-VA were taken in the full year CR passed in the last Congress.

Now, Madam Speaker, the American people want to know that Congress can come together, bridge the partisan differences, and get the country's business done. I sincerely hope that as we finally move on to FY 2012, we remember what we learned in this process and apply it to FY 2012 because no Member of this body wants to go through this ordeal again.

□ 1410

Mr. ROGERS of Kentucky. I yield 1½ minutes to the distinguished chairman of the Military Construction and VA Subcommittee on Appropriations, the gentleman from Texas (Mr. CULBERSON).

Mr. CULBERSON. Thank you, Mr. Chairman.

Madam Speaker, the Military Construction and Veterans Affairs portions of this bill vividly illustrate the importance of passing our appropriations bill as soon as possible. Our war fighters in the field cannot afford to have any air bubbles in the logistical pipeline that supports their operations. Their families, their loved ones cannot afford to have the barracks, the living quarters in which they are housed, be delayed any longer. The Marine Corps urgently needs the Bachelor Enlisted Quarters to get done as fast as possible. The Marines have already had several billion dollars' worth of projects already delayed.

As a fiscal conservative, of course I want to see more cuts. I'm committed, as our chairman is, as our Speaker is, to balancing the budget as fast as humanly possible. But this is simply the first step in a long war to get us back onto a balanced budget, to restrain Federal spending.

We've dramatically reduced, with the chairman's leadership and the Speaker's leadership, the national credit card limit by $38 billion, the largest nonwartime cut in the history of the United States after the drawdown after World War II. We've actually seen reductions for the first time, Madam Speaker, in this bill.

I asked the staff, when I came in brand new to this job in January, to find savings that would not impact the quality of health care for our veterans or reduce the quality of the housing provided to our men and women in uniform, and we've done that with construction bid savings. We've done it by taking money that was not yet used for information technology. We've done it by reducing money that was already there and unspent both at the Veterans' Affairs Committee and in construction accounts. But above all, we have preserved the quality of life for our veterans and the quality of their health care while saving money.

It's an important bill and we need to pass it today.

Mr. DICKS. I yield 2 minutes to the distinguished gentlewoman from California (Ms. LEE), a valued member of the Appropriations Committee.

Ms. LEE. I want to thank the gentleman from Washington for yielding and also for his leadership.

Madam Speaker, I rise in strong opposition to this continuing resolution.

Budgets are moral documents that reflect who we are as a Nation. They're not just about dollars and cents.

These cuts won't create jobs, foster economic opportunity, or provide pathways out of poverty. Instead, this bill eliminates billions in investments in our workforce, our transportation infrastructure, our small businesses and, most importantly, in our people. It's a bold assault on millions of people who rely on our safety net.

These budget cuts and warped priorities should be a moral outrage to every Member of this body. That's why 36,000 people and approximately 30 Members of Congress have joined the faith community in a 24-hour fast to highlight the enormous impact, the devastating impact of these budget cuts.

This bill is nothing more than a tea party checklist targeting programs that help the most vulnerable: $504 million from the WIC Program, $300 million from COPS, $125 million from Dislocated Worker Assistance programs, $49 million for mentoring children of inmates, $17 million for Title X family planning programs, and $25 million for Veterans Affairs Supportive Housing vouchers.

Instead of targeting low-income and middle-income individuals and the residents of the District of Columbia particularly, and especially low-income women and women of color, we should be serious about getting our bloated military budget together and reduced and end these three wars in Iraq, Afghanistan, and Libya. We could save billions, mind you, billions of dollars by ending these wars.

Madam Speaker, we should reject these cuts which hurt our most vulnerable populations and the residents of the District of Columbia. It's shameful. It's a moral disgrace. And I urge a ''no'' vote on it.

Mr. ROGERS of Kentucky. Madam Speaker, I yield 1½ minutes to the chairman of the Legislative Branch Subcommittee on Appropriations, the gentleman from Florida (Mr. CRENSHAW).

Mr. CRENSHAW. I thank the gentleman for yielding.

Madam Speaker, let me just remind my colleagues that when we vote ''yes''

on this resolution, we will be able to say that we have led by example.

We were told that we should take the budget-cutting knife and look at every agency and make them do more with less, to be more efficient, and we thought we should lead by example. And the best way to lead by example is to take that budget-cutting knife and turn it on ourselves. And that is exactly what we did.

Over one-half of the cuts that were made by the Legislative Branch Subcommittee, which I chair, were made to this House itself. We cut the office account of every Member of this House by 5 percent. We cut the budget of all the leadership offices by 5 percent. We cut the budget of all the committees by 5 percent, except the Appropriations Committee, which we cut by 9 percent. So we have led by example. We have taken that budget-cutting knife and we've directed it at ourselves.

Now, some people will say we cut too much. Some people will say we didn't cut enough. But, frankly, when this is all over, people are not going to remember the numbers. But what they will long remember is this is the day that we changed the direction of this country. This is the day we turned the ship of state in the right direction. They'll remember that this is the day that we stopped this culture of spending and we started a culture of savings. They'll remember that, the day that we stopped spending our future and we started saving our future.

There's a lot of work to be done. But let's clean up this mess. Let's move ahead, and let's get ourselves on the path to permanent prosperity.

Mr. DICKS. Madam Speaker, I yield myself 2½ minutes.

Well, it's another week here in Congress, and we're voting on this appropriations bill, H.R. 1473. I am pleased that at the 11th hour last week we were able to reach an agreement, an agreement that made it possible for military wives and husbands around the country to be sure that they would get their paycheck. This had to be done. We kept our parks open. We supported our men and women in uniform around the world. And at the same time, I think we minimized the damage of H.R. 1 in this bill.

The bill that is now before us contains current levels of Head Start enrollments, including the increased spots for newborns to 2-year-olds. It helps us protect the Pell Grant program.

It is a good bill on defense. My good friend BILL YOUNG has done an amazing job, and I appreciate so much Mr. ROGERS taking our bill from last year and putting it into this bill. The Community Services Block Grant program is restored. WIC is restored. Head Start is restored.

Yes, there are some things I don't like. No high-speed rail money, some other investment accounts. Literacy programs, some of them were taken away. Some of the cuts in homeland security were not the best.

But, as with any compromise, some Members will see a glass half full and some will see a glass half empty. Members will have to consider all the ramifications of this compromise and vote their conscience. We need to move on to the fiscal year 2012 appropriations bill.

The bottom line is this bill must pass today. Let's get it done so we can fight against the Road to Ruin Ryan Republican budget.

Mr. ROGERS of Kentucky. I yield 1 minute to a new member of our committee, the gentleman from Pennsylvania (Mr. DENT).

Mr. DENT. Madam Speaker, I rise today in support of this legislation, H.R. 1473, the fiscal year 2011 spending agreement.

Clearly, this is not a perfect bill, but it is a good one, and we should not let the perfect be the enemy of the good.

Just 6 months ago, cutting even $2 billion in Federal spending seemed impossible. But today we're cutting nondefense spending by nearly $45 billion, or 7.7 percent, from the fiscal year 2010 level.

Madam Speaker, we have, in fact, turned the proverbial ship around, the aircraft carrier around, when it comes to Federal spending. We're no longer debating about how much we're going to increase spending; we're debating today, rather, how we're going to cut spending and how much we're going to cut in spending. That really represents an enormous shift in the culture of this place.

From the transportation accounts, we have cut $2.9 billion from the high-speed rail initiative. From HUD, the bill will force public housing agencies to operate more efficiently, eliminate duplicative housing counseling efforts, and reins in spending for development programs with a history of inconsistent results.

So we have a lot here to celebrate today. In November the American people voted for change, and the culture of that change is occurring.

□ 1420

Mr. DICKS. I reserve the balance of my time.

Mr. ROGERS of Kentucky. Madam Speaker, I yield 2 minutes to a new member of our committee, the gentleman from Ohio (Mr. AUSTRIA).

Mr. AUSTRIA. Madam Speaker, I would like to thank Chairman ROGERS for his hard work and his leadership to finally get us here, to finally get a package before us that should have been done last year that officially ends the stimulus spending binge that funds our troops, that represents the largest non-defense cuts in actual spending in American history with nearly $40 billion in real cuts.

Certainly, many of us would have liked to have seen more cuts included in this final package; but as the Speaker mentioned earlier, unfortunately, Republicans only control half of one-third of the Federal Government. And until the Senate Democrats and the administration and the President decide to get serious about stopping the borrowing and cutting spending, we're never going to achieve the spending cuts that the American people have demanded.

So what does this CR mean for us today? For starters, it means approximately $40 billion of less borrowing. This package sets the stage for trillions more in spending cuts that we will vote on later this week. It reduces our own budget here in Congress by $100 million. It defunds four of the administration czars. It fulfills our commitments to our troops by fully funding our men and women serving our country—many in harm's way—during three wars.

This CR provides critical, necessary resources for veterans, health benefits, and resources to reduce the backlog. And it fully funds our commitment to Israel—one of our most important allies—while cutting nearly $78.5 billion from the President's 2011 budget.

Madam Speaker, is this a perfect spending cut package? No. But it is a real $40 billion start towards the 2012 budget bill that will begin reducing trillions in spending and begin digging out our Nation from unmanageable budget deficits and putting our Nation on a path to prosperity once again.

Mr. ROGERS of Kentucky. Madam Speaker, I yield 1½ minutes to a new Member of this body, the gentleman from Louisiana (Mr. LANDRY).

Mr. LANDRY. Madam Speaker, I am a Tea Partier. I was supported by the Tea Party. I have a Tea Party poster in my office. My constituents at home gave me a chain saw to use to cut the government spending. I am extremely pro-life. This CR will prohibit the use of Federal funds for abortions in D.C., and if I have to save the unborn one city at a time, I will. This CR will finally allow an up-or-down vote on the defunding of Planned Parenthood and ObamaCare in the Senate.

The fact that the last Congress did not pass a budget has left us in a mess, and sometimes we need to wring the mop out a few times to clean up the mess.

The bill we consider today cuts real money, money that would have surely been spent by the Democrats had we not taken control of this body. Do I think the cuts are big enough? No. But my mother used to warn me about being penny wise and pound foolish.

We have another problem: If we don't pass this CR, our brave men and women in uniform will not be paid. I am incensed that the President and Democrats in the Senate held the funding for our troops hostage until they cut this deal. I served in the National Guard for 11 years. As a veteran, I understand the sacrifices our brave men and women and their families make to preserve our freedom.

The Army Ranger Creed states, among other things, that they shall never fail their comrades, that they

will never leave a fallen comrade, and they will not embarrass their country. Well, I will not fail them, I will not leave them, and I will not embarrass them and their families who are caught as political pawns in this game. We must not let this happen again.

I urge my colleagues to support the concurrent resolution, get the ball rolling, hang in there, wring out the mop this time, and together we continue to make history and clean up all the mess.

Mr. DICKS. Madam Speaker, I yield 5 minutes to the distinguished Democratic whip, the gentleman from Maryland (Mr. HOYER), who has been a real leader in our House.

Mr. HOYER. I thank the gentleman for yielding.

This piece of legislation will provide for the funding of our government from now until September 30 of this year.

While I do not want to engage in a debate looking at the past, we are here because we did not fund the government in the last Congress through September 30. And, frankly, there is not much use in pointing fingers at one another as we've been doing. There was an omnibus that was on the floor at the urging of the leader in the Senate, and it was not able to get the 60 votes necessary because those of you on the minority side in the Senate did not give votes to do that. Notwithstanding that, the issue today is not what happened yesterday, but what's going to happen today.

We have a choice to make. We have a choice to make in a divided House, in a divided Congress, in a divided government—the Speaker talked about divided government—and that choice is whether we will come together, work together, try to make the best possible agreement that we can make and then move together. I think the American public expects us to do that.

During the course of the debate some days ago, I referenced with the chairman of the Appropriations Committee, who comes from Kentucky, another famous Kentuckian, Henry Clay. Henry Clay came to this Congress and was elected Speaker on the first day of his service in this Congress. Interestingly enough, he was Speaker during the 8th Congress, during the 10th Congress, and during the 13th Congress. He served for some 10 years as the Speaker. He served also in the United States Senate and in fact was deemed to be one of the most outstanding Members of the United States Senate.

He is unique in history. And he said this, and I will repeat it: ''If you cannot compromise, you cannot govern.'' And what he meant by that, of course, was that the American people, in 435 districts and 50 States—not 50 States, of course, when he was Speaker—go to the polls and they elect people to come to Washington to represent them. And not surprisingly in a democracy they have different points of view. They have different perspectives. They have different priorities. They come from different geographical locations. Their States have different interests. Their districts have different interests. So it should not shock any of us that there is not agreement in 100 percent of the cases, or sometimes 70 percent, or sometimes 60, and perhaps not even in 50 percent. But there does come a time when the American public expects us to be able to act. Gridlock is not what they voted for.

Madam Speaker, I will vote for this resolution. I do not vote for this resolution anymore than anybody else on this House floor will vote for or against this resolution because they like everything that's in it or dislike everything that's in it. If I were writing this resolution, the priorities would be different. I heard my friend, ROSA DELAURO, who is now the ranking Democrat on the Labor, Health and Human Services Subcommittee. Very frankly, if I were on a committee—I am the second ranking member of the Appropriations Committee—I would be the ranking member of the Labor Health Committee—and I would share her views. I do share her views. I think the priorities that we have agreed to in this resolution are not my priorities.

But we have reached agreement. The President of the United States, elected by all the people, the majority leader of the United States Senate, and the Speaker of this House worked for literally weeks to try to come together to forge an agreement so that we could fund government for the balance of this year. It's not useful to blame anybody as to why we're so late on this, but it is useful to say that we are about to embark—after we pass this piece of legislation—on a critical debate on the differences we do have in the priorities of this country, very substantive, deeply held beliefs on the differences that exist between our two parties. And the budgets that will be offered after we pass this resolution on the budget for the 2012 year are going to be the substance of our debate.

I would hope at this period of time, Madam Speaker, that we pass this resolution, keep our government functioning, and come together to debate the real priorities of this country in the next bill.

□ 1430

Mr. DICKS. I yield myself the balance of my time.

The SPEAKER pro tempore. The gentleman from Washington is recognized for 30 seconds.

Mr. DICKS. I want to thank the chairman. I look forward to FY12 and getting on to our appropriation bills and our commitment to the House that we're going to have open rules, we're going to have subcommittee markups, full committee markups, and give people a chance to be involved in the process as they've not been in the past.

I would be glad to yield to the chairman.

Mr. ROGERS of Kentucky. And I join you in that commitment. That's what we're planning to do. I just want this bill over with.

Mr. DICKS. I'm with you. Let's get it over with.

I yield back the balance of my time.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield the balance of my time to the chairman of the Interior Subcommittee on Appropriations, the gentleman from Idaho (Mr. SIMPSON).

The SPEAKER pro tempore (Mr. BASS of New Hampshire). The gentleman from Idaho is recognized for 2½ minutes.

Mr. SIMPSON. I thank the chairman for yielding, and let me thank you for all the hard work that you've done on this appropriation bill in bringing it to the floor. I know it's been a tough task.

Mr. Speaker, the budget for fiscal year 2011 is now 6 months and 2 weeks overdue. It's time to finish this budget.

Through this legislation, Chairman ROGERS and the Appropriations Committee achieved what some thought would be impossible. We have succeeded in cutting $40 billion—that's $40 billion—from current spending levels. No other single bill in history has cut more spending. Think about that for just a minute.

While the $40 billion reduction in spending—and it is $40 billion, contrary to some of the reports that have been out there that it is $300 and-some-odd million or something like this. This is $40 billion in real reductions in spending. While this is $40 billion, it is just a step. But it is a step in the right direction.

We should also think about how the nature of this national conversation on spending has changed. For several years, we debated in Congress how much we were going to increase spending each year. Our debate today centers not on whether we should cut spending but how much spending should be cut. That is a sea change in the debate—both in Congress and in the Nation. And it's a change in the right direction.

The Interior Subcommittee, which I am privileged to chair, has cut spending by 8.1 percent, or $2.62 billion below the FY10 enacted level. Virtually every agency within the budget has been cut. The CR cuts EPA funding by $1.6 billion, or 16 percent below the FY10 enacted level. Funding levels for land acquisition programs are reduced by $149 million, or 33 percent, and on and on.

Even with these deep cuts, funding levels for operational accounts are sustained to prevent employee furloughs and the closure of national parks and forests, wildlife refuges, Smithsonian museums, and other sites.

Let me just say for a minute about the Energy and Water appropriation. Although no funds were included in the Energy and Water appropriation to continue and proceed to build Yucca Mountain, I don't want anyone—and I'm speaking particularly to the NRC and the Department of Energy—to misinterpret this vote. Congress has voted

and spoke many times on the issue of Yucca Mountain. Do not misinterpret this vote that this is a vote against Yucca Mountain. What we are saying to the NRC is proceed with Yucca Mountain, and NRC, do your job, which they have failed to do.

As I close my remarks, I want to echo what both Chairman ROGERS and Ranking Member DICKS said about the staff. Unless you've been on this committee or on any of the committees, the public generally doesn't know the hard work that goes on behind the scenes to make this all possible. I want to thank the staff of both the Appropriations Committee, and really the staff of the House, the staff who sits up here on the dais. They do a tremendous job for us for which this Congress would not be able to operate as effectively as we do. Some people think that's not too effectively. But, actually, we wouldn't be able to do our job.

And most people don't understand that when we went home last Friday after extending the government funding for a week, we went home. They were here all day Saturday until well into Sunday morning, and then all day Sunday until well into Monday morning in order to get the job done so that we could do this for the American people.

So I want you to vote for this budget. I urge an ''aye'' vote so that we can get on debating what the minority whip mentioned, the important priorities for the FY12 budget in the Ryan Republican budget. We appreciate that.

Mr. ROGERS of Kentucky. Mr. Speaker, I submit the following.

Pursuant to section 8120 of Division A of H.R. 1473 as passed the House on April 14, 2011, Chairman Rogers submits the following explanatory statement:

REPROGRAMMING GUIDANCE

For fiscal year 2011, the Department of Defense is directed to adhere to the definition of Program, Project and Activity, and to follow the guidance for Congressional Special Interest Items, Reprogrammings, Reprogramming Reporting Requirements, and Funding Increases, as specified in the Explanatory Statement, Division A, Department of Defense Appropriations Act Fiscal Year 2010, Public Law 111–118.

CLASSIFIED ANNEX

A classified annex accompanying this Act will be forwarded under separate cover.

Rescissions

Language is included that rescinds $2,013,536,000 from the following programs:

2009 Appropriations:	
Weapons and Tracked Combat Vehicles, Army:	
Future Combat Systems	$86,300,000
Other Procurement, Army:	
Armored Security Vehicles	55,000,000
Force XXII Battle Command Brigade and Below	30,600,000
Semi-trailers, Flatbed	62,000,000
Aircraft Procurement, Navy:	
KC–130J	12,000,000
F/A–18E/F	14,100,000
Aircraft Procurement, Air Force:	
Global Hawk excess funds	49,000,000
C–130 AMP	31,900,000
HC/MC updated pricing	36,000,000
Joint Strike Fighter alternate engine	35,000,000
C–17	207,800,000
F–22	28,000,000
2010 Appropriations:	
Aircraft Procurement, Army:	
Tactical SIGINT Payload	14,000,000
Weapons and Tracked Combat Vehicles, Army:	
Future Combat Systems spin-outs	19,600,000
Improved Recovery Vehicle	8,700,000
MK–19 Grenade Machine Gun Modifications	7,700,000
Missile Procurement, Army:	
GMLRS	9,171,000
Other Procurement, Army:	
FMTV	50,000,000
Aircraft Procurement, Navy:	
EA–18G MYP savings	89,120,000
F/A–18E/F MYP savings	72,727,000
F–18 Series ECO	17,000,000
E–6 Series	6,000,000
Joint Strike Fighter	280,000,000
Procurement of Ammunition, Navy and Marine Corps:	
General Purpose Bombs	11,576,000
Shipbuilding and Conversion, Navy:	
DDG–51 main reduction gear savings	22,000,000
Other Procurement, Navy:	
Minesweeping System Replacement	5,400,000
Aircraft Launch Recovery	3,642,000
Aircraft Procurement, Air Force:	
B–2A	5,900,000
B–52	39,300,000
C–17 Modifications	12,200,000
C–130J updated pricing	7,000,000
C–130 AP updated pricing	15,100,000
HC/MC–130 AP	46,900,000
HC/MC–130 updated pricing	13,200,000
Initial Spares—Joint Stars Re-engining	11,700,000
C–17	115,100,000
Joint Strike Fighter tooling	39,200,000
Joint Strike Fighter alternate engine	35,000,000
Other Procurement, Air Force:	
FAB–T	36,600,000
Research, Development, Test and Evaluation, Army:	
Aircraft Avionics—JTRS AMF	10,200,000
HFDS	15,000,000
Future Combat System—Class IV UAV Program of Record	12,000,000
TUAV—TSP	16,300,000
Future-Combat System—Manned Ground Vehicle	109,900,000
Research, Development, Test and Evaluation, Air Force:	
B–2	90,000,000
Classified Program	10,000,000
Alternative Fuels	10,000,000
Small Diameter Bomb	22,000,000
Engine CIP	15,000,000
JSTARS	14,600,000
RQ–4 UAV	18,000,000
C–5 Airlift Squadrons	19,000,000
Research, Development, Test and Evaluation, Defense-Wide:	
BMD Hercules	10,000,000

M–1		Budget Request	Recommendation
	MILITARY PERSONNEL, ARMY		
	BA–1: PAY AND ALLOWANCES OF OFFICERS.		
	BASIC PAY	6,392,861	6,392,861
	RETIRED PAY ACCRUAL	2,088,308	2,088,308
	BASIC ALLOWANCE FOR HOUSING	1,854,718	1,854,718
	BASIC ALLOWANCE FOR SUBSISTENCE	255,925	255,925
	INCENTIVE PAYS	97,698	97,698
	SPECIAL PAYS	300,939	300,939
	ALLOWANCES	198,601	198,601
	SEPARATION PAY	61,798	61,798
	SOCIAL SECURITY TAX	487,469	487,469
	TOTAL, BA–1	11,738,317	11,738,317
	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL.		
	BASIC PAY	13,682,488	13,682,488
	RETIRED PAY ACCRUAL	4,470,859	4,470,859
	BASIC ALLOWANCE FOR HOUSING	4,395,850	4,395,850
	INCENTIVE PAYS	102,851	102,851
	SPECIAL PAYS	1,269,047	1,129,047
	Enlistment Bonuses—Excess to Requirement		−40,000
	Re-enlistment Bonuses—Excess to Requirement		−100,000
	ALLOWANCES	806,471	806,471
	SEPARATION PAY	255,127	255,127
	SOCIAL SECURITY TAX	1,046,710	1,046,710
	TOTAL, BA–2	26,029,403	25,889,403
	BA–3: PAY AND ALLOWANCES OF CADETS.		
	ACADEMY CADETS	74,773	74,773
	TOTAL, BA–3	74,773	74,773

M–1		Budget Request	Recommendation
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL.		
.....	BASIC ALLOWANCE FOR SUBSISTENCE	1,313,309	1,313,309
.....	SUBSISTENCE-IN-KIND	817,691	817,691
.....	FAMILY SUBSISTENCE SUPPLEMENTAL ALLOWANCE	748	748
.....	TOTAL, BA–4	2,131,748	2,131,748
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL.		
.....	ACCESSION TRAVEL	202,699	202,699
.....	TRAINING TRAVEL	142,749	142,749
.....	OPERATIONAL TRAVEL	494,937	494,937
.....	ROTATIONAL TRAVEL	674,831	674,831
.....	SEPARATION TRAVEL	198,439	198,439
.....	TRAVEL OF ORGANIZED UNITS	12,137	12,137
.....	NON-TEMPORARY STORAGE	12,639	12,639
.....	TEMPORARY LODGING EXPENSE	38,931	38,931
.....	TOTAL, BA–5	1,777,362	1,777,362
.....	BA–6: OTHER MILITARY PERSONNEL COSTS.		
.....	APPREHENSION OF MILITARY DESERTERS	2,233	2,233
.....	INTEREST ON UNIFORMED SERVICES SAVINGS	648	648
.....	DEATH GRATUITIES	45,500	45,500
.....	UNEMPLOYMENT BENEFITS	188,778	188,778
.....	EDUCATION BENEFITS	30,879	30,879
.....	ADOPTION EXPENSES	610	610
.....	TRANSPORTATION SUBSIDY	8,007	8,007
.....	PARTIAL DISLOCATION ALLOWANCE	338	338
.....	RESERVE OFFICERS TRAINING CORPS (ROTC)	138,731	138,731
.....	JUNIOR R.O.T.C.	50,201	50,201
.....	TOTAL, BA–6	465,925	465,925
.....	LESS REIMBURSABLES	−245,251	−245,251
.....	UNDISTRIBUTED ADJUSTMENTS	0	−428,624
.....	Undistributed Transfer to Title IX	.....	−428,624
.....	TOTAL, MILITARY PERSONNEL, ARMY	41,972,277	41,403,653
	MILITARY PERSONNEL, NAVY		
.....	BA–1: PAY AND ALLOWANCES OF OFFICERS.		
.....	BASIC PAY	3,680,703	3,680,703
.....	RETIRED PAY ACCRUAL	1,202,462	1,202,462
.....	BASIC ALLOWANCE FOR HOUSING	1,263,675	1,263,675
.....	BASIC ALLOWANCE FOR SUBSISTENCE	143,344	143,344
.....	INCENTIVE PAYS	155,148	155,148
.....	SPECIAL PAYS	355,821	355,821
.....	ALLOWANCES	104,291	104,291
.....	SEPARATION PAY	25,353	25,353
.....	SOCIAL SECURITY TAX	278,666	278,666
.....	TOTAL, BA–1	7,209,463	7,209,463
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL.		
.....	BASIC PAY	8,257,803	8,257,803
.....	RETIRED PAY ACCRUAL	2,700,204	2,700,204
.....	BASIC ALLOWANCE FOR HOUSING	3,682,915	3,682,915
.....	INCENTIVE PAYS	100,499	100,499
.....	SPECIAL PAYS	839,787	814,787
.....	Re-enlistment Bonuses—Excess to Requirement	.....	−5,000
.....	Enlistment Bonuses—Excess to Requirement	.....	−20,000
.....	ALLOWANCES	498,621	498,621
.....	SEPARATION PAY	127,343	127,343
.....	SOCIAL SECURITY TAX	631,722	631,722
.....	TOTAL, BA–2	16,838,894	16,813,894
.....	BA–3: PAY AND ALLOWANCES OF MIDSHIPMEN.		
.....	MIDSHIPMEN	74,950	74,950
.....	TOTAL, BA–3	74,950	74,950
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL	.....	.....
.....	BASIC ALLOWANCE FOR SUBSISTENCE	685,085	685,085
.....	SUBSISTENCE-IN-KIND	419,333	419,333
.....	FAMILY SUBSISTENCE SUPPLEMENTAL ALLOWANCE	12	12
.....	TOTAL, BA–4	1,104,430	1,104,430
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL.		
.....	ACCESSION TRAVEL	76,220	76,220
.....	TRAINING TRAVEL	71,814	71,814
.....	OPERATIONAL TRAVEL	219,685	219,685
.....	ROTATIONAL TRAVEL	354,275	354,275
.....	SEPARATION TRAVEL	103,806	103,806
.....	TRAVEL OF ORGANIZED UNITS	39,368	39,368
.....	NON-TEMPORARY STORAGE	5,760	5,760
.....	TEMPORARY LODGING EXPENSE	6,386	6,386
.....	OTHER	6,406	6,406
.....	TOTAL, BA–5	883,720	883,720
.....	BA–6: OTHER MILITARY PERSONNEL COSTS.		
.....	APPREHENSION OF MILITARY DESERTERS	261	261
.....	INTEREST ON UNIFORMED SERVICES SAVINGS	1,427	1,427
.....	DEATH GRATUITIES	17,700	17,700
.....	UNEMPLOYMENT BENEFITS	88,350	88,350
.....	EDUCATION BENEFITS	21,515	21,515
.....	ADOPTION EXPENSES	271	271
.....	TRANSPORTATION SUBSIDY	8,030	8,030
.....	PARTIAL DISLOCATION ALLOWANCE	190	190
.....	RESERVE OFFICERS TRAINING CORPS (ROTC)	27,345	27,345
.....	JUNIOR R.O.T.C	14,093	14,093
.....	TOTAL, BA–6	179,182	179,182
.....	LESS REIMBURSABLES	−339,690	−339,690
.....	UNDISTRIBUTED ADJUSTMENT	0	−13,500
.....	Unobligated/Unexpended Balances	.....	−13,500
.....	TOTAL, MILITARY PERSONNEL, NAVY	25,950,949	25,912,449
	MILITARY PERSONNEL, MARINE CORPS		
.....	BA–1: PAY AND ALLOWANCES OF OFFICERS.		
.....	BASIC PAY	1,433,200	1,433,200
.....	RETIRED PAY ACCRUAL	465,072	465,072
.....	BASIC ALLOWANCE FOR HOUSING	462,438	462,438
.....	BASIC ALLOWANCE FOR SUBSISTENCE	59,613	59,613
.....	INCENTIVE PAYS	50,011	50,011
.....	SPECIAL PAYS	27,921	27,921
.....	ALLOWANCES	34,404	34,404
.....	SEPARATION PAY	13,299	13,299
.....	SOCIAL SECURITY TAX	109,014	109,014
.....	TOTAL, BA–1	2,654,972	2,654,972
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL.		

M–1		Budget Request	Recommendation
.....	BASIC PAY	4,910,560	4,910,560
.....	RETIRED PAY ACCRUAL	1,591,322	1,591,322
.....	BASIC ALLOWANCE FOR HOUSING	1,660,161	1,660,161
.....	INCENTIVE PAYS	9,158	9,158
.....	SPECIAL PAYS	288,654	288,654
.....	ALLOWANCES	278,060	278,060
.....	SEPARATION PAY	65,101	65,101
.....	SOCIAL SECURITY TAX	372,411	372,411
.....	TOTAL, BA–2	9,175,427	9,175,427
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL.		
.....	BASIC ALLOWANCE FOR SUBSISTENCE	489,789	489,789
.....	SUBSISTENCE-IN-KIND	324,565	324,565
.....	FAMILY SUBSISTENCE SUPPLEMENTAL ALLOWANCE	750	750
.....	TOTAL, BA–4	815,104	815,104
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL.		
.....	ACCESSION TRAVEL	79,378	79,378
.....	TRAINING TRAVEL	10,079	10,079
.....	OPERATIONAL TRAVEL	239,442	239,442
.....	ROTATIONAL TRAVEL	115,330	115,330
.....	SEPARATION TRAVEL	55,528	55,528
.....	TRAVEL OF ORGANIZED UNITS	742	742
.....	NON-TEMPORARY STORAGE	6,305	6,305
.....	TEMPORARY LODGING EXPENSE	13,818	13,818
.....	OTHER	2,683	2,683
.....	TOTAL, BA–5	523,305	523,305
.....	BA–6: OTHER MILITARY PERSONNEL COSTS.		
.....	APPREHENSION OF MILITARY DESERTERS	1,823	1,823
.....	INTEREST ON UNIFORMED SERVICES SAVINGS	19	19
.....	DEATH GRATUITIES	17,200	17,200
.....	UNEMPLOYMENT BENEFITS	69,359	69,359
.....	EDUCATION BENEFITS	4,249	4,249
.....	ADOPTION EXPENSES	159	159
.....	TRANSPORTATION SUBSIDY	2,853	2,853
.....	PARTIAL DISLOCATION ALLOWANCE	278	278
.....	JUNIOR R.O.T.C	5,573	5,573
.....	TOTAL, BA–6	101,513	101,513
.....	LESS REIMBURSABLES	−20,160	−20,160
.....	UNDISTRIBUTED ADJUSTMENT	0	−40,000
.....	Unobligated/Unexpended Balances	.....	−40,000
.....	TOTAL, MILITARY PERSONNEL, MARINE CORPS	13,250,161	13,210,161
	MILITARY PERSONNEL, AIR FORCE		
.....	BA–1: PAY AND ALLOWANCES OF OFFICERS.		
.....	BASIC PAY	4,687,593	4,687,593
.....	RETIRED PAY ACCRUAL	1,522,644	1,522,644
.....	BASIC ALLOWANCE FOR HOUSING	1,347,403	1,347,403
.....	BASIC ALLOWANCE FOR SUBSISTENCE	182,253	182,253
.....	INCENTIVE PAYS	239,121	239,121
.....	SPECIAL PAYS	322,642	322,642
.....	ALLOWANCES	128,157	128,157
.....	SEPARATION PAY	64,974	64,974
.....	SOCIAL SECURITY TAX	355,711	355,711
.....	TOTAL, BA–1	8,850,498	8,850,498
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL.		
.....	BASIC PAY	8,540,083	8,540,083
.....	RETIRED PAY ACCRUAL	2,781,402	2,781,402
.....	BASIC ALLOWANCE FOR HOUSING	3,038,904	3,038,904
.....	INCENTIVE PAYS	36,980	36,980
.....	SPECIAL PAYS	396,103	380,103
.....	Re-enlistment Bonuses—Excess to Requirement	.....	−16,000
.....	ALLOWANCES	570,857	570,857
.....	SEPARATION PAY	124,411	124,411
.....	SOCIAL SECURITY TAX	653,317	653,317
.....	TOTAL, BA–2	16,142,057	16,126,057
.....	BA–3: PAY AND ALLOWANCES OF CADETS.		
.....	ACADEMY CADETS	75,383	75,383
.....	TOTAL, BA–3	75,383	75,383
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL.		
.....	BASIC ALLOWANCE FOR SUBSISTENCE	872,055	872,055
.....	SUBSISTENCE-IN-KIND	169,924	169,924
.....	FAMILY SUBSISTENCE SUPPLEMENTAL ALLOWANCE	37	37
.....	TOTAL, BA–4	1,042,016	1,042,016
.....	BA–5: PERMANENT CHANGE OF STATION.		
.....	ACCESSION TRAVEL	87,377	87,377
.....	TRAINING TRAVEL	72,521	72,521
.....	OPERATIONAL TRAVEL	296,604	296,604
.....	ROTATIONAL TRAVEL	505,198	505,198
.....	SEPARATION TRAVEL	176,549	176,549
.....	TRAVEL OF ORGANIZED UNITS	23,561	23,561
.....	NON-TEMPORARY STORAGE	40,772	40,772
.....	TEMPORARY LODGING EXPENSE	28,936	28,936
.....	TOTAL, BA–5	1,231,518	1,231,518
.....	BA–6: OTHER MILITARY PERSONNEL COSTS.		
.....	APPREHENSION OF MILITARY DESERTERS	131	131
.....	INTEREST ON UNIFORMED SERVICES SAVINGS	2,179	2,179
.....	DEATH GRATUITIES	19,900	19,900
.....	UNEMPLOYMENT BENEFITS	49,143	49,143
.....	SURVIVOR BENEFITS	1,760	1,760
.....	EDUCATION BENEFITS	484	484
.....	ADOPTION EXPENSES	395	395
.....	TRANSPORTATION SUBSIDY	6,903	6,903
.....	PARTIAL DISLOCATION ALLOWANCE	1,578	1,578
.....	RESERVE OFFICERS TRAINING CORPS (ROTC)	45,571	45,571
.....	JUNIOR ROTC	16,185	16,185
.....	TOTAL, BA–6	144,229	144,229
.....	LESS REIMBURSABLES	−363,946	−363,946
.....	TOTAL, MILITARY PERSONNEL, AIR FORCE	27,121,755	27,105,755
	RESERVE PERSONNEL, ARMY		
.....	BA–1: RESERVE COMPONENT TRAINING AND SUPPORT.		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	1,249,133	1,249,133
.....	PAY GROUP B TRAINING (BACKFILL FOR ACTIVE DUTY)	44,460	36,460
.....	Projected Underexecution	.....	−8,000
.....	PAY GROUP F TRAINING (RECRUITS)	268,215	268,215
.....	PAY GROUP P TRAINING (PIPELINE RECRUITS)	8,830	8,830

M–1		Budget Request	Recommendation
.....	MOBILIZATION TRAINING	21,460	10,460
.....	Projected Underexecution		−11,000
.....	SCHOOL TRAINING	177,121	177,121
.....	SPECIAL TRAINING	293,439	283,439
.....	Excessive Growth		−10,000
.....	ADMINISTRATION AND SUPPORT	2,129,646	2,129,646
.....	EDUCATION BENEFITS	57,633	57,633
.....	HEALTH PROFESSION SCHOLARSHIP	66,940	66,940
.....	OTHER PROGRAMS	80,288	80,288
.....	TOTAL, BA–1	4,397,165	4,368,165
.....	UNDISTRIBUTED ADJUSTMENT	0	−35,000
.....	Unobligated/Unexpended Balances		−35,000
.....	TOTAL, RESERVE PERSONNEL, ARMY	4,397,165	4,333,165
	RESERVE PERSONNEL, NAVY		
.....	BA–1: RESERVE COMPONENT TRAINING AND SUPPORT		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	626,657	626,657
.....	PAY GROUP B TRAINING (BACKFILL FOR ACTIVE DUTY)	9,070	9,070
.....	PAY GROUP F TRAINING (RECRUITS)	45,603	45,603
.....	MOBILIZATION TRAINING	8,434	8,434
.....	SCHOOL TRAINING	45,930	45,930
.....	SPECIAL TRAINING	89,647	89,647
.....	ADMINISTRATION AND SUPPORT	1,061,128	1,061,128
.....	EDUCATION BENEFITS	3,780	3,780
.....	HEALTH PROFESSION SCHOLARSHIP	53,942	53,942
.....	TOTAL, BA–1	1,944,191	1,944,191
.....	UNDISTRIBUTED ADJUSTMENT	0	−4,000
.....	Unobligated/Unexpended Balances		−4,000
.....	TOTAL, RESERVE PERSONNEL, NAVY	1,944,191	1,940,191
	RESERVE PERSONNEL, MARINE CORPS		
.....	BA–1: RESERVE COMPONENT TRAINING AND SUPPORT.		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	196,974	196,974
.....	PAY GROUP B TRAINING (BACKFILL FOR ACTIVE DUTY)	36,116	36,116
.....	PAY GROUP F TRAINING (RECRUITS)	96,138	96,138
.....	MOBILIZATION TRAINING	3,724	3,724
.....	SCHOOL TRAINING	16,810	16,810
.....	SPECIAL TRAINING	27,688	27,688
.....	ADMINISTRATION AND SUPPORT	216,537	216,537
.....	PLATOON LEADER CLASS	12,256	12,256
.....	EDUCATION BENEFITS	11,198	11,198
.....	TOTAL, BA–1	617,441	617,441
.....	UNDISTRIBUTED ADJUSTMENTS	0	−5,250
.....	Unobligated/Unexpended Balances		−1,250
.....	MIP Marine Corps Reserve Intelligence Program		−4,000
.....	TOTAL, RESERVE PERSONNEL, MARINE CORPS	617,441	612,191
	RESERVE PERSONNEL, AIR FORCE		
.....	BA–1: RESERVE COMPONENT TRAINING AND SUPPORT.		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	670,341	670,341
.....	PAY GROUP B TRAINING (BACKFILL FOR ACTIVE DUTY)	101,951	101,951
.....	PAY GROUP F TRAINING (RECRUITS)	54,850	54,850
.....	PAY GROUP P TRAINING (PIPELINE RECRUITS)	50	50
.....	MOBILIZATION TRAINING	447	447
.....	SCHOOL TRAINING	163,272	163,272
.....	SPECIAL TRAINING	243,233	243,233
.....	ADMINISTRATION AND SUPPORT	378,772	378,772
.....	EDUCATION BENEFITS	18,295	18,295
.....	HEALTH PROFESSION SCHOLARSHIP	51,331	51,331
.....	OTHER PROGRAMS (ADMINISTRATION and SUPPORT)	4,255	4,255
.....	TOTAL, BA–1	1,686,797	1,686,797
.....	UNDISTRIBUTED ADJUSTMENTS	0	−36,000
.....	Unobligated/Unexpended Balances		−15,000
.....	Below Budgeted End Strength		−21,000
.....	TOTAL, RESERVE PERSONNEL, AIR FORCE	1,686,797	1,650,797
	NATIONAL GUARD PERSONNEL, ARMY		
.....	BA–1: RESERVE COMPONENT TRAINING AND SUPPORT.		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	2,010,867	1,980,867
.....	Unjustified Growth		−30,000
.....	PAY GROUP F TRAINING (RECRUITS)	510,859	510,859
.....	PAY GROUP P TRAINING (PIPELINE RECRUITS)	71,222	71,222
.....	SCHOOL TRAINING	577,600	577,600
.....	SPECIAL TRAINING	534,954	521,954
.....	Recruiter Mandays—Excess to Requirement		−13,000
.....	ADMINISTRATION AND SUPPORT	3,788,954	3,788,954
.....	EDUCATION BENEFITS	129,840	129,840
.....	TOTAL, BA–1	7,624,296	7,581,296
.....	UNDISTRIBUTED ADJUSTMENTS	0	−70,000
.....	Unobligated/Unexpended Balances		−70,000
.....	TOTAL, NATIONAL GUARD PERSONNEL, ARMY	7,624,296	7,511,296
	NATIONAL GUARD PERSONNEL, AIR FORCE		
.....	BA–1: RESERVE COMPONENT TRAINING AND SUPPORT.		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	939,636	931,636
.....	Inactive Duty Training—Unjustified Growth		−8,000
.....	PAY GROUP F TRAINING (RECRUITS)	99,839	99,839
.....	PAY GROUP P TRAINING (PIPELINE RECRUITS)	298	298
.....	SCHOOL TRAINING	209,944	209,944
.....	SPECIAL TRAINING	131,226	131,226
.....	ADMINISTRATION AND SUPPORT	1,692,112	1,682,112
.....	Bonuses—Unjustified Requirement		−10,000
.....	EDUCATION BENEFITS	30,543	30,543
.....	TOTAL, BA–1	3,103,598	3,085,598
.....	UNDISTRIBUTED ADJUSTMENTS	0	−25,500
.....	Unobligated/Unexpended Balances		−17,500
.....	Lower than Budgeted Pay Grade Mix		−8,000
.....	TOTAL, NATIONAL GUARD PERSONNEL, AIR FORCE	3,103,598	3,060,098
.....	TOTAL, MILITARY PERSONNEL	127,668,630	126,739,756

O–1		Budget Request	Recommendation
	OPERATION AND MAINTENANCE, ARMY		
111	MANEUVER UNITS	1,087,321	1,087,321
112	MODULAR SUPPORT BRIGADES	114,448	113,790
.....	Deployment Offset	.....	−658
113	ECHELONS ABOVE BRIGADES	773,540	769,338
.....	Deployment Offset	.....	−4,202
114	THEATER LEVEL ASSETS	794,806	767,727
.....	Aircraft Lease for Casualty Evacuation Funded in fiscal year 2011 OCO	.....	−18,500
.....	Transfer to Title IX—Chemical Defense Equipment Sustainment	.....	−8,579
115	LAND FORCES OPERATIONS SUPPORT	1,399,332	1,392,912
.....	Transfer to Title IX—MRAP Vehicle Sustainment at Combat Training Centers	.....	−6,420
116	AVIATION ASSETS	897,666	867,666
.....	Deployment Offset	.....	−30,000
121	FORCE READINESS OPERATIONS SUPPORT	2,520,995	2,314,041
.....	Unjustified Increase for Travel	.....	−91,000
.....	Removal of One-Time fiscal year 2010 Costs	.....	−35,000
.....	Transfer to Title IX—Body Armor Sustainment	.....	−71,660
.....	Transfer to Title IX—Rapid Equipping Force Readiness	.....	−9,294
122	LAND FORCES FORCES SYSTEMS READINESS	596,117	574,946
.....	Transfer to Title IX—Fixed Wing Life Cycle Contract Support	.....	−21,171
123	LAND FORCES DEPOT MAINTENANCE	890,122	950,122
.....	UH–60 A to L Conversions	.....	+60,000
131	BASE OPERATIONS SUPPORT	7,563,566	7,281,191
.....	Transfer from the Defense Health Program for Centralized Management of the Substance Abuse Program	.....	+30,625
.....	Army Tenant Pentagon Rent Requirements	.....	−33,000
.....	Reduced Requirement for Collateral Equipment in fiscal year 2011	.....	−50,000
.....	Transfer to Title IX—Overseas Security Guards	.....	−200,000
.....	Transfer to Title IX—Senior Leader Initiative—Comprehensive Soldier Fitness Program	.....	−30,000
132	FACILITIES SUSTAINMENT, RESTORATION, & MODERNIZATION	2,500,892	2,500,892
133	MANAGEMENT AND OPERATIONAL HEADQUARTERS	390,004	390,004
134	COMBATANT COMMANDER'S CORE OPERATIONS	167,758	167,758
138	COMBATANT COMMANDER'S DIRECT MISSION SUPPORT	464,851	464,851
.....	SUBTOTAL, BUDGET ACTIVITY 1	20,161,418	19,642,559
211	STRATEGIC MOBILITY	333,266	333,266
212	ARMY PREPOSITIONED STOCKS	102,240	102,240
213	INDUSTRIAL PREPAREDNESS	5,736	5,736
.....	SUBTOTAL, BUDGET ACTIVITY 2	441,242	441,242
311	OFFICER ACQUISITION	129,902	129,902
312	RECRUIT TRAINING	74,705	74,705
313	ONE STATION UNIT TRAINING	63,223	63,223
314	SENIOR RESERVE OFFICER TRAINING CORPS	479,343	479,343
321	SPECIALIZED SKILL TRAINING	1,082,517	1,027,334
.....	Unjustified Growth in Supply and Equipment Purchases	.....	−40,000
.....	Transfer to Title IX—Survivability and Maneuverability Training	.....	−15,183
322	FLIGHT TRAINING	1,046,124	1,032,124
.....	Budget Justification Does not Match Summary of Price and Program Changes	.....	−14,000
323	PROFESSIONAL DEVELOPMENT EDUCATION	163,607	163,607
324	TRAINING SUPPORT	695,200	695,200
331	RECRUITING AND ADVERTISING	544,014	524,014
.....	Budget Justification Does not Match Summary of Price and Program Changes	.....	−20,000
332	EXAMINING	153,091	153,091
333	OFF-DUTY AND VOLUNTARY EDUCATION	241,170	241,170
334	CIVILIAN EDUCATION AND TRAINING	220,771	220,771
335	JUNIOR RESERVE OFFICER TRAINING CORPS	175,347	183,347
.....	Program Increase—Junior ROTC	.....	+8,000
.....	SUBTOTAL, BUDGET ACTIVITY 3	5,069,014	4,987,831
411	SECURITY PROGRAMS	1,030,355	1,030,355
421	SERVICEWIDE TRANSPORTATION	587,952	557,826
.....	First Destination Transportation Cost of New Equipment is Financed in the Cost of Equipment	.....	−30,126
422	CENTRAL SUPPLY ACTIVITIES	669,853	669,853
423	LOGISTIC SUPPORT ACTIVITIES	503,876	503,876
424	AMMUNITION MANAGEMENT	435,020	435,020
431	ADMINISTRATION	912,355	902,355
.....	Unjustified Growth for Headquarters Accounts	.....	−10,000
432	SERVICEWIDE COMMUNICATIONS	1,528,371	1,528,371
433	MANPOWER MANAGEMENT	368,480	328,480
.....	Unsupported Request for 712 Temporary Hires	.....	−40,000
434	OTHER PERSONNEL SUPPORT	261,829	261,829
435	OTHER SERVICE SUPPORT	1,145,902	1,149,822
.....	Capitol 4th	.....	+3,920
436	ARMY CLAIMS ACTIVITIES	205,967	205,967
437	REAL ESTATE MANAGEMENT	168,664	168,664
441	INTERNATIONAL MILITARY HEADQUARTERS	462,488	476,888
.....	Outfitting of NATO SOF Headquarters Building	.....	+14,400
442	MISCELLANEOUS SUPPORT OF OTHER NATIONS	19,179	16,179
.....	Information Operations	.....	−3,000
.....	SUBTOTAL, BUDGET ACTIVITY 4	8,300,291	8,235,485
.....	FIVE PERCENT COST SAVINGS FOR INVESTMENT IN ENERGY AND UTILITIES PROJECTS THROUGH THE AMERICAN RECOVERY AND REINVESTMENT ACT	.....	−1,000
.....	TOTAL, OPERATION AND MAINTENANCE, ARMY	33,971,965	33,306,117
	OPERATION AND MAINTENANCE, NAVY		
1A1A	MISSION AND OTHER FLIGHT OPERATIONS	4,429,832	4,429,832
1A2A	FLEET AIR TRAINING	81,345	1,605,720
.....	Transfer of Fleet Air Training funding from SAG 3B2K	.....	+958,200
.....	Unjustified Administrative Overhead Cost Growth	.....	−4,225
.....	Transfer of Chief of Naval Air Training from SAG 3B2K	.....	+570,400
1A3A	AVIATION TECHNICAL DATA AND ENGINEERING SERVICES	38,932	38,932
1A4A	AIR OPERATIONS AND SAFETY SUPPORT	100,485	100,485
1A4N	AIR SYSTEMS SUPPORT	355,520	355,520
1A5A	AIRCRAFT DEPOT MAINTENANCE	1,221,410	1,221,410
1A6A	AIRCRAFT DEPOT OPERATIONS SUPPORT	27,448	27,448
1B1B	MISSION AND OTHER SHIP OPERATIONS	3,696,913	3,666,913
.....	Unjustified Growth in Per Diem Days	.....	−30,000
1B2B	SHIP OPERATIONS SUPPORT AND TRAINING	728,983	728,983
1B4B	SHIP DEPOT MAINTENANCE	4,761,670	4,761,670
1B5B	SHIP DEPOT OPERATIONS SUPPORT	1,344,844	1,338,844
.....	Transfer to RDTE, DW per Memorandum of Agreement	.....	−1,500
.....	NAVSEA Process Requirements and Improvement Office Budget Realignment and Consolidation Justified as Program Growth	.....	−4,500
1C1C	COMBAT COMMUNICATIONS	615,069	550,069
.....	Overstatement of DISA Pricing Adjustment	.....	−65,000
1C2C	ELECTRONIC WARFARE	89,340	89,340
1C3C	SPACE SYSTEMS AND SURVEILLANCE	177,397	177,397
1C4C	WARFARE TACTICS	416,068	416,068
1C5C	OPERATIONAL METEOROLOGY AND OCEANOGRAPHY	316,525	316,525
1C6C	COMBAT SUPPORT FORCES	1,083,618	870,817
.....	Unjustified Growth for Naval Expeditionary Combat Command	.....	−20,000
.....	Transfer to Title IX—Naval Expeditionary Combat Command Increases	.....	−192,801
1C7C	EQUIPMENT MAINTENANCE	165,985	165,985
1C8C	DEPOT OPERATIONS SUPPORT	2,836	2,836

O–1		Budget Request	Recommendation
1CCH	COMBATANT COMMANDERS CORE OPERATIONS	208,250	208,250
1CCM	COMBATANT COMMANDERS DIRECT MISSION SUPPORT	274,071	274,071
1D1D	CRUISE MISSILE	130,219	130,219
1D2D	FLEET BALLISTIC MISSILE	1,138,418	1,138,418
1D3D	IN-SERVICE WEAPONS SYSTEMS SUPPORT	89,184	89,184
1D4D	WEAPONS MAINTENANCE	459,561	459,561
1D7D	OTHER WEAPON SYSTEMS SUPPORT	366,751	361,751
.....	Civilian Personnel Over-Pricing	.....	−5,000
BSIT	ENTERPRISE INFORMATION TECHNOLOGY	820,507	1,031,207
.....	Requested Transfer from OP,N line 147 for NGEN Funding	.....	+217,700
.....	Overstatement of DISA Pricing Adjustment	.....	−7,000
BSM1	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	1,900,386	1,900,386
BSS1	BASE OPERATING SUPPORT	4,502,857	4,452,857
.....	Transfer to Title IX—Regional/Emergency Operations Center	.....	−50,000
.....	SUBTOTAL, BUDGET ACTIVITY 1	29,544,424	30,910,698
2A1F	SHIP PREPOSITIONING AND SURGE	424,047	424,047
2B1G	AIRCRAFT ACTIVATIONS/INACTIVATIONS	7,593	7,593
2B2G	SHIP ACTIVATIONS/INACTIVATIONS	177,482	180,682
.....	Program Increase—Ship Disposal Program	.....	+3,200
2C1H	FLEET HOSPITAL PROGRAM	70,990	70,990
2C2H	INDUSTRIAL READINESS	2,707	2,707
2C3H	COAST GUARD SUPPORT	23,845	23,845
.....	SUBTOTAL, BUDGET ACTIVITY 2	706,664	709,864
3A1J	OFFICER ACQUISITION	141,057	141,057
3A2J	RECRUIT TRAINING	10,853	10,853
3A3J	RESERVE OFFICERS TRAINING CORPS	143,504	143,504
3B1K	SPECIALIZED SKILL TRAINING	533,004	530,004
.....	Transfer to Title IX—NAVSEA VSSS/EOD Training	.....	−3,000
3B2K	FLIGHT TRAINING	1,538,171	9,571
.....	Transfer of Fleet Air Training funding to SAG 1A2A	.....	−958,200
.....	Transfer of Chief of Naval Air Training to SAG 1A2A	.....	−570,400
3B3K	PROFESSIONAL DEVELOPMENT EDUCATION	162,844	162,844
3B4K	TRAINING SUPPORT	171,153	171,153
3C1L	RECRUITING AND ADVERTISING	261,287	261,922
.....	Program Increase—Naval Sea Cadet Corps	.....	+635
3C3L	OFF-DUTY AND VOLUNTARY EDUCATION	145,560	145,560
3C4L	CIVILIAN EDUCATION AND TRAINING	109,865	109,865
3C5L	JUNIOR ROTC	50,369	53,369
.....	Program Increase—Junior ROTC	.....	+3,000
.....	SUBTOTAL, BUDGET ACTIVITY 3	3,267,667	1,739,702
4A1M	ADMINISTRATION	829,010	829,010
4A2M	EXTERNAL RELATIONS	7,632	7,632
4A3M	CIVILIAN MANPOWER AND PERSONNEL MANAGEMENT	118,838	111,838
.....	Overstated Requirement for Other Intragovernmental Purchases	.....	−7,000
4A4M	MILITARY MANPOWER AND PERSONNEL MANAGEMENT	194,775	194,775
4A5M	OTHER PERSONNEL SUPPORT	282,580	282,580
4A6M	SERVICEWIDE COMMUNICATIONS	503,067	496,089
.....	Nuclear Command, Control and Communications Systems Budget Realignment and Consolidation Justified as Program Growth	.....	−6,978
4B1N	SERVICEWIDE TRANSPORTATION	230,294	230,294
4B2N	PLANNING, ENGINEERING AND DESIGN	259,990	259,990
4B3N	ACQUISITION AND PROGRAM MANAGEMENT	868,069	856,069
.....	Civilian Personnel Over-Pricing	.....	−12,000
4B5N	HULL, MECHANICAL AND ELECTRICAL SUPPORT	55,217	55,217
4B6N	COMBAT/WEAPONS SYSTEMS	19,053	19,053
4B7N	SPACE AND ELECTRONIC WARFARE SYSTEMS	77,702	77,702
4C1P	NAVAL INVESTIGATIVE SERVICE	549,484	546,484
.....	Civilian Personnel Over-Pricing	.....	−3,000
4D1Q	INTERNATIONAL HEADQUARTERS AND AGENCIES	5,567	5,567
999	OTHER PROGRAMS	614,275	607,475
.....	Classified Adjustment	.....	−6,800
.....	SUBTOTAL, BUDGET ACTIVITY 4	4,615,553	4,579,775
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−127,200
.....	FIVE PERCENT COST SAVINGS FOR INVESTMENT IN ENERGY AND UTILITIES PROJECTS THROUGH THE AMERICAN RECOVERY AND REINVESTMENT ACT	.....	−3,600
.....	TOTAL, OPERATION AND MAINTENANCE, NAVY	38,134,308	37,809,239
	OPERATION AND MAINTENANCE, MARINE CORPS		
1A1A	OPERATIONAL FORCES	745,678	745,678
1A2A	FIELD LOGISTICS	658,616	658,616
1A3A	DEPOT MAINTENANCE	78,891	78,891
1B1B	MARITIME PREPOSITIONING	72,344	72,344
BSM1	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	594,904	594,904
BSS1	BASE OPERATING SUPPORT	2,206,137	2,198,437
.....	Collateral Equipment Decrease in fiscal year 2011 not Properly Accounted for in Budget Documentation	.....	−7,700
.....	SUBTOTAL, BUDGET ACTIVITY 1	4,356,570	4,348,870
3A1C	RECRUIT TRAINING	16,096	16,096
3A2C	OFFICER ACQUISITION	420	420
3B1D	SPECIALIZED SKILLS TRAINING	91,197	91,197
3B3D	PROFESSIONAL DEVELOPMENT EDUCATION	32,379	32,379
3B4D	TRAINING SUPPORT	319,742	319,742
3C1F	RECRUITING AND ADVERTISING	233,663	233,663
3C2F	OFF-DUTY AND VOLUNTARY EDUCATION	61,980	61,980
3C3F	JUNIOR ROTC	19,497	19,497
.....	SUBTOTAL, BUDGET ACTIVITY 3	774,974	774,974
4A3G	SERVICEWIDE TRANSPORTATION	29,569	29,569
4A4G	ADMINISTRATION	341,657	335,657
.....	Administrative Efficiencies	.....	−6,000
4B3N	ACQUISITION AND PROGRAM MANAGEMENT	87,570	87,570
.....	SUBTOTAL, BUDGET ACTIVITY 4	458,796	452,796
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−34,400
.....	FIVE PERCENT COST SAVINGS FOR INVESTMENT IN ENERGY AND UTILITIES PROJECTS THROUGH THE AMERICAN RECOVERY AND REINVESTMENT ACT	.....	−2,500
.....	TOTAL, OPERATION AND MAINTENANCE, MARINE CORPS	5,590,340	5,539,740
	OPERATION AND MAINTENANCE, AIR FORCE		
011A	PRIMARY COMBAT FORCES	4,261,115	4,218,222
.....	Unjustified Growth for Programming/ Execution	.....	−34,408
.....	Unsupported Request for Civilian Personnel	.....	−8,485
011C	COMBAT ENHANCEMENT FORCES	2,995,278	2,933,353
.....	Unjustified Growth for Programming/ Execution	.....	−61,925
011D	AIR OPERATIONS TRAINING	1,573,602	1,508,352
.....	Unjustified Growth for Programming/ Execution	.....	−13,598
.....	Transfer of Range Maintenance funding to SAG 011R	.....	−33,652
.....	Removal of One-Time fiscal year 2010 Cost for F–35A Beddown Costs	.....	−18,000
011M	DEPOT MAINTENANCE	2,189,481	2,176,793
.....	Program Increase—Warner Robins Air Logistics Center Aircraft Depot Maintenance	.....	+4,000
.....	Air Force Requested Transfer to OM,ANG for C–130s	.....	−10,879
.....	Air Force Requested Transfer to OM,AFR for C–130s	.....	−5,809
011R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	1,556,234	1,664,886
.....	Transfer of Range Maintenance from SAG 011D	.....	+33,652

O–1		Budget Request	Recommendation
.....	Adjustments to Meet Life, Health, Safety and ADA Compliance Standards	.....	+75,000
011Z	BASE OPERATING SUPPORT	3,088,003	2,937,621
.....	Unjustified Growth for Programming/ Execution	.....	−91,675
.....	Unsupported Request for Civilian Personnel	.....	−58,707
012A	GLOBAL C3I AND EARLY WARNING	1,511,243	1,450,927
.....	Unsupported Request for Civilian Personnel	.....	−16,013
.....	Unjustified Growth for Programming/ Execution	.....	−44,303
012C	OTHER COMBAT OPERATIONS SUPPORT PROGRAMS	1,035,291	1,020,300
.....	Unjustified Growth for Programming/ Execution	.....	−12,268
.....	Unsupported Request for Civilian Personnel	.....	−2,723
012F	TACTICAL INTELLIGENCE AND SPECIAL ACTIVITIES	595,028	595,028
013A	LAUNCH FACILITIES	342,355	342,355
013C	SPACE CONTROL SYSTEMS	811,022	811,022
015A	COMBATANT COMMANDERS DIRECT MISSION SUPPORT	797,754	791,754
.....	Information Operations	.....	−6,000
015B	COMBATANT COMMANDERS CORE OPERATIONS	233,021	225,865
.....	Unsupported Request for Civilian Personnel	.....	−7,156
.....	SUBTOTAL, BUDGET ACTIVITY 1	20,989,427	20,676,478
021A	AIRLIFT OPERATIONS	2,975,663	2,975,663
021D	MOBILIZATION PREPAREDNESS	158,647	158,647
021M	DEPOT MAINTENANCE	140,286	140,286
021R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	348,231	348,231
021Z	BASE SUPPORT	683,286	635,231
.....	Unsupported Request for Civilian Personnel	.....	−45,577
.....	Unjustified Growth for Programming/ Execution	.....	−2,478
.....	SUBTOTAL, BUDGET ACTIVITY 2	4,306,113	4,258,058
031A	OFFICER ACQUISITION	114,403	114,403
031B	RECRUIT TRAINING	28,195	28,195
031D	RESERVE OFFICER TRAINING CORPS (ROTC)	90,453	90,453
031R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	411,570	400,652
.....	Unsupported Request for Civilian Personnel	.....	−10,918
031Z	BASE SUPPORT (ACADEMIES ONLY)	902,323	845,576
.....	Unjustified Growth for Programming/ Execution	.....	−16,216
.....	Unsupported Request for Civilian Personnel	.....	−40,531
032A	SPECIALIZED SKILL TRAINING	510,065	470,584
.....	Unsupported Request for Civilian Personnel	.....	−11,481
.....	Growth in Overhead Expenses not Justified by Increases to Training Metrics	.....	−28,000
032B	FLIGHT TRAINING	1,012,816	1,012,816
032C	PROFESSIONAL DEVELOPMENT EDUCATION	221,553	221,553
032D	TRAINING SUPPORT	126,784	123,260
.....	Unsupported Request for Civilian Personnel	.....	−3,524
032M	DEPOT MAINTENANCE	619	619
033A	RECRUITING AND ADVERTISING	150,222	143,635
.....	Unsupported Request for Civilian Personnel	.....	−1,487
.....	Air Force Recruiting Information Support System—Air Force Requested Transfer to RDTE,AF	.....	−5,100
033B	EXAMINING	409	409
033C	OFF DUTY AND VOLUNTARY EDUCATION	172,643	172,643
033D	CIVILIAN EDUCATION AND TRAINING	208,872	208,872
033E	JUNIOR ROTC	77,692	81,692
.....	Program Increase—Junior ROTC	.....	+4,000
.....	SUBTOTAL, BUDGET ACTIVITY 3	4,028,619	3,915,362
041A	LOGISTICS OPERATIONS	1,110,471	1,082,427
.....	Unsupported Request for Civilian Personnel	.....	−28,044
041B	TECHNICAL SUPPORT ACTIVITIES	949,018	937,913
.....	Unjustified Growth for Programming/ Execution	.....	−5,866
.....	Unsupported Request for Civilian Personnel	.....	−5,239
041M	DEPOT MAINTENANCE	7,365	7,365
041R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	368,349	367,651
.....	Unsupported Request for Civilian Personnel	.....	−698
041Z	BASE SUPPORT	1,363,230	1,292,621
.....	Unsupported Request for Civilian Personnel	.....	−30,609
.....	Pentagon Reservation Maintenance Fund Pricing	.....	−40,000
042A	ADMINISTRATION	657,268	657,268
042B	SERVICEWIDE COMMUNICATIONS	693,379	672,562
.....	Unjustified Growth for Programming/ Execution	.....	−20,817
042G	OTHER SERVICEWIDE ACTIVITIES	1,152,877	1,138,670
.....	Unsupported Request for Civilian Personnel	.....	−22,207
.....	Analytical Support for the Executive Agent for Space—Transfer from RDTE,AF line 216	.....	+8,000
042I	CIVIL AIR PATROL CORPORATION	22,848	27,048
.....	Civil Air Patrol Program Increase	.....	+4,200
043A	SECURITY PROGRAMS	1,159,342	1,141,160
.....	Unsupported Request for Civilian Personnel	.....	−18,182
044A	INTERNATIONAL SUPPORT	36,206	36,206
.....	SUBTOTAL, BUDGET ACTIVITY 4	7,520,353	7,360,891
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−134,300
.....	FIVE PERCENT COST SAVINGS FOR INVESTMENT IN ENERGY AND UTILITIES PROJECTS THROUGH THE AMERICAN RECOVERY AND REINVESTMENT ACT	.....	−13,500
.....	TOTAL, OPERATION AND MAINTENANCE, AIR FORCE	36,844,512	36,062,989
	OPERATION AND MAINTENANCE, DEFENSE-WIDE		
.....	JOINT CHIEFS OF STAFF	420,940	420,940
.....	SPECIAL OPERATIONS COMMAND	3,944,330	3,930,330
.....	Non-Standard Aviation Platforms Sustainment and Logistical Support	.....	−5,000
.....	Removal of One-Time fiscal year 2010 Congressional Increases	.....	−9,000
.....	SUBTOTAL, BUDGET ACTIVITY 1	4,365,270	4,351,270
.....	DEFENSE ACQUISITION UNIVERSITY	145,896	145,896
.....	NATIONAL DEFENSE UNIVERSITY	97,633	97,633
.....	SUBTOTAL, BUDGET ACTIVITY 3	243,529	243,529
.....	CIVIL MILITARY PROGRAMS	156,043	164,043
.....	STARBASE Youth Program	.....	+8,000
.....	BUSINESS TRANSFORMATION AGENCY	143,441	143,441
.....	DEFENSE CONTRACT AUDIT AGENCY	486,143	482,643
.....	Removal of One-Time fiscal year 2010 Cost for Renewing Three Year License for Software	.....	−3,500
.....	DEFENSE FINANCE AND ACCOUNTING SERVICE	1,593	1,593
.....	DEFENSE INFORMATION SYSTEMS AGENCY	1,384,450	1,374,450
.....	Multinational Information Sharing Programs	.....	−10,000
.....	DEFENSE LEGAL SERVICES AGENCY	42,404	42,404
.....	DEFENSE LOGISTICS AGENCY	448,043	396,395
.....	Facilities Sustainment	.....	−58,848
.....	Procurement Technical Assistance Program	.....	+7,200
.....	DEFENSE MEDIA ACTIVITY	255,878	255,878
.....	DEFENSE POW /MISSING PERSONS OFFICE	24,155	24,155
.....	DEFENSE TECHNOLOGY SECURITY AGENCY	37,624	37,624
.....	DEFENSE THREAT REDUCTION AGENCY	463,522	445,682
.....	Core Operational Support Activities—unnecessary increase	.....	−17,840
.....	DEFENSE DEPENDENTS EDUCATION	2,514,537	2,679,537
.....	Military Spouse Career Advancement Accounts	.....	+165,000
.....	DEFENSE HUMAN RESOURCES ACTIVITY	824,153	794,353
.....	Joint Advertising, Market Research and Studies	.....	−29,800
.....	DEFENSE CONTRACT MANAGEMENT AGENCY	1,112,849	1,107,849
.....	Overstatement of NSPS to GS Conversion	.....	−5,000

O–1		Budget Request	Recommendation
.....	DEFENSE SECURITY COOPERATION AGENCY	683,853	539,369
.....	Global Train and Equip (1206)	.....	−139,507
.....	Stability Operations Fellowship Program—not authorized	.....	−4,977
.....	DEFENSE SECURITY SERVICE	518,743	518,743
.....	OFFICE OF ECONOMIC ADJUSTMENT	50,811	50,811
.....	OFFICE OF THE SECRETARY OF DEFENSE	2,245,300	2,232,986
.....	Battlefield Information Collection and Exploitation System	.....	−15,000
.....	Combatant Commander's Exercise Engagement and Training Transformation (CE2T2)	.....	−26,500
.....	Readiness and Environmental Protection Initiative	.....	+60,186
.....	Overstatement of Civilian Personnel Pay Requirements	.....	−24,500
.....	AT&L—Integrated Acquisition Environment Internal Realignment not Properly Accounted for in Budget Documentation	.....	−6,500
.....	WASHINGTON HEADQUARTERS SERVICES	604,130	594,330
.....	Overstatement of Civilian Personnel Pay Requirements	.....	−9,800
.....	SUBTOTAL, BUDGET ACTIVITY 4	11,997,672	11,886,286
.....	OTHER PROGRAMS	13,977,425	13,685,725
.....	Classified Adjustments	.....	−291,700
.....	IMPACT AID	.....	40,000
.....	IMPACT AID FOR CHILDREN WITH SEVERE DISABILITIES	.....	4,000
.....	TOTAL, OPERATION AND MAINTENANCE, DEFENSE-WIDE	30,583,896	30,210,810
	OPERATION AND MAINTENANCE, ARMY RESERVE		
111	MANEUVER UNITS	1,282	1,282
112	MODULAR SUPPORT BRIGADES	12,413	12,413
113	ECHELONS ABOVE BRIGADES	460,814	460,814
114	THEATER LEVEL ASSETS	168,020	168,020
115	LAND FORCES OPERATIONS SUPPORT	555,944	555,944
116	AVIATION ASSETS	70,378	70,378
121	FORCES READINESS OPERATIONS SUPPORT	391,326	381,326
.....	Decrease Requested Growth for Travel	.....	−10,000
122	LAND FORCES SYSTEM READINESS	108,093	108,093
123	DEPOT MAINTENANCE	136,854	136,854
131	BASE OPERATIONS SUPPORT	577,146	567,146
.....	Unjustified Increase in Motor Pool Operations Costs	.....	−10,000
132	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	234,486	234,486
.....	SUBTOTAL, BUDGET ACTIVITY 1	2,716,756	2,696,756
421	SERVICEWIDE TRANSPORTATION	12,717	12,717
431	ADMINISTRATION	74,685	74,685
432	SERVICEWIDE COMMUNICATIONS	3,797	3,797
433	PERSONNEL/FINANCIAL ADMINISTRATION	9,245	9,245
434	RECRUITING AND ADVERTISING	61,877	61,877
.....	SUBTOTAL, BUDGET ACTIVITY 4	162,321	162,321
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−18,650
.....	TOTAL, OPERATION AND MAINTENANCE, ARMY RESERVE	2,879,077	2,840,427
	OPERATION AND MAINTENANCE, NAVY RESERVE		
1A1A	MISSION AND OTHER FLIGHT OPERATIONS	599,649	599,649
1A3A	INTERMEDIATE MAINTENANCE	13,209	13,209
1A4A	AIR OPERATIONS AND SAFETY SUPPORT	2,668	2,668
1A5A	AIRCRAFT DEPOT MAINTENANCE	140,377	140,377
1A6A	AIRCRAFT DEPOT OPERATIONS SUPPORT	309	309
1B1B	MISSION AND OTHER SHIP OPERATIONS	65,757	62,757
.....	Mismatch of OPTEMPO and Steaming Day Performance Data	.....	−3,000
1B2B	SHIP OPERATIONAL SUPPORT AND TRAINING	587	587
1B4B	SHIP DEPOT MAINTENANCE	91,054	91,054
1C1C	COMBAT COMMUNICATIONS	15,882	15,882
1C6C	COMBAT SUPPORT FORCES	140,186	140,186
1D4D	WEAPONS MAINTENANCE	5,492	5,492
BSIT	ENTERPRISE INFORMATION TECHNOLOGY	56,046	56,046
BSMR	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	81,407	81,407
BSSR	BASE OPERATING SUPPORT	131,988	131,988
.....	SUBTOTAL, BUDGET ACTIVITY 1	1,344,611	1,341,611
4A1M	ADMINISTRATION	3,276	3,276
4A4M	MILITARY MANPOWER & PERSONNEL	13,698	13,698
4A6M	SERVICEWIDE COMMUNICATIONS	2,628	2,628
4B3N	ACQUISITION AND PROGRAM MANAGEMENT	3,551	3,551
.....	SUBTOTAL, BUDGET ACTIVITY 4	23,153	23,153
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−20,500
.....	TOTAL, OPERATION AND MAINTENANCE, NAVY RESERVE	1,367,764	1,344,264
	OPERATION AND MAINTENANCE, MARINE CORPS RESERVE		
1A1A	OPERATING FORCES	104,566	104,566
1A3A	DEPOT MAINTENANCE	16,392	16,392
BSM1	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	38,762	38,762
BSS1	BASE OPERATING SUPPORT	99,924	92,424
.....	Eliminate Growth in Administrative Costs	.....	−7,500
.....	SUBTOTAL, BUDGET ACTIVITY 1	259,644	252,144
BSM1	SERVICEWIDE TRANSPORTATION	835	835
BSS1	ADMINISTRATION	15,871	15,871
3A1C	RECRUITING AND ADVERTISING	8,884	8,884
.....	SUBTOTAL, BUDGET ACTIVITY 4	25,590	25,590
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−2,250
.....	TOTAL, OPERATION AND MAINTENANCE, MARINE CORPS RESERVE	285,234	275,484
	OPERATION AND MAINTENANCE, AIR FORCE RESERVE		
011A	PRIMARY COMBAT FORCES	2,275,407	2,276,450
.....	Air Force Requested Transfer to OM,ANG for C–130s	.....	−2,017
.....	Air Force Requested Transfer from OM,AF for C–130s	.....	+3,060
011G	MISSION SUPPORT OPERATIONS	111,742	111,742
011M	DEPOT MAINTENANCE	415,687	418,436
.....	Air Force Requested Transfer from OM,AF for C–130s	.....	+2,749
011R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	88,822	88,822
011Z	BASE OPERATING SUPPORT	277,985	277,985
.....	SUBTOTAL, BUDGET ACTIVITY 1	3,169,643	3,173,435
042A	ADMINISTRATION	80,526	80,526
042J	RECRUITING AND ADVERTISING	24,353	24,353
042K	MILITARY MANPOWER AND PERSONNEL MANAGEMENT	19,716	19,716
042L	OTHER PERSONNEL SUPPORT	6,071	6,071
042M	AUDIOVISUAL	726	726
.....	SUBTOTAL, BUDGET ACTIVITY 4	131,392	131,392
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−13,800
.....	TOTAL, OPERATION AND MAINTENANCE, AIR FORCE RESERVE	3,301,035	3,291,027
	OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD		
111	MANEUVER UNITS	807,193	807,193

O–1		Budget Request	Recommendation
112	MODULAR SUPPORT BRIGADES	166,474	166,474
113	ECHELONS ABOVE BRIGADE	607,567	607,567
114	THEATER LEVEL ASSETS	249,930	249,930
115	LAND FORCES OPERATIONS SUPPORT	35,657	35,657
116	AVIATION ASSETS	838,895	854,895
.....	Aircraft Maintenance Program Increase	.....	+16,000
121	FORCE READINESS OPERATIONS SUPPORT	570,119	544,119
.....	Distance Learning—Transfer from OCO OM,ARNG SAG 135	.....	+9,000
.....	Realignment of Funding for the Organizational Clothing and Equipment Enterprise Environment not Properly Accounted for in Budget Documentation	.....	−35,000
122	LAND FORCES SYSTEMS READINESS	121,980	121,980
123	LAND FORCES DEPOT MAINTENANCE	380,789	380,789
131	BASE OPERATIONS SUPPORT	933,514	853,514
.....	Unjustified Growth for Information Management Systems	.....	−80,000
132	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	621,843	661,843
.....	Army National Guard Program Increase	.....	+40,000
133	MANAGEMENT AND OPERATIONAL HEADQUARTERS	540,738	549,626
.....	Transfer from Defense Health Program for Psychological Health—State Directors for the National Guard	.....	+8,888
.....	SUBTOTAL, BUDGET ACTIVITY 1	5,874,699	5,833,587
421	SERVICEWIDE TRANSPORTATION	17,771	17,771
431	ADMINISTRATION	183,781	151,463
.....	Pay and Benefits Mismatch Between Op-5 and Op-32	.....	−32,318
432	SERVICEWIDE COMMUNICATIONS	48,188	48,188
433	MANPOWER MANAGEMENT	8,020	8,020
434	RECRUITING AND ADVERTISING	440,245	440,245
.....	SUBTOTAL, BUDGET ACTIVITY 4	698,005	665,687
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−36,650
.....	FIVE PERCENT COST SAVINGS FOR INVESTMENT IN ENERGY AND UTILITIES PROJECTS THROUGH THE AMERICAN RECOVERY AND REINVESTMENT ACT	.....	−8,000
.....	TOTAL, OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD	6,572,704	6,454,624
	OPERATION AND MAINTENANCE, AIR NATIONAL GUARD		
011F	AIRCRAFT OPERATIONS	3,519,452	3,525,525
.....	Air Force Requested Transfer from OM,AFR for C–130s	.....	+2,017
.....	Air Force Requested Transfer from OM,AF for C–130s	.....	+4,056
011G	MISSION SUPPORT OPERATIONS	762,937	762,937
011M	DEPOT MAINTENANCE	598,779	605,602
.....	Air Force Requested Transfer from OM,AF for C–130s	.....	+6,823
011R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	315,210	355,210
.....	Air National Guard Program Increase	.....	+40,000
011Z	BASE OPERATING SUPPORT	668,176	668,176
.....	SUBTOTAL, BUDGET ACTIVITY 1	5,864,554	5,917,450
042A	ADMINISTRATION	41,930	41,930
042J	RECRUITING AND ADVERTISING	34,659	34,659
.....	SUBTOTAL, BUDGET ACTIVITY 4	76,589	76,589
.....	UNDISTRIBUTED REDUCTION DUE TO HISTORIC UNDEREXECUTION	.....	−30,200
.....	TOTAL, OPERATION AND MAINTENANCE, AIR NATIONAL GUARD	5,941,143	5,963,839
	MISCELLANEOUS		
.....	OVERSEAS CONTINGENCY OPERATIONS TRANSFER ACCOUNT	5,000	0
.....	Unjustified Request	.....	−5,000
.....	U.S. COURT OF APPEALS FOR THE ARMED FORCES	14,068	14,068
.....	ENVIRONMENTAL RESTORATION, ARMY	444,581	464,581
.....	Program Increase	.....	+20,000
.....	ENVIRONMENTAL RESTORATION, NAVY	304,867	304,867
.....	ENVIRONMENTAL RESTORATION, AIR FORCE	502,653	502,653
.....	ENVIRONMENTAL RESTORATION, DEFENSE-WIDE	10,744	10,744
.....	ENVIRONMENTAL RESTORATION, FUDS	276,546	316,546
.....	Program Increase	.....	+40,000
.....	OVERSEAS HUMANITARIAN, DISASTER, AND CIVIC AID	108,032	108,032
.....	COOPERATIVE THREAT REDUCTION PROGRAM	522,512	522,512
.....	ACQUISITION WORKFORCE DEVELOPMENT FUND	217,561	217,561
.....	TOTAL, OPERATION AND MAINTENANCE	167,878,542	165,560,124

P–1		Budget Request	Recommendation
	AIRCRAFT PROCUREMENT, ARMY		
3	AERIAL COMMON SENSOR (ACS) (MIP)	88,483	0
.....	Program Adjustment for Schedule Slip	.....	−88,483
4	MQ–1 UAV	459,310	434,310
.....	Contract Savings	.....	−25,000
5	RQ–11 (RAVEN)	20,152	20,152
6	BCT UNMANNED AERIAL VEH (UAVS) INCR 1	44,206	26,568
.....	Program Reduction	.....	−17,638
8	HELICOPTER, LIGHT UTILITY (LUH)	305,272	305,272
9	AH–64 APACHE BLOCK III	332,681	332,681
10	AH–64 APACHE BLOCK III (AP–CY)	161,150	161,150
11	UH–60 BLACKHAWK (MYP)	1,250,566	1,250,566
12	UH–60 BLACKHAWK (MYP) (AP–CY)	100,532	100,532
13	CH–47 HELICOPTER	1,101,293	1,101,293
14	CH–47 HELICOPTER (AP–CY)	57,756	57,756
15	HELICOPTER NEW TRAINING	9,383	0
.....	Unjustified Request	.....	−9,383
17	MQ–1 PAYLOAD—UAS	100,413	80,413
.....	Tactical SIGINT Payload Schedule Adjustment	.....	−20,000
18	MQ–1 WEAPONIZATION—UAS	14,729	14,729
19	GUARDRAIL MODS (MIP)	29,899	25,799
.....	Airborne Precision Geolocation	.....	−4,100
20	MULTI SENSOR AIRBORNE RECON (MIP)	16,981	16,981
21	AH–64 MODS	393,769	393,769
23	CH–47 CARGO HELICOPTER MODS	66,207	66,207
25	UTILITY/CARGO AIRPLANE MODS	13,716	13,716
26	AIRCRAFT LONG RANGE MODS	814	814
27	UTILITY HELICOPTER MODS	63,085	80,085
.....	UH–60 A to L conversions	.....	+17,000
28	KIOWA WARRIOR	94,400	42,300
.....	Cockpit and Sensor Upgrade Program Funding Ahead of Need	.....	−52,100
29	AIRBORNE AVIONICS	219,425	207,425
.....	Contract Savings	.....	−12,000
30	GATM ROLLUP	100,862	100,862
31	RQ–7 UAV MODS	505,015	2,515
.....	Funding Ahead of Need for Installation	.....	−5,000
.....	Transfer to Title IX	.....	−497,500
34	SPARE PARTS (AIR)	7,328	9,956
.....	Transfer from OP,A line 195 at Army request	.....	+2,628
35	AIRCRAFT SURVIVABILITY EQUIPMENT	24,478	24,478
36	ASE INFRARED COUNTER MEASURES	174,222	163,722

P–1		Budget Request	Recommendation
.....	Excess to Requirement	.....	−10,500
37	AVIONICS SUPPORT EQUIPMENT	4,885	4,885
38	COMMON GROUND EQUIPMENT	76,129	76,129
39	AIRCREW INTEGRATED SYSTEMS	52,423	52,423
40	AIR TRAFFIC CONTROL	82,844	82,844
41	INDUSTRIAL FACILITIES	1,567	1,567
42	LAUNCHER, 2.75 ROCKET	2,892	2,892
.....	TOTAL, AIRCRAFT PROCUREMENT, ARMY	5,976,867	5,254,791
	MISSILE PROCUREMENT, ARMY		
1	PATRIOT SYSTEM SUMMARY	480,247	613,847
.....	PAC–3 Launchers and Missiles—Army UFR	.....	+133,600
2	SURFACE-LAUNCHED AMRAAM SYS SUMMARY	116,732	102,732
.....	Program Reduction	.....	−14,000
4	HELLFIRE SYS SUMMARY	31,881	31,881
5	JAVELIN (AAWS–M) SYSTEM SUMMARY	163,929	163,929
6	TOW 2 SYSTEM SUMMARY	30,326	24,326
.....	Program Adjustment for Growth in Management and Administration Costs	.....	−6,000
7	TOW 2 SYSTEM SUMMARY (AP–CY)	48,355	0
.....	Excess to Requirement	.....	−48,355
8	BCT NON LINE OF SIGHT LAUNCH SYSTEM	350,574	0
.....	Program Termination	.....	−350,574
9	GUIDED MLRS ROCKET (GMLRS)	291,041	266,041
.....	Program Reduction	.....	−25,000
10	MLRS REDUCED RANGE PRACTICE ROCKETS (RRPR)	15,886	15,886
11	HIGH MOBILITY ARTILLERY ROCKET SYSTEM	211,517	204,517
.....	Program Adjustment, Carriers Procured in fiscal year 2010	.....	−7,000
12	PATRIOT MODS	57,170	57,170
13	ITAS/TOW MODS	13,281	13,281
14	MLRS MODS	8,217	8,217
15	HIMARS MODIFICATIONS	39,371	39,371
16	HELLFIRE MODIFICATIONS	10	10
17	SPARES AND REPAIR PARTS	19,569	19,569
18	AIR DEFENSE TARGETS	3,613	3,613
19	ITEMS LESS THAN $5.0M (MISSILES)	1,208	1,208
20	PRODUCTION BASE SUPPORT	4,510	4,510
.....	TOTAL, MISSILE PROCUREMENT, ARMY	1,887,437	1,570,108
	PROCUREMENT OF WEAPONS AND TRACKED COMBAT VEHICLES, ARMY		
4	STRYKER VEHICLE	299,545	350,945
.....	Transfer from OP,A line 9	.....	+61,300
.....	Adjust Program Management Costs	.....	−9,900
9	STRYKER (MOD)	146,352	85,052
.....	Transfer to OP,A line 4	.....	−61,300
10	FIST VEHICLE (MOD)	31,083	31,083
11	BRADLEY PROGRAM (MOD)	215,133	204,133
.....	Program Reduction	.....	−11,000
12	HOWITZER, MED SP FT 155MM M109A6 (MOD)	105,277	5,277
.....	Program Adjustment for Schedule Slip	.....	−70,000
.....	Transfer to RDTE,A line 116 for Paladin PIM	.....	−30,000
13	IMPROVED RECOVERY VEHICLE (M88A2 HERCULES)	69,609	69,609
14	ARMORED BREACHER VEHICLE	77,930	77,930
15	M88 FOV MODS	9,157	9,157
16	JOINT ASSAULT BRIDGE	44,133	0
.....	Funded Ahead of Need	.....	−44,133
17	M1 ABRAMS TANK (MOD)	230,907	230,907
18	ABRAMS UPGRADE PROGRAM	183,000	183,000
19	PRODUCTION BASE SUPPORT (TCV–WTCV)	3,145	3,145
20	HOWITZER, LIGHT, TOWED, 105MM, M119	5,575	0
.....	Funds Excess to Requirement	.....	−5,575
21	M240 MEDIUM MACHINE GUN (7.62MM)	28,179	20,479
.....	Pricing Correction	.....	−7,700
22	MACHINE GUN, CAL .50 M2 ROLL	79,496	0
.....	Transfer to Title IX	.....	−79,496
23	LIGHTWEIGHT .50 CALIBER MACHINE GUN	18,941	18,941
25	MK–19 GRENADE MACHINE GUN (40MM)	4,465	4,465
26	MORTAR SYSTEMS	17,082	17,082
27	M107, CAL. 50, SNIPER RIFLE	235	235
28	XM320 GRENADE LAUNCHER MODULE (GLM)	16,282	16,282
29	M110 SEMI-AUTOMATIC SNIPER SYSTEM (SASS)	5,159	5,159
30	M4 CARBINE	20,180	20,180
31	SHOTGUN, MODULAR ACCESSORY SYSTEM (MASS)	7,153	7,153
33	HANDGUN	3,371	0
.....	Program Reduction	.....	−3,371
35	MK–19 GRENADE MACHINE GUN MODS	4,286	2,986
.....	Tactical Engagement Simulator Terminated	.....	−1,300
36	M4 CARBINE MODS	14,044	14,044
38	M249 SAW MACHINE GUN MODS	5,922	5,922
39	M240 MEDIUM MACHINE GUN MODS	15,852	15,852
40	M119 MODIFICATIONS	39,810	39,810
41	M16 RIFLE MODS	3,855	3,855
43	MODIFICATIONS LESS THAN $5.0M (WOCV–WTCV)	6,083	6,083
45	PRODUCTION BASE SUPPORT (WOCV–WTCV)	7,869	7,869
46	INDUSTRIAL PREPAREDNESS	409	409
47	SMALL ARMS EQUIPMENT (SOLDIER ENH PROG)	4,042	4,042
.....	TOTAL, PROCUREMENT OF W&TCV, ARMY	1,723,561	1,461,086
	PROCUREMENT OF AMMUNITION, ARMY		
1	CTG, 5.56MM, ALL TYPES	195,406	195,406
2	CTG, 7.62MM, ALL TYPES	79,622	79,622
3	CTG, HANDGUN, ALL TYPES	5,377	5,377
4	CTG, .50 CAL, ALL TYPES	160,712	160,712
6	CTG, 25MM, ALL TYPES	15,887	15,887
7	CTG, 30MM, ALL TYPES	95,222	95,222
8	CTG, 40MM, ALL TYPES	167,632	167,632
9	60MM MORTAR, ALL TYPES	14,340	14,340
10	81MM MORTAR, ALL TYPES	24,036	24,036
11	CTG, MORTAR, 120MM, ALL TYPES	96,335	67,735
.....	APMI Unit Cost Savings	.....	−28,600
12	CTG TANK 105MM: ALL TYPES	7,794	7,794
13	CTG, TANK, 120MM, ALL TYPES	114,798	114,798
14	CTG, ARTY, 75MM: ALL TYPES	7,329	7,329
15	CTG, ARTY, 105MM: ALL TYPES	76,658	76,658
16	CTG, ARTY, 155MM, ALL TYPES	45,752	45,752
17	PROJ 155MM EXTENDED RANGE XM982	62,114	30,700
.....	Exceeds Revised Requirement	.....	−31,414
18	MODULAR ARTILLERY CHARGE SYSTEM (MACS), ALL T	29,309	21,909
.....	Decrease to Reduce Backlog in MACS M232 Production	.....	−7,400
19	ARTILLERY FUZES, ALL TYPES	25,047	15,047
.....	Program Delay, Precision Guidance Kit	.....	−10,000

P–1		Budget Request	Recommendation
20	MINES, ALL TYPES	817	817
21	MINE, CLEARING CHARGE, ALL TYPES	8,000	8,000
22	ANTIPERSONNEL LANDMINE ALTERNATIVES	53,005	8,317
.....	FRD Slipped to fiscal year 2012	.....	−44,688
23	INTELLIGENT MUNITIONS SYSTEM (IMS), ALL TYPES	10,246	0
.....	Program Adjustment for Schedule Slip	.....	−10,246
24	SHOULDER LAUNCHED MUNITIONS, ALL TYPES	43,873	43,873
25	ROCKET, HYDRA 70, ALL TYPES	120,628	120,628
26	DEMOLITION MUNITIONS, ALL TYPES	19,824	19,824
27	GRENADES, ALL TYPES	41,803	41,803
28	SIGNALS, ALL TYPES	39,472	39,472
29	SIMULATORS, ALL TYPES	11,389	11,389
30	AMMO COMPONENTS, ALL TYPES	17,499	17,499
31	NON-LETHAL AMMUNITION, ALL TYPES	5,266	5,266
32	CAD/PAD ALL TYPES	5,322	5,322
33	ITEMS LESS THAN $5 MILLION	9,768	9,768
34	AMMUNITION PECULIAR EQUIPMENT	12,721	12,721
35	FIRST DESTINATION TRANSPORTATION (AMMO)	11,786	11,786
36	CLOSEOUT LIABILITIES	100	100
37	PROVISION OF INDUSTRIAL FACILITIES	144,368	144,368
38	LAYAWAY OF INDUSTRIAL FACILITIES	9,504	9,504
39	MAINTENANCE OF INACTIVE FACILITIES	9,025	9,025
40	CONVENTIONAL MUNITIONS DEMILITARIZATION, ALL	178,367	178,367
41	ARMS INITIATIVE	3,261	3,261
.....	TOTAL, PROCUREMENT OF AMMUNITION, ARMY	1,979,414	1,847,066
	OTHER PROCUREMENT, ARMY		
1	TACTICAL TRAILERS/DOLLY SETS	25,560	0
.....	Army Requested Program Adjustment	.....	−25,560
2	SEMITRAILERS, FLATBED:	38,713	0
.....	Funded Ahead of Need	.....	−38,713
5	FAMILY OF MEDIUM TACTICAL VEH (FMTV)	918,195	693,495
.....	Pricing Adjustment	.....	−224,700
6	FIRETRUCKS & ASSOCIATED FIREFIGHTING EQUIPMEN	21,317	21,317
7	FAMILY OF HEAVY TACTICAL VEHICLES (FHTV)	549,741	549,741
8	PALLETIZED LOAD SYS—EXTENDED SERVICE PGM	100,108	56,208
.....	Program Adjustment for Schedule Slip	.....	−43,900
9	ARMORED SECURITY VEHICLES (ASV)	114,478	114,478
10	MINE PROTECTION VEHICLE FAMILY	230,978	0
.....	Transfer to Title IX	.....	−230,978
12	TRUCK, TRACTOR, LINE HAUL, M915/M916	37,519	21,519
.....	Excess to Need	.....	−16,000
13	HVY EXPANDED MOBILE TACTICAL TRUCK EXT SERV	173,565	173,565
15	MODIFICATION OF IN SVC EQUIP	349,256	0
.....	Funded Ahead of Need	.....	−56,300
.....	Transfer to Title IX	.....	−292,956
17	TOWING DEVICE-FIFTH WHEEL	234	234
18	AMC CRITICAL ITEMS, OPA1	746	746
19	HEAVY ARMORED SEDAN	1,875	0
.....	Slow Execution	.....	−1,875
20	PASSENGER CARRYING VEHICLES	3,323	1,323
.....	Slow Execution	.....	−2,000
21	NONTACTICAL VEHICLES, OTHER	19,586	19,586
23	JOINT COMBAT IDENTIFICATION MARKING SYSTEM	11,411	11,411
24	WIN-T—GROUND FORCES TACTICAL NETWORK	421,798	391,798
.....	Program Adjustment, Increment 2 Slow Execution	.....	−20,000
.....	Program Adjustment, Area Common User System Modernization Slow Execution	.....	−10,000
25	JCSE EQUIPMENT (USREDCOM)	4,690	4,690
26	DEFENSE ENTERPRISE WIDEBAND SATCOM SYSTEMS	115,744	115,744
27	SHF TERM	14,198	14,198
28	SAT TERM, EMUT (SPACE)	662	662
29	NAVSTAR GLOBAL POSITIONING SYSTEM (SPACE)	32,193	32,193
30	SMART-T (SPACE)	10,285	10,285
31	SCAMP (SPACE)	930	930
32	GLOBAL BRDCST SVC–GBS	4,586	4,586
33	MOD OF IN-SVC EQUIP (TAC SAT)	1,506	1,506
34	MOD-IN-SERVICE PROFILER	938	938
35	ARMY GLOBAL CMD & CONTROL SYS (AGCCS)	20,387	20,387
36	ARMY DATA DISTRIBUTION SYSTEM (DATA RADIO)	700	700
37	JOINT TACTICAL RADIO SYSTEM	209,568	159,468
.....	Program Reduction in Small Form Factor-C Radio	.....	−5,000
.....	Funded Ahead of Need	.....	−45,100
38	RADIO TERMINAL SET, MIDS LVT(2)	5,796	5,796
39	SINCGARS FAMILY	14,504	12,604
.....	Unjustified Growth	.....	−1,900
40	AMC CRITICAL ITEMS—OPA2	3,860	3,860
41	MULTI-PURPOSE INFORMATION OPERATIONS SYSTEMS	9,501	9,501
42	COMMS-ELEC EQUIP FIELDING	5,965	5,965
43	SPIDER APLA REMOTE CONTROL UNIT	26,358	6,758
.....	Army Requested Program Adjustment	.....	−19,600
44	INTELLIGENT MUNITIONS SYSTEM REMOTE CONTROL UNIT	6,603	0
.....	Funded Ahead of Need	.....	−6,603
45	SOLDIER ENHANCEMENT PROGRAM COMM AND ELECTRONICS	5,125	5,125
46	COMBAT SURVIVOR EVADER LOCATOR (CSEL)	2,397	2,397
47	RADIO, IMPROVED HF (COTS) FAMILY	9,983	9,983
48	MEDICAL COMM FOR CBT CASUALTY CARE (MC4)	23,606	23,606
49	CI AUTOMATION ARCHITECTURE (MIP)	1,465	1,465
50	TSEC—ARMY KEY MGT SYS (AKMS)	25,959	25,959
51	INFORMATION SYSTEM SECURITY PROGRAM—ISSP	63,340	54,858
.....	Protected Information—Biometrics—Transfer to OP,A line 51x	.....	−8,482
51x	FAMILY OF BIOMETRICS	0	8,482
.....	Non-MIP Biometrics—Transfer from OP,A line 51	.....	+8,482
52	TERRESTRIAL TRANSMISSION	137	137
53	BASE SUPPORT COMMUNICATIONS	28,406	28,406
54	WW TECH CON IMP PROG (WWTCIP)	11,566	11,566
55	INFORMATION SYSTEMS	201,081	201,081
56	DEFENSE MESSAGE SYSTEM (DMS)	6,264	6,264
57	INSTALLATION INFO INFRASTRUCTURE MOD PROGRAM	178,242	178,242
58	PENTAGON INFORMATION MGT AND TELECOM	10,427	10,427
64	JTT/CIBS–M (MIP)	3,321	3,321
65	PROPHET GROUND (MIP)	71,517	71,517
68	DIGITAL TOPOGRAPHIC SPT SYS (DTSS) (MIP)	441	441
70	DCGS–A (MIP)	137,424	0
.....	Transfer to Title IX	.....	−137,424
71	JOINT TACTICAL GROUND STATION (JTAGS)	9,279	9,279
72	TROJAN (MIP)	28,345	28,345
73	MOD OF IN-SVC EQUIP (INTEL SPT) (MIP)	7,602	7,602
74	CI HUMINT AUTO REPRTING AND COLL(CHARCS)(MIP)	7,416	7,416
75	ITEMS LESS THAN $5.0M (MIP)	18,721	18,721
76	LIGHTWEIGHT COUNTER MORTAR RADAR	32,980	80,080
.....	Program Adjustment	.....	+47,100
77	WARLOCK	24,127	16,127
.....	Excess to Need	.....	−8,000

P–1		Budget Request	Recommendation
78	BCT UNATTENDED GROUND SENSOR	29,718	14,718
	Program Reduction		−15,000
79	COUNTERINTELLIGENCE/SECURITY COUNTERMEASURE	1,394	1,394
80	CI MODERNIZATION (MIP)	1,263	1,263
81	FORWARD AREA AIR DEFENSE—GROUND BASED SENSOR	91,467	91,467
82	SENTINEL MODS	30,976	30,976
83	SENSE THROUGH THE WALL (STTW)	24,939	24,939
84	NIGHT VISION DEVICES	70,528	70,528
85	LONG RANGE ADVANCED SCOUT SURVEILLANCE SYS	255,641	230,641
	Excess to Need		−25,000
86	NIGHT VISION, THERMAL WPN SIGHT	248,899	248,899
87	SMALL TACTICAL OPTICAL RIFLE MOUNTED MLRF	8,520	8,520
89	COUNTER-ROCKET, ARTILLERY & MORTAR	2,088	2,088
91	ARTILLERY ACCURACY EQUIP	6,042	0
	Funded Ahead of Need		−6,042
94	PROFILER	4,408	4,408
95	MOD OF IN-SVC EQUIP (FIREFINDER RADARS)	2,843	2,843
96	FORCE XXI BATTLE CMD BRIGADE & BELOW (FBCB2)	39,786	39,786
97	JOINT BATTLE COMMAND—PLATFORM (JBC–P)	147	147
98	LIGHTWEIGHT LASER DESIGNATOR/RANGEFINDER	65,970	65,970
99	COMPUTER BALLISTICS: LHMBC XM32	815	815
100	MORTAR FIRE CONTROL SYSTEM	16,475	16,475
101	COUNTERFIRE RADARS	275,867	0
	Transfer to Title IX		−275,867
102	ENHANCED SENSOR & MONITORING SYSTEM	2,062	2,062
103	TACTICAL OPERATIONS CENTERS	53,768	43,768
	Program Reduction		−10,000
104	FIRE SUPPORT C2 FAMILY	49,077	49,077
105	BATTLE COMMAND SUSTAINMENT SUPPORT SYSTEM	25,866	25,866
106	FAAD C2	42,511	32,511
	Program Reduction		−10,000
107	AIR & MSL DEFENSE PLANNING & CONTROL SYS	57,038	57,038
108	KNIGHT FAMILY	120,723	120,723
109	LIFE CYCLE SOFTWARE SUPPORT (LCSS)	1,710	1,710
110	AUTOMATIC IDENTIFICATION TECHNOLOGY	10,858	10,858
111	TC AIMS II	10,457	10,457
113	TACTICAL INTERNET MANAGER	1,594	1,594
114	NETWORK MANAGEMENT INITIALIZATION AND SERVICE	18,492	18,492
115	MANEUVER CONTROL SYSTEM (MCS)	96,162	96,162
116	SINGLE ARMY LOGISTICS ENTERPRISE (SALE)	99,819	99,819
117	RECONNAISSANCE AND SURVEYING INSTRUMENT SET	15,466	15,466
119	GENERAL FUND ENTERPRISE BUSINESS SYSTEM	97,858	97,858
120	ARMY TRAINING MODERNIZATION	36,158	36,158
121	AUTOMATED DATA PROCESSING EQUIPMENT	203,864	203,864
122	CSS COMMUNICATIONS	39,811	39,811
123	RESERVE COMPONENT AUTOMATION SYS (RCAS)	39,360	39,360
124	ITEMS LESS THAN $5.0M (A/V)	663	663
125	ITEMS LESS THAN $5M (SURVEYING EQUIPMENT)	6,467	6,467
128	PRODUCTION BASE SUPPORT (C–E)	542	542
129	BCT NETWORK	176,543	136,543
	Program Reduction		−40,000
130	PROTECTIVE SYSTEMS	2,489	2,489
131	FAMILY OF NON-LETHAL EQUIPMENT (FNLE)	9,305	9,305
132	CBRN SOLDIER PROTECTION	180,351	180,351
133	SMOKE & OBSCURANT FAMILY: SOF (NON AAO ITEM)	831	831
134	TACTICAL BRIDGING	62,817	62,817
135	TACTICAL BRIDGE, FLOAT-RIBBON	105,837	105,837
136	HANDHELD STANDOFF MINEFIELD DETECTION SYS	43,871	43,871
137	GROUND STANDOFF MINE DETECTION SYSTEM	35,002	35,002
138	EXPLOSIVE ORDNANCE DISPOSAL EQUIPMENT	54,093	54,093
139	ITEMS LESS THAN $5M, COUNTERMINE EQUIPMENT	3,655	3,655
141	HEATERS AND ECU'S	20,610	20,610
143	SOLDIER ENHANCEMENT	5,416	5,416
146	PERSONNEL RECOVERY SUPPORT SYSTEM (PRSS)	7,813	7,813
147	GROUND SOLDIER SYSTEM	110,524	96,024
	Program Reduction		−14,500
148	MOUNTED SOLDIER SYSTEM	38,872	38,872
149	FORCE PROVIDER	41,539	41,539
150	FIELD FEEDING EQUIPMENT	23,826	23,826
151	CARGO AERIAL DELIVERY AND PERSONNEL PARACHUTE SYSTEM	69,496	69,496
152	MOBILE INTEGRATED REMAINS COLLECTION SYSTEM	26,532	26,532
153	ITEMS LESS THAN $5M (ENGINEER SUPPORT)	31,420	31,420
154	DISTRIBUTION SYSTEMS, PETROLEUM AND WATER	175,069	164,369
	Program Adjustment		−10,700
155	WATER PURIFICATION SYSTEMS	3,597	0
	Funded Ahead of Need		−3,597
156	COMBAT SUPPORT MEDICAL	30,365	30,365
157	MOBILE MAINTENANCE EQUIPMENT SYSTEMS	159,285	139,985
	Unjustified Growth		−19,300
158	ITEMS LESS THAN $5.0M (MAINT EQ)	3,702	3,702
159	GRADER, ROAD MOTORIZED, HVY, 6X4 (CCE)	48,379	48,379
160	SKID STEER LOADER (SSL) FAMILY OF SYSTEM	17,498	17,498
161	SCRAPERS, EARTHMOVING	12,452	12,452
163	MISSION MODULES—ENGINEERING	62,111	54,111
	Unjustified Growth		−8,000
164	LOADERS	7,205	7,205
165	HYDRAULIC EXCAVATOR	8,458	8,458
166	TRACTOR, FULL TRACKED	64,032	64,032
167	PLANT, ASPHALT MIXING	10,783	10,783
168	HIGH MOBILITY ENGINEER EXCAVATOR (HMEE) FOS	64,959	60,959
	Unjustified Growth		−4,000
169	CONSTRUCTION EQUIPMENT ESP	11,063	11,063
170	ITEMS LESS THAN $5.0M (CONSTRUCTION EQUIP)	20,565	17,565
	Unjustified Growth		−3,000
171	JOINT HIGH SPEED VESSEL (JHSV)	202,764	202,764
172	HARBORMASTER COMMAND AND CONTROL CENTER(HCCC)	37,683	37,683
173	ITEMS LESS THAN $5.0M (FLOAT/RAIL)	8,052	8,052
174	GENERATORS AND ASSOCIATED EQUIPMENT	113,573	113,573
175	ROUGH TERRAIN CONTAINER HANDLER (RTCH)	29,460	29,460
176	FAMILY OF FORKLIFTS	12,936	12,936
177	ALL TERRAIN LIFTING ARMY SYSTEM	17,352	17,352
178	COMBAT TRAINING CENTERS SUPPORT	23,400	23,400
179	TRAINING DEVICES, NONSYSTEM	297,200	322,200
	Training Range Upgrades		+25,000
180	CLOSE COMBAT TACTICAL TRAINER	64,912	64,912
181	AVIATION COMBINED ARMS TACTICAL TRAINER	26,120	26,120
182	GAMING TECHNOLOGY IN SUPPORT OF ARMY TRAINING	4,964	4,964
183	CALIBRATION SETS EQUIPMENT	38,778	38,778
184	INTEGRATED FAMILY OF TEST EQUIPMENT (IFTE)	104,472	104,472
185	TEST EQUIPMENT MODERNIZATION (TEMOD)	19,166	18,166
	Funded Ahead of Need		−1,000
186	RAPID EQUIPPING SOLDIER SUPPORT EQUIPMENT	42,229	21,229
	Excess to Need		−21,000

P–1		Budget Request	Recommendation
187	PHYSICAL SECURITY SYSTEMS (OPA3)	56,195	56,195
188	BASE LEVEL COMMERCIAL EQUIPMENT	1,873	1,873
189	MODIFICATION OF IN-SVC EQUIPMENT (OPA–3)	103,046	82,046
.....	Program Adjustment	.....	−21,000
190	PRODUCTION BASE SUPPORT (OTH)	2,233	2,233
192	SPECIAL EQUIPMENT FOR USER TESTING	44,483	44,483
193	AMC CRITICAL ITEMS OPA3	13,104	13,104
194	MA8975	3,894	3,894
195	BCT UNMANNED GROUND VEHICLE	20,046	20,046
196	BCT TRAINING/LOGISTICS/MANAGEMENT	61,581	31,581
.....	Program Reduction	.....	−30,000
197	INITIAL SPARES—C&E	38,707	36,079
.....	Transfer to AP,A line 34 at Army request	.....	−2,628
.....	CLASSIFIED PROGRAMS	2,560	2,560
xx	PROCUREMENT INNOVATION	0	15,000
.....	Procurement Innovation	.....	+15,000
.....	TOTAL, OTHER PROCUREMENT, ARMY	9,765,808	8,145,665
	AIRCRAFT PROCUREMENT, NAVY		
1	EA–18G	1,028,801	971,241
.....	Multi-year Procurement Savings	.....	−49,836
.....	Support Funding Carryover	.....	−7,724
2	EA–18G (AP–CY)	55,081	55,081
3	F/A–18E/F (FIGHTER) HORNET (MYP)	1,784,894	1,684,086
.....	Multi-year Procurement Savings	.....	−92,746
.....	Support Funding Carryover	.....	−8,062
4	F/A–18E/F (FIGHTER) HORNET (MYP) (AP–CY)	2,295	2,295
5	JOINT STRIKE FIGHTER	1,667,093	1,653,093
.....	Support Funding Carryover	.....	−14,000
6	JOINT STRIKE FIGHTER ADVANCE PROCUREMENT (CY)	219,895	219,895
7	JSF STOVL	2,289,816	555,716
.....	Support Funding Carryover	.....	−42,500
.....	Delete Two Aircraft	.....	−391,600
.....	Transfer Eight Aircraft to CTOL Variant	.....	−1,300,000
8	JSF STOVL (AP–CY)	286,326	286,326
9	V–22 (MEDIUM LIFT)	2,121,036	2,121,036
10	V–22 (MEDIUM LIFT) (AP–CY)	81,875	81,875
11	UH–1Y/AH–1Z	738,709	738,709
12	UH–1Y/AH–1Z (AP–CY)	69,360	58,560
.....	Unjustified Cost Growth	.....	−10,800
13	MH–60S (MYP)	478,591	478,591
14	MH–60S (MYP) (AP–CY)	70,080	66,280
.....	Unexecutable EOQ	.....	−3,800
15	MH–60R	897,933	897,933
16	MH–60R (AP–CY)	162,006	129,006
.....	Unexecutable EOQ	.....	−33,000
17	P–8A POSEIDON	1,824,437	1,820,560
.....	Operational Flight Trainer Cost Growth	.....	−2,155
.....	Weapons Tactics Trainer Cost Growth	.....	−1,722
18	P–8A POSEIDON (ADVANCED PROCUREMENT)	166,153	147,653
.....	Funded Ahead of Need	.....	−18,500
19	E–2C (EARLY WARNING) HAWKEYE (MYP)	819,184	819,184
20	E–2C (EARLY WARNING) HAWKEYE (MYP) (AP–CY)	118,619	118,619
21	C–40A	.....	74,100
.....	Add One Aircraft	.....	+74,100
22	JPATS	266,065	26,274
.....	Contract Delay	.....	−234,849
.....	Support Funding Carryover	.....	−4,942
26	MQ–8 UAV	47,484	43,984
.....	Support Funding Carryover	.....	−3,500
27	STUASLO UAV	23,912	0
.....	Program Delay	.....	−23,912
29	EA–6 SERIES	14,891	0
.....	Unjustified Request in Avionics and Structural Improvements OSIP	.....	−8,900
.....	ICAP III OSIP Unjustified Request	.....	−5,991
30	AEA SYSTEMS	33,772	29,972
.....	Low Band Transmitter Modification Kit Pricing	.....	−1,400
.....	ECO growth	.....	−2,400
31	AV–8 SERIES	19,386	19,386
32	F–18 SERIES	492,821	443,806
.....	ECP 904 Modification Kit Cost Growth	.....	−2,310
.....	ECP 583R2 Installation Equipment Kit Cost Growth	.....	−3,780
.....	ATFLIR Installation Equipment Kit Cost Growth	.....	−11,745
.....	Mission Planning/Unique Planning Component Growth	.....	−2,400
.....	OSIP 002–07 Excess ECO Funding	.....	−9,000
.....	ECP6279 Radar Modification Kits Ahead of Need	.....	−7,880
.....	OSIP 001–10 Integrated Logistics Support Growth	.....	−2,500
.....	Unjustified Cost Growth	.....	−9,400
33	H–46 SERIES	17,685	17,685
34	AH–1W SERIES	11,011	11,011
35	H–53 SERIES	25,871	25,871
36	SH–60 SERIES	67,779	67,779
37	H–1 SERIES	3,060	3,060
38	EP–3 SERIES	90,323	90,323
39	P–3 SERIES	221,982	186,982
.....	Unjustified Cost Growth	.....	−35,000
40	E–2 SERIES	47,046	67,046
.....	Reliability Enhancements for E–2C	.....	+20,000
41	TRAINER A/C SERIES	23,999	23,999
42	C–2A	16,020	16,020
43	C–130 SERIES	17,839	17,839
44	FEWSG	21,928	16,696
.....	AN/ALQ–167 Modification Kit Cost Growth	.....	−5,232
45	CARGO/TRANSPORT A/C SERIES	16,092	16,092
46	E–6 SERIES	149,164	121,194
.....	Block 1 Upgrade Training Kit Cost Growth	.....	−5,040
.....	Block 1 Upgrade OSIP Support Funding Growth	.....	−3,000
.....	SLEP Installation Delay	.....	−2,630
.....	Funded Ahead of Need	.....	−17,300
47	EXECUTIVE HELICOPTERS SERIES	43,443	43,443
48	SPECIAL PROJECT AIRCRAFT	14,679	14,679
49	T–45 SERIES	61,515	46,215
.....	Engine Surge OSIP Installation Funding Ahead of Need	.....	−500
.....	Engine Surge OSIP Contract Delay	.....	−2,800
.....	Required Avionics Modernization Program Modification Kit Cost Growth	.....	−3,900
.....	Synthetic Aperture Radar OSIP Contract Delay	.....	−8,100
50	POWER PLANT CHANGES	19,948	19,948
51	JPATS SERIES	1,831	1,831
52	AVIATION LIFE SUPPORT MODS	8,084	2,984
.....	Transfer to RDTE,N line 93 for Common Mobile Aircrew Restraint System	.....	−5,100
53	COMMON ECM EQUIPMENT	21,947	21,947
54	COMMON AVIONICS CHANGES	101,120	79,820
.....	CNS/ATM Installation Equipment Contract Savings	.....	−12,400

P–1		Budget Request	Recommendation
.....	CNS/ATM Installation Funding Ahead of Need	.....	−1,400
.....	Tactical Moving Map Capability Modifications Funding Ahead of Need	.....	−7,500
56	ID SYSTEMS	20,397	20,397
57	RQ–7 SERIES	18,121	18,121
58	V–22 (TILT/ROTOR ACFT) OSPREY	21,985	21,985
59	SPARES AND REPAIR PARTS	1,244,673	1,234,084
.....	JPATS Contract Delay	.....	−10,589
60	COMMON GROUND EQUIPMENT	322,063	322,063
61	AIRCRAFT INDUSTRIAL FACILITIES	17,998	17,998
62	WAR CONSUMABLES	25,248	25,248
63	OTHER PRODUCTION CHARGES	7,579	7,579
64	SPECIAL SUPPORT EQUIPMENT	45,916	45,916
65	FIRST DESTINATION TRANSPORTATION	1,752	1,752
.....	TOTAL, AIRCRAFT PROCUREMENT, NAVY	18,508,613	16,170,868
	WEAPONS PROCUREMENT, NAVY		
1	TRIDENT II MODS	1,106,911	1,106,911
2	MISSILE INDUSTRIAL FACILITIES	3,446	3,446
3	TOMAHAWK	300,178	288,278
.....	Production Engineering Support Growth	.....	−1,900
.....	Support Funding Carryover	.....	−10,000
4	AMRAAM	155,553	145,553
.....	Support Funding Carryover	.....	−10,000
5	SIDEWINDER	52,293	52,293
6	JSOW	131,141	129,641
.....	Support Funding Carryover	.....	−1,500
7	STANDARD MISSILE	295,922	248,222
.....	Support Funding Carryover	.....	−5,700
.....	Smooth Production Ramp—SM 6	.....	−42,000
8	RAM	74,976	68,046
.....	Contract Savings	.....	−1,930
.....	Program Rebaselined—Milestone C Slip for Block II	.....	−5,000
9	HELLFIRE	43,495	41,995
.....	Support Funding Carryover	.....	−1,500
10	AERIAL TARGETS	43,988	42,888
.....	ECM/Emitter Equipment Cost Growth	.....	−1,100
11	OTHER MISSILE SUPPORT	3,981	3,981
12	ESSM	48,152	45,515
.....	Support Funding Carryover	.....	−2,637
13	HARM MODS	53,543	52,191
.....	Support Funding Carryover	.....	−1,352
14	STANDARD MISSILES MODS	61,896	61,896
15	WEAPONS INDUSTRIAL FACILITIES	3,281	3,281
16	FLEET SATELLITE COMM FOLLOW-ON	505,734	505,734
18	ORDNANCE SUPPORT EQUIPMENT	52,152	52,152
19	ASW TARGETS	10,123	5,197
.....	Contract Delay	.....	−4,926
20	MK–46 TORPEDO MODS	42,144	42,144
21	MK–48 TORPEDO ADCAP MODS	43,559	29,859
.....	Contract Delay—Funds for 15 kits and NRE	.....	−13,700
22	QUICKSTRIKE MINE	6,090	6,090
23	TORPEDO SUPPORT EQUIPMENT	43,766	43,766
24	ASW RANGE SUPPORT	9,557	9,557
25	FIRST DESTINATION TRANSPORTATION	3,494	3,494
26	SMALL ARMS AND WEAPONS	14,316	14,316
27	CIWS MODS	41,408	29,022
.....	Block 1B Systems Ahead of Need	.....	−12,386
28	COAST GUARD WEAPONS	20,657	13,259
.....	CIWS Ahead of Need	.....	−5,698
.....	MK160 Ahead of Need	.....	−1,700
29	GUN MOUNT MODS	43,991	40,791
.....	Installation Funding Ahead of Need	.....	−3,200
30	LCS MODULE WEAPONS	9,808	0
.....	NLOS Program Termination	.....	−9,808
31	CRUISER MODERNIZATION WEAPONS	52,426	50,626
.....	Support Funding Carryover	.....	−1,800
32	AIRBORNE MINE NEUTRALIZATION SYSTEMS	23,007	23,007
35	SPARES AND REPAIR PARTS	58,806	58,806
.....	TOTAL, WEAPONS PROCUREMENT, NAVY	3,359,794	3,221,957
	PROCUREMENT OF AMMO, NAVY & MARINE CORPS		
1	GENERAL PURPOSE BOMBS	80,028	77,928
.....	Direct Attack Moving Target Capability Program Cost Growth	.....	−2,100
3	AIRBORNE ROCKETS, ALL TYPES	38,721	23,171
.....	MK 66 Rocket Motor (Mod 4) Unit Cost Efficiencies	.....	−6,000
.....	2.75″ Launcher Unit Cost Efficiencies	.....	−9,550
4	MACHINE GUN AMMUNITION	21,003	21,003
5	PRACTICE BOMBS	33,666	31,666
.....	Support Funding Carryover	.....	−2,000
6	CARTRIDGES & CART ACTUATED DEVICES	53,667	52,167
.....	Program Execution Delays	.....	−1,500
7	AIR EXPENDABLE COUNTERMEASURES	59,626	59,626
8	JATOS	2,869	2,869
9	5 INCH/54 GUN AMMUNITION	34,492	33,492
.....	Product Improvement Growth	.....	−1,000
10	INTERMEDIATE CALIBER GUN AMMUNITION	37,234	37,234
11	OTHER SHIP GUN AMMUNITION	36,275	36,275
12	SMALL ARMS & LANDING PARTY AMMO	46,192	46,192
13	PYROTECHNIC AND DEMOLITION	11,310	10,079
.....	MK–62 Firing Device Contract Delay	.....	−1,231
14	AMMUNITION LESS THAN $5 MILLION	4,105	4,105
15	SMALL ARMS AMMUNITION	64,839	64,839
16	LINEAR CHARGES, ALL TYPES	15,329	15,329
17	40 MM, ALL TYPES	62,835	62,835
18	60MM, ALL TYPES	17,877	17,877
19	81MM, ALL TYPES	41,053	41,053
20	120MM, ALL TYPES	6,458	6,458
21	CTG 25MM, ALL TYPES	2,937	2,937
22	GRENADES, ALL TYPES	9,298	8,092
.....	Funded Ahead of Need for Scorpion	.....	−1,206
23	ROCKETS, ALL TYPES	13,995	13,995
24	ARTILLERY, ALL TYPES	70,423	67,546
.....	Decrease to Reduce Backlog in MACS M232 Production	.....	−2,877
25	DEMOLITION MUNITIONS, ALL TYPES	19,464	19,464
26	FUZE, ALL TYPES	18,032	18,032
27	NON LETHALS	3,009	3,009
28	AMMO MODERNIZATION	8,985	8,985
29	ITEMS LESS THAN $5 MILLION	4,269	4,269
.....	TOTAL, PROCUREMENT OF AMMO, NAVY & MARINE CORPS	817,991	790,527
	SHIPBUILDING & CONVERSION, NAVY		
1	CARRIER REPLACEMENT PROGRAM	1,731,256	1,721,969

P–1		Budget Request	Recommendation
.....	Consolidated Afloat Navy Enterprise System Increment 1	.....	−2,600
.....	Surface Electronic Warfare Improvement	.....	−4,900
.....	AN/UPX–29	.....	−1,787
2	CARRIER REPLACEMENT PROGRAM (AP–CY)	908,313	908,313
3	VIRGINIA CLASS SUBMARINE	3,441,452	3,430,343
.....	Sonar System Hardware Cost Growth	.....	−5,795
.....	Modular Mast Cost Growth	.....	−1,430
.....	Propulsor Cost Growth	.....	−3,884
4	VIRGINIA CLASS SUBMARINE (AP–CY)	1,691,236	1,691,236
5	CVN REFUELING OVERHAUL	1,255,799	1,248,999
.....	SSDS Program Management Excess	.....	−1,800
.....	SSDS Software Growth	.....	−2,000
.....	CEC Testing and Evaluation Excess	.....	−3,000
6	CVN REFUELING OVERHAULS (AP–CY)	408,037	408,037
9	DDG 1000	186,312	77,512
.....	Volume Search Radar	.....	−108,800
10	DDG–51	2,922,190	2,868,454
.....	MK–12 IFF Cost Growth	.....	−4,986
.....	CIWS Block 1B Cost Growth	.....	−2,256
.....	Exterior Communication System Cost Growth	.....	−6,294
.....	Main Reduction Gear Systems Engineering Growth	.....	−10,200
.....	Main Reduction Gear Contract Savings	.....	−30,000
11	DDG–51 (AP–CY)	47,984	47,984
12	LITTORAL COMBAT SHIP	1,230,984	1,168,984
.....	Cost Savings	.....	−62,000
13	LITTORAL COMBAT SHIP (AP–CY)	278,351	190,351
.....	Program Reduction	.....	−88,000
16	LHA REPLACEMENT (AP–CY)	949,897	942,837
.....	C4ISR Cost Growth	.....	−5,174
.....	Rolling Airframe Missile System Cost Growth	.....	−1,886
18	INTRATHEATER CONNECTOR	180,703	180,703
19	OCEANOGRAPHIC SHIPS	88,561	88,561
20	OUTFITTING	306,640	295,570
.....	JHSV–1 Outfitting Funding Phasing	.....	−3,426
.....	LPD–25 Outfitting Funding Phasing	.....	−2,500
.....	DDG–1000 Post-Delivery Phasing	.....	−1,757
.....	LPD–23 Post-Delivery Phasing	.....	−3,387
21	SERVICE CRAFT	13,770	13,770
22	LCAC SLEP	83,035	83,035
.....	TOTAL, SHIPBUILDING & CONVERSION, NAVY	15,724,520	15,366,658
	OTHER PROCUREMENT, NAVY		
1	LM–2500 GAS TURBINE	12,137	10,525
.....	Turbine Digital Fuel Controls Cost Growth	.....	−1,612
2	ALLISON 501K GAS TURBINE	14,923	14,923
4	OTHER NAVIGATION EQUIPMENT	23,167	23,167
5	SUB PERISCOPES & IMAGING EQUIP	85,619	73,559
.....	AN/BVS–1 Mast Tech Insertion Spares	.....	−1,849
.....	ISIS Tech Insertion Kits Ahead of Need	.....	−2,769
.....	Support Funding Carryover	.....	−1,700
.....	Contractor Repair Funding Growth	.....	−5,742
6	DDG MOD	296,691	289,691
.....	Multi-Mission BMD Capability Upgrade Kits Cost Growth	.....	−1,000
.....	Engineering Services Unjustified Cost Growth	.....	−6,000
7	FIREFIGHTING EQUIPMENT	11,974	9,304
.....	Self-Contained Breathing Apparatus Kits Excess to Requirements	.....	−1,570
.....	Support Funding Carryover	.....	−1,100
8	COMMAND AND CONTROL SWITCHBOARD	3,962	2,362
.....	Unjustified Request	.....	−1,600
9	POLLUTION CONTROL EQUIPMENT	25,614	25,614
10	SUBMARINE SUPPORT EQUIPMENT	7,730	7,730
11	VIRGINIA CLASS SUPPORT EQUIPMENT	132,039	130,039
.....	Spare Main Propulsion Shaft Ahead of Need	.....	−2,000
12	SUBMARINE BATTERIES	44,057	31,057
.....	Support Funding Carryover	.....	−1,500
.....	Excess Installation Funding	.....	−11,500
13	STRATEGIC PLATFORM SUPPORT EQUIP	22,811	22,811
14	DSSP EQUIPMENT	3,869	3,869
15	CG–MODERNIZATION	356,958	350,958
.....	Engineering Services Unjustified Cost Growth	.....	−6,000
16	LCAC	9,142	2,642
.....	Personnel Transport Module Contract Delay	.....	−6,500
18	UNDERWATER EOD PROGRAMS	15,908	15,908
19	ITEMS LESS THAN $5 MILLION	126,842	119,698
.....	LCS Waterjets Spares Ahead of Need	.....	−5,296
.....	Voltage Regulators Ahead of Need	.....	−1,848
20	CHEMICAL WARFARE DETECTORS	7,470	7,470
21	SUBMARINE LIFE SUPPORT SYSTEM	13,016	13,016
22	REACTOR POWER UNITS	438,503	438,503
23	REACTOR COMPONENTS	266,469	266,469
24	DIVING AND SALVAGE EQUIPMENT	10,227	10,227
25	STANDARD BOATS	27,725	49,225
.....	Range Support Craft	.....	+21,500
26	OTHER SHIPS TRAINING EQUIPMENT	16,094	16,094
27	OPERATING FORCES IPE	49,856	91,476
.....	Program Increase—Shipyard Capital Investment Program	.....	+41,620
28	NUCLEAR ALTERATIONS	116,829	116,829
29	LCS MODULES	82,951	41,369
.....	MCM Module Production Support Growth	.....	−6,000
.....	Consulting Services Growth	.....	−3,064
.....	Excess Remote Multi-Mission Vehicle Funding	.....	−7,600
.....	Mission Package Computer Environment Units Ahead of Need	.....	−2,268
.....	AN/AQS–20A—Ahead of Need	.....	−22,650
30	LSD MIDLIFE	106,612	102,612
.....	60-ton Deck Crane Contract Delay	.....	−1,000
.....	Boat Davit and Ballast Control System Installations Ahead of Need	.....	−3,000
31	RADAR SUPPORT	12,030	7,000
.....	Periscope Detection Radar Installation Funding Ahead of Need	.....	−3,500
.....	Excess Miscellaneous Funding	.....	−1,530
32	SPQ–9B RADAR	8,887	5,687
.....	Excess Antenna Funding	.....	−2,200
.....	Support Funding Carryover	.....	−1,000
33	AN/SQQ–89 SURF ASW COMBAT SYSTEM	87,219	85,219
.....	Support Funding Carryover	.....	−2,000
34	SSN ACOUSTICS	237,015	234,015
.....	Installation Costs Unjustified Growth	.....	−3,000
35	UNDERSEA WARFARE SUPPORT EQUIPMENT	29,641	27,241
.....	Common Data Link Modification Installation Funding Ahead of Need	.....	−2,400
36	SONAR SWITCHES AND TRANSDUCERS	14,056	13,056
.....	TR–317 Module Cost Growth	.....	−1,000
37	SUBMARINE ACOUSTIC WARFARE SYSTEM	20,739	18,539
.....	Next Generation Countermeasure Funding Ahead of Need	.....	−2,200
38	SSTD	2,206	0

P–1		Budget Request	Recommendation
.....	AN/SLQ–25D Ahead of Need	.....	−2,206
39	FIXED SURVEILLANCE SYSTEM	57,481	57,481
40	SURTASS	8,468	8,468
41	TACTICAL SUPPORT CENTER	18,586	18,586
42	AN/SLQ–32	49,677	23,257
.....	Support Funding Carryover	.....	−2,000
.....	Block 1B3 Incremental Funding	.....	−7,520
.....	Block 2 Incremental Funding	.....	−16,900
43	SHIPBOARD IW EXPLOIT	105,624	105,624
44	AUTOMATED IDENTIFICATION SYSTEM (AIS)	1,299	1,299
45	SUBMARINE SUPPORT EQUIPMENT PROG	71,558	70,108
.....	ESM Capability Insertion (CI–06) Kits Ahead of Need	.....	−1,450
46	COOPERATIVE ENGAGEMENT CAPABILITY	31,091	25,691
.....	Planar Antenna Funding Ahead of Need	.....	−5,400
47	TRUSTED INFORMATION SYSTEM (TIS)	338	338
48	NAVAL TACTICAL COMMAND SUPPORT SYSTEM (NTCSS)	33,358	33,358
49	ATDLS	2,273	2,273
50	NAVY COMMAND AND CONTROL SYSTEM (NCCS)	8,920	8,920
51	MINESWEEPING SYSTEM REPLACEMENT	81,441	60,710
.....	Remote Minehunting System (RMS)	.....	−5,027
.....	Support Funding Carryover	.....	−2,272
.....	Expendable Mine Neutralization System Funding Ahead of Need	.....	−12,432
.....	Assessment and Identification of Mine Susceptibility Growth	.....	−1,000
52	SHALLOW WATER MCM	9,236	1,261
.....	Cobra Block 1 Contract Delay	.....	−7,975
53	NAVSTAR GPS RECEIVERS (SPACE)	9,319	9,319
54	ARMED FORCES RADIO AND TV	3,328	3,328
55	STRATEGIC PLATFORM SUPPORT EQUIP	4,248	4,248
56	OTHER TRAINING EQUIPMENT	29,061	27,761
.....	COTS Obsolescence Growth	.....	−1,300
57	MATCALS	16,747	14,747
.....	ASPARCS Cost Growth	.....	−2,000
58	SHIPBOARD AIR TRAFFIC CONTROL	7,658	7,658
59	AUTOMATIC CARRIER LANDING SYSTEM	15,169	10,782
.....	AN/SPN–46 Radar Modification Kits Ahead of Need	.....	−4,387
60	NATIONAL AIR SPACE SYSTEM	17,531	17,531
61	AIR STATION SUPPORT EQUIPMENT	6,851	6,851
62	MICROWAVE LANDING SYSTEM	8,551	8,551
63	ID SYSTEMS	29,572	23,122
.....	AN/URN–25 TACAN Upgrade Kits Ahead of Need	.....	−2,450
.....	Support Funding Carryover	.....	−4,000
64	TAC A/C MISSION PLANNING SYS (TAMPS)	9,098	7,798
.....	Support Funding Carryover	.....	−1,300
65	DEPLOYABLE JOINT COMMAND AND CONT	8,542	8,542
66	TADIX–B	6,909	2,944
.....	AN/USC–151 Upgrade Kit Ahead of Need	.....	−3,965
67	GCCS–M EQUIPMENT TACTICAL/MOBILE	9,832	9,832
68	DCGS–N	16,634	16,634
69	CANES	34,398	10,264
.....	Funded Ahead of Need	.....	−24,134
70	RADIAC	6,104	5,197
.....	Air Particulate Detector Contract Delay	.....	−907
71	CANES–INTELL	10,432	3,140
.....	Ahead of Need	.....	−7,292
72	GPETE	5,861	5,861
73	INTEG COMBAT SYSTEM TEST FACILITY	4,445	4,445
74	EMI CONTROL INSTRUMENTATION	4,737	4,737
75	ITEMS LESS THAN $5 MILLION	51,048	29,307
.....	SPS–73 Tech Refresh/Obsolescence Growth	.....	−741
.....	SPS–48 ECO and Support Cost Growth	.....	−3,000
.....	SPS–48 Upgrade Kits Ahead of Need	.....	−13,600
.....	Installation Funding Ahead of Need	.....	−4,400
78	SHIP COMMUNICATIONS AUTOMATION	260,551	230,174
.....	Support Funding Carryover	.....	−1,500
.....	ISNS Upgrade Kits Installation Funding Ahead of Need	.....	−9,000
.....	CENTRIXS Installation Funding Ahead of Need	.....	−1,425
.....	SCI Network Installation Funding Ahead of Need	.....	−2,100
.....	ADNS Units Ahead of Need	.....	−16,352
79	MARITIME DOMAIN AWARENESS (MDA)	9,250	7,650
.....	CENTRIXS Modification Kit Installation Funding Ahead of Need	.....	−1,600
80	COMMUNICATIONS ITEMS UNDER $5M	39,846	31,169
.....	Battle Force Tactical Network Ahead of Need	.....	−8,677
82	SUBMARINE COMMUNICATION EQUIPMENT	59,013	55,737
.....	Common Submarine Radio Room Modification Kit Cost Growth	.....	−1,029
.....	CSSR Seawolf Ahead of Need	.....	−2,247
83	SATELLITE COMMUNICATIONS SYSTEMS	28,665	28,665
84	NAVY MULTIBAND TERMINAL (NMT)	161,021	161,021
85	JCS COMMUNICATIONS EQUIPMENT	2,256	2,256
86	ELECTRICAL POWER SYSTEMS	1,309	1,309
87	NAVAL SHORE COMMUNICATIONS	3,422	3,422
88	INFO SYSTEMS SECURITY PROGRAM (ISSP)	120,529	114,357
.....	SV–21 Unit Cost Growth	.....	−1,672
.....	Support Funding Carryover	.....	−2,000
.....	CND Increment 2 Ahead of Need	.....	−2,500
89	CRYPTOLOGIC COMMUNICATIONS EQUIP	18,322	18,322
90	COAST GUARD EQUIPMENT	20,189	20,189
92	SONOBUOYS—ALL TYPES	87,846	83,846
.....	Support Funding Carryover	.....	−4,000
93	WEAPONS RANGE SUPPORT EQUIPMENT	51,742	59,700
.....	East Coast USWTR Support Funding Carryover	.....	−3,500
.....	East Coast USWTR Ahead of Need	.....	−8,542
.....	Training Range Upgrades	.....	+20,000
94	EXPEDITIONARY AIRFIELDS	8,429	8,429
95	AIRCRAFT REARMING EQUIPMENT	11,134	11,134
96	AIRCRAFT LAUNCH & RECOVERY EQUIPMENT	37,063	28,881
.....	Advanced Recovery Control and Aviation Data Management and Control Systems Cost Growth	.....	−1,782
.....	Support Funding Carryover	.....	−1,400
.....	Production Engineering Unjustified Cost Growth	.....	−5,000
97	METEOROLOGICAL EQUIPMENT	25,581	25,581
98	OTHER PHOTOGRAPHIC EQUIPMENT	1,573	1,573
99	AVIATION LIFE SUPPORT	40,696	24,796
.....	JHMCS Ahead of Need	.....	−15,900
100	AIRBORNE MINE COUNTERMEASURES	35,855	35,855
101	LAMPS MK III SHIPBOARD EQUIPMENT	20,662	16,382
.....	Units Ahead of Need	.....	−4,280
102	PORTABLE ELECTRONIC MAINTENANCE AIDS	12,812	10,612
.....	Production Support Growth	.....	−2,200
103	OTHER AVIATION SUPPORT EQUIPMENT	12,018	12,018
104	NAVAL FIRES CONTROL SYSTEM	1,086	1,086
105	GUN FIRE CONTROL EQUIPMENT	8,076	8,076
106	NATO SEASPARROW	11,121	10,161
.....	ECP and Production Support Growth	.....	−960
107	RAM GMLS	11,805	6,800

P–1		Budget Request	Recommendation
.....	GMLS Ordalts Contract Delay	.....	−5,005
108	SHIP SELF DEFENSE SYSTEM	54,290	45,902
.....	Ship Self Defense System Modification Kits Ahead of Need	.....	−8,388
109	AEGIS SUPPORT EQUIPMENT	162,307	82,307
.....	COTS Tech Refresh Growth	.....	−3,000
.....	Ship Change Documentation Growth	.....	−4,500
.....	Navy Requested Transfer to RDTE,DW line 84 for Ballistic Missile Defense	.....	−72,500
110	TOMAHAWK SUPPORT EQUIPMENT	88,698	88,698
111	VERTICAL LAUNCH SYSTEMS	5,698	5,698
112	STRATEGIC MISSILE SYSTEMS EQUIP	184,034	159,034
.....	Fire Control Tech Refresh Growth	.....	−5,000
.....	Contract Delays	.....	−20,000
113	SSN COMBAT CONTROL SYSTEMS	88,004	77,390
.....	TI–04 Modification Contract Savings	.....	−2,214
.....	Excess TI–04 and Out Modification Installation Funding	.....	−8,400
114	SUBMARINE ASW SUPPORT EQUIPMENT	5,282	5,282
115	SURFACE ASW SUPPORT EQUIPMENT	8,323	8,323
116	ASW RANGE SUPPORT EQUIPMENT	7,121	7,121
117	EXPLOSIVE ORDNANCE DISPOSAL EQUIP	58,288	58,288
118	ITEMS LESS THAN $5 MILLION	3,546	2,480
.....	Industrial Facilities Contract Delay	.....	−1,066
119	ANTI-SHIP MISSILE DECOY SYSTEM	36,588	36,588
120	SURFACE TRAINING DEVICE MODS	7,337	7,337
121	SUBMARINE TRAINING DEVICE MODS	34,519	34,519
122	PASSENGER CARRYING VEHICLES	3,719	3,719
123	GENERAL PURPOSE TRUCKS	584	584
124	CONSTRUCTION & MAINTENANCE EQUIP	13,935	10,435
.....	Contract Delays	.....	−3,500
125	FIRE FIGHTING EQUIPMENT	12,853	12,853
126	TACTICAL VEHICLES	31,741	25,241
.....	FMTV Contract Savings	.....	−2,300
.....	Energy Initiative Unjustified Requirement	.....	−4,200
127	AMPHIBIOUS EQUIPMENT	3,132	3,132
128	POLLUTION CONTROL EQUIPMENT	5,154	5,154
129	ITEMS UNDER $5 MILLION	24,770	24,770
130	PHYSICAL SECURITY VEHICLES	1,128	1,128
131	MATERIALS HANDLING EQUIPMENT	15,504	14,030
.....	General Purpose Forklift Cost Growth	.....	−1,474
132	OTHER SUPPLY SUPPORT EQUIPMENT	6,655	6,655
133	FIRST DESTINATION TRANSPORTATION	6,315	6,315
134	SPECIAL PURPOSE SUPPLY SYSTEMS	66,549	66,549
135	TRAINING SUPPORT EQUIPMENT	11,429	11,429
137	COMMAND SUPPORT EQUIPMENT	47,306	37,840
.....	BUPERS Software Cost Growth	.....	−2,500
.....	SPAWAR Hardware Items Cost Growth	.....	−1,080
.....	ERP Kits Cost Growth	.....	−900
.....	JFCOM National Small Unit Center	.....	−3,075
.....	Future Pay and Personnel System Ahead of Need	.....	−1,911
138	EDUCATION SUPPORT EQUIPMENT	2,067	2,067
139	MEDICAL SUPPORT EQUIPMENT	7,679	5,679
.....	Fleet Allowance List Outfitting Cost Growth	.....	−2,000
141	NAVAL MIP SUPPORT EQUIPMENT	1,433	1,433
143	OPERATING FORCES SUPPORT EQUIPMENT	12,754	12,754
144	C4ISR EQUIPMENT	5,317	5,317
145	ENVIRONMENTAL SUPPORT EQUIPMENT	20,033	20,033
146	PHYSICAL SECURITY EQUIPMENT	154,805	141,475
.....	Shipboard Protection System Installation Costs Excess to Need	.....	−5,500
.....	Shipboard Protection System Support Cost Growth	.....	−6,000
.....	Biometrics Ahead of Need	.....	−1,830
XX	PROCUREMENT INNOVATION	.....	15,000
.....	Procurement Innovation	.....	+15,000
147	ENTERPRISE INFORMATION TECHNOLOGY	377,353	159,653
.....	Navy Requested Transfer to OM,N AGSAG BSIT for NGEN	.....	−217,700
149	SPARES AND REPAIR PARTS	215,906	215,906
.....	CLASSIFIED PROGRAMS	19,767	19,767
.....	TOTAL, OTHER PROCUREMENT, NAVY	6,450,208	5,804,963
	PROCUREMENT, MARINE CORPS		
1	AAV7A1 PIP	7,749	7,749
2	LAV PIP	41,277	41,277
4	EXPEDITIONARY FIRE SUPPORT SYSTEM	9,723	9,723
5	155MM LIGHTWEIGHT TOWED HOWITZER	10,356	10,356
6	HIGH MOBILITY ARTILLERY ROCKET SYSTEM	22,230	22,230
7	WEAPONS AND COMBAT VEHICLES UNDER $5 MILLION	26,091	26,091
9	MODIFICATION KITS	40,916	30,559
.....	Unexecutable Program—M1A1 Survivability Kits	.....	−10,357
10	WEAPONS ENHANCEMENT PROGRAM	13,115	13,115
11	GROUND BASED AIR DEFENSE	5,175	3,855
.....	Program Adjustment	.....	−1,320
13	FOLLOW ON TO SMAW	21,570	21,570
14	ANTI-ARMOR WEAPONS SYSTEM-HEAVY (AAWS–H)	20,315	20,315
15	MODIFICATION KITS	3,798	3,798
16	COMBAT OPERATIONS CENTER	10,776	10,776
17	REPAIR AND TEST EQUIPMENT	25,636	25,636
18	COMBAT SUPPORT SYSTEM	32,877	32,877
20	ITEMS UNDER $5 MILLION (COMM & ELEC)	3,405	3,405
21	AIR OPERATIONS C2 SYSTEMS	67,568	67,568
22	RADAR SYSTEMS	860	860
23	FIRE SUPPORT SYSTEM	3,906	3,906
24	INTELLIGENCE SUPPORT EQUIPMENT	92,377	92,377
25	RQ–11 UAV	32,490	16,490
.....	Program Delay—Tier 2 UAS	.....	−16,000
26	DCGS–MC	4,582	0
.....	DCGS–MC Program Delay	.....	−4,582
28	COMMON COMPUTER RESOURCES	258,947	218,947
.....	Unjustified Request—MC Intranet	.....	−40,000
29	COMMAND POST SYSTEMS	33,021	33,021
30	RADIO SYSTEMS	40,551	20,051
.....	Program Delay—JTRS handheld	.....	−20,500
31	COMM SWITCHING & CONTROL SYSTEMS	32,279	22,279
.....	Execution Delay—WNS–T	.....	−10,000
32	COMM & ELEC INFRASTRUCTURE SUPPORT	15,278	15,278
33	COMMERCIAL PASSENGER VEHICLES	1,157	1,157
34	COMMERCIAL CARGO VEHICLES	12,696	12,696
35	5/4T TRUCK HMMWV (MYP)	4,849	0
.....	Service Requested Reduction	.....	−4,849
36	MOTOR TRANSPORT MODIFICATIONS	5,253	5,253
37	MEDIUM TACTICAL VEHICLE REPLACEMENT	11,721	11,721
38	LOGISTICS VEHICLE SYSTEM REPLACEMENT	133,827	133,827
39	FAMILY OF TACTICAL TRAILERS	19,156	19,156
40	TRAILERS	8,075	8,075
41	ITEMS LESS THAN $5 MILLION	6,016	6,016
42	ENVIRONMENTAL CONTROL EQUIP ASSORT	5,110	5,110

P–1		Budget Request	Recommendation
43	BULK LIQUID EQUIPMENT	10,743	10,743
44	TACTICAL FUEL SYSTEMS	29,330	29,330
45	POWER EQUIPMENT ASSORTED	19,419	19,419
46	AMPHIBIOUS SUPPORT EQUIPMENT	11,718	11,718
47	EOD SYSTEMS	64,093	64,093
48	PHYSICAL SECURITY EQUIPMENT	16,419	16,419
49	GARRISON MOBILE ENGR EQUIP	10,976	10,976
50	MATERIAL HANDLING EQUIP	24,376	24,376
51	FIRST DESTINATION TRANSPORTATION	2,748	2,748
52	FIELD MEDICAL EQUIPMENT	6,722	6,722
53	TRAINING DEVICES	5,668	5,668
54	CONTAINER FAMILY	897	897
55	FAMILY OF CONSTRUCTION EQUIPMENT	18,261	18,261
57	BRIDGE BOATS	12,567	12,567
58	RAPID DEPLOYABLE KITCHEN	4,283	4,283
59	ITEMS LESS THAN $5 MILLION	7,572	7,572
60	SPARES AND REPAIR PARTS	13,524	13,524
.....	TOTAL, PROCUREMENT, MARINE CORPS	1,344,044	1,236,436
	AIRCRAFT PROCUREMENT, AIR FORCE		
1	F–35	3,729,242	4,064,442
.....	Air Force Requested Transfer from AP,AF line 43	.....	+29,700
.....	Production Support Carryover	.....	−60,000
.....	Delete Five Aircraft	.....	−608,500
.....	Transfer Eight Aircraft from STOVL Variant	.....	974,000
2	F–35 (AP–CY)	257,000	257,000
3	F–22A	158,039	158,039
5	C–17A (MYP)	14,283	48,683
.....	Air Force Requested Transfer from AP,AF line 88	.....	+114,400
.....	Slow Execution	.....	−80,000
6	C–130J	463,267	455,267
.....	Updated Pricing	.....	−8,000
7	C–130J ADVANCE PROCUREMENT (CY)	48,000	40,000
.....	Updated Pricing	.....	−8,000
8	HC–130J	349,300	307,800
.....	Updated Pricing	.....	−41,500
9	HC–130J (AP–CY)	10,000	10,000
10	MC–130J	467,465	415,465
.....	Updated Pricing	.....	−52,000
11	MC–130J (AP–CY)	60,000	60,000
14	JOINT CARGO AIRCRAFT	351,200	351,200
15	LIGHT MOBILITY AIRCRAFT	65,699	65,699
16	USAFA POWERED FLIGHT PROGRAM	4,099	4,099
18	COMM VERT LIFT SPT PLATFORM (UH–1N)	6,432	0
.....	Air Force Requested Transfer to RDTE,AF line 113	.....	−6,432
19	V–22 OSPREY	393,098	393,098
20	V–22 OSPREY (AP–CY)	13,621	13,621
24	CIVIL AIR PATROL A/C	2,424	2,424
25	HH–60M OPERATIONAL LOSS REPLACEMENT	104,447	104,447
27	STUASLO	3,253	3,253
28	TARGET DRONES	85,505	85,505
29	C–37A	52,000	52,000
30	RQ–4 UAV	649,629	503,029
.....	Air Force Requested Transfer to AP,AF line 31	.....	−25,600
.....	Unjustified Cost Increase, Sensors	.....	−11,000
.....	Unjustified Request, Spares	.....	−110,000
31	RQ–4 UAV (AP–CY)	90,200	72,300
.....	Air Force Requested Transfer from AP,AF line 30	.....	+25,600
.....	Air Force Adjustment	.....	−43,500
32	MC 130 IN BA 04	9,932	0
.....	Air Force Requested Transfer to AC–130 Recap Program	.....	−9,932
xx	AC–130 Recap	.....	9,932
.....	Air Force Requested Transfer from MC–130 program	.....	+9,932
34	MQ–9	863,595	318,131
.....	Spares	.....	−167,788
.....	Support Equipment—Forward Funding	.....	−42,000
.....	Production Support—Forward Funding	.....	−98,376
.....	Funded Ahead of Need	.....	−21,300
.....	Transfer 12 Aircraft to Title IX	.....	−216,000
35	B–2A	63,371	63,371
37	B–1B	200,090	200,090
38	B–52	69,074	21,074
.....	CONECT—Funded Ahead of Need	.....	−35,000
.....	Transfer to RDTE,AF line 117 for Internal Weapons Bay	.....	−13,000
39	A–10	165,361	187,361
.....	Program Increase—Helmet Mounting Cueing System	.....	+22,000
40	F–15	302,235	337,041
.....	C/D Flight Data Recorder—Early to Need	.....	−11,408
.....	E-model Flight Data Recorder—Early to Need	.....	−11,786
.....	Program Reduction	.....	−4,000
.....	AESA Radar for ANG F–15Cs	.....	+62,000
41	F–16	167,188	167,188
42	F–22A	492,199	437,739
.....	Unjustified Request	.....	−54,460
43	F–35 MODIFICATIONS	123,936	4,636
.....	Funded Ahead of Need	.....	−82,000
.....	Air Force Requested Transfer to AP,AF line 1	.....	−29,700
.....	Air Force Requested Transfer to RDTE,AF line 81 for Auto GCAS	.....	−7,600
44	C–5	740,369	37,252
.....	Block Upgrade—Ahead of Need	.....	−21,260
.....	Funded Ahead of Need	.....	−5,400
.....	Transfer C–5 RERP to New AP,AF Line	.....	−676,457
45	C–5 (AP–CY)	166,900	106,900
.....	Funded with fiscal year 2009 and 2010 funds	.....	−60,000
xx	C–5 RERP	.....	676,457
.....	Transfer C–5 RERP from AP,AF line 44	.....	+676,457
46	C–9C	10	0
.....	Program Terminated	.....	−10
47	C–17A	351,614	217,547
.....	OBIGGS Kits—Reduction of Four kits	.....	−13,800
.....	Extended Range Retrofits Kits—Reduction of One Kit	.....	−5,267
.....	Excess to Need	.....	−98,000
.....	Funded Ahead of Need	.....	−17,000
48	C–21	339	339
49	C–32A	12,113	12,113
50	C–37A	12,162	12,162
51	GLIDER MODS	120	120
52	T6	24,644	24,644
53	T–1	83	83
54	T–38	28,288	26,288
.....	Funded Ahead of Need	.....	−2,000
56	KC–10A (ATCA)	13,777	11,777
.....	Funded Ahead of Need	.....	−2,000

P–1		Budget Request	Recommendation
57	C–12	7,645	7,645
58	MC–12W	10,826	10,826
59	C–20 MODS	736	736
60	VC–25A MOD	13,175	13,175
61	C–40	10,697	10,697
62	C–130	257,339	296,939
.....	Air Force Requested Transfer from RDTE,AF line 220 for Avionics Upgrades to Special Mission Aircraft	.....	+65,000
.....	Excess to Need	.....	−25,400
63	C–130 MODS INTEL	3,963	3,963
64	C130J MODS	80,205	64,205
.....	Contract Slip—Crashworthy Seats	.....	−16,000
65	C–135	44,228	37,428
.....	Block 45 Contract Delay	.....	−8,400
.....	Low Cost Modifications	.....	+1,600
66	COMPASS CALL MODS	176,558	101,558
.....	EC–130 Program Full Funding Violation	.....	−75,000
67	DARP	105,540	105,540
68	E–3	195,163	195,163
69	E–4	37,526	37,526
70	E–8	188,504	6,397
.....	E–8 Reengining—Ahead of Need	.....	−120,407
.....	Engine Installs—Ahead of Need	.....	−5,000
.....	Funded Ahead of Need	.....	−56,700
71	H–1	2,457	2,457
72	H–60	11,630	41,930
.....	Funded Ahead of Need	.....	−1,700
.....	Simulators and Low Cost Modifications	.....	+32,000
73	RQ–4 UAV MODS	119,415	116,415
.....	Unjustified Cost Increase—ASIP sensors	.....	−3,000
74	HC/MC–130 MODIFICATIONS	1,944	1,944
75	OTHER AIRCRAFT	159,423	15,723
.....	Transfer FAB–T Funds to RDTE,AF line 180	.....	−119,700
.....	Delete FAB–T Funds—Early to Need	.....	−24,000
76	MQ–1 MODS	208,213	20,213
.....	Excess to Need	.....	−188,000
77	MQ–9 MODS	108,922	0
.....	Contract Delay—GCS	.....	−50,884
.....	Contract Delay—Reaper Retrofits	.....	−58,038
78	MQ–9 PAYLOAD—UAS	115,383	0
.....	Transfer to Title IX	.....	−115,383
79	CV–22 MODS	13,964	13,964
80	INITIAL SPARES/REPAIR PARTS	622,020	698,220
.....	Unjustified Request—Joint Stars Re-engining Spares	.....	−11,700
.....	Program Increase—F-22 Engine Spares	.....	+100,000
.....	Excess to Need	.....	−12,100
81	AIRCRAFT REPLACEMENT SUPPORT EQUIP	91,701	58,301
.....	Underexecution	.....	−20,000
.....	Funded Ahead of Need	.....	−13,400
82	B–1	6,791	6,791
83	B–2A	26,217	26,217
84	B–52	3,443	1,743
.....	Funded Ahead of Need	.....	−1,700
85	C–5	195	195
87	KC–10A (ATCA)	5,702	5,702
88	C–17A	153,347	20,947
.....	Air Force Requested Transfer to AP,AF line 5	.....	−114,400
.....	Unjustified Funding for Shutdown Activities	.....	−18,000
89	C–130	28,295	28,295
91	F–15 POST PRODUCTION SUPPORT	21,599	17,599
.....	Excess to Need	.....	−4,000
92	F–16 POST PRODUCTION SUPPORT	17,838	12,738
.....	Excess to Need	.....	−5,100
93	T–6	9,450	9,450
94	OTHER AIRCRAFT	53,953	53,953
96	INDUSTRIAL PREPAREDNESS	24,619	24,619
97	WAR CONSUMABLES	92,939	92,939
98	OTHER PRODUCTION CHARGES	1,079,742	912,372
.....	Funded Ahead of Need	.....	−6,732
.....	Transfer to Title IX	.....	−160,638
99	OTHER PRODUCTION CHARGES—MQ–1	37,500	37,500
104	DARP	19,117	19,117
.....	CLASSIFIED PROGRAMS	12,981	12,981
.....	TOTAL, AIRCRAFT PROCUREMENT, AIR FORCE	15,366,508	13,483,739
	MISSILE PROCUREMENT, AIR FORCE		
1	MISSILE REPLACEMENT EQ-BALLISTIC	60,647	60,647
2	JASSM	215,825	215,825
3	SIDEWINDER (AIM–9X)	64,523	64,523
4	AMRAAM	355,358	348,358
.....	Support Funding Carryover	.....	−7,000
5	PREDATOR HELLFIRE MISSILE	44,570	44,570
6	SMALL DIAMETER BOMB	134,884	119,884
.....	Accounting Error	.....	−15,000
7	INDUSTRIAL PREPAREDNESS/POLLUTION PREVENTION	833	833
8	ADVANCED CRUISE MISSILE	48	48
9	MM III MODIFICATIONS	123,378	133,178
.....	Air Force Requested Transfer from RDTE, AF line 175 for MEECN	.....	+9,800
10	AGM–65D MAVERICK	260	260
11	AGM–88A HARM	4,079	4,079
12	AIR LAUNCH CRUISE MISSILE	10,795	10,795
13	INITIAL SPARES/REPAIR PARTS	43,192	43,192
14	ADVANCED EHF	38,078	38,078
15	ADVANCED EHF (AP–CY)	208,520	208,520
16	WIDEBAND GAPFILLER SATELLITES	517,601	517,601
17	WIDEBAND GAPFILLER SATELLITES (AP–CY)	58,110	58,110
18	GPS III SPACE SEGMENT	122,490	122,490
19	SPACEBORNE EQUIP (COMSEC)	14,894	14,894
20	GLOBAL POSITIONING (SPACE)	64,609	64,609
23	DEF METEOROLOGICAL SAT PROG (SPACE)	88,719	88,719
24	EVOLVED EXPENDABLE LAUNCH VEH (SPACE)	1,153,976	1,153,976
26	SBIR HIGH (SPACE)	700,704	700,704
27	SBIR HIGH (SPACE) (AP–CY)	270,000	270,000
28	NATL POLAR-ORBITING OP ENV SATELLITE	26,308	0
.....	Program Termination—Early to Need	.....	−26,308
33	SPECIAL UPDATE PROGRAMS	247,584	247,584
.....	CLASSIFIED PROGRAMS	893,287	893,287
.....	TOTAL, MISSILE PROCUREMENT, AIR FORCE	5,463,272	5,424,764
	PROCUREMENT OF AMMUNITION, AIR FORCE		
1	ROCKETS	19,106	19,106
2	CARTRIDGES	141,049	141,049
3	PRACTICE BOMBS	34,094	23,442

P–1		Budget Request	Recommendation
.....	BDU–56A/B CDI Program Delay	.....	−10,652
4	GENERAL PURPOSE BOMBS	183,845	183,845
5	JOINT DIRECT ATTACK MUNITION	104,642	179,361
.....	Additional JDAM for War Reserve Stockpile	.....	+74,719
6	CAD/PAD	37,016	37,016
7	EXPLOSIVE ORDINANCE DISPOSAL (EOD)	3,383	3,383
8	SPARES AND REPAIR PARTS	1,000	1,000
9	MODIFICATIONS	1,112	1,112
10	ITEMS LESS THAN $5,000,000	5,015	5,015
11	FLARES	72,758	72,758
12	FUZES	57,337	57,337
13	SMALL ARMS	7,063	7,063
.....	TOTAL, PROCUREMENT OF AMMUNITION, AIR FORCE	667,420	731,487
	OTHER PROCUREMENT, AIR FORCE		
1	PASSENGER CARRYING VEHICLE	29,207	29,207
2	FAMILY MEDIUM TACTICAL VEHICLE	45,618	37,618
.....	Contract Savings	.....	−8,000
3	CAP VEHICLES	902	902
4	ITEMS LESS THAN $5M (CARGO)	31,773	31,773
5	SECURITY AND TACTICAL VEHICLES	52,867	48,867
.....	Up-Armored HMMWV Unjustified Cost Growth	.....	−4,000
6	ITEMS LESS THAN $5M	18,358	18,358
7	FIRE FIGHTING/CRASH RESCUE VEHICLES	26,924	26,924
9	ITEMS LESS THAT $5,000,000	14,501	14,501
10	RUNWAY SNOW REMOVAL & CLEANING EQUIP	25,404	25,404
11	ITEMS LESS THAN $5M	54,570	54,570
13	COMSEC EQUIPMENT	216,381	180,381
.....	Unjustified Growth	.....	−36,000
14	MODIFICATIONS (COMSEC)	1,582	0
.....	Undefined Requirement	.....	−1,582
15	INTELLIGENCE TRAINING EQUIPMENT	2,634	2,634
16	INTELLIGENCE COMM EQUIP	30,685	30,685
17	TRAFFIC CONTROL/LANDING	6,517	6,517
18	NATIONAL AIRSPACE SYSTEM	112,056	88,940
.....	Site Activation Ahead of Need	.....	−23,116
19	THEATER AIR CONTROL SYS IMPRO	55,326	55,326
20	WEATHER OBSERVATION FORECAST	21,018	18,045
.....	OS–21 Contract Delays	.....	−2,973
21	STRATEGIC COMMAND AND CONTROL	28,164	28,164
22	CHEYENNE MOUNTAIN COMPLEX	18,416	15,716
.....	Contract Delays	.....	−2,700
23	TAC SIGINT SPT	377	377
25	GENERAL INFORMATION TECHNOLOGY	74,285	74,285
26	AF GLOBAL COMMAND & CONTROL SYSTEM	9,210	9,210
27	MOBILITY COMMAND AND CONTROL	8,688	7,388
.....	Contract Delays	.....	−1,300
28	AIR FORCE PHYSICAL SECURITY SYSTEM	99,281	99,281
29	COMBAT TRAINING RANGES	29,637	49,637
.....	Training Range Enhancements	.....	+20,000
30	C3 COUNTERMEASURES	11,112	11,112
31	GCSS–AF FOS	53,349	31,335
.....	ECSS Ahead of Need	.....	−20,914
.....	CMOS Excess to Need	.....	−1,100
32	THEATER BATTLE MGT C2 SYS	20,525	20,525
33	AIR OPERATIONS CENTER (AOC)	58,284	38,534
.....	Technical Refresh Unjustified Growth	.....	−15,000
.....	Recurring Events Unjustified Growth	.....	−4,750
34	INFORMATION TRANSPORT SYSTEMS	101,993	56,993
.....	Unjustified Growth	.....	−45,000
35	BASE INFORMATION INFRASTRUCTURE	193,830	113,830
.....	Unjustified Growth	.....	−80,000
36	AFNET	151,643	91,643
.....	Unjustified Growth	.....	−60,000
37	VOICE SYSTEMS	25,399	15,399
.....	Unjustified Growth	.....	−10,000
38	USCENTCOM	36,020	36,020
39	SPACE BASED IR SENSOR PROG SPACE	24,804	24,804
40	NAVSTAR GPS SPACE	5,279	5,279
41	NUDET DETECTION SYS (NDS) SPACE	5,926	5,926
42	AF SATELLITE CONTROL NETWORK SPACE	60,383	60,383
43	SPACELIFT RANGE SYSTEM SPACE	91,004	91,004
44	MILSATCOM SPACE	221,545	190,717
.....	FAB–T Early to Need	.....	−7,538
.....	AFWET Modernization Enterprise Terminal Ahead of Need	.....	−23,290
45	SPACE MODS SPACE	18,384	18,384
46	COUNTERSPACE SYSTEM	18,801	18,801
47	TACTICAL C–E EQUIPMENT	268,140	242,995
.....	JTC Training and Rehearsal System Ahead of Need	.....	−25,145
48	COMBAT SURVIVOR EVADER LOCATER	34,925	34,925
49	RADIO EQUIPMENT	14,541	7,041
.....	Contract Delays	.....	−7,500
50	CCTV/AUDIOVISUAL EQUIPMENT	11,613	11,613
51	BASE COMM INFRASTRUCTURE	108,308	108,308
52	COMM ELECT MODS	74,356	68,538
.....	ILS Ahead of Need	.....	−2,300
.....	BMEWS Ahead of Need	.....	−2,000
.....	OS–21 Contract Delays	.....	−1,518
53	NIGHT VISION GOGGLES	20,873	14,573
.....	Night Vision Cueing and Display Contract Delays	.....	−6,300
54	ITEMS LESS THAN $5,000,000 (SAFETY)	14,292	14,292
55	MECHANIZED MATERIAL HANDLING	12,853	12,853
56	BASE PROCURED EQUIPMENT	4,788	4,788
57	CONTINGENCY OPERATIONS	28,390	27,190
.....	Rapid Airfield Damage Assessment System Ahead of Need	.....	−1,200
58	PRODUCTIVITY CAPITAL INVESTMENT	1,879	1,879
59	MOBILITY EQUIPMENT	38,558	38,558
60	ITEMS LESS THAN $5M (BASE SUPPORT)	4,989	4,989
62	DARP RC135	23,296	23,296
63	DISTRIBUTED GROUND SYSTEMS	271,015	264,015
.....	Program Reduction	.....	−7,000
65	SPECIAL UPDATE PROGRAM	489,680	439,680
.....	Classified Adjustment	.....	−50,000
66	DEFENSE SPACE RECONNAISSANCE PROGRAM	32,668	32,668
XX	PROCUREMENT INNOVATION	.....	15,000
.....	Procurement Innovation	.....	+15,000
70	SPARES AND REPAIR PARTS	19,046	19,046
.....	CLASSIFIED PROGRAMS	14,258,508	14,396,445
.....	Classified Adjustment	.....	+137,937
.....	TOTAL, OTHER PROCUREMENT, AIR FORCE	17,845,380	17,568,091
	PROCUREMENT, DEFENSE-WIDE		
1	MAJOR EQUIPMENT, BTA	4,000	4,000

P–1		Budget Request	Recommendation
2	MAJOR EQUIPMENT, DCCA, ITEMS LESS THAN $5M	1,477	1,477
3	MAJOR EQUIPMENT, DCMA	2,052	2,052
4	MAJOR EQUIPMENT, DHRA, PERSONNEL ADMINISTRATION	32,263	32,263
17	INFORMATION SYSTEMS SECURITY	14,625	14,625
18	GLOBAL COMMAND AND CONTROL SYS	5,275	5,275
19	GLOBAL COMBAT SUPPORT SYSTEM	2,803	2,803
20	TELEPORT PROGRAM	78,227	78,227
21	ITEMS LESS THAN $5M	153,288	153,288
22	NET CENTRIC ENTERPRISE SERVICES (NCES)	4,391	4,391
23	DEFENSE INFORMATION SYSTEMS NETWORK	86,206	86,206
24	PUBLIC KEY INFRASTRUCTURE	1,710	1,710
27	CYBER SECURITY INITIATIVE	22,493	22,493
28	MAJOR EQUIPMENT, DLA	4,846	4,846
29	MAJOR EQUIPMENT, DMACT, A—WEAPON SYSTEM COST MAJOR EQUIPMENT, DODEA	10,478	10,478
30	AUTOMATION/EDUCATIONAL SUPPORT & LOGISTICS	1,451	1,451
31	VEHICLES	50	50
32	OTHER MAJOR EQUIPMENT	12,007	12,007
34	TERMINAL HIGH ALTITUDE AREA DEFENSE FIELDING	858,870	586,870
.....	Production Delay Due to Investigation of Failed Safety Component	.....	−272,000
35	AEGIS FIELDING	94,080	94,080
35A	ISRAELI COOPERATIVE PROGRAMS	0	205,000
.....	Iron Dome Program	.....	+205,000
45	INFORMATION SYSTEMS SECURITY PROGRAM (ISSP)	2,546	2,546
50	MAJOR EQUIPMENT, OSD	124,050	124,050
51	MAJOR EQUIPMENT, INTELLIGENCE	20,138	20,138
53	MAJOR EQUIPMENT, TJS	11,526	11,526
54	MAJOR EQUIPMENT, WHS	27,179	27,179
55	SOF ROTARY WING UPGRADES AND SUSTAINMENT	79,840	79,840
55A	MH–47G	0	100,449
.....	SOCOM Requested Transfer from P,DW line 56	.....	+100,449
56	MH–47 SERVICE LIFE EXTENSION PROGRAM	107,934	7,485
.....	SOCOM Requested Transfer to P,DW line 55A	.....	−100,449
57	MH–60 SOF MODERNIZATION PROGRAM	179,375	137,875
.....	SOCOM Requested Transfer to RDTE,DW line 268	.....	−25,100
.....	Quantity Reduction Due to Program Delay	.....	−16,400
58	NON-STANDARD AVIATION	179,949	58,681
.....	Medium NSAV—Transfer to Title IX	.....	−121,268
60	SOF TANKER RECAPITALIZATION	19,996	4,996
.....	Contract Delays	.....	−15,000
61	SOF U–28	404	404
62	RQ–11 UAV	2,090	2,090
63	CV–22 SOF MODIFICATION	124,035	124,035
64	MQ–1 UAV	1,948	1,948
65	MQ–9 UAV	1,965	1,965
66	STUASLO	12,148	12,148
67	C–130 MODIFICATIONS	22,500	9,261
.....	Low Cost Modifications—Execution	.....	−7,039
.....	Aircrew Situational Awareness System	.....	−6,200
68	AIRCRAFT SUPPORT	489	489
69X	PROCUREMENT INNOVATION	0	15,000
.....	Procurement Innovation	.....	+15,000
70	MK VIII MOD 1—SEAL DELIVERY VEH	823	823
71	SOF ORDNANCE REPLENISHMENT	79,608	79,608
72	SOF ORDNANCE ACQUISITION	24,215	24,215
73	COMM EQUIPMENT & ELECTRONICS	58,390	44,390
.....	SOF Deployable Node Delays Due to Protests	.....	−14,000
74	SOF INTELLIGENCE SYSTEMS	75,892	81,092
.....	Program Increase—Unfunded Requirement	.....	+5,200
75	SMALL ARMS & WEAPONS	30,094	30,094
76	DCGS–SOF	5,225	5,225
77	MARITIME EQUIPMENT MODS	206	206
79	SOF COMBATANT CRAFT SYSTEMS	11,706	8,306
.....	Unvalidated Requirement—Large SFA Craft	.....	−3,400
80	SPARES AND REPAIR PARTS	977	977
81	TACTICAL VEHICLES	30,965	33,365
.....	Program Increase—AFSOC Unfunded Requirement	.....	+2,400
82	MISSION TRAINING AND PREPARATIONS SYSTEMS	28,354	18,354
.....	MH–60M Simulator Modernization Program	.....	−10,000
83	COMBAT MISSION REQUIREMENTS	20,000	20,000
84	MILCON COLLATERAL EQUIPMENT	102,556	102,556
88	SOF AUTOMATION SYSTEMS	52,353	52,353
89	SOF GLOBAL VIDEO SURVEILLANCE ACTIVITIES	9,714	9,714
90	SOF OPERATIONAL ENHANCEMENTS INTELLIGENCE	30,900	30,900
91	SOF SOLDIER PROTECTION AND SURVIVAL SYSTEMS	221	5,661
.....	Program Increase—Unfunded Requirement	.....	+5,440
92	SOF VISUAL AUGMENTATION, LASERS AND SENSOR SYSTEM	18,626	18,626
93	SOF TACTICAL RADIO SYSTEMS	35,234	37,554
.....	Program Increase—Unfunded Requirement	.....	+2,320
94	SOF MARITIME EQUIPMENT	804	804
96	MISCELLANEOUS EQUIPMENT	7,774	7,774
97	SOF OPERATIONAL ENHANCEMENTS	269,182	263,182
.....	Program Increase—HSAC Unfunded Requirement	.....	+4,000
.....	Program Adjustment	.....	−10,000
98	PSYOP EQUIPMENT	25,266	25,266
99	INSTALLATION FORCE PROTECTION	90,635	90,635
100	INDIVIDUAL PROTECTION	74,686	74,686
101	DECONTAMINATION	21,570	21,570
102	JOINT BIOLOGICAL DEFENSE PROGRAM	19,389	10,389
.....	Reduction for Anthrax Vaccine Purchased by HHS	.....	−9,000
103	COLLECTIVE PROTECTION	27,542	27,542
104	CONTAMINATION AVOIDANCE	136,114	136,114
.....	CLASSIFIED PROGRAMS	682,643	681,643
.....	Classified Adjustment	.....	−1,000
.....	TOTAL, PROCUREMENT, DEFENSE-WIDE	4,280,368	4,009,321
	DEFENSE PRODUCTION ACT		
.....	GALLIUM NITRIDE X-BAND MONOLITHIC MICROWAVE INTEGRATED CIRCUITS	2,000	2,000
.....	GALLIUM NITRIDE RADAR AND ELECTRONIC WARFARE MONOLITHIC MICROWAVE INTEGRATED CIRCUITS	8,579	8,579
.....	GALLIUM NITRIDE ADVANCED ELECTRONIC WARFARE MONOLITHIC MICROWAVE INTEGRATED CIRCUITS	2,000	2,000
.....	BERYLLIUM SUPPLY INDUSTRIAL BASE	6,897	6,897
.....	SPACE	770	770
.....	NATIONAL SECURITY SPACE INDUSTRIAL AND SUPPLY BASE RISK MITIGATION PROGRAM	8,500	10,900
.....	Program Increase	.....	+2,400
.....	ALTERNATIVE ENERGY FROM ORGANIC SOURCES	.....	3,200
.....	TOTAL, DEFENSE PRODUCTION ACT	28,746	34,346
.....	TOTAL, PROCUREMENT	111,189,951	102,121,873

R–1		Budget Request	Recommendation
	RESEARCH, DEVELOPMENT, TEST AND EVALUATION, ARMY		
1	IN-HOUSE LABORATORY INDEPENDENT RESEARCH	21,780	21,780
2	DEFENSE RESEARCH SCIENCES	195,845	195,845
3	UNIVERSITY RESEARCH INITIATIVES	91,161	87,561
.....	V72—Transfer to D55	.....	−3,300
.....	D55—Transfer from V72	.....	+3,300
.....	V72—Non-Department of Defense funding	.....	−3,600
4	UNIVERSITY AND INDUSTRY RESEARCH CENTERS	98,087	98,087
5	MATERIALS TECHNOLOGY	29,882	29,882
6	SENSORS AND ELECTRONIC SURVIVABILITY	48,929	48,929
7	TRACTOR HIP	14,624	14,624
8	AVIATION TECHNOLOGY	43,476	43,476
9	ELECTRONIC WARFARE TECHNOLOGY	17,330	17,330
10	MISSILE TECHNOLOGY	49,525	49,525
11	ADVANCED WEAPONS TECHNOLOGY	18,190	18,190
12	ADVANCED CONCEPTS AND SIMULATION	20,582	20,582
13	COMBAT VEHICLE AND AUTOMOTIVE TECHNOLOGY	64,740	64,740
14	BALLISTICS TECHNOLOGY	60,342	60,342
15	CHEMICAL, SMOKE AND EQUIPMENT DEFEATING TECHNOLOGY	5,324	10,924
.....	Emerging Chemical Agent Threat	.....	+5,600
16	JOINT SERVICE SMALL ARMS PROGRAM	7,893	7,893
17	WEAPONS AND MUNITIONS TECHNOLOGY	42,645	42,645
18	ELECTRONICS AND ELECTRONIC DEVICES	60,859	60,859
19	NIGHT VISION TECHNOLOGY	40,228	40,228
20	COUNTERMINE SYSTEMS	19,118	19,118
21	HUMAN FACTORS ENGINEERING TECHNOLOGY	21,042	21,042
22	ENVIRONMENTAL QUALITY TECHNOLOGY	18,364	22,364
.....	Research, Development and Engineering Command	.....	+4,000
23	COMMAND, CONTROL, COMMUNICATIONS TECHNOLOGY	25,573	25,573
24	COMPUTER AND SOFTWARE TECHNOLOGY	6,768	6,768
25	MILITARY ENGINEERING TECHNOLOGY	79,189	75,184
.....	Joint Integrated Base Defense Program Office transfer to line 60 at request of the Army	.....	−4,005
26	MANPOWER/PERSONNEL/TRAINING TECHNOLOGY	22,198	22,198
27	WARFIGHTER TECHNOLOGY	27,746	27,746
28	MEDICAL TECHNOLOGY	96,797	96,797
29	WARFIGHTER ADVANCED TECHNOLOGY	37,364	37,364
30	MEDICAL ADVANCED TECHNOLOGY	71,510	115,510
.....	Peer-Reviewed Neurotoxin Exposure Treatment Parkinsons Research Program	.....	+20,000
.....	Neurofibromatosis Research	.....	+16,000
.....	Military Burn Trauma Research Program	.....	+8,000
31	AVIATION ADVANCED TECHNOLOGY	57,454	57,454
32	WEAPONS AND MUNITIONS ADVANCED TECHNOLOGY	64,438	64,438
33	COMBAT VEHICLE AND AUTOMOTIVE ADV TECHNOLOGY	89,499	125,819
.....	Alternative Energy	.....	+36,320
34	COMMAND, CONTROL, COMMUNICATIONS ADV TECH	8,102	8,102
35	MANPOWER, PERSONNEL AND TRAINING ADV TECH	7,921	7,921
36	ELECTRONIC WARFARE ADVANCED TECHNOLOGY	50,359	50,359
37	TRACTOR HIKE	8,015	8,015
38	NEXT GENERATION TRAINING & SIMULATION SYSTEMS	15,334	15,334
39	TRACTOR ROSE	12,309	12,309
41	MILITARY HIV RESEARCH	6,688	26,688
.....	HIV Research	.....	+20,000
42	COMBATING TERRORISM, TECHNOLOGY DEVELOPMENT	10,550	10,550
43	ELECTRONIC WARFARE TECHNOLOGY	18,350	18,350
44	MISSILE AND ROCKET ADVANCED TECHNOLOGY	84,553	79,053
.....	P 704 excessive growth without strategy	.....	−5,500
45	TRACTOR CAGE	9,986	9,986
46	LANDMINE WARFARE AND BARRIER ADVANCED TECH	26,953	26,953
47	JOINT SERVICE SMALL ARMS PROGRAM	9,151	9,151
48	NIGHT VISION ADVANCED TECHNOLOGY	39,912	39,912
49	ENVIRONMENTAL QUALITY TECHNOLOGY DEMO	15,878	15,878
50	MILITARY ENGINEERING ADVANCED TECHNOLOGY	27,393	24,393
.....	Program reduction	.....	−3,000
51	ADVANCED TACTICAL COMPUTER SCIENCE AND SENSOR TECHNOLOGY	24,873	24,873
53	ARMY MISSILE DEFENSE SYSTEMS INTEGRATION	11,455	11,455
54	ARMY MISSILE DEFENSE SYSTEMS INTEGRATION (SPACE)	27,551	27,551
56	LANDMINE WARFARE AND BARRIER—ADV DEV	15,596	15,596
57	SMOKE, OBSCURANT AND TARGET DEFEATING SYS-ADV DEV	2,425	2,425
58	TANK AND MEDIUM CALIBER AMMUNITION	42,183	37,183
.....	AKE 120mm cartridge EMD Phase II contract award delay	.....	−5,000
59	ADVANCED TANK ARMAMENT SYSTEM (ATAS)	136,302	207,702
.....	S–MOD milestone B delay	.....	−57,000
.....	Stryker DVH	.....	+128,400
60	SOLDIER SUPPORT AND SURVIVABILITY	18,556	8,239
.....	Joint Integrated Base Defense Program Office—Transfer from line 25 at request of the Army	.....	+4,005
.....	REF funded in Title IX	.....	−14,322
61	TACTICAL ELECTRONIC SURVEILLANCE SYSTEM—AD	17,962	12,162
.....	Unsustained growth	.....	−5,800
62	NIGHT VISION SYSTEMS ADVANCED DEVELOPMENT	0	5,159
.....	CSP—Transfer from line 177 at request of the Army	.....	+5,159
63	ENVIRONMENTAL QUALITY TECHNOLOGY	4,695	4,695
64	WARFIGHTER INFORMATION NETWORK-TACTICAL	190,903	190,903
65	NATO RESEARCH AND DEVELOPMENT	5,060	5,060
66	AVIATION—ADV DEV	8,355	8,355
67	LOGISTICS AND ENGINEER EQUIPMENT—ADV DEV	80,490	65,315
.....	JLTV EMD contract award delay	.....	−15,175
68	COMBAT SERVICE SUPPORT CONTROL SYSTEM EVALUATION	14,290	14,290
69	MEDICAL SYSTEMS—ADV DEV	28,132	28,132
70	SOLDIER SYSTEMS—ADVANCED DEVELOPMENT	48,323	48,323
71	INTEGRATED BROADCAST SERVICE	970	970
72	ENDURANCE UAVS	93,000	93,000
73	AIRCRAFT AVIONICS	89,210	74,210
.....	SOSCOE Apache Block III integration change in requirements	.....	−15,000
74	ARMED, DEPLOYABLE OH–58D	72,550	72,550
75	ELECTRONIC WARFARE DEVELOPMENT	172,269	149,755
.....	CIRCM test and evaluation funds requested ahead of need	.....	−22,514
76	JOINT TACTICAL RADIO	784	784
77	ALL SOURCE ANALYSIS SYSTEM	22,574	18,074
.....	EMD contract award delay	.....	−4,500
78	TRACTOR CAGE	23,194	23,194
79	INFANTRY SUPPORT WEAPONS	80,337	70,337
.....	S62—Milestone B delay	.....	−10,000
80	MEDIUM TACTICAL VEHICLES	3,710	3,710
81	SMOKE, OBSCURANT AND TARGET DEFEATING SYS–SDD	5,335	5,335
82	JAVELIN	9,999	0
.....	Lack of acquisition strategy	.....	−9,999
83	FAMILY OF HEAVY TACTICAL VEHICLES	3,519	3,519
84	AIR TRAFFIC CONTROL	9,892	9,892
85	LIGHT TACTICAL WHEELED VEHICLES	1,990	1,990
86	NON-LINE OF SIGHT LAUNCH SYSTEM	81,247	0
.....	Program termination	.....	−81,247
89	FCS SYSTEMS OF SYSTEMS ENGR & PROGRAM MGMT	568,711	498,711
.....	Program reduction	.....	−70,000
90	FCS RECONNAISSANCE (UAV) PLATFORMS	50,304	50,304

R–1		Budget Request	Recommendation
91	FCS UNMANNED GROUND VEHICLES	249,948	200,000
.....	Program reduction	.....	−49,948
92	FCS UNATTENDED GROUND SENSORS	7,515	7,515
93	FCS SUSTAINMENT & TRAINING R&D	610,389	610,389
95	NIGHT VISION SYSTEMS—SDD	52,549	52,549
96	COMBAT FEEDING, CLOTHING, AND EQUIPMENT	2,118	2,118
97	NON-SYSTEM TRAINING DEVICES—SDD	27,756	27,756
98	AIR DEFENSE COMMAND, CONTROL AND INTELLIGENCE -SDD	34,209	34,209
99	CONSTRUCTIVE SIMULATION SYSTEMS DEVELOPMENT	30,291	30,291
100	AUTOMATIC TEST EQUIPMENT DEVELOPMENT	14,041	14,041
101	DISTRIBUTIVE INTERACTIVE SIMULATIONS (DIS)—SDD	15,547	15,547
103	COMBINED ARMS TACTICAL TRAINER (CATT) CORE	27,670	27,670
105	WEAPONS AND MUNITIONS—SDD	24,345	15,345
.....	PGK Increment II EMD delay	.....	−9,000
106	LOGISTICS AND ENGINEER EQUIPMENT—SDD	41,039	41,039
107	COMMAND, CONTROL, COMMUNICATIONS SYSTEMS—SDD	90,736	75,736
.....	JBC–P unsustained growth	.....	−15,000
108	MEDICAL MATERIEL/MEDICAL BIOLOGICAL DEFENSE EQUIPMENT	34,474	34,474
109	LANDMINE WARFARE/BARRIER—SDD	95,577	49,577
.....	Project 016—Scorpion acceleration funded in prior approval reprogramming	.....	−16,000
.....	Project 415—ASTAMIDS/GSTAMIDS lack of acquisition strategy	.....	−30,000
110	ARTILLERY MUNITIONS	26,371	26,371
111	COMBAT IDENTIFICATION	29,884	3,000
.....	Unexecutable request	.....	−26,884
112	ARMY TACTICAL COMMAND & CONTROL HARDWARE & SOFTWARE	60,970	60,970
113	GENERAL FUND ENTERPRISE BUSINESS SYSTEM (GFEBS)	13,576	13,576
114	FIREFINDER	24,736	24,736
115	SOLDIER SYSTEMS—WARRIOR DEM/VAL	20,886	20,886
116	ARTILLERY SYSTEMS	53,624	103,624
.....	Program Increase	.....	+20,000
.....	Transfer from WTCV,A line 12 for Paladin PIM	.....	+30,000
117	PATRIOT/MEADS COMBINED AGGREGATE PROGRAM	467,139	467,139
118	NUCLEAR ARMS CONTROL MONITORING SENSOR NETWORK	7,276	7,276
119	INFORMATION TECHNOLOGY DEVELOPMENT	23,957	23,957
120	ARMY INTEGRATED MILITARY HUMAN RESOURCES SYSTEM (A–IMH)	100,500	60,500
.....	Excessive growth without acquisition strategy	.....	−40,000
121	JOINT AIR-TO-GROUND MISSILE (JAGM)	130,340	130,340
122	SLAMRAAM	23,700	23,700
123	PAC–2/MSE MISSILE	62,500	62,500
124	ARMY INTEGRATED AIR AND MISSILE DEFENSE (AIAMD)	251,124	251,124
125	MANNED GROUND VEHICLE	934,366	461,100
.....	Program adjustment	.....	−473,266
126	AERIAL COMMON SENSOR	211,500	211,500
127	TROJAN—RH12	3,697	3,697
128	ELECTRONIC WARFARE DEVELOPMENT	21,571	13,571
.....	EW5—Unsustained growth	.....	−8,000
129	THREAT SIMULATOR DEVELOPMENT	26,158	26,158
130	TARGET SYSTEMS DEVELOPMENT	8,614	8,614
131	MAJOR T&E INVESTMENT	42,102	42,102
132	RAND ARROYO CENTER	20,492	20,492
133	ARMY KWAJALEIN ATOLL	163,788	163,788
134	CONCEPTS EXPERIMENTATION PROGRAM	17,704	17,704
136	ARMY TEST RANGES AND FACILITIES	393,937	412,257
.....	Army Test Range Infrastructure unfunded requirement	.....	+18,320
137	ARMY TECHNICAL TEST INSTRUMENTATION AND TARGETS	59,040	67,760
.....	Test and Evaluation Instrumentation unfunded requirement	.....	+8,720
138	SURVIVABILITY/LETHALITY ANALYSIS	41,812	43,412
.....	Test and Evaluation Instrumentation unfunded requirement	.....	+1,600
139	DOD HIGH ENERGY LASER TEST FACILITY	4,710	4,710
140	AIRCRAFT CERTIFICATION	5,055	5,055
141	METEOROLOGICAL SUPPORT TO RDT&E ACTIVITIES	7,185	7,185
142	MATERIEL SYSTEMS ANALYSIS	18,078	19,278
.....	Test and Evaluation Instrumentation unfunded requirement	.....	+1,200
143	EXPLOITATION OF FOREIGN ITEMS	5,460	5,460
144	SUPPORT OF OPERATIONAL TESTING	68,191	68,191
145	ARMY EVALUATION CENTER	61,450	64,090
.....	Test and Evaluation Instrumentation unfunded requirement	.....	+2,640
146	SIMULATION & MODELING FOR ACQ, RQTS, & TNG (SMART)	3,926	3,926
147	PROGRAMWIDE ACTIVITIES	73,685	73,685
148	TECHNICAL INFORMATION ACTIVITIES	48,309	48,309
149	MUNITIONS STANDARDIZATION, EFFECTIVENESS AND SAFETY	53,338	44,042
.....	Project 862—155mm HE projectile underfunded new start	.....	−9,296
150	ENVIRONMENTAL QUALITY TECHNOLOGY MGMT SUPPORT	3,195	3,195
151	MANAGEMENT HEADQUARTERS (RESEARCH AND DEVELOPMENT)	16,154	16,154
153	MLRS PRODUCT IMPROVEMENT PROGRAM	51,619	25,619
.....	GMLRS AW EMD contract award delay	.....	−26,000
154	AEROSTAT JOINT PROJECT OFFICE	372,493	372,493
155	INTELLIGENCE SUPPORT TO CYBER (ISC) MIP	2,360	2,360
156	ADV FIELD ARTILLERY TACTICAL DATA SYSTEM	24,622	24,622
157	COMBAT VEHICLE IMPROVEMENT PROGRAMS	204,481	204,481
158	MANEUVER CONTROL SYSTEM	25,540	25,540
159	AIRCRAFT MODS/PRODUCT IMPROVEMENT PROGRAMS	134,999	124,856
.....	P430—Chinook RW crashworthy seating previously fully funded	.....	−10,143
160	AIRCRAFT ENGINE COMPONENT IMPROVEMENT PROG	710	710
161	DIGITIZATION	6,329	6,329
162	FORCE XXI BATTLE COMMAND, BRIGADE AND BELOW (FBCB2)	3,935	3,935
163	MISSILE/AIR DEFENSE PRODUCT IMPROVEMENT PROGRAM	24,280	24,280
165	TRACTOR CARD	14,870	14,870
167	JOINT TACTICAL GROUND SYSTEM	12,403	12,403
168	JOINT HIGH SPEED VESSEL (JHSV)	3,153	3,153
171	INFORMATION SYSTEMS SECURITY PROGRAM	54,784	11,905
.....	Protected Information—Biometrics—Transfer to line 171x	.....	−42,879
171x	FAMILY OF BIOMETRICS	0	42,879
.....	Protected Information—Biometrics—Transfer from line 171	.....	+42,879
172	GLOBAL COMBAT SUPPORT SYSTEM	125,569	125,569
173	SATCOM GROUND ENVIRONMENT (SPACE)	33,694	33,694
174	WWMCCS/GLOBAL COMMAND AND CONTROL SYS	13,024	13,024
177	TACTICAL UNMANNED AERIAL VEHICLES	54,300	49,141
.....	CSP—Transfer of HD IR funds to line 62 at request of the Army for execution	.....	−5,159
178	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS	103,002	103,002
179	MQ–1 SKY WARRIOR A UAV	123,156	123,156
180	RQ–11 UAV	1,599	1,599
181	RQ–7 UAV	7,805	7,805
183	BIOMETRICS ENABLED INTELLIGENCE	14,114	2,114
.....	Protected Information—Biometrics	.....	−12,000
185	END ITEM INDUSTRIAL PREPAREDNESS ACTIVITIES	61,098	61,098
xx	RESEARCH AND DEVELOPMENT INNOVATION	0	105,000
.....	Research and Development Innovation	.....	+105,000
.....	CLASSIFIED PROGRAMS	4,447	4,447
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, ARMY	10,333,392	9,710,998
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, NAVY		
1	UNIVERSITY RESEARCH INITIATIVES	108,679	108,679

R–1		Budget Request	Recommendation
2	IN-HOUSE LABORATORY INDEPENDENT RESEARCH	17,979	17,979
3	DEFENSE RESEARCH SCIENCES	429,767	429,767
4	POWER PROJECTION APPLIED RESEARCH	98,150	98,150
5	FORCE PROTECTION APPLIED RESEARCH	107,448	147,448
.....	Alternative Energy	.....	+40,000
6	MARINE CORPS LANDING FORCE TECHNOLOGY	43,776	43,776
8	COMMON PICTURE APPLIED RESEARCH	70,168	70,168
9	WARFIGHTER SUSTAINMENT APPLIED RESEARCH	113,724	113,724
10	RF SYSTEMS APPLIED RESEARCH	83,902	83,902
11	OCEAN WARFIGHTING ENVIRONMENT APPLIED RESEARCH	49,491	49,491
12	JOINT NON-LETHAL WEAPONS APPLIED RESEARCH	6,002	6,002
13	UNDERSEA WARFARE APPLIED RESEARCH	69,186	69,186
14	MINE AND EXPEDITIONARY WARFARE APPLIED RESEARCH	36,833	36,833
15	POWER PROJECTION ADVANCED TECHNOLOGY	117,908	117,908
16	FORCE PROTECTION ADVANCED TECHNOLOGY	61,877	61,877
17	COMMON PICTURE ADVANCED TECHNOLOGY	96,720	96,720
18	WARFIGHTER SUSTAINMENT ADVANCED TECHNOLOGY	98,261	98,261
19	ELECTROMAGNETIC SYSTEMS ADVANCED TECHNOLOGY	82,143	82,143
20	MARINE CORPS ADVANCED TECHNOLOGY DEMONSTRATION (ATD)	115,089	115,089
21	JOINT NON-LETHAL WEAPONS TECHNOLOGY DEVELOPMENT	11,131	11,131
22	WARFIGHTER PROTECTION ADVANCED TECHNOLOGY	18,076	55,336
.....	C.W Bill Young Bone Marrow Donor Recruitment and Research Program	.....	+31,500
.....	Program Increase—Tactical Athlete Program	.....	+5,760
23	UNDERSEA WARFARE ADVANCED TECHNOLOGY	49,276	53,276
.....	Program Increase—ASW Research	.....	+4,000
24	NAVY WARFIGHTING EXPERIMENTS AND DEMONSTRATIONS	53,177	53,177
25	MINE AND EXPEDITIONARY WARFARE ADVANCED TECHNOLOGY	21,941	21,941
XX	RESEARCH AND DEVELOPMENT INNOVATION	0	105,000
.....	Research and Development Innovation	.....	+105,000
26	AIR/OCEAN TACTICAL APPLICATIONS	123,331	118,331
.....	JMAPS program delay	.....	−5,000
27	AVIATION SURVIVABILITY	9,480	9,480
28	DEPLOYABLE JOINT COMMAND AND CONTROL	4,275	4,275
29	ASW SYSTEMS DEVELOPMENT	8,249	8,249
30	TACTICAL AIRBORNE RECONNAISSANCE	6,452	6,452
31	ADVANCED COMBAT SYSTEMS TECHNOLOGY	1,658	1,658
32	SURFACE AND SHALLOW WATER MINE COUNTERMEASURES	81,347	79,247
.....	Unmanned Surface Sweep System program delay	.....	−2,100
33	SURFACE SHIP TORPEDO DEFENSE	57,796	50,796
.....	Milestone B delay	.....	−7,000
34	CARRIER SYSTEMS DEVELOPMENT	93,830	91,830
.....	Navy requested transfer to line 49 for Automatic Test and Re-Test	.....	−2,000
35	SHIPBOARD SYSTEM COMPONENT DEVELOPMENT	51	51
36	PILOT FISH	81,784	81,784
37	RETRACT LARCH	142,858	142,858
38	RETRACT JUNIPER	134,497	134,497
39	RADIOLOGICAL CONTROL	1,358	1,358
40	SURFACE ASW	21,673	21,673
41	ADVANCED SUBMARINE SYSTEM DEVELOPMENT	608,566	559,266
.....	Execution delays	.....	−49,300
42	SUBMARINE TACTICAL WARFARE SYSTEMS	5,590	5,590
43	SHIP CONCEPT ADVANCED DESIGN	17,883	17,883
44	SHIP PRELIMINARY DESIGN & FEASIBILITY STUDIES	1,796	1,796
45	ADVANCED NUCLEAR POWER SYSTEMS	366,509	366,509
46	ADVANCED SURFACE MACHINERY SYSTEMS	5,459	5,459
47	CHALK EAGLE	447,804	447,804
48	LITTORAL COMBAT SHIP (LCS)	226,288	189,588
.....	LCS–2 post shakedown availability delay	.....	−15,800
.....	LCS–1 post shakedown availability planning funding excess	.....	−500
.....	NLOS missile termination	.....	−15,400
.....	Program Increase—Mine Warfare Testing Disruption	.....	+4,000
.....	Navy requested transfer to line 49 for Automatic Test and Re-Test	.....	−2,000
.....	Program Increase—Small Business Technology Insertion (Mine Warfare Modules)	.....	+8,000
.....	Savings from accelerated DT	.....	−15,000
49	COMBAT SYSTEM INTEGRATION	24,344	34,344
.....	Navy requested transfer from lines 34, 48, 107, 122 and 136 for Automatic Test and Re-Test	.....	+10,000
50	CONVENTIONAL MUNITIONS	5,388	5,388
51	MARINE CORPS ASSAULT VEHICLES	242,765	222,765
.....	Expeditionary Fighting Vehicle	.....	−165,000
.....	Termination Liability, or SDD if certified by the Secretary	.....	+145,000
52	MARINE CORPS GROUND COMBAT/SUPPORT SYSTEM	40,505	28,505
.....	JLTV EMD contract award delay	.....	−12,000
53	JOINT SERVICE EXPLOSIVE ORDNANCE DEVELOPMENT	25,873	25,873
54	COOPERATIVE ENGAGEMENT	52,282	52,282
55	OCEAN ENGINEERING TECHNOLOGY DEVELOPMENT	13,560	13,560
56	ENVIRONMENTAL PROTECTION	20,207	20,207
57	NAVY ENERGY PROGRAM	30,403	34,403
.....	Program Increase—Alternative Energy from Organic Sources	.....	+4,000
58	FACILITIES IMPROVEMENT	3,746	3,746
59	CHALK CORAL	71,920	71,920
60	NAVY LOGISTIC PRODUCTIVITY	4,139	4,139
61	RETRACT MAPLE	219,463	219,463
62	LINK PLUMERIA	58,030	58,030
63	RETRACT ELM	183,187	183,187
64	SHIP SELF DEFENSE	4,385	4,385
65	LINK EVERGREEN	41,433	41,433
66	SPECIAL PROCESSES	36,457	36,457
67	NATO RESEARCH AND DEVELOPMENT	9,196	9,196
68	LAND ATTACK TECHNOLOGY	905	905
69	NONLETHAL WEAPONS	43,272	43,272
70	JOINT PRECISION APPROACH AND LANDING SYSTEMS	159,151	159,151
73	DIRECTED ENERGY AND ELECTRIC WEAPON SYSTEMS	.....	8,000
.....	Directed Energy Development and Test	.....	+8,000
74	TACTICAL AIR DIRECTIONAL INFRARED COUNTERMEASURES	51,693	51,693
75	JOINT COUNTER RADIO CONTROLLED IED ELECTRONIC WARFARE	56,542	50,242
.....	Program delay	.....	−6,300
76	PRECISION STRIKE WEAPONS DEVELOPMENT PROGRAM	25,121	25,121
77	SPACE & ELECTRONIC WARFARE (SEW) ARCHITECTURE/ENGINE	34,793	34,793
78	ASW SYSTEMS DEVELOPMENT—MIP	2,161	2,161
79	SUBMARINE TACTICAL WARFARE SYSTEMS—MIP	4,253	4,253
80	ELECTRONIC WARFARE DEVELOPMENT—MIP	663	663
81	OTHER HELO DEVELOPMENT	44,329	44,329
82	AV–8B AIRCRAFT—ENG DEV	22,867	22,867
83	STANDARDS DEVELOPMENT	45,667	45,667
84	MULTI-MISSION HELICOPTER UPGRADE DEVELOPMENT	55,792	55,792
85	AIR/OCEAN EQUIPMENT ENGINEERING	5,735	5,735
86	P–3 MODERNIZATION PROGRAM	3,574	3,574
87	WARFARE SUPPORT SYSTEM	3,733	3,733
88	TACTICAL COMMAND SYSTEM	89,955	87,955
.....	Systems engineering growth	.....	−2,000
89	ADVANCED HAWKEYE	171,132	171,132
90	H–1 UPGRADES	60,498	60,498
91	ACOUSTIC SEARCH SENSORS	64,834	64,834
92	V–22A	46,070	44,425

R–1		Budget Request	Recommendation
.....	Fuel forward funded in fiscal year 2010 supplemental	.....	−1,645
93	AIR CREW SYSTEMS DEVELOPMENT	8,689	11,189
.....	Transfer from AP,N line 52 for Common Mobile Aircrew Restraint System	.....	+2,500
94	EA–18	22,042	21,773
.....	Fuel forward funded in fiscal year 2010 supplemental	.....	−269
95	ELECTRONIC WARFARE DEVELOPMENT	80,819	80,819
96	VH–71A EXECUTIVE HELO DEVELOPMENT	159,785	159,785
97	NEXT GENERATION JAMMER (NGJ)	120,602	90,602
.....	Technology development contract delay	.....	−30,000
98	JOINT TACTICAL RADIO SYSTEM—NAVY (JTRS-NAVY)	687,723	627,723
.....	Airborne Maritime Fixed unjustified increase	.....	−60,000
100	SURFACE COMBATANT COMBAT SYSTEM ENGINEERING	193,933	193,933
101	LPD–17 CLASS SYSTEMS INTEGRATION	1,373	1,373
102	SMALL DIAMETER BOMB (SDB)	44,091	24,091
.....	Program delay	.....	−20,000
103	STANDARD MISSILE IMPROVEMENTS	96,186	96,186
104	AIRBORNE MCM	45,885	45,885
105	NAVAL INTEGRATED FIRE CONTROL—COUNTER AIR SYSTEMS ENG	21,517	21,517
106	ADVANCED ABOVE WATER SENSORS	274,371	274,371
107	SSN–688 AND TRIDENT MODERNIZATION	118,897	112,197
.....	Navy requested transfer to line 49 for Automatic Test and Re-Test	.....	−2,000
.....	Communications at Speed and Depth	.....	−4,700
108	AIR CONTROL	5,665	5,665
109	SHIPBOARD AVIATION SYSTEMS	70,117	70,117
110	COMBAT INFORMATION CENTER CONVERSION	5,044	5,044
111	NEW DESIGN SSN	155,489	171,489
.....	Program Increase—Small Business Technology Insertion	.....	+16,000
112	SUBMARINE TACTICAL WARFARE SYSTEM	50,537	50,537
113	SHIP CONTRACT DESIGN/LIVE FIRE T&E	153,686	166,686
.....	Full Ship Shock Trial Alternative transfer from line 136	.....	+13,000
114	NAVY TACTICAL COMPUTER RESOURCES	4,443	4,443
115	MINE DEVELOPMENT	5,455	5,455
116	LIGHTWEIGHT TORPEDO DEVELOPMENT	25,282	25,282
117	JOINT SERVICE EXPLOSIVE ORDNANCE DEVELOPMENT	10,489	10,489
118	PERSONNEL, TRAINING, SIMULATION, AND HUMAN FACTORS	10,759	10,759
119	JOINT STANDOFF WEAPON SYSTEMS	12,567	12,567
120	SHIP SELF DEFENSE (DETECT & CONTROL)	45,930	45,930
121	SHIP SELF DEFENSE (ENGAGE: HARD KILL)	5,860	5,860
122	SHIP SELF DEFENSE (ENGAGE: SOFT KILL/EW)	84,525	82,525
.....	Navy requested transfer to line 49 for Automatic Test and Re-Test	.....	−2,000
123	INTELLIGENCE ENGINEERING	6,820	6,820
124	MEDICAL DEVELOPMENT	12,337	29,137
.....	Wound Care Research	.....	+10,400
.....	Military Dental Research	.....	+6,400
125	NAVIGATION/ID SYSTEM	66,636	66,636
126	JOINT STRIKE FIGHTER (JSF)—EMD	667,916	613,864
.....	Block IV capabilities funding ahead of need	.....	−29,052
.....	Underexecution of test program	.....	−25,000
127	JOINT STRIKE FIGHTER (JSF)	707,791	676,806
.....	Block IV capabilities funding ahead of need	.....	−29,000
.....	Fuel forward funded in fiscal year 2010 supplemental	.....	−1,985
128	INFORMATION TECHNOLOGY DEVELOPMENT	22,783	22,783
129	INFORMATION TECHNOLOGY DEVELOPMENT	28,280	28,280
130	NAVY INTEGRATED MILITARY HUMAN RESOURCES SYSTEM	27,444	15,444
.....	Reduction to pre-development activities	.....	−12,000
131	CH–53K	577,435	577,435
133	JOINT AIR-TO-GROUND MISSILE (JAGM)	100,846	100,846
134	MULTI-MISSION MARITIME AIRCRAFT (MMA)	929,240	941,240
.....	Program Increase—Small Business Technology Insertion	.....	+12,000
136	DDG–1000	549,241	534,241
.....	Navy requested transfer to line 49 for Automatic Test and Re-Test	.....	−2,000
.....	Full Ship Shock Trial Alternative transfer to line 113	.....	−13,000
137	TACTICAL COMMAND SYSTEM—MIP	1,318	1,318
138	SSN–688 AND TRIDENT MODERNIZATION—MIP	1,415	1,415
139	TACTICAL CRYPTOLOGIC SYSTEMS	17,019	12,387
.....	Execution delays	.....	−4,632
140	THREAT SIMULATOR DEVELOPMENT	18,755	18,755
141	TARGET SYSTEMS DEVELOPMENT	66,066	66,066
142	MAJOR T&E INVESTMENT	37,522	37,522
143	STUDIES AND ANALYSIS SUPPORT—NAVY	8,149	8,149
144	CENTER FOR NAVAL ANALYSES	49,165	49,165
146	TECHNICAL INFORMATION SERVICES	662	662
147	MANAGEMENT, TECHNICAL & INTERNATIONAL SUPPORT	58,329	58,329
148	STRATEGIC TECHNICAL SUPPORT	3,451	3,451
149	RDT&E SCIENCE AND TECHNOLOGY MANAGEMENT	72,094	72,094
150	RDT&E SHIP AND AIRCRAFT SUPPORT	95,332	93,871
.....	Fuel forward funded in fiscal year 2010 supplemental	.....	−1,461
151	TEST AND EVALUATION SUPPORT	376,418	376,418
152	OPERATIONAL TEST AND EVALUATION CAPABILITY	15,746	15,746
153	NAVY SPACE AND ELECTRONIC WARFARE (SEW) SUPPORT	4,013	4,013
154	SEW SURVEILLANCE/RECONNAISSANCE SUPPORT	19,700	19,700
155	MARINE CORPS PROGRAM WIDE SUPPORT	17,721	17,721
156	TACTICAL CRYPTOLOGIC ACTIVITIES	1,859	1,859
157	SERVICE SUPPORT TO JFCOM, JNTC	4,260	4,260
161	UNMANNED COMBAT AIR VEHICLE (UCAV) ADVANCED COMPONENT	266,368	266,368
162	STRATEGIC SUB & WEAPONS SYSTEM SUPPORT	81,184	71,184
.....	Conventional Trident Modification	.....	−10,000
163	SSBN SECURITY TECHNOLOGY PROGRAM	34,997	34,997
164	SUBMARINE ACOUSTIC WARFARE DEVELOPMENT	6,815	6,815
165	NAVY STRATEGIC COMMUNICATIONS	10,331	10,331
166	RAPID TECHNOLOGY TRANSITION (RTT)	35,120	35,120
167	F/A–18 SQUADRONS	148,438	148,438
168	E–2 SQUADRONS	19,011	19,011
169	FLEET TELECOMMUNICATIONS (TACTICAL)	26,894	26,894
170	TOMAHAWK AND TOMAHAWK MISSION PLANNING CENTER (TMPC)	10,587	10,587
171	INTEGRATED SURVEILLANCE SYSTEM	23,464	23,464
172	AMPHIBIOUS TACTICAL SUPPORT UNITS	4,357	4,357
173	CONSOLIDATED TRAINING SYSTEMS DEVELOPMENT	50,750	50,750
174	CRYPTOLOGIC DIRECT SUPPORT	1,519	1,519
175	ELECTRONIC WARFARE (EW) READINESS SUPPORT	39,398	39,398
176	HARM IMPROVEMENT	14,207	12,207
.....	Systems engineering growth	.....	−2,000
177	TACTICAL DATA LINKS	28,854	28,854
178	SURFACE ASW COMBAT SYSTEM INTEGRATION	32,877	36,877
.....	Program Increase—Small Business Technology Insertion	.....	+4,000
179	MK–48 ADCAP	26,234	34,234
.....	Program Increase—Small Business Technology Insertion	.....	+8,000
180	AVIATION IMPROVEMENTS	133,611	100,890
.....	F–135 engine ahead of need	.....	−27,000
.....	Multi-purpose bomb rack program delay	.....	−5,721
181	NAVY SCIENCE ASSISTANCE PROGRAM	3,535	3,535
182	OPERATIONAL NUCLEAR POWER SYSTEMS	74,229	74,229
183	MARINE CORPS COMMUNICATIONS SYSTEMS	245,298	232,898
.....	Joint Cooperative Target Identification—Ground	.....	−12,400

R–1		Budget Request	Recommendation
184	MARINE CORPS GROUND COMBAT/SUPPORTING ARMS SYSTEMS	100,424	76,424
.....	Marine personnel carrier program delay	.....	−20,000
.....	LAV–AT contract delay	.....	−4,000
185	MARINE CORPS COMBAT SERVICES SUPPORT	19,466	19,466
186	USMC INTELLIGENCE/ELECTRONIC WARFARE SYSTEMS (MIP)	20,316	20,316
187	TACTICAL AIM MISSILES	912	912
188	ADVANCED MEDIUM RANGE AIR-TO-AIR MISSILE (AMRAAM)	2,633	2,633
189	JOINT HIGH SPEED VESSEL (JHSV)	3,586	3,586
194	SATELLITE COMMUNICATIONS (SPACE)	422,268	422,268
195	CONSOLIDATED AFLOAT NETWORK ENTERPRISE SERVICES	63,563	44,563
.....	Increment 1 transition contract delay	.....	−19,000
196	INFORMATION SYSTEMS SECURITY PROGRAM	25,934	25,934
199	CONSOLIDATED AFLOAT NETWORK ENTERPRISE SERVICES—MIP	8,375	8,375
201	COBRA JUDY	36,527	36,527
202	NAVY METEOROLOGICAL AND OCEAN SENSORS—SPACE (METOC)	63,878	63,878
203	JOINT MILITARY INTELLIGENCE PROGRAMS	4,435	4,435
204	TACTICAL UNMANNED AERIAL VEHICLES	35,212	18,912
.....	Marinized UAS	.....	−16,300
206	AIRBORNE RECONNAISSANCE SYSTEMS	.....	50,200
.....	Program increase	.....	+5,200
.....	EP–3/SPA systems development	.....	+45,000
207	MANNED RECONNAISSANCE SYSTEMS	19,263	19,263
208	DISTRIBUTED COMMON GROUND SYSTEMS/SURFACE SYSTEMS	8,377	8,377
209	DISTRIBUTED COMMON GROUND SYSTEMS/SURFACE SYSTEMS	16,665	16,665
210	RQ–4 UAV	529,250	529,250
211	MQ–8 UAV	10,665	10,665
212	RQ–11 UAV	512	512
213	RQ–7 UAV	934	934
214	SMALL (LEVEL 0) TACTICAL UAS (STUASL0)	26,209	26,209
215	SMALL (LEVEL 0) TACTICAL UAS (STUASL0)	18,098	12,710
.....	STUAS Lite termination	.....	−5,388
218	MODELING AND SIMULATION SUPPORT	8,158	8,158
219	DEPOT MAINTENANCE (NON-IF)	18,649	18,649
220	AVIONICS COMPONENT IMPROVEMENT PROGRAM	3,250	3,250
221	INDUSTRIAL PREPAREDNESS	46,173	46,173
.....	CLASSIFIED PROGRAMS	1,284,901	1,499,901
.....	Classified adjustment	.....	+215,000
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, NAVY	17,693,496	17,736,303
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, AIR FORCE		
1	DEFENSE RESEARCH SCIENCES	350,978	350,978
2	UNIVERSITY RESEARCH INITIATIVES	136,297	136,297
3	HIGH ENERGY LASER RESEARCH INITIATIVES	13,198	13,198
4	MATERIALS	137,273	137,273
5	AEROSPACE VEHICLE TECHNOLOGIES	144,699	144,699
6	HUMAN EFFECTIVENESS APPLIED RESEARCH	87,452	87,452
7	AEROSPACE PROPULSION	207,049	204,049
.....	Unjustified program growth	.....	−3,000
8	AEROSPACE SENSORS	157,497	159,897
.....	Program Increase—Materials for Structures, Propulsion, and Subsystems	.....	+2,400
9	SPACE TECHNOLOGY	111,857	111,857
10	CONVENTIONAL MUNITIONS	61,330	61,330
11	DIRECTED ENERGY TECHNOLOGY	103,596	122,396
.....	Re-alignment of funding for ground optical imaging research and technology	.....	+18,800
13	DOMINANT INFORMATION SCIENCES AND METHODS	117,283	115,783
.....	Transfer to line 11	.....	−1,500
14	HIGH ENERGY LASER RESEARCH	53,384	53,384
15	ADVANCED MATERIALS FOR WEAPON SYSTEMS	33,414	40,414
.....	Transfer to line 11	.....	−1,000
.....	Metals Affordability Initiative	.....	+8,000
16	SUSTAINMENT SCIENCE AND TECHNOLOGY (S&T)	2,935	2,935
17	ADVANCED AEROSPACE SENSORS	44,677	44,677
18	AEROSPACE TECHNOLOGY DEV/DEMO	53,588	52,588
.....	Transfer to line 11	.....	−1,000
19	AEROSPACE PROPULSION AND POWER TECHNOLOGY	136,135	134,135
.....	Transfer to line 11	.....	−2,000
21	ELECTRONIC COMBAT TECHNOLOGY	16,992	16,992
22	ADVANCED SPACECRAFT TECHNOLOGY	83,705	80,115
.....	Transfer to line 11	.....	−3,590
23	MAUI SPACE SURVEILLANCE SYSTEM (MSSS)	5,899	5,899
24	HUMAN EFFECTIVENESS ADVANCED TECHNOLOGY DEVELOPMENT	24,814	24,814
25	CONVENTIONAL WEAPONS TECHNOLOGY	15,755	15,755
26	ADVANCED WEAPONS TECHNOLOGY	17,461	17,461
27	MANUFACTURING TECHNOLOGY PROGRAM	39,701	47,701
.....	Program Increase—Best Industrial Process for Department of Defense Depots	.....	+8,000
28	BATTLESPACE KNOWLEDGE DEVELOPMENT & DEMONSTRATION	32,382	32,382
30	HIGH ENERGY LASER ADVANCED TECHNOLOGY PROGRAM	1,847	1,847
XX	RESEARCH AND DEVELOPMENT INNOVATION	0	105,000
.....	Research and Development Innovation	.....	+105,000
31	INTELLIGENCE ADVANCED DEVELOPMENT	5,019	5,019
32	PHYSICAL SECURITY EQUIPMENT	3,576	1,000
.....	Unjustified program request	.....	−2,576
33	GPS III—OPERATIONAL CONTROL SEGMENT	0	356,867
.....	Operational Control Segment (OCX)—Transfer from line 212	.....	+356,867
34	ADVANCED EHF MILSATCOM (SPACE)	351,817	394,817
.....	Program Increase—Capabilities Insertion Program	.....	+43,000
35	POLAR MILSATCOM (SPACE)	164,232	164,232
36	SPACE CONTROL TECHNOLOGY	45,012	45,012
37	COMBAT IDENTIFICATION TECHNOLOGY	26,172	36,172
.....	Program Increase—Automatic Dependent Surveillance—Broadcast	.....	+10,000
38	NATO RESEARCH AND DEVELOPMENT	4,372	4,372
39	INTERNATIONAL SPACE COOPERATIVE R&D	635	635
40	SPACE PROTECTION PROGRAM (SPP)	8,349	8,349
42	INTEGRATED BROADCAST SERVICE	20,580	20,580
43	INTERCONTINENTAL BALLISTIC MISSILE	66,745	66,745
44	WIDEBAND GAPFILLER SYSTEM RDT&E (SPACE)	36,123	79,123
.....	Program Increase—Capabilities Insertion Program	.....	+43,000
45	POLLUTION PREVENTION (DEM/VAL)	2,534	2,534
46	JOINT PRECISION APPROACH AND LANDING SYSTEMS	13,952	13,952
47	NEXT GENERATION BOMBER	198,957	198,957
48	BATTLE MGMT COM & CTRL SENSOR DEVELOPMENT	0	12,000
.....	Program Increase—GMTI Radar Development	.....	+12,000
49	HARD AND DEEPLY BURIED TARGET DEFEAT SYSTEM	22,389	22,389
50	JOINT DUAL ROLE AIR DOMINANCE MISSILE	9,799	9,799
51	REQUIREMENTS ANALYSIS AND MATURATION	34,339	34,339
52	NEXT-GENERATION MILSATCOM TECHNOLOGY DEVELOPMENT	0	20,000
.....	Program Increase—Acquisition Planning and Studies	.....	+20,000
53	GROUND ATTACK WEAPONS FUZE DEVELOPMENT	32,513	22,513
.....	Program delay	.....	−10,000
54	ALTERNATIVE FUELS	24,064	24,064
55	AUTOMATED AIR-TO-AIR REFUELING	85	85
56	OPERATIONALLY RESPONSIVE SPACE	93,978	125,978
.....	Program Increase—Responsive Launch Capabilities	.....	+32,000

R–1		Budget Request	Recommendation
57	TECH TRANSITION PROGRAM	12,260	12,260
58	NATIONAL POLAR-ORBITING OPERATIONAL ENVIRONMENTAL SAT	325,505	100,000
.....	Program Reduction	.....	−225,505
58A	DEFENSE WEATHER SATELLITE SYSTEM (DWSS)	.....	75,000
.....	DWSS-only for defense sensor development	.....	+75,000
59	GLOBAL BROADCAST SERVICE (GBS)	18,171	18,171
60	NUCLEAR WEAPONS SUPPORT	60,545	60,545
62	SPECIALIZED UNDERGRADUATE FLIGHT TRAINING	8,066	8,066
64	ELECTRONIC WARFARE DEVELOPMENT	89,966	89,966
65	JOINT TACTICAL RADIO	631	631
66	TACTICAL DATA NETWORKS ENTERPRISE	102,941	102,941
67	PHYSICAL SECURITY EQUIPMENT	50	50
68	SMALL DIAMETER BOMB (SDB)	153,505	100,505
.....	SDB II—Contract Award Delay	.....	−53,000
69	COUNTERSPACE SYSTEMS	40,276	40,276
70	SPACE SITUATION AWARENESS SYSTEMS	426,525	350,425
.....	SBSS Follow On	.....	−45,100
.....	Space Fence	.....	−35,000
.....	Integration of Missile Defense Agency radar systems into Space Surveillance Network	.....	+4,000
71	AIRBORNE ELECTRONIC ATTACK	25,937	25,937
72	SPACE BASED INFRARED SYSTEM (SBIRS) HIGH EMD	530,047	530,047
74	ARMAMENT/ORDNANCE DEVELOPMENT	6,693	6,693
75	SUBMUNITIONS	1,622	1,622
76	AGILE COMBAT SUPPORT	37,987	37,987
77	LIFE SUPPORT SYSTEMS	10,650	10,650
78	COMBAT TRAINING RANGES	36,905	36,905
79	INTEGRATED COMMAND & CONTROL APPLICATIONS (IC2A)	10	10
80	INTELLIGENCE EQUIPMENT	1,364	1,364
81	JOINT STRIKE FIGHTER (JSF)	883,773	1,051,210
.....	Air Force requested transfer from line 135	.....	+159,837
.....	Air Force requested transfer for Auto GCAS from AP,AF line 43	.....	+7,600
82	INTERCONTINENTAL BALLISTIC MISSILE	71,843	71,843
83	EVOLVED EXPENDABLE LAUNCH VEHICLE PROGRAM (SPACE)	30,245	55,245
.....	Program Increase—EELV Common Upper Stage	.....	+25,000
85	NEXT GENERATION AERIAL REFUELING AIRCRAFT	863,875	0
.....	Transfer to Tanker Transfer Fund	.....	−863,875
86	CSAR HH–60 RECAPITALIZATION	12,584	0
.....	Program Termination	.....	−12,584
86A	HH–60 RDT&E	0	1,934
.....	Terrain and Traffic Avoidance Systems—Transfer from line 86	.....	+1,934
88	HC/MC–130 RECAP RDT&E	15,536	15,536
91	SINGLE INTEGRATED AIR PICTURE (SIAP)	1,832	0
.....	Program termination	.....	−1,832
92	FULL COMBAT MISSION TRAINING	57,393	57,393
94	JOINT CARGO AIRCRAFT (JCA)	26,407	26,407
95	CV–22	18,270	18,270
96	AIRBORNE SENIOR LEADER C3 (SLC3S)	15,826	7,826
.....	Contract award delay for SLC3S–A Communications Program (SCP)	.....	−8,000
97	THREAT SIMULATOR DEVELOPMENT	21,245	21,245
98	MAJOR T&E INVESTMENT	61,587	61,587
99	RAND PROJECT AIR FORCE	26,752	26,752
101	INITIAL OPERATIONAL TEST & EVALUATION	20,665	20,665
102	TEST AND EVALUATION SUPPORT	759,868	759,868
103	ROCKET SYSTEMS LAUNCH PROGRAM (SPACE)	23,551	23,551
104	SPACE TEST PROGRAM (STP)	47,623	47,623
105	FACILITIES RESTORATION & MODERNIZATION—TEST & EVAL	46,327	46,327
106	FACILITIES SUSTAINMENT—TEST AND EVALUATION SUPPORT	27,579	27,579
107	MULTI-SERVICE SYSTEMS ENGINEERING INITIATIVE	18,901	18,901
108	ACQUISITION AND MANAGEMENT SUPPORT	24,968	24,968
109	GENERAL SKILL TRAINING	1,544	1,544
111	INTERNATIONAL ACTIVITIES	3,764	3,764
113	COMMON VERTICAL LIFT SUPPORT PLATFORM	0	4,000
.....	Air Force requested transfer from AP,AF line 18	.....	+4,000
114	AIR FORCE INTEGRATED MILITARY HUMAN RESOURCES SYSTEM	43,300	23,300
.....	Funding ahead of need	.....	−20,000
115	ANTI-TAMPER TECHNOLOGY EXECUTIVE AGENCY	42,255	42,255
117	B–52 SQUADRONS	146,096	140,896
.....	EHF Request—early to need	.....	−24,700
.....	Program Increase to continue advanced targeting pod integration	.....	+6,500
.....	Air Force requested transfer from AP,AF line 38 for Internal Weapons Bay	.....	+13,000
118	AIR-LAUNCHED CRUISE MISSILE (ALCM)	3,631	3,631
119	B–1B SQUADRONS	33,234	33,234
120	B–2 SQUADRONS	260,466	276,466
.....	Program Increase—Mixed Loads and Other Capabilities	.....	+16,000
121	STRAT WAR PLANNING SYSTEM—USSTRATCOM	28,441	28,441
122	NIGHT FIST—USSTRATCOM	5,359	5,359
125	REGION/SECTOR OPERATION CONTROL CENTER MODERNIZATION	23,732	23,732
126	STRATEGIC AEROSPACE INTELLIGENCE SYSTEM ACTIVITIES	15	15
127	WARFIGHTER RAPID ACQUISITION PROCESS (WRAP) RAPID TRAN	10,580	10,580
128	MQ–9 UAV	125,427	125,427
129	MULTI-PLATFORM ELECTRONIC WARFARE EQUIPMENT	15,574	15,574
130	A–10 SQUADRONS	5,661	5,661
131	F–16 SQUADRONS	129,103	129,103
132	F–15E SQUADRONS	222,677	207,677
.....	Contract award delays	.....	−15,000
133	MANNED DESTRUCTIVE SUPPRESSION	12,937	12,937
134	F–22 SQUADRONS	576,330	511,330
.....	Modernization program	.....	−100,000
.....	MADL—Transfer from line 155	.....	+35,000
135	F–35 SQUADRONS	217,561	0
.....	Block 4 Development	.....	−57,724
.....	Air Force requested transfer to line 81	.....	−159,837
136	TACTICAL AIM MISSILES	6,040	6,040
137	ADVANCED MEDIUM RANGE AIR-TO-AIR MISSILE (AMRAAM)	62,922	62,922
138	JOINT HELMET MOUNTED CUEING SYSTEM (JHMCS)	2,407	2,407
139	COMBAT RESCUE AND RECOVERY	944	944
140	COMBAT RESCUE—PARARESCUE	2,921	2,921
141	AF TENCAP	11,648	11,648
142	PRECISION ATTACK SYSTEMS PROCUREMENT	3,017	3,017
143	COMPASS CALL	20,652	20,652
144	AIRCRAFT ENGINE COMPONENT IMPROVEMENT PROGRAM	147,396	120,626
.....	F–135 Component Improvement Program—premature request	.....	−26,770
146	JOINT AIR-TO-SURFACE STANDOFF MISSILE (JASSM)	20,000	20,000
147	AIR AND SPACE OPERATIONS CENTER (AOC)	93,102	93,102
148	CONTROL AND REPORTING CENTER (CRC)	58,313	58,313
149	AIRBORNE WARNING AND CONTROL SYSTEM (AWACS)	239,755	229,755
.....	Contract award and schedule delays for Block 40/45 EMD and DRAGON	.....	−10,000
151	ADVANCED COMMUNICATIONS SYSTEMS	67,532	67,532
153	COMBAT AIR INTELLIGENCE SYSTEM ACTIVITIES	3,310	3,310
154	THEATER BATTLE MANAGEMENT (TBM) C4I	15,170	15,170
155	FIGHTER TACTICAL DATA LINK	85,492	23,992
.....	MADL—Transfer to line 134	.....	−61,500
157	C2ISR TACTICAL DATA LINK	1,584	1,584
158	COMMAND AND CONTROL (C2) CONSTELLATION	24,229	24,229

R–1		Budget Request	Recommendation
159	JOINT SURVEILLANCE AND TARGET ATTACK RADAR SYSTEM	168,917	168,917
160	SEEK EAGLE	19,263	19,263
161	USAF MODELING AND SIMULATION	21,638	21,638
162	WARGAMING AND SIMULATION CENTERS	6,020	6,020
163	DISTRIBUTED TRAINING AND EXERCISES	2,863	2,863
164	MISSION PLANNING SYSTEMS	79,112	79,112
165	INFORMATION WARFARE SUPPORT	2,294	2,294
166	CYBER COMMAND ACTIVITIES	1,117	1,117
173	SPACE SUPERIORITY INTELLIGENCE	10,006	10,006
174	E–4B NATIONAL AIRBORNE OPERATIONS CENTER (NAOC)	12,532	12,532
175	MINIMUM ESSENTIAL EMERGENCY COMMUNICATIONS NETWORK	78,784	68,984
.....	MMPU Production—Air Force requested transfer to MP,AF line 9	.....	−9,800
176	INFORMATION SYSTEMS SECURITY PROGRAM	140,017	140,017
177	GLOBAL COMBAT SUPPORT SYSTEM	3,393	3,393
178	GLOBAL COMMAND AND CONTROL SYSTEM	3,055	5,212
.....	Air Force requested transfer from line 179	.....	+2,157
179	JOINT COMMAND AND CONTROL PROGRAM (JC2)	2,157	0
.....	Air Force requested transfer to line 178	.....	−2,157
180	MILSATCOM TERMINALS	186,582	306,282
.....	FAB–T—Air Force requested transfer from AP,AF line 75	.....	+119,700
182	AIRBORNE SIGINT ENTERPRISE	149,268	144,268
.....	Program execution	.....	−5,000
185	GLOBAL AIR TRAFFIC MANAGEMENT (GATM)	5,708	5,708
186	CYBER SECURITY INITIATIVE	2,030	2,030
187	DOD CYBER CRIME CENTER	279	279
188	SATELLITE CONTROL NETWORK (SPACE)	21,667	21,667
189	WEATHER SERVICE	32,373	32,373
190	AIR TRAFFIC CONTROL, APPROACH, & LANDING SYSTEM (ATC)	33,268	33,268
191	AERIAL TARGETS	63,573	58,573
.....	Program execution	.....	−5,000
194	SECURITY AND INVESTIGATIVE ACTIVITIES	469	469
196	DEFENSE JOINT COUNTERINTELLIGENCE ACTIVITIES	40	40
198	NAVSTAR GLOBAL POSITIONING SYSTEM (USER EQUIPMENT)	165,936	165,936
199	NAVSTAR GLOBAL POSITIONING SYSTEM (SPACE AND CONTROL)	34,471	34,471
201	SPACE AND MISSILE TEST AND EVALUATION CENTER	4,572	4,572
202	SPACE WARFARE CENTER	2,929	2,929
203	SPACELIFT RANGE SYSTEM (SPACE)	9,933	9,933
204	INTELLIGENCE SUPPORT TO INFORMATION OPERATIONS	1,254	1,254
206	AIRBORNE RECONNAISSANCE SYSTEMS	168,963	90,263
.....	Wide Area Airborne Surveillance Program of Record—ahead of need	.....	−78,700
207	MANNED RECONNAISSANCE SYSTEMS	15,337	15,337
208	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS	93,398	85,898
.....	Program Reduction	.....	−7,500
209	PREDATOR UAV (JMIP)	28,913	23,913
.....	Program execution	.....	−5,000
210	RQ–4 UAV	251,318	220,318
.....	Execution adjustment	.....	−31,000
211	NETWORK-CENTRIC COLLABORATIVE TARGET (TIARA)	7,267	7,267
212	GPS III SPACE SEGMENT	828,171	446,304
.....	Operational Control Segment (OCX)—Transfer to line 33	.....	−381,867
213	JSPOC MISSION SYSTEM	132,706	109,506
.....	JSPOC Mission System	.....	−28,000
.....	Karnac	.....	+4,800
214	INTELLIGENCE SUPPORT TO INFORMATION WARFARE	5,512	5,512
215	NUDET DETECTION SYSTEM (SPACE)	72,199	72,199
216	NATIONAL SECURITY SPACE OFFICE	10,630	0
.....	Program termination—Funding transferred to Executive Agent for Space, OM,AF	.....	−10,630
217	SPACE SITUATION AWARENESS OPERATIONS	43,838	43,838
218	INFORMATION OPS TECHNOLOGY INTEGRATION & TOOL DEVELOP	21,912	21,912
219	SHARED EARLY WARNING (SEW)	2,952	2,952
220	C–130 AIRLIFT SQUADRON	113,107	43,472
.....	Air Force requested transfer to AP,AF line 61	.....	−69,635
221	C–5 AIRLIFT SQUADRONS	58,990	58,990
222	C–17 AIRCRAFT	177,212	162,212
.....	Contract award delays	.....	−15,000
223	C–130J PROGRAM	26,770	26,770
224	LARGE AIRCRAFT IR COUNTERMEASURES (LAIRCM)	17,227	17,227
225	KC–135S	20,453	20,453
226	KC–10S	56,669	41,669
.....	Milestone B slip	.....	−15,000
227	OPERATIONAL SUPPORT AIRLIFT	4,988	4,988
228	C-STOL AIRCRAFT	1,283	1,283
230	SPECIAL TACTICS / COMBAT CONTROL	7,345	7,345
231	DEPOT MAINTENANCE (NON-IF)	1,514	1,514
234	LOGISTICS INFORMATION TECHNOLOGY (LOGIT)	227,614	227,614
235	SUPPORT SYSTEMS DEVELOPMENT	6,141	38,141
.....	Alternative energy research and integration	.....	+32,000
235A	AIR FORCE RECRUITING INFORMATION SUPPORT SYSTEM	0	5,100
.....	Air Force Recruiting Information Support System—Air Force requested transfer from OM,AF	.....	+5,100
236	OTHER FLIGHT TRAINING	667	667
237	JOINT NATIONAL TRAINING CENTER	9	9
239	OTHER PERSONNEL ACTIVITIES	116	116
240	JOINT PERSONNEL RECOVERY AGENCY	6,107	6,107
242	CIVILIAN COMPENSATION PROGRAM	7,811	7,811
243	PERSONNEL ADMINISTRATION	11,179	11,179
244	FINANCIAL MANAGEMENT INFORMATION SYSTEMS DEVELOPMENT	49,816	49,816
.....	CLASSIFIED PROGRAMS	12,406,781	12,915,571
.....	Classified Adjustment	.....	+508,790
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, AIR FORCE	27,247,302	26,517,405
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, DEFENSE-WIDE		
1	DTRA UNIVERSITY STRATEGIC PARTNERSHIP BASIC RESEARCH	47,412	47,412
2	DEFENSE RESEARCH SCIENCES	328,195	295,695
.....	Excessive growth	.....	−32,500
5	NATIONAL DEFENSE EDUCATION PROGRAM	109,911	94,311
.....	Unexecutable growth	.....	−15,600
6	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	49,508	49,508
7	INSENSITIVE MUNITIONS—EXPLORATORY DEVELOPMENT	22,448	20,448
.....	Excessive growth	.....	−2,000
8	HISTORICALLY BLACK COLLEGES & UNIV (HBCU) SCIENCE	15,067	23,067
.....	Program Increase	.....	+8,000
9	LINCOLN LABORATORY RESEARCH PROGRAM	32,830	32,830
10	INFORMATION AND COMMUNICATIONS TECHNOLOGY	281,262	253,262
.....	DISCOVER contract award delays	.....	−10,000
.....	Extreme Computing contract award delays	.....	−18,000
11	COGNITIVE COMPUTING SYSTEMS	90,143	90,143
12	MACHINE INTELLIGENCE	44,682	44,682
13	BIOLOGICAL WARFARE DEFENSE	32,692	32,692
14	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	169,287	174,287
.....	TMTI BA 5 unexecutable funding transferred back to S&T at request of the Department	.....	+5,000
15	JOINT DATA MANAGEMENT ADVANCED DEVELOPMENT	3,261	0
.....	Duplicate effort	.....	−3,261
16	CYBER SECURITY RESEARCH	10,000	5,000

R–1		Budget Request	Recommendation
.....	Lack of authorization	.....	−5,000
17	HUMAN, SOCIAL AND CULTURE BEHAVIOR MODELING (HSCB) APP	9,499	7,999
.....	Excessive growth	.....	−1,500
18	TACTICAL TECHNOLOGY	224,378	224,378
19	MATERIALS AND BIOLOGICAL TECHNOLOGY	312,586	307,586
.....	Unsustained growth	.....	−5,000
20	ELECTRONICS TECHNOLOGY	286,936	266,936
.....	Excessive growth	.....	−20,000
21	WEAPONS OF MASS DESTRUCTION DEFEAT TECHNOLOGIES	212,742	212,742
22	SPECIAL OPERATIONS TECHNOLOGY DEVELOPMENT	26,545	36,745
.....	Program Increase—Unfunded Requirement	.....	+15,200
.....	Unexecutable growth	.....	−5,000
24	JOINT MUNITIONS ADVANCED TECH INSENSITIVE MUNITIONS AD	20,556	15,556
.....	Unjustified growth	.....	−5,000
25	SO/LIC ADVANCED DEVELOPMENT	44,423	44,423
26	COMBATING TERRORISM TECHNOLOGY SUPPORT	85,299	85,299
27	COUNTERPROLIFERATION INITIATIVES—PROLIF PREV & DEFEAT	295,163	295,163
28	BALLISTIC MISSILE DEFENSE TECHNOLOGY	132,220	92,220
.....	SM–3 Block IIB Development transfer to line 84, AEGIS BMD	.....	−40,000
29	JOINT ADVANCED CONCEPTS	6,808	6,808
30	JOINT DOD-DOE MUNITIONS TECHNOLOGY DEVELOPMENT	22,700	22,700
31	AGILE TRANSPO FOR THE 21ST CENTURY (AT21)—THEATER CA	750	750
32	ADVANCED AEROSPACE SYSTEMS	303,078	241,378
.....	ArcLight	.....	−5,000
.....	ISIS lack of transition partner	.....	−21,700
.....	MoTr program delays	.....	−15,000
.....	Vulture program descope and delays	.....	−20,000
33	SPACE PROGRAMS AND TECHNOLOGY	98,130	98,130
34	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM—ADVANCED DEVELOPMENT	177,113	222,713
.....	TMTI BA 5 unexecutable funding transferred back to S&T at request of the Department	.....	+45,600
35	JOINT ELECTRONIC ADVANCED TECHNOLOGY	8,386	8,386
36	JOINT CAPABILITY TECHNOLOGY DEMONSTRATIONS	206,917	191,917
.....	Unjustified growth	.....	−15,000
37	NETWORKED COMMUNICATIONS CAPABILITIES	30,035	25,035
.....	Unjustified growth	.....	−5,000
38	JOINT DATA MANAGEMENT RESEARCH	6,289	4,289
.....	Excessive growth	.....	−2,000
39	BIOMETRICS SCIENCE AND TECHNOLOGY	11,416	11,416
40	CYBER SECURITY ADVANCED RESEARCH	10,000	5,000
.....	Lack of authorization	.....	−5,000
41	HUMAN, SOCIAL AND CULTURE BEHAVIOR MODELING (HSCB) ADV	11,510	10,510
.....	Excessive growth	.....	−1,000
42	DEFENSE-WIDE MANUFACTURING SCIENCE AND TECHNOLOGY PROG	18,916	42,916
.....	Industrial Base Innovation Fund	.....	+24,000
43	JOINT ROBOTICS PROGRAM/AUTONOMOUS SYSTEMS	9,943	9,943
44	GENERIC LOGISTICS R&D TECHNOLOGY DEMONSTRATIONS	20,542	20,542
45	DEPLOYMENT AND DISTRIBUTION ENTERPRISE TECHNOLOGY	29,109	29,109
46	STRATEGIC ENVIRONMENTAL RESEARCH PROGRAM	68,021	64,021
.....	Unexecutable growth	.....	−4,000
47	MICROELECTRONIC TECHNOLOGY DEVELOPMENT AND SUPPORT	26,878	26,878
48	JOINT WARFIGHTING PROGRAM	10,966	10,966
49	ADVANCED ELECTRONICS TECHNOLOGIES	197,098	197,098
52	HIGH PERFORMANCE COMPUTING MODERNIZATION PROGRAM	200,986	240,986
.....	Program adjustment	.....	+40,000
53	COMMAND, CONTROL AND COMMUNICATIONS SYSTEMS	219,809	219,809
54	CLASSIFIED DARPA PROGRAMS	167,008	150,308
.....	Poor justification materials	.....	−16,700
55	NETWORK-CENTRIC WARFARE TECHNOLOGY	234,985	227,985
.....	Unsustained growth	.....	−7,000
56	SENSOR TECHNOLOGY	205,032	205,032
58	DISTRIBUTED LEARNING ADVANCED TECHNOLOGY DEVELOPMENT	13,986	13,986
59	SOFTWARE ENGINEERING INSTITUTE	30,910	30,910
61	QUICK REACTION SPECIAL PROJECTS	78,244	58,244
.....	Excessive growth	.....	−13,000
.....	P826—Excess to Quick Reaction Fund requirements	.....	−7,000
62	JOINT EXPERIMENTATION	111,946	91,946
.....	Excessive growth	.....	−20,000
63	MODELING AND SIMULATION MANAGEMENT OFFICE	38,140	33,140
.....	Unexecutable growth	.....	−5,000
64	DIRECTED ENERGY RESEARCH	98,688	123,688
.....	Program Increase	.....	+25,000
65	TEST & EVALUATION SCIENCE & TECHNOLOGY	97,642	97,642
66	TECHNOLOGY TRANSFER	23,310	17,310
.....	Unjustified growth	.....	−6,000
67	SPECIAL OPERATIONS ADVANCED TECHNOLOGY DEVELOPMENT	30,806	38,806
.....	SOF ACTD Programs	.....	+8,000
68	AVIATION ENGINEERING ANALYSIS	4,234	4,234
69	SOF INFORMATION & BROADCAST SYSTEMS ADVANCED TECHNOLOG	4,942	4,942
69X	INNOVATIVE RESEARCH	0	124,200
.....	Program adjustment	.....	+124,200
70	NUCLEAR AND CONVENTIONAL PHYSICAL SECURITY EQUIPMENT	32,132	32,132
71	RETRACT LARCH	21,592	21,592
72	JOINT ROBOTICS PROGRAM	9,878	9,878
73	ADVANCE SENSOR APPLICATIONS PROGRAM	18,060	18,060
74	ENVIRONMENTAL SECURITY TECHNICAL CERTIFICATION PROGRAM	30,419	30,419
75	BALLISTIC MISSILE DEFENSE TERMINAL DEFENSE SEGMENT	436,482	431,482
.....	Funding no longer required for transition to Reagan Test Site	.....	−5,000
76	BALLISTIC MISSILE DEFENSE MIDCOURSE DEFENSE SEGMENT	1,346,181	1,311,181
.....	Excess Award Fee and Test and Integration Delays	.....	−35,000
78	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	277,062	271,062
.....	Improved Nerve Agent Treatment System—slow obligation rate in fiscal year 2010	.....	−5,000
.....	Lightweight Chemical/Biological Ensemble execution delays	.....	−1,000
79	BALLISTIC MISSILE DEFENSE SENSORS	454,859	392,159
.....	Transfer to line 88 for Concurrent Test, Training and Operations	.....	−35,900
.....	Transfer to line 88 for TPY–2 C2BMC Fielding	.....	−13,000
.....	Transfer to line 88 for BMDS Radars Communications Sustainment (TPY-2)	.....	−13,800
81	BALLISTIC MISSILE DEFENSE TEST & TARGETS	1,113,425	1,008,525
.....	Transfer to lines 82 and 88	.....	−94,900
.....	Funding no longer required for move to Reagan Test Site	.....	−5,000
.....	Program Growth in Program Operations Systems Engineering and Systems Management	.....	−5,000
82	BALLISTIC MISSILE DEFENSE ENABLING PROGRAMS	402,769	406,269
.....	Transfer from line 81	.....	+43,500
.....	Excessive contractor support, advisory services and program growth	.....	−40,000
83	SPECIAL PROGRAMS—MDA	270,189	245,189
.....	Transfer to higher priority near-term MDA procurement programs	.....	−25,000
84	AEGIS BMD	1,467,278	1,569,278
.....	Program growth	.....	−12,000
.....	Navy requested transfer from OP,N line 109	.....	+72,500
.....	Aegis BMD Ships—Navy requested transfer from OM,N line 1B5B	.....	+1,500
.....	SM–3 Block IIB Development—transfer from line 28	.....	+40,000
85	SPACE SURVEILLANCE & TRACKING SYSTEM	112,678	112,678
87	BALLISTIC MISSILE DEFENSE SYSTEM SPACE PROGRAMS	10,942	10,942
88	BALLISTIC MISSILE DEFENSE C2BMC	342,625	456,725
.....	Transfer from line 81 for Concurrent Test, Training and Operations	.....	+51,400

R–1		Budget Request	Recommendation
.....	Transfer from line 79 for Concurrent Test, Training and Operations	.....	+35,900
.....	Transfer from line 79 for TPY–2 C2BMC Fielding	.....	+13,000
.....	Transfer from line 79 for BMDS Radar Communications Sustainement (TPY–2)	.....	+13,800
90	BALLISTIC MISSILE DEFENSE JOINT WARFIGHTER SUPPORT	68,726	58,726
.....	Duplication of effort with MDA core programs	.....	−10,000
91	CENTER (MDIOC)	86,198	86,198
92	REGARDING TRENCH	7,529	7,529
93	SEA BASED X-BAND RADAR (SBX)	153,056	153,056
98	ISRAELI COOPERATIVE PROGRAMS	121,735	209,935
.....	David's Sling Weapons Program	.....	+38,000
.....	Arrow System Improvement Program (ASIP)	.....	+42,000
.....	Arrow 3 Upper Tier Interceptor Program	.....	+8,200
99	HUMANITARIAN DEMINING	14,735	14,735
100	COALITION WARFARE	13,786	13,786
101	DEPARTMENT OF DEFENSE CORROSION PROGRAM	4,802	39,502
.....	Department of Defense Corrosion Prevention and Control Program	.....	+34,700
102	DOD UNMANNED AIRCRAFT SYSTEM (UAS) COMMON DEVELOPMENT	49,292	49,292
104	HUMAN, SOCIAL AND CULTURE BEHAVIOR MODELING (HSCB) RES	7,459	7,459
105	JOINT SYSTEMS INTEGRATION COMMAND (JSIC)	19,413	19,413
106	JOINT FIRES INTEGRATION & INTEROPERABILITY TEAM	16,637	16,637
107	LAND-BASED SM-3 (LBSM3)	281,378	281,378
108	AEGIS SM-3 BLOCK IIA CO-DEVELOPMENT	318,800	318,800
109	PRECISION TRACKING SPACE SYSTEM RDT&E	66,969	36,969
.....	Transfer to higher priority near-term MDA procurement programs	.....	−30,000
110	AIRBORNE INFRARED (ABIR)	111,671	76,671
.....	Transfer to higher priority near-term MDA procurement programs	.....	−35,000
111	REDUCTION OF TOTAL OWNERSHIP COST	20,310	20,310
112	JOINT ELECTROMAGNETIC TECHNOLOGY (JET) PROGRAM	4,027	4,027
113	DEFENSE ACQUISITION CHALLENGE PROGRAM (DACP)	24,344	24,344
114	NUCLEAR AND CONVENTIONAL PHYSICAL SECURITY EQUIPMENT	7,973	7,973
115	PROMPT GLOBAL STRIKE CAPABILITY DEVELOPMENT	239,861	239,861
116	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	407,162	300,562
.....	Plague Vaccine—slow obligation rate in fiscal year 2010	.....	−5,000
.....	TMTI BA 5 unexecutable funding transferred back to S&T at request of the Department	.....	−65,600
.....	Bioscavenger Increment II schedule delays	.....	−12,000
.....	Decontamination Family of Systems schedule delays	.....	−9,000
.....	Next Generation Chemical Standoff Detection schedule delays	.....	−9,000
.....	SSI NBCRS growth without acquisition strategy	.....	−6,000
117	JOINT ROBOTICS PROGRAM	4,155	4,155
118	ADVANCED IT SERVICES JOINT PROGRAM OFFICE (AITS-JPO)	49,364	23,695
.....	Technology Initiatives Investment Fund	.....	−25,669
119	JOINT TACTICAL INFORMATION DISTRIBUTION SYSTEM (JTIDS)	20,954	20,954
120	WEAPONS OF MASS DESTRUCTION DEFEAT CAPABILITIES	7,307	7,307
121	INFORMATION TECHNOLOGY DEVELOPMENT	11,937	11,937
122	DEFENSE INTEGRATED MILITARY HUMAN RESOURCES SYSTEM	11,800	11,800
123	BUSINESS TRANSFORMATION AGENCY R&D ACTIVITIES	184,131	181,166
.....	VIPS Increment II contract award in fiscal year 2012	.....	−2,965
124	HOMELAND PERSONNEL SECURITY INITIATIVE	391	391
125	OUSD(C) IT DEVELOPMENT INITIATIVES	5,000	5,000
126	TRUSTED FOUNDRY	35,512	35,512
128	GLOBAL COMBAT SUPPORT SYSTEM	17,842	17,842
130	WOUNDED ILL AND INJURED SENIOR OVERSIGHT COMMITTEE	1,590	1,590
132	DEFENSE READINESS REPORTING SYSTEM (DRRS)	5,113	5,113
133	JOINT SYSTEMS ARCHITECTURE DEVELOPMENT	8,052	8,052
134	CENTRAL TEST AND EVALUATION INVESTMENT DEVELOPMENT	162,286	162,286
135	ASSESSMENTS AND EVALUATIONS	2,500	2,500
136	THERMAL VICAR	8,851	8,851
137	JOINT MISSION ENVIRONMENT TEST CAPABILITY (JMETC)	10,287	10,287
138	TECHNICAL STUDIES, SUPPORT AND ANALYSIS	49,282	49,282
139	USD(A&T)—CRITICAL TECHNOLOGY SUPPORT	4,743	4,743
140	FOREIGN MATERIAL ACQUISITION AND EXPLOITATION	95,520	95,520
141	JOINT THEATER AIR AND MISSILE DEFENSE ORGANIZATION	94,577	94,577
142	CLASSIFIED PROGRAM USD(P)	0	106,000
.....	Classified Program USD(P)	.....	+106,000
143	FOREIGN COMPARATIVE TESTING	32,755	27,755
.....	Unjustified growth	.....	−5,000
144	SYSTEMS ENGINEERING	29,824	37,024
.....	Sustainment of fiscal year 2010 level	.....	+7,200
145	NUCLEAR MATTERS—PHYSICAL SECURITY	6,264	6,264
146	SUPPORT TO NETWORKS AND INFORMATION INTEGRATION	15,091	15,091
147	GENERAL SUPPORT TO USD (INTELLIGENCE)	6,227	6,227
147X	DEFENSE-WIDE ELECTRONIC PROCUREMENT CAPACITY	0	12,000
.....	Program Increase—contract management services program	.....	+12,000
148	CHEMICAL AND BIOLOGICAL DEFENSE PROGRAM	120,995	120,995
155	SMALL BUSINESS INNOVATION RESEARCH/CHALLENGE ADMINISTR	2,189	2,189
156	DEFENSE TECHNOLOGY ANALYSIS	13,858	11,158
.....	P796—Technical Grand Challenge Program	.....	−2,700
157	FORCE TRANSFORMATION DIRECTORATE	19,701	19,701
158	DEFENSE TECHNICAL INFORMATION CENTER (DTIC)	61,054	58,554
.....	Excessive growth	.....	−2,500
159	R&D IN SUPPORT OF DOD ENLISTMENT, TESTING & EVALUATION	64,737	64,737
160	DEVELOPMENT TEST AND EVALUATION	18,688	25,888
.....	Sustainment of fiscal year 2010 level	.....	+7,200
161	DARPA AGENCY RELOCATION	11,000	11,000
162	MANAGEMENT HEADQUARTERS (RESEARCH & DEVELOPMENT)	56,257	56,257
163	BUDGET AND PROGRAM ASSESSMENTS	6,099	6,099
164	AVIATION SAFETY TECHNOLOGIES	10,900	10,900
165	JOINT STAFF ANALYTICAL SUPPORT	23,081	8,081
.....	Growth without acquisition strategy	.....	−15,000
168	SUPPORT TO INFORMATION OPERATIONS (IO) CAPABILITIES	31,500	31,500
169	INFORMATION TECHNOLOGY RAPID ACQUISITION	5,135	5,135
170	CYBER SECURITY INITIATIVE	10,000	10,000
171	INTELLIGENCE SUPPORT TO INFORMATION OPERATIONS (IO)	21,272	21,272
173	WARFIGHTING AND INTELLIGENCE-RELATED SUPPORT	845	845
174	COCOM EXERCISE ENGAGEMENT AND TRAINING TRANSFORMATION	92,253	48,688
.....	P 754—Initiatives funded by Services	.....	−33,315
.....	P 764—NPSUE funding without program	.....	−10,250
175	PENTAGON RESERVATION	20,482	20,482
176	MANAGEMENT HEADQUARTERS—MDA	29,754	29,754
177	IT SOFTWARE DEV INITIATIVES	278	278
.....	CLASSIFIED PROGRAMS	61,577	61,577
178	DEFENSE INFORMATION SYSTEM FOR SECURITY (DISS)	5,522	1,000
.....	Unjustified program	.....	−4,522
179	REGIONAL INTERNATIONAL OUTREACH & PARTNERSHIP FOR PEACE	2,139	2,139
180	OVERSEAS HUMANITARIAN ASSISTANCE SHARED INFORMATION SYSTEM	290	290
181	CHEMICAL AND BIOLOGICAL DEFENSE (OPERATIONAL SYSTEMS DEVELOPMENT)	6,634	6,634
183	JOINT INTEGRATION AND INTEROPERABILITY	44,139	44,139
185	CLASSIFIED PROGRAMS	2,288	2,288
186	C4I INTEROPERABILITY	74,023	74,023
188	JOINT/ALLIED COALITION INFORMATION SHARING	9,379	9,379
195	NATIONAL MILITARY COMMAND SYSTEM-WIDE SUPPORT	467	467
196	DEFENSE INFO INFRASTRUCTURE ENGINEERING AND INTEGRATION	16,629	36,629
.....	Cyber Security Pilot Programs	.....	+20,000
197	LONG HAUL COMMUNICATIONS (DCS)	9,130	9,130

R–1		Budget Request	Recommendation
198	MINIMUM ESSENTIAL EMERGENCY COMMUNICATIONS NETWORK	9,529	9,529
199	PUBLIC KEY INFRASTRUCTURE (PKI)	8,881	8,881
200	KEY MANAGEMENT INFRASTRUCTURE (KMI)	45,941	45,941
201	INFORMATION SYSTEMS SECURITY PROGRAM	14,077	14,077
202	INFORMATION SYSTEMS SECURITY PROGRAM	388,827	388,827
205	C4I FOR THE WARRIOR	2,261	2,261
206	GLOBAL COMMAND AND CONTROL SYSTEM	26,247	25,047
.....	Fiscal year 2012 testing	.....	−1,200
207	JOINT SPECTRUM CENTER	20,991	20,991
208	NET-CENTRIC ENTERPRISE SERVICES (NCES)	3,366	3,366
209	JOINT MILITARY DECEPTION INITIATIVE	1,161	1,161
210	TELEPORT PROGRAM	6,880	6,880
211	SPECIAL APPLICATIONS FOR CONTINGENCIES	16,272	16,272
214	CYBER SECURITY INITIATIVE	501	501
216	CYBER SECURITY INITIATIVE	2,251	2,251
217	CYBER SECURITY INITIATIVE	10,486	10,486
221	POLICY R&D PROGRAMS	9,136	9,136
223	NET CENTRICITY	29,831	14,831
.....	Unjustified growth	.....	−15,000
227	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS	1,290	1,290
230	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS	3,513	3,513
232	MQ–1 PREDATOR A UAV	98	98
234	HOMELAND DEFENSE TECHNOLOGY TRANSFER PROGRAM	2,988	2,988
235	INT'L INTELLIGENCE TECHNOLOGY ASSESSMENT, ADVANCEMENT	1,416	1,416
245	INDUSTRIAL PREPAREDNESS	21,798	21,798
246	LOGISTICS SUPPORT ACTIVITIES	2,813	2,813
247	MANAGEMENT HEADQUARTERS (JCS)	2,807	2,807
249	NATO AGS	93,885	93,885
250	MQ–9 UAV	98	98
252	SPECIAL OPERATIONS AVIATION SYSTEMS ADVANCED DEVELOPMENT	68,691	68,691
253	SPECIAL OPERATIONS TACTICAL SYSTEMS DEVELOPMENT	1,582	1,582
254	SPECIAL OPERATIONS INTELLIGENCE SYSTEMS DEVELOPMENT	23,879	25,479
.....	Program Increase—Unfunded Requirement	.....	+1,600
255	SOF OPERATIONAL ENHANCEMENTS	62,592	63,692
.....	Program Increase—Unfunded Requirement	.....	+4,000
.....	Program termination	.....	−2,900
256	SPECIAL OPERATIONS CV–22 DEVELOPMENT	14,406	14,406
257	JOINT MULTI-MISSION SUBMERSIBLE	14,924	0
.....	SOCOM requested transfer to line 269	.....	−14,924
259	MISSION TRAINING AND PREPARATION SYSTEMS (MTPS)	2,915	2,915
261	MC130J SOF TANKER RECAPITALIZATION	7,624	7,624
262	SOF COMMUNICATIONS EQUIPMENT AND ELECTRONICS SYSTEMS	1,922	922
.....	Execution delays	.....	−1,000
263	SOF TACTICAL RADIO SYSTEMS	2,347	2,347
264	SOF WEAPONS SYSTEMS	479	479
265	SOF SOLDIER PROTECTION AND SURVIVAL SYSTEMS	593	593
267	SOF TACTICAL VEHICLES	1,994	994
.....	Change in requirements	.....	−1,000
268	SOF ROTARY WING AVIATION	14,473	33,715
.....	SOCOM requested transfer from P,DW line 57	.....	+19,242
269	SOF UNDERWATER SYSTEMS	13,986	28,910
.....	SOCOM requested transfer from line 257	.....	+14,924
270	SOF SURFACE CRAFT	2,933	18,933
.....	Program Increase—CCM Unfunded Requirement	.....	+16,000
271	SOF PSYOP	4,193	4,193
272	SOF GLOBAL VIDEO SURVEILLANCE ACTIVITIES	5,135	5,135
273	SOF OPERATIONAL ENHANCEMENTS INTELLIGENCE	9,167	9,167
.....	CLASSIFIED PROGRAMS	3,832,019	4,011,571
.....	Classified adjustment	.....	+179,552
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, DEFENSE-WIDE	20,661,600	20,797,412
	OPERATIONAL TEST & EVALUATION, DEFENSE		
1	OPERATIONAL TEST AND EVALUATION	59,430	59,430
2	LIVE FIRE TEST AND EVALUATION	12,899	12,899
3	OPERATIONAL TEST ACTIVITIES AND ANALYSES	122,581	122,581
.....	TOTAL, OPERATIONAL TEST & EVALUATION, DEFENSE	194,910	194,910
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION	76,130,700	74,957,028

P–1		Budget Request	Recommendation
	NATIONAL DEFENSE SEALIFT FUND		
.....	STRATEGIC SHIP ACQUISITION	411,202	911,202
.....	Additional Mobile Landing Platform	.....	+500,000
.....	DoD MOBILIZATION ASSETS	158,647	158,647
.....	STRATEGIC SEALIFT SUPPORT	4,875	4,875
.....	SEALIFT RESEARCH AND DEVELOPMENT	28,012	28,012
.....	READY RESERVE FORCE OPERATIONS AND MAINTENANCE	332,130	332,130
.....	MARITIME ADMINISTRATION SHIP FINANCING GUARANTEE PROGRAM	.....	40,000
.....	TOTAL, NATIONAL DEFENSE SEALIFT FUND	934,866	1,474,866
	DEFENSE HEALTH PROGRAM		
.....	OPERATION AND MAINTENANCE	29,915,277	29,671,764
.....	IN-HOUSE CARE	7,781,877	7,791,077
.....	Army Substance Abuse Program—Transfer to OM,A line 131	2,800	−2,800
.....	Pain Management Task Force	.....	+12,000
.....	PRIVATE SECTOR CARE	16,034,745	15,673,745
.....	TRICARE Underexecution	.....	−236,000
.....	Global Deployment of the Force medical research funding—DOD requested transfer to maintain full funding for the program	.....	−125,000
.....	CONSOLIDATED HEALTH CARE	2,122,483	2,085,770
.....	Army Substance Abuse Program—Transfer to OM,A line 131	27,825	−27,825
.....	Psychological Health—State Directors for the National Guard—Transfer to OM,ARNG line 133	.....	−8,888
.....	INFORMATION MANAGEMENT/IT	1,452,330	1,452,330
.....	MANAGEMENT HEADQUARTERS	293,698	288,698
.....	MHS Strategic Communications efficiencies	.....	−5,000
.....	EDUCATION AND TRAINING	632,534	632,534
.....	BASE OPERATIONS AND COMMUNICATIONS	1,597,610	1,747,610
.....	Medical Facilities Sustainment, Restoration and Modernization	.....	+150,000
.....	PROCUREMENT	519,921	534,921
.....	Procurement of Medical Equipment and IO&T—Navy	.....	+15,000
.....	RESEARCH AND DEVELOPMENT	499,913	1,175,513
.....	ALS	.....	+8,000
.....	Armed Forces Institute of Regenerative Medicine	.....	+4,800
.....	Autism Research	.....	+6,400
.....	Bone Marrow Failure Disease Research Program	.....	+4,000
.....	Duchenne Muscular Dystrophy	.....	+4,000
.....	Global HIV/AIDS Prevention	.....	+10,000

P–1		Budget Request	Recommendation
.....	Traumatic Brain Injury and Psychological Health	.....	+100,000
.....	Global Deployment of the Force medical research funding—Department of Defense requested transfer to maintain full funding for the program	.....	+125,000
.....	Gulf War Illness Peer-Reviewed Research Program	.....	+8,000
.....	Multiple Sclerosis	.....	+4,800
.....	Peer-Reviewed Alzheimer Research	.....	+15,000
.....	Peer-Reviewed Breast Cancer Research Program	.....	+150,000
.....	Peer-Reviewed Cancer Research Program	.....	+16,000
.....	Peer-Reviewed Lung Cancer Research Program	.....	+12,800
.....	Peer-Reviewed Orthopedic Research Program	.....	+24,000
.....	Peer-Reviewed Ovarian Cancer Research Program	.....	+20,000
.....	Peer Reviewed Vision research in conjunction with the DoD Vision Center of Excellence	.....	+4,000
.....	Peer-Reviewed Prostate Cancer Research Program	.....	+80,000
.....	Peer-Reviewed Spinal Cord Research Program	.....	+12,000
.....	Research in Alcohol and Substance Use Disorders	.....	+5,200
.....	SBIR to the core funded RDT&E	.....	+1,200
.....	Tuberous Sclerosis Complex (TSC)	.....	+6,400
.....	Pain Management Task Force Research	.....	+4,000
.....	Peer Reviewed Medical Research Program	.....	+50,000
.....	TOTAL, DEFENSE HEALTH PROGRAM	30,935,111	31,382,198
	CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE		
.....	OPERATION AND MAINTENANCE	1,067,364	1,067,364
.....	PROCUREMENT	7,132	7,132
.....	RESEARCH, DEVELOPMENT, TEST AND EVALUATION	392,811	392,811
.....	TOTAL, CHEMICAL AGENTS AND MUNITIONS DESTRUCTION, DEFENSE	1,467,307	1,467,307
	DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE		
PC1293	Supplies and Materials (non-fund)—NSA	.....	−1,000
PC1329	Other Intra-Governmental Purchases—Navy	.....	−2,500
PC6501	Other Intra-Governmental Purchases—OSD	.....	−2,000
PC9206	Other Intra-Governmental Purchases—OSD	.....	−4,000
PC9205	EUCOM Counternarcotics Operations Support excessive growth	.....	−3,000
PC1293	International crime and narcotics analytic tools excessive growth	.....	−1,000
PC2360	EUCOM Tactical Analysis Team Support unauthorized new Start	.....	−1,500
.....	FFRDC cost growth and CN indicated no need	.....	−11,394
.....	National Guard Counter-Drug Program-State Plans	.....	+50,000
.....	Young Marines-Drug Demand Reduction	.....	+2,000
.....	TOTAL, DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE	1,131,351	1,156,957
	JOINT IMPROVISED EXPLOSIVE DEVICE DEFEAT FUND		
4	STAFF AND INFRASTRUCTURE	215,868	0
.....	Transfer to Title IX	.....	−215,868
.....	TOTAL, JOINT IMPROVISED EXPLOSIVE DEVICE DEFEAT FUND	215,868	0
	OFFICE OF THE INSPECTOR GENERAL		
.....	OPERATION AND MAINTENANCE	282,354	305,794
.....	Program Increase	.....	+23,440
.....	PROCUREMENT	1,000	1,000
.....	TOTAL, OFFICE OF THE INSPECTOR GENERAL	283,354	306,794
.....	TOTAL, OTHER DEPARTMENT OF DEFENSE PROGRAMS	34,032,991	34,313,256

M–1		Budget Request	Recommendation
	MILITARY PERSONNEL, ARMY		
	BA–1: PAY AND ALLOWANCES OF OFFICERS.		
.....	BASIC PAY	1,237,779	1,237,779
.....	RETIRED PAY ACCRUAL	313,278	313,278
.....	BASIC ALLOWANCE FOR HOUSING	349,839	349,839
.....	BASIC ALLOWANCE FOR SUBSISTENCE	44,752	44,752
.....	INCENTIVE PAYS	2,835	2,835
.....	SPECIAL PAYS	159,261	159,261
.....	ALLOWANCES	56,632	56,632
.....	SEPARATION PAY	1,303	1,303
.....	SOCIAL SECURITY TAX	94,650	94,650
.....	TOTAL, BA–1	2,260,329	2,260,329
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL	.....	.....
.....	BASIC PAY	2,708,271	2,708,271
.....	RETIRED PAY ACCRUAL	693,325	693,325
.....	BASIC ALLOWANCE FOR HOUSING	1,113,877	1,113,877
.....	INCENTIVE PAYS	6,714	6,714
.....	SPECIAL PAYS	574,120	574,120
.....	ALLOWANCES	241,921	241,921
.....	SEPARATION PAY	26,276	26,276
.....	SOCIAL SECURITY TAX	207,174	207,174
.....	TOTAL, BA–2	5,571,678	5,571,678
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL	.....	.....
.....	BASIC ALLOWANCE FOR SUBSISTENCE	329,046	329,046
.....	SUBSISTENCE-IN-KIND	1,871,805	1,871,805
.....	TOTAL, BA–4	2,200,851	2,200,851
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL	.....	.....
.....	ACCESSION TRAVEL	45,512	45,512
.....	OPERATIONAL TRAVEL	107,025	107,025
.....	ROTATIONAL TRAVEL	45,514	45,514
.....	TOTAL, BA–5	198,051	198,051
.....	BA–6: OTHER MILITARY PERSONNEL COSTS	.....	.....
.....	INTEREST ON UNIFORMED SERVICES SAVINGS	16,102	16,102
.....	DEATH GRATUITIES	66,220	66,220
.....	UNEMPLOYMENT BENEFITS	192,223	192,223
.....	RESERVE INCOME REPLACEMENT PROGRAM	1,895	1,895
.....	SGLI EXTRA HAZARD PAYMENTS	171,060	171,060
.....	TOTAL, BA–6	447,500	447,500
.....	UNDISTRIBUTED ADJUSTMENT	.....	428,624
.....	Undistributed Transfer from Title I	.....	+428,624
.....	TOTAL, MILITARY PERSONNEL, ARMY	10,678,409	11,107,033
	MILITARY PERSONNEL, NAVY		
.....	BA–1: PAY AND ALLOWANCES OF OFFICERS	.....	.....
.....	BASIC PAY	213,340	213,340

M–1		Budget Request	Recommendation
.....	RETIRED PAY ACCRUAL	59,067	59,067
.....	BASIC ALLOWANCE FOR HOUSING	67,023	67,023
.....	BASIC ALLOWANCE FOR SUBSISTENCE	7,315	7,315
.....	INCENTIVE PAYS	1,543	1,543
.....	SPECIAL PAYS	16,667	16,667
.....	ALLOWANCES	16,754	16,754
.....	SEPARATION PAY	14	14
.....	SOCIAL SECURITY TAX	16,320	16,320
.....	TOTAL, BA–1	398,043	398,043
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL		
.....	BASIC PAY	262,656	262,656
.....	RETIRED PAY ACCRUAL	74,338	74,338
.....	BASIC ALLOWANCE FOR HOUSING	121,913	121,913
.....	INCENTIVE PAYS	325	325
.....	SPECIAL PAYS	80,007	80,007
.....	ALLOWANCES	27,692	27,692
.....	SEPARATION PAY	3,535	3,535
.....	SOCIAL SECURITY TAX	20,093	20,093
.....	TOTAL, BA–2	590,559	590,559
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL		
.....	BASIC ALLOWANCE FOR SUBSISTENCE	28,639	28,639
.....	SUBSISTENCE-IN-KIND	14,546	14,546
.....	TOTAL, BA–4	43,185	43,185
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL		
.....	ACCESSION TRAVEL	5,214	5,214
.....	OPERATIONAL TRAVEL	23,903	23,903
.....	ROTATIONAL TRAVEL	30,110	30,110
.....	SEPARATION TRAVEL	3,132	3,132
.....	TOTAL, BA–5	62,359	62,359
.....	BA–6: OTHER MILITARY PERSONNEL COSTS		
.....	DEATH GRATUITIES	3,800	3,800
.....	UNEMPLOYMENT BENEFITS	29,662	29,662
.....	SGLI EXTRA HAZARD PAYMENTS	51,111	51,111
.....	TOTAL, BA–6	84,573	84,573
.....	UNDISTRIBUTED ADJUSTMENT		130,000
.....	Higher than Budgeted Mobilization Levels		+110,000
.....	Increased Deployment Levels		+20,000
.....	TOTAL, MILITARY PERSONNEL, NAVY	1,178,719	1,308,719
	MILITARY PERSONNEL, MARINE CORPS		
.....	BA–1: PAY AND ALLOWANCES OF OFFICERS		
.....	BASIC PAY	40,079	40,079
.....	RETIRED PAY ACCRUAL	13,308	13,308
.....	BASIC ALLOWANCE FOR HOUSING	18,565	18,565
.....	BASIC ALLOWANCE FOR SUBSISTENCE	1,760	1,760
.....	SPECIAL PAYS	10,747	10,747
.....	ALLOWANCES	4,805	4,805
.....	SOCIAL SECURITY TAX	4,176	4,176
.....	TOTAL, BA–1	93,440	93,440
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL		
.....	BASIC PAY	190,013	190,013
.....	RETIRED PAY ACCRUAL	43,090	43,090
.....	BASIC ALLOWANCE FOR HOUSING	45,977	45,977
.....	SPECIAL PAYS	95,395	95,395
.....	ALLOWANCES	40,431	40,431
.....	SEPARATION PAY	3,017	3,017
.....	SOCIAL SECURITY TAX	13,435	13,435
.....	TOTAL, BA–2	431,358	431,358
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL		
.....	BASIC ALLOWANCE FOR SUBSISTENCE	21,420	21,420
.....	TOTAL, BA–4	21,420	21,420
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL		
.....	ACCESSION TRAVEL	3,270	3,270
.....	TOTAL, BA–5	3,270	3,270
.....	BA–6: OTHER MILITARY PERSONNEL COSTS		
.....	DEATH GRATUITIES	27,000	27,000
.....	UNEMPLOYMENT BENEFITS	19,942	19,942
.....	SGLI EXTRA HAZARD PAYMENTS	48,345	48,345
.....	TOTAL, BA–6	95,287	95,287
.....	UNDISTRIBUTED ADJUSTMENT		88,145
.....	Over Budgeted End Strength		+88,145
.....	TOTAL, MILITARY PERSONNEL, MARINE CORPS	644,775	732,920
	MILITARY PERSONNEL, AIR FORCE		
.....	BA–1: PAY AND ALLOWANCES OF OFFICERS		
.....	BASIC PAY	188,334	188,334
.....	RETIRED PAY ACCRUAL	45,953	45,953
.....	BASIC ALLOWANCE FOR HOUSING	58,889	58,889
.....	BASIC ALLOWANCE FOR SUBSISTENCE	7,320	7,320
.....	SPECIAL PAYS	13,613	13,613
.....	ALLOWANCES	5,760	5,760
.....	SOCIAL SECURITY TAX	14,408	14,408
.....	TOTAL, BA–1	334,277	334,277
.....	BA–2: PAY AND ALLOWANCES OF ENLISTED PERSONNEL		
.....	BASIC PAY	472,896	472,896
.....	RETIRED PAY ACCRUAL	115,387	115,387
.....	BASIC ALLOWANCE FOR HOUSING	177,545	177,545
.....	SPECIAL PAYS	49,964	49,964
.....	ALLOWANCES	16,254	16,254
.....	SOCIAL SECURITY TAX	36,177	36,177
.....	TOTAL, BA–2	868,223	868,223
.....	BA–4: SUBSISTENCE OF ENLISTED PERSONNEL		
.....	BASIC ALLOWANCE FOR SUBSISTENCE	39,090	39,090
.....	SUBSISTENCE-IN-KIND	61,805	61,805
.....	TOTAL, BA–4	100,895	100,895
.....	BA–5: PERMANENT CHANGE OF STATION TRAVEL		
.....	OPERATIONAL TRAVEL	5,957	5,957
.....	TOTAL, BA–5	5,957	5,957
.....	BA–6: OTHER MILITARY PERSONNEL COSTS		
.....	DEATH GRATUITIES	2,000	2,000
.....	UNEMPLOYMENT BENEFITS	27,978	27,978
.....	SGLI EXTRA HAZARD PAYMENTS	67,057	67,057

M–1		Budget Request	Recommendation
.....	TOTAL, BA–6	97,035	97,035
.....	UNDISTRIBUTED ADJUSTMENT		437,055
.....	Higher than Budgeted Mobilization Levels		+378,000
.....	Over Budgeted End Strength		+59,055
.....	TOTAL, MILITARY PERSONNEL, AIR FORCE	1,406,387	1,843,442
	RESERVE PERSONNEL, ARMY		
.....	BA–1: UNIT AND INDIVIDUAL TRAINING		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	104,230	104,230
.....	SCHOOL TRAINING	9,886	9,886
.....	SPECIAL TRAINING	153,915	153,915
.....	TOTAL, BA–1	268,031	268,031
.....	TOTAL, RESERVE PERSONNEL, ARMY	268,031	268,031
	RESERVE PERSONNEL, NAVY		
.....	BA–1: UNIT AND INDIVIDUAL TRAINING		
.....	SCHOOL TRAINING	7,019	7,019
.....	SPECIAL TRAINING	38,683	38,683
.....	ADMINISTRATION AND SUPPORT	3,210	3,210
.....	TOTAL, BA–1	48,912	48,912
.....	TOTAL, RESERVE PERSONNEL, NAVY	48,912	48,912
	RESERVE PERSONNEL, MARINE CORPS		
.....	BA–1: UNIT AND INDIVIDUAL TRAINING		
.....	SCHOOL TRAINING	5,467	5,467
.....	SPECIAL TRAINING	24,797	24,797
.....	ADMINISTRATION AND SUPPORT	373	373
.....	TOTAL, BA–1	30,637	30,637
.....	UNDISTRIBUTED ADJUSTMENT		14,800
.....	Over Budgeted End Strength		+14,800
.....	TOTAL, RESERVE PERSONNEL, MARINE CORPS	30,637	45,437
	RESERVE PERSONNEL, AIR FORCE		
.....	BA–1: UNIT AND INDIVIDUAL TRAINING		
.....	SPECIAL TRAINING	27,002	27,002
.....	TOTAL, BA–1	27,002	27,002
.....	TOTAL, RESERVE PERSONNEL, AIR FORCE	27,002	27,002
	NATIONAL GUARD PERSONNEL, ARMY		
.....	BA–1: UNIT AND INDIVIDUAL TRAINING		
.....	PAY GROUP A TRAINING (15 DAYS and DRILLS 24/48)	231,547	231,547
.....	SPECIAL TRAINING	550,090	550,090
.....	ADMINISTRATION AND SUPPORT	46,485	46,485
.....	TOTAL, BA–1	828,122	828,122
.....	UNDISTRIBUTED ADJUSTMENT		24,900
.....	Support to Southwest Border		+24,900
.....	TOTAL, NATIONAL GUARD PERSONNEL, ARMY	828,122	853,022
	NATIONAL GUARD PERSONNEL, AIR FORCE		
.....	BA–1: UNIT AND INDIVIDUAL TRAINING		
.....	SPECIAL TRAINING	21,060	11,060
.....	Excess to Need		−10,000
.....	TOTAL, BA–1	21,060	11,060
.....	UNDISTRIBUTED ADJUSTMENT		5,800
.....	Support to Southwest Border		+5,800
.....	TOTAL, NATIONAL GUARD PERSONNEL, AIR FORCE	21,060	16,860
.....	TOTAL, MILITARY PERSONNEL	15,132,054	16,251,378

O–1		Budget Request	Recommendation
	OPERATION AND MAINTENANCE, ARMY		
131	BASE OPERATIONS SUPPORT	0	950,000
.....	Increased Peacetime Base Operations Support Costs to Redeployment of Soldiers from Iraq		+950,000
135	ADDITIONAL ACTIVITIES	47,638,208	44,608,615
.....	Reduced Deployment Level		−2,500,000
.....	Transfer to SAG 421 for Subsistence Transportation Costs		−1,013,000
.....	Transfer from Overseas Contingency Operations Transfer Fund for Detainee Operations		+80,000
.....	Transfer from JIEDDO—Synchronization and Integration WTI Cell		+3,200
.....	Transfer from JIEDDO—Thermal Station (National IED Exploitation Facility (NIEF))		+13,000
.....	Transfer from JIEDDO—Beachcomber		+3,000
.....	Transfer from JIEDDO—Counter Bomber		+1,500
.....	Transfer from JIEDDO—CREW-SSM Universal Test Set		+3,000
.....	Transfer from JIEDDO—Subtle Magnetic Anomaly Detection Network Systems		+1,000
.....	Transfer from JIEDDO—Technical Collection Training Program		+16,400
.....	Transfer from Title II—Chemical Defense Equipment Sustainment		+8,579
.....	Transfer from Title II—MRAP Vehicle Sustainment at Combat Training Centers		+6,420
.....	Transfer from Title II—Body Armor Sustainment		+71,660
.....	Transfer from Title II—Rapid Equipping Force Readiness		+9,294
.....	Transfer from Title II—Fixed Wing Life Cycle Contract Support		+21,171
.....	Transfer from Title II—Overseas Security Guards		+200,000
.....	Transfer from Title II—Senior Leader Initiative—Comprehensive Soldier Fitness Program		+30,000
.....	Transfer from Title II—Survivability and Maneuverability Training		+15,183
136	COMMANDERS EMERGENCY RESPONSE PROGRAM	1,300,000	500,000
.....	Program reduction		−400,000
.....	Transfer to Afghanistan Infrastructure Fund		−400,000
137	RESET	7,840,211	6,261,568
.....	Army-Identified Excess Reset Requirement		−1,578,643
411	SECURITY PROGRAMS	2,358,865	2,364,265
.....	Transfer from JIEDDO—Air Vigilance		+5,400
421	SERVICEWIDE TRANSPORTATION	3,465,334	4,478,334
.....	Transfer from SAG 135 for Subsistence Transportation Costs		+1,013,000
.....	TOTAL, OPERATION AND MAINTENANCE, ARMY	62,602,618	59,162,782
	OPERATION AND MAINTENANCE, NAVY		
1A1A	MISSION AND OTHER FLIGHT OPERATIONS	1,839,918	1,839,918
1A2A	FLEET AIR TRAINING	3,453	3,453
1A3A	AVIATION TECHNICAL DATA & ENGINEERING SVCS	1,400	1,400
1A4A	AIR OPERATIONS AND SAFETY SUPPORT	26,837	26,837

O–1		Budget Request	Recommendation
1A4N	AIR SYSTEMS SUPPORT	44,567	44,567
1A5A	AIRCRAFT DEPOT MAINTENANCE	233,114	281,114
.....	Aircraft Depot Maintenance Increase	.....	+48,000
1B1B	MISSION AND OTHER SHIP OPERATIONS	1,151,465	1,151,465
1B2B	SHIP OPERATIONS SUPPORT & TRAINING	27,472	27,472
1B4B	SHIP DEPOT MAINTENANCE	1,266,556	1,290,556
.....	Ship Depot Maintenance Increase	.....	+24,000
1C1C	COMBAT COMMUNICATIONS	38,468	38,468
1C4C	WARFARE TACTICS	82,801	32,801
.....	Navy Identified Excess to Requirement for CENTCOM Operations	.....	−50,000
1C5C	OPERATIONAL METEOROLOGY AND OCEANOGRAPHY	24,855	24,855
1C6C	COMBAT SUPPORT FORCES	2,737,727	2,930,528
.....	Transfer from Title II—Naval Expeditionary Combat Command Increases	.....	+192,801
1C7C	EQUIPMENT MAINTENANCE	3,677	3,677
1CCH	COMBATANT COMMANDERS CORE OPERATIONS	7,000	7,000
1CCM	COMBATANT COMMANDERS DIRECT MISSION SUPPORT	7,455	7,455
1D3D	IN-SERVICE WEAPONS SYSTEMS SUPPORT	99,118	100,118
.....	Transfer from JIEDDO—CREW-SSM Universal Test Set	.....	+1,000
1D4D	WEAPONS MAINTENANCE	82,519	82,519
1D7D	OTHER WEAPON SYSTEMS SUPPORT	16,938	16,938
BSIT	ENTERPRISE INFORMATION	10,350	0
.....	ONE-NET Baseline Budget Requirement	.....	−10,350
BSM1	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	28,250	49,250
.....	Continuing Operations at Guantanamo Bay—Transfer from Overseas Contingency Operations Transfer Fund	.....	+21,000
BSS1	BASE OPERATING SUPPORT	381,749	436,249
.....	Continuing Operations at Guantanamo Bay—Transfer from Overseas Contingency Operations Transfer Fund	.....	+4,000
.....	Transfer from JIEDDO—Counter Bomber	.....	+500
.....	Transfer from Title II—Regional/Emergency Operations Center	.....	+50,000
2A1F	SHIP PREPOSITIONING AND SURGE	27,300	27,300
2C1H	FLEET HOSPITAL PROGRAM	4,400	4,400
2C3H	COAST GUARD SUPPORT	254,461	0
.....	Transfer to Department of Homeland Security	.....	−254,461
3B1K	SPECIALIZED SKILL TRAINING	81,454	84,454
.....	Transfer from Title II—NAVSEA VSSS/EOD Training	.....	+3,000
3B4K	TRAINING SUPPORT	5,400	0
.....	Training Support Baseline Budget Requirement	.....	−5,400
4A1M	ADMINISTRATION	4,265	4,265
4A2M	EXTERNAL RELATIONS	467	467
4A3M	CIVILIAN MANPOWER AND PERSONNEL MANAGEMENT	450	450
4A4M	MILITARY MANPOWER AND PERSONNEL MANAGEMENT	11,214	11,214
4A5M	OTHER PERSONNEL SUPPORT	2,706	2,706
4A6M	SERVICEWIDE COMMUNICATIONS	28,671	28,671
4B1N	SERVICEWIDE TRANSPORTATION	300,868	300,868
4B3N	ACQUISITION AND PROGRAM MANAGEMENT	6,091	6,091
4B7N	SPACE AND ELECTRONIC WARFARE SYSTEMS	2,153	2,153
4C1P	NAVAL INVESTIGATIVE SERVICE	78,464	78,464
9999	OTHER PROGRAMS	22,581	22,581
.....	TOTAL, OPERATION AND MAINTENANCE, NAVY	8,946,634	8,970,724
	OPERATION AND MAINTENANCE, MARINE CORPS		
1A1A	OPERATIONAL FORCES	2,448,572	2,317,572
.....	Excess to Requirement for Cargo UAS	.....	−90,400
.....	Transfer to RDTE,N for Cargo UAS	.....	−36,000
.....	Transfer to OP,N for AM–2 Matting	.....	−4,600
1A2A	FIELD LOGISTICS	514,748	517,248
.....	Transfer from JIEDDO—Counter Bomber	.....	+1,000
.....	Transfer from JIEDDO—CREW-SSM Universal Test Set	.....	+1,000
.....	Transfer from JIEDDO—Subtle Magnetic Anomaly Detection Network Systems	.....	+500
1A3A	DEPOT MAINTENANCE	523,250	523,250
1B1B	MARITIME PREPOSITIONING	7,808	7,808
BSS1	BASE OPERATING SUPPORT	55,301	55,301
3B4D	TRAINING SUPPORT	223,071	223,071
4A3G	SERVICEWIDE TRANSPORTATION	360,000	360,000
4A4G	ADMINISTRATION	3,772	3,772
.....	TOTAL, OPERATION AND MAINTENANCE, MARINE CORPS	4,136,522	4,008,022
	OPERATION AND MAINTENANCE, AIR FORCE		
011A	PRIMARY COMBAT FORCES	1,896,647	1,896,647
011C	COMBAT ENHANCEMENT FORCES	1,954,759	1,954,759
011D	AIR OPERATIONS TRAINING	113,948	113,948
011M	DEPOT MAINTENANCE	297,623	379,983
.....	Weapons System Sustainment	.....	+82,360
011R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	704,463	504,463
.....	Unjustified Growth from fiscal year 2010 Baseline	.....	−200,000
011Z	BASE OPERATING SUPPORT	1,780,052	1,780,052
012A	GLOBAL C3I AND EARLY WARNING	128,632	128,632
012C	OTHER COMBAT OPS SPT PROGRAMS	397,894	397,894
013A	LAUNCH FACILITIES	28,975	28,975
013C	SPACE CONTROL SYSTEMS	34,091	34,091
015A	COMBATANT COMMANDERS DIRECT MISSION SUPPORT	127,861	127,861
021A	AIRLIFT OPERATIONS	4,403,800	4,403,800
021D	MOBILIZATION PREPAREDNESS	240,394	240,394
021M	DEPOT MAINTENANCE	217,023	217,023
021R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	20,360	20,360
021Z	BASE SUPPORT	57,362	57,362
031R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	1,948	1,948
031Z	BASE SUPPORT	6,088	6,088
032A	SPECIALIZED SKILL TRAINING	45,893	45,893
032B	FLIGHT TRAINING	20,277	20,277
032C	PROFESSIONAL DEVELOPMENT EDUCATION	1,500	1,500
032D	TRAINING SUPPORT	1,820	1,820
041A	LOGISTICS OPERATIONS	292,030	292,030
041R	FACILITIES SUSTAINMENT, RESTORATION & MODERNIZATION	10,500	10,500
041Z	BASE SUPPORT	31,985	31,985
042A	ADMINISTRATION	5,438	5,438
042B	SERVICEWIDE COMMUNICATIONS	247,149	247,149
042G	OTHER SERVICEWIDE ACTIVITIES	113,082	113,082
043A	SECURITY PROGRAMS	305,689	305,689
.....	REDUCED DEPLOYMENT LEVELS	.....	−400,000
.....	TOTAL, OPERATION AND MAINTENANCE, AIR FORCE	13,487,283	12,969,643
	OPERATION AND MAINTENANCE, DEFENSE-WIDE		
1PL1	JOINT CHIEFS OF STAFF	20,500	20,500
1PL2	SPECIAL OPERATIONS COMMAND	3,012,026	2,903,126
.....	Information Operations	.....	−49,400
.....	Leased Aircraft—Unjustified Request	.....	−65,500
.....	Transfer from JIEDDO—Wolfhound II	.....	+6,000
ES18	DEFENSE MEDIA ACTIVITY	14,799	14,799
4GT6	DEFENSE CONTRACT AUDIT AGENCY	27,000	27,000
4GT9	DEFENSE INFORMATION SYSTEMS AGENCY	136,316	144,316
.....	Increase Afghanistan FOB Fiber Connectivity	.....	+8,000

O–1		Budget Request	Recommendation
4GTJ	DEFENSE CONTRACT MANAGEMENT AGENCY	74,862	74,862
4GTA	DEFENSE LEGAL SERVICES AGENCY	120,469	116,969
.....	Overstatement of Habeas Corpus Civilian Personnel Pricing	.....	−3,500
4GTJ	DEFENSE DEPENDENTS EDUCATION	485,769	501,769
.....	Additional Funding for Outreach and Reintegration Services Under the Yellow Ribbon Reintegration Program	.....	+16,000
4GTD	DEFENSE SECURITY COOPERATION AGENCY	2,000,000	2,000,000
4GTI	DEFENSE THREAT REDUCTION AGENCY	1,218	1,218
4GTN	OFFICE OF THE SECRETARY OF DEFENSE	188,099	173,099
.....	Knowledge Management	.....	−15,000
9999	OTHER PROGRAMS	3,345,300	3,299,332
.....	Classified Adjustments	.....	−49,168
.....	Transfer from JIEDDO—Synchronization and Integration WTI Cell	.....	+3,200
.....	TOTAL, OPERATION AND MAINTENANCE, DEFENSE-WIDE	9,426,358	9,276,990
	OPERATION AND MAINTENANCE, ARMY RESERVE		
135	ADDITIONAL ACTIVITIES	286,950	206,784
.....	Army Reserve Identified Excess to Requirement	.....	−80,166
.....	TOTAL, OPERATION AND MAINTENANCE, ARMY RESERVE	286,950	206,784
	OPERATION AND MAINTENANCE, NAVY RESERVE		
1A1A	MISSION AND OTHER FLIGHT OPERATIONS	49,089	49,089
1A3A	INTERMEDIATE MAINTENANCE	400	400
1A5A	AIRCRAFT DEPOT MAINTENANCE	17,760	17,760
1B1B	MISSION AND OTHER SHIP OPERATIONS	9,395	9,395
1B4B	SHIP DEPOT MAINTENANCE	497	497
1C1C	COMBAT COMMUNICATIONS	3,185	3,185
1C6C	COMBAT SUPPORT FORCES	12,169	12,169
4A4M	MILITARY MANPOWER AND PERSONNEL MANAGEMENT	1,064	1,064
.....	TOTAL, OPERATION AND MAINTENANCE, NAVY RESERVE	93,559	93,559
	OPERATION AND MAINTENANCE, MARINE CORPS RESERVE		
1A1A	OPERATING FORCES	23,571	23,571
BSS1	BASE OPERATING SUPPORT	6,114	6,114
.....	TOTAL, OPERATION AND MAINTENANCE, MARINE CORPS RESERVE	29,685	29,685
	OPERATION AND MAINTENANCE, AIR FORCE RESERVE		
011M	DEPOT MAINTENANCE	116,924	176,124
.....	Weapons System Sustainment	.....	+59,200
011Z	BASE OPERATING SUPPORT	12,683	12,683
.....	TOTAL, OPERATION AND MAINTENANCE, AIR FORCE RESERVE	129,607	188,807
	OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD		
135	ADDITIONAL ACTIVITIES	544,349	497,849
.....	Distance Learning—Transfer to Baseline OM,ARNG SAG 121	.....	−9,000
.....	Air OPTEMPO Duplicate Request	.....	−44,000
.....	Support to Southwest Border	.....	+6,500
.....	TOTAL, OPERATION AND MAINTENANCE, ARMY NATIONAL GUARD	544,349	497,849
	OPERATION AND MAINTENANCE, AIR NATIONAL GUARD		
011F	AIRCRAFT OPERATIONS	152,896	152,896
011G	MISSION SUPPORT OPERATIONS	57,800	59,400
.....	Support to Southwest Border	.....	+1,600
011M	DEPOT MAINTENANCE	140,127	190,687
.....	Weapons System Sustainment	.....	+50,560
.....	TOTAL, OPERATION AND MAINTENANCE, AIR NATIONAL GUARD	350,823	402,983
	OVERSEAS CONTINGENCY OPERATIONS TRANSFER FUND		
.....	OVERSEAS CONTINGENCY OPERATIONS TRANSFER FUND	1,551,781	0
.....	Transfer to OM,A SAG 135	.....	−80,000
.....	Transfer to OM,N SAGs BSS1 and BSM1	.....	−25,000
.....	Unjustified Program Change	.....	−1,446,781
.....	TOTAL, OVERSEAS CONTINGENCY OPERATIONS TRANSFER ACCOUNT	1,551,781	0
	AFGHANISTAN INFRASTRUCTURE FUND		
.....	Afghanistan Infrastructure Fund—Transfer from CERP	.....	+400,000
.....	TOTAL, AFGHANISTAN INFRASTUCTURE FUND	0	400,000
	AFGHANISTAN SECURITY FORCES FUND		
.....	Afghan National Army	7,467,014	7,467,014
.....	Infrastructure	1,790,933	1,790,933
.....	Equipment and Transportation	1,846,623	1,846,623
.....	Training and Operations	836,842	836,842
.....	Sustainment	2,992,616	2,992,616
.....	Afghan National Police	4,085,437	4,085,437
.....	Infrastructure	1,078,413	1,078,413
.....	Equipment and Transportation	917,966	917,966
.....	Training and Operations	990,213	990,213
.....	Sustainment	1,098,845	1,098,845
.....	Related Activities	66,832	66,832
.....	Detainee Operations—Sustainment	6,037	6,037
.....	Detainee Operations—Training and Operations	1,530	1,530
.....	Detainee Operations—Infrastructure	58,265	58,265
.....	COIN Activities	1,000	1,000
.....	TOTAL, AFGHANISTAN SECURITY FORCES FUND	11,619,283	11,619,283
	IRAQ SECURITY FORCES FUND		
.....	Defense Security Forces	1,656,906	1,656,906
.....	Equipment and Transportation	1,067,706	1,067,706
.....	Training	248,075	248,075
.....	Sustainment	341,125	341,125
.....	Interior Security Forces	268,094	268,094
.....	Equipment and Transportation	220,469	220,469
.....	Sustainment	47,625	47,625
.....	Related Activities	75,000	75,000
.....	Authorization Reduction	.....	−500,000
.....	TOTAL, IRAQ SECURITY FORCES FUND	2,000,000	1,500,000
	PAKISTAN COUNTERINSURGENCY FUND		
.....	Pakistan Counterinsurgency Fund	.....	+800,000
.....	TOTAL, PAKISTAN COUNTERINSURGENCY FUND	0	800,000
.....	TOTAL, OPERATION AND MAINTENANCE	115,205,452	110,127,111

P–1		Budget Request	Recommendation
	AIRCRAFT PROCUREMENT, ARMY		
2	C–12 CARGO AIRPLANE (OCO)	78,060	78,060
4	MQ–1 UAV (OCO)	47,000	24,000
.....	Reduction to Projected Battle Losses	.....	−23,000
5	RQ–11 (RAVEN) (OCO)	17,430	17,430
9	AH–64 APACHE BLOCK III	.....	34,600
.....	War Replacement Aircraft	.....	+34,600
11	UH–60 BLACKHAWK (OCO)	40,500	373,400
.....	Program Increase for Army National Guard	.....	+80,000
.....	Three Combat Loss UH–60	.....	+52,500
.....	Accelerate 12 Aircraft	.....	+200,400
13	CH–47 HELICOPTER (OCO)	70,600	258,400
.....	Accelerate Six Aircraft	.....	+187,800
16	C12 AIRCRAFT MODS (OCO)	122,340	122,340
17	MQ–1 PAYLOAD—UAS (OCO)	3,600	3,600
19	GUARDRAIL MODS (MIP) (OCO)	30,200	6,000
.....	Authorization Adjustment	.....	−24,200
20	MULTI SENSOR ABN RECON (MIP) (OCO)	86,200	86,200
21	AH–64 MODS (OCO)	199,200	654,200
.....	AH–64A to AH–64D Conversion for the Texas and Mississippi National Guard	.....	+455,000
23	CH–47 CARGO HELICOPTER MODS (OCO)	82,900	66,900
.....	Cargo On/Off Loading System (COOLS) ahead of need	.....	−16,000
27	UTILITY HELICOPTER MODS (OCO)	14,530	14,530
28	KIOWA WARRIOR (OCO)	187,288	160,378
.....	Fielded Fleet Upgrades	.....	+20,000
.....	Limit Ramp Rate on Replacement Aircraft	.....	−46,910
29	AIRBORNE AVIONICS (OCO)	24,983	24,983
31	RQ–7 UAV MODS (OCO)	97,800	546,500
.....	Funding Ahead of Need	.....	−1,000
.....	Transfer from Title III	.....	+497,500
.....	Ahead of Need	.....	−47,800
36	ASE INFRARED CM (OCO)	197,990	182,990
.....	Excess to Need	.....	−15,000
38	COMMON GROUND EQUIPMENT (OCO)	65,627	65,627
40	AIR TRAFFIC CONTROL (OCO)	7,555	0
.....	Unjustified Request	.....	−7,555
.....	TOTAL, AIRCRAFT PROCUREMENT, ARMY	1,373,803	2,720,138
	MISSILE PROCUREMENT, ARMY		
4	HELLFIRE SYS SUMMARY (OCO)	190,459	190,459
6	TOW 2 SYSTEM SUMMARY (OCO)	112,769	112,769
13	ITAS/TOW MODS (OCO)	40,600	40,600
.....	TOTAL, MISSILE PROCUREMENT, ARMY	343,828	343,828
	PROCUREMENT OF W&TCV, ARMY		
4	STRYKER VEHICLE (OCO)	.....	545,000
.....	Transfer from Stryker Modifications, line 9	.....	+445,000
.....	Increase for Stryker Double V Hull	.....	+100,000
9	STRYKER VEHICLE MODS (OCO)	445,000	0
.....	Transfer to Stryker Vehicle, line 4	.....	−445,000
22	MACHINE GUN, CAL .50, M2 ROLL	.....	79,496
.....	Transfer from Title III	.....	+79,496
26	MORTAR SYSTEMS (OCO)	8,600	8,600
28	XM320 GRENADE LAUNCHER MODULE (OCO)	22,500	22,500
32	COMMON REMOTELY OPERATED WEAPONS STATION (OCO)	100,000	100,000
34	HOWITZER LT WT 155MM (T) (OCO)	62,000	62,000
36	M4 CARBINE MODS (OCO)	12,900	42,900
.....	Program Increase	.....	+30,000
37	M2 50 CAL MACHINE GUN MODS (OCO)	15,000	15,000
40	M119 MODIFICATIONS (OCO)	21,500	21,500
.....	TOTAL, PROCUREMENT OF W&TCV, ARMY	687,500	896,996
	PROCUREMENT OF AMMUNITION, ARMY		
2	CTG, 7.62MM, ALL TYPES (OCO)	32,604	13,000
.....	Per Army Request	.....	−19,604
4	CTG, .50 CAL, ALL TYPES (OCO)	128,876	47,000
.....	Per Army Request	.....	−81,876
5	CTG, 20MM, ALL TYPES (OCO)	20,056	10,500
.....	Per Army Request	.....	−9,556
7	CTG, 30MM, ALL TYPES (OCO)	23,826	9,500
.....	Per Army Request	.....	−14,326
8	CTG, 40MM, ALL TYPES (OCO)	62,700	25,000
.....	Per Army Request	.....	−37,700
11	120MM MORTAR, ALL TYPES (OCO)	120,160	26,900
.....	APMI Unit Cost Savings	.....	−50,100
.....	Per Army Request	.....	−43,160
15	CTG, ARTY, 105MM: ALL TYPES (OCO)	37,620	15,000
.....	Per Army Request	.....	−22,620
16	CTG, ARTY, 155MM: ALL TYPES (OCO)	37,620	15,000
.....	Per Army Request	.....	−22,620
18	MODULAR ARTILLERY CHARGE SYS, ALL TYPES (OCO)	15,048	6,000
.....	Per Army Request	.....	−9,048
19	ARTILLERY FUZES, ALL TYPES (OCO)	12,540	5,000
.....	Per Army Request	.....	−7,540
24	SHOULDER LAUNCHED MUNITIONS, ALL TYPES (OCO)	17,556	0
.....	Per Army Request	.....	−17,556
25	ROCKET, HYDRA 70, ALL TYPES (OCO)	139,285	139,285
26	DEMOLITION MUNITIONS, ALL TYPES (OCO)	.....	20,000
.....	Per Army Request	.....	+20,000
27	GRENADES, ALL TYPES (OCO)	2,000	0
.....	Per Army Request	.....	−2,000
31	NON-LETHAL AMMUNITION, ALL TYPES (OCO)	15,000	0
.....	Per Army Request	.....	−15,000
40	CONVENTIONAL MUNITIONS DEMILITARIZATION, ALL TYPES (OCO)	37,700	37,700
.....	TOTAL, PROCUREMENT OF AMMUNITION, ARMY	702,591	369,885
	OTHER PROCUREMENT, ARMY		
5	FAMILY OF MEDIUM TACTICAL VEH (FMTV) (OCO)	516,350	398,925
.....	Battle Loss Replacement	.....	+8,875
.....	Contract Savings	.....	−126,300
7	FAMILY OF HEAVY TACTICAL VEHICLES (OCO)	188,677	199,809
.....	Battle Loss Replacement	.....	+11,132
9	ARMORED SECURITY VEHICLES (ASV) (OCO)	52,780	52,780
10	MINE PROTECTION VEHICLE FAMILY (OCO)	136,700	345,678
.....	Transfer from Title III	.....	+230,978
.....	Program Adjustment	.....	−22,000
14	HMMWV RECAPITALIZATION PROGRAM (OCO)	989,067	989,067
15	MODIFICATION OF IN SVC EQUIP (OCO)	20,000	312,956
.....	Transfer from Title III	.....	+292,956
24	WIN-T -GROUND FORCES TACTICAL NETWORK (OCO)	8,163	8,163

P–1		Budget Request	Recommendation
27	SHF TERM (OCO)	62,415	62,415
29	NAVSTAR GLOBAL POSITIONING SYSTEM (OCO)	13,500	63,500
.....	Additional DAGRs	.....	+50,000
40	AMC CRITICAL ITEMS—OPA2 (OCO)	3,946	3,946
47	RADIO, IMPROVED HF (COTS) FAMILY (OCO)	78,253	78,253
48	MEDICAL COMM FOR CBT CASUALTY CARE (OCO)	15,000	15,000
51x	FAMILY OF BIOMETRICS	.....	38,172
.....	Non-MIP Biometrics—Transfer from RDTE,A line 171	.....	+38,172
53	BASE SUPPORT COMMUNICATIONS (OCO)	70,000	47,500
.....	Excess to Need	.....	−22,500
55	INFORMATION SYSTEMS (OCO)	.....	55,000
.....	Program Adjustment for Tactical Local Area Network (TACLAN)	.....	+55,000
57	INSTALLATION INFO INFRASTRUCTURE MOD (OCO)	413,200	413,200
65	PROPHET GROUND (OCO)	18,900	18,900
70	DCGS–A (MIP) (OCO)	197,092	334,516
.....	Transfer from Title III	.....	+137,424
74	CI HUMINT AUTO REPRTING AND COLL (OCO)	52,277	47,377
.....	Excess to Need	.....	−4,900
75	ITEMS LESS THAN $5.0M (MIP) (OCO)	5,400	5,400
76	LIGHTWEIGHT COUNTER MORTAR RADAR (OCO)	25,000	10,000
.....	Program Decrease	.....	−15,000
77	WARLOCK (OCO)	225,682	225,682
79	COUNTERINTELLIGENCE/SECURITY COUNTERMEASURES (OCO)	455,639	455,639
81	FAAD GBS (OCO)	167,460	167,460
84	NIGHT VISION DEVICES (OCO)	5,019	5,019
89	COUNTER-ROCKET, ARTILLERY & MORTAR (C–RAM) (OCO)	291,400	251,200
.....	Funded Ahead of Need	.....	−40,200
90	BASE EXPEDITIONARY TARGETING & SURV SYS (OCO)	486,050	408,050
.....	Program Decrease	.....	−78,000
95	MOD OF IN-SVC EQUIP (FIREFINDER RADARS) (OCO)	69,800	69,800
96	FORCE XXI BATTLE CMD BRIGADE & BELOW (OCO)	135,500	135,500
98	LIGHTWEIGHT LASER DESIGNATOR/RANGEFINDER (OCO)	22,371	22,371
99	COMPUTER BALLISTICS: LHMBC XM32 (OCO)	1,800	1,800
101	COUNTERFIRE RADARS (OCO)	20,000	285,867
.....	Transfer from Title III	.....	+275,867
.....	Funded Ahead of Need	.....	−10,000
103	TACTICAL OPERATIONS CENTERS (OCO)	43,800	43,800
104	FIRE SUPPORT C2 FAMILY (OCO)	566	13,566
.....	Advanced Field Artillery Tactical Data System	.....	+13,000
105	BATTLE COMMAND SUSTAINMENT SUPPORT SYS	420	420
108	KNIGHT FAMILY (OCO)	49,744	49,744
110	AUTOMATIC IDENTIFICATION TECHNOLOGY (OCO)	2,222	2,222
114	NETWORK MANAGEMENT INITIALIZATION & SERVICE (OCO)	5,000	5,000
115	MANEUVER CONTROL SYSTEM (OCO)	60,111	60,111
121	AUTOMATED DATA PROCESSING EQUIP (OCO)	10,500	10,500
130	PROTECTIVE SYSTEMS (OCO)	5,690	5,690
135	TACTICAL BRIDGING, FLOAT RIBBON (OCO)	3,220	3,220
136	HANDHELD STANDOFF MINEFIELD DETECTION SYSTEM	0	28,000
.....	Transfer from JIEDDO for Proper Execution	.....	+28,000
137	GRND STANDOFF MINE DETECTION SYSTEM (OCO)	191,000	191,000
141	HEATERS AND ECU'S (OCO)	8,708	8,708
149	FORCE PROVIDER (OCO)	261,599	52,499
.....	Excess to Need	.....	−209,100
150	FIELD FEEDING EQUIPMENT (OCO)	29,903	29,903
154	DISTRIBUTION SYSTEMS, PETROLEUM & WATER (OCO)	55,105	55,105
155	WATER PURIFICATION SYSTEMS (OCO)	12,086	0
.....	Funded Ahead of Need	.....	−12,086
156	COMBAT SUPPORT MEDICAL (OCO)	8,680	8,680
157	MOBILE MAINTENANCE EQUIPMENT SYSTEMS (OCO)	41,398	41,398
159	GRADER, ROAD MTZD, HVY, 6X4 (CCE) (OCO)	3,390	3,390
161	SCRAPERS, EARTHMOVING (OCO)	3,195	3,195
164	LOADERS (OCO)	1,157	1,157
168	HIGH MOBILITY ENGINEER EXCAVATOR FOS (OCO)	3,750	3,750
170	ITEMS LESS THAN $5.0M (CONST EQUIP) (OCO)	4,140	4,140
174	GENERATORS AND ASSOCIATED EQUIP (OCO)	37,480	37,480
175	ROUGH TERRAIN CONTAINER HANDLER (OCO)	4,562	4,562
177	ALL TERRAIN LIFTING ARMY SYSTEM (OCO)	56,609	58,049
.....	Battle Loss Replacement	.....	+1,440
179	TRAINING DEVICES, NONSYSTEM (OCO)	28,624	28,624
180	CLOSE COMBAT TACTICAL TRAINER (OCO)	8,200	0
.....	Funded Ahead of Need	.....	−8,200
184	INTEGRATED FAMILY OF TEST EQUIPMENT (OCO)	622	622
186	RAPID EQUIPPING SOLDIER SUPT EQUIPMENT (OCO)	58,590	38,590
.....	Excess to Need	.....	−20,000
187	PHYSICAL SECURITY SYSTEMS (OPA3) (OCO)	77,000	77,000
192	SPECIAL EQUIPMENT FOR USER TESTING (OCO)	1,987	1,987
.....	CLASSIFIED PROGRAMS (OCO)	775	775
.....	TOTAL, OTHER PROCUREMENT, ARMY	5,827,274	6,401,832
	AIRCRAFT PROCUREMENT, NAVY		
3	F/A–18E/F (FIGHTER) HORNET (MYP)	.....	495,000
.....	Strike Fighter Shortfall Mitigation—Nine Aircraft	.....	+495,000
11	UH–1Y/AH–1Z (OCO)	88,500	88,500
19	E–2C (EARLY WARNING) HAWKEYE (MYP)	.....	175,000
.....	Program Increase—Combat Loss Replacement	.....	+175,000
29	EA–6 SERIES (OCO)	15,000	12,700
.....	Install Equipment Program Adjustment	.....	−2,300
31	AV–8 SERIES (OCO)	72,100	65,371
.....	Pod Upgrade Kits Cost Growth	.....	−1,529
.....	GEN4 Pod Cost Growth	.....	−5,200
32	F–18 SERIES (OCO)	43,250	43,250
34	AH–1W SERIES (OCO)	35,510	35,510
35	H–53 SERIES (OCO)	36,248	27,148
.....	Funded Ahead of Need	.....	−9,100
36	SH–60 SERIES (OCO)	6,430	6,430
39	P–3 SERIES (OCO)	6,000	6,000
48	SPECIAL PROJECT AIRCRAFT (OCO)	6,100	6,100
53	COMMON ECM EQUIPMENT (OCO)	38,700	31,020
.....	Directed Infrared Countermeasures Installation Kit Cost Growth	.....	−7,680
54	COMMON AVIONICS CHANGES (OCO)	14,100	14,100
55	COMMON DEFENSIVE WEAPON SYSTEM (OCO)	10,500	10,500
57	RQ–7 SERIES (OCO)	8,000	8,000
58	V–22 (TILT/ROTOR ACFT) OSPREY (OCO)	36,420	36,420
59	SPARES AND REPAIR PARTS (OCO)	3,500	108,500
.....	Aviation Spares	.....	+105,000
.....	TOTAL, AIRCRAFT PROCUREMENT, NAVY	420,358	1,169,549
	WEAPONS PROCUREMENT, NAVY		
5	SIDEWINDER (OCO)	2,923	0
.....	Non-combat Expenditures	.....	−2,923
9	HELLFIRE (OCO)	85,504	85,504
26	SMALL ARMS AND WEAPONS (OCO)	4,998	4,998

P–1		Budget Request	Recommendation
.....	TOTAL, WEAPONS PROCUREMENT, NAVY	93,425	90,502
	PROCUREMENT OF AMMO, NAVY & MARINE CORPS		
1	GENERAL PURPOSE BOMBS (OCO)	6,060	0
.....	Contract Delay	.....	−6,060
3	AIRBORNE ROCKETS, ALL TYPES (OCO)	76,043	76,043
4	MACHINE GUN AMMUNITION (OCO)	69,660	68,660
.....	20mm Linked TP, PGU–27 Cost Growth	.....	−1,000
7	AIR EXPENDABLE COUNTERMEASURES (OCO)	33,632	33,632
11	OTHER SHIP GUN AMMUNITION (OCO)	455	455
12	SMALL ARMS & LANDING PARTY AMMO (OCO)	7,757	7,757
13	PYROTECHNIC AND DEMOLITION (OCO)	1,209	1,209
15	SMALL ARMS AMMUNITION (OCO)	19,498	19,498
16	LINEAR CHARGES, ALL TYPES (OCO)	4,677	4,677
17	40 MM, ALL TYPES (OCO)	11,307	11,307
18	60MM, ALL TYPES (OCO)	17,150	17,150
19	81MM, ALL TYPES (OCO)	27,738	27,738
20	120MM, ALL TYPES (OCO)	96,895	96,895
21	CTG 25MM, ALL TYPES (OCO)	990	990
22	GRENADES, ALL TYPES (OCO)	6,137	6,137
23	ROCKETS, ALL TYPES (OCO)	13,543	13,543
24	ARTILLERY, ALL TYPES (OCO)	137,118	137,118
25	DEMOLITION MUNITIONS, ALL TYPES (OCO)	9,296	9,296
26	FUZE, ALL TYPES (OCO)	25,888	25,888
27	NON LETHALS (OCO)	31	31
.....	TOTAL, PROCUREMENT OF AMMO, NAVY & MARINE CORPS	565,084	558,024
	OTHER PROCUREMENT, NAVY		
25	STANDARD BOATS (OCO)	30,706	23,706
.....	Riverine Patrol Boats—Unjustified Request	.....	−7,000
57	MATCALS (OCO)	27,080	25,080
.....	ASPARCS—Unjustified Cost Growth	.....	−2,000
74	EMI CONTROL INSTRUMENTATION (OCO)	1,800	1,800
94	EXPEDITIONARY AIRFIELDS (OCO)	0	4,600
.....	AM–2 Matting Expeditionary Airfield—Requested Transfer from OM,MC	.....	+4,600
99	AVIATION LIFE SUPPORT (OCO)	26,024	10,024
.....	CSEL Excess to Need	.....	−16,000
117	EXPLOSIVE ORDNANCE DISPOSAL EQUIP (OCO)	132,386	10,386
.....	JCREW—Funding No Longer Required	.....	−122,000
122	PASSENGER CARRYING VEHICLES (OCO)	1,234	1,234
123	GENERAL PURPOSE TRUCKS (OCO)	420	420
124	CONSTRUCTION & MAINTENANCE EQUIP (OCO)	55,474	41,474
.....	Contract Delays	.....	−14,000
126	TACTICAL VEHICLES (OCO)	91,802	91,802
129	ITEMS UNDER $5 MILLION (OCO)	26,016	26,016
131	MATERIALS HANDLING EQUIPMENT (OCO)	33,659	33,659
137	COMMAND SUPPORT EQUIPMENT (OCO)	2,775	2,775
146	PHYSICAL SECURITY EQUIPMENT (OCO)	46,417	38,917
.....	ATFP Afloat—Ahead of Need	.....	−7,500
149	SPARES AND REPAIR PARTS (OCO)	4,942	4,942
.....	TOTAL, OTHER PROCUREMENT, NAVY	480,735	316,835
	PROCUREMENT, MARINE CORPS		
2	LAV PIP (OCO)	152,333	37,573
.....	Baseline Budget Requirement	.....	−114,760
5	155MM LIGHTWEIGHT TOWED HOWITZER (OCO)	103,600	103,600
6	HIGH MOBILITY ARTILLERY ROCKET SYSTEM (OCO)	145,533	145,533
7	WEAPONS & COMBAT VEHICLES UNDER $5 M (OCO)	7,329	7,329
9	MODIFICATION KITS (OCO)	12,000	12,000
10	WEAPONS ENHANCEMENT PROGRAM (OCO)	18,571	18,571
16	UNIT OPERATIONS CENTER (OCO)	112,424	112,424
17	REPAIR AND TEST EQUIPMENT (OCO)	15,962	38,762
.....	OCO Shortfall—ETMS and Obsolescence Upgrades	.....	+22,800
19	MODIFICATION KITS (OCO)	18,545	3,345
.....	Unexecutable Funding—CESAS	.....	−15,200
20	ITEMS UNDER $5 MILLION (COMM & ELEC) (OCO)	11,549	11,549
21	AIR OPERATIONS C2 SYSTEMS (OCO)	41,031	41,031
22	RADAR SYSTEMS (OCO)	5,493	10,993
.....	OCO Shortfall—TPS-59	.....	+5,500
23	FIRE SUPPORT SYSTEM (OCO)	4,710	4,710
24	INTELLIGENCE SUPPORT EQUIPMENT (OCO)	82,897	82,897
26	DCGS–MC (OCO)	21,789	21,789
28	COMMON COMPUTER RESOURCES (OCO)	29,412	29,412
29	COMMAND POST SYSTEMS (OCO)	36,256	36,256
30	RADIO SYSTEMS (OCO)	155,545	110,545
.....	E–LMR—Not an OCO Requirement	.....	−45,000
31	COMM SWITCHING & CONTROL SYSTEMS (OCO)	63,280	28,280
.....	Previously Funded UUNS	.....	−35,000
35	5/4T TRUCK HMMWV (MYP) (OCO)	12,994	0
.....	Service Requested Reduction	.....	−12,994
37	MEDIUM TACTICAL VEHICLE REPLACEMENT (OCO)	80,559	80,559
38	LOGISTICS VEHICLE SYSTEM REP (OCO)	109,100	109,100
39	FAMILY OF TACTICAL TRAILERS (OCO)	22,130	22,130
42	ENVIRONMENTAL CONTROL EQUIP ASSORT (OCO)	17,799	27,399
.....	OCO Shortfall—ECU and SFRS	.....	+9,600
43	BULK LIQUID EQUIPMENT (OCO)	1,628	16,758
.....	OCO Shortfall—Tank and Pump Modules	.....	+15,130
44	TACTICAL FUEL SYSTEMS (OCO)	83,698	89,498
.....	OCO Shortfall—Liquid Fuel Storage	.....	+5,800
45	POWER EQUIPMENT ASSORTED (OCO)	41,536	41,536
47	EOD SYSTEMS (OCO)	213,985	188,985
.....	Excess to Requirement	.....	−25,000
48	PHYSICAL SECURITY EQUIPMENT (OCO)	5,200	5,200
50	MATERIAL HANDLING EQUIP (OCO)	58,264	58,264
53	TRAINING DEVICES (OCO)	55,864	55,864
54	CONTAINER FAMILY (OCO)	8,826	8,826
56	FAMILY OF INTERNALLY TRANSPORTABLE VEHICLE (OCO)	28,401	28,401
.....	TOTAL, PROCUREMENT, MARINE CORPS	1,778,243	1,589,119
	AIRCRAFT PROCUREMENT, AIR FORCE		
1	F–35 (OCO)	204,900	0
.....	Unjustified Request	.....	−204,900
19	CV–22 (OCO)	.....	70,000
.....	Program Increase—Provides for One Additional Combat Loss Aircraft	.....	+70,000
25	HH–60M OPERATIONAL LOSS REPLACEMENT (OCO)	114,000	417,400
.....	Program Increase (Adds 10 Aircraft, Not Less Than Four for the Air National Guard)	.....	+303,400
26	RQ–11 (OCO)	9,380	9,380
34	MQ–9 (OCO)	216,000	376,814
.....	Spares	.....	−55,186
.....	Transfer 12 Aircraft from Title III	.....	+216,000
37	B–1B (OCO)	8,500	8,500

P–1		Budget Request	Recommendation
39	A–10 (OCO)	16,500	16,500
44	C–5 (OCO)	73,400	73,400
47	C–17A (OCO)	224,450	176,450
.....	Program Decrease	.....	−48,000
56	KC–10A (ATCA) (OCO)	3,540	3,540
62	C–130 (OCO)	166,720	166,720
63	C–130 MODS INTEL (OCO)	10,900	10,900
66	COMPASS CALL MODS	10,000	10,000
72	H–60 (OCO)	81,000	153,200
.....	Excess to Need for Radars	.....	−61,000
.....	Program Increase—Transportable Blackhawk Operation Simulators	.....	+92,800
.....	Program Increase—Control Display Unit Mission Processors	.....	+12,500
.....	Program Increase—GPS/Inertial Navigation Units	.....	+27,900
75	OTHER AIRCRAFT (OCO)	61,600	61,600
78	MQ–9 PAYLOAD—UAS	45,000	160,383
.....	Transfer from Title III	.....	+115,383
79	CV–22 MODS (OCO)	830	830
80	INITIAL SPARES/REPAIR PARTS	10,900	10,900
98	OTHER PRODUCTION CHARGES (OCO)	57,500	218,138
.....	Transfer from Title III	.....	+160,638
104	DARP (OCO)	47,300	47,300
.....	TOTAL, AIRCRAFT PROCUREMENT, AIR FORCE	1,362,420	1,991,955
	MISSILE PROCUREMENT, AIR FORCE		
5	PREDATOR HELLFIRE MISSILE (OCO)	41,621	41,621
10	AGM–65D MAVERICK (OCO)	15,000	15,000
.....	TOTAL, MISSILE PROCUREMENT, AIR FORCE	56,621	56,621
	PROCUREMENT OF AMMUNITION, AIR FORCE		
2	CARTRIDGES (OCO)	30,801	30,801
4	GENERAL PURPOSE BOMBS (OCO)	53,192	53,192
5	JOINT DIRECT ATTACK MUNITION (OCO)	147,991	147,991
11	FLARES (OCO)	20,486	20,486
12	FUZES (OCO)	24,982	24,982
13	SMALL ARMS (OCO)	15,507	15,507
.....	TOTAL, PROCUREMENT OF AMMUNITION, AIR FORCE	292,959	292,959
	OTHER PROCUREMENT, AIR FORCE		
2	MEDIUM TACTICAL VEHICLE (OCO)	7,350	5,350
.....	Contract Savings	.....	−2,000
5	SECURITY AND TACTICAL VEHICLES (OCO)	15,540	13,540
.....	Uparmored HMMWV—Unjustified Cost Growth	.....	−2,000
11	ITEMS LESS THAN $5,000,000(VEHICLES)(OCO)	690	690
16	INTELLIGENCE COMM EQUIPMENT (OCO)	1,400	1,400
19	THEATER AIR CONTROL SYS IMPROVEMEN	4,354	4,354
20	WEATHER OBSERVATION FORECAST (OCO)	9,825	0
.....	OS–21 Contract Delays	.....	−9,825
28	AIR FORCE PHYSICAL SECURITY SYSTEM (OCO)	6,100	6,100
38	USCENTCOM (OCO)	28,784	28,784
44	MILSATCOM SPACE (OCO)	4,300	4,300
46	COUNTERSPACE SYSTEM (OCO)	8,200	8,200
47	TACTICAL C-E EQUIPMENT (OCO)	2,552	2,552
52	COMM ELECT MODS (OCO)	470	470
53	NIGHT VISION GOGGLES (OCO)	8,833	4,433
.....	NVCD–NSL Contract Delays	.....	−4,400
57	CONTINGENCY OPERATIONS (OCO)	131,559	16,759
.....	JCREW Ahead of Need	.....	−114,800
56	BASE PROCURED EQUIPMENT (OCO)	9,070	9,070
59	MOBILITY EQUIPMENT (OCO)	16,588	16,588
66	DEFENSE SPACE RECONNAISSANCE PROG (OCO)	9,700	9,700
.....	OTHER PROGRAMS (OCO)	2,822,166	2,736,303
.....	Classified Adjustment	.....	−85,863
.....	TOTAL, OTHER PROCUREMENT, AIR FORCE	3,087,481	2,868,593
	PROCUREMENT, DEFENSE-WIDE		
5	DIA SUPT TO CENTCOM INTELLIGENCE ACT (OCO)	27,702	27,702
18	GLOBAL COMMAND AND CONTROL SYS (OCO)	1,000	1,000
20	TELEPORT PROGRAM (OCO)	6,191	6,191
23	DEFENSE INFORMATION SYSTEM NETWORK (OCO)	520	520
35	AEGIS FIELDING	0	189,720
.....	SM–3 Block IA—Additional 20 Interceptors	.....	+189,720
50	MAJOR EQUIPMENT, OSD (OCO)	5,700	5,700
52	UNDISTRIBUTED, INTELLIGENCE	15,000	15,000
XX	OTHER PROGRAMS (OCO)	323,486	333,675
.....	Classified Adjustment	.....	+10,189
55	ROTARY WING UPGRADES &SUSTAINMENT (OCO)	5,600	5,600
55A	MH–47G	0	28,500
.....	Combat Loss Replacement Aircraft	.....	+28,500
56	MH–47 SERVICE LIFE EXTENSION PROG (OCO)	4,222	15,222
.....	Modifications for Combat Loss Replacement Aircraft	.....	+11,000
57	MH–60 SOF MODERNIZATION (OCO)	0	7,800
.....	Modifications for Combat Loss Replacement Aircraft	.....	+7,800
58	NON-STANDARD AVIATION	0	121,268
.....	Medium NSAV Transfer from Title III	.....	+121,268
63	CV–22 SOF MODIFICATION	0	15,000
.....	Modifications for Combat Loss Replacement Aircraft	.....	+15,000
64	MQ–1 UAS(OCO)	8,202	8,202
65	MQ–9 UAV (OCO)	4,368	4,368
71	SOF ORDNANCE REPLENISHMENT (OCO)	75,878	65,878
.....	Execution Delays	.....	−10,000
72	SOF ORDNANCE ACQUISITION (OCO)	49,776	49,776
73	COMMUNICATIONS EQUIPMENT & ELECTRONICS (OCO)	9,417	31,817
.....	Program Increase—Unfunded Requirement	.....	22,400
74	SOF INTELLIGENCE SYSTEMS (OCO)	149,406	81,306
.....	Leased Aircraft—Unjustified Request	.....	−42,800
.....	HF–TTL Baseline Budget Requirement	.....	−25,300
81	TACTICAL VEHICLES (OCO)	36,262	91,262
.....	Program Increase—Unfunded Requirement	.....	+55,000
83	COMBAT MISSION REQUIREMENTS (OCO)	30,000	0
.....	OCO Program Growth	.....	−30,000
88	SOF AUTOMATION SYSTEMS (OCO)	1,291	1,291
90	SOF OPERATIONAL ENHANCEMENTS INTELLIGENCE (OCO)	25,000	25,000
92	SOF VISUAL AUGMENTATION, LASERS & SENSORS (OCO)	3,200	22,700
.....	Program Increase—Unfunded Requirement	.....	+19,500
93	SOF TACTICAL RADIO SYSTEMS (OCO)	3,985	3,985
96	MISCELLANEOUS EQUIPMENT (OCO)	5,530	5,530
97	SOF OPERATIONAL ENHANCEMENTS (OCO)	79,869	95,545
.....	Program Increase—Unfunded Requirement	.....	+51,376
.....	Requirement Addressed by Reprogramming	.....	−35,700
.....	CLASSIFIED PROGRAMS	2,941	2,941

P–1		Budget Request	Recommendation
.....	TOTAL, PROCUREMENT, DEFENSE-WIDE	874,546	1,262,499
	NATIONAL GUARD AND RESERVE EQUIPMENT		
.....	NATIONAL GUARD AND RESERVE EQUIPMENT	0	850,000
.....	Program Increase—Army Reserve	.....	+140,000
.....	Program Increase—Navy Reserve	.....	+70,000
.....	Program Increase—Marine Corps Reserve	.....	+70,000
.....	Program Increase—Air Force Reserve	.....	+70,000
.....	Program Increase—Army National Guard	.....	+250,000
.....	Program Increase—Air National Guard	.....	+250,000
	MINE RESISTANT AMBUSH PROTECTED VEHICLE FUND		
.....	MINE RESISTANT AMBUSH PROTECTED VEHICLE FUND	3,415,000	3,415,000
.....	TOTAL, PROCUREMENT	21,361,868	25,194,335

R–1		Budget Request	Recommendation
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, ARMY		
48	NIGHT VISION ADVANCED TECHNOLOGY (OCO)	0	23,100
.....	Program increase—Aviation night and limited visibility sensor demonstration	.....	+23,100
60	SOLDIER SUPPORT AND SURVIVABILITY (OCO)	57,900	14,900
.....	HFDS—Transfer to line 75 for execution at request of the Army	.....	−48,000
.....	REF—Transfer from Title IV for OCO requirement	.....	+5,000
61	TACTICAL ELECTRONIC SURVEILLANCE SYSTEM—ADV DEV	0	7,800
.....	Transfer from JIEDDO—Air Vigilance	.....	+7,800
75	ELECTRONIC WARFARE DEVELOPMENT (OCO)	5,400	48,000
.....	HFDS—Transfer from line 60 for execution at request of the Army	.....	+48,000
.....	Long-term development effort	.....	−5,400
77	ALL SOURCE ANALYSIS SYSTEM (OCO)	8,100	8,100
171	INFORMATION SYSTEMS SECURITY PROGRAM (OCO)	63,306	0
.....	Protected Information—Biometrics—Transfer to line 171x	.....	−25,134
.....	Transfer to OP,A line 51 at request of the Army	.....	−38,172
171x	FAMILY OF BIOMETRICS	0	25,134
.....	Non-MIP Biometrics—Transfer from line 171	.....	+25,134
178	DISTRIBUTED COMMON GROUND/SURFACE SYSTEMS (OCO)	16,200	16,200
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, ARMY	150,906	143,234
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, NAVY		
19	ELECTROMAGNETIC SYSTEMS ADVANCED TECHNOLOGY (OCO)	14,100	10,680
.....	Unjustified request	.....	−3,420
53	JOINT SERVICE EXPLOSIVE ORDNANCE DEVELOPMENT (OCO)	1,000	1,000
75	JOINT COUNTER RADIO CONTROLLED IED ELECTRONIC WARFARE (OCO)	0	11,800
.....	Network Enabled EW—Transfer from JIEDDO	.....	+11,800
124	MEDICAL DEVELOPMENT (OCO)	300	300
153	NAVY SPACE AND ELECTRONIC WARFARE (SEW) SUPPORT (OCO)	5,200	5,200
204	TACTICAL UNMANNED AERIAL VEHICLES	0	36,000
.....	Transfer from OM,MC for Qualitative Risk Assessment	.....	+36,000
213	RQ–7 UAV (OCO)	6,900	6,900
999	OTHER PROGRAMS (OCO)	32,901	32,901
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, NAVY	60,401	104,781
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, AIR FORCE		
17	ADVANCED AEROSPACE SENSORS	0	56,000
.....	Blue Devil Block 2—Transfer from JIEDDO	.....	+56,000
36	SPACE CONTROL TECHNOLOGY (OCO)	16,000	16,000
66	TACTICAL DATA NETWORKS ENTERPRISE (OCO)	30,000	30,000
128	MQ9 UAV (OCO)	0	88,500
.....	VADER/DDR on MQ–9—Transfer from JIEDDO	.....	+88,500
145	CSAF INNOVATION PROGRAM (OR ISR INNOVATIONS)	0	112,000
.....	ISR Sensor Pilot Program	.....	+112,000
164	MISSION PLANNING SYSTEMS (OCO)	4,443	4,443
211	NETWORK-CENTRIC COLLABORATIVE TARGETING (OCO)	6,100	6,100
230	SPECIAL TACTICS/COMBAT CONTROL (OCO)	10,325	10,325
999	OTHER PROGRAMS (OCO)	199,373	161,014
.....	Classified Adjustment	.....	−38,359
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, AIR FORCE	266,241	484,382
	RESEARCH, DEVELOPMENT, TEST & EVALUATION, DEFENSE-WIDE		
56	DARPA SENSOR TECHNOLOGY	0	40,000
.....	Transfer from JIEDDO—Wide Area Surveillance Development Roadmap	.....	+40,000
197	LONG-HAUL COMMUNICATIONS DCS (OCO)	23,125	23,125
202	INFORMATION SYSTEMS SECURITY PROGRAM (OCO)	750	750
254	SPECIAL OPERATIONS INTELLIGENCE SYSTEMS DEVELOPMENT (OCO)	9,440	9,440
255	SOF Operational Enhancements	0	14,500
.....	Transfer from JIEDDO—EW Family of Systems	.....	+14,500
999	OTHER PROGRAMS (OCO)	123,925	134,801
.....	Classified Adjustment	.....	+3,376
.....	Transfer from JIEDDO—Wallaby	.....	+7,500
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION, DEFENSE-WIDE	157,240	222,616
.....	TOTAL, RESEARCH, DEVELOPMENT, TEST & EVALUATION	634,788	955,013
	DEFENSE HEALTH PROGRAM		
.....	OPERATION AND MAINTENANCE	1,398,092	1,398,092
.....	IN-HOUSE CARE	709,004	709,004
.....	PRIVATE SECTOR CARE	538,376	538,376
.....	CONSOLIDATED HEALTH CARE	128,412	128,412
.....	INFORMATION MANAGEMENT/IT	2,286	2,286
.....	MANAGEMENT HEADQUARTERS	518	518
.....	EDUCATION AND TRAINING	18,061	18,061
.....	BASE OPERATIONS AND COMMUNICATIONS	1,435	1,435
.....	RESEARCH AND DEVELOPMENT	0	24,000
.....	Blast Recovery Monitors—Transfer from JIEDDO	.....	+8,000
.....	Body Blood Flow Monitor—Transfer from JIEDDO	.....	+9,000
.....	EMF Blast Pulse Effects—Transfer from JIEDDO	.....	+7,000
.....	TOTAL, DEFENSE HEALTH PROGRAM	1,398,092	1,422,092
	DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE		
.....	AFGHANISTAN AIR MOBILITY	141,634	141,634
.....	AFGHANISTAN BORDER FACILITIES	5,000	5,000
.....	AFGHANISTAN BORDER POLICE EQUIP	19,500	19,500
.....	AFGHANISTAN BORDER TRAINING	20,000	20,000
.....	CENTCOM SUPPORT—AFGHANISTAN	3,000	3,000
.....	COUNTER NARCOTICS POLICE AFGHANISTAN FACILITIES	25,295	25,295

R–1		Budget Request	Recommendation
.....	COUNTER NARCOTICS POLICE AFGHANISTAN TRAINING	50,250	50,250
.....	COUNTER NARCOTICS POLICE AFGHANISTAN (CNP–A) EQUIPMENT	1,241	1,241
.....	INTELLIGENCE AND TECHNOLOGY	61,500	56,900
.....	Program Adjustment		−4,600
.....	PAKISTAN	49,590	49,590
.....	KAZAKHSTAN	7,850	7,850
.....	KYRGYZSTAN	27,900	27,900
.....	TAJIKISTAN	8,500	8,500
.....	TURKMENISTAN	10,350	10,350
.....	UZBEKISTAN	8,500	8,500
.....	YEMEN	17,000	17,000
.....	PROGRAM ADJUSTMENT		−12,000
.....	TOTAL, DRUG INTERDICTION AND COUNTER-DRUG ACTIVITIES, DEFENSE	457,110	440,510
	JOINT IMPROVISED EXPLOSIVE DEVICE DEFEAT FUND		
1	ATTACK THE NETWORK	1,434,400	765,200
.....	Transfer to Staff and Infrastructure for proper execution		−238,800
.....	Air Vigilance—outside JIEDDO mission—Transfer to RDTE,A line 61 and OM,A line 411 for proper execution		−13,200
.....	Blue Devil Block 2—Transfer to RDTE,AF line 17 for proper execution		−56,000
.....	Copperhead—program terminated		−125,000
.....	Electronic Warfare Family of Systems (EW FoS)—Transfer to SOCOM, RDTE,DW for proper execution		−14,500
.....	JUON Reserve		+100,000
.....	Solar ISE—outside JIEDDO mission		−7,000
.....	Synchronization and Integration WTI Cell—Transfer to OM,A SAG 135 and OM,DW for proper execution		−6,400
.....	Thermal Station (National IED Exploitation Facility (NIEF))—Transfer to OM,A SAG 135 for proper execution		−13,000
.....	VADER development—Transfer $88.5 million to RDTE,AF line 128		−241,800
.....	Wallaby—Transfer to RDTE,DW for proper execution		−7,500
.....	Wide Area Surveillance Development Roadmap (WASDP)—Transfer to DARPA for proper execution		−40,000
.....	Wolfhound II—Transfer to OM,DW for proper execution		−6,000
2	DEFEAT THE DEVICE	1,529,390	1,223,090
.....	ACES HY Roadmap—Program terminated		−28,000
.....	Transfer to Staff and Infrastructure for proper execution		−105,000
.....	Beachcomber—Transfer to OM,A SAG 135 for proper execution		−3,000
.....	Counter Bomber—Transfer to OM,A SAG 135, OM,N, OM,MC and OM,AF for proper execution		−3,000
.....	CREW -SSM—Universal Test Set—Transfer to OM,A SAG 135, OM,N and OM,MC for proper execution		−5,000
.....	JUON Reserve		−105,000
.....	Networked Enabled EW—Transfer to RDTE,N line 75 for proper execution		−11,800
.....	Personnel Borne IED/Vehicle Borne IED (PBIED/VBIED)—Transfer to OP,A line136 for proper execution		−28,000
.....	Starlite Development Program—Program terminated		−16,000
.....	Subtle Magnetic Anomaly Detection Networked Systems—Transfer to OM,A SAG 135 and OM,MC for proper execution		−1,500
3	TRAIN THE FORCE	286,210	170,410
.....	Transfer to Staff and Infrastructure for proper execution		−75,400
.....	Blast Recovery Monitors—Transfer to DHP RDTE for proper execution		−8,000
.....	Body Blood Flow Monitor—Transfer to DHP RDTE for proper execution		−9,000
.....	EMF Blast Pulse Effects—Transfer to DHP RDTE for proper execution		−7,000
.....	Technical Collection Training Program—Transfer to OM,A SAG 135 for proper execution		−16,400
4	STAFF AND INFRASTRUCTURE	0	635,068
.....	Transfer from Title VI		+215,868
.....	Transfer from Attack the Network for proper execution		+238,800
.....	Transfer from Defeat the Device for proper execution		+105,000
.....	Transfer from Train the Force for proper execution		+75,400
.....	TOTAL, JOINT IMPROVISED EXPLOSIVE DEVICE DEFEAT FUND	3,250,000	2,793,768
	OFFICE OF THE INSPECTOR GENERAL		
.....	OFFICE OF THE INSPECTOR GENERAL	10,529	10,529
.....	OFFICE OF THE INSPECTOR GENERAL	10,529	10,529
.....	TOTAL, OTHER DEPARTMENT OF DEFENSE PROGRAMS	5,115,731	4,666,899

Mr. STARK. Mr. Speaker, I rise today in strong opposition to the continuing appropriations bill that will cut investments in health and education and will do nothing to create jobs or cut our bloated defense budget.

I agree with the President that shutting down the government was not an option and this bill is certainly better than the tea party budget, H.R. 1, which was passed earlier this year. However, I cannot support a bill that shifts the burden of deficit reduction onto the backs of the working class. This legislation would cut $504 million from the WIC nutrition program that helps to provide nutritious meals to thousands of families in my district. It would reduce funding for the Children's Health Insurance Program by $3.5 billion and for community health centers by $600 million, eliminating the primary source of health care for many low-income families.

At the same time, the bill actually increases defense spending by $5 billion and cuts funds for local law enforcement. I know the President and Senator REID had to make tough decisions during this process, but ignoring our massive defense budget is unacceptable.

Not satisfied with the cuts to health programs for women and children that made it into H.R. 1473, Republican leaders are also bringing up bills to eliminate funds to implement health reform (H. Con. Res. 35) and support Planned Parenthood (H. Con. Res. 36). The Republican message is clear: if you are poor or struggling to gain a foothold in the middle class, the deficit is your fault and you will pay so we can continue to fund two wars and pay for tax cuts for the wealthy.

I urge all of my colleagues to oppose the Continuing Appropriations Act and efforts to defund Planned Parenthood and health reform.

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise in strong opposition to H.R. 1473, a bill that will underfund critical health, education and public safety programs and undermine America's fragile economic recovery.

To those celebrating the depth and severity of the Republican budget cuts, allow me to highlight a few uncomfortable truths.

This legislation won't create jobs. It won't improve America's long-term fiscal outlook. And it certainly won't make life any easier for the working families who have borne the brunt of the worst recession since the 1930s.

My Republican colleagues should acknowledge what mainstream economists have maintained for years: that the anemic 18 percent of the budget we allocate to social programs isn't a threat to our national solvency.

We should reject the false choice between repairing our finances and preserving our social safety net. Shrinking the national debt doesn't require starving programs that provide for the poor, protect our planet and empower our young people.

While these savage cuts won't meaningfully reduce the deficit, they will imperil economic growth and endanger American competitiveness. Unfortunately, instead of making investments in our country's future, H.R. 1473 represents a return to the discredited theory that we can cut our way to prosperity.

However, reckless Republican demands reveal more than just a misunderstanding of basic economics—they expose the majority's misguided priorities and misplaced values.

H.R. 1473 condemns literacy programs and grants to improve teacher quality to the chopping block, exacerbating the impact of state and local education cuts.

The Centers for Disease Control (CDC) will be forced to absorb reductions unprecedented in the agency's history, compromising our ability to vaccinate our children and stem the rising tide of chronic disease.

In addition, Community Health Centers, primary providers of health care to millions of low-income Americas, will be dealt a $600 million dollar blow.

Unfortunately, even critical funding for America's police, firefighters and EMTs isn't exempt from Republican irresponsibility: H.R. 1473 slashes grants to first responders by almost $800 million.

So the next time an epidemic emerges or a disaster strikes and our government's response is inadequate, we can thank H.R. 1473.

The next time graduation rates fall and the achievement gap grows, we can thank H.R. 1473.

The next time a mother loses her job and her health care coverage and finds the doors of the local community clinic closed to new patients, we can thank H.R. 1473.

Sadly, there are those who argue that we should simply accept the damage to vital programs and services and move on to the next political battle. ''To compromise,'' they say, ''is to govern.''

Yet comprising our principles isn't real leadership and cutting aid to the most vulnerable is no way to govern.

In these trying economic times, Congress should certainly take a hard look at every tax dollar our government spends, but as President Roosevelt once said, ''A nation doesn't have to be cruel to be tough.''

For all of these reasons, I call on my colleagues to join me in voting ''no'' on H.R. 1473.

Mrs. LOWEY. Mr. Speaker, the fiscal challenges our nation faces are the result of the irresponsible policies of the Bush administration and costly wars in Afghanistan and Iraq as well as necessary measures that continue helping our economic recovery after the most severe financial crisis since the Great Depression. The high federal deficit is not, as some claim, due to over-investment in Head Start, schools, roads, bridges, medical research, or other critical priorities.

The federal government must operate more efficiently, eliminate waste, and find cost-savings and efficiencies that jeopardize neither vital services on which Americans rely, nor critical investments in our economic growth. The administration and congressional negotiators made progress toward that end in this bill.

We were successful in restoring funding for critical programs like Head Start, Pell Grants, public broadcasting, and Title I aid to local schools, and that the damage was mitigated for programs like family planning and medical research at the National Institutes of Health. The draconian cuts prescribed in H.R. 1 for these and other vital initiatives would have hurt our ability to grow the economy, create jobs, and compete in the future.

I commend President Obama and Senator REID for refusing to give in to Republican demands to de-fund Planned Parenthood and Title X family planning programs, which would have denied millions of women access to contraception, breast exams, Pap tests, and other critical health services.

While the bill is a significant improvement over H.R. 1, it is far from perfect. Among its flaws, I am extremely disappointed that the Urban Areas Security Initiative (UASI) and State Homeland Security Grant Program (SHSGP) have been slashed by 18 percent and 24 percent, which will hurt New York's preparedness. It is shameful that my amendment to restrict UASI funding to 25 at-risk, densely populated cities, passed by the House of Representatives, was removed, allowing the program's recipients to continue to balloon and further dilute this already insufficient account. A unified House position and common sense should have been enough to convince the Senate to provide the most at-risk areas like New York adequate anti-terror funds before areas that face minimal threat. I call on Secretary Napolitano to use her authority to limit the number of grant recipients to 25 and will introduce stand-alone legislation today to make it a statutory requirement.

Many will reject this agreement on the grounds that the cuts are not severe enough while others will oppose it based on what they consider excessive reductions. However, to govern is to make tough choices, and I am working with my colleagues in a responsible and bipartisan way to protect vital services and investments in our future while reducing spending. My vote in support of this bill is not an endorsement of cuts to many important programs I believe are beneficial to economic growth, health, education, and public safety, and I will continue fighting against drastic and irresponsible proposals like H.R. 1.

As difficult as it was to reach agreement for 2011 spending levels, the challenges ahead are even greater. Moving forward, Democrats and Republicans must work together to eliminate wasteful or duplicative spending while protecting investments in our future and essential services like Social Security, Medicare, and Medicaid.

Mr. QUIGLEY. Mr. Speaker, I rise today in opposition to H.R. 1473, the continuing resolution for FY11.

We cannot stand here, in good faith, and call this legislation a compromise.

This bill includes a provision that will prohibit the District of Columbia from spending its own money to provide abortions to low-income women.

D.C. Mayor Vincent Gray certainly wasn't at the table for this compromise.

This bill includes a provision that would remove wolves from the endangered species list in Montana.

This science-based decision, a decision that's central to the Endangered Species Act, is not a compromise for politicians to make.

This bill includes a provision that guarantees Senate debate on healthcare repeal and defunding Planned Parenthood.

And, this bill includes a provision that would block a funding increase for the IRS to hire additional agents for oversight and enforcement activities.

I cannot stand here, in good faith, and support this legislation.

I would be compromising my constituents' trust in my ability to represent their beliefs, their values and their best interests.

Mr. DINGELL. Mr. Speaker, I rise in support of H.R. 1473 and urge my colleagues to vote for this imperfect compromise. This is not the spending bill I would have written, and it is safe to say that not one Member of Congress believes this bill is perfect. However, Democrats and Republicans have spent endless hours negotiating across the aisle to form something that is at least satisfactory to most, and I appreciate their efforts.

Congress has passed seven interim continuing resolutions (CRs) in fiscal year (FY) 2011 and has funded most of the year with stopgap spending bills. On the same day we are voting on FY 2011 funding, we are considering the FY 2012 budget. The time has passed for us to enact a full-year spending measure for FY 2011 that will allow us to focus on the future and bring stability back to the federal government.

While I am pleased this CR is a significant improvement from H.R. 1, the previous full-year CR, this bill still includes hazardous cuts that threaten many important federal programs. I believe Congress's spending legislation should reflect what our Nation values most, and I do not like what this bill says about our priorities.

The current CR includes cuts that will fall on the backs of our most vulnerable populations, including low-income women and children, dislocated workers, and those in need of affordable health care. I also do not support its cuts to law enforcement and emergency responsiveness, nor its massive reduction in environmental conservation funding. The current CR also fails to prioritize innovation and development, and I believe such reduced funding for critical government programs will delay our economic recovery.

In all, the bill cuts over $40 billion from FY 2010 spending levels. Yet it actually increases defense spending. Mr. Speaker, this bill is not an accurate portrayal of my priorities, nor those of the majority of my constituents. That said, this bill is a significant improvement from H.R. 1, and only includes about a quarter of the cuts included in the original spending bill. I am happy to see that the current CR will increase investments in education, providing our children with the tools they need to succeed. Race to the Top education reforms, Head Start programs, and Pell Grants for low-income college students will receive the funding they need. I also am happy to see adequate investments in Wall Street oversight, food safety inspection, and infrastructure grants to spur local economies.

While I believe this bill cuts too far into many important government programs, I also acknowledge that everyone will need to make sacrifices if we are to adequately address our increasing level of federal debt. These spending reductions will not be easy to swallow, but we will face many difficult choices as we begin to return this country to a solid financial footing.

I urge my colleagues to vote in favor of H.R. 1473.

Mr. PASCRELL. Mr. Speaker, the bill before us certainly isn't perfect. It contains cuts to many programs important to New Jersey families and several policy riders that I do not support. Cuts to Community Development Block Grants (CDBG) and the Women and Infant Children (WIC) program will be hard to swallow, especially in these tough economic times. Reducing the Environmental Protection Agency's budget will make it harder to keep our air and water clean and protect us from the threat of climate change. And I am skeptical of reducing government spending in a way that could negatively impact our economic recovery.

However, the deal does restore many of the Republican's most draconian cuts contained in H.R. 1. We were able to restore a billion dollars to CDBG, almost $250 million to WIC and $250 million to the COPS hiring program. The deal includes my amendment—that was passed by a large bipartisan majority—to restore funding for our firefighters to fiscal year 2010 levels. We have maintained the maximum Pell Grant award that makes higher education affordable and actually increased funding for early childhood education. The Securities and Exchange Commission will receive an increase in funding so it can more effectively police Wall Street and implement the reforms in the landmark financial regulation bill passed last year.

My job as a Member of Congress is to find ways that we can come together to bridge our partisan differences for the good of the country. I believe that this bill meets that test. I will be voting in support of it so that we can avoid

a government shutdown that could hurt our recovery far more than the cuts contained in this bill.

Passage of this deal will allow us to turn our sights to the 2012 budget and have a broad discussion of our country's future. Make no mistake: the Republican budget is dead on arrival. A budget is a statement of priorities, and I will never vote for any budget that pays for tax cuts for the wealthiest by ending Medicare for our seniors. Yesterday, the President began what I hope will be an adult conversation about our future, and I intend to be a loud voice for protecting our seniors, veterans and the middle class.

Mr. PRICE of North Carolina. Mr. Speaker, I rise today in reluctant opposition to this measure. I do so with a keen awareness that it reflects a bipartisan agreement reached to avert a government shutdown, and I commend the President and congressional leadership for negotiating a deal that avoided the most extreme aspects of H.R. 1, the Republican continuing resolution passed by the House in February. I also commend Chairman ROGERS and the Appropriations Committee majority staff for soliciting input from the minority as they finalized the details of this proposal.

But ultimately, I must judge this bill on its merits and not by the process that produced it. And I cannot in good conscience support a measure that will threaten our fragile economic recovery and undermine key investments in our future, while doing little to address our long-term fiscal challenges and requiring little in the way of shared sacrifice. It is simply not enough to observe that this bill could have been much worse.

As the Ranking Member of the Homeland Security Appropriations Subcommittee, I have concerns about the cuts the bill would impose on the Department of Homeland Security (DHS), but this is not the primary reason for my opposition. This area of the budget was spared the sort of drastic reductions the bill makes to investments in infrastructure, innovation and the health and well-being of the American people. I commend our Subcommittee Chairman, ROBERT ADERHOLT, for protecting the core operational functions of the Department—from Customs and Border Protection personnel to transportation security investments to the Coast Guard.

Chairman ADERHOLT was not operating without constraints, of course. Overall funding for DHS will drop by two percent from last year's funding level, and the majority's decision to increase the Disaster Relief Fund by $1 billion to cover a shortfall that has traditionally been met through emergency supplemental appropriations only exacerbates this reduced allocation. Unfortunately, state and local first responder grants received the brunt of this blow, taking a 25 percent reduction overall. Not only does this adversely impact the efforts of communities across the country to keep their people safe by preparing for natural disasters and terrorist attacks, but it does so at a time when state and local budgets are already contracting, making federal assistance all the more vital.

The bill also reverses course on a decision to fund the processing of asylum seekers and refugees out of general funds, rather than asking other immigrant petitioners to pay fees to fund a service they don't receive. A reduced allocation for the National Protection and Programs Directorate is likely to delay the critical effort to secure government cyberspace, and a cut to the flood hazard mapping program will make it difficult for FEMA to meet its legal obligation to update our nation's flood maps every five years.

The bill does avoid significant cuts to most of the core DHS components, including the Coast Guard, TSA, ICE, Secret Service, and Customs and Border Protection. Importantly, the bill maintains level funding for firefighter equipment and staffing grants, which are critical to mitigate the impacts of widespread local budget cuts to public safety personnel. And because of the dire fiscal straits that local fire chiefs are facing, the bill maintains flexibility Congress has given FEMA in recent years to waive certain restrictions on SAFER grants that are difficult for most fire departments to achieve right now.

Specifically, the bill waives the requirement that SAFER grants be used to increase the number of firefighters on staff, thus allowing these grants to be used to rehire laid off firefighters and to retain firefighters who face the prospect of being laid off. In discussions over these provisions, negotiators realized that allowing these grants to be used for retention was clearly one of the most important measures that should be maintained for fiscal year 2011 SAFER grants. Second, the bill waives local cost-share requirements, which vary from 10 percent of a firefighter's salary in the first year to 70 percent in the fourth year of the personnel grant. Third, the bill waives a provision in the SAFER authorizing statute prohibiting the grants from being used to supplant state or local funds. While I believe a more comprehensive set of waivers would have served the program well, in the judgment of the bill's negotiators, provisions allowing for the rehiring and retention of firefighters, the waiver of cost-share requirements, and the supplanting of local funds simply had to be maintained for the current fiscal year.

Unfortunately, these homeland security provisions offer little consolation when we turn to other areas of the bill. The strength and security of our country are about much more than how much we spend on weapons systems or how thoroughly we police the border. They are about the investments we make in our people—in our nation's ability to recover from the current economic downturn, compete in the global economy, and build a future of greater prosperity for our children and grandchildren. The bill before us risks pulling the rug out from under the current recovery and compromising our future competitiveness.

To be sure, it could have been worse. Some of the most reckless cuts included in H.R. 1—such as a 17 percent cut to Pell Grants, a $1.6 billion cut to NIH, and an $800 million cut to the National Science Foundation—have been avoided, while the measure contains modest increases for programs such as Head Start and homeless assistance grants. Most of the extreme, ideologically driven policy riders being pushed by my Republican colleagues have been dropped.

But the bill still cuts nutrition assistance to Women, Infants and Children (WIC) by over $500 million, Community Health Centers by $600 million, and public housing programs by $700 million—leading to more hungry children, reduced access to health care, and fewer families with a roof over their heads at a time when many are still struggling to make ends meet. It cuts Career Education programs, Dislocated Worker Assistance programs, and a range of highway and infrastructure projects — making it harder for out-of-work Americans to find jobs at a time when our economic recovery is still fragile. And it includes drastic cuts to high-speed rail ($2.9 billion), the EPA ($1.6 billion), energy efficiency and renewable energy research ($438 million), and other key investments in our long-term economic competitiveness. The federal budget is a statement of our priorities and values. These cuts will slow economic growth, as economists across the spectrum have warned, and cost hundreds of thousands of jobs. They will inflict pain on the most vulnerable and restrict opportunities for the middle class.

Make no mistake: in order to preserve our economy competitiveness in the future, we must also put our country back on a path toward fiscal balance. As a veteran of the balanced budget agreements of the 1990s, I take a backseat to no one in my conviction that we must rein in our current deficits and put our long-term obligations on a more sustainable trajectory. And while some may claim that this bill is a necessary first step on this path, this view ignores the fact that by threatening the recovery, this bill could perversely exacerbate our fiscal troubles, all the while failing to address the real budget crisis—the massive imbalance in projected revenues and government obligations in the long-term.

Addressing this much more vexing challenge will require making targeted reductions in spending, but it should phase these adjustments in at a pace that does not jeopardize the fragile economic recovery. I have supported a series of measures in recent months that included real cuts to programs I care about. I helped draft an omnibus bill last fall that would have cut over $20 billion below the President's request, and when that wasn't enough to satisfy my Republican colleagues, I helped draft a yearlong Continuing Resolution (CR) that would have cut nearly $40 billion below the request (and $10 billion below last year's enacted level). Senate Republicans blocked both measures, choosing instead to threaten a March government shutdown. In recent weeks I supported three short-term continuing resolutions to give leaders time to negotiate our way out of this mess. These bills cut another $12 billion off of last year's level.

But we will never balance the budget through cuts to domestic discretionary spending alone. What is needed is a comprehensive approach that includes reforms to entitlements and revenue, as well as targeted spending cuts—the kind of serious approach outlined by President Obama yesterday—instead of focusing myopically on just 12 percent of the budget, as the bill before us does. Twelve percent of the budget—programs that invest in our people and our future—is not 100 percent of the problem. A real budget solution requires shared sacrifice from all Americans, instead of seeking to balance the budget on the backs of lower- and middle-income Americans while cutting taxes for the wealthy.

And so I cannot in good conscience support a measure that would threaten our economic recovery and undermine our long-term competitiveness while doing next to nothing to address our long-term fiscal challenges. This bill may have been a necessary step to avert the irresponsible shutdown of the government, but that does not make it a step in the right direction. I urge my colleagues to oppose this measure.

Mr. WEST. Mr. Speaker, this past weekend I had an important milestone occur in my life. My oldest daughter, Aubrey, turned 18 years old. It seems like it was only yesterday that I held this small baby in the palm of my hand and now she is a grown mature woman about to start college and begin the next phase of her life.

I flew back to Florida last Saturday so that I could be with her on this very special day in her life. Turning 18 is important for every American. Because at 18 years old, under the law, you are now considered an adult and she was proud to register for the most important right—the right to vote for our elected leaders.

When my daughter was born in 1993 the Federal Government debt was $4.3 trillion. Just 18 years later, I will shortly be faced with a vote on whether to raise the debt limit to over $15 trillion. When I held my daughter as a baby, I never thought that our Nation would be in such financial distress and on its way to a major economic catastrophe.

Over the weekend, as I celebrated with my daughter, I thought even harder about what the United States will be like when she will be my age and what would her son or daughter, my grandchildren, think when they look back in the history books at this critical time in our Republic's history.

Last November, the citizens of the 22nd congressional district, and millions of Americans, voted for a new direction for our country. They sent a message to our elected representatives that we needed to end out-of-control government spending, reduce our national debt, and get our fiscal house in order.

The Democrat majority and President Obama over the last two years have produced deficits of $1.4 and $1.25 trillion, and the President has produced a budget for fiscal year 2012 which would add another $1.6 trillion. The American people know that the Federal Government is collecting $2.2 trillion and spending $3.7 trillion this year.

The American people know that forty cents of every dollar the Federal Government spends is borrowed, much of it from China. The American people also know our Nation is piling up new debt at the rate of $4 billion a day.

The Era of Big Government Spending is Over! In 100 days the debate in Washington has gone from a freeze in government spending to addressing cuts in spending.

As we are all aware, the 111th Congress was controlled by overwhelming Democrat majorities in the House of Representatives and the U.S. Senate. Yet even with these enormous majorities, Congress failed to pass a budget or any of the appropriations bills.

Members of the former majority party in the House of Representatives have now resorted to the political rhetoric that the Republican Party is trying to kill women, starve seniors, and the budget deal is the functional equivalent of bombing innocent civilians. They make these statements even after Majority Leader REID and President Obama recognize that we need to cut Federal spending.

This type of political rhetoric is beneath us. We can disagree on the direction we are taking our nation, but let us have a debate on the facts and policies. The American people demand an adult conversation instead of childish name calling.

Mr. Speaker, I want to take a moment to briefly summarize my thoughts and votes during the negotiations for the budget for fiscal year 2011. I voted for the first short term Continuing Resolution in the 112th Congress in order to provide Speaker BOEHNER the necessary time to negotiate with an intransigent U.S. Senate and White House.

I voted against the second Continuing Resolution because I believed that we were continuing to kick a can down the road, and that the Obama administration and Members of the Democrat Party wanted to force the Federal Government into a shutdown in order to win political points. It seems their goal is the hope that by shutting down the Federal Government, the American people will perceive an inflexible Republican Party and return the Democrats to power in the next election.

I voted for the Department of Defense Appropriations bill, which contained another short term Continuing Resolution, in order to support my brothers and sisters in uniform. However, I made the leadership of the Republican Party aware that I believed using the military as a bargaining chip in the negotiations as a way to pass yet another continuing resolution was indefensible.

As the clock approached the time to shut down the Federal Government, an agreement was finally reached. In order to draft the bill and provide time for the American people to review the bill, the House considered, and I voted in favor of another Short Term Continuing Resolution. I always stated it was never my intention to shut down the Federal Government.

At the Army Airborne school in 1984 I had a black hat instructor say, ''If you set the bar low, you will jump low!'' Today, I will be voting against the negotiated agreement because I believe that we set the bar too low and it does not fulfill the promise I made to the constituents of the 22nd congressional district of Florida. While this bill is a step in the right direction, I am voting against the Department of Defense and Full-Year Continuing Appropriations Act for fiscal year 2011, H.R. 1473 because it is important for elected leaders to stand by the pledges we make to the American people.

It takes five miles to turn an aircraft carrier. I am pleased, that finally, the Republican leadership has finally taken control of the helm and begun to turn the wheel. However, I believe we need to turn the wheel a little harder. At this moment in our Nation's history, when the facts are so clear and the political hyperbole is so hollow, my vote reflects that we need more to get our ship of state on the right course.

That is what my adult daughter Aubrey expects, that is what my teenage daughter, Austen expects, that is what my wife Angela expects and that is what every American expects.

Mr. SMITH of Texas. Mr. Speaker, I support this bill because it represents a fundamental shift in the debate here in Washington. The question is no longer about how much to increase Federal spending as it has been these last few years. And it isn't even whether or not to cut Federal spending. Instead, the question is now by how much to cut Federal spending.

I know that in order to cut the budget, hard choices must be made. Unfortunately, this bill makes two incorrect choices.

First, H.R. 1473 rescinds $13 million from funding for the REAL ID hub. Second, the bill cuts $25 million from the exit portion of U.S.–VISIT.

The 9/11 hijackers each used fraudulently obtained drivers' licenses and identification cards from several different states. In response, the 9/11 Commission recommended that, ''The federal government should set standards for the issuance of birth certificates and sources of identification, such as drivers licenses.''

So Congress passed, and the President signed into law, the ''REAL ID Act of 2005.'' Unfortunately this administration does not take this law seriously. In fact, the administration tries at every opportunity to undercut the congressional mandate.

Most recently the Obama administration issued a 20-month extension for states to comply with REAL ID. Such extensions simply leave Americans vulnerable to those who want to do us harm.

We should do whatever we can to ensure that the administration and states implement REAL ID. Taking funds away from it is a mistake.

It is also a mistake to take funds away from the development of the exit portion of U.S.–VISIT.

The ''Illegal Immigration Reform and Immigrant Responsibility Act of 1996,'' required, within 2 years, the creation of an automated system to track the entry and departure of every alien entering the United States in order to identify those aliens who overstay their visas. That system is known as United States Visitor and Immigrant Status Indicator Technology (U.S.–VISIT).

Fifteen years later, the exit portion of that system is nowhere near completion. In fact, other than several prior pilot programs at land, sea and air ports of entry, the exit portion doesn't even really exist.

Without the ''exit'' portion of U.S.–VISIT, there is no way to tell whether people who entered on short-term visas returned home. And such visa overstayers account for nearly 40 percent of all illegal immigrants in the United States. It is a matter of national security to know who is coming and going from the U.S.

Taking $25 million from U.S.–VISIT gives the administration the impression that we are not serious about its implementation. And that is wrong.

I plan to support passage of H.R. 1473, but I hope that in the future, the choices we made to cut federal spending that might put this country's national security at risk will be reconsidered.

Mr. BLUMENAUER. Mr. Speaker, I will be voting against the continuing resolution because it reflects seriously misplaced priorities. What we are having right now is not just a budget battle; it is a fundamental debate about the direction and values of this country. Cutting nutrition aid for women and children during an economic recession is heartless. Cutting programs that not only benefit farmers but help protect the environment, wildlife, water quality, and erosion control is stupid. Reducing funding the state revolving fund that helps rebuild local sewer and water systems around the country is folly. These programs create jobs and improve the health of the community.

I also will be voting against the CR because it endorses Republican brinkmanship that encourages political ''hostage taking'' with disastrous results far in excess of any potential advantage gained. The fact that a minority of Congress feels empowered to do things to government operations that are truly irrational

destroys the credibility of this legislative body. It must stop. The only way it will stop is if the attention and resulting fury of the American public is focused on it.

This legislation represents a failure to deal with entrenched political interests at a time of heightened awareness, attention, and controversy around our budgets. We should be doing better not worse.

The next act in this sad drama—dealing with the increase of the debt ceiling, which will absolutely be approved—is already underway. The United States has no choice. Even pretending that we won't raise the debt ceiling risks consequences far more serious than the added interest costs that the U.S. would face, which would total approximately two thirds of a billion dollars a day for every percentage increase in our national debt interest rate.

We should call the question as soon as possible to attempt to rein in an ongoing political strategy that will simply move us from one crisis to the next, whether it be a future increase in the debt ceiling, expiring tax provisions, or the next budget cliff. We must stop now. The best step is to draw the line before it goes any further to increase the likelihood that people will begin to act responsibly.

Ms. HIRONO. Mr. Speaker, I rise in opposition to H.R. 1473, the FY2011 Department of Defense and Full-Year Continuing Appropriations Act.

American families in each and every one of our congressional districts are relying on Congress and the White House to avoid a government shutdown and agree on a budget that funds the government for the rest of the fiscal year. While this bill is far better than H.R. 1, the Republican's FY2011 continuing resolution that passed the House earlier this year, I am voting against H.R. 1473 because far too many people will be adversely impacted by the cuts it will make.

Compared with the draconian cuts proposed under H.R. 1, H.R. 1473 provides additional funding for many programs that people in Hawaii and across this country rely on for support—including Head Start, community services, and public broadcasting. H.R. 1473 also invests in our economic future by supporting Race to the Top and funding key science and energy R&D programs.

This legislation is also a better bill than H.R. 1 because it doesn't include legislative riders that defund the Affordable Care Act or prohibit funding to Planned Parenthood. I fundamentally disagree with these riders on a substantive and procedural basis. Members of Congress should have the opportunity to debate and vote on these issues separately and deliberately on their own merit rather than have them be rammed through an appropriations measure.

But H.R. 1473 falls short in many respects. Many families in Hawaii and across the country are barely scraping by and will get little help from this legislation.

What is most alarming about this compromise bill is that it asks working- and middle-class Americans to bear the brunt of the budget cuts without asking the wealthiest Americans to do the same. Where is the shared sacrifice? Where is the aloha?

This continuing resolution takes a meat axe approach by slashing funding for so many programs that I can't even name all of them here. Cuts to community health centers? Check. Cuts to workforce training programs? Check. Cuts to law enforcement grant programs? Check. What about programs for low-income college students? Those programs are cut, too.

The bill also cuts Community Development Block Grant funding by $950 million from the enacted FY2010 level despite wide bipartisan support from counties in Hawaii and across the country. CDBG supports economic development, job creation, and facility needs for the most disadvantaged. The CDBG program has given thousands of Americans a much needed hand up when times were tough—a hand they wouldn't have received without sufficient levels of funding.

In fact, just a few weeks ago, representatives from Hawaii's counties were in town. Their message was simple: preserve CDBG funding.

Not only that, but they were also keen on preserving federal programs that are helping them to upgrade their emergency communications systems to comply with federal law. Instead, this bill terminates the Interoperable Emergency Communications Grants program and cuts $45 million from the Emergency Operations Center Grants program, both run by FEMA. Not only are we reducing resources our communities need, but we are making them less able to comply with the requirements that we at the federal level are forcing them to meet.

In addition to cutting funds that our communities depend on to help people, it also cuts funding for programs that help to keep our communities healthy and safe.

For example, we're reducing allocations for the Clean Water State Revolving Fund and Drinking Water State Revolving Fund by almost $1 billion. These are two of the most important federal sources of funding for improving our wastewater and drinking water infrastructure. This cut reduces Hawaii's Clean Water State Revolving Fund by $4.4 million. Access to clean water should be one of our highest priorities, as it is one of the most basic needs of all of our people. Yet, we are making cuts to these programs, which provide federal funds that ensure clean, safe water for our communities.

Of course, these are two major federal programs. This legislation is even crueler when it comes to smaller federal programs—like the Watershed and Flood Prevention Operations program run by the Department of Agriculture, which is zeroed out in this bill. This program is one of the only federal programs available for flood prevention and watershed development programs in America's rural communities. Even though it is a relatively small program, it has a big impact in communities that receive funding—like those on the islands of Maui and Hawaii.

My colleagues may be aware that Hawaii recently received a Presidential Disaster Declaration to assist with rebuilding the communities that sustained damage in the recent tsunami. Certainly, providing assistance to communities affected by disasters should be a national priority. Unfortunately, this bill cuts Pre-Disaster Mitigation Grant funding by 50 percent. Thanks to the Declaration we recently received, Hawaii's counties are eligible to apply for this funding, which can be used to help prevent damage in the event of the next natural disaster. This is the kind of forward-thinking investment in preparedness we should be prioritizing. Instead, we are cutting funding in half.

I am concerned about the economic impact that this bill will have on Hawaii and our nation. I am concerned about what it says about our priorities as a people. At the same time, I understand the pressures that President Obama and our Senate colleagues were under. America's families already have enough to worry about—they shouldn't have to be concerned that their government is going to shut down.

However, the negotiations over this important decision were hijacked—as this House has been—by an extreme, ideological minority. This faction has adopted an irresponsible ''my way or the highway'' negotiating position. They believe that because they have the majority in this chamber, that they can drown out the voices of those of us who want to work to ensure that our government works for our constituents and reflects the priorities of our communities.

I support the President and know that this is a deal he didn't want to have to make. As a member of the House, I want him to know that these extremists do not represent the full will of the American people—so I feel that it is my duty to vote against this deal.

I will continue to oppose legislation that weakens our economy when it is already fragile, increases the burden on our families when they are struggling, and fails to adequately invest in our nation's future success.

Our priority needs to be jobs. H.R. 1473 doesn't create jobs or help the middle class, which is why I must vote against this bill.

Ms. MCCOLLUM. Mr. Speaker, despite reservations about certain aspects of this appropriations bill, I will vote in favor of funding the federal government for the remainder of Fiscal Year 2011. The process over the past year, that has led us to this vote, has been filled with missed opportunities, disappointments, and extreme political posturing. This compromise agreement is a success for President Obama who prevented a government shutdown and defended America's seniors, students, working families, and the fragile economic recovery. Federal funding for Planned Parenthood and implementation of the Affordable Care Act, both under constant attack from Republicans, were prevented from being eliminated to the benefit of Americans in need of access to health care.

The Republican Tea Party crusade to eliminate $100 billion in 2011 from domestic discretionary spending and their threats to shutdown the federal government failed. At the end of the day, this compromise cuts $38.5 billion from the budget. Yet, will yield only $352 million in reduced federal outlays in 2011, according to the Congressional Budget Office, CBO. This is because much of the funding eliminated in H.R. 1473 was excess program funds that were never going to be spent anyway.

H.R. 1473 is a compromise between Democrats and Republicans. Many onerous, destructive cuts proposed by the Tea Party Republican House majority in H.R. 1 were eliminated from this compromise. Investments in job creation, health care reform implementation, voluntary family planning services, public broadcasting, international development assistance, and services for homeless veterans are all included in this bill. Despite Republican efforts to gut services for the unemployed, the sick, women, and the poorest of the poor around the world, many harmful cuts were avoided in this final bill.

Still, there are budget cuts and policy riders in this bill, which I strongly disagree with and have a long record of opposing. The cuts to the Environmental Protection Agency, EPA, of $1.6 billion or 16 percent will diminish the ability of this agency to protect human health, pursue polluters, and address the grave challenges presented by global climate change. These cuts to EPA are wrongheaded and reflect a perspective that corporate profits are more important than regulating pollution and protecting human health. I find this objectionable, and I will work to continue to fund EPA's vital regulatory role in the 2012 Fiscal Year.

Deep cuts to community health centers are of great concern to me. The $503 million cut to the Women, Infants, and Children, WIC, program—which provides nutritional assistance to young children and pregnant, postpartum and breast-feeding women—is a direct Republican attack on our society's most vulnerable. These are two examples of senseless, mean-spirited cuts that target low-income Americans.

Funding school vouchers in the District of Columbia is a policy I strongly oppose because it undermines public schools and diverts scarce resources away from public 4, education. Another rider which I strongly opposed prohibits the District of Columbia from using its own local tax revenue to provide legal health care services to women. This intrusion into the affairs of local government is an example of Republican hypocrisy as they impose their ideological agenda on struggling citizens.

There is no doubt that the federal government is facing a fiscal threat that must be addressed. Deficit reduction is a priority for the American people, for the financial markets, and for Congress. The House Republicans' hard line on spending masks their policies of increasing the deficit by hundreds of billions by cutting taxes for millionaires and billionaires, protecting the defense contractors from cuts to eliminate waste and abuse, and heaping generous tax breaks on oil companies and other special interests. By focusing all spending cuts on domestic discretionary programs which makes up only 12 percent of the federal budget the Republicans advance an ideological agenda, but do nothing to repair our nation's fiscal situation or strengthen the economy.

I will not celebrate the passage of this bill, but the process that lead us to this point should be instructive to the many sectors of our community that depend on the federal government as an equal partner. The consequence of last November's election victory by the Tea Party means every federal investment in education, health care access, services to the poor, the disabled, and the homeless is at risk of being eliminated. Federal support for job creating investments in community development, the arts, green technology, workforce training, and life-saving medical research are all at risk by this Tea Party majority that is determined to slash federal programs.

Since January the American people have witnessed the Tea Party Republican majority in Congress and the accompanying agenda. The passage of H.R. 1 should be indicative of how destructive their agenda would be to America if it were not for a Democratic majority in the U.S. Senate and the leadership of President Obama in the White House. Between now and November 2012 the American people need to decide what role they want the federal government to play in their lives. The future of America is being debated now, but it will be decided in the next election. I strongly urge my fellow citizens—especially those who believe government plays a valuable role in our society—to become fully engaged in the policy and political process.

The outcome of this year's appropriations process, H.R. 1473, is a compromise agreement. I support this agreement, but compromise does not mean I cede my values or priorities. In this political environment, I believe this compromise is the best deal possible to keep the federal government working, and I will not vote to shutdown the government.

Congress needs to pass H.R. 1473, fund the federal government for the remainder of 2011, and get serious about meeting the priorities of the American people, like creating jobs, preventing a fiscal crisis, and making America competitive in this global economy.

Mr. HOLT. Mr. Speaker, I rise in opposition to the bill before us today to fund the federal government for the remainder of fiscal year 2011.

The budget for the federal government is a moral document. It reflects, in dollars and cents, our priorities as a nation. My priorities include supporting programs that create jobs, promote American competitiveness, and strengthen our communities.

The spending bill before us demonstrates a different set of priorities. This bill slashes $150 million from the National Science Foundation, $260 million from the National Institutes of Health, $109 million from the National Institute of Standards and Technology, $35 million from Department of Energy's Office of Science, and eliminates the summer Pell Grant program I helped establish for students who work while trying to earn a college degree. In order to out-innovate, out-educate, and out-build the rest of the world, we must preserve these investments.

As our economy slowly recovers, local governments and social service agencies continue to struggle to provide critical services to their communities. This bill irresponsibly cuts state and local law enforcement grants by $414 million and cuts the COPS program, which helps police departments hire and retain officers, by nearly $300 million. These programs are not wasteful, rather they keep our neighborhoods safe and secure.

This bill cuts by $600 million—or 27 percent—funding for community health centers. It cuts programs that provide food assistance to women, infants and children by half of a billion dollars and cuts nearly $1 billion from the Community Development Block Grant program. These programs are part of the safety-net that assists the most vulnerable among us in obtaining housing, health care, food and are necessary for a humane society.

Inexplicably, while my Republican colleagues talk about shared sacrifice to justify these cuts, this bill increases by $5 billion funding for the Department of Defense. I am disappointed that this figure includes the $1.5 billion for Iraqi police and security forces that I attempted to save on behalf of taxpayers on the House floor earlier this year.

This bill contains the wrong priorities for the middle-class New Jersey and across America, and I urge my colleagues to oppose it.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 218, the previous question is ordered on the bill.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

Pursuant to clause 10 of rule XX, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, this 15-minute vote on H.R. 1473 will be followed by a 5-minute vote on House Concurrent Resolution 43.

The vote was taken by electronic device, and there were—yeas 260, nays 167, not voting 6, as follows:

[Roll No. 268]

YEAS—260

Aderholt
Akin
Alexander
Altmire
Andrews
Austria
Baca
Bachus
Barletta
Barrow
Bass (NH)
Benishek
Berg
Berkley
Berman
Biggert
Bilbray
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Boehner
Bonner
Bono Mack
Boren
Boswell
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Cardoza
Carnahan
Carney
Carter
Cassidy
Castor (FL)
Chandler
Cicilline
Coble
Coffman (CO)
Cole
Conaway
Connolly (VA)
Cooper
Costa
Costello
Courtney
Crawford
Crenshaw
Critz
Cuellar
Culberson
Davis (CA)
Davis (KY)
DeFazio
Denham
Dent
DesJarlais
Diaz-Balart
Dicks
Dingell
Dold
Donnelly (IN)
Dreier
Duffy
Ellmers
Emerson
Eshoo
Farenthold
Fattah
Fincher
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx
Frelinghuysen
Gallegly
Gerlach
Gibbs
Gibson
Goodlatte
Gosar
Granger
Graves (MO)
Griffin (AR)
Grimm
Guinta
Guthrie
Hall
Hanabusa
Hanna
Harper
Hartzler
Hastings (WA)
Hayworth
Heck
Heinrich
Hensarling
Herger
Herrera Beutler
Himes
Hinojosa
Holden
Hoyer
Hultgren
Hunter
Inslee
Israel
Issa
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, Sam
Jones
Keating
Kelly
Kildee
Kind
King (NY)
Kinzinger (IL)
Kissell
Kline
Lance
Landry
Langevin
Lankford
Larsen (WA)
Latham
LaTourette
Latta
Levin
Lewis (CA)
Lipinski
LoBiondo
Lowey
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Manzullo
Marchant
Marino
Matheson
McCarthy (CA)
McCarthy (NY)
McCollum
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Michaud
Miller (FL)
Miller, Gary
Moran
Murphy (PA)
Myrick
Neal
Noem
Nugent
Nunes
Nunnelee
Olson
Owens
Palazzo
Pascrell
Paulsen
Perlmutter
Peters
Peterson
Petri
Pitts
Platts
Pompeo
Posey
Price (GA)
Rahall
Reed
Renacci
Ribble
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Rothman (NJ)
Royce
Runyan
Ruppersberger
Ryan (WI)
Sarbanes
Scalise
Schiff
Schilling
Schock
Schrader
Schwartz
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sewell
Sherman

Shimkus
Shuler
Shuster
Simpson
Sires
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stearns
Stivers
Sullivan
Terry
Thompson (CA)
Thompson (PA)
Thornberry
Tiberi
Tsongas
Turner
Upton
Van Hollen
Visclosky
Walberg
Walden
Walz (MN)
Wasserman Schultz
Webster
Westmoreland
Whitfield
Wittman
Wolf
Womack
Woodall
Young (AK)
Young (FL)
Young (IN)

NAYS—167

Ackerman
Adams
Amash
Bachmann
Baldwin
Bartlett
Barton (TX)
Bass (CA)
Becerra
Blackburn
Blumenauer
Brady (PA)
Braley (IA)
Broun (GA)
Brown (FL)
Butterfield
Capps
Capuano
Carson (IN)
Chabot
Chaffetz
Chu
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Conyers
Cravaack
Crowley
Cummings
Davis (IL)
DeGette
DeLauro
Deutch
Doggett
Doyle
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Engel
Farr
Filner
Flake
Fleming
Forbes
Frank (MA)
Franks (AZ)
Fudge
Garamendi
Gardner
Garrett
Gingrey (GA)
Gonzalez
Gowdy
Graves (GA)
Green, Al
Green, Gene
Griffith (VA)
Grijalva
Gutierrez
Harris
Hastings (FL)
Heller
Higgins
Hinchey
Hirono
Holt
Honda
Huelskamp
Huizenga (MI)
Hurt
Jackson (IL)
Jackson Lee (TX)
Johnson (IL)
Johnson, E. B.
Jordan
Kaptur
King (IA)
Kingston
Kucinich
Labrador
Lamborn
Larson (CT)
Lee (CA)
Lewis (GA)
Loebsack
Lofgren, Zoe
Long
Luján
Lynch
Mack
Maloney
Markey
Matsui
McClintock
McCotter
McDermott
McGovern
McHenry
McNerney
Miller (MI)
Miller (NC)
Miller, George
Moore
Mulvaney
Murphy (CT)
Nadler
Napolitano
Neugebauer
Pallone
Pastor (AZ)
Paul
Payne
Pearce
Pelosi
Pence
Pingree (ME)
Poe (TX)
Polis
Price (NC)
Quayle
Quigley
Rangel
Rehberg
Reyes
Richardson
Richmond
Rigell
Ross (FL)
Roybal-Allard
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Schakowsky
Schmidt
Schweikert
Scott (SC)
Scott (VA)
Serrano
Slaughter
Southerland
Stark
Stutzman
Sutton
Thompson (MS)
Tierney
Tipton
Tonko
Towns
Velázquez
Walsh (IL)
Waters
Watt
Waxman
Weiner
Welch
West
Wilson (FL)
Wilson (SC)
Woolsey
Wu
Yarmuth
Yoder

NOT VOTING—6

Giffords
Gohmert
McCaul
Meeks
Olver
Reichert

□ 1500

Mr. HINOJOSA changed his vote from ''nay'' to ''yea.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. McCAUL. Mr. Speaker, I was unavoidably delayed and was unable to vote on H.R. 1473, rollcall vote No. 268. Had I been present I would have voted "yea."

PROVIDING FOR AN ADJOURNMENT OR RECESS OF THE TWO HOUSES

The SPEAKER pro tempore. The unfinished business is the vote on adoption of House Concurrent Resolution 43, on which the yeas and nays were ordered.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. The question is on the concurrent resolution.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 243, nays 178, not voting 11, as follows:

[Roll No. 269]

YEAS—243

Adams
Aderholt
Akin
Alexander
Altmire
Amash
Austria
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Cassidy
Chabot
Chaffetz
Chandler
Clay
Coble
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Dent
DesJarlais
Diaz-Balart
Dicks
Dingell
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Frank (MA)
Franks (AZ)
Frelinghuysen
Gallegly
Garamendi
Gardner
Garrett
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hanna
Harper
Hartzler
Hastings (WA)
Hayworth
Heck
Heinrich
Heller
Hensarling
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
Matheson
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Perlmutter
Peterson
Petri
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Quigley
Reed
Rehberg
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Speier
Stearns
Stivers
Stutzman
Sullivan
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Walberg
Walden
Walsh (IL)
Waters
Webster
Welch
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—178

Ackerman
Baca
Bachmann
Baldwin
Barrow
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Burgess
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Cleaver
Clyburn
Coffman (CO)
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Fitzpatrick
Fudge
Gerlach
Gonzalez
Graves (MO)
Green, Al
Grijalva
Gutierrez
Hanabusa
Harris
Hastings (FL)
Higgins
Himes
Hinchey
Hinojosa
Hirono
Holden
Holt
Honda
Hoyer
Inslee
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Peters
Pingree (ME)
Platts
Polis
Price (NC)
Rahall
Rangel
Reyes
Richardson
Richmond
Ross (AR)
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Slaughter
Smith (WA)
Stark
Sutton
Terry
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Watt
Waxman
Weiner
Wilson (FL)
Woolsey
Wu
Yarmuth

NOT VOTING—11

Andrews
Bass (CA)
Carter
Denham
Giffords
Hall
Herger
Meeks
Olver
Reichert
Schakowsky

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining in this vote.

□ 1507

So the concurrent resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. GOHMERT. Mr. Speaker, on rollcall 268, passage of H.R. 1473, I was detained. I got here right at the close of

the vote. I missed voting ''no'' because I believed the vote did not live up to our promise.

CORRECTING THE ENROLLMENT OF H.R. 1473

Mr. ALEXANDER. Mr. Speaker, pursuant to House Resolution 218, I call up the concurrent resolution (H. Con. Res. 35) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473, and ask for its immediate consideration.

The Clerk read the title of the concurrent resolution.

The text of the concurrent resolution is as follows:

H. CON. RES. 35

Resolved by the House of Representatives (the Senate concurring), That, in the enrollment of the bill (H.R. 1473) making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, and for other purposes, the Clerk of the House of Representatives shall make the following correction: At the end of title VIII of division B, insert the following new section:

''SEC. 18___. Notwithstanding any other provision of law, none of the funds made available in this Act or any previous Act may be used to carry out the provisions of Public Law 111–148, or any amendment made by such Public Law, or title I or subtitle B of title II of Public Law 111–152, or any amendment made by such title or subtitle.''.

The SPEAKER pro tempore. Pursuant to House Resolution 218, the gentleman from Louisiana (Mr. ALEXANDER) and the gentlewoman from Connecticut (Ms. DELAURO) each will control 10 minutes.

The Chair recognizes the gentleman from Louisiana.

GENERAL LEAVE

Mr. ALEXANDER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H. Con. Res. 35.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Louisiana?

There was no objection.

□ 1510

Mr. ALEXANDER. I yield myself 3 minutes.

Mr. Speaker, House Concurrent Resolution 35, if adopted, will add provisions to the continuing resolution, H.R. 1473, to prohibit any funds in this act or any previous act from being used to implement the Patient Protection and Affordable Care Act. Most importantly, the resolution will guarantee that our colleagues in the Senate will take an up-or-down vote on this important issue. I think we can agree that this is a vote that the American people have called for and is a vote that we owe the American public.

Mr. Speaker, today the House approved an historic spending agreement that cuts nearly $40 billion in Federal spending. When signed into law, Congress will have achieved the first step in addressing our Nation's ballooning debt. Our economy still suffers from apathetic growth, and millions of individuals remain unemployed. At a time like today, when the Federal Government is running record deficits, coupled with significant unsustainable liabilities like Medicare and Medicaid, we simply cannot afford this $2.6 trillion new entitlement program. It only seems fair that a vote on the billions of dollars in both mandatory and discretionary money required to implement the health reform law is part of the discussion.

I, along with my colleagues in the House, have long argued for the repeal of this law. Several Members have also maintained that, for this strategy to be successful, it must include efforts to defund the enforcement and implementation of the law through the appropriations process. With the inclusion of this language in the CR, we will move one step closer to reaching that goal.

Under new leadership, the House has already begun to tackle the health care law on various fronts. In January of this year, the Chamber approved a full repeal of the health care law. Additionally, during the historic open debate on a previous continuing resolution, H.R. 1, this Chamber debated and approved various provisions that would prohibit or slow the implementation of the health care law by restricting annual appropriations from going toward implementation. In fact, just yesterday, we passed a measure that would repeal just one section of the health care law that included $17.5 billion in mandatory ''automatic'' appropriations.

This resolution will go further by eliminating all of the funding, both mandatory and discretionary, which, it is clear, we presently cannot afford. It will also allow time for us to offer up new solutions to our Nation's health care challenges that will not have long-term negative consequences on job creation and economic growth.

Putting all arguments on the merits of the health care law aside, this resolution simply ensures that accountability is restored over how hard-earned taxpayer dollars are being spent. The health care law turned hundreds of billions of dollars in discretionary spending into mandatory spending.

I reserve the balance of my time.

Ms. DELAURO. I yield myself 2 minutes.

Mr. Speaker, instead of working to create jobs, reduce the deficit and do the business of the American people, this majority has been consumed for months now with trying to repeal health care reform. Like the attempted repeal we saw in the first week of this Congress, like the Tea Party budget passed in February and like the many attempts we have seen to decimate health care reform piece by piece since, this concurrent resolution, once again, tries to take away the consumer protection of the Affordable Care Act and tries to put insurance companies back in charge. It is a further demonstration of the majority's special interest priorities and of their hypocrisy on job creation and deficit reduction.

Passing this resolution will destroy jobs in the health professions. It will slow job growth by 250,000 to 400,000 jobs a year. It will increase medical spending and add nearly $2,000 to the average family's insurance premium. According to the nonpartisan Congressional Budget Office, it will add $230 billion to the deficit within 10 years and $1 trillion more within 20 years. Let me repeat that. This amendment adds billions and ultimately trillions of dollars to the deficit, starting with $5.5 billion this year.

This is not what we promised the American people. They want us to cut the deficit, to get rid of special interest waste, like oil company subsidies and breaks for corporate lobbyists. Instead, the majority wants to let insurance companies discriminate against people with preexisting conditions, even children with preexisting conditions once again. They want to see women denied coverage because they survived breast cancer or were victims of domestic violence or had c-sections. They want to see 4 million small businesses lose $40 billion in tax credits and seniors' health care and drug costs continue to rise at staggering rates.

We are here to serve the needs of the American people, not the whims of the health insurance companies. This resolution will cost money and cost lives, and I urge my colleagues to vote against it.

Mr. DICKS. Will the gentlelady yield?

Ms. DELAURO. I yield to the gentleman from Washington.

Mr. DICKS. I want to associate myself with the gentlelady's remarks, and I rise in strong opposition to this concurrent resolution.

Ms. DELAURO. I reserve the balance of my time.

Mr. ALEXANDER. Mr. Speaker, I yield 3 minutes to the gentleman from Montana (Mr. REHBERG).

Mr. REHBERG. I thank the gentleman from Louisiana for his leadership on this issue to repeal the funding of ObamaCare, and I rise in support of the resolution.

It is impossible in the short time I have to describe the many reasons that justify defunding, repealing and replacing ObamaCare. Today, I want to mention one—the adverse impacts for those on Medicare.

In Montana, this is a huge issue because our population is quite a bit older than in other States. Folks have paid into Medicare all their lives, and they rightfully expect the benefits to be there for them, but Medicare is going broke and will be bankrupt in 11 years. Supporters of the new health care law say they've strengthened Medicare, and point to the closing of the doughnut hole on prescription drugs.

Let's examine that a little more carefully.

The cost to the government to fix the doughnut hole is about $27 billion between now and 2019, but ObamaCare cuts Medicare benefits and reimbursements by more than $500 billion. These cuts aren't being used to save Medicare. They're being used to pay for the cost of the new entitlements in ObamaCare. For seniors in Montana and in the rest of America, this is not a good trade.

But that's not all.

Most people aren't even aware that ObamaCare includes a $210 billion tax increase on Medicare. Again, that money isn't going to be used to save Medicare. This tax will go to pay for the cost of new entitlements. ObamaCare cuts Medicare benefits, increases Medicare taxes, and doesn't do anything to protect Medicare; and the new Medicare cuts and taxes, along with hundreds of billions of dollars in new taxes, penalties and fees, won't take effect until after the 2012 election.

That's not a coincidence.

This is a classic bait and switch. We get all the small benefits up front and get hit with a pile of burdens after the 2012 election—just one of the many reasons to defund ObamaCare now. That's the first step toward replacing it with real reform in order to rein in health care costs and to improve access.

Ms. DELAURO. I am delighted to hear the gentleman from Montana say he opposes cuts to Medicare. That means, I am going to assume, that he will vote against the Ryan budget as well.

With that, I yield 1 minute to the gentlelady from New York (Mrs. LOWEY).

Mrs. LOWEY. I rise in strong opposition to the resolution. The House should be debating legislation to create jobs, not procedural tricks to repeal health reform and increase our deficit.

Under this resolution, pregnant women and cancer survivors could lose coverage when they most need it. Young adults would lose coverage on their parents' plans. Seniors would pay higher drug costs. Businesses and families would not receive tax credits for affordable coverage; and accountability for large insurers to spend at least 85 percent of premiums on health benefits would end.

Vote against this resolution in order to preserve vital consumer protections in health reform, reduce costs, and decrease the deficit.

Mr. ALEXANDER. Mr. Speaker, I yield 2 minutes to the gentleman from Iowa (Mr. KING).

Mr. KING of Iowa. I thank the gentleman from Louisiana for his work and for yielding me time.

I want to also thank the gentleman from Montana, who has drilled into this deeply, and it is a big reason why we are able to be here today. I appreciate his representation of seniors in Montana as I may well have the privilege of representing the most senior congressional district in all of America.

I've watched what has happened not just with Medicare but with ObamaCare entirely, and when I hear the comments about the whims of the health insurance industry, that may well have been what helped write this bill in the first place—large health insurance companies. Yet we had 1,300 of them when we started this process over a year ago, and we have fewer today.

□ 1520

We had 100,000 possible health insurance policy varieties. We have fewer today. We are looking at $2.6 trillion in outlays over ObamaCare for the first full decade of its implementation, and we have seen two Federal courts rule ObamaCare unconstitutional.

We have uncovered what I think were intentionally hard-to-find numbers that were hidden in the automatic appropriations of ObamaCare to the tune of $105.5 billion to be laid out. We are sitting right now on top of $23.6 billion that is being used intensively to implement ObamaCare, all the while we expect, and the President surely must expect, the Supreme Court will rule it unconstitutional.

ObamaCare has been rejected by the American people. It sent 87 freshmen Republicans here to Congress to repeal it. Every Republican in not only the House of Representatives but in the United States Senate has voted to repeal ObamaCare in H.R. 2 and voted to cut off everything that could be ruled in order on the floor in H.R. 1 that would be used to implement or enforce ObamaCare.

This is the language that cuts off the automatic spending to ObamaCare. It puts a freeze on it so the courts can decide, so the will of the people can be reflected not just in the House of Representatives, but eventually in the United States Senate. And also, let's bring a President that will sign this repeal, this unconstitutional taking of American liberty that is known as ObamaCare.

Ms. DELAURO. I yield 1 minute to the gentlewoman from California (Mrs. CAPPS).

Mrs. CAPPS. I thank my colleague.

Mr. Speaker, I rise in strong opposition to this misguided resolution. It is another attempt by the Republicans to take away important consumer protections, return to a health care system that is clearly broken. I strongly oppose this amendment because it is harmful to the American people and to our economy.

The majority of Americans, and certainly those in my district, are opposed to this defunding stunt. Seniors do not want to go back to a life of worry about how they will make it through the doughnut hole. Parents don't want to go back to worrying that their child will be uninsured this summer because she graduates. And small businesses do not want to cancel their employees health care coverage because they would lose the tax credits to pay for it.

The Affordable Care Act is law, and attempts by my Republican colleagues to repeal it have failed. Instead of debating the past, we need to focus on the future. Let's work on creating jobs and strengthening our economy. Vote ''no'' on this foolish resolution.

Mr. ALEXANDER. Mr. Speaker, I reserve the balance of my time.

Ms. DELAURO. Mr. Speaker, can you tell me how much time is left?

The SPEAKER pro tempore. The gentlewoman from Connecticut has 6½ minutes remaining, and the gentleman from Louisiana has 2½ minutes remaining.

Ms. DELAURO. I would ask the gentleman from Louisiana if he has additional speakers.

Mr. ALEXANDER. No.

Ms. DELAURO. I yield 2 minutes to the gentleman from California (Mr. WAXMAN).

Mr. WAXMAN. Mr. Speaker, this resolution would defund the implementation of the Affordable Care Act. This is just another way the Republicans are trying to repeal that law. The very first week of this Congress, they voted to repeal the health care law. They said they want to repeal it and replace it. We still have not seen what they propose. They are not proposing reforms to help the middle class. In effect what they would do is increase the number of uninsured in this country by 50 million people. This is a particularly reprehensible way to end health reform—to stop paying for its implementation.

Americans are already benefiting from the law. Seniors are getting discounts on their prescription drugs. Adult children will be able to stay on their parents' insurance until 26. They would reverse the prohibition against preexisting condition denials for children, and they would stop allowing consumers access to preventive care with no cost-sharing.

They pulled the rug out from under current State efforts to develop vibrant, competitive exchange marketplaces, which is the centerpiece for competition in insurance plans to give the consumers choice. But what is most distressing is the dangers it poses to Medicare, Medicaid, and the Children's Health Insurance Program, or health care safety net.

According to a letter from Secretary Sebelius: ''The Affordable Care Act modifies and improves almost every Medicare payment system. If this resolution were enacted, the Centers for Medicare and Medicaid Services would not be able to use any funds to administer payments based on any rate calculated on the basis of provisions of the Affordable Care Act,'' which is to say virtually all rates.

Medicare and Medicaid could grind to a halt. The Secretary goes on to say: ''This resolution would adversely affect health care in rural areas. CMS would no longer be able to provide the bonus payments to primary care and general surgeons for eligible services.''

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. DELAURO. I yield the gentleman an additional 30 seconds.

Mr. WAXMAN. She also says about fraud, waste, and abuse: ''The Affordable Care Act also gives CMS new tools to fight fraud, and helps us move from a pay-and-chase system to a comprehensive, prevention-focused strategy. This resolution would substantially impede CMS's proven and successful efforts to reduce waste and fraud in the health care system, resulting in increased erroneous payments.''

This is a harmful resolution to the interests of the American people, and I urge my colleagues to oppose it.

Ms. DELAURO. I yield 1 minute to the gentleman from New Jersey (Mr. PALLONE).

Mr. PALLONE. All I hear from the other side, the gentleman from Iowa is trying to rehash the campaign, talking about who got elected in November, saying the President should be defeated so we have a new President.

What are you doing to create jobs? It's 100 days of the Republican majority, and I don't see a single job creation bill.

Now, the Democrats, with our health care reform, we're trying to expand options, give people low-cost insurance, end discrimination, and look for new ways of training doctors so we have more doctors to cover people. We're trying to give the American people options and choices, and eliminate all of the problems that they have had with the health care system. And the Republicans say, No, get rid of it. Defund it.

How many times are we going to vote on this same thing? And then later today you're going to come back and try to destroy Medicare and say the elderly should not have health care options and should have to go out and buy their insurance, and maybe get a little help from the government. Or if they have to go to a nursing home, you're going to block grant Medicaid and say, well, the nursing home may not be available to them, or the quality of the nursing home care will be really terrible again, as it may have been years ago.

So I don't understand what you're up to. Look to the American people. Look to create jobs for them. Look to create health care options. Don't destroy. Don't destroy.

Ms. DELAURO. I yield 1 minute to the gentleman from Connecticut (Mr. COURTNEY).

Mr. COURTNEY. Mr. Speaker, among the many programs which others have talked about that would be blown up with this measure is the Early Retiree Reinsurance Program, which is one of the most successful aspects of the health care law. Over 5,000 employers all across America, over half of the Fortune 500 companies—like Coca-Cola, General Electric, UTC, General Dynamics—have all signed up with this program, which, using the same principles as flood insurance, is buttressing and strengthening early retiree benefits which have been collapsing over the last 20 years.

These are the companies that are going to go out and hire people, particularly young people, because early retirement allows their workforce to have a natural change so that young people can find jobs. The economy created 200,000 last month. It is because of programs, like the Early Retiree Reinsurance Program, which the health care law created. We should not end that program by passing this resolution. These employers have signed up in good faith, and that good faith deserves our commitment to follow through on the program that this country offered them. That's a strategy. That's a winning strategy to create jobs for this country.

□ 1530

Ms. DELAURO. Mr. Speaker, I yield 1 minute to the gentlewoman from Maryland (Ms. EDWARDS).

Ms. EDWARDS. Mr. Speaker, I feel like I'm in the movie ''Groundhog Day.'' This is the conversation that we had last year. It's the conversation that we had the year before.

I cannot believe that we're standing here today when we should be talking about creating jobs in this country for the millions of people who are unemployed instead of taking away their health care, instead of taking away the ability of a young person up to age 26 to stay on their parents' health care plan. We're talking about taking away the ability of children who have preexisting conditions—to be denied coverage once again instead of creating jobs.

Instead of creating jobs, Mr. Speaker, we're here telling seniors that we want them to reach into their pockets and into their retirement to pay for outrageous prescription drug coverage.

We're standing here, instead of creating jobs, and we are telling small businesses that they're not going to get a tax credit to provide health care insurance for their business.

I mean, this is ridiculous. And, Mr. Speaker, I have to tell you the American people must be wondering what it is that this Republican majority is doing when they want to rip off seniors, rip off children, and stop health care for the American people.

Ms. DELAURO. I yield the balance of my time to the gentlewoman from Illinois (Ms. SCHAKOWSKY).

The SPEAKER pro tempore. The gentlewoman from Illinois is recognized for 1 minute.

Ms. SCHAKOWSKY. Finally, the United States of America made real the possibility of life, liberty, and the pursuit of happiness—all of which are literally impossible unless health care is a right for all in our great country.

This resolution goes in the opposite direction. A vote in favor of this resolution tells Americans and small businesses that they will be left to do battle with insurance companies on their own, insurance companies that will once again refuse coverage, deny claims, and subject them to double-digit premium increases. And under their budget plan, they now want to end Medicare and leave seniors and disabled people to the mercy of private insurers.

Enough is enough.

The SPEAKER pro tempore. The gentlewoman from Connecticut has 15 seconds remaining.

Ms. DELAURO. In that 15 seconds, let me just say they will defund health care. They will end Medicare. They're going to kick seniors out of nursing homes and send our health care back to the insurance companies. It shows you where my colleagues on the other side of the aisle are.

I urge my colleagues to vote against this measure.

Mr. ALEXANDER. Mr. Speaker, in closing, a key component of this spending agreement is a guaranteed up-or-down vote in the Senate on a provision that would prohibit any funds in this act or any previous act from being used to carry out the Patient Protection and Affordable Care Act.

Let's return to Congress its power to review this funding annually and exercise full oversight.

House Concurrent Resolution 35 does just that. At a time when we are being called on to rein in government spending, the American taxpayer deserves this vote.

I urge my colleagues to support this enrolled resolution to deliver on that promise today and call on the Senate to do the same.

Ms. MATSUI. Mr. Speaker, I rise today in strong opposition to this resolution.

Mr. Speaker, the enactment of the Affordable Care Act was historic. It made the necessary steps to reform our health care delivery system and put patients first. A full repeal of this law will nullify all of the popular provisions it put in place, and will once again leave Americans at the mercy of insurance companies.

Young adults in their 20s who are looking for jobs in this difficult economic climate, for instance, would suddenly find themselves without insurance and without the option of staying on their parent's plan.

Recently, I heard from Michael, a Sacramento native. Michael has a 23-year-old son who was kicked off of his health plan at the age of 22. A few months later, still unable to obtain affordable coverage, he had to undergo an emergency tonsillectomy—a fairly common procedure that can cost thousands for those without coverage. Because Michael's son was kicked off of his plan his son now has massive medical debt and is still only in his early twenties.

Mr. Speaker, we passed the Affordable Care Act last Congress because our health care system needed to be reformed. We spend $2 trillion a year on health care costs—far more than any other country—and we are by no means a healthier nation; far from it!

My colleagues on the other side of the aisle say they are for reducing spending. Well, Mr. Speaker, repealing the Affordable Care Act will only increase the amount we spend every year on health care, both at the federal level, and on the personal level. It will leave millions without insurance and end up costing all of us more.

I urge my colleagues to oppose this harmful legislation.

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise on behalf of the millions of Americans, many of whom are in my Congressional district, who through the passage of President Obama's Affordable Care Act, have for the first time been given more freedom and control over their health care.

Before the passage of this law nearly 40 percent of my constituents were uninsured.

Now I hear from young adults who are grateful to be able to remain on their parent's insurance plans until age 26.

I hear relief from seniors who once lived in fear of not being able to afford their medication once they reached the donut hole.

I hear from struggling families who are thankful their child with a preexisting condition can be part of new high risk pool insurance.

And I hear from those facing serious illness how relieved and grateful they are their insurers can no longer drop them when they need coverage the most.

The Affordable Care Act is working—I urge my colleagues to vote ''no'' on this resolution.

Mr. ALEXANDER. Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 218, the concurrent resolution is considered read and the previous question is ordered.

The question is on the concurrent resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. ALEXANDER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

CORRECTING THE ENROLLMENT OF H.R. 1473

Mr. NUNNELEE. Mr. Speaker, pursuant to House Resolution 218, I call up the concurrent resolution (H. Con. Res. 36) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473, and ask for its immediate consideration.

The Clerk read the title of the concurrent resolution.

The text of the concurrent resolution is as follows:

H. CON. RES. 36

Resolved by the House of Representatives (the Senate concurring), That, in the enrollment of the bill (H.R. 1473) making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, and for other purposes, the Clerk of the House of Representatives shall make the following correction: At the end of title VIII of division B, insert the following new section:

''SEC. 1864. None of the funds made available by this Act may be made available for any purpose to Planned Parenthood Federation of America, Inc. or any affiliate of Planned Parenthood Federation of America, Inc.''.

The SPEAKER pro tempore. Pursuant to House Resolution 218, the gentleman from Mississippi (Mr. NUNNELEE) and the gentlewoman from Connecticut (Ms. DELAURO) each will control 10 minutes.

The Chair recognizes the gentleman from Mississippi.

GENERAL LEAVE

Mr. NUNNELEE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on House Concurrent Resolution 36.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Mississippi?

There was no objection.

Mr. NUNNELEE. Mr. Speaker, I yield myself 2 minutes.

This resolution would deny funding to Planned Parenthood. It's morally wrong to have taxpayer dollars from my constituents in Mississippi, or from any other State, go towards organizations that provide abortions. Since 1977 Planned Parenthood has assisted in aborting the lives of over 5 million children.

This resolution before the House is simple and straightforward.

Now, there will be those who frame the resolution as a debate over denying health care benefits for women. This isn't the case. In fact, in this resolution not one dime of women's health or family health planning funding is reduced. It simply says those dollars cannot go to Planned Parenthood.

This is an organization that has protected those who prey on our children and has protected those who rape our granddaughters. Planned Parenthood holds itself to be above the law by ignoring mandatory reporting requirements, by skirting parental consent, by aiding and abetting child trafficking. They put quick and secret abortions ahead of the welfare of victimized young girls. And it has to stop.

Those who oppose this resolution are enabling them.

I refuse to reach into the pockets of our taxpayers to fund this sort of activity. I have always viewed these young women as much victims as the unborn child, and I want to go after those corrupt and immoral businesses that exploit them.

We did a pretty good job of running them out of the State of Mississippi. In fact, in November Mississippi will have on its ballot an initiative that defines personhood, and over 106,000 Mississippians put their signatures on the initiative to get this on the ballot. And Planned Parenthood is a political organization and is funding the opposition to this ballot.

Bottom line: We need to deny funding to those agencies that support abortions, and this resolution will do that.

I reserve the balance of my time.

Ms. DELAURO. I yield myself 2 minutes.

I rise in opposition to this concurrent resolution. It has nothing to do with the budget and everything to do with ideology.

This is an attempt to turn back the clock on women's health and basic rights. The majority wants to impose their traditional view of a woman's role and take us back to a day when family planning was not available. With this resolution, the majority aims to exclude one specific health care provider, Planned Parenthood, from all Federal resources. This will needlessly put lives in danger.

Planned Parenthood carries out millions of lifesaving preventative and primary care services every year. They deliver immunizations, routine gynecological exams, nearly 1 million screenings for cervical cancer, 830,000 breast exams, and nearly 4 million tests and treatments for sexually transmitted infections like HIV every single year. If this resolution passes, all of these services would be lost.

Seventy-five percent of their more than 3 million patients live at or below 150 percent of the poverty level, make less than $33,000 for a family of four. One of every five women in America has gone to Planned Parenthood for access to health care. Sixty percent of these women consider Planned Parenthood their main source of care. And, in fact, even the number of men Planned Parenthood serves has doubled over the past decade. All of these women and men would lose access to these services if this should pass.

This resolution guts a primary source of care for millions of American families. We all know this has nothing to do with Federal funding of abortion. Federal funds are already banned from going towards abortion services under the Hyde amendment.

We should not be playing political games with women's lives. I urge my colleagues to oppose this dangerous resolution and to stand for women's health and, above all, to trust women to make the right decisions.

Mr. DICKS. Will the gentlelady yield?

Ms. DELAURO. I yield to the gentleman from Washington.

Mr. DICKS. I rise in very strong support of the gentlelady's position on Planned Parenthood and urge a ''no'' vote on this current resolution.

Mr. NUNNELEE. Mr. Speaker, I yield 2 minutes to the gentlelady from Tennessee, the principal sponsor of the bill, Mrs. BLACK.

Mrs. BLACK. Mr. Speaker, as a nurse for over 40 years, I have spent my entire career protecting life. And those who need the greatest protection are those who have the least voice, that is, children born and unborn.

□ 1540

Now as a Member of Congress, I will continue to fight for the rights of the unborn through this legislation we have here today. And today, I am here as a sponsor of this resolution to ensure that no Federal funds are used for either the promotion or the performance of abortions.

There are people around who would lead you to believe that this bill is

about Republicans wanting to deny women access to preventative care, but they are using scare tactics and their lies are distracting you from the real facts. As a matter of fact, Title X funds which fund these types of preventative care for women will continue to fund those organizations and agencies that provide preventative care but do not promote or provide abortion services. What my colleagues and I are here doing today is standing up and saying we do not support Federal funding of any organization—any organization—that promotes or performs abortions.

There is an urgent need to stop taxpayer dollars from funding abortions. And the Republican majority in the House has already made clear our commitment to ending the funding for Planned Parenthood, which is, by the way, America's largest abortion provider. The Senate has ducked this legislation and this important discussion for this legislation for too long. It's time that the Senators debate this in the open, as we have here in the House in H.R. 1, and take a vote to end taxpayer funding of Planned Parenthood.

Ms. DELAURO. Mr. Speaker, I yield 1 minute to the Democratic leader, the gentlewoman from California (Ms. PELOSI).

Ms. PELOSI. I thank the gentlelady for yielding and for her forceful leadership in promoting women's health.

Mr. Speaker and my colleagues, when I was in high school—a long time ago—I participated in an extemporaneous debate contest. One of the contestants there, a friend of mine, drew from the bowl a slip that said, ''Do women think?'' ''Do women think?'' Now, this was a long time ago, but even then we thought that was a startling question, ''Do women think?'' The young lady who drew it—she was really a girl in high school—spoke with great grace and strength about women and won the debate, which we hope to do today.

I hadn't thought of that debate for a long time, but it came rushing down on me as I heard our Republican colleagues put forth their cuts on women's health, especially eliminating funding for Planned Parenthood. The arguments which the Republicans have put forth sound like the same question of a decade ago, do women think? It's an assault on the judgment of women. It bespeaks a lack of respect for women to determine the size and the timing of their families.

It's clear that Republicans do not support family planning—it's hard to understand, but it's clear that they don't—and have used debate on this bill to spread misinformation about the critical work that Planned Parenthood does on behalf of America's women every day. So let us be clear, Planned Parenthood health centers currently provide preventive services to millions of women in need of health care, including the provision of contraception, cancer screening, breast exams, and HIV testing.

Further, this debate is not about abortion. That is because Federal funding for abortion is already prohibited. That is the law of the land. This debate is about women's health.

Every year, Planned Parenthood health centers provide the following for women's health: Contraception to nearly 2.5 million patients; nearly 1 million pap tests identifying about 93,000 women at risk for developing cervical cancer; 830,000 breast exams, helping alert patients to possible cancers. That is why cutting off Federal funding for Planned Parenthood would have a devastating impact on women's health across the country.

Indeed, more than 90 percent of the health care provided by Planned Parenthood is preventive care. For a majority of the women who use Planned Parenthood health centers, the centers are the primary source of receiving health care services. Elimination of funding means that these women do not have health care of any kind.

Today's legislation—which has no chance of passing the Senate and becoming law, thank God—is just part of the Republican agenda that is the most comprehensive and radical assault on women's health and reproductive freedom in our lifetime. And that's saying something.

Further, I point out that today on the floor of this House, this is the 100th day of the Republicans having the majority, here we are again debating legislation that has nothing to do with the number one priority of the American people: creating jobs. Indeed, after 100 days, the Republicans have not created one job and have not offered a jobs agenda and are instead on the march against women's health and to end Medicare in order to give tax breaks to Big Oil and millionaires.

Some Republicans say that we're here because we did not pass a bill last year. It was shocking to hear even some members of the Appropriations Committee—who should know better—on the Republican side say that. But indeed we did. It was held up by Republicans in the Senate. We passed it in the House without one Republican vote, the omnibus bill, but it was held up by the Republicans in the Senate. And in that bill we cut $41 billion from the President's budget.

So today when I hear our colleagues say we are cutting $78 billion—$37.5 today. The other $41 billion, which is the largest amount, was cut by the Democrats without one Republican vote at the end of last year.

Today, in this latest partisan maneuver, Republicans are perpetrating an attack on the health of women across the country, and I rise in strong opposition to their efforts. We must all stand strong against that agenda against women's health. We must all continue to work to create a healthier America. And that is why I urge a ''yes'' to women's judgment, a ''yes'' to respect their decision on the size and timing of their families, and a ''no'' for this vote, which is an attack on women's health.

Mr. NUNNELEE. Mr. Speaker, I yield 2 minutes to the other principal sponsor of this bill, the gentlelady from Alabama (Mrs. ROBY).

(Mrs. ROBY asked and was given permission to revise and extend her remarks.)

Mrs. ROBY. Mr. Speaker, it is an honor today to stand on the House floor as one of the sponsors of House Concurrent Resolution 36.

Since coming to Congress, I have come to the floor several times to talk about my stance on abortion and the need to defund Planned Parenthood, and I am pleased to be a part of the lead on this important issue today.

Mr. Speaker, I am unapologetically pro-life and will continue to do what is necessary to protect the lives of the unborn. Every 2 minutes, a life is lost because of an abortion. That adds up to 3,300 lives a day or 1.2 million a year.

I believe I have an obligation to do everything I can to fight for the unborn and to prevent taxpayer money from funding abortions. Therefore, I urge my colleagues to vote in favor of the piece of legislation in front of us today. It would prevent Federal funds in H.R. 1473 from going to Planned Parenthood, an organization that provides more abortions than any other organization in the United States.

About one of every four U.S. abortions is performed at a Planned Parenthood location or one of their affiliates. Data shows that since 1970, Planned Parenthood has performed at least 5.3 million abortions, and that includes over 332,000 abortions in 2009 alone. Planned Parenthood has made plain the centrality of abortion to its mission, mandating that every affiliate have at least one clinic performing abortions within the next 2 years.

My colleagues opposed to this piece of legislation will claim that the money that Planned Parenthood has been receiving is not used for abortion. I disagree. Money is fungible. By taking away Federal funds from Planned Parenthood, they will have to spend more of their private money on basic services and overhead costs rather than diverting those funds toward abortions.

From 2000 to 2009, Planned Parenthood saw an 80 percent increase in taxpayer funding that resulted in a 69 percent increase in the number of abortions and a 61 percent decrease in the number of adoption referrals.

I urge my colleagues to vote ''yes'' on preventing Planned Parenthood access to Federal funds in fiscal year 2011.

Ms. DELAURO. Mr. Speaker, I yield 1 minute to the gentlewoman from New York (Mrs. LOWEY).

□ 1550

Mrs. LOWEY. I rise in strong opposition to the resolution. The right wing's failed radical attempt to block funding for Planned Parenthood has now devolved to procedural games instead of a renewed focus on creating jobs. Federal law prohibits Federal dollars for abortion, and family planning saves taxpayers nearly $4 for every $1 spent.

If Republicans were serious about deficit reduction, they would increase these investments instead of demonizing those who provide affordable access to Pap tests, breast exams, routine gynecological exams, flu vaccinations, smoking cessation services, cholesterol screening, contraceptives, and all of the other services that Planned Parenthood provides.

Vote ''no'' on this assault on women's health.

Mr. NUNNELEE. Mr. Speaker, I yield 1 minute to the gentleman from Indiana (Mr. PENCE).

(Mr. PENCE asked and was given permission to revise and extend his remarks.)

Mr. PENCE. I thank the gentleman for yielding.

I believe ending an innocent unborn human life is morally wrong. I also believe it's morally wrong to take the taxpayer dollars of millions of pro-life Americans and use them to subsidize the largest abortion provider in America. Today Congress will vote to do something about that.

Planned Parenthood is the largest abortion provider in America. As this chart shows, in 2009 Planned Parenthood made 977 adoption referrals, had 7,021 prenatal care counseling sessions, and performed 332,278 abortions. During that time, Planned Parenthood received $363.2 million in taxpayer money. Planned Parenthood received $1 million a day and performed about a thousand abortions a day.

H. Con. Res. 36 will only put an end to taxpayer subsidy of Planned Parenthood. Despite the hyperbolic rhetoric of the left, this resolution will not cut one penny from Title X women's health services. It merely denies funds to the largest abortion provider in the land.

I want to thank the leadership of Speaker BOEHNER. I want to urge my colleagues to stand with all of us, to stand for life, to stand for taxpayers. Let's end public funding of the largest abortion provider in America once and for all.

Ms. DELAURO. I yield 1 minute to the gentlewoman from Colorado (Ms. DEGETTE).

Ms. DEGETTE. Mr. Speaker, I don't know how many times this Republican leadership is going to make the House take the same vote again and again to deny women the basic health care they need. But repeating these votes just exposes the extreme agenda that the American people didn't ask for and that they don't want.

Continuing to debate defunding women's health care clinics like Planned Parenthood is not getting less offensive; it's getting more offensive every day. And the American public won't stand for this extreme agenda.

Not one Federal dollar goes to fund abortions—not by Planned Parenthood, not by anybody.

The last speaker was just plain wrong when he said this resolution would not reduce money for women's health. It would cut millions of dollars for women's health.

Let me tell you about a young woman from my district in Denver, Colorado. She hasn't ever had health insurance, but she took responsibility for her own health care, and she had her first annual exam and Pap smear at Planned Parenthood when she was 18 years old. Now she's pregnant and she depends on Planned Parenthood for her prenatal care so she and her baby can be healthy. Planned Parenthood is the only health care provider that she's ever had.

Vote ''no'' on this extreme resolution.

Mr. NUNNELEE. I yield 1 minute to the gentleman from New Jersey (Mr. SMITH).

Mr. SMITH of New Jersey. Thank you very much for yielding.

Mr. Speaker, in its slick TV ads and PR blitz, the multi-billion-dollar-a-year abortion giant Planned Parenthood appears to be hiding something.

Could it be that they're hiding the dismaying fact that just one organization—Planned Parenthood—performs over 25 percent of all abortions in America? No other chain of abortion mills even comes close.

Or is it the fact that 97 percent of all of the so-called services rendered to a woman with child end in an abortion, or the fact that since 1977 Planned Parenthood has deliberately caused the brutal death of well over 5.4 million babies—a staggering loss of child life? And in 2009 alone, 332,278 babies were killed in Planned Parenthood clinics.

There is no organization in America, Mr. Speaker, perhaps even on Earth, that stabs, dismembers, decapitates, or chemically poisons more unborn children to death than Planned Parenthood. And that's the reality of what abortion does to a child.

For the innocent and perhaps inconvenient child in the womb, a Planned Parenthood clinic is a house of horrors, a place where abortion has brutally destroyed children and deceived and hurt their mothers.

Vote for the resolution.

Ms. DELAURO. I yield 1 minute to the gentleman from Ohio (Mr. RYAN).

Mr. RYAN of Ohio. Mr. Speaker, this is about prevention. This is about women's health. And this is about making sure that we reduce the need for abortion in the United States of America.

And how we got so illogical to think that if we could give poor and middle class women access to birth control, that somehow is going to increase the abortion rates in the United States is beyond me.

We see our friends time and time again talk about respecting life, and I see in many instances on the other side of the aisle, that ends once the baby is actually born.

Respecting life means early childhood health care. It means affordable health care for families. Those are life issues. Early childhood education, Head Start, Pell Grants. Those are about making sure that citizens in the United States of America can have life, liberty, and the pursuit of happiness.

In this bill, if we pass and defund this organization, we will have more problems on our hands, more breast cancer, more cervical cancer. And it's going to be more expensive. And all of these folks on the other side that want to run government like a business and make good investments, you can't make better investments than preventative health care like this organization provides.

Mr. NUNNELEE. Mr. Speaker, I reserve the balance of my time.

Ms. DELAURO. I yield 1 minute to the gentlelady from California (Ms. LEE).

Ms. LEE. Mr. Speaker, I rise in strong opposition to the Republican war on women, and that is what this is.

Republicans have already moved to ban the District of Columbia from using its own money for abortions. Shameful. Now they want to go after America's most trusted provider of health care services for women. Shameful.

In many underserved communities, Planned Parenthood is the principal source of basic primary health services for poor and low-income women. Last year, millions of women received breast and cervical cancer screenings, testing, treatment for sexually transmitted infections, HIV and AIDS, and family planning, and contraception, mind you, through Planned Parenthood.

Planned Parenthood saves lives.

This is not about abortions. Only 3 percent of the services they provide involve abortions, and the law already prohibits Federal funding for abortions, though this law really should be repealed. This does not reduce the deficit nor create jobs. Family planning programs actually save taxpayers $4 for every $1 we invest in them.

This is really about pandering to the extreme right wing that wants to take us back to the days of back-alley abortions. They want to deny family planning and basic health care services for women.

This is a war on women.

Mr. NUNNELEE. Mr. Speaker, I yield 1 minute to the gentleman from Alabama (Mr. ADERHOLT).

Mr. ADERHOLT. I rise today in strong support of the resolution.

While I respect my colleagues who are against this resolution, let me say that I believe that Federal funds should be cut off from Planned Parenthood.

As previously stated on the floor by my colleagues, the resolution does not reduce funding for women's health services. It simply ensures that funds are directed to other organizations. Not a dime of women's health or family planning funding is reduced by this resolution. We simply want to ensure that Federal funds are being used in a way that protects the will of our constituents, not to help subsidize Planned Parenthood.

Planned Parenthood is the largest abortion provider in the Nation, providing over 300,000 abortions in 2009.

□ 1600

Over the years, Planned Parenthood has increased their abortion numbers every year, while adoption and prenatal care remains way too low.

Mr. Speaker, I urge my colleagues to vote ''yes'' on this resolution.

Ms. DELAURO. If I might inquire, Mr. Speaker, how much time is left on both sides.

The SPEAKER pro tempore (Mr. TERRY). The gentlewoman from Connecticut has 3 minutes, and the gentleman from Mississippi has 1 minute remaining.

Ms. DELAURO. I yield 1 minute to the gentlewoman from California (Ms. ROYBAL-ALLARD).

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise in strong opposition to this concurrent resolution.

Planned Parenthood is a safety net that helps Americans stay healthy by providing primary care services such as breast cancer screenings, immunizations, and annual exams. Women also receive preventive care that helps lower cancer deaths, heart attacks, and cases of undiagnosed and untreated STDs.

As the largest provider of family planning, it helps women and men become parents when it makes the most sense for them. The attacks on Planned Parenthood are underhanded tactics using inaccurate statements and statistics. A perfect example is the recent claim that abortions make up 90 percent of their services. This gross misstatement has been refuted by hard numbers which show these services were less than 3 percent of the care provided in 2009. At the expense of critical health care for millions of Americans, these attacks are another irresponsible diversion from the fact that Republicans have failed to take one action to create jobs.

I urge my colleagues to oppose this resolution.

Mr. NUNNELEE. Mr. Speaker, I yield 30 seconds to the gentlelady from Ohio (Mrs. SCHMIDT).

Mrs. SCHMIDT. Mr. Speaker, you know, times are tough, including in Congress. And we have to find wise ways to spend our taxpayer dollars. For every 33 pregnant women that walk into a Planned Parenthood clinic, 32 receive an abortion. Planned Parenthood does over 1,000 abortions a day, and they receive $1 million a day from taxpayers. The time has come to stop funding Planned Parenthood. We have better ways to spend our taxpayer dollars. Let's put it back to the Treasury and reduce the deficit.

Ms. DELAURO. I yield 1 minute to the gentlewoman from California (Mrs. CAPPS).

Mrs. CAPPS. Mr. Speaker, I rise in strong opposition to this mean-spirited resolution, yet another attempt by the Republicans to play politics with women's health care, part of their broader priority to reopen the culture wars. But the lies that have been tossed around in this debate are an insult to the 3 million Americans who used Planned Parenthood services this year.

Nearly two-thirds of those who visit a Planned Parenthood consider it to be their main source of health care, their mainstay, their lifeline. In my own district, Planned Parenthood of Santa Barbara, Ventura and San Luis Obispo Counties serves over 31,000 patients a year. I must ask the supporters of this mean-spirited resolution, where should these 31,000 people go? They have no answer. Just inaccurate talking points and a demonizing ''we know best'' attitude.

Instead of taking away women's access to health care, let's turn to working on what they really need: a stronger economy and meaningful job opportunities. So please join me in voting ''no'' on this mean-spirited resolution.

Ms. DELAURO. I yield myself the balance of my time.

The SPEAKER pro tempore. The gentlewoman from Connecticut is recognized for 1 minute.

Ms. DELAURO. My Republican colleagues were prepared to shut down the Federal Government over women's health. If you can imagine that. Turn this country into chaos because of women's health issues. Today they continue to treat women as second-class citizens. They would treat women with a lack of respect, denigrate them, and undervalue women in our society today. That is what this debate is all about.

They would deny women basic health care. And because we in this House of Representatives have health care, they don't care much about what's happening to those whose primary care is at this facility, for cancer screenings. I am a survivor of ovarian cancer. I know what it means to be screened, to be diagnosed, and to be told I have a serious illness, and that I have the opportunity to get well. Trust the women of this Nation. Trust them. Vote against this misguided resolution.

Mr. NUNNELEE. Mr. Speaker, the House has before it today an important question, but it's not a new question. It's a question of old. This day I put before you the choice of life or death. Today we choose life.

Mrs. DAVIS of California. Mr. Speaker, budget resolutions are about funding the needs of our country. We should be talking fund initiatives to create jobs.

Instead, we're wasting time on divisive social issues.

Some want to make this a fight about abortion. But this is a fight for women's health. For ourselves, for our daughters, and for our granddaughters.

This resolution won't save taxpayer dollars or create jobs.

What it will do is undermine women's health.

More than 90 percent of the care those health centers provide is primary and preventive.

And one in five American women has been to a Planned Parenthood health center for services like breast cancer screening, cervical cancer screening, and well-women exams.

Mr. Speaker, I will not let San Diego families lose these valuable health services.

I listen to my constituents about how important Planned Parenthood's services have been in their lives.

Just last week, I held a telephone town hall, and a woman waited on the line for over an hour to ask me about my support for Planned Parenthood.

Anna started going to Planned Parenthood when she first moved to San Diego because as a young woman she was unemployed and had nowhere else to go for health care.

Decades later, she is in her 60s and still uses them for breast and cervical cancer screenings.

I also want to tell you about Jamie, a single working woman who was laid off 2 years ago during the recession and started using Planned Parenthood for her health care.

Even now that she has a job, she can't afford health insurance and continues to use their services.

Without Planned Parenthood, she would not have had a pap smear and would not know she has a high-risk type of HPV, which could lead to cervical cancer.

In her words, ''Planned Parenthood has not only potentially saved my life but millions of others as well.''

These are only two of the nearly 800,000 patients seen by California Planned Parenthoods every year.

I am not willing to deny them access to life-saving care.

I'm shocked and outraged that the majority is willing to do so, especially when 65 percent of Americans favor continued support for Planned Parenthood.

I will be voting against this resolution, and I hope you will all join me.

Ms. MATSUI. Mr. Speaker, I rise today in strong opposition to this resolution.

Millions of Americans across the country rely on Planned Parenthood as their only source of medical care. More than 90 percent of the care that Planned Parenthood provides in our communities is primary and preventive services. Such care keeps our communities healthier, and keeps health care costs down.

However, my colleagues on the other side of the aisle are attempting to misrepresent federal funding for Planned Parenthood as federal subsidization of abortions. Federal law already prohibits federal dollars from funding abortions. And today's resolution would take funds from cancer screenings, birth control, HIV testing, and other life saving care.

It would effectively cripple the largest provider of reproductive health services in our country and it would take funding away from health care that primarily serves low-income Americans. It would take away health care services from women in my hometown. Women like Kari.

Kari shared with me that she did not have health insurance when she went to Planned Parenthood to receive a free cancer screening. The screening showed that Kari had cervical cancer. But Planned Parenthood—in addition to offering the free screening—continued to provide Kari free care through subsequent visits. Today, Kari is a cancer survivor.

Without Planned Parenthood's services Kari's story could have had a very different

ending. And while this Congress should be working to improve access to health care services to help millions of men and women just like Kari, this resolution does just the opposite. Today's resolution is an attack on women, on low-income Americans, on community health centers, and on primary care.

I urge my colleagues to oppose this harmful bill.

Ms. SCHAKOWSKY. Mr. Speaker, House Republicans have made their extreme agenda abundantly clear—undermine women's access to reproductive health care and attack the local women's health providers they rely on to provide cancer screenings, routine gynecological examinations, contraceptive services, immunizations, and testing and treatment for sexually-transmitted infections.

One in five American women has received care from a Planned Parenthood health center at some point in her life, making it one of the largest women's health care providers in the country. Planned Parenthood clinics serve over 3 million Americans every year and plays a critical role in our Nation's health care system. The Republican budget would deny them any funding.

Bonnie S. from Evanston, IL, wrote:

''I found myself without health care in my early twenties even though I was still working. I was in a committed, long-term relationship and needed birth control and a yearly pap smear. Planned Parenthood was my main healthcare provider for nearly ten years.''

''I have only had one sexual partner in my life. I have never had an abortion. Without Planned Parenthood, I would not have been able to afford birth control and a yearly pap smear, things that no woman should have to go without. I'm sure there are many women out there with a story like mine. Stopping funding for Planned Parenthood would be a horrible thing.''

Lesley W. from Evanston, IL, wrote:

''I was shocked and horrified to learn that Congress has voted to defund Planned Parenthood. As an 18 year old college freshman, Planned Parenthood was the difference for me between getting reliable, high quality birth control and gynecological care, and leaving my reproductive health to chance. Now at age 49, married and a mother, I credit Planned Parenthood with giving me the tools for a healthy and responsible sex life. I never had an unplanned pregnancy. I never got an STD. When AIDS came around, I knew how to protect myself and my partners. Planned Parenthood may well have saved my life, as it has saved the lives of thousands of women (and men) over the years. To not fund it is not only cruel and unethical, it is remarkably short sighted. How many more unplanned pregnancies, abortions, and STDs will we now see? How many young women will avoid prenatal care because they are afraid of a gynecologist's office? How many will avoid screenings for cervical cancer?''

''Planned Parenthood was there when I needed it, and I want it to be there for my daughter and the next generation of young women. It plays a crucial role in our national healthcare, and must be funded.''

Poll after poll has shown that Americans support the work of Planned Parenthood centers because investing in commonsense, proven, effective prevention and primary health care is smart health policy.

Republicans need to stop attacking Planned Parenthood and they need to end their war on women's health.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 218, the concurrent resolution is considered read and the previous question is ordered.

The question is on the concurrent resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. NUNNELEE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

House Concurrent Resolution 35 and House Concurrent Resolution 36.

The first electronic vote will be conducted as a 15-minute vote. The remaining electronic vote will be conducted as a 5-minute vote.

CORRECTING THE ENROLLMENT OF H.R. 1473

The SPEAKER pro tempore. The unfinished business is the vote on adoption of the concurrent resolution (H. Con. Res. 35) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473, on which the yeas and nays were ordered.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. The question is on the concurrent resolution.

The vote was taken by electronic device, and there were—yeas 240, nays 185, not voting 7, as follows:

[Roll No. 270]

YEAS—240

Adams
Aderholt
Akin
Alexander
Amash
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Heller
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—185

Ackerman
Altmire
Baca
Baldwin
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Holden
Holt
Honda
Hoyer
Inslee
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Owens
Pallone

Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Shuler
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Weiner
Welch
Wilson (FL)
Woolsey
Wu
Yarmuth

NOT VOTING—7

Andrews
Franks (AZ)
Giffords
Jones
Meeks
Olver
Reichert

□ 1629

Ms. JACKSON LEE of Texas changed her vote from ''yea'' to ''nay.''

Mr. KINGSTON changed his vote from ''nay'' to ''yea.''

So the concurrent resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. JONES. Mr. Speaker, on rollcall No. 270 I was unavoidably detained. Had I been present, I would have voted ''yea.''

□ 1630

MARKEY CASTS 20,000TH VOTE

(Mr. DINGELL asked and was given permission to address the House for 1 minute.)

Mr. DINGELL. Mr. Speaker, I take pride in announcing to the House that our good friend and colleague, Mr. MARKEY of Massachusetts, is joining a select group of Members who have cast 20,000 votes in this great body.

I know, Mr. Speaker, that the Members wish to congratulate this distinguished Member for a long period of outstanding service to the public.

CORRECTING THE ENROLLMENT OF H.R. 1473

The SPEAKER pro tempore. Without objection, 5-minute voting will continue.

There was no objection.

The SPEAKER pro tempore. The unfinished business is the vote on adoption of the concurrent resolution (H. Con. Res. 36) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473, on which the yeas and nays were ordered.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. The question is on the concurrent resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 241, nays 185, answered ''present'' 1, not voting 5, as follows:

[Roll No. 271]

YEAS—241

Adams
Aderholt
Akin
Alexander
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Benishek
Berg
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Boren
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Costello
Cravaack
Crawford
Crenshaw
Critz
Culberson
Davis (KY)
Denham
DesJarlais
Diaz-Balart
Donnelly (IN)
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Heller
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Peterson
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Rahall
Reed
Rehberg
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—185

Ackerman
Altmire
Baca
Baldwin
Barrow
Bass (CA)
Bass (NH)
Becerra
Berkley
Berman
Biggert
Bishop (GA)
Bishop (NY)
Blumenauer
Bono Mack
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Dent
Deutch
Dicks
Dingell
Doggett
Dold
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Frelinghuysen
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hanabusa
Hanna
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Holden
Holt
Honda
Hoyer
Inslee
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters
Pingree (ME)
Polis
Price (NC)
Quigley
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Weiner
Welch
Wilson (FL)
Woolsey
Wu
Yarmuth

ANSWERED ''PRESENT''—1

Amash

NOT VOTING—5

Andrews
Giffords
Meeks
Olver
Reichert

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes left in this vote.

□ 1639

So the concurrent resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. ANDREWS. Mr. Speaker, on the vote for H. Con. Res. 35 and H. Con. Res. 36, I am not recorded because I was absent. Had I been present, I would have voted ''no.''

MOTION TO ADJOURN

Mr. JACKSON of Illinois. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Mr. JACKSON of Illinois. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 11, noes 412, not voting 9, as follows:

[Roll No. 272]

AYES—11

Bartlett	Filner	Huelskamp
Clay	Garamendi	Johnson (OH)
Critz	Grijalva	Speier
Ellison	Heinrich	

NOES—412

Ackerman	Courtney	Heck
Adams	Cravaack	Heller
Aderholt	Crawford	Hensarling
Akin	Crenshaw	Herger
Alexander	Crowley	Herrera Beutler
Altmire	Cuellar	Higgins
Amash	Culberson	Himes
Austria	Cummings	Hinchey
Baca	Davis (CA)	Hinojosa
Bachmann	Davis (IL)	Hirono
Bachus	Davis (KY)	Holden
Baldwin	DeGette	Holt
Barletta	DeLauro	Honda
Barrow	Denham	Hoyer
Barton (TX)	Dent	Huizenga (MI)
Bass (CA)	DesJarlais	Hultgren
Bass (NH)	Deutch	Hunter
Becerra	Diaz-Balart	Hurt
Benishek	Dicks	Inslee
Berg	Dingell	Israel
Berkley	Doggett	Issa
Berman	Dold	Jackson (IL)
Biggert	Donnelly (IN)	Jackson Lee (TX)
Bilbray	Doyle	Jenkins
Bilirakis	Dreier	Johnson (GA)
Bishop (GA)	Duffy	Johnson (IL)
Bishop (NY)	Duncan (SC)	Johnson, E. B.
Bishop (UT)	Duncan (TN)	Johnson, Sam
Black	Edwards	Jones
Blackburn	Ellmers	Jordan
Blumenauer	Emerson	Kaptur
Bonner	Engel	Keating
Bono Mack	Eshoo	Kelly
Boren	Farenthold	Kildee
Boswell	Farr	Kind
Boustany	Fattah	King (IA)
Brady (PA)	Fincher	King (NY)
Brady (TX)	Fitzpatrick	Kingston
Braley (IA)	Flake	Kinzinger (IL)
Brooks	Fleischmann	Kissell
Broun (GA)	Fleming	Kline
Brown (FL)	Flores	Kucinich
Buchanan	Forbes	Labrador
Bucshon	Fortenberry	Lamborn
Buerkle	Foxx	Lance
Burgess	Frank (MA)	Landry
Burton (IN)	Franks (AZ)	Langevin
Butterfield	Frelinghuysen	Lankford
Calvert	Fudge	Larsen (WA)
Camp	Gallegly	Larson (CT)
Campbell	Gardner	Latham
Canseco	Garrett	LaTourette
Capito	Gerlach	Latta
Capps	Gibbs	Lee (CA)
Capuano	Gibson	Levin
Cardoza	Gingrey (GA)	Lewis (CA)
Carnahan	Gohmert	Lewis (GA)
Carney	Gonzalez	Lipinski
Carson (IN)	Goodlatte	LoBiondo
Carter	Gosar	Loebsack
Cassidy	Gowdy	Lofgren, Zoe
Castor (FL)	Granger	Long
Chabot	Graves (GA)	Lowey
Chaffetz	Graves (MO)	Lucas
Chandler	Green, Al	Luetkemeyer
Chu	Green, Gene	Luján
Cicilline	Griffin (AR)	Lummis
Clarke (MI)	Griffith (VA)	Lungren, Daniel E.
Clarke (NY)	Grimm	Lynch
Cleaver	Guinta	Mack
Clyburn	Guthrie	Maloney
Coble	Gutierrez	Manzullo
Coffman (CO)	Hall	Marchant
Cohen	Hanabusa	Marino
Cole	Hanna	Markey
Conaway	Harper	Matheson
Connolly (VA)	Harris	Matsui
Conyers	Hartzler	McCarthy (CA)
Cooper	Hastings (FL)	McCarthy (NY)
Costa	Hastings (WA)	McCaul
Costello	Hayworth	McClintock
Price (GA)	Shuler	
Price (NC)	Shuster	
Quayle	Sires	
Quigley	Slaughter	
Rahall	Smith (NE)	
Rangel	Smith (NJ)	
Reed	Smith (TX)	
Rehberg	Smith (WA)	
Renacci	Southerland	
Reyes	Stark	
Ribble	Stearns	
Richardson	Stivers	
Richmond	Stutzman	
Rigell	Sullivan	
Rivera	Sutton	
Roby	Terry	
Roe (TN)	Thompson (CA)	
Rogers (AL)	Thompson (MS)	
Rogers (KY)	Thompson (PA)	
Rogers (MI)	Thornberry	
Rohrabacher	Tiberi	
Rokita	Tierney	
Rooney	Tipton	
Ros-Lehtinen	Tonko	
Roskam	Towns	
Ross (AR)	Tsongas	
Ross (FL)	Turner	
Rothman (NJ)	Upton	
Roybal-Allard	Van Hollen	
Royce	Velázquez	
Runyan	Visclosky	
Ruppersberger	Walberg	
Rush	Walden	
Ryan (OH)	Walsh (IL)	
Ryan (WI)	Walz (MN)	
Sánchez, Linda T.	Wasserman Schultz	
Sanchez, Loretta	Watt	
Sarbanes	Waxman	
Scalise	Webster	
Schakowsky	Weiner	
Schiff	Welch	
Schilling	West	
Schmidt	Westmoreland	
Schock	Whitfield	
Schrader	Wilson (FL)	
Schwartz	Wilson (SC)	
Schweikert	Wittman	
Scott (SC)	Wolf	
Scott (VA)	Womack	
Scott, Austin	Woodall	
Scott, David	Woolsey	
Sensenbrenner	Wu	
Serrano	Yarmuth	
Sessions	Yoder	
Sewell	Young (AK)	
Sherman	Young (FL)	
Shimkus	Young (IN)	

NOT VOTING—9

Andrews	Giffords	Reichert
Cantor	Meeks	Simpson
DeFazio	Olver	Waters

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). Members have 2 minutes remaining in this vote.

□ 1655

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

GENERAL LEAVE

Mr. RYAN of Wisconsin. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H. Con. Res. 34.

The SPEAKER pro tempore (Mr. SCOTT of South Carolina). Is there objection to the request of the gentleman from Wisconsin?

There was no objection.

CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2012

The SPEAKER pro tempore. Pursuant to House Resolution 223 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the concurrent resolution, H. Con. Res. 34.

□ 1655

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the concurrent resolution (H. Con. Res. 34) establishing the budget for the United States Government for fiscal year 2012 and setting forth appropriate budgetary levels for fiscal years 2013 through 2021, with Mr. TERRY in the chair.

The Clerk read the title of the concurrent resolution.

The CHAIR. Pursuant to the rule, the concurrent resolution is considered read the first time.

General debate shall not exceed 4 hours, with 3 hours confined to the congressional budget, equally divided and controlled by the chair and ranking minority member of the Committee on the Budget, and 1 hour on the subject of economic goals and policies, equally divided and controlled by the gentleman from Texas (Mr. BRADY) and the gentleman from New York (Mr. HINCHEY) or their designees.

The gentleman from Wisconsin (Mr. RYAN) and the gentleman from Maryland (Mr. VAN HOLLEN) each will control 90 minutes of debate on the congressional budget.

The Chair recognizes the gentleman from Wisconsin.

Mr. RYAN of Wisconsin. I yield myself 5 minutes.

Mr. Chairman, earlier today we passed a continuing resolution that will ultimately save billions of dollars of taxpayer money. Today we are converting and switching this debate to now saving trillions of dollars.

Mr. Chairman, let me just begin by saying this: The spending spree is over. We cannot keep spending money we don't have.

The American people deserve the truth. They deserve an honest, fact-based conversation about this budget. We have got to get on to the days of no more budget gimmicks, timing shifts, accounting tricks. And we've got to get on to fixing our country's fiscal problems while we still can and while they're still within our control.

Mr. Chairman, specifically what our budget does is it cuts $6.2 trillion in spending from the President's budget. It brings the government's spending as a share of our economy back down to where it historically has been, contrary to where the President is taking it.

Mr. Chairman, we do not have a revenue problem in Washington. The problem here today is not that people don't

pay enough taxes; the problem is Washington borrows and spends too much money.

This shows you where Washington is headed, where the President's budget goes, the path we are on.

Mr. Chairman, I am 41 years old. My wife and I have three beautiful kids who are 6, 7, and 9 years old. By the time our children are my age, the government will be twice the size it is today. When they're my age, double the government, double the taxes just to keep this current government afloat.

What we are really trying to do, Mr. Chairman, at the end of the day is fulfill the legacy that we have been given by our parents and by our predecessors in Congress. We're going to have a vigorous debate about how to do this. We're going to have a vigorous debate of our priorities and processes, and it's going to be emotional.

At the end of the day, this is what we are trying to do: We know, according to every fiscal expert out there, that we are giving the next generation a mountain of debt. So we have a choice of two futures, Mr. Chairman. Which future do you want your children to have? One, where the debt gets so large, it crushes the economy and it gives them a diminished future, a stagnant economy; or, two, this budget, using CBO numbers, that literally not only gets us on the way to balancing the budget but pays off our debt, gets our debt manageable, preempts and prevents a debt crisis, and fixes this so we can preserve this great legacy of giving the next generation a higher standard of living.

□ 1700

Now, Mr. Chairman, we had a speech yesterday from the President—not a plan, so to speak, but a speech. And unfortunately, I think the speech, which was a framework with no details, was really not about solutions but about partisanship.

I'm concerned, Mr. Chairman, that leaders here in town are more concerned about the next election than the next generation. I hope that that's not the case. I hope that leaders in this town change their tune so we can fix this problem, but it's going to require them to change their tune. We don't need good politicians; we don't need clever politics.

We need real leadership and real solutions to fix this country's problem because, Mr. Chairman, if we don't make some tough decisions today, our children are going to have to face much, much tougher decisions tomorrow.

I want to talk about one particular program, and I will yield myself 2 additional minutes to do that.

Medicare. Medicare is one of the most important programs we have; it's one of the most successful programs we have. Medicare is in trouble. Medicare is going broke. CBO tells us that in 9 years it has exhausted its trust fund. We need to save Medicare. This budget doesn't change anything for anybody on Medicare now and within 10 years of retiring, and it saves the system for the next generation.

Contrary to what the President proposed yesterday, he wants to delegate more authority to 15 people on a bureaucracy that was created in his new health care law to do price controlling and rationing of Medicare for current seniors. He wants these 15 people—without a consent of Congress, just to do it directly—to impose more price controls and more limitations on providers, which will end up cutting services to current seniors.

We repeal this agency. We don't think Congress should be delegating this kind of power and authority to unelected people to make unilateral decisions on senior health care. So we preserve, protect, and save Medicare for current seniors and those 10 years away from retiring, and then I'll get into the details about how we save it for future generations.

Mr. Chairman, at the end of the day, this budget is about choices. We do four things. We want to grow the economy so we create jobs and have a climate for job creation with tax reform. We want to save the mission and preserve the mission of health and retirement security. We do that. We want to preserve our social safety net and make it more sustainable, more reliable, more adaptive, and more conducive to the 21st century and geared not toward keeping people on welfare, but getting people back on their feet and into jobs and careers to have flourishing lives. At the end of the day, Mr. Chairman, what it's really about is giving our children a debt-free Nation.

Mr. Chairman, I reserve the balance of my time.

Mr. VAN HOLLEN. I yield myself such time as I may consume.

Mr. Chairman, everyone in this Chamber loves America and everybody in this Chamber wants to preserve the dynamism of this country and American exceptionalism. We also all agree that we have to reduce our deficits in a steady and predictable way. The question is how we do that, and we have very different views of how we should do that.

Later this evening and tomorrow, we will debate a Democratic alternative budget which will strengthen our economy, promote job growth, and decrease the deficit in a steady, predictable and responsible way, but the Republican budget is the wrong choice for America. I urge every American to read this budget because if you do, no amount of spin can hide the fact that this is a wrong turn for America. It is a yellow brick road for the already prosperous, but it's a dead end for the rest.

Just today, we had an analysis come out from the former economic adviser to JOHN MCCAIN when he was running for President, Mark Zandi, the chief economist at Moody's Analytics, who said that the Republican plan will cost Americans 1.7 million jobs by the year 2014, with 900,000 jobs lost next year. And the Republican budget violates the warning from the bipartisan commission that we need to do the cuts and the deficit reduction in a responsible way.

The cochairs of the President's fiscal commission stated that the Republican budget ''falls short of the balanced, comprehensive approach that we need for a responsible plan.'' They are absolutely right. It is not balanced; it is a totally one-sided approach to deficit reduction. Because when you sweep away all the soothing, sweet-sounding talk of reform, at its core this Republican budget is not bold. In fact, it's the same old formula of increasing tax breaks to the very wealthy in this country and to the special interests, like Big Oil, at the expense of the good of the rest of the country, except this time it's the same old plan on steroids.

We all know that to govern is to choose, and the choices made in the Republican budget are wrong for America. It is not bold to give tax giveaways to the oil companies and executive board rooms while slashing investments in our kids' classrooms, in scientific research, and in critical infrastructure for this country.

It is not courageous to provide additional tax breaks for millionaires while ending the Medicare guarantee for seniors and sticking seniors with the cost of the rising health care. It is not visionary to reward corporations that ship American jobs instead of products overseas while we terminate health care for tens of millions of Americans here at home. It is not brave to give Governors a blank check of Federal taxpayer money and a license to cut support for seniors and nursing homes, individuals with disabilities, and low-income kids on Medicaid. And it's not fair to give yet another tax break to the very wealthy and ask middle-income Americans to pay for it. Yet, if you read the Republican budget, those are the choices they make.

We ask, where is the shared sacrifice? We have American men and women putting their lives on the line as we speak in Iraq and Afghanistan while others hide their income in the Cayman Islands and Switzerland and refuse to pay their fair share to support our Nation. That is not right.

The pattern is clear: first you cut taxes for special interests and the very wealthy, and then mathematically what happens? Yeah, when you do that, the deficits go up. You drive up the deficit, and then you say, well, we've got to handle this—not by going back and asking the folks at the very top to do more, but by cutting investments for working families and violating our commitments to seniors and others.

Let me turn to the Republican plan for Medicare because what the Republican plan does is it ends the Medicare guarantee. It forces seniors to go into the private insurance market and have to deal with the rising costs of health

care that they face there, and the seniors have to eat that cost. And since the chairman raised this specifically in his opening statement, I would like to just take a look at this chart based on the numbers from the Congressional Budget Office—and the President did mention this in his speech yesterday.

What this shows is what happens to Medicare under the Republican budget versus current Medicare and how much of the increased cost will now be shifted to seniors instead of Medicare. As you can see, compared to current Medicare, senior citizens are going to have to pay more than $6,000 on top of what they would have had to pay in the year 2022. And the problem gets worse and worse over time so that by the time you're out in the year 2030, you're talking about in the range of $11,000 more paid by seniors.

□ 1710

Now, let me say this. One of the talking points we've heard from our colleagues on the other side of the aisle is, Don't worry, seniors, we're just giving you the same health care deal Members of Congress have.

That's not true. What Members of Congress have is what's called a fair share deal agreement, just as other Federal employees do and as many employees around the country do where the risk of rising premiums is shared.

So for every dollar increase in premiums, the Federal Government puts in 72 cents, thereabouts, and the Member of Congress or the Federal employee puts in the rest. But the point is, no matter how fast the costs go up, you share that risk equally. That's not what happens in the Republican plan.

There's much more to talk about, but let me just say that we welcome this debate. Fundamentally, this is a debate about choices for our country, and as the bipartisan fiscal commission said, the choice made in the Republican budget is not balanced and it is not comprehensive. We agree, and we should reject this budget.

I reserve the balance of my time.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 30 seconds simply to say the gentleman is talking about Medicare. If he had read that CBO letter a little later, he would see it says that Medicare is on such an unsustainable path that there's no way it can sustain itself where it is.

So we're making comparisons to fiscal myths. We're making comparisons to futures that aren't going to exist. The greatest threat to Medicare is the status quo and those who cling to it.

I would also simply say the President yesterday said he wants this unelected board of bureaucrats to cut a trillion dollars out of Medicare. We don't want to see that happen.

With that, Mr. Chairman, I yield 3 minutes to the distinguished chairman of the Appropriations Committee, the gentleman from Kentucky (Mr. ROGERS).

Mr. ROGERS of Kentucky. I rise today to commend Chairman RYAN in this effort to craft a sustainable and responsible budget proposal.

This budget represents a valiant effort to effect real change in the way Washington spends taxpayer dollars. This plan couples tangible spending cuts with the entitlement reform necessary to get our budget back into balance starting now and continuing into the long term.

This Republican majority understands that we must end the skyrocketing budgets of the last several years, and this budget reiterates our commitment to smart but limited government spending.

The resolution includes an annual discretionary spending level of $1.019 trillion for next year, bringing us back to the fiscal year 2006 funding levels for non-security programs. This is a reduction of an additional $31 billion from the level that we just passed in the CR.

Based on the experience we've just had in bringing the fiscal year 2011 budget to a close, this will present significant challenges to the Appropriations Committee and the body in the weeks and months ahead. It will not be an easy task, but I know that with the support of House Members, we will rise to that challenge.

In addition, while I commend the budget resolution for making such significant strides to rein in spending and address long-term budget challenges, I do have some concerns over various budget process changes that may have unintended consequences.

For example, the Appropriations Committee may be faced with challenges related to our emergency authority after May 31, the beginning of the hurricane season, due to limitations on the committee's ability to respond to natural disasters and other emergencies.

Along these same lines, there may be challenges related to the committee's flexibility to provide for additional funding—beyond expected needs—for the global war on terror and our military efforts overseas.

I look forward to working with Chairman RYAN and the leadership to address these as well as other process concerns as we go forward.

These matters aside, I applaud this budget proposal. It will help put us back on a path of sustainable spending, allow for job creation and economic growth, and help us make the right fiscal decisions for our Nation's future.

I thank the chairman for the time.

Mr. VAN HOLLEN. Mr. Chairman, the chairman of the committee mentioned the IPAB, and it is true that the President indicated yesterday that that is a mechanism for trying to reduce the rise in Medicare costs. The chairman said they repeal the IPAB, which we believe will result in higher Medicare costs, which will mean that seniors have to absorb an even greater amount of the increase.

With that, I yield 5 minutes to the gentleman from Maryland (Mr. HOYER), the minority whip.

Mr. HOYER. I think at the beginning of this debate we need to put it in context. I know that I must bore my friends on the majority side of the aisle, but during my 30 years in this body, there have been essentially three economic programs adopted: One was in 1981 when we adopted what is referred to as Reaganomics. The second was in 1993 when we adopted the Clinton economic program. The third, of course, was in 2001 and 2003 when we adopted what was the Bush economic program.

During the first economic program, we ran up $2.4 trillion of deficits. During the second, the Clinton economic program, which lasted for 8 years, we had $62.9 billion of surplus over 96 months. $2.4 trillion during the 12 years of the Reagan/Bush administrations, $62.9 billion surplus during the Clinton administration, and then another $2.8 trillion of deficits during the Bush economic program.

The reason I raise that as we begin is because I want to tell my friends, and I know we will tell our constituents, that the message that we hear today from my good friend, Mr. RYAN—for whom I have a great deal of respect. We have a disagreement, but I do not believe that he speaks with a forked tongue, if you will. He speaks what he believes—he first of all says, correctly, that we have a deficit problem that must be dealt with by us all, those of us who serve here and with those whom we represent. We must with courage, with honesty, and, yes, with discipline address this deficit. In order to do so, we must address all items of expenditures and revenues. Revenues, of course, are what we use to pay for things we buy.

Why did we run up deficits during the Reagan administration when one person could have stopped spending in its tracks, Ronald Reagan; or the George Bush, I, administration where one person could have stopped spending in its tracks? Because we bought more than we paid for—$2.4 trillion worth.

During the Clinton administration, what happened? Well, we had divided government, we constrained spending, and we constrained cutting revenues so that we were able to pay for what we bought.

During the second Bush administration, we spent some $2.4 trillion more than we paid for. Every American knows that if you do that, you're going to run deficits. That's how we got to that $4.8 trillion of deficit because, as the gentleman today will argue, if we only adopt this program, we will bring down deficits, we will grow employment.

Well, that's the argument used in 2001 and 2003. You didn't do either. In fact, employment disappeared—the worst employment record of any administration since Herbert Hoover—so that the arguments that you made in 2001 and 2003 that this would magnify employment did not prove to be the case.

You also made the argument when you inherited a $5.6 trillion surplus, according to George Bush himself, you said that we could cut revenues, increase spending, and, by golly, we would have growing employment and a surplus. We had neither. We had lost employment, the worst economy of any administration since Herbert Hoover, an almost depression-like response that was called upon by President Bush in his last year, and an exploding deficit.

□ 1720

So now we will debate between two perspectives. We will have a number on our side; you will have a number on your side. Now, I think at least two on your side. But basically, we adopt the premise on our side first of all you've got to protect the most vulnerable. You've got to make sure that we apply the resources that we have to make sure that every American is in a place where we want them to be in the richest country on the face of the Earth. We want to grow the economy and we want to bring the deficit down.

The CHAIR. The time of the gentleman has expired.

Mr. VAN HOLLEN. I yield the gentleman 1 additional minute.

Mr. HOYER. That will be the proposition on our side. Very frankly, I tell my friend from Wisconsin the premise on your side, in my view, has been consistently for the 30 years that I have been here, if you simply reduce revenues somehow magically the economy will recover.

When we adopted the Clinton program in 1993, not a single Republican voted for it, unanimous in your conviction that it would have an adverse effect because we raised revenues, as you will recall, on the upper 1 percent. In fact, of course, what happened is exactly the opposite of what you argued in 1993.

So in that context, as we have this budget debate, I hope the American public understands that if you repeat the same mistakes of the past you will be condemned to live in the same problems that were created then by those mistakes.

I urge my colleagues to listen to this debate very carefully. Listen to the debate of the consequences of the actions that are proposed on both sides of the aisle, and remember what happened when that rhetoric was carried to fruition.

Mr. RYAN of Wisconsin. Mr. Chairman, I will just simply say we choose to reduce spending. And we don't reduce revenue; we reform the tax system.

With that, I would like to yield 2 minutes to a member of the Budget Committee and the Appropriations Committee, the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Chairman, I rise in strong support of Chairman RYAN's FY 2012 budget. For the first time in several years, this budget tackles our fiscal reality and stops burying our collective heads in the sand. Let's start where we all agree: We are in dire financial trouble. But if we make some adjustments now, we will set our country on a long-term path of fiscal solvency. That's exactly what the Republican budget does.

President Obama and my friends on the other side of the aisle lament the lack of tax increases in our budget. First, let's remember that we already have a deeply progressive tax structure. The top 5 percent of earners pay 60 percent of Federal income taxes collected. Yet our President and my friends on the left want to tax them even more.

There seems to be a trifecta of economic strangulation under President Obama: increased regulation without congressional consent, skyrocketing energy prices and the doubling of gas prices, and now an attempt to increase taxes. How can businesses survive in this environment? We're not just talking about a precipice of fiscal solvency in our country; we're talking about the death of the American entrepreneur as we know it if we go down the path outlined by the President.

Thankfully, there is a better way, the only way. The Republican budget recognizes that we must end the relentless drive to seize wealth and redistribute it. This is an alternative to the class warfare tactics of the left that pits one American against another. The Republican budget is a fair, pro-growth plan rather than a punitive tax plan. Make no mistake, the budget includes tax reforms to simplify our Tax Code, broaden the tax base, create a more fair and equitable system that will provide certainty.

The Ryan budget reflects the most basic American principles. It provides for the strong defense of our Nation, ensures the safety net for our most vulnerable citizens remains solvent, and it gets government out of the way of the American free enterprise system and makes sure that entrepreneurs can survive.

The budget demands that we as leaders step up and make a choice between what's popular and what's right. I choose right.

Mr. VAN HOLLEN. Mr. Chairman, yes, we do ask the big oil companies to give up their taxpayer subsidies. And yes, we do ask the very top 2 percent of income earners in the country to go back to the same tax rate they were paying during the Clinton years when the economy was roaring and 20 million jobs were created, instead of the dramatic job loss we saw between 2000 and 2008.

With that, I yield 2 minutes to a distinguished member of the Budget Committee, the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. This budget is just not my cup of tea. When the Republicans use the terms ''modernize'' or ''reform,'' what they really have in mind is a four letter word: less—less retirement security, less health security, less economic security.

This budget does not share the sacrifice. It focuses the pain on the young, on the very old, on those who are trying to climb up the economic ladder, or just barely prevent themselves from slipping backward.

''Fair and balanced,'' that's a most inaccurate media logo, but it's a spot-on description of the budgetary path we ought to be on. Our budget should be balanced, but not unfairly on the backs of those least able to bear it, like our elderly in nursing homes. It's troubling enough that this Republican budget demands even more tax cuts for those at the top and our largest corporations. But what's truly outrageous is that they seek balance by cutting the opportunity for our young people to get all the education they are willing to work for.

How can our economy be second to none when Republicans again and again turn to education to cut first? Nor can you fix this budget or make up revenue lost by squeezing so much out of those on fixed incomes. We need to be creating jobs with job training and education and infrastructure investment.

The size of our deficit, the level of our taxes, those are important, but they are not the sole lens through which the strength of America should be viewed. We want an America where the young have educational opportunity, where the not so young have the dignity of their old age, and a bigger middle class shares in the success of our country. To secure our long-term future, every American can give a little. But this unfair proposal asks little from those with much, and so much from those who have so little.

Mr. RYAN of Wisconsin. I yield myself 10 seconds to simply say, yeah, less spending, less government, less debt; more jobs, more prosperity.

With that, Mr. Chairman, I yield 2 minutes to a member of the Appropriations and Budget Committees, the gentleman from Oklahoma (Mr. COLE).

Mr. COLE. Mr. Chairman, we've heard it all before. In the 1990s, when Republicans proposed welfare reform, we were told that it was going to lead to poverty and starvation. Instead, it was the most successful poverty reduction program in modern American history. And when we pushed through Medicare part D over the opposition of our opponents, we were told that drug prices would go up and it was an unsustainable program. The reality is it came in 40 percent under cost for both the individual and for the government, something no other health care program has done. The reason why those two programs were successful were flexibility for States, choice, and competition for individuals.

I am proud to support the Ryan budget, the only serious budget proposal that either party has offered. Frankly, it's quite a contrast to what we heard yesterday, which was long on political

rhetoric and partisanship by the President and very short on specifics and solutions.

In Medicare, my friends won't tell you that nobody on Medicare is going to have anything other than the programs that they already enjoy, that there is no reduction for seniors in the near term, and that we actually make the changes that are necessary to protect and save the program for the long term. If we stay on the course that they currently advocate, there will be no Medicare for people in their twenties and thirties and forties.

The same thing's true with Medicaid. My friends on the other side of the aisle, frankly, forget that we are not the laboratories for innovation; the States are. We'll provide them with block grants, more flexibilities, more opportunity for change and innovation. We'll end up with a better program that actually protects more people.

So I urge my colleagues to support this budget. We know we're on an unsustainable path. Mr. RYAN has offered us an alternative. Sadly, my friends on the other side of the aisle and the President of the United States have not.

Mr. VAN HOLLEN. Mr. Chairman, the Medicaid program is one where the costs of health care have actually grown much more slowly compared to the growth in health care costs elsewhere. Cutting $1.4 trillion out of an already stretched program is not a recipe for helping more people. It will definitely hurt those who depend on Medicaid. You are just giving Governors a blank check with no accountability.

With that, I yield 2 minutes to the gentleman from Kentucky (Mr. YARMUTH).

□ 1730

Mr. YARMUTH. I thank the gentleman.

Mr. Chairman, we know that budgets are about values. As the chairman of the Budget Committee has mentioned, they are about choices.

And we know that this reckless Republican budget makes a very disastrous choice. It chooses to sacrifice the safety net of millions and millions of Americans in favor of millionaires and billionaires.

Every time we mention that, the other side says, class warfare. Oh, the Democrats are engaged in class warfare. Guess what, Mr. Chairman? That war is over. The wealthy class has won.

The wealthy class has already declared victory. That's why the 1 percent of income earners, the top 1 percent, now has as much wealth in this country as the bottom 90 percent. So when we are talking about what we can do to try and get our fiscal house in order, the idea that we would ask that 1 percent that has accumulated enormous wealth, the greatest disparity of wealth in the history of this country, to pay a little bit more, the Republicans say ''no,'' that's class warfare. Instead, they would rather cut security for seniors, for our students, for our struggling families, because millionaires and billionaires, left to their own devices, will make everybody's boat rise.

We have been down that road before, Mr. Chairman. We have seen what has resulted when that choice was made. This budget, when we asked for millionaires, people making a million dollars or more to pay a little bit more, to pay that 39.6 percent, the highest rate under the Clinton administration, the Republicans all said ''no.''

We can't even ask people making a million dollars or more to pay a little extra to help balance this budget. This is unbalanced, this is unfair. It doesn't call for shared sacrifices. It ends Medicare. And while the Budget chairman says, and I know he believes this, that he is trying to preserve Medicare for the next generation, he does nothing. The Republicans do nothing in this budget to make sure that the people who are now in Medicare, or somebody who is 56 or 57, is going to have that program 30 years from now, not one reform measure to help save Medicare.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 3 minutes to a senior member of the Budget Committee, the gentleman from Georgia (Mr. PRICE).

Mr. PRICE of Georgia. Thank you, Mr. Chairman.

I want to commend you and all of my colleagues for their tremendous work that has been done on this budget. It's a bold vision for our country and a remarkable accomplishment. It's inspiring to have the opportunity to participate in this reform.

As we have heard many times over the past couple of weeks, to govern is to choose. Last year, as the Nation well knows, the choice by our friends across the aisle was to do no budget at all. The Democrats failed in perhaps their most basic responsibility.

Now continuing in this line of inaction, the President gave a speech yesterday with much preceding hype, but again the defining aspect of the speech was no plan. Our rudderless President decided to take the two biggest drivers of our national debt, Medicare and Social Security, and take them off the table. His solution to addressing health care costs is further empowering the Independent Payment Advisory Board to ration health care instead of dealing with structural reforms.

What this all means is that we have a stark choice, a choice of two futures. One future is the President's plan, the one in red here, Mr. Chairman, the plan by the House Democrats that's a path to national bankruptcy. The other choice is a Path to Prosperity, the green, that gets us on a path to a balanced budget.

It's time to address the American people in an honest and a factual manner. Let's face it. The American people are sick and tired of Washington's gimmicks and empty promises, and the Path to Prosperity is a bold vision for the future which relies upon facts, not dishonesty.

As a physician, I could tell you that ObamaCare is a threat to the affordability and accessibility and quality of health care, all the principles that we hold dear in American medicine.

The facts are that ObamaCare is a violation of these principles, and it takes away choices from patients and doctors while saddling workers and job creators and taxpayers with trillions of dollars in costs.

So, we completely repeal and defund ObamaCare. Further, we will save and preserve Medicare for future generations by providing commonsense solutions so that folks have essentially the same kinds of health care choices that Members of Congress have. It's imperative that people recognize that no changes are made that would affect those in or near retirement.

Now many folks on the other side of the aisle would rather bury their heads in the sand and ignore the reforms that need to be made to Medicare. The President has even decided to take it off the table, but the facts are that the current Medicare spending is growing at a rate twice as fast as the Nation's economy.

Ten thousand baby boomers are reaching retirement age every single day. As a physician, when I talk to Medicare patients in my district back home, they tell me that they can't even find a doctor who is taking new Medicare patients.

The system is broken and unsustainable. The status quo is unacceptable. By completely repealing and defunding ObamaCare and by saving Medicare, we advance this Nation in a positive direction, a Path to Prosperity.

Mr. VAN HOLLEN. Mr. Chairman, I yield myself such time as I may consume.

In the Republican budget, I want to make it clear, they took some of the savings that we gained through Medicare reform last year. We gained those savings by ending the overpayments to some of the Medicare Advantage insurance companies that were being overpaid compared to others. They demagogued it when we did it, but they kept that in their budget, but they got rid of our initiative to close the prescription drug doughnut hole for seniors.

So if you pass that budget, the moment it passes, there goes the big doughnut hole all opened up again because they took the money but didn't keep our effort to close the doughnut hole.

With that, I yield 2 minutes to the gentleman from California (Mr. HONDA).

(Mr. HONDA asked and was given permission to revise and extend his remarks.)

Mr. HONDA. Mr. Chairman, I rise in opposition to this Frankenstein monster of accounting that the Republicans call a budget. The Republican

budget, endorsed by every member of the Republican Conference, from JOHN BOEHNER down to the rank and file, has two goals: One, end Medicare, and, two, provide hundreds of billions in tax cuts to the rich.

A lot will be said about these two things by my colleagues, so I want to discuss some of the more dangerous cuts that may not make it to the front page of USA Today, but will still hurt every working family and their children. If you look at this chart beside me you will see that in the red that the Republicans provide the rich with $800 billion, with a B, in tax cuts over the next 10 years.

How do they pay for this spending? On the backs of working families and children.

We will show you charts that are very explicit with details. You will see other charts that may not be very explicit. But right here we show you the cuts to vital services to our people. The column on our right shows the cuts to every American in this country that needs day-to-day services, things like roads, access to health care and, above all, great schools for all our children. The Republican budget is nothing short of a disaster for our children.

I am a classroom teacher, and I should know. The Republican budget cuts over a quarter of funding for education. This Republican budget cut means huge cuts for Head Start. This is the Republican budget paying for tax cuts for the rich on the backs of 1 million poor children. The Republican budget means huge cuts for K–12 education. This is how the Republican budget pays for tax cuts for the rich—on the backs of 20 million elementary and secondary students.

The Republican budget means huge cuts to Pell Grants to help working class kids pay for college and secure the American Dream. This is how the Republican budget pays for tax cuts for the rich—on the backs of 9 million college students.

In short, the Republican budget requires heavy sacrifices for everyone except the richest Americans and the richest corporations. It's like the billionaire CEO who cuts a thousand jobs and gives himself a bonus. This is not right.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Indiana (Mr. STUTZMAN).

(Mr. STUTZMAN asked and was given permission to revise and extend his remarks.)

Mr. STUTZMAN. Mr. Chairman, we are 1 day away from Tax Day, and I believe that this is an appropriate time to be talking about the budget for our country. Many folks back in Indiana and across this country are talking about how they are going to meet the demands of their budget.

I believe that this is a jobs bill. There is a lot of talk on this House floor about what are we doing about American jobs. I believe that this is the jobs bill of this Congress.

We hear a lot from the other side of the aisle that we are going to revise and reform Medicare as we know it. Well, folks, we are facing $14.2 trillion of debt right now. We are facing a $1.6 trillion deficit in the current budget. Just as many families in Indiana and across this country do with their family budget, when the bottom line hits red, they start to make changes.

□ 1740

We have to start controlling spending. I would encourage every American to read this budget. This budget bravely saves $6.2 trillion over the next decade. It also calls to simplify the Tax Code and lower the rates for individuals and businesses. This budget not only stops the growth in government, it actually grows the economy and starts to create jobs.

Furthermore, we eliminate hundreds of duplicative programs, ban earmarks, and curb corporate welfare. In addition to the trillions in savings, this budget will put our Nation on a sustainable path, keep the sacred trust of our seniors, and presents to the American people real leadership in the absence of any from our executive branch. If you look at the President's budget, his budget proposes $9.1 trillion of new debt over the next decade.

Let's talk about job creation. As a small business owner from Indiana, I don't need government to take more money away from the people that live in Indiana who are working hard. Let them keep that money so they can apply it to their businesses in order to grow jobs and grow the economy. There's no reason for more of our dollars to come to Washington, D.C., and be redistributed through our government.

Mr. Chairman, I ask the people of this Congress to support this budget.

Mr. VAN HOLLEN. Mr. Chairman, we agree that you've got to make cuts. We just think you need a balanced approach where you also deal with the revenue side. And because yours doesn't deal with that piece at all, that's why the fiscal commission said it was unbalanced and lacked the comprehensive solutions that we need.

With that, I yield 2 minutes to the gentlelady from Pennsylvania (Ms. SCHWARTZ).

Ms. SCHWARTZ. For decades, Medicare has been a lifeline for older Americans, providing quality and affordable health coverage to all seniors in this country. The creation of the Medicare program in 1965 addressed the fundamental challenge of ensuring aging seniors access to essential health care. Before Medicare, almost half of all seniors over 65 had no insurance at all. Seniors were just not a good risk for private insurers, and they still aren't.

Medicare is a promise to American seniors that we would not abandon them even as they age, even as they need medical care—until now. The Republican budget will end Medicare as we know it, offering a limited voucher and expecting seniors to find insurance no matter how sick they are or how expensive it is.

Every day, 48 million elderly and disabled Americans count on Medicare for their lifesaving medications, doctor visits, and hospital care. Seniors know that changing Medicare to a voucher program means they will no longer have access to a guaranteed set of health benefits. Seniors know that privatizing Medicare means limits on benefits; obstacles to care; and uncertain reimbursements, copayments for primary care and specialty care; exclusions for certain services; discrimination based on income, illness or age; and uncertainty if serious illness or need for long-term care occurs. Seniors know that privatizing and voucherizing Medicare will mean that they pay more in premiums or do without.

And it doesn't end there. The Republican budget also threatens Medicaid for nearly 6 million disabled and frail elderly who depend on it for their nursing home and home health services.

American seniors are not looking for handouts. They're looking for the security that they have earned and we have promised.

Budgets are about choices. In this very same budget where Republicans end Medicare as we know it, they protect billions of dollars in tax subsidies to the oil and gas industry. They protect billions in tax breaks to the wealthiest 2 percent of Americans.

Budgets are about our priorities and our values. Yes, we should get serious about our deficit. But let's get our priorities right and not threaten our obligation to our seniors, our children, and our future.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 30 seconds simply to say the only part of this budget that mentions oil is that we want to drill for it in our own country so we can actually lower gas prices and get ourselves off foreign oil.

The second point I would simply say, Mr. Chairman, is this budget saves Medicare as we know it. The President is proposing to ration Medicare as we know it.

With that, Mr. Chairman, I would like to yield 2 minutes to the chairman of the Financial Services Committee, the gentleman from Alabama (Mr. BACHUS).

Mr. BACHUS. I thank the chairman.

Imagine that you are on the bank of a river. It's deep in winter. It's a peaceful scene. You look out on the river, and it's frozen. There's a deep current of cold water under the ice. But then you see a small child, and he is walking out onto the ice. He doesn't fall, and he walks further out. You begin to warn the child, but he walks further out. As we know, the ice gets thinner the further out we go. And we are on that ice today as a country, and every day we take one step further out. And tragically, the young child falls through the ice and is swept away.

That's what we're here to talk about. We're here to talk about the repeated warnings that we've received.

Chairman Bernanke told us just last week that unless we act immediately in a long-term way, we will not have economic growth nor will we have financial stability.

The Chairman of the Joint Chiefs of Staff, Admiral Mullen, told us that the greatest threat to our economy and to our national security is our debt.

The IMF yesterday—this is unthinkable. They said of all the advanced countries in the world, our debt was growing the fastest, it was unsustainable, and it would lead to instability both here and across the world.

Now, imagine those pictures of countries where the children are in economic distress where there's no stability. Those could be our children. Those could be our grandchildren. So with the warning today is a vote for our children and our grandchildren. We've heard the warning. We're not children. Let's save our children and grandchildren from that fall through the ice.

Mr. VAN HOLLEN. Mr. Chairman, we share the gentleman's concern and view. As I said, the question is not whether we reduce the deficits but how we do it and the choices we make in the process.

With that, I yield 2 minutes to Mr. BLUMENAUER, the gentleman from Oregon.

Mr. BLUMENAUER. The chair of the Budget Committee is a friend of mine, a man of sunny disposition, but he has helped shepherd to the floor of the House the most profoundly negative view of America's future that I have heard in my 15 years in Congress. They cannot reform Medicare, so they dismantle it for 230 million Americans who will be shifted to higher costs and given a voucher to insurance companies.

It will, in fact, according to independent analysts, increase overall health care costs for all America while it reduces some of the burden for the Federal Government. It doesn't deal with the reform of the military. It turns an opportunity for tax reform to more tax benefits for those who need it the least.

Their America and their budget cannot afford to improve our fraying infrastructure, and, in fact, envisions a massive $100 billion cut, according to the CBO. It will shortchange environmental protections and make college education more expensive for our young people.

The Democratic alternative that you will hear will provide progress with some hard decisions, but by having shared sacrifice, by not giving up on health reform but by moving forward with it, to provide infrastructure investment and educational support.

Mr. Chairman, this is an opportunity, and we welcome people looking at independent appraisals of the visions of America: one which basically gives up and forces the costs on middle income, elderly, poor and children; the alternative is to invest in our future in a responsible fashion, making some hard choices, to be sure, but with the opportunity to reform areas like the military, like health care, and like the tax system.

Things that America has done in the past we think America can do in the future.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Pennsylvania (Mr. SHUSTER).

Mr. SHUSTER. I thank the gentleman for yielding.

Yesterday, President Obama had an opportunity to put forth a serious budget proposal, but instead, again, he called for higher taxes and trillions of dollars in spending we just can't afford.

□ 1750

The President offered nothing but lip service to serious spending cuts and real reform. We can't tax our way to prosperity or ignore the unsustainable future of Medicare and Medicaid. The President's plan fails to recognize that Washington has a spending problem, not a revenue problem. This is a time that demands leadership, and the President answered with a plan to nowhere.

Today, the House is debating a serious budget that will address our dangerous debt and deficit while strengthening Medicare and Medicaid. The President missed another opportunity to engage in this debate in a meaningful way. He chose, instead, to deliver a campaign speech, filled with class warfare and scare tactics, hoping the American people wouldn't know any better.

He was wrong.

Mr. Chairman, before I came to Congress, for 12 years, I was in business, and there were two things I learned in business: One, if you spend more than you take in, you're headed towards financial ruin. Second, if the government continues to take away more and more from small businesses, they won't create jobs; they will eliminate jobs. This budget deals with those two fundamental issues.

The American people are demanding real change and an honest budget with no gimmicks, and that is what Chairman RYAN has produced. This week, the House is going to deliver for future generations by putting our government on a path to fiscal responsibility and prosperity.

Mr. VAN HOLLEN. Mr. Chairman, I yield 2 minutes to the gentlelady from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. Thank you.

Mr. Chairman, contrary to what Republicans have said on the floor, the Republican budget will impose new cuts on today's seniors.

The Republican plan repeals the Affordable Care Act, which strengthens Medicare and reduces costs. For seniors on Medicare today, the Republican plan brings back the doughnut hole, forcing seniors to pay more for their prescription drugs. It repeals seniors' free annual checkups and gets rid of reforms to better manage their chronic conditions. The Republican plan eliminates Medicare altogether and, instead, hands seniors vouchers and kicks them into the black hole of health insurance.

All Americans, pay attention. If you're 54 and younger, you've been put on notice. Start saving now. In addition to saving for your retirement, you'll need to save for the new out-of-pocket expenses your health care will incur.

The nonpartisan Congressional Budget Office estimates seniors will be forced to pay an additional $6,000 a year on health care—that's $12,000 for a couple—which is the best case scenario seniors can expect. The plan in front of us tonight begins to double out-of-pocket spending for seniors, and it's only going to increase from there.

When you dig a little deeper, you realize that more than half of the Medicare beneficiaries today have five or more chronic conditions. What awful choices will seniors be forced to make when their health care costs are greater than their vouchers? Will they be able to afford their diabetes care? Will they be able to afford to go to their doctors for colonoscopies or mammographies?

It seems to me that the only seniors who will benefit from the Republican proposal will be senior insurance executives.

Vote ''no'' on the Republican plan. Vote ''no'' in order to protect and save Medicare.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 1 minute to simply say, if the gentlelady had taken the time to read the CBO report, it's not a voucher program. In a voucher program, the money goes to the people, and then they go to the market. It's a premium support program.

What does this look like?

It looks just like the plan that you and I have as Members of Congress and that all Federal employees have. It works like the prescription drug benefit, which has come in 40 percent below cost. More to the point, it saves Medicare. It applies to people 54 and below, and it occurs in 2022. Guess what happens 2 years before that under the status quo? Medicare goes bankrupt.

We want to prevent Medicare from going bankrupt. We want a system that's sustainable. We want a system that's solvent and that people can rely upon: guaranteed coverage options just like we have in Congress. That's what we are proposing.

More to the point, what we are opposing is delegating to 15 people the ability and the power to ration over $1 trillion of Medicare against current seniors. We repeal that. The President proposes that. That's the big difference between us.

With that, Mr. Chairman, I yield 2 minutes to the gentleman from Colorado (Mr. GARDNER).

Mr. GARDNER. I thank the gentleman from Wisconsin.

Mr. Chairman, I rise today to support this fiscally responsible budget plan.

For the past few weeks, Congress has been occupied, arguing over a continuing resolution because the previous Congress failed to put in place a spending bill for this year. We cannot afford to make the same mistakes that they did in the last Congress. We are facing a record $1.6 trillion deficit, a $14 trillion debt, and we need a plan to get spending under control—a plan, not a campaign speech and not partisan bickering. We've taken positive steps in the right direction. However, we must move from saving billions to saving trillions, and this budget will let us do just that.

At the same time, we must fulfill our promises to our constituents and pass policies that will spur job creation and economic growth to strengthen and preserve Medicare and Medicaid. The proposed budget would create nearly 1 million new private sector jobs next year. Additionally, according to the studies, it would bring the unemployment rate down to 4 percent by 2015. It would spur economic growth by increasing the GDP by $1.5 trillion over the next 10 years. It does this by creating a less burdensome Tax Code for families and small businesses and by incentivizing job growth and investment.

We will get out of debt only when we focus on pro-growth policies and budget-tightening plans. This plan will do that by reforming Medicare and Medicaid to ensure that those programs are still available for our children. It is the safety net that we have promised. Without reform, those programs are unsustainable and will cease. The plan we will vote on tomorrow represents a fundamental shift in how the government does business—a shift back to fiscal sanity. The budget proposal saves $6.2 trillion compared to President Obama's plan. If a person spent $1 million a day, every day, since the first day of year 1 A.D., he still would not have spent $1 trillion by today. We will save six times that amount in 10 years.

Mr. Chairman, I was taught a valuable lesson as a kid. If you weren't responsible with your allowance, you didn't get it again. No taxes. Save money.

Mr. VAN HOLLEN. Mr. Chairman, I just want to go back to the point that was raised again with respect to what Members of Congress have in terms of health insurance plans. We have what's called a ''premium support plan.'' The idea behind a premium support plan is that the employer and employee share the premium, and the employer—in this case, the U.S. Government—pays a certain percent. I have right here the Federal Employees Health Benefits Program handbook, and it reads: The government's share of premiums paid is set by law.

So Members of Congress have protected themselves by law. For most employees, the government contribution equals the lesser of 72 percent or 75 percent of the total premium for the particular plan. In other words, the Member of Congress/Federal employee has 72 cents for every premium dollar paid for. Whenever premiums go up, 72 percent of the cost of that premium is picked up by the government.

The Republican plan gives seniors a raw deal. It does not give seniors the deal that Members of Congress give to themselves, and that should be put to rest right now. Just look at the Federal Employees Health Benefits Program handbook.

With that, I yield 2 minutes to the gentlelady from Florida (Ms. CASTOR).

Ms. CASTOR of Florida. Mr. Chairman, the vote on the Republican budget is one of the most important votes that I and my colleagues will cast as Members of Congress. The vote will tell the story of two distinct visions for America: how we reduce our debt, our economic future, and what we value as Americans.

The Republican plan to destroy Medicare, to replace it with a voucher system, and to saddle our older neighbors and hardworking families with nearly the entire burden of reducing the Federal deficit betrays our American values. Medicare has allowed our parents and grandparents and our older neighbors to live in dignity in their retirement years. Medicare has kept families out of poverty for decades. It has worked well. With the baby boomers coming, we need to be mindful of necessary reforms.

The Republicans should not use these difficult economic times as a reason to destroy Medicare. After all, the Republican plan will not save any money. It will simply shift the cost to older Americans and their families. The nonpartisan Congressional Budget Office released an analysis, which reads: In 2022, with an increase of nearly $7,000 per year, the Republicans would double the cost per person. Not $1 of that increase in beneficiary cost goes to reducing the deficit. It all goes to cover the higher costs of private plans that the Republicans would force you to join.

□ 1800

The President said yesterday this debate over budgets and deficits is about more than just numbers on a page. It is about the kind of future that we want. It is about the kind of country that we believe in, and I agree. Each one of us deserves some basic measure of security and dignity. He said that we recognize no matter how responsibly we live our lives, hard times or bad luck or a crippling illness or a layoff may strike any one of us. There but for the grace of God go I.

And let me say, back home in Florida under this Republican plan to end Medicare, life will be very different. We need to reject this pessimistic Republican plan. On this most important vote, I urge my colleagues to save Medicare and keep the promise of health security and dignity for older Americans.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 2 minutes.

Let me say a couple of things. Let's look at current law that was passed here not too long ago, the President's health care law. We've all done town hall meetings where people have said: Why do you keep raiding the Social Security trust fund? Stop the raid of Social Security. We agree; that was wrong. We shouldn't have done it, and now we're out of surplus.

Well, guess what, the current health care law raids Medicare. The current President's health care law takes $682 billion out of Medicare to spend on the ObamaCare entitlement. We're ending the raid of Medicare. We're making sure that those savings go to making Medicare solvent. It only gets it to 2021.

More to the point, Mr. Chairman, we believe that seniors should be in charge. We believe that the best way to make Medicare better is to give seniors more choices. Give them the ability to make choices and have providers compete against each other for their business.

Here's the difference: The President wants 15 people to make the choices in Medicare. We say let 40 million seniors have choice, have power, and have those providers compete against each other for their business so they're in charge of their Medicare.

The President's law, the law today, has him appoint 15 people to ration Medicare, and Congress can't even do a thing about it. Their decisions go right into law. That's the future of Medicare under the current law. The President said, let's throw another trillion on top. So here's what happens: When the President is coming up with a need for more savings, what does he do, he calls up his Medicare rationing board and says, go find another $480 billion.

That is not the future we want for Medicare. There's a difference between us. We don't want to have government ration health care. We want people to be in charge of their own health care.

The Acting CHAIR (Mr. YODER). The Committee will rise informally.

The Speaker pro tempore (Mr. TERRY) assumed the chair.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Secretary of the Senate is directed to inform the House of Representatives that the Senate failed to agree to the resolution of the House (H. Con. Res. 35) entitled ''Concurrent Resolution directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473.''.

The message also announced that the Secretary of the Senate is directed to inform the House of Representatives that the Senate failed to agree to the resolution of the House (H. Con. Res. 36) entitled ''Concurrent Resolution directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473.''.

The SPEAKER pro tempore. The Committee will resume its sitting.

CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2012

The Committee resumed its sitting.

The Acting CHAIR. The gentleman from Wisconsin is recognized.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the distinguished gentleman from California (Mr. MCCLINTOCK), a member of the Budget Committee.

Mr. MCCLINTOCK. I thank the gentleman for yielding, and I thank him for his heroic work on this issue.

Mr. Chairman, history walks with us as we debate this budget. History offers us not a single example of a nation that has ever spent and borrowed and taxed its way to prosperity, not one. But it offers us many, many examples of nations that have spent and borrowed and taxed their way to economic ruin and bankruptcy.

And history is screaming this warning at us: that nations that bankrupt themselves aren't around very long because before you can provide for the common defense and promote the general welfare, you have to be able to pay for it, and the ability of our Nation to do so is now in grave danger.

Yesterday, the President attacked this budget because he says it lowers taxes on the rich while raising Medicare costs for seniors. In fact, this budget ends many of the loopholes that have allowed some of the wealthy to pay less than their fair share of taxes, while it lowers the overall rate for those who have paid more. And since 82 percent of small business income is affected, economists tell us that the tax relief provided by this plan will produce a million new jobs next year. I say to the gentleman from Maryland, that's the healthy way to produce new revenue.

The President apparently believes that by taking more money from small businesses, somehow they will create more jobs. That is the economic folly that misguides this administration.

As my friends to my left know, Medicare and Medicaid will collapse if we continue business as usual. This budget saves those systems by putting them on a sound financial foundation. It reverses the growing trend of doctors refusing to treat Medicare patients, and it assures future seniors a far wider choice of physicians and plans than is available today.

This budget brings Federal spending back under control, and it places our Nation on a path so that when my children retire, their retirement systems will be safe and secure and their Nation will be debt free and prosperous.

Mr. VAN HOLLEN. Mr. Chairman, I yield myself such time as I may consume.

I remind the gentleman that what we're saying is that the top 2 percent income earners should go back to the same rates they were paying during the Clinton administration, a period of time when the economy was roaring and 20 million jobs were created. When we moved to the current rates for the folks at the very top, we saw at the end of 8 years, 2000 to 2008, a loss of over 625,000 private jobs.

Let me just say something about this Medicare issue because what the Republican plan does will result in rationing by income. Let me be clear. Seniors, you will no longer be able to choose to stay in the Medicare program. You've got to go into the private health insurance market. You're going to be given a voucher, premium, whatever you want to call it, that doesn't keep pace with rising health care costs. That means that the plan you may be able to afford may not cover the very benefits you need, and your doctor certainly may not be on that plan. So you lose your choice of doctor if you can't happen to afford the plan that they're on, or you lose your benefits. This Republican plan is rationing by the insurance industry.

With that, I yield 2 minutes to the gentlelady from Ohio (Ms. KAPTUR).

Ms. KAPTUR. I thank the gentleman from Maryland for yielding.

Mr. Chairman, the best way to balance any budget for our country is to get everyone back to work who wants to work. The President's bipartisan fiscal commission also shows any responsible effort requires a balanced approach that addresses both spending and revenues. By contrast, this budget from the Republicans fails the simple test of addressing both programs—program spending as well as tax break spending—and it fails it badly.

The Republican budget increases tax breaks for millionaires and billionaires while ending the Medicare guarantee for seniors, doubling their out-of-pocket costs for their insurance premium. And at the same time Republicans are doling out a trillion dollars of tax breaks over the next 10 years to the wealthiest people in our country, to multinational corporations and to those on Wall Street who pay as little as 11 percent of taxes.

Meanwhile, the Republican budget will end Medicare as we know it, and it will throw America's seniors at the mercy of insurance companies. Seniors love Medicare, and their families love Medicare. Social Security and Medicare are compacts of trust between generations, and I would not want the next generation to have any less than our generation has had, and I disagree with the Ryan proposal because it divides generations.

The Democratic alternative stands in clear contrast. It reduces the deficit while preserving the social safety net. In fact, the plan of House Democrats would cut the deficit by an additional $1.2 trillion more than the President's budget. It achieves primary balance as early as fiscal year 2018, and puts our economy on a full path to recovery.

The Ryan budget fails to say the reasons for the deficit we face—the $1.4 trillion in the cost of the Afghan and Iraqi wars and the billions and billions spent on Wall Street in bailing them out and all of the costs of unemployment and housing foreclosure that has gone with it.

The Republican budget gives up on jobs and working Americans and caters mainly to the upper 1 percent. And, frankly, it gives up on America's future. The Ryan budget is the roadmap to ruin. It won't create jobs. In fact, it will cause more job loss. It's a dead end budget for America, and I ask my colleagues to oppose it.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 30 seconds to simply say that it is well known that our budget doesn't touch Medicare, change it for people in or near retirement, 55 years old or above. But under the President's plan, if the 15-person board says your doctor can't give you the care he wants to, or your hospital can't do it, then they can't. That's the government doing this, unelected bureaucrats, to current seniors; and we oppose that.

□ 1810

With that, Mr. Chairman, I yield 2 minutes to the distinguished gentleman from the distinguished State of Wisconsin (Mr. RIBBLE).

Mr. RIBBLE. Mr. Chairman, as a member of the House Budget Committee and former small business owner, I rise today in strong support of the Budget Committee's 2012 budget resolution.

I would like to begin today with a quote from a famous American:

''At what point can we have a serious conversation about Medicare and its long-term liability, or a serious conversation about Social Security or serious conversation about budget and debt where we aren't simply trying to position ourselves politically? That's what I'm committed to doing.''

Mr. Chairman, that was President Barack Obama just last year. As we debate this budget, I would urge my colleagues on the other side of the aisle to heed the words of our President. Let's stop the demagoguery and the political jockeying and actually work toward a solution together. Our children—my grandchildren—deserve no less.

Even most Democrats agree that our current spending is on an unsustainable trajectory. So wouldn't you agree that finger-pointing and making false claims to scare seniors while offering no solutions of your own is counterproductive?

This budget has real solutions and real ideas. We cut spending by $6.2 trillion and shrink the size of government to historically normal—historically normal—levels. We start to get our deficits under control and put our budget on a path to prosperity.

As a small business owner, I know what high taxes mean to job creators in this country. That's why our budget calls for a flatter, fairer tax—now wait for it—that closes loopholes and increases the incentives of corporations to keep jobs right here in America.

I know what small businesses look for when they look to spend and invest. They look for certainty. And this budget, more than anything else, puts our country back on a certain path of sustainability. Job creators and business owners will stand up and cheer when they see real ideas like this put forth.

There are many more ideas of merit in this budget, and we all want a vigorous debate. But I hope it will be a debate on policy differences, not political maneuvering.

Mr. VAN HOLLEN. Mr. Chairman, I would just point out again that the choice is whether we want to ask for shared sacrifice. The fact of the matter is the reason the bipartisan fiscal commission said that the Republican budget isn't balanced was, among other things, because it asks for nothing from the folks at the very top who got the big tax cuts.

With that, I yield 2 minutes to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ).

Ms. WASSERMAN SCHULTZ. Mr. Chairman, I rise today in opposition to the Republican budget plan, which is not, as they characterize, a pathway to prosperity but a true pathway to poverty for our Nation.

The Republicans' explicit choice to protect millionaires and special interests at the expense of job creation is dangerous and forsakes our future.

I'm particularly concerned about the reckless and shameful cuts to the National Institutes of Health for the research of cures to cancer, stroke, diabetes, heart disease, and all the other illnesses that fall under its jurisdiction. That is why last week I introduced an amendment in committee that would stop these cuts. Yet each and every one of our Republican colleagues voted against it.

For just half a percent—half a percent—of the cost of extending tax cuts for millionaires and billionaires, we could completely reject the Republicans' devastating cuts to medical research for next year. Cuts of this magnitude will slow research progress while squandering critical scientific opportunities that may one day save lives.

Yet beyond the dangers posed to our Nation's health, these cuts prevent us from winning the future.

The Republicans' cut to NIH kills jobs. NIH grants support more than 350,000 highly skilled jobs in all 50 States, plus an additional 800,000 supporting jobs created in the private sector. This means that the Republican budget puts over 1 million American jobs at risk—from pharmaceutical jobs to medical device manufacturers to technicians working in medical labs. At the same time, the Republican path to poverty ignores the NIH's role in reducing the rising cost of chronic disease and the ballooning costs that compound our debt.

We must make smart investments in our Nation's medical and fiscal health. And we must make these kinds of investments now so that we may stem the tide of future disease rates.

Cancer incidence is projected to nearly double by 2020, particularly among the aging baby boomer population. As one of the 11 million cancer survivors in the United States, I am living proof of the vital gains made by research at NIH.

We can't stop now. Don't turn your back on the millions of Americans who are desperately holding out hope that treatments and cures are coming to them soon.

Prevent these deadly cuts. Oppose this Republican path to poverty.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Utah (Mr. CHAFFETZ), a member of the Budget Committee.

Mr. CHAFFETZ. Mr. Chairman, I rise in support of this budget.

At the end of the day, this is about jobs, it's about our economy, and it's about the people's money.

You see, all too often Congress talks about its money, talks about the way it wants to spend the people's money. No. It's the people's money. It's not Congress's to just go and allocate and pull their money out of their wallets to hand to somebody else. What we have to recognize each and every time a decision is made about where and how to spend money is that they're pulling money out of people's pockets and handing it to somebody else. And right now we're on a trajectory where 25 cents—25 cents—out of every dollar spent in this country is spent by the Federal Government.

Fundamentally that's wrong. We have to change the trajectory. We have to have systemic changes. And that's what I like about this budget. Because not only does it put us on a pathway to balance the budget but to actually pay off the debt.

I ran for Congress because I was sick and tired of what was happening. I wanted to be part of the solution, not part of the problem.

We have to recognize that our national debt just 48 months ago was $8.67 trillion. Yet with the Democrats in control of the House and the Senate, it rose to over $14 trillion, a rise of more than 60 percent in just 48 months. We can't continue to do that.

What I like about this budget is that it's an adult conversation that says we're going to have to change the trajectory, everything from entitlement reform to the discretionary spending.

This budget cuts $6.2 trillion in government spending over the next decade compared to the President's budget. It eliminates hundreds of duplicative programs and brings government spending to below 20 percent of the economy—its proper role, its proper level.

We can no longer continue to borrow, tax, and spend our way. We have to reduce spending. We have to produce a responsible Federal budget. That's what this budget does. That's why I'm in support of it. And I urge the passage of this budget.

Mr. VAN HOLLEN. Mr. Chairman, I would remind my colleagues that those hardworking American workers paid their payroll taxes, including their Medicare contributions, and they should have the benefit of the bargain and keep the Medicare guarantee.

With that, I yield 2 minutes to the gentleman from New York (Mr. TONKO).

Mr. TONKO. I thank my distinguished colleague for yielding.

Mr. Chairman, as indicated in the chart to my right, the Republican Road to Ruin budget ends Medicare and other investments to pay for tax breaks to millionaires and some of the most profitable corporations in the world.

Forty-six million Americans rely on Medicare for their health care today. Under the Road to Ruin plan to end Medicare, seniors and the disabled will lose their guaranteed health benefits. They will be left with a voucher. By design, the voucher cannot and will not keep up with rising health care costs.

□ 1820

The private market views seniors and the disabled as a risky and expensive investment. That's why Medicare was created in the first place. As a result, when the Road to Ruin health plan takes effect—and as this chart again to my right reveals—seniors will see their health costs double. By conservative estimates, seniors will pay more than $12,000 in out-of-pocket expenses for the same coverage Medicare provides today. Facing dramatically higher health costs with less help, our seniors will be forced into life-and-death decisions—do I buy groceries or do I buy prescriptions? Do I pay rent or do I pay medical bills?

Never fear, my Republican colleagues say to seniors, you will get the same care as a Member of Congress. Well, as a Member of Congress, I know that congressional health plans cost about $9,000 this year. Seniors will be getting a ration of $8,000 10 years from now for health care that will cost over $20,000. With all due respect, I must say that the Republican talking point that seniors will get the same coverage as a Member of Congress is not just political hyperbole, it is a lie. The nonpartisan Congressional Budget Office estimates that seniors will pay 68 percent of their health costs under the Republican plan. Members of Congress only pay 28 percent of their premiums. Seniors will pay more than double the share that Members of Congress pay and more than double the amount that they pay today under Medicare.

We have balanced a budget before without ending Medicare. We can do it again. I ask my colleagues to vote ''no'' on the Road to Ruin plan that would end Medicare.

Mr. RYAN of Wisconsin. Mr. Speaker, I yield 2 minutes to a member of the Budget Committee, the gentleman from South Carolina (Mr. MULVANEY).

Mr. MULVANEY. Mr. Chairman, for the last several weeks—and my guess is

for the next couple of days—we will be hearing a lot of things from our colleagues across the aisle about the relationship between cutting spending and jobs. They have taken the position from the very beginning that if we cut government spending, we are going to lose jobs.

We heard earlier this evening my esteemed colleague from Maryland talk about the Zandi report that suggested that maybe if we cut $60 billion from the budget—as we did in the CR, H.R. 1, a few weeks ago—that that would cost us somehow 500,000 jobs. I've seen a similar report suggesting that that same $60 billion cut would shave 2 percentage points off of GPD. Mr. Chairman, those numbers sort of expose the absurdity of the Democrat argument.

If you took those same numbers and applied it to the $800 billion stimulus program, that $800 billion stimulus program should have created or would have created over 6.5 million jobs and added 26 percent to the GPD. It's just wrong. It's misleading.

I think for the first time maybe in this generation the American people are starting to accept the fact that government spending does not create jobs. We've seen it. It was an expensive lesson for us to learn as a Nation, but we are learning it. If government spending created jobs, then I wouldn't have 15 percent unemployment in my district. People back home are starting to accept, they are starting to learn, starting to agree that what creates jobs in this Nation is private investment. It's private businesses investing in their business, and it's private individuals putting people to work.

We've got a graph going back another 20 years here—and I've got another one that goes back another 40 years, and another one that goes back to World War II—that shows that the only thing that creates jobs in this Nation is private investment. You are not going to find a graph more directly correlated than this. When private investment goes up, the unemployment rate goes down. When private investment goes down, the unemployment rate goes up. That is what we are facing as a Nation. And until we recognize the fact that government spending does not create jobs, we will continue to muddle through, but with too many of our folks out of work. This budget allows private industry to get back in the job of investing in this country and putting people back to work.

Mr. VAN HOLLEN. I yield myself such time as I may consume.

Mr. Chairman, of course, the private sector is the engine of opportunity and the economy in this country. But we also know that there are some investments that no individual or corporation takes on by themselves. For example, the highway system and some of the big infrastructure, you've got 20 percent unemployment in the construction industry right now. If you're telling me that a greater investment in our infrastructure, roads, and bridges doesn't help generate job creation, then you should tell that to the folks who are looking for a job right now.

I would also point out that the same folks—the Heritage Foundation—who said that the Republican plan that we're talking about tonight was going to miraculously increase jobs are the same people who, back at the beginning of the Bush administration, predicted that those tax cuts were going to generate all sorts of jobs in the country. Here's what they predicted in blue; cut those taxes for the folks at the very top, jobs are going to go up and up and up. Here's the reality in red. We know what happened. So I would be careful about talking about how a budget is going to produce jobs.

We have an alternative budget that has the right balance between cuts and shared sacrifice and will generate jobs.

With that, I yield 2 minutes to the gentlelady from California (Ms. BASS).

Ms. BASS of California. Mr. Chairman, on behalf of our seniors, I rise in strong opposition to the Republican budget that ends Medicare.

The Republican budget ends the Medicare guarantee in 11 short years. In 11 years, reliable care for our seniors will be replaced with the risky voucher scheme.

The Republican plan supposedly generously gives senior citizens a gift, an $8,000-a-year voucher. Seniors then must identify an insurance carrier that will take it. This is called choice. Since the Republicans also want to repeal the Affordable Care Act, there is nothing to protect seniors from being excluded from coverage if they have a pre-existing condition. This is called choice. I don't know too many people 55 years and older who don't have some health-related problem.

There is nothing that protects seniors from insurance companies canceling their coverage if an illness becomes too expensive, so I don't know where the choice is. There is nothing that will protect taxpayers from incurring massive costs when uninsured seniors show up in emergency rooms around the country with untreated diabetes leading to kidney failure and heart disease, and untreated hypertension leading to strokes. This isn't much of a choice.

We are simply fooling ourselves if we think all seniors will be able to just write a check and pay the difference. A more likely scenario is seniors will simply not have medical coverage.

I often say that you can judge a society by how it treats its elderly and its children. And the Republican budget plan kicks our seniors to the curb while the wealthiest Americans will continue to get wealthier.

I urge my colleagues to vote against the Republican budget and protect the Medicare benefit.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the distinguished gentleman from Arizona (Mr. FLAKE).

Mr. FLAKE. I thank the gentleman for yielding.

These are serious times that we're in right now with regard to the debt and deficit. Serious times call for a serious budget, and this is a serious budget. This is one that can actually lead us out of the problems we're in. That is what we need.

For those on the other side of the aisle who are saying that they want to preserve Medicare by sticking to the status quo, as I think it was George Will said on Sunday, Your problem isn't Mr. RYAN, it's Mr. Arithmetic. It just doesn't work. You just can't do it.

So for all this talk about preserving Medicare, preserving Medicare as it currently is means that you are consigning it to history. It won't survive. You have to change it. You have to change it in ways that make it sustainable and solvent for the long-term future.

What we are hearing now is that we need more investment, and that we've got to maintain current spending levels to have more investment. I would refer you to the stimulus that we just passed a year or so ago. What good has that done? Sure, it's a lot more investment or spending—or whatever you call it—government to government, or the government spending, but it is not enabling the private sector to create jobs.

The job of the Federal Government should be to set a conducive tax and regulatory environment so that the private sector can produce jobs. That's what this budget does. That is why I support it.

Mr. VAN HOLLEN. Mr. Chairman, I yield 2 minutes to the gentleman from New Jersey (Mr. PASCRELL).

(Mr. PASCRELL asked and was given permission to revise and extend his remarks.)

Mr. PASCRELL. Now we have two cities here—St. Augustine talked about it. We are looking at a city very optimistically, and unfortunately we have to go back to your figures.

We have had exactly six quarters of growth in this administration. You want to know what the last two quarters of the last administration's growth was? It wasn't very good, was it, Mr. RYAN?

The point of the matter is that you have two different visions of America's future, two different cities on that hill. You continue to use the payroll tax, which pays for Medicare A, and you continue to say all those under 55 years of age are going to go to a new plan, yet you continue the payroll tax. This is somewhat like—this is exactly like, not somewhat like—what you did with the doughnut hole. You forced seniors to pay premiums and they got no benefits. You know it, I know it, and the proof is what it is.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. The gentleman is reminded to address his remarks to the Chair.

The gentleman from New Jersey is recognized.

Mr. PASCRELL. Sorry, Mr. Chairman.

This misguided budget is a doubling down on the same failed policies that we know don't work and brought us to the brink.

□ 1830

What our ranking member did not point out is that there was a loss of 653,000 jobs in those 8 years where there was in the previous 8 years a gain of 20.8 million jobs.

You want to go back and use the same policies? You tried it in privatization. We're going to have it over and over again. You don't know what to bring up so you go back to the old playbook, which didn't work. You're saying that it's going to happen. It's going to work. One of these years we're going to try it.

The American people rejected privatization of Social Security, and they reject this. Every poll. Even your polls show that the American people do not want to do away with Medicare as it is.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. The gentleman is reminded to address his remarks to the Chair and not to other Members in the second person.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to a member of the Budget Committee, the gentleman from Texas (Mr. FLORES).

Mr. FLORES. Mr. Chairman, coming from the private sector to Congress, I know that America can and will become prosperous again and millions of new private sector jobs will be created if we just go back to our founding free market principles.

We must also end big government and wasteful spending. We're faced with two very distinct and different directions in which we can lead our country. It is clear that we cannot continue on the misguided and irresponsible path endorsed by the other side of the aisle of higher taxes, reckless spending, and bigger government, explosive debt and deficits, and unacceptably high unemployment.

They've had their chance to make things right, and it has not worked. Over the past 4 years that the Democrats had control of Congress, they lost 7 million jobs and raised our Federal debt by over $5 trillion. Now, it's our turn, and we will do better.

That's why this Republican budget plan comes at just the right time, because we can no longer afford to accept what has unfortunately become status quo. Rather than locking in reckless spending sprees that have cost our government, our budget plan cuts $6.2 trillion in wasteful Washington spending over the next decade. The Democrats' plan, which if left unchecked, will raise the deficit by over $9 trillion over the next 10 years.

We will put the Federal budget on a path to balance.

The President's own fiscal commission said that we need to lower tax rates and broaden the tax base in order to stabilize our Nation's finances and help grow our economy. The Democrats' plan ignores these recommendations and would impose job-crushing tax increases on our economy.

Nearly 1 million new private sector jobs will be created under our plan to lower taxes and expand the tax base, and our total employment will grow by an annual average of 1.2 million jobs per year over the next decade.

We have a clear choice, Mr. Chairman. We can take Obama's odyssey to American oblivion, or we can adopt a plan that restores America's promise and prosperity and security for our children and grandchildren.

The Acting CHAIR. The Committee will rise informally.

The Speaker pro tempore (Mr. CHAFFETZ) assumed the chair.

FURTHER MESSAGE FROM THE SENATE

A further message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has passed without amendment a bill of the House of the following title:

H.R. 1473. An act making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, and for other purposes.

The message also announced that pursuant to Public Law 94–118, section 4(a)(3), the Chair, on behalf of the President pro tempore, appoints the Senator from Alaska (Ms. MURKOWSKI) to the Japan-United States Friendship Commission.

The message also announced that pursuant to section 1295(b) of title 46, United States Code, as amended by Public Law 101–595, the Chair, on behalf of the Vice President, and upon the recommendation of the Chairman of the Committee on Commerce, Science and Transportation, appoints the following Senators to the Board of Visitors of the United States Merchant Marine Academy:

The Senator from Georgia (Mr. ISAKSON), from the Committee on Commerce, Science and Transportation.

The Senator from Arkansas (Mr. BOOZMAN), At Large.

The message also announced that pursuant to the provisions of S. Res. 105 (adopted April 13, 1989), as amended by S. Res. 149 (adopted October 5, 1993), as amended by Public Law 105–275 (adopted October 21, 1998), further amended by S. Res. 75 (adopted March 25, 1999), amended by S. Res. 383 (adopted October 27, 2000), and amended by S. Res. 355 (adopted November 13, 2002), and further amended by S. Res. 480 (adopted November 21, 2004), the Chair announces, on behalf of the Republican Leader, the appointment of the following Senators as members of the Senate National Security Working Group for the 112th Congress:

The Senator from Arizona (Mr. KYL), Administrative Co-Chairman.

The Senator from Kentucky (Mr. MCCONNELL), Co-Chairman.

The Senator from Mississippi (Mr. COCHRAN), Co-Chairman.

The Senator from South Carolina (Mr. GRAHAM), Co-Chairman.

The Senator from Indiana (Mr. LUGAR).

The Senator from Alabama (Mr. SESSIONS).

The Senator from Tennessee (Mr. CORKER).

The Senator from Arizona (Mr. MCCAIN).

The Senator from Idaho (Mr. RISCH).

The Senator from Missouri (Mr. BLUNT).

The message also announced that pursuant to section 4355(a) of title 10, United States Code, the Chair, on behalf of the Vice President, appoints the Senator from Texas (Mrs. HUTCHISON), from the Committee on Appropriations, and the Senator from North Carolina (Mr. BURR), At Large, to the Board of Visitors of the United States Military Academy.

The message also announced that pursuant to section 6968(a) of title 10, United States Code, the Chair, on behalf of the Vice President, appoints the following Senators to the Board of Visitors of the United States Naval Academy:

The Senator from Illinois (Mr. KIRK), from the Committee on Appropriations.

The Senator from Arizona (Mr. MCCAIN), from the Committee on Armed Services.

The message also announced that pursuant to Public Law 93–642, the Chair, on behalf of the Vice President, appoints the following Senator to be a member of the Board of Trustees of the Harry S Truman Scholarship Foundation:

The Honorable ROY BLUNT of Missouri vice the Honorable Kit Bond of Missouri.

The message also announced that pursuant to Public Law 70–770, the Chair, on behalf of the Vice President, appoints the Senator from Mississippi (Mr. COCHRAN) to the Migratory Bird Conservation Commission.

The message also announced that pursuant to Public Law 96–388, as amended by Public Law 97–84, the Chair, on behalf of the President pro tempore, appoints the following Senator to the United States Holocaust Memorial Council for the One Hundred Twelfth Congress:

The Senator from Utah (Mr. HATCH).

The message also announced that pursuant to provisions of Public Law 106–79, the Chair, on behalf of the President pro tempore, appoints the following Senator to the Dwight D. Eisenhower Memorial Commission:

The Senator from Kansas (Mr. MORAN).

The SPEAKER pro tempore. The Committee will resume its sitting.

CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2012

The Committee resumed its sitting.

The Acting CHAIR. The Chair recognizes the gentleman from Maryland.

Mr. VAN HOLLEN. I yield 2 minutes to the distinguished ranking member of the Education and Workforce Committee, the gentleman from California (Mr. MILLER).

(Mr. GEORGE MILLER of California asked and was given permission to revise and extend his remarks.)

Mr. GEORGE MILLER of California. Mr. Chairman, we've been hearing for days about how the House Republican budget is courageous and bold. But this budget is neither courageous nor bold. It's not courageous to throw poor kids out of their Head Start classrooms but continue subsidies to Big Oil and their record profits.

It's not bold to slash Pell Grant scholarships to millions of students and to keep the incentives for companies that ship jobs overseas.

It's not bold nor smart to slash funds for new clean energy research and make future generations of Americans more dependent, not less, on dictators and dangerous fossil fuels.

And it's neither bold nor courageous to end Medicare for seniors, shifting thousands of dollars of costs onto the backs of the elderly to pay for tax cuts for millionaires and billionaires.

For 45 years, seniors have relied on Medicare to provide health care during their retirement years. The Republican budget would end that guarantee. Seniors would no longer be guaranteed the coverage for basic health services like diabetes and cancer screenings. Instead, seniors would have to scrounge to find higher cost private health policies. What insurance company is going to write an individual policy for a 70-year-old that is even remotely affordable?

Because of these high costs, more and more seniors will go into debt under this plan. They will be forced to sell their homes and rely on their children to pay for basic medical costs. That is not a dignified retirement. That is not America.

Yes, we need to ensure that Medicare is sustainable for seniors and sustainable for the taxpayers. But one thing is certain—the Republican budget does not save Medicare; it ends it.

Mr. Chairman, this budget is not bold, and it's not courageous. It might be easy for the Republicans to make cuts on the backs of those who can't afford high-priced lobbyists. But it is not easy for the middle class working people and seniors on whose back the burden is being placed.

The Democratic budget is a fair and balanced approach, and it asks all Americans to share in the burdens in reducing the deficit and the debt and strengthening our economy.

I urge my colleagues to vote down the Republican budget to end Medicare and to vote for the Democratic budget that is fair and balanced.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the senior Member from Indiana (Mr. PENCE).

(Mr. PENCE asked and was given permission to revise and extend his remarks.)

Mr. PENCE. I thank the gentleman for yielding.

This country's in a lot of trouble. We're facing a fiscal crisis of unprecedented proportions. They say the first step toward ending an addiction is recognizing you're an addict. After spending 10 years here in Washington, D.C., after witnessing runaway Federal spending by both political parties, one thing is clear: Washington, D.C., is addicted to spending.

It's high time for Congress to own up to its spending addiction and institute long-term, sustainable budget and spending reforms that will permanently limit the size and scope of the Federal Government.

Happily, the budget resolution today offered by the distinguished Chairman PAUL RYAN of the committee puts our Nation back on a pathway toward fiscal solvency and prosperity. This Republican budget represents a bold step toward fiscal responsibility and limited government. It cuts $6.2 trillion in spending over the next 10 years, reins in government spending below 20 percent, includes tax reforms to increase competitiveness for American companies, and ensures that Medicare will be solvent for future retirees.

It even ends the one-size-fits-all approach to Medicaid, giving States more flexibility.

It also stands in stark contrast to the President's budget, which includes a $1.6 trillion tax increase on families, small businesses, and family farms, and adds $13 trillion to the national debt. This budget resolution renews our commitment to finally forcing Congress to live within our means. We must succeed in this cause. Because if we fail, the American Dream will fail.

We will burden our children and our grandchildren with a mountain range of debt, robbing opportunities and prosperity, and leaving, for the first time in American history, the next American generation worse off than the generation that went before.

This we must not do. I urge my colleagues to offer strong support for the Ryan budget resolution. Let's put our Nation on a pathway toward fiscal solvency and prosperity.

Mr. VAN HOLLEN. Mr. Chairman, we do need to reduce the deficit in a predictable, responsible way. That will require spending cuts, and it will also require shared sacrifice. The reason that the fiscal commission said that the Republican plan was unbalanced is they try and do it all one way. History has shown that doesn't work.

I yield 2½ minutes to the gentleman from Ohio (Mr. RYAN).

□ 1840

Mr. RYAN of Ohio. Mr. Chairman, we've heard this afternoon our debt is unsustainable, it's a warning, it's a fiscal crisis of unprecedented proportions. But heaven forbid to try to solve those great problems that our country has right now, the problem that we have, we ask the wealthiest in the country to just pay a few more thousand dollars, those people who have seen tremendous gains. You know, cry me a river.

Here we have David Stockman, former head of the OMB under Ronald Reagan, talking about the budget being presented by the Republicans: ''It's simply unrealistic to say that raising revenue isn't part of the solution. It's a measure of how far off the deep end Republicans have gone with this religious catechism about taxes.''

We're asking for shared sacrifice. You're getting into Medicaid, you're getting into Medicare, you're getting into Pell Grants, but the wealthiest are going to walk away not sacrificing one thing. Three wars we're in, and we can't ask the wealthiest to pay a few bucks.

This ends Medicare, Mr. Chairman. Let's be honest. It ends Medicare. These people 55 and under, whose wages have been stagnant for 30 years, now when they get into the Medicare program, they're going to have a voucher or premium support that increases by 2.2 percent indexed to CPI, or 2.5 percent, and the GDP in health care will grow between 4 and 5 percent. So every single year that this person that's 55 is in Medicare, they will lose 2 to 3 percent ground in being able to pay for their own health care.

We need to go back and remember why Medicare started in the first place. It is not a good business proposition to provide health insurance to older people in the United States of America. You can't make money off it. So we're going to give these folks a voucher that doesn't keep up with health care inflation and send them into the private market and somehow think we're doing them a favor? No shared sacrifice.

Again, we're putting the burden on the middle class person who has paid into Medicare, depends on Medicare, has been getting wages that have been stagnant, probably doesn't have health insurance between 55 and 65. So you want to talk about driving up Medicare costs, now we add someone who doesn't have health insurance into a market that they won't be able to afford when they do turn 65.

This budget is wrong. We need balance. We need shared sacrifice. And we need investments in the United States. This budget comes up short, and David Stockman says the same thing.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 1 minute to simply say there is a new definition, and I want to explain it. Here is what a tax cut now means. If you're not in favor of the forthcoming tax increases, you're cutting taxes. That's the new math around here. What we don't do is we don't sign up for all these new tax increases that are being proposed by the President in his budget that are coming in the future. And so by not supporting new taxes, we're all of a sudden for tax cuts.

Mr. RYAN of Ohio. Will the gentleman yield?

Mr. RYAN of Wisconsin. No, I will not yield.

What we are saying is keep the revenues where they are and fix the Tax Code, clear out the loopholes and the deductions so we can lower the rates to create jobs and economic growth.

With that, Mr. Chairman, I yield 2 minutes to a member of the Budget Committee, the gentleman from Oklahoma (Mr. LANKFORD).

Mr. LANKFORD. Mr. Chairman, I would like to also continue on this same conversation. The central question that we have to answer is do we have a debt and deficit problem in America or do we have a spending problem in America? Words like balanced approach, investment in America's future, and the often quoted ''shared sacrifice'' confuse the real issue. The focus of the House of Representatives is not about just reducing the deficit; it is about reducing spending so we can pay off the debt that we have.

Raising taxes on Americans now would be like the man who ran up a huge credit card bill and then went to his boss to tell him that he needed a raise to pay off his bills. His boss would most likely respond, You don't need a raise. You need to get your family on a budget and cut your spending to what is essential.

For the past 50 years, the Federal Government has taxed Americans at around 18.5 percent of GDP, no matter what the rate is. The current proposal from the President suggests a tax requirement closer to 22 percent of GDP. To close the deficit gap, all income taxes will have to double or corporate taxes will have to increase five fold. A tax increase on the wealthy may make some people feel better that they're sticking it to the man; but, historically, tax increases only lead to more government spending. And, ultimately, it will not solve the debt crisis.

Washington likes handing out other people's money for noble causes. Here is a novel idea: How about dealing with our existential problem? We spend too much. In 2009, 140,000 new Federal employees were hired. During the previous 10 years there was no change in employment in the Federal Government. The number of Federal contractors has increased 25 percent since 2006. In 4 years, discretionary spending has increased 25 percent. In that same 4 years, Medicare and Medicaid spending has increased by 50 percent. None of that includes the special TARP or stimulus funding, which would make the cost to the taxpayers even higher.

We cannot spend our way to prosperity. We have to get back to getting a handle on our debt and deficit and our basic spending. The reason the House budget has gained so much traction is that it does what Americans know in their gut must be done. It cuts spending.

Finally, someone is saying what many have felt. We cannot solve the budget problems quickly without significant spending changes.

Mr. VAN HOLLEN. Mr. Chairman, this is simple mathematics. When you went from the Clinton rates for the folks at the very top and you dropped the tax rate, we ended up losing a lot of jobs because of the economy. You also lose revenue. And when you do that, you shift the burden onto other people, whether you do it by cutting Medicaid, whether you do it by terminating the Medicare guarantee, or whether you do it by cutting education. That's just mathematics.

I yield 30 seconds to the gentleman from Ohio (Mr. RYAN).

Mr. RYAN of Ohio. Mr. Chairman, I would just like to ask a question of the chairman. Where in this budget is the sacrifice that is being made by the top 1 percent of the people? On the wealthiest 1 percent.

Mr. RYAN of Wisconsin. Will the gentleman yield?

Mr. RYAN of Ohio. I yield to the gentleman from Wisconsin.

Mr. RYAN of Wisconsin. First of all, we think we should go after corporate welfare. Let's stop subsidizing wealthy individuals and corporations with taxpayer dollars.

Mr. RYAN of Ohio. Reclaiming my time, you are lowering the corporate income tax. What sacrifice is being made?

Mr. RYAN of Wisconsin. Like the fiscal commission, we believe that it's better for economic growth to broaden the tax base and lower the tax rate.

If I can continue on the gentleman's time.

The Acting CHAIR. The time of the gentleman has expired.

Mr. VAN HOLLEN. I yield myself such time as I may consume.

Mr. Chairman, there are two parts to the Tax Code. There is the corporate Tax Code. We need to clean up the corporate Tax Code. We agree with the fiscal commission. You've got to get out a lot of clutter, a lot of the tax breaks. In fact, we don't think you need a study to decide to get rid of the tax breaks that reward corporations for shipping American jobs overseas. We don't think you need to study the question about whether we get rid of big taxpayer subsidies for the oil companies.

So, yes, we should take a look at the corporate Tax Code. But in the other part of the Tax Code, the individual Tax Code, what the Republican plan does is actually give the folks at the very top another 30 percent break. We have been talking about going back to the Clinton rates. The Republican plan gives you another 30 percent break. You know what? They say we are going to do this in a revenue-neutral way. Well, the result is middle income taxpayers are going to pay more to give the folks at the top another big break.

With that, I yield 2½ minutes to somebody who knows a lot about this subject, the ranking member of the Ways and Means Committee, the gentleman from Michigan (Mr. LEVIN).

(Mr. LEVIN asked and was given permission to revise and extend his remarks.)

Mr. LEVIN. We do not need to tear up what America has built in the past in order to build for the future. We should not confront present and future problems, including the Nation's deficit, as we must, by repealing America's past. The Republican budget tries to tear up and repeal 75 years of American experience, and the supreme example is Medicare. It tears it up. It repeals it. And contrary to what we've heard today, they would not save Medicare, but end it. They would not change it, but they would end it. Our Nation would be a different Nation without it. Millions today would be less healthy without Medicare.

□ 1850

One of my constituents wrote to me recently to say Medicare saved her life and her life savings when she was diagnosed with breast cancer, and there are tens of thousands of people like her in this country.

What the Republicans want to do is to give seniors a voucher for health care, an underfunded voucher, for 10 years. It would double health care costs for seniors, a voucher that in 20 years would pay only a third of senior health care costs.

There is no place to hide for anyone who votes for the Republican budget.

And what happens with the savings? Tax cuts for the wealthy. The average income of the bottom 90 percent of the families in America have fallen in the last decade.

The opposite is true for the wealthy. The top 1 percent have seen their incomes climb by more than a quarter of a million dollars.

In my district alone, extending the Bush tax cuts for the wealthiest Americans means giving 182 households that earn more than $1 million annual tax cuts averaging $103,000. At the same time, future seniors would be paying $6,000 more in health costs.

If what we have built in our Nation needs to be adjusted, fix it, don't destroy it. We must address the deficit without deepening deficits in the availability for our citizens of jobs, health care, and education.

The choice today could not be more decisive. A vote against the Republican budget is a vote for basic American values. Vote ''no.''

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to a member of the Budget and Ways and Means Committees, the gentlelady from Tennessee (Mrs. BLACK).

Mrs. BLACK. Mr. Chairman, I stand here today as a proud member of the Budget Committee supporting our Path to Prosperity budget that was introduced on time and takes real steps to get the country's finances back on track focusing on real economic growth and job creation.

Lately we have heard a lot of demagogy and scare tactics about this budget. First it came from the other side of the aisle, and yesterday we heard those same remarks by the President.

But my constituents don't want to hear the same old partisan attacks and rhetoric. They want Washington to tell them the truth. The truth is this about our budget:

Number one, it's a jobs budget, and in the first year this budget creates 1 million new jobs.

Number 2, it cuts $6.2 trillion in government spending.

Number 3, it eliminates duplicative government programs.

Number 4, it preserves Medicare for the next generation.

Number 5, it puts caps on spending for the coming year and the next decade.

And, number 6, it takes us on a path to pay down our debt.

House Republicans are working to get this country back on track on a sound financial footing, and I am proud to be here today as part of the Republican majority that will lead where the President has failed and restore America's future growth and prosperity.

Mr. VAN HOLLEN. Mr. Chairman, I yield 2 minutes to the distinguished ranking member of the Small Business Committee, the gentlewoman from New York (Ms. VELÁZQUEZ).

(Ms. VELÁZQUEZ asked and was given permission to revise and extend her remarks.)

Ms. VELÁZQUEZ. I rise in strong opposition to this ill-conceived, mean-spirited Republican budget.

Mr. Chairman, all of us recognize the need to reduce the deficit, but it must be done responsibly. This budget fails that test, cutting services we need in favor of tax breaks for the wealthy.

For New Yorkers, these cuts will be particularly unfair. Ten billion dollars will be taken from low-income housing programs. Rental assistance will be reduced, making it harder for New Yorkers to find affordable apartments. This at a time when we are facing the worst housing crisis ever.

Housing is just one area where this budget fails our country. With Medicaid spending reduced by $735 billion, millions of Americans will find it harder to afford health care. Instead of tackling rising health care costs, this budget ends Medicare as we know it. Medicare is a promise to America's seniors. Whether we honor that promise defines us as a Nation.

Just as seniors will face tough times, this budget will visit hardship on young people. Head Start, child care and nutritional assistance for low-income families will be squeezed, and 26,000 college students from New York's 12th Congressional District will see tuition assistance reduced, putting college education out of reach.

Beyond slashing social services, this budget undermines our economic recovery. Small business lending would drop by $3 billion, depriving 5,000 firms of capital they need to create jobs. Is this the way we are going to create jobs in this country? Twelve thousand entrepreneurs and 9,000 veterans, those coming back from Afghanistan and Iraq, will lose business counseling services to help them launch or expand their businesses.

Mr. Chairman, we need a serious, thoughtful discussion about how to cut spending. Vote ''no'' against this bill.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 1 minute to a member of the Ways and Means Committee and former member of the Budget Committee, the gentleman from California (Mr. NUNES).

Mr. NUNES. Mr. Chairman, this budget stops in its tracks the efforts of Democrat leaders to trap the American people on a high-speed train trip with the false promise of green jobs. This is a trip, a one-way ticket to bankruptcy.

However, if you support the Ryan budget, you will help this government recover from a debilitating and life-threatening illness that started when our leaders threw out the American way of life in favor of a left-wing agenda. Let's be clear. We have two choices: we can look forward and pave a path to economic prosperity, or we can become the world's most heavily taxed Nation in a dangerous, dangerous zone of bankruptcy.

Mr. Chairman, throughout modern history, socialists have been searching for the last exit to Utopia, of Big Government collectivism. Unfortunately, for the socialist utopians in this town that support President Obama's spending plan, this last exit to Utopia will remain a mystery, a relic of 1960s radicals.

Mr. VAN HOLLEN. Mr. Chairman, Republicans originally fought the creation of Medicare on the grounds that it was socialism. Apparently, they haven't changed their minds about that as they try and terminate it and put seniors into the private insurance market.

I yield 2 minutes to the gentlelady from Wisconsin (Ms. MOORE).

Ms. MOORE. Mr. Chair, health care costs are a crisis in every American family. Every family is one surgery, one heart attack, one cancer diagnosis, one aging spouse away from financial ruin. But health care costs are also a crisis for business, both small and large.

General Motors pays more for health care than for steel. That is why the Affordable Care Act is needed, to bend the health care cost curve downward for all American health care consumers.

Americans, including those who are consumers of Medicare and Medicaid, simply cannot afford the insurance and drug companies' runaway profits.

These companies are reaping record-breaking profits. In 2009, while we were debating the bill, the Nation's five largest for-profit health insurance companies saw a combined profit of $12.2 billion, and that's just for five companies.

Their executives did well, too. The top execs at these companies pulled in almost $200 million in compensation. At the same time, there were double-digit premium increases.

So no matter where you get your health care, through Medicare, Medicaid, your employers's policy, wherever you get it, you can't afford that kind of rate increase year after year.

These rates are going up faster than any other part of the family budget. For many people, these costs are crowding out housing and other basic needs.

In 2009, the top 10 pharmaceutical companies made over $60 billion in profits, and the profit margin in this industry is out of control. In 2007, profits ranged as high as 36 percent.

The health care reform law also curbed some of these outrageous profits of the insurance and pharmaceutical industries. Yes, Medicare and Medicaid are large portions of our Federal budget, but we can only rein in their costs if we fully implement the Affordable Care Act and tackle outrageous profiteering in health care—something the Republican budget refuses to do.

□ 1900

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to a member of the Budget Committee, the gentleman from Indiana (Mr. YOUNG).

Mr. YOUNG of Indiana. Mr. Chairman, the good people of Indiana want jobs. And we know how to create them. In Indiana, under Governor Mitch Daniels, we've seen a government that spends less and taxes modestly. We've seen that that leads to job growth. That's why Indiana, during these tough economic times, is a national leader in private sector job growth.

The Budget Committee crafted a budget for our Federal Government that, like Indiana, spends less and keeps a lid on taxes. The result is a plan that will help create 2½ million private sector jobs by the end of this decade.

Recent economic history isn't good to the big spenders. It shows that borrowing and spending trillions of dollars that we don't have doesn't create jobs. And jobs won't be created if we go along with the President's plan and, seemingly, the plan of sorts from the other side of the aisle to increase taxes.

It's no great secret that the job creators in this country aren't hiring because unchecked spending, of course, leads to fears. It leads to fears that we're going to have to raise taxes in the future. It leads to fears of future inflation. And we know, of course, that it leads to fears that interest rates are going to go up.

By calling for a measure of spending discipline as we do, we replace that fear with hope—hope that we can restore conditions where private sector job creators can go out and put Americans back to work. That's what the people of southern Indiana want.

Now, I mentioned Indiana a minute ago and the success we've had in creating those private sector jobs. We didn't do it all through our policies

with respect to spending. Instead, we also looked at tax policy. We understood that it just didn't make sense to jack up taxes during a down economy. Instead, we kept them steady and we made our tax code more efficient, just as some of our neighboring States were doing the opposite. As a result, many businesses chose to move back to Indiana or to move to Indiana for the first time.

We see the reverse trend nationally. Unfortunately, many businesses are leaving this great country or just not getting off the ground because of our job-destroying Tax Code and because of our punitive corporate tax rates.

Mr. Chairman, we improve upon those previous policies. We learn from the errors of the past. I urge my colleagues to help us create jobs by voting ''yes'' on the Republican budget.

Mr. VAN HOLLEN. Mr. Chairman, I yield 2 minutes to the gentleman from Texas (Mr. GONZALEZ).

(Mr. GONZALEZ asked and was given permission to revise and extend his remarks.)

Mr. GONZALEZ. Mr. Chairman, at the heart of the Republicans' budget proposal is the thought, ''the number of makers diminishes and the number of takers grows.'' As a result, our government, economy and country will collapse. Forget about the impoverished view that this offers us, a vision of an America that can't be bothered or is unable to care for anyone who needs help.

So let's have a discussion about who truly would be the ''taker'' and who truly would be the ''maker.''

People who manipulate an unfair tax system at the expense of millions of others, makers, when you look at the Republican proposal. Corporations that don't invest in their own country, paying a lower tax rate on their profits than their employees would pay on a $40,000 salary, those are makers under the Republican plan. Wall Street firms that ruined our financial system, then asked working families to bail them out while they pay billions in bonuses, those are also makers under the Republican plan.

Yes, that's who the Republicans have identified as the makers, and it rewards them quite handsomely in their proposal. Their budget would perpetuate a taxation and employment system that has resulted in stagnant wages for workers and allows 5 percent of the wealthiest among us to enjoy 66 percent of all the wealth while 80 percent of Americans share only less than 13 percent.

Now, who would be the takers under this Republican plan? The 9.4 million students working towards a college degree so they can get a good job and contribute to this economy, whose Pell Grants would be slashed; 218,000 low-income kids and families who will be removed from Head Start, depriving them of a decent education, again, takers under the Republican plan; 2,400 schools that serve 1 million low-income students across the country that would have to shut their doors, takers under the Republican plan; countless seniors who would no longer be able to remain in nursing homes because of cuts in Medicaid funding. Those are the takers.

You decide, America, who are the takers and who are the makers? This is not a Pathway to Prosperity. It's a dead end.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Indiana, a member of the Budget Committee, Mr. ROKITA.

Mr. ROKITA. Mr. Chairman, where the President has failed to lead and be honest with us, we've had the courage to tell the truth about America's debt crisis. And we've proposed honest solutions required to fix it.

As a new Member of Congress, I have already learned that the rules in Washington are stacked in favor of people who want to spend more money. In contrast, in Indiana, we have a balanced budget, we have a AAA bond rating, and we have not raised taxes because we know taxes are not the problem.

The problem is, Mr. Chair, our colleagues who continue to push for more government spending knowing that our debt is over $14 trillion and growing. And they haven't offered one alternative except to confiscate more of the people's money.

They have tried to scare a lot of people. But this time, Mr. Chairman, I don't think the people are buying it. As you can see from this chart, our reliance on foreign countries to supply our reckless spending is growing dramatically over the past decades to where nearly half of the debt we owe as a country we owe to foreign countries, China being the best.

In fact, Mr. Chairman, China can buy three Joint Strike Fighters every week for the money we pay them in interest for the money they loan us and still have $50 million left over. Eventually, they and other countries are going to stop loaning us money or make us pay more to borrow. And as Treasury rates increase, rates on mortgages, credit cards and car loans are soon going to follow. We are no longer kicking the can down the road; we're kicking it off a cliff.

This budget addresses the real drivers of our debt: Medicare, Medicaid, and Social Security. In 1970, these kinds of entitlements consumed 31 percent of our budget. Today they are nearly 60 percent, and they continue to grow. In just a few decades when our kids are raising their children, literally every single dollar this government takes in revenue will go towards paying these entitlement programs. This budget makes the changes necessary to save these programs so that they're around for my kids and your grandchildren.

I know a little about government agencies—I used to run one. One that had no more employees in 2010 than it did in the early '80s. But, since the President took office, he has added 155,000 new bureaucrats. Spending on government agencies has increased 84 percent in just the last few years.

This budget stops us from spending money we do not have. It brings spending back to pre-stimulus, pre-bailout levels and shrinks the federal bureaucrats by 10 percent over the next three years. It also takes the ideas of the Fiscal Commission and the Government Accountability Office and eliminates over $100 billion in wasteful spending on dozens of duplicative federal programs. Money we don't take from the American people, they will spend much wiser and create jobs along the way. Americans are finally getting an honest and fact-based budget that has eluded them for years.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Members will refrain from engaging in personalities toward the President.

Mr. VAN HOLLEN. Mr. Chairman, one of the other things that China is doing is they're investing an awful lot of their resources in clean energy like solar power and like wind power. The United States should be winning that battle and not our international competitors. Someone who knows a whole lot about that is the next speaker, the ranking member on Natural Resources, Mr. MARKEY of Massachusetts. I yield the gentleman 2 minutes.

Mr. MARKEY. I thank the gentleman.

The Republicans are allowing nostalgia for a time before Medicare and Medicaid were ever on the books to replace the idealism that we need to have in order to deal with the real challenges of the future. But for the poor, the sick, the elderly and the disabled, the past is just a memory and the future is their hard reality. And that's what this budget will be for those people, a hard reality.

It takes no courage for the Republicans to stand here on the House floor and to call for an evisceration of the Medicare budget, of the Medicaid budget and all the other programs for the poor, the sick, the elderly and the disabled in our country that they opposed ever having been put on the books in the first place. If you kicked this budget in the heart, you'd break your toe. GOP used to stand for ''Grand Old Party.'' Now it stands for ''Get Old People.'' And that's what this budget is. It is a targeting of the poor, the sick and the elderly in our country.

Do they ask sacrifice from the defense budget? Do they ask for the defense budget to go down? No, it just keeps going up year after year. Do they ask for sacrifice from the wealthy? No, they say tax breaks for the wealthy year after year after year. Who do they target? They target Grandma. They don't even have the ability—the courage—to stand up and say to the oil companies, who at $100 a barrel are making $100 billion in profits a year, ''We're going to take away your tax breaks.'' No. Tax breaks for oil companies stay on the books.

What do they do? They say to the clean energy industry, We're cutting

your tax breaks by 70 percent, but we're leaving the tax breaks for the oil industry on the books and we are slashing the programs for wind, for solar and for all those energy technologies that are now the future.

The Acting CHAIR. The time of the gentleman has expired.

Mr. VAN HOLLEN. I yield the gentleman an additional 30 seconds.

□ 1910

Mr. MARKEY. I thank the gentleman.

That's your formula. It's a formula of the past. It's a formula for the nostalgic amongst the Republicans who wish we could go back to a time before Medicare and Medicaid and wind and solar and new energy technologies and their taking us on to a future.

Let me tell you something.

Fifty percent of the people who are in nursing homes in our country have Alzheimer's, and they are on Medicaid. That's how we pay for the bills. You people slash the budget for those people with Alzheimer's who are in nursing homes. That's 50 percent. That's grandma, ladies and gentlemen. You don't touch the wealthy. You don't touch the Defense Department. This budget is so cruel that, if you kicked it in the heart, you'd break your toe.

Mr. RYAN of Wisconsin. I yield myself 1 minute to respond to the warm, even-handed comments of my friend from Massachusetts.

Do you know what's really cruel, Mr. Chairman? It's if we give our children a lower living standard.

Do you know what's really cruel? It's if we give our children a debt-ridden Nation. It's if we give our children a debt that they can't afford.

Do you know what's really cruel? It's if we don't save Medicare. It's if we don't keep the promises to our current seniors, like we do in this budget, so that all of these programs they've organized their lives around, which are going bankrupt, are preserved. Medicare goes bankrupt in 9 years. We're preserving it for current seniors.

With that, Mr. Chairman, I yield 2 minutes to the gentleman from New Hampshire (Mr. GUINTA).

Mr. GUINTA. Mr. Chairman, I rise today to speak in favor of The Path to Prosperity.

Our budget offers more than a spending blueprint for the next fiscal year and beyond. It is truly a job creator. The Path to Prosperity provides a framework for creating nearly 1 million new private sector jobs next year alone. How does it do this?

It doesn't involve advanced economic theory—just basic math. When you lower taxes, you put more money into people's hands. They spend it and it circulates, making businesses prosper and allowing them to hire new employees. It's just that simple. When I think of the opportunities that The Path to Prosperity will create, I think of countless small business owners who will benefit from this plan in my State. Small businesses are the backbone of New Hampshire's economy, much like they are across our great Nation.

I think of people like Craig Leonard, who owns Bonsai Craftsmen in Londonderry, New Hampshire. He remodels houses and kitchens. With the ongoing fiscal uncertainty, people are keeping their wallets closed because nobody knows what the next fiscal year will bring. Craig recently had to lay off three employees, and barely has enough work to keep himself busy. Without the confidence that can come from passing The Path to Prosperity, there is no telling when his business will return to prosperity, itself, and when he can dare to hire again.

I think of people like Charlie and Laura Morgan. They own a storage company in Manchester, New Hampshire. They've lost tenants in this down economy, causing them to reduce the rents they charge. This is simply keeping them from hiring additional employees and creating greater opportunities for our fellow Granite Staters.

The examples of hard-pressed small business owners I've cited are located not just in New Hampshire but all over the country. The Path to Prosperity provides confidence by charting a responsible course so that creditors can loan with confidence and so that people can borrow money knowing they'll be able to repay it.

Mr. VAN HOLLEN. Mr. Chairman, I yield 1 minute to the gentleman from Michigan (Mr. CLARKE).

Mr. CLARKE of Michigan. Mr. Chairman, I want to talk on behalf of the people I represent in Michigan.

Many of them have lost their jobs, and when they become seniors, they're likely going to have to survive on fixed incomes. If they get Medicare on vouchers, which won't fully cover the costs of their health services, they're going to have to pay for that out-of-pocket. Do you know what? Folks on fixed incomes, they don't have the money to pay for these services out-of-pocket. They will likely end up bankrupt.

The other issue is that a lot of the folks I represent have got multiple health conditions: heart disease, diabetes, arthritis. They all go to different doctors, and very few of the providers actually talk to each other. They also don't coordinate with hospitals or with other long-term health care providers. All of these services by the Medicare providers will be coordinated under our new Affordable Care Act. That's why we need those provisions in place—to better coordinate health care.

I urge my colleagues to table putting Medicare on the voucher. Let's keep our Affordable Care Act. That's the best way our seniors on fixed incomes can get the best health care possible.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Georgia (Mr. GINGREY).

Mr. GINGREY of Georgia. I thank the chairman of the Budget Committee for yielding to me.

Mr. Chairman, I was listening to my colleagues on the other side of the aisle. The ranking member of the Budget Committee, our friend from Maryland, talked about the fact that, according to his poster, the Bush tax cuts in the years 2000 to 2006 caused the loss of an untold number of jobs. I have my own statistics which basically show, during that period of time and despite those tax cuts, we had an increased revenue of something like $700 billion.

Now, I'll check my facts with his facts later on, Mr. Chairman, but how in the world could you produce $700 billion of additional revenue when you lose jobs? It's not possible. The fact is that those tax cuts created a broader base, albeit at a lower rate, and they generated more revenue. That's exactly what the chairman of the Budget Committee is talking about in his Path to Prosperity.

Another one of our colleagues on the other side of the aisle stood up and said, according to this budget plan—at least, thank God, we have one. The Democrats couldn't produce one last year because of their fear of the political consequences—Medicare as we know it, by the year 2022, will disappear. How is that possible when, by that time, there will probably be 75 million people on Medicare as we know it before we will go to this premium support plan that Chairman RYAN has proposed?

Our friends on the other side keep saying, You keep giving tax breaks to the rich. Well, according to this plan, the people who are in the top 2 percent of income will only get 30 percent of the premium support, an average of $8,000 a year. The people in the top 8 percent would get 50 percent. So you keep wanting to beat on the producers in society that create the jobs.

Support this plan. It's a great budget.

Mr. VAN HOLLEN. Mr. Chairman, I would remind my friend Mr. GINGREY that, when Mr. Bush became President, he inherited a $5.6 trillion surplus. By the end of the 8 years, it was gone.

Now, with respect to tax rates and jobs, what this chart shows is that, when the highest income earners in the country were paying the lower rates during the Bush administration, you actually lost jobs versus during the Clinton administration when, at the higher rates, 20 million jobs were created.

The point is not that higher tax rates increase jobs. The point is that small differences in the top tax rates are not the main drivers of our economy. They are not the main engines of job growth. The figures tell the story. Trying to tell another story is just anti-historical. The reality is that the numbers show, during the Clinton administration, we had very strong growth. During the Bush years, we ended up losing over 600,000 jobs. So let's at least get our history straight.

With that, I yield 1½ minutes to the gentlelady from California (Mrs. CAPPS).

□ 1920

Mrs. CAPPS. I thank the gentleman for yielding.

Mr. Chairman, I rise in strong opposition to the Republicans' misguided budget and attack on Medicare. The issue is not whether we reduce the deficit, but how we do it. Simply put, the Republican plan uses our deficit as an excuse to end Medicare as we know it.

Medicare is a cornerstone of the American Dream, a promise that health care will always be there for our seniors and permanently disabled citizens. But the Republican budget takes away that guarantee, and what does it give our future seniors in return? No guarantee of coverage; a real chance of being denied insurance due to preexisting conditions; and around $6,000 a year in additional out-of-pocket costs, as well as the knowledge that the insurance companies will be well taken care of while they are struggling to get by on their fixed income. And not one aspect of the plan will do anything to reduce the costs of care—it just passes the buck.

This is not a plan for our future. It is a recipe for disaster for our seniors. Forty-five years ago, when seniors were the most uninsured group in our country, we made a promise that health care for seniors would be guaranteed. The Republican voucher proposal breaks that promise.

I urge a ''no'' vote on the Republican budget proposal.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 2 minutes.

I have heard a lot of debate today about how we're slashing taxes, slashing revenues for the rich and for everybody else, and bad oil companies and things like that. Let me just show you a little chart.

Under our budget, revenues rise. Revenues go up over $12 trillion. So revenues still increase. Even keeping the Tax Code where we are today, revenues increase.

Now, the President's plan says he wants to raise them another $1.5 trillion. The gentleman from Maryland's plan wants to raise them another $1.7 trillion. But let's not kid ourselves: Revenues, even under our plan, continue to increase.

Now, we don't have a revenue problem, we have a spending problem. The green line is the revenue line. The red line is the spending line. Revenues are stable, increasing; spending is on a tear, Mr. Chairman. Spending is growing at an unsustainable rate. We can't keep spending money we don't have. If we keep doing this, we're going to have a debt crisis. People are going to get hurt. Interest rates will go up. We will have to cut indiscriminately across the board at the time it happens. We want to avoid that.

The Acting CHAIR. The time of the gentleman has expired.

Mr. RYAN of Wisconsin. I yield myself 1 more minute, Mr. Chairman.

Let's talk about the Bush tax cuts, or what happened. Let's talk about the distribution of the tax burden. In 2001, the top 1 percent of earners paid 34 percent of the tax burden. Now they pay 38 percent; a higher tax burden. The top 5 percent in 2001 paid 53 percent of the taxes. Today, the top 5 percent pay 59 percent of the taxes. So on and so forth.

We don't have a revenue problem, a tax problem; we have a spending problem. But here's the real problem. If we don't get our situation under control, we really go in the hole. In 2009, the Government Accountability Office is telling us our fiscal gap, the unfunded promises we are making to current Americans, was $62.9 trillion.

The Acting CHAIR. The time of the gentleman has again expired.

Mr. RYAN of Wisconsin. I yield myself 1 more minute to explain, Mr. Chairman.

That means we would have to take $62.9 trillion, set it aside, invest it at Treasury rates, just so government can keep the promises that it is now making to everybody in America. In 2009, we owed more than we were worth as total households in America. Last year, 2010, that fiscal gap grew to $76.4 trillion. Now, $99.4 trillion.

We are digging our hole more than $10 trillion a year by kicking the can down the road. Every year we fail to fix this problem, we are submitting our children to a worse future, a diminished country. So the sooner we get our act together, the sooner we fix this problem, the better off we're going to be. If we keep ignoring this, if we keep spending on the path we are on, this fiscal gap, the pile of empty promises that politicians from both parties have been making to Americans gets that much higher.

We have about $100 trillion of empty promises Washington is making to Americans. It is time we tell people the truth. It is time we get government to live within its means, and it is time we get Washington to honor its promises, fix these programs, get spending under control, and give our children a debt-free Nation.

I reserve the balance of my time.

Mr. VAN HOLLEN. Mr. Chairman, I yield myself such time as I may consume.

The gentleman is absolutely right. We need to come up with a plan that puts the country on a predictable, steady course of deficit reduction, and we need to do it in a balanced way.

The chart the chairman showed about revenues presumed we wouldn't have certain changes in the revenue. For example, that we wouldn't say to the wealthiest, we want you to pay the same rates you were paying during the Clinton administration when the economy was roaring and jobs were being created.

There is a reason the bipartisan fiscal commission called the Republican plan unbalanced. And this is what it is. Under the commission plan, they have a balance of spending cuts and revenue increases. For example, they say the folks at the top, they should be paying a little more. In fact, $2.5 trillion more over the next 10 years than the Republican plan. Because they don't do what the commission recommended, they have to cut into Medicaid, which will hurt seniors in nursing homes, disabled individuals, poor kids, everybody who depends on that already stretched program. They have to terminate Medicare. So those are choices they are making. They have made a one-sided, lopsided choice.

I yield 1½ minutes to the gentleman from Minnesota (Mr. ELLISON).

Mr. ELLISON. Mr. Chairman, we are in a debate of generational proportions. The promises that were made during the 1960s and before that, and even after that, about expanding our country, making it a greater country, widening its embrace, are now being abdicated. We are seeing a budget, offered by our Budget Committee chairman, that says to our seniors who have cut a path for all of us younger people, You know what? We can't be there for you any more.

We are seeing a budget where we say to our students, who are the intellectual drivers of our economy, we cannot be there for you any more. As a matter of fact, two-thirds of this budget, two-thirds of this budget, two-thirds of the cuts are from low-income programs that serve people who are making it, hardworking Americans who are trying to make it every single day. But that's where the cuts come from.

The question on the table is: What's the proper role of government? We believe the proper role of government is to look after our seniors. They believe grandma has to figure out what she is going to do. We believe that young people have to have an opportunity, and things like the Pell Grant are going to help them and help us. They believe if you are smart enough to go to college, you should pay for it by yourself, or maybe get a high-cost loan to do that.

We have a different vision of America. As a matter of fact, we have a vision that the people who are well to do and the corporations who have done so well should help out more. We believe in equity and a shared burden.

The Acting CHAIR. The time of the gentleman has expired.

Mr. VAN HOLLEN. I yield the gentleman an additional 15 seconds.

Mr. ELLISON. We believe in equity and a shared burden. In fact, the big five oil companies have received profits that are enormous when you look at them on this chart.

The gentleman keeps talking about tax reform. I would love to know, what corporate loopholes are you going to close? Are you going to close these Big Oil subsidies, or not?

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Georgia (Mr. KINGSTON), a

senior member of the Appropriations Committee.

Mr. KINGSTON. I thank the gentleman for yielding, and let me say that I want to be the first one to say we do want to close the tax loopholes for Big Oil. In fact, for the 4 years the Democrats were in charge, we're not sure why they didn't take it on. We are ready to take it on after this 4-year negligence on it.

Think about this, Mr. Chairman: For every dollar we spend, 40 cents is borrowed. Now, if that was happening in your family, you would bring everybody to the kitchen table and you would say, Look, we have got to make some changes here. We can't continue to spend money the way we are doing.

Today, the national debt is 90 percent of the GDP. Spending is approaching 24 percent of the GDP. That's a historic high. We can't get to a balanced budget with a spending gap that high above revenues, and yet that is what we are doing. That is why the Republican budget, the Ryan budget, not just reduces spending by $4 trillion, but changes the trajectory of spending. Because unless we change the pattern and we make some choices for the next generation, important programs like Social Security, like Medicaid, like Medicare, will not be there.

□ 1930

Too often we hear from the liberals in Washington, D.C., the scare tactics: Well, Republicans hate seniors, they hate clean air, they hate education. And that's what we're seeing here tonight. In fact, yesterday the President tried to claim a mulligan on his budget. He actually introduced a budget in February and did not bring in one recommendation of his own deficit reduction commission. Even though I've seen a chart on the floor tonight about it. It sounds great, but it's not in the President's budget because it wasn't presented.

We think it might be a good idea to use some of the recommendations of the deficit reduction commission, and that's what the Ryan budget does. But more importantly, it doesn't do anything to the important entitlement programs for anybody over the age of 55. Medicare will be there for them as it is today. But for younger people, it is not going to be there because it is going broke. That's why we need to make some changes. And giving them a subsidy to help them have more choices in Medicare is the way to save the program.

That's just one of the many aspects of the Ryan budget, and it's well worth supporting.

Mr. VAN HOLLEN. Mr. Chairman, I was pleased to hear my friend is interested in getting rid of the subsidies for Big Oil. We can do it tonight or tomorrow. All you've got to do is vote for the Democratic alternative. And, by the way, you can, at the same time, get rid of the tax breaks that reward companies for shipping American jobs overseas. We don't have to study about it. We don't have to send it to the Ways and Means Committee. We can instruct them tomorrow, tonight, and we will get it done if you vote for the Democratic alternative.

With that, I yield 1½ minutes to the gentleman from New York (Mr. ENGEL).

Mr. ENGEL. I thank the gentleman.

Mr. Chairman, as Ronald Reagan used to say, ''There you go again.''

My Republican friends want to repeal the 20th century. They want to use the budget deficit to kill and destroy every program they have hated all these years, including Medicare and Medicaid.

This budget would roll back 50 years of progress on Medicare and Medicaid and destroy these two programs, which are two of the most important social programs of the past century. It's unconscionable that we would take an ax to these programs to pay for tax cuts for millionaires and billionaires.

This budget shifts the burden from the wealthiest Americans and puts the burden on the poor and middle class. I understand that my Republican colleagues want to protect their rich friends, but on the Democratic side of the aisle, we care about working people, the middle class, poor people, seniors, and children.

The Republicans last year promised they'd focus on two things if they got the majority: jobs and spending. But all we have seen are repeated attacks on the middle class and lower-income people. We haven't seen a single jobs bill, and their idea of cutting spending is to kill Medicare and Medicaid. Instead of passing this budget, we would be more likely to create jobs by waving a magic wand and saying ''abracadabra.''

In this time of divided government, the American people want us to come together and compromise. But all the legislation we're seeing from the other side is extreme. We need to come together. We do have difficulty. We don't want our children to have a diminished standard of living. But this is not the way to do it, to try to balance the budget on the backs of poor people, on seniors, on children. We need to have a fair and balanced budget.

I urge a ''no'' vote.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to a distinguished member of the Rules and Budget Committees, the gentleman from Georgia (Mr. WOODALL).

Mr. WOODALL. I thank the chairman for yielding.

I tell you we see a lot of shrill things here on the House floor. I want to have a slightly different voice. I just want to tell you how proud I am to be here—how proud I am to be here because, as the gentleman who previously said very accurately, I ran on two things: I ran on cutting spending and I ran on creating jobs. And tonight, because of the hard work of my chairman on the Budget Committee, my colleagues on the Budget Committee, I get to vote tomorrow to do just that—just that. I have been here a hundred days, and I get a vote to change the direction of this country, from driving us off the edge of the cliff to restoring the freedom and economic success that we're known for the world around. A hundred days and I get to make that choice.

Now, I'm thrilled, in the spirit of openness, that we have some alternatives. If you want to raise taxes, you're going to have budgets to get to do that. But if you want to close $2.9 trillion in tax expenditures, in loopholes, in lobbyist-funded giveaways, you've got one budget to choose from, and that's the Ryan budget.

We go after those items that, for whatever reason, folks hadn't gone after in years past. We do those things that, for whatever reason, people couldn't find the courage to do in years past. Vote after vote after vote I presume people had to vote on things they didn't like to vote on. They didn't want to run up spending. They didn't want to increase the debt limit. They didn't want to do those things. But they had to do it.

Folks, tonight I'm here to talk about something I want to do. I cannot wait to come to this floor tomorrow and cast a vote for my children, for America's grandchildren, for the future of this land. And that's a vote in favor of the Ryan budget. I am grateful to my colleagues for giving me that opportunity.

Mr. VAN HOLLEN. Mr. Chairman, I welcome our friend from Georgia, and I would just say that we agree on one thing: that this budget does pose a fundamental choice. And that's what we're here to debate about. And we believe that it's just wrong to be providing another round of big tax breaks to the wealthiest Americans when you're ending the Medicare guarantee, when you're cutting investments in kids' education. Those are choices that we shouldn't be making.

We are going to present, and have presented, a Democratic alternative that we think provides a balanced approach.

With that, I yield 2 minutes to the distinguished gentleman from New York (Mr. RANGEL).

Mr. RANGEL. I am so glad you picked me at this time because I want to join the previous speaker in saying that the atmosphere and the attitude here is just too shrill. If we're dealing with the lives and the futures of the generations to follow, it should be in a different way. We should not just be fighting with each other.

So I make an appeal to ministers and priests and rabbis and imams to try to figure out, as we go into these holy holidays, whether or not the screaming is going to help or whether or not we're going to find ourselves with the lesser among us.

I don't know the whole story, but it runs something like: I was hungry, and you didn't give me anything to eat; I was thirsty, and you didn't give me

anything to drink; I was sick, and you didn't visit.

Well, it sounds like the answer that's going to be given is: Well, I told the State to take care of you. I'm sorry they didn't. Or, Don't you remember? I'm the guy that gave you a voucher. Or, I pulled myself up by my own bootstraps. Why can't you do it without a scholarship?

No, I think not. This great Nation was built to believe in God we trust. And it just seems to me when you're talking about the lives of our mothers and our grandmothers and the future of our children that all of the things we hoped and dreamed about, it's not going to be shattered by political budget ventures put together by the majority. If it's not stopped here, it's going to be stopped in the Senate or stopped in the White House. But I hope those that are listening that are involved in providing spiritual care, that recognize how important health care is for our sick and our poor, why don't you just write your Congressperson and share with us whether or not you think that we have an obligation to protect the wealthy among us rather than the lesser of our brothers and sisters.

We will be going home for a couple of weeks during these Easter holidays, and I do hope that all of us try to find out which side are we on: the rich or the lesser among us.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from New Mexico (Mr. PEARCE).

Mr. PEARCE. I appreciate Chairman RYAN for bringing this issue to the floor.

Mr. Chairman, basically the entire discussion that we're having in Washington right now centers around two figures: We spend 3.5 T, trillion, and we bring in 2.2 T, trillion, in revenues to the government from taxes. Now, it's the bringing together of those numbers that's a difference of opinion here in Washington.

I read the text of the President's speech yesterday—I did not get a chance to listen—and he says that we can close that gap by taxing the millionaires and billionaires. And it sounds so fluid. It comes off so easy. But I will tell you, it's a process that many nations have followed before: tax the millionaires.

I don't know what Bill Sweat in Artesia is worth, but he tells me to create a job it costs $340,000 to buy a new bulldozer and he needs a new pickup truck. So he needs $400,000 in the bank to create a job.

□ 1940

Now our friends on the other side of the aisle—and the President's speech—said we need to be taxing that money away from him. NANCY PELOSI said a couple of years ago we need to tax the profits of the corporations and spend them. But what you do is you take away Mr. Sweat's $400,000 and he doesn't get a new bulldozer, and we don't get a job.

So what we have here is this differential, $1.3 trillion in deficit on these top line figures. That's what we're accruing. Then that goes into our debt barrel, $15 trillion. That's what we have over the life of our country, from George Washington until today, approximately $15 trillion, and we're bringing in 2.2.

Now if we begin to give the tax increases that the President says, we're actually going to squeeze down to 2.2 because companies will not be hiring people. For instance, off the shore of Louisiana, we are now choking off those jobs. And so every job off Louisiana that the government kills takes one person from paying taxes and puts them up here receiving welfare, unemployment and food stamps.

Economic growth is the only thing that can cure this Nation's economic problems. The Ryan budget does that. The President's budget does not do it. Let's support the Ryan budget.

Mr. VAN HOLLEN. Mr. Chairman, I have to show us this chart again because I just need to remind the body that during the Clinton administration, when we had the folks at the very top paying a little bit higher rate, 20 million jobs were created. When that rate was dropped for the high-income earners at the beginning of the Bush administration, not only did it contribute to deficits going up, but at the end of that period over 653,000 jobs were lost.

Now the point isn't, again, that by changing the tax rate that was the driver. The point is that small differences in tax rates are not the main engines of economic opportunity. And we need to make choices here. Again, they choose to provide tax breaks to the folks at the very top and end the Medicare guarantee.

Mr. Chairman, I yield 2 minutes to the gentlewoman from Illinois (Ms. SCHAKOWSKY), who has been a champion of Medicare, Medicaid, and a whole number of other issues important to our seniors and Americans.

Ms. SCHAKOWSKY. I thank the gentleman for yielding.

The Republicans are trying to claim the mantle of fiscal responsibility today. It's just ridiculous. They are the party responsible for a decade of fiscal recklessness with two unpaid-for wars, two unpaid-for tax cuts, and a blind eye to Wall Street leading to a disastrous recession. And as the President said yesterday, ''There's nothing serious about a plan that claims to reduce the deficit by spending $1 trillion on tax cuts for millionaires and billionaires.''

This chart illustrates that, from 1979 to 2005, the bottom 20 percent of households saw their incomes increase by a grand total of $200. Over the same period, the top .1 percent here in the red saw income growth of nearly $6 million each year.

There is nothing courageous about a plan that would protect the wealthy and Big Oil and big corporations that ship jobs overseas at the expense of elderly and their Medicare and their Medicaid and the disabled and children.

The Republican budget resolution does not reflect the values of Americans, and I urge my colleagues to reject it soundly.

Mr. RYAN of Wisconsin. Mr. Chairman, I yield myself 1 minute.

Unshared prosperity, spending money on tax cuts. Mr. Chairman, the presumption behind that is that all the money out there made in America is the government's, and then the government decides who they spend it back to.

We do have different philosophies. The money that people make is their money. And then the question is: How much of it does the government take?

The money made in America by individuals, by businesses, is their money. It's not the government's money. So we don't spend money on tax cuts.

By the way, Mr. Chairman, we're not even cutting taxes in this bill; we're just not raising them. So the new definition of cutting taxes apparently is: If you're against raising taxes, you're cutting them.

I don't even know where to start with this, but I'm going to start by yielding 2 minutes to the gentleman from Kansas (Mr. HUELSKAMP), a member of the Budget Committee.

Mr. HUELSKAMP. Mr. Chairman, we clearly have a choice here in Washington: We can maintain the same old status quo, which favors more spending, more taxes, and more Washington control, or the real American choice, making good on promises made to voters last year by cutting spending and creating jobs. The choice is ours; the opportunity is now.

The Path to Prosperity offers a long, overdue fix to Medicaid. There are many problems with the program, and the costs are out of control, hemorrhaging the budgets of State after State and our Federal Government. Clearly, the answer is not more money; instead, the solution is spending money more wisely and more efficiently.

Governors from all across America have expressed their desires for more flexibility with Medicaid, and this budget offers exactly that. In converting Federal spending on Medicaid to block grants, folks closest to the American people—Governors, legislators and local officials, not some bureaucrat sitting in Washington—will make decisions best for their citizens and design programs that work best for their States and for their people. They will have the freedom to adapt Medicaid to their own State's unique needs and priorities.

Also, because this budget defunds ObamaCare, we are preventing the Federal Government from imposing another mandate on the States. ObamaCare forces States to expand Medicaid eligibility but leaves it up to them how they will pay for it. By supporting this budget, we put a stop to this intrusion of the Federal Government and make Medicaid better for those who truly need it.

This Path to Prosperity will increase the Medicaid budget and provide much needed regulatory reform for the 50 States of this great Union. Only those committed to the status quo—including many of our colleagues across the aisle—can make the ridiculous claim that somehow spending more taxpayer money and pushing more Washington red tape is somehow a solution. By lifting the heavy hand of Washington from Medicaid, we make this program more effective and more efficient for the States to manage these programs and provide compassionate care for the Americans who truly deserve assistance.

Mr. VAN HOLLEN. Mr. Chairman, hardworking American people have been paying their Medicare payroll taxes day in, day out, month in, month out. The choice we have here is whether we are going to make good on that Medicare guarantee or whether we're going to say to the folks at the very top, We just can't take you back to the tax rates that were in place during the Clinton administration.

Why would we say that to people who have been putting their payroll taxes into Medicare? Why would we say we're going to end the Medicare guarantee?

With that, I yield 2 minutes to the gentlelady from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE of Texas. Mr. Chairman, unlike the gentleman from Wisconsin who just doesn't know what to do and seems to be confused on his side of the aisle as to what his budget is all about, I will say that I am getting unconfused because his budget is a destruction of the fabric and the way of life of all Americans.

Do you want to know what the Republican budget does? It cuts food assistance for struggling families; it takes away affordable health care coverage for working families; and, of course, it dismantles the health care safety net. But also, it deals with the education of our children.

As the cochair and founder of the Congressional Children's Caucus, let me show you what happens when we don't educate our children. We can see the numbers of individuals who are unemployed who have not had a high school degree. Our friends and the Republican budget are going to cut education, and they're going to wind up with increasing unemployment because you can see that less of our Americans are being able to go to college, and, therefore, without college, without a high school education, we just undermine a growing child's opportunity.

Let me tell you what else we do. We go from children to their grandparents. I remember standing on the floor of this House trying to prevent the doughnut hole from coming about, but Republicans again established a doughnut hole that millions of seniors have fallen through. In fact, the Republican budget causes seniors to pay some $12,000 on their Medicare. Listen to me clearly, seniors, you will be paying an extra $12,000 with the Republican budget plan. And of course we will open up the doughnut hole again, the very doughnut hole that has been taken care of by the Affordable Care Act.

On the other hand, the Democratic budget balances the budget, and of course it recognizes the value of a shared sacrifice. I just visited Texas soldiers, National Guard. They understand about shared sacrifice; they support each other. But this is a suicidal budget. It has no shared sacrifice, and all of the cuts come from the most vulnerable.

The Republican plan is all about turning back the clock and throwing the poor people over the bridge. That is what it's all about. It is a disgrace. Vote for the Democratic Budget.

Mr. Chair, I rise in opposition to the Republican Budget for Fiscal Year 2012 and beyond. Unlike the proposed Democratic Budget, the Republican Budget purports to reduce our nation's deficit by making disturbingly deep cuts to important programs and will have an adverse affect on our nation's families, children, and the health of women.

The Republican Budget:

Guts Food Assistance for Struggling Families. The budget resolution calls for $127 billion in cuts to SNAP (formerly called food stamps) in a six-year period (2015 through 2021). This proposal to block-grant and reduce funding represents a cut of 25 percent in food benefits for some of the most vulnerable Americans. States will be forced to cut benefits to some households or create waiting lists for needy families.

Takes Away Affordable Health Coverage for Millions of Working Families. The majority's budget resolution calls for $1.4 trillion in savings from repealing coverage provisions of the Affordable Care Act, which Congress enacted a year ago to hold insurance companies accountable and extend health coverage to more than 30 million Americans who would otherwise be uninsured. This would mean repealing $777 billion in tax credits to help low- and middle-income families afford health insurance coverage.

Dismantles Health Care Safety Net for Vulnerable Populations. The majority's budget devastates health security for 28 million poor children, 5 million seniors, and 10 million disabled individuals who rely on Medicaid for a basic safety net of health care.

To protect tax cuts for the wealthy, the budget includes the absurd idea to dismantle the Medicaid program and to let the chips fall where they may, no matter who might get hurt. The real hard choices are left to others: state governors, who will decide which populations or health services to drop; health care providers, whose Medicaid payments might get cut so low they will have to decide whether they can afford to continue providing services to Medicaid beneficiaries; low-income families, who may have to decide between buying groceries and taking a sick child to a doctor; and adults with aging parents, who may have to decide between sending a child to college or paying for their parents' long-term care.

The Democratic Budget:

Democratic budget reduces the deficit responsibly, reaches primary balance by 2018. The Democratic budget reduces the deficit by $1.2 trillion more than the President's budget over ten years.

Includes Pell grant and Supplemental Nutrition Assistance (SNAP) initiatives. The Democratic budget includes two mandatory initiatives that are fully paid for with spending reductions. First, it includes the President's proposed mandatory funding to sustain the maximum Pell grant award at $5,550, in contrast to the Republican budget, which cuts Pell grant funding substantially.

The Democratic Budget protects Medicaid and the Medicare guarantee for seniors. The Democratic budget protects Medicare's guarantee of health care coverage for seniors and disabled workers. It also preserves the existing structure of Medicaid that provides a health care safety net for vulnerable children, families, seniors, and persons with disabilities. In contrast, the Republican budget dismantles Medicaid and ends Medicare by converting it into an inadequate voucher for the purchase of private insurance.

I would urge all Members of Congress to oppose the Republican Budget and instead support the Democratic Budget to responsibly cut spending and give America's families, women and children a chance.

□ 1950

Mr. RYAN of Wisconsin. Mr. Chairman, I yield 2 minutes to the gentleman from Oklahoma, a member of the Budget Committee, Mr. LANKFORD.

(Mr. LANKFORD asked and was given permission to revise and extend his remarks.)

Mr. LANKFORD. This is a little surreal to walk in the Chamber and be able to hear that somehow Republicans are interested in throwing old people off the bridge and that somehow old people—that we're focused on all of these things: that we hate those in poverty, and we hate our own parents, and we hate all of these other things.

In reality, as a newcomer walking into this body, I walk into a Chamber saying, We came to get things done. And the driving factor that I walked in this Chamber with is the reality that we have $14 trillion in debt. Now, that's hard to be able to wrap your head around, $14 trillion in debt. So the way I try to wrap my head around it is with an old illustration from me personally.

I remember being 9 years old watching the Voyager spacecraft take off and thinking it will take forever for the Voyager spacecraft to get all the way up to Saturn and to Jupiter. It would take all of 10 years to get out there. But I remember when those pictures were done, and they were sent back, and how significant they were.

Now, just imagine this: in 1977 when the Voyager 1 spacecraft took off, if it started dropping a dollar a mile from the time it took off, how long would it take it to drop $14 trillion? Now, remember, the Voyager spacecraft has been out 34 years. It is still operating. It has left the solar system now. It is past Pluto, headed out of the solar system. If it dropped a dollar a mile since the time it took off, it will drop $14 trillion 41,801 years from now. A spacecraft that's already flown out of our

solar system will have to continue flying at the same speed another 41,801 years from now.

It is surreal for us to stand here and to be able to not take seriously the amount of spending that we do and how out of control we really are. This is not just a tax problem. This is a long-term issue that's not Republican and Democrat. We have both spent too much money. It is time for us to pull our own budget back and to take this seriously.

Mr. VAN HOLLEN. I, too, remember the Voyager spacecraft and also the Apollo program and Moon launch. Great examples of things that individuals and corporations can't do by themselves, things that we have to do by coming together as a people behind a purpose.

The Republican budget, if you look at the long-term forecast provided by CBO, essentially says when you project out here, given the assumptions they were given, you eliminate all of the Federal Government except defense—and even defense is at a smaller share of GDP when you get out there than it is today. That is the kind of result that you get.

Mr. RYAN of Wisconsin. Will the gentleman yield?

Mr. VAN HOLLEN. I yield to the gentleman from Wisconsin.

Mr. RYAN of Wisconsin. That is because GDP growth grows at a faster pace than government. So it is not as if government goes away. Government keeps spending; government keeps defense and education. It's just that the economy outgrows the size of government, and we're on a virtuous path to more prosperity, more opportunity.

Mr. VAN HOLLEN. Reclaiming my time, look, the issue here is what is the appropriate role and size of government. There is no doubt that we have to take what we think should be a balanced approach that involves both cuts and, as the fiscal commission, the bipartisan fiscal commission says, you've got to deal with the revenue piece if you're going to do deal with this problem in a realistic way.

With that, I yield 2 minutes to the gentleman from Georgia (Mr. SCOTT).

Mr. DAVID SCOTT of Georgia. Thank you very much, Mr. VAN HOLLEN. I appreciate it. Let me commend you for the excellent leadership that you are providing in this fight.

Ladies and gentlemen of the Congress, this is America. This is the greatest country in the world. And we are great because we have certain values. Paramount among those values is the sense of fairness.

Now, let me tell you what the flaw is in the Republican budget. The flaw in the Republican budget is it is not fair. Whatever polls we read, wherever we look, the American people are beginning to see it. How can you justify cutting seniors, cutting young people, cutting the low-income, cutting the middle class while at the same time giving over a trillion dollars to billionaires and millionaires in this country? That is the disconnect, Mr. Speaker.

I don't care which side you're on or where you are in this country. The American people know that we, yes, must bring down our deficit and cut this debt. It has become a national security issue.

For 8 years since I've been in Congress I have been arguing for that, standing up for paying down our debt. During the years of the Bush administration, which, let's tell the truth, was a primary cause of us being in the position that we're in now to have three wars going at the same time.

And so ladies and gentlemen, in conclusion I'm just saying that the point we have to make is it is not fair to cut this budget on the backs of the poor, the elderly, and the young while at the same time giving billionaires over a trillion dollars.

Mr. RYAN of Wisconsin. Mr. Chairman, I will give myself a minute to simply say again just to clear up for the record, if you're a person who is 55 years of age or older, there's no change in Medicare for you. The Medicare you're on or that you're organizing your life and getting ready to prepare for when you retire will be there as it is forever for your life under our proposal.

Contrary to the status quo. Medicare goes bankrupt in 9 years. Status quo, the President has a new board called the Independent Payment Advisory Board; 15 people he appoints. They ration Medicare. They put price controls in Medicare. They decide what Medicare can do or what it can't do. Congress is out of the loop. Unelected bureaucrats by the President, his people, they do it. And the President just yesterday said, You know what? Go cut more. Go get more savings. That's the status quo.

With that, Mr. Chairman, I yield 2 minutes to the gentlelady from North Carolina (Ms. FOXX).

Ms. FOXX. I thank my colleague from Wisconsin for the exceptional leadership he has been bringing to this House on this issue of the budget.

I want to say I agree with my colleague from Georgia. We are the greatest country in the world. We also have the smartest people in the world, and they're not going to buy this demagoguery anymore.

The President and Democratic political strategists are engaged in demagoguery of the worst sort. Yesterday the President accused us of wanting to leave sick kids to fend for themselves. But we've heard this before.

On the eve of the 1996 welfare reform, Senator FRANK LAUTENBERG voiced his concern that the bill would transform America into a Third World nation leaving ''children hungry and homeless, begging for money, begging for food and even at 8 and 9 years old engaging in prostitution.''

Senator Carol Moseley-Braun trumped Lautenberg by wondering aloud whether the welfare reform bill would prompt the widespread auctioning of abandoned children into slavery. Jill Nelson of The Nation did them one better by predicting that ''working- and middle-class communities all over America will become scary, violent wastelands.'' Representative JIM MCDERMOTT made a more prosaic prediction that within 2 years of enactment, the bill would ''put 1.5 million to 2.5 million children into poverty.'' Even Daniel Patrick Moynihan warned that the law would ''have children sleeping on grates.''

□ 2000

What happened? Child poverty rates fell by 1 percent per year in the 5 years following the passage of the 1996 Personal Responsibility and Work Opportunity Act, and they remain below 1995 levels, even though the Nation is still emerging from a severe recession. Transforming welfare, by among other things block granting the program and giving States more control over its implementation, cut caseloads in half against a backdrop of falling poverty rates. In almost every particular, the critics were wrong.

The aim of the social safety net should be to empower individuals, putting them in stronger position to achieve. Government can play a positive role in this area with policies aimed at helping those who are down on their luck get back on their feet.

The Acting CHAIR. The time of the gentlewoman has expired.

Mr. RYAN of Wisconsin. I yield the gentlewoman an additional 30 seconds.

Ms. FOXX. This budget strengthens the social safety net and promotes policies that help people recover from poverty and lead self-sufficient lives.

Mr. VAN HOLLEN. I yield myself such time as I may consume.

Mr. Chairman, we ask every American to read this budget, this Republican budget, and see whether or not it reflects their values and the choices that they would make. We believe when they do that they will reach the same conclusion that the bipartisan fiscal commission did, which is that it's simply unbalanced, it's simply unfair. It puts all the burden of the sacrifice on working men and women. And it does provide those folks at the very top once again—we've seen it before—with a big tax break.

When it comes to Medicare, it's a fact seniors are no longer going to be able to choose to stay in Medicare. They're going to be forced into the private insurance market with ever-increasing costs and ever-declining support. That is rationing care. That's what insurance companies do. If you don't have enough money to buy the benefits that they are offering, you don't get them. If your doctor's not on that plan, tough luck.

So those are the choices that we're making this evening. And I hope as we go forward the American people will look very closely at this proposal. I'm confident they'll reach the same conclusion the bipartisan fiscal commission did, which is it's just not balanced, and it doesn't reflect American values and priorities.

Mr. RYAN of Wisconsin. I yield myself 2 minutes, Madam Chair.

Now, let's take a look at what our drivers of the debt are: Social Security, Medicaid, Medicare. The health care entitlements are the biggest drivers. The black line here shows our revenues. These three programs alone take up all Federal revenues. You throw interest on top, which you have to pay interest, by 2035 they consume every single penny of every Federal tax everybody pays.

Now, why are we proposing what we're proposing on Medicare? Because we have experience that this kind of thing works. Giving people more choices, having more competition works. Prescription drugs. That's a program, very successful, very popular. When that program was passed, it was projected to cost $634 billion over the budget window. It ended up costing $373 billion. It came in 41 percent below budget. Premiums are lower than were anticipated. Name me one other government program that actually came in 41 percent below cost projections. There isn't one. Why did this one do that? Choice, competition. The senior is in charge.

We are not interested, Madam Chair, in giving control over Medicare to 15 unelected people to decide where, when, how, and under what circumstances they get their Medicare. We protect Medicare for current seniors. We deny the 15 people on the board the ability to ration their care. And we want 40 million seniors to have the choices. We want them to be in control of their Medicare.

The Acting CHAIR (Ms. FOXX). The time of the gentleman has expired.

Mr. RYAN of Wisconsin. I yield myself an additional 30 seconds.

Because what we have learned is that giving them more control, the senior, the beneficiary, the patient, not the government—competition works. We've tried so many different plans at rationing care. They don't work. One person does work to reduce prices: The consumer. That is why we are saving Medicare.

Mr. VAN HOLLEN. Madam Chairman, I yield myself such time as I may consume.

I have to say that to say this plan saves Medicare is in my view Orwellian. It does remind me of the phrase from many years ago that you have to destroy the village in order to save it. I have to say that if you look at what we're doing here, you're saying to seniors you've got to go into the private insurance market.

Now, the chairman mentioned a couple other examples of the private market. But in this case we've already experimented, through Medicare Advantage, with that kind of private plan within Medicare. And you know what we discovered? That you had to subsidize them at 114 percent of the fee-for-service program. It cost us more for Medicare Advantage. In fact, one of the reforms that we made as part of the Affordable Care Act was to say we're not going to ask the taxpayers and folks who are on Medicare fee-for-service to subsidize those private plans that are running over cost. And you know what? In this budget our Republican colleagues kept that reform. If it was so great to have the Medicare Advantage plan, how come they took part of the savings from that plan? They did not.

So it is a big mistake to say to seniors we're going to throw you into the private insurance market with an ever-declining voucher premium. The reason this isn't premium support, it doesn't support the premium. What Federal employees and Members of Congress have is a premium support system through a fair share formula. This is not a fair share for seniors.

I reserve the balance of my time.

Mr. RYAN of Wisconsin. Madam Chair, I will just simply say we do actually put $10 billion back into Medicare Advantage to make sure the program stays alive.

I yield 2 minutes to a member of the Budget Committee, the gentleman from Kansas (Mr. HUELSKAMP).

Mr. HUELSKAMP. Madam Chairman, as a freshman I guess I am a little confused here on the floor of the House listening to this debate about the budget. And I guess I am a little confused which party was in charge of this Chamber for the last 4 years as we ran up trillions and trillions and trillions of deficits. The concern wasn't about deficits. The concern was about spending and how much more could we do, and how much more could we throw into the economy. We look at the results today: Unemployment levels that we haven't seen for a long time, Madam Chairman.

I guess as we debate and discuss this budget, of course we might be a little bit rusty. It's my understanding it's been a couple years since we even allowed a budget debate on the floor. I welcome that debate. But one thing that was mentioned, read the Path to Prosperity. I agree. I agree with my colleagues, please read the bill. Please do. And here is what you will find.

A Path to Prosperity we believe runs not through Washington, not through this floor, certainly not through the other Chamber, but the Path to Prosperity in this country runs through the hard work of entrepreneurs, a flatter, fairer tax system, closed tax loopholes, regulatory reform, work rather than welfare.

The result is this, Madam Chairman. We expect a million new jobs potentially might be created if we get Washington out of the way, as we see in the Path to Prosperity.

Madam Chairman, ideas have consequences. And we believe, this plan believes in one thing, in the power of the American people, not Washington elites. This plan, this budget is about liberty and freedom, Madam Chairman. I hope and pray 2011 will be remembered not for what we do here, but for whether or not the end result of our actions will help us restore the American Dream in this country.

Mr. VAN HOLLEN. Madam Chairman, I yield 1½ minutes to the gentleman from California (Mr. GARAMENDI), former insurance commissioner for the State of California.

Mr. GARAMENDI. Madam Chair, for 8 years I was the insurance commissioner in California. And for 8 years I battled the health insurance industry. What we heard on the floor was that 2011, what will we remember? What it will be remembered for is the death of Medicare, the demise, the death of Medicare. The most successful insurance program, the most successful health insurance program in this Nation.

□ 2010

It works. It is efficient. It is effective. It is a nationwide standard policy available to every American 65 years of age and older and some of those who are younger.

I heard the author of this bill a moment ago saying competition would make it better. In fact, it does not. In fact, it does not.

The private health insurance industry is inefficient. It is ineffective, it is discriminatory and it clearly, clearly harms customers. There is a profit motive that has to be paid for. There are compensations for the sale and compensations for those who sell the insurance. All of that adds up.

It is also extremely inefficient in that there are multiple policies, multiple people that have to be paid, insurance companies that have to be paid, different deductions, different copays. All of that is out there.

The Acting CHAIR. The time of the gentleman has expired.

Mr. VAN HOLLEN. I yield the gentleman an additional 15 seconds.

Mr. GARAMENDI. My Republican colleagues have done everything they can to repeal the Affordable Health Care Act, which had insurance reform in it. Without the insurance reform, which clearly they want to do away with, you are throwing senior citizens to the sharks, to health insurance.

I urge us not to do that.

Mr. RYAN of Wisconsin. Madam Chair, I yield myself 30 seconds.

I would simply say we have new data from the Centers for Medicare and Medicaid Services on national health care expenditures. In 2009, the last year we have data available, Medicare costs grew by 7.9 percent. Private health insurance plans costs grew by 1.3 percent.

Mr. GARAMENDI. Will the gentleman yield?

Mr. RYAN of Wisconsin. I will not yield to the gentleman.

With that, Madam Chair, I yield 2 minutes to the gentleman from Wisconsin (Mr. DUFFY).

Mr. DUFFY. Madam Chairwoman, as a freshman in this House, it has been unique to sit and see one of the age-old tactics that takes place, scaring seniors, not to move the ball down the

field, but for political points. The gentleman was just referencing Medicare and telling the American people that it's not broken, that it's going to continue to work.

These are CBO charts. If you take a look at them, it's broken. We can't afford it.

We have to reform this program to save it, and to deny that is trying to scare seniors for your own political gain, and I think that's shameless.

Mr. GARAMENDI. Will the gentleman yield?

Mr. DUFFY. No, I won't.

I think we have to be honest with the American people, come out and say you know what, this is a program that if we can reform it, we can save it for our retirees. But not only that, those who are about to retire, 55 and older, we can save the program for them as well. And we can modify the program for those of us in later generations.

But let's not try to scare our seniors tonight and tell them that this plan is going to take away their care, because it's not. This plan, and its proposal, is that those who are 55 and older are going to continue to get the same plan that exists today.

The reforms are for future generations, and with those reforms we are guaranteeing that current retirees get the benefits that we promised them. If you say you care about our seniors, you would join with us, and we would all work to resolve this issue and make sure our grandmas and our grandpas continue to get the benefits that our country has promised them.

Mr. VAN HOLLEN. Madam Chairman, may I inquire how much time remains?

The Acting CHAIR. The gentleman from Maryland has 2¼ minutes. The gentleman from Wisconsin has 7¾ minutes.

Mr. VAN HOLLEN. I reserve the balance of my time.

Mr. RYAN of Wisconsin. I yield 2 minutes to the gentleman from Georgia (Mr. WOODALL).

Mr. WOODALL. Madam Chair, I am glad I had the opportunity to speak after my freshman colleague from Wisconsin.

I was down on the floor earlier. I walked back to my office. I asked Mr. Maroney, who is answering the phones in my office, What are you hearing about? Are you hearing about the continuing resolution?

He said, No. I said, Are you hearing about the budget debate? He said, Not really. I said, What are you hearing about? He said, I am hearing from seniors who are scared. I am hearing from folks on Medicare who are scared.

Now, who does that surprise? It doesn't surprise me, and I don't know what the goal was when we went down this scare tactic path. I will say to the ranking member, I know you know better.

You've got a persuasive case to make, a persuasive case to make for why your vision is better than our vision, but you're scaring people.

Mr. VAN HOLLEN. Will the gentleman yield?

Mr. WOODALL. I will yield to have the gentleman tell me if anyone age 55 or older will be affected.

Mr. VAN HOLLEN. Isn't it true that the Republican budget reopens the prescription—

Mr. WOODALL. If the ranking member is not going to answer my question, I will not yield. You should be ashamed.

I reclaim my time.

Mr. VAN HOLLEN. And that's because you don't like the answer you're going to hear.

The Acting CHAIR. The gentleman from Georgia controls the time.

Mr. WOODALL. I reclaim my time to say we have honest debates here. We have honest disagreements here. But folks are scared because you're scaring them and you know good and well you don't need to.

Mr. VAN HOLLEN. Will the gentleman yield?

Mr. WOODALL. I want to associate myself with Mr. DUFFY's comments that we could get together and solve this problem, or we can just choose to scare people.

Mr. GARAMENDI. If the gentleman would yield, I will answer his question.

Mr. VAN HOLLEN. Will the gentleman yield?

Mr. WOODALL. I will yield to the gentleman to tell me if anyone age 55 years of age or over will have their benefits changed in any way.

The Acting CHAIR. Will all Members please suspend.

Mr. VAN HOLLEN. Yes, they will have their prescription drug benefit changed.

Mr. GARAMENDI. Point of order ma'am.

The Acting CHAIR. Will Members please suspend.

Mr. RYAN of Wisconsin. Madam Chair, the House is not in order.

Mr. GARAMENDI. Madam Chair, a point of order.

The Acting CHAIR. All Members are reminded to address their remarks to the Chair.

Mr. GARAMENDI. Thank you.

Mr. RYAN. I yield 1½ minutes to the gentleman from South Carolina (Mr. MULVANEY).

Mr. MULVANEY. Madam Chairwoman, I wanted to speak very briefly to a topic that was raised earlier tonight by my colleague, Mr. ELLISON from Minnesota. It is a comment, a message that has been repeated several times tonight and was, in fact, repeated several times during the committee process, which dealt with the subsidies that we give to Big Oil, to oil and gas.

I will tell my folks, especially my colleague from Maryland (Mr. VAN HOLLEN), that I share the frustrations that you have with those types of subsidies. I also share the frustrations that I have with other members of my conference that alternative energies receive seven times as many subsidies in the Tax Code as oil and gas. In fact, if you take the subsidy, the excise tax credit for ethanol, that number rises to 10 times.

So I do share your frustrations with the amount of tax credits that the code currently gives to oil and gas. But I am 10 times as frustrated, Madam Chairwoman, with the subsidies that we give to alternative energies.

I would invite, Madam Chairwoman, my colleagues on the other side of the aisle who have that same frustration to join us and vote for the budget. It's the best chance they are going to get this year to get rid of these subsidies as part of this process of closing the loopholes, lowering the tax rates and broadening the base.

Mr. VAN HOLLEN. Madam Chair, I yield myself the balance of my time.

The Acting CHAIR. The gentleman from Maryland is recognized for 2¼ minutes.

Mr. VAN HOLLEN. We've had a spirited debate this evening about fundamental choices that we need to make as a country. We all agree that we have to reduce our deficits in a predictable, steady way. The question is how do you do it, and we believe, as did the cochairs of the bipartisan fiscal commission, that the Republican plan is unbalanced; and it's unbalanced because it asks very little of the folks at the very top and reduces dramatically our investments in our kids' education and it does end the Medicare guarantee.

Seniors will no longer be able to stay in the Medicare program. They will be forced into the insurance program. It immediately does end the prescription drug benefit, something we worked hard to close, the doughnut hole.

□ 2020

It ends the effort that was put in place under the Affordable Care Act to end the doughnut hole. So I would say to the gentleman from Georgia who spoke earlier, those seniors who are calling his office, they will lose that benefit in closing the doughnut hole right away if this Republican budget passes.

For other seniors and people who have been paying in the Medicare system through their payroll taxes, we want to make sure they have the benefit of the Medicare guarantee. Throwing them into the private insurance market and giving them a deal that Members of Congress do not give ourselves is wrong. It is absolutely wrong.

We have a fair share deal, and we are asking seniors to take a raw deal. We have a true premium support system for Members of Congress where the Federal Government shares the risk of increasing costs. Under the Republican plan, they are asking seniors to do what they don't want Members of Congress to do: take all the risk of the rising costs.

Those are not choices that reflect American values and priorities. We should not be giving tax breaks to the folks at the top and ending the Medicare guarantee.

Mr. RYAN of Wisconsin. Madam Chair, I yield myself the remainder of the time.

First, let me say with respect to the Medicare guarantee, we keep hearing that. As you know, because we've said it over and over again, in our budget—by the way, go to budget.house.gov if you want to read the plan. I encourage people to please do that.

With the new Medicare plan with people 54 and below, it's a Medicare guarantee. The plan you will be given to select from, just like a system that works like the one we have, like the prescription drug benefit plan, they are guaranteed plans. You are guaranteed to get them if you want them, and your subsidy is guaranteed.

Now, we simply say, wealthy people shouldn't get as much of a subsidy as everyone else. Lower income people should get a bigger subsidy. And as people get sicker, they, too, should get a bigger subsidy to protect their premiums.

And I would simply say the greatest danger, enemy and threat to Medicare is the status quo. Medicare goes insolvent in 9 years.

But let me look at this from a different perspective. We've had a lot of debt before in our country. When you buy a house or a car or get a business loan, you get debt. What matters is how big is your debt relative to your ability to pay it. What also matters is: Who are you borrowing it from? Are you borrowing it from your local community bank? Are you borrowing it from your brother-in-law? Fine.

Where are we borrowing our money from? We used to lend it to ourselves. Americans would buy T bills and lend it to ourselves. In 1970, 5 percent was held by foreigners, 95 percent by Americans. In 1990, 19 percent of our debt was held by foreigners. Today, 47 percent of our debt is held by other countries. Number one is China. We are borrowing 42 cents of every dollar today, and half of that from other countries, the number one being China.

Look at where we're headed. We have a crushing burden of debt. The debt goes to double the size of the economy, then triple the size of the economy, to eight times the size of the economy. The CBO tells us the economy crashes in 2037. Their computers can't figure out how the American economy can grow past the year 2037 because of the debt burdens.

We can't keep borrowing money from other countries to cash flow our government. We are giving them our sovereignty. We are losing control of our own destiny. We are giving our children a debt prison.

Why is this happening? Because politicians from both political parties have been making promises and promises that are empty. We need to get government to live within its means. We can't keep spending money we don't have.

By the way, you don't fix this by raising taxes and raising taxes and raising taxes. You fix this by cutting spending—novel idea. I know it is in Washington.

So we're going to start. We're going to start by cutting $6.2 trillion in spending. We're going to start by putting the right policies in place to grow the economy. We're going to start by keeping the promise to people who have retired so that their Medicare and Social Security is there for them. We're going to start by saving these programs for future generations so they're not empty promises. We're going to start by preserving our social safety net and making it more adaptive, resilient and sustainable for the 21st century.

We want to repair the social safety net so it works. And we want to gear it not toward keeping people on welfare, but getting them back on their feet into lives of self-sufficiency so they, too, can flourish and reach the American Dream. We're going to start by passing this budget so that we can give our children a debt-free nation, so we can maintain the legacy of America, which every generation prior to ours upheld, which has given the next generation a more prosperous America, a better chance, a better chance at securing the American Dream.

If we don't do this, if we don't fix this, if we don't make the tough choices now to get this under control, we will be the first generation to sever that legacy. And, Madam Chair, that's a disgrace. It is within our control. We see this coming. We know what's happening. We know why it's happening. And if we don't fix this before it gets out of control, shame on us.

The Acting CHAIR. The gentleman from Texas (Mr. BRADY) and the gentleman from New York (Mr. HINCHEY) each will control 30 minutes on the subject of economic goals and policies.

The Chair recognizes the gentleman from Texas.

Mr. BRADY of Texas. Madam Chair, on behalf of the Joint Economic Committee, I yield myself as much time as I may consume.

This country is starved for truth-tellers, people in Congress who will just tell them what the problems are that this country faces, give them options and help them make the right choice, people who are strong enough to lead and bold enough to lead at a time when the country needs leadership. When it comes to the budget, when it comes to the economy where the President has failed, House Republicans will lead.

The Paul Ryan budget helps spur job creation in America today. It stops spending money the government doesn't have. It lifts the crushing burden of debt. This plan puts the budget on the path to balance in paying down the debt over the long term, and it puts the economy on the path to prosperity.

Let's talk about the economy. It is the number one concern of most people, and the debt and deficit have a lot to do with it.

We are undergoing one of the worst recoveries we've seen in a long time. It is two to three times slower than the Reagan recovery, and there is reason for that. We were told by the President and congressional Democrats that if we just spent money, spend it in the stimulus and spend it in increased deficits, that the economy would recover. And they were wrong. After spending hundreds of billions of dollars on the stimulus, we have 2 million fewer jobs in America today than when the stimulus began. We have fewer jobs today than when all that spending took off.

We were told if Congress passed all the stimulus bills that our unemployment rate today would be 6.8 percent. It's 8.8 percent. And it's only that low because so many people have given up simply looking for work anymore. They've lost hope. And then finally, for those who say we just spend more to create this economy, they were off, their predictions, by 7 million American jobs.

It's time to stop listening to the economists who got it wrong and start listening to economists who got it right.

□ 2030

Let's take a look at what spending has done to our economy in America. Here is a chart. It looks back on the last 40 years in America, and it tracks Federal Government spending against job creation along Main Street, not government jobs but jobs in the private sector, the small-, medium-, and large-sized businesses that our economy depends upon. The blue line is government spending. The red line represents jobs along Main Street. You can tell with the blue line. Look at how different job creation is. In fact, over each of these four decades, not only is there no correlation between Federal spending and jobs along Main Street, but it's a negative correlation in each of the 4 decades. As government spending goes up, jobs along Main Street go down.

Look at this next chart. We also went back the last four decades in America and asked about private business investment. What happens when companies large and small buy new equipment, buy new software, buy new buildings, and invest back in the economy? Here is the chart. The blue is the private, fixed investment from business. The red is job creation along Main Street. As you can tell, it's a very close correlation.

In fact, there is no substitute in America for private investment in the economy—no substitute, no rebates, no stimulus, no shovel-ready projects. Nothing is a substitute for creating jobs like getting businesses to invest back in their workforces, in their workplaces and in the economy.

Recently, I had the Joint Economic Committee take a look at the economic studies over the last 40 years of our competitors around the world, competitor countries that got themselves into debt trouble but that worked their way out of it. You would be interested in the results of this

study, and there are three key points to it.

One is that the countries that were most successful in getting their debt down, in getting ahold of their financial paths, didn't do it by raising taxes. That didn't succeed. They did it by reducing spending. That's how they best and most successfully got ahold of their debt. There were 21 times that 10 different of our global competitor countries got a handle on their debt successfully by reducing spending.

The second takeaway from this study, called ''Spend Less, Owe Less, Grow the Economy,'' was that countries that got ahold of their debt the right way also grew the economy as well. Economists agree that the countries that get their financial houses in order grow their economies over the long term. What this study shows is that, with our competitors, if you get a handle on your spending the right way, you grow your economy in the short term as well.

Here is Canada. Neighboring Canada got themselves in financial trouble. Their economy was growing at a paltry pace, less than 1 percent a year. They lowered their debt as a nation by about 12 percentage points, and their economy took off. For almost 16 years, they've averaged economic growth of almost 3½ percent.

Sweden, another developed country with an economy like ours, actually had an economy that was shrinking. It was actually contracting. They got ahold of their financial house and put that in order as well, reducing their debt by more than 11 percentage points. Their economy took off, growing 3½ percent a year, on average, for almost a decade. New Zealand did the same.

You may say, Look, we're not Canada; we're not New Zealand; we're not Sweden. Yet 26 times, nine of our competitor countries around the world that lowered their debt by reducing spending grew their economies strongly, not just in the long term but in the short term. They didn't grow them a little. Those countries rocketed to the top quarter of economic growth in the world. Countries that reduce their spending and do it the right way grow their economies.

Here is a third and another, again, telling point about this, which is that not all spending cuts are the same. When it comes time to grow the economy, not all spending cuts are the same.

What these economists showed is that the nations that grew their economies the most successfully undertook cuts that were large, credible and difficult to reverse. So they made cuts in savings that mattered, and the cuts in savings that grew their economies made sense. They shrunk their Federal workforces. They right-sized them to what they could afford. They eliminated duplicate programs, obsolete programs—as a business would—programs that waste money. They reduced subsidies to corporations which were interfering in the free marketplace. Finally, they tackled their entitlement reforms in health care and in pensions. What is interesting is that, even if the reforms they made in their entitlements didn't affect their current beneficiaries and even if they phased those reforms in over time, the reforms sent the right signals to the marketplace.

Then what happened in each of these countries is that businesses, in no longer facing higher taxes because of all that spending, felt comfortable getting to reinvest back into their workforces, back into their countries' economies. Households like ours, in no longer facing higher taxes to pay for all these spending sprees, felt more comfortable buying larger ticket items, like cars and houses. As we know, when businesses invest, jobs along Main Street grow. It has been made clear time and time and time again, like businesses, countries that can get ahold of their debt, that can do it the right way and that can put themselves on financially sound paths grow. America's economy can grow as well.

The budget resolution presented tonight by Chairman PAUL RYAN meets the test that spending reductions must be large, credible and difficult to reverse once made to boost our economy:

The Ryan budget attacks the medical entitlements that are driving Federal spending higher. It attacks corporate welfare by phasing out government guaranties to Fannie Mae and Freddie Mac. It eliminates subsidies for green energy, and it reduces agriculture subsidies by $30 billion over the next decade. The Ryan budget rolls back nonsecurity discretionary spending to its 2008 levels and then freezes it for 5 years.

It adopts a number of the recommendations from the President's own fiscal commission to eliminate waste and to achieve real savings in our budget. It eliminates agencies and programs identified by our own government as wasteful and duplicative. That alone will save over $100 billion in the next decade.

It reduces the Federal workforce. It right-sizes the Federal workforce by 10 percent over the next 5 years by attrition, simply by hiring only one new Federal employee for every three employees who leave or retire. Together, that saves almost $400 billion.

The Ryan budget envisions a progrowth tax reform that lowers the top income tax rate for both individuals and companies to 25 percent and makes us competitive again in this world.

The Ryan budget is a fiscally responsible plan that accelerates economic growth and job creation. It is a gamechanger for this Nation and tells the truth about our challenges, and addresses them with ideas and proven solutions that move us forward.

Madam Chair, I reserve the balance of my time.

Mr. HINCHEY. I yield myself such time as I may consume.

Madam Chair, I think it's very important for us to understand and remember how the economy here grew and how it became much more positive and progressive during those 8 years of the Clinton administration. The deficit that Clinton inherited when he came into office was dramatically reduced and brought back a surplus. When he left office, the national debt was in the neighborhood of a little over $5 trillion. By the time the next President left, George W. Bush, the deficit was about $10.7 trillion. So it's important for us not to have the same kind of experience now that the opposition here on the other side of the aisle is trying to push on us.

The most critical challenge that we face as a country, of course, is the need to create new jobs. If Congress hopes to get the economy moving at the right pace, we are going to have to take this challenge of job creation very seriously. The question is: What should we do? What should we not do to reform government so that we can better compete in the world economy and yield strong, sustainable, long-term growth and prosperity?

After 100 days, Republicans have failed to put forward a single plan to create jobs. Instead, they have laid out a budget plan that shows us exactly what not to do.

□ 2040

We must remember how we got into this budget mess in the first place. While my friends on the other side would like to pretend that our economic woes began the very second that President Obama took his hand off the Bible and was sworn into office, we know that is not the truth at all.

In fact, it was quite the opposite. The things he did as President were positive for the economy, and we are seeing that today. We are seeing the economy growing. We are seeing unemployment declining. We are seeing employment going up, all of that as a positive effect of the actions of this President.

My friends on the other side pushing this budget are the same people who carried President George W. Bush's agenda through Congress, and in doing so nearly doubled our national debt, as I said, from about $5.7 trillion to $10.7 trillion over the 8 years of the Bush Presidency.

We need to make sure that they are not able to do that again. They did so then by recklessly lowering taxes on the wealthy with the promise that doing so would create jobs and strengthen our economy. Well, we know that neither of those happened. In fact, just the opposite occurred. They did so by passing a prescription drug plan that is a major giveaway to the pharmaceutical industry without finding a way to pay for it. And they did so by taking us into Iraq under false pretenses and committing us to what will ultimately be several trillions of dollars.

Now we are seeing economic inequality at record levels. The wealthiest 10

percent of the population here in the United States of America receives nearly half of all income in our country. And the richest 1 percent has seen its share of the national income increase by nearly 10 percent; and they are now at about 35 percent of all income, all of that increasing for the richest and declining for working people across this country.

This trend has consequences, and it is no coincidence that the last time we saw inequality at this level was during the Great Depression in the 1930s. But instead of working to correct this problem, the House Republican proposal acts as a huge wealth transfer program from the working class Americans to the rich. Overall, two-thirds of the cuts the Republicans propose take dead aim at working class Americans to lower their economy and lower their economic conditions.

The Republicans' budget plan eliminates Medicare, forcing seniors to buy insurance in the private marketplace, using a coupon that barely covers a fraction of the cost of care. It cuts food stamps, Pell Grants, and low-income housing. And at the same time, our friends across the aisle here, their plan would give away $2.9 trillion in tax cuts to the hugest, biggest corporations and to the wealthiest Americans.

This is the exact wrong approach, and it will severely damage our economy, hurt the middle class, and impoverish senior citizens.

Let's take a closer look at how this plan hurts seniors. Their budget eliminates Medicare. It eliminates Medicare and creates a new voucher program that would saddle seniors with a large portion of their health care costs. They would then be more responsible for it, and the whole health care system would decline.

The Republican budget also makes prescription drugs more expensive for seniors. The health care law we passed last year is gradually eliminating the gaps in prescription drug coverage. The Republican plan undoes this essential reform, forcing seniors to pay out of pocket. The Republican budget also threatens to make nursing home care unaffordable by cutting $771 billion from Medicaid over a 10-year period. Medicaid currently covers nearly half of all long-term care costs, and we know what would happen if their plan was to be successful. All of that would be essentially eliminated. The Republican budget also cuts $10 billion from Social Security's administrative budget, which will impact service to seniors.

What this plan does to America's seniors is absolutely unacceptable; but the worst part of it is that while they cut Medicare and Medicaid and they cut prescription drug coverage and the Social Security Administration, they also cut taxes on the very wealthy, reducing substantially the amount of taxes that the wealthiest people in this country pay while at the same time raising taxes on everyone else.

Now, 10 years ago, the conservative Heritage Foundation projected that in 2011, 1.6 million more Americans would be working as a result of the Bush tax cuts. They were wrong. They were wrong then, and they are wrong now. We know what happened then, just the opposite of what they predicted.

The Republican debate isn't about good policy or the facts. It is about a dogmatic approach to governing and doing what's best for the very rich, doing what's best for the very rich regardless of how it affects everyone else who are the main promoters of the economy. Working class people, middle-income people are the people who drive the economic growth here in America. If they are forced to decline their economic conditions, then the whole economy of this country declines. All of that is needed to be understood, and the actions that they are proposing must be avoided.

Even President Reagan's budget director, David Stockman, recently said that he finds it ''unconscionable that the Republican leadership, faced with a $1.5 trillion deficit, could possibly believe that good public policy is to maintain tax cuts for the top 2 percent of the population.''

We know that isn't the case. We know that is going to be just the opposite. We know that tax cuts for the wealthiest, making the wealthiest people in this country even wealthier and driving down the economy of the working people, is going to have a deadly effect on the economic circumstances across this country.

Tax rates are now lower than they were, even under President Reagan; and yet the Republicans are actually proposing to cut taxes again for the very rich, lower the corporate rate, and keep special tax earmarks for Big Oil, tax earmarks for Big Oil which is now growing to be one of the highest growing economic aspects of this country that we have to deal with. Tax earmarks for Big Oil and for the biggest companies, and the biggest companies particularly that export jobs overseas, continuing to give tax cuts to those economic companies that take jobs out of the United States and exports them to other countries. What a big mistake that is in the context of rescinding this economy.

Overall, the Republican budget plan for 2012 will not balance the budget; and while it does not balance the budget, it eliminates Medicare by replacing it with a private voucher program that will make it impossible for seniors to get health care. It also provides huge new tax breaks for the wealthy while cutting key investments in our economy.

All of these proposals that we are facing here are clearly deadly. If they were to be successful, the economic circumstances that are now just getting better in this economy as a result of the actions by the Obama administration would be reversed, and it would be reversed dramatically, and we would see a downslide in the economic circumstances here in our country.

□ 2050

We need to oppose this effectively, and we need to have a policy that is going to focus its attention on working class people, on the need to create more jobs, and to create more jobs more effectively.

I reserve the balance of my time.

Mr. BRADY of Texas. Madam Chair, I yield myself 30 seconds.

I would remind the listeners that it was Democrats who fought the prescription drug program for our seniors; who last year slashed a half-trillion dollars from our seniors programs, which will hurt our local hospitals, our nursing homes, our hospice programs. They're going to drive 7 million American seniors out of their Medicare Advantage plan. And yet they failed to lead to preserve Medicare for every generation once and for all. They failed; we're going to lead.

At this time I would like to yield 3 minutes to a new member of the Joint Economic Committee, the gentleman from South Carolina (Mr. MULVANEY).

Mr. MULVANEY. Madam Chair, when I travel my district, I have tried to figure out a way to explain to people, and to myself, how to make sense out of these trillions of dollars. And I do it this way. I put it in numbers that I can understand.

I tell folks to assume that you're a family who brings home $46,000 a year, and you sit down at the beginning of the year to do your budget, and when you add up all of the things that you spend money on, you're spending $78,000. And then I say to them, When you're doing that and you're making $46,000 and you're spending $78,000, I want you to realize the Visa bill in the drawer is $281,000. And that's where we are as a Nation.

And I tell them, as we try to figure out a way to save money, I remind them that the first thing that we did in this Congress was we cut $35 million from our own budgets. To lead by example, we cut our own budgets in this House by $35 million. And in that world where you're making $46,000 and you're spending $78,000, and you're trying to find $32,000 of savings in your household, that $35 million represents 70 cents.

That's how big the numbers are. And I think the folks back home have started to grasp it. I certainly have started to grasp it.

But I do get some good questions when I give that presentation on the road. Some folks will ask me and say, If I was in that position at my household, not only would I try to cut expenditures, but I'd also try to get another job. I'd try to make a little bit more money.

And I said, That's a really good point and that's what most families would do. With government it's different. With government the only chance they have to get that additional job, to get

more money to come in, is to raise taxes. And when they ask me why don't we just raise taxes, I say because it simply doesn't work. It simply does not work. It has never worked.

This graph shows the top marginal tax rates going back to the 1950s. For those of you who were around or studied the era, the top marginal rates in the 1950s were actually above 90 percent. The top marginal income tax rate in the 1950s was above 90 percent. And the government was still only able to take from the economy about 20 percent of the economy; 18½ percent is the average over the course of the last 50 years. So even when tax rates were as high as 90 percent, the government took only about 18, 19 percent of the economy out in taxes.

That number has stayed bizarrely stable over the course of the last 50 years. We've lowered marginal tax rates; we've raised marginal tax rates. Yet the government only takes out 18, 19, at the most 20 percent.

Raising taxes does not bring in more money to the government over the long haul. It may for a short period of time. It may for a year or two. But the world doesn't work on a static model. The world works on a dynamic model. And when you raise taxes, the economy grows slower, and eventually we get back to this 18, 19 percent average.

By the way, I made this presentation in a debate to a former member of the Clinton administration. And the moderator, after I had mentioned that we've never been able to get more than 18, 19 percent out of the economy, turned to that member of the administration and said, Is that true? How do you respond to that?

And the member of the Clinton administration said, You know, he's absolutely right. We have not been able to figure out a way to do it in the United States of America, even with high top marginal tax rates.

But they do it in Europe. They do it in Europe. In Europe the governments can get 30, 40, even 50 percent of the economy away from the private sector, away from people, and put it in the pockets of the government.

The Acting CHAIR. The time of the gentleman has expired.

Mr. BRADY of Texas. I yield the gentleman an additional minute.

Mr. MULVANEY. And I put it to you, Madam Chairwoman, that that's what this debate is really about. That's what this debate is really about. Are we going to maintain the American system, or are we trying to move towards a European system? And I will tell you that that's really what this fight is all about.

And the budget that we're here defending tonight, as members of the Joint Economic Committee, is the budget that defends the American system, that defends the system that says the government really should only take 18 or 19 percent away from the private sector, that that's enough, that we don't want to be Europe, where people pay VAT taxes and people pay much higher rates of taxation. The government takes 30, 40, or 50 percent. And what the opposition is offering is a European-style model.

So I simply ask my friends on both sides to consider what kind of country we want to be. Do we want to continue on as the America that we've known for years, or do we want to become Europe? And I suggest, Madam Chair, that the former is the better course of action.

Mr. HINCHEY. Madam Chair, I yield 5 minutes to the gentleman from California (Mr. GARAMENDI).

Mr. GARAMENDI. Madam Chair, we've heard a lot of discussion here this evening about what economic policy works, where do the deficits come from. Let's just figure it out.

Beginning with this man over here—I think we would all recognize him—that would be Ronald Reagan. After every year, at the end of the year, the Congressional Budget Office, nonpartisan, makes a projection of what's going to happen in the next 10 years. At the end of Ronald Reagan's period, they did their projection, and they said, voila, a $1.4 trillion deficit in the years ahead. Followed by George Bush the senior. At the end of his 4 years, they did another estimate: What's going to happen in the next 10 years? Well, let's see. That says a $3.3 trillion deficit. How about that?

We were just talking about some economic policy here a minute ago. Well, let's talk about the Clinton period. At the end of the Clinton period, 8 years, another projection was made by the Congressional Budget Office: What's going to happen in the next 10 years? A $5.6 trillion surplus, enough to pay off all of the American debt.

How did it happen? How did it happen?

It happened this way: Early in his administration, they set about to deal with the deficit. There was a tax increase. It cost my Democratic colleagues the House. But they did it. They put it in place. And they also put in place PAYGO and the balanced budget amendment. What happened was that in those 8 years was the largest job growth in America's history except in the 1950–1960 period. It was enormous job growth. More than 20 million jobs were created and extraordinary revenue growth.

So much for the argument we just heard.

In fact, a combination of holding tight on the budget together with a tax increase worked. I was part of that administration, and we were told to reinvent government. We did. At the Department of the Interior, we reduced the number of employees from 90,000 to 75,000, and we maintained and actually increased the efficiency and the effectiveness of that Department. It can and it was done.

However, let's take a look at George W. Bush, the most recent Bush presidency. At the end of his presidency, the Congressional Budget Office did their estimate, and they came up with an $11.5 trillion deficit in the years ahead.

How did it happen? It happened this way: He cut taxes year one, 2001, cut taxes. Year two, 2002, cut taxes. Two wars unpaid for, borrowed money from China, and then backed away from all regulation of Wall Street, and the great crash. The result: An $11.5 trillion deficit. The day Barack Obama came into office, he was handed a $1.3 trillion bill due. That's what the Republican President gave to this Nation and to this Congress. So we've set about solving it.

Now I want to move to another issue here, which happens to be this debate about Medicare. You're not going to solve the Medicare problem, which is one of ever-increasing cost in the underlying health sector of America. When I first got into this in 1991 as insurance commissioner, 9 percent of the American economy was in medical services. This year it's approaching 18 percent. You cannot solve this problem by throwing senior citizens off Medicare. It does not solve it.

□ 2100

Do not throw the seniors to the wolves. The wolves are the insurance companies. I know. I was the insurance commissioner for 8 years, and I fought those characters every year I was in office. I know what they will do to seniors. They will rip them off, they will deny benefits, they will deny coverage, and they will not control cost.

In California this year, insurance companies are raising costs by 20 to 40 percent. Medicare went up 6 percent. Medicare is efficient. Medicare is efficient. It is a nationwide policy. You can get it anywhere in this Nation. There is no administrative cost that even comes close to what the insurance companies' administrative costs are, perhaps 30 percent of the premium. Profit, sales, expenses, all of those things added up, and that includes the chaos at the delivery, the medical delivery. We need to change that.

You want to deal with something more? Take a look at this. This is Medicaid. In Medicaid, the Republican budget intends to cut Medicaid by three-quarters of $1 trillion in the next decade. Who gets Medicaid? Senior citizens and the disabled. The aged, blind and disabled get Medicaid. And this is immediate.

The Acting CHAIR. The time of the gentleman has expired.

Mr. HINCHEY. I yield the gentleman 1 additional minute.

Mr. GARAMENDI. I'm just getting warmed up.

Who gets Medicaid? The aged, the blind and the disabled get Medicaid.

The Republican budget cuts Medicaid three-quarters of $1 trillion. Seniors will be—not 10 years from now, but immediately, as those budget reductions take place, according to the Republicans—thrown out of nursing homes.

I just finished a conversation not more than 2 hours ago with the owner

of nursing homes in California. He said, Don't let them do it. We're just hanging on. Any further reductions, any reductions in the Republican bill will force us to send out of our nursing homes the Medi-Cal, which are people covered by Medicaid.

Who are these children? These are the children in poverty. The children in poverty get medical services from Medicaid, and Medi-Cal in California, 20 percent. Are those the people you want to throw out in the street? You will do it.

Mr. BRADY of Texas. Yielding myself 30 seconds, I would remind our colleagues that are Democrats that Congress slashed a half trillion dollars from our seniors' care, including nursing homes, just last year. I will also remind our colleagues that Medicare is insolvent. The biggest threat to our seniors today is to do nothing.

Democrats and the President failed to lead. Republicans are not only going to preserve Medicare as it is today for those 55 and older, but for the younger generation, we are going to give them the choices and the options to preserve that program for them for their entire life.

Madam Chair, I yield 5 minutes to a new member of the Joint Economic Committee who understands that government doesn't create jobs, it is the private sector that creates jobs, the gentleman from Wisconsin (Mr. DUFFY).

Mr. DUFFY. Madam Chairwoman, in reference to one of the charts we just saw from the gentleman from California, I found it interesting that he laid out many different debts and deficits from prior Presidents, but the one he failed to present to this House was the one from President Obama. On the day that the President took office, we were projected, over the course of 10 years, to borrow $1.8 trillion, from the CBO, and today we are projected to borrow $9.4 trillion. We have inherited now a fiscal mess.

Let's review where we're at. This country owes $14 trillion. This year we are going to borrow $1.6 trillion. Last year we borrowed over $1 trillion. The year before that we borrowed over $1 trillion. Let's look out 10 years. For the next 10 years, on average, we're going to borrow $1 trillion every single year. This is unsustainable. We cannot continue on this course.

Listen, I wasn't a big fan of President Bush's spending, but his biggest year of deficit spending was $460 billion. That pales in comparison to the $1.6 trillion we're going to borrow today. I mean, I know we've all seen these charts so often, but this is our debt chart from the CBO. We have a sea of red, a sea of debt that we are going to leave off to the next generation. This is unconscionable.

What does this mean for future generations? This means higher interest rates. This means massive tax increases. This means a lower standard of living for our next generation. And I guess I will present to this House, if you were to ask your grandma and grandpa what they thought about leaving this off to our next generation, they would be outraged. They would be furious that this is their legacy, that this is what their grandchildren are going to inherit. We need to fix the problem.

Let's talk about the budget proposal that has been made.

Congressman PAUL RYAN and the Budget Committee, they propose reducing spending by $6.2 trillion over the course of 10 years. Yes, they also talk about tax reform, a fair, flatter Tax Code. And you know what? We have to realize this isn't 1980. We are in a global marketplace. We compete against China and India, Mexico, Vietnam.

And you know what? This isn't just against Kansas and Kentucky. We have to engage. We have to have an environment where our businesses can compete, succeed, and win. And when they do, who benefits? The people that benefit are our families because they have jobs, they have opportunity. But if we build walls around this country with more mandates and more regulation and more taxes, we are going to see more businesses go overseas and fewer jobs for our families. And as we've been talking about tonight, we will have less revenue in the Federal Reserve.

I've heard a lot this evening, Madam Chairwoman, about Medicare and a lot of demagoguery across the aisle about what it's going to do. Let's be clear with the American people. Let's be honest with the American people that if we don't reform Medicare, the CBO says it's going broke in 9 years. We have to fix it. We have to fix it to make sure we can preserve it for our current seniors. So let's not sit here and scare people and tell our seniors we're taking away their Medicare. We are not. We are working on solutions that are going to preserve it.

And so when we talk about reform, to be clear, we're not talking about reform for our current seniors or even those who are about to retire. The reforms we are talking about are for my generation. And what's beautiful about this is if we reform Social Security, we get to guarantee the benefits for our current seniors, but then you allow me to plan for the benefits I'm going to have when I retire. And if we do it, we can succeed in this reform.

We've heard a lot about taxes as well. And so we all know here that the top tax rate, 35 percent, and a family who makes $350,000 a year falls into that tax category. And so I would, Madam Chairwoman, suggest to my friends on the left, why don't we do this. Let's bump that tax rate up—not to 35 percent, maybe 50 percent. No, let's go 100 percent. Let's take every dollar of a family that makes $350,000 a year or more, let's take every single dollar from them. And if we do that, we still can't balance the budget. So let's go to the next level. Let's go to the next highest rung of income earners, those who make $200,000 or more as a family. A mom makes $100,000; a dad makes $100,000. We would all agree they're wealthy. Let's take 100 percent of every dollar they make as well.

The Acting CHAIR. The time of the gentleman has expired.

Mr. BRADY of Texas. I yield the gentleman 1 additional minute.

Mr. DUFFY. And if you do that, you still can't balance the budget.

You cannot tax your way out of this problem. We have to reduce our spending. If we reduce our spending and we reform our Tax Code, we can bring prosperity back to this country. But to sit here in this House and tell the American people that we can tax our way out, the bottom line is you can tax every penny of every profit of the wealthiest Americans and you can't balance the budget.

Madam Chairwoman, I think we have to take a serious look at Congressman RYAN's budget. I'm willing to consider other commonsense solutions that are going to get this country back on track, but ones where we are going to demagogue plans and say we just have to raise taxes and not reform are not real solutions. That is going to give us more of the same.

Mr. HINCHEY. Madam Chairman, may I inquire as to the time remaining?

The Acting CHAIR. The gentleman from New York has 12 minutes remaining. The gentleman from Texas has 9 minutes remaining.

Mr. HINCHEY. I yield 5 minutes to the gentleman from Maryland (Mr. VAN HOLLEN).

Mr. VAN HOLLEN. I thank my colleague.

The gentleman from Texas mentioned the fact that as part of the Affordable Care Act last year we made some reforms in Medicare. Yes, we did. We got rid of the overpayments to the private plans, the Medicare Advantage plans. Why did we do that? Because they were costing the taxpayer 114 percent of the fee-for-service, which is why this notion, frankly, that by saying to seniors you can't stay in Medicare now, you've got to go into the private insurance market, has been disproven by our experience most recently.

□ 2110

So we said we're not going to overpay them. And you know what? We used some of those savings to close the prescription drug doughnut hole that seniors fall in. We used some of those savings.

Now, it's important to understand that the Republican budget, even though there was a lot of demagoguery about that, you kept those savings, but what you didn't do is continue to close the doughnut hole. Immediately upon passage of the Republican budget, that doughnut hole will stop closing for seniors.

I want to pick up on a point Mr. GARAMENDI made about Medicaid because, as this chart indicates, the great

majority of funds for Medicaid go to seniors and individuals with disabilities. Make no mistake, this happens immediately. We're not talking about 10 years from now, 8 years from now. This happens right away.

Now, Medicaid is a program where actually the costs of care have grown much slower than the rest of the health care market, including the private market, and yet it is a program that is stretched very thin. You take $700 billion-plus out of that system, you are going to be putting people at serious risk, already overstretched programs.

So what choice did you make? Well, this is what choice you made with respect to Medicaid.

You cut about $771 billion. Guess what? You returned to the tax rates that were in effect on the top 2 percent income earners during the Clinton administration; over 10 years, $800 billion. Those are the choices you're making. Put all of these individuals at risk—seniors in nursing homes, assisted living facilities, poor kids—so that you can provide that tax break.

I've heard it said on the floor that, oh, boy, if we do that, if we go back to the Clinton-era tax rates, that's going to really hurt the economy. That's going to hurt jobs.

Look at this. Here's the Clinton-era tax rate: 20 million jobs were created during that period of time. Here's the current tax rate, end of the Bush administration: 653,000 jobs lost.

The history tells the story. The reason is because there are lots of factors that go into decisions by businesses how to invest. And while, obviously, tax rates are a part of it, they are not the major driver in the economy.

I've heard it said that this is going to hurt small businesses. I hope one thing that we can agree on is that small businesses are the engine of our economy. They're what make this economy go.

And so we always hear from our Republican colleagues, well, you go back to the Clinton era rates for the top, you're going to hurt small businesses. Well, I hope everybody will look at the Joint Committee on Taxation. What they say is that there are only 3 percent of small businesses who fall into that higher income category, because we're talking about taxable income. Only 3 percent of small businesses fall into those rates.

Now, we hear from our Republican colleagues, oh, that's true it's only 3 percent, but it's 50 percent. Well, here. Fifty percent of the income comes from those 3 percent. Why do you think that is? Well, look at the same Joint Committee on Taxation report. Many such businesses are hardly ''small.''

In 2005, over 12,000 S corporations and over 6,000 partnerships grossed more than $50 million. There's your mom-and-pop store. There's your mom-and-pop store working hard as a small business trying to make ends meet. Those are what Republicans are calling small businesses.

I'm going to give you some examples of those small businesses. And there are lots of them, but just to give people an idea of the Republican definition of small businesses: major Wall Street investment house KKR; one of the big four accounting firms, Pricewaterhouse—these are S corporations—Fortune 100; Pipeline Company; Enterprise GP Holdings; Washington law firms.

The Acting CHAIR. The time of the gentleman has expired.

Mr. HINCHEY. I yield the gentleman an additional 1 minute.

Mr. VAN HOLLEN. Washington law firms.

I want to point out, these firms are doing good work. There is nothing wrong with what these firms are doing. But don't tell the American people that these are small businesses. Over $50 million a year. They can help do their share to get our deficit under control.

Go back to the Clinton administration rates. Let's have a balanced approach. Yes, we need to do cuts. We understand that. But as the bipartisan fiscal commission said, you've got to do revenues, too, and if you don't, here's what happened:

President Bush inherited a $5.6 trillion surplus from the Clinton administration, and where did it go? When President Obama was sworn in, the day he put his hand on the Bible, he faced a deficit in that year of over $1.3 trillion and a 10-year deficit of over $10 trillion.

Let's have a balanced approach. Let's have shared sacrifice. Let's be serious about getting our deficits under control.

Mr. BRADY of Texas. Yielding myself 30 seconds, I can't help but think many Democrats are eager for everyone else to sacrifice. What about government? Why can't government sacrifice a little? All of those obsolete agencies and all of those wasteful programs, the money they spit away on stimulus programs and to bail out anyone who needs it. Maybe it is time for shared sacrifice, and it can start with the big, fat, bloated Federal Government.

At this time, I'd like to yield 5 minutes to a physician who has delivered more than 3,000 babies in his life, is a valued member of the Joint Economic Committee, and expert on health care and many of our health care entitlements, the gentleman from Texas (Mr. BURGESS).

Mr. BURGESS. I thank the gentleman for the recognition, and it is an important debate that we're having tonight. Madam Chairwoman, I hope that people are watching the debate because this really does set the tone, set the course, set the compass for the future of our country. And this is a debate that really should not be partisan, although we certainly have heard some partisan references. I may even make one or two myself.

But right now intergenerational expectations are down. And in that murky environment, we now have PAUL RYAN come forward and bringing us a fact-based budget that provides a pathway for America's future. Everyone knows the rising cost of health care is a serious threat—not just to our Federal Government but to our prosperity in general. Unfortunately, the President last year, and the Democratic majority that was present in Congress last year, made the problem worse.

Here's the simple truth. Instead of reforming Medicaid and Medicare and using the savings for deficit reduction, the Democrats spent every penny of savings, every single penny of savings and then a lot more on a new entitlement program. Incredibly, they accelerated the crisis, and Medicare and Medicaid are even more in peril today than they were before this all started in 2009. They found a fire, and they put it out with gasoline, and is it a surprise that it's worse?

In contrast, the budget that we're debating tonight, the Ryan budget, saves Medicare and Medicaid for future generations and uses reforms to make the programs financially sustainable.

Now, according to the Congressional Budget Office, the Democratic plan that we know as the Patient Protection and Affordable Care Act would increase spending by almost $1½ trillion, primarily by expanding Medicaid and creating new subsidies to buy health insurance. The so-called Affordable Care Act would increase coverage for the insured and uninsured, provide coverage for the uninsured, but that also is going to create greater demand for health care. But at the same time we put in constraints. We limit physician education and training. We limit testing and patents for drugs and devices. We restrict the very supply of health care. And, consequently, much of the increased demand will in fact deliver us higher prices, not more services.

The Congressional Budget Office and chief actuary at the Center for Medicare and Medicaid Services who scored the legislation readily admit that they did not include the price effects of the increased demand for services.

□ 2120

In fact, the chief actuary at the Center for Medicare and Medicaid Services, his report wasn't even released until 3½ weeks after you passed the bill a little over a year ago and signed it into law. Thus, the official budget estimates understate the true cost of the amount of spending that was contained within this health care law.

Secondly, the available budget estimates ignore the negative impact of higher taxes on economic growth. An almost 4 percent surtax on interest, dividends, and capital gains for those earning over $250,000 a year will reduce business investment and employment. Thus, the new tax will reduce economic growth and generate less revenue than expected. This problem cannot be fixed by simply raising taxes on the American people.

Thirdly, the budget estimates assume a 29 percent across the board reduction in Medicare physician payments in 2012 and beyond, as well as continual reductions in other Medicare provider payments, but both the CBO and the Medicare actuary have called the reductions unrealistic. In fact, Chief Actuary Foster said if you believe this, then I have got good news for you about the future of Medicare. But we all know that the reality does not match the expectations.

Then here is the other problem, the Independent Payment Advisory Board. And I have got a great deal of sympathy with my colleagues on the Democratic side of the aisle. When you passed the Affordable Care Act the first time, you did not include the Independent Payment Advisory Board because you saw through that. You saw that as a trick, a trap. Yet when you got the bill from the Senate that you in turn felt you had to pass, it contained the Independent Payment Advisory Board.

What does the Independent Payment Advisory Board do? Well, it gets 15 people, goodness knows who they are, goodness knows who selects them, and they are going to deliver to Congress a menu of cuts. We either get to vote them up or down. Sure enough, we get to participate in that. But if we vote them down, we have got to come forward with an identical dollar figure on cuts. And if we are unable to do that, and when has that ever happened in this body, if we are unable do that, the Secretary of Health and Human Services the following April 15, that is tomorrow, gets to implement those cuts anyway.

The Acting CHAIR. The time of the gentleman has expired.

Mr. BRADY of Texas. I yield the gentleman 1 additional minute.

Mr. BURGESS. Then what happened yesterday? The President, in talking about his vision for the budget—by the way, his second vision for the budget this year—doubled down on the Independent Payment Advisory Board and said it's such a good idea we're going to do even more.

You know Elias Zerhouni, the former head of the National Institutes of Health, talked about a day medicine is going to become much more personalized, personalized, predictive, therefore more preventive and requiring more participation by patients. Wouldn't it be great, following Chairman RYAN's vision, that we personalized Medicare to match that personalized medicine that our children and our grandchildren are going to enjoy in the future?

Instead, we are going to end up with more of the same, which is a benevolent, albeit benevolent central planner, moving those data points around on a spreadsheet. Why not put the power back in the hands of the American people? That's what the Ryan budget plan does. We ought to support his effort and be grateful for its presence.

Mr. HINCHEY. Madam Chair, can you tell us how much time we have left on both sides?

The Acting CHAIR. The gentleman from New York has 6 minutes remaining. The gentleman from Texas has 2½ minutes remaining.

Mr. HINCHEY. Madam Chair, I yield 3 minutes to the gentleman from Vermont (Mr. WELCH).

Mr. WELCH. I thank the gentleman for yielding.

Madam Chair, one of the great companies in this Nation, and a big company in Vermont, is International Business Machines. This year they are about to celebrate their 100th anniversary. I was speaking to some folks from IBM in my office a few days ago, and they told me the story of what happened to them in 1992.

The world was turning upside down in the tech industry. Companies that wanted to survive had to make big decisions. They had 400,000 employees, and there was some question as to whether they were going to make payroll. They had to make changes. They did two things. They looked at every single element of their operation. They looked at every single line item in their spending. In every single place they could make a cut, tough as it was, they did. They made cuts. But they also said where do we have to be in 10 years, and what do we have to do to get there?

As nerve-wracking as it was for those folks at IBM, they made decisions to invest money in acquisitions, in research and development, to meet a plan that required investment, that required spending at a time when they were doing every single thing they could to save every single nickel.

Now IBM is stronger than ever, and it's going to celebrate its 100th anniversary. This country has to make similar decisions. We have to cut. There is not an argument here. I listened to PAUL RYAN when he gave his opening statement, and he said we have to leave this country and its fiscal state better off for our kids and grandkids. He is right. There is no question about it. That means like companies that look at a balance sheet, we have to look every single place we can to save money.

The criticism about many governmental programs you know is right, we know is right. Wherever we can find that waste, fraud, or abuse, let's get rid of it. That serves nobody, Republican or Democrat. But on the other hand, we have to make investments. There are places we in fact do have to spend money. And we have seen that in the history of our country. So judgments have to be made.

My question about the Republican budget is basically the premise in the budget. It's not the goal. Mr. RYAN stated that well. He speaks for me when he says about that obligation to leave our kids better off. But there are two premises in the budget as I see it. One is that lower taxes are always better and will lead to growth. Sometimes that's true, but not always. We have to have revenues to pay for infrastructure, to pay for things like broadband deployment, to pay for the National Institute of Science, things that we might argue about where is the best priority, but we need revenues to do things like a company needs revenues to make investments.

The second premise is that less spending is always better than more investment. Those, as I see it, are the two premises that are in the Ryan budget. And those are debatable.

Now, the other aspect of the budget that in my view, Madam Chair, is lacking is what's off the table. It's not what's on the table. I don't agree with the Medicare proposal in the Ryan budget. But it's fair to put Medicare on the table for debate. We've got to make that more affordable.

The Acting CHAIR. The time of the gentleman has expired.

Mr. HINCHEY. I yield the gentleman an additional 30 seconds.

Mr. WELCH. What is the problem is that the Pentagon is off the table, the war in Iraq and Afghanistan are still on the credit card and off the table. Whatever our positions are on some of these matters, including military, we will all stand up, we have to pay our way.

Mr. BRADY of Texas. Madam Chairman, I reserve the balance of my time.

Mr. HINCHEY. Madam Chair, I yield 2 minutes to the gentleman from California (Mr. GARAMENDI).

Mr. GARAMENDI. Madam Chair, I want to speak directly to the senior citizens of America and to those who want to become senior citizens. The Republican budget destroys, terminates Medicare as we know it today. Under the Republican budget, in 10 years Medicare will no longer exist as it is today, a guaranteed benefit available to every American who turns 65. It will be over. Instead, you will be given a voucher, a voucher that will be insufficient to pay for your health insurance, and there is no guarantee what that health insurance will be.

Let me speak also to those who are on Medicare today. The Republican budget over the next 10 years removes three-quarters of a trillion dollars, $771 billion, from Medicaid. Medicaid provides services to the aged, blind, and disabled. Those senior citizens that are in nursing homes stand the risk of being thrown out of the nursing homes.

I want to now speak to those who want to become 65, who want to live long enough to get into Medicare. If you are 55 years of age and younger, you will not have Medicare if the Republican budget becomes law. It is over. It is terminated. It is gone. Instead, you will be given a voucher to go talk to the insurance companies. And what will you talk about? You will talk about pain, pain, pain.

They say that there is no tax shift in this. In fact, there is a $6,000 tax equivalent to every person 55 and younger.

You are going to wind up paying an additional $6,000.

□ 2130

Mr. BRADY of Texas. Madam Chair, I yield myself 30 seconds.

I would remind our listeners that it was our Democrats who fought the prescription drug program that has been so critical for seniors to buy their medicine. They slashed half a trillion dollars from Medicare to pay for the new ObamaCare plan, and they did nothing to preserve Medicaid for our seniors.

The exaggerations today that are flying through this Chamber really are shameful. What the Republicans are intent on doing is preserving Medicare for every generation. We are not going to bury our heads in the sand.

The Acting CHAIR. The time of the gentleman has expired.

Mr. BRADY of Texas. I yield myself an additional 15 seconds.

The Democrats have failed to lead on these important entitlement programs. They had their chance. They failed. The Republicans will lead, and we will preserve those programs.

Mr. HINCHEY. Madam Chair, how much time remains?

The Acting CHAIR. The gentleman has 30 seconds remaining.

Mr. HINCHEY. I yield myself the balance of my time.

The circumstance that we are dealing with is to continue the progress that we have made. We have provided health care for people through Medicare and Medicaid.

The opposition here in this district wants to eliminate that. They want to cut back on Medicare and make it more difficult and more expensive.

We have expanded the opportunity for people to get jobs. They want to eliminate that. We have tried to make this whole system more equitable, more fair, and more genuine. They are trying to provide more funding for the wealthiest people and less for the working people and fewer opportunities for the working people.

For all of those reasons, we oppose this legislation, and we hope that most of the population of this district will oppose it as well.

The Acting CHAIR. The time of the gentleman has expired.

The gentleman from Texas is recognized for 1¾ minutes.

Mr. BRADY of Texas. Madam Chair, how many Americans really think this country is heading in the right direction? How many Americans, middle class Americans, believe that these deficits, trillion-dollar deficits, can go on and on as far as the eye can see? Although Americans believe that they have better lives and opportunities than their parents, how many of them question whether their children will have the same opportunities in America today?

You know, we can't continue to go down this path, and that's what the Ryan Republican budget is all about, a new direction for America where we no longer hide our heads in the sand and ignore the problems facing America.

PAUL RYAN and the Republican budget tell the truth to the American public about how serious a problem we face as a Nation. It offers real commonsense solutions to address them. It gives them ideas that work, solutions that work. It creates economic growth and job creation by fostering the right business climate for growth in America.

It tackles our spending, dangerous spending deficits, by reducing those over time, implying and imposing discipline on our Federal Government. So they have to live within the same means our families and small businesses have to. It provides real security for our seniors and Medicare and Medicaid and Social Security.

More importantly, it offers hope for young people who don't think those programs will ever be around again. PAUL RYAN and the Republican budget offer some hope that they don't have today, and it repeals this terrible ObamaCare and gives America hope again.

I strongly support this budget.

Mr. COOPER. Madam Chair, I believe that America should solve its biggest problems in a bipartisan fashion. It takes Democrats, Republicans and Independents working together to find the best solutions. This is particularly true of budgets, which determine so much of the future of our great Nation. Unfortunately, budget season is one of the most partisan times in Congress, despite the fact that the public has been demanding that we stop the bickering.

I have been working hard to offer this House the chance to vote on a budget that is modeled on the President's Fiscal Commission, known as the Bowles-Simpson Report. I support this approach to budgeting because it is, so far at least, the only serious, bipartisan plan for reducing our runaway federal budget deficits. The Bowles-Simpson Commission received the support of Commission members as diverse as the liberal Democratic Senator DICK DURBIN and the conservative Republican Senator TOM COBURN. The Commission received such widespread support because it did three things:

Cut the deficit by $4 trillion over the next ten years;

Shared the sacrifice: put every federal program on the table; and

Provided a balanced approach: 2/3 spending cuts and 1/3 tax reform.

While there are many other important features of the Bowles-Simpson Report, it is important to understand that budget resolutions never include detailed recommendations of any reform plan. Budget resolutions only include a broad framework and mandate that the committees of jurisdiction figure out ways to achieve the necessary savings and reform. That's why the Cooper Substitute makes House committees reduce the deficit by as much as Bowles-Simpson recommends, but does not tell them exactly how to do it.

I am proud to have the full support and vote of my Republican colleague, the gentleman from Virginia FRANK WOLF, who worked with me to pass the Cooper-Wolf SAFE Commission Act to form a Fiscal Commission last Congress. The SAFE Act became the model for the Bowles-Simpson Commission. FRANK WOLF has worked harder than any member I know to get the leadership of both parties, in both houses, and the White House, to take our budget deficit problems seriously and to act promptly in order to reduce their burden on future generations. FRANK WOLF is a true leader, and he is, in my opinion, a genuine American hero on fiscal responsibility.

I appreciate the Rules Committee making the Cooper Substitute in order. I hope that this return to more open debates in the House becomes the norm so that the best ideas, not just the most partisan ideas, can reach the House floor. Chairman DREIER has already taken important steps in this regard so that the House can once again work its will, regardless of politics or party.

Madam Chair, I had hoped to offer my Substitute tonight, even though the hour is late, not believing that it ever had a ghost of a chance of passage, but believing that the votes deserved to be counted on this important proposal. The timing is not right, however, for several unforeseeable reasons.

Yesterday, the President made an important speech on the budget that, temporarily at least, has inflamed partisan passions on both sides of the aisle, making a vote tomorrow less likely to be a reasoned one. I think the President should be complimented for moving the debate in a positive direction, regardless of the spin that each side has given it. For example, if the President had called for $4 trillion of deficit reduction as recently as two months ago, he would have been denounced by many people. Yesterday, he was more favorably received. I give Republicans, particularly my friend, the gentleman from Wisconsin and Chairman of the Budget Committee PAUL RYAN, credit for having moved the debate so far. Mr. RYAN, just like the President, has been unfairly vilified, which does nothing to reduce the debt burden on future generations. Finger-pointing does not solve problems.

Another crucial development is the sensitive nature of the quiet Senate negotiations on deficit reduction, particularly the so-called Gang of Six. We all realize that, because the other body is less partisan than today's House, a comprehensive solution is more likely to originate in that chamber. The fact that Senators ranging from DURBIN to COBURN have already supported Bowles-Simpson is proof. I do not think it is wise to risk doing anything to derail or impair those behind-the-scenes negotiations, which I am told by key senators in both parties could be the result of a premature House vote.

The day will come, probably with the necessary debt ceiling increase this summer, for a comprehensive, bipartisan solution to our deficit problem. For that to happen, the partisan passions of this budget debate must burn out. Members must go back home and brag about their favorite budget before they get realistic and agree on a spending plan that can actually pass the House and Senate and be signed into law by the President. Every day we wait to solve these problems costs us dearly; by some estimates, as much as $8 billion a day. I wish that this cycle of additional politics were not necessary—and I have done everything I can to avoid it—but there are no shortcuts in a democracy.

The time spent on the Cooper Substitute has not been wasted. Countless members in

both parties have learned the contents of the Bowles-Simpson Report because they thought they might have to vote for a budget that embodies spending cuts of such size and tax reforms of such nature that it would actually make a difference. Nothing so concentrates the mind as the fear of voting. Numerous members of both parties have told me that they intended to support Bowles-Simpson either on a stand-alone basis or in addition to supporting another budget of their choice. I appreciate the interest and genuine goodwill that so many members have shown in asking questions, comparing alternatives, and making the tough decisions that are required by budgeting. I think that the work that I, and my allies like FRANK WOLF, have done is important for laying the groundwork for an eventual bipartisan budget that will be required, no later than this summer, in order to start solving our Nation's deficit problems.

Madam Chair, this Congress must act very soon indeed to start solving our Nation's fiscal problems. I wish today were that day. I voted today for $38 billion in cuts to appropriations for the remaining few months of this year, but that is only a tiny beginning and only affects 12% of our federal budget. Serious reform means getting the House to pass something as large, as important, and as bipartisan as Bowles-Simpson-sized reforms. Bowles-Simpson is not the only solution for our problems, but it is the fastest, fairest, and most feasible solution that we know of today. As soon as this House is able to consider it calmly and sensibly, the House must do so.

COOPER BUDGET SUBSTITUTE

The Cooper Budget Substitute takes the benchmarks set by the President's bipartisan National Commission on Fiscal Responsibility and Reform and puts them into a budget resolution framework. It would reduce the deficit by $4 trillion over the next 10 years with 2/3 spending cuts and 1/3 tax reform. The Commission proposed a series of specific recommendations for achieving these benchmarks, but these are not included in the Cooper Substitute. Instead, like all budgets, this resolution provides a blueprint for committees of jurisdiction to determine how spending cuts of this size should be made.

The Cooper Substitute embodies the only bipartisan approach for getting America back on track. The U.S. federal budget is on an unsustainable path. For years, members have talked about fiscal responsibility. It's time for those who claim to be fiscally responsible to walk the walk, not just talk the talk.

OVERVIEW

	2021 Deficit as % GDP	2021 Debt as % GDP
Ryan	−1.6%	67.5%
Cooper	−1.6%	69.4%

Details of the Cooper Budget Substitute are as follows:

Shared sacrifice: everything is on the table

Big enough to matter: Cuts the deficit by over $4 trillion over the next 10 years

Balanced approach: Achieves deficit reduction with 2/3 spending cuts, 1/3 tax reform

Fast enough to matter: Reaches primary balance in 2015

Reduces the size of government: Returns to 2008 spending levels by 2013

Caps revenue at 21% of GDP; gets spending below 22% and on a path to 21% of GDP

Bipartisan cooperation to ensure 75-year solvency of Social Security

Tax reform:

Reduces tax rates for individuals, small businesses, and corporations

Reduces the $1.1 trillion in annual tax expenditures and tax give-aways

Mr. RAHALL. Madam Chair, I rise in strong opposition to the Republican's "Road to Ruin" Budget Resolution for a variety of reasons, including because it will destroy hundreds of thousands of American transportation jobs—jobs lost in every state—and will severely jeopardize our Nation's economic competitiveness.

This Budget slashes investments in our people—from ending Medicare as we know it to destroying the family-wage jobs of highway construction—all the while, providing a double-digit percentage tax break for millionaires that most of them will not even notice. It makes Big Oil smile from ear to ear knowing that they can exploit $40 billion in tax loopholes, yet the Budget completely neglects millions of American potholes.

As the Ranking Member on the Committee on Transportation and Infrastructure, and given that Congress faces major surface transportation reauthorization legislation this year, let me focus for a moment on what this Budget does to highway and transit infrastructure investment.

Consider this for a moment. Today, China spends nine percent of its GDP per year on infrastructure. India spends five percent of its GDP per year on infrastructure. Yet, the United States of America only spends 1.9 percent of its GDP per year on infrastructure. Woefully inadequate as it stands.

Yet, the Republican Budget cuts highway, highway safety, and transit investment by about one-third: one-third less bridge repair, one-third less safety improvement, and one-third less bus service is where this Budget leads us—destroying family-wage highway and transit construction jobs all along the way. And placing us in an even less competitive position than we already are against countries like China and India. Incredible. Simply incredible.

Over the next six years, the current budget baseline investment level for highway, highway safety, and public transit investments is $331 billion, including $316 billion of contract authority from the Highway Trust Fund and $15 billion from the General Fund.

Based on the assumptions included in the Republican Budget, the nonpartisan Congressional Budget Office estimates that the Republican Budget provides only $219 billion of Highway Trust Fund funding over the next six years. In effect, the Republican Budget slashes surface transportation investment by more than $100 billion over the next six years.

Let me repeat that, because I want my colleagues to be very aware of what this budget proposes to do in this area. Today is the 100th day that the Republicans have been in control of the House and today they are proposing to cut more than $100 billion from investments in America's future. Investments that keep our economy moving and help to ensure that America remains a good place to do business. One hundred days in control of the House and they want to slash $100 billion from transportation investments. They haven't brought a single jobs bill to the Floor of this House, and yet, today, to mark their 100th day anniversary, here we are debating a Budget that will destroy half a million highway jobs. Amazing.

According to a CBO analysis of the Republican Budget assumptions, this Budget will slash current year highway funding from $41.1 billion to approximately $27 billion in fiscal year 2012. A 34 percent cut in year one of the reauthorization bill will destroy more than 490,000 jobs over the coming years. West Virginia cannot afford a $143 million cut in highway investment next year. This investment and its 5,000 good-paying jobs are critical to our mountain economy and ensuring that rural America shares in the great opportunities provided by our country. Put simply, middle class Americans cannot afford the Republican "Road to Ruin" budget.

Finally, the Republican Budget destroys any pretext that Republicans will restore the highway and transit budget firewalls that they wiped away on the first day of their new majority in the 112th Congress. When Congress enacted those firewalls in 1998 to restore the trust to the Highway Trust Fund and keep faith with the traveling public, I stood shoulder-to-shoulder with former Republican Committee Chairman Bud Shuster. We lost that battle on the Budget at 3:00 a.m. in May 1997, but, one year later, won the war with enactment of the Transportation Equity Act for the 21st Century establishing the budget firewalls, which have served the traveling public for the past 14 years. As their very first act in the majority, Republicans broke the "trust" of the Highway Trust Fund.

There was a time when Republicans were proud of their heritage in leading the way on infrastructure investment. They were the party of Lincoln and Eisenhower.

To my good friends across the aisle, do not let infrastructure investment become a mere footnote in the legacy of your party.

Join with me and let us rebuild America.

Let us provide the building blocks to ensure that every community and all of our people have an opportunity to succeed.

I urge my colleagues to join with me and defeat H. Con. Res. 34, the Republican Budget Resolution.

REPUBLICAN BUDGET RESOLUTION STASHES FEDERAL-AID HIGHWAY INFRASTRUCTURE INVESTMENT

[FY 2012 Highway Cuts Destroy More than 490,000 Jobs, April 15, 2011]

State	FY 2011 Estimated (P.L. 112–5 & H.R. 1473)	FY 2012 Republican Budget Res. (H. Con. Res. 34)	FY 2011 Estimated & Republican Budget Res. Difference	Jobs Lost under Republican Budget Resolution (FY 2012 Cuts Only)
Alabama	$723,817,235	462,250,406	−,566,829	−9,097
Alaska	428,269,900	285,374,201	−142,895,699	−4,970
Arizona	693,234,143	447,806,436	−245,427,707	−8,536
Arkansas	482,477,889	308,255,243	−174,222,646	−6,059
California	3,431,126,457	2,171,036,650	−1,260,089,807	−43,825

REPUBLICAN BUDGET RESOLUTION STASHES FEDERAL-AID HIGHWAY INFRASTRUCTURE INVESTMENT—Continued

[FY 2012 Highway Cuts Destroy More than 490,000 Jobs, April 15, 2011]

State	FY 2011 Estimated (P.L. 112–5 & H.R. 1473)	FY 2012 Republican Budget Res. (H. Con. Res. 34)	FY 2011 Estimated & Republican Budget Res. Difference	Jobs Lost under Republican Budget Resolution (FY 2012 Cuts Only)
Colorado	510,719,211	322,886,021	−187,833,190	−6,533
Connecticut	471,433,185	301,400,538	−170,032,647	−5,914
Delaware	158,128,144	99 887,076	−58,241,068	−2,026
District of Columbia	153,577,571	95,065,701	−58,511,870	−2,035
Florida	1,789,644,393	1,165,594,138	−624,050,255	−21,704
Georgia	1,220,785,141	791,842,153	−428,942,988	−14,918
Hawaii	162,407,438	101,173,351	−61,234,087	−2,130
Idaho	271,135,551	174,914,534	−96,221,017	−3,346
Illinois	1,351,823,020	863,482,496	−488,340,524	−16,984
Indiana	901,039,828	585,100,712	−315,939,116	−10,988
Iowa	457,309,004	287,486,787	−169,822,217	−5,906
Kansas	363,077,071	225,819,716	−137,257,355	−4,774
Kentucky	632,175,735	404,926,310	−227,249,425	−7,904
Louisiana	647,903,984	410,682,482	−237,221,502	−8,250
Maine	178,205,952	109,980,962	−68,224,990	−2,373
Maryland	573,449,606	361,042,525	−212,407,081	−7,387
Massachusetts	583,187,497	363,290,346	−219,897,151	−7,648
Michigan	1,003,912,719	637,456,986	−366,455,733	−12,745
Minnesota	600,731,686	382,954,688	−217,776,998	−7,574
Mississippi	452,174,362	286,047,250	−166,127,112	−5,778
Missouri	858,241,416	549,923,220	−308,318,196	−10,723
Montana	364,842,726	236,468,527	−128,374,199	−4,465
Nebraska	276,860,675	173,666,205	−103,194,470	−3,589
Nevada	345,191,710	221,019,688	−124,172,022	−4,319
New Hampshire	157,856,187	99,692,079	−58,164,108	−2,023
New Jersey	945,386,072	603,896,272	−341,489,800	−11,877
New Mexico	341,222,251	217,735,976	−123,486,275	−4,295
New York	1,606,218,296	1,010,339,801	−595,878,495	−20,724
North Carolina	987,134,805	634,033,049	−353,101,756	−12,281
North Dakota	237,776,846	149,197,373	−88,579,473	−3,081
Ohio	1,250,956,575	800,549,144	−450,407,431	−15,665
Oklahoma	605,192,291	383,540,118	−221,652,173	−7,709
Oregon	468,329,024	294,096,576	−174,232,448	−6,060
Pennsylvania	1,568,798,108	991,784,840	−577,013,268	−20,068
Rhode Island	207,603,230	128,123,683	−79,479,547	−2,764
South Carolina	595,668,018	383,573,586	−212,094,432	−7,376
South Dakota	262,505,740	167,067,361	−95,438,379	−3,319
Tennessee	785,406,105	504,632,610	−280,773,495	−9,765
Texas	2,987,661,091	1,933,957,611	−1,053,703,480	−36,647
Utah	307,014,758	195,286,348	−111,728,410	−3,886
Vermont	191,887,512	118,612,958	−73,274,554	−2,548
Virginia	948,805,255	608,667,388	−340,137,867	−11,830
Washington	634,850,084	395,948,876	−238,901,208	−8,309
West Virginia	407,534,178	264,177,667	−143,356,511	−4,986
Wisconsin	686,452,037	445,591,025	−240,861,012	−8,377
Wyoming	232,719,377	147,196,966	−85,522,411	−2,974
Federal Lands and Other Allocated Programs	$4,603,138,911	$3,695,463,345	−$907,675,566	−31,568
Total	$41,107,000,00	$27,000,000,000	−14,107,000,000	−490,627

Note: This table was prepared by Committee on Transportation and Infrastructure Democratic Staff based on technical assistance from the Federal Highway Administration (FHWA). The FY 2011 Estimated column represents the state-by-state distribution of the Federal-aid Highway obligation limitation assuming enactment of H.R. 1473. Based on the Highway Trust Fund parameters included in H. Con. Res. 34, the Congressional Budget Office estimates that the FY 2012 Federal-aid Highway obligation limitation would be $27 billion. The FY 2012 Republican Budget Resolution column reflects the state-by-state distribution of these funds under current FHWA apportionment factors. The Jobs Lost column is based on the 2007 FHWA model on the correlation between highway infrastructure investment and employment: $1 billion of Federal-aid Highway investment creates or sustains 34,779 jobs over a seven-year period.

Mr. COSTELLO. Madam Chair, I rise today in support of the budget agreement for the rest of fiscal year 2011. This bill, which contains nearly $40 billion in spending cuts, brings a much-needed conclusion to this year's budget debate.

While I have concerns about some of the cuts in this bill—particularly to the Army Corps of Engineers and the Federal Aviation Administration—doing nothing is simply not an option. The American people expect us to cut spending and reduce the deficit, and this agreement represents a compromise that moves us forward.

As we take up next year's budget and raising the debt limit, it is my hope that we will do so carefully without undermining our nation's economic recovery. And, as President Obama noted yesterday during his budget address, there must be shared sacrifice. Upper income Americans, corporations and the Department of Defense must be part of the process of cutting spending and increasing revenues, while we ensure that our social safety net remains intact. Programs for our seniors and the poor must not be singled out during this debate.

Madam Chair, we can find budget savings across all departments of the government while still making strategic investments and protecting the safety and security of the American people, and I look forward to continuing this work.

Ms. RICHARDSON. Madam Chair, the Republican budget for FY 2012 continues the reckless Republican fiscal policy. It takes a slash and burn approach to the budget, rather than going line by line to see where we can afford to cut and where we cannot. This is a budget that favors Big Oil over the middle class, asks for sacrifice from seniors who can barely make ends meet, and fundamentally alters the social contract in our America.

The budget would open an enormous hole in our country's social safety net by turning Medicare into a voucher program. These fixed-value vouchers do not account for the yearly increases in health care costs and will increase seniors' annual out-of-pocket expenses by nearly $7,000. Their budget would decimate our primary assistance to the poor by turning Medicaid into a block grant. This is the Republican vision: to balance the budget on the backs of the seniors and the poor.

Madam Chair, Democrats have a better way. We understand that our current economic situation calls for a balanced approach that protects our fragile recovery. Our plan would take on our deficits in a responsible way, while continuing to invest in the things that make our country strong: education, health care, innovation, and clean energy. Democrats will balance the budget without reneging on the bedrock promise of Social Security and Medicare.

Madam Chair, this Republican budget moves us backwards. I urge my colleagues to join me in voting against it and taking a more sensible approach.

Mr. BRADY of Texas. I yield back the balance of my time.

The Acting CHAIR. All time for general debate has expired.

Pursuant to the rule, the amendment in the nature of a substitute printed in part A of House Report 112–62 is considered as an original concurrent resolution for the purpose of amendment and is considered read.

The text of the amendment in the nature of a substitute is as follows:

H. CON. RES. 34

Resolved by the House of Representatives (the Senate concurring),

SECTION 1. CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2012.

(a) DECLARATION.—The Congress determines and declares that this concurrent resolution establishes the budget for fiscal year 2012 and sets forth appropriate budgetary levels for fiscal years 2013 through 2021.

(b) TABLE OF CONTENTS.—

Sec. 1. Concurrent resolution on the budget for fiscal year 2012.

TITLE I—RECOMMENDED LEVELS AND AMOUNTS

Sec. 101. Recommended levels and amounts.
Sec. 102. Major functional categories.

TITLE II—RECOMMENDED LEVELS AND AMOUNTS FOR FISCAL YEARS 2030, 2040, AND 2050
Sec. 201. Policy statement on long-term budgeting.
TITLE III—RESERVES AND CONTINGENCIES
Sec. 301. Costs of the global war on terrorism.
Sec. 302. Effective date.
Sec. 303. Reserve fund for health care reform.
Sec. 304. Reserve fund for the sustainable growth rate of the Medicare program.
Sec. 305. Reserve fund for deficit-neutral revenue measures.
Sec. 306. Deficit-neutral reserve fund for rural counties and schools.
TITLE IV—BUDGET ENFORCEMENT
Sec. 401. Discretionary spending limits.
Sec. 402. Limitation on advance appropriations.
Sec. 403. Concepts and definitions.
Sec. 404. Adjustments of aggregates and allocations for legislation.
Sec. 405. Limitation on long-term spending.
Sec. 406. Budgetary treatment of certain transactions.
Sec. 407. Application and effect of changes in allocations and aggregates.
Sec. 408. Fair value estimates.
Sec. 409. Exercise of rulemaking powers.
TITLE V—POLICY
Sec. 501. Policy Statement on Medicare.
Sec. 502. Policy Statement on Social Security.
Sec. 503. Policy statement on budget enforcement.
TITLE VI—SENSE OF THE HOUSE PROVISIONS
Sec. 601. Sense of the House on a responsible deficit reduction plan must consider all programs, including those at the Pentagon and the other national security agencies.
Sec. 602. Sense of the House regarding the importance of child support enforcement.

TITLE I—RECOMMENDED LEVELS AND AMOUNTS

SEC. 101. RECOMMENDED LEVELS AND AMOUNTS.

The following budgetary levels are appropriate for each of fiscal years 2012 through 2021:

(1) FEDERAL REVENUES.—For purposes of the enforcement of this resolution:

(A) The recommended levels of Federal revenues are as follows:

Fiscal year 2012: $1,866,454,000,000.
Fiscal year 2013: $2,127,981,000,000.
Fiscal year 2014: $2,324,503,000,000.
Fiscal year 2015: $2,425,363,000,000.
Fiscal year 2016: $2,522,695,000,000.
Fiscal year 2017: $2,693,493,000,000.
Fiscal year 2018: $2,807,893,000,000.
Fiscal year 2019: $2,958,678,000,000.
Fiscal year 2020: $3,119,794,000,000.
Fiscal year 2021: $3,286,942,000,000.

(B) The amounts by which the aggregate levels of Federal revenues should be changed are as follows:

Fiscal year 2012: -$25,000,000,000.
Fiscal year 2013: -$227,000,000,000.
Fiscal year 2014: -$346,000,000,000.
Fiscal year 2015: -$406,000,000,000.
Fiscal year 2016: -$448,000,000,000.
Fiscal year 2017: -$482,000,000,000.
Fiscal year 2018: -$527,000,000,000.
Fiscal year 2019: -$544,000,000,000.
Fiscal year 2020: -$561,000,000,000.
Fiscal year 2021: -$597,000,000,000.

(2) NEW BUDGET AUTHORITY.—For purposes of the enforcement of this resolution, the appropriate levels of total new budget authority are as follows:

Fiscal year 2012: $2,858,545,000,000.
Fiscal year 2013: $2,835,737,000,000.
Fiscal year 2014: $2,905,952,000,000.
Fiscal year 2015: $2,970,061,000,000.
Fiscal year 2016: $3,114,578,000,000.
Fiscal year 2017: $3,224,937,000,000.
Fiscal year 2018: $3,330,942,000,000.
Fiscal year 2019: $3,490,088,000,000.
Fiscal year 2020: $3,639,728,000,000.
Fiscal year 2021: $3,767,274,000,000.

(3) BUDGET OUTLAYS.—For purposes of the enforcement of this resolution, the appropriate levels of total budget outlays are as follows:

Fiscal year 2012: $2,947,916,000,000.
Fiscal year 2013: $2,915,241,000,000.
Fiscal year 2014: $2,902,944,000,000.
Fiscal year 2015: $2,949,301,000,000.
Fiscal year 2016: $3,097,060,000,000.
Fiscal year 2017: $3,193,477,000,000.
Fiscal year 2018: $3,271,881,000,000.
Fiscal year 2019: $3,450,742,000,000.
Fiscal year 2020: $3,587,701,000,000.
Fiscal year 2021: $3,726,564,000,000.

(4) DEFICITS (ON-BUDGET).—For purposes of the enforcement of this resolution, the amounts of the deficits (on-budget) are as follows:

Fiscal year 2012: $1,081,462,000,000.
Fiscal year 2013: $787,260,000,000.
Fiscal year 2014: $578,441,000,000.
Fiscal year 2015: $523,938,000,000.
Fiscal year 2016: $574,365,000,000.
Fiscal year 2017: $499,984,000,000.
Fiscal year 2018: $463,988,000,000.
Fiscal year 2019: $492,064,000,000.
Fiscal year 2020: $467,907,000,000.
Fiscal year 2021: $439,622,000,000.

(5) DEBT SUBJECT TO LIMIT.—Pursuant to section 301(a)(5) of the Congressional Budget Act of 1974, the appropriate levels of the public debt are as follows:

Fiscal year 2012: $16,204,000,000,000.
Fiscal year 2013: $17,177,000,000,000.
Fiscal year 2014: $17,951,000,000,000.
Fiscal year 2015: $18,697,000,000,000.
Fiscal year 2016: $19,503,000,000,000.
Fiscal year 2017: $20,245,000,000,000.
Fiscal year 2018: $20,968,000,000,000.
Fiscal year 2019: $21,699,000,000,000.
Fiscal year 2020: $22,408,000,000,000.
Fiscal year 2021: $23,102,000,000,000.

(6) DEBT HELD BY THE PUBLIC.—The appropriate levels of debt held by the public are as follows:

Fiscal year 2012: $11,418,000,000,000.
Fiscal year 2013: $12,216,000,000,000.
Fiscal year 2014: $12,797,000,000,000.
Fiscal year 2015: $13,319,000,000,000.
Fiscal year 2016: $13,876,000,000,000.
Fiscal year 2017: $14,351,000,000,000.
Fiscal year 2018: $14,787,000,000,000.
Fiscal year 2019: $15,242,000,000,000.
Fiscal year 2020: $15,673,000,000,000.
Fiscal year 2021; $16,068,000,000,000.

SEC. 102. MAJOR FUNCTIONAL CATEGORIES.

The Congress determines and declares that the appropriate levels of new budget authority and outlays for fiscal years 2011 through 2021 for each major functional category are:

(1) National Defense (050):

Fiscal year 2012:
(A) New budget authority, $582,626,000,000.
(B) Outlays, $593,580,000,000.
Fiscal year 2013:
(A) New budget authority, $600,283,000,000.
(B) Outlays, $597,211,000,000.
Fiscal year 2014:
(A) New budget authority, $616,451,000,000.
(B) Outlays, $606,903,000,000.
Fiscal year 2015:
(A) New budget authority, $628,847,000,000.
(B) Outlays, $618,837,000,000.
Fiscal year 2016:
(A) New budget authority, $641,976,000,000.
(B) Outlays, $635,475,000,000.
Fiscal year 2017:
(A) New budget authority, $653,695,000,000.
(B) Outlays, $643,275,000,000.
Fiscal year 2018:
(A) New budget authority, $665,679,000,000.
(B) Outlays, $650,246,000,000.
Fiscal year 2019:
(A) New budget authority, $677,884,000,000.
(B) Outlays, $666,959,000,000.
Fiscal year 2020:
(A) New budget authority, $690,273,000,000.
(B) Outlays, $679,088,000,000.
Fiscal year 2021:
(A) New budget authority, $702,903,000,000.
(B) Outlays, $691,494,000,000.

(2) International Affairs (150):

Fiscal year 2012:
(A) New budget authority, $36,575,000,000.
(B) Outlays, $36,102,000,000.
Fiscal year 2013:
(A) New budget authority, $35,653,000,000.
(B) Outlays, $34,545,000,000.
Fiscal year 2014:
(A) New budget authority, $31,694,000,000.
(B) Outlays, $34,178,000,000.
Fiscal year 2015:
(A) New budget authority, $30,316,000,000.
(B) Outlays, $32,613,000,000.
Fiscal year 2016:
(A) New budget authority, $29,356,000,000.
(B) Outlays, $32,161,000,000.
Fiscal year 2017:
(A) New budget authority, $30,729,000,000.
(B) Outlays, $31,926,000,000.
Fiscal year 2018:
(A) New budget authority, $31,978,000,000.
(B) Outlays, $31,594,000,000.
Fiscal year 2019:
(A) New budget authority, $32,824,000,000.
(B) Outlays, $30,487,000,000.
Fiscal year 2020:
(A) New budget authority, $33,698,000,000.
(B) Outlays, $30,123,000,000.
Fiscal year 2021:
(A) New budget authority, $34,572,000,000.
(B) Outlays, $30,740,000,000.

(3) General Science, Space, and Technology (250):

Fiscal year 2012:
(A) New budget authority, $27,452,000,000.
(B) Outlays, $29,798,000,000.
Fiscal year 2013:
(A) New budget authority, $27,316,000,000.
(B) Outlays, $28,242,000,000.
Fiscal year 2014:
(A) New budget authority, $27,312,000,000.
(B) Outlays, $27,763,000,000.
Fiscal year 2015:
(A) New budget authority, $27,312,000,000.
(B) Outlays, $27,469,000,000.
Fiscal year 2016:
(A) New budget authority, $27,311,000,000.
(B) Outlays, $27,506,000,000.
Fiscal year 2017:
(A) New budget authority, $27,652,000,000.
(B) Outlays, $27,646,000,000.
Fiscal year 2018:
(A) New budget authority, $28,341,000,000.
(B) Outlays, $28,114,000,000.
Fiscal year 2019:
(A) New budget authority, $29,049,000,000.
(B) Outlays, $28,684,000,000.
Fiscal year 2020:
(A) New budget authority, $29,758,000,000.
(B) Outlays, $29,344,000,000.
Fiscal year 2021:
(A) New budget authority, $30,472,000,000.
(B) Outlays, $29,946,000,000.

(4) Energy (270):

Fiscal year 2012:
(A) New budget authority, $6,996,000,000.
(B) Outlays, $16,174,000,000.
Fiscal year 2013:
(A) New budget authority, $3,850,000,000.
(B) Outlays, $10,053,000,000.
Fiscal year 2014:
(A) New budget authority, $1,215,000,000.
(B) Outlays, $4,547,000,000.
Fiscal year 2015:
(A) New budget authority, $1,101,000,000.
(B) Outlays, $1,360,000,000.
Fiscal year 2016:
(A) New budget authority, $1,021,000,000.
(B) Outlays, $340,000,000.
Fiscal year 2017:
(A) New budget authority, $1,010,000,000.

(B) Outlays, $460,000,000.
Fiscal year 2018:
(A) New budget authority, $1,075,000,000.
(B) Outlays, $539,000,000.
Fiscal year 2019:
(A) New budget authority, $1,211,000,000.
(B) Outlays, $497,000,000.
Fiscal year 2020:
(A) New budget authority, $1,179,000,000.
(B) Outlays, $470,000,000.
Fiscal year 2021:
(A) New budget authority, $1,195,000,000.
(B) Outlays, $476,000,000.
(5) Natural Resources and Environment (300):
Fiscal year 2012:
(A) New budget authority, $31,921,000,000.
(B) Outlays, $36,818,000,000.
Fiscal year 2013:
(A) New budget authority, $29,414,000,000.
(B) Outlays, $33,386,000,000.
Fiscal year 2014:
(A) New budget authority, $25,296,000,000.
(B) Outlays, $28,943,000,000.
Fiscal year 2015:
(A) New budget authority, $26,893,000,000.
(B) Outlays, $29,271,000,000.
Fiscal year 2016:
(A) New budget authority, $25,231,000,000.
(B) Outlays, $26,070,000,000.
Fiscal year 2017:
(A) New budget authority, $26,156,000,000.
(B) Outlays, $26,307,000,000.
Fiscal year 2018:
(A) New budget authority, $26,618,000,000.
(B) Outlays, $25,308,000,000.
Fiscal year 2019:
(A) New budget authority, $26,956,000,000.
(B) Outlays, $25,439,000,000.
Fiscal year 2020:
(A) New budget authority, $27,787,000,000.
(B) Outlays, $25,990,000,000.
Fiscal year 2021:
(A) New budget authority, $27,756,000,000.
(B) Outlays, $25,992,000,000.
(6) Agriculture (350):
Fiscal year 2012:
(A) New budget authority, $19,819,000,000.
(B) Outlays, $19,559,000,000.
Fiscal year 2013:
(A) New budget authority, $18,396,000,000.
(B) Outlays, $21,989,000,000.
Fiscal year 2014:
(A) New budget authority, $16,717,000,000.
(B) Outlays, $16,469,000,000.
Fiscal year 2015:
(A) New budget authority, $17,355,000,000.
(B) Outlays, $16,688,000,000.
Fiscal year 2016:
(A) New budget authority, $17,235,000,000.
(B) Outlays, $16,505,000,000.
Fiscal year 2017:
(A) New budget authority, $16,859,000,000.
(B) Outlays, $16,069,000,000.
Fiscal year 2018:
(A) New budget authority, $17,025,000,000.
(B) Outlays, $16,180,000,000.
Fiscal year 2019:
(A) New budget authority, $17,159,000,000.
(B) Outlays, $16,283,000,000.
Fiscal year 2020:
(A) New budget authority, $17,469,000,000.
(B) Outlays, $16,579,000,000.
Fiscal year 2021:
(A) New budget authority, $17,755,000,000.
(B) Outlays, $16,873,000,000.
(7) Commerce and Housing Credit (370):
Fiscal year 2012:
(A) New budget authority, $14,317,000,000.
(B) Outlays, $16,275,000,000.
Fiscal year 2013:
(A) New budget authority, $4,040,000,000.
(B) Outlays, $2,611,000,000.
Fiscal year 2014:
(A) New budget authority, $508,000,000.
(B) Outlays, -$13,986,000,000.
Fiscal year 2015:
(A) New budget authority, -$2,609,000,000.
(B) Outlays, -$19,417,000,000.
Fiscal year 2016:
(A) New budget authority, -$3,260,000,000.
(B) Outlays, -$23,459,000,000.
Fiscal year 2017:
(A) New budget authority, -$293,000,000.
(B) Outlays, -$23,592,000,000.
Fiscal year 2018:
(A) New budget authority, -$261,000,000.
(B) Outlays, -$25,981,000,000.
Fiscal year 2019:
(A) New budget authority, -$222,000,000.
(B) Outlays, -$17,547,000,000.
Fiscal year 2020:
(A) New budget authority, -$128,000,000.
(B) Outlays, -$17,992,000,000.
Fiscal year 2021:
(A) New budget authority, -$196,000,000.
(B) Outlays, -$19,650,000,000.
(8) Transportation (400):
Fiscal year 2012:
(A) New budget authority, $64,316,000,000.
(B) Outlays, $80,431,000,000.
Fiscal year 2013:
(A) New budget authority, $64,515,000,000.
(B) Outlays, $71,264,000,000.
Fiscal year 2014:
(A) New budget authority, $64,265,000,000.
(B) Outlays, $67,722,000,000.
Fiscal year 2015:
(A) New budget authority, $60,377,000,000.
(B) Outlays, $66,084,000,000.
Fiscal year 2016:
(A) New budget authority, $68,563,000,000.
(B) Outlays, $65,957,000,000.
Fiscal year 2017:
(A) New budget authority, $65,916,000,000.
(B) Outlays, $67,036,000,000.
Fiscal year 2018:
(A) New budget authority, $70,578,000,000.
(B) Outlays, $67,451,000,000.
Fiscal year 2019:
(A) New budget authority, $66,719,000,000.
(B) Outlays, $69,869,000,000.
Fiscal year 2020:
(A) New budget authority, $67,472,000,000.
(B) Outlays, $71,551,000,000.
Fiscal year 2021:
(A) New budget authority, $68,936,000,000.
(B) Outlays, $76,853,000,000.
(9) Community and Regional Development (450):
Fiscal year 2012:
(A) New budget authority, $11,572,000,000.
(B) Outlays, $23,559,000,000.
Fiscal year 2013:
(A) New budget authority, $11,344,000,000.
(B) Outlays, $20,609,000,000.
Fiscal year 2014:
(A) New budget authority, $11,280,000,000.
(B) Outlays, $18,127,000,000.
Fiscal year 2015:
(A) New budget authority, $11,206,000,000.
(B) Outlays, $14,176,000,000.
Fiscal year 2016:
(A) New budget authority, $11,117,000,000.
(B) Outlays, $12,257,000,000.
Fiscal year 2017:
(A) New budget authority, $11,219,000,000.
(B) Outlays, $11,231,000,000.
Fiscal year 2018:
(A) New budget authority, $11,497,000,000.
(B) Outlays, $10,860,000,000.
Fiscal year 2019:
(A) New budget authority, $11,779,000,000.
(B) Outlays, $11,028,000,000.
Fiscal year 2020:
(A) New budget authority, $12,065,000,000.
(B) Outlays, $11,294,000,000.
Fiscal year 2021:
(A) New budget authority, $12,354,000,000.
(B) Outlays, $11,524,000,000.
(10) Education, Training, Employment, and Social Services (500):
Fiscal year 2012:
(A) New budget authority, $67,122,000,000.
(B) Outlays, $100,012,000,000.
Fiscal year 2013:
(A) New budget authority, $63,887,000,000.
(B) Outlays, $73,071,000,000.
Fiscal year 2014:
(A) New budget authority, $66,076,000,000.
(B) Outlays, $68,044,000,000.
Fiscal year 2015:
(A) New budget authority, $69,446,000,000.
(B) Outlays, $70,450,000,000.
Fiscal year 2016:
(A) New budget authority, $73,314,000,000.
(B) Outlays, $73,310,000,000.
Fiscal year 2017:
(A) New budget authority, $75,371,000,000.
(B) Outlays, $75,665,000,000.
Fiscal year 2018:
(A) New budget authority, $76,798,000,000.
(B) Outlays, $77,013,000,000.
Fiscal year 2019:
(A) New budget authority, $78,314,000,000.
(B) Outlays, $78,385,000,000.
Fiscal year 2020:
(A) New budget authority, $79,629,000,000.
(B) Outlays, $79,806,000,000.
Fiscal year 2021:
(A) New budget authority, $80,952,000,000.
(B) Outlays, $81,047,000,000.
(11) Health (550):
Fiscal year 2012:
(A) New budget authority, $341,873,000,000.
(B) Outlays, $346,636,000,000.
Fiscal year 2013:
(A) New budget authority, $343,733,000,000.
(B) Outlays, $340,608,000,000.
Fiscal year 2014:
(A) New budget authority, $338,064,000,000.
(B) Outlays, $320,444,000,000.
Fiscal year 2015:
(A) New budget authority, $327,012,000,000.
(B) Outlays, $315,117,000,000.
Fiscal year 2016:
(A) New budget authority, $320,409,000,000.
(B) Outlays, $325,200,000,000.
Fiscal year 2017:
(A) New budget authority, $339,663,000,000.
(B) Outlays, $342,703,000,000.
Fiscal year 2018:
(A) New budget authority, $349,840,000,000.
(B) Outlays, $347,303,000,000.
Fiscal year 2019:
(A) New budget authority, $371,826,000,000.
(B) Outlays, $368,558,000,000.
Fiscal year 2020:
(A) New budget authority, $395,908,000,000.
(B) Outlays, $382,056,000,000.
Fiscal year 2021:
(A) New budget authority, $404,674,000,000.
(B) Outlays, $400,682,000,000.
(12) Medicare (570):
Fiscal year 2012:
(A) New budget authority, $481,521,000,000.
(B) Outlays, $481,816,000,000.
Fiscal year 2013:
(A) New budget authority, $519,903,000,000.
(B) Outlays, $520,406,000,000.
Fiscal year 2014:
(A) New budget authority, $550,105,000,000.
(B) Outlays, $550,248,000,000.
Fiscal year 2015:
(A) New budget authority, $573,252,000,000.
(B) Outlays, $573,333,000,000.
Fiscal year 2016:
(A) New budget authority, $618,945,000,000.
(B) Outlays, $619,385,000,000.
Fiscal year 2017:
(A) New budget authority, $637,938,000,000.
(B) Outlays, $638,059,000,000.
Fiscal year 2018:
(A) New budget authority, $657,067,000,000.
(B) Outlays, $657,111,000,000.
Fiscal year 2019:
(A) New budget authority, $711,486,000,000.
(B) Outlays, $711,897,000,000.
Fiscal year 2020:
(A) New budget authority, $758,271,000,000.
(B) Outlays, $758,376,000,000.
Fiscal year 2021:
(A) New budget authority, $809,106,000,000.
(B) Outlays, $809,201,000,000.
(13) Income Security (600):

Fiscal year 2012:
(A) New budget authority, $501,664,000,000.
(B) Outlays, $501,006,000,000.
Fiscal year 2013:
(A) New budget authority, $487,498,000,000.
(B) Outlays, $487,248,000,000.
Fiscal year 2014:
(A) New budget authority, $457,308,000,000.
(B) Outlays, $456,072,000,000.
Fiscal year 2015:
(A) New budget authority, $431,150,000,000.
(B) Outlays, $429,143,000,000.
Fiscal year 2016:
(A) New budget authority, $436,659,000,000.
(B) Outlays, $438,896,000,000.
Fiscal year 2017:
(A) New budget authority, $436,985,000,000.
(B) Outlays, $434,795,000,000.
Fiscal year 2018:
(A) New budget authority, $441,467,000,000.
(B) Outlays, $434,302,000,000.
Fiscal year 2019:
(A) New budget authority, $457,183,000,000.
(B) Outlays, $454,448,000,000.
Fiscal year 2020:
(A) New budget authority, $468,308,000,000.
(B) Outlays, $465,565,000,000.
Fiscal year 2021:
(A) New budget authority, $480,687,000,000.
(B) Outlays, $477,942,000,000.
(14) Social Security (650):
Fiscal year 2012:
(A) New budget authority, $54,439,000,000.
(B) Outlays, $54,624,000,000.
Fiscal year 2013:
(A) New budget authority, $29,096,000,000.
(B) Outlays, $29,256,000,000.
Fiscal year 2014:
(A) New budget authority, $32,701,000,000.
(B) Outlays, $32,776,000,000.
Fiscal year 2015:
(A) New budget authority, $36,261,000,000.
(B) Outlays, $36,311,000,000.
Fiscal year 2016:
(A) New budget authority, $40,171,000,000.
(B) Outlays, $40,171,000,000.
Fiscal year 2017:
(A) New budget authority, $44,263,000,000.
(B) Outlays, $44,263,000,000.
Fiscal year 2018:
(A) New budget authority, $48,717,000,000.
(B) Outlays, $48,717,000,000.
Fiscal year 2019:
(A) New budget authority, $53,508,000,000.
(B) Outlays, $53,508,000,000.
Fiscal year 2020:
(A) New budget authority, $58,552,000,000.
(B) Outlays, $58,552,000,000.
Fiscal year 2021:
(A) New budget authority, $64,053,000,000.
(B) Outlays, $64,053,000,000.
(15) Veterans Benefits and Services (700):
Fiscal year 2012:
(A) New budget authority, $128,339,000,000.
(B) Outlays, $127,140,000,000.
Fiscal year 2013:
(A) New budget authority, $130,024,000,000.
(B) Outlays, $130,025,000,000.
Fiscal year 2014:
(A) New budget authority, $134,143,000,000.
(B) Outlays, $134,055,000,000.
Fiscal year 2015:
(A) New budget authority, $138,167,000,000.
(B) Outlays, $137,851,000,000.
Fiscal year 2016:
(A) New budget authority, $147,410,000,000.
(B) Outlays, $146,868,000,000.
Fiscal year 2017:
(A) New budget authority, $146,323,000,000.
(B) Outlays, $145,704,000,000.
Fiscal year 2018:
(A) New budget authority, $145,412,000,000.
(B) Outlays, $144,751,000,000.
Fiscal year 2019:
(A) New budget authority, $155,091,000,000.
(B) Outlays, $154,407,000,000.
Fiscal year 2020:
(A) New budget authority, $159,680,000,000.
(B) Outlays, $158,979,000,000.
Fiscal year 2021:
(A) New budget authority, $164,381,000,000.
(B) Outlays, $163,622,000,000.
(16) Administration of Justice (750):
Fiscal year 2012:
(A) New budget authority, $56,946,000,000.
(B) Outlays, $53,931,000,000.
Fiscal year 2013:
(A) New budget authority, $45,326,000,000.
(B) Outlays, $50,482,000,000.
Fiscal year 2014:
(A) New budget authority, $45,093,000,000.
(B) Outlays, $48,664,000,000.
Fiscal year 2015:
(A) New budget authority, $44,928,000,000.
(B) Outlays, $47,337,000,000.
Fiscal year 2016:
(A) New budget authority, $47,009,000,000.
(B) Outlays, $48,519,000,000.
Fiscal year 2017:
(A) New budget authority, $45,731,000,000.
(B) Outlays, $46,650,000,000.
Fiscal year 2018:
(A) New budget authority, $46,669,000,000.
(B) Outlays, $46,957,000,000.
Fiscal year 2019:
(A) New budget authority, $47,768,000,000.
(B) Outlays, $47,649,000,000.
Fiscal year 2020:
(A) New budget authority, $50,848,000,000.
(B) Outlays, $50,415,000,000.
Fiscal year 2021:
(A) New budget authority, $52,863,000,000.
(B) Outlays, $52,407,000,000.
(17) General Government (800):
Fiscal year 2012:
(A) New budget authority, $22,762,000,000.
(B) Outlays, $27,205,000,000.
Fiscal year 2013:
(A) New budget authority, $22,185,000,000.
(B) Outlays, $23,460,000,000.
Fiscal year 2014:
(A) New budget authority, $22,232,000,000.
(B) Outlays, $22,619,000,000.
Fiscal year 2015:
(A) New budget authority, $22,183,000,000.
(B) Outlays, $22,021,000,000.
Fiscal year 2016:
(A) New budget authority, $22,217,000,000.
(B) Outlays, $21,643,000,000.
Fiscal year 2017:
(A) New budget authority, $22,453,000,000.
(B) Outlays, $21,718,000,000.
Fiscal year 2018:
(A) New budget authority, $22,979,000,000.
(B) Outlays, $22,016,000,000.
Fiscal year 2019:
(A) New budget authority, $23,559,000,000.
(B) Outlays, $22,295,000,000.
Fiscal year 2020:
(A) New budget authority, $23,915,000,000.
(B) Outlays, $22,606,000,000.
Fiscal year 2021:
(A) New budget authority, $24,356,000,000.
(B) Outlays, $23,024,000,000.
(18) Net Interest (900):
Fiscal year 2012:
(A) New budget authority, $372,558,000,000.
(B) Outlays, $372,558,000,000.
Fiscal year 2013:
(A) New budget authority, $435,109,000,000.
(B) Outlays, $435,109,000,000.
Fiscal year 2014:
(A) New budget authority, $508,435,000,000.
(B) Outlays, $508,435,000,000.
Fiscal year 2015:
(A) New budget authority, $578,063,000,000.
(B) Outlays, $578,063,000,000.
Fiscal year 2016:
(A) New budget authority, $648,083,000,000.
(B) Outlays, $648,083,000,000.
Fiscal year 2017:
(A) New budget authority, $712,300,000,000.
(B) Outlays, $712,300,000,000.
Fiscal year 2018:
(A) New budget authority, $769,605,000,000.
(B) Outlays, $769,605,000,000.
Fiscal year 2019:
(A) New budget authority, $818,115,000,000.
(B) Outlays, $818,115,000,000.
Fiscal year 2020:
(A) New budget authority, $864,371,000,000.
(B) Outlays, $864,371,000,000.
Fiscal year 2021:
(A) New budget authority, $899,690,000,000.
(B) Outlays, $899,690,000,000.
(19) Allowances (920):
Fiscal year 2012:
(A) New budget authority, -$6,299,000,000.
(B) Outlays, -$2,626,000,000.
Fiscal year 2013:
(A) New budget authority, -$4,386,000,000.
(B) Outlays, -$5,545,000,000.
Fiscal year 2014:
(A) New budget authority, -$10,247,000,000.
(B) Outlays, -$11,263,000,000.
Fiscal year 2015:
(A) New budget authority, -$16,340,000,000.
(B) Outlays, -$16,946,000,000.
Fiscal year 2016:
(A) New budget authority, -$22,243,000,000.
(B) Outlays, -$22,809,000,000.
Fiscal year 2017:
(A) New budget authority, -$27,786,000,000.
(B) Outlays, -$27,637,000,000.
Fiscal year 2018:
(A) New budget authority, -$33,072,000,000.
(B) Outlays, -$32,959,000,000.
Fiscal year 2019:
(A) New budget authority, -$38,404,000,000.
(B) Outlays, -$38,286,000,000.
Fiscal year 2020:
(A) New budget authority, -$43,684,000,000.
(B) Outlays, -$43,594,000,000.
Fiscal year 2021:
(A) New budget authority, -$49,060,000,000.
(B) Outlays, -$48,947,000,000.
(20) Undistributed Offsetting Receipts (950):
Fiscal year 2012:
(A) New budget authority, -$84,517,000,000.
(B) Outlays, -$84,517,000,000.
Fiscal year 2013:
(A) New budget authority, -$81,449,000,000.
(B) Outlays, -$81,449,000,000.
Fiscal year 2014:
(A) New budget authority, -$82,695,000,000.
(B) Outlays, -$82,695,000,000.
Fiscal year 2015:
(A) New budget authority, -$84,857,000,000.
(B) Outlays, -$84,857,000,000.
Fiscal year 2016:
(A) New budget authority, -$85,946,000,000.
(B) Outlays, -$85,946,000,000.
Fiscal year 2017:
(A) New budget authority, -$91,248,000,000.
(B) Outlays, -$91,248,000,000.
Fiscal year 2018:
(A) New budget authority, -$97,099,000,000.
(B) Outlays, -$97,099,000,000.
Fiscal year 2019:
(A) New budget authority, -$101,718,000,000.
(B) Outlays, -$101,718,000,000.
Fiscal year 2020:
(A) New budget authority, -$105,645,000,000.
(B) Outlays, -$105,645,000,000.
Fiscal year 2021:
(A) New budget authority, -$110,174,000,000.
(B) Outlays, -$110,174,000,000.
(21) Global War on Terrorism and related activities (970):
Fiscal year 2012:
(A) New budget authority, $126,544,000,000.
(B) Outlays, $117,835,000,000.
Fiscal year 2013:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $92,661,000,000.
Fiscal year 2014:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $64,878,000,000.
Fiscal year 2015:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $54,401,000,000.
Fiscal year 2016:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $50,929,000,000.

Fiscal year 2017:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $50,147,000,000.
Fiscal year 2018:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $49,851,000,000.
Fiscal year 2019:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $49,784,000,000.
Fiscal year 2020:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $49,769,000,000.
Fiscal year 2021:
(A) New budget authority, $50,000,000,000.
(B) Outlays, $49,769,000,000.

TITLE II—RECOMMENDED LEVELS AND AMOUNTS FOR FISCAL YEARS 2030, 2040, AND 2050

SEC. 201. POLICY STATEMENT ON LONG-TERM BUDGETING.

The following are the recommended budget levels for each of fiscal years 2030, 2040, and 2050 as a percent of the gross domestic product of the United States:

(1) FEDERAL REVENUES.—The appropriate levels of Federal revenues are as follows:
Fiscal year 2030: 19 percent.
Fiscal year 2040: 19 percent.
Fiscal year 2050: 19 percent.

(2) BUDGET OUTLAYS.—The appropriate levels of total budget outlays are as follows:
Fiscal year 2030: 20.75 percent.
Fiscal year 2040: 18.75 percent.
Fiscal year 2050: 14.75 percent.

(3) DEFICITS.—The appropriate amounts of deficits are as follows:
Fiscal year 2030: -1.75 percent.
Fiscal year 2040: 0.25 percent.
Fiscal year 2050: 4.25 percent.

(4) DEBT HELD BY THE PUBLIC.—The appropriate levels of debt held by the public are as follows:
Fiscal year 2030: 64 percent.
Fiscal year 2040: 48 percent.
Fiscal year 2050: 10 percent.

TITLE III—RESERVES AND CONTINGENCIES

SEC. 301. COSTS OF THE GLOBAL WAR ON TERRORISM.

In the House, if any bill, joint resolution, amendment, or conference report makes appropriations for fiscal year 2012 for the global war on terrorism and other activities and such amounts are so designated pursuant to this paragraph, then the allocation to the House Committee on Appropriations and the discretionary spending limits set forth in section 401 may be adjusted by the amounts provided in such legislation for that purpose up to the amounts of budget authority specified in section 102(21) for fiscal year 2012 and the new outlays resulting therefrom.

SEC. 302. EFFECTIVE DATE.

Section 3(c) of House Resolution 5 (112th Congress) shall have force and effect through May 31, 2011.

SEC. 303. RESERVE FUND FOR HEALTH CARE REFORM.

In the House, the chairman of the Committee on the Budget may revise the allocations, aggregates, and other appropriate levels in this resolution for the budgetary effects of any bill, joint resolution, amendment, or conference report that repeals the Patient Protection and Affordable Care Act or the Health Care and Education Reconciliation Act of 2010.

SEC. 304. RESERVE FUND FOR THE SUSTAINABLE GROWTH RATE OF THE MEDICARE PROGRAM.

In the House, the chairman of the Committee on the Budget may revise the allocations, aggregates, and other appropriate levels in this resolution for the budgetary effects of any bill, joint resolution, amendment, or conference report that includes provisions amending or superseding the system for updating payments under section 1848 of the Social Security Act, if such measure does not increase the deficit in the period of fiscal years 2012 through 2021.

SEC. 305. RESERVE FUND FOR DEFICIT-NEUTRAL REVENUE MEASURES.

If any bill reported by the Committee on Ways and Means, or amendment thereto or conference report thereon, decreases revenue, the chair of the Committee on the Budget may adjust the allocations and aggregates of this concurrent resolution, if such measure would not increase the deficit over the period of fiscal years 2012 through 2021.

SEC. 306. DEFICIT-NEUTRAL RESERVE FUND FOR RURAL COUNTIES AND SCHOOLS.

In the House, the chairman of the Committee on the Budget may revise the allocations of a committee or committees, aggregates, and other appropriate levels and limits in this resolution for one or more bills, joint resolutions, amendments, motions, or conference reports that make changes to or provide for the reauthorization of the Secure Rural Schools and Community Self Determination Act of 2000 (Public Law 106–393) or make changes to the Payments in Lieu of Taxes Act of 1976 (Public Law 94–565), or both, by the amounts provided by that legislation for those purposes, provided that such legislation would not increase the deficit or direct spending over either the period of the total of fiscal years 2012 through 2021 or the period of the total of fiscal years 2012 through 2016, or for fiscal year 2012.

TITLE IV—BUDGET ENFORCEMENT

SEC. 401. DISCRETIONARY SPENDING LIMITS.

(a) DISCRETIONARY SPENDING LIMITS.—Spending limits for total discretionary Federal spending are—
fiscal year 2012—
(1) new budget authority, $1,019,402,000,000; and
(2) outlays, $1,170,384,000,000;
fiscal year 2013—
(1) new budget authority, $1,027,896,000,000; and
(2) outlays, $1,113,298,000,000;
fiscal year 2014—
(1) new budget authority, $1,038,537,000,000; and
(2) outlays, $1,094,740,000,000;
fiscal year 2015—
(1) new budget authority, $1,046,680,000,000; and
(2) outlays, $1,089,081,000,000;
fiscal year 2016—
(1) new budget authority, $1,055,779,000,000; and
(2) outlays, $1,093,043,000,000;
fiscal year 2017—
(1) new budget authority, $1,067,794,000,000; and
(2) outlays, $1,098,357,000,000;
fiscal year 2018—
(1) new budget authority, $1,085,259,000,000; and
(2) outlays, $1,105,668,000,000;
fiscal year 2019—
(1) new budget authority, $1,103,802,000,000; and
(2) outlays, $1,126,521,000,000;
fiscal year 2020—
(1) new budget authority, $1,122,611,000,000; and
(2) outlays, $1,145,102,000,000; and
fiscal year 2021—
(1) new budget authority, $1,141,640,000,000; and
(2) outlays, $1,167,939,000,000.

(b) ENFORCEMENT.—In the House, it shall not be in order to consider any bill or joint resolution, or amendment thereto or conference report thereon, that causes discretionary budget authority to exceed any level set forth in subsection (a).

SEC. 402. LIMITATION ON ADVANCE APPROPRIATIONS.

(a) IN GENERAL.—In the House, except as provided in subsection (b), any bill, joint resolution, an amendment thereto or conference report thereon, making a general appropriation or continuing appropriation may not provide for advance appropriations.

(b) EXCEPTIONS.—An advance appropriation may be provided for programs, projects, activities, or accounts referred to in subsection (c)(1) or identified in the report to accompany this resolution or the joint explanatory statement of managers to accompany this resolution under the heading ''Accounts Identified for Advance Appropriations''.

(c) LIMITATIONS.—For fiscal year 2013, the aggregate amount of advance appropriation shall not exceed—

(1) $52,541,000,000 for the following programs in the Department of Veterans Affairs—
(A) Medical Services;
(B) Medical Support and Compliance; and
(C) Medical Facilities accounts of the Veterans Health Administration; and

(2) $28,852,000,000 in new budget authority for all other programs.

(d) DEFINITION.—In this section, the term ''advance appropriation'' means any new discretionary budget authority provided in a bill or joint resolution making general appropriations or any new discretionary budget authority provided in a bill or joint resolution making continuing appropriations for fiscal year 2013.

(e) ADJUSTMENTS.—The chairman of the Committee on the Budget may adjust the list referred to in subsection (b) or the amount set forth in subsection (c)(2) to accommodate the enactment of general or continuing appropriation Acts for fiscal year 2011.

SEC. 403. CONCEPTS AND DEFINITIONS.

Upon the enactment of any bill or joint resolution providing for a change in budgetary concepts or definitions, the chairman of the Committee on the Budget may adjust any appropriate levels and allocations in this resolution accordingly.

SEC. 404. ADJUSTMENTS OF AGGREGATES AND ALLOCATIONS FOR LEGISLATION.

(a) ENFORCEMENT.—For purposes of enforcing this resolution, the revenue levels shall be those set forth in the March 2011 Congressional Budget Office baseline. The total amount of adjustments made under subsection (b) may not cause revenue levels to be below the levels set forth in paragraph (1)(A) of section 101 for fiscal year 2012 and the period comprising fiscal years 2012 to 2021.

(b) ADJUSTMENTS.— (1) The chairman of the Committee on the Budget may adjust the allocations and aggregates of this concurrent resolution for—

(A) the budgetary effects of measures extending the Economic Growth and Tax Relief Reconciliation Act of 2001;

(B) the budgetary effects of measures extending the Jobs and Growth Tax Relief Reconciliation Act of 2003;

(C) the budgetary effects of measures that adjust the Alternative Minimum Tax exemption amounts to prevent a larger number of taxpayers as compared with tax year 2008 from being subject to the Alternative Minimum Tax or of allowing the use of nonrefundable personal credits against the Alternative Minimum Tax, or both as applicable;

(D) the budgetary effects of extending the estate, gift, and generation-skipping transfer tax provisions of title III of the Tax Relief, Unemployment Insurance Reauthorization, and Job Creation Act of 2010;

(E) the budgetary effects of measures providing a 20 percent deduction in income to small businesses;

(F) the budgetary effects of measures implementing trade agreements;

(G) the budgetary effects of measures repealing the tax increases set forth in the Patient Protection and Affordable Care Act and the Health Care and Education Affordability Reconciliation Act of 2010;

(H) the budgetary effects of measures reforming the Patient Protection and Affordable Care Act and the Health Care and Education Affordability Reconciliation Act of 2010; and

(I) the budgetary effects of measures reforming the tax code and lowering tax rates.

(2) A measure does not qualify for adjustments under paragraph (1)(H) if it—

(A) increases the deficit over the period of fiscal years 2012 through 2021; or

(B) increases revenues over the period of fiscal years 2012 through 2021, other than by—

(i) repealing or modifying the individual mandate (codified as section 5000A of the Internal Revenue Code of 1986); or

(ii) modifying the subsidies to purchase health insurance (codified as section 36B of the Internal Revenue Code of 1986).

(c) OTHER ADJUSTMENTS.—If a committee other than the Committee on Appropriations reports a bill or joint resolution, or an amendment thereto or a conference report thereon, providing for a decrease in direct spending (budget authority and outlays flowing therefrom) for any fiscal year and also provides for an authorization of appropriations for the same purpose, upon the enactment of such measure, the chairman of the Committee on the Budget may decrease the allocation to such committee and increase the allocation of discretionary spending (budget authority and outlays flowing therefrom) to the Committee on Appropriations for fiscal year 2012 and the applicable discretionary spending limits by an amount equal to the new budget authority (and the outlays flowing therefrom) provided for in a bill or joint resolution making appropriations for the same purpose.

SEC. 405. LIMITATION ON LONG-TERM SPENDING.

(a) IN GENERAL.—In the House, it shall not be in order to consider a bill or joint resolution reported by a committee (other than the Committee on Appropriations), or an amendment thereto or a conference report thereon, if the provisions of such measure have the net effect of increasing mandatory spending in excess of $5,000,000,000 for any period described in subsection (b).

(b) TIME PERIODS.—(1) The applicable periods for purposes of this section are any of the first four consecutive 10-fiscal-year periods beginning with the first fiscal year following the last fiscal year for which the applicable concurrent resolution on the budget sets forth appropriate budgetary levels.

(2) In this paragraph, the applicable concurrent resolution on the budget is the one most recently adopted before the date on which a committee first reported the bill or joint resolution described in paragraph (1).

SEC. 406. BUDGETARY TREATMENT OF CERTAIN TRANSACTIONS.

(a) IN GENERAL.—Notwithstanding section 302(a)(1) of the Congressional Budget Act of 1974, section 13301 of the Budget Enforcement Act of 1990, and section 4001 of the Omnibus Budget Reconciliation Act of 1989, the joint explanatory statement accompanying the conference report on any concurrent resolution on the budget shall include in its allocation under section 302(a) of the Congressional Budget Act of 1974 to the Committee on Appropriations amounts for the discretionary administrative expenses of the Social Security Administration and the United States Postal Service.

(b) SPECIAL RULE.—For purposes of applying section 302(f) of the Congressional Budget Act of 1974, estimates of the level of total new budget authority and total outlays provided by a measure shall include any off-budget discretionary amounts.

(c) ADJUSTMENTS.—The chairman of the Committee on the Budget may adjust allocations and aggregates for legislation reported by the Committee on Oversight and Government Reform that reforms the Federal retirement system, but does not cause a net increase in the deficit for fiscal year 2012 and the period comprising fiscal years 2012 to 2021.

SEC. 407. APPLICATION AND EFFECT OF CHANGES IN ALLOCATIONS AND AGGREGATES.

(a) APPLICATION.—Any adjustments of allocations and aggregates made pursuant to this resolution shall—

(1) apply while that measure is under consideration;

(2) take effect upon the enactment of that measure; and

(3) be published in the Congressional Record as soon as practicable.

(b) EFFECT OF CHANGED ALLOCATIONS AND AGGREGATES.—Revised allocations and aggregates resulting from these adjustments shall be considered for the purposes of the Congressional Budget Act of 1974 as allocations and aggregates included in this resolution.

(c) BUDGET COMMITTEE DETERMINATIONS.—For purposes of this resolution, the levels of new budget authority, outlays, direct spending, new entitlement authority, revenues, deficits, and surpluses for a fiscal year or period of fiscal years shall be determined on the basis of estimates made by the Committee on the Budget.

(d) EXEMPTIONS.—Any legislation for which the chairman of the Committee on the Budget makes adjustments in the allocations and aggregates of this concurrent resolution on the budget and complies with the Congressional Budget Act of 1974 shall not be subject to the points of order set forth in clause 10 of rule XXI of the Rules of the House of Representatives or section 405.

SEC. 408. FAIR VALUE ESTIMATES.

(a) REQUEST FOR SUPPLEMENTAL ESTIMATES.—Upon the request of the chairman or ranking member of the Committee on the Budget, any estimate prepared for a measure under the terms of title V of the Congressional Budget Act of 1974, ''credit reform'', as a supplement to such estimate of the Congressional Budget Office shall, to the extent practicable, also provide an estimate of the current actual or estimated market values representing the ''fair value'' of assets and liabilities affected by such measure.

(b) ENFORCEMENT.—If the Congressional Budget Office provides an estimate pursuant to subsection (a), the chairman of the Committee on the Budget may use such estimate to determine compliance with the Congressional Budget Act of 1974 and other budgetary enforcement controls.

SEC. 409. EXERCISE OF RULEMAKING POWERS.

(a) IN GENERAL.—The House adopts the provisions of this title—

(1) as an exercise of the rulemaking power of the House of Representatives and as such they shall be considered as part of the rules of the House, and these rules shall supersede other rules only to the extent that they are inconsistent with other such rules; and

(2) with full recognition of the constitutional right of the House of Representatives to change those rules at any time, in the same manner, and to the same extent as in the case of any other rule of the House of Representatives.

(b) LIMITATION ON APPLICATION.—The following provisions of H. Res. 5 (112th Congress) shall no longer have force or effect:

(1) Section 3(e) relating to advance appropriations.

(2) Section 3(f) relating to the treatment of off-budget administrative expenses.

(3) Section 3(g) relating to a long-term spending point of order.

TITLE V—POLICY

SEC. 501. POLICY STATEMENT ON MEDICARE.

(a) FINDINGS.—The House finds the following:

(1) More than 46 million Americans depend on Medicare for their health security.

(2) The Medicare Trustees report has repeatedly recommended that Medicare's long-term financial challenges be addressed soon. Each year without reform, the financial condition of Medicare becomes more precarious and the threat to those in and near retirement becomes more pronounced. According to the Congressional Budget Office—

(A) the Hospital Insurance Trust Fund will be exhausted in 2020 and unable to pay scheduled benefits; and

(B) Medicare spending is growing faster than the economy. Medicare outlays are currently rising at a rate of 7.2 percent per year, and under CBO's alternative fiscal scenario, mandatory spending on Medicare is projected to reach 7 percent of GDP by 2035 and 14 percent of GDP by 2080.

(3) Failing to address this problem will leave millions of American seniors without adequate health security and younger generations burdened with enormous debt to pay for spending levels that cannot be sustained.

(b) POLICY ON MEDICARE REFORM.—It is the policy of this resolution to protect those in and near retirement from any disruptions to their Medicare benefits and offer future beneficiaries the same health care options available to Members of Congress.

(c) ASSUMPTIONS.—This resolution assumes reform of the Medicare program such that:

(1) Current Medicare benefits are preserved for those in and near retirement, without changes.

(2) For future generations, when they reach eligibility, Medicare is reformed to provide a premium support payment and a selection of guaranteed health coverage options from which recipients can choose a plan that best suits their needs.

(3) Medicare will provide additional assistance for lower-income beneficiaries and those with greater health risks.

(4) Medicare spending is put on a sustainable path and the Medicare program becomes solvent over the long-term.

SEC. 502. POLICY STATEMENT ON SOCIAL SECURITY.

(a) FINDINGS.—The House finds the following:

(1) More than 50 million retirees and individuals with a disability depend on Social Security for a key part of their income. Since enactment, Social Security has served as a vital leg on the ''three-legged stool'' of retirement security, which includes employer provided pensions as well as personal savings.

(2) The Social Security Trustees report has repeatedly recommended that Social Security's long-term financial challenges be addressed soon. Each year without reform, the financial condition of Social Security becomes more precarious and the threat to seniors and those receiving Social Security disability benefits becomes more pronounced:

(A) In 2018, the Federal Disability Insurance Trust Fund will be exhausted and will be unable to pay scheduled benefits.

(B) In 2037, the combined Federal Old-Age and Survivors Insurance Trust Fund and Federal Disability Insurance Trust Fund will be exhausted, and will be unable to pay scheduled benefits.

(C) With the exhaustion of the Trust Funds in 2037, benefits will be cut 22 percent across the board, devastating those currently in or near retirement and those who rely on Social Security the most.

(3) The current recession has exacerbated the crisis to Social Security. The most recent CBO projections find that Social Security has entered into permanent cash deficits.

(4) Lower-income Americans rely on Social Security for a larger proportion of their retirement income. Therefore, reforms should take into consideration the need to protect lower-income Americans' retirement security.

(5) Americans deserve action by their elected officials on Social Security reform. It is critical that the Congress and the administration work together in a bipartisan fashion to address the looming insolvency of Social Security. In this

spirit, this resolution creates a bipartisan opportunity to find solutions by requiring policymakers to ensure that Social Security remains a critical part fo the safety net.

(b) POLICY ON SOCIAL SECURITY.—It is the policy of this resolution that Congress should work on a bipartisan basis to make Social Security permanently solvent. This resolution assumes reform of a current law trigger, such that—

(1)(A) if in any year the Board of Trustees of the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund in its annual Trustees' Report determines that the 75-year actuarial balance of the Social Security Trust Funds is in deficit, and the annual balance of the Social Security Trust Funds in the 75th year is in deficit, the Board of Trustees should, not later than September 30 of the same calendar year, submit to the President recommendations for statutory reforms necessary to achieve a positive 75-year actuarial balance and a positive annual balance in the 75th year; and

(B) such recommendations provided to the President should be agreed upon by both Public Trustees of the Board of Trustees;

(2)(A) not later than December 1 of the same calendar year in which the Board of Trustees submits its recommendations, the President shall promptly submit implementing legislation to both Houses of Congress, including recommendations necessary to achieve a positive 75-year actuarial balance and a positive annual balance in the 75th year; and

(B) the Majority Leader of the Senate and the Majority Leader of the House should introduce such legislation upon receipt;

(3) within 60 days of the President submitting legislation, the committees of jurisdiction to which the legislation has been referred should report such legislation, which should be considered by the full House or Senate under expedited procedures; and

(4) legislation submitted by the President should—

(A) protect those in and near retirement;

(B) preserve the safety net for those who rely on Social Security, including survivors and those with disabilities;

(C) improve fairness for participants; and

(D) reduce the burden on, and provide certainty for, future generations.

SEC. 503. POLICY STATEMENT ON BUDGET ENFORCEMENT.

(a) FINDINGS.—The House finds the following:

(1) The President's fiscal year 2012 budget requests a $13 trillion increase in the debt subject to limit over the period of years covered by the budget.

(2) Under the President's fiscal year 2012 budget, according to the Congressional Budget Office, debt held by the public will rise to 69 percent of gross domestic product in 2011 and will reach 87.4 percent of gross domestic product by 2021.

(3) The Congressional Budget Office, the Federal Reserve, the General Accountability Office, the President's National Commission on Fiscal Responsibility and Reform, and ten former Chairmen of the Council of Economic Advisors all concluded that debt is growing at unsustainable rates and must be brought under control.

(4) Admiral Mike Mullen, Chairman of the Joint Chiefs of Staff, stated, ''Our national debt is our biggest national security threat.''.

(5) According to the Congressional Budget Office, if entitlements are not reformed, entitlement spending on Social Security, Medicare, and Medicaid will exceed the historical average of revenue collections as a share of the economy within forty years.

(6) According to the Congressional Budget Office, under current policies, debt would reach levels that the economy could no longer sustain in 2037 and a fiscal crisis is likely to occur well before that date.

(7) To avoid a fiscal crisis, Congress must enact legislation that makes structural reforms to entitlement programs.

(8) Instead of automatic debt increases (the ''Gephardt rule'' was repealed by the House in House Resolution 5) and automatic spending increases, Congress needs to put limits on spending with automatic reductions if spending limits are not met.

(9) The adoption of a conference report on this concurrent resolution will not cause the automatic passage of an increase in the debt limit by the House of Representatives.

(10) Changes in debt levels assumed in this resolution are contingent upon its proposed spending reductions being achieved.

(11) From 1990 to 2002, there were statutory enforceable limits on discretionary spending.

(12) The budget lacks controls over spending in the short-term and the long-term. Greater transparency and controls, particularly for entitlement spending in the long-term, are needed to provide Congress with tools to tackle this growing threat of a fiscal crisis.

(b) POLICY ON DEBT CONTROLS.—It is the policy of this concurrent resolution on the budget that in order to begin to bring debt under control the following statutory spending and debt controls are needed:

(1) Enforceable statutory caps on discretionary spending at levels set forth in this fiscal year 2012 concurrent resolution on the budget for the period of fiscal years 2012 through 2021.

(2) Any increase in the statutory debt limit be accompanied by the enactment of a budget enforcement mechanism to ensure that if spending reductions are not achieved there would be—

(A) an across-the-board reduction in spending at the end of the year;

(B) a fast-track process or failsafe mechanism to give Congress the ability to expedite consideration of legislation to reduce spending and avoid the automatic across-the-board spending reductions; and

(C) an exemption of Social Security from these enforcement mechanisms, with Social Security solvency ensured as provide in section 502.

(3) Limits on total spending with long-term structural reforms that—

(A) require—

(i) the Office of Management and Budget and the Congressional Budget Office to make long-term budget projections (similar to the timeframes of projections made by the Social Security and Medicare trustees);

(ii) the inclusion of the estimated long-term fiscal impact of the President's budget in the President's annual budget submission;

(iii) in the Congressional Budget Office's re-estimate of the President's budget, an estimate of the long-term impact of the President's budget; and

(iv) in Congressional Budget Office estimates on legislation, an estimate of the long-term impact of legislation that has a significant impact on the long-term budget;

(B) require enactment of enforceable caps on total spending as a share of gross domestic product as set forth in this resolution;

(C) require the review by Congress of Congressional Budget Office projections relative to the statutory caps and enactment of legislation to reduce spending to meet those caps;

(D) require enactment of an enforcement mechanism to ensure that if these spending reductions are not achieved, there would be an across-the-board reduction in spending at the end of the year;

(E) require enactment of a fast-track process or failsafe mechanism to provide Congress with the ability to expedite consideration of legislation to reduce spending and avoid the automatic across-the-board spending reductions; and

(F) exempt Social Security from these enforcement mechanisms, with Social Security solvency ensured as provided in section 501.

TITLE VI—SENSE OF THE HOUSE PROVISIONS

SEC. 601. SENSE OF THE HOUSE ON A RESPONSIBLE DEFICIT REDUCTION PLAN MUST CONSIDER ALL PROGRAMS, INCLUDING THOSE AT THE PENTAGON AND THE OTHER NATIONAL SECURITY AGENCIES.

It is the sense of the House that the Nation's debt is an immense security threat to our country, just as Admiral Mullen, Chairman of the Joint Chiefs of Staff, has stated; the Government Accountability Office has recently issued a report documenting billions of dollars of waste and duplication at Government agencies, including the Department of Defense, and the Department of Defense has never passed a clean audit; the bipartisan National Commission on Fiscal Responsibility and Reform and the bipartisan Rivlin-Domenici Debt Reduction Task Force were correct in concluding that all programs, including national security, should be ''on the table'' as part of a deficit reduction plan; and any budget plan serious about reducing the deficit must follow this precept to consider all programs, including national security programs, the largest segment of discretionary spending.

SEC. 602. SENSE OF THE HOUSE REGARDING THE IMPORTANCE OF CHILD SUPPORT ENFORCEMENT.

It is the sense of the House that—

(1) additional legislative action is needed to ensure that States have the necessary resources to collect all child support that is owed to families and allow them to pass 100 percent of support on to families without financial penalty; and

(2) when 100 percent of child support payments are passed to the child, rather than administrative expenses, program integrity is improved and child support participation increases.

The Acting CHAIR. No amendment to that amendment in the nature of a substitute shall be in order except those printed in part B of the report.

Each amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, and shall not be subject to amendment.

After conclusion of consideration of the concurrent resolution for amendment, there shall be a final period of general debate which shall not exceed 20 minutes, equally divided and controlled by the chair and ranking minority member of the Committee on the Budget.

AMENDMENT NO. 1 OFFERED BY MR. CLEAVER

The Acting CHAIR. It is now in order to consider amendment No. 1 printed in part B of House Report 112–62.

Mr. CLEAVER. Madam Chairman, I have an amendment at the desk in order under the rule.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike all after the resolving clause and insert the following:

SECTION 1. CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2012.

(a) DECLARATION.—The Congress determines and declares that this concurrent resolution establishes the budget for fiscal year 2012 and sets forth appropriate budgetary levels for fiscal years 2013 through 2021.

(b) TABLE OF CONTENTS.—

TITLE I—RECOMMENDED LEVELS AND AMOUNTS

SEC. 101. RECOMMENDED LEVELS AND AMOUNTS.

The following budgetary levels are appropriate for each of fiscal years 2012 through 2021:

(1) FEDERAL REVENUES.—For purposes of the enforcement of this resolution:

(A) The recommended levels of Federal revenues are as follows:

Fiscal year 2012: $2,205,595,000,000.
Fiscal year 2013: $2,508,371,000,000.
Fiscal year 2014: $2,802,758,000,000.
Fiscal year 2015: $3,010,095,000,000.
Fiscal year 2016: $3,178,229,000,000.
Fiscal year 2017: $3,338,407,000,000.
Fiscal year 2018: $3,492,151,000,000.
Fiscal year 2019: $3,651,546,000,000.
Fiscal year 2020: $3,828,074,000,000.
Fiscal year 2021: $4,015,043,000,000.

(B) The amounts by which the aggregate levels of Federal revenues should be changed are as follows:

Fiscal year 2012: $314,184,000,000.
Fiscal year 2013: $153,416,000,000.
Fiscal year 2014: $131,883,000,000.
Fiscal year 2015: $179,193,000,000.
Fiscal year 2016: $207,037,000,000.
Fiscal year 2017: $163,096,000,000.
Fiscal year 2018: $157,689,000,000.
Fiscal year 2019: $148,730,000,000.
Fiscal year 2020: $147,564,000,000.
Fiscal year 2021: $131,460,000,000.

(2) NEW BUDGET AUTHORITY.—For purposes of the enforcement of this resolution, the appropriate levels of total new budget authority are as follows:

Fiscal year 2012: $3,140,298,000,000.
Fiscal year 2013: $3,050,251,000,000.
Fiscal year 2014: $3,232,125,000,000.
Fiscal year 2015: $3,401,789,000,000.
Fiscal year 2016: $3,607,488,000,000.
Fiscal year 2017: $3,760,946,000,000.
Fiscal year 2018: $3,897,468,000,000.
Fiscal year 2019: $4,096,228,000,000.
Fiscal year 2020: $4,294,254,000,000.
Fiscal year 2021: $4,459,973,000,000.

(3) BUDGET OUTLAYS.—For purposes of the enforcement of this resolution, the appropriate levels of total budget outlays are as follows:

Fiscal year 2012: $3,114,000,000,000.
Fiscal year 2013: $3,109,045,000,000.
Fiscal year 2014: $3,218,907,000,000.
Fiscal year 2015: $3,363,248,000,000.
Fiscal year 2016: $3,573,640,000,000.
Fiscal year 2017: $3,706,838,000,000.
Fiscal year 2018: $3,830,523,000,000.
Fiscal year 2019: $4,043,926,000,000.
Fiscal year 2020: $4,228,332,000,000.
Fiscal year 2021: $4,402,622,000,000.

(4) DEFICITS (ON-BUDGET).—For purposes of the enforcement of this resolution, the amounts of the deficits (on-budget) are as follows:

Fiscal year 2012: $908,405,000,000.
Fiscal year 2013: $600,674,000,000.
Fiscal year 2014: $416,149,000,000.
Fiscal year 2015: $353,153,000,000.
Fiscal year 2016: $395,411,000,000.
Fiscal year 2017: $368,431,000,000.
Fiscal year 2018: $338,372,000,000.
Fiscal year 2019: $392,380,000,000.
Fiscal year 2020: $400,258,000,000.
Fiscal year 2021: $387,579,000,000.

(5) DEBT SUBJECT TO LIMIT.—Pursuant to section 301(a)(5) of the Congressional Budget Act of 1974, the appropriate levels of the public debt are as follows:

Fiscal year 2012: $16,060,000,000,000.
Fiscal year 2013: $16,845,000,000,000.
Fiscal year 2014: $17,548,000,000,000.
Fiscal year 2015: $18,037,000,000,000.
Fiscal year 2016: $18,675,000,000,000.
Fiscal year 2017: $19,305,000,000,000.
Fiscal year 2018: $19,932,000,000,000.
Fiscal year 2019: $20,604,000,000,000.
Fiscal year 2020: $21,301,000,000,000.
Fiscal year 2021: $22,018,000,000,000.

(6) DEBT HELD BY THE PUBLIC.—The appropriate levels of debt held by the public are as follows:

Fiscal year 2012: $11,276,000,000,000.
Fiscal year 2013: $11,891,000,000,000.
Fiscal year 2014: $12,315,000,000,000.
Fiscal year 2015: $12,673,000,000,000.
Fiscal year 2016: $13,066,000,000,000.
Fiscal year 2017: $13,435,000,000,000.
Fiscal year 2018: $13,781,000,000,000.
Fiscal year 2019: $14,186,000,000,000.
Fiscal year 2020: $14,615,000,000,000.
Fiscal year 2021; $15,043,000,000,000.

SEC. 102. MAJOR FUNCTIONAL CATEGORIES.

The Congress determines and declares that the appropriate levels of new budget authority and outlays for fiscal years 2012 through 2021 for each major functional category are:

(1) National Defense (050):
Fiscal year 2012:
(A) New budget authority, $585,002,000,000.
(B) Outlays, $598,671,000,000.
Fiscal year 2013:
(A) New budget authority, $602,632,000,000.
(B) Outlays, $598,619,000,000.
Fiscal year 2014:
(A) New budget authority, $618,636,000,000.
(B) Outlays, $606,563,000,000.
Fiscal year 2015:
(A) New budget authority, $613,259,000,000.
(B) Outlays, $618,381,000,000.
Fiscal year 2016:
(A) New budget authority, $644,497,000,000.
(B) Outlays, $633,438,000,000.
Fiscal year 2017:
(A) New budget authority, $656,109,000,000.
(B) Outlays, $642,414,000,000.
Fiscal year 2018:
(A) New budget authority, $668,181,000,000.
(B) Outlays, $650,635,000,000.
Fiscal year 2019:
(A) New budget authority, $680,395,000,000.
(B) Outlays, $667,965,000,000.
Fiscal year 2020:
(A) New budget authority, $692,600,000,000.
(B) Outlays, $679,989,000,000.
Fiscal year 2021:
(A) New budget authority, $705,330,000,000.
(B) Outlays, $692,257,000,000.

(2) International Affairs (150):
Fiscal year 2012:
(A) New budget authority, $63,212,000,000.
(B) Outlays, $53,294,000,000.
Fiscal year 2013:
(A) New budget authority, $59,982,000,000.
(B) Outlays, $57,193,000,000.
Fiscal year 2014:
(A) New budget authority, $56,518,000,000.
(B) Outlays, $58,033,000,000.
Fiscal year 2015:
(A) New budget authority, $56,252,000,000.
(B) Outlays, $57,515,000,000.
Fiscal year 2016:
(A) New budget authority, $56,452,000,000.
(B) Outlays, $58,087,000,000.
Fiscal year 2017:
(A) New budget authority, $59,018,000,000.
(B) Outlays, $59,239,000,000.
Fiscal year 2018:
(A) New budget authority, $61,083,000,000.
(B) Outlays, $59,852,000,000.
Fiscal year 2019:
(A) New budget authority, $62,194,000,000.
(B) Outlays, $59,320,000,000.
Fiscal year 2020:
(A) New budget authority, $63,327,000,000.
(B) Outlays, $59,343,000,000.
Fiscal year 2021:
(A) New budget authority, $64,511,000,000.
(B) Outlays, $60,294,000,000.

(3) General Science, Space, and Technology (250):
Fiscal year 2012:
(A) New budget authority, $37,566,000,000.
(B) Outlays, $34,511,000,000.
Fiscal year 2013:
(A) New budget authority, $33,473,000,000.
(B) Outlays, $34,569,000,000.
Fiscal year 2014:
(A) New budget authority, $33,400,000,000.
(B) Outlays, $33,802,000,000.
Fiscal year 2015:
(A) New budget authority, $33,528,000,000.
(B) Outlays, $33,475,000,000.
Fiscal year 2016:
(A) New budget authority, $34,587,000,000.
(B) Outlays, $34,149,000,000.
Fiscal year 2017:
(A) New budget authority, $35,411,000,000.
(B) Outlays, $34,905,000,000.
Fiscal year 2018:
(A) New budget authority, $36,190,000,000.
(B) Outlays, $34,682,000,000.
Fiscal year 2019:
(A) New budget authority, $36,969,000,000.
(B) Outlays, $36,439,000,000.
Fiscal year 2020:
(A) New budget authority, $37,695,000,000.
(B) Outlays, $37,227,000,000.
Fiscal year 2021:
(A) New budget authority, $38,607,000,000.
(B) Outlays, $37,944,000,000.

(4) Energy (270):
Fiscal year 2012:
(A) New budget authority, $16,289,000,000.
(B) Outlays, $22,201,000,000.
Fiscal year 2013:
(A) New budget authority, $11,610,000,000.
(B) Outlays, $17,719,000,000.
Fiscal year 2014:
(A) New budget authority, $8,602,000,000.
(B) Outlays, $11,449,000,000.
Fiscal year 2015:
(A) New budget authority, $7,288,000,000.
(B) Outlays, $8,127,000,000.
Fiscal year 2016:
(A) New budget authority, $7,262,000,000.
(B) Outlays, $7,069,000,000.
Fiscal year 2017:
(A) New budget authority, $7,267,000,000.
(B) Outlays, $6,782,000,000.
Fiscal year 2018:
(A) New budget authority, $7,408,000,000.
(B) Outlays, $6,983,000,000.
Fiscal year 2019:
(A) New budget authority, $7,667,000,000.
(B) Outlays, $6,871,000,000.
Fiscal year 2020:
(A) New budget authority, $7,686,000,000.
(B) Outlays, $6,802,000,000.
Fiscal year 2021:
(A) New budget authority, $7,825,000,000.
(B) Outlays, $6,918,000,000.

(5) Natural Resources and Environment (300):
Fiscal year 2012:
(A) New budget authority, $38,299,000,000.
(B) Outlays, $41,305,000,000.
Fiscal year 2013:
(A) New budget authority, $36,382,000,000.
(B) Outlays, $39,000,000,000.
Fiscal year 2014:
(A) New budget authority, $36,729,000,000.
(B) Outlays, $37,871,000,000.
Fiscal year 2015:
(A) New budget authority, $36,794,000,000.
(B) Outlays, $37,796,000,000.
Fiscal year 2016:
(A) New budget authority, $37,803,000,000.
(B) Outlays, $37,709,000,000.
Fiscal year 2017:
(A) New budget authority, $38,616,000,000.
(B) Outlays, $38,289,000,000.
Fiscal year 2018:
(A) New budget authority, $40,044,000,000.
(B) Outlays, $38,449,000,000.
Fiscal year 2019:
(A) New budget authority, $40,817,000,000.
(B) Outlays, $39,161,000,000.
Fiscal year 2020:
(A) New budget authority, $42,184,000,000.

(B) Outlays, $40,347,000,000.
Fiscal year 2021:
(A) New budget authority, $42,651,000,000.
(B) Outlays, $40,884,000,000.
(6) Agriculture (350):
Fiscal year 2012:
(A) New budget authority, $21,466,000,000.
(B) Outlays, $20,821,000,000.
Fiscal year 2013:
(A) New budget authority, $21,880,000,000.
(B) Outlays, $23,750,000,000.
Fiscal year 2014:
(A) New budget authority, $22,220,000,000.
(B) Outlays, $21,857,000,000.
Fiscal year 2015:
(A) New budget authority, $21,773,000,000.
(B) Outlays, $21,172,000,000.
Fiscal year 2016:
(A) New budget authority, $21,973,000,000.
(B) Outlays, $21,388,000,000.
Fiscal year 2017:
(A) New budget authority, $22,027,000,000.
(B) Outlays, $21,397,000,000.
Fiscal year 2018:
(A) New budget authority, $22,303,000,000.
(B) Outlays, $21,652,000,000.
Fiscal year 2019:
(A) New budget authority, $22,559,000,000.
(B) Outlays, $21,891,000,000.
Fiscal year 2020:
(A) New budget authority, $22,873,000,000.
(B) Outlays, $22,204,000,000.
Fiscal year 2021:
(A) New budget authority, $23,154,000,000.
(B) Outlays, $22,494,000,000.
(7) Commerce and Housing Credit (370):
Fiscal year 2012:
(A) New budget authority, $28,301,000,000.
(B) Outlays, $28,782,000,000.
Fiscal year 2013:
(A) New budget authority, $16,460,000,000.
(B) Outlays, $14,886,000,000.
Fiscal year 2014:
(A) New budget authority, $14,909,000,000.
(B) Outlays, -$329,000,000.
Fiscal year 2015:
(A) New budget authority, $14,724,000,000.
(B) Outlays, -$3,102,000,000.
Fiscal year 2016:
(A) New budget authority, $15,193,000,000.
(B) Outlays, -$5,647,000,000.
Fiscal year 2017:
(A) New budget authority, $17,275,000,000.
(B) Outlays, -$6,557,000,000.
Fiscal year 2018:
(A) New budget authority, $18,584,000,000.
(B) Outlays, -$7,780,000,000.
Fiscal year 2019:
(A) New budget authority, $20,922,000,000.
(B) Outlays, $2,830,000,000.
Fiscal year 2020:
(A) New budget authority, $28,282,000,000.
(B) Outlays, $8,645,000,000.
Fiscal year 2021:
(A) New budget authority, $21,546,000,000.
(B) Outlays, $3,019,000,000.
(8) Transportation (400):
Fiscal year 2012:
(A) New budget authority, $164,397,000,000.
(B) Outlays, $107,900,000,000.
Fiscal year 2013:
(A) New budget authority, $118,785,000,000.
(B) Outlays, $115,243,000,000.
Fiscal year 2014:
(A) New budget authority, $124,490,000,000.
(B) Outlays, $117,996,000,000.
Fiscal year 2015:
(A) New budget authority, $131,785,000,000.
(B) Outlays, $122,061,000,000.
Fiscal year 2016:
(A) New budget authority, $138,597,000,000.
(B) Outlays, $126,993,000,000.
Fiscal year 2017:
(A) New budget authority, $145,552,000,000.
(B) Outlays, $132,000,000,000.
Fiscal year 2018:
(A) New budget authority, $142,463,000,000.
(B) Outlays, $135,940,000,000.
Fiscal year 2019:
(A) New budget authority, $144,362,000,000.
(B) Outlays, $139,111,000,000.
Fiscal year 2020:
(A) New budget authority, $146,317,000,000.
(B) Outlays, $141,571,000,000.
Fiscal year 2021:
(A) New budget authority, $148,332,000,000.
(B) Outlays, $142,908,000,000.
(9) Community and Regional Development (450):
Fiscal year 2012:
(A) New budget authority, $20,304,000,000.
(B) Outlays, $27,416,000,000.
Fiscal year 2013:
(A) New budget authority, $16,284,000,000.
(B) Outlays, $25,635,000,000.
Fiscal year 2014:
(A) New budget authority, $16,460,000,000.
(B) Outlays, $23,894,000,000.
Fiscal year 2015:
(A) New budget authority, $16,745,000,000.
(B) Outlays, $19,920,000,000.
Fiscal year 2016:
(A) New budget authority, $17,152,000,000.
(B) Outlays, $17,873,000,000.
Fiscal year 2017:
(A) New budget authority, $17,584,000,000.
(B) Outlays, $17,244,000,000.
Fiscal year 2018:
(A) New budget authority, $18,038,000,000.
(B) Outlays, $17,038,000,000.
Fiscal year 2019:
(A) New budget authority, $18,509,000,000.
(B) Outlays, $17,401,000,000.
Fiscal year 2020:
(A) New budget authority, $18,967,000,000.
(B) Outlays, $17,844,000,000.
Fiscal year 2021:
(A) New budget authority, $19,475,000,000.
(B) Outlays, $18,316,000,000.
(10) Education, Training, Employment, and Social Services (500):
Fiscal year 2012:
(A) New budget authority, $127,785,000,000.
(B) Outlays, $122,797,000,000.
Fiscal year 2013:
(A) New budget authority, $110,681,000,000.
(B) Outlays, $116,536,000,000.
Fiscal year 2014:
(A) New budget authority, $116,163,000,000.
(B) Outlays, $115,420,000,000.
Fiscal year 2015:
(A) New budget authority, $120,943,000,000.
(B) Outlays, $119,708,000,000.
Fiscal year 2016:
(A) New budget authority, $127,863,000,000.
(B) Outlays, $124,875,000,000.
Fiscal year 2017:
(A) New budget authority, $131,741,000,000.
(B) Outlays, $129,545,000,000.
Fiscal year 2018:
(A) New budget authority, $133,533,000,000.
(B) Outlays, $132,131,000,000.
Fiscal year 2019:
(A) New budget authority, $135,410,000,000.
(B) Outlays, $133,923,000,000.
Fiscal year 2020:
(A) New budget authority, $137,767,000,000.
(B) Outlays, $135,540,000,000.
Fiscal year 2021:
(A) New budget authority, $138,562,000,000.
(B) Outlays, $137,127,000,000.
(11) Health (550):
Fiscal year 2012:
(A) New budget authority, $369,493,000,000.
(B) Outlays, $365,443,000,000.
Fiscal year 2013:
(A) New budget authority, $384,710,000,000.
(B) Outlays, $380,637,000,000.
Fiscal year 2014:
(A) New budget authority, $458,629,000,000.
(B) Outlays, $445,506,000,000.
Fiscal year 2015:
(A) New budget authority, $524,185,000,000.
(B) Outlays, $153,567,000,000.
Fiscal year 2016:
(A) New budget authority, $572,119,000,000.
(B) Outlays, $576,975,000,000.
Fiscal year 2017:
(A) New budget authority, $615,385,000,000.
(B) Outlays, $618,309,000,000.
Fiscal year 2018:
(A) New budget authority, $657,150,000,000.
(B) Outlays, $654,695,000,000.
Fiscal year 2019:
(A) New budget authority, $703,207,000,000.
(B) Outlays, $700,159,000,000.
Fiscal year 2020:
(A) New budget authority, $758,257,000,000.
(B) Outlays, $744,694,000,000.
Fiscal year 2021:
(A) New budget authority, $802,020,000,000.
(B) Outlays, $798,239,000,000.
(12) Medicare (570):
Fiscal year 2012:
(A) New budget authority, $484,111,000,000.
(B) Outlays, $483,780,000,000.
Fiscal year 2013:
(A) New budget authority, $520,430,000,000.
(B) Outlays, $520,624,000,000.
Fiscal year 2014:
(A) New budget authority, $548,261,000,000.
(B) Outlays, $548,183,000,000.
Fiscal year 2015:
(A) New budget authority, $570,614,000,000.
(B) Outlays, $570,466,000,000.
Fiscal year 2016:
(A) New budget authority, $617,637,000,000.
(B) Outlays, $617,836,000,000.
Fiscal year 2017:
(A) New budget authority, $639,232,000,000.
(B) Outlays, $639,114,000,000.
Fiscal year 2018:
(A) New budget authority, $661,919,000,000.
(B) Outlays, $661,747,000,000.
Fiscal year 2019:
(A) New budget authority, $721,678,000,000.
(B) Outlays, $721,870,000,000.
Fiscal year 2020:
(A) New budget authority, $773,720,000,000.
(B) Outlays, $773,596,000,000.
Fiscal year 2021:
(A) New budget authority, $827,773,000,000.
(B) Outlays, $827,625,000,000.
(13) Income Security (600):
Fiscal year 2012:
(A) New budget authority, $567,181,000,000.
(B) Outlays, $556,666,000,000.
Fiscal year 2013:
(A) New budget authority, $534,400,000,000.
(B) Outlays, $532,449,000,000.
Fiscal year 2014:
(A) New budget authority, $532,748,000,000.
(B) Outlays, $530,980,000,000.
Fiscal year 2015:
(A) New budget authority, $530,252,000,000.
(B) Outlays, $527,489,000,000.
Fiscal year 2016:
(A) New budget authority, $537,507,000,000.
(B) Outlays, $538,348,000,000.
Fiscal year 2017:
(A) New budget authority, $537,892,000,000.
(B) Outlays, $534,372,000,000.
Fiscal year 2018:
(A) New budget authority, $542,056,000,000.
(B) Outlays, $533,620,000,000.
Fiscal year 2019:
(A) New budget authority, $557,509,000,000.
(B) Outlays, $553,333,000,000.
Fiscal year 2020:
(A) New budget authority, $569,122,000,000.
(B) Outlays, $564,783,000,000.
Fiscal year 2021:
(A) New budget authority, $581,727,000,000.
(B) Outlays, $577,158,000,000.
(14) Social Security (650):
Fiscal year 2012:
(A) New budget authority, $54,745,000,000.
(B) Outlays, $54,930,000,000.
Fiscal year 2013:
(A) New budget authority, $29,094,000,000.
(B) Outlays, $29,256,000,000.
Fiscal year 2014:
(A) New budget authority, $32,699,000,000.
(B) Outlays, $32,776,000,000.

Fiscal year 2015:
(A) New budget authority, $36,259,000,000.
(B) Outlays, $36,311,000,000.
Fiscal year 2016:
(A) New budget authority, $40,171,000,000.
(B) Outlays, $40,171,000,000.
Fiscal year 2017:
(A) New budget authority, $44,265,000,000.
(B) Outlays, $44,263,000,000.
Fiscal year 2018:
(A) New budget authority, $48,721,000,000.
(B) Outlays, $48,717,000,000.
Fiscal year 2019:
(A) New budget authority, $53,514,000,000.
(B) Outlays, $53,508,000,000.
Fiscal year 2020:
(A) New budget authority, $58,560,000,000.
(B) Outlays, $58,552,000,000.
Fiscal year 2021:
(A) New budget authority, $64,063,000,000.
(B) Outlays, $64,053,000,000.
(15) Veterans Benefits and Services (700):
Fiscal year 2012:
(A) New budget authority, $133,332,000,000.
(B) Outlays, $132,353,000,000.
Fiscal year 2013:
(A) New budget authority, $135,012,000,000.
(B) Outlays, $134,811,000,000.
Fiscal year 2014:
(A) New budget authority, $139,125,000,000.
(B) Outlays, $138,965,000,000.
Fiscal year 2015:
(A) New budget authority, $143,143,000,000.
(B) Outlays, $142,792,000,000.
Fiscal year 2016:
(A) New budget authority, $152,382,000,000.
(B) Outlays, $151,805,000,000.
Fiscal year 2017:
(A) New budget authority, $151,311,000,000.
(B) Outlays, $150,657,000,000.
Fiscal year 2018:
(A) New budget authority, $150,399,000,000.
(B) Outlays, $149,703,000,000.
Fiscal year 2019:
(A) New budget authority, $160,078,000,000.
(B) Outlays, $159,359,000,000.
Fiscal year 2020:
(A) New budget authority, $164,666,000,000.
(B) Outlays, $163,930,000,000.
Fiscal year 2021:
(A) New budget authority, $169,367,000,000.
(B) Outlays, $168,573,000,000.
(16) Administration of Justice (750):
Fiscal year 2012:
(A) New budget authority, $57,432,000,000.
(B) Outlays, $58,751,000,000.
Fiscal year 2013:
(A) New budget authority, $62,315,000,000.
(B) Outlays, $58,121,000,000.
Fiscal year 2014:
(A) New budget authority, $56,543,000,000.
(B) Outlays, $58,513,000,000.
Fiscal year 2015:
(A) New budget authority, $57,239,000,000.
(B) Outlays, $59,275,000,000.
Fiscal year 2016:
(A) New budget authority, $60,732,000,000.
(B) Outlays, $61,852,000,000.
Fiscal year 2017:
(A) New budget authority, $60,411,000,000.
(B) Outlays, $60,803,000,000.
Fiscal year 2018:
(A) New budget authority, $61,848,000,000.
(B) Outlays, $62,738,000,000.
Fiscal year 2019:
(A) New budget authority, $63,427,000,000.
(B) Outlays, $63,075,000,000.
Fiscal year 2020:
(A) New budget authority, $67,045,000,000.
(B) Outlays, $66,425,000,000.
Fiscal year 2021:
(A) New budget authority, $69,682,000,000.
(B) Outlays, $69,034,000,000.
(17) General Government (800):
Fiscal year 2012:
(A) New budget authority, $28,320,000,000.
(B) Outlays, $31,424,000,000.
Fiscal year 2013:
(A) New budget authority, $29,002,000,000.
(B) Outlays, $29,997,000,000.
Fiscal year 2014:
(A) New budget authority, $31,090,000,000.
(B) Outlays, $31,666,000,000.
Fiscal year 2015:
(A) New budget authority, $33,356,000,000.
(B) Outlays, $33,609,000,000.
Fiscal year 2016:
(A) New budget authority, $35,943,000,000.
(B) Outlays, $35,951,000,000.
Fiscal year 2017:
(A) New budget authority, $38,226,000,000.
(B) Outlays, $38,019,000,000.
Fiscal year 2018:
(A) New budget authority, $40,614,000,000.
(B) Outlays, $40,324,000,000.
Fiscal year 2019:
(A) New budget authority, $43,098,000,000.
(B) Outlays, $42,557,000,000.
Fiscal year 2020:
(A) New budget authority, $45,450,000,000.
(B) Outlays, $44,952,000,000.
Fiscal year 2021:
(A) New budget authority, $47,860,000,000.
(B) Outlays, $47,266,000,000.
(18) Net Interest (900):
Fiscal year 2012:
(A) New budget authority, $373,298,000,000.
(B) Outlays, $373,298,000,000.
Fiscal year 2013:
(A) New budget authority, $429,008,000,000.
(B) Outlays, $429,008,000,000.
Fiscal year 2014:
(A) New budget authority, $495,067,000,000.
(B) Outlays, $495,067,000,000.
Fiscal year 2015:
(A) New budget authority, $556,504,000,000.
(B) Outlays, $556,504,000,000.
Fiscal year 2016:
(A) New budget authority, $617,248,000,000.
(B) Outlays, $617,248,000,000.
Fiscal year 2017:
(A) New budget authority, $673,242,000,000.
(B) Outlays, $673,242,000,000.
Fiscal year 2018:
(A) New budget authority, $723,073,000,000.
(B) Outlays, $723,073,000,000.
Fiscal year 2019:
(A) New budget authority, $765,358,000,000.
(B) Outlays, $765,358,000,000.
Fiscal year 2020:
(A) New budget authority, $806,789,000,000.
(B) Outlays, $806,789,000,000.
Fiscal year 2021:
(A) New budget authority, $838,786,000,000.
(B) Outlays, $838,786,000,000.
(19) Security Allowances (930):
Fiscal year 2012:
(A) New budget authority, -$15,000,000,000.
(B) Outlays, -$8,592,000,000.
Fiscal year 2013:
(A) New budget authority, -$20,000,000,000.
(B) Outlays, -$15,405,000,000.
Fiscal year 2014:
(A) New budget authority, -$25,000,000,000.
(B) Outlays, -$21,052,000,000.
Fiscal year 2015:
(A) New budget authority, -$30,000,000,000.
(B) Outlays, -$26,235,000,000.
Fiscal year 2016:
(A) New budget authority, -$35,000,000,000.
(B) Outlays, -$31,385,000,000.
Fiscal year 2017:
(A) New budget authority, -$35,692,000,000.
(B) Outlays, -$33,860,000,000.
Fiscal year 2018:
(A) New budget authority, -$36,409,000,000.
(B) Outlays, -$35,217,000,000.
Fiscal year 2019:
(A) New budget authority, -$37,142,000,000.
(B) Outlays, -$36,167,000,000.
Fiscal year 2020:
(A) New budget authority, -$37,884,000,000.
(B) Outlays, -$36,982,000,000.
Fiscal year 2021:
(A) New budget authority, -$38,653,000,000.
(B) Outlays, -$37,728,000,000.
(20) Undistributed Offsetting Receipts (950):
Fiscal year 2012:
(A) New budget authority, -$79,779,000,000.
(B) Outlays, -$79,779,000,000.
Fiscal year 2013:
(A) New budget authority, -$81,619,000,000.
(B) Outlays, -$81,619,000,000.
Fiscal year 2014:
(A) New budget authority, -$85,164,000,000.
(B) Outlays, -$85,164,000,000.
Fiscal year 2015:
(A) New budget authority, -$90,854,000,000.
(B) Outlays, -$90,854,000,000.
Fiscal year 2016:
(A) New budget authority, -$92,630,000,000.
(B) Outlays, -$92,630,000,000.
Fiscal year 2017:
(A) New budget authority, -$93,926,000,000.
(B) Outlays, -$93,926,000,000.
Fiscal year 2018:
(A) New budget authority, -$99,730,000,000.
(B) Outlays, -$99,730,000,000.
Fiscal year 2019:
(A) New budget authority, -$104,303,000,000.
(B) Outlays, -$104,303,000,000.
Fiscal year 2020:
(A) New budget authority, -$108,178,000,000.
(B) Outlays, -$108,178,000,000.
Fiscal year 2021:
(A) New budget authority, -$112,645,000,000.
(B) Outlays, -$112,645,000,000.
(21) Overseas contingency operations (970):
Fiscal year 2012:
(A) New budget authority, $64,544,000,000.
(B) Outlays, $88,028,000,000.
Fiscal year 2013:
(A) New budget authority, $0.
(B) Outlays, $48,016,000,000.
Fiscal year 2014:
(A) New budget authority, $0.
(B) Outlays, $16,911,000,000.
Fiscal year 2015:
(A) New budget authority, $0.
(B) Outlays, $5,271,000,000.
Fiscal year 2016:
(A) New budget authority, $0.
(B) Outlays, $1,535,000,000.
Fiscal year 2017:
(A) New budget authority, $0.
(B) Outlays, $587,000,000.
Fiscal year 2018:
(A) New budget authority, $0.
(B) Outlays, $351,000,000.
Fiscal year 2019:
(A) New budget authority, $0.
(B) Outlays, $265,000,000.
Fiscal year 2020:
(A) New budget authority, $0.
(B) Outlays, $250,000,000.
Fiscal year 2021:
(A) New budget authority, $0.
(B) Outlays, $100,000,000.

The Acting CHAIR. Pursuant to House Resolution 223, the gentleman from Missouri (Mr. CLEAVER) and a Member opposed each will control 15 minutes.

The Chair recognizes the gentleman from Missouri.

Mr. CLEAVER. Madam Chair, the Congressional Black Caucus has offered an alternative resolution to the budget proposals every year since 1981. This year marks the 40th anniversary of the Congressional Black Caucus, and we have over those years served as the conscience of this body.

I stand in front of you today to say that this is perhaps the most important of all of the alternative budgets offered by the Congressional Black Caucus. And the reason is, Madam Chairman, that we believe someone must stand up for the vulnerable population. The vulnerable population is

not what we generally like to think; it's not the stereotypical view of a person who doesn't work and is shiftless and is a parasite.

The vulnerable population today consists of firefighters, police officers, municipal workers, State workers, factory workers who have been laid off through no fault of their own because of this weak economy. Those men and women have been struggling trying to make it.

Somebody must stand up for them. They are black, white, brown, they are elderly. Some of them are at an age where it will be difficult for them to get another job. And so somebody must stand up for them, and we have decided that it will be us.

Now, let me just say that these are some weird times. We do have a budget deficit, and we would not at all suggest that we don't need to deal with the budget deficit. What we need to do, however, is deal with it in a way that will protect the vulnerable populations.

Madam Chair, I have a left knee that is artificial, it is a prosthetic, the result of football injuries. And once I recovered and left the hospital after the surgery, my brain automatically forced the rest of my body to pay attention to the sick side of my body. So I automatically, even though I tried not to, did everything I could do to protect my left knee. I even put most of my weight on my right knee.

What I am saying is that our bodies provide us with a message that when some part of our body is vulnerable, is weak, the other part, the strong part, needs to do everything it can to protect the weak part.

The Congressional Black Caucus is saying that our alternative budget does exactly that when you consider the fact that the gap in after-tax income between the richest 1 percent of Americans and the middle and poorest fifths of our country more than doubled between 1979 and 2009.

So we can see that the rich are getting richer, the poor are getting poorer. And when I hear people say we must have shared sacrifice, I disagree.

The poorest people don't need to sacrifice. I am not sure that you can find a single poor person who is responsible for the economic collapse of the last 2 years. Mark Zandi, an economist with unimpeachable Republican credentials, said that 1.7 million people will lose their jobs in the first 2 years if this budget is enacted.

So, Madam Chair, we intend to present our budget now to demonstrate how this body can protect its weak side and still maintain the best of this Republic for the protection of its people.

I reserve the balance of my time.

□ 2140

Mr. CHAFFETZ. Madam Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from Utah is recognized for 15 minutes.

Mr. CHAFFETZ. I yield myself 3 minutes.

Madam Chair, I am so glad that we are going through this process this year. I think this is a healthy part of what we do as the United States, what separates us from a lot of other countries. And I'm glad that we are actually doing this. This is my second term in Congress. So last Congress last year, we didn't even go through this process. I think this is healthy.

I think we all care deeply, and we are very patriotic about this country, but I happen to have a vision that says that the proper role of government is somewhat limited and that there is a proper role for government, and that we need to adhere to that proper role.

It's funny, sometimes I hear opposition to the Republican proposal or the Republican budget, and I hear that we're going to sacrifice this and we're going to cut all that. Let's also understand that we're still going to spend $3.5 trillion with a capital T. That's a lot of money. People often ask me, they say how much is $1 trillion? It's kind of a hard number to get your arms around, but if you were to spend $1 million a day, every day, it would take you almost 3,000 years to get to $1 trillion, to $1 trillion.

Well, we're $14 trillion in debt. We're paying more than $600 million a day in interest on that debt. It's on its way to $1 billion a day in just the interest on that debt, and we're going to have to deal with the fact that we've got to pay that debt. We've got to cut up the government credit card. We have spent far too much money.

What I like about what we have proposed in the Republican budget is that we start to rein in the out-of-control spending; yet we still fulfill a lot of the obligations that we have to this country, particularly for seniors and others. We will still spend an exorbitant amount of money, but over the course of time, we will be on the proper trajectory to live within our means.

I think that is one of the foundations of this country, the idea of personal responsibility, the idea that we have to live within our means, that we are self-sufficient. And we have to deal with the fact that in Congresses previous, in generations previous, they have racked up this debt. And we go through and blame each other for that. But the reality moving forward is we have to put ourselves on a trajectory to balance the budget and pay off the debt. And that, I think, is one of the great moral responsibilities that we have in the United States Congress, the adult conversation that we have.

There are a lot of needs in this country, but we're broke, ladies and gentlemen. We're broke. And we have got to rein in the spending. And we have got to make the United States as competitive as we can possibly be. Because when we're competitive on the world stage—the United States of America is still the greatest country on the face of the planet—but if we're going to be the military and economic superpower, we have a responsibility to live within our means and to become self-sufficient.

I reserve the balance of my time, Madam Chair.

Mr. CLEAVER. I yield myself 10 seconds to just say, when progress is made, someone is always left behind. And my concern is that it's always the vulnerable.

I yield 3 minutes to the gentleman from Virginia, Mr. BOBBY SCOTT.

Mr. SCOTT of Virginia. Madam Chair, the Congressional Black Caucus has a long history of submitting fiscally responsible budget alternatives regardless of who may be sitting in the White House or which party holds the majority in Congress.

This year's budget alternative continues this long tradition by putting forth a plan that significantly reduces our deficit over the next decade while increasing economic opportunities and promoting job creation in every corner of our society.

Unlike the Republican budget, the CBC budget brings the deficit to 1.4 percent of GDP by 2015, better than so-called primary balance, which was the goal of the President's fiscal commission, and achieves primary balance even earlier than the commission, itself. While I commend the Republican chairman of the Budget Committee for proposing a budget that reduces our long-term debt, he only achieves this by shifting medical costs to lower-income Americans and seniors.

The CBC budget is much more responsible. Our budget makes tough choices. But unlike the Republican budget, it doesn't jeopardize Social Security, undermine Medicaid by turning it into a block grant, or shift Medicare costs to seniors by creating a voucher program that doesn't keep pace with medical inflation. Our budget protects these vital programs, and compared to the Republican budget, it has $1.3 trillion more in deficit reduction over the next decade.

The CBC budget proposes responsible revenue increases by closing corporate loopholes and preferences, deterring aggressive stock speculation, which helped contribute to the 2008 financial crisis, and ensuring that the wealthiest Americans who benefited most from the tax cuts and bailouts in the last decades pay their fair share.

Now, with the additional revenues and assuming some of the cuts proposed in the President's budget, the CBC budget uses 80 percent of the additional revenue for deficit reduction, and then invests the rest to protect from making the cuts in our safety net programs, like WIC or Community Health Centers, avoiding cuts in investments in our future like Head Start, Pell Grants, high-speed rail, and NASA, reducing cuts in critical functions like clean water, FBI agents and food inspections, and has more for national defense, homeland security and our veterans. Our budget also fully funds an additional 14 weeks of emergency unemployment benefits for those who have exhausted their benefits, often referred to as the 99ers.

Now, Madam Chair, the CBC budget protects our social safety net. It invests in our future. It maintains essential services in national security. It does all of this and has more deficit reduction than the underlying Republican budget. So we have a choice. We can have lower deficits and a better future, or we can have tax cuts for multimillionaires and oil companies.

I urge my colleagues to make the right choice and support the Cleaver amendment.

Mr. CHAFFETZ. Madam Chair, I yield 3 minutes to the freshman gentleman from Oklahoma (Mr. LANKFORD).

Mr. LANKFORD. Madam Chair, the House budget that we're proposing tonight from Republicans is a budget that will take discretionary spending back to the pre-2008 level and begin to deal with our spending issue that we have as a Nation. We have increased our discretionary spending 25 percent over the last 2 years. We're trying to move it back to where we were a few years ago and then allow that to be able to grow with inflation.

We're focusing on freezing in the Federal workforce. It's a recommendation done by the President's own debt commission. And taking that issue on that the President and the debt commission gave to say, how do we need to handle our Federal workforce? It has increased by 140,000 just in a single year. And it begins to walk through the process of what do we do with our social safety net to make sure that the social safety net is still there in the years to come.

We believe there needs to be a social safety net, but as our chairman has said multiple times, that social safety net should be a safety net and not a hammock. And it should allow people to be able to go through that process to find a safe place and a safe harbor for a period of time until they're able to get back on their feet. That's a good thing for us to be able to do as Americans, and we need to find ways to be able to protect that in the days to come.

But part of the struggle that we have with that is finding ways that that doesn't become a place where people are trapped indefinitely. So we would like to be able to implement some of the reforms of the Clinton-era time when temporary assistance for needy families was transitioned in, and it has become such a great success on helping families be able to transition into work. The best way we can take care of families that are in the poverty area is not through a program from the government; it is with a great job so they have great self-esteem and they can be engaged and be a part of our ongoing economy.

The President's own debt commission made the comment that the Nation is broke, and what we need to do is focus on reducing spending and dealing with how we handle what we do as a Nation and what we're trying to accomplish.

As far as the issues about Medicare, we've been very clear through this process. We're dealing with Medicare changes for those that are 54 years old and younger. And for those that are in poverty and facing disability, those individuals would have full coverage, and as they're more wealthy, yes, we would means test that. We have an expectation that wealthier senior adults would be able to help cover more of their own Medicare; but for those that are in poverty or near the poverty range, they would be supplemented more to make sure that we're taking care of them, and it would be a guaranteed coverage like they have now so that they don't have to worry about not being able to get Medicare. They would be able to have it, and that would be secured for them.

We have one more major thing that we've all discussed. We all want taxes to be more simple in the process. Tomorrow is April 15, all of our favorite day in America, dealing with the taxes and dealing with the process. And it's not a matter of being a great citizen. It's just a matter of going through the tax forms. We need to simplify this process and make it more flat, more level and more fair for people across the board. So that's a major part of it. We're not talking about raising taxes $6 trillion. We're talking about keeping tax rates where they are and finding a way to be able to honor people and honor families.

□ 2150

Mr. CLEAVER. Madam Chair, how much time remains, please?

The Acting CHAIR. The gentleman from Missouri has 8½ minutes remaining.

Mr. CLEAVER. I now yield 2 minutes to the gentlelady from Wisconsin, Ms. GWENDOLYNNE MOORE.

Ms. MOORE. The Congressional Black Caucus, the conscience of the Congress, rejects cuts that wage war on the poor and war on the working class. There are 43 of us from 21 States, and we represent over 30 million people. We are aggrieved that two-thirds of the Republican budget cuts come from programs that serve low-income and working class people while there is no sacrifice from the uber-wealthy class.

It is our job to be a voice in the wilderness and to point out that it is downright immoral to choose tax cuts for the wealthiest Americans and billions of dollars of tax breaks and tax subsidies rather than preserving the dignity of a life with decent housing, food security, and access to health care for all Americans.

The gentleman who spoke previously just pointed out that they're cutting welfare because they believe that people need self-esteem. Well, you cannot eat self-esteem, and you cannot live in a house built on self-esteem. We want you to know that half of all Americans in this country are barely making it without any governmental support, and they need Medicaid. They don't need you to block grant it. ''Block granting'' means a cut. ''Block granting food stamps'' means a cut. Privatizing Medicare is a cut. Inflicting deep cuts to the Low Income Home Energy Assistance Program and denying extended benefits to the unemployed is a cut.

Yet the Congressional Black Caucus prioritizes controlling the debt and deficit. We cut it by $4 trillion over 10 years. We, the CBC, submit that conservative fiscal policy is compatible with compassion for the invisible, voiceless majority of Americans who need their government to respond.

Mr. CHAFFETZ. Madam Chair, I yield 3 minutes to the gentleman from Indiana (Mr. YOUNG).

Mr. YOUNG of Indiana. Madam Chair, there has been much discussion today about shared sacrifice. The notion of shared sacrifice, let's disaggregate that for a moment.

We might have shared sacrifice for the next generation. We certainly are contemplating that right now if we fail to act in a responsible manner and address our Nation's debt crisis.

Shared sacrifice for the currently unemployed and underemployed in our country, that is what we are contemplating. If our solution to our Nation's problems is merely to increase taxes, we're going to see a decrease in job creation in this country. We will actually see our going the other direction in terms of employment in this country if we implement, as is proposed in this substitute, a tax increase of almost $6 trillion as compared to the budget that we are embracing on the Republican side.

We are imposing all manner of unnecessary sacrifice under this substitute on those Americans who are currently working and middle class. It contemplates a tax increase on capital gains and dividends at ordinary income rates. What that means, essentially, is we're thinking of taxing pensions and mutual funds at a rate as high as 49 percent. That would adversely impact our seniors. It's not the responsible thing to do.

Here in this proposal, we are also contemplating allowing all tax provisions of the 2001 and 2003 deals to expire for all taxpayers. In other words, this is a proposed tax increase on middle class Americans. I don't think that's the right thing to do right now.

Let's remind ourselves that we cannot tax our way out of this spending problem. Washington, once again, does not have a tax problem. We are not in this mess because we're not taxing the American people enough. Instead, we are in this mess because we're spending far too much.

This will become a familiar chart for Americans around the country, I hope, but let's look at this:

This is the ski slope of future spending projections, according to our Office of Management and Budget and Congressional Budget Office, if we do nothing. Those on the other side are seemingly proposing that we continue along this course or that we try and remedy

this situation through job-constraining tax increases. That's not the way to go.

Finally, one statistic that was cited earlier tonight bears reiterating. If we were to tax everyone in this country who makes $250,000 or more—every family in this country, so that's just two income earners—at the $125,000 level and at 100 percent of their incomes, we still could not improve our financial situation enough to restore private sector job creation and put ourselves back on the path to prosperity. That is why I think we need to embrace this Ryan budget.

Mr. CLEAVER. Madam Chair, I yield 1 minute to the gentleman from Texas, AL GREEN.

Mr. AL GREEN of Texas. Madam Chair, the American people are confronting a dilemma, and the dilemma is simply this: to privatize or not to privatize. When all is said and done, that's the dilemma that we face based upon what the opposing party proposes.

The simple solution to education is to simply privatize and to give them vouchers. The simple solution to Social Security is to privatize and to place it in the stock market. The simple solution to health care is to privatize and to give them vouchers. For every complicated problem, there is a simple solution that's usually wrong.

As the economy continues to emerge from the worst recession in generations, the CBC budget understands the increased need for income security programs such as the Supplemental Nutrition Assistance Program (SNAP), Unemployment insurance, Medicaid, and Section 8 housing vouchers.

As a member of the House Financial Services Committee, I have worked hard over many years to ensure adequate funding levels for housing and community development programs, such as the Fair Housing Initiatives program and the HUD–Veterans Affairs Supportive Housing program. I am pleased that the CBC budget supports investment in these key programs.

For Fiscal Year 2012, the Administration has requested $75 million for new HUD–Veterans Affairs Supportive Housing (VASH) vouchers, which will end homelessness for an estimated 11,538 of our nation's veterans.

HUD–VASH combines tenant-based voucher assistance for homeless veterans with case management and clinical services provided by the Department of Veterans Affairs (VA) at its medical centers in local communities.

Public housing authorities who are awarded HUD–VASH vouchers develop partnerships with VA medical centers to help homeless veterans find permanent supportive housing.

It is estimated that approximately 60,000 homeless veterans will need HUD–VASH vouchers. A recent report issued by HUD and the VA indicated that on a single night in January 2009, 75,609 veterans were homeless.

Over the past three fiscal years, Congress has appropriated $75 million a year for 10,000 new vouchers—for a total of 30,000 vouchers.

To continue moving towards the goal of ending veterans' homelessness, Congress should provide an additional 11,538 vouchers in FY 2012.

I am pleased that the CBC Budget makes homeless veterans a priority by providing additional funding to Section 8 which will ultimately ensure adequate vouchers in FY 2012.

The CBC Budget also provides additional funding for community and regional development programs. I am pleased that the Fair Housing Initiatives Program is listed among programs targeted to receive additional support.

This week marked the forty-third anniversary of the signing of the federal Fair Housing Act which was signed into law because of the efforts of Dr. Martin Luther King Jr. to bring civil rights and justice in housing to all Americans. The Fair Housing Act outlawed discrimination in housing based upon race, color, religion, and national origin.

Despite its passage more than 40 years ago, approximately 4 million fair housing violations are estimated to occur each year, many of which involve veterans and military personnel.

However, according to the National Fair Housing Alliance, just 30,000 are reported to federal, state, and local fair housing authorities and only a handful are investigated with less than 120 actually resulting in charges.

This number appears low given that housing discrimination is perceived to be one of the root causes of the current foreclosure crisis.

Fair housing education and enforcement, primarily provided by private, non-profit fair housing organizations, play an important role in fighting housing discrimination and predatory lending.

With support from the federal Fair Housing Initiatives Program (FHIP), these organizations investigate over half of the nation's reported housing discrimination complaints, counsel people who have been victims of housing discrimination, and enforce fair housing laws through housing testing programs.

The President's Budget proposes $42.5 million in funding for the FHIP program in FY2012 which provides level funding from the previous year.

FHIP is a key federal program that provides funds to enforce the nation's fair housing laws, combat housing discrimination and ensure equal housing opportunities at the state and local level.

Given the ongoing foreclosure crisis, which has forced many families to enter the rental market, strengthened fair housing programs are more important than ever.

As the housing market slowly recovers, the need for sustained funding for fair housing enforcement is critically important. I am pleased that the CBC budget recognizes the importance of this program by providing additional funding for it as well.

In addition, I have introduced H.R. 284, the Veterans, Women, Families with Children, and Persons with Disabilities Housing Fairness Act of 2011, which aims to provide the necessary enforcement to guarantee equal opportunities and prosecute housing discrimination, as well as to be a deterrent for this kind of behavior.

It is my hope that these combined efforts will bring us closer to ending housing discrimination, especially against disabled persons and particularly against our veterans.

I ask my colleagues to vote "aye" on final passage of the Congressional Black Caucus Alternative Budget for Fiscal Year 2012.

Mr. CHAFFETZ. Madam Chair, I yield myself such time as I may consume in order to say that we don't offer a proposal to privatize Social Security. We do not do the things that were just said on this floor.

Nevertheless, I yield 3 minutes to the gentleman from Indiana (Mr. ROKITA).

(Mr. ROKITA asked and was given permission to revise and extend his remarks.)

Mr. ROKITA. Madam Chair, I rise tonight to also talk a little bit about the size and the scope and the number of employees that this Federal Government has. Earlier tonight, I talked about the State from which I come, Indiana—a AAA bond rating, not raising taxes on anybody, and a budget that year after year has been in the black.

As Secretary of State for Indiana for the last 8 years, I had operated a bureaucracy, and I know a little bit about them. What we had in Indiana, at least in the Secretary of State's office, was a pretty darned good one. We had no more employees in the Indiana Secretary of State's office than we did in the early '80s, and we were running on a 1987 budget, unadjusted for inflation.

I can tell by the reaction of some of the Members here in the House tonight that it's one of derision. It's one of scoffing. It can be done. The States know how to do it. Let's look to them.

In contrast to Indiana, what do we see here at the Federal level? We see 155,000 more bureaucrats than just a few years ago, an 80-plus-percent increase in the size and scope of this Federal Government, Madam Chairman—and that's just the personnel. We can have cuts in each of these departments. Every bureaucrat we don't hire after one retires will cause a 10 percent decrease in the Federal workforce over just a few years. That's responsible governing, especially when you're talking about a $14 trillion debt—$1 trillion year after year deficits.

As the previous Republican speaker pointed out, my friend TODD YOUNG, it's just getting worse. The red menace is upon us, and it's the red ink produced in this Federal Government, right here from the well of this House, to begin with. The Ryan proposal that came out of the Budget Committee addresses this in a responsible manner. The smaller we make this Federal Government, the more the private sector grows. It's correlational. It's definitional.

□ 2200

I urge my colleagues to pass this budget proposal, the Ryan proposal.

Mr. CLEAVER. Madam Chair, I yield 1 minute to the gentlewoman from New York (Ms. CLARKE).

Ms. CLARKE of New York. Madam Chair, I rise in strong support of the Congressional Black Caucus budget alternative which lays out what I truly believe to be a more responsible way forward. In stark contrast to the irresponsible and reckless cuts proposed by the majority in the Ryan budget, the CBC budget alternative recognizes that not only can we not cut and slash our way to prosperity on the backs of our Nation's most vulnerable while protecting tax cuts for multimillionaires,

but we also must invest in our Nation's future.

Our proposal creates jobs by investing in the green economy, diminishing our dependence on foreign oil, invests in our future by supporting programs that make education from the cradle to college more affordable, and protects the most vulnerable Americans.

Madam Chair, it is time we have an honest conversation with the American people about where we are: the greatest wealth transfer from the poor and the middle class to the rich and the wealthy in our lifetime. How we got here: Bush tax cuts, subprime scamming, and financial sector greed. And how we get to fiscal solvency: By supporting the CBC budget alternative. We are the conscience of the Congress.

Mr. CHAFFETZ. Madam Chair, I would like to inquire of the remaining time. We have no additional speakers except myself.

The Acting CHAIR. The gentleman from Utah has 3 minutes remaining. The gentleman from Missouri has 4½ minutes remaining.

Mr. CHAFFETZ. I reserve the balance of my time.

Mr. CLEAVER. Madam Chair, I yield 1 minute to the gentlewoman from the Virgin Islands (Mrs. CHRISTENSEN), a certified physician.

Mrs. CHRISTENSEN. Madam Chair, I rise today in strong support of the Congressional Black Caucus' budget, which is responsible and responsive to the needs of all Americans, especially those who have been ignored and underserved in these hard economic times.

We reject the Republican budget that, while providing giveaways to the rich and corporations, sends seniors and people with disabilities out into the private insurance market with vouchers that will not cover, and so will increase, their costs, and that reopens the dreaded doughnut hole.

The CBC budget preserves Medicare, strengthens and extends it, and ends the doughnut hole. Republicans would cut Medicaid, denying health care to Americans who need prevention and care most, continuing the spiral of excess disabilities, illness, and premature death.

Our budget fully funds Medicaid and the Prevention and Public Health Fund, ensuring health care and the chance for wellness which many would not have without them.

We robustly fund HIV/AIDS, WIC, maternal and child health, and other programs to close gaps and bring better health to minorities, the poor, and Americans in rural areas and the territories.

Unlike the Republicans budget, we create millions of jobs, bring down costs, and further reduce the deficit. Vote for the CBC budget. Reject the harmful Republican budget.

Mr. CHAFFETZ. I have no further requests for time, and I reserve the balance of my time.

Mr. CLEAVER. Madam Chair, I yield 1 minute to the gentleman from Maryland (Mr. CUMMINGS), the ranking member of the Committee on Oversight and Government Reform.

Mr. CUMMINGS. I thank the gentleman for yielding, and I rise in strong support of the Congressional Black Caucus budget. As a senior member of the Committee on Transportation and Infrastructure, and as a former chairman of the committee's Subcommittee on the Coast Guard and Maritime Transportation, I know that budget cuts do not build bridges. They also do not repair roads, and they do not expand our transit systems.

Unlike the majority's proposed budget which threatens to bring our transportation networks to a standstill, the Congressional Black Caucus alternative budget invests $20 billion above the President's budget in highways, transit, high-speed rail, and bridges. Such an investment in our Nation's infrastructure will move our recovering economy forward while creating at least 1 million jobs. Such investments will also ensure the mobility of our constituents so they can keep moving forward.

The CBC alternative budget makes investments in economic growth, and our Nation's needs, and I urge all Members to vote in favor of the Congressional Black Caucus budget.

Mr. CHAFFETZ. I continue to reserve the balance of my time.

Mr. CLEAVER. I yield 1 minute to the gentleman from Illinois (Mr. DAVIS).

Mr. DAVIS of Illinois. Madam Chair, I rise in strong opposition to the Ryan plan and in favor of the CBC budget. The CBC budget invests heavily in the education of our youngest citizens, from preschool to graduate school. This investment is necessary to ensure that all children receive the world class education they so greatly need and rightly deserve.

This investment is necessary to build the early childhood education system. We need to improve school readiness and reduce achievement gaps among students from different backgrounds. This investment is necessary to teach critical math and science skills, to improve graduation rates, and to provide for crucial college preparation programs such as TRIO and GEAR UP, all of which are essential for success in our technological world.

Madam Chair, education is a civil rights issue, and unless we educate all of our children, this country will never be what it ought to be. I support the CBC budget.

Mr. CHAFFETZ. Madam Chair, I understand the gentleman has additional speakers. I am happy to yield an additional minute to the gentleman.

The Acting CHAIR. The gentleman from Missouri now controls 2½ minutes.

Mr. CLEAVER. I thank the gentleman from Utah, and I yield 1 minute to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE of Texas. Madam Chair, I thank the gentleman from Utah for yielding to the CBC.

The CBC budget saves $325 billion in interest over 10 years which the Republican budget does not. I am glad to stand here and talk about ports and public transit, but I am even more glad to talk about the $5 billion that goes into general sciences, space and technology, and the $5 billion for community development.

The reason I want to say that is for all of the tax cuts to the wealthy, $800 billion, the CBC budget understands that they can invest in health, income security, education, and transportation.

In addition, may I say to you that this is the face of what we are trying to fight for: a hardworking nurse and a beautiful child. This is what America is all about. And I would just say to my good friends, the CBC budget does not engage in slash-onomics. It does not engage in losing jobs, jobs, jobs. We create jobs through community block grants, through space, science, and technology, through transportation. And all the bill for the Republicans will do to America is slash jobs; slash-onomics. Vote for the CBC budget.

Madam Chair, I rise in support of the Congressional Black Caucus Alternative Budget for Fiscal Year 2012. The CBC Alternative Budget provides a far superior alternative to the Republican Budget in general and especially in the areas of job creating area of transportation and infrastructure.

IN GENERAL

The CBC Alternative Budget for FY 2012 puts forth a plan that reduces the deficit over the next decade, and increases economic opportunities and job creation while ensuring sustained investments in education, job training, transportation and infrastructure, and advanced research and development.

Deficit reduction and the path to fiscal sustainability must not be on the backs of the vulnerable. We cannot win the future by leaving our most vulnerable behind. Our success as a nation is interwoven in the success of every community. The CBC Alternative Budget is an honest and responsible path to prosperity.

Unlike the Republican Budget, the CBC Budget achieves all this by making tough but responsible decisions to raise new revenue by broadening the tax base, make our tax system fairer, and close corporate tax loopholes and preferences that have only contributed to the loss of American jobs. Instead of recklessly swinging the budget axe like the Republican leadership, the CBC budget makes targeted investments that will pay dividends for decades.

Compared to the President's budget, the CBC budget saves $5.7 trillion on the deficit over the next decade.

Compared to the Republican budget, the CBC budget saves $1.3 trillion on the deficit over the next decade.

EDUCATION

The CBC budget invests $20 billion over the President's Budget in Education and Job Training Programs.

The CBC Budget support the President's targeted investments towards education programs, but also restores the proposed cuts to the Community Services Block Grant and the $7.6 billion cut to year round Pell grants.

JOB CREATION & SOCIAL SAFETY NET

In the name of cutting spending, Republicans in Congress have recklessly swung the axe at programs that help vulnerable Americans. The blade did not spare Community Development Black Grants, food assistant programs, etc. The Republican budget all but wipes out these necessary programs at the time when more and more families are being pushing into poverty.

CBC budget provides states with the resources necessary to continue to preserve the social safety net while promoting sustainable job creation and economic growth. This proposed investment in infrastructure is supported by business, specifically the United States Chamber of Commerce.

CBC budget also provides $16 billion for H.R. 589, the Emergency Unemployment Compensation Expansion and $2.5 billion for the TANF Emergency Contingency Fund.

DEFICIT REDUCTION

For FY 2012, the CBC Budget sets aside $283.4 billion for deficit reduction. Over a 10 year period, the CBC budget sets aside $3.96 trillion of deficit reduction. Compared to the Republican budget, the CBC budget save $172 billion on the deficit in FY2012 and $1.34 trillion over the next decade.

TRANSPORTATION

The CBC budget provides $20 billion for Transportation Investment.

COMMUNITY & REGIONAL DEVELOPMENT

The CBC budget provides $5 billion for Community & regional Development.

CONCLUSION

By investing in infrastructure and other job creating areas, the CBC Alternative Budget offers the best and most fiscally responsible proposal to take America forward to economic prosperity.

Mr. CHAFFETZ. I continue to reserve the balance of my time.

Mr. CLEAVER. Madam Chair, in closing, I am not accusing anybody of being mean-spirited and wanting to hurt people. I am absolutely convinced that those who support the Republican budget are good and decent Americans. They want the best things for this country. I will never stand on this floor and do that.

But what I am saying is I believe and our caucus believes that their program, their budget, is one that does damage to the vulnerable population of this country. We believe that somebody must stand up and speak for those who are hurting and cannot speak for themselves.

□ 2210

A budget is a moral document. It is a photograph of what we believe. It is a look into the somebodiness of the United States of America. And when we look at this budget that this Congress will ultimately approve, some budget, it is who we are. It is a biography of who we are. And I am absolutely convinced that the wrong budget—and I think that the budget that is before us is the wrong budget—could create a gash on the soul of America and leave a scar for a long, long time.

Madam Chair, this is a time that we must be careful because if we are not, great damage will be done to the people who can afford the damage the least. I'm talking about children. I'm talking about the elderly. And I'm talking about Americans who live next door to us, people who sit on the pew with us in church. These are people who are going to be hurt by this budget. And I think that the American public, when they come to understand this budget, will come to the conclusion that we're right.

The Acting CHAIR. The time of the gentleman has expired.

Mr. CHAFFETZ. Madam Chair, the United States of America is the greatest country on the face of the planet. We have overcome challenge after challenge for hundreds of years.

What makes America great is that entrepreneurial spirit, that can-do attitude, that idea that was inspired in the Constitution. See, I believe that the Constitution is an inspired, sacred document. But if we are going to continue to maintain our being the world's economic and military superpower, we're going to have to change the trajectory in which we are doing business.

Taxing, spending, borrowing money—that is not the pathway to prosperity. The American Dream is built upon the ideal that people need to take care of themselves. There is a proper role of government. And what we truly need in this country is fiscal discipline, limited government, accountability, and a strong national defense.

The Republican budget that has been put forward puts us on that trajectory, to retain and regain that fiscal sanity that we so desperately need in this country. Not only does our budget balance over the course of time, but it actually pays off the debt. And that, I think and I believe, is what we should be doing and what this budget that is put forth by the Budget Committee on the Republican side of the aisle truly does.

We have a moral obligation to leave this country better than how we found it. And if we are going to truly drive jobs and the economy forward, we are going to have to recognize that we need to empower the individual. We need to empower the entrepreneur so that they can be the very best they can in a very competitive global climate.

So, Madam Chair, I would urge the passage of the Republican budget, and I would urge my colleagues to vote ''no'' on this alternative that has been put forward during this last half hour.

I have enjoyed the debate. That's what makes this country great.

Ms. RICHARDSON. Madam Chair, I rise today in support of the alternative budget of the Congressional Black Caucus. This budget makes smart investments in our future by focusing on education, workforce training, and advanced research and development for clean energy technologies.

As you all know, minority communities took the hardest hit during the economic recession. In my district, we suffer from rates of unemployment and home foreclosure that are significantly higher than the rest of the country. Although our nation's economy is showing positive signs of growth, we must continue to make critical investments in our communities to facilitate our recovery. The CBC's alternative budget does this by investing $20 billion more than the President's Budget in education and job training programs that will prepare our young leaders to win the future.

While the CBC recognizes the importance of creating a budget that is fiscally responsible, we cannot slash spending and investment on the backs of the most vulnerable Americans. The CBC's alternative budget reduces the deficit over the next decade and makes smart investments in education, job creation, and transportation and infrastructure. Without these investments, the United States will lose its competitive edge.

Unlike the Republican budget proposal, the CBC's alternative budget protects Medicare and Medicaid, and ensures that the most vulnerable in our society have access to quality healthcare services. The CBC's alternative budget also restores cuts to programs like the Low Income Heating Assistance Program, Community Development Block Grants and Pell Grants for students.

The CBC's alternative budget will also provide $20 billion more than the President's Budget for needed transportation and infrastructure projects. These investments will help to create jobs, facilitate the movement of goods, and help keep our economy moving forward.

I urge my colleagues to support the CBC's alternative budget plan, which reduces our deficit responsibly over the next decade and invests in the future prosperity of every American.

Mr. CHAFFETZ. I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Missouri (Mr. CLEAVER).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. CLEAVER. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Missouri will be postponed.

The Chair is advised that amendment No. 2 printed in part B of House Report 112–62 will not be offered.

Mr. CHAFFETZ. Madam Chairman, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. CHAFFETZ) having assumed the chair, Ms. FOXX, Acting Chair of the Committee of the Whole House on the State of the Union, reported that that Committee, having had under consideration the concurrent resolution (H. Con. Res. 34) establishing the budget for the United States Government for fiscal year 2012 and setting forth appropriate budgetary levels for fiscal years 2013 through 2021, had come to no resolution thereon.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. REICHERT (at the request of Mr. CANTOR) for today and the balance of the week on account of family reasons.

ADJOURNMENT

Mr. ROKITA. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 10 o'clock and 15 minutes p.m.), the House adjourned until tomorrow, Friday, April 15, 2011, at 9 a.m.

EXPENDITURE REPORTS CONCERNING OFFICIAL FOREIGN TRAVEL

Reports concerning the foreign currencies and U.S. dollars utilized for Speaker-Authorized Official Travel during the fourth quarter of 2010 and the first quarter of 2011 pursuant to Public Law 95–384 are as follows:

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO BELGIUM FOR THE JOINT COMMITTEE MEETING OF THE NATO PARLIAMENTARY ASSEMBLY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN FEB. 19 AND FEB. 23, 2011

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Michael Turner	2/20	2/24	Belgium		1,333.62		845.30				2,178.92
Hon. Jeff Miller	2/20	2/23	Belgium		847.99		1,854.10				2,702.09
Hon. Gus Bilirakis	2/20	2/23	Belgium		819.56		1,851.90				2,671.46
Doug Seay	2/19	2/23	Belgium		1,373.62		1,734.90				3,108.52
Riley Moore	2/20	2/23	Belgium		970.56		1,734.90				2,705.46
Committee total					5,345.35		8,021.10				13,366.45

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. MICHAEL R. TURNER, Chairman, Apr. 5, 2011.,

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE BUDGET, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2011

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return.☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. PAUL RYAN, Chairman, Apr. 7, 2011.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON EDUCATION AND THE WORKFORCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2011

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return.☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. JOHN KLINE, Chairman, Apr. 9, 2011.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ETHICS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2011

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
HOUSE COMMITTEES Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return.☒											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. JO BONNER, Chairman, Apr. 5, 2011.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE JUDICIARY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2011

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Sandy Adams	3/28	3/29	Cuba, Haiti		267.00		[3]				267.00
Committee total					267.00						267.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. LAMAR SMITH, Chairman, Apr. 7, 2011.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON WAYS AND MEANS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN OCT. 1 AND DEC. 31, 2010

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Kevin Brady	11/10	11/12	Japan		956.00		9,036.70				9,992.70
David Thomas	11/9	11/12	Japan		1,083.46		9,452.20				10,535.66
Geoffrey Antell	11/6	11/12	Korea		1,926.00		5,015.64				6,941.64
	11/12	11/13	Japan		996.00				55.00		444.52
Angela Ellard	11/8	11/12	Korea		1,226.00		9,570.90		186.69		10,983.59
	11/12	11/13	Japan		996.00						996.00
George York	11/9	11/13	Japan		1,350.00		11,165.20				12,515.20
Alexander Perkins	11/6	11/12	Korea		1,576.45		7,519.80				9,096.25
Vijaya Rangaswami	11/6	11/12	Korea		1,770.00		9,618.80				11,388.80
Committee total					11,879.91		61,379.24		241.69		73,500.84

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. SANDER M. LEVIN.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

1265. A letter from the Under Secretary, Department of Defense, transmitting the National Guard Youth Challenge Program Annual Report for Fiscal Year 2010; to the Committee on Armed Services.

1266. A letter from the General Counsel, Federal Energy Regulatory Commission, transmitting the Commission's final rule — System Restoration Reliability Standards [Docket No.: RM10-16-000; Order No. 749] received April 4, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1267. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Withdrawal of Regulatory Guide 8.5, ''Critically and Other Interior Evacuation Signals.'' [7590-01-P] received March 13, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1268. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Control of Stainless Steel Weld Cladding of Low-Alloy Steel Components [Regulatory Guide 1.43] received March 30, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1269. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Control of Preheat Temperature for Welding of Low-Alloy Steel [Regulatory Guide 1.50] received March 30, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1270. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting the Department's Fifth Annual No FEAR Report to Congress for Fiscal Year 2010; to the Committee on Oversight and Government Reform.

1271. A letter from the Senior Procurement Executive/Deputy Chief Acquisition Officer, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Federal Acquisition Circular 2005-51; Small Entity Compliance Guide [Docket No.: FAR 2011-0077, Sequence 3] received March 31, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1272. A letter from the Senior Procurement Executive/Deputy Chief Acquisition Officer, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Clarification of Standard Form 26 — Award/Contract [FAC 2005-51; FAR Case 2009-029; Item II; Docket 2010-0096, Sequence 1] (RIN: 9000-AL72) received March 31, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1273. A letter from the Senior Procurement Executive/Deputy Chief Acquisition Officer, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Federal Acquisition Circular 2005-51; Introduction [Docket FAR: 2011-0076, Sequence 3] received March 31, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1274. A letter from the Senior Procurement Executive/Deputy Chief Acquisition Officer, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Women-Owned Small Business (WOSB) Program [FAC 2005-51; FAR Case 2010-015; Item I; Docket 2010-0015, Sequence 1] (RIN: 9000-AL97) received March 31, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1275. A letter from the Director, Office of Civil Rights, International Broadcasting Bureau, transmitting the Bureau's annual report for fiscal year 2010 on the Notification and Federal Employee Antidiscrimination and Retaliation (No FEAR) Act of 2010; to the Committee on Oversight and Government Reform.

1276. A letter from the Director, Equal Employment Opportunity, National Endowment of the Humanities, transmitting Notification that the National Endowment for the Humanities is in compliance with the No FEAR Act for fiscal year 2010 and that there were no incidents of discrimination reported; to the Committee on Oversight and Government Reform.

1277. A letter from the Director, Office of Personnel Management, transmitting the Office's Fiscal Year 2010 Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Oversight and Government Reform.

1278. A letter from the Acting Chair, Federal Subsistence Board, Department of the Interior, transmitting the Department's final rule — Subsistence Management Regulations for Public Lands in Alaska-2011-12 and 2012-13 Subsistence Taking of Fish and Shellfish Regulations [Docket No.: FWS-R7-SM-2009-0061] [70101-1261-0000L6] (RIN: 1018-AW71) received April 4, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1279. A letter from the Assistant Attorney General, Department of Justice, transmitting a copy of a report required by Section 202(a)(1)(C) of Pub. L. 107-273, the ''21st Century Department of Justice Appropriations Authorization Act'', related to certain settlements and injunctive relief for the Fourth Quarter 2010, pursuant to 28 U.S.C. 530D Public Law 107-273, section 202; to the Committee on the Judiciary.

1280. A letter from the Federal Register Liaison Officer, Department of Commerce, transmitting the Department's final rule — Changes to Implement the Prioritized Examination Track (Track I) of the Enhanced Examination Timing Control Procedures [Docket No.: PTO-P-2010-0092] (RIN: 0651-AC52) received April 4, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on the Judiciary.

1281. A letter from the Senior Program Analyst, Department of Transportation, transmitting the Department's final rule — Prohibition Against Certain Flights Within the Tripoli (HLLL) Flight Information Region (FIR) [Docket No.: FAA-2011-0246; Amendment No. 91-321; SFAR No. 112] (RIN: 2120-AJ93) received April 4, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

1282. A letter from the Senior Program Analyst, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 30772; Amdt. No. 3416] received April 4, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

1283. A letter from the Senior Program Analyst, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 30773; Amdt. No. 3417] received April 4, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

1284. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's final rule — Specified Tax Return Preparers Required to File Individual Income Tax Returns Using Magnetic Media [TD 9518] (RIN: 1545-BJ52) received March 13, 2011, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. POLIS (for himself, Mr. ROTHMAN of New Jersey, and Mrs. DAVIS of California):

H.R. 1532. A bill to provide incentives for States and local educational agencies to implement comprehensive reforms and innovative strategies that are designed to lead to significant improvement in outcomes for all students and significant reductions in achievement gaps among subgroups of students, and for other purposes; to the Committee on Education and the Workforce.

By Mr. TIBERI (for himself, Mr. HIGGINS, and Mr. LATOURETTE):

H.R. 1533. A bill to amend the Internal Revenue Code of 1986 to exempt certain shipping from the harbor maintenance tax; to the Committee on Ways and Means.

By Mr. KIND (for himself and Mr. REICHERT):

H.R. 1534. A bill to amend the Internal Revenue Code of 1986 to encourage retirement savings by modifying requirements with respect to employer-established IRAs, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FARENTHOLD (for himself, Mr. OLSON, Mr. GOHMERT, Mr. HALL, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. HINOJOSA, Mr. REYES, Mr. AL GREEN of Texas, Mr. GENE GREEN of Texas, Ms. JACKSON LEE of Texas, Mr. CUELLAR, Mr. GONZALEZ, Mr. DOGGETT, Mr. MCCAUL, Mr. CARTER, Ms. GRANGER, Mr. BARTON of Texas, Mr. NEUGEBAUER, Mr. SAM JOHNSON of Texas, Mr. THORNBERRY, Mr. CANSECO, Mr. SMITH of Texas, Mr. CULBERSON, Mr. BURGESS, Mr. SESSIONS, Mr. MARCHANT, Mr. POE of Texas, Mr. CONAWAY, Mr. BRADY of Texas, Mr. FLORES, Mr. HENSARLING, and Mr. PAUL):

H.R. 1535. A bill to amend the Intermodal Surface Transportation Efficiency Act of 1991 with respect to the identification of high priority corridors and the inclusion of certain route segments on the Interstate System, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. CHAFFETZ (for himself, Mr. OLSON, Mr. CALVERT, Mr. POSEY, Mr. NUGENT, Mrs. ADAMS, Mr. POE of Texas, Mr. GENE GREEN of Texas, Ms. JACKSON LEE of Texas, and Mr. AL GREEN of Texas):

H.R. 1536. A bill to provide for the disposition of the retiring Space Shuttles; to the Committee on Science, Space, and Technology, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. NADLER (for himself, Ms. ZOE LOFGREN of California, Mr. FRANK of Massachusetts, Ms. BALDWIN, Mr. POLIS, Mr. CICILLINE, Mr. CONYERS, Ms. PELOSI, Mr. HOYER, Mr. CLYBURN, Mr. HONDA, Mr. GUTIERREZ, Mr. ACKERMAN, Ms. BASS of California, Mr. BECERRA, Ms. BERKLEY, Mr. BERMAN, Mr. BISHOP of New York, Mr. BLUMENAUER, Mr. BRADY of Pennsylvania, Mrs. CAPPS, Mr. CAPUANO, Mr. CARSON of Indiana, Ms. CASTOR of Florida, Ms. CHU, Mr. CLAY, Ms. CLARKE of New York, Mr. CONNOLLY of Virginia, Mr. CROWLEY, Mrs. DAVIS of California, Mr. DEFAZIO, Ms. DEGETTE, Ms. DELAURO, Mr. DEUTCH, Mr. DOYLE, Mr. ELLISON, Mr. ENGEL, Ms. ESHOO, Mr. FARR, Mr. FILNER, Mr. GRIJALVA, Mr. HASTINGS of Florida, Mr. HEINRICH, Mr. HIMES, Mr. HINCHEY, Ms. HIRONO, Mr. HOLT, Mr. INSLEE, Mr. ISRAEL, Mr. JACKSON of Illinois, Ms. JACKSON LEE of Texas, Mr. JOHNSON of Georgia, Mr. KUCINICH, Mr. LANGEVIN, Mr. LARSEN of Washington, Ms. LEE of California, Mr. LEWIS of Georgia, Mrs. LOWEY, Mrs. MALONEY, Ms. MATSUI, Ms. MCCOLLUM, Mr. MCDERMOTT, Mr. MCGOVERN, Mr. MEEKS, Mr. GEORGE MILLER of California, Ms. MOORE, Mr. MORAN, Mrs. NAPOLITANO, Ms. NORTON, Mr. OLVER, Mr. PASCRELL, Mr. PALLONE, Mr. PASTOR of Arizona, Ms. PINGREE of Maine, Mr. PRICE of North Carolina, Mr. QUIGLEY, Mr. RANGEL, Ms. RICHARDSON, Mr. ROTHMAN of New Jersey, Ms. ROYBAL-ALLARD, Mr. RUSH, Ms. LINDA T. SÁNCHEZ of California, Ms. SCHAKOWSKY, Mr. SCHIFF, Mr. SERRANO, Mr. SIRES, Mr. SMITH of Washington, Ms. SPEIER, Mr. STARK, Ms. SUTTON, Mr. TOWNS, Ms. TSONGAS, Ms. WASSERMAN SCHULTZ, Ms. WATERS, Mr. WAXMAN, Mr. WEINER, Mr. WELCH, Ms. WOOLSEY, Mr. WU, Mr. TONKO, and Mr. COURTNEY):

H.R. 1537. A bill to amend the Immigration and Nationality Act to promote family unity, and for other purposes; to the Committee on the Judiciary.

By Mr. PETRI (for himself, Mr. DONNELLY of Indiana, Mr. CHAFFETZ, Mr. GRIMM, Mr. ALTMIRE, Mr. LONG, Mr. LATHAM, and Mr. JONES):

H.R. 1538. A bill to amend the Internal Revenue Code of 1986 to permit the Secretary of the Treasury to disclose certain return information related to identity theft, and for other purposes; to the Committee on Ways and Means.

By Mr. STIVERS (for himself, Mr. RENACCI, and Mr. CLARKE of Michigan):

H.R. 1539. A bill to repeal section 939G of the Dodd-Frank Wall Street Reform and Consumer Protection Act and to restore Securities and Exchange Commission Rule 436(g) repealed by such section; to the Committee on Financial Services.

By Mr. MCKEON (for himself and Mr. SMITH of Washington) (both by request):

H.R. 1540. A bill to authorize appropriations for fiscal year 2012 for military activities of the Department of Defense and for military construction, to prescribe military personnel strengths for fiscal year 2012, and for other purposes; to the Committee on Armed Services.

By Mr. CAMPBELL (for himself, Mr. RIGELL, Mr. STUTZMAN, Mr. YODER, Mr. PEARCE, Mr. FLAKE, Mr. BARTLETT, Mr. LAMBORN, Mr. GIBBS, Mr. DANIEL E. LUNGREN of California, Mr. BENISHEK, Mr. FLEMING, Mr. KING of Iowa, Mr. BURTON of Indiana, Mr. GOHMERT, Mr. HUIZENGA of Michigan, Mr. GINGREY of Georgia, Mr. MCKINLEY, Mr. GOSAR, and Mr. WALBERG):

H.R. 1541. A bill to amend the Internal Revenue Code of 1986 to allow taxpayers to make contributions to the Federal Government on their income tax returns; to the Committee on Ways and Means.

By Mr. COHEN (for himself, Ms. FUDGE, Ms. RICHARDSON, Mr. JOHNSON of Georgia, Mr. CLARKE of Michigan, Ms. NORTON, Mr. BRADY of Pennsylvania, and Mr. BOSWELL):

H.R. 1542. A bill to amend the Internal Revenue Code of 1986 to provide tax incentives for the establishment of supermarkets in certain underserved areas; to the Committee on Ways and Means.

By Mr. COURTNEY (for himself and Mr. LATHAM):

H.R. 1543. A bill to amend title XVIII of the Social Security Act to count a period of receipt of outpatient observation services in a hospital toward satisfying the 3-day inpatient hospital requirement for coverage of skilled nursing facility services under Medicare; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CRITZ:

H.R. 1544. A bill to extend Corridor N of the Appalachian development highway system from its current northern terminus at Corridor M, near Ebensburg, Pennsylvania, to Corridor T, near Salamanca, New York, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. FLORES:

H.R. 1545. A bill to establish the Waco Mammoth National Monument in the State of Texas, and for other purposes; to the Committee on Natural Resources.

By Mr. GERLACH (for himself and Mr. BECERRA):

H.R. 1546. A bill to amend title XVIII of the Social Security Act to repeal the Medicare outpatient rehabilitation therapy caps; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRIJALVA (for himself, Ms. MCCOLLUM, Mr. HOLT, Mr. SCOTT of Virginia, Mr. DAVIS of Illinois, and Mr. FATTAH):

H.R. 1547. A bill to provide grants to States to ensure that all students in the middle grades are taught an academically rigorous curriculum with effective supports so that students complete the middle grades prepared for success in secondary school and postsecondary endeavors, to improve State and district policies and programs relating to the academic achievement of students in the middle grades, to develop and implement effective middle grades models for struggling students, and for other purposes; to the Committee on Education and the Workforce.

By Mr. GRIJALVA (for himself, Ms. BROWN of Florida, Ms. CLARKE of New York, Mr. CONYERS, Mr. CLAY, Mr. ELLISON, Mr. FILNER, Mr. HOLT, Ms. KAPTUR, Mr. KUCINICH, Ms. NORTON, Mr. JACKSON of Illinois, Mr. STARK, and Ms. WOOLSEY):

H.R. 1548. A bill to allow homeowners of moderate-value homes who are subject to mortgage foreclosure proceedings to remain in their homes as renters; to the Committee on Financial Services.

By Mr. GRIMM:

H.R. 1549. A bill to amend the Internal Revenue Code of 1986 to repeal the unearned income medicare contribution; to the Committee on Ways and Means.

By Mr. PIERLUISI (for himself, Mr. GRIMM, Mr. SERRANO, Ms. NORTON, Ms. BORDALLO, and Mr. QUIGLEY):

H.R. 1550. A bill to establish programs in the Department of Justice and in the Department of Homeland Security to help States that have high rates of homicide and other violent crime, and for other purposes; to the Committee on the Judiciary.

By Mr. HUNTER:

H.R. 1551. A bill to prioritize certain Government obligations for continued payment in the event that the statutory debt limit is reached, to appropriate funds for the pay and allowances of all members of the Armed Forces, and for those civilian employees of

the Department of Defense and the Coast Guard serving in a combat zone, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Appropriations, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ISRAEL:

H.R. 1552. A bill to amend chapter 44 of title 18, United States Code, to prohibit the possession of a firearm by a person who is adjudicated to have committed a violent act while a juvenile; to the Committee on the Judiciary.

By Mr. JOHNSON of Illinois (for himself, Mr. MANZULLO, and Mr. COSTELLO):

H.R. 1553. A bill to include Livingston, Union, and Stephenson Counties in Illinois to the Lincoln National Heritage Area, and for other purposes; to the Committee on Natural Resources.

By Mrs. LOWEY (for herself, Mr. THOMPSON of Mississippi, and Ms. JACKSON LEE of Texas):

H.R. 1554. A bill to amend title 49, United States Code, to prohibit advance notice to certain individuals, including security screeners, of covert testing of security screening procedures for the purpose of enhancing transportation security at airports, and for other purposes; to the Committee on Homeland Security.

By Mrs. LOWEY (for herself and Mr. ISRAEL):

H.R. 1555. A bill to amend the Homeland Security Act of 2002 to limit the number of Urban Area Security Initiative grants awarded and to clarify the risk assessment formula to be used when making such grants, and for other purposes; to the Committee on Homeland Security.

By Mr. LUJÁN:

H.R. 1556. A bill to amend the Omnibus Indian Advancement Act to allow certain land to be used to generate income to provide funding for academic programs, and for other purposes; to the Committee on Natural Resources.

By Mrs. MALONEY (for herself, Mr. KING of New York, Mr. NADLER, Mr. ACKERMAN, Mr. HOLT, Mr. GRIJALVA, Ms. CLARKE of New York, Mr. WEINER, Mr. ENGEL, and Mr. ISRAEL):

H.R. 1557. A bill to provide the spouses and children of aliens who perished in the September 11 terrorist attacks an opportunity to adjust their status to that of an alien lawfully admitted for permanent residence; to the Committee on the Judiciary.

By Mr. MILLER of Florida (for himself, Mr. ROSS of Arkansas, Mr. LATTA, Mr. SHULER, Mr. BONNER, Mr. BROUN of Georgia, Mr. BUCHANAN, Mr. CARTER, Mr. COFFMAN of Colorado, Mr. COLE, Mr. CULBERSON, Mr. DUNCAN of Tennessee, Mr. GARDNER, Mr. GRIFFIN of Arkansas, Mr. HUNTER, Ms. JENKINS, Mr. KLINE, Mrs. MCMORRIS RODGERS, Mr. NUGENT, Mr. PALAZZO, Mr. ROSS of Florida, Mr. TIPTON, Mr. WESTMORELAND, Mr. YOUNG of Alaska, Mr. MCKINLEY, Mr. POSEY, Mr. SIMPSON, Mr. ROGERS of Alabama, Mr. REHBERG, Mr. YODER, Mrs. MILLER of Michigan, Mr. LONG, Mr. CRAWFORD, and Mr. DUNCAN of South Carolina):

H.R. 1558. A bill to amend the Toxic Substances Control Act to clarify the jurisdiction of the Environmental Protection Agency with respect to certain sporting good articles, and to exempt those articles from a definition under that Act; to the Committee on Energy and Commerce.

By Ms. NORTON:

H.R. 1559. A bill to authorize the Benjamin Harrison Society to establish a memorial in the District of Columbia to honor the patriots of the American Revolutionary War and the War of 1812; to the Committee on Natural Resources.

By Mr. REYES:

H.R. 1560. A bill to amend the Ysleta del Sur Pueblo and Alabama and Coushatta Indian Tribes of Texas Restoration Act to allow the Ysleta del Sur Pueblo Tribe to determine blood quantum requirement for membership in that tribe; to the Committee on Natural Resources.

By Mr. REYES (for himself, Mr. BILBRAY, Mrs. DAVIS of California, Mr. GRIJALVA, Mr. ROTHMAN of New Jersey, Mr. CUELLAR, Mr. HINOJOSA, Mr. PASTOR of Arizona, Mr. FILNER, Ms. JACKSON LEE of Texas, Ms. ROYBAL-ALLARD, Mr. GENE GREEN of Texas, Mr. DOGGETT, Mr. SABLAN, Mr. BACA, Ms. EDDIE BERNICE JOHNSON of Texas, Ms. LEE of California, Ms. HIRONO, Mr. MCCAUL, and Mr. CALVERT):

H.R. 1561. A bill to enhance the safety of ports of entry in the United States, and for other purposes; to the Committee on Homeland Security, and in addition to the Committees on Ways and Means, Agriculture, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. ROYBAL-ALLARD (for herself, Mr. WOLF, and Ms. DELAURO):

H.R. 1562. A bill to provide for programs and activities with respect to the prevention of underage drinking; to the Committee on Energy and Commerce.

By Mr. SCHOCK (for himself, Mr. JACKSON of Illinois, Mr. THOMPSON of Mississippi, Mr. JOHNSON of Illinois, Mr. QUIGLEY, Mr. CUMMINGS, Mr. DAVIS of Illinois, Mr. CLAY, and Mr. MEEKS):

H.R. 1563. A bill to authorize the Secretary of the Interior to conduct a special resource study of the archeological site and surrounding land of the New Philadelphia town site in the State of Illinois, and for other purposes; to the Committee on Natural Resources.

By Mr. SHERMAN:

H.R. 1564. A bill to establish the Commission on Freedom of Information Act Processing Delays; to the Committee on Oversight and Government Reform.

By Mr. WALZ of Minnesota (for himself and Mr. HANNA):

H.R. 1565. A bill to amend title 23, United States Code, to incorporate regional transportation planning organizations into statewide transportation planning, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. WALZ of Minnesota (for himself, Mr. MICHAUD, and Mr. KISSELL):

H.R. 1566. A bill to amend the Servicemembers Civil Relief Act to enhance protections for members of the uniformed services relating to mortgages, mortgage foreclosure, and eviction, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. WATERS:

H.R. 1567. A bill to amend the Real Estate Settlement Procedures Act of 1974 to require mortgagees for mortgages in default to engage in reasonable loss mitigation activities, and for other purposes; to the Committee on Financial Services.

By Ms. WOOLSEY (for herself and Mr. LUJÁN):

H.R. 1568. A bill to amend title VII of the Oil Pollution Act of 1990, and for other purposes; to the Committee on Science, Space, and Technology.

By Mr. ISSA (for himself and Ms. ESHOO):

H. Con. Res. 42. Concurrent resolution entitled the ''Creativity and Innovation Resolution''; to the Committee on the Judiciary, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SCOTT of South Carolina:

H. Con. Res. 43. Concurrent resolution providing for a conditional adjournment of the House of Representatives and a conditional recess or adjournment of the Senate; considered and agreed to.

By Ms. RICHARDSON (for herself, Ms. LORETTA SANCHEZ of California, Mrs. NAPOLITANO, Ms. LINDA T. SÁNCHEZ of California, Mr. FILNER, Ms. ZOE LOFGREN of California, Mr. ROHRABACHER, Mr. ISSA, Mr. CALVERT, and Mr. GARAMENDI):

H. Res. 224. A resolution recognizing the 100th anniversary of the Port of Long Beach; to the Committee on Transportation and Infrastructure.

By Ms. RICHARDSON (for herself, Ms. BORDALLO, Mr. FALEOMAVAEGA, and Mr. AL GREEN of Texas):

H. Res. 225. A resolution honoring the victims of the Cambodian genocide that took place from April 1975 to January 1979; to the Committee on Foreign Affairs.

By Mr. KING of New York (for himself, Mr. DIAZ-BALART, Mr. GRIMM, Mr. GARRETT, and Mr. RIVERA):

H. Res. 226. A resolution calling for the immediate extradition or rendering to the United States of convicted felon William Morales and all other fugitives from justice who are receiving safe harbor in Cuba in order to escape prosecution or confinement for criminal offenses committed in the United States; to the Committee on Foreign Affairs.

By Mr. GRAVES of Missouri (for himself and Mr. LOEBSACK):

H. Res. 227. A resolution recognizing the roles and contributions of America's teachers to building and enhancing our Nation's civic, cultural, and economic well-being; to the Committee on Education and the Workforce.

By Mr. REED (for himself, Mr. GINGREY of Georgia, and Mr. FRANKS of Arizona):

H. Res. 228. A resolution directing the Clerk of the House of Representatives to place a real time display of the United States gross national debt in the House Chamber; to the Committee on House Administration.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. GUTIERREZ introduced a bill (H.R. 1569) for the relief of Simeon Simeonov, Stela Simeonova, Stoyan Simeonov, and Vania Simeonova; which was referred to the Committee on the Judiciary.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers

granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. POLIS:
H.R. 1532.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
The Congress shall have Power to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. TIBERI:
H.R. 1533.
Congress has the power to enact this legislation pursuant to the following:
This bill makes changes to existing law relating to Article 1, Section 7 which provides that ''All bills for raising Revenue shall originate in the House of Representatives.''

By Mr. KIND:
H.R. 1534.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8.

By Mr. FARENTHOLD:
H.R. 1535.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3.

By Mr. CHAFFETZ:
H.R. 1536.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 18: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof.

By Mr. NADLER:
H.R. 1537.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clauses 4 and 18.

By Mr. PETRI:
H.R. 1538.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 1 which, in part, states: The Congress shall have
Power to lay and collect Taxes, Duties, Imposts and Excises, . . .
and the Sixteenth Amendment which states: The Congress shall have power to lay and collect taxes on incomes, from whatever source derived, without apportionment among the several States, and without regard to any census or enumeration.

By Mr. STIVERS:
H.R. 1539.
Congress has the power to enact this legislation pursuant to the following:
clause 3 of section 8 of article I of the Constitution

By Mr. MCKEON:
H.R. 1540.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the power of Congress to ''provide for the common defense,'' ''raise and support armies,'' and ''provide and maintain a navy,'' as enumerated in Article I, Section 8 of the United States Constitution.

By Mr. CAMPBELL:
H.R. 1541.
Congress has the power to enact this legislation pursuant to the following:
Clause 1 of section 8 of article I of the Constitution of the United States.

By Mr. COHEN:
H.R. 1542.
Congress has the power to enact this legislation pursuant to the following:
Article 1, section 8, clause 3 (relating to the power to interstate commerce).

By Mr. COURTNEY:
H.R. 1543.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1. The Congress shall have Power to lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States.

By Mr. CRITZ:
H.R. 1544.
Congress has the power to enact this legislation pursuant to the following:
Section 8 of Article 1 of the Constitution.

By Mr. FLORES:
H.R. 1545.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1 of the United States Constitution.

By Mr. GERLACH:
H.R. 1546.
Congress has the power to enact this legislation pursuant to the following:
The Congress enacts this bill pursuant to Clause 7 of Section 9 of Article I of the United States Constitution.

By Mr. GRIJALVA:
H.R. 1547.
Congress has the power to enact this legislation pursuant to the following:
U.S. Const. art. I, §§1 and 8.

By Mr. GRIJALVA:
H.R. 1548.
Congress has the power to enact this legislation pursuant to the following:
U.S. Const. art., I, §§1 and 8.

By Mr. GRIMM:
H.R. 1549.
Congress has the power to enact this legislation pursuant to the following:
The Sixteenth Amendment (Amendment XVI) to the United States Constitution allows the Congress to levy, or repeal, an income tax without apportioning it among the states or basing it on Census results.

By Mr. PIERLUISI:
H.R. 1550.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the power of the Congress to provide for the general welfare of the United States, as enumerated in Article I, Section 8, Clause 1 of the United States Constitution, and to make all laws which shall be necessary and proper for carrying into execution such power as enumerated in Article I, Section 8, Clause 18 of the Constitution.

By Mr. HUNTER:
H.R. 1551.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 9, Clause 7 of the U.S. Constitution sets for the power of appropriations states that ''No Money shall be drawn from the Treasury but in Consequence of Appropriations made by Law. . . .'' In addition, Article I, Section 8, Clause 1 states that ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .''
Also, Article I, section 8 of the United States Constitution (clauses 12, 13, 14, 16, and 18), which grants Congress the power to raise and support an Army; to provide and maintain a Navy; to make rules for the government and regulation of the land and naval forces; to provide for organizing, arming, and disciplining the militia; and to make all laws necessary and proper for carrying out the foregoing powers.

By Mr. ISRAEL:
H.R. 1552.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 of the United States Constitution.

By Mr. JOHNSON of Illinois:
H.R. 1553.
Congress has the power to enact this legislation pursuant to the following:
Article I Section 8 providing for the general Welfare of the United States.

By Mrs. LOWEY:
H.R. 1554.
Congress has the power to enact this legislation pursuant to the following:
Article I of the Constitution

By Mrs. LOWEY:
H.R. 1555.
Congress has the power to enact this legislation pursuant to the following:
Article I of the Constitution

By Mr. LUJÁN:
H.R. 1556.
Congress has the power to enact this legislation pursuant to the following:
The United States Constitution specifically mentions the relationship between the United States federal government and Native American tribes three times:
Article I, Section 2, Clause 3
Article I, Section 8
The Fourteenth Amendment, Section 2

By Mrs. MALONEY:
H.R. 1557.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 4, which reads: To establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcies throughout the United States

By Mr. MILLER of Florida:
H.R. 1558.
Congress has the power to enact this legislation pursuant to the following:
Amendment II to The Constitution of the United States

By Ms. NORTON:
H.R. 1559.
Congress has the power to enact this legislation pursuant to the following:
Clauses 1, and 18 of section 8 of article I, and clause 2 of section 3 of article IV of the Constitution.

By Mr. REYES:
H.R. 1560.
Congress has the power to enact this legislation pursuant to the following:
The Congress enacts this bill pursuant to Article I, Section 8 of the United States Constitution.
Text:
Article I, Section. 8.
Clause 1: The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;
Clause 2: To borrow Money on the credit of the United States;
Clause 3: To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;
Clause 4: To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;
Clause 5: To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;
Clause 6: To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;
Clause 7: To establish Post Offices and post Roads;
Clause 8: To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

Clause 9: To constitute Tribunals inferior to the supreme Court;

Clause 10: To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

Clause 11: To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

Clause 12: To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

Clause 13: To provide and maintain a Navy;

Clause 14: To make Rules for the Government and Regulation of the land and naval Forces;

Clause 15: To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

Clause 16: To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

Clause 17: To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;—And

Clause 18: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. REYES:

H.R. 1561.

Congress has the power to enact this legislation pursuant to the following:

The Congress enacts this bill pursuant to Article I, Section 8 of the United States Constitution.

Text:

Article I, Section. 8.

Clause 1: The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

Clause 2: To borrow Money on the credit of the United States;

Clause 3: To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

Clause 4: To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

Clause 5: To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

Clause 6: To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

Clause 7: To establish Post Offices and post Roads;

Clause 8: To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

Clause 9: To constitute Tribunals inferior to the supreme Court;

Clause 10: To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

Clause 11: To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

Clause 12: To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

Clause 13: To provide and maintain a Navy;

Clause 14: To make Rules for the Government and Regulation of the land and naval Forces;

Clause 15: To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

Clause 16: To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

Clause 17: To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;—And

Clause 18: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Ms. ROYBAL-ALLARD:

H.R. 1562.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1.

By Mr. SCHOCK:

H.R. 1563.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress as stated in Article I, Section 8, and Amendment X of the United States Constitution.

By Mr. SHERMAN:

H.R. 1564.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of section 8 of article I of the Constitution.

By Mr. WALZ of Minnesota:

H.R. 1565.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Section 8 of Article I of the United States Constitution.

By Mr. WALZ of Minnesota:

H.R. 1566.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Section 8 of Article I of the United States Constitution.

By Ms. WATERS:

H.R. 1567.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the Constitution of the United States

By Ms. WOOLSEY:

H.R. 1568.

Congress has the power to enact this legislation pursuant to the following:

Article I

Mr. GUTIERREZ:

H.R. 1569.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4 and Amendment I, Clause 3 of the Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions as follows:

H.R. 5: Mr. FARENTHOLD.

H.R. 25: Mr. FRANKS of Arizona.

H.R. 100: Mr. BILBRAY.

H.R. 102: Mr. BILBRAY.

H.R. 104: Ms. CASTOR of Florida and Mr. MCINTYRE.

H.R. 114: Mr. RIBBLE, Mr. BUCSHON, and Mr. JOHNSON of Illinois.

H.R. 125: Mr. WITTMAN.

H.R. 152: Mr. OLSON.

H.R. 178: Mr. HOLDEN and Mr. GUTHRIE.

H.R. 181: Mr. HOLDEN.

H.R. 186: Mr. ROSS of Florida.

H.R. 210: Ms. ROYBAL-ALLARD, Mr. FALEOMAVAEGA, Ms. RICHARDSON, Ms. CHU, and Mr. SCOTT of Virginia.

H.R. 286: Mr. SMITH of Texas.

H.R. 324: Mrs. MILLER of Michigan.

H.R. 337: Mr. WITTMAN.

H.R. 365: Mr. COBLE, Mr. GIBSON, and Mrs. MILLER of Michigan.

H.R. 374: Mr. WITTMAN.

H.R. 396: Mr. YOUNG of Alaska.

H.R. 412: Mr. SCHILLING.

H.R. 420: Mr. DESJARLAIS, Mr. MICHAUD, Mr. DUNCAN of South Carolina, Mr. HOLDEN, Mr. ROE of Tennessee, Mr. SMITH of Nebraska, Mr. FARENTHOLD, Mr. DONNELLY of Indiana, Mr. BISHOP of Georgia, Mr. LAMBORN, Mr. BARLETTA, Mr. LEWIS of California, and Mr. HUIZENGA of Michigan.

H.R. 452: Mr. AUSTRIA, Ms. JENKINS, Mr. CALVERT, Mr. FARENTHOLD, Mr. STIVERS, Mr. WITTMAN, and Mr. HENSARLING.

H.R. 456: Mr. MCKINLEY.

H.R. 459: Mr. FRELINGHUYSEN.

H.R. 466: Ms. EDDIE BERNICE JOHNSON of Texas and Mr. STARK.

H.R. 507: Mr. BLUMENAUER.

H.R. 572: Mr. PASCRELL.

H.R. 601: Ms. MCCOLLUM and Ms. NORTON.

H.R. 607: Mr. BARROW and Mr. LOEBSACK.

H.R. 615: Mr. HOLDEN, Mr. FARENTHOLD, Mr. BARLETTA, Mr. LEWIS of California, and Mr. DUNCAN of South Carolina.

H.R. 639: Mr. CLAY, Mr. CUMMINGS, Mr. FARR, Mr. INSLEE, Mr. JOHNSON of Ohio, Mr. MARINO, Ms. RICHARDSON, Mr. SHERMAN, Mr. WESTMORELAND, and Mr. WHITFIELD.

H.R. 645: Mr. BISHOP of Georgia, Mr. WILSON of South Carolina, Mr. LAMBORN, Mr. AKIN, Mr. LONG, Mr. CALVERT, Mr. LEWIS of California, Mr. BARLETTA, Mr. HUIZENGA of Michigan, Mr. FARENTHOLD, Mr. CUELLAR, Mr. HOLDEN, Mr. MICHAUD, Mr. DUNCAN of South Carolina, and Mr. DESJARLAIS.

H.R. 653: Ms. NORTON.

H.R. 654: Ms. NORTON and Ms. SCHAKOWSKY.

H.R. 656: Mr. CARSON of Indiana, Mr. THOMPSON of Mississippi, Mr. WATT, Mr. CLAY, Ms. BASS of California, Mr. BISHOP of Georgia, Mr. CLYBURN, and Mr. JOHNSON of Georgia.

H.R. 680: Ms. BUERKLE, Mrs. LUMMIS, Mr. CARTER, Mr. SAM JOHNSON of Texas, and Mrs. EMERSON.

H.R. 692: Mr. BILBRAY.

H.R. 704: Mr. NUGENT, Mr. ROSS of Florida, Mr. POE of Texas, Ms. HAYWORTH, and Mr. HERGER.

H.R. 709: Ms. BERKLEY, Mr. GRIJALVA, and Mr. BRADY of Pennsylvania.

H.R. 721: Mrs. NOEM and Mr. DEFAZIO.

H.R. 735: Mr. BUCSHON and Mr. BOUSTANY.

H.R. 740: Mr. MCHENRY and Mr. WITTMAN.

H.R. 750: Mr. HERGER and Mr. COFFMAN of Colorado.

H.R. 763: Mr. HINOJOSA, Mr. YOUNG of Alaska, and Mr. ROSS of Florida.

H.R. 782: Mr. HENSARLING.

H.R. 801: Mr. YOUNG of Alaska.

H.R. 820: Mr. WELCH, Mr. WAXMAN, and Ms. ESHOO.

H.R. 822: Mr. CULBERSON, Mr. SCHILLING, Mr. BOUSTANY, Mr. FARENTHOLD, Mr. SMITH of Nebraska, Mr. ROE of Tennessee, Mr. NEUGEBAUER, Mr. CUELLAR, Mr. LONG, Mr. MCCAUL, Mr. MATHESON, Mr. MICHAUD, Mr. DEFAZIO, Mr. WHITFIELD, Mr. DESJARLAIS, Mr. AUSTRIA, and Mr. HARPER.

H.R. 825: Mr. COBLE.

H.R. 838: Mr. BENISHEK.

H.R. 862: Mr. SHERMAN.

H.R. 876: Mr. COURTNEY.

H.R. 879: Mr. LATTA.

H.R. 895: Ms. BUERKLE.

H.R. 931: Mrs. ELLMERS.

H.R. 938: Mrs. MILLER of Michigan and Mr. GONZALEZ.

H.R. 946: Mr. SCHRADER.

H.R. 961: Mr. MILLER of Florida, Mr. GRIMM, Mr. LANGEVIN, Mr. COURTNEY, Mr. LOBIONDO, Ms. WILSON of Florida, Mr. CUMMINGS, Mr. PLATTS, and Mr. MORAN.

H.R. 977: Mr. BENISHEK, Mr. KILDEE, and Mr. PETERS .

H.R. 984: Mr. AUSTRIA.

H.R. 998: Mr. PAYNE.

H.R. 1001: Mr. KILDEE, Mr. PLATTS, Mr. SCHIFF, Mr. LARSEN of Washington, Mr. ENGEL, Mrs. MALONEY, and Ms. BERKLEY.

H.R. 1006: Mr. WEST.

H.R. 1031: Mr. SCHOCK.

H.R. 1041: Mr. FITZPATRICK.

H.R. 1057: Mr. TOWNS, Mr. RANGEL, Ms. JACKSON LEE of Texas, and Mr. MCDERMOTT.

H.R. 1058: Mr. AUSTRIA.

H.R. 1081: Mr. JORDAN, Mr. FLAKE, Mr. TONKO, Mr. MICHAUD, Mr. DENT, and Mr. DUNCAN of South Carolina.

H.R. 1089: Ms. BERKLEY.

H.R. 1093: Mr. AKIN, Mr. BILBRAY, Mr. DESJARLAIS, Mr. HUIZENGA of Michigan, Mr. LEWIS of California, Mr. ROSS of Arkansas, Mr. JORDAN, Mr. MICA, Mr. FARENTHOLD, Mr. BARLETTA, Mr. GRAVES of Missouri, Mr. OLSON, Mr. MICHAUD, Mr. BISHOP of Georgia, Mr. DONNELLY of Indiana, and Mr. WALZ of Minnesota.

H.R. 1119: Ms. BERKLEY and Mr. WELCH.

H.R. 1123: Mr. STARK and Ms. CHU.

H.R. 1145: Mr. WESTMORELAND.

H.R. 1159: Mr. CULBERSON.

H.R. 1161: Mr. CRITZ, Ms. MCCOLLUM, Mr. RYAN of Ohio, Mrs. BACHMANN, Mr. BOREN, Mr. PASCRELL, Mrs. NOEM, and Mr. SCHWEIKERT.

H.R. 1173: Mr. HENSARLING.

H.R. 1179: Mr. LANKFORD, Ms. BUERKLE, and Mr. HUELSKAMP.

H.R. 1181: Mr. GUTHRIE and Mr. HOLDEN.

H.R. 1182: Mr. SAM JOHNSON of Texas, Mr. HURT, and Mr. SCHWEIKERT.

H.R. 1195: Mr. GERLACH, Ms. CASTOR of Florida, Mr. PERLMUTTER, Mr. LOEBSACK, and Mr. FARR.

H.R. 1196: Mr. BILBRAY.

H.R. 1206: Mr. BARLETTA, Mr. MCINTYRE, Mr. FLEMING, Mr. STEARNS, Mr. CHANDLER, Mr. COFFMAN of Colorado, and Mr. HARPER.

H.R. 1211: Mr. DUNCAN of South Carolina.

H.R. 1219: Ms. EDDIE BERNICE JOHNSON of Texas, Ms. CASTOR of Florida, and Mr. PERLMUTTER.

H.R. 1234: Mr. GEORGE MILLER of California and Mr. SABLAN.

H.R. 1236: Ms. WOOLSEY and Mrs. EMERSON.

H.R. 1244: Mr. ROSKAM.

H.R. 1254: Mr. DEFAZIO.

H.R. 1259: Mr. THOMPSON of Pennsylvania, Mr. SMITH of Nebraska, and Mr. DESJARLAIS.

H.R. 1262: Mr. ACKERMAN, Ms. SLAUGHTER, and Mr. NADLER.

H.R. 1278: Mr. MEEKS.

H.R. 1281: Mr. HULTGREN.

H.R. 1297: Mr. GUINTA, Ms. BASS of California, Mr. DUNCAN of South Carolina, Mr. DEFAZIO, and Mr. MCKEON.

H.R. 1299: Mr. SCOTT of South Carolina, Mr. Bartlett, and Mr. OLSON.

H.R. 1319: Ms. PINGREE of Maine.

H.R. 1323: Mr. FINCHER, Mr. DANIEL E. LUNGREN of California, Mr. KING of Iowa, Mr. BILBRAY, Mr. LUCAS, Mr. GINGREY of Georgia, Mr. LANCE, and Mr. JORDAN.

H.R. 1325: Mr. COSTA, Mr. MICHAUD, Mr. HOLDEN, and Mr. MATHESON.

H.R. 1327: Mr. WEST, Mr. CHABOT, Ms. ZOE LOFGREN of California, Mr. COURTNEY, Mr. WILSON of South Carolina, and Mr. LAMBORN.

H.R. 1329: Mr. FRANK of Massachusetts.

H.R. 1380: Ms. SEWELL, Mr. LEWIS of Georgia, Ms. CLARKE of New York, Mr. POSEY, Mr. YOUNG of Alaska, Mr. HUNTER, Mr. POE of Texas, Mr. GOHMERT, Mr. CASSIDY, Mr. MILLER of Florida, Mr. DANIEL E. LUNGREN of California, Mr. LATOURETTE, Mr. PEARCE, Mr. DENHAM, Mr. MCCOTTER, and Mr. PLATTS.

H.R. 1391: Mr. MATHESON and Mr. BARROW.

H.R. 1418: Mr. KISSELL, Mr. BISHOP of Georgia, and Mr. POSEY.

H.R. 1463: Mr. BURTON of Indiana and Mr. HASTINGS of Florida.

H.R. 1466: Mr. PIERLUISI and Mr. BOREN.

H.R. 1476: Ms. EDDIE BERNICE JOHNSON of Texas.

H.R. 1477: Mr. MCDERMOTT and Mr. GUTIERREZ.

H.R. 1483: Mr. MCGOVERN, Mr. CLARKE of Michigan, and Mrs. CAPPS.

H.R. 1485: Mr. LABRADOR.

H.R. 1501: Mr. SCOTT of South Carolina, Mr. HULTGREN, and Mr. WILSON of South Carolina.

H.R. 1506: Mr. MORAN and Mr. FARR.

H.R. 1508: Mr. RIVERA and Mr. LAMBORN.

H.R. 1514: Mr. SHULER.

H.R. 1517: Mr. PLATTS.

H.R. 1520: Mr. HINCHEY.

H.R. 1527: Mr. ISRAEL.

H.R. 1528: Mr. DUNCAN of Tennessee.

H.R. 1529: Mr. PLATTS, Mr. HEINRICH, Ms. NORTON, Mr. LOBIONDO, and Mr. RUNYAN.

H.J. Res. 1: Mr. FLORES and Mr. DAVIS of Kentucky.

H.J. Res. 2: Mr. PAULSEN.

H.J. Res. 56: Mr. CONAWAY, Mr. COBLE, Mr. MCKINLEY, Mr. DUNCAN of South Carolina, Mr. SIMPSON, and Mr. LAMBORN.

H. Con. Res. 36: Mr. FLORES.

H. Con. Res. 37: Mr. CHAFFETZ, Mr. WALSH of Illinois, Mr. BARTON of Texas, and Mr. LAMBORN.

H. Res. 16: Mr. CONNOLLY of Virginia and Mr. AL GREEN of Texas.

H. Res. 60: Mr. BACHUS, Mr. LEWIS of Georgia, Mr. LATHAM, and Mr. GRIJALVA.

H. Res. 83: Mr. THOMPSON of California, Mr. GUTHRIE, Mr. CUMMINGS, Mr. ENGEL, Mr. YARMUTH, and Ms. SCHWARTZ.

H. Res. 100: Mr. LEWIS of Georgia and Mr. FILNER.

H. Res. 111: Mr. DAVIS of Kentucky, Mr. YOUNG of Alaska, and Mr. ROGERS of Kentucky.

H. Res. 137: Mr. KILDEE, Mr. YARMUTH, and Mr. CROWLEY.

H. Res. 163: Mr. CUMMINGS, Mrs. MALONEY, Mr. KUCINICH, and Mr. CLAY.

H. Res. 177: Mr. ELLISON and Ms. WOOLSEY.

H. Res. 185: Ms. BORDALLO and Mr. GARAMENDI.

H. Res. 193: Mr. TIERNEY.

H. Res. 208: Mr. GOODLATTE, Mr. POMPEO, and Mr. BROUN of Georgia.

H. Res. 209: Mr. GOODLATTE, Mr. POMPEO, and Mr. BROUN of Georgia.

H. Res. 211: Mr. CANSECO, Mr. OLSON, Mr. GARRETT, and Mr. FORBES.

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PROCEEDINGS AND DEBATES OF THE *112th* CONGRESS, FIRST SESSION

Vol. 157 WASHINGTON, THURSDAY, APRIL 14, 2011 *No. 55*

Senate

The Senate met at 9:30 a.m. and was called to order by the Honorable TOM UDALL, a Senator from the State of New Mexico.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Almighty God, accept with favor this, our sacrifice of praise, which we present. We offer You ourselves, thanking You for calling us to serve freedom's cause on Capitol Hill. Lord, You provide us with the opportunity to make a positive impact on the lives of millions. We are honored to serve You by serving our country. Use our lawmakers who are people of faith to do everything with decency, precision, and integrity. Remove the barriers that divide us, replacing them with such a passionate love for You and country that we will continue to find the common ground of progress.

We pray in Your sacred Name. Amen.

PLEDGE OF ALLEGIANCE

The Honorable TOM UDALL led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. INOUYE).

The assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, April 14, 2011.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable TOM UDALL, a Senator from the State of New Mexico, to perform the duties of the Chair.

DANIEL K. INOUYE,
President pro tempore.

Mr. UDALL of New Mexico thereupon assumed the chair as Acting President pro tempore.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

SCHEDULE

Mr. REID. Mr. President, following any leader remarks, the Senate will be in morning business until we receive the continuing resolution papers from the House of Representatives; therefore, the time until 2 p.m. will be equally divided and controlled between the two parties. Once the resolution arrives, there will be three rollcall votes in relation to the two correcting resolutions regarding health care reform and Planned Parenthood and passage of the long-term continuing resolution. It looks as though the House will vote around 4 p.m. We thought it would be earlier, but that time has slipped. Senators will be notified when we schedule the votes.

People can come and talk all they want. I am very appreciative of everybody in the Senate—Democrats, Republicans—that we were able to get the consent agreement to move forward after we get the papers from the House. If there were ever an issue that has been talked to death, it is this resolution. I think everyone realizes we have talked about this long enough. If anyone has anything to say before 2 o'clock about this or anything else, you are welcome to come to the Senate floor. There will be no debate. These papers will arrive, and we will vote on them as quickly as we can.

Would the Chair announce morning business, please.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will be in a period of morning business, with the time until 2 p.m. equally divided and controlled between the two leaders or their designees, with Senators permitted to speak for up to 10 minutes each.

Mr. President, I ask that the time be equally divided during the time of morning business and that if there are quorum calls, they be equally divided.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. REID. I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The Republican leader is recognized.

PRESIDENT OBAMA JOINS THE DEBATE

Mr. MCCONNELL. Mr. President, yesterday, President Obama outlined what he is describing as a ''responsible'' approach to our Nation's fiscal problems. And my initial response to that characterization is that, with all due respect,

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the American people are not inclined to take advice on fiscal responsibility from an administration whose unprecedented borrowing and spending has done so much to create the mess we are in.

After 2 years of adding trillions to the debt and ignoring our Nation's looming fiscal nightmare, the President may be right in thinking that the politically expedient thing to do is point the finger at others. But the truly responsible thing would be to admit that his own 2-year experiment in big government has been a disaster for the economy and itself a major driver of our debt; and that his inaction on the latter is the primary reason others have been forced to step forward and offer meaningful solutions of their own.

That is what most people already believe anyway. So the President's attempt to stake out the high ground in this debate was, I suspect, hard for many Americans to swallow.

Despite the President's imaginative account of how we arrived at the situation we are in, the American people are well past the point of believing that Washington will be able to make good on all its promises if only we let the President and Democrats in Congress raise taxes.

Americans know that we face a fiscal crisis not because we tax too little but because we spend too much. They do not support the reckless Washington spending that has left us with record deficits and debt, and they will not support raising taxes to preserve an unsustainable status quo. Besides, lawmakers on both sides of the aisle have already rejected the kind of tax hike on small business that President Obama endorsed again yesterday. So it was counterproductive of him to revive it.

As for entitlements, the President rightly acknowledged that before we know it, the government will spend every dime it takes in just to cover the cost of Medicare, Medicaid, Social Security, and the interest on our debt. What he did not say is that the health care bill he signed last year takes more than half a trillion dollars out of Medicare to pay for an entirely new entitlement that could be just as unsustainable as Medicare itself; and which forces nearly 20 million more Americans into a Medicaid Program which, as currently arranged, is bankrupting our States.

So the President can claim to be a great defender of the social safety net. He may claim to stand for a nobler vision of America than those who disagree with him. But the facts speak for themselves. And when it comes to preserving the social safety net, the President's proposals simply do not address the things that have caused our most cherished entitlement programs to be unsustainable in the first place.

Instead, the President would simply tinker around the edges and leave the hard work for others, passing the buck to future Presidents. And that just won't cut it anymore.

Americans are paying attention. They know the fiscal problems we face will not be solved by continuing the job-destroying policies that got us here. What is more, the centerpiece of the President's proposal, tax hike on top earners, may sound appealing to those whose primary goal in this debate is to protect big government. But looking at the most recent data, the Wall Street Journal points out this morning that even if we were to lay claim to every taxable dollar of every single American who earns more than $100,000 a year, we still wouldn't raise enough to cover the $1.6 trillion deficit the President's budget gives us this year.

The best way to bring down the debt and to create the climate that will lead to good private-sector jobs and prosperity is not to repeat the policies of the past but to change them. And that means cutting Washington spending, not squeezing family budgets even more.

Throughout the day today, Senators will have an opportunity to debate a down payment on those cuts for the rest of the current fiscal year. So I invite them to come to the floor to discuss that proposal. After that, we will move onto an even more far-reaching debate not about billions but about trillions. That is the debate that will show Americans exactly where their elected representatives stand on facing up to the fiscal challenges we face. Republicans look forward to that debate.

That brings me to a final point.

Yesterday, the President said that the debate we have been having in Washington about the size and scope of government is not about numbers on a page. It is about the kind of country we believe in. But he left out an important point. And that is, that there are a great many people in Washington and beyond who agree with him, but who also believe in their core that the approach he has taken over the past 2 years represents the greatest single threat to the very future he envisions. America will not continue to be the great Nation it is unless we are able to keep our promises to the current and future generations, and stop spending money we do not have. But the greatest obstacle to that future is not the everyday American who wants Washington to balance its checkbook, or those who look at where the President's policies have gotten us and map out a different path to the future than he would. The greatest obstacle we face is the crushing burden of our debt, as the President now admits.

Unfortunately, the plan he outlined yesterday does not seriously address it. Americans know the stakes in this debate. They know the reason we are in this situation. It is time the President and Democrats in Congress acknowledge it as well. The debate has shifted. And while the President does not seem to see that yet, we will not solve our problems until he stops campaigning and joins us in a serious, bipartisan effort to change not only his tone but his direction. That is how we will ensure that the future that he—and we—envision and want actually comes about. That is the only chance we have.

I yield the floor, and I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

CONTINUING RESOLUTION

Mr. DURBIN. Mr. President, a little later today we are going to receive from the House of Representatives a spending bill which, if passed, will fund the government for the remainer of this fiscal year, which ends on September 30. Included in that vote today are two other votes, separate votes, which were insisted on by the House Republicans. One of the votes will defund Planned Parenthood across the United States.

Under title X, a law which was proposed by President Nixon and passed by Congress—and supported for over 40 years since—we have provided money across America to clinics that take care of women, children, and families who otherwise would have no place to turn.

One of the recipients of those funds is Planned Parenthood. They do not receive all the funds or even a majority of the funds. But they do receive support through title X. In my State of Illinois, Planned Parenthood has clinics in many down-State communities, as well as in the Chicagoland area. In my hometown of Springfield, there is a Planned Parenthood clinic. It provides valuable services for many women in my community and State—services which otherwise they could not find or afford: basic examinations by doctors who can screen for forms of cancer, for infectious disease. These are things which many women rely on, and they are valuable services. Yet the House Republicans are determined to take the funding away from Planned Parenthood.

The amendment on the floor addresses that issue. I will vote against that amendment, and I will vote against it because I understand closing down Planned Parenthood as one of the recipients of title X funds will mean that literally 69,000 women in the State of Illinois who rely on Planned Parenthood clinics will then have to struggle to find another source of medical care, and it is not always easy to do it. Many of these women—most of them—are uninsured and very few of them have the economic wherewithal to pay for these services.

For over 90 years, Planned Parenthood has provided comprehensive preventive and primary health care to people, primarily the low-income, uninsured, and Medicaid recipients. Last year, 3 million people across America—that is 1 percent of our population—relied on Planned Parenthood's 800 health centers for cancer screenings, family planning, and annual exams.

Now the House Republicans are arguing we have to stop funding Planned Parenthood because that is a way to prevent abortion. Well, let me say, we have to understand that the law for over 30 years in America has made it clear—an amendment offered by a Congressman from Illinois, Henry Hyde, made it clear—that no Federal funds can be used for abortion services except in the most extreme and restricted cases: rape, incest, or where the mother's life is at stake. That has been the law. It has not been changed. It was not changed under this President or previous Presidents. That has been, since the time of Henry Hyde, the guiding policy of this land and there is no one to suggest that it be changed. Every dollar received by Planned Parenthood from the Federal Government is carefully restricted so that it cannot be used for abortion services.

Planned Parenthood does provide abortion counseling but only for 3 percent of their activities. Ninety-seven percent of their activities have nothing to do with it, and not a penny of the abortion counseling services can come from Federal funds except in the most restricted circumstances under the Hyde amendment. Ninety percent of Planned Parenthood's activities are basically preventive.

Let me tell my colleagues, if we don't allow women of limited means and with no insurance access to family planning counseling and services, it means there will be more unintended pregnancies and, sadly, more abortions. It is estimated that if we did not have title X funding in Illinois, if we didn't provide this kind of assistance for women in lower income categories, we would have 24 percent more abortions because of unintended pregnancies. So if what the House Republicans are seeking to do is to reduce the number of abortions, they are doing it exactly the wrong way. Providing information and counseling to women so they can plan their families and not end up with unintended pregnancies is a good way to reduce the number of abortions. That, to me, is as clear as possible. Yet they seem to be tied in knots when it comes to this and don't understand this basic causal connection.

Last year, with the help of Federal dollars, Planned Parenthood health centers performed 1 million cervical exams, 800,000 breast exams, and 4 million tests and treatments for sexually transmitted infections such as HIV. If Planned Parenthood is prohibited from receiving Federal funding, which is the issue that will be on the floor, most of their health centers would be forced to close. Then what happens to the millions of women and others across America who rely on their services?

Let me tell my colleagues one story that I think demonstrates why this is a critical vote. It comes from a Planned Parenthood clinic in Aurora, IL. A woman in her early forties was uninsured because she lost her job. Her daughter suggested she go to Planned Parenthood for her annual checkup. During the woman's routine breast exam, a 4 centimeter by 4 centimeter lump was found in her breast. That is a sizable lump. The providers at Planned Parenthood helped the woman get a mammogram and connected her with an oncologist. Thankfully, the cancerous lump was removed, and the woman recovered completely. That woman went back to the Aurora Planned Parenthood to thank them and to let them know that without that care, she could have died. So when it gets down to this vote, it literally is a matter of life and death.

I hope those who feel strongly about one issue or the other will also feel strongly about the right of every person to have access to quality care whether they are rich or poor. Planned Parenthood provides that care in my State and across the Nation.

The other amendment is also going to relate to health care. I find it hard to believe that at this moment in time the Republicans are suggesting we should repeal health care reform. This morning, we had a town meeting, and in our town meeting was a group of young people who came from Illinois and who are recovering or in treatment for cancer. These are brave young children and young adults who are battling this disease. I asked them, when someone suggested repealing health care reform, what they would think about a provision in health care reform, which we insisted on, which said that no health insurance company can discriminate against an American under the age of 18 for a preexisting condition. Well, they all cheered because they know, having had cancer in their lives, if they go out on the open market, the cost of their health care and health insurance, if they can buy it, would be prohibitively expensive.

The health care reform we passed here prohibits health insurance companies from discriminating against those children under the age of 18 for preexisting conditions. Those who want to repeal it basically want to take away that protection.

We also know many families raising children of college age get worried because the kids may not have health insurance while they are looking for jobs. We extend the family coverage of people up to the age of 27 so they can stay under their family policy when they get out of college. That gives peace of mind to a lot of families that as their young son or daughter is out taking a part-time job or internship or a trip around the world, they are going to have health insurance until the age of 27. Repealing the law, which is what we will vote on here on the floor, will remove that protection.

Also, when it comes to Medicare, the prescription drug program has a gap in it called the doughnut hole. A lot of seniors with the need for expensive prescription drugs find, after a few months, no coverage from the government. They have to turn around and reach in their savings account and pay out thousands of dollars before that protection coverage resumes. That doughnut hole—the gap—is being closed by this bill. Those who want to repeal health care reform will repeal our efforts to make sure people have this access to the kind of health care and prescription drugs they need to survive and be strong and independent.

I think it is a very clear vote. I have said before that I am open to revisiting health care reform, reforming health care reform, making sure it works the way we intended it to work. As I have said before, the only perfect law I am aware of was written on stone tablets and carried down a mountain by Senator Moses. Every other effort since has been a human effort full of frailties and flaws, and we should always try to make it better. But the notion of wiping the slate clean and repealing health care reform would be a step backward for America. It would acknowledge that the 60 million uninsured Americans will have their ranks swell from others who can't afford to pay for health insurance and certainly can't buy good-quality health insurance today.

I encourage my colleagues to vote no on this amendment to repeal health care reform. We don't need to leave so many American families vulnerable, but we do need to have protections against health insurance companies which too often discriminate against those who need protection the most.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Kansas.

HONORING BOB DOLE

Mr. MORAN. Mr. President, I am a firm believer in the view that an individual can make a difference. I am a firm believer that what happens in Washington, DC, is important in our Nation's history and what goes on in our country, but the reality is we change the world one person at a time. That individual is how we make life better.

Earlier this week, on Tuesday morning, I was on the National Mall near the World War II Memorial, and I was there for the dedication of a plaque honoring an individual who made a tremendous difference in the lives of many and made a tremendous difference in the life of our Nation. It was the moment in which a plaque was unveiled recognizing Senator Bob Dole for his contribution—in fact, his efforts and leadership—in seeing that the World War II Memorial was built. Clear

from those who spoke and from what I know of the subject, the World War II Memorial would not be available for us as a nation today in the absence of that individual, Bob Dole, who led the efforts.

There is much in Bob Dole's career here in Washington, DC, as a Member of this body, of the U.S. Senate, that we can heap accolades upon him for, but certainly one of them I know he is most proud of and certainly one of them I and the American people are most grateful for is his efforts to recognize the 16 million Americans who served their country in World War II. There are only about 2.5 million Americans who served in World War II now living, and we lose hundreds of them every day.

Last week, I was at the World War II Memorial with Kansas World War II veterans welcoming an honor flight and thanking World War II veterans from my home State for their service to our country. The World War II Memorial is a magnificent tribute to the sacrifice many have made before us.

I saw the World War II Memorial. It serves its purpose. I saw the World War II Memorial before it was ever dedicated. I put my walking shoes on and walked down to the World War II Memorial a few days before the official ceremony back in 2004, and I saw the place that says ''Kansas,'' and I thought about Kansans.

I thought of my own dad, who is a World War II veteran who served in northern Africa and up the boothill of Italy. I tell this story because the World War II Memorial served its purpose. I walked away from the memorial and used my cell phone to call my dad back home in Plainville, KS. Unfortunately, I got the answering machine at my parents' home, but from a son's point of view, I conveyed the message to my dad: Dad, I am at the World War II Memorial. I respect you, I thank you for your service, and I love you. It is something that sons don't often say to their parents, but it is something that we as Americans—something that the World War II Memorial brings out in us not just to our parents but to all World War II veterans: We respect you, we thank you for your service, and we love you.

We had the opportunity on Tuesday to pay tribute to a special World War II veteran, Bob Dole. One of the aspects of Bob Dole's service to his country certainly in the military as well as here in the Senate, here as an American, was to take care of those who served with him, and not only in World War II. He has been the caring and compassionate guide for all of us as we try to make certain that no military service goes unrewarded and that no commitment that was made to those who serve our country is forgotten.

So I am here today to pay tribute really to all World War II veterans, to all our military men and women now serving, and to those veterans of other wars, but to especially pay tribute to Bob Dole, who recognized and continues to recognize throughout his life the value of service to country and the value of service to other veterans. That plaque is a special reminder that Bob Dole made it possible for all of us as Americans to pay tribute to that generation and is a loving reminder for those who served that we are a grateful nation. It is important that we never forget those who gave us the opportunities to live the lives we live today.

While there are, again, much for which we could congratulate him and express our gratitude to him, I hold him in the highest esteem for his military service.

Sixty-six years ago today, April 14, 1945, young Bob Dole was wounded in northern Italy. He lay on the field in blood and mud for 9 hours. He was rescued. He was returned to home. The people of his hometown raised money. I still remember the photograph of a cigar box in the drugstore into which people back in those difficult times put their dollars and their quarters and their pennies to raise money for Bob Dole's rehabilitation. He was able to access the services in Battle Creek, MI, of a VA hospital.

Amazingly to me, three future Senators who served in World War II ended up in that hospital at the same time. Our own colleague Senator INOUYE, our previous colleague Senator Hart, and our previous colleague Bob Dole were all at the hospital at the same time recovering from their wounds in service to their country.

So it is today that I recognize an aspect of Bob Dole's life—most important, his willingness to sacrifice his life and his service to his country as a member of the 10th Mountain Division; his courage and dedication to his ability to reteach himself, to relearn to write, to bathe, to eat, to become a productive member of our society, and to lead our country in so many ways. I was honored to be present on Tuesday, 2 days ago, in which a grateful nation said: We thank you for your efforts in recognizing other veterans, in the creation and development of the efforts to see that the World War II Memorial, so long in waiting, is now on the National Mall.

Tom Brokaw, the author of the book ''The Greatest Generation,'' was the master of ceremonies on Tuesday, and he concluded his remarks on Tuesday morning by telling the story of Bob Dole raising money for the World War II Memorial. There are no public funds, no Treasury funds in the building of that memorial. Senator Dole and others raised the dollars from private sources to build the memorial. He tells the story of Bob Dole going to California and meeting with a wealthy Hollywood mogul asking for money to build the World War II Memorial. According to Tom Brokaw, the mogul said, ''I am not interested. I have other priorities.'' Bob Dole's response to the mogul, to the noncontributor, was, ''When I was 22, I had other priorities too. I went to war.'' Bob Dole went to war and served his country every day thereafter.

Senator Dole in his remarks concluded by saying, ''I am the most optimistic man in America today.'' We ought to be optimistic because we have individuals such as Bob Dole who have served our country. Today we recognize that service, 66 years ago, April 14, 1945, in northern Italy.

I yield the floor, and I note the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WARNER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

HONORING KEITH PREWITT

Mr. WARNER. Mr. President, I rise, once again, to continue the tradition started in the last Congress by my friend and colleague, the Senator from Delaware, Senator Kaufman, to recognize another great Federal employee.

I think this particular recognition is critically important, since last week this Congress came to the brink, unfortunately, of shutting down the Federal Government, which would have had a dramatic effect upon literally 800,000 Federal employees, many of whom toil tirelessly, oftentimes in the proverbial vineyards, trying to serve the American people. It is my hope that later today the House, and we in the Senate, will pass what perhaps is an imperfect compromise—and every compromise is a bit imperfect—that will continue the operations of this Federal Government through the balance of the fiscal year. It is appropriate that today we continue this tradition, where we single out for recognition on the floor of this Senate one of the Federal employees who continues to provide service to Americans.

The exemplary Federal worker I am referring to this week is Keith Prewitt, the Deputy Director and 27-year veteran of the U.S. Secret Service. Mr. Prewitt is responsible for overseeing the day-to-day operations of the Secret Service, including its 6,700 employees, with a budget of about $1.5 billion.

Mr. Prewitt also oversees protection of the President and the Vice President of the United States, as well as visiting heads of State. He has an impressive resume that includes handling security during three Presidential campaigns, two White House details, and overseeing trips protecting American officials in more than 110 countries.

Mr. Prewitt was first drawn to a life of public service when he was in high school in the 1960s in Memphis, TN. He met a local Memphis police officer who had encouraged him to obey the city curfew, stay safe and out of trouble. Mr. Prewitt said this police officer inspired him to enter public service. Coincidentally, he went on to become a

Memphis police officer following his graduation from college.

In 1983, the Secret Service recruited Mr. Prewitt to serve as a special agent in the Memphis field office. Over the years, he rose through the ranks of the Service. He has served both on the frontlines and in supervisory positions, which have led him to his leadership role today.

Mr. Prewitt is regarded by his peers as one of the best in the field. He has been described as a man of high value and honor who views each day as a training day and is extremely dedicated to his work and loyal to the people who work with him.

One of his peers at the National Association of Black Law Enforcement Officers stated that Mr. Prewitt ''identifies challenges for the organization and seeks to change the status quo to make things better.'' His tireless efforts to improve the performance of the Secret Service have made him a true asset to the agency, the President, the Vice President, and to our country.

I hope my colleagues will join me in honoring Keith Prewitt, a truly great civil servant, and all those in the U.S. Secret Service for their hard work and dedication to our Nation.

It is also my hope that we can conclude the budget for the balance of this fiscal year so we can give Mr. Prewitt, countless other Federal employees, and literally millions of Americans who depend upon the ongoing workings of the Federal Government, the confidence and respect they need by passing the balance of the continuing resolution for this year before we break for the Passover-Easter recess.

With that, I yield the floor and suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. VITTER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. BROWN of Ohio). Without objection, it is so ordered.

CONTINUING RESOLUTION

Mr. VITTER. Mr. President, I rise today to explain why I am voting no on the budget deal later this afternoon.

First and foremost, I am voting no because I do not think this is a meaningful, substantial start to getting our hands around what is the biggest threat and potential crisis we face as a nation—out-of-control spending and debt. I suppose $38 billion is more of a cut than we have ever done. But if we put it in any other context, it is very modest indeed.

Take a look at the 8 days leading up to the announcement of this deal and those 8 days alone—barely more than a week. We as a nation racked up $54 billion of brandnew debt, way more than the $38 billion of cuts in just 8 days. That gives some perspective on exactly how modest and how limited in meaning this is.

When you dig a little deeper to look at the details of the cuts, I am afraid the picture gets even worse. A lot of these cuts are paper cuts only—only cuts on paper that do not have a meaningful impact in the real world. There has been significant reporting about this. The Justice Department fund and other examples—that probably accounts for $12 billion or $13 billion of the cuts.

In addition, yesterday the CBO issued a report that said only 1 percent of those cuts—$350 million or so—would have an impact this fiscal year. All the rest is pushed off well into the future. Because of that, I am voting no. I think we need a much stronger start to getting our fiscal house in order.

In addition, I am very concerned about what this budget deal continues to fund in terms of policy, in terms of impact on Americans' lives. The clearest example of that for me is the continuing funding of Planned Parenthood. I believe it is morally wrong to end an innocent human life. I also believe it is morally reprehensible to take tax dollars of millions of pro-life Americans in order to fund organizations that do just that. Americans should not be forced to subsidize abortions, much less fund our Nation's largest abortion provider. That is what Planned Parenthood is, pure and simple.

Opponents of defunding Planned Parenthood have argued in the news and even on the Senate floor that the organization provides many other health care services other than abortions, such as mammograms. We have seen recently that is a big fiction. Planned Parenthood's CEO repeated this assertion recently on news shows. She claimed:

If this bill ever becomes law—

Meaning the defunding of Planned Parenthood—

millions of women in this country are going to lose their healthcare access—not to abortion services—to basic family planning, you know, mammograms.

As I said, in recent days, this has been shown to be a huge fiction. Live Action, which is a pro-life group, recorded calls in the last several days to 30 Planned Parenthood clinics in 27 States. In each conversation, a woman calls in and asks if she can schedule an appointment for a mammogram. And in each conversation, without exception, the Planned Parenthood representative tells her they do not provide mammograms. Period. One staffer admits:

We do not provide those services whatsoever.

Another explains:

We actually don't have a mammogram machine at our clinics.

The staffer at Planned Parenthood in DC was perhaps clearest. She said:

We do not provide mammograms . . . we don't deal with the health side of it so much. We're mostly a surgical facility.

By the way, surgery means one thing: abortion.

This Planned Parenthood staffer is exactly right: 98 percent of their services to pregnant women constitute abortions—98 percent.

This chart lays this out very clearly. This pie chart represents 2009 Planned Parenthood services to pregnant women. The universe of services to pregnant women, abortions is in dark red, 98 percent. Adoption referrals is in blue. I apologize if you cannot see that. The sliver is that tiny. You have to be up close. And all other prenatal care is in green. That is the reality of Planned Parenthood.

We have also seen a recent onslaught of ads that claim Planned Parenthood is simply a leading provider of women health services, but abortion accounts for roughly one-third of the $1 billion generated by its clinics. In fact, Planned Parenthood's annual report acknowledges it provides primary care to 19,700 of its 3 million clients. Number of clients: 3 million; those to whom it provided primary health care: 19,700.

The provision to cut title X funding for health services, such as breast cancer screenings, HIV testing, counseling, and other valuable family planning services, would not block funding for those services at nonabortion providers. It would simply block funds from subsidizing America's largest abortion provider, and abortion is almost everything Planned Parenthood does.

Furthermore, Medicaid spends $1.4 billion on family planning each year. Not $1 of those funds would be affected by this resolution and this proposal. The question we face today is not if family planning and women's health services will be provided but, instead, if we are going to use that as an excuse to fund the biggest abortion provider in the country which does little else.

Although I personally believe abortion is not a right guaranteed by the Constitution, I recognize the sad reality that abortion on demand is legal in this country. Again, this debate is not about that. It is not about whether Planned Parenthood has the right to perform abortions, and it is not about funding true health care services. The question before us is whether millions of pro-life taxpayers have to fund this entity.

Every year since 2000, the government has increased its funding of Planned Parenthood on average $22.2 million per year. As a direct reflection of that, the number of abortions they perform has dramatically increased, even though the overall abortion rate, thank God, in the United States has declined until 2008.

This chart lays out the situation clearly. What is in green represents government grants and contracts to Planned Parenthood. It has consistently gone up and up, a significant increase virtually every year. What is in red represents abortions by Planned Parenthood. Very interesting. There is

virtually the same slope of an increase, while at the same time for this entire period until 2008 abortions nationwide were actually going down.

I do not understand how anyone can look at this and say there is not a connection, say we are not using taxpayer dollars to promote and fund abortion. This notion that it is not used directly for abortion services is a convenient fiction because it is a shell game, because it, in fact, funds Planned Parenthood, and 98 percent of what they do is about abortion.

According to their latest annual report, Planned Parenthood boasted more than $363 million in taxpayer funding, the same year it performed an unprecedented 324,000 abortions.

Planned Parenthood's abortion rate massively outpaces its adoption referrals in particular. In 2008, a woman entering a Planned Parenthood clinic was 134 times more likely to have an abortion than to be referred for an adoption.

In fact, this final chart shows that as Planned Parenthood's abortion rate steadily increased to that staggering number of 332,000 in 2009, its adoption referrals actually decreased to 977 that same year. So again, abortions are in deep red, adoption referrals are in blue, and all other prenatal care is in green. What is the reality, what is the history, what are the facts? Abortions go up dramatically in Planned Parenthood, prenatal services go down, and adoption services go down as abortions go up.

Planned Parenthood has made a profit every year since 1987, including a $63.4 million return in 2009. There is no justification for subsidizing Planned Parenthood's profitable venture with taxpayer dollars, particularly when roughly half or more of those taxpayers deeply disagree with abortion. The sanctity of human life is a principle Congress should proclaim at every opportunity, and the time has come to respect the wishes of so many millions of Americans who have adamantly opposed using taxpayer dollars for abortions by denying all Federal funding to this abortion machine.

This is a social issue, of course. It is also a fiscal issue. Our Federal budget is out of control. We are facing unsustainable debt. So given that, in particular, isn't it time to stop funding an organization that millions of Americans have fundamental problems with? If our Federal Government has any hope of regaining fiscal restraint, we have to make significant cuts—more significant than are being proposed in the deal before us today.

I refuse to believe that Planned Parenthood is the one sacred cow that should stand untouched and be untouchable. The time has come to change this situation and to respect the wishes of the huge majority of Americans who, whether they are prolife or prochoice, think taxpayer dollars should not subsidize abortion. And that is clearly what is going on with Planned Parenthood.

Mr. President, I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mrs. BOXER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. BOXER. Mr. President, I am so amazed that the lies that have been stated about Planned Parenthood on this floor have been repeated again and again. You know, it gets pretty bad when you are so outrageous that Stephen Colbert and Jon Stewart start to look at what you are saying on the Senate floor. That is a rarity.

This all started when Senator KYL took to the floor and said that 90 percent of what Planned Parenthood does is abortions. Well, that was a little bit wrong. Ninety percent of what Planned Parenthood does is health care—no abortions. As a matter of fact, it is 97 percent. And every dollar of Federal funds that goes to health care may not, since the 1970s—not one slim dime—go toward abortion.

Senator VITTER upped that just now and says that 98 percent of what Planned Parenthood does is abortion. I don't know what he is thinking. But let me reiterate, Planned Parenthood is a nonprofit organization. He says they make a profit. You could say anything, but that doesn't make it true.

I think it is interesting that in the 1960s and 1970s Planned Parenthood, which has become the prime target of the rightwing of Republicans, drew the support of prominent members of the GOP. Richard Nixon signed family planning legislation that authorized Federal funding for groups such as Planned Parenthood. Former Senator Barry Goldwater's wife Peggy was a founding member of Planned Parenthood in Arizona, and former President George Herbert Walker Bush, as a Republican Congressman from Houston, spoke frequently on the House floor about the issue. So it is astounding how the rightwing of the Republican Party has walked so far away from their most revered leaders. That is their choice. But it is also our choice as to whether we are going to stand here and take it or come here and rebut what they are saying.

So count me in and count the Democratic women and many men on this side of the aisle who have stood sentry on this and told the truth about this. And the truth is we are in a budget debate. Everything the Republicans have said is that we have to close the deficit gap, we have to cut spending, cut spending, cut spending. And we said: Okay, we will join you, but where were you during George Bush's day? You never said a word. But putting that aside, we will meet you. When we had the majority and Bill Clinton was the President, we were the only ones who did get a balanced budget and 23 million jobs. So we know how to do it, and of course we are going to work with our colleagues. We met them over 70 percent of the way on spending cuts. But guess what. They are so ideological and so extreme that what we heard from Senator VITTER today is not a discussion about the budget deficit and the fact that we have to get on top of it and get that budget balanced, as we did under the Clinton administration. We heard about abortion, abortion, abortion, which has nothing to do with the issue at hand. Because, as I said, not one slim dime of Federal money has been able to be used for abortion since the 1970s, and 97 percent of what Planned Parenthood does is health care, not abortion.

We know the real priority of these Republicans in Congress. We know the real priority. We know what it is. It is an ideological agenda that, frankly, puts women's health and women's lives at risk. Here we had this huge debate over the budget—tough, getting down where we were all sweating it out to within an hour of the moment the government would shut down—and the two things the Republicans insisted on voting on, on a budget bill, have nothing to do with the budget.

For every dollar that Planned Parenthood gets to help them do cancer screenings for women, Pap smears, breast cancer screenings, STDs—and they do for men as well—HIV testing, blood pressure checks, diabetes checks, they charge a sliding scale. You walk in there, you have no insurance, you have no money, you get the services for free. If you have some, you pay some.

The bottom line is, this is what they are holding up this agreement over, and they are forcing us to vote on Planned Parenthood and repealing health care reform. I say that is extraordinary, because we met them on the numbers. But in order to appease their rightwing agenda, they are forcing these votes. If these bills were to pass, who gets hurt? Women and their families.

I have some letters I have received from Californians, because 750,000 women are served by Planned Parenthood clinics in California—750,000 women. That is actually more than some States have. I am going to share a letter. I have shared a few of them, but I got this one today.

Dear Senator BOXER, I don't write to you often because you already stand up and fight for everything I believe in. I heard you on NPR this morning talking about women's health and the cuts the Republicans want to make to Planned Parenthood.

I'm a 42 year old married professional. My husband and I aren't in the highest bracket, but our combined income puts us in the $170,000 year range. Frankly, we're happy, more than happy to pay our fair share of taxes for the things that will help our society as a whole.

We are appalled by the budget discussions. If you really want to cut spending, do so where it is really outrageous . . . defense and military. There's 60 percent right there. However, what has me outraged right now is . . .

The Republican Party is.

. . . willing to shut down the government over a few dollars for Planned Parenthood.

If you really cared about limiting abortion funding, family planning is the first step. When I was 20 years old, I was working my way through school. I was a sophomore in college with limited income, no parental support, no health insurance. The one thing I did have access to medically was Planned Parenthood. The services were on a sliding scale, so at my income of $850 a month, a gynecological exam was $10. This meant that I went.

. . . I also got birth control pills there . . . However, probably the most significant cross road in my life came about because of Planned Parenthood. My family has a history of female cancers. I had a Pap smear come back abnormal when I was 21.

1). Had it not been for Planned Parenthood, I would not have been able to afford the annual Pap smear.

2). Planned Parenthood did a biopsy on the ''abnormality.'' Again, it was a sliding scale and while I can't recall exactly how much this was, it was something I could manage . . .

3). Biopsy showed that it was a potentially very dangerous pre-cancerous growth that needed to be removed.

4). I did eat beans and rice for the next 2 months to pay my share to Planned Parenthood for removing this growth.

5). I had to have Paps 2 times a year for the next several years . . . Again, all I could afford was Planned Parenthood.

Frankly, if it wasn't for Planned Parenthood, there's a pretty good chance I wouldn't be here today. It's not about abortion, it's about women's health.

I have to say, these are the letters I have been getting day after day after day, and I am very proud of the people who have stood up and told the truth to counter the lies I have heard, frankly from Members of Congress. This woman's name is Heather Jones from Costa Mesa.

The bottom line is, if you turn and look at the two votes we are going to have today, they both hurt women disproportionately. This isn't about the budget. If it were about a budget, they would give more money to the Title X program because for every dollar we invest, we save $4 on the other side. What would have happened if Heather hadn't found out she had a dangerous precancerous growth? That would have gone forward, she would have gotten cancer, and Lord knows what it would have cost. She didn't make any money at that time, so she would have had to have help from her county. It would have cost taxpayers. She would have been ill and gone through hell and back fighting this, and who knows if she would have made it.

The second vote we are having has to do with rolling back health care reform—another attack on women. It is an attack on everyone, but I want to look at what it does to women. I know the Presiding Officer knows this, because he has been a leader on this issue, but before we passed our health reform law, being a woman was a preexisting condition.

If you were the victim of domestic violence and you were a woman, they wouldn't insure you. They would say: You have a preexisting condition. What is that? Well, your husband beat you. And guess what. He could do it again, so you are a high risk. Goodbye. We said no. No, that can't happen. If you had a cesarean section and you tried to get insurance, they would say: No, no. Since you had a cesarean section, you could have another one. It is too expensive. Bye.

We said, no; you can't do that. You can't turn away people simply because they were the victim of domestic violence or had a Caesarean. You cannot turn away a person because she is a woman. In 2014, insurance companies will not be able to deny anyone coverage because of a preexisting condition.

Another issue my colleague fought hard on, along with all of us, is gender rating. Insurance companies charge women in California nearly 40 percent more than men for similar coverage. Can you imagine? So when they say let's repeal health reform, who are they hurting? Disproportionately women. When they say no more funding for Planned Parenthood to continue their great work on basic health care, who are they hurting disproportionately? Women.

Preventive care was a key in that health reform. I thank the Presiding Officer. He served on the appropriate committee that made that decision. I will tell you, right now women delay or avoid getting preventive care, but once health reform goes into place we know there will be preventive health care services such as mammograms without a copay or a deductible. So when you repeal the health reform and everything we did for the people, who do you hurt? Women. Who is going to get sick more than any other group? Women.

Maternity care is not covered by many insurance companies. We changed all that. By 2014 insurance will be required to cover maternity care services.

Let's look at Medicare. We made many reforms in health care dealing with Medicare. More than half of the people who depend on Medicare are women; 56 percent of Medicare recipients are women. When you end Medicare, as Mr. RYAN does in his so-called Ryan budget where he ends Medicare—let's call it what it is—you are throwing women under the bus. This time it is elderly women. How proud are you of that, Mr. RYAN? I am not proud that kind of proposal would come out, and it is starting here today, when we vote to repeal health care reform.

Health care reform extended the life of the Medicare trust fund by 12 years, to 2037. Why on Earth would the Republicans want to repeal a law that strengthens Medicare and makes it viable until 2037?

Let me tell you what else would be repealed if they have their way today. Every senior on Medicare is going to get a free annual wellness exam. Let me repeat that. Every person on Medicare is going to get a free annual wellness exam. It will get them access to preventive health services such as vaccinations and cancer screenings with no copay and no deductible. Why did we do that? First and foremost, we did it because it is the right thing to do, but it saves money at the end of the day when we invest up front in prevention.

That is why the Congressional Budget Office said our bill saves billions of dollars over time. Investing in prevention—just like Planned Parenthood did with my constituent, Heather, where a cancer was discovered early—means that an individual will get the care early, will get on top of this and will not have to spend a lot of money on it and will be spared the pain and suffering and all the rest that goes with cancer.

There is one more thing that they repeal. I didn't see this one. If they get their way today, seniors are not going to see that infamous doughnut hole that they fall into on their prescription drugs closed. They are not going to see that closed. Right now it happens after they pay a certain amount of money for their prescription drugs, a couple of thousand dollars. Then they say Medicare prescription drug coverage is not going to cover them. So they fall into that doughnut hole. We close that forever by 2020. They want to cancel that so seniors are going to have to pay more for their prescription drugs.

We live in the greatest country in the world, and we have access to so many wonderful health advances—be they medical devices, be they prescription drugs. But what good does it do if we cannot get those things?

By repealing health care reform—which our Republican friends want to do, and today we have a vote to do it—seniors, women, and their families will lose access to lifesaving drugs. They will lose access to preventive care. They will lose access to fair insurance coverage. Again, disproportionately it impacts women. That is just the way the demographics are because 56 percent of Medicare recipients are women.

Let's be very clear. Let's send a strong message tonight, or whatever time it is that we vote on these two amendments, that we are standing strong—if we vote them down—we are standing strong for women, we are standing strong for their families, we are standing strong for Americans. Anyone who would take these important reforms away, anyone who would say we do not care about the 3 million people who get their health care from Planned Parenthood, are saying they do not care much about those people.

By the way, there was some news program that said: What do you need Planned Parenthood for? You can go to Walgreens and get all those services? Somebody said. I never heard of getting a Pap smear at Walgreens or a breast cancer screening, that doesn't come to mind. So Walgreens actually had to put out a press release stating they do not do those things.

Let's start talking the truth on the floor of the Senate. The truth is, there is an ideological agenda around this place, and it is crystallizing. My Republican friends have gone a bridge too far. People are catching on because now it is starting to affect them. They are Republicans, they are Independents, they are Democrats. This is not about party. I can assure you, the people who are writing me who go to Planned Parenthood to get their health care, their preventive care, their blood pressure checked, their diabetes checked, they come from every political party.

The Title X program, in the beginning, and when it was formed, had the strongest support from Republicans. That is how it was. But these Republicans today have walked so far away from their own party that they are looking at a bill signed by Richard Nixon, voted for by George Herbert Walker Bush, and saying: No, we are not interested in family planning. They are distorting the debate.

If people want fewer abortions there is one place we can all walk together; that is, prevention of unwanted pregnancies, birth control, contraception. They do not even want that. They do not even want that. They have just overreached.

I am a person who says I respect you know matter what your views are. I would stand in front of a truck to protect your right to state your views, whatever they are. I do not tell people what to think about issues. I think they should be respected for what they decide. But big government should not be telling people what to think about the most personal decisions. That is not what America is about.

We have, over the years, crafted some good compromises in the area of reproductive health care. We have said people have a right to choose in the early stages of a pregnancy. That is what the Supreme Court has said. It has been upheld since the 1970s. In the beginning of a pregnancy, a woman and her family and her doctor and her God, that is who will be consulted. It is up to her to make that decision, early in the pregnancy.

As the pregnancy moves on, the State has an interest in the decision on this issue. As the pregnancy moves on—but always her life and health must be protected. That is the law. Not one penny of Federal funds can be used for abortion except in the case of rape, incest, life of the mother.

I happen to be the one who carried that amendment on rape and incest because before that, we did not have that amendment. That was over on the House side many years ago. We have a compromise. I would say to my friends, if you do not like that compromise then come on the Senate floor and make a woman a criminal and make a doctor a criminal—introduce your legislation. We will fight it out and the people will weigh in. What the people will say is: Compromise. Compromise is fair. It is not perfect, but it is fair. But, no, that is not what they will do because they know if they say a woman is a criminal, it is a bridge too far.

So what they try to do is vilify an organization that has been in place for 95 years, Planned Parenthood. They will vilify an organization when 97 percent of their work goes to basic health care and family planning. It is really sad. It is wrong. I am here to say every time it comes up—the women Democrats, we have been on the Senate floor already. We are going to continue this battle with our male friends because nobody can tell me they care about women when they are about to vote to deny women basic health care. No one can tell me they care about families when they are about to deny families basic health care. No one can tell me they care about families when they want to repeal a law that outlaws gender discrimination, that outlaws the ability of an insurance company to turn you away if you were the victim of domestic violence or had a Cesarean section.

Nobody can tell me you care about seniors when you embrace the Ryan budget that ends Medicare. No one can tell me you care about seniors when, today, you are going to have a vote to repeal health care reform that gives them more funding for their prescription drugs, that gives them free wellness checks without a copay or deductible.

We always say around here: Whose side are you on? Are you on the side of the people, or are you on the side of the insurance companies? Are you on the side of the people, or are you more interested in scoring political, ideological points with the extreme wing of your party? Those are the questions. I think the answer is going to come back tonight. I think we are going to defeat these two radical amendments. I hope it will send a message to our House friends who are going to have a radical budget that the experts tell us is going to lose hundreds of thousands of jobs—I correct myself, the experts tell us the Ryan budget would lead to the loss of 2.2 million jobs. Can you imagine?

The only beneficiary of that budget is billionaires and multimillionaires. I am happy to be in the Senate at this moment in history because, to me, these are the issues. I have to say, these are the issues I had in my campaign, and they were very direct.

I thank the people of California for sending me back here. We have 38 million people, the largest State in the Union. Every time you take away something from a Planned Parenthood or another health care center, you hurt more of my people than anybody else because we are such a large State. Today we start the votes, and I am grateful I could stand up and speak out against both of these radical amendments—one to defund an organization that is helping 3 million people a year in America, and, second, repeal of health care reform that does so much good. I think we are going to win those votes, and I certainly hope so.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama is recognized.

Mr. SESSIONS. Mr. President, we as a country are in a very serious financial situation. We all know we have to reduce spending. This year we will spend $3.7 trillion but take in only $2.2 trillion—40 cents of every $1 is borrowed.

The President has acknowledged a stunning revelation, that under his budget he submitted 2 months ago, something I repeatedly have talked about—in the 10th year, the amount of interest on our debt will be almost $1 trillion. This is fact.

We are on an unsustainable course. As every witness to come before the Budget Committee has told us: You have to do better. You cannot continue in this fashion any longer. The President's debt commission Chairmen, Mr. Erskine Bowles and former Senator Alan Simpson, told us we are facing the most predictable debt crisis in our history if we do not change.

They did not say it could happen to our children and grandchildren, they said it could happen in 2 years. Mr. Bowles said maybe earlier than 2 years, maybe some time after that. Senator Simpson said, I think we can have a debt crisis in 1 year. Hopefully, this will not happen.

But we have to get spending under control. There are two ways to do it. One is to work hard, do what we are paid to do as legislators and identify the less-productive, less-defensible spending programs and eliminate them and try to protect as much as we can the programs that are more productive and doing good for America.

Another way to do it is reduce everything across the board and just cut it all by a certain percentage, and reduce spending that way. You could do either. I think most people would say, we should eliminate the programs that are least defensible first, before we have to reduce spending in programs that are more justified.

So, regardless, how do we make the decision?

I have heard the debate about Planned Parenthood and the money they get. I have not been particularly knowledgeable about it until recently. I serve as ranking member of the Budget Committee, so I know something about the debt crisis we are in. So the question is, Is Planned Parenthood a program that is less defensible and ought to have its funding eliminated or reduced significantly so other programs that are more defensible do not have to be cut?

Looking at the facts, I find that Planned Parenthood has far more difficulty defending its legitimacy as a Federal recipient of millions of dollars than other institutions. This is a private group that sets about to do all kinds of things. One of the largest things it does is provide abortions. They have a very strong ideological agenda that a lot of the American people do not agree with. Why should we

fund it? There are many other organizations out there, all over America, that do what they think to be good things and are not funded by the U.S. Government.

So let's just look at it a little bit. I was sort of surprised actually. In 2009, the last year we have gotten a report, Planned Parenthood reported providing 332,278 abortions in the United States. I didn't know that—332,000. This is the highest total ever recorded, and the 15th consecutive year that the number of abortions they have provided has increased.

Overall, though, abortions in the United States are going down. You see that sonogram and you see that unborn child and the American people are getting a lot more uneasy about this idea taking an unborn life.

Overall, abortions have decreased by almost 25 percent in the past two decades nationwide, voluntarily reduced by individual decisions by Americans. Yet during that same time, Planned Parenthood abortions have doubled.

Planned Parenthood consistently claims that abortions account for only 3 percent of their services; 97 percent is spent on other projects, they say. But yet in that same fact sheet on which they make that assertion, they state that 12 percent—that is more than in 1 in 10—of their health care patients receive an abortion.

That is a surprise to me. Think about that. They state that 12 percent—that is more than the 1 in 10—of their health care patients who come in to Planned Parenthood receive an abortion. So what about the other solutions? Are there not other solutions to pregnancies other than abortion?

In 2009, their report indicates that Planned Parenthood made 1 adoption referral for every 340 abortions performed. They made a scant 977 adoption referrals compared to over 330,000 abortions. That is a decline of almost 60 percent from 2008. In 2008, they did 60 percent more referrals when it made 2,400 adoption referrals. So this is a major change in what is going on at Planned Parenthood.

It appears this is an advocacy organization that is committed to one solution for people struggling with pregnancies. I tell you, I have a letter here, I will not quote it, but I have a letter from a woman in Alabama who had an abortion who still feels pain about that and wrote me saying not to fund this. I just say that because my colleague suggested only men would favor reducing this funding.

I tell you another thing that I did not know and was very surprised about: the amount of Federal money that they receive. No wonder there is a big brouhaha here, because this is a lot of money. Congress is providing $363 million a year to Planned Parenthood. That is a lot. Over 10 years—as we have been scoring everything here over a 10-year budget—that is $4 billion—quite a lot of money.

Many people in the country feel strongly that, OK, they say the Supreme Court has ruled on this. They have said that under the Constitution abortions under some circumstances cannot be prohibited. But they are saying the Federal Government does not have to pay for it, does not have to fund it, and should not use taxpayer money to do so.

So my colleagues say: Well, we agree with that principle and Planned Parenthood money does not directly fund abortions. We are giving the money to Planned Parenthood, but they are not able to use it for abortions. But if 12 percent of their patients are obtaining abortions, and they are getting $363 million per year, I think it is a fact that the Federal funding furthers their ability to grow and expand their lead as the No. 1 abortion provider in the country.

I think, all in all, we do not have enough money to do a lot of good things. We have, some people forget, rural health clinics and urban health clinics that are funded and organized by the government to meet health needs of the poor. We do not have to use money to help fund this private entity that has an agenda. I do not believe it is radical to say this is one place we could save money. I do not think it is extreme.

My best judgment tells me that if we do not have enough money, and 40 percent of what we spend is borrowed, we shouldn't borrow $363 million this year to fund a program like Planned Parenthood. This is one program that we could legitimately say does not have to have taxpayers' money and should have its funding terminated.

I also would support the resolution concerning the health care bill. It is clearly a piece of legislation that costs the taxpayers large sums of money. It is not a piece of legislation that adds money to the Treasury, as has been suggested. The Congressional Budget Office has written a letter to me that stated explicitly that the administration is double-counting money to claim savings. If they were not double-counting the money they took from Medicare to fund this new program, then the health care bill would score to be a clear drain on the Treasury.

They have to use a gimmick of double accounting to justify that. It is not the right way to do it and is the reason the country is going broke.

So, while today's vote may largely be symbolic, it is a crucial step in showing the necessity of eliminating this intrusive and costly healthcare law and replacing it with reforms that will provide Americans with access to quality, affordable health care, reduce skyrocketing health care costs and put our Nation on a more sustainable fiscal path.

The Democrats' health legislation was sold as a package that would reduce insurance premiums by $2,500 per family, trim the Federal deficit, and immediately create 400,000 new jobs. Sadly, none of these promises have been met.

Instead, the new health care law will cause health care spending to surge over the next decade, and Americans will see dramatic increases in their premiums, and many of them already have. Half of those recently polled in a Kaiser Family Foundation poll claim that their premiums have gone up recently. The Federal deficit will increase by an additional $700 billion, and the law's expensive mandates, penalties, and tax hikes will lead to job losses and persistent economic uncertainty, as many small business owners have told me.

As our Nation's reckless fiscal policy brings us ever closer to a tipping point, respected economists across the country have stressed the need for Congress to reduce Federal spending and contain our mounting health costs.

Rather than tackle these problems that threaten the long-term stability of our Nation, the new health care law exacerbates our fiscal crisis by creating an open-ended entitlement and introducing $2.6 trillion in new Federal spending.

According to the Congressional Budget Office, the new health care law will cause insurance premiums in the individual market to soar by 10 to 13 percent for American families, translating to a $2,100 increase for families purchasing their own health care coverage by 2016.

Total health care spending in the U.S. already consumes 17.3 percent of GDP, the largest of any industrialized nation. Under the new law, national health care spending will approach 20 percent of GDP by the end of the decade.

Sadly, many supporters of the health care law continue to perpetuate the myth that it will not increase the deficit. A thorough examination of the law pulls back the curtain to expose the deceptive budget gimmicks and reveal its true cost.

When the bill was first introduced, the Democrats sold the plan to Americans by double-counting $398 billion in Medicare cuts and taxes, $29 billion in Social Security taxes, and $70 billion in new long-term care premiums to pay for the new health care spending. This is according to a CBO report I requested. This double accounting was stunning and existed to justify the claim that the law will reduce costs.

Additionally, since CBO reports evaluate legislative proposals over a 10-year budget window, the new law was written to delay most of the new spending until 2014, while immediately implementing the program cuts and tax increases to allow 10 years of offsets to pay for only 6 years of spending. In order to convince Americans of the plan's merits, which they failed to do, they had to use accounting gimmicks that hide the true long-term costs of this monstrous law.

Only in Washington will people claim that spending $2.6 trillion and dramatically expanding the size and scope of the Federal Government is good for our Nation's fiscal health.

Former Director of the Congressional Budget Office Douglas Holz-Eakin, an economist who understands the budget gimmicks used in Washington, cowrote an article in the Wall Street Journal in January that eliminates any confusion about the law's impact. This article titled ''Health Care Repeal Won't Add to the Deficit'' clearly refutes the law's supporters:

Repeal is the logical first step toward restoring fiscal sanity. . . . How, then, does the Affordable Care Act magically convert $1 trillion in new spending into painless deficit reduction? It's all about budget gimmicks, deceptive accounting, and implausible assumptions used to create the false impression of fiscal discipline . . . Repeal isn't a budget buster; keeping the Affordable Care Act is.

A poll by the Kaiser Family Foundation and Harvard University conducted around the same time that this article was written revealed that the American people are seeing through these ploys: 60 percent of the country believes the health care law will increase the deficit over the next 10 years, while only 11 percent thinks it will lower the deficit.

Once again, the America people prove that they are wiser than Washington. The final point I wish to make about the health care law is its debilitating impact on jobs and our economic recovery. In meeting with many small businesses, they are passionate on this point.

The expensive mandates and penalties included in the health care law coupled with the rising costs of insurance facing families and businesses have enveloped our economy in a cloud of uncertainty. Already, over 6,000 pages of new health care regulations have been written by the Obama administration, burdening employers of all sizes as they make strategic decisions about business expansion, hiring additional employees, and long-term investments, three keys to the private sector recovery essential to getting Americans back to work.

Economic estimates indicate that repealing the health care law that threatens our economic recovery would save 700,000 American jobs.

It is imperative that Congress repeal this law that is burdening employers and stifling economic growth, and replace it with solutions that will lower health costs and avert the mounting fiscal crisis facing our Republic.

During the recent election, the American public rebelled against the unchecked spending and unprecedented government expansion that threaten our children's future. Their message to Congress was clear: adopt policies to change our unsustainable trajectory and rein in the cost and size of the government. Congressman PAUL RYAN has submitted a budget for 2012 that is responsible, honest, and straightforward in the way that it deals with the debt problem facing our children and grandchildren. Repealing this flawed and fiscally unsustainable health care law, which is an important part of his plan, would be another step in the right direction and would help to change the devastating trajectory that we are on.

I urge my colleagues to heed the public's call and repeal this legislation.

I yield the floor.

The PRESIDING OFFICER. The Senator from Missouri is recognized.

SBIR/STTR

Mr. BLUNT. Mr. President, I wish to talk about another topic. Senator KIRK and 36 other Members of the Senate are cosponsoring an amendment we would hope to add to the small business bill if we ever get back to it.

This is an amendment we offered independently as a bill 1 month ago, the Gas Accessibility and Sustainability Act. What this bill does is take further an effort that was put into law in 2005, right before Hurricane Katrina, that allowed the President to suspend the unique boutique fuel standards in the country if there was a natural disaster.

That happened immediately—within a couple weeks, as I recall—after the bill became law. The President used that authority. In the 6 months following Katrina, even though the gulf was obviously disrupted and a couple of refineries were very disrupted, gas prices did not go up because, for the first time since the passage of the Clean Air Act, gasoline was a commodity again.

What this bill would do, as we now see gasoline prices at $4.37 in Hawaii, at $3.88 in St. Louis, and particularly prices that are high in communities that have a unique blend of fuel that is only available in that community, is allow the President to have that authority, if there is any kind of disruption, if the Suez Canal was shut down for some period of time, if a refinery went down, if there was a pipeline disruption that truly made it very difficult for communities to get their unique blend of fuel but was much easier for them to get fuel that met the standard of being ''fuel'' at the gas pump.

Senator KIRK and I introduced this together. He was a great advocate of this bill when it passed the House. I would like to turn to him for a moment and see what he has to say today about this bill that allows us to look at the gas prices that are creating real problems in the country today.

Mr. KIRK. Mr. President, I note that under the Blunt legislation, we would correct a growing problem in the United States with gas prices. Right now, for example, in the Chicagoland area, gas prices total about $4.14 a gallon. I am sure in Missouri it is probably quite high.

Mr. BLUNT. It is $3.88 in St. Louis, which would be the area that we have that uses specialty fuel.

Mr. KIRK. This map shows that by Federal regulation the Federal Government has divided the national gasoline market into 17 separate submarkets. These 17 submarkets all have their unique recipe of gasoline. By Federal regulation, one cannot use gasoline that was sold in Chicagoland, which under this chart is the Chicago and Milwaukee RFG ethanol standard, in the St. Louis area, the SRFG standard with ethanol. By creating small, tiny monopolies, we create higher prices for the American people. I think that is why the Blunt legislation is necessary.

Mr. BLUNT. I thank the Senator for those comments. Using his chart, in Missouri you can buy one blend of gas in St. Louis, another blend of fuel in the Kansas City area, and a third blend yet in between. So, clearly, these areas are not even unique in the fuel that is used there. If you buy fuel driving from one city to the other and use the other half of the tank while you are driving around in St. Louis, you are using fuel that is available generally anyhow.

This does a couple of things. One, it allows, in a time where it is hard to get fuel for any reason, the President to waive those standards. The other thing it does is, it caps these fuels so if the EPA decides under the Clean Air Act that you have a clean air attainment problem in your city, you have to go and look at the existing fuel blends and choose from one of them rather than what had happened in the country up until 2005, which was every city somehow became convinced there was a unique fuel blend for them that only would work there that never would quite work anywhere else. That doesn't make sense. We have headed in the other direction. This legislation heads us a little further and a little faster in a direction to where we don't have these unique blends. We have fuel as fuel again. Whether it is the restaurateurs whom some of us may have seen today or various businesses, if fuel is $4 a gallon, something has to give, and it goes throughout the entire economy. This helps solve that problem.

Hopefully, we can be talking about an energy bill before too long. But, clearly, whether it is a small business bill or any other bill, the cost of fuel makes a real difference in the country today. This amendment that we hope to offer eventually to the small business bill is one of the things that will help solve the problem.

Mr. KIRK. The unhighlighted areas are where regular gasoline is sold. The highlighted areas are where these little gasoline monopolies, by Federal regulation, have been created. What happens if another hurricane hits the gulf? If this area was lacking its specific kind of gasoline under current regulations, it could not borrow gasoline from Missouri or Chicagoland or anywhere else. So we have created an incredible price rigidity in the system. Long term, I think we should move the country to one clean burning fuel. But the one thing we should not do is have 17 different submarkets, all now with the ability to charge the American driving public much higher prices than would otherwise be the case.

I commend the Senator. This is exactly why we need the Blunt legislation. The Blunt amendment should pass to address this problem, one of the reasons gasoline costs too much in the United States.

Mr. BLUNT. I thank my friend from Illinois, a long-term proponent of this concept. We will continue to work for solutions that make gasoline and the fuel system work better and make more sense for people all over America.

Ms. SNOWE. Mr. President, I rise today to discuss two amendments to the SBIR/STTR Reauthorization Act of 2011, S. 493, which would improve our oversight of the critical Small Business Innovation Research, SBIR, and Small Business Technology Transfer, STTR, programs.

First, I would note that S. 493, which I introduced in March with Senate Small Business Committee Chair MARY LANDRIEU, has broad, bipartisan support, and has the backed of divergent stakeholders who have long been at odds on how to proceed in reauthorizing these successful programs.

Our legislation includes a provision requiring the National Academy of Sciences, NAS, to continue its evaluation of the SBIR program. The NAS has produced a series of informative and groundbreaking reports on the SBIR program which helped inform Chair LANDRIEU and I as we sought to reauthorize this crucial initiative.

That said, the STTR program lacks any significant analysis or evaluation since its inception in 1992. While we can point to annual data provided by the Small Business Administration to demonstrate its effectiveness, it is critical that independent, outside experts explore the STTR program and make recommendations for how to improve it when we next consider reauthorization of these initiatives.

My first amendment would require that the NAS also evaluate the STTR program. Instead of a separate report, the NAS would be required to consider STTR in its ongoing evaluation of the SBIR program, which would be completed four years following enactment of the legislation. This would avoid expending additional resources necessary to produce an independent report on STTR during these difficult economic times.

Additionally, S. 493 incorporates a recommendation from the NAS landmark study to allow agencies to use three percent of their SBIR budgets for administrative, oversight, and contract processing costs. I am concerned, however, that Congress will not have adequate knowledge about how the agencies are utilizing this funding.

As such, my second amendment requires these agencies to submit a report each year to the relevant congressional committees detailing in a specific manner how they are using these administrative funds. These reports will allow us, in our responsibility of oversight, to ensure these taxpayer dollars are being used wisely, and to examine these agencies' spending choices for any waste or abuse. Additionally, it will help inform us of the need, or lack thereof, to continue this pilot initiative in future reauthorizations.

My amendments are simple, straightforward, good government initiatives that allow us to examine the effectiveness of these critical job creation programs, and to keep a watchful eye on how Federal agencies are utilizing taxpayer dollars. I would urge my colleagues to support them.

Mr. INOUYE. Madam President, our Nation continues to struggle out of the economic downturn that swept across the country a few years ago, and today, I am pleased that the Senate is considering S. 493, the reauthorization of the Small Business Innovation Research, SBIR, and Small Business Technology Transfer, STTR, programs. The Congress has worked toward improving the economic conditions for small businesses to survive these challenging times. It is important for us to sustain this incubator for high-tech innovation, research and development, and the driving force of our economic engine, our entrepreneurs. Today's global economy is only getting more and more competitive, and in order to maintain the United States' edge in science, technology, and engineering, opportunities to encourage small businesses through programs like the SBIR/STTR will benefit all of us.

I wish to highlight some of the successes in my home State, Hawaii, that were assisted by the SBIR/STTR program. Since the program began in 1983, the State of Hawaii has received 313 SBIR grants, for a total of $94.4 million. One of these companies is Referentia Systems Incorporated, an applied research and development company dedicated to providing relevant and innovative cyber security and network enterprise solutions to meet the critical needs of our national security and Federal Government. Referentia was started in 1996 with a staff of 30, and now employs 94 people at military bases throughout the Nation and overseas, with offices in Honolulu, HI; San Diego, CA; Albuquerque, NM; and Sterling, VA. In its earliest years, the fledgling small disadvantaged business secured its first SBIR Phase I award in 2004. Since then, Referentia was awarded 13 more SBIR Phase I and 7 SBIR Phase II grants. Three of Referentia's core building blocks were developed with SBIR grants. These include: LiveAction, for cyber security and network enterprises; Sprocket, for cross-boundary data conditioning and cross-enclave data transfer; and Time Series Rapid Exploration, or T–REX, for data storage and analysis. The result of the opportunities created for Referentia helped to position them in the growing and important cyber security market. These SBIR/STTR grants generated deliverable products that Referentia is working to transition into long-term programs of record with the Navy, Army, Marine Corps, and Joint Operations programs.

The discovery, energy, and motivation of our entrepreneurs also power the inquisitiveness we find in the fields of science, engineering, and high-technology development. Through the SBIR/STTR programs, the sustainability of small companies that benefited from the relationships they have formed doing SBIR/STTR work have encouraged partnering with large systems integrators and the government in an effort to seek solutions that address the evolving challenges we face. Another Hawaii small business that participated in the SBIR program is TeraSys Technologies, LLC. TeraSys Technologies secured a Phase I SBIR from Naval Sea Systems for the development of an interoperable solution for counter remote controlled improvised explosive devices and blue force communications. As a result of TeraSys Technologies' work on the SBIR Phase I, a Phase II award was made from the Joint Tactical Radio System office. I am pleased to report that TeraSys Technologies secured a Phase III award to support a high-priority requirement for our military's current engagement in the Middle East. The ultimate goal for TeraSys Technologies, and all companies that participate in the SBIR/STTR program, is to use their Phase III award toward securing a large production order of their product following the rigorous testing it has undergone, and will undergo in ''real-life'' conditions during the SBIR Phase III. Should TeraSys Technologies be successful in their efforts, it would be a boost to Hawaii's economy, and include final product integration in the State.

A few of the words describing any small business owner include energetic, creative, and highly motivated. Most of us believe that great strides or discoveries are made due to the research and development investments that large science, engineering, and technology companies make within various sectors. The understanding that small businesses drive our Nation's vibrant economy, and that high-tech businesses with less than 500 employees are extremely innovative spurred the SBIR/STTR programs' creation. The drive to grow their enterprises and bring their ideas to the marketplace may not always work out quite as they plan. On occasion, an entrepreneur is awarded an SBIR/STTR grant to solve one particular problem, and it leads to an unexpected opportunity. For example, in Hawaii, Navatek, Ltd., a company founded in 1979, and based in Honolulu, HI, has been producing innovation through research by developing, building, and testing at sea advanced ship hull designs and associated technologies. Navatek, a beneficiary of SBIR Phase I and II awards, originally presented its technology at the Navy Opportunity Forum 2010 for ''Dynamic Compensation for Towed Bodies.'' This particular project's intent was to help the Navy solve the problem of conventional small surface craft unable to

tow AQS–20 and AQS–24 mine hunting submersible sonar bodies. As it turned out, the SBIR Phase II indirectly advanced Navatek's aft lifting body invention, and led to an opportunity with the U.S. Special Warfare Command. Navatek continues to work toward securing a Phase III award, and highlights some of the unreported benefits that come from the SBIR/STTR programs.

I have provided the experiences of three small businesses in my home State. They, and other companies, are examples of the direct and indirect impact the SBIR/STTR programs' mission to foster and encourage innovation and entrepreneurship in the research and development activities of major Federal agencies. We can calculate how much programs cost the U.S. taxpayer, and the companies and jobs that resulted from the competitive nature of the SBIR/STTR programs. What we cannot quantify is the value of ensuring involvement by science, engineering, and technology entrepreneurs in research and development. The people of Hawaii, and all Americans, hope to provide a brighter future for their children. I firmly believe the future success of our children will depend on maintaining our competitive edge in the world. We must continue to uphold and reaffirm our commitment to the innovators and entrepreneurs in this country by completing our work on the SBIR/STTR reauthorization bill.

I yield the floor.

The PRESIDING OFFICER (Mrs. HAGAN). The Senator from Texas.

CONTINUING RESOLUTION

Mrs. HUTCHISON. Madam President, we are today making a small downpayment toward getting runaway Federal spending under control. The spending bill we will vote on today represents a $78 billion spending cut from that proposed by President Obama for this year. It will be $38 billion from what the Federal Government spent last year. We must address the spending binge our country has been on for the last 2, 4, 6 years.

Spending cuts have been actually ignored. We have increased spending in the name of stimulus. The problem is, that kind of spending didn't stimulate the economy in the private sector where the jobs are permanent.

At the beginning of this year, the President proposed a budget that would spend $3.7 trillion next year, with a $1.6 trillion deficit. The national debt is now $14.29 trillion. Under President Obama's budget plan, the national debt would double since he took office and triple by 2020. We then embarked on a vigorous negotiation on this year's budget. Republicans insisted on cuts beginning now, which is the middle of a fiscal year, which makes it very difficult because the spending levels are already in place for half a year. But we said: No, we need to start right now, even if it is hard, even if it is in the middle of the fiscal year.

There was a hard negotiation. We know that because we had a series of 1-, 2-, and 3-week continuing resolutions that allowed the government to go forward but did not make the final decisions on finishing the fiscal year, September 30, with cuts that were necessary.

Part of the negotiation was to avoid a government shutdown. I did not want a government shutdown. In the end, that costs more. It costs more to do all the changes that are necessary to shut down the government and then to make the changes necessary to come back and put it back online. We did the right thing by making those cuts, by taking that first step, and by not shutting down government so that so many people would have been left in the lurch: Federal employees—most certainly we were going to take care of our military, but they should not have had to worry about it—all of the people who had vacations planned, who had bought airline tickets and who wanted to go to national museums and parks. All people would have experienced some kind of disruption. It wasn't necessary if we did the amount of cutting, and we did.

We cannot rest because the real battle is going to be for cutting trillions, not billions. It is the trillions that are going to start getting the deficits down and bring our debt back into line.

To do as the President suggested earlier this year and freeze spending at this year's levels would have been like someone who was on a diet saying: I am just going to eat what I eat now and no more. But that doesn't mean that person would lose weight. We all know that.

Today the Federal Government is spending $4 billion every day that we don't act. We add $4 billion every day that we don't have, that is debt borrowed from somewhere else. We are borrowing 42 cents on every dollar we spend. Much of that is from the Chinese. And what are we doing? We are giving a bill to our children that is unsupportable. That is not just a problem for our grandchildren in the future; it is a problem for today.

This year our interest payments on this mountain of debt have already cost us $190 billion. By 2020, if we go at this rate, annual interest payments on the national debt will more than double to approximately $778 billion a year. Now we are going to $¾ trillion just for interest payments. We cannot allow that to happen.

The President made a speech yesterday. It was a call for action. Unfortunately, I believe the President called for the wrong action. The President said we have to have taxes go up and we have to have spending that goes down together. He proposed raising $1 trillion in tax increases. That is $1 trillion in higher taxes for small business, $1 trillion in higher taxes for family farmers. That is not going to help the economy come out of the doldrums. Who is going to be able to hire people if they are going to have a tax burden and a regulatory burden that is going to keep them from being able to expand their operations?

Washington has a spending problem, not a taxing problem.

We wasted $1 trillion in failed stimulus spending in the first 2 years of the Obama Presidency. Now he is raising taxes by $1 trillion in the second half of his Presidency to pay for a stimulus package that didn't work? That does not make sense.

The President also believes that a stronger Federal Government, a more powerful Federal Government is the answer to our problems. He proposed yesterday to address Medicare and Medicaid costs by expanding upon the health care reform bill that was pushed through on a completely partisan vote and that already is going to increase government. It is going to increase costs, and cuts to Medicare are going to pay for part of that increase. The President would give more power to the unelected bureaucrats on his new independent payment advisory board that is there to cut Medicare payments and reimbursements to doctors. We do not need a bigger, more powerful Federal Government to address the issues of this mounting debt.

We are going to have a vigorous debate on what is the right answer: more powerful Federal Government and more taxes versus a smaller, more restrained Federal Government that promotes growth in the private sector to make our economy go. We are approaching the limit on the Federal debt ceiling. That is where we must take a stand. That is where we have to draw the line in the sand and say: No more. We cannot raise the limit on the Federal debt without reforms taking place that will show that over the next 10 years we have a plan, and the plan is to cut back on the deficit every year.

I think a total of around $6 trillion in cuts over a 10-year period is a responsible approach. We will debate some of the things in the proposals that have been put forward: what are the priorities in spending, what will promote growth, what will promote jobs. But we must have a plan before we raise the debt ceiling.

Republicans and Democrats can agree on one thing: We do need a combination of spending cuts with revenue increases to get to the trillions that are needed to cut this debt. But the way we define revenue is the answer. The Democrats say revenue means tax increases. The tax increases are on people who would do the hiring to grow the jobs. So we are putting a damper on the ability to reinvigorate the economy.

Republicans are going to argue that the revenue comes from creating jobs, from having more people employed, so they can help with our economy and try to help bring revenue in by being employed in the private sector.

Republicans believe the way to create revenue is by building a vigorous

economy, to have people working so they are contributing to the economy, not having people who are forced to take benefits because they cannot find a job in this stagnant economy that we all have acknowledged is here.

Today, I hope all of us will agree to take the first steps on the responsible spending cuts that will get us through the end of this fiscal year. I hope we will come together on next year's budget. The 2012 budget is what we are having hearings on. I had a hearing this morning with the Secretary of Commerce—the FBI Director earlier this week—to assure that we are spending for 2012 in a limited, responsible way and covering the needs of our country and also making the investments that will spur growth in our economy.

But the big debate we are going to have is on increasing the debt limit. At $14.29 trillion, we must do it with reforms that show the world that is buying our debt that we are going to have a responsible way to pay them back. I do not want the Chinese to raise the interest rates because they are worried about whether we have the political will to pay them back.

We will have the political will to do it if we cut spending, if we increase revenue through job growth, not taxes. We will show the world the debt is good and that interest rates should stay low and that we should work to have good trade agreements so we can build up our jobs and buy things from outside, and those economies will flourish so they can buy our products. That is what would be a win for everyone, and that is what we will be promoting in the next few months in Washington.

I yield the floor.

The PRESIDING OFFICER. The Senator from Montana.

INTERCHANGE FEES

Mr. TESTER. Madam President, I rise, once again, on behalf of rural America. Many folks do not understand rural America. They often get painted in broad brush strokes in a way that does not reflect the reality we face. The Montanans who elected me sent me to bring common sense to the debate over issues that impact rural America.

One issue where there is not a lot of common sense is the issue of debit interchange. There is also a lot of misinformation out there about this issue.

I have been concerned about the unintended consequences of this proposed rule since the Senate voted on the provision last year. That is why I voted against the amendment when it came to the floor for a vote. Over the past few months, I have been attacked by the big box retailers and called just about every name in the book.

My legislation to study the impact of the Fed's proposed rule has been called a bailout. That is pretty interesting, since I was the only Democrat in the Senate to vote against both bailouts. Only in Washington do people say you are killing a bill by making sure it does what we want it to do.

I certainly do not think the goal of the interchange amendment was to engage in price fixing. I do not think folks were trying to hurt consumers or small community banks and credit unions. But now we know the impact of this provision is far different than the information we had when we passed the amendment.

Now we know that the regulators tasked with implementing this rule think it may not work at all. When we passed the amendment, we were told small banks and credit unions would receive an exemption from the swipe fee rule. Since there has been a lot of misinformation on this issue, let me share these comments directly with my colleagues.

In a Banking Committee hearing in February, Chairman Bernanke referred to the exemption for community banks and credit unions, and he said:

> We are not certain how effective that exemption will be. There is some risk that the exemption will not be effective and that the interchange fees available through smaller institutions will be reduced to the same extent that we would see for larger banks.

That means the Chairman of the Federal Reserve—the guy in charge of implementing the interchange rule—does not think it will work for credit unions or for small mom-and-pop community banks.

This is common sense. When you set a price cap, big box retailers will use their market share to force the little guys to meet the lower fee.

At the same hearing, FDIC Chairwoman Sheila Bair confirmed this, saying:

> It remains to be seen whether they—

These are credit unions and community banks—

> can be protected with this. I think they're going to have to make that up somewhere, probably by raising the fees that they have on transaction accounts.

That means our credit unions and small community banks will be cutting back—cutting back on things such as free checking or ending it altogether, charging more for loans, cutting back on services to low- and moderate-income folks in rural America.

Despite being tasked with the job of implementing the small bank exemption, the Fed cannot guarantee that the exemption will work in practice. Because despite what some may say, the Federal Reserve cannot control markets. It cannot ensure that this provision will work since market forces will drive rates down for the community banks and credit unions.

No one doubts that rural America's small businesses will be significantly affected by regulating debit card interchange fees. Yet the true and full effects of this regulation on small businesses are not being fully discussed or fairly portrayed.

This amendment was an attempt to address a problem. But when you control prices, as this amendment does, you also invite unintended consequences.

At first, it might make sense that if you reduce debit card swipe fees, then small businesses will benefit. But once you take a closer look, you find a host of potential problems for small businesses and no guarantees that consumers will benefit one lick.

For instance, a recent study says that only 10 percent of small businesses are in retail and in a position to accept debit cards. But that same study also says most small businesses have checking accounts and use debit cards to pay for things they need to run their businesses. These businesses will end up paying more for basic services such as checking accounts and they will see more fees and consumers will be no better off. In short, this limit is bad for small businesses, and it is bad for consumers. Which banking services are likely to be more expensive—or disappear entirely—as community banks and credit unions seek to make up lost revenue? Well, free checking, for one. Millions of Americans have had checking accounts and debit cards because they are free. If banks and credit unions are forced to charge for these services, many business owners and consumers would suffer the consequences.

Because the Fed's rules do not allow banks to cover the costs of debit transactions, banks of all sizes are considering limits on credit card purchases. Moms using their debit cards at the grocery store may have to limit their grocery purchases to $50 or $100.

So what is the alternative? Well, put it on a credit card. But that is a tough option for struggling families. Low- and moderate-income families may not have access to credit or may have already maxed out their credit card. Pushing consumers toward credit is not good for small businesses either because the interchange fees on credit card purchases are higher than those on debit cards.

In a recent survey, three-quarters of community banks reported considering imposing annual or monthly debit card fees. Three-fifths of them would consider imposing monthly fees on checking account customers. If they start charging folks for just having an account, you can bet these folks will not be customers for long. In the long run, that will devastate rural America.

What does that mean for small businesses that rely on those community banks and credit unions? Without a doubt, the small businesses and communities across Montana rely on community banks and credit unions to keep their doors open, to grow their businesses, and to create jobs. These Main Street institutions are the backbone of this Nation's small businesses.

In fact, according to a recent National Federation of Independent Business report, most small businesses do their banking with smaller institutions. Community banks provide the bulk of small business lending in rural

communities and small business owners receive better treatment from community banks. That is because in rural America a community bank is part of that community. A handshake still matters, and the folks on both sides of the table can look each other in the eye and be accountable to one another. We are not going to find that on Wall Street.

Community banks do the lion's share of lending with the youngest and smallest of small businesses—those best positioned to create new jobs as we merge from this recession.

Make no mistake about it. The price caps called for by this Durbin amendment will lead to fewer debit cards offered by community banks and credit unions. It will limit the size of debit card transactions, and it will end free checking for small businesses, as they rely on these institutions.

These changes will limit the ability of small businesses to conduct daily business. They will increase banking costs and could limit the lending capability of smaller institutions. These changes come at a time when many small businesses are already fully leveraged and have few other options available.

So what does this mean for small business in Montana?

For a contractor in Kalispell, it means he will not be able to use his debit card to buy lumber. It will mean the end of free checking. I know of too many businesses that do not have the option of increasing their lines of credit with their bank or that have maxed out a credit card weathering this recession. Those are the circumstances folks are forced into, and those are the circumstances that limit our economy.

What will this mean for community banks and credit unions that are competing for the business of these small businesses?

Community banks and credit unions play an instrumental role in our economic recovery by providing loans to small businesses so these businesses can grow and hire new employees.

Smaller banks treat small businesses better. But smaller banks do not have the means to make up for the lost revenue from this Federal mandate, and they do not have the volume to make up this revenue elsewhere such as bigger banks do.

One of the more troubling findings from the NFIB report I referenced earlier is the fact that community banks have been losing market share nationwide. The report found that the percentage of small businesses served by local banks fell from 31 percent to 25 percent between 2009 and 2010. My concern is that this proposed rule will further harm this loss of market share by community banks. It will lead to further consolidation in the banking industry.

Community banks and credit unions simply cannot compete against Wall Street unless they provide products such as debit cards. They simply cannot make up this revenue elsewhere, and they cannot compete unless they provide these services.

This notion that some have raised that these proposed rules are a slam-dunk for small businesses—it is simply false. Unfortunately, this is one of the many misconceptions that have been put out there.

For example, based on statements I have heard, some would have you believe we have been working and analyzing the debit interchange issue for years, talking about all the hearings we have had on this topic.

The truth is, however, quite different. There has been just one Senate hearing on this issue since 2006, and it was regarding the interchange fees paid by the Federal Government. The Judiciary Committee has looked at antitrust issues, but they have never addressed the ramifications of this amendment—never. No one has been able to explain to me why studying the impact of this rule is a bad idea.

Am I suggesting the debit interchange system is without fault? Absolutely not. But we should not move forward with a rule that will create a whole new set of problems and will hurt community banks and credit unions until we have fully studied the impact. If we do not measure twice and cut once, we are bound to create a whole new set of problems that will hurt small businesses and consumers.

I sure would not have stepped into the middle of this fight if I did not think it was critical to the survival of rural America, and to the jobs and livelihoods of the people who live there. I am in this job not because I am known as a guy who stands for big banks or Wall Street—far from it. I am the guy in my party who voted against TARP and against the automaker bailout.

I am in this job because rural America needs a voice at the table. Rural America needs someone on their side, to make sure rural communities and Main Street businesses do not get stuck with the short end of the stick when the Senate makes policies such as this one.

We need to stop. We need to study. We need to make sure we are doing the right thing. Therefore, I ask my colleagues for their bipartisan support on a responsible bipartisan bill to delay this rule so we can have time to study the consequences of this rule—both intended and unintended. Our economy cannot afford to let this go into effect.

I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

A SECOND OPINION

Mr. BARRASSO. Madam President, I come to the floor as someone who has practiced medicine in Wyoming, taking care of families all across the Cowboy State for almost one-quarter of a century. I come as a doctor giving a second opinion, as I have done week after week about this broken health care law that people all around the country are now very concerned about and the impact it is going to have on their own personal lives.

We started the whole discussion and debate about health care that the American people knew what they wanted: They wanted the care they need, from a doctor they want, at a cost they can afford. What we have gotten is something that does not provide that at all.

I saw today in the Washington Post, under the headline ''Budget Showdown,'' comments about the President's speech yesterday to the Nation. He did talk about Medicare and did talk about Medicaid. I believe that speech was very short, inadequate on the details.

It was interesting to see what the Washington Post said about Medicaid. It said:

> . . . a senior administration official, speaking to reporters on the condition of anonymity, said that . . . ''the details have not been worked out.''

So we have an anonymous source, working in the White House, talking to reporters, admitting that the details have not been worked out.

Yesterday, people heard the President's speech on spending, but it seemed to be higher on political attacks than it was on substantive speech—the things we need to be seriously discussing and debating in this country about a huge debt problem with which we are living. The President did mention one bit of substance, though, that should concern the American people. He said:

> We will slow the growth of Medicare costs by strengthening an independent commission of doctors, nurses, medical experts, and consumers who will look at all the evidence and recommend the best ways to reduce unnecessary spending while protecting access to the services seniors need.

What this is is a Washington commission—a commission created in the health law that many know as IPAB. It may sound harmless. It stands for the Independent Payment Advisory Board. Americans, I believe, need to know more about the details as to how this will actually work.

Many Americans may not remember that the health care law created this unelectable, unaccountable board of Washington bureaucrats who will be appointed by the President, and the sole purpose is to cut Medicare spending based on arbitrary budget targets. These are cuts above and beyond the $500 billion that was taken from a nearly bankrupt Medicare Program, not to save Medicare for our seniors but to create a whole new government entitlement program for someone else. This board empowers 15 unelected Washington bureaucrats to make these Medicare cuts, all without full transparency and accountability to America's seniors and to elected officials.

So, once again, this board proves that the President and the Democrats in Congress who voted for the health

care law simply didn't have the political courage to make the tough spending decisions themselves. Instead, they took the easy road. They pulled the classic Washington maneuver—to create a board and punt the decisions to them.

Congress gave this board its authority to manage Medicare spending. I didn't vote for it. Members of my side of the aisle didn't vote for it. But this is part of the health care law that was crammed down the throats of the American people. Congress abdicated its responsibility to explain to the American people specific payment changes necessary to keep Medicare solvent.

Let's take a look at what happens when this board actually makes a recommendation. The recommendation becomes law. The recommendation becomes law. How can we prevent that from becoming law? The recommendation will become law unless the House and the Senate each adopt—not by simple majority—each adopt by a three-fifths majority a resolution to block them. That is not enough. First, three-fifths of the House, then three-fifths of the Senate, resolutions to block what this board is recommending. Then the House and Senate have to pass legislation to achieve equivalent savings of what this board claims to be saving by the care they deny.

This is an incredible concentration of power that should belong in Congress to a board of unelected—unelected—individuals who are appointed by the President.

Is there concern about this? In the House of Representatives, there is. There has been a repeal provision created that would repeal this board, and I will tell my colleagues it is a bipartisanly cosponsored attempt to repeal this provision.

So that is what we are looking at now. Why? Because the President and the Democrats refused to take a leadership role and chose to punt this down the road. They simply threw up their hands and said let someone else do it. This is not health reform that is good for patients, for the providers, the doctors and nurses who take care of those patients, or for the taxpayers.

Fortunately, Senator CORNYN of Texas has introduced the Health Care Bureaucrats Elimination Act. This bill would repeal this board in order to ensure that the doctor-patient relationship that is important to quality health care for all Americans is maintained. I am happy to cosponsor that with Senator CORNYN. We will continue to fight to repeal and replace this very broken health care law.

Thank you, Madam President. I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Madam President, shortly we are going to be having three votes. One vote will be on the budget for our current fiscal year that began on October 1 and ends on September 30 of this year. I think we have talked about that vote at some length. I took the floor yesterday and explained how the negotiated budget for this year is far better than the Republican-passed budget in the House of Representatives, the original H.R. 1. I pointed out how a budget represents the vision for our future, that it is a policy document. I far prefer the agreement that was reached that preserves America's ability to have a competitive workforce.

I pointed out yesterday, and I will repeat again today, that the budget we will vote on will maintain most of the funding for NIH basic research, which is critically important for innovation in America. That is the basic research that is used by our high-tech companies so America can outinnovate our competitors, whereas the House-passed budget would have cut $1.4 billion from NIH research, or how the agreed-to budget will provide for job training and Job Corps pretty much at the current rates, whereas the Republican-passed House budget would have eliminated most of the funds for job training and 40 percent of the funds for the Job Corps; or, for our students and Pell grants, maintaining the funding so students can continue to receive $5,550 maximum under Pell grants. As I pointed out, college education tuition is going up. The House-passed budget would have cut 15 percent off of that program.

I think perhaps the one that really points to the major difference between where the Republicans were on the budget and what we finally ended up with is the Head Start Program. The Head Start Program has worked very effectively in all of our States. Children who participate in Head Start do much better in life. We know that. The House-passed budget would have cut the number of children in Head Start by 218,000, eliminating 55,000 teachers and assistants from the Head Start Program. I am pleased the agreement reached will maintain all services at Head Start so all of our children can continue in that program.

The list goes on and on about the compromises that were reached. I wish to make clear this was a true compromise. It is not what the Democrats wanted or what the Republicans wanted. It is going to be painful. There is a lot I would like to have seen done differently.

I wish to point out that the GSA budget is going to be reduced by $1 billion. At the White Oak facility in Maryland for the FDA, we are doing some critically important construction work to bring together the different participants for the safety of Americans. That program is going to be severely slowed as a result of the cut to the GSA budget.

I pointed out yesterday that on the environmental front regarding the Endangered Species Act, there is a provision that delists the great wolf. That shouldn't be targeted for congressional action. That is a dangerous precedent for us to set.

I pointed out that the Community Development Block Grants are cut. Even though the EPA budget which would have been cut by 30 percent with the House-passed budget—we bring that down by 50 percent, so it is only a 15-percent cut, but a 15-percent cut is too large of a cut for the Environmental Protection Agency. The good news is we were able to remove those policy riders that would have prevented the Environmental Protection Agency from protecting the environment, protecting our public health. Those were eliminated.

I wish to speak for the next few minutes about the other two votes that will be taking place on the floor in a few moments. They are votes on what are called correcting resolutions. Let me explain this, because I think it might surprise some of the people to learn we are not talking about the amount of dollars that is going to be appropriated in this current year's budget. These are restrictions as to how money can be spent, so it deals with a philosophical agenda, not a budget agenda. This is not about reducing the deficit; this is about trying to impose a philosophical position on the budget for this year. Let me talk about the two correcting resolutions which I am going to urge my colleagues to vote against. One would restrict funds going to Planned Parenthood—women's health care issues—which I call the war on women. This deals with title X funding.

Title X funding is used for preventive health services such as cervical cancer screenings, breast cancer screenings, immunizations, diabetes and hypertension testing, sexually transmitted disease testing and treatment, HIV testing and referrals. Not one dime of Federal money can be used for abortions. That is the current law, the current prohibition.

Currently, there are approximately 5 million people who benefit from title X funding with over 4,500 clinics across the Nation. Ninety-one percent of the people who take advantage of these clinics have no health insurance. Less than 25 percent of title X funds go to Planned Parenthood. Planned Parenthood spends approximately 3 percent of its total budget on abortion services, not one dime of which is Federal funds—not one dime of which is Federal funds. So this is not about abortion; this is about whether we are going to be able to provide preventive care to our most vulnerable in America. It is an attack on women, because women are the basic beneficiaries of title X funds. It is going to cost us more money for the use of emergency room services. It makes no sense at all. It is certainly counter to what we all say we want, and that is gender equity in health care in America.

I urge my colleagues to vote no on that correcting resolution.

The second correcting resolution is an attempt to repeal the affordable

care act that we celebrated the anniversary of a few weeks ago. If you are a senior, you should be concerned about this vote, because now you have a wellness exam annually under Medicare that is reimbursed, so you can take care of your own health care needs. That would be put in jeopardy.

If you are one of the 3.2 million Americans who fall within the so-called doughnut hole, or the coverage gap for prescription drug coverage, you should be concerned about the repeal. If you got $250 last year, you are going to get 50 percent of the cost of your brandname prescription drugs covered and, by 2020, we are going to close the doughnut hole altogether. That would be eliminated if this correcting resolution were passed. Seniors should be pleased that at least we were able to extend the solvency of the Medicare Program by 10 years.

Frankly, you should be worried about whatever efforts are being made here to privatize the Medicare system, making seniors pay more for their health care. It starts with this vote later today where we can reject the efforts to turn back the clock on Medicare where seniors would have to pay more.

If you are a small business owner, you should be pleased by the tax credits that are now available and which this correcting resolution would take away, making it more expensive for employers to provide health care for their employees.

If you are a consumer and are now able to cover your child up to age 26—1.2 million Americans—the correcting resolution would turn the clock back on the progress we have made on fighting the abusive practices of private insurance companies in dealing with preexisting conditions. If you have a child with asthma, now you can get full coverage. If we turn the clock back by approving that correcting resolution, you will be at the mercy of private insurance companies to provide coverage, which is very unlikely to happen.

I can talk about emergency room visits where some insurance companies require preauthorization. I don't know how you get preauthorization when you need to go to an emergency room. We corrected that in the affordable care act. Once again, the correcting resolution we are being asked to vote on will turn the clock back on that, putting people at the mercy of private insurance companies as to whether they will cover emergency room visits.

If you are a taxpayer, which is what we are talking about today with the budget, you should be very much concerned about this correcting resolution because by turning back the clock on the affordable care act, it will cost the taxpayers over $1.5 trillion over the next 20 years. So it is tailored to your need. If you have pride, as I do, that America has at long last said that health care is a right, not a privilege, and recognize that we need to do more to improve our health care system, you want us to move forward and talk about the health care issues and try to improve our health care system; you don't want us to turn the clock back.

The large number of people who have no health insurance or have restricted coverage because of the abusive practices of private insurance companies or the inability to cover children after they graduate from college—that has now been corrected. We certainly don't believe a correcting resolution would take that away from us.

We are going to have three votes. I urge my colleagues to vote against both of these correcting resolutions. They are attacks on women's health care issues and attacks on quality health care for all Americans. We need to pass the budget, and these correcting resolutions should be defeated.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa is recognized.

Mr. GRASSLEY. Madam President, I ask unanimous consent for 5 additional minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

WHISTLEBLOWERS

Mr. GRASSLEY. Since January, I have been investigating allegations from whistleblowers at the Bureau of Alcohol, Tobacco, and Firearms. The allegations I have received are shocking, but sadly they appear to be true. Praise the Lord for the whistleblowers in this government because we don't know where the skeletons are buried, and they help us to do our constitutional role of oversight and the checks and balances of government.

The ATF, which is supposed to stop criminals from trafficking guns to Mexican drug cartels, was actually making that trafficking of arms easier for them. That would be bad enough if it happened because of incompetence or turf battles, but it looks as if the agency was doing this on purpose. The government actually encouraged gun dealers to sell multiple firearms to known and suspected traffickers.

Two of those guns ended up at the scene of a murder of a U.S. Border Patrol agent in Arizona. His name was Brian Terry. His family deserves answers from their very own government. I have been fighting for those answers. I have written eight letters to the Justice Department. I have asked for documents. I have asked that specific questions be answered.

At first, the Justice Department simply denied the charges. Then one of the whistleblowers went on television. He risked his career to tell the truth on ''CBS Evening News.'' He had a sense of duty to Agent Terry's family and, in turn, to the entire population of this great country. He could not believe his own government refused to come clean and tell the truth when questioned by this U.S. Senator. He went public to set the record straight.

Other whistleblowers have confirmed what this whistleblower said. In fact, I received internal government documents that confirmed what he said. Anonymous patriots tried to ensure that the truth would come out. You know, that is about the only crime whistleblowers commit—committing truth. Isn't that sad?

I forwarded many of those documents that I received clandestinely to Attorney General Holder and Acting Director Melson. I asked them how to square the denials from that Department with the evidence I have received both orally and on paper.

At Attorney General Holder's confirmation hearing—now 2 years ago—I told him:

> I expect that you will be responsive to my oversight work and that my questions and document requests will be taken seriously. . . . I hope that I have your assurance that if you are confirmed, you will assist me with oversight activities, be responsive to my requests, and help me make the Justice Department accountable.

Now, the Attorney General, who was the nominee at that time, responded:

> I will try to do all that I can to make sure that we respond fully and in a timely fashion to the very legitimate questions that I know you have propounded to the Department.

But now, ironically, I have provided more internal documents to the Justice Department in this investigation than the Justice Department has provided to me. Now, instead of issuing denials, do you know what happened? It happens all the time when you are doing oversight work, with almost any agency. But in this case, the Justice Department has circled the wagon. They have clammed up.

The President of the United States admitted on Spanish language television that ''certain mistakes'' may have been made here in the instance of this investigation. He and Attorney General Holder say they didn't authorize a policy change that allowed criminals to walk away with guns. But there was a change in policy that went tragically wrong. The prophecy of a lot of whistleblowers turned out to be fact, sadly. So Congress needs to find out what did the highest senior officials know and when did they know it.

The purpose of the policy change was to go after leaders high up in the chain of command and bring down a drug cartel. Nobody can find fault with that. But prosecutors didn't want to just go after criminals who just lie on Federal forms to buy guns for trafficking; they wanted to go after the really big fish. The problem is this: They let so many little fish keep operating that between 1,300 and 1,700 guns got away. That is just in this one case in Arizona that I can document. Hundreds of these guns have, in turn, turned up in crimes on both sides of the border—some in Mexico and some in the United States.

Federal agents often have to walk a fine line in trying to catch the bad guys. They sometimes have to allow a crime to progress to make sure everyone involved in the conspiracy gets caught. I understand that. That can be

legitimate, but you have to look at it this way. It is very serious business. It is quite a gamble, you might say. There have to be careful controls in an operation like I just described. Law enforcement should not cross the line into actually assisting criminals just for the simple process of gathering information. Operations should be carefully focused on stopping crime without risking public safety. Seizing contraband and making arrests are the most important goals. Big, headline-grabbing cases to advance some prosecutor's career should take a backseat in any of these gambles.

Yesterday, I sent a letter to Attorney General Holder with some more documents. So I am sending the Department documents I would like to have them send me. These are documents that maybe the Attorney General himself didn't know about.

There are e-mails between a federally licensed firearms dealer and the supervisor in this Arizona case known as ''fast and furious.'' In one e-mail, the dealer raises, for a third time now, his concerns about how the case is being handled. This time, he was prompted by a story on FOX News about the growing firearms problem on our border with Mexico. The dealer wrote—and this is a long quote which I will start now:

The segment is disturbing to me. I shared my concerns with you guys that I wanted to make sure that none of the firearms that were sold per our conversation with you and various ATF agents could, or would ever, end up south of the border and in the hands of the bad guys. I want to help ATF with its investigation, but not at the risk of agents' safety, because I have some very close friends that are U.S. Border Patrol agents in southern Arizona.

Now, maybe one of those friends, for all I know, was Agent Terry, and he got murdered—or at least we think he did—with one of these guns. These guns were at the scene, at least. That e-mail I quoted was sent to the supervisor of the case 6 months before guns from that case were found at the scene of Border Patrol agent Brian Terry's murder.

The government put these firearms dealers in a completely unfair position. Let me explain that. On the one hand, these gun dealers rely upon the Bureau of Alcohol, Tobacco, and Firearms for their license to even be able to be in business. So of course these dealers want to cooperate with the government when they have this big club hanging over their head: Will you be licensed or not? On the other hand, the government asks these gun dealers to keep selling to the bad guys even after the dealers warned it might end in tragedy.

I am going to do whatever it takes to get to the bottom of this. The House Oversight Committee has joined in my effort and issued a subpoena for documents because it might duplicate the process in the House.

I have not sought any subpoenas or hearings in the Senate Judiciary Committee yet. I have not exercised my right to object to any unanimous consent request on nominations because of this issue yet. However, I want my colleagues and officials at the Justice Department to hear this loud and clear: If that is what it takes, then I will take those actions. I hope it doesn't have to come to that. I hope the Justice Department will decide to cooperate and provide the information we need, doing our constitutional responsibility of oversight, to make sure the checks and balances of the system of government under our Constitution is working. It has been nearly 3 months since I first raised this issue. It is past time for the Justice Department to come clean.

I ask unanimous consent to printed in the RECORD a copy of this letter to Attorney General Holder.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

U.S. SENATE,
COMMITTEE ON THE JUDICIARY,
Washington, DC, April 13, 2011.

Hon. ERIC H. HOLDER, Jr.,
Attorney General, U.S. Department of Justice, Pennsylvania Avenue, NW., Washington, DC.

DEAR ATTORNEY GENERAL HOLDER: At approximately 1:30 p.m. yesterday, my staff learned that the Justice Department was making four documents available at 2:00 p.m. for Chairman Darrell Issa's staff to review regarding the controversy over ATF's Project Gunrunner, Operation Fast and Furious, and the death of Border Patrol Agent Brian Terry. These documents are among those I requested in February of this year. Yet, the Justice Department refused to make them available for my staff to review. In fact, the Justice Department has produced not one single page of documents in response to my inquiries.

Thus far, I have not requested that Chairman Leahy join in any document requests, consider any subpoenas, or schedule any hearings into this matter in the Senate Judiciary Committee. Any such request would be unnecessary and duplicative of the process on the House side, so long as any documents provided there are also provided to the Senate Judiciary Committee at the same time.

The Department's failure to cooperate with my requests is especially troubling in light of the February 4, 2011, reply to my initial letter. In that reply, the Justice Department took the position that those allegations were ''false'' and specifically denied ''that ATF 'sanctioned' or otherwise knowingly allowed the sale of assault weapons'' to straw purchasers. The letter further claimed that ''ATF makes every effort to interdict weapons that have been purchased illegally and prevent their transportation to Mexico.''

I already provided evidence contradicting that denial in my February 9 and March 3 letters. In addition, attached you will find further documentation undermining the Department's assertion. Specifically, the documents are emails between ATF officials and a Federal Firearms Licensee (FFL) in Arizona. These emails demonstrate that ATF instructed gun dealers to engage in suspicious sales despite the dealers' concerns. The emails refer to meetings between the FFL and the U.S. Attorney's office to address the concerns being raised by the FFL. ATF supervisor David Voth wrote on April 13, 2010:

I understand that the frequency with which some individuals under investigation by our office have been purchasing firearms from your business has caused concerns for you. . . . However, if it helps put you at ease we (ATF) are continually monitoring these suspects using a variety of investigative techniques which I cannot go into [in] detail.

In response, the gun dealer expresses concern about potential future liability and sought something in writing to address the issue explicitly:

For us, we were hoping to put together something like a letter of understanding to alleviate concerns of some type of recourse against us down the road for selling these items. We just want to make sure we are cooperating with ATF and that we are not viewed as selling to bad guys.

Following this email, the ATF arranged a meeting between the FFL and the U.S. Attorney's office. According to the FFL, the U.S. Attorney's office scheduled a follow-up meeting with the FFL, but asked that the FFL's attorney not be present.

At the meeting on May 13, 2010, the U.S. Attorney's office declined to provide anything in writing but assured the gun dealer in even stronger terms that there were safeguards in place to prevent further distribution of the weapons after being purchased from his business. As we now know, those assurances proved to be untrue. On June 17, 2010, the gun dealer wrote to the ATF to again express concerns after seeing a report on Fox News about firearms and the border:

The segment, if the information was correct, is disturbing to me. When you, [the Assistant U.S. Attorney], and I met on May 13th, I shared my concerns with you guys that I wanted to make sure that none of the firearms that were sold per our conversation with you and various ATF agents could or would ever end up south of the border or in the hands of the bad guys. . . . I want to help ATF with its investigation but not at the risk of agents' safety because I have some very close friends that are U.S. Border Patrol agents in southern AZ[.]

Incredibly, the FFL sent this email six months before guns from the same ATF operation were found at the scene of Border Patrol Agent Brian Terry's murder. So, not only were the ATF agents who later blew the whistle predicting that this operation would end in tragedy, so were the gun dealers—even as ATF urged them to make the sales.

Furthermore, according to the FFL, there were ''one or two'' occasions on which his employees actually witnessed and recorded with surveillance cameras an exchange of money between the straw purchaser and another individual on the premises. Despite this actual knowledge of a straw purchase, the dealer said ATF officials wanted him to proceed with the transaction. However, his employees refused to process the sale.

In light of this new evidence, the Justice Department's claim that the ATF never knowingly sanctioned or allowed the sale of assault weapons to straw purchasers is simply not credible. As you know, I have multiple document and information requests pending with various components of the Justice Department. Unfortunately, however, it appears that senior Department officials are not allowing the components to respond fully and directly.

Please provide written answers to the following questions by no later than April 20, 2011:

1. Do you stand by the assertion in the Department's reply that the ATF whistleblower allegations are ''false'' and specifically that ATF did not sanction or otherwise knowingly allow the sale of assault weapons to straw purchasers? If so, please explain why in light of the mounting evidence to the contrary.

2. Will you commit to providing the Senate Judiciary Committee with documents, or access to documents, simultaneously with the

House Committee on Oversight and Government Reform? If not, please explain why not.

If you have any questions regarding this request, please have your staff contact Jason Foster at (202) 224–5225. Thank you for your prompt attention these important issues.

Sincerely,

CHARLES E. GRASSLEY,
Ranking Member.

Mr. GRASSLEY. How much time do I have?

The PRESIDING OFFICER. The Senator has 4 minutes remaining.

IMMIGRATION

Mr. GRASSLEY. I want to talk about immigration and a part of the immigration issue that concerns me, and, by golly, it has something to do with government oversight as well.

Last August, some lawyers at the U.S. Citizenship and Immigration Service drafted internal memos outlining ways that the administration could get around Congress and grant undocumented aliens in the United States legal status. These amnesty memos outline ways that the executive branch could use discretionary authority to make sure thousands—who knows, maybe millions—of people here illegally could stay here without a vote of Congress.

A number of Republicans sent a letter to President Obama urging him to abandon any such plan. We sent several letters to Homeland Security Secretary Napolitano asking for statistics and a briefing on these memos. We asked for assurances that such plans to bypass Congress—I emphasize ''plans to bypass Congress''—not be implemented. What did we get? All we got was radio silence.

I raise this issue again today because I am bothered by reports that there is another push for this administration to grant amnesty through Executive order, which only should be done by the law of this Congress, to certain groups of undocumented populations. Surprisingly, the push for this is coming from our friends on the other side of the aisle. Yesterday, 22 Democrats sent a letter to President Obama asking him to turn a blind eye to the law. These 22 Senators said they were OK with having an executive branch go ahead and go around Congress and grant amnesty to those who would be eligible under the so-called DREAM Act. These Senators said they didn't have the votes to get the bill through the Senate last year.

Their approach is in a nonconstitutional fashion to ask the President to have his administration use what is referred to legally as prosecutorial discretion to keep these undocumented individuals here. They claim doing so would be ''consistent with our strong interest in the rule of law.'' They say doing so would ''help to conserve limited enforcement resources.''

I am appalled, and I hope a lot of my colleagues on both sides of the aisle are appalled, that Members of this body think that an Executive order to grant amnesty behind our backs is not an assault on the democratic process. Congress has the power to change immigration laws and only Congress has the power to change immigration laws. The President has limited authority to grant relief in limited and emergency circumstances. I support the President's power to do that, but it was not meant to be used in a blanket fashion. The request by 22 Members of this body is an affront to our country's longstanding belief in the rule of law, and it is an attack on this body's duty to legislate on behalf of the American people, a power to legislate that the President does not have.

I happen to agree that our immigration policies have to be reformed. I will commit to moving legislation that expands upon or improves the legal avenue we currently have in place. Once again, we have not seen leadership by this President to work on a bill this Congress can support. Until that time comes, it would be foolish and disappointing if this President circumvented the democratic process and did what 22 Members of this body asked him to do in the letter to which I referred.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

CONTINUING RESOLUTION

Mr. BLUMENTHAL. Madam President, I rise near the end of this very important and profoundly significant budget debate to make some points not only about the dollars and cents in our health care system, but also to speak about a growing and persistent threat—the threat of irresponsible cutbacks to vital health care services for our Nation's most vulnerable—in the name of an ideological war on women's health care.

Our Nation is in the midst of a fiscal crisis. We need to recognize that there is a very immediate and important imperative to cut the costs of health care in this country. The costs of health care are spiraling out of control at a rate five times the rate of inflation.

The President, commendably, is talking about the need for serious measures and sensible conversation about what can be done to control and reduce the costs of health care. Just this week, the administration initiated Partnership for Patients, which is another step in the President's continuing efforts, and I believe this body's continuing efforts, to prevent and reduce needless costs to our health care system. For example, reducing the incidence of readmissions to hospitals and providing for better outpatient treatment after people are out of the hospital; reducing the incidence of hospital inquired infections; to reducing the incidence of overprescription—or misprescribed drugs—these kinds of costs are preventable. We have an obligation to reduce those costs in health care when they are preventable.

Higher quality at lower cost has to be our objective. And, lowering costs also means preventive care for women when they cannot afford it. That is what Planned Parenthood does. The threat of H. Con. Res. 36 is to that profoundly important goal—higher quality health care at lower cost—that we can achieve as a nation if we invest in preventive care.

The threat of H. Con. Res. 36 is, therefore, not only to the 1.4 million Medicaid patients across the country who would be deprived of that preventive care, and not only to the more than 60,000 women in Connecticut who are at risk, but to all of us, to our families, and to our fiscal health. We know Planned Parenthood saves $4 for every $1 invested. Smart investments that go to provide the Pap smears, breast exams, and other kinds of preventive health care that not only save our health care system money, but that are an absolutely critical part of high quality health care in the United States.

But this debate is about more than costs. It is about human beings. It is about those women who need that preventive care for their future and their family's futures and eventually for their children's futures. Every woman across our Nation, including 1.4 million Medicaid patients who consider Planned Parenthood their primary source for preventive health, deserves to visit a health care provider she trusts—a health care provider that many of us have in this body whether we are men or women.

I am talking about women such as Rebecca in Meriden, CT. Rebecca's parents' health coverage did not extend to her, and she made too much money to qualify for Connecticut's Husky Program—too much money meaning $10 an hour and working part time, a total of $10,000—too much money to qualify for Husky. She depended on Planned Parenthood for regular health screenings and contraceptive care. As she said in her own words:

> Planned Parenthood was my saving grace for my reproductive health.

Women such as Maya, a 23-year-old uninsured young woman, a waitress, part time, doing an unpaid internship for a nonprofit organization. She went to Planned Parenthood for her routine Pap smear, and the results showed abnormal cells that required a biopsy and an operation to have the precancerous cells removed. That procedure could have been lifesaving for Maya; as are all of the routine screenings that Planned Parenthood provides for countless women across the country and in Connecticut. All of these procedures take place day in and day out around Connecticut, for a price they can afford. These stories from Rebecca and Maya are heard around our Nation, at least 60,000 strong in Connecticut alone.

As Martin Masselli, Community Health Center advocate and the president of Community Health Care, Inc. in Middletown, recently said:

Defunding Planned Parenthood would be the moral equivalent of turning off the electricity and a whole segment of health care would go dark.

That is what H. Con. Res. 36 means in human terms. In dollars and cents: preventive health care, the kind of work done by St. Vincent's in Bridgeport and Hartford Hospital, and Yale-New Haven hosptial, and countless others around the State and in the country because our hospitals and health care providers are responding responsibly to the need for higher quality and lower costs. We must preserve the momentum to move forward and to make sure the promise, as well as the obligation, the opportunity as well as the mandate, is fulfilled.

I call for my Senate colleagues to stand together for women such as Rebecca and Maya and for clinics and hospitals and providers across the Nation who depend on Planned Parenthood and to reject this resolution, to reject the effort to turn back the clock and to settle this debate once and for all, to end the ideological war which has itself nothing to do with saving money; that in fact, will cost more than it saves. I call for us to turn our attention, as we should and we must, to people who want us to put America back to work to create jobs, to foster economic growth, to fulfill the mandate that was articulated and expressed so eloquently by the people of this country in this last election, which was not to wage war on women's health.

The message was to put Connecticut and put America back to work, create jobs and continue our fragile economic recovery.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. MANCHIN). The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded

The PRESIDING OFFICER. Without objection, it is so ordered.

THE BUDGET

Mr. THUNE. Mr. President, today we are going to vote on last year's unfinished business. We are going to vote on a continuing resolution that will fund the government through this fiscal year, which ends on September 30. The proposal we have before us in order to fund the government through the end of the fiscal year certainly is not perfect. In fact, there are many—myself included—who would like to see it make deeper reductions in spending. That said, we will be voting on a proposal that will cut spending by around $40 billion this year, and when you look at baseline spending over the next decade actually saves over $300 billion over the 10-year period.

What strikes me about that is that it will be the first time in a long time that we have done something about reducing spending. That is not something routinely or traditionally done here. In fact, we are going to reverse a trend that began a long time ago but accelerated a couple years ago when nonnational security discretionary spending increased by almost 25 percent in the last 2 years.

This is an important first step. Granted, it is a first step, and in a minute, I am going to get to the bigger issue, but it is critical that we send a message and signal to the American people that we have heard their voices loudly and clearly and we get what they want us to do; that is, to get spending under control, shrink the size of the Federal Government, to get it to live within its means, and to quit spending money that we do not have in Washington. That is something that has been happening here for a long time. It has taken on a whole new dimension in the last couple of years.

As we talk about the unfinished business of last year, trying to get a measure in place that will fund the government through the end of the year, that will reduce spending by about $40 billion, we are talking about the smaller part of overall spending when we look at the macroeconomic view or pull back to what some would say to the 30,000-ft. view and look at spending over the next decade. In fact, we had someone testify in the Finance Committee yesterday, the former Comptroller General David Walker. He put it well when he said talking about funding in the continuing resolution is like arguing about the bar tab on the Titanic. We are on a sinking ship, and we need to do everything we can in the short term, getting maximum amount of spending reduction, but then we need to pivot and start talking about the next big battle, and that is the battle over the 2012 budget. Ironically, we are just now getting to the 112th Congress's business because we are wrapping up the business of the 111th Congress. The Democratic leadership here didn't pass a budget last year or a single appropriations bill. As a consequence, we are voting here now on a continuing resolution to do last year's business to get us through the end of this fiscal year before we can start the work of the 2012 budget, which is where I think the big debate will begin about how we get this country back on a more reasonable fiscal path.

We have seen a couple of developments here in the last 2 weeks or so that bear on that debate. One is last week, when we had the introduction by the House Republicans of a budget plan, a 10-year budget plan that was very aggressive in trying to take on the issue of spending and debt, very aggressive in trying to put progrowth policies in place that would help grow the economy and create jobs and that gets our economy back on track in this country. That was kind of the big discussion last week.

The President, I believe, felt left out of that discussion, so yesterday he decided to make a speech in which he would lay out his vision for the next decade and how we address the big challenges this country needs to tackle. I would describe that speech as a do-over because the President's first trip to the plate was really his budget, which he submitted a couple of months ago. That budget was conspicuously bereft of any effort to address the really big challenges facing the country. It didn't talk about how we are going to reform entitlements, didn't address tax reform, and it actually increased spending—increased taxes and increased the debt dramatically over the next decade. It nearly doubled the gross debt from $13 trillion or $14 trillion to over $26 trillion, and that is using I think pretty optimistic economic assumptions.

That being said, because the President didn't address any of the big issues in his budget and because the House Republicans put a proposal forward last week which would, I think he felt as if he needed to get in the game. So yesterday he made a stridently partisan speech in which he tried to put forth a plan. I would argue that speech yesterday was very long on politics and very short on substance. There wasn't a lot in there to really sink your teeth into if you are someone who believes seriously that we need to make reforms in entitlement programs. There was the usual prescription for dealing with the deficit and the debt, which consisted of increasing taxes. There are tax increases in here, tax increases in the President's proposal on small businesses—the job creators in our economy.

I would point out to my colleagues that half of all small business income is taxed at the individual level because many small businesses allow the income from that business to flow through to their individual tax return. In fact, the number of small businesses that would be impacted by his proposal employ about 35 million people in our economy. So you are talking about raising taxes on the job creators, on the people who really are employing people across this country, and that was a key element in the President's prescription for dealing with the fiscal crisis this country faces.

Another element of the President's plan was relying on this proposal that was part of the health care reform bill to squeeze provider payments under Medicare to try to wring a little more out of Medicare. He relies on an independent payment advisory board which would be empowered to go ahead and make reductions, to make cuts in provider payments. What is interesting about that is the health care reform bill last year did make some significant cuts to providers, not to reform Medicare but to create the new health care entitlement program, which, when it is fully implemented, will cost $2.5 trillion. So that is what the President used—any savings that were achieved in Medicare last year. So when he talks

about now using this independent payment advisory board to make further reductions in provider payments, it is relying on the same old tried-and-true formula. I say tried and true, but it is actually a tried-and-failed formula that has been in place before.

There is no reform in this proposal. There is nothing new or innovative that says: Let's figure out a way to solve this Nation's fiscal problems, something that actually gets at the heart of the problem and doesn't use the same old failed prescriptions that have been used in the past.

I frankly don't know what is going to happen. If you continue to cut payments to physicians and to hospitals, you will find fewer and fewer medical providers who are going to serve Medicare and Medicaid patients in this country. It is as simple as that. When you lose a little on each transaction, on each customer or each patient you serve, you have to cost shift and make up for it by shifting more of the cost over to private payers, which continues to drive health care costs for everybody who is not receiving their health care from some government program even higher and higher. So there wasn't anything in there that I would suggest really gets at this problem.

Also conspicuously absent from that speech was anything to do with reforming Social Security. We all know Social Security is also a program which ran a deficit last year. It looks as if it will be in the black this year but next year it starts running deficits and runs them well into the future. We have to make that program solvent, not just for the senior citizens who are benefiting from it today, those who are nearing retirement age, but for the next generation. The President decided to punt on that subject as well.

So, as I said, the speech yesterday was long on politics, short on substance, and short on a meaningful discussion about how we get at and address and fix these enormous fiscal challenges we face.

The other thing the President does is he uses a 12-year timeframe. We normally operate here on a 10-year budget window. That is what the House and the Senate do. It is typically what the White House does when it submits a budget to Congress. So he stretched that out to 12 years, perhaps maybe to lessen the impact of some of the few reductions he does make in his budget, but nevertheless it is a very different schedule, in terms of the proposal he makes, relative to the one that came forth last week from the House Republicans.

The reason this whole debate is important is because we continue to spend and spend as if there is no tomorrow, and it is money we just flat don't have. This year, we will take in $2.2 trillion, spend $3.7 or $3.8 trillion, and we are going to run a $1.6 trillion deficit. I have said this before on the floor, but it is now 1:20 in the afternoon today, and by tomorrow, Friday, at 1:20 in the afternoon, we will have added over $4 billion to the Federal debt. That is the rate at which the spending and debt problem is going today. We cannot continue on this path.

Some people would argue—the President and some of our colleagues on the Democratic side—that the way you fix this is ''have a balanced approach'' that raises taxes, that there has to be a tax increase as a part of this. I don't think the American people ought to have their taxes raised until we demonstrate a willingness to get at the heart of the problem.

The problem here in Washington is not a revenue problem, it is a spending problem. The numbers bear that out. If you look at the last 40 years of American history, the average amount we spend on the Federal Government as a percentage of our total economy is 20.6 percent. A little over one-fifth of our entire economic output is spending by the Federal Government. This year we will spend over 25 percent of our total economy on the Federal Government. So we have seen the Federal Government, in relation to our total economy, grow by about 20 percent over the historical average just in the last couple of years. In the last 2 years of this administration, we have added almost $3.5 trillion to the Federal debt.

As I said before, spending increased—non-national security, discretionary spending increased in the last 2 years by almost 25 percent at a time when inflation in the overall economy was only growing at 2 percent. So you have the Federal Government spending at somewhere on the order of 10 times or more than 10 times the rate of inflation. You can't defend or justify that to the American people.

The American people have a right to know we are serious about getting spending under control, as evidenced by the report of the Government Accountability Office a few weeks back where they looked at about one-third of the overall government to determine where there was duplication and where there was wasteful spending. They came up with a number of conclusions in that report, one of which was that there are 82 programs—82 programs—at the Federal Government that deal with teacher training spread across 20 agencies or so of the Federal Government.

Can you believe this—56 programs that teach financial literacy. Imagine Washington, DC, lecturing or instructing anybody around this country about financial literacy, of all things, but there are 56 programs spread across 10 different agencies or departments of government that deal with financial literacy. I mean, the American people have to be thinking, get serious.

This is the kind of thing that outrages and frustrates the American people. That is why I think they want us to singularly focus on reducing spending and getting this debt under control not by raising their taxes in the middle of an economic downturn, particularly taxes on our small businesses that will create the jobs to get the economy back on track but by reducing spending. That is where this debate ought to be centered. Regrettably, as I said, the President, in his speech yesterday, immediately latched on to the idea that we need to raise taxes on our small businesses, on our job creators.

Well, we are going to have the chance, after the vote today on the continuing resolution—assuming that it passes—and then wrapping up last year's unfinished business, to shift to this debate about the debt limit. The debt limit will be the next major issue coming along that will present an opportunity for both Republicans and Democrats to engage in a debate about how to solve this country's fiscal problems, starting with measures we put in place that put caps on spending.

We have to get spending under control, and then we will have a debate about the 2012 budget. It is unclear to me at this point whether the Senate will do a budget at all. The House of Representatives clearly will. They passed it out of their Budget Committee, and they are going to vote on it today. They are going to put forward a plan that does reduce spending by over $6 trillion over the next 10 years, that brings reforms to our Tax Code, that lowers marginal income tax rates on our businesses and our individuals, and that hopefully will create economic growth and development out there and create jobs.

It is a budget that changes the way we look at some of these traditional entitlement programs, insulating and protecting everybody who is over the age of 55. And that is the ironic thing about it, because our colleagues on the other side get up and immediately attack this proposal as cutting benefits to senior citizens. The House plan that was put forward does not impact anybody over the age of 55. So if you are retired today and drawing Medicare benefits or if you are nearing retirement age, under this particular proposal, you are unaffected. It would affect those younger than 55 who are beginning to look at the retirement years and wondering whether any of these programs are even going to be around for them. We can make those programs sustainable and viable for younger Americans who are willing to look at these things in a new way. The House budget does that.

It makes reforms that put the patient back in charge, the consumer back in charge, that I think draws on the great impulses of tradition in this country—competition, choice, allowing people to have more opportunity and more flexibility to choose a plan that works for them.

It seems, at least to me, that we have to get to a new model because the current model clearly doesn't work. It is an example of government spending that, if it perpetuates, has a $38 trillion unfunded liability in Medicare alone and has further unfunded liabilities in Social Security.

We have a major problem in this country, and it needs to be addressed. It starts with the debate on the debt limit and then hopefully on the 2012 budget. I am glad to see the President finally having a proposal out there and engaging in this debate. Unfortunately, his vision is the wrong vision for the future of this country. But it is high time the American people saw us have this debate, take these issues on, and let's hope we can come together behind a proposal that will reduce spending, reduce debt, and put us more on a fiscal footing that is good for future generations and that gets this economy going and creates jobs.

Mr. President, I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. LAUTENBERG. Mr. President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. LAUTENBERG. Mr. President, we are going to be voting sometime today. I am concerned about the tea party Republican assault on the health of American women because that is what we are going to be deciding. The focus on this has little to do with deficit reduction because better health automatically saves money. This assault is an attempt to change individual behavior to a standard that the tea party people see as proper for others exercising their own free will. It contains an element of unfathomable hypocrisy for those voting to kill Planned Parenthood.

As Members of Congress, we all have immediate access to first-class health plans. We never have to think about health coverage for ourselves or our spouses or our children—it is all in the package. There is no decision to make between paying a medical bill or paying the rent; no decision to make between buying medicine and buying groceries; no decision to make between going into a hospital or going into bankruptcy. Yet the Republicans here are trying to take health care away from women, children, and families across America. They want to completely defund Planned Parenthood, an organization that has been serving women and families in America for more than 90 years.

Today Planned Parenthood operates more than 800 centers that serve 3 million women each and every year. For many women, Planned Parenthood is a critical source of medical care. To women who cannot afford coverage, Planned Parenthood says don't worry, your health is more important.

They do not just offer counseling on family planning, they also offer lifesaving breast exams and cervical cancer screenings. Look at this. Eighty centers nationwide serve 3 million patients each year, provide 800,000 breast cancer screenings, provide 1 million cervical cancer screenings. That is so important. Cancer screenings save lives. Since the 1950s, cervical cancer screenings have cut mortality rates by more than 70 percent. Remember, treating cancer and other diseases early enough saves health care dollars in the long run.

But this is not just about sound fiscal policy or better accounting. No. No. They want to tell women, millions of them, if you cannot afford it, tough luck. Tough luck. This is about the tea party Republicans remaking America in their own image. Their real goal is to impose their radical ideology on American women.

They want to come into our homes, tell the women in our families how to live their lives. This issue is deeply personal to me. My wife and I have five daughters and eight granddaughters, and nothing is more important to me than their health, their well being, and their freedom to make choices that suit their needs.

If we kill funding for Planned Parenthood, millions of women will lose access to essential care. Those tea party Republicans claim that will help close our deficit of dollars. But it will leave us with a deficit of decency. It is not just women's health the tea party Republicans are after, it is also health care for middle-class families across America.

They want to stop the landmark health reform law dead in its tracks. This is the law that adds 32 million Americans on the rolls of the insured.

So here is what I say to colleagues on the other side: If you do not want ordinary people to have affordable coverage, then show some sincerity and throw in the coverage you have. Be honest. Vote no, and tell your constituents why you are doing this, and say you mean it when you say no, and I am giving up my coverage to prove it. I am talking to Senators on the side of taking away the funding, and talking to Members of the House of Representatives to say no and mean no.

The health reform law makes health care more affordable, more accessible, and more sustainable, and holds insurers more accountable. It makes medicine more affordable for seniors by closing the doughnut hole in the Medicare prescription drug benefit program.

The new law also allows young adults to stay on their parents' health plans until age 26, and it gives small businesses tax credits to help them provide their employees with medical coverage. Without this law, insurers could once again restrict benefits, rescind coverage when people get sick, and refuse care to children with preexisting conditions. I do not think we want to return to the days when insurers could turn their back and turn away sick children.

Life for me was upfront and personal when it came to my family's health care needs. I grew up in a working-class family in Patterson, NJ. My father worked in the local silk mills, and he died of cancer at age 43, leaving my mother a widow at age 37. Our family struggled in bankruptcy as my father's life ebbed away. My mother owed doctors, hospitals, pharmacies, money we did not have. After my service in Europe in the Army, because there was a government program, I was able to get my education through the GI bill. I joined two friends and built a company so successful that it is hard to imagine. It employs 45,000 people today, operating in more than 20 countries. Three of us from poor families. For me the GI bill made the difference. It is government stepping in when it was needed, and has put 45,000 people across this world to work.

That is what government is about. It is there to be helpful. This is not just an accounting office. It is not just a fiscal policy problem. Because of my success in business, I never had to worry again about whether I could provide health care for my family. I never forgot what it was like to be without health care.

We need the health reform law, because no American should ever have to make sacrifices to afford health care. Americans are beginning to experience the benefits of this law. Why now would we want to put the progress on hold?

I agree, we have serious economic problems in our country. But we are not going to solve them by taking health care away from American women and families. Do not take away this critical assistance for people who cannot afford the care they need. If we have fiscal problems, if we have debt and deficit problems, there are ways to solve them. But one way is not to take health care away from people who need it. It is an injustice, and we should not permit it.

Mr. President, I ask unanimous consent that the time until 4 p.m. be equally divided between the two leaders or their designees, with the other provisions of the previous order remaining in effect.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Alabama is recognized.

(The remarks of Mr. SHELBY pertaining to the introduction of S. 820 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

The PRESIDING OFFICER. The Senator from Louisiana.

Ms. LANDRIEU. Mr. President, I ask unanimous consent to be recognized for the next 15 minutes so Senator VITTER and I can introduce a very important piece of legislation.

The PRESIDING OFFICER (Mr. SANDERS). Without objection, it is so ordered.

(The remarks of Ms. LANDRIEU and Mr. VITTER pertaining to the introduction of S. 861 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Ms. LANDRIEU. I see other colleagues on the floor, and I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. MENENDEZ. Mr. President, shortly, we hopefully will be voting on a budget agreement for this fiscal year, and that will start the process of the debate on the next fiscal year. What we are about to do is more than pass a budget agreement; we are about to define a vision of America. We are about to make choices now and in the coming weeks that will reflect our values and our principles as a people and as a nation.

The real question before us, in my mind, is not simply about the numbers, it is about competing visions of America, whether we choose a vision of America where the air and water are clean, where food and prescription drugs are safe, where roads and bridges and transportation systems are modern, well maintained, and fuel prosperity for the future, an America that puts a premium on education and invests in jobs and the middle-class, an America where a mother who wakes up in the middle of the night with a sick child doesn't have to wonder if she can afford to take that child to the doctor or if her insurance will cover the costs, an America in which seniors have a reliable Medicare system they can count on, not just a voucher that doesn't even cover the cost of a plan in the private marketplace. That is an ugly vision of America we have seen before, and it is why we passed Medicare in the first place.

Let's be clear. This is not about the numbers. This is not just simply about the details of deficit reduction. This is about two competing views of this Nation, one in which we embrace the concept of community, each of us working together for the betterment of all of us—all of us sharing in the burden of balancing the budget and reducing the deficit.

The other is a tea party vision, in which no government is good government and the notion of an American community is a myth, and we are simply a nation of competing individuals, each of us working for what we can get on our own. Tea partiers see an America in which the burden of balancing the budget should be borne by senior citizens, students, and middle-class families, while protecting subsidies to big oil companies and giving even more tax breaks to the wealthiest Americans.

We see an America of shared prosperity and shared responsibility that reduces the deficit and balances the budget, knowing that millionaires and billionaires can be just as patriotic and willing to pay their fair share as a soldier in Afghanistan whose family is living on an Army paycheck.

Our friends on the other side tell us tax cuts for millionaires and billionaires create jobs and benefit middle-class families. They told us, when we passed the Bush tax cuts a little over a decade ago, it would create millions of jobs for every American, and what happened? Jobs were eliminated or sent overseas, and the wage gap increased. This tax policy may benefit some, but it doesn't create jobs and it doesn't reduce our deficit.

For some reason, we seem to think the wealthiest Americans are clamoring for more tax cuts, but I find no basis in fact for that. I have spoken to many CEOs and leading corporate executives in my State and around the country, and never have I heard a word about how badly they need another tax cut. I believe the wealthiest Americans are as patriotic as any one of us and are willing to step up to the plate and pay their fair share if we simply ask them to support a rational tax reform program that emphasizes shared fiscal responsibility and shared prosperity.

In my view, tax cuts for millionaires are nothing more than a political sleight of hand, a smoke-and-mirrors vision of America, in which there is no shared responsibility, no sense of community but a misguided belief that only if the rich had more money, the elderly, the sick, the poor, the middle-class families struggling to make ends meet, the disabled child on Medicaid who needs round-the-clock care, we would somehow be better off.

We have been there before, and it hasn't worked. It is a smoke-and-mirror vision of America to believe that if there were no environmental protections, that polluters would protect our air and keep the water clean and safe because it is the right thing to do. Again, we have seen that vision of America, and it came in a poisonous cloud of smog that lingered over America's cities, which is why Richard Nixon, a Republican President, created the Environmental Protection Agency in the first place.

If we are serious about reducing the deficit, we at least should be looking, for example, at subsidies for big oil. The top five oil companies earned nearly $1 trillion—$1 trillion—over the last decade. Passing my bill to repeal oil subsidies would save taxpayers $33 billion over the next 10 years. We can safely assume oil profits will be much greater in the decade to come with higher oil prices, but let's assume that the top five oil companies only get another $1 trillion in profits over the next decade. Taking back $33 billion in government handouts would only shave about 3 percent of those profits. Let's not forget that much of these profits are in Federal waters and on Federal lands, so they are making these profits on America's own soil.

If we were serious about reducing the deficit, we would also be seriously looking, for example, at big oil subsidies and tax breaks. According to the data, the cost of exploration, development, and production of natural oil and gas in the United States averaged about $33.76 per barrel of oil. Oil is trading at $107 a barrel. That means big oil companies are enjoying a profit of over $750 per barrel of oil they extract. Why in the world would they ever need subsidies from the U.S. taxpayer in such conditions?

No, handing out money and reducing regulatory burdens on big oil companies and on the wealthiest Americans is not about balancing the budget or reducing the deficit; it is about a vision of America that favors the rich and would rather dismantle Medicare, cut Social Security, cut Medicaid for seniors, and the poorest among us in nursing homes who have no other place to go, rather than to solve our long-term deficit problems.

I am deeply disturbed at what is being proposed as we move forward in the next debate of the next fiscal year and the so-called push for balancing the budget by shifting $4 trillion from the promise of America to protect this Nation and to create prosperity for its people, to the wealthiest Americans in a tax cut that actually does absolutely nothing to solve the deficit problem. I am disturbed when I see those on the other side lining up to resist any compromise, any effort for a reasonable chance at a workable solution.

Before the President was even done speaking yesterday, the tea party and many Republicans had already made up their minds that there was nothing to talk about, no room for compromise; that there is no other view than their own.

When I first arrived in the other body, we may have had very clear and fundamental differences, but we understood we were there to govern. Now our Republican colleagues seem to have stopped governing in order to score political points and hope they can win an election. The extreme wing of the Republican Party is driving the legislative process and the Republican Party to the darkest reaches of the political spectrum, fundamentally threatening the very notion of democracy. They want what they want, and they want it all. They will accept nothing less than everything. But let's not forget it was Republican policies that got us here in the first place.

It wasn't long ago, not long after the last Republican government shutdown during another Democratic administration, when we had budget surpluses—surpluses—as far as the eye could see. The day Bill Clinton left office, he handed President Bush a $236 billion surplus, with a projected surplus of $5.6 trillion over the next 10 years. When the Bush administration left office and President Obama was sworn in after 8 years of Republican economic policies that they are espousing, again, including tax cuts to the wealthiest, two wars waged unpaid for, turning a blind eye to the excesses of Wall Street—the new President faced an economy that was at the abyss of a new depression. The Republicans had turned a $236 billion budget surplus into a $1.3 trillion budget deficit and projected shortfalls of $8 trillion over the next decade.

Now they want to give more tax cuts to millionaires and billionaires, losing $700 billion on the revenue side over

the next 10 years by extending the Bush tax cuts and trillions more by slashing tax rates for corporations and millionaires without offsetting tax expenditures. Those making more than $1 million a year would see tax cuts of $125,000 each from the tax cuts and tens of thousands of dollars more from the proposed tax cuts, while people in my State would lose $34 billion in health benefits and 400,000 New Jerseyans end up without health coverage at all. They want to shift the balance to millionaires and billionaires while making Draconian cuts to make up for the deficits they create—cuts that do not reflect our values as a people and as a nation.

So let me conclude by saying we all agree we must do more to rein in spending and get back to the kind of surpluses Democrats created in the 1990s, but we can only get there through a reasonable framework that emphasizes shared prosperity and shared fiscal responsibility to achieve our common goal. The way we get there is through negotiation and compromise, not from smoke and mirrors, not through trickle-down theories that have not worked, and strictly adhering to an ideological political agenda that fundamentally starts the clock all over again on the battles for basic American protections that were fought and won in the last century.

Let's not go back. Let's protect American values and keep America moving forward and working. As I have said, you show me your budget and I will show you your values.

The Republican vision of this Nation, as defined in H.R. 1, does not represent this Senator's values. It is not the fulfillment of the American promise, idea and ideal, and I do not believe it is who we are as a people and what we want our Nation to represent.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Kentucky is recognized.

Mr. PAUL. Mr. President, it is amazing to me to be lectured to and hear about how awful the tea party is from folks who have never been to a tea party to hear what the tea party represents. Come on down. Bring your Huey Long rhetoric that there will be a chicken in every pot and a windmill in every backyard. Bring it down to the tea party and let's have a discussion. Bring it out to the public.

We hear from those who want to lecture the tea party about cutting spending. Who among these folks has voted against an appropriations bill? We haven't even seen one this year. We didn't see a budget. We are spending $2 trillion that we don't have, and they are here blaming it on the tea party.

Who is in charge here? It is not the tea party. Blame it on us. Give us an appropriations bill. Give us a budget. Do something constructive to fix the fiscal problems we have up here.

They say compromise is the ideal. They tell the tea party: You need to compromise. But do you know what the compromise is? They want to raise taxes. The debt commission wants to raise taxes. The President wants to raise taxes. That is what they are talking about.

Yesterday, the President said he is going to cut $4 trillion. Well, try to read what is going on here. He said he was going to spend $46 trillion a month ago in his budget. Before we even discuss his budget, he is going to cut $4 trillion off the $46 trillion he is going to spend. These are no cuts. We will spend more this year than we spent last year. Forget about all the numbers, all the baselines, and forget about 6, 60, 30, 78, or 0, which is what the CBO scored this yesterday—zero in cuts. Forget about it and ask your Representatives: Are we going to spend more this year than last? If we are, that is not a cut. Ask your Representatives, ask your Senators: Will the deficit be more this year than last year?

The deficit will be bigger this year. We threaten to shut down government over nothing because we are not cutting spending in any serious way. They want to blame it on the tea party because in their secret caucus meetings they have done a poll that says the tea party could be the villain. Call them ''extreme,'' call them all ''tea partiers,'' say the tea party has ''taken over'' the Republican Party.

Do you know what the tea party believes in? Good government. We believe in balancing the budget, in reducing spending. We have plans to fix Social Security. We introduced a plan yesterday. If the other side is serious about fixing entitlements, we have a plan. Come to us and work with us, but don't just come down here and call us names.

Before you send any more money to Washington, ask your representatives whether they are spending your money wisely. Mr. President, $100 billion in the budget last year is unaccounted for. We don't know where it was spent or we think it was improperly spent—$100 billion. In our senatorial offices we get several million dollars. Some of us want to be frugal with that and send some back to the Treasury. We plan on sending several hundred thousand dollars back. We want to know where the money goes. We are still not certain. We have been asking for months.

Some people say that money is kept in some fund for 3 years and may go back. Other people told us that the leadership spends that money. We don't have a definitive answer for even trying to save a couple hundred thousand dollars of your money that we have control of.

The Pentagon spends a lot of money. Are they spending the money wisely? You don't know because we cannot audit them. Why? Because the Pentagon tells us that they are too big to audit. You heard about the companies saying they are too big to fail. The government now tells you they are too big to be audited. We got a partial audit of the Federal Reserve, and we got some information from that.

We are now fighting the war against Qadhafi. Last month, we were giving him money. We gave him some foreign aid, and we helped to bail out his national bank. The national banks in those countries are the leaders' piggy bank. Half of it is probably spirited off to secret accounts in Switzerland. The U.S. taxpayer bailed out Qadhafi's bank, and now we are bombing it.

The budget bill that we are talking about has now been scored by the CBO and will cut almost nothing—maybe a couple hundred million dollars. It will increase defense spending by $8 billion and cut spending by $8 billion. The net is about zero. Our deficit this year will be bigger than last year. Our overall spending will be bigger this year than last year.

We are not yet serious in Washington. We have not yet recognized the severity, the enormity, and the significance of how big this deficit is. This deficit is going to have serious repercussions. The Chinese have bought over $1 trillion of our debt, and the Japanese, nearly a trillion.

The Japanese have suffered an enormous national disaster. The question is, Will they continue to buy our debt or can they?

The other question is, How long can a government continue to exist that spends more than it brings in? On the other side, they want to blame the tea party or the Republicans or the rich people. Do you know what. Both parties are responsible—Republicans, Democrats, Senators, Congressmen, the President—everybody up here is responsible. It is not one party or the other.

When Republicans were in charge, they ran up the deficit. Now the Democrats are in charge, and the main difference is that they are doing it faster. The Republicans weren't doing a good job either during our time in power.

We have to understand that the people can do things; not everything has to be done up here. The States can do things. We have to believe once again in the American dream. Believing in the American dream is not standing on the floor and castigating rich people. What is great about our country is that any among us—any of our kids—can become rich people if they work hard, go to school, and achieve. We live in a mobile society, and that is what the American dream is about. We got away from Europe because all the land was owned and stifled by the nobility. We came here where there was plenty of land and opportunity, and the American dream is believing in that.

The interesting thing is, when they try to soak the rich—this old Huey Long stuff—it is actually failing with the American people because many of us believe that our kids could gain great wealth or great success. We still believe in the American dream. If they want to castigate that and say forget about it and say what we need is just more government, they need to explain to people why they don't believe in

capitalism, in the American dream, and why they don't believe in the greatness of America.

I still believe in America. I want to get government out of the way. I think we cannot have an America that succeeds until we are able to do something about our debt crisis. I fear that no one up here—or very few here—on either side recognizes the severity and imminence of this problem. My hope is that before a crisis occurs in our country we will begin to seriously discuss balancing our budget and have plans to do so and seriously cut spending.

The PRESIDING OFFICER. The Senator from Louisiana is recognized.

Ms. LANDRIEU. Mr. President, I understand there are other colleagues on the Senate floor. I want to speak for a few minutes as chair of the Homeland Security Appropriations Committee and express my views about the vote we are going to cast in a few hours relative to that committee.

To Senator PAUL, I say respectfully—and it is going to be a lively debate—that to a hungry family, a chicken in the pot looks pretty good every now and then, and there are literally millions of children, sadly, in this country today who go home from school and open the refrigerator or look on the stove, and they can't find a drumstick anywhere. That is what this debate is about.

No. 2, I used to love to hear President Clinton say that one of our jobs here was to create more millionaires. I belong to the DLC, and I am proud of it—the Democratic Leadership Council. We believe in creating opportunity that comes along with responsibility and creating paths forward to prosperity.

Most people I represent—including tea party people—don't believe companies such as GE—one of the biggest companies in the world—should get away with paying no taxes. I guess the Senator from Kentucky thinks that is a good idea. We don't.

I also think most people I represent—including the tea party—think people who make over $1 million a year—not millionaires or people who make $250,000 a year, but people who make over $1 million a year—could pay a little more so that we could afford either early childhood education or early health care in an effective and efficient way because people know—tea party people and others—what a smart investment that is. This is going to be a very interesting debate. I look forward to it.

I rise as chairman of the Homeland Security Appropriations Subcommittee to discuss the full-year continuing resolution that the Senate will take up today. For weeks, the press swirled about a possible government shutdown. Almost all of the attention was on who would be blamed if the government shut down. That has been averted for the time being.

However, far too little attention has been focused on the consequences of the funding cuts that were proposed by the House. With some officials in Washington slashing budgets, terrorists continue to seek ways to do harm to this Nation. Terrorists do not care about ''spending top lines'' and ''CHIMPS.'' What the terrorists care about is finding our vulnerabilities and exploiting them to do harm to Americans, to target our military, and to damage our economy.

In the State of the Union earlier this year, the President stated that al-Qaida and its affiliates continue to plan attacks against us. He is stating the truth. He stressed that extremists are trying to inspire acts of violence by those already within our borders. According to the Attorney General, in the last 2 years, 126 individuals have been indicted for terrorist-related activities, including 50 United States citizens. Homeland Security Secretary Napolitano has said that the threat of a terrorist attack is as high as it has been since 9/11.

Recent events have served to highlight the complicated dynamics of this situation. The Fort Hood shooting happened, at the hands of a U.S. citizen. The New York City subway bombing attempt happened, at the hands of a legal resident alien. The Times Square bombing attempt happened, precipitated by a naturalized citizen. But we also continue to face threats from abroad. The 2009 Christmas day bombing attempt and the October 2010 air cargo bombing attempt happened. We face increasingly sophisticated daily cyber attacks from countries and hackers that desire to do us harm. Violence in Mexico is at unprecedented levels and there are concerns that the violence will spread across the border.

In addition to these threats, the Department of Homeland Security also must prepare for and respond to natural disasters. The earthquake and tsunami in Japan and our memories of Hurricanes Katrina and Rita remind us of our need to be prepared for a catastrophic disaster.

The Homeland Security title of the full-year continuing resolution contains a 2-percent cut in funding. I am particularly concerned about the treatment of funding for FEMA disaster recovery efforts. We are currently facing a shortfall of at least $1.2 billion this year and $3 billion next year in the disaster relief fund. These shortfalls are the result of past catastrophic disasters such as Hurricanes Katrina, Rita, Gustav, and Ike, the Midwest floods of 2008, and the Tennessee floods of 2010. At the insistence of the House, an additional $1 billion was provided on a nonemergency basis to meet the fiscal year 2011 shortfall. As a result of having to absorb the additional $1 billion within the DHS base budget, we were forced to cut necessary investments in our security, cuts of over 4 percent.

It makes no sense to cut programs that prepare, prevent, and help us respond to future disasters to pay the costs of past catastrophic disasters. Yet when you compare the full-year continuing resolution to the Omnibus bill that we tried to bring to the floor in December, we lost funding for 175 canine teams for explosives detection. Despite the increasing threat of homegrown terrorism, we lost $810 million to equip and train first responders. We lost funding for 1,300 handheld radiation detectors and funding for five Coast Guard boats and for 140 foot icebreakers. We lost funding for urban search and rescue teams and funds to deploy the latest technology for blocking cyber attacks on sensitive Federal computer systems.

In the past, on a bipartisan basis, we have funded the costs of catastrophic disasters as an emergency. In fact, $110 billion out of $128 billion appropriated for the FEMA disaster relief fund has been appropriated as an emergency. We simply cannot responsibly secure the homeland and prepare for future disasters if we are forced to absorb the costs of past catastrophic disasters.

Mr. President, I am pleased to say that we were successful in negotiations with the House in eliminating some of the most harmful cuts contained in H.R. 1. The bill no longer contains what I considered irresponsible cuts for the Coast Guard, for Customs and Border Protection, for immigration enforcement efforts, for the Transportation Security Administration, and for cyber security. But, the bill that will be put before the Senate today does not provide resources that are commensurate with the threat that we face. I believe this view is shared by a large majority of independent observers. I will vote for this bill but urge caution as we proceed to fiscal year 2012.

I remind my colleagues that it is essential that we make decisions on how to secure the homeland with the latest information on the threats that we face, not based on arbitrary spending top lines that were produced during the campaign. As we look ahead to drafting the Homeland Security appropriations bill for the fiscal year that begins in October, it is time to get off the campaign trail and work together on a path forward for a more secure homeland.

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, we have a vote today on a measure to continue spending for the Federal Government for the next couple months. It amounts to nearly $40 billion in cuts. That is a good start. I think most Americans would agree with that. But it is only a start. We should now work together across party lines to bring down our long-term debt in a responsible way that protects middle-income families and, of course, as well the most vulnerable in society.

We do have substantial cuts in this bill today. In fact, there are record cuts for what we know as discretionary funding.

At the same time, though, we have to get down to the more difficult business

of reducing deficit and debt and that work is ahead of us. As we do that, we have to make sure we are protecting middle-income families and those who are vulnerable.

This is a good start, but we should remember what families are going through right now, families all across the country, where one member of that family—sometimes more—has lost their job. In Pennsylvania, for example, we have over 500,000 people out of work. Fortunately, that number has come down since last summer. Last summer, it was approaching 600,000; now it is about 511,000. But we need to bring that number down.

As families are making decisions, they have to make some difficult choices, especially those who lost a job, a home or sometimes both but even families who are not living through the horrific crisis of unemployment and joblessness, even families where one or two members of that family are working. Those families, as well, have to make difficult choices. That is the way we should approach this, as a family or at least to do our best to imitate what families have to do every day of the week and to make those difficult choices.

We are facing a deficit and debt set of facts and a challenge we have never faced in the Nation's history, and we have to be responsive to that. I spent a decade in State government in Pennsylvania as the auditor general of the State and, in the last 2 years in that decade, as treasurer. I know a lot about cutting waste, fraud, and abuse, how to identify it, how to cut it out, and how to make change. That is why I was so heartened by what I saw in a GAO report last month.

On March 1, the GAO released a report entitled ''Opportunities to Reduce Potential Duplication in Government Programs, Save Tax Dollars, and Enhance Revenue.'' It should serve as one measure, but it should serve as a how-to guide to reducing waste, fraud, and abuse in government. It is all there.

Here are some of the highlights. The report identified numerous areas of the Federal budget where unnecessary duplication, overlap or fragmentation exist. By some estimates, addressing these redundancies could save more than $100 billion and potentially as much as $200 billion. It is not going to reduce the deficit by as much as we need to reduce it, but that, as well, is a very good start, a good place to look. We need to take a hard look at reports such as that and take action.

I voted to support an amendment last week that would require the Office of Management and Budget to immediately cut at least $5 billion in wasteful and duplicative spending in government programs. I was happy to see that pass the Senate. This is another step, a first step, and a good start, in addition to what we are doing today by cutting almost $40 billion. But we have to cut spending in a way that is smart. We have to cut spending in a way that is smart enough to realize that those decisions have to contribute to economic growth to keep the economy in a State such as Pennsylvania and a country such as America growing. We have to continue to grow as we cut, and we have to continue to create jobs as we cut. We cannot do one and not the other.

The Federal budget should also reflect not just our national priorities but our values as well. This holds true in the budget we are about to debate, the 2012 budget. Unfortunately, what Republican Members in the House have proposed for the upcoming fiscal year puts the entire burden of reducing the deficit on older citizens, students, and middle-income families. That does not sound like a family to me. That does not sound like working together, coming together on a plan, everyone trying to sacrifice, everyone trying to pitch in. It sounds as if we are placing the burden on members of the family who should not bear the whole burden.

The Republican plan would end Medicare as we know it. It is as simple as that. It would end Medicare as we know it. In Pennsylvania, that means 2.2 million people who are Medicare beneficiaries would be directly and adversely impacted. These are not just numbers and statistics. It happens to be 2.2 million people. But who are they? They are people who fought our wars. They are people who worked in our factories. They are people who built this economy over many generations. They are people who took care of our children, taught our children, cared for our children. These are people who gave all of us life and love, and we are going to come in with a Medicare scheme to just put the burden on them and say we have done deficit reduction? I do not think that is what a family does, and I do not think that is what America has done or will ever do.

We worked hard to reduce out-of-pocket costs for beneficiaries under the affordable care act. The Republican House plan will double—double—out-of-pocket expenses, according to the Congressional Budget Office. The Republican plan does nothing to reduce health costs or reform the health care delivery system. It does nothing at all to do that. What it does is shift costs to older citizens and people with disabilities.

The GOP plan in the House targets health care spending. Here is what it does: It cuts over $770 billion out of Medicaid by converting it to a block grant program. What does that mean? It means that those who are supposed to be able to rely on the good services provided in Medicaid have to shoulder the burden. Medicaid provides health care to the most vulnerable people in our society. Older citizens living in nursing homes, in many instances, millions of them rely on Medicaid, not always just Medicare. Children, tens of millions—I think the number right now is about 27 million to be exact—27 million people rely on Medicaid and people with disabilities.

As we look to reform our budget and to reduce the deficit and debt as we must, we should not take steps that will harm children by some of the proposals we see for Medicaid.

About one-third of rural children in America are beneficiaries of Medicaid or the Children's Health Insurance Program. We should remember that when we are thinking about what Medicaid is.

By every measure, Medicaid is both cost-effective and an essential lifeline for our children. Many people know about the early periodic screening, diagnosis, and treatment provisions within Medicaid. It is the gold standard for how poor children get their health care.

Thank goodness, we have had that in place all these decades. But we have people now who want to eliminate that basic gold standard in health care.

We have a long way to go. We have a lot of work to do. We have much work to do on the deficit and debt, and we have to get to that. We still have to reduce spending. We did reduce it by a record amount in the bill we are voting on today. But as we do this, just as families have to come together and share burdens and cut costs, we have to remember our approach should be similar to any American family. Unfortunately, there are some people around here who do not seem to understand that, that we need to approach this as a family approaches it and not place all the burden on the vulnerable—on children, older citizens, and those who sometimes do not have a voice in Washington.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. KYL. Mr. President, in a few minutes, we are going to be voting on the continuing resolution which our House colleagues are voting on literally as we speak. I wish to address that briefly, but I must comment on one of the things my colleague from Pennsylvania said.

He is critical of the Ryan budget but does not appear to have read the Ryan budget because I know he would not deliberately mischaracterize it. He is wrong in several respects, and I will cite one example. He said the Ryan budget will end Medicare as we know it and that millions of seniors will be directly affected. That is simply not true, unless we count someone as a senior who is 53 or 54 years old. The Ryan budget does not affect anyone above the age of 54 with respect to Medicare. It says, if you have Medicare and you are 55 or older, nothing changes for you. All we do is provide premium support for those age 54 and below.

It is simply incorrect to say millions of seniors would be directly affected by the Ryan budget with respect to their Medicare coverage.

Let me go back to the point of our discussion right now. As I said, we will be voting very soon on the continuing resolution. This is the final continuing

resolution, we can finally say, for the fiscal year 2011, that funds the government for the rest of this fiscal year. It does mark the end of a long and hard-fought process. I am pleased we have been able to cut billions of dollars from the Federal Government and avoid a government shutdown.

It is true $38 billion in spending cuts represents a tiny fraction of the Federal budget, and it is less than many of us would have liked. But those who have been critical of the deal, saying it does not go far enough, should keep three points in mind.

First of all, our fiscal problems were not created in a day and will not be solved in one budget. It is a good start. It is like the weight I put on. It took me a long time to add the 10 or 12 extra pounds, and I am not going to get them off overnight. It will take me time to get them off.

The budget agreement begins a process that is critical to beginning the reduction of our deficit. The agreement will enact the largest nondefense spending cut in dollar terms in American history, just months after President Obama asked Congress for a spending freeze that would have provided no cuts whatsoever.

The Wall Street Journal points out:

> Domestic discretionary spending grew by 6 percent in 2008, 11 percent in 2009, and 14 percent in 2010, but this year will fall by 4 percent. That's no small reversal.

I believe they are correct.

Second, no one got everything they wanted. Some wanted more in cuts, some wanted less. I would have preferred we cut more, but this was the best deal we could get that could pass both Chambers of Congress and signed by the President.

Third, this debate has altered the conversation about spending, and that is a good thing. As columnist William McGurn wrote Wednesday, during the budget negotiations, Speaker BOEHNER helped change the national debate over spending ''from 'stimulus' and 'investment' to 'how much spending we need to cut'—which is why [the President] press[ed] the reset button'' in his speech this week on spending and debt. I think Mr. McGurn is correct. We have changed the fight from how much money we are going to spend on stimulus to how much we are going to cut from this and future budgets.

Once the final 2011 budget passes, and we move on to the much larger discussion about the 2012 budget, we will be talking not about saving billions but about saving trillions of dollars. The problem, as we all know, is a $14 trillion debt, with a large amount of that owned by China and by other foreign countries. It also represents over $53 trillion in unfunded liabilities.

In May, our Nation is expected to hit its debt ceiling, and the President has asked us to increase that ceiling. Senate Republicans and House Republicans—and I believe many Democrats as well—have said that in order to raise the debt ceiling, we need to do something significant about the debt and about constraining future spending. The longer we wait, the worse the problems will get. They are exacerbated over time. And we are not going to raise the debt ceiling without ensuring we don't have to keep on doing it in the future.

Raising taxes, as the President proposed, will not be helpful in this process. It is disappointing the only specific proposal the President laid out in his speech yesterday was, in fact, this call for higher taxes. Speaker BOEHNER has said raising taxes is a nonstarter, and I imagine the vast majority of Senate Republicans will take that position as well. Most Americans do not believe that we are undertaxed but that Washington has a spending problem.

I will briefly go over a few of the better ideas our conference has been discussing, which I think could attract support from both sides of the aisle.

First is a balanced budget amendment, which all Senate Republicans have cosponsored. This should not serve as a means to raise taxes but as a mechanism to ensure the Federal Government has to live within its means each year, just as most American families do.

Second, I believe there is strong support in the Republican caucus for a constitutional spending limitation at 18 percent of the gross domestic product. Why 18 percent? Because that is roughly equal to the revenue as a percentage of gross domestic product over the last 40 years. An 18-percent spending limit would stop Washington from spending more than it takes in each year.

And third—and I am glad to see the Senator from Missouri in the Chair while I pass on this compliment—Senators Corker and McCaskill have sponsored the Commitment to American Prosperity Act, known as the CAP Act. I strongly support their legislation. It would cap both mandatory and discretionary spending and put all government spending on the table.

Beginning in 2013, the CAP Act would establish Federal spending limits that would, over 10 years, reduce spending to 20.6 percent of the gross domestic products. That is the average of the last 40 years. To reduce any gamesmanship, the bill codifies the definition for emergency spending.

I know some of my colleagues on this side of the aisle wish to see even more dramatic reductions as a part of the CAP Act. I will note the Corker-McCaskill proposal is responsible and mainstream and it could, hopefully, attract a good deal of support from both sides of the aisle.

Over in the House of Representatives, there are also some good ideas. Budget Committee Chairman PAUL RYAN has been a leader on fiscal issues, and that Chamber will soon consider his budget plan for the next fiscal year. Chairman RYAN believes this blueprint could reverse Washington's trend of spending beyond its means and passing the debt on to our children and grandchildren, and I believe he is on target. His budget reflects the kind of difficult and politically unpopular choices lawmakers will need to make in order to do something about our unsustainable spending and debt.

Perhaps that is why Democrat Erskine Bowles, head of the President's deficit commission, praised the Ryan budget as ''a serious, honest and straightforward approach.'' Notably, Mr. Bowles and his cochairman Alan Simpson said the President's budget ''doesn't go nearly far enough in addressing the Nation's fiscal challenges.''

Chairman RYAN's budget would return Federal spending—specifically what is known as nondefense discretionary spending—to 2008 levels. That is the level before the massive spending unleashed by the Obama administration. The spending cuts proposed in Ryan's budget total $5.8 trillion over 10 years.

In a recent article, John Taylor, an economics professor at Stanford, Gary Becker, a Nobel prize winner, and George Shultz, former Secretary of Labor, Treasury, and State, wrote:

> Credible actions that reduce the rapid growth of Federal spending and debt will raise economic growth and lower the unemployment rate.

They also said:

> Higher private investment, not more government purchases, is the surest way to increase prosperity.

Reducing government spending can increase economic productivity and jobs.

President Obama has sought to stimulate the economy and create jobs by spending trillions of government dollars. What has that gotten us? RECORD deficits, excess borrowing—about 40 cents of every dollar the government now spends will have to be borrowed—and it has gotten us stubbornly high unemployment.

Chairman RYAN's budget also calls for tax reform through sensible and growth-promoting policies. The budget contemplates a top tax rate of 25 percent for individuals and businesses. Currently, the tax rate on business is 35 percent, the highest of all of the countries in the developed world. That rate, by the way, discourages investment, it discourages job creation, and it makes America an expensive place in which to do business. In effect, it encourages business to move their operations overseas, something all of us are very concerned about.

What we need are solutions that emphasize the strength of American entrepreneurs and our private sector, not the government; to spur the economy and help put people back to work.

In the debate ahead, I hope we can engage in serious discussions about how to take on our fiscal problems in a responsible way—to bring down the cost of government, boost our economy and promote economic growth. That is what Americans are looking for, and it is what our country needs.

The PRESIDING OFFICER (Mrs. MCCASKILL). The Senator from Oregon.

Mr. WYDEN. Madam President, I rise to make a parliamentary inquiry.

The Senate will soon receive from the House legislation to fund the Federal Government for the rest of this year—H.R. 1473. Normally, spending bills such as this one go through the Appropriations Committee. Despite the fact that this spending bill the Senate will soon take up covers funding for the entire Federal Government, including all appropriations bills for the year, it was never even considered by the House or Senate Appropriations Committees.

Snuck into this massive spending bill are legislative provisions that typically are not allowed by Senate rules to be included in the appropriations process. The Senate has a rule—rule XVI—that prohibits Senate legislative amendments to an appropriations bill. Despite this Senate rule, the spending bill the Senate will consider today includes provisions that are clearly legislative in nature. Specifically, I am referring to section 1858 of the spending bill which repeals free choice vouchers from the affordable care act that became law last year.

There should be no doubt that repealing a law or part of a law is legislating. In this case, section 1858 repeals part of the Internal Revenue Code. Amending the Internal Revenue Code is general legislation, not the appropriation of funds. In fact, the Congressional Budget Office has actually determined that free choice vouchers involve no appropriation of funds whatsoever.

Madam President, my parliamentary inquiry is whether repealing free choice vouchers in the spending bill the Senate will soon consider is legislating on an appropriations bill.

The PRESIDING OFFICER. The Chair is advised that repealing any law is legislative in nature, and repealing a law in an appropriations bill is legislating on an appropriations bill.

Mr. WYDEN. I thank the Chair for making this very clear; that repealing free choice vouchers—the opportunity to come up with a marketplace-oriented approach for people in a health care no man's land—in this spending bill is clearly legislating on an appropriations bill and that is not the way the Senate traditionally does business.

If this provision were brought up in the Senate, we now know it would be ruled out of order. It would be ruled out of order because in the Senate we simply do not legislate on appropriations bills. The Senate doesn't legislate on appropriations bills for a simple reason. Every Senator knows it would be open season for the special interest lobbyists all over this town.

The administration and this body took a stand earlier this year against earmarking—something the Chair is very much aware of—and I wish to quote from the President's State of the Union Address. The President said: The American people deserve to know that special interests aren't larding up legislation with pet projects. Both parties in Congress should know this: If a bill comes to my desk with earmarks inside it, I will veto it.

Madam President, I wish to have somebody explain the difference between letting a lobbyist slip an earmark into an appropriations bill and slipping legislative language into an appropriations bill that benefits a whole array of special interest lobbyists. It sure seems to have the same effect to me.

I am not certain who proposed eliminating free choice vouchers in this appropriations deal. Maybe a lobbyist asked for it or maybe some staffer with special interest sympathies saw an opportunity to send the lobbyist what one lobbyist called today ''an early Easter gift.'' But either way, I know with 100 percent certainty this decision was not made with the public interest in mind. The American people are not the ones who benefit from eliminating free choice vouchers. The American people like the idea of being able to have choices for their health care—choices, I would point out, that are much like the ones we have as Members of Congress.

The fact is this is one provision in the Patient Protection and Affordable Care Act that combined the thinking of colleagues on both sides of the aisle—Democrats who wanted to expand coverage and Republicans who have an interest in choice and competition. This was the one provision that provided a concrete path to holding down health care costs, and it has now been gutted by the special interests.

Some special interests are arguing that free choice vouchers would in some way harm employer-based health coverage. What we know for certain is that for the group of people who could access a free choice voucher, the employer-based health system is dysfunctional. It is dysfunctional for them. The group of people who are covered by free choice vouchers—folks who aren't eligible for the exchanges and folks who aren't eligible for subsidies—now have only two choices: coverage that is completely unavailable or coverage that is completely unaffordable.

The chairman of the Senate Finance Committee, at the time free choice vouchers was accepted, specifically talked about how this filled a gap in the bill. And now, with it gone, more than 300,000 Americans aren't going to have a path to affordable, good quality coverage. Free choice vouchers were needed at the time we worked on the affordable care act and they are even more necessary today.

For example, the Kaiser Family Foundation, in their most recent analysis, has demonstrated how consistently, again and again, more health care costs are being shifted onto the backs of American workers. In their most recent analysis, they found that employee health expenses in the last year have gone up 14 percent, and the employee was eating almost all of that. Almost all of it was being shifted onto the backs of the workers.

This was important today—it was important when we moved originally to enact the legislation. It is even more important today. The fact is, these individuals are only looking for another path because the system does not work for them. If it worked for them, we would not even have an issue. But as the chairman of the Senate Finance Committee pointed out, this is a gap in the system, a gap that, had we been able to sustain free choice vouchers and stop the lobbyists from stripping them out, we would have had a way to ensure that hundreds and hundreds of thousands of hard-working Americans—these are folks who work at jobs—would still be able to go to sleep at night knowing they had decent, good-quality, affordable coverage for themselves and their families.

The Senate does not legislate on appropriations bills because, as the President said so appropriately, we should be working to rebuild people's faith in the institution of government. We do not slip legislative language into these kinds of bills that benefits a few special interest groups at the expense of hundreds of thousands of Americans. This is not the way we do business.

Throughout 2009, I promised my constituents that I would not support health care reforms unless they were real reforms. This legislation lets special interest groups take real reform out of the health care law. It seems to me that, all over this town, the special interest groups are looking at the bill and they are saying now it is going to be possible, if we can just find, behind closed doors, some allies to take away real cost containment, real opportunities for good-quality, affordable coverage for people. This legislation takes real reform out of the health care law. Because I keep my promises, I will not support it.

I yield the floor. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. SCHUMER. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. Madam President, the last 2 weeks have been very good weeks for this country and this Congress. We are passing a continuing resolution and funding the Government and not letting the government close makes a great deal of sense. I think that was very much to the better. Even more important, we now will have a significant debate, over the next few months, about what this country should be like over the next several decades. That is very important for our country. It is what we should be doing. I salute Congressman RYAN for laying out on the table a vision and Speaker BOEHNER for supporting it.

I disagree with that vision, but they did have the forthrightness and the directness to put their views on the floor. It is a different vision than what America is today.

I also salute President Obama. He joined the issue yesterday, clearly, without obfuscation, directly, and showed the many places where he differed with Congressman RYAN. He laid out a different vision as to where America should go. In a minute, I will discuss my views of those visions, but I wish to say this at the outset: It is very good to have this debate. I hope this will be a month or two in which there will be invective and there will be clashes, but I hope, at the end of the day, the debate between the Republican vision of where America should go and the Democratic vision—between Congressman RYAN and President Obama—will be one of those times when historians will look back and say this is a place where America, through its Congress and its President, chose a direction. That is, after all, why we are here.

We have many different issues to consider, but the role of government, what it should do and what it should not, is probably the most important for the next several decades. The fact that the issue has been joined by Congressman RYAN on the one hand and President Obama on the other can only be good for America. What we will do is come to a conclusion, hopefully, in the next month or two. Let me give my views of those two visions.

Yesterday, President Obama delivered a thoughtful, inspired speech about the need to rein in our out-of-control deficit. He called for a comprehensive approach, including cuts to defense and mandatory spending, and he rightfully put revenue on the table. His is a serious plan, one that would reduce the deficit by $4 trillion over the next 12 years. As only a President can do, he powerfully framed the debate that will likely continue to rage, certainly for the next several months and probably over the next year and a half—long after we resolve the debt ceiling. This is a debate the American people want to have. It is a debate Democrats are ready and eager to engage in. It is a debate we believe we will win. We have the high ground.

The House Republican plan puts the middle class last instead of first. It will never ever pass the Senate, and we know the American people will reject it as well. The debate we just concluded, the debate about the CR, was about spending levels. The debate ahead of us is about more than spending levels, it is about the role of government itself.

House Republicans are not trying to balance the budget—no. They are trying to fundamentally alter Americans' relationship with their government. They believe the message of the last election was that Americans wanted a dramatic change, a great limitation in how much the Government should do. It is our view, as Democrats, that the American people gave us two messages. First, deal with the deficit. There is too much spending. I say, as a party, we ignore that message at our peril, but we have not ignored that message, neither in the CR nor in the President's proposals.

The American people sent a second message as loudly and as strongly as the first; that is, grow the economy, help the middle class continue to have better lives, as they have over the last five decades, make sure there are meaningful jobs in America. I believe a budget that reflects the American people's view has to do both these things: reduce the deficit but keep that American dream brightly burning, the American dream that the American middle class holds, which says the odds are quite good that we will be doing better 10 years from today than we are doing now and the odds are better still that our children will do better than we. That is what we believe American people told us to do.

We believe the budget revealed by Congressman RYAN and supported by Republicans is not what the American people want. It is a negative, pessimistic message. It is a message that says the great days of America are over and we do not believe it is what the people want. As we go through this debate, we shall see how that comes out. I believe we will prevail.

The Republican budget unveiled last week by Chairman RYAN is, on closer inspection, not a serious document. The pundits and political handicappers may have hailed it as a bold, daring approach to the fiscal challenges facing our country, but a closer examination reveals that Ryan's budget hews exactly to his parties' orthodoxy. It does not gore a single Republican ox. The House Republican budget puts the entire burden of reducing the deficit on seniors, students, and middle-class families. At the same time, it protects corporate welfare for oil companies, gives giant new tax breaks to millionaires and billionaires, and leaves Pentagon spending almost completely untouched.

Consider what PAUL RYAN wants to do to Medicare. His plan ends Medicare as we know it and replaces it with a private voucher system that will cut benefits. Seniors would be left to fend for themselves with no guarantee of affordable coverage. They would have to pay thousands of dollars more out of their pockets.

As this chart shows, under the current Medicare system, the average senior on Medicare in 2022 will contribute about 25 percent of the cost of their health care. But under the Ryan plan, seniors would have to pay 68 percent of the cost of coverage themselves according to the nonpartisan Congressional Budget Office.

That is an outrageous burden. Simply put, it would drive many seniors into poverty. This generation of seniors, the first generation who was able to say they could retire and not go to bed every night sweating about how they were going to pay for health care if they or their spouse got an illness, would be the last generation to do so under PAUL RYAN's vision.

In America, we have said we have bounty. And some of that bounty should go to those in their golden years, to those who worked hard and who built the country and who raised the families and fought the wars. They should not have to worry that they could not afford health care if, God forbid, a serious illness afflicted them. The Ryan budget turns its back on that vision.

Republicans have been patting themselves on the back recently for tackling entitlement reform, but their approach is nothing more than a rigid, ideological quest to unravel the social safety net.

Medicare certainly has cost issues, but a better way to protect and preserve Medicare for future generations is to cut out the waste and inefficiency that everyone knows exists, not to privatize the program. Our plan is simple when it comes to Medicare: Mend it, do not end it. In the health care reform law, we made a good downpayment on this effort. We began to shift Medicare in the larger health care system from an expensive, fee-for-service model toward a system that pays providers for episodes of care. The truth is, when it comes to reining in the cost of Medicare, the President did it first, and he did it better. We Democrats are willing to build off that law. We can make further reforms to the delivery system. It needs further reforms. And we will further drive down the costs. The Ryan budget reverses progress we have already made and in doing so reopens the doughnut hole, further burdening seniors' budgets.

It is bad enough that the Ryan budget ends Medicare as we know it and increases costs for seniors, but just as egregious is what RYAN proposes to do with all the money he takes from seniors on Medicare. As this second chart shows and as the President said yesterday, House Republicans want to give millionaires a new tax cut of $200,000. To pay for it, it would make 33 seniors each pay $6,000 more for health care. What kind of vision is that? The Ryan budget uses Medicare cuts to reduce the tax rate on millionaires and billionaires to 25 percent from 35 percent. That is the lowest level since 1931 when Herbert Hoover was President. The Ryan budget reduces taxes on the rich to the lowest level since 1931, the Hoover era, the era of the Great Depression.

I have nothing against the rich. God bless them. Many of them are living the American dream. They are what many of us aspire to be. But in order to keep that dream alive and get our country on firmer fiscal footing, we need a little shared sacrifice. Democrats want to work with Republicans to get our fiscal house in order, but we believe the best way to do it is to end the

millionaires' tax break, not cut Medicare benefits.

Let me be clear. A grand bargain on long-term deficit reduction is next to impossible unless we look at raising revenue. Unfortunately, Republican leaders are already trying to rule out revenue. If the other side refuses to even consider savings in the Tax Code, they will lose credibility with the American people. We simply cannot balance the budget by focusing solely on domestic discretionary spending, a narrow 12 percent slice of the budget. Cancer research and Head Start did not create our current deficit problem, and we will not fix it by going after cancer research and Head Start.

Thankfully, many rank-and-file Republicans seem to agree with the need to put revenue on the table. The Senator from Oklahoma, a true fiscal conservative, said a blanket defense of all tax cuts is profoundly misguided. My Republican friend from Nebraska said Republicans need to keep an open mind and keep everything on the table, including revenue. My Republican friend from Georgia had said that revenue, along with entitlement cuts, should be part of the budget compromise. My friend from Tennessee, with whom I work closely on the Rules Committee, said that tax subsidies for big oil ''may be too expensive.'' As you can see, many of my colleagues are prepared to tackle this challenge with, to use the phrase of the Republican Senator from Nebraska, ''an open mind.''

The bottom line is that any budget that leaves defense and revenue off the table is ultimately untenable. Indeed, a dollar cut from defense spending reduces the deficit just as much as a dollar cut from domestic discretionary spending. While there is certainly waste on the domestic discretionary side of the budget, there is also certainly waste on the defense side.

While we are certainly open to compromise, Democrats will not tolerate the House Republican budget assault on Medicare. It is not fair, it is not right, and it will never, never pass the Senate.

I am hopeful that both parties in both Chambers of Congress will come together to reach a reasonable, responsible deficit deal, but in order to do that, Republican leaders need to take off their ideological straitjackets. They can start by going to the drafting room and coming up with a fairer, more broad-based proposal than the Ryan budget.

In conclusion, Speaker BOEHNER needed Democrats to pass this year's budget, and he will need Democrats to pass a long-term deficit reduction plan as well. The sooner he abandons the tea party, the sooner we can have a compromise.

We hope the coming debate will yield a sound, serious deal. That is our hope. That is our wish. That is what the next few months are about. If it doesn't, we Democrats will have to take this contrast of priorities into 2012. We know that in that battle, too, we will have the high ground.

I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. Madam President, I see my distinguished colleagues, the senior Senator from Hawaii and the senior Senator from Mississippi, the leaders of our Appropriations Committee, on the floor. I just ask if I may be able to continue for 2 or 3 minutes.

Mr. INOUYE. Please.

Mr. LEAHY. Madam President, I appreciate the extremely hard work the majority leader—and I have told him this—and the President—I have told him that—and our distinguished chairman—I have told him that—the work they have done to get the best possible deal under extremely difficult circumstances.

I now understand that with the final resolution, I will not be able to vote for it, as I assume others in the Vermont delegation will not. I am afraid that it creates an impossible bargain. It averts a government shutdown at the expense of our overall national interests.

This year, Congress spent most of its time negotiating three rounds of deeper and deeper cuts in the current year's budget, an exercise in oftentimes misguided wheel-spinning which ignores the fact that discretionary spending is but a relative fraction of the overall budget while addressing some of the most pressing and urgent needs of ordinary Americans. Advocates paint this agreement in moral terms. I agree with them. Budgets are about our real priorities.

There is so much in this budget package that is inconsistent with basic Vermont and American values. Drastic cuts ending hunger programs for low-income women and children, elimination of Vermont's weatherization program, and cuts to economic development programs that grow jobs in my State of Vermont are not my idea of prudent sacrifices. There is no moral credit to Congress to cut vouchers for homeless Vermont veterans who served their country honorably, nor does Congress cover itself in glory by denying first-generation Vermonters help in going to college because of cuts to the TRIO Program. Is there moral good in eliminating housing counseling for low-income families facing foreclosure or slashing small stipends for seniors who are on Meals on Wheels? The estimates of these cuts in my little State range as high as $150 million—a tremendous burden at a time when we face the worst time since the Great Depression.

The reason we are here, as a column pointed out very well in our national papers yesterday, is because even though we had an agreement to pass an omnibus bill last December, at the last minute, those on the other side of the aisle who had agreed on that reneged, and of course we were not able to get the 60 votes necessary in the Senate.

I had supported that omnibus budget bill even though there were enormous cuts in it. It would have enacted tens of billions of dollars in carefully drawn, reasonable reductions below the White House budget proposal. The distinguished Senator from Hawaii had worked very hard and encouraged us to make cut after cut after cut. We all agreed with him. I agreed with him. It was in the omnibus. And if that had passed, we would not be here. But because those who had agreed to support it changed their minds at the last minute, it killed the omnibus bill and it forced the Congress into a series of stopgap funding bills and now into a slapdash continuing resolution.

In addition to the cuts in the omnibus bill, I also supported reductions of billions more, and I voted for billions of dollars in cuts and short-term reductions in the continuing resolutions earlier this year.

Now, some who tout this round of cuts as the most important and as the largest cuts in discretionary spending in history are the same ones who pushed through hundreds of billions of dollars of tax cuts to companies that ship jobs overseas—American jobs overseas—greatly adding to the profits of our oil companies that are now charging us $4 a gallon for gas and more; pushed through for multimillionaires, many of whom said they did not want the tax cuts—pushed it through nonetheless.

The correlation between those spending cuts and those unfunded tax cuts is direct. It is unflattering to the proponents of both initiatives.

Frankly, I am tired of being lectured on fiscal sanity from those who voted for an unnecessary war in Iraq, saying that is because of 9/11, even though, as we know from every single report that has come out, Iraq had absolutely nothing to do with 9/11. But we spent $1 trillion, thousands of American lives, tens of thousands of other peoples lives in Iraq, and then, for the first time in the history of this country, instead of paying for a war, as we always have in the past, we say: Oh, no, we will borrow the money. And by the way, we will give you a tax cut too.

So who paid for that war in Iraq? The men and women who valiantly fought there and their families who waited, wondering if they would come back alive, broken, or dead, and often were given the worst and grimmest news. They are the only ones who sacrificed. Everybody else got a tax cut, and we borrowed the money from China and everywhere else to pay for a war we should have never been in, and $1 trillion later, 10 years later, we are still spending tens of billions of dollars there.

Some corporations—some others made a lot of money; we did not. And then we spend another 8 or 9 years that we should not have been in Afghanistan doing the same thing—borrowing the money for that.

It seems that our soldiers paid a great burden, and the American people paid a great burden. But boy, some

made out like bandits. I don't want any lectures from those who gave the bandits their bag of gold.

I yield the floor.

FISCAL YEAR 2011 SAFER PROGRAM

Ms. LANDRIEU. Madam President, I want to highlight an important provision that is included in the Homeland Security division of this bill. It is related to the firefighter hiring program known as SAFER. In 2009 and 2010, Congress approved waivers for several restrictions of the SAFER grant program because in this economic downturn fire departments were struggling to meet those requirements. By adding this flexibility to the program, fire departments were able to make the best use of the funding provided in fiscal years 2009 and 2010. A provision in this bill maintains three of the same waivers for fiscal year 2011 and specifically allows for the grants to be used to retain and/or rehire personnel, to supplant local funds, and a local match is not required. While some might argue that it is a local responsibility to hire firefighters, it has been made clear disaster after disaster—and especially including catastrophic events such as the 9/11 attacks and Hurricane Katrina—that firefighters are the first people we call on from all over the Nation to serve in a national response. Of course, I supported the inclusion of all six waivers contained in the Inouye amendment. Through negotiations we were able to secure the provisions that allow for the retention and/or rehiring of firefighters, the waiver of a cost share, and the ability to supplant local funds.

Mr. INOUYE. I thank my subcommittee chairman for highlighting this important provision. Ensuring that the SAFER grants are available to retain and/or rehire firefighters and waiving match requirements will provide communities the assistance they need in these tough times.

Mr. CASEY. Madam President, much attention has been given to how the Ryan plan ends Medicare as we know it by turning Medicare into a voucher program.

For example, on April 6, 2011, AARP wrote to Congressman RYAN:

> Today's budget proposal appropriately acknowledges that health care costs must be addressed if the federal budget is to be balanced. However, rather than recognizing that health care is an unavoidable necessity which must be made more affordable for all Americans, this proposal simply shifts these high costs onto Medicare beneficiaries, and shifts the even higher costs of increased uninsured care onto everyone else. By creating a ''premium support'' system for future Medicare beneficiaries, the proposal will increase costs for beneficiaries while removing Medicare's promise of secure health coverage—a guarantee that future seniors have contributed to through a lifetime of hard work.

The Center for Budget and Policy Priorities put out a statement on April 6, 2011 stating:

> Many future Medicare beneficiaries with modest incomes, such as elderly widows who must live on $15,000 or $20,000 a year, also would likely be hit by the plan's Medicare provisions; the Medicare voucher (or defined contribution) they would receive would fall farther and farther behind health care costs—and purchase less and less coverage—with each passing year. Aggravating this problem, Ryan has said that his plan calls for repeal of a key measure of the health reform law that is designed to moderate Medicare costs—the Independent Payment Advisory Board. In other words, his plan would scrap mechanisms to slow growth in the costs of health care services that Medicare beneficiaries need, even as it cuts back the portion of those costs that Medicare would cover.

The Center for American Progress writes:

> Medicare as we know it would end for new beneficiaries in 2022 under the House Republican budget proposal. It would be replaced with a government voucher that would be paid directly to private insurance companies. This system would double costs to seniors. The nonpartisan Congressional Budget Office, or CBO, concluded that ''most elderly people would pay more for their health care than they would pay under the current Medicare system.''

However, there has been less discussion of the other ways in which the Ryan plan would hurt current beneficiaries.

So I would like to give some specific examples how the changes Congressman RYAN proposed will impact current Medicare beneficiaries.

The Republican plan will force beneficiaries to pay for preventive services and eliminates the free annual wellness exam they can currently receive. Nearly all 44 million beneficiaries who have Medicare, including 2.2 million in Pennsylvania, can now receive free preventive services—such as mammograms and colonoscopies—as well as a free annual wellness visit with their doctor.

The Republican plan will eliminate the efforts that have begun to close the doughnut hole. If the Republican budget becomes law, costs for Medicare beneficiaries who fall into the doughnut hole will increase drastically. Over 266,000 Pennsylvanians will pay an additional $149 million in 2012 and $3 billion through 2020.

The Republican plan hurts beneficiaries today by repealing improvements designed to save them money and provide needed services. It hurts beneficiaries even more beginning in 2022 when end Medicare as we know it and puts in place a voucher system to ration health care and increase costs for beneficiaries.

Mr. LEAHY. Madam President, last Friday night, in the absence of a budget deal, the Federal Government came within 1 hour of shutting its doors and all but emergency services. The obstacle to an agreement at that point was not a matter of spending levels or budget cuts. The obstacle was ideologically driven policy riders that some insisted on including in the budget bill. Thankfully, in the end, we prevailed in stripping out the abhorrent rider to bar funding for Planned Parenthood.

A small but vocal minority is adamant about eliminating one specific organization's health centers, which provide health care and family planning services for women nationwide. Planned Parenthood centers receive Federal funding from title X of the Public Health Service Act—the only Federal grant program dedicated to offering people comprehensive family planning and related preventive health services. President Nixon was instrumental in enacting this legislation, and it has been supported since then by lawmakers and Presidents of both parties. As many women can tell you, title X was a remarkable breakthrough in women's health care.

What a travesty it would have been to gut health services to women that literally have meant the difference between life or death, health or grave illness, to countless American women. Vermonters were outspoken in their opposition to this rollback for women's health, and I am proud of our State and grateful for our success in this round.

Tens of thousands of women in Vermont depend on title X of the Public Health Service Act for lifesaving preventive treatments and care. Around the country, there are many providers of title X services, but in Vermont, Planned Parenthood centers are the only clinics where many lower income women can go for family planning care. Planned Parenthood centers in Vermont offer women and teens annual health exams, cervical and breast cancer screenings, and HIV screenings and counseling. Last year in Vermont, Planned Parenthood provided critical primary and preventive services to nearly 21,000 patients.

In the last few weeks more than 6,000 Vermonters have contacted me about their support for the funds that make title X health services possible and for Planned Parenthood's long and commendable record of making title X's promise a reality for millions of American women in Vermont and across the Nation. I have heard from nurses and doctors in Vermont urging me to support funding for Planned Parenthood in order to continue essential care these centers offer to their own patients and to women who would not receive primary health care were it not for Planned Parenthood.

Despite the misleading and blatantly false statements of some ideologically driven advocates, more than 90 percent of the care Planned Parenthood health centers offer is preventive. In fact, 6 of every 10 women who use Planned Parenthood for title X services describe it as their primary source of medical care. And despite what some opponents of women's health funding have proclaimed, absolutely no title X funding can be used for abortion services. The sad irony is that defunding title X and Planned Parenthood would result in more unintended pregnancies, and probably more abortions.

This drive to defund women's health services offered by a particular organization also raises constitutional concerns. Article I, section 9, paragraph 3 of our Constitution expressly forbids passage of any ''bill of attainder.'' According to the late former Chief Justice of the United States, William Rehnquist, ''A bill of attainder was a legislative act that singled out one or more persons and imposed punishment on them, without benefit of trial. Such actions were regarded as odious by the Framers of the Constitution because it was the traditional role of a court, judging an individual case, to impose punishment.'' Yet those promoting the anti-Planned Parenthood rider clearly intend to single out one organization by name to ''punish'' it, ''punishing'' as well the millions of women who Planned Parenthood serves.

Proponents of this rider have cited what they call ''evidence'' that Planned Parenthood has acted unlawfully. Other supporters of this virulent effort charge that the organization has been ''accused'' of a variety of things. These comments make clear that their legislative intent is to punish for these unverified accusations. Some in fact have gone so far as to accuse Planned Parenthood of violating the law that prohibits any Federal funds to be used to provide abortions.

There is no substantive reason to believe such accusations. If there is any violation of this or any Federal law, it is the role of the executive branch to prosecute and try the offenders. That is not the role of this body, though that is what some are advocating, through their injection of accusations and partisan politics into this debate.

The Framers' original intent was to prohibit bills that single out one entity for punishment because that is not Congress's role in the separation of powers they so carefully devised for our Republic.

Aside from the serious constitutional issues with the pending measure is one naked fact from which proponents of this legislative rider cannot hide: Nothing in this pernicious rider would actually reduce spending. Their proposal would save not one penny. This is about ''punishment,'' not fiscal responsibility.

Does this Congress care more about what looks good on a bumper sticker or what matters in the daily lives of real people? The arrogance and shortsighted attitude of a minority has put at risk the lives and health of millions of women. My wife Marcelle is a cancer survivor. We were lucky. We had good health care and a salary that allowed us to pay the bills when she got sick. Other people are not so lucky. Without the services that Planned Parenthood provides, thousands of low-income women in Vermont would lose their ability to have regular cancer screenings that could save their lives too. That we are even considering the elimination of these health services to America's women is shameful. That it was the sticking point that nearly forced the shutdown of the Federal Government is a disgrace.

Title X was a true breakthrough for the health of American women. Should we as a nation walk back from the remarkable progress we have made in women's health? Of course not. The mean-spirited and ideological attacks must end, and these ideological assaults on women's health care must end.

Mr. LEVIN. Madam President, there is no doubt that we must take action to reduce our budget deficit. The question is, How will we accomplish this? Will we do as we have done all too often over the last few years, and protect the tax cuts of the well-to-do at the expense of middle-class families? Or will we seek a balanced approach that seeks to spread the burden of deficit reduction so that the upper income folks who have so prospered the last few years also contribute to the solution?

There is no question in my mind that deficit reduction requires shared sacrifice. By that test, the legislation before us is highly problematic. True, it manages to avoid some of the most extreme budget cuts that House Republicans included in their original appropriations bill. The bill before us is surely reasonable in comparison with that extreme measure. But the test cannot be whether it is better than HR 1. We can and must do better.

What troubles me most is that this legislation seeks to address the problem in only one manner, targeting nondefense discretionary programs that make up a fraction of our budget. I remain convinced it is a mistake to attack the deficit only through cuts in domestic discretionary spending, and not also end the huge Bush tax cuts for upper incomes, and close tax loopholes and reduce tax expenditures that most budget experts believe must be part of any serious deficit reduction plan. Simple math makes clear that those kinds of revenues must be a part of the solution.

The refusal to take a balanced approach in this legislation means that to reach its deficit reduction target, this bill makes cuts that are, in my mind, too large. It reduces funding for the COPS program and grants to state and local law enforcement agencies by more than one-quarter, making our communities less safe. It reduces energy efficiency funds by 18 percent, as though this issue wasn't crucial to our Nation's future security and prosperity. It cuts funding for the Centers for Disease Control and Prevention by 11 percent, as though the health of our citizens was not a priority.

This bill eliminates all funding for the HUD Housing Counseling Assistance Program, eliminates it entirely, ignoring the fact that communities across the nation are reeling from a foreclosure crisis.

This bill cuts by 20 percent funding for Army Corps of Engineers construction. That provides funding for the barrier that we hope will keep destructive Asian carp out of the Great Lakes, and believe me, that is false economy. The economic damage Asian carp can do if they establish themselves in the Lakes is incalculable. The bill also cuts more than one-quarter of funding for vital water infrastructure programs important not just in Michigan but around the state, and it makes a deeply misguided 37 percent cut in Great Lakes restoration initiative funding, a totally unjustifiable reduction of our commitment to lakes that are an engine of economic activity for all the states in the Great Lakes region.

There are some important programs that have escaped the worst cuts. I am pleased that students will still be able to receive a maximum Pell grant of $5,500, and that the misguided proposal to reduce these grants has been defeated. I am pleased that this bill generally avoids misguided Republican attempts to deprive financial regulatory agencies of the resources they need to prevent the next financial collapse.

This bill rescinds highway funding that was provided at least 13 years ago, including funds from the ISTEA reauthorization bill. That should mean that the funding for the traverse city bypass, later reprogrammed to the grand vision, will not be included in that rescission since it is no longer part of the ISTEA bill. At the request of the community, the funds were reprogrammed in the Consolidated Appropriations Act of 2005 for an entirely different purpose than the original legislation and in an entirely different bill. Since that time the community has completed the comprehensive grand vision study and is now poised to implement its recommendations.

I am also glad that the bill contains a full year Department of Defense Appropriations Act, so that our troops and their families will no longer have any doubt about when their next paycheck will arrive. And I am pleased that it does not include ideologically motivated policy riders that would interfere with women's health care and environmental protection.

But on balance, this bill lacks balance. It seeks solutions only in cutting domestic programs that make our Nation safer and more prosperous, that protect our environment, and that help the families that have suffered most during the financial crisis and recession, while protecting the tax cuts that benefit those at the very top.

Because of that lack of balance, that lack of fairness, I am unable to support this bill. But I am encouraged that, thanks to the leadership President Obama showed this week, and thanks to the voices of the many of us who are arguing for a balanced approach to deficit reduction, we are finally engaged in an open and honest debate over the vision we should follow for the future of our country.

In the weeks and months ahead, we will finally seek an answer to the question of whether we will all share in the

sacrifices required, and whether the same people who have done so very well over the last decade or so will be asked to contribute. I agree with our President, who said this week:

At a time when the tax burden on the wealthy is at its lowest level in half a century, the most fortunate among us can afford to pay a little more. I don't need another tax cut. Warren Buffett doesn't need another tax cut. Not if we have to pay for it by making seniors pay more for Medicare. Or by cutting kids from Head Start. Or by taking away college scholarships that I wouldn't be here without. . . . And I believe that most wealthy Americans would agree with me. They want to give back to the country that's done so much for them. Washington just hasn't asked them to.

Let me add that I will vote against both of the correcting resolutions before us today. It is ironic indeed that Republicans claim to be fighting the deficit by blocking the implementation of the Patient Protection and Affordable Care Act, which according to the Congressional Budget Office will reduce the deficit by $210 billion from 2012 to 2021. Likewise, the attempt to prohibit funding for Planned Parenthood has nothing to do with the deficit and everything to do with extreme ideology.

The PRESIDING OFFICER. The Senator from Hawaii.

Mr. INOUYE. Madam President, after 6½ months it appears the Congress may finally be able to finish the fiscal year 2011 appropriations process. Earlier today the House passed a Department of Defense Appropriations bill which includes an extension of the current continuing resolution through the end of the fiscal year. If the Senate passes this legislation and the President signs it, we will be able to close the books on this issue and focus our attention on the budget for fiscal year 2012.

In reflecting upon how we got here, I wish to point out to my colleagues that the fundamental reason we find ourselves debating a continuing resolution today is because 1 year ago the Congress was unable to agree upon a budget resolution. The failure to reach a consensus agreement on the budget meant the Appropriations Committee was asked to resolve the differences in spending itself. After months of attempting to do so, the committee was unable to bridge the gap between the Republicans and Democrats.

When the committee finally adopted a funding level proposed by the Republicans, a hostile political environment crippled the committee's efforts to enact a bipartisan budget plan. As we go forward I would ask all of my colleagues to think carefully about this, and I urge everyone to cooperate both here in the Senate and with our colleagues in the House. If we can fashion a compromise budget agreement this year it might allow our committee to restore the bipartisan working relationship which has long been the hallmark of the committee for generations. I sincerely hope that will be the case.

In some respects today we can take that first step. The bill that we are considering reflects a bipartisan agreement reached among the leadership of the House and Senate and the White House with the details being worked out by the Committees on Appropriations. It is a very tough measure that cuts domestic spending more than I am comfortable with, but it is dramatically superior to the alternative passed by the House 2 months ago and equally superior to not passing an extension through the end of the year.

In total, the measure reduces government spending $78.5 billion below the President's request. It is nearly $40 billion below the enacted level for fiscal year 2010. Never before have we cut our appropriated funding so drastically. By far and away this is the largest 1-year cut from the President's budget request in the Nation's history. The bill cuts all categories of spending: defense, international, and domestic, discretionary and mandatory. While some of my colleagues will argue that the Department of Defense was ''let off the hook,'' others will probably say the bill cuts more from defense than is prudent.

Including military construction, the Defense Department's budget is reduced $20 billion below the President's request. In comparison to the fiscal year 2010 enacted funding, the department's budget is approximately $2 billion below a freeze, with military construction down by more than $6 billion and the rest of defense increasing by more than $4 billion.

The priority in this defense bill is first and foremost to ensure that we treat our military personnel and their families fairly. This means a 1.4 percent pay raise. It means fully funding health care, but it also means ensuring that our forces have the proper equipment and the funding necessary to operate it. While funding is austere, the bill includes important enhancements such as buying more missiles for our Aegis missile defense ships, and more helicopters for search and rescue operations and medical evacuation in Afghanistan. It means investing in new technologies at a faster pace than requested, purchasing more drones to find and wipe out terrorists, and ensuring the safety of our soldiers and Marines by accelerating the purchases of safer Stryker vehicles and MRAPs.

Accomplishing this while at the same time reducing defense spending has been a challenge, but working with our colleagues in the House we have put together a plan which fulfills all of these objectives.

But this bill isn't just about defense. For the State Department and foreign assistance, we are providing $8 billion less than was requested. This low level of funding was the most we could get our colleagues in the House to agree with, and it means many important programs will have to be reduced. We won't be able to make as much progress on fighting AIDS and hunger. We won't have as much funding as I would like to support our operations in Afghanistan and Iraq. But considering the budget situation we face, we will have to make do.

It is in the area of domestic spending in which the bill makes the most serious reductions, with the total included being approximately $50 billion below the President's request. In achieving this rate of savings, this compromise measure sought out as many different ways to reduce spending as possible to allow us to preserve our critically important priorities. We were able to mitigate the damage by looking at areas where we could identify savings from mandatory spending and by rescinding lower priority funds. In total, domestic discretionary spending is cut by $38.3 billion while mandatory spending comes down by $17.7 billion.

Many, many programs had to be cut to reach these levels. In health care, in education, in housing, in infrastructure, but this bill is much better than the approach adopted by the House in HR 1. For example, we were able to fully fund Head Start—restoring the House Republican cut of $1.4 billion which would have denied 218,000 children an opportunity to learn. We provided $30.7 billion for NIH, $1.4 billion more than the House Republicans. We provided $2.1 billion more for food safety than the Republican plan.

In energy, housing, our National Parks, our transit programs, in every area we forced the House to back away from their unwise cuts which would have devastated the progress we are making to restore the economy and protect our people. Crazy ideas like furloughing Social Security workers and shutting off food inspections were turned around. But there is more to this story. The House bill wasn't just about dangerous and drastic cuts; it was also an attempt to legislate terrible social policy on a must pass emergency spending bill.

Here too we turned them around. Nearly a dozen provisions to overturn health care reform were rejected. Eleven riders to gut the Environmental Protection Agency were rejected. Provisions to eliminate successful programs like needle exchanges, and the Corporation on Public Broadcasting were denied. Their attempts to rewrite gun laws and net neutrality were rejected.

It is true and regrettable that we had to accept limited provisions affecting the District of Columbia on abortion and school vouchers. We are not happy about that. Still, in comparison to what the House wanted to do, this bill is an enormous improvement even for the District of Columbia.

As in any compromise, neither party to the agreement is happy with every item in the bill. Some on the other side would have preferred more cuts in domestic programs while most members on our side believe we have cut our domestic priorities too deeply. But, this is truly a bipartisan bill. When it is approved it will be the most significant

legislation to pass the Congress this year.

I believe this bill provides a road map on how we can continue to work across party lines to achieve what is necessary for the country. Yesterday the President unveiled his long-range strategy to reduce the deficit. His approach is extremely different than the approach of the House Republicans. In 2 weeks our Senate Budget Committee will unveil its plan on regaining fiscal control. It is not overstating the case to say that it is truly a matter of urgent national security that we reach across party lines and conclude an agreement with our colleagues in the House to regain control over our government's finances.

Both parties feel strongly about their recommendations and the structure of future budgets. The philosophical divisions are wide. But as I watched the President's speech, I thought about this continuing resolution and how we were able to bridge a huge divide between the Houses and the political parties. Because of this experience I became more optimistic that we can find a way to work with our House colleagues and come up with a deficit reduction plan that would represent all of our best efforts to act in the Country's interest.

Today it is vitally important that we take that first step toward putting our fiscal house in order by adopting this bill. It is also critical that the Congress demonstrate that it can act in the spirit of compromise and in the national interest. This bill represents a fair compromise which will meet our country's needs, and I urge all my colleagues to support it.

Madam President, I submit pursuant to Senate rules a report, and I ask unanimous consent that it be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DISCLOSURE OF CONGRESSIONALLY DIRECTED SPENDING ITEMS

I certify in accordance with rule XLIV of the Standing Rules of the Senate that there are no congressionally directed spending items contained in H.R. 1473.

Mr. INOUYE. I yield the floor.

The PRESIDING OFFICER. The Senator from Mississippi.

Mr. COCHRAN. Madam President, as ranking member of the Committee on Appropriations, I regret that the Senate must consider in mid-April an appropriations bill for a fiscal year that is already half over. It disturbs me that we have subjected the Federal Government to eight short-term continuing resolutions over the past 6 months. Such measures are inefficient, add hidden costs to Federal contracts and procurements, and make it difficult for State and local governments to plan effectively. Such measures also have a detrimental impact on the morale of the Federal workforce, including our men and women in uniform who last week, even while engaged in hostilities overseas, were left wondering about their next paycheck.

However, this delay has made possible significant spending reductions. The bill cuts $38 billion from the spending levels in place at the beginning of this Congress. It also cuts $78 billion from the President's fiscal year 2011 budget request. These reductions in spending will compound over time and, if sustained, will result in a significant reduction in our national debt. These reductions don't come without consequences, however. The bill cuts programs that are important both nationally and in my State of Mississippi. This bill contains rescissions of funds I once fought hard to appropriate but which have not been spent for a variety of reasons. In many cases, we don't yet know the precise impacts of the various cuts because so much discretion is left to the implementing agencies. We all recognize, however, that sacrifices must be made in order to achieve the greater good of fiscal solvency.

We also recognize that the bill is only one step toward addressing our Nation's debt problem. Although discretionary spending will be an important component of any solution to that problem, we will fail to solve it if we focus on discretionary spending alone. Hopefully, the agreement reached on this bill will lay a foundation for the much more difficult decisions on entitlements and taxes that lie ahead.

We also realize some will think this bill cuts far too little and some will think it cuts too much. I suspect that, individually, each of us could write spending bills at much lower levels than are contained in this legislation. We could fund those things we deem to be priorities and significantly cut back or eliminate the rest. But this legislation, instead, represents the priorities of the people of the entire Nation as expressed and negotiated by their duly elected Representatives, Senators, and the President.

On balance, the process has worked well. But without a budget resolution or any agreement on an appropriate top-line discretionary spending level, there was little agreement on the level of funding in appropriations bills. As a result, we are once again presented with a single trillion-dollar package that no Senator has had an opportunity to amend. The bill gives enormous flexibility to the executive branch because it does not contain the detailed directives typically found in appropriations bills and reports. And, of course, it is 6 months late.

I hope in the coming months that Congress and the President will reach consensus on a budget plan that will address each of the major drivers of our current fiscal imbalance, including discretionary spending. We need to find a way to bring fiscal year 2012 appropriations bills to the floor individually and get them to conference with the other body. I believe such a process would provide needed constraints on spending levels while allowing all Members to influence the content of the individual bills.

Madam President, I will vote for this bill, and I urge the Senate to approve it.

The PRESIDING OFFICER (Ms. KLOBUCHAR). The Senator from Texas is recognized.

Mr. CORNYN. Madam President, I ask unanimous consent to speak for up to 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Mr. CORNYN pertaining to the submission of S. Res. 148 are printed in today's RECORD under ''Submitted Resolutions.'')

Mr. CORNYN. Thank you, Madam President. I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

SYRIA

Mr. LIEBERMAN. I thank the Chair. Madam President, it is coincidental, but my remarks follow in a logical path from those of my colleague and friend from Texas, particularly with regard to the thoughtful questions he raised about Syria.

I have come to the floor to speak about the historic and extraordinary events that are taking place in Syria where, for the past 3 weeks, the Syrian people have been peacefully and courageously taking to the streets of their cities. I wish to talk particularly about what may happen in Syria over the next 24 hours.

What is happening, of course, in Syria is part of a broader story that is unfolding across the Middle East—a democratic awakening in which millions of ordinary people are rising up against corrupt autocratic regimes that have ruled the region and suppressed these people for decades. But the strategic stakes in Syria are among the highest anywhere in the region. In fact, I would say what happens in Syria in the coming days will have far-reaching consequences for the future of the Middle East and for our national security here in the United States.

The uprising in Syria began, like those in Tunisia and Egypt, spontaneously and unexpectedly. It rose from the people, not from outside. It began in the city of Dara'a, in southern Syria near the Jordanian border, after the Assad regime arrested a group of schoolchildren there. When the citizens of Dara'a began peacefully assembling to protest this absurd act of repression, the police responded by firing live ammunition into the crowd. Rather than being intimidated by this violence, however, the protest movement persisted and spread.

Although the Assad regime was trying desperately to prevent accurate information about what is happening inside Syria from reaching the rest of the world, it is clear that people in many cities around the country are now in open revolt against the Assad regime.

From Latakia, to Aleppo, and from the Kurdish northeast to the villages along the Mediterranean coastline, more and more Syrians from diverse backgrounds are rising up and demanding their freedom.

What exactly are they asking for? It is the same basic demands we hear throughout the region, and they are very familiar—they should be—to the American people, because they are the very demands that energized and motivated our rebellion and the American Revolution and the founding documents of our country. The people of Syria want greater political freedom and they want economic opportunity. They want into the modern world. They want to be treated with respect by their government, and they want an end to the culture of corruption and impunity that surrounds the Assad regime.

How has Bashar al Assad reacted to these legitimate grievances? The answer is he has responded not by offering reform but by unleashing what President Obama has rightly characterized as abhorrent violence and repression against the Syrian people. He has responded with thugs and militias who have attacked peaceful protestors. He has responded by spouting conspiracy theories rather than loosening his autocratic grip. And as we know now, he has responded by calling on his allies, his patrons in Teheran, to help him crush the demonstrations by the Syrian people, just as the Iranian regime—the fanatical, extremist, expansionist regime in Teheran, stamped out the protests that took place in Teheran after the June 2009 election.

It is now clear what path Bashar al Assad is on. Rather than pursuing reform, he is taking a page from the Qadhafi model. He is betting that he can beat his people into submission through force and that the world will let him get away with slaughter.

Let's be very clear what it means if Bashar succeeds. It will send a most perverse but unmistakable message that leaders such as Mubarak and Ben Ali in Egypt and Tunisia respectively and who are allied with the United States get overthrown, but leaders such as Assad, who are allied with Iran, survive. Is that a message we want to send?

What about tomorrow? Why do I focus on the next 24 hours? Tomorrow is likely to be a critical day for the future of Syria as protestors come together after Friday's prayers. There is a significant danger that it will also become a very bloody day if Assad continues on the path of violence and brutality against his own people.

This is, therefore, an urgent moment for American leadership, at least for America's voice to be heard. It is important for President Assad in Damascus to know today, before the protests that are likely to take place throughout Syria tomorrow, that his regime will be held accountable for its actions.

I hope we will be prepared to act quickly together with the world community if Assad fails to heed the will of the Syrian people and tries to hang on to power through repression and murder.

What can we do? Well, to begin with, we can impose tough and targeted sanctions on the Syrian officials responsible for the human rights abuses that are being perpetrated against their own people. We can also work with our allies to summon a special session of the U.N. Human Rights Council in Geneva, just as we did in the case of Libya, and we can refer Assad's regime to the international criminal court, just as we did with Qadhafi.

We should also embrace the Syrian opposition, the freedom fighters. I hope senior American officials will meet with prominent Syrian dissidents who are here in Washington now. I also urge the administration to speak out clearly in support of the Syrian people who deserve praise for their courage as they risk their lives for freedom and human rights. They must know that the United States, still the beacon of liberty in the world, stands on their side. In the face of attacks by the Syrian regime, Syrian protesters have remained remarkably peaceful, as the protesters in Tunisia and Egypt before them did. In the face of sectarian provocations by Assad, the people of Syria who are protesting have remained together, unified, giving a message of national unity.

I know some have suggested that we should hesitate before throwing our support to the Syrian opposition, to the Syrian people as they rise up, and this argument goes like this: Bashar al Assad is the devil we know. We don't know what might replace him if he fails. But we know enough about Bashar al Assad to know, and we know enough about the opposition to know that it cannot be worse than Assad and will be much better.

The arguments that we should wait and see are, in my opinion, moral and strategic nonsense when we look at the record of Assad. He is Iran's most important Arab ally and, in some senses, Iran's only real ally and the strategic linchpin between Iran and its terrorist proxies, Hamas and Hezbollah, whom he sustains with financial and military support. Assad is responsible for a terrible campaign, long standing, of intimidation and destabilization of Lebanon, and the blood of Lebanese leaders—too many of them—is on his hands, including that of the great Lebanese leader Rafik Hariri.

As Senator CORNYN said, Assad also has the blood of countless American soldiers on his hands, having allowed Syria to be used for years by foreign extremist fighters affiliated with al-Qaida and their ilk to head to Iraq to attack and kill Americans and Iraqis.

Finally, let's not forget Syria's illegal nuclear activities. This is a regime that tried to build a secret nuclear reactor. They did so with help from North Korea. This is a regime that continues to refuse to cooperate with the International Atomic Energy Agency in its investigation of Syria's illegal nuclear activities.

The plain fact is that Bashar al Assad is not a reformer, he is a dictator. He runs a totalitarian regime that has long been one of the worst in the Middle East.

This is a regime that has repressed, intimidated, and, in fact, tortured and slaughtered Syrian people. It is a regime that is deeply corrupt, and it is a regime that has been a menace to its neighbors and to the cause of peace throughout the region.

We now have an opportunity—and I say a responsibility—to support freedom for the Syrian people as they seek a better future for themselves. It would be a shame if they and we lost this opportunity for the Arab spring to come to Syria. I hope, together with our allies, we will seize this moment and stand in solidarity with the people in Syria who are fighting for the fundamental values on which our own country was built: freedom and opportunity.

I yield the floor and suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant editor of the Daily Digest proceeded to call the roll.

Mrs. MURRAY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

CORRECTING THE ENROLLMENT OF H.R. 1473

Mrs. MURRAY. I ask the Chair to lay before the Senate H. Con. Res. 35.

The PRESIDING OFFICER. The clerk will report the concurrent resolution by title.

The legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 35) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473.

The PRESIDING OFFICER. Under the previous order, there is 2 minutes of debate, equally divided, prior to the vote.

Mrs. MURRAY. Madam President, I yield back all time and ask for the yeas and nays.

The PRESIDING OFFICER. Without objection, it is so ordered.

Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the concurrent resolution.

The clerk will call the roll.

The legislative clerk called the roll.

The result was announced—yeas 47, nays 53, as follows:

[Rollcall Vote No. 59 Leg.]

YEAS—47

Alexander	Boozman	Coats
Ayotte	Brown (MA)	Coburn
Barrasso	Burr	Cochran
Blunt	Chambliss	Collins

Corker
Cornyn
Crapo
DeMint
Ensign
Enzi
Graham
Grassley
Hatch
Hoeven
Hutchison
Inhofe
Isakson
Johanns
Johnson (WI)
Kirk
Kyl
Lee
Lugar
McCain
McConnell
Moran
Murkowski
Paul
Portman
Risch
Roberts
Rubio
Sessions
Shelby
Snowe
Thune
Toomey
Vitter
Wicker

NAYS—53

Akaka
Baucus
Begich
Bennet
Bingaman
Blumenthal
Boxer
Brown (OH)
Cantwell
Cardin
Carper
Casey
Conrad
Coons
Durbin
Feinstein
Franken
Gillibrand
Hagan
Harkin
Inouye
Johnson (SD)
Kerry
Klobuchar
Kohl
Landrieu
Lautenberg
Leahy
Levin
Lieberman
Manchin
McCaskill
Menendez
Merkley
Mikulski
Murray
Nelson (NE)
Nelson (FL)
Pryor
Reed
Reid
Rockefeller
Sanders
Schumer
Shaheen
Stabenow
Tester
Udall (CO)
Udall (NM)
Warner
Webb
Whitehouse
Wyden

The PRESIDING OFFICER (Mr. FRANKEN). On this vote, the yeas are 47, the nays are 53. Under the previous order requiring 60 votes for the adoption of the concurrent resolution, the concurrent resolution is rejected.

The Senator from Washington.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the following votes be 10-minute votes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Under the previous order, the motion to reconsider is considered made and laid upon the table.

CORRECTING THE ENROLLMENT OF H.R. 1473

The PRESIDING OFFICER. Under the previous order, the clerk will report H. Con. Res. 36, which was received from the House.

The assistant legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 36) directing the clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473.

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided prior to the vote.

The Senator from Washington.

Mrs. MURRAY. Mr. President, I yield back all debate time, and I ask for the yeas and nays.

The PRESIDING OFFICER. Is there objection? Without objection, it is so ordered.

Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the concurrent resolution.

The clerk will call the roll.

The assistant legislative clerk called the roll.

The result was announced—yeas 42, nays 58, as follows:

[Rollcall Vote No. 60 Leg.]

YEAS—42

Alexander
Ayotte
Barrasso
Blunt
Boozman
Burr
Chambliss
Coats
Coburn
Cochran
Corker
Cornyn
Crapo
DeMint
Ensign
Enzi
Graham
Grassley
Hatch
Hoeven
Hutchison
Inhofe
Isakson
Johanns
Johnson (WI)
Kyl
Lee
Lugar
McCain
McConnell
Moran
Paul
Portman
Risch
Roberts
Rubio
Sessions
Shelby
Thune
Toomey
Vitter
Wicker

NAYS—58

Akaka
Baucus
Begich
Bennet
Bingaman
Blumenthal
Boxer
Brown (MA)
Brown (OH)
Cantwell
Cardin
Carper
Casey
Collins
Conrad
Coons
Durbin
Feinstein
Franken
Gillibrand
Hagan
Harkin
Inouye
Johnson (SD)
Kerry
Kirk
Klobuchar
Kohl
Landrieu
Lautenberg
Leahy
Levin
Lieberman
Manchin
McCaskill
Menendez
Merkley
Mikulski
Murkowski
Murray
Nelson (NE)
Nelson (FL)
Pryor
Reed
Reid
Rockefeller
Sanders
Schumer
Shaheen
Snowe
Stabenow
Tester
Udall (CO)
Udall (NM)
Warner
Webb
Whitehouse
Wyden

The PRESIDING OFFICER. On this vote, the yeas are 42, the nays are 58. Under the previous order requiring 60 votes for the adoption of the concurrent resolution, the concurrent resolution is rejected. Under the previous order, the motion to reconsider is considered made and laid upon the table.

DEPARTMENT OF DEFENSE AND FULL-YEAR CONTINUING APPROPRIATIONS ACT, 2011

The PRESIDING OFFICER. Under the previous order, the clerk will report H.R. 1473, which was received from the House.

The assistant legislative clerk read as follows:

A bill (H.R. 1473) making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, and for other purposes.

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate, equally divided prior to a vote.

The Senator from Illinois.

Mr. DURBIN. Mr. President, I yield back all time on both sides and ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second? There appears to be a sufficient second.

The yeas and nays were ordered.

The PRESIDING OFFICER. If there is no further debate, the question is on the third reading of the bill.

The bill was ordered to a third reading and was read the third time.

The PRESIDING OFFICER. The bill having been read the third time, the question is, Shall the bill pass? The yeas and nays have been ordered and the clerk will call the roll.

The legislative clerk called the roll.

The result was announced—yeas 81, nays 19, as follows:

[Rollcall Vote No. 61 Leg.]

YEAS—81

Akaka
Alexander
Ayotte
Barrasso
Baucus
Begich
Bennet
Bingaman
Blumenthal
Blunt
Boozman
Boxer
Brown (MA)
Brown (OH)
Burr
Cantwell
Cardin
Carper
Casey
Chambliss
Coats
Cochran
Collins
Conrad
Coons
Corker
Cornyn
Durbin
Enzi
Feinstein
Franken
Gillibrand
Grassley
Hagan
Harkin
Hoeven
Hutchison
Inouye
Isakson
Johanns
Johnson (SD)
Kerry
Kirk
Klobuchar
Kohl
Kyl
Landrieu
Lautenberg
Lieberman
Lugar
Manchin
McCain
McCaskill
McConnell
Menendez
Merkley
Mikulski
Moran
Murkowski
Murray
Nelson (NE)
Nelson (FL)
Portman
Pryor
Reed
Reid
Roberts
Rockefeller
Schumer
Sessions
Shaheen
Snowe
Stabenow
Tester
Thune
Udall (CO)
Udall (NM)
Warner
Webb
Whitehouse
Wicker

NAYS—19

Coburn
Crapo
DeMint
Ensign
Graham
Hatch
Inhofe
Johnson (WI)
Leahy
Lee
Levin
Paul
Risch
Rubio
Sanders
Shelby
Toomey
Vitter
Wyden

The PRESIDING OFFICER. On this vote the yeas are 81, the nays are 19. Under the previous order requiring 60 votes for passage, the bill is passed.

The bill (H.R. 1473) was passed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table.

Under the previous order, the Secretary will immediately notify the House of the Senate's action on the House measures.

The majority leader.

MORNING BUSINESS

Mr. REID. Mr. President, I ask unanimous consent the Senate proceed to a period of morning business for debate only until 7 p.m. tonight, with Senators permitted to speak for up to 10 minutes each; further, that the majority leader be recognized at 7 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from South Carolina.

PORT OF CHARLESTON

Mr. GRAHAM. I ask unanimous consent to enter into a colloquy with my good friend, the majority leader.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. GRAHAM. Mr. President, a lot of Members now understand the problem we have with the port of Charleston in 2011. There is no money in the President's budget to do a scoping study. Under the new rules concerning earmarking, it has been very difficult to find a way forward. With the help of the majority leader and his staff and the people on Appropriations—the staffs of Senators FEINSTEIN and LAMAR ALEXANDER—we came up with

language that would allow 12 different ports to have studies completed in fiscal year 2011, if the Corps chose to engage in those studies. It was not a requirement, and it had no sums required in terms of what the Corps had to spend. It was purely discretionary. Unfortunately, our House colleagues did not accept that language.

My problem is that in fiscal year 2011, there is no mechanism as of yet to allow a scoping study to be done for the potential deepening of the Charleston harbor to accept supercargo ships coming through the Panama Canal in 2014. This harbor, along with others, has to be deepened to accept these new ships. The amount of money is $40,000 on the Federal side to be matched by the State. People ask me: Why can't you come up with the money? Boeing, BMW, Michelin, the State of South Carolina?

I would do the $40,000, but I can't. You cannot have a private entity take over a Federal Government responsibility. So this is one of those situations that is a catch-22. It is an anomaly in the law. The Vice President's office and Congressman CLYBURN, a lot of us, Congressman SCOTT, have been working diligently, with the assistance of the majority leader, to find a pathway forward within the current system. We are very close to finding a way to get this study done because it was a previously authorized program under current law.

I have put a hold on everything I could put a hold on.

Now I believe we are making progress. The majority leader has some needs, and I want to let him know I am willing to work with him and others to end the Senate well before we go out on Easter break. I thank him for the help he has given me to take care of a problem that no one could have anticipated. But it is a real problem for the people of South Carolina. I wish to let him know I appreciate the effort.

The PRESIDING OFFICER (Mr. BEGICH). The majority leader.

Mr. REID. Mr. President, I say to my friend the distinguished Senator from South Carolina, I am aware of the 12 ports that need help. But out of the 12, there is none more needed—and we as a country would get such a bang for our buck—to do what is necessary than the port of Charleston. I first compliment the Senator from South Carolina for his proposed solution to a challenge facing the State. He is dogged in representing the State of South Carolina. This is an issue that is important to the people of his State. His solution would not in any way violate any of the rules we have in the Senate. It is something that would not be part of congressionally directed spending in the true sense of the word that has been not approved by people in recent years. I have been part of the Appropriations Committee since I first came to the Senate.

I love that committee. I know the good things it can do for our country and has done for our country. This merit-based competitive port fund that has been suggested would not be limited to South Carolina, even though I think it is the most needy of the 12. This would not guarantee that the port study in Charleston would go forward but would provide the Corps the opportunity to move forward should they choose.

Mr. President, I not only have been a member of the Appropriations Committee, but for a long, long time—a long time—the Senator from New Mexico, Mr. Domenici, and I—that was our subcommittee, Energy and Water, and that is where this money comes from.

This is so necessary to be done. I understand the Corps' obligations. This is something we have to do. And even though my friend acknowledged this vote we just took care of the funding until the end of this year—but that is the end of this fiscal year. There are going to be other pieces of legislation to come to this floor. We could, at any time—any time—move forward on this. I thought we had a solution because of the anomaly we found ourselves in to work this out with the House of Representatives.

It is not often that I am a cheerleader for pieces of legislation that are suggested and moved forward by Republicans, but I was on this one. This is something that is merit-based and is fair. I am going to continue to do everything I can for my friend from South Carolina to see if before the end of this fiscal year we can get something done. It is important to him. It is important to our country because of the value that port has to our country.

Mr. GRAHAM. I thank the majority leader very much. It is appreciated on behalf of all of us in South Carolina. And I look forward to finding a solution for the country as a whole.

The PRESIDING OFFICER. The Senator from Rhode Island.

HONORING OUR ARMED FORCES

SPECIALIST DENNIS ''DANNY'' POULIN

Mr. REED. Mr. President, I rise today to pay tribute to SPC Dennis ''Danny'' Poulin, a Rhode Islander who served in the Massachusetts National Guard.

On March 28, Specialist Poulin was a gunner in an MRAP when it rolled over in Kunar Province, Afghanistan. He was medically evacuated to Landstuhl Regional Medical Center in Germany, where, tragically, he died 2 days later but surrounded by his loving family. He was laid to rest today in Rhode Island.

Specialist Poulin grew up in Pawtucket, RI, and graduated in 2004 from Tolman High School. He joined the National Guard in 2008 and was promoted to specialist in May of 2010. As a member of the Massachusetts National Guard Headquarters Company, 1st Battalion, 181st Infantry Regiment, he deployed to Afghanistan in July 2010.

Each generation of Americans is called upon to protect and sustain our democracy. And there are no greater heroes than the men and women who have worn the uniform of this Nation and who have sacrificed for this country to keep it safe and to keep it free.

It is our duty to protect the freedom they sacrificed their lives for through our service, our citizenship. We must continue to keep their memories alive and honor their heroism.

Today, our thoughts are with Specialist Poulin's mother Doris, his father Richard, his sisters, Jennifer and Angelique, his longtime girlfriend Ashley and their son Nikolous, and all of his family, friends, and his comrades-in-arms. We join them in commemorating his sacrifice and honoring his example of selfless service, of love, and of courage that he has demonstrated to all of us.

Specialist Poulin is one among many Rhode Islanders who have proven their loyalty, their integrity, and their personal courage by giving the last full measure of their lives in service to their country in Afghanistan, in Iraq, and throughout the centuries. Today, we honor his memory and honor the memory of those who have served and those who have sacrificed.

Mr. President, with that, I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I am honored to join my senior Senator from Rhode Island, JACK REED, today on the floor of the U.S. Senate to honor the brave service of SPC Dennis C. Poulin, who died of injuries sustained while serving his country in Afghanistan.

Specialist Poulin, or ''Danny,'' as he was known, had been assigned to the Kunar Provincial Reconstruction Team in Afghanistan. I have visited on several occasions the Kandahar Provincial Reconstruction Team, and I am well aware of the demands that are put on the security teams who allow the provincial reconstruction offices to do their vital work.

Danny's vehicle overturned while he was conducting a mounted combat patrol, causing severe injuries. Sadly, as a result of those injuries, he passed away on March 31, 2011, at Landstuhl Medical Center surrounded by his family.

Danny was born in Pawtucket, RI, where he lived for most of his life. After graduating from Tolman High School, he joined the Army National Guard and served with the Massachusetts National Guard's Alpha Company, 1st Battalion, 181st Infantry Regiment.

Specialist Poulin served with honor and distinction, receiving numerous awards and decorations, including the Army Commendation Medal, the Army Achievement Medal, the Good Conduct Medal, the Meritorious Unit Commendation Medal, the National Defense Service Medal, the Afghanistan Campaign Medal, the Global War on Terrorism Service Medal, the Army Service Ribbon, the Overseas Service Ribbon, the NATO Medal, and the Combat

Infantry Badge. We hope that upon review of this incident, he will be awarded his Nation's Purple Heart.

Danny will be remembered for his commitment to his family and unit. He was a devoted father, son, and brother, who loved his family very deeply. His fellow soldiers describe him as a hero and the kind of guy who always put others before himself.

As family and friends gather today in Rhode Island for his memorial service, I would like to join Senator REED in expressing my most sincere condolences for this terrible loss to his family and to our State. And on behalf of all Rhode Islanders, I want to thank Danny for his selfless service and his ultimate sacrifice.

Our hearts go out to his mother Doris, to his father Richard, to his sisters, Jennifer and Angelique, to his girlfriend Ashley, and especially to his 5-year-old son Nikolous, who will carry on his legacy and spirit.

We will never forget the sacrifice Danny and his family and friends have endured for our country, and my thoughts and prayers are with them during this difficult time.

Mr. President, I thank the Senate for its attention to these remarks, and I yield the floor.

The PRESIDING OFFICER. The majority leader is recognized.

UNANIMOUS CONSENT REQUEST—S. 493

Mr. REID. Mr. President, I ask unanimous consent that at 11 a.m., Tuesday, May 3, the Senate resume consideration of S. 493, the small business jobs bill; that no amendments, points of order, or motions be in order during the pendency of this agreement other than the amendments listed in this agreement and budget points of order and applicable motions to waive; that the pending amendments be set aside and Senator LANDRIEU or her designee be recognized to call up the following amendments: DeMint No. 300 to Paul No. 299; Carper No. 289, with a modification, which is at the desk; Pryor No. 278; Merkley No. 272; and Landrieu No. 234; that the DeMint second-degree amendment No. 300 be agreed to; that the time until 2:15 p.m. be equally divided between the two leaders or their designees; that at 2:15 p.m., the Senate proceed to votes in relation to the following amendments in the order listed below: Cornyn No. 186; Paul No. 199, as amended; Hutchison No. 197; Cardin No. 240; Snowe No. 253; Carper No. 289, as modified; Pryor No. 278; Merkley No. 272; and Landrieu No. 234; that there be no amendments in order to the amendments prior to the votes other than the DeMint second-degree amendment to the Paul amendment; that each amendment be subject to a 60-vote threshold; and the motions to reconsider be considered made and laid upon the table; further, that the Vitter amendment No. 178 and the Pryor amendment No. 229 be withdrawn.

The PRESIDING OFFICER. Is there objection?

The Senator from Maine.

Ms. SNOWE. Mr. President, I reserve the right to object, I have an additional amendment I would like to have considered on this list. I thought we had an agreement that there would be an even number of amendments offered on both sides, and now I understand that in the request that is put forward by the majority leader, there are five amendments on the Democratic side and four amendments on our side.

I would like to ask consent, because I thought my amendment—Snowe amendment No. 299—would also be included in the agreement. So I am asking unanimous consent that the order be modified to include Snowe amendment No. 299.

The PRESIDING OFFICER. Will the leader modify?

The majority leader.

Mr. REID. Mr. President, I object to my friend's request with the following explanation: We have worked very hard to get this bill done. This is a committee of which the Senator from Maine was chairman. She is now the ranking member. This legislation—underline this—is extremely important. It has done in the past wonderful things for our country. This innovation that this bill allows to go forward has created things such as the electric toothbrush and many other things. It is a good piece of legislation.

The legislation of my friend from Maine is not relevant or germane to this legislation. What is going to happen—if she objects to the request I have offered, this bill will not go forward. And that is too bad. We have worked all week long—in fact, some into last week—trying to get these amendments cleared and agreed to.

The sad part about her amendment is that we cannot get agreement not only from our side but on her side. Without going into detail who they are, people do not want to do this amendment because it has no direct relevance to this legislation.

In addition to that, Mr. President, her legislation has not had a hearing. It is something that is a big bill not only in content but in pages, and it should have a hearing. Senators should know what they are voting on in more detail. The other amendments we have gone through have been perused very closely and people understand what is in them and people can vote intelligently on those.

Now, my first inclination is to say: Well, let's go ahead and do it and try to defeat it, but that is not the way we should do legislation.

So I am terribly disappointed that the Senator from Maine, the former chairman of this committee, recognizing the importance of this legislation, is going to cause this legislation to fail, and we very likely will not have time to bring it up again. Now, if that is what my friend wants on her legislative conscience, that is fine. But I think it really should not be there. For someone who understands this legislation as well as she does, it is wrong to stand in the way of our completing it.

The PRESIDING OFFICER. Is there objection to the original request?

Ms. SNOWE. Mr. President, further reserving the right to object.

The PRESIDING OFFICER. The Senator from Maine.

Ms. SNOWE. Mr. President, I appreciate the comments that have been made by the majority leader. But to the contrary, this is very relevant to the underlying legislation. It is about regulatory reform. And if you were to ask the small business community exactly what is their major priority in the U.S. Congress, it would be regulatory reform. Undeniably, it is one of the most onerous burdens placed on small businesses today, and our economic well-being. We have had numerous hearings within our committee that touch on the issue of regulatory reform, and my legislation would reform the process to ensure that small businesses are free to compete and to create jobs.

What could be more important at a time when we are struggling to create jobs in our economy, where we need to create millions of jobs if we are ever going to turn around this serious unemployment rate that is plaguing our Nation today and critically affecting the personal financial well-being of all Americans?

So, Mr. President, I am surprised with the standard proposed now about hearings. We have had numerous hearings touching on the subject. The question is that we never addressed the issue in the U.S. Senate. As I look through the number of amendments that are going to be offered to vote on in the majority leader's unanimous consent request, many of these amendments have not had hearings either, they have not been the subject of very specific hearings.

The point is, everyone has had the opportunity and would have the opportunity to review this legislation and debate it amply, and would be able to explore these issues. My legislation has drawn the broad support of the small business community nationwide. They reviewed the legislation. They understand the implications. They understand the benefits if we do regulatory reform, and they understand the consequences if we do not.

So I am just surprised that there is a new standard here because we have passed numerous pieces of legislation on the floor of the Senate that may not be subject to a specific hearing, but have been touched upon in numerous hearings on various subjects. The same is true of the amendment that had been included in the majority leader's unanimous consent agreement.

So I will have to object at this time to the underlying consent agreement since I am unable to have a vote on my amendment. Hopefully, we can review this upon return from the recess so we can go forward with these votes.

The PRESIDING OFFICER. Objection is heard.

The majority leader is recognized.

Mr. REID. Mr. President, I would finally say that this legislation, under any circumstances, is not relevant or germane to the underlying bill. That is very clear. This legislation that now has to be considered by the Senate has not had a hearing. Sure, we have had hearings on regulatory reform. We have had hearings on the environment also. But when you bring up a piece of legislation that is new, we deserve to know what it is about.

These other amendments, we know what they are about. Hers is too detailed and complicated. It is not germane or relevant. It has had no hearings. I am stunned by the new standard suggested by my friend from Maine: Democrats have more amendments than Republicans; therefore, we should consider an amendment that is not germane, irrelevant, and has never had a hearing.

So I am disappointed my friend from Maine is killing this legislation. We have spent enough time on this legislation, and it is really too bad. The chairman of the committee doesn't support it. The chairman of the Small Business Committee does not support this legislation.

The PRESIDING OFFICER. The Senator from Maine.

Ms. SNOWE. Mr. President, I heard the majority leader's comments, and I appreciate them. It is not about the evenness of the amendments, but that was the agreement. That was the understanding before I arrived on the floor. My staff worked in concert with the staff of the Small Business Committee chair, Senator LANDRIEU from Louisiana, so that was the agreement. So that agreement obviously changed sometime in the last hour.

Getting beyond that point, though, in talking about hearings, when I look at the list of amendments that are going to be voted on and put forward in the majority leader's unanimous consent agreement, many of these amendments have not had specific hearings. But everybody in the small business community, every small business in America, understands the value of regulatory reform. It is a very straightforward piece of legislation.

Many of these issues have been addressed in hearings. Last fall we had a small business jobs bill, part of which was a $30 billion lending facility, and, believe me, there were serious problems with that lending facility. But that was not the subject of one Senate hearing, and I just want to understand, to garner clarity with respect to the standards that are now being established.

This issue is very important. Regulatory reform is absolutely crucial and central to small business job creation, not to mention survival. You don't have to take too many Main Street tours to figure out what is happening on Main Street. They are struggling to survive. Last year alone there were $26 billion in additional regulatory costs that was imposed on small businesses across this country as a result of new regulations—$26 billion. But what is the total cost of regulations in America? It is $1.7 trillion.

So is there any question in terms of the urgency and the imperative of addressing this issue? It is very central to the underlying legislation. It is about small businesses. It is about regulation and the hardships and the costs that are associated with it, and it is disproportionate on the small business community. It is disproportionate. They pay more than $10,000 per employee, more than the large companies because they don't have the number of employees to be able to fill out the forms and do all that is required that is associated with the complexities and the costs of complying with those regulations.

So that is the issue. We had a $30 billion lending facility as part and parcel of a piece of legislation that was voted on and became law. There are issues with it today and it was not subject to even one Senate hearing.

So what I am saying is it was my understanding that we had an agreement. That is what I understood, that we were going to have an even number of amendments on both sides to be offered and that my amendment was going to be included and brought up for a vote. If Members of the Senate don't want to vote for the amendment, they don't have to vote for the amendment. It is just saying: Please allow us to have a vote on this specific amendment just like the others that are in the majority leader's unanimous consent request. That is all I am asking.

We have had this bill pending for the last month, and I wanted to bring it up, but, unfortunately, for a lot of reasons, we are where we are today. That doesn't mean to say that we should not have the opportunity to vote on this particular amendment that had been prepared to go more than a month ago to be considered on the floor of the Senate. But, in any event, I regret we are in this position tonight. Hopefully, we can work through this during the course of the recess so that we have the opportunity to vote on this amendment.

I yield the floor.

The PRESIDING OFFICER. The majority leader is recognized.

Mr. REID. Mr. President, the longer the Senator from Maine talks, the more reason there is not to bring that up in the status that it is in now.

She is absolutely right. The issue she talks about in the Wall Street reform bill was brought in at a time when there hadn't been hearings, and it has created a furor around the country. Now there are people on all sides of the issue trying to change that. That is why we need to hold hearings. She is absolutely right. The more she talks, the more reason there is not to do this amendment.

For her to suggest that regulatory reform is something she is all-knowing about—and she hasn't said that, but that is the implicit statement she is making—I understand regulation reform. It is a burden, and we have to change it.

We have been through a number of procedures here. We can remember during the Clinton administration when Al Gore was in charge of reducing regulations, and we did a lot of that. It was good, but we didn't do enough. I worked with a Republican Senator by the name of Nichols from Oklahoma. We changed the law drastically, and it has been used in this Congress and the last Congress on several occasions to get rid of bad regulations that an administration promulgates. We now have the ability to do that.

Is there more we can do? Yes. But to march into this, as suggested by my friend from Maine, would cause people to make a decision on legislation that has not been adequately reviewed. That is why, I repeat, the more she talks about what needs to be done around here, the more reason there is not to do her legislation.

As far as an agreement, I had no agreement with anybody. This consent agreement was drafted just a short time ago. I have never suggested to the Senator from Maine—we have never had a conversation about this until during the last votes.

I moved to proceed to this bill more than a month ago—more than a month ago. There comes a time when we have to move the bill or move to something else.

During our next work period, we have some big, important things to do. We are going to have to deal with the PATRIOT Act. We have other things that are extremely important. We cannot spend more time on this legislation. It is unfair to our country, and it is unfair to the small business community that badly wants this legislation to go forward so they can do things, as I repeat, such as invent more electric toothbrush-type items.

There comes a time when we have to make a decision as to whether people are just stalling this legislation or trying to send some political message saying: Look, I was able to offer an amendment; I want to do regulation reform, when there is no chance in the world that the Senators have adequate information upon which to vote.

So I am very disappointed that very likely this legislation will be killed as a result of my friend, the former chairman of this committee, and certainly—I hope she understands how important this underlying legislation is and how her legislation has nothing to do with what is in keeping with the germaneness or relevancy to this legislation.

I note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. REID. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO REBECCA EYSTER

Mr. REID. Mr. President, today, after more than 20 years of service to the U.S. Senate and the U.S. House of Representatives, Rebecca Eyster will retire. Rebecca is one of the official reporters of the debates and proceedings in this Chamber. She is one of the many dedicated employees who are essential to the daily operations of the Senate.

For more than 12 years, Rebecca has been part of the team that produces a verbatim transcript of all of the Senate floor proceedings. Before that, Rebecca spent 8 years in the House of Representatives in a similar capacity. These jobs can be very demanding. When speeches and votes go late into the night, our dedicated reporters like Rebecca are always here. They produce a historical record about some of the most important legislative debates in our Nation's history.

I am proud to have worked with Rebecca and appreciate her important contributions to the Senate. I know I speak for the Senate family as we wish you the best in your future endeavors.

SCHOOL SAFETY PATROL LIFESAVING AWARD RECIPIENTS

Mr. REID. Mr. President, I rise today to show my appreciation for the actions of seven young Americans who make up this year's School Safety Patrol Lifesaving Award recipients as chosen by the American Automobile Association. In 1920, the American Automobile Association, AAA, began the School Safety Patrol Program in hopes of promoting traffic safety amongst school children. The AAA School Safety Patrol Program has been awarding its highest honor, the Lifesaving Award, to those patrollers who have acted to save the life of another since 1949. This year, seven heroic school safety patrollers are receiving this award, and it is my honor to recognize their courageous actions.

On February 2, 2011, Paul Hardin, a fifth grader at Canterbury Woods Elementary School in Annadale, VA, averted a possible tragedy by preventing an adult female pedestrian from stepping out into oncoming traffic. When the pedestrian approached the crosswalk, Paul verbally warned her to stop. She ignored Paul's warning and continued walking into the crosswalk at which time Paul stepped off the sidewalk and grasped the woman's arm to prevent her from crossing. An approaching car was within 5 feet of the crosswalk. Paul put the safety of a parent before his own in his heroic effort to prevent a dangerous situation.

Marisha Little and Sierra Walters, safety patrollers at Ranson Elementary School in Ranson, WV, worked together to save the life of a kindergarten student who wandered away from the school heading toward a major road crossing. This life saving incident that occurred on January 18, 2011, was the first of two that Marisha Little took part in at Ranson Elementary. The patrollers remembered seeing the student walking alone away from the school and became worried when they no longer had him in sight. After alerting her safety patrol advisor, Sierra left her post to find him. Sierra found him and brought him back to the post where she instructed him to stand behind Marisha. Shortly after, he darted into the street in the path of an oncoming car when he saw his aunt approaching the school area. Marisha jumped into action, grabbed him and pulled him back to the sidewalk. Their keen awareness and quick thinking brought him back to school and prevented him from being hit by the car.

Marisha Little and Talyn Underwood were credited with the second life saving incident at Ranson Elementary School in the same month. On January 31, 2011, they prevented a second grade student from being struck by a moving vehicle. The student was horsing around, talking to his friends while running backwards into oncoming traffic. Marisha and Talyn noticed that the vehicle driver closest to the student was looking in the other direction. Marisha and Talyn screamed loudly to alert the student at the same time working their way toward him. Talyn reached him first and pulled him by his jacket from the direct path of the moving car. Both students were very quick to respond and didn't think about their own safety in their effort to save their fellow student.

Kamryn Mendell is a safety patroller at the Fox Chapel Elementary School in Germantown, MD. On September 28, 2010, during morning patrol duties, Kamryn immediately reacted when she realized that a first grade student was beginning to walk into the pathway of a school bus that was turning into the school's bus loop. Kamryn and her partner were holding back students from crossing when Kamryn's partner had to step away to remove a cone to allow the bus to enter the loop. Kamryn kept the children from crossing with one hand and reached out to grab the first grader who was now 4 to 5 feet in front of the bus. The bus driver didn't see him and continued driving into the loop. Kamryn's fast thinking and immediate actions averted a certain life threatening injury.

Evan Siegel, a safety patroller at Salmon Creek Elementary School in Vancouver, WA, saved a 7-year-old girl from being hit by an oncoming car. On a December morning in 2010, Evan noticed a car approaching the intersection. It was driven by a teenager who was texting and totally unaware that the little girl had entered the crosswalk without permission. Evan reacted quickly by putting his crosswalk stick in front of her and pulling her to safety. At the time the car was 10 feet away from her and the driver was not slowing down. Evan's courage and quick actions are to thank for keeping this young girl safe.

Jake Vowell, a fifth grader at George B. Carpenter Elementary School in Park Ridge, IL, is credited with saving the life of a 6-year-old student on February 2, 2010. He was on morning patrol duty, when two cars failed to stop at the stop sign when Jake noticed a young girl attempting to cross the street. He bravely went out into the street and pulled her back to safety. His dedication and awareness put him in a position to save this young girl from harm.

These seven heroic young leaders demonstrate courage, awareness, and a commitment to safety. Moreover, these traits are what the AAA School Safety Patrol Program embodies as an institution. Patrollers exemplify the kind of services that are needed so that young people safely navigate traffic hazards to and from school. I applaud their commitment to improving our community.

HONORING OUR ARMED FORCES

SPECIALIST BRENT M. MAHER

Mr. GRASSLEY. Mr. President, it is with deep sadness that I address my colleagues today. A hero from my home State, SPC Brent M. Maher of Honey Creek, IA, was killed in action on Monday, April 11, 2011 in the Paktya Province of Afghanistan. He was 31 years old. Specialist Maher was the gunner on a ''Cougar'' mine-resistant ambush protected vehicle, MRAP, that was struck by an improvised explosive device.

Specialist Maher served in the Iowa Army National Guard, Company B, 1st Battalion, 168th Infantry, 2nd Brigade Combat Team, 34th Infantry Division, out of Shenandoah, IA. Specialist Maher has been posthumously promoted to sergeant. Prior to his service in the Iowa National Guard, Specialist Maher served over 7 years in the U.S. Navy. In all, Specialist Maher dedicated 11 years of his life to serving and protecting our Nation. Words simply cannot express the debt we owe to Specialist Maher and all of the other servicemembers fighting for our Nation.

My thoughts and prayers are with Brent Maher's family and friends, including his wife Brenna and his three children, as well as his mother Cheryl and everyone else who will be grieving his loss.

Specialist Maher truly loved his job in the U.S. military. He was proud of the difference that he was making in the lives of the Afghan people. It is because of individuals like specialist Maher and his loving and supportive family that America is the nation it is today. At times like these, I think that it is important that we pause and remember the lives of those lost in order that we can enjoy our way of life. As we go about our lives as free people, we ought to bear in mind the sacrifices made by Specialist Maher and others in our Armed Forces.

CYBER SECURITY PUBLIC AWARENESS ACT

Mr. WHITEHOUSE. Mr. President, I rise to speak about the Cyber Security Public Awareness Act of 2011, which I have introduced with Senator KYL.

The damage caused by malicious activity in cyberspace is enormous and unrelenting. Every year, cyber attacks inflict vast damage on our Nation's consumers, businesses, and government agencies. This constant cyber assault has resulted in the theft of millions of Americans' identities; exfiltration of billions of dollars of intellectual property; loss of countless American jobs; vulnerability of critical infrastructure to sabotage; and intrusions into sensitive government networks.

These massive attacks have not received the attention they deserve. Instead, we as a nation remain woefully unaware of the risks that cyber attacks pose to our economy, our national security, and our privacy. This problem is caused in large part by the fact that cyber threat information ordinarily is classified when it is gathered by the government or held as proprietary when collected by a company that has been attacked. As a result, Americans do not have an appropriate sense of the threats that they face as individual Internet users, the damage inflicted on our businesses and the jobs they create, or the scale of the attacks undertaken by foreign agents against American interests.

We must not wait for a disaster before we recognize and respond to the cyber threats we face. A false sense of complacency is not a security strategy. For that reason, I believe that raising public awareness of cyber security threats is an important element of the substantial work that we in Congress must do to improve our Nation's cyber security.

The Cyber Security Public Awareness Act of 2011 takes up that challenge. It will raise the public awareness of the cyber threats against our nation in a manner that protects classified, business-sensitive, and proprietary information. By doing so, it will provide consumers, businesses, and policymakers with the continuous flow of information necessary to secure our networks, identities, infrastructure, and innovation economy.

The bill improves public awareness with respect to three key issues: attacks on the government, attacks on infrastructure, and attacks on businesses and consumers.

The bill enhances public awareness of attacks on Federal networks by requiring that the Department of Homeland Security and the Department of Defense submit reports to Congress that detail cyber incidents on the ''.gov'' and ''.mil'' domains. These reports would provide aggregate statistics on breaches, the volume of data exfiltrated, and the estimated cost of remedying these breaches, as well as the continuing risk of cyber sabotage after an incident.

The bill also improves government reporting in two other ways. It requires the Department of Justice and the Federal Bureau of Investigation to submit annual reports on their investigations and prosecutions of cyber crimes, as well as on the resources devoted to cyber crime and on any legal impediments that frustrate those efforts. It also requires the Department of Justice, in consultation with the Administrative Office of the Courts, to study the preparedness of the Federal courts to handle cases relating to botnets or other cyber threats, and to consider whether courts need improved procedural rules, training, or organization to handle such cases.

The bill includes four provisions to enhance the awareness of threats against our nation's critical infrastructure. First, it requires primary regulators to report to Congress on the cyber vulnerabilities in our Nation's critical infrastructure, including our energy, financial, transportation, and communications sectors, and of recommended steps to thwart or diminish cyber attacks in each industry. Second, it requires the Department of Homeland Security to commission reports on improving the network security of critical infrastructure entities, including through the possible creation of a secure domain that relies on technical advancements or notice and consent to increased security measures. Third, it requires the Department of Homeland Security to identify producers of information technology that are linked directly or indirectly to foreign governments. This provision also requires reporting of the vulnerability to malicious activity, including cyber crime or espionage, associated with the use of these producers' technologies in the United States' telecommunications networks. And fourth, the bill requires the Department of Homeland Security, in consultation with the Secretary of Defense and the Director of National Intelligence, to submit a report to Congress describing the threat of a cyber attack disrupting the United States' electrical grid, the implications of such a disruption, the possibility of quickly reconstituting electrical service in the event of a cyber attack, and plans to prevent such a disruption.

The bill also seeks to enhance cyber awareness in the private sector and among businesses and consumers using the Internet. It requires the Department of Homeland Security to report to Congress on policies and procedures for Federal agencies to assist a private sector entity in the event of a cyber attack that could result in the loss of life or significant harm to the national economy or national security. To ensure that our markets properly reflect cyber risks, the bill also tasks the Securities Exchange Commission with reporting to Congress on, first, the extent of financial risk and legal liability of issuers of securities caused by cyber intrusions or other cybercrimes, and, second, whether current financial statements of issuers transparently reflect these risks. Finally, the bill will help enhance consumer awareness of cyber threats by requiring a report to Congress on legal or other impediments to public awareness of common cyber security threats, the minimal standards of computer security needed for responsible Internet use, and the availability of commercial products to meet those standards. This provision also requires the Department of Homeland Security to report on its plans to enhance public awareness of common cyber security threats and to recommend congressional actions to address remaining impediments to appropriate public awareness of common cyber security threats.

The Senate has a lot of work ahead as it seeks to improve our Nation's cyber security. One vital element of this work will be to ensure that we have an appropriate public awareness of cyber security threats going forward. I look forward to working with my colleagues on this important task as well as on cyber security issues more broadly.

I would particularly like to thank Senator KYL for working with me on this piece of legislation. Senator KYL has worked on cyber security issues extensively in the past, and we have worked together on Intelligence issues, so I very much look forward to partnering with him on this and other cyber security bills. As demonstrated by the hearing we held this week in the Crime and Terrorism Subcommittee of the Judiciary Committee, as well as by the important work previously done by the Commerce, Homeland Security, Judiciary, and other Committees, this is a vitally important and urgent national security issue, but one that we can confront in a serious and bipartisan manner.

ARMENIAN GENOCIDE

Mrs. BOXER. Mr. President, I rise today to recognize the 96th Anniversary of the Armenian Genocide—a tragedy that has left a dark stain on the collective conscience of mankind.

What has made this tragedy even more painful—particularly for the Armenian people—is the failure of successive U.S. administrations to acknowledge the deliberate massacre of the Armenians by its rightful name—genocide.

So today, I also rise to reiterate my call to President Barack Obama to finally right this terrible wrong.

In 2008, then-Senator Obama said:

> . . . the Armenian Genocide is not an allegation, a personal opinion, or a point of view, but rather a widely documented fact supported by an overwhelming body of historical evidence. The facts are undeniable.

I could not agree more. And every day that goes by without full acknowledgement of these undeniable facts by the United States prolongs the pain felt by descendants of the victims, as well as the entire Armenian community.

Countless experts have documented the atrocities that occurred between 1915 and 1923, when more than 1.5 million Armenians were marched to their deaths in the deserts of the Middle East, murdered in concentration camps, drowned at sea, and forced to endure unimaginable acts of brutality at the hands of the Ottoman Empire—now modern-day Turkey.

Yet successive U.S. administrations continue only to refer to the genocide by such terms as ''annihilation,'' ''massacre,'' and ''murder.''

This is not only an affront to the memory of the victims and to their descendants, but it does a disservice to the United States as it seeks to stand up to those who are perpetrating violence today.

In a recent speech President Obama eloquently said:

Some nations may be able to turn a blind eye to atrocities in other countries. The United States of America is different.

The United States is not a nation that turns a blind eye to atrocities, and that is why it is so important that we finally acknowledge the Armenian genocide for what it was—genocide.

As I have said, genocide is only possible when people avert their eyes. Any effort to deal with genocide—in the past, present, or future, must begin with the truth.

So this April 24, as we pause to remember the victims and to honor the countless contributions Armenian Americans have made to our great country, I hope that the U.S. finally stands on the right side of history and calls the tragedy of 1915–1923 by its rightful name.

CITIZENSHIP NOW!

Mr. SCHUMER. Mr. President, for the past 8 years, Citizenship Now!, a project of the City University of New York and the New York Daily News, has conducted a citizenship and immigration call-in, which I have visited every time it has been held at the News headquarters in Manhattan, NY. On Monday, April 25, the ninth call-in begins, and it is anticipated that the volunteers who answer the telephone will handle the 100,000th call by Friday April 29. That means 100,000 families received information to help them get on the path to U.S. citizenship. Among the sponsors have been the NYS Bureau of Refugee and Immigrant Assistance, the American Immigration Lawyers Association, CUNY Law School, Univision, and Radio WADO, with support from Verizon and Gristedes.

At the weeklong call-in, community paralegals, CUNY counselors, students, and other volunteers, supervised by experienced citizenship and immigration attorneys and Board of Immigration Appeals-accredited individuals, answer callers' questions. CUNY trains the volunteers at an all-day training conference that precedes the call-in, and all volunteers receive a comprehensive training manual. Whenever I visit the volunteers, I bring with me an expert staff person from my office who handles constituent inquiries from immigrants and their families. We fully appreciate the special and unique outreach effort this free public service provides.

The call-in provides an important safeguard weapon against scammers engaging in the unlawful practice of law. Callers who qualify for naturalization or another immigration benefit are referred to reputable non-for-profits. Many are referred to one of CUNY Citizenship Now!'s nine citizenship and immigration law service centers where they can get free application assistance and advice. The News features the photographs and biographies of the volunteers in print and on its Web site and runs stories about the people who are being served. When a caller wishes to contact a private attorney, she or he is referred to the New York City Bar Association referral panel and the American Immigration Lawyers Association referral service.

The CUNY/Daily News Citizenship Now! Project is by far the largest university-based immigration service program in the country assisting many thousands of individuals with citizenship and immigration law services each year, all at no cost to the applicants. This public service partnership deserves our recognition and appreciation for the superb efforts underway to help people in need. Thank you, CUNY, and thank you, New York Daily News.

NATIONAL COUNTY GOVERNMENT MONTH

Mr. COONS. Mr. President, I rise to recognize the contributions made each day by our Nation's 3,068 county governments and the men and women who serve in county government. They are tireless public servants whose daily efforts to ensure that local government works for all Americans are honored during National County Government Month, which takes place each April.

As a former county executive for New Castle County, DE, I know that county governments are responsible for providing essential services important to our communities. New Castle County provides critical services in public safety, land use, parks and libraries, sewers, and economic development. Many other counties provide a broad range of services, such as maintaining roads, bridges, and water systems, and operating airports and other transit, and delivering critical health care services. Counties provide law enforcement, courtroom, and jail services, schools, and numerous social services for children, seniors and families, and often serve as the first lines of defense for emergency response and preparedness.

Since 1991, the National Association of Counties, or NACo, has encouraged counties across America to highlight their programs and services in order to raise awareness of the important role county governments play in our national life. National County Government Month is a great opportunity to recognize this.

The National County Government Month theme for 2011 is ''Serving Our Veterans, Armed Forces, and Their Families.'' NACo president Glen Whitley, county judge for Tarrant County, TX, is urging all counties to honor and to thank their residents who have served or are currently serving our Nation in the military. In addition, Judge Whitley is urging counties to showcase their many important services to America's veterans, military servicemembers, and their families, such as those relating to physical and mental health, housing, employment, and the justice system.

In New Castle County, as in many counties across the country, we felt the impact of the call to duty on servicemembers and their families, as county employees many in our public safety community deployed to Iraq and Afghanistan with units of the Reserve and National Guard. I am pleased to join Judge Whitley and county officials across the country in honoring servicemembers and veterans and highlighting the important services county governments provide.

National County Government Month also provides the Senate with an opportunity to acknowledge that county governments with the help of the National Association of Counties are working together to restore the partnership among all levels of government to serve communities across America better. We in the Senate share our constituents with county government officials and face common challenges. It is incumbent upon us to recognize the men and women who work tirelessly within local governments and provide essential services directly to our constituents. They deserve our sincerest gratitude.

I encourage all of my colleagues and all Americans to celebrate April as National County Government Month with their home counties and to recognize the important role county governments play in their communities and the critical services they provide.

REMEMBERING SENATOR JOHN HEINZ

Mr. CASEY. Mr. President, twenty years ago this month we lost Senator John Heinz in an airplane crash. A family lost a husband and a father. A Commonwealth lost a tireless advocate for older citizens and our workers. I am honored to serve in the Senate seat he held from 1977 to 1991.

Senator Heinz understood that health care has a human face that cannot be ignored. He appreciated that employers cannot shoulder the burden of costs alone and understood changes needed to be made. He worked hard to obtain results for individuals through his position on the Finance Committee and his chairmanship of the Special Committee on Aging.

Senator Heinz was a fighter for those without power, a voice for the voiceless. He enjoyed the work that goes along with being a Senator. He delved into policy issues and strived to figure out how government worked and how it could work better. He promoted innovation, looked to the future, and sought to find real solutions to the real problems people faced. He worked with his colleagues on both sides of the aisle to obtain results. As he once said, ''Our greatest strengths have been our diversity and energy, our willingness to tackle problems and solve them, our confidence in the future, and our refusal to be bound by the present.''

This month we remember Senator Heinz and his legacy of public service on behalf of all the people of Pennsylvania, especially those who needed a Senator fighting for them every day.

TRIBUTE TO MATT MINER

Mr. SESSIONS. Mr. President, I rise today to say goodbye to one of the most trusted members of my staff, my chief counsel on the Judiciary Committee, Matt Miner. Matt is leaving to join the prestigious law firm of White and Case, where he will be a partner in the Global White Collar Practice Group. Matt has been with me since 2008, and I have always been able to rely on his steady, informed judgment, his discretion, and his indispensable expertise that came from years of practicing law both as an assistant U.S. attorney in Montgomery, AL, and in private practice.

Before joining my staff, Matt served as counsel to chairman Norm Coleman on the Permanent Subcommittee on Investigations and as chief counsel for crime, terrorism and oversight for former chairman and ranking member Arlen Specter on the Judiciary Committee. Matt has ably served on my staff for the last 3 years, but his time as Republican staff director of the full Judiciary Committee during the end of the 111th Congress was especially noteworthy. Matt led the committee during that difficult time, when many last-ditch efforts were made to move flawed legislation to the finish line.

As a former assistant U.S. attorney, Matt is widely known and respected by Members and staff on both sides of the aisle for his expertise and judgment in the areas of criminal law and sentencing. Matt was the principal Senate Republican staffer for the Adam Walsh Act of 2006, landmark legislation that laid the groundwork for a national, interstate sex offender registry and which imposed tough new penalties and expanded offenses that cracked down on sex trafficking of minors, child pornography, and various sexual assault offenses. Matt also was the key staffer for the Fair Sentencing Act of 2010, which appropriately modified penalties for crack cocaine offenses. His knowledge and judgment were key to negotiating a bill that moderated these penalties while ensuring sufficient deterrence for dealers and traffickers.

Matt is also highly regarded for his expertise on national security issues and was an invaluable resource not only to me but to other Members and their staffs during critical debates on the PATRIOT Act, media shield, and state secrets. And during my time as ranking member, Matt helped to manage two Supreme Court confirmations and numerous high-level Justice Department confirmations.

Importantly, Matt has always taken the time to be a mentor to several junior lawyers and staff on the Judiciary Committee, talking with them about opportunities and careers and teaching them how to be effective lawyers. I know the junior lawyers on the committee very much appreciate that guidance.

A Senator is blessed indeed if he has top staff people of outstanding ability and dedication, but it is a special blessing if the staff person can be depended on to properly reflect and advance the Senator's highest and best values. Matt has my trust and confidence. When he summarizes a complex issue, I know he has intelligently considered it and has fairly reported the pros and cons. Such an ability is rare, and it has been exceedingly valuable to me. Matt has served his country well, advanced the rule of law, and been a tremendous asset to me as I seek to fulfill my duty to the people of this country.

I am happy for him in this new position and wish him Godspeed.

TRIBUTE TO GOVERNOR JOHN ''JACK'' GILLIGAN

Mr. BROWN of Ohio. Mr. President, today I wish to honor John ''Jack'' Gilligan, a model of public service, of decency and intellect, who turned 90-years-old last month and now celebrates the 40th anniversary of his administration as the 62nd Governor of Ohio.

Today there is a great debate on the future of country, as there was when Jack served as Governor of Ohio from 1971–1974. Our economic competitiveness was threatened by expanding debt, declining manufacturing, rising gas prices, and waning dominance in technology and innovation. Today, we face those challenges coupled with competition from emerging powers in Asia and productivity increasing but wages stagnating in America. Whether 40 years ago or today, what the middle class looks like in America what we want the future of our country to look like depends on our leaders making smart, tough, and sometimes politically unpopular decisions.

That is the role Jack Gilligan played, with poise and skill, and with honesty and candor. When Ohio's public workers needed a voice at that table, he expanded their collective bargaining rights. Understanding that education and infrastructure are keys to our economic competitiveness, he bolstered investments in each, while understanding tax burdens also mean better schools, safer roads, and stronger vital public services like police and fire protection. He also expanded the right to vote by lowering the voting age to 18 years old and expanded programs for mental health services and environmental protection.

It was during his time as Governor, when I first met Jack Gilligan. It was 1972, when I ran in my first election, for State Representative for the Ohio House representing my hometown of Mansfield. Jack visited me one day and offered simple advice, ''Be yourself, know who you're fighting for and what you stand for.'' It is advice that I have followed ever since, wisdom that applies to anyone seeking to uphold the sacred public trust.

And by listening to Jack, you learn about the great State of Ohio of its geographic and demographic diversity. Jack will say we are a different State every 20 miles. We have the same farmers but who grow different crops. We have small towns, but we also have different rural communities. We have the same immigrants but from different countries; the same union family but from different unions. Jack understands that the diversity of our State not only makes it the heartland of America but also its heartbeat.

Born March 22, 1922, in Cincinnati, John Gilligan graduated from St. Xavier High School in 1939 and the University of Notre Dame in 1943. He then enlisted in the U.S. Navy, serving in the Atlantic, the Pacific, and the Mediterranean during World War II. He was awarded a Silver Star for his service in Okinawa.

Upon returning to his hometown after the war, he completed a master's degree and doctorate course work in English literature at the University of Cincinnati. He then began his teaching career at Xavier University.

In 1953, he began his decades long service to the people of Ohio. From 1953 to 1963, Jack served on the Cincinnati City Council during the civil rights era. His progressivism took him to the U.S. House of Representatives in 1964 as the Congressman from Ohio's 1st District, where he helped pass groundbreaking progressive pieces of legislation, like the creation of Medicare and Medicaid. Undaunted by his defeat for reelection—after his district was gerrymandered—and for the Senate in 1968, Jack continued his public service beyond the halls of government.

By 1970, he ran for Governor, driving an old, used van he bought from a dry cleaner and sleeping on a cot in the back. When a voter asked if he or she could help, he asked them to fill the van with gas. He won. And he fought each day thereafter to represent the interests of Ohio's middle class.

After leaving the Governor's office in 1974, Jack was asked by President Carter to serve as Director of the United States Agency for International Development, USAID, leading efforts to reorganize our Nation's foreign assistance management programs. By the

1980s and 1990s he returned to teaching, returning to teach at his alma maters, the University of Notre Dame, where he helped found the Kroc Institute for International Peace Studies, and the University of Cincinnati College of Law. But even in academia, Jack remained active in politics and public service. In 1999, at the age of 78, the former Congressman-turned-Governor served on the Board of Education for Cincinnati Public Schools.

And throughout his commitment to public service, Jack Gilligan has remained a steadfast family man. He married Katie Dixon, with whom he raised four children before she died in 1996. He since remarried to Susan Freemont, a family practice physician from Cincinnati.

As the family patriarch, he has inspired his children Donald, Kathleen, John, and Ellen to pursue the public good. Kathleen now serves as U.S. Secretary of Health and Human Services, having previously served as Governor of Kansas the only time in our Nation's history that a father and daughter have served as Governors. Secretary Sebelius helped pass the most important health care law since the creation of Medicare and Medicaid, enacted with the help of her father nearly 50 years earlier. To Jack's family, thank you for sharing him with a grateful State and a grateful Nation.

2011 marks the 90th birthday of John ''Jack'' Gilligan's and the 40th anniversary of his leadership as Ohio's Governor. To Jack, I thank you for your service and for your counsel. And thank you for your continued belief that the fight for social and economic justice is always worth it, so long as we remember who we fight for and what we stand for.

Happy Birthday, Governor.

ADDITIONAL STATEMENTS

REMEMBERING ROY ESTESS

● Mr. COCHRAN. Mr. President, I wish today to celebrate and commemorate the life and legacy of Roy Estess, who served as the Director of Stennis Space Center from 1989 until 2002.

Roy passed away in June 2010, and his life will be honored at a ceremony at Stennis Space Center on May 2, 2011.

I will always remember Roy as a son of Mississippi whose personal qualities contributed greatly to the growth of NASA and its presence in our State. Today, we recognize Roy Estess as one of the giants in NASA history because of his leadership, intellect, integrity and vision.

It was always a pleasure to visit with Roy in Washington or at the Stennis Space Center because he was both a visionary and a pragmatist. He was a great friend and a trusted source of good advice and counsel for me throughout my career.

I continue to marvel at the growth of Stennis, which came to be known as the ''Federal City,'' and at the national and international scope of work taking place there every day. Stennis is an essential part of NASA's mission today, due largely to Roy's commitment for over 40 years. His footprints will long remain along the paths and roads of that center, which has become a unique asset for our Nation.

Roy Estess' legacy continues to influence the future of Stennis and the gulf coast with the construction of the INFINITY Science Center. This project was his vision and dream, and one that will carry on his effective, but unassuming, way of inspiring passion for science, education and space exploration.

Roy Estess was a true leader who left an indelible mark on me, on the State of Mississippi, and on our Nation and the world.●

TRIBUTE TO RAMON C. CORTINES

● Mrs. FEINSTEIN. Mr. President, I wish to honor Ramon C. Cortines, his distinguished career and his dedication to improving our Nation's schools. Cortines is retiring today after 55 years in public education.

I know Ramon, or ''Ray,'' as the superintendent of the Los Angeles Unified School District in Los Angeles, CA—the Nation's second largest school district. I applaud Ray for being a zealous advocate on behalf of the Los Angeles Unified School District and the State of California. His tireless efforts helped to bring Federal funding and reform to its schools, especially during this difficult time of budget cuts and teacher layoffs.

Ray has committed himself to educating young minds. His career started with humble beginnings as a teacher in elementary, middle and high schools. After his first teaching job in Aptos, Ray became a teacher and administrator in Covina, CA.

His career flourished, taking him to administrative positions of principal, assistant superintendent, administrative director and superintendent. Ray became an administrator for 4 years and superintendent of schools for 11 years in Pasadena, CA; superintendent in San Jose, CA, for 2 years; superintendent in San Francisco for 6 years; and New York City Schools chancellor for 2 years.

Ray also recognizes the importance of higher education. He has acted as a consultant to the University of California, the California State University and the California Community College systems.

Ray's leadership didn't stop at the local level. In December 1992, he chaired a U.S. Department of Education transition team for then-President-elect Clinton. Ray served as a senior adviser to former U.S. Secretary of Education Richard Riley. He was also nominated to serve as Assistant Secretary of Education for Intergovernmental Affairs by President Bill Clinton. He served on numerous task forces and committees with the California Department of Education, U.S. Department of Education and U.S. Department of Health and Human Services.

Ray isn't afraid to fight for California schools. He has advocated on behalf of teachers and students in California by testifying on Capitol Hill about the importance of increasing funding for title I and special education programs, as well as saving teachers' jobs.

Ray dedicated himself to serving his country in other ways. He served in the U.S. Army from 1953 to 1955.

I admire Ray's hard work, dedication and commitment to raising academic achievement and turning around low-performing schools. As Los Angeles Unified School District Superintendent, Ray concentrated on improving instruction and teacher quality. Under his leadership, the district experienced a 16-point increase on the 2010 California Academic Performance Index. The district's overall score topped the 700 threshold for the first time. Ray restructured the first school in the district—Fremont High School. Ray's leadership style is no-nonsense and I applaud him for what he has accomplished.

All of us who care about providing every student with a quality education will miss him.

I congratulate Ray on his years of remarkable service to our Nation and to our State's education system. We are grateful to him for his leadership and commitment to making the classroom a better place for our students. I am sure that his students and colleagues will always remember the impact he made on their lives and their communities.●

REMEMBERING RICHARD ''DICK'' ELIASON

● Ms. MURKOWSKI. Mr. President, today I honor the life and service of Richard ''Dick'' Eliason. Dick passed away on April 3, 2011. He will be remembered for his decades of service to Alaska and his steadfast commitment to sensible, long-term management of Alaska's fisheries. Dick was the first Alaskan nominated to the 2006 Wild Salmon Hall of Fame at the Pacific Northwest Salmon Center for his leadership primarily in banning fin fish farming in Alaska and his work on the ''Wild Stock Priority.''

Dick was born in Seattle, WA, on October 14, 1925. As an only child he spent his childhood fishing between Washington and Port Alexander with his parents, George and Elsie Eliason. The family decided to move to Sitka in 1939 where he attended Sitka High School. Following high school, during World War II Dick spent 3 years aboard a sub chaser in the Navy patrolling the Hawaiian Islands.

In 1950, Dick met Nurse Betty Gemmell from Montana and married her. Together they had five children; Greta, George, Ida, Richard, Jr. and

Stanley. Betty passed away in 1981 and later Dick married Patricia McConnell.

As a young man, Dick was very busy owning a succession of fishing boats, bartending at the American Legion, and working for many years as a pipefitter. While the early years were tough raising his growing family, he certainly succeeded in raising a loving family. He continued to work as a commercial fisherman for nearly 70 years.

Dick entered public service early, serving on the territorial public utilities board. He entered the political arena in the early 1960s in Sitka where he was elected to the assembly and went on to become mayor. At the State level, Dick served as a member of the Alaska House of Representatives from 1968 to 1970 and 1972 to 1980 and as a member of the Alaska Senate from 1980 to 1992. Dick also worked for his community as a member of the VFW, the Elks, the Moose and the Masons.

In his 22 years in the Alaska Legislature, he championed the interests of fishermen and fishing communities. He fought for sustainable yield management of our fisheries and the hatchery system, and against fin fish farming and illegal high seas fishing.

Over the course of time, the fin fish farming ban has changed in the mind of Alaskans. The universally popular idea in Alaska was once much more controversial. In 1988, salmon prices soared to levels not seen again until lately giving corporations and other businesses an opportunity to compete in the emerging farmed salmon market.

Dick wisely saw that to protect the wild stocks and the people who earned a living off of them was more than a temporary issue. Dick recognized the long lasting effects that his legislation could offer. His legacy of protecting wild salmon and promoting quality salmon is not bound to Alaska: his legacy is enjoyed by those even beyond the reaches of this Nation.

Dick would say that he merely worked to protect a way of life, but it was his own way of life that typically allowed him to shine brighter than others and to succeed. He was acutely aware of how to communicate and bargain among his colleagues. By all accounts, Dick was not likely to let his title or power go to his head, even though he had plenty of both. He was the consummate statesman. He was fair and knew how to roll with the punches in a way that only he could.

Dick leaves an esteemed legacy that Alaska will benefit from for years to come. I extend my sympathies to the Eliason family and feel blessed to have known this great Alaskan.●

REMEMBERING JAMES MARTIN FITZGERALD

● Ms. MURKOWSKI. My home State of Alaska is a young State. Barely over 50 years old. I often marvel at the fact that so many of those who led Alaska during territorial days and were instrumental in the statehood movement also played important roles in poststatehood modern Alaska. Very few of our 50 states can boast that its founders are still around to guide the current generation of leaders. Alaska has been deeply fortunate in this respect. And we've never taken the wisdom of these individuals for granted.

I speak today to honor the life of one of these individuals who passed away last week—Senior U.S. District Judge James Martin Fitzgerald, a member of Alaska's Territorial Bar, one of the first eight individuals selected to serve on the Alaska Superior Court, an associate justice of the Alaska Supreme Court and a Federal judge since 1974.

Judge Fitzgerald was born in Portland, OR, in 1920. He enrolled in the University of Oregon and played football for the Ducks. But shortly thereafter he left college, when he was called to active duty in the National Guard. Following discharge from the National Guard he resumed undergraduate study at Willamette University, once again playing on the football team.

But World War II interceded. On December 6, 1941, the Willamette team played an away game at the University of Hawaii. The next morning, the team was waiting outside the Moana Loa Hotel for a bus to take them on a sightseeing tour as bombs fell on Pearl Harbor.

The entire Willamette football team was conscripted to help defend the Island of Oahu. After brief training they were armed with World War I era rifles and put on guard duty at a Honolulu High School. The team went on sentry rotations to keep watch over nearby water towers and storage tanks that were potential Japanese targets. They strung barbed wire along the Waikiki beach.

The football team remained in Honolulu for several weeks until their coach convinced the captain of the SS President Coolidge to take the team home in exchange for aiding the hundreds of critically wounded servicemen that were on board.

On Christmas Day 1941, the team arrived in San Francisco. Judge Fitzgerald promptly enlisted in the U.S. Marine Corps. He spent 5 years fighting for our country as a radio gunner for a torpedo squadron in the South Pacific.

Honorably discharged once again in 1946, Fitzgerald returned to Portland. He married his wife Karin in 1950. Fitzgerald worked as a firefighter and reenrolled at Willamette where he completed work toward his B.A. and subsequently earned a law degree in 1951. The newly married couple spent their first summer in Ketchikan, Alaska where he worked in a lumber mill and a salmon cannery.

Upon graduation from law school, Judge Fitzgerald returned to Ketchikan. He served as an assistant U.S. attorney in Ketchikan for 4 years then relocated to Anchorage where he served as the city attorney.

Judge Fitzgerald was subsequently named counsel to Alaska's first Governor, William Egan, and was appointed the first commissioner of the Alaska Department of Public Safety

In November 1959, Judge Fitzgerald was selected to be one of the first eight judges of the newly created Alaska Superior Court, which is our trial court. Prior to Alaska's admission to the statehood, the Federal Government maintained the judicial system for the territory. A new court system for our new State had to be created from scratch. The eight new judges were promptly dispatched to New Jersey to learn how a State trial court operates. Among his colleagues on that trip was Judge James von der Heydt, who like Fitzgerald, would also one day serve on the U.S. District Court.

Judge Fitzgerald was elevated to the Alaska Supreme Court in 1972 and served there until 1974 when he was confirmed to serve on the federal bench.

Judge Fitzgerald was sworn in as a U.S. district judge on December 20, 1974. He served as chief judge of the District of Alaska from 1984 until 1989 and became a senior district judge in 1989.

Judge James Fitzgerald passed away surrounded by his family on April 3, 2011. He is survived by his wife Karin Fitzgerald and their four children. On behalf of my Senate colleagues, I extend condolences to Karin, Judge Fitzgerald's family and his many friends in the Alaska Bar and the community as a whole.

James Fitzgerald's life was one of sacrifice and public service. He set aside his college education and an opportunity to play varsity football in order to serve his country in time of war. He was a dedicated attorney and jurist who brought peace to the territory of Alaska and then went on to help create Alaska's highly respected State court system before joining the Federal bench. He served my beloved State of Alaska for well over 50 years; and it is my hope that his life will continue to serve as an inspiration to us all.●

WISCONSIN CHAPTER OF THE AMERICAN INSTITUTE OF ARCHITECTS

● Mr. KOHL. Mr. President, the Wisconsin Chapter of the American Institute of Architects, AIA Wisconsin, was established in 1911 with a commitment to creating better places to work and live through architectural design and advocacy. This year, we celebrate the 100-year anniversary of Wisconsin's AIA Chapter. I would like to congratulate all past and present members of AIA Wisconsin for a century of service and their devotion to designing the buildings that are hallmarks of Wisconsin's architectural landscape.

Over the years, AIA Wisconsin has developed into four active local chapters, each covering a quadrant of our State. With more than 1,300 members, AIA Wisconsin brings fellowship to

Wisconsin's architects while providing educational, public awareness and advocacy opportunities. Wisconsin architects are at the forefront of technology, keeping abreast of energy efficient solutions that they integrate into their designs. These innovations help Wisconsin communities become more sustainable and livable, a goal we can all agree on.

Further, I am pleased to commend AIA Wisconsin for its community involvement. Wisconsin AIA provides educational opportunities through organized programs, public lectures, architectural competitions and educational summer camps in our state. I am confident that AIA Wisconsin will continue to provide these opportunities and creative design solutions to create a green economy in Wisconsin.

On behalf of our State and Nation, I thank AIA Wisconsin for a century of work that has connected and improved Wisconsin's architects, creating the landmarks we have come to recognize as part of our great State's heritage.●

TRIBUTE TO JOHN PODHORETZ

● Mr. LIEBERMAN. Mr. President, today I wish to congratulate John Podhoretz, who next week will reach one of life's momentous, and too often dreaded, milestones: turning 50 years of age. John is today best known for his work as editor of Commentary magazine and for his regular column in the New York Post, but these activities only scratch the surface of his career. While, God willing, John has many more years ahead of him and much left to do here, I believe this milestone is an opportune moment to reflect upon his many unique and influential contributions to publishing, punditry, political thought, and pop culture.

Given his iconic lineage, it comes as no surprise to me that John has accomplished so much in his first five decades. He was born of two intellectual giants, Norman Podhoretz and Midge Decter, and grew up on Manhattan's Upper West Side. He studied at the University of Chicago, graduated from there in 1981, and then settled in Washington, DC, to begin his promising career.

He served as speechwriter to Presidents Reagan and George H.W. Bush and as special assistant to White House drug czar, William Bennett. An accomplished journalist and writer, John has contributed to the Washington Times, the New York Post, US News & World Report, and the American Spectator. He is a refreshing critic of film and popular culture, and he once dabbled in entertainment as a consultant to the popular political fiction show ''The West Wing.'' He is even a five-time champion of the hit trivia game show ''Jeopardy!''

John is what I would call an ''idea entrepreneur.'' He understands that ideas have consequences and knows how to spread those ideas near and far. In 1995, together with Bill Kristol and Fred Barnes, John cofounded the Weekly Standard, a conservative opinion journal which he still writes for today as a movie critic. Over the years, the Standard has become more than just required reading for conservative thinkers—it is read by policy and opinion makers of all political stripes, and it has enormous reach inside the Beltway and well beyond. Thanks to John's contributions, the Standard has become, Well, a standard of political thought leadership.

John followed in his father's footsteps by becoming editor of Commentary magazine, a profoundly influential journal that seamlessly tackles the most pressing questions on political, social and cultural issues. In 2007, he launched the magazine's widely read and respected blog, Contentions, bringing Commentary into the new age of media. Just as he did with the Standard, John continues to prove at Commentary that ideas are powerful.

John is unafraid to challenge conventional wisdom and he is an unabashed defender of the values that make our country great: freedom, democracy, human dignity, and economic opportunity. On top of all that, based on watching and listening to him on that great day in August 2006 when his dear friend, Jacob Wisse, married my daughter, Becca Lieberman, John Podhoretz is a surprisingly impressive dancer and singer!

So, Mr. President, I congratulate John on 50 years well done. He has enormous personality, a great sense of humor, and a lovely family. I wish them happiness on this occasion. John, Happy Birthday!●

TRIBUTE TO AL HAWKES

● Ms. SNOWE. Mr. President, I frequently come to the floor to speak about a Maine small business that has done remarkable things in its community, or a business owner who has made a lasting impression on his or her company's employees. Today, I wish to recognize a Maine entrepreneur who has an inspiring life story that many have never heard. It is with great pride that I introduce to you a very special Maine resident and lifelong musician, Mr. Allerton Hawkes, whose amazing contributions to Maine's small business community and to the entire Nation's bluegrass legacy know no bounds.

Mr. Hawkes was born on Christmas Day, 1930, in the city of Providence, RI. Soon thereafter, when Al was 10, his family returned to the southern Maine city of Westbrook to live on an old family farm. As a young teenager in the 1940s, Al began listening to bluegrass music by tuning in to remote Southern music radio stations, and he was determined to play several stringed instruments often associated with bluegrass. He soon became friend with a man named Alton Meyers, whom he met scavenging through record bins at a used furniture store in Portland. Because of their shared love of music, they became the first interracial duo to play bluegrass—presenting many live performances and radio shows until 1951, when both began their service in the U.S. military.

This duo remains to this day, historically, our only interracial bluegrass duo. Although Mr. Meyers passed away in 2000, Al Hawkes—now in his 80s, continues to be involved in the bluegrass movement. Fortunately for all of us, the bluegrass duo's recordings have been preserved forever by Bear Family Records which has provided the Nation's audience with a compact disc recording containing 70 minutes and 27 tracks of this special part of our American musical heritage. Furthermore, Al has been joined by several friends in compiling a CD to benefit research combating Parkinson's disease, which is forthcoming.

Al continues to live in Maine and has amassed a very valuable collection of American bluegrass and country recordings. He has been recognized by the International Bluegrass Music Museum as one of the pioneers in bluegrass at a ceremony in Owensboro, KY. Al's historical legacy is contained in a documentary entitled ''The Eventful Life of Al Hawkes,'' which also recently aired six times on Maine's Public Broadcasting Network. His famous remark about his musical history—that he believes there is a ''bluegrass gene'' which he inherited—seems to reflect in his additional musical accomplishments, playing with other bluegrass and country stars throughout the years and being the recipient of 25 awards in the musical lexicon.

Beyond bluegrass, Al's deep-seated Maine legacy revolves around a huge sign of a repairman which, to this day, is a famous landmark in southern Maine. As a small business entrepreneur who ran both a TV repair and dry cleaning business in the noteworthy Hawkes Plaza, Al actually made and installed the famous icon sign of the 13-foot high repairman who once sported 385 light bulbs, fluorescent lights and moving parts which gave the illusion of a walking repairman. To residents' delight, the sign—although no longer sporting the creative lights or moving parts—still remains a treasure which sustains generational memories, nearly 50 years after Al built it in 1962. Indeed, Maine's unique character has thus been supported by Al's wonderful inventiveness on several fronts throughout the years.

Al Hawkes is truly a Maine and national treasure whose inheritance of that special ''bluegrass gene'' has provided us all with the rich and entertaining joy and privilege of listening to great, distinctive American music. I am proud that Al has chosen to stay in Maine, and has led such a distinguished and varied career, from small business owner and entrepreneurs, to pioneering and accomplished musician. I wish Al all the best, and thank him for his outstanding contributions to our Nation's cultural life.●

REMEMBERING JOSE S. CHAVEZ

● Mr. UDALL of New Mexico. Mr. President, the State of New Mexico lost a great man on March 17, 2011, when Jose S. Chavez passed away at the age of 93. He was a man who served our country proudly during World War II and was a survivor of the Bataan Death March. I would like to honor his memory today.

Mr. Chavez was a man of strength. He had a strong faith, a strong will to survive, and was described as the strength and patriarch of his large and loving family.

As a member of the 200th Coastal Artillery and 515th Anti-Aircraft Battalion, Mr. Chavez served his country in the Phillipines during World War II. He was captured along with many other of his fellow soldiers and forced to endure the horrors of the Bataan Death March and the more than 3 years of captivity which followed.

Mr. Chavez is credited with saving many lives during the horrific march—picking up and carrying men to keep them from being killed. Mistaken for dead and put in a grave three times during his captivity, Mr. Chavez refused to give up. It was his strong faith in God, and also in those he served with, which helped him and others survive the inhumane conditions they faced.

After returning home he worked as a farmer before continuing his service to his country by reenlisting in the military and later taking a government job.

Mr. Chavez's strength extended beyond the battlefield to his home life, where he was the pillar of his large family. He built the home that he and his wife of 65 years, Susie, lived in and was known as the man who could fix anything and could always be found tinkering away at a project.

His family will miss his strong-willed and loving personality, and certainly feel the void left by Mr. Chavez's passing. Let us take a moment today to remember Mr. Chavez and the remarkable strength he shared not only with his family, but with our country during his service.●

TRIBUTE TO EDGAR PEARA

● Mr. WYDEN. Mr. President, on April 14, the Government of France will present the National Order of the Legion of Honor to Edgar Peara one of Oregon's more modest heroes.

The Ordre national de la Légion d'honneur was established by Napoleon Bonaparte in 1802 as a way of recognizing exceptional merit regardless of rank, class, or privilege. The Order remains the highest decoration in France and is being bestowed upon Edgar for his service in that country during World War II.

Already highly decorated by the United States for bravery and valor, Edgar's story is indeed remarkable and worthy of high praise. After the bombing of Pearl Harbor on December 7, 1941, Edgar immediately volunteered for the military. At first he was told he would be more valuable to the Nation if he returned to his engineer studies, but the call to action was too strong. By June 1942 he received a commission in the U.S. Army and was assigned as an officer in the 531 Amphibious Combat Regiment of the 1st Engineer Amphibious Combat Brigade.

His unit specialized in supporting large amphibious invasions, clearing the way for the infantry and keeping the Army on the move. By November 1942, Edgar's outfit landed in Arzew, Algeria, where Edgar, determined to keep the situation as calm as possible, went from house to house telling anxious Algerians unfamiliar with war or Americans that ''we come in peace. We are not here to harm anyone. We simply want you to surrender any weapons so that all armed resistance ceases.'' He said later that ''No one gave us any trouble and we collected so many arms we could hardly carry them all.''

This action set the tone for Edgar's entire war experience and his later life. As he prepared for the invasion of Italy, Edgar made a conscious effort to look for, and be grateful for, whatever there was to be appreciated that day, whether it was food, a dry place to sleep, reasonable weather, the friendships of comrades, and being well and safe. As Edgar put it, ''That change in attitude helped make me a happier person, for I stopped thinking that my contentment had to lie in the future when the war was over.''

After participating in the invasions of Sicily and mainland Italy, Edgar was moved to the southwest coast of England in order to help ready allied forces for D-day. He landed at Utah Beach on the upper French coast on June 6, 1944. Early that morning he noticed a battalion medical aid station was under intense fire. Recognizing the danger to those helpless soldiers, he scrambled to find a more protected area. He came across an abandoned German concrete underground command post. Dodging bullets and shells, he ran back to help move the wounded to safety.

Edgar would later be part of the invasion of Okinawa, Japan, making him one of the few veterans to serve in Africa, Europe, and the Pacific.

Taking what he learned from his experiences in war, Edgar dedicated himself to a life of internal peace and became a staunch advocate of greater peace for all humanity. He used his GI Bill to train for ordination as a Christian Science practitioner. During the Korean war, Edgar served as a Christian Science chaplain at the U.S. Naval Training Center, Great Lakes, IL. After this duty he went on to become a Unitarian Universalist minister. Edgar has worked diligently to help others find the same peace he discovered in his own heart and to help all mankind achieve greater peace between neighbors and nations.

As an Oregonian, I could not be more proud of Edgar, his wonderful story, and his life's work. He truly is a hero and embodies the best of our State. As our Nation continues to struggle in conflicts overseas, Edgar serves as a testament to the belief that sometime restraint is as powerful as force in times of war. I am very appreciative of Edgar's selfless service.The people of France are thanking him today with this award. Oregon thanks him for continuing to make us proud.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mrs. Neiman, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The nominations received today are printed at the end of the Senate proceedings.)

MESSAGES FROM THE HOUSE

At 9:52 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 1217. An act to repeal the Prevention and Public Health Fund.

At 3:16 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 1473. An act making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, and for other purposes.

The message also announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 43. Concurrent resolution providing for a conditional adjournment of the House of Representatives and a conditional recess or adjournment of the Senate.

At 4:47 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has agreed to the following concurrent resolutions, in which it requests the concurrence of the Senate:

H. Con. Res. 35. Concurrent resolution directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473.

H. Con. Res. 36. Concurrent resolution directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 1217. An act to repeal the Prevention and Public Health Fund; to the Committee on Health, Education, Labor, and Pensions.

MEASURES DISCHARGED

The following bill was discharged from the Committee on Agriculture, Nutrition, and Forestry, and referred as indicated:

S. 375. A bill to authorize the Secretary of Agriculture and the Secretary of the Interior to enter into cooperative agreements with State foresters authorizing State foresters to provide certain forest, rangeland, and watershed restoration and protection services; to the Committee on Energy and Natural Resources.

ENROLLED BILL AND JOINT RESOLUTION PRESENTED

The Secretary of the Senate reported that on today, April 14, 2011, she had presented to the President of the United States the following enrolled bill and joint resolution:

S. 307. An act to designate the Federal building and United States courthouse located at 217 West King Street, Martinsburg, West Virginia, as the ''W. Craig Broadwater Federal Building and United States Courthouse''.

S.J. Res. 8. Joint resolution providing for the appointment of Stephen M. Case as a citizen regent of the Board of Regents of the Smithsonian Institution.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–1355. A communication from the Assistant Secretary of Defense (Legislative Affairs) transmitting seven legislative proposals; to the Committee on Armed Services.

EC–1356. A communication from the Assistant Administrator for Fisheries, Office of International Affairs, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''High Seas Driftnet Fishing Moratorium Protection Act; Identification and Certification Procedures to Address Illegal, Unreported, and Unregulated Fishing Activities and Bycatch of Protected Living Marine Resources'' (RIN0648-AV51) received in the Office of the President of the Senate on April 13, 2011; to the Committee on Commerce, Science, and Transportation.

EC–1357. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Examination of Returns and Claims for Refund, Credit or Abatement; Determination of Correct Tax Liability'' (Rev. Proc. 2011–29) received in the Office of the President of the Senate on April 13, 2011; to the Committee on Finance.

EC–1358. A communication from the Secretary of Health and Human Services, transmitting, pursuant to law, a report entitled ''Medicare Ambulatory Surgical Center Value-Based Purchasing Implementation Plan''; to the Committee on Finance.

EC–1359. A communication from the Acting Assistant Secretary, Office of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to the Millennium Challenge Corporation's activities during fiscal year 2010; to the Committee on Foreign Relations.

EC–1360. A communication from the Senior Vice President, Diversity and Labor Relations, Tennessee Valley Authority, transmitting, pursuant to law, the fiscal year 2010 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002; to the Committee on Homeland Security and Governmental Affairs.

EC–1361. A communication from the Deputy Director, Court Services and Offender Supervision Agency for the District of Columbia, transmitting, pursuant to law, the Agency's fiscal year 2010 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002; to the Committee on Homeland Security and Governmental Affairs.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. LIEBERMAN, from the Committee on Homeland Security and Governmental Affairs, without amendment and with a preamble:

S. Res. 128. A resolution expressing the sense of the Senate that public servants should be commended for their dedication and continued service to the Nation during Public Service Recognition Week, May 1 through 7, 2011.

EXECUTIVE REPORTS OF COMMITTEES

The following executive reports of nominations were submitted:

By Mr. LEVIN for the Committee on Armed Services.

Air Force nomination of Maj. Gen. David L. Goldfein, to be Lieutenant General.

Army nomination of Lt. Gen. Robert W. Cone, to be General.

Air Force nomination of Maj. Gen. David S. Fadok, to be Lieutenant General.

Army nomination of Lt. Gen. David M. Rodriguez, to be General.

Army nominations beginning with Colonel Norvell V. Coots and ending with Colonel Brian C. Lein, which nominations were received by the Senate and appeared in the Congressional Record on April 8, 2011.

Mr. LEVIN. Mr. President, for the Committee on Armed Services I report favorably the following nomination lists which were printed in the RECORD on the dates indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators.

The PRESIDING OFFICER. Without objection, it is so ordered.

Air Force nominations beginning with Travis R. Adams and ending with Ilaina M. Wingler, which nominations were received by the Senate and appeared in the Congressional Record on March 30, 2011.

Air Force nominations beginning with Frederick C. Aban and ending with Catherine L. Wynn, which nominations were received by the Senate and appeared in the Congressional Record on March 30, 2011.

Air Force nominations beginning with Allan K. Doan and ending with Andrew L. Wright, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Air Force nominations beginning with Budi R. Bahureksa and ending with Muhammad A. Sheikh, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nomination of Michael K. Pyle, to be Colonel.

Army nomination of Janet Manning, to be Colonel.

Army nominations beginning with John H. Barkemeyer and ending with D010566, which nominations were received by the Senate and appeared in the Congressional Record on March 16, 2011.

Army nominations beginning with Michael G. Pond and ending with William M. Stephens, which nominations were received by the Senate and appeared in the Congressional Record on March 30, 2011.

Army nomination of Juan J. Derojas, to be Colonel.

Army nomination of David S. Goins, to be Major.

Army nomination of Kimberly A. Speck, to be Major.

Army nomination of Lyndall J. Soule, to be Major.

Army nominations beginning with James J. Houlihan and ending with Jason S. Kim, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nominations beginning with Joshua P. Stauffer and ending with Bridget C. Wolfe, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nominations beginning with Edwin Robins and ending with Jeffrey M. Tiede, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nominations beginning with Richard J. Schoonmaker and ending with Edward W. Lumpkins, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nominations beginning with John H. Bordes and ending with Edna J. Smith, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nominations beginning with Richard R. Jordan and ending with April B. Turner, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

Army nominations beginning with Carlson A. Bradley and ending with Sylvester E. Waller, which nominations were received by the Senate and appeared in the Congressional Record on April 8, 2011.

Marine Corps nominations beginning with Peter G. Bailiff and ending with Timothy D. Sechrest, which nominations were received by the Senate and appeared in the Congressional Record on February 2, 2011.

Marine Corps nominations beginning with Joe H. Adkins, Jr. and ending with James B. Zientek, which nominations were received by the Senate and appeared in the Congressional Record on February 16, 2011.

Navy nomination of Medrina B. Gilliam, to be Lieutenant Commander.

Navy nomination of David S. Plurad, to be Captain.

Navy nominations beginning with James P. Kitzmiller and ending with Jonathan D. Szczesny, which nominations were received by the Senate and appeared in the Congressional Record on March 31, 2011.

By Mr. JOHNSON, of South Dakota, for the Committee on Banking, Housing, and Urban Affairs.

*Eric L. Hirschhorn, of Maryland, to be Under Secretary of Commerce for Export Administration.

*Katharine G. Abraham, of Iowa, to be a Member of the Council of Economic Advisers.

*Carl Shapiro, of California, to be a Member of the Council of Economic Advisers.

By Mr. BAUCUS for the Committee on Finance.

David S. Cohen, of Maryland, to be Under Secretary for Terrorism and Financial Crimes.

*Jenni Rane LeCompte, of the District of Columbia, to be an Assistant Secretary of the Treasury.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. BROWN of Ohio:

S. 816. A bill to facilitate nationwide availability of volunteer income tax assistance for low-income and underserved populations, and for other purposes; to the Committee on Finance.

By Mr. PORTMAN:

S. 817. A bill to provide for the inclusion of independent regulatory agencies in the application of the Unfunded Mandates Reform Act of 1995 (2 U.S.C. 1501 et seq.); to the Committee on the Budget.

By Mr. KERRY (for himself and Ms. SNOWE):

S. 818. A bill to amend title XVIII of the Social Security Act to count a period of receipt of outpatient observation services in a hospital toward satisfying the 3-day inpatient hospital requirement for coverage of skilled nursing facility services under Medicare; to the Committee on Finance.

By Mr. LAUTENBERG (for himself, Mr. SCHUMER, Mrs. GILLIBRAND, and Mr. MENENDEZ):

S. 819. A bill to provide the spouses and children of aliens who perished in the September 11 terrorist attacks an opportunity to adjust their status to that of aliens lawfully admitted for permanent residence; to the Committee on the Judiciary.

By Mr. SHELBY:

S. 820. A bill to repeal the current Internal Revenue Code and replace it with a flat tax, thereby guaranteeing economic growth and greater fairness for all Americans; to the Committee on Finance.

By Mr. LEAHY (for himself, Mr. AKAKA, Mr. BLUMENTHAL, Mrs. BOXER, Mr. CARDIN, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. HARKIN, Mr. KERRY, Mr. LAUTENBERG, Mr. MERKLEY, Mrs. MURRAY, Mr. SCHUMER, Mr. WHITEHOUSE, Mr. WYDEN, Mr. INOUYE, and Mr. SANDERS):

S. 821. A bill to amend the Immigration and Nationality Act to eliminate discrimination in the immigration laws by permitting permanent partners of United States citizens and lawful permanent residents to obtain lawful permanent resident status in the same manner as spouses of citizens and lawful permanent residents and to penalize immigration fraud in connection with permanent partnerships; to the Committee on the Judiciary.

By Mr. COBURN (for himself and Mr. BENNET):

S. 822. A bill to amend the Internal Revenue Code of 1986 to require all wage withholding returns to be filed electronically; to the Committee on Finance.

By Mr. SCHUMER (for himself, Ms. COLLINS, Mr. KERRY, and Mr. LEAHY):

S. 823. A bill to permit aliens who lawfully enter the United States on valid visas as nonimmigrant elementary and secondary school students to attend public schools in the United States for longer than 1 year if such aliens reimburse the local educational agency that administers the school for the full, unsubsidized per capita cost of providing education at such school for the period of the alien's attendance; to the Committee on the Judiciary.

By Mr. BROWN of Ohio:

S. 824. A bill to provide for enhanced mortgage-backed and asset-backed security investor protections, to prevent foreclosure fraud, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. COONS:

S. 825. A bill to amend the Internal Revenue Code of 1986 to permanently extend and modify the research tax credit, and for other purposes; to the Committee on Finance.

By Mrs. FEINSTEIN:

S. 826. A bill to require the Secretary of the Treasury to establish a program to provide loans and loan guarantees to enable eligible public entities to acquire interests in real property that are in compliance with habitat conservation plans approved by the Secretary of the Interior under the Endangered Species Act of 1973, and for other purposes; to the Committee on Environment and Public Works.

By Mr. DEMINT (for himself, Mr. CORNYN, Mr. COBURN, Mr. GRAHAM, Mr. GRASSLEY, Mr. INHOFE, Mr. JOHNSON of Wisconsin, and Mr. VITTER):

S. 827. A bill to allow a State to combine certain funds and enter into a performance agreement with the Secretary of Education to improve the academic achievement of students; to the Committee on Health, Education, Labor, and Pensions.

By Mr. UDALL of Colorado (for himself and Ms. COLLINS):

S. 828. A bill to amend the Energy Policy and Conservation Act to establish the Office of Energy Efficiency and Renewable Energy as the lead Federal agency for coordinating Federal, State, and local assistance provided to promote the energy retrofitting of schools; to the Committee on Energy and Natural Resources.

By Mr. CARDIN (for himself, Ms. COLLINS, Mr. INOUYE, Mr. BLUNT, Mr. LEAHY, Mr. JOHNSON of South Dakota, Mr. FRANKEN, Mr. AKAKA, Mr. REED, and Mr. GRAHAM):

S. 829. A bill to amend title XVIII of the Social Security Act to repeal the Medicare outpatient rehabilitation therapy caps; to the Committee on Finance.

By Mrs. MURRAY:

S. 830. A bill to establish partnerships to create or enhance educational and skills development pathways to 21st century careers, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. FRANKEN (for himself, Mr. BROWN of Ohio, Mr. SCHUMER, Mrs. GILLIBRAND, and Mr. SANDERS):

S. 831. A bill to amend the Agricultural Marketing Act of 1946 to provide for country of origin labeling for dairy products; to the Committee on Agriculture, Nutrition, and Forestry.

By Ms. COLLINS (for herself and Mrs. MURRAY):

S. 832. A bill to reauthorize certain port security programs, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. WHITEHOUSE (for himself, Mr. REED, Mr. BROWN of Ohio, Mr. FRANKEN, and Mr. AKAKA):

S. 833. A bill to provide grants to States to ensure that all students in the middle grades are taught an academically rigorous curriculum with effective supports so that students complete the middle grades prepared for success in secondary school and postsecondary endeavors, to improve State and district policies and programs relating to the academic achievement of students in the middle grades, to develop and implement effective middle grades models for struggling students, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself and Mrs. MURRAY):

S. 834. A bill to amend the Higher Education Act of 1965 to improve education and prevention related to campus sexual violence, domestic violence, dating violence, and stalking; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CRAPO (for himself and Mr. LEAHY):

S. 835. A bill to reform the Bureau of Alcohol, Tobacco, Firearms, and Explosives, modernize firearms laws and regulations, protect the community from criminals, and for other purposes; to the Committee on the Judiciary.

By Mr. BINGAMAN (for himself and Mr. GRASSLEY):

S. 836. A bill to amend the Internal Revenue Code of 1986 to provide special depreciation and amortization rules for highway and related property subject to long-term leases, and for other purposes; to the Committee on Finance.

By Mr. BINGAMAN (for himself and Mr. GRASSLEY):

S. 837. A bill to amend title 23, United States Code, to remove privatized highway miles as a factor in apportioning highway funding; to the Committee on Environment and Public Works.

By Mr. TESTER (for himself, Mr. THUNE, Mr. NELSON of Nebraska, Mr. BEGICH, and Mr. BOOZMAN):

S. 838. A bill to amend the Toxic Substances Control Act to clarify the jurisdiction of the Environmental Protection Agency with respect to certain sporting good articles, and to exempt those articles from a definition under that Act; to the Committee on Environment and Public Works.

By Ms. KLOBUCHAR (for herself and Mr. GRASSLEY):

S. 839. A bill to ban the sale of certain synthetic drugs; to the Committee on the Judiciary.

By Ms. STABENOW (for herself and Mr. LEVIN):

S. 840. A bill to establish customs user fees for commercial trucks transporting foreign municipal solid waste, and for other purposes; to the Committee on Environment and Public Works.

By Mr. UDALL of Colorado (for himself, Ms. STABENOW, and Mr. MERKLEY):

S. 841. A bill to provide cost-sharing assistance to improve access to the markets of foreign countries for energy efficiency products and renewable energy products exported by small-and medium-sized businesses in the United States, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. CASEY:

S. 842. A bill to require reports by the Comptroller General on Department of Defense military spouse employment programs, and for other purposes; to the Committee on Armed Services.

By Mr. BEGICH:

S. 843. A bill to establish outer Continental Shelf lease and permit processing coordination offices, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. LIEBERMAN (for himself and Mr. BENNET):

S. 844. A bill to provide incentives for States and local educational agencies to implement comprehensive reforms and innovative strategies that are designed to lead to significant improvement in outcomes for all students and significant reductions in achievement gaps among subgroups of students, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ENZI (for himself and Ms. SNOWE):

S. 845. A bill to amend the Internal Revenue Code of 1986 to provide for the logical flow of return information between partnerships, corporations, trusts, estates, and individuals to better enable each party to submit timely, accurate returns and reduce the need for extended and amended returns, to provide for modified due dates by regulation, and to conform the automatic corporate extension period to longstanding regulatory rule; to the Committee on Finance.

By Mr. BLUNT (for himself and Mrs. MCCASKILL):

S. 846. A bill to designate the United States courthouse located at 80 Lafayette Street in Jefferson City, Missouri, as the Christopher S. Bond United States Courthouse; to the Committee on Environment and Public Works.

By Mr. LAUTENBERG (for himself, Ms. KLOBUCHAR, Mr. SCHUMER, Mrs. BOXER, and Mr. FRANKEN):

S. 847. A bill to amend the Toxic Substances Control Act to ensure that risks from chemicals are adequately understood and managed, and for other purposes; to the Committee on Environment and Public Works.

By Mr. CORNYN:

S. 848. A bill to provide for the development of reports based on Medicare data, data that is publicly available, or private data that is provided by a requesting entity in order to improve the quality and efficiency of health care; to the Committee on Finance.

By Mr. CORNYN (for himself and Mrs. HUTCHISON):

S. 849. A bill to establish the Waco Mammoth National Monument in the State of Texas, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. DURBIN (for himself, Mr. CASEY, Mr. MENENDEZ, Mr. LAUTENBERG, and Mrs. GILLIBRAND):

S. 850. A bill to provide for enhanced treatment, support, services, and research for individuals with autism spectrum disorders and their families; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HARKIN (for himself, Mr. BINGAMAN, Mr. BENNET, Mr. FRANKEN, Mr. BROWN of Ohio, and Mrs. GILLIBRAND):

S. 851. A bill to establish expanded learning time initiatives, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. LEAHY (for himself, Mr. ENZI, Mr. SANDERS, Mr. KOHL, Mr. SCHUMER, and Mrs. GILLIBRAND):

S. 852. A bill to improve the H–2A agricultural worker program for use by dairy workers, sheepherders, and goat herders, and for other purposes; to the Committee on the Judiciary.

By Mrs. HAGAN:

S. 853. A bill to provide for financial literacy education; to the Committee on Health, Education, Labor, and Pensions.

By Mr. LAUTENBERG:

S. 854. A bill to provide for programs and activities with respect to the prevention of underage drinking; to the Committee on Health, Education, Labor, and Pensions.

By Ms. STABENOW (for herself, Mrs. HUTCHISON, and Mr. CASEY):

S. 855. A bill to make available such funds as may be necessary to ensure that members of the Armed Forces, including reserve components thereof, continue to receive pay and allowances for active service performed when a funding gap caused by the failure to enact interim or full-year appropriations for the Armed Forces occurs, which results in the furlough of non-emergency personnel and the curtailment of Government activities and services; to the Committee on Armed Services.

By Mr. DURBIN:

S. 856. A bill to amend title XI of the Social Security Act to make available to the public aggregate data on providers of services and suppliers under the Medicare program and to allow qualified individuals and groups access to claims and payment data under the Medicare program for purposes of conducting health research and detecting fraud; to the Committee on Finance.

By Mr. GRASSLEY (for himself and Mr. CASEY):

S. 857. A bill to amend the Elementary and Secondary Education Act of 1965 to aid gifted and talented learners, including high-ability learners not formally identified as gifted; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BROWN of Ohio (for himself and Mr. PORTMAN):

S. 858. A bill to authorize the Secretary of the Interior to conduct a special resource study to determine the suitability and feasibility of designating the Colonel Charles Young Home in Xenia, Ohio as a unit of the National Park System, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. CASEY:

S. 859. A bill to prohibit sexual harassment by individuals administering programs and activities receiving Federal assistance; to the Committee on Health, Education, Labor, and Pensions.

By Mr. LEVIN (for himself and Ms. STABENOW):

S. 860. A bill to ensure that methodologies and technologies used by the Bureau of Customs and Border Protection to screen for and detect the presence of chemical, nuclear, biological, and radiological weapons in municipal solid waste are as effective as the methodologies and technologies used by the Bureau to screen for those materials in other items of commerce entering the United States through commercial motor vehicle transport; to the Committee on Homeland Security and Governmental Affairs.

By Ms. LANDRIEU (for herself and Mr. VITTER):

S. 861. A bill to restore the natural resources, ecosystems, fisheries, marine habitats, and coastal wetland of Gulf Coast States, to create jobs and revive the economic health of communities adversely affected by the explosion on, and sinking of, the mobile offshore drilling unit Deepwater Horizon, and for other purposes; to the Committee on Environment and Public Works.

By Mr. NELSON of Florida:

S. 862. A bill to provide for a comprehensive Gulf of Mexico restoration plan, and for other purposes; to the Committee on Environment and Public Works.

By Ms. SNOWE:

S. 863. A bill to amend title XVI of the Social Security Act to clarify that the value of certain funeral and burial arrangements are not to be considered available resources under the supplemental security income program; to the Committee on Finance.

By Mr. DEMINT (for himself, Mr. VITTER, Ms. AYOTTE, Mr. COBURN, Mr. ENSIGN, Mrs. HUTCHISON, Mr. JOHNSON of Wisconsin, Mr. LEE, Mr. PAUL, Mr. RUBIO, and Mr. TOOMEY):

S.J. Res. 11. A joint resolution proposing an amendment to the Constitution of the United States relative to limiting the number of terms that a Member of Congress may serve to 3 in the House of Representatives and 2 in the Senate; to the Committee on the Judiciary.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. VITTER (for himself and Mr. LEE):

S. Res. 145. A resolution designating April 15, 2011, as ''National TEA Party Day''; to the Committee on the Judiciary.

By Mr. ENSIGN (for himself, Mrs. HUTCHISON, and Mr. MANCHIN):

S. Res. 146. A resolution expressing the sense of the Senate that it is not in the vital interest of the United States to intervene militarily in Libya, calling on NATO to ensure that member states dedicate the resources necessary to ensure that objectives as outlined in the United Nations Resolutions 1970 and 1973 are accomplished, and to urge members of the Arab League who have yet to participate in operations over Libya to provide additional military and financial assistance; to the Committee on Foreign Relations.

By Ms. KLOBUCHAR:

S. Res. 147. A resolution recognizing the celebration of National Student Employment Week at the University of Minnesota Duluth; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CORNYN (for himself, Ms. COLLINS, Mr. BLUNT, Mr. LEE, Mr. ROBERTS, and Mr. INHOFE):

S. Res. 148. A resolution calling on the President to submit to Congress a detailed description of United States policy objectives in Libya, both during and after Muammar Qaddafi's rule, and a plan to achieve them, and to seek congressional authorization for the use of military force against Libya; to the Committee on Foreign Relations.

By Mr. CASEY:

S. Res. 149. A resolution recognizing and supporting the goals and ideals of Sexual Assault Awareness Month; to the Committee on the Judiciary.

By Mr. INHOFE:

S. Res. 150. A resolution calling for the protection of religious minority rights and freedoms in the Arab world; to the Committee on Foreign Relations.

By Ms. KLOBUCHAR:

S. Res. 151. A resolution congratulating the University of Minnesota Duluth men's ice hockey team on winning their first National Collegiate Athletic Association (NCAA) Division I Men's Hockey National Championship; to the Committee on the Judiciary.

By Mr. MENENDEZ (for himself, Mr. DURBIN, Mr. REID, and Mr. LAUTENBERG):

S. Res. 152. A resolution designating April 30, 2011, as ''Dia de los Ninos: Celebrating Young Americans''; to the Committee on the Judiciary.

By Mr. LUGAR (for himself and Mr. KERRY):

S. Res. 153. A resolution recognizing the 25th anniversary of the Chernobyl nuclear

disaster; to the Committee on Foreign Relations.

By Mr. TESTER (for himself and Mr. BURR):

S. Res. 154. A resolution designating July 8, 2011, as ''Collector Car Appreciation Day'' and recognizing that the collection and restoration of historic and classic cars is an important part of preserving the technological achievements and cultural heritage of the United States; considered and agreed to.

By Mr. WEBB (for himself, Ms. SNOWE, Mr. COCHRAN, and Mr. WARNER):

S. Res. 155. A resolution designating April 23, 2011, as ''National Adopt A Library Day''; considered and agreed to.

By Ms. MURKOWSKI (for herself, Mr. BEGICH, Mrs. FEINSTEIN, Mr. UDALL of Colorado, Mr. AKAKA, Ms. MIKULSKI, Mr. LEVIN, Ms. STABENOW, Mr. COCHRAN, Mrs. MURRAY, and Mr. COONS):

S. Res. 156. A resolution designating April 15 through 17, 2011, as ''Global Youth Service Days''; considered and agreed to.

By Ms. KLOBUCHAR (for herself and Mr. VITTER):

S. Res. 157. A resolution designating April 21, 2011, as ''PowerTalk 21 Day''; considered and agreed to.

By Mr. ISAKSON (for himself, Mr. BEGICH, Mr. BOOZMAN, Mr. BROWN of Massachusetts, Mr. BURR, Mr. JOHANNS, Mr. MORAN, Mrs. MURRAY, Mr. SANDERS, and Mr. WEBB):

S. Con. Res. 13. A concurrent resolution honoring the service and sacrifice of members of the United States Armed Forces who are serving in, or have served in, Operation Enduring Freedom, Operation Iraqi Freedom, and Operation New Dawn; to the Committee on Armed Services.

ADDITIONAL COSPONSORS

S. 28

At the request of Mr. ROCKEFELLER, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 28, a bill to amend the Communications Act of 1934 to provide public safety providers an additional 10 megahertz of spectrum to support a national, interoperable wireless broadband network and authorize the Federal Communications Commission to hold incentive auctions to provide funding to support such a network, and for other purposes.

S. 33

At the request of Mr. LIEBERMAN, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 33, a bill to designate a portion of the Arctic National Wildlife Refuge as wilderness.

S. 206

At the request of Mr. LIEBERMAN, the name of the Senator from Pennsylvania (Mr. TOOMEY) was added as a cosponsor of S. 206, a bill to reauthorize the DC Opportunity Scholarship Program, and for other purposes.

S. 211

At the request of Mr. ISAKSON, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 211, a bill to provide for a biennial budget process and a biennial appropriations process and to enhance oversight and performance of the Federal Government.

S. 214

At the request of Mr. MENENDEZ, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 214, a bill to amend the Oil Pollution Act of 1990 to require oil polluters to pay the full cost of oil spills, and for other purposes.

S. 215

At the request of Mr. MENENDEZ, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 215, a bill to amend the Internal Revenue Code of 1986 to require oil polluters to pay the full cost of oil spills, and for other purposes.

S. 227

At the request of Ms. COLLINS, the name of the Senator from Hawaii (Mr. AKAKA) was added as a cosponsor of S. 227, a bill to amend title XVIII of the Social Security Act to ensure more timely access to home health services for Medicare beneficiaries under the Medicare program.

S. 245

At the request of Mr. CORKER, the names of the Senator from Wisconsin (Mr. JOHNSON) and the Senator from Connecticut (Mr. LIEBERMAN) were added as cosponsors of S. 245, a bill to reduce Federal spending in a responsible manner.

S. 296

At the request of Ms. KLOBUCHAR, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 296, a bill to amend the Federal Food, Drug, and Cosmetic Act to provide the Food and Drug Administration with improved capacity to prevent drug shortages.

S. 328

At the request of Mr. BROWN of Ohio, the names of the Senator from Michigan (Mr. LEVIN) and the Senator from Rhode Island (Mr. REED) were added as cosponsors of S. 328, a bill to amend title VII of the Tariff Act of 1930 to clarify that countervailing duties may be imposed to address subsidies relating to fundamentally undervalued currency of any foreign country.

S. 351

At the request of Ms. MURKOWSKI, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 351, a bill to authorize the exploration, leasing, development, and production of oil and gas in and from the western portion of the Coastal Plain of the State of Alaska without surface occupancy, and for other purposes.

S. 352

At the request of Ms. MURKOWSKI, the names of the Senator from North Dakota (Mr. HOEVEN) and the Senator from Alaska (Mr. BEGICH) were added as cosponsors of S. 352, a bill to authorize the exploration, leasing, development, production, and economically feasible and prudent transportation of oil and gas in and from the Coastal Plain in Alaska.

S. 384

At the request of Mrs. FEINSTEIN, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 384, a bill to amend title 39, United States Code, to extend the authority of the United States Postal Service to issue a semipostal to raise funds for breast cancer research.

S. 468

At the request of Mr. MCCONNELL, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 468, a bill to amend the Federal Water Pollution Control Act to clarify the authority of the Administrator to disapprove specifications of disposal sites for the discharge of, dredged or fill material, and to clarify the procedure under which a higher review of specifications may be requested.

S. 481

At the request of Mr. HARKIN, the name of the Senator from Vermont (Mr. LEAHY) was added as a cosponsor of S. 481, a bill to enhance and further research into the prevention and treatment of eating disorders, to improve access to treatment of eating disorders, and for other purposes.

S. 489

At the request of Mr. REED, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 489, a bill to require certain mortgagees to evaluate loans for modifications, to establish a grant program for State and local government mediation programs, and for other purposes.

S. 518

At the request of Mr. JOHNSON of South Dakota, the name of the Senator from Nebraska (Mr. JOHANNS) was added as a cosponsor of S. 518, a bill to amend the Internal Revenue Code of 1986 to provide for an exclusion for assistance provided to participants in certain veterinary student loan repayment or forgiveness programs.

S. 570

At the request of Mr. TESTER, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 570, a bill to prohibit the Department of Justice from tracking and cataloguing the purchases of multiple rifles and shotguns.

S. 576

At the request of Mr. HARKIN, the names of the Senator from Minnesota (Mr. FRANKEN), the Senator from Vermont (Mr. LEAHY), the Senator from Colorado (Mr. UDALL) and the Senator from Montana (Mr. TESTER) were added as cosponsors of S. 576, a bill to amend the Elementary and Secondary Education Act of 1965 to improve standards for physical education.

S. 596

At the request of Mr. WYDEN, the names of the Senator from Arizona (Mr. KYL), the Senator from Iowa (Mr. HARKIN), the Senator from New York (Mr. SCHUMER) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of S. 596, a bill to establish a grant program to benefit victims of sex trafficking, and for other purposes.

S. 598

At the request of Mrs. FEINSTEIN, the names of the Senator from Wisconsin

(Mr. KOHL) and the Senator from Iowa (Mr. HARKIN) were added as cosponsors of S. 598, a bill to repeal the Defense of Marriage Act and ensure respect for State regulation of marriage.

S. 613

At the request of Mr. HARKIN, the names of the Senator from Connecticut (Mr. BLUMENTHAL) and the Senator from Ohio (Mr. BROWN) were added as cosponsors of S. 613, a bill to amend the Individuals with Disabilities Education Act to permit a prevailing party in an action or proceeding brought to enforce the Act to be awarded expert witness fees and certain other expenses.

S. 630

At the request of Ms. MURKOWSKI, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 630, a bill to promote marine and hydrokinetic renewable energy research and development, and for other purposes.

S. 648

At the request of Mrs. GILLIBRAND, the name of the Senator from South Dakota (Mr. JOHNSON) was added as a cosponsor of S. 648, a bill to require the Commissioner of Social Security to revise the medical and evaluation criteria for determining disability in a person diagnosed with Huntington's Disease and to waive the 24—month waiting period for Medicare eligibility for individuals disabled by Huntington's Disease.

S. 658

At the request of Ms. KLOBUCHAR, the names of the Senator from New York (Mrs. GILLIBRAND), the Senator from North Carolina (Mrs. HAGAN) and the Senator from California (Mrs. FEINSTEIN) were added as cosponsors of S. 658, a bill to provide for the preservation by the Department of Defense of documentary evidence of the Department of Defense on incidents of sexual assault and sexual harassment in the military, and for other purposes.

S. 668

At the request of Mr. CORNYN, the name of the Senator from Georgia (Mr. CHAMBLISS) was added as a cosponsor of S. 668, a bill to remove unelected, unaccountable bureaucrats from seniors' personal health decisions by repealing the Independent Payment Advisory Board.

S. 700

At the request of Ms. KLOBUCHAR, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 700, a bill to amend the Internal Revenue Code of 1986 to permanently extend the treatment of certain farming business machinery and equipment as 5—year property for purposes of depreciation.

S. 705

At the request of Mr. CARPER, the names of the Senator from Nevada (Mr. ENSIGN) and the Senator from Idaho (Mr. RISCH) were added as cosponsors of S. 705, a bill to amend the Internal Revenue Code of 1986 to provide for collegiate housing and infrastructure grants.

S. 707

At the request of Mr. DURBIN, the name of the Senator from Connecticut (Mr. LIEBERMAN) was added as a cosponsor of S. 707, a bill to amend the Animal Welfare Act to provide further protection for puppies.

S. 712

At the request of Mr. DEMINT, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 712, a bill to repeal the Dodd—Frank Wall Street Reform and Consumer Protection Act.

S. 716

At the request of Mrs. SHAHEEN, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 716, a bill to establish within the Department of Education the Innovation Inspiration school grant program, and for other purposes.

S. 726

At the request of Mr. RUBIO, the name of the Senator from Utah (Mr. LEE) was added as a cosponsor of S. 726, a bill to rescind $45 billion of unobligated discretionary appropriations, and for other purposes.

S. 745

At the request of Mr. SCHUMER, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 745, a bill to amend title 38, United States Code, to protect certain veterans who would otherwise be subject to a reduction in educational assistance benefits, and for other purposes.

S. 811

At the request of Mr. MERKLEY, the names of the Senator from Hawaii (Mr. AKAKA), the Senator from Alaska (Mr. BEGICH), the Senator from Colorado (Mr. BENNET), the Senator from New Mexico (Mr. BINGAMAN), the Senator from Connecticut (Mr. BLUMENTHAL), the Senator from California (Mrs. BOXER), the Senator from Ohio (Mr. BROWN), the Senator from Washington (Ms. CANTWELL), the Senator from Maryland (Mr. CARDIN), the Senator from Pennsylvania (Mr. CASEY), the Senator from Illinois (Mr. DURBIN), the Senator from California (Mrs. FEINSTEIN), the Senator from Minnesota (Mr. FRANKEN), the Senator from New York (Mrs. GILLIBRAND), the Senator from Hawaii (Mr. INOUYE), the Senator from Massachusetts (Mr. KERRY), the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from New Jersey (Mr. LAUTENBERG), the Senator from Vermont (Mr. LEAHY), the Senator from Michigan (Mr. LEVIN), the Senator from Connecticut (Mr. LIEBERMAN), the Senator from Maryland (Ms. MIKULSKI), the Senator from Washington (Mrs. MURRAY), the Senator from Rhode Island (Mr. REED), the Senator from Vermont (Mr. SANDERS), the Senator from New York (Mr. SCHUMER), the Senator from New Hampshire (Mrs. SHAHEEN), the Senator from Maine (Ms. SNOWE), the Senator from Michigan (Ms. STABENOW), the Senator from Colorado (Mr. UDALL), the Senator from New Mexico (Mr. UDALL), the Senator from Virginia (Mr. WEBB), the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator from Oregon (Mr. WYDEN), the Senator from New Jersey (Mr. MENENDEZ) and the Senator from Delaware (Mr. COONS) were added as cosponsors of S. 811, a bill to prohibit employment discrimination on the basis of sexual orientation or gender identity.

S. 814

At the request of Mr. MANCHIN, the name of the Senator from Nebraska (Mr. NELSON) was added as a cosponsor of S. 814, a bill to require the public disclosure of audits conducted with respect to entities receiving funds under title X of the Public Health Service Act.

S.J. RES. 1

At the request of Mr. VITTER, the name of the Senator from South Carolina (Mr. DEMINT) was added as a cosponsor of S.J. Res. 1, a joint resolution proposing an amendment to the Constitution of the United States relative to limiting the number of terms that a Member of Congress may serve.

S. CON. RES. 4

At the request of Mr. SCHUMER, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. Con. Res. 4, a concurrent resolution expressing the sense of Congress that an appropriate site on Chaplains Hill in Arlington National Cemetery should be provided for a memorial marker to honor the memory of the Jewish chaplains who died while on active duty in the Armed Forces of the United States.

S. RES. 80

At the request of Mr. KIRK, the names of the Senator from Alaska (Ms. MURKOWSKI), the Senator from Rhode Island (Mr. WHITEHOUSE) and the Senator from Vermont (Mr. LEAHY) were added as cosponsors of S. Res. 80, a resolution condemning the Government of Iran for its state—sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 128

At the request of Mr. COONS, his name was added as a cosponsor of S. Res. 128, a resolution expressing the sense of the Senate that public servants should be commended for their dedication and continued service to the Nation during Public Service Recognition Week, May 1 through 7, 2011.

S. RES. 138

At the request of Mrs. GILLIBRAND, the names of the Senator from Nebraska (Mr. NELSON), the Senator from Rhode Island (Mr. REED), the Senator from New Hampshire (Ms. AYOTTE), the Senator from Louisiana (Mr. VITTER), the Senator from Texas (Mr. CORNYN), the Senator from Utah (Mr. LEE), the Senator from Oklahoma (Mr. INHOFE), the Senator from New Jersey (Mr. LAUTENBERG), the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator

from Arkansas (Mr. BOOZMAN) and the Senator from Minnesota (Ms. KLOBUCHAR) were added as cosponsors of S. Res. 138, a resolution calling on the United Nations to rescind the Goldstone report, and for other purposes.

At the request of Mr. JOHANNS, his name was added as a cosponsor of S. Res. 138, supra.

At the request of Mr. FRANKEN, his name was added as a cosponsor of S. Res. 138, supra.

At the request of Mr. REID, the name of the Senator from Michigan (Mr. LEVIN) was added as a cosponsor of S. Res. 138, supra.

S. RES. 144

At the request of Mrs. HUTCHISON, the name of the Senator from Louisiana (Ms. LANDRIEU) was added as a cosponsor of S. Res. 144, a resolution supporting early detection for breast cancer.

AMENDMENT NO. 197

At the request of Mrs. HUTCHISON, the name of the Senator from Iowa (Mr. GRASSLEY) was added as a cosponsor of amendment No. 197 proposed to S. 493, a bill to reauthorize and improve the SBIR and STTR programs, and for other purposes.

AMENDMENT NO. 253

At the request of Ms. SNOWE, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of amendment No. 253 proposed to S. 493, a bill to reauthorize and improve the SBIR and STTR programs, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. KERRY (for himself and Ms. SNOWE):

S. 818. A bill to amend title XVIII of the Social Security Act to count a period of receipt of outpatient observation services in a hospital toward satisfying the 3-day inpatient hospital requirement for coverage of skilled nursing facility services under Medicare; to the Committee on Finance.

Mr. KERRY. Mr. President, today too many Medicare beneficiaries are being saddled with thousands of dollars of unnecessary out-of-pocket costs for stays at skilled nursing facilities, SNF, solely because of the technical classification of their hospital stay.

Hospitals are increasingly serving Medicare beneficiaries using an ''outpatient observation status'' rather than admitting them as an inpatient—a billing technicality. Because of this, patients are enduring longer hospital stays in observation status and may unknowingly be treated under outpatient observation status for the entirety of their hospital visit.

While the classification of a hospital stay does not affect either the type or level of care a beneficiary receives, it has significant repercussions on Medicare coverage of SNF care. Under current law, Medicare covers SNF care only if beneficiaries have 3 consecutive days of hospitalization as an inpatient, not counting the day of discharge.

Although the Medicare Program manuals limit observation status to 24 to 48 hours, many beneficiaries nationwide are experiencing extended stays in acute care hospitals under observation status. According to the Medicare Payment Advisory Committee, MedPAC, the number of beneficiaries receiving outpatient observation services for longer than 48 hours rapidly increased, by more than 70 percent, from 2006 to 2008.

The growth in observation care has not only generated considerable beneficiary confusion as to why Medicare does not cover their SNF care after a hospitalization, but also it has also become a substantial financial barrier to medically necessary post-acute care. Beneficiaries are left facing thousands of dollars in unreimbursed out-of-pocket charges for their care. Those who cannot afford to pay privately for their stay in a SNF may decide to forgo care altogether.

I have heard countless stories of hardship from Medicare beneficiaries in Massachusetts because of this unfair policy. I would like to share the inexcusable experience of one of my constituents, Rosemary Crossin. Rosemary is 81 years old and suffers from Parkinson's disease, arthritis, and diabetes. She was treated at a Boston hospital following a fall that left her with a broken shoulder and a broken hand.

Upon arrival at the hospital, she was examined in the ER for over 6 hours, where she waited on a hard stretcher and received a CT scan, an x ray, and two doses of morphine. At the end of her examination, Rosemary, disoriented and unable to walk on her own due to the combination of her chronic conditions, morphine, and broken bones, was treated in the hospital under observation status.

At no time did the hospital inform Rosemary's family what observation status meant. Rosemary remained in the hospital for over 4 days while she recovered, after which time a physician determined that Rosemary be transferred to an extended stay facility to complete her rehabilitation.

Despite spending over 4 days in the hospital, after the hospital itself determined she was not fit to return home, Rosemary was never admitted as an inpatient. Because she was never classified as an inpatient for billing purposes, she was told that her costs would not be covered by Medicare. Rosemary was told that she would have to prepay $7998 to the skilled nursing facility or remain at the hospital at a cost of $1200 per day. This is wrong, and it needs to be changed.

Currently, Rosemary continues to rehabilitate her injuries at the skilled nursing facility. Unfortunately, because she was in observation status for her entire hospital stay, all subsequent costs will need to be paid for out-of-pocket.

Rosemary could have to spend up to $18,000 out-of-pocket following her fall, all because the hospital kept her under observation status for more than 96 hours after it determined she was not fit to go home.

Unfortunately, Rosemary's experience is not unique. That is why Senator SNOWE and I are working together to prevent billing technicalities from hampering access to skilled nursing care. Today, we are introducing the Improving Access to Medicare Coverage Act of 2011, which would eliminate financial barriers to skilled nursing care in Medicare by allowing observation stays to be counted toward the 3-day mandatory inpatient stay for Medicare coverage of SNF services.

This legislation is supported by a number of national organizations from both the provider and beneficiary communities. I would like to thank a number of organizations that have been integral to the development of the Improving Access to Medicare Coverage Act of 2011 and that have endorsed our legislation today, including the AARP, the American Health Care Association, the American Medical Association, the American Medical Directors Association, the Center for Medicare Advocacy, LeadingAge, and the National Committee to Preserve Social Security and Medicare.

The Improving Access to Medicare Coverage Act will ensure that vulnerable patients like Rosemary will no longer have to suffer or worry about affording medically needed care because of a hospital billing classification issue.

I urge my colleagues to support our legislation to eliminate unnecessary barriers to skilled nursing care and to bring peace of mind to patients and their families.

By Mr. SHELBY:

S. 820. A bill to repeal the current Internal Revenue Code and replace it with a flat tax, thereby guaranteeing economic growth and greater fairness for all Americans; to the Committee on Finance.

Mr. SHELBY. Mr. President, I rise today to once again introduce my flat tax bill, the Smart, Manageable and Responsible Tax Act, referred to as the SMART Act.

In the United States, there are few, if any, days that are viewed with the same resentment and contempt year after year as April 15: national tax day.

Our current Tax Code totals more than 70,000 pages, making tax compliance unnecessarily complex, confusing and costly. During the past 10 years, there have been over 4,400 changes to the Tax Code, including an estimated 579 changes in 2010 alone.

The inclusion of the additional 1099 tax reporting requirements in the health care reform bill are just one example of the onerous requirements throughout our Tax Code.

As we have learned since the passage of these requirements last March, incremental improvements to the Tax

Code are not easy. It took Congress over a year to finally agree to repeal the 1099 changes that common sense tells us are essential to alleviating the burdens on small business. Yet our Tax Code is riddled with other similarly ill-conceived requirements.

Over the course of a year, individuals spend an average of 26 hours, over half of a work week, preparing for their tax filings.

Although this has been standard practice for decades, I do not believe average taxpayers should have to pore over IRS regulations for hours or pay someone to prepare their returns. Unfortunately, under our convoluted tax system they are left with little choice.

I have said a number of times before that our current tax system is unfair. It punishes success and stifles economic growth. The best remedy is to adopt a single tax rate for all taxpayers. Transitioning to a flat tax would not only increase fairness in the Tax Code, it would also increase the incentives to work and invest.

By eliminating the thousands of tax loopholes, deductions, and credits that can often only be utilized with extensive tax planning and expensive advisers, hardworking Americans can rest assured that corporations with billions of dollars in profit and sophisticated taxpayers are not able to unfairly reduce or eliminate their tax liabilities and leave middle-class Americans footing the bill.

The SMART Act also reforms our corporate Tax Code. The United States currently has the second highest corporate tax rate in the world. American companies routinely make the difficult decision to move operations overseas to reduce their tax burden. Under my legislation, companies would pay a flat tax rate of 17 percent on their profits. Cutting the corporate tax rate in half would increase domestic companies' competitiveness with foreign corporations and eliminate the incentives to shift jobs overseas.

This bill provides a simple, commonsense solution to the complexities and inequities of the current tax system. Taxpayers would be able to determine their tax liability quickly and easily, and file a tax return the size of a postcard.

The SMART Tax would repeal the current Internal Tax Code and replace it with a single tax rate for all taxpayers of 17 percent on all salaries, wages, and pensions. The only exemptions would be a personal exemption of $13,410 for a single person; $17,120 for a head of household; $26,810 for a married couple filing jointly; and $5,780 for each dependent, with these amounts indexed to inflation.

Additionally, under my legislation, earnings from savings and investments would not be included in taxable income. Eliminating this double taxation would increase the savings rate in our country and immediately spur investments in the economy, create jobs and boost economic growth.

Approximately 60 percent of individual taxpayers now pay preparers to complete their taxes for them. An additional 29 percent of individuals use tax software to assist with their filings. What this means for most people is that in addition to paying the government every year, they must pay someone or buy software to tell them exactly how much to pay their government.

The American people want and need fundamental tax reform that would save time and money and bring fairness to our tax structure. The legislation I am introducing today would implement much-needed reforms that eliminate onerous paperwork and promote economic growth in our country.

I recognize that this bill is a monumental shift away from our current tax laws, but our economy needs a boost, and we must not allow the enormity of the task to deter us from enacting better, more efficient tax laws. I urge my colleagues to join me in support of this legislation.

By Mr. LEAHY (for himself, Mr. AKAKA, Mr. BLUMENTHAL, Mrs. BOXER, Mr. CARDIN, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. HARKIN, Mr. KERRY, Mr. LAUTENBERG, Mr. MERKLEY, Mrs. MURRAY, Mr. SCHUMER, Mr. WHITEHOUSE, Mr. WYDEN, Mr. INOUYE, and Mr. SANDERS):

S. 821. A bill to amend the Immigration and Nationality Act to eliminate discrimination in the immigration laws by permitting permanent partners of United States citizens and lawful permanent residents to obtain lawful permanent resident status in the same manner as spouses of citizens and lawful permanent residents and to penalize immigration fraud in connection with permanent partnerships; to the Committee on the Judiciary.

Mr. LEAHY. Mr. President, today, I am reintroducing the Uniting American Families Act, UAFA, which grants same-sex binational couples the same immigration benefits heterosexual couples have long enjoyed. This is the fourth Congress in which I have introduced this legislation, and I am proud to be joined by 17 Senators, many of whom also cosponsored this bill when it was introduced in the last Congress. I want to thank Senators AKAKA, BLUMENTHAL, BOXER, CARDIN, CASEY, COONS, DURBIN, FRANKEN, GILLIBRAND, HARKIN, KERRY, LAUTENBERG, MERKLEY, MURRAY, SCHUMER, WHITEHOUSE, and WYDEN for joining me as original cosponsors today.

A core tenet of our immigration policy is preserving family unity. Yet gay and lesbian Americans are still forced to choose between their country and being with those they love. This destructive policy tears families apart and forces hardworking Americans to make the heart-wrenching choice to leave the country they love and start over in one of the countries that now recognize immigration benefits for same-sex couples. I hear from Vermont couples who face this difficult decision every year. No American should face such a choice.

Over the past decade, Americans have begun to reject the notion that U.S. citizens who are gay or lesbian should not have loving relationships. As a result of this cultural shift, 5 States, including Vermont, now allow same-sex couples to get married. At the end of the 111th Congress, bipartisan votes in both the Senate and the House reversed the Military's ''Don't Ask, Don't Tell'' policy, a 17 year old policy that barred gay and lesbian service men and women from openly serving in the military. I hope that my colleagues who supported this important civil rights reform will join me in calling for fairness and equality in our immigration laws.

Some opponents of the Uniting American Families Act have argued that it would increase the potential for visa fraud. I share the belief that all immigration applications should be screened for fraud, but I am confident that U.S. Citizenship and Immigration Services will have no more difficulty identifying fraud in same-sex relationships than they do in heterosexual marriages. The penalties for fraud under this bill would be the same as the penalties for marriage fraud. These are very strict penalties: a sentence of up to 5 years in prison, $250,000 in fines for the U.S. citizen partner, and deportation for the foreign partner. In addition, in order to qualify as a bi-national couple under UAFA, petitioners must prove that they are at least 18 years of age and in a committed, lifelong, financially interdependent relationship with another adult. The American ideals that respect human relationships and family bonds should not be impeded by fears of fraud, which the immigration agency is very capable of controlling.

Since I last introduced the Uniting American Families Act in 2009, more than six additional countries have begun to offer immigration benefits to same-sex couples, bringing the total to at least 25 nations. Some of these nations are our closest allies, including our good friends to the North. America should join Argentina, Australia, Belgium, Brazil, Canada, the Czech Republic, Denmark, Finland, France, Germany, Greenland, Hungary, Iceland, Israel, Luxembourg, The Netherlands, New Zealand, Norway, Portugal, Romania, South Africa, Spain, Sweden, Switzerland, and the United Kingdom.

Unfortunately, among developed countries with a culture of respect for human rights and fairness, the United States is falling behind by denying Americans an equitable immigration policy. I hope all Senators will agree that the United States should not have a policy that forces Americans to choose between their jobs and country, and their loved ones. I urge all Senators to support this legislation.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 821

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; AMENDMENTS TO IMMIGRATION AND NATIONALITY ACT; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Uniting American Families Act of 2011''.

(b) AMENDMENTS TO IMMIGRATION AND NATIONALITY ACT.—Except as otherwise specifically provided in this Act, if an amendment or repeal is expressed as the amendment or repeal of a section or other provision, the reference shall be considered to be made to that section or provision in the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(c) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; amendments to Immigration and Nationality Act; table of contents.
Sec. 2. Definitions of permanent partner and permanent partnership.
Sec. 3. Worldwide level of immigration.
Sec. 4. Numerical limitations on individual foreign states.
Sec. 5. Allocation of immigrant visas.
Sec. 6. Procedure for granting immigrant status.
Sec. 7. Annual admission of refugees and admission of emergency situation refugees.
Sec. 8. Asylum.
Sec. 9. Adjustment of status of refugees.
Sec. 10. Inadmissible aliens.
Sec. 11. Nonimmigrant status for permanent partners awaiting the availability of an immigrant visa.
Sec. 12. Conditional permanent resident status for certain alien spouses, permanent partners, and sons and daughters.
Sec. 13. Conditional permanent resident status for certain alien entrepreneurs, spouses, permanent partners, and children.
Sec. 14. Deportable aliens.
Sec. 15. Removal proceedings.
Sec. 16. Cancellation of removal; adjustment of status.
Sec. 17. Adjustment of status of nonimmigrant to that of person admitted for permanent residence.
Sec. 18. Application of criminal penalties to for misrepresentation and concealment of facts regarding permanent partnerships.
Sec. 19. Requirements as to residence, good moral character, attachment to the principles of the Constitution.
Sec. 20. Naturalization for permanent partners of citizens.
Sec. 21. Application of family unity provisions to permanent partners of certain LIFE Act beneficiaries.
Sec. 22. Application to Cuban Adjustment Act.

SEC. 2. DEFINITIONS OF PERMANENT PARTNER AND PERMANENT PARTNERSHIP.

Section 101(a) (8 U.S.C. 1101(a)) is amended—

(1) in paragraph (15)(K)(ii), by inserting ''or permanent partnership'' after ''marriage''; and

(2) by adding at the end the following:

''(52) The term 'permanent partner' means an individual 18 years of age or older who—

''(A) is in a committed, intimate relationship with another individual 18 years of age or older in which both individuals intend a lifelong commitment;

''(B) is financially interdependent with that other individual;

''(C) is not married to, or in a permanent partnership with, any individual other than that other individual;

''(D) is unable to contract with that other individual a marriage cognizable under this Act; and

''(E) is not a first, second, or third degree blood relation of that other individual.

''(53) The term 'permanent partnership' means the relationship that exists between 2 permanent partners.''.

SEC. 3. WORLDWIDE LEVEL OF IMMIGRATION.

Section 201(b)(2)(A)(i) (8 U.S.C. 1151(b)(2)(A)(i)) is amended—

(1) by ''spouse'' each place it appears and inserting ''spouse or permanent partner'';

(2) by striking ''spouses'' and inserting ''spouse, permanent partner,'';

(3) by inserting ''(or, in the case of a permanent partnership, whose permanent partnership was not terminated)'' after ''was not legally separated from the citizen''; and

(4) by striking ''remarries.'' and inserting ''remarries or enters a permanent partnership with another person.''.

SEC. 4. NUMERICAL LIMITATIONS ON INDIVIDUAL FOREIGN STATES.

(a) PER COUNTRY LEVELS.—Section 202(a)(4) (8 U.S.C. 1152(a)(4)) is amended—

(1) in the paragraph heading, by inserting '', PERMANENT PARTNERS,'' after ''SPOUSES'';

(2) in the heading of subparagraph (A), by inserting '', PERMANENT PARTNERS,'' after ''SPOUSES''; and

(3) in the heading of subparagraph (C), by striking ''AND DAUGHTERS'' inserting ''WITHOUT PERMANENT PARTNERS AND UNMARRIED DAUGHTERS WITHOUT PERMANENT PARTNERS''.

(b) RULES FOR CHARGEABILITY.—Section 202(b)(2) (8 U.S.C. 1152(b)(2)) is amended—

(1) by striking ''his spouse'' and inserting ''his or her spouse or permanent partner'';

(2) by striking ''such spouse'' each place it appears and inserting ''such spouse or permanent partner''; and

(3) by inserting ''or permanent partners'' after ''husband and wife''.

SEC. 5. ALLOCATION OF IMMIGRANT VISAS.

(a) PREFERENCE ALLOCATION FOR FAMILY MEMBERS OF PERMANENT RESIDENT ALIENS.—Section 203(a)(2) (8 U.S.C. 1153(a)(2)) is amended—

(1) by striking the paragraph heading and inserting the following:

''(2) SPOUSES, PERMANENT PARTNERS, UNMARRIED SONS WITHOUT PERMANENT PARTNERS, AND UNMARRIED DAUGHTERS WITHOUT PERMANENT PARTNERS OF PERMANENT RESIDENT ALIENS.—'';

(2) in subparagraph (A), by inserting '', permanent partners,'' after ''spouses''; and

(3) in subparagraph (B), by striking ''or unmarried daughters'' and inserting ''without permanent partners or the unmarried daughters without permanent partners''.

(b) PREFERENCE ALLOCATION FOR SONS AND DAUGHTERS OF CITIZENS.—Section 203(a)(3) (8 U.S.C. 1153(a)(3)) is amended—

(1) by striking the paragraph heading and inserting the following:

''(2) MARRIED SONS AND DAUGHTERS OF CITIZENS AND SONS AND DAUGHTERS WITH PERMANENT PARTNERS OF CITIZENS.—''; and

(2) by inserting '', or sons or daughters with permanent partners,'' after ''daughters''.

(c) EMPLOYMENT CREATION.—Section 203(b)(5)(A)(ii) (8 U.S.C. 1153(b)(5)(A)(ii)) is amended by inserting ''permanent partner,'' after ''spouse,''.

(d) TREATMENT OF FAMILY MEMBERS.—Section 203(d) (8 U.S.C. 1153(d)) is amended—

(1) by inserting ''or permanent partner'' after ''section 101(b)(1)''; and

(2) by inserting '', permanent partner,'' after ''the spouse''.

SEC. 6. PROCEDURE FOR GRANTING IMMIGRANT STATUS.

(a) CLASSIFICATION PETITIONS.—Section 204(a)(1) (8 U.S.C. 1154(a)(1)) is amended—

(1) in subparagraph (A)—

(A) in clause (ii), by inserting ''or permanent partner'' after ''spouse'';

(B) in clause (iii)—

(i) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(ii) in subclause (I), by inserting ''or permanent partnership'' after ''marriage'' each place it appears;

(C) in clause (v)(I), by inserting ''permanent partner,'' after ''is the spouse,''; and

(D) in clause (vi)—

(i) by inserting ''or termination of the permanent partnership'' after ''divorce''; and

(ii) by inserting '', permanent partner,'' after ''spouse''; and

(2) in subparagraph (B)—

(A) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(B) in clause (ii)—

(i) in subclause (I)(aa), by inserting ''or permanent partnership'' after ''marriage'';

(ii) in subclause (I)(bb), by inserting ''or permanent partnership'' after ''marriage'' the first place it appears; and

(iii) in subclause (II)(aa), by inserting ''(or the termination of the permanent partnership)'' after ''termination of the marriage''.

(b) IMMIGRATION FRAUD PREVENTION.—Section 204(c) (8 U.S.C. 1154(c)) is amended—

(1) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(2) by inserting ''or permanent partnership'' after ''marriage'' each place it appears.

SEC. 7. ANNUAL ADMISSION OF REFUGEES AND ADMISSION OF EMERGENCY SITUATION REFUGEES.

Section 207(c) (8 U.S.C. 1157(c)) is amended—

(1) in paragraph (2)—

(A) by inserting '', permanent partner,'' after ''spouse'' each place it appears; and

(B) by inserting '', permanent partner's,'' after ''spouse's''; and

(2) in paragraph (4), by inserting '', permanent partner,'' after ''spouse''.

SEC. 8. ASYLUM.

Section 208(b)(3) (8 U.S.C. 1158(b)(3)) is amended—

(1) in the paragraph heading, by inserting '', PERMANENT PARTNER,'' after ''SPOUSE''; and

(2) in subparagraph (A), by inserting '', permanent partner,'' after ''spouse''.

SEC. 9. ADJUSTMENT OF STATUS OF REFUGEES.

Section 209(b)(3) (8 U.S.C. 1159(b)(3)) is amended by inserting '', permanent partner,'' after ''spouse''.

SEC. 10. INADMISSIBLE ALIENS.

(a) CLASSES OF ALIENS INELIGIBLE FOR VISAS OR ADMISSION.—Section 212(a) (8 U.S.C. 1182(a)) is amended—

(1) in paragraph (3)(D)(iv), by inserting ''permanent partner,'' after ''spouse,'';

(2) in paragraph (4)(C)(i)(I), by inserting '', permanent partner,'' after ''spouse'';

(3) in paragraph (6)(E)(ii), by inserting ''permanent partner,'' after ''spouse,''; and

(4) in paragraph (9)(B)(v), by inserting '', permanent partner,'' after ''spouse''.

(b) WAIVERS.—Section 212(d) (8 U.S.C. 1182(d)) is amended—

(1) in paragraph (11), by inserting ''permanent partner,'' after ''spouse,''; and

(2) in paragraph (12), by inserting '', permanent partner,'' after ''spouse''.

(c) WAIVERS OF INADMISSIBILITY ON HEALTH-RELATED GROUNDS.—Section 212(g)(1)(A) (8 U.S.C. 1182(g)(1)(A)) is amended by inserting '', permanent partner,'' after ''spouse''.

(d) WAIVERS OF INADMISSIBILITY ON CRIMINAL AND RELATED GROUNDS.—Section 212(h)(1)(B) (8 U.S.C. 1182(h)(1)(B)) is amended by inserting ''permanent partner,'' after ''spouse,''.

(e) WAIVER OF INADMISSIBILITY FOR MISREPRESENTATION.—Section 212(i)(1) (8 U.S.C. 1182(i)(1)) is amended by inserting ''permanent partner,'' after ''spouse,''.

SEC. 11. NONIMMIGRANT STATUS FOR PERMANENT PARTNERS AWAITING THE AVAILABILITY OF AN IMMIGRANT VISA.

Section 214(r) (8 U.S.C. 1184(r)) is amended—

(1) in paragraph (1), by inserting ''or permanent partner'' after ''spouse''; and

(2) in paragraph (2), by inserting ''or permanent partnership'' after ''marriage'' each place it appears.

SEC. 12. CONDITIONAL PERMANENT RESIDENT STATUS FOR CERTAIN ALIEN SPOUSES, PERMANENT PARTNERS, AND SONS AND DAUGHTERS.

(a) SECTION HEADING.—

(1) IN GENERAL.—The heading for section 216 (8 U.S.C. 1186a) is amended by striking ''AND SONS'' and inserting '', PERMANENT PARTNERS, SONS,''.

(2) CLERICAL AMENDMENT.—The table of contents is amended by amending the item relating to section 216 to read as follows:

''Sec. 216. Conditional permanent resident status for certain alien spouses, permanent partners, sons, and daughters.''.

(b) IN GENERAL.—Section 216(a) (8 U.S.C. 1186a(a)) is amended—

(1) in paragraph (1), by inserting ''or permanent partner'' after ''spouse''; and

(2) in paragraph (2)—

(A) in subparagraph (A), by inserting ''or permanent partner'' after ''spouse'';

(B) in subparagraph (B), by inserting ''permanent partner,'' after ''spouse,''; and

(C) in subparagraph (C), by inserting ''permanent partner,'' after ''spouse,''.

(c) TERMINATION OF STATUS IF FINDING THAT QUALIFYING MARRIAGE IMPROPER.—Section 216(b) (8 U.S.C. 1186a(b)) is amended—

(1) in the subsection heading, by inserting ''OR PERMANENT PARTNERSHIP'' after ''MARRIAGE''; and

(2) in paragraph (1)(A)—

(A) by inserting ''or permanent partnership'' after ''marriage''; and

(B) in clause (ii)—

(i) by inserting ''or has ceased to satisfy the criteria for being considered a permanent partnership under this Act,'' after ''terminated,''; and

(ii) by inserting ''or permanent partner'' after ''spouse''.

(d) REQUIREMENTS OF TIMELY PETITION AND INTERVIEW FOR REMOVAL OF CONDITION.—Section 216(c) (8 U.S.C. 1186a(c)) is amended—

(1) in paragraphs (1), (2)(A)(ii), (3)(A)(ii), (3)(C), (4)(B), and (4)(C), by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(2) in paragraph (3)(A), (3)(D), (4)(B), and (4)(C), by inserting ''or permanent partnership'' after ''marriage'' each place it appears.

(e) CONTENTS OF PETITION.—Section 216(d)(1) (8 U.S.C. 1186a(d)(1)) is amended—

(1) in subparagraph (A)—

(A) in the heading, by inserting ''OR PERMANENT PARTNERSHIP'' after ''MARRIAGE'';

(B) in clause (i)—

(i) by inserting ''or permanent partnership'' after ''marriage'';

(ii) in subclause (I), by inserting before the comma at the end '', or is a permanent partnership recognized under this Act''; and

(iii) in subclause (II)—

(I) by inserting ''or has not ceased to satisfy the criteria for being considered a permanent partnership under this Act,'' after ''terminated,''; and

(II) by inserting ''or permanent partner'' after ''spouse''; and

(C) in clause (ii), by inserting ''or permanent partner'' after ''spouse''; and

(2) in subparagraph (B)(i)—

(A) by inserting ''or permanent partnership'' after ''marriage''; and

(B) by inserting ''or permanent partner'' after ''spouse''.

(f) DEFINITIONS.—Section 216(g) (8 U.S.C. 1186a(g)) is amended—

(1) in paragraph (1)—

(A) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(B) by inserting ''or permanent partnership'' after ''marriage'' each place it appears;

(2) in paragraph (2), by inserting ''or permanent partnership'' after ''marriage'';

(3) in paragraph (3), by inserting ''or permanent partnership'' after ''marriage''; and

(4) in paragraph (4)—

(A) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(B) by inserting ''or permanent partnership'' after ''marriage''.

SEC. 13. CONDITIONAL PERMANENT RESIDENT STATUS FOR CERTAIN ALIEN ENTREPRENEURS, SPOUSES, PERMANENT PARTNERS, AND CHILDREN.

(a) IN GENERAL.—Section 216A (8 U.S.C. 1186b) is amended—

(1) in the section heading, by inserting '', PERMANENT PARTNERS,'' after ''SPOUSES''; and

(2) in paragraphs (1), (2)(A), (2)(B), and (2)(C), by inserting ''or permanent partner'' after ''spouse'' each place it appears.

(b) TERMINATION OF STATUS IF FINDING THAT QUALIFYING ENTREPRENEURSHIP IMPROPER.—Section 216A(b)(1) (8 U.S.C. 1186b(b)(1)) is amended by inserting ''or permanent partner'' after ''spouse'' in the matter following subparagraph (C).

(c) REQUIREMENTS OF TIMELY PETITION AND INTERVIEW FOR REMOVAL OF CONDITION.—Section 216A(c) (8 U.S.C. 1186b(c)) is amended, in paragraphs (1), (2)(A)(ii), and (3)(C), by inserting ''or permanent partner'' after ''spouse''.

(d) DEFINITIONS.—Section 216A(f)(2) (8 U.S.C. 1186b(f)(2)) is amended by inserting ''or permanent partner'' after ''spouse'' each place it appears.

(e) CLERICAL AMENDMENT.—The table of contents is amended by amending the item relating to section 216A to read as follows:

''Sec. 216A. Conditional permanent resident status for certain alien entrepreneurs, spouses, permanent partners, and children.''.

SEC. 14. DEPORTABLE ALIENS.

Section 237(a)(1) (8 U.S.C. 1227(a)(1)) is amended—

(1) in subparagraph (D)(i), by inserting ''or permanent partners'' after ''spouses'' each place it appears;

(2) in subparagraphs (E)(ii), (E)(iii), and (H)(i)(I), by inserting ''or permanent partner'' after ''spouse'';

(3) by inserting after subparagraph (E) the following:

''(F) PERMANENT PARTNERSHIP FRAUD.—An alien shall be considered to be deportable as having procured a visa or other documentation by fraud (within the meaning of section 212(a)(6)(C)(i)) and to be in the United States in violation of this Act (within the meaning of subparagraph (B)) if—

''(i) the alien obtains any admission to the United States with an immigrant visa or other documentation procured on the basis of a permanent partnership entered into less than 2 years before such admission and which, within 2 years subsequent to such admission, is terminated because the criteria for permanent partnership are no longer fulfilled, unless the alien establishes to the satisfaction of the Secretary of Homeland Security that such permanent partnership was not contracted for the purpose of evading any provision of the immigration laws; or

''(ii) it appears to the satisfaction of the Secretary of Homeland Security that the alien has failed or refused to fulfill the alien's permanent partnership, which the Secretary of Homeland Security determines was made for the purpose of procuring the alien's admission as an immigrant.''; and

(4) in paragraphs (2)(E)(i) and (3)(C)(ii), by inserting ''or permanent partner'' after ''spouse'' each place it appears.

SEC. 15. REMOVAL PROCEEDINGS.

Section 240 (8 U.S.C. 1229a) is amended—

(1) in the heading of subsection (c)(7)(C)(iv), by inserting ''PERMANENT PARTNERS,'' after ''SPOUSES,''; and

(2) in subsection (e)(1), by inserting ''permanent partner,'' after ''spouse,''.

SEC. 16. CANCELLATION OF REMOVAL; ADJUSTMENT OF STATUS.

Section 240A(b) (8 U.S.C. 1229b(b)) is amended—

(1) in paragraph (1)(D), by inserting ''or permanent partner'' after ''spouse''; and

(2) in paragraph (2)—

(A) in the paragraph heading, by inserting '', PERMANENT PARTNER,'' after ''SPOUSE''; and

(B) in subparagraph (A), by inserting '', permanent partner,'' after ''spouse'' each place it appears.

SEC. 17. ADJUSTMENT OF STATUS OF NONIMMIGRANT TO THAT OF PERSON ADMITTED FOR PERMANENT RESIDENCE.

(a) PROHIBITION ON ADJUSTMENT OF STATUS.—Section 245(d) (8 U.S.C. 1255(d)) is amended by inserting ''or permanent partnership'' after ''marriage''.

(b) AVOIDING IMMIGRATION FRAUD.—Section 245(e) (8 U.S.C. 1255(e)) is amended—

(1) in paragraph (1), by inserting ''or permanent partnership'' after ''marriage''; and

(2) by adding at the end the following:

''(4)(A) Paragraph (1) and section 204(g) shall not apply with respect to a permanent partnership if the alien establishes by clear and convincing evidence to the satisfaction of the Secretary of Homeland Security that—

''(i) the permanent partnership was entered into in good faith and in accordance with section 101(a)(52);

''(ii) the permanent partnership was not entered into for the purpose of procuring the alien's admission as an immigrant; and

''(iii) no fee or other consideration was given (other than a fee or other consideration to an attorney for assistance in preparation of a lawful petition) for the filing of a petition under section 204(a) or 214(d) with respect to the alien permanent partner.

''(B) The Secretary shall promulgate regulations that provide for only 1 level of administrative appellate review for each alien under subparagraph (A).''.

(c) ADJUSTMENT OF STATUS FOR CERTAIN ALIENS PAYING FEE.—Section 245(i)(1)(B) (8 U.S.C. 1255(i)(1)(B)) is amended by inserting '', permanent partner,'' after ''spouse''.

SEC. 18. APPLICATION OF CRIMINAL PENALTIES TO FOR MISREPRESENTATION AND CONCEALMENT OF FACTS REGARDING PERMANENT PARTNERSHIPS.

Section 275(c) (8 U.S.C. 1325(c)) is amended to read as follows:

''(c) Any individual who knowingly enters into a marriage or permanent partnership for the purpose of evading any provision of the immigration laws shall be imprisoned for not more than 5 years, fined not more than $250,000, or both.''.

SEC. 19. REQUIREMENTS AS TO RESIDENCE, GOOD MORAL CHARACTER, ATTACHMENT TO THE PRINCIPLES OF THE CONSTITUTION.

Section 316(b) (8 U.S.C. 1427(b)) is amended by inserting '', permanent partner,'' after ''spouse''.

SEC. 20. NATURALIZATION FOR PERMANENT PARTNERS OF CITIZENS.

(a) IN GENERAL.—Section 319 (8 U.S.C. 1430) is amended—

(1) in subsection (a)—

(A) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(B) by inserting ''or permanent partnership'' after ''marital union'';

(2) in subsection (b)—

(A) in paragraph (1), by inserting ''or permanent partner'' after ''spouse'';

(B) in paragraph (3), by inserting ''or permanent partner'' after ''spouse'';

(3) in subsection (d)—

(A) by inserting ''or permanent partner'' after ''spouse'' each place it appears; and

(B) by inserting ''or permanent partnership'' after ''marital union'';

(4) in subsection (e)(1)—

(A) by inserting ''or permanent partner'' after ''spouse''; and

(B) by inserting ''by the Secretary of Defense'' after ''is authorized''; and

(C) by inserting ''or permanent partnership'' after ''marital union''; and

(5) in subsection (e)(2), by inserting ''or permanent partner'' after ''spouse''.

(b) SAVINGS PROVISION.—Section 319(e) (8 U.S.C. 1430(e)) is amended by adding at the end the following:

''(3) Nothing in this subsection may be construed to confer a right for an alien to accompany a member of the Armed Forces of the United States or to reside abroad with such member, except as authorized by the Secretary of Defense in the member's official orders.''.

SEC. 21. APPLICATION OF FAMILY UNITY PROVISIONS TO PERMANENT PARTNERS OF CERTAIN LIFE ACT BENEFICIARIES.

Section 1504 of the LIFE Act Amendments of 2000 (division B of Public Law 106–554; 114 Stat. 2763–325) is amended—

(1) in the heading, by inserting ''**, PERMANENT PARTNERS,**'' after ''**SPOUSES**'';

(2) in subsection (a), by inserting '', permanent partner,'' after ''spouse''; and

(3) in each of subsections (b) and (c)—

(A) in each of the subsection headings, by inserting '', PERMANENT PARTNERS,'' after ''SPOUSES''; and

(B) by inserting '', permanent partner,'' after ''spouse'' each place it appears.

SEC. 22. APPLICATION TO CUBAN ADJUSTMENT ACT.

(a) IN GENERAL.—The first section of Public Law 89–732 (8 U.S.C. 1255 note) is amended—

(1) in the next to last sentence, by inserting '', permanent partner,'' after ''spouse'' the first 2 places it appears; and

(2) in the last sentence, by inserting '', permanent partners,'' after ''spouses''.

(b) CONFORMING AMENDMENT.—Section 101(a)(51)(D) (8 U.S.C. 1101(a)(51)(D)) is amended by striking ''or spouse'' and inserting '', spouse, or permanent partner''.

By Mr. COONS:

S. 825. A bill to amend the Internal Revenue Code of 1986 to permanently extend and modify the research tax credit, and for other purposes; to the Committee on Finance.

Mr. COONS. Mr. President, I rise today to introduce my first bill in the Senate, one I believe will promote competitiveness and spur the growth of sustainable middle class jobs. As I noted in my maiden speech in January, the people of Delaware sent me here with a mission to work with my colleagues to help create jobs and get our economy moving again.

My bill, the Job Creation Through Innovation Act, will do just that. By making strategic investments in research and development and incentives for economic growth, this legislation will help companies in Delaware and across the United States innovate, create jobs, and compete globally.

First, it will simplify, expand, and make permanent the Research and Development Tax Credit. When this credit was enacted into law in 1981, the United States was the best place in the world to perform research and development. Thirty years and fourteen temporary extensions later, we still do not have a permanent R&D credit on the books. Passing temporary extensions, one after another, undermines the very purpose of this credit. Whenever there is uncertainty about the credit's future availability, businesses discount its value, and we reap only the counterproductive effect of reducing the credit's benefit to our economy. Research and development projects are never stop-and-go, and the R&D tax credit shouldn't be either.

Second, many new small businesses today are ineligible for the R&D credit, because they are not yet profitable. My bill will create a new Small Business Innovation Credit, which will provide much-needed support to these start-ups. Currently, the R&D credit is nonrefundable, so only those companies with income tax liability benefit from it. This poses a special problem for research-intensive start-up businesses—just the sort of businesses that have the potential to develop revolutionary technologies and products. Such firms often spend their first several years operating at a loss while spending a great deal of money on research and development. The Small Business Innovation Credit will address this by allowing companies with 500 employees or fewer to claim a refundable R&D credit.

Another provision of my bill is a new Domestic Manufacturing Tax Credit, which will provide additional tax incentives to companies that both conduct research and manufacture their products right here in America. This will reward companies that invest in America and give multinational firms another reason to keep manufacturing jobs from being shipped overseas.

The Job Creation Through Innovation Act would additionally extend the Section 1603 Treasury Grants Program—or ''TGP''—and the Advanced Energy Manufacturing Credit. Both of these were authorized in the Recovery Act and are designed to promote clean energy technology and investment. Both have also had a significant and beneficial impact on energy project developers and manufacturers in my home state of Delaware and other states in the past 2 years.

The TGP provides payments for specified energy property in lieu of investment tax credits and production tax credits. Economic certainty is critical to wind, solar, biofuel, geothermal, and other clean energy projects, and, according to a survey of leading participants in the tax equity market, without an extension of the TGP the anticipated total financing available for renewable resource projects would decrease significantly, should it be left to expire at the end of 2011. My bill extends the TGP for another year.

The Advanced Energy Manufacturing Credit, also called the 48C Incentive, provides a thirty percent investment tax credit to domestic manufacturers who build or expand facilities that produce a range of clean energy products and technologies. These credits can also be used to leverage private investment, and it is estimated that this tax credit has to date helped businesses raise more than $5.4 billion from just a $2.3 billion Federal investment. It is also estimated to have created 58,000 jobs. My bill will provide an additional $5 billion in incentives, of which up to $1.5 billion would be made available to companies whose applications are already pending under the original solicitation.

In my maiden speech in January, I spoke at length about the new agenda for manufacturing I intend to promote during my service in the Senate, and this bill is just the first step. I am proud that Delaware is already on the cutting-edge of the high-tech and clean energy manufacturing revolution I believe will be the key to winning the future.

While we are all rightly focused now on the deficit and cutting our budget, we must also think ahead and make those long-term investments that will boost our economy, incentivize clean energy resources and manufacturing, and grow the jobs we need to sustain a strong middle class in this country for years to come. I hope my colleagues will join me in this effort, and I commend those who already have.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 825

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

(a) SHORT TITLE.—This Act may be cited as the ''Job Creation Through Innovation Act''.

(b) AMENDMENT OF 1986 CODE.—Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the Internal Revenue Code of 1986.

SEC. 2. USE OF ONLY SIMPLIFIED RESEARCH CREDIT AFTER 2011; EXPANSION AND PERMANENT EXTENSION.

(a) SIMPLIFIED CREDIT FOR QUALIFIED RESEARCH EXPENSES.—Subsection (a) of section 41 is amended to read as follows:

''(a) GENERAL RULE.—

''(1) CREDIT DETERMINED.—For purposes of section 38, the research credit determined under this section for the taxable year shall be an amount equal to 20 percent of so much of the qualified research expenses for the taxable year as exceeds 50 percent of the average qualified research expenses for the 3 taxable years preceding the taxable year for which the credit is being determined.

''(2) SPECIAL RULE IN CASE OF NO QUALIFIED RESEARCH EXPENSES IN ANY OF 3 PRECEDING TAXABLE YEARS.—

''(A) TAXPAYERS TO WHICH PARAGRAPH APPLIES.—The credit under this section shall be determined under this paragraph if the taxpayer has no qualified research expenses in any one of the 3 taxable years preceding the taxable year for which the credit is being determined.

''(B) CREDIT RATE.—The credit determined under this paragraph shall be equal to 10 percent of the qualified research expenses for the taxable year.''.

(b) CONFORMING AMENDMENTS.—

(1) TERMINATION OF BASE AMOUNT CALCULATION.—Section 41 is amended by striking subsection (c) and redesignating subsection (d) as subsection (c).

(2) TERMINATION OF BASIC RESEARCH PAYMENT CALCULATION.—Section 41 is amended by striking subsection (e) and redesignating subsections (f) and (g) as subsections (d) and (e), respectively.

(3) SPECIAL RULES.—

(A) Paragraph (1)(A)(ii) of subsection (d) of section 41, as so redesignated, is amended by striking ''shares of the qualified research expenses, basic research payments, and amounts paid or incurred to energy research consortiums,'' and inserting ''share of the qualified research expenses''.

(B) Paragraph (1)(B)(ii) of section 41(d), as so redesignated, is amended by striking ''shares of the qualified research expenses, basic research payments, and amounts paid or incurred to energy research consortiums,'' and inserting ''share of the qualified research expenses''.

(C) Paragraph (3) of section 41(d), as so redesignated, is amended—

(i) by striking '', and the gross receipts of the taxpayer'' and all that follows in subparagraph (A) and inserting a period,

(ii) by striking '', and the gross receipts of the taxpayer'' and all that follows in subparagraph (B) and inserting a period, and

(iii) by striking subparagraph (C).

(D) Paragraph (4) of section 41(d), as so redesignated, is amended by striking ''and gross receipts''.

(E) Subsection (d) of section 41, as so redesignated, is amended by striking paragraph (6).

(4) PERMANENT EXTENSION.—

(A) Section 41 is amended by striking subsection (h).

(B) Section 45C(b)(1) is amended by striking subparagraph (D).

(5) CROSS-REFERENCES.—

(A) Paragraphs (2)(A) and (4) of section 41(b) are each amended by striking ''subsection (f)(1)'' and inserting ''subsection (d)(1)''.

(B) Paragraph (2) of section 45C(c) is amended by striking ''base period research expenses'' and inserting ''average qualified research expenses''.

(C) Paragraph (3) of section 45C(d) is amended by striking ''section 41(f)'' and inserting ''section 41(d)''.

(D) Paragraph (2) of section 45G(e) is amended by striking ''section 41(f)'' and inserting ''section 41(d)''.

(E) Subsection (g) of section 45O is amended by striking ''section 41(f)'' and inserting ''section 41(d)''.

(F) Subparagraph (A) of section 54(l)(3) is amended by striking ''section 41(g)'' and inserting ''section 41(e)''.

(G) Clause (i) of section 170(e)(4)(B) is amended to read as follows:

''(i) the contribution is to a qualified organization,''.

(H) Paragraph (4) of section 170(e) is amended by adding at the end the following new subparagraph:

''(E) QUALIFIED ORGANIZATION.—For purposes of this paragraph, the term 'qualified organization' means—

''(i) any educational organization which—

''(I) is an institution of higher education (within the meaning of section 3304(f)), and

''(II) is described in subsection (b)(1)(A)(ii), or

''(ii) any organization not described in clause (i) which—

''(I) is described in section 501(c)(3) and is exempt from tax under section 501(a),

''(II) is organized and operated primarily to conduct scientific research, and

''(III) is not a private foundation.''.

(I) Subsection (f) of section 197 is amended by striking ''section 41(f)(1)'' each place it appears in paragraphs (1)(C) and (9)(C)(i) and inserting ''section 41(d)(1)''.

(J) Section 280C is amended—

(i) by striking ''41(f)'' each place it appears in subsection (b)(3) and inserting ''41(d)'',

(ii) by striking ''or basic research expenses (as defined in section 41(e)(2))'' in subsection (c)(1),

(iii) by striking ''section 41(a)(1)'' in subsection (c)(2)(A) and inserting ''section 41(a)'', and

(iv) by striking ''or basic research expenses'' in subsection (c)(2)(B).

(K) Subclause (IV)(c) of section 936(h)(5)(C)(i) is amended by striking ''section 41(f)'' and inserting ''section 41(d)''.

(L) Subparagraph (D) of section 936(j)(5) is amended by striking ''section 41(f)(3)'' and inserting ''section 41(d)(3)''.

(M) Clause (i) of section 965(c)(2)(C) is amended by striking ''section 41(f)(3)'' and inserting ''section 41(d)(3)''.

(N) Clause (i) of section 1400N(l)(7)(B) is amended by striking ''section 41(g)'' and inserting ''section 41(e)''.

(c) TECHNICAL CORRECTIONS.—Section 409 is amended—

(1) by inserting '', as in effect before the enactment of the Tax Reform Act of 1984)'' after ''section 41(c)(1)(B)'' in subsection (b)(1)(A),

(2) by inserting '', as in effect before the enactment of the Tax Reform Act of 1984'' after ''relating to the employee stock ownership credit'' in subsection (b)(4),

(3) by inserting ''(as in effect before the enactment of the Tax Reform Act of 1984)'' after ''section 41(c)(1)(B)'' in subsection (i)(1)(A),

(4) by inserting ''(as in effect before the enactment of the Tax Reform Act of 1984)'' after ''section 41(c)(1)(B)'' in subsection (m),

(5) by inserting ''(as so in effect)'' after ''section 48(n)(1)'' in subsection (m),

(6) by inserting ''(as in effect before the enactment of the Tax Reform Act of 1984)'' after ''section 48(n)'' in subsection (q)(1), and

(7) by inserting ''(as in effect before the enactment of the Tax Reform Act of 1984)'' after ''section 41'' in subsection (q)(3).

(d) EFFECTIVE DATE.—

(1) IN GENERAL.—Except as provided in paragraph (2), the amendments made by this section shall apply to taxable years beginning after December 31, 2011.

(2) TECHNICAL CORRECTIONS.—The amendments made by subsection (c) shall take effect on the date of the enactment of this Act.

SEC. 3. ENHANCED RESEARCH CREDIT FOR DOMESTIC MANUFACTURERS.

(a) IN GENERAL.—Section 41, as amended by section 3, is amended by redesignating subsection (f) as subsection (g) and by inserting after subsection (e) the following new subsection:

''(f) ENHANCED CREDIT FOR DOMESTIC MANUFACTURERS.—

''(1) IN GENERAL.—In the case of a qualified domestic manufacturer, this section shall be applied by increasing the 20 percent amount in subsection (a)(1) by the bonus amount.

''(2) QUALIFIED DOMESTIC MANUFACTURER.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'qualified domestic manufacturer' means a taxpayer who has domestic production gross receipts which are more than 50 percent of total production gross receipts.

''(B) DOMESTIC PRODUCTION GROSS RECEIPTS.—The term 'domestic production gross receipts' has the meaning given to such term under section 199(c)(4).

''(C) TOTAL PRODUCTION GROSS RECEIPTS.—The term 'total production gross receipts' means the gross receipts of the taxpayer which are described in section 199(c)(4), determined—

''(i) without regard to whether property described in subparagraph (A)(i)(I) or (A)(i)(III) thereof was manufactured, produced, grown, or extracted in the United States,

''(ii) by substituting 'any property described in section 168(f)(3)' for 'any qualified film' in subparagraph (A)(i)(II) thereof, and

''(iii) without regard to whether any construction described in subparagraph (A)(ii) thereof or services described in subparagraph (A)(iii) thereof were performed in the United States.

''(3) BONUS AMOUNT.—For purposes of paragraph (1), the bonus amount shall be determined as follows:

''If the percentage of total production gross receipts which are domestic production gross receipts is:	**The bonus amount is:**
More than 50 percent and not more than 60 percent.	2 percentage points
More than 60 percent and not more than 70 percent.	4 percentage points
More than 70 percent and not more than 80 percent.	6 percentage points
More than 80 percent and not more than 90 percent.	8 percentage points
More than 90 percent	10 percentage points.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to expenditures paid or incurred in taxable years beginning after December 31, 2011.

SEC. 4. RESEARCH CREDIT MADE REFUNDABLE FOR SMALL BUSINESSES.

(a) IN GENERAL.—Subsection (a) of section 41 of the Internal Revenue Code of 1986, as amended by section 3, is amended by adding at the end the following new paragraph:

''(3) PORTION OF CREDIT REFUNDABLE.—

''(A) IN GENERAL.—For purposes of subsections (b) and (c) of section 6401, the amount of the credit determined under this section which is attributable to a qualified small business shall be treated as a credit allowed under subpart C of part IV of subchapter A for the taxable year (and not under any other subpart). For purposes of section 6425, any amount treated as so allowed shall be treated as a payment of estimated income tax for the taxable year.

''(B) QUALIFIED SMALL BUSINESS.—For purposes of this paragraph, the term 'qualified small business' means, with respect to any taxable year, any person if the annual average number of employees employed by such person during such taxable year is 500 or fewer.''.

(b) CONFORMING AMENDMENT.—Section 1324(b)(2) of title 31, United States Code, is amended by inserting ''41(a)(3),'' after ''36A,''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2011.

SEC. 5. EXTENSION OF GRANTS FOR SPECIFIED ENERGY PROPERTY IN LIEU OF TAX CREDITS.

(a) IN GENERAL.—Subsection (a) of section 1603 of division B of the American Recovery and Reinvestment Act of 2009 is amended—

(1) in paragraph (1), by striking ''or 2011'' and inserting ''2011, or 2012'', and

(2) in paragraph (2)—

(A) by striking ''after 2011'' and inserting ''after 2012'', and

(B) by striking ''or 2011'' and inserting ''2011, or 2012''.

(b) CONFORMING AMENDMENT.—Subsection (j) of section 1603 of division B of such Act is amended by striking ''2012'' and inserting ''2013''.

SEC. 6. EXTENSION OF THE ADVANCED ENERGY PROJECT CREDIT.

(a) IN GENERAL.—Subsection (d) of section 48C is amended by adding at the end the following new paragraph:

''(6) ADDITIONAL 2011 ALLOCATIONS.—

''(A) IN GENERAL.—Not later than 180 days after the date of the enactment of this paragraph, the Secretary, in consultation with the Secretary of Energy, shall establish a program to consider and award certifications for qualified investments eligible for credits under this section to qualifying advanced energy project sponsors with respect to applications received on or after the date of the enactment of this paragraph.

''(B) LIMITATION.—The total amount of credits that may be allocated under the program described in subparagraph (A) shall not exceed the 2011 allocation amount reduced by so much of the 2011 allocation amount as is taken into account as an increase in the limitation described in paragraph (1)(B).

''(C) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of paragraphs (2), (3), (4), and (5) shall apply for purposes of the program described in subparagraph (A), except that—

''(i) CERTIFICATION.—Applicants shall have 2 years from the date that the Secretary establishes such program to submit applications.

''(ii) SELECTION CRITERIA.—For purposes of paragraph (3)(B)(i), the term 'domestic job creation (both direct and indirect)' means the creation of direct jobs in the United States producing the property manufactured at the manufacturing facility described under subsection (c)(1)(A)(i), and the creation of indirect jobs in the manufacturing supply chain for such property in the United States.

''(iii) REVIEW AND REDISTRIBUTION.—The Secretary shall conduct a separate review and redistribution under paragraph (5) with respect to such program not later than 4 years after the date of the enactment of this paragraph.

''(D) 2011 ALLOCATION AMOUNT.—For purposes of this subsection, the term '2011 allocation amount' means $5,000,000,000.

''(E) DIRECT PAYMENTS.—In lieu of any qualifying advanced energy project credit which would otherwise be determined under this section with respect to an allocation to a taxpayer under this paragraph, the Secretary shall, upon the election of the taxpayer, make a grant to the taxpayer in the amount of such credit as so determined. Rules similar to the rules of section 50 shall apply with respect to any grant made under this subparagraph.''.

(b) PORTION OF 2011 ALLOCATION ALLOCATED TOWARD PENDING APPLICATIONS UNDER ORIGINAL PROGRAM.—Subparagraph (B) of section 48C(d)(1) is amended by inserting ''(increased by so much of the 2011 allocation amount (not in excess of $1,500,000,000) as the Secretary determines necessary to make allocations to qualified investments with respect to which qualifying applications were submitted before the date of the enactment of paragraph (6))'' after ''$2,300,000,000''.

(c) CONFORMING AMENDMENT.—Paragraph (2) of section 1324(b) of title 31, United States Code, is amended by inserting ''48C(d)(6)(E),'' after ''36C,''.

By Mrs. FEINSTEIN:

S. 826. A bill to require the Secretary of the Treasury to establish a program to provide loans and loan guarantees to enable eligible public entities to acquire interests in real property that are in compliance with habitat conversation plans approved by the Secretary of the Interior under the Endangered Species Act of 1973, and for other purposes; to the Committee on Environment and Public Works.

Mrs. FEINSTEIN. Mr. President, I rise today to introduce the Infrastructure Facilitation and Habitat Conservation Act of 2011.

This legislation will make it easier for communities to build infrastructure and grow by allowing to access federal loan guarantees when they conserve land to mitigate the impacts to the environment and endangered species.

This bill creates a ten year pilot program, to be administered jointly by the Secretaries of the Interior and Treasury, making credit more readily available to eligible public entities which are sponsors of Habitat Conservation Plans, HCPs, under section 10 of the Endangered Species Act of 1973.

Habitat Conservation Plans were authorized by an amendment to the Endangered Species Act in 1982 as a means to permanently protect the habitat of threatened and endangered species, while facilitating the development of infrastructure, through issuance of a long-term ''incidental take permit''. More than 500 such plans have been approved by the Secretary of the Interior, providing protection for nearly 50 million acres of habitat nationwide and allowing development and infrastructure to proceed.

Equally important, HCPs are very effective in avoiding, minimizing and mitigating the effects of development on endangered species and their habitats. HCPs are an essential tool, as Congress intended, in balancing the requirements of the Endangered Species Act with on-going infrastructure construction and development activity.

In California, the Western Riverside County Multiple-Species HCP is a prime example of effective habitat management. The Western Riverside MSHCP covers an area of 1.26 million acres, of which 500,000 will be permanently protected for the benefit of 146 species of plants and animals. At the same time, it is building its infrastructure and transportation needs for the next century.

To date, more than 40,000 acres of property have been conserved. In the case of the Western Riverside MSHCP, as with other HCPs nationwide, this strategy for advance mitigation of environmental impacts has facilitated the development of much-needed transportation infrastructure.

Riverside has been one of the Nation's fastest growing counties, with a rate of growth during the last decade of 42 percent. Unless the development of infrastructure can be made to keep pace with this explosive population growth, neither environmental or livability goals will be attained.

Owing to the economic downturn, however, the pace of habitat acquisition in Western Riverside and other similarly-situated communities has slowed to a crawl. Revenue which had been generated to finance acquisition of habitat during periods of robust development has also slowed to a trickle, at just the moment when real estate values are at historic lows.

Ready access to capital during this period would enable Western Riverside to complete its habitat acquisition program for half of what it was estimated to cost in 2008, for a savings of $2 billion.

Under this bill, loan guarantee applicants would have to demonstrate their credit-worthiness and the likely success of their habitat acquisition programs. Priority would be given to HCPs in biologically rich regions whose natural attributes are threatened by rapid development. Other than the modest costs of administration, the bill would entail no federal expenditure unless the local government defaulted a very rare occurrence.

The Federal guarantees will assure access to commercial credit at reduced rates of interest, enabling these communities to take advantage of temporarily low prices for habitat. Prompt enactment of this legislation will provide multiple benefits at very low cost to the Federal taxpayer protection of more habitat more quickly, accelerated development of infrastructure with minimum environmental impact, and reduction in the total cost of HCP land acquisition.

I urge my colleagues to support this legislation. I believe it will encourage development and growth and conservation of land and protection of endangered species, at minimal Federal risk. It is exactly the Federal local partnership that we need to use to maximize efficient use of Federal dollars.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 826

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Infrastructure Facilitation and Habitat Conservation Act of 2011''.

SEC. 2. CONSERVATION LOAN AND LOAN GUARANTEE PROGRAM.

(a) DEFINITIONS.—In this section:

(1) ELIGIBLE PUBLIC ENTITY.—The term ''eligible public entity'' means a political subdivision of a State, including—

(A) a duly established town, township, or county;

(B) an entity established for the purpose of regional governance;

(C) a special purpose entity; and

(D) a joint powers authority, or other entity certified by the Governor of a State, to have authority to implement a habitat conservation plan pursuant to section 10(a) of the Endangered Species Act of 1973 (16 U.S.C. 1539(a)).

(2) PROGRAM.—The term ''program'' means the conservation loan and loan guarantee program established by the Secretary under subsection (b)(1).

(3) SECRETARY.—The term ''Secretary'' means the Secretary of the Treasury.

(b) LOAN AND LOAN GUARANTEE PROGRAM.—

(1) ESTABLISHMENT.—As soon as practicable after the date of enactment of this Act, the Secretary shall establish a program to provide loans and loan guarantees to eligible public entities to enable eligible public entities to acquire interests in real property that are acquired pursuant to habitat conservation plans approved by the Secretary of the Interior under section 10 of the Endangered Species Act of 1973 (16 U.S.C. 1539).

(2) APPLICATION; APPROVAL PROCESS.—

(A) APPLICATION.—

(i) IN GENERAL.—To be eligible to receive a loan or loan guarantee under the program, an eligible public entity shall submit to the Secretary an application at such time, in such form and manner, and including such information as the Secretary may require.

(ii) SOLICITATION OF APPLICATIONS.—Not less frequently than once per calendar year, the Secretary shall solicit from eligible public entities applications for loans and loan guarantees in accordance with this section.

(B) APPROVAL PROCESS.—

(i) SUBMISSION OF APPLICATIONS TO SECRETARY OF THE INTERIOR.—As soon as practicable after the date on which the Secretary receives an application under subparagraph (A), the Secretary shall submit the application to the Secretary of the Interior for review.

(ii) REVIEW BY SECRETARY OF THE INTERIOR.—

(I) REVIEW.—As soon as practicable after the date of receipt of an application by the Secretary under clause (i), the Secretary of the Interior shall conduct a review of the application to determine whether—

(aa) the eligible public entity is implementing a habitat conservation plan that has been approved by the Secretary of the Interior under section 10 of the Endangered Species Act of 1973 (16 U.S.C. 1539);

(bb) the habitat acquisition program of the eligible public entity would very likely be completed; and

(cc) the eligible public entity has adopted a complementary plan for sustainable infrastructure development that provides for the mitigation of environmental impacts.

(II) REPORT TO SECRETARY.—Not later than 60 days after the date on which the Secretary of the Interior receives an application under subclause (I), the Secretary of the Interior shall submit to the Secretary a report that contains—

(aa) an assessment of each factor described in subclause (I); and

(bb) a recommendation regarding the approval or disapproval of a loan or loan guarantee to the eligible public entity that is the subject of the application.

(III) CONSULTATION WITH SECRETARY OF COMMERCE.—To the extent that the Secretary of the Interior considers to be appropriate to carry out this clause, the Secretary of the Interior may consult with the Secretary of Commerce.

(iii) APPROVAL BY SECRETARY.—

(I) IN GENERAL.—Not later than 120 days after receipt of an application under subparagraph (A), the Secretary shall approve or disapprove the application.

(II) FACTORS.—In approving or disapproving an application of an eligible public entity under subclause (I), the Secretary may consider—

(aa) whether the financial plan of the eligible public entity for habitat acquisition is sound and sustainable;

(bb) whether the eligible public entity has the ability to repay a loan or meet the terms of a loan guarantee under the program;

(cc) any factor that the Secretary determines to be appropriate; and

(dd) the recommendation of the Secretary of the Interior.

(III) PREFERENCE.—In approving or disapproving applications of eligible public entities under subclause (I), the Secretary shall give preference to eligible public entities located in biologically rich regions in which rapid growth and development threaten successful implementation of approved habitat conservation plans, as determined by the Secretary in cooperation with the Secretary of the Interior.

(C) ADMINISTRATION OF LOANS AND LOAN GUARANTEES.—

(i) REPORT TO SECRETARY OF THE INTERIOR.—Not later than 60 days after the date on which the Secretary approves or disapproves an application under subparagraph (B)(iii), the Secretary shall submit to the Secretary of the Interior a report that contains the decision of the Secretary to approve or disapprove the application.

(ii) DUTY OF SECRETARY.—As soon as practicable after the date on which the Secretary approves an application under subparagraph (B)(iii), the Secretary shall—

(I) establish the loan or loan guarantee with respect to the eligible public entity that is the subject of the application (including such terms and conditions as the Secretary may prescribe); and

(II) carry out the administration of the loan or loan guarantee.

(c) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary to carry out this section such sums as are necessary.

(d) TERMINATION OF AUTHORITY.—The authority under this section shall terminate on the date that is 10 years after the date of enactment of this Act.

By Mr. UDALL of Colorado (for himself and Ms. COLLINGS):

S. 828. A bill to amend the Energy Policy and Conservation Act to establish the Office of Energy Efficiency and Renewable Energy as the lead Federal agency for coordinating Federal, State, and local assistance provided to promote the energy retrofitting of schools; to the Committee on Energy and Natural Resources.

Mr. UDALL of Colorado. Mr. President, today I am introducing a bipartisan bill along with my colleague Senator COLLINS to help improve the health and efficiency of our schools by making them more energy efficient, while creating much-needed jobs in the process. Though it is often over-looked, energy efficiency is a huge job creator. Not only does it create jobs through the purchase and installation of efficient materials, it frees up scarce school finances to retain teachers and important programs.

There are numerous Federal programs and funds already available to schools to help them become more energy efficient. However, as I learned in my travels across Colorado, schools face a morass of programs and agency offices across the government, and it is challenging for schools to take full advantage of them.

The bipartisan Streamlining Energy Efficiency for Schools Act of 2011 will force the government to coordinate their efforts so that schools are less confused and they can better navigate the existing Federal programs and financing options available to them. Put simply, it will streamline the Federal Government while still leaving decisions to the States, school boards and local officials to determine what is best for their schools.

I have seen the benefits of energy efficient buildings first hand when traveling in Colorado. The Cherry Creek School District in Greenwood Village, Colorado has incorporated day lighting techniques and ice storage to cool the buildings during the day. Because of these innovative improvements, the school district has enjoyed significant cost savings. In another example, the Poudre School District in Fort Collins, Colorado, actively promotes sustainable design guidelines, calling it their ''Ethic of Sustainability.'' This program includes an elementary school in Fort Collins that actually uses recycled blue jeans as insulation for the school buildings.

I hope that in passing this bill we will see more examples of these successful and creative projects across the country—projects that will increase the efficiency of our schools and teach our students about the importance of saving energy. I urge my colleagues—of both parties—to join me in supporting this bipartisan legislation.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 828

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Streamlining Energy Efficiency for Schools Act of 2011''.

SEC. 2. COORDINATION OF ENERGY RETROFITTING ASSISTANCE FOR SCHOOLS.

Section 392 of the Energy Policy and Conservation Act (42 U.S.C. 6371a) is amended by adding at the end the following:

''(e) COORDINATION OF ENERGY RETROFITTING ASSISTANCE FOR SCHOOLS.—

''(1) DEFINITION OF SCHOOL.—In this subsection, the term 'school' means—

''(A) an elementary school or secondary school (as defined in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801));

''(B) an institution of higher education (as defined in section 102(a) of the Higher Education Act of 1965 (20 U.S.C. 1002(a));

''(C) a school of the defense dependents' education system under the Defense Dependents' Education Act of 1978 (20 U.S.C. 921 et

seq.) or established under section 2164 of title 10, United States Code;

''(D) a school operated by the Bureau of Indian Affairs;

''(E) a tribally controlled school (as defined in section 5212 of the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2511); and

''(F) a Tribal College or University (as defined in section 316(b) of the Higher Education Act of 1965 (20 U.S.C. 1059c(b))).

''(2) DESIGNATION OF LEAD AGENCY.—The Secretary, acting through the Office of Energy Efficiency and Renewable Energy, shall act as the lead Federal agency for coordinating and disseminating information on existing Federal programs and assistance that may be used to help initiate, develop, and finance energy efficiency, renewable energy, and energy retrofitting projects for schools.

''(3) REQUIREMENTS.—In carrying out coordination and outreach under paragraph (2), the Secretary shall—

''(A) in consultation and coordination with the appropriate Federal agencies, carry out a review of existing programs and financing mechanisms (including revolving loan funds and loan guarantees) available in or from the Department of Agriculture, the Department of Energy, the Department of Education, the Department of the Treasury, the Internal Revenue Service, the Environmental Protection Agency, and other appropriate Federal agencies with jurisdiction over energy financing and facilitation that are currently used or may be used to help initiate, develop, and finance energy efficiency, renewable energy, and energy retrofitting projects for schools;

''(B) establish a Federal cross-departmental collaborative coordination, education, and outreach effort to streamline communication and promote available Federal opportunities and assistance described in subparagraph (A), for energy efficiency, renewable energy, and energy retrofitting projects that enables States, local educational agencies, and schools—

''(i) to use existing Federal opportunities more effectively; and

''(ii) to form partnerships with Governors, State energy programs, local educational, financial, and energy officials, State and local government officials, nonprofit organizations, and other appropriate entities, to support the initiation of the projects;

''(C) provide technical assistance for States, local educational agencies, and schools to help develop and finance energy efficiency, renewable energy, and energy retrofitting projects—

''(i) to increase the energy efficiency of buildings or facilities;

''(ii) to install systems that individually generate energy from renewable energy resources;

''(iii) to establish partnerships to leverage economies of scale and additional financing mechanisms available to larger clean energy initiatives; or

''(iv) to promote—

''(I) the maintenance of health, environmental quality, and safety in schools, including the ambient air quality, through energy efficiency, renewable energy, and energy retrofit projects; and

''(II) the achievement of expected energy savings and renewable energy production through proper operations and maintenance practices;

''(D) develop and maintain a single online resource website with contact information for relevant technical assistance and support staff in the Office of Energy Efficiency and Renewable Energy for States, local educational agencies, and schools to effectively access and use Federal opportunities and assistance described in subparagraph (A) to develop energy efficiency, renewable energy, and energy retrofitting projects; and

''(E) establish a process for recognition of schools that—

''(i) have successfully implemented energy efficiency, renewable energy, and energy retrofitting projects; and

''(ii) are willing to serve as resources for other local educational agencies and schools to assist initiation of similar efforts.

''(4) REPORT.—Not later than 180 days after the date of enactment of this subsection, the Secretary shall submit to Congress a report describing the implementation of this subsection.

''(5) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this subsection such sums as are necessary for each of fiscal years 2012 through 2016.''.

By Mr. FRANKEN (for himself, Mr. BROWN of Ohio, Mr. SCHUMER, Mrs. GILLIBRAND, and Mr. SANDERS):

S. 831. A bill to amend the Agricultural Marketing Act of 1946 to provide for country of origin labeling for dairy products; to the Committee on Agriculture, Nutrition, and Forestry.

Mr. FRANKEN. Mr. President, today, I am reintroducing the Dairy Country Of Origin Labeling Act, or Dairy COOL, with Senator SCHUMER, Senator GILLIBRAND, Senator SHERROD BROWN, and Senator SANDERS.

Our bill is very straightforward; it simply extends country of origin labeling requirements to dairy products. The current country of origin labeling law, which went into effect in 2008, applies to meats, produce, and nuts, but it doesn't include dairy products. Our bill adds dairy products—including milk, cheese, yogurt, ice cream, and butter—to the list.

This bill is about families. Minnesota families should have the right to know where the food they buy was produced. Consumers have this information for meat and produce; they should have it for the dairy products they feed their families every day. Minnesota dairy farmers and family farmers across the Nation should have the right to distinguish their products from imported products.

Hardly a week goes by where you don't hear another story of contaminated food and toys that were imported from foreign countries but only discovered after they were in American homes. Labeling our dairy products lets parents make informed choices at the grocery store. It gives consumers the information they need to be confident about the quality and safety of the food they buy.

Farming is a risky business. Prices have stabilized for now, but less than two years ago, high feed prices and unpredictable price swings threatened the viability of family dairies across the country. This bill isn't a silver bullet, but it does give family farms another tool that will help them compete in a crowded marketplace. And it gives consumers the option to purchase milk and cheese from our own family farms.

So I urge my colleagues to support this legislation.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 831

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Dairy COOL Act of 2011''.

SEC. 2. COUNTRY OF ORIGIN LABELING FOR DAIRY PRODUCTS.

(a) DEFINITIONS.—Section 281 of the Agricultural Marketing Act of 1946 (7 U.S.C. 1638) is amended—

(1) in paragraph (2)—

(A) in subparagraph (A)—

(i) in clause (x), by striking ''and'' at the end;

(ii) in clause (xi), by striking the period at the end and inserting ''; and''; and

(iii) by adding at the end the following:

''(xii) dairy products.''; and

(B) in subparagraph (B), by inserting ''(other than clause (xii) of that subparagraph)'' after ''subparagraph (A)'';

(2) by redesignating paragraphs (3) through (9) as paragraphs (4) through (10), respectively; and

(3) by inserting after paragraph (2) the following:

''(3) DAIRY PRODUCT.—The term 'dairy product' means—

''(A) fluid milk;

''(B) cheese, including cottage cheese and cream cheese;

''(C) yogurt;

''(D) ice cream;

''(E) butter; and

''(F) any other dairy product.''.

(b) NOTICE OF COUNTRY OF ORIGIN.—Section 282(a) of the Agricultural Marketing Act of 1946 (7 U.S.C. 1638a(a)) is amended by adding at the end the following:

''(5) DESIGNATION OF COUNTRY OF ORIGIN FOR DAIRY PRODUCTS.—

''(A) IN GENERAL.—A retailer of a covered commodity that is a dairy product shall designate the origin of the covered commodity as—

''(i) each country in which or from the 1 or more dairy ingredients or dairy components of the covered commodity were produced, originated, or sourced; and

''(ii) each country in which the covered commodity was processed.

''(B) STATE, REGION, LOCALITY OF THE UNITED STATES.—With respect to a covered commodity that is a dairy product produced exclusively in the United States, designation by a retailer of the State, region, or locality of the United States where the covered commodity was produced shall be sufficient to identify the United States as the country of origin.''.

By Ms. COLLINS (for herself and Mrs. MURRAY):

S. 832. A bill to reauthorize certain port security programs, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

Ms. COLLINS. Mr. President, I rise to introduce the SAFE Port Reauthorization Act of 2011. This bill extends important programs that help to protect our nation's critical shipping lanes and seaports from attack and sabotage.

The SAFE Port Reauthorization Act of 2011 is cosponsored by my colleague,

Senator MURRAY. Senator MURRAY and I drafted the original SAFE Port Act in 2005, leading to its enactment in 2006. I am pleased that she has again joined me to extend and strengthen this important law. Several stakeholders have expressed their support for our efforts, including the American Waterways Operators, National Association of Boating Law Administrators, Retail Industry Leaders Association, Association of Marina Industries, National Boating Federation, and National Marine Manufacturers Association.

The scope of what we need to protect is broad. America has 361 seaports—each vital links in our Nation's transportation network. Our seaports move more than 95 percent of overseas trade. In 2010, United States ports logged 57,600 ports-of-call by foreign-flagged cargo vessels, bringing 11 million shipping containers to our shores.

Coming from a State with three international cargo ports—including Portland, the largest port by tonnage in New England—I am keenly aware of the importance of seaports to our national economy and to the communities in which they are located.

Our seaports operate as vital centers of economic activity; they also represent vulnerable targets. As the air cargo plot emanating from Yemen last fall demonstrated, terrorists remain committed to exploiting commercial shipments as a way of moving explosives or weapons of mass destruction.

Maritime shipping containers are a special source of concern. A single obscure container, hidden among a ship's cargo of several hundred containers, could be used to conceal a dirty bomb. In other words, a container could be turned into a 21st century Trojan horse.

The shipping container's security vulnerabilities are so well known that it has also been called ''the poor man's missile,'' because for only a few thousand dollars, a terrorist could ship a weapon or explosive across the Atlantic or the Pacific to a U.S. port.

And the contents of such a container don't have to be something as complex as a nuclear or biological weapon. As former Customs and Border Protection Commissioner Robert Bonner told The New York Times, a single container packed with readily available ammonium sulfate fertilizer and a detonation system could produce 10 times the blast that destroyed the Murrah Federal Building in Oklahoma City.

Whatever the type of weapon, an attack on one or more U.S. ports could cause great loss of life and large numbers of injuries; it could damage our energy supplies and infrastructure; it could cripple retailers and manufacturers dependent on incoming inventory; and it could hamper our ability to move and supply American military forces fighting against the forces of terrorism.

I have had the opportunity to visit seaports and, as one examines some of the Nation's busiest harbors, one sees what a terrorist might call ''high-value targets.'' In February, while touring the Port of Miami and Port Everglades with the Coast Guard, I witnessed firsthand the large and sprawling urban populations, cruise ship docks, container terminals, and bulk fuel facilities that are situated around these ports. At other locations, there are large sports stadiums and ferries operating nearby as well.

Add up these factors, and one realizes immediately the death and destruction that a ship carrying a container hiding a weapon of mass destruction could inflict at a single port.

Of course, a port can be a conduit for an attack as well as a target. A container with dangerous cargo could be loaded on a truck or rail car, or have its contents unpacked at the port and distributed to support attacks elsewhere. In 2008, we saw that the port in Mumbai, India, offered the means for a gang of terrorists to launch an attack on a section of the city's downtown. That attack killed more than 170 people and wounded hundreds more.

To address these security threats, our bill would reauthorize these SAFE Port Act cargo security programs that have proven to be successful the Automated Targeting System that identifies high-risk cargo; the Container Security Initiative that ensures high-risk cargo containers are inspected at ports overseas before they travel to the United States; and the Customs-Trade Partnership Against Terrorism, or C-TPAT, that provides incentives to importers to enhance the security of their cargo from point of origin to destination.

The bill would also strengthen the C-TPAT program by providing new benefits, including offering voluntary security training to industry participants and providing participants an information sharing mechanism on maritime and port security threats, and authorizing Customs and Border Protection to conduct unannounced inspections to ensure that security practices are robust. The cooperation of private industry is vital to protecting supply chains, and C-TPAT is a necessary tool for securing their active cooperation in supply chain security efforts.

The bill also would extend the competitive, risk-based, port security grants that have improved the security of our ports. An authorization for the next 5 years at $300 million per year, as included in the President's budget, is lower than the current $400 million authorization in recognition of the severe budget constraints we face. To address concerns expressed by port authorities and terminal operators from across the country, the bill places deadlines on the Department of Homeland Security to ensure a timely response is provided to port security grant applications, extensions, and cost-share waiver requests.

In addition to continuing and improving critical port security programs, the bill also would strengthen the America's Waterway Watch Program, which promotes voluntary reporting of suspected terrorist activity or suspicious behavior against a vessel, facility, port, or waterway.

Our bill would protect citizens from frivolous lawsuits when they report, in good faith, suspicious behavior that may indicate terrorist activity against the United States. It builds on a provision from the 2007 homeland security law that encourages people to report potential terrorist threats directed against transportation systems by protecting people from those who would misuse our legal system in an attempt to chill the willingness of citizens to come forward and report possible dangers.

In addition, this legislation enhances research and development efforts to improve maritime cargo security. The demonstration project authorized by this law would study the feasibility of using composite materials in cargo containers to improve container integrity and deploy next-generation sensors.

This legislation also addresses the difficulties in administering the mandate of x-raying and scanning for radiation all cargo containers overseas that are destined for the United States by July 2012. Until x-ray scanning technology is proven effective at detecting radiological material and not disruptive of trade, requiring the x-raying of all U.S. bound cargo, regardless of its risk, at every foreign port, is misguided and provides a false sense of security. It would also impose onerous restrictions on the flow of commerce, costing billions with little additional security benefit.

Under the original provisions of the SAFE Port Act, all cargo designated as high-risk at foreign ports is already scanned for radiation and x-rayed. In addition, cargo entering the U.S. at all major seaports is scanned for radiation. These security measures currently in place are part of a layered, risk-based method to ensure cargo entering the U.S. is safe.

This legislation would eliminate the deadline for 100 percent x-raying of containers if the Secretary of Homeland Security certifies the effectiveness of individual security measures of that layered security approach. This is a more reasonable method to secure our cargo until a new method of x-raying containers is proven effective and feasible.

The SAFE Port Reauthorization Act of 2011 will help us to continue an effective, layered, coordinated security system that extends from point of origin to point of destination, and that covers the people, the vessels, the cargo, and the facilities involved in our maritime commerce. It will continue to address a major vulnerability in our homeland security critical infrastructure while preserving the flow of goods on which our economy depends.

I urge my colleagues to support this important legislation.

By Mr. WHITEHOUSE (for himself, Mr. REED, Mr. BROWN of Ohio, Mr. FRANKEN, and Mr. AKAKA):

S. 833. A bill to provide grants to States to ensure that all students in the middle grades are taught an academically rigorous curriculum with effective supports so that students complete the middle grades prepared for success in secondary school and postsecondary endeavors, to improve State and district policies and programs relating to the academic achievement of students in the middle grades, to develop and implement effective middle grades models for struggling students, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mr. WHITEHOUSE. Mr. President, it is my honor today to introduce the Success in the Middle Act of 2011. This bill recognizes the role of the middle grades as a tipping point in the education of many of our Nation's students, especially those who are at risk of dropping out. Success in the Middle invests much-needed attention and resources in middle grades education, requiring states to create plans to specifically address the unique needs of students in the age group, and focusing on schools that feed students into some of our country's most dropout prone high schools so they are ready for the curriculum and the unique social pressures they will encounter there.

My concern about the middle grades began in a unique place behind my desk in the Rhode Island Attorney General's Office. After serving as the United States Attorney for Rhode Island, where I dealt with cases involving mobsters and white collar crime, I now suddenly had hundreds of juvenile cases coming across my desk. I asked my staff to examine the problem and together we tried to find the root of it. Ultimately, it all seemed to go back to one issue: middle school truancy. In order to better see what was happening in middle schools, my office adopted one, Oliver Hazard Perry Middle School in Providence. We worked hard to create a real relationship between the police department and the school to help get truant kids back in classrooms; we worked with the local utility to get lights in the parking lot so teachers felt safe staying after school; partnered with local businesses to get teachers phones in the classrooms so they could call parents when the kids went missing; began a mentoring program between students and attorneys in my office; and brought in community groups to start afterschool programs.

The experience at Perry helped me realize what an impact the middle grades have on a child's future. It is an age where a child is beginning to make his or her own decisions, but can still be influenced by adults and by enriching experiences in their lives. The middle grades are a time when, if properly directed, students look to their futures and set goals for themselves in order to enter high school ready to achieve that first vital goal: graduation.

When I entered the Senate, one of my first priorities was to continue to advocate for improved middle grades education. In Rhode Island, I convened a small group of teachers, public and private school administrators, union leaders, afterschool experts, and others who shared my deep interest in the middle grades to continue the conversation about how best to improve them. This group examined the issues faced by these students and how curriculum, the professional development of teachers, and the environment of the school affected them on a daily basis. Their work has influenced how I perceive education policy and has been invaluable as we have moved forward with Success in the Middle.

To see just how badly our middle grade students need this help, let us take a look at the facts: Less than 1/3 of 8th grade students scored proficient in reading and math on the 2009 National Assessment on Educational Progress, NAEP, and nearly 30 percent scored below the basic level in math. A lack of basic skills at the end of the middle grades has serious implications students who enter high school two or more years behind have only a 50 percent chance of progressing on time to 10th grade, creating a significant risk of dropping out. Sixth grade students who do not attend school regularly, who frequently receive disciplinary actions, or who fail math or English have a less than 15 percent chance of graduating high school on time and a 20 percent chance of graduating one year late.

This is why investing wisely in the middle grades is so important. Success in the Middle makes that investment, creating a formula grant program that help states invest in proven strategies for the middle grades, including comprehensive school-wide improvement efforts, targeted professional development, and student supports such as extended learning time and personal academic plans. It also requires the creation of early warning and intervention systems for at-risk students and transition plans for the middle grades. Finally, Success in the Middle invests in national research into best practices for the middle grades.

I am proud to introduce Success in the Middle, which in previous Congresses was introduced by then-Senator Obama and by my senior Senator from Rhode Island, JACK REED. I am proud to follow in the footsteps of these champions of education, who have demonstrated the vital need to focus our efforts on the middle grades in order to best serve our Nation's children, especially those most at risk for dropping out.

By Ms. KLOBUCHAR (for herself and Mr. GRASSLEY):

S. 839. A bill to ban the sale of certain synthetic drugs; to the Committee on the Judiciary.

Mr. GRASSLEY. Mr. President, I am pleased to join my colleague, Senator KLOBUCHAR, in cosponsoring the Combating Designer Drugs Act of 2011. All too often we are confronted with new and emerging drugs that spread quickly on the scene. However, what is most concerning about this new generation of drugs is how quickly these substances are sold and marketed to kids. Although these substances were created for scientific research they are now packaged as innocent products and sold on the shelves of local stores or via the internet.

Recent reports in the media along with increasing calls to poison control centers and visits to emergency rooms reveals that more and more kids are using products laced with substances that are very dangerous. Although these products are currently legal and can be sold in stores and online, many people who use products are under a false impression that these products are safe because they are legal. However, use of these products is anything but safe.

Last month, a teenager from Blaine, MN, died after overdosing on a substance called 2C-E that he and others used at a party. Police report 10 other individuals were hospitalized after using this substance. According to the Drug Enforcement Administration, 2C-E along with its cousins in the 2C family are used for their hallucinogenic qualities. These drugs are marketed as similar to illegal drugs like LSD or Ecstasy and can be used in similar ways. A popular way to pass these drugs off as safe is by labeling them as ''fake,'' but clearly the victims of this drug have suffered very real consequences.

Last month, I, along with Senator FEINSTEIN, introduced legislation to ban the chemicals found in synthetic or ''fake'' marijuana. This legislation came in part from the death of Indianola, IA, resident David Rozga, who committed suicide shortly after smoking a package of K2, a product laced with synthetic marijuana compounds. Since then the Drug Enforcement Administration has identified more substances that are used in a similar way such as 2C-E and others. The Combating Designer Drugs Act of 2011 is part of the ongoing effort to identify drugs that are being marketed as legal, safe alternatives to illegal drugs and places them among their rightful place as dangerous drugs like meth and cocaine. Specifically, this legislation targets drugs found in the 2C family, which were invented for scientific research but never intended to be used for humans and makes them schedule I controlled substances.

Mr. President, the sale and use of synthetic drugs like those in the 2C family represent a new and dangerous trend in drug abuse. We must take strong action to eliminate the ease in which these substances can reach the market before their use gets out of hand. I urge my colleagues to support this legislation to remove these dangerous drugs from our society.

By Mr. UDALL of Colorado (for himself, Ms. STABENOW, and Mr. MERKLEY):

S. 841. A bill to provide cost-sharing assistance to improve access to the markets of foreign countries for energy efficiency products and renewable energy products exported by small- and medium-sized businesses in the United States, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

Mr. UDALL of Colorado. Mr. President, I rise today to speak about the Renewable Energy Market Access Program Act, or REMAP Act, which I am re-introducing in the 112th Congress with my colleagues, Senators STABENOW and MERKLEY. This bill is designed to help grow American renewable energy and energy efficiency exports abroad by helping small and medium sized renewable energy businesses promote, export and ultimately penetrate foreign markets. In turn this bill will help grow the American economy and create American jobs.

This effort is a smaller piece of what needs to be a comprehensive and cohesive approach to reduce our trade deficit in clean energy goods and bolster our economy. Despite efforts to do just that, we still struggle to build a manufacturing base that can provide the goods necessary to meet the global demand for renewable energy products. It is astonishing that increasingly, we import more renewable energy goods than we export. A recent Senate report showed that over a 5 year period from 2004–2008, our trade deficit in renewable energy goods increased 350 percent, which is attributed to increased U.S. demand that is met largely by imports from Asia and Europe. Not only are we failing to meet our own domestic demand, but we are slow to take advantage of market opportunities abroad. It is estimated that 90 percent of worldwide investments in renewable energy goods occur in G–20 countries, and the developing world is projected to comprise 80 percent of the world's future energy demand, yet the United States is not well positioned to capture these growing and burgeoning markets for renewable energy goods. If we are truly dedicated to strengthening our capability to grow renewable energy manufacturing and to becoming energy independent, we need to do more. We need to invest strategically at home, and we must also look beyond our shores to build markets for domestic manufacturers markets that can translate into sustainable, well-paying jobs here at home.

My legislation would create the Renewable Energy Market Access Program to focus on equipping small and medium sized enterprises with the tools they need to access foreign markets, thereby strengthening our domestic economy and creating jobs. Through REMAP, trade associations and state-regional trade groups would apply to the U.S. Department of Commerce to enter into cooperative agreements to provide marketing and trade assistance to small- and medium-sized companies in the renewable energy and energy efficiency sectors. The assistance would help facilitate the export of their goods to existing and new foreign markets. The agreements would also offer eligible participants an opportunity to share the costs related to innovative marketing and promotion activities. The public funding for any one application would never exceed 50 percent of the total cost of the proposal, ensuring buy-in from the applicant and an ongoing working relationship with the Department of Commerce. In sum, this bill will help streamline access to the global marketplace for small businesses and help promote American renewable energy and energy efficiency products overseas.

I believe that this legislation takes an important step in the right direction to support the growing renewable energy industry. I have been encouraged by the efforts of my colleagues here in the U.S. Congress and in the Administration to place a strong emphasis on supporting and growing all of America's exports but our future will be in solving our shared energy challenges.

While we look at ways to enhance market access to foreign markets, Congress must also develop sensible policy mechanisms to address unfair trade barriers and other anti-competitive tactics that are used to keep our goods from markets in countries with which we have stable relations. Such tactics should be addressed, but should not keep us from pursuing other opportunities to build foreign markets for American businesses. This is why I urge my colleagues to join me in supporting this legislation to support our small business community in growing our nation's economy.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 841

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Renewable Energy Market Access Program Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) ENERGY EFFICIENCY PRODUCT.—The term ''energy efficiency product'' means any product, technology, or component of a product that—

(A) as compared with products, technologies, or components of products being deployed at the time for widespread commercial use in the country in which the product, technology, or component will be used—

(i) substantially increases the energy efficiency of buildings, industrial or agricultural processes, or electricity transmission, distribution, or end-use consumption; or

(ii) substantially increases the energy efficiency of the transportation system; and

(B) results in no significant incremental adverse effects on public health or the environment.

(2) RENEWABLE ENERGY.—The term ''renewable energy'' means energy generated by a renewable energy resource.

(3) RENEWABLE ENERGY PRODUCT.—The term ''renewable energy product'' means any product, technology, or component of a product used in the development or production of renewable energy.

(4) RENEWABLE ENERGY RESOURCE.—The term ''renewable energy resource'' means solar, wind, ocean, tidal, or geothermal energy, biofuel, biomass, hydropower, or hydrokinetic energy.

(5) SMALL- AND MEDIUM-SIZED BUSINESSES.—The term ''small- and medium-sized businesses'' means—

(A) small business concerns (as that term used in section 3 of the Small Business Act (15 U.S.C. 632)); and

(B) businesses the Secretary of Commerce determines to be small- or medium-sized, based on factors that include the structure of the industry, the amount of competition in the industry, the average size of businesses in the industry, and costs and barriers associated with entering the industry.

SEC. 3. COST-SHARING ASSISTANCE WITH RESPECT TO THE EXPORTATION OF ENERGY EFFICIENCY PRODUCTS AND RENEWABLE ENERGY PRODUCTS.

(a) IN GENERAL.—The Under Secretary for International Trade of the Department of Commerce (in this section referred to as the ''Under Secretary'') shall establish and carry out a program to provide cost-sharing assistance to eligible organizations—

(1) to improve access to the markets of foreign countries for energy efficiency products and renewable energy products exported by small- and medium-sized businesses in the United States; and

(2) to assist small- and medium-sized businesses in the United States in obtaining services and other assistance with respect to exporting energy efficiency products and renewable energy products, including services and assistance available from the Department of Commerce and other Federal agencies.

(b) ELIGIBLE ORGANIZATIONS.—An eligible organization is a nonprofit trade association in the United States or a State or regional organization that promotes the exportation and sale of energy efficiency products or renewable energy products.

(c) APPLICATION PROCESS.—An eligible organization shall submit an application for cost-sharing assistance under subsection (a)—

(1) at such time and in such manner as the Under Secretary may require; and

(2) that contains a plan that describes the activities the organization plans to carry out using the cost-sharing assistance provided under subsection (a).

(d) AWARDING COST-SHARING ASSISTANCE.—

(1) IN GENERAL.—The Under Secretary shall establish a process for granting applications for cost-sharing assistance under subsection (a) that includes a competitive review process.

(2) PRIORITY FOR INNOVATIVE IDEAS.—In awarding cost-sharing assistance under subsection (a), the Under Secretary shall give priority to an eligible organization that includes in the plan of the organization submitted under subsection (c)(2) innovative ideas for improving access to the markets of foreign countries for energy efficiency products and renewable energy products exported by small- and medium-sized businesses in the United States.

(e) LEVEL OF COST-SHARING ASSISTANCE.—

(1) IN GENERAL.—Subject to paragraph (2), the Under Secretary shall determine an appropriate percentage of the cost of carrying out a plan submitted by an eligible organization under subsection (c)(2) to be provided in the form of assistance under this section.

(2) LIMITATION.—Assistance provided under this section may not exceed 50 percent of the cost of carrying out the plan of an eligible organization.

SEC. 4. REPORT.

Not later than 180 days after the date of the enactment of this Act, the Secretary of Commerce, in consultation with the Secretary of Energy, shall submit to Congress a report on the export promotion needs of businesses in the United States that export energy efficiency products or renewable energy products.

SEC. 5. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated to the Secretary of Commerce to carry out this Act—

(1) $15,000,000 for fiscal year 2012;
(2) $16,000,000 for fiscal year 2013;
(3) $17,000,000 for fiscal year 2014;
(4) $18,000,000 for fiscal year 2015; and
(5) $19,000,000 for fiscal year 2016.

By Mr. BEGICH:

S. 843. A bill to establish outer Continental Shelf lease and permit processing coordination offices, and for other purposes; to the Committee on Energy and Natural Resources.

Mr. BEGICH. Mr. President—I wish to speak about legislation I am introducing today aimed at streamlining a cumbersome development process for offshore oil and gas development adjacent to Alaska.

About a month ago, President Obama proposed essentially that when he called for increased domestic oil and gas development and cutting foreign oil imports by a third by 2025. The President even said his administration is ''looking at potential new development in Alaska, both onshore and offshore.''

We Alaskans were glad to hear the President use the ''A'' word—Alaska. As America's energy storehouse for better than a quarter century, we are anxious to continue supplying our nation a stable source of energy just as we have been doing since oil starting flowing through the trans-Alaska pipeline in 1977.

Simply put, Alaska has enormous untapped oil and gas reserves—an estimated 40 to 60 billion barrels of oil on State and Federal lands and waters. That is approaching a decade's worth of U.S. consumption.

We also hold the Nation's largest conventional natural gas reserves—more than 100 trillion cubic feet of this clean-burning fuel.

As is always the case, it is the details that matter. While we welcome the President's interest in increased energy development in our state, his administration—and those which preceded him—have enacted roadblocks to this laudable goal.

In the National Petroleum Reserve-Alaska, ConocoPhillips has been working for years to secure a permit to build a bridge into a petroleum reserve to development oil—only to be stalled by the Army Corps of Engineers and EPA.

Moving to the offshore, Shell has been working for 5 years and invested more than $3 billion for the opportunity to drill exploratory wells in Alaska's Beaufort and Chukchi Seas. They got very close last year but just when it appeared the development had the green light a few weeks ago, an internal EPA Environmental Appeals Board sent the air quality permit back to the drawing board.

Business as usual simply isn't working when it comes to increased oil and gas development in my State.

Accordingly, today I am introducing legislation that would create an office of Federal coordination for the Arctic OCS, modeled after legislation the late Senator Ted Stevens passed establishing a Federal gas pipeline coordinator. This office would have authority to work across the agencies causing Alaska so much heartburn today—the EPA, Army Corps of Engineers and Interior Department.

The Federal OCS coordinator would work with the State of Alaska and affected local governments to streamline development in the Chukchi and Beaufort seas, which hold such promise for future oil and gas development.

Additionally, it would expedite judicial review of claims related to Environmental Protection Agency and Department of Interior permits for development in this area. Let me be clear, this legislation does not prevent citizens from solving disputes in the court system. However, it does recognize that America needs this energy and issues surrounding it should be solved quickly.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 843

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Outer Continental Shelf Permit Processing Coordination Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) COORDINATION OFFICE.—The term ''coordination office'' means a regional joint outer Continental Shelf lease and permit processing coordination office established under section 3(a).

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

SEC. 3. OUTER CONTINENTAL SHELF PERMIT PROCESSING COORDINATION OFFICES.

(a) ESTABLISHMENT.—The Secretary shall establish—

(1) a regional joint outer Continental Shelf lease and permit processing coordination office for the Alaska region of the outer Continental Shelf; and

(2) subject to subsection (c)—

(A) a regional joint outer Continental Shelf lease and permit processing coordination office for the Atlantic region of the outer Continental Shelf; and

(B) a regional joint outer Continental Shelf lease and permit processing coordination office for the Pacific region of the outer Continental Shelf.

(b) MEMORANDUM OF UNDERSTANDING.—

(1) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary shall enter into a memorandum of understanding for the purposes of carrying out this section with—

(A) the Secretary of Commerce;

(B) the Chief of Engineers;

(C) the Administrator of the Environmental Protection Agency;

(D) the head of any other Federal agency that may have a role in permitting activities; and

(E) in the case of the coordination office described in subsection (a)(1), the head of each borough government that is located adjacent to any active lease area.

(2) STATE PARTICIPATION.—The Secretary shall request that the Governor of a State adjacent to the applicable outer Continental Shelf region be a signatory to the memorandum of understanding.

(c) DATE OF ESTABLISHMENT.—A coordination office described in subparagraph (A) or (B) of subsection (a)(2) shall not be established until the date on which a proposed lease sale is conducted for the Atlantic or Pacific region of the outer Continental Shelf, as applicable.

(d) DESIGNATION OF QUALIFIED STAFF.—

(1) IN GENERAL.—Each Federal signatory party shall, if appropriate, assign to each of the coordination offices an employee who has expertise in the regulatory issues administered by the office in which the employee is employed relating to leasing and the permitting of oil and gas activities on the outer Continental Shelf by the date that is—

(A) in the case of the coordination office described in subsection (a)(1), not later than 30 days after the date of the signing of the memorandum of understanding relating to the applicable coordination office under subsection (b); or

(B) in the case of a coordination office established under subsection (a)(2), not later than 30 days after the date of establishment of the applicable coordination office under subsection (c).

(2) DUTIES.—An employee assigned under paragraph (1) shall—

(A) not later than 90 days after the date of assignment, report to the applicable coordination office;

(B) be responsible for all issues relating to the jurisdiction of the home office or agency of the employee; and

(C) participate as part of the applicable team of personnel working on proposed oil and gas leasing and permitting, including planning and environmental analyses.

(e) TRANSFER OF FUNDS.—For the purposes of coordination and processing of oil and gas use authorizations for the applicable outer Continental Shelf region, the Secretary may authorize the expenditure or transfer of such funds as are necessary to—

(1) the Secretary of Commerce;

(2) the Chief of Engineers;

(3) the Administrator of the Environmental Protection Agency;

(4) the head of any other Federal agency having a role in permitting activities;

(5) any State adjacent to the applicable outer Continental Shelf region; and

(6) in the case of the coordination office described in subsection (a)(1), the head of each borough government that is located adjacent to any active lease area.

(f) EFFECT.—Nothing in this section—

(1) authorizes the establishment of a regional joint outer Continental Shelf lease and permit processing coordination office for the Gulf of Mexico region of the outer Continental Shelf;

(2) affects the operation of any Federal or State law; or

(3) affects any delegation of authority made by the head of a Federal agency for

employees that are assigned to a coordination office.

(g) FUNDING.—

(1) IN GENERAL.—There is authorized to be appropriated $2,000,000 for the coordination office described in subsection (a)(1) for each of fiscal years 2011 through 2021, to remain available until expended.

(2) OTHER COORDINATION OFFICES.—Notwithstanding any other provision of law—

(A) of the amounts received by the Secretary from the sale of bonus bids in the Atlantic region of the outer Continental Shelf Continental Shelf region, $2,000,000 shall be made available for the applicable coordination office described in subsection (A)(2)(A) for the fiscal year; and

(B) of the amounts received by the Secretary from the sale of bonus bids in the Pacific region of the outer Continental Shelf Continental Shelf region, $2,000,000 shall be made available for the applicable coordination office described in subsection (A)(2)(B) for the fiscal year.

SEC. 4. JUDICIAL REVIEW.

(a) EXCLUSIVE JURISDICTION.—Except for review by the Supreme Court on writ of certiorari, the United States Court of Appeals for the District of Columbia Circuit shall have original and exclusive jurisdiction to review any claim relating to an action by the Administrator of the Environmental Protection Agency or the Secretary of the Interior with respect to the review, approval, denial, or issuance of an oil or natural gas lease or permit in the area of the outer Continental Shelf described in section 3(a)(1).

(b) DEADLINE FOR FILING CLAIM.—A claim described in subsection (a) may be brought not later than 60 days after the date of the action giving rise to the claim.

(c) EXPEDITED CONSIDERATION.—The United States Court of Appeals for the District of Columbia Circuit shall set any action brought under subsection (a) for expedited consideration, taking into account the national interest of enhancing national energy security by providing access to the significant oil and natural gas resources in the area of the outer Continental Shelf described in section 3(a)(1) that are needed to meet the anticipated demand for oil and natural gas.

By Mr. LIEBERMAN (for himself and Mr. BENNET):

S. 844. A bill to provide incentives for States and local educational agencies to implement comprehensive reforms and innovative strategies that are designed to lead to significant improvement in outcomes for all students and significant reductions in achievement gaps among subgroups of students, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mr. LIEBERMAN. Mr. President, I rise today with my colleague Senator BENNET, to introduce the Race to the Top Act of 2011. The Race to the Top Act will authorize the continuation of the highly successful Race to the Top program that was established by the American Recovery and Reinvestment Act. The bill also expands this successful program to school districts and authorizes the program for 2012 and the succeeding 5 years. Race to the Top calls for competitive grants for States and school districts that invest in bold educational reforms designed to bring about significant improvement in academic outcomes for all students and significant reductions in achievement gaps.

When No Child Left Behind was signed into law nine years ago, we made a national commitment to fix our educational system—a system in which low-income minority students were performing significantly below their higher-income peers. We made a commitment to bring an end to unacceptable achievement gaps and to ensure that each and every child—regardless of race, nationality or family income—could succeed in our public schools and graduate with the skills necessary for success in college or the workforce. Despite the commitments we made, unacceptable achievement gaps persist. Still today our public schools are not preparing our students to succeed in college and the workforce. Each year, 30 percent of American students fail to receive their high school diploma on time and graduation rates are consistently lower for minority students. One-third of our students who do graduate from high school are not ready for college. In international standardized tests involving students from 65 nations, fifteen year olds in the United States rank 31st in mathematics, 23rd in science, and 15th in reading. Improving public education and closing student achievement gaps remains one of the most important issues of our time.

We have made some progress, but until we have equal and excellent educational opportunities for all of our children, regardless of ethnicity or income, we have not done our job. While, in many ways, No Child Left Behind moved us in the right direction, it needs to be updated, and the Elementary and Secondary Education Act must be reauthorized. The continuation of the Race to the Top program should be part of that update.

The positive impact of Race to the Top has been impressive. The competition for Race to the Top money has incentivized States to implement high, internationally benchmarked, core standards and to create a positive climate for public charter schools. Race to the Top recognizes the essential role teachers play in education and has prompted States to get serious about teacher effectiveness, distribution, evaluation, and accountability. And Race to the Top has prompted states to improve policies aimed at turning around America's lowest performing schools.

Under Race to the Top 46 States and the District of Columbia have developed statewide reform plans; States changed laws to increase their ability to intervene in their lowest performing schools; 22 States enacted laws to improve teacher quality, including alternative certification, effectiveness and evaluation systems; 42 States and the District of Columbia have moved forward to adopt high college- and career-ready standards; 16 States have altered laws or policies to create or expand the number of charter schools.

Race to the Top is working. We know it is benefiting States that were successful in receiving funds but it is also working for States that did not receive funds, simply because those States have already enacted changes that will improve education. Many States remain committed to their new educational reforms regardless of their success in securing Race to the Top funding.

Race to the Top can also play a unique role in local reforms. As I indicated earlier, this new bill would support districts that are committed to leading the way with bold comprehensive reform. I know some officials in my home State, Connecticut, were disappointed about not being selected as a Race to the Top winner. But I do believe the children in Connecticut were winners because we have strengthened our State laws, policies, and curriculum to lift our charter school caps, improve Science, Technology, Education, and Mathematics education, and strengthen our teacher evaluation process. I commend our State and local leaders that collaborated in making all of that possible. If we continue the Race to the Top program, as our bill would do, more States, and now districts, will be winners and we can continue this movement towards important educational reform.

Race to the Top has been an effective catalyst for educational reform and has encouraged all stakeholders to come together and work together to improve state agendas. It is essential that we keep the momentum of the first two waves of Race to the Top moving forward. Other States and now districts deserve the opportunity to engage in comprehensive educational reform. Since our goal is to make all schools high quality schools, the real winner in the Race to the Top competition will be students across America.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 844

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Race to the Top Act of 2011''.

SEC. 2. RACE TO THE TOP.

(a) IN GENERAL.—Title VI of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7301 et seq.) is amended—

(1) by redesignating part C as part D;

(2) by redesignating sections 6301 and 6302 as sections 6401 and 6402, respectively; and

(3) by inserting after part B the following:

''PART C—RACE TO THE TOP

''SEC. 6301. PURPOSES.

''The purposes of this part are to—

''(1) provide incentives for States and local educational agencies to implement comprehensive reforms and innovative strategies that are designed to lead to—

''(A) significant improvements in outcomes for all students, including improvements in student achievement, secondary school graduation rates, postsecondary education enrollment rates. and rates of postsecondary education persistence; and

''(B) significant reductions in achievement gaps among subgroups of students; and

''(2) encourage the broad identification, adoption, use, dissemination, replication, and expansion of effective State and local policies and practices that lead to significant improvement in outcomes for all students, and the elimination of those policies and practices that are not effective in improving student outcomes.

''SEC. 6302. RESERVATION OF FUNDS.

''(a) RESERVATION.—From the amount made available to carry out this part for a fiscal year, the Secretary may reserve not more than 10 percent of such amount to carry out activities related to—

''(1) technical assistance;

''(2) outreach and dissemination; and

''(3) prize awards made in accordance with section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719).

''(b) AVAILABILITY OF FUNDS.—Notwithstanding any other provision of law, funds for prize awards under subsection (a)(3) shall remain available until expended.

''SEC. 6303. PROGRAM AUTHORIZED.

''(a) IN GENERAL.—From the amounts made available under section 6308 for a fiscal year and not reserved under section 6302, the Secretary shall award grants, on a competitive basis, to States or local educational agencies, or both, in accordance with section 6304(b), to enable the States or local educational agencies to carry out the purposes of this part.

''(b) GRANT AND SUBGRANT ELIGIBILITY LIMITATIONS.—

''(1) ARRA STATE INCENTIVE GRANTS.—A State that has received a grant under section 14006 of division A of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5; 123 Stat. 283) may not receive a grant under this part during the period of its grant under such section.

''(2) NUMBER OF GRANTS.—A State or local educational agency may not receive more than 1 grant under this part per grant period.

''(3) NUMBER OF SUBGRANTS.—A local educational agency may receive 1 grant and 1 subgrant under this part for the same fiscal year.

''(c) DURATION OF GRANTS.—

''(1) IN GENERAL.—A grant under this part shall be awarded for a period of not more than 4 years.

''(2) CONTINUATION OF GRANTS.—A State or local educational agency that is awarded a grant under this part shall not receive grant funds under this part for the second or any subsequent year of the grant unless the State or local educational agency demonstrates to the Secretary, at such time and in such manner as determined by the Secretary, that the State or local educational agency, respectively, is—

''(A) making progress in implementing the plan under section 6304(a)(3) at a rate that the Secretary determines will result in the State or agency fully implementing such plan during the remainder of the grant period; or

''(B) making progress against the performance measures set forth in section 6305 at a rate that the Secretary determines will result in the State or agency reaching its targets and achieving the objectives of the grant during the remainder of the grant period.

''SEC. 6304. APPLICATIONS.

''(a) APPLICATIONS.—Each State or local educational agency that desires to receive a grant under this part shall submit an application to the Secretary at such time, in such manner, and containing such information as the Secretary may reasonably require. At a minimum, each such application shall include—

''(1) documentation of the applicant's record, as applicable—

''(A) in increasing student achievement, including for all subgroups described in section 1111(b)(2)(C)(v)(II);

''(B) in decreasing achievement gaps, including for all subgroups described in section 1111(b)(2)(C)(v)(II);

''(C) in increasing secondary school graduation rates, including for all subgroups described in section 1111(b)(2)(C)(v)(II);

''(D) in increasing postsecondary education enrollment and persistence rates, including for all subgroups described in section 1111(b)(2)(C)(v)(II); and

''(E) with respect to any other performance measure described in section 6305 that is not included in subparagraphs (A) through (D);

''(2) evidence of conditions of innovation and reform that the applicant has established and the applicant's proposed plan for implementing additional conditions for innovation and reform, including—

''(A) a description of how the applicant has identified and eliminated ineffective practices in the past and the applicant's plan for doing so in the future;

''(B) a description of how the applicant has identified and promoted effective practices in the past and the applicant's plan for doing so in the future; and

''(C) steps the applicant has taken and will take to eliminate statutory, regulatory, procedural, or other barriers and to facilitate the full implementation of the proposed plan under this paragraph;

''(3) a comprehensive and coherent plan for using funds under this part, and other Federal, State, and local funds, to improve the applicant's performance on the measures described in section 6305, consistent with criteria set forth by the Secretary, including how the applicant will, if applicable—

''(A) improve the effectiveness of teachers and school leaders, and promote equity in the distribution of effective teachers and school leaders, in order to ensure that low-income and minority children are not taught by ineffective teachers, and are not in schools led by ineffective leaders, at higher rates than other children;

''(B) strengthen the use of high-quality and timely data to improve instructional practices, policies, and student outcomes, including teacher evaluations;

''(C) implement internationally benchmarked, college- and career-ready elementary and secondary academic standards, including in the areas of assessment, instructional materials, professional development, and strategies that translate the standards into classroom practice;

''(D) turn around the persistently lowest-achieving elementary schools and secondary schools served by the applicant;

''(E) support or coordinate with early learning programs for high-need children from birth through grade 3 to improve school readiness and ensure that students complete grade 3 on track for school success; and

''(F) create or maintain successful conditions for high-performing charter schools and other innovative, autonomous public schools;

''(4)(A) in the case of an applicant that is a State—

''(i) evidence of collaboration between the State, its local educational agencies, schools (as appropriate), parents, teachers, and other stakeholders, in developing the plan described in paragraph (3), including evidence of the commitment and capacity to implement the plan; and

''(ii)(I) the names of the local educational agencies the State has selected to participate in carrying out the plan; or

''(II) a description of how the State will select local educational agencies to participate in carrying out the plan; or

''(B) in the case of an applicant that is a local educational agency, evidence of collaboration between the local educational agency, schools, parents, teachers, and other stakeholders, in developing the plan described in paragraph (3), including evidence of the commitment and capacity to implement the plan;

''(5) the applicant's annual performance measures and targets, consistent with the requirements of section 6305; and

''(6) a description of the applicant's plan to conduct a rigorous evaluation of the effectiveness of activities carried out with funds under this part.

''(b) CRITERIA FOR EVALUATING APPLICATIONS.—

''(1) AWARD BASIS.—The Secretary shall award grants under this part on a competitive basis, based on the quality of the applications submitted under subsection (a), including—

''(A) each applicant's record in the areas described in subsection (a)(1);

''(B) each applicant's record of, and commitment to, establishing conditions for innovation and reform, as described in subsection (a)(2);

''(C) the quality and likelihood of success of each applicant's plan described in subsection (a)(3) in showing improvement in the areas described in subsection (a)(1), including each applicant's capacity to implement the plan and evidence of collaboration as described in subsection (a)(4); and

''(D) each applicant's evaluation plan as described in subsection (a)(6).

''(2) EXPLANATION.—The Secretary shall publish an explanation of how the application review process under this section will ensure an equitable and objective evaluation based on the criteria described in paragraph (1).

''(c) PRIORITY.—In awarding grants to local educational agencies under this part, the Secretary shall give priority to—

''(1) local educational agencies with the highest numbers or percentages of children from families with incomes below the poverty line; and

''(2) local educational agencies that serve schools designated with a school locale code of 41, 42, or 43.

''SEC. 6305. PERFORMANCE MEASURES.

''Each State and each local educational agency receiving a grant under this part shall establish performance measures and targets, approved by the Secretary, for the programs and activities carried out under this part. These measures shall, at a minimum, track the State's or local educational agency's progress in—

''(1) implementing its plan described in section 6304(a)(3); and

''(2) improving outcomes for all subgroups described in section 1111(b)(2)(C)(v)(II) including, as applicable, by—

''(A) increasing student achievement;

''(B) decreasing achievement gaps;

''(C) increasing secondary school graduation rates;

''(D) increasing postsecondary education enrollment and persistence rates;

''(E)(i) improving the effectiveness of teachers and school leaders and increasing the retention of effective teachers and school leaders; and

''(ii) promoting equity in the distribution of effective teachers and school leaders in order to ensure that low-income and minority children are not taught by ineffective teachers, and are not in schools led by ineffective leaders, at higher rates than other children; and

''(F) making progress on any other measures identified by the Secretary.

''SEC. 6306. USES OF FUNDS.

''(a) GRANTS TO STATES.—Each State that receives a grant under this part shall use—

''(1) not less than 50 percent of the grant funds to make subgrants to the local educational agencies in the State that participate in the State's plan under section 6304(a)(3), based on such local educational agencies' relative shares of funds under part A of title I for the most recent year for which those data are available; and

''(2) not more than 50 percent of the grant funds for any purpose included in the State's plan under section 6304(a)(3).

''(b) GRANTS TO LOCAL EDUCATIONAL AGENCIES.—Each local educational agency that receives a grant under this part shall use the grant funds for any purpose included in the local educational agency's plan under section 6304(a)(3).

''(c) SUBGRANTS TO LOCAL EDUCATIONAL AGENCIES.—Each local educational agency that receives a subgrant under this part from a State shall use the subgrant funds for any purpose included in the State's plan under section 6304(a)(3).

''SEC. 6307. REPORTING.

''(a) ANNUAL REPORTS.—A State or local educational agency that receives a grant under this part shall submit to the Secretary, at such time and in such manner as the Secretary may require, an annual report including—

''(1) data on the State's or local educational agency's progress in achieving the targets for the performance measures established under section 6305;

''(2) a description of the challenges the State or agency has faced in implementing its program and how it has addressed or plans to address those challenges; and

''(3) findings from the evaluation plan as described in section 6304(a)(6).

''(b) LOCAL REPORTS.—Each local educational agency that receives a subgrant from a State under this part shall submit to the State such information as the State may require to complete the annual report required under subsection (a).

''SEC. 6308. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated to carry out this part $1,350,000,000 for fiscal year 2012 and such sums as may be necessary for each of the 5 succeeding fiscal years.''.

(b) CONFORMING AMENDMENTS.—The table of contents for the Elementary and Secondary Education Act of 1965 (20 U.S.C.7301 et seq.) is amended—

(1) by striking the items relating to part C of title VI; and

(2) by inserting after the item relating to section 6234 the following:

''PART C—RACE TO THE TOP

''Sec. 6301. Purposes.
''Sec. 6302. Reservation of funds.
''Sec. 6303. Program authorized.
''Sec. 6304. Applications.
''Sec. 6305. Performance measures.
''Sec. 6306. Uses of funds.
''Sec. 6307. Reporting.
''Sec. 6308. Authorization of appropriations.

''PART D—GENERAL PROVISIONS

''Sec. 6401. Prohibition against Federal mandates, direction, or control.
''Sec. 6402. Rule of construction on equalized spending.''.

By Mr. DURBIN (for himself, Mr. CASEY, Mr. MENENDEZ, Mr. LAUTENBERG, and Mrs. GILLIBRAND):

S. 850. A bill to provide for enhanced treatment, support, services, and research for individuals with autism spectrum disorders and their families; to the Committee on Health, Education, Labor, and Pensions.

Mr. DURBIN. Mr. President, the month of April is set aside as Autism Awareness Month. This is a time when people and families affected by autism raise awareness about the challenges people with autism face. I am proud today to introduce with my colleagues Senators CASEY, MENENDEZ, LAUTENBERG, and GILLIBRAND the Autism Services and Workforce Acceleration Act of 2011, which authorizes federal funding for services, treatment, support, and research on autism spectrum disorders.

Everywhere I go in Illinois, I meet people whose lives have been affected by autism. My office receives hundreds of letters and phone calls each year from Illinoisans asking Congress to do something to help with the burden that autism brings, and we are hearing from more and more families every year.

Nationally, 1 out of every 110 children has autism. Autism affects children and families physically, psychologically, socially, and financially. It is often a major factor contributing to severe family financial difficulties, marital and family disruption, parental overburden that may lead to neglect and other developmental delays in siblings, as well as educational and employment challenges throughout the autistic person's life cycle.

Unfortunately, parents are not only worried about getting the services they need for their autistic children when they are young. Parents must worry about how to care for their children as they mature into adults. I met two concerned parents from Illinois whose 20-year-old son is profoundly affected by autism and has struggled with major behavioral problems. He was in a special education program at school, but his teachers didn't know how to deal with his behavioral problems and he was suspended on numerous occasions. Eventually, his parents found a school that was a better fit and his behavior improved. He is doing well now, but when he turns 22 he will no longer be eligible for services through the public school system. They are trying to find a place for him in a day program for adults with autism, but there are not enough of these programs, and the waitlists are long. These parents love their son, but worry every day about what will happen to him when they are too old to care for him.

Across the country people with autism confront a precipitous drop in services after early adulthood. We need to help people with autism achieve their full potential by ensuring they can access to vital services that enhance their quality of life. This bill includes a provision that helps youth and adults with autism access essential post-secondary education, vocational training, employment, housing, transportation, and health services.

During the 109th Congress, I cosponsored the Combating Autism Act, which was signed into law in December 2006. That bill called on the Federal Government to increase research into the causes and treatment of autism and to improve training and support for individuals with autism and their caretakers.

The legislature in my home State of Illinois has also listened to the voices of the 26,000 families in the state living with autism. In response to the overwhelming cost of autism-related services, the State passed legislation signed into law in December 2008, requiring health plans to provide coverage for the diagnosis and treatment of autism.

It is time now for the Federal Government to renew and build upon the commitments it has already made to help the millions of families across the nation struggling with autism.

My legislation would support these individuals and families in several ways.

First, the legislation creates a demonstration project to develop Autism Care Programs. These programs are designed to increase access to quality health care services and promote communication among health care providers, educators, and other service providers. Families who choose to access services through these programs would be able to designate a personal care coordinator as a source of contact for their family. This personal care coordinator would help to refer and coordinate a full array of medical, behavioral, mental health, educational and family care services to individuals and families in a single location.

Next, the bill authorizes a grant program to provide services to youth and adults with autism. These services include post-secondary education, vocational and self advocacy skills, employment, residential services, health and wellness, recreational and social activities, transportation, and personal safety. These services will help youth and adults with autism live as independently as possible and improve their quality of life. With the increasing number of children diagnosed with autism, these services will only become more important over time.

The bill authorizes grants to develop a national multimedia campaign to increase public education and awareness about healthy developmental milestones and autism throughout the lifespan. These campaigns will be targeted to general public audience and professional groups such as medical, criminal justice, or emergency professions.

Finally, it creates a national training initiative on autism and a technical assistance center to develop and expand interdisciplinary training and continuing education on autism spectrum disorders.

Taken together, these initiatives would go an enormous way in supporting and improving the lives of individuals with autism and their families.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 850

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Autism Services and Workforce Acceleration Act of 2011''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Findings.
Sec. 3. Parental rights rule of construction.
Sec. 4. Definitions; technical amendment to the Public Health Service Act.
Sec. 5. Autism Care Programs Demonstration Project.
Sec. 6. Planning and demonstration grants for services for transitioning youth and adults.
Sec. 7. Multimedia campaign.
Sec. 8. National training initiatives on autism spectrum disorders.
Sec. 9. Authorization of appropriations.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) Autism (sometimes called ''classical autism'') is the most common condition in a group of developmental disorders known as autism spectrum disorders.

(2) Autism spectrum disorders include autism as well as Asperger syndrome, Retts syndrome, childhood disintegrative disorder, and pervasive developmental disorder not otherwise specified (usually referred to as PDD–NOS), as well as other related developmental disorders.

(3) Individuals with autism spectrum disorders have the same rights as other individuals to exert control and choice over their own lives, to live independently, and to participate fully in, and contribute to, their communities and society through full integration and inclusion in the economic, political, social, cultural, and educational mainstream of society. Individuals with autism spectrum disorders have the right to a life with dignity and purpose.

(4) While there is no uniform prevalence or severity of symptoms associated with autism spectrum disorders, the National Institutes of Health has determined that autism spectrum disorders are characterized by 3 distinctive behaviors: impaired social interaction, problems with verbal and nonverbal communication, and unusual, repetitive, or severely limited activities and interests.

(5) Both children and adults with autism spectrum disorders can show difficulties in verbal and nonverbal communication, social interactions, and sensory processing. Individuals with autism spectrum disorders exhibit different symptoms or behaviors, which may range from mild to significant, and require varying degrees of support from friends, families, service providers, and communities.

(6) Individuals with autism spectrum disorders often need assistance in the areas of comprehensive early intervention, health, recreation, job training, employment, housing, transportation, and early, primary, and secondary education. Greater coordination and streamlining within the service delivery system will enable individuals with autism spectrum disorders and their families to access assistance from all sectors throughout an individual's lifespan.

(7) A 2009 report from the Centers for Disease Control and Prevention found that the prevalence of autism spectrum disorders is estimated to be 1 in 110 people in the United States.

(8) The Harvard School of Public Health reported that the cost of caring for and treating individuals with autism spectrum disorders in the United States is more than $35,000,000,000 annually (an estimated $3,200,000 over an individual's lifetime).

(9) Although the overall incidence of autism is consistent around the globe, researchers with the Journal of Paediatrics and Child Health have found that males are 4 times more likely to develop an autism spectrum disorder than females. Autism spectrum disorders know no racial, ethnic, or social boundaries, nor differences in family income, lifestyle, or educational levels, and can affect any child.

(10) Individuals with autism spectrum disorders from low-income, rural, and minority communities often face significant obstacles to accurate diagnosis and necessary specialized services, supports, and education.

(11) There is strong consensus within the research community that intensive treatment as soon as possible following diagnosis not only can reduce the cost of lifelong care by two-thirds, but also yields the most positive life outcomes for children with autism spectrum disorders.

(12) Individuals with autism spectrum disorders and their families experience a wide range of medical issues. Few common standards exist for the diagnosis and management of many aspects of clinical care. Behavioral difficulties may be attributed to the overarching disorder rather than to the pain and discomfort of a medical condition, which may go undetected and untreated. The health care and other treatments available in different communities can vary widely. Many families, lacking access to comprehensive and coordinated health care, must fend for themselves to find the best health care, treatments, and services in a complex clinical world.

(13) Effective health care, treatment, and services for individuals with autism spectrum disorders depends upon a continuous exchange among researchers and caregivers. Evidence-based and promising autism practices should move quickly into communities, allowing individuals with autism spectrum disorders and their families to benefit from the newest research and enabling researchers to learn from the life experiences of the people whom their work most directly affects.

(14) There is a critical shortage of appropriately trained personnel across numerous important disciplines who can assess, diagnose, treat, and support children and adults with autism spectrum disorders and their families. Practicing professionals, as well as those in training to become professionals, need the most up-to-date practices informed by the most current research findings.

(15) The appropriate goals of the Nation regarding individuals with autism spectrum disorder are the same as the appropriate goals of the Nation regarding individuals with disabilities in general, as established in the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.): to assure equality of opportunity, full participation, independent living, and economic self-sufficiency for such individuals.

(16) Finally, individuals with autism spectrum disorders are often denied health care benefits solely because of their diagnosis, even though proven, effective treatments for autism spectrum disorders do exist.

SEC. 3. PARENTAL RIGHTS RULE OF CONSTRUCTION.

Nothing in this Act shall be construed to modify the legal rights of parents or legal guardians under Federal, State, or local law regarding the care of their children.

SEC. 4. DEFINITIONS; TECHNICAL AMENDMENT TO THE PUBLIC HEALTH SERVICE ACT.

Part R of title III of the Public Health Service Act (42 U.S.C. 280i et seq.) is amended—

(1) by inserting after the header for part R the following:

''Subpart 1—Surveillance and Research Program; Education, Early Detection, and Intervention; and Reporting'';

(2) in section 399AA(d), by striking ''part'' and inserting ''subpart''; and

(3) by adding at the end the following:

''Subpart 2—Care for People With Autism Spectrum Disorders; Public Education

''SEC. 399GG. DEFINITIONS.

''Except as otherwise provided, in this subpart:

''(1) ADULT WITH AUTISM SPECTRUM DISORDER.—The term 'adult with autism spectrum disorder' means an individual with an autism spectrum disorder who has attained 22 years of age.

''(2) AFFECTED INDIVIDUAL.—The term 'affected individual' means an individual with an autism spectrum disorder.

''(3) AUTISM.—The term 'autism' means an autism spectrum disorder or a related developmental disability.

''(4) AUTISM CARE PROGRAM.—In this subpart, the term 'autism care program' means a program that is directed by a care coordinator who is an expert in autism spectrum disorder treatment and practice and provides an array of medical, psychological, behavioral, educational, and family services to individuals with autism and their families. Such a program shall—

''(A) incorporate the attributes of the care management model;

''(B) offer, through an array of services or through detailed referral and coordinated care arrangements, an autism management team of appropriate providers, including behavioral specialists, physicians, psychologists, social workers, family therapists, nurse practitioners, nurses, educators, and other appropriate personnel; and

''(C) have the capability to achieve improvements in the management and coordination of care for targeted beneficiaries.

''(5) AUTISM MANAGEMENT TEAM.—The term 'autism management team' means a group of autism care providers, including behavioral specialists, physicians, psychologists, social workers, family therapists, nurse practitioners, nurses, educators, other appropriate personnel, and family members who work in a coordinated manner to treat individuals with autism spectrum disorders and their families. Such team shall determine the specific structure and operational model of its specific autism care program, taking into consideration cultural, regional, and geographical factors.

''(6) AUTISM SPECTRUM DISORDER.—The term 'autism spectrum disorder' means a developmental disability that causes substantial impairments in the areas of social interaction, emotional regulation, communication, and the integration of higher-order cognitive processes and which may be characterized by the presence of unusual behaviors and interests. Such term includes autistic disorder, pervasive developmental disorder (not otherwise specified), Asperger syndrome, Retts disorder, childhood disintegrative disorder, and other related developmental disorders.

''(7) CARE MANAGEMENT MODEL.—The term 'care management model' means a model of care that with respect to autism—

''(A) is centered on the relationship between an individual with an autism spectrum disorder and his or her family and their personal autism care coordinator;

''(B) provides services to individuals with autism spectrum disorders to improve the management and coordination of care provided to individuals and their families; and

''(C) has established, where practicable, effective referral relationships between the autism care coordinator and the major medical, educational, and behavioral specialties and ancillary services in the region.

''(8) CHILD WITH AUTISM SPECTRUM DISORDER.—The term 'child with autism spectrum disorder' means an individual with an autism spectrum disorder who has not attained 22 years of age.

''(9) INTERVENTIONS.—The term 'interventions' means the educational methods and positive behavioral support strategies designed to improve or ameliorate symptoms associated with autism spectrum disorders.

''(10) PERSONAL CARE COORDINATOR.—The term 'personal care coordinator' means a physician, nurse, nurse practitioner, psychologist, social worker, family therapist, educator, or other appropriate personnel (as determined by the Secretary) who has extensive expertise in treatment and services for individuals with autism spectrum disorders, who—

''(A) practices in an autism care program; and

''(B) has been trained to coordinate and manage comprehensive autism care for the whole person.

''(11) PROJECT.—The term 'project' means the autism care program demonstration project established under section 399GG–1.

''(12) SERVICES.—The term 'services' means services to assist individuals with autism spectrum disorders to live more independently in their communities and to improve their quality of life.

''(13) TREATMENTS.—The term 'treatments' means the health services, including mental health and behavioral therapy services, designed to improve or ameliorate symptoms associated with autism spectrum disorders.''.

SEC. 5. AUTISM CARE PROGRAMS DEMONSTRATION PROJECT.

Part R of title III of the Public Health Service Act (42 U.S.C. 280i), as amended by section 4, is further amended by adding at the end the following:

''SEC. 399GG–1. AUTISM CARE PROGRAMS DEMONSTRATION PROJECT.

''(a) IN GENERAL.—Not later than 1 year after the date of enactment of the Autism Services and Workforce Acceleration Act of 2011, the Secretary, acting through the Administrator of the Health Resources and Services Administration, shall establish a demonstration project for the implementation of an Autism Care Program (referred to in this section as the 'Program') to provide grants and other assistance to improve the effectiveness and efficiency in providing comprehensive care to individuals diagnosed with autism spectrum disorders and their families.

''(b) GOALS.—The Program shall be designed—

''(1) to increase—

''(A) comprehensive autism spectrum disorder care delivery;

''(B) access to appropriate health care services, especially wellness and prevention care, at times convenient for individuals;

''(C) satisfaction of individuals with autism spectrum disorders;

''(D) communication among autism spectrum disorder health care providers, behaviorists, educators, specialists, hospitals, and other autism spectrum disorder care providers;

''(E) academic progress of students with autism spectrum disorders;

''(F) successful transition to postsecondary education, vocational or job training and placement, and comprehensive adult services for individuals with autism spectrum disorders, focusing in particular upon the transitional period for individuals between the ages of 18 and 25;

''(G) the quality of health care services, taking into account nationally developed standards and measures;

''(H) development, review, and promulgation of common clinical standards and guidelines for medical care to individuals with autism spectrum disorders;

''(I) development of clinical research projects to support clinical findings in a search for recommended practices; and

''(J) the quality of life of individuals with autism spectrum disorders, including communication abilities, social skills, community integration, self-determination, and employment and other related services; and

''(2) to decrease—

''(A) inappropriate emergency room utilization;

''(B) avoidable hospitalizations;

''(C) the duplication of health care services;

''(D) the inconvenience of multiple provider locations;

''(E) health disparities and inequalities that individuals with autism spectrum disorders face; and

''(F) preventable and inappropriate involvement with the juvenile and criminal justice systems.

''(c) ELIGIBLE ENTITIES.—To be eligible to receive assistance under the Program, an entity shall—

''(1) be a State or a public or private nonprofit entity;

''(2) coordinate activities with the applicable University Centers for Excellence in Developmental Disabilities, the Council on Developmental Disabilities, and the Protection and Advocacy System;

''(3) demonstrate a capacity to provide services to individuals with developmental disabilities and autism spectrum disorder;

''(4) agree to establish and implement treatments, interventions, and services that—

''(A) enable targeted beneficiaries to designate a personal care coordinator to be their source of first contact and to recommend comprehensive and coordinated care for the whole of the individual;

''(B) provide for the establishment of a coordination of care committee that is composed of clinicians and practitioners trained in and working in autism spectrum disorder intervention;

''(C) establish a network of physicians, psychologists, family therapists, behavioral specialists, social workers, educators, and health centers that have volunteered to participate as consultants to patient-centered autism care programs to provide high-quality care, focusing on autism spectrum disorder care, at the appropriate times and places and in a cost-effective manner;

''(D) work in cooperation with hospitals, local public health departments, and the network of patient-centered autism care programs, to coordinate and provide health care;

''(E) utilize health information technology to facilitate the provision and coordination of health care by network participants; and

''(F) collaborate with other entities to further the goals of the program, particularly by collaborating with entities that provide transitional adult services to individuals between the ages of 18 and 25 with autism spectrum disorder, to ensure successful transition of such individuals to adulthood; and

''(5) submit to the Secretary an application, at such time, in such manner, and containing such information as the Secretary may require, including—

''(A) a description of the treatments, interventions, or services that the eligible entity proposes to provide under the Program;

''(B) a demonstration of the capacity of the eligible entity to provide or establish such treatments, interventions, and services within such entity;

''(C) a description of the treatments, interventions, or services that are available to individuals with autism in the State;

''(D) a description of the gaps in services that exist in different geographic segments of the State;

''(E) a demonstration of the capacity of the eligible entity to monitor and evaluate the outcomes of the treatments, interventions, and services described in subparagraph (A);

''(F) estimates of the number of individuals and families who will be served by the eligible entity under the Program, including an estimate of the number of such individuals and families in medically underserved areas;

''(G) a description of the ability of the eligible entity to enter into partnerships with community-based or nonprofit providers of treatments, interventions, and services, which may include providers that act as advocates for individuals with autism spectrum disorders and local governments that provide services for individuals with autism spectrum disorders at the community level;

''(H) a description of the ways in which access to such treatments and services may be sustained following the Program period;

''(I) a description of the ways in which the eligible entity plans to collaborate with other entities to develop and sustain an effective protocol for successful transition from children's services to adult services for individuals with autism spectrum disorder, particularly for individuals between the ages of 18 and 25; and

''(J) a description of the compliance of the eligible entity with the integration requirement provided under section 302 of the Americans with Disabilities Act of 1990 (42 U.S.C. 12182).

''(d) GRANTS.—The Secretary shall award 3-year grants to eligible entities whose applications are approved under subsection (c). Such grants shall be used to—

''(1) carry out a program designed to meet the goals described in subsection (b) and the requirements described in subsection (c); and

''(2) facilitate coordination with local communities to be better prepared and positioned to understand and meet the needs of the communities served by autism care programs.

''(e) ADVISORY COUNCILS.—

''(1) IN GENERAL.—Each recipient of a grant under this section shall establish an autism care program advisory council, which shall advise the autism care program regarding policies, priorities, and services.

''(2) MEMBERSHIP.—Each recipient of a grant shall appoint members of the recipient's advisory council, which shall include a variety of autism care program service providers, individuals from the public who are knowledgeable about autism spectrum disorders, individuals receiving services through the Program, and family members of such individuals. At least 60 percent of the membership shall be comprised of individuals who have received, or are receiving, services through the Program or who are family members of such individuals.

''(3) CHAIRPERSON.—The recipient of a grant shall appoint a chairperson to the advisory council of the recipient's autism care program who shall be—

''(A) an individual with autism spectrum disorder who has received, or is receiving, services through the Program; or

''(B) a family member of such an individual.

''(f) EVALUATION.—The Secretary shall enter into a contract with an independent third-party organization with expertise in evaluation activities to conduct an evaluation and, not later than 180 days after the conclusion of the 3-year grant program under this section, submit a report to the Secretary, which may include measures such as whether and to what degree the treatments, interventions, and services provided through the Program have resulted in improved health, educational, employment, and community integration outcomes for individuals with autism spectrum disorders, or other measures, as the Secretary determines appropriate.

''(g) ADMINISTRATIVE EXPENSES.—Of the amounts appropriated to carry out this section, the Secretary shall allocate not more than 7 percent for administrative expenses, including the expenses related to carrying out the evaluation described in subsection (f).

''(h) SUPPLEMENT NOT SUPPLANT.—Amounts provided to an entity under this section shall be used to supplement, not supplant, amounts otherwise expended for existing treatments, interventions, and services for individuals with autism spectrum disorders.''.

SEC. 6. PLANNING AND DEMONSTRATION GRANTS FOR SERVICES FOR TRANSITIONING YOUTH AND ADULTS.

Part R of title III of the Public Health Service Act (42 U.S.C. 280i), as amended by section 5, is further amended by adding at the end the following:

''SEC. 399GG–2. PLANNING AND DEMONSTRATION GRANTS FOR SERVICES FOR TRANSITIONING YOUTH AND ADULTS.

''(a) IN GENERAL.—

''(1) ESTABLISHMENT.—The Secretary shall establish the grants described in paragraph (2) in order to enable selected eligible entities to provide appropriate services—

''(A) to youth with autism spectrum disorders who are transitioning from secondary education to careers or postsecondary education (referred to in this section as 'transitioning youth'); and

''(B) to adults with autism spectrum disorders, including individuals who are typically underserved, to enable such individuals to be as independent as possible.

''(2) GRANTS.—The grants described in this paragraph are—

''(A) a one-time, single-year planning grant program for eligible entities; and

''(B) a multiyear service provision demonstration grant program for selected eligible entities.

''(b) PURPOSE OF GRANTS.—Grants shall be awarded to eligible entities to provide all or part of the funding needed to carry out programs that focus on critical aspects of life for transitioning youth and adults with autism spectrum disorders, such as—

''(1) postsecondary education, vocational training, self-advocacy skills, and employment;

''(2) residential services and supports, housing, and transportation;

''(3) nutrition, health and wellness, recreational and social activities; and

''(4) personal safety and the needs of individuals with autism spectrum disorders who become involved with the criminal justice system.

''(c) ELIGIBLE ENTITY.—An eligible entity desiring to receive a grant under this section shall be a State or other public or private nonprofit organization, including an autism care program.

''(d) PLANNING GRANTS.—

''(1) IN GENERAL.—The Secretary shall award one-time grants to eligible entities to support the planning and development of initiatives that will expand and enhance service delivery systems for transitioning youth and adults with autism spectrum disorders.

''(2) APPLICATION.—In order to receive such a grant, an eligible entity shall—

''(A) submit an application at such time and containing such information as the Secretary may require; and

''(B) demonstrate the ability to carry out such planning grant in coordination with the State Developmental Disabilities Council and organizations representing or serving individuals with autism spectrum disorders and their families.

''(e) IMPLEMENTATION GRANTS.—

''(1) IN GENERAL.—The Secretary shall award grants to eligible entities that have received a planning grant under subsection (d) to enable such entities to provide appropriate services to transitioning youth and adults with autism spectrum disorders.

''(2) APPLICATION.—In order to receive a grant under paragraph (1), the eligible entity shall submit an application at such time and containing such information as the Secretary may require, including—

''(A) the services that the eligible entity proposes to provide and the expected outcomes for individuals with autism spectrum disorders who receive such services;

''(B) the number of individuals and families who will be served by such grant, including an estimate of the individuals and families in underserved areas who will be served by such grant;

''(C) the ways in which services will be coordinated among both public and nonprofit providers of services for transitioning youth and adults with disabilities, including community-based services;

''(D) where applicable, the process through which the eligible entity will distribute funds to a range of community-based or nonprofit providers of services, including local governments, and such entity's capacity to provide such services;

''(E) the process through which the eligible entity will monitor and evaluate the outcome of activities funded through the grant, including the effect of the activities upon adults with autism spectrum disorders who receive such services;

''(F) the plans of the eligible entity to coordinate and streamline transitions from youth to adult services;

''(G) the process by which the eligible entity will ensure compliance with the integration requirement provided under section 302 of the Americans With Disabilities Act of 1990 (42 U.S.C. 12182); and

''(H) a description of how such services may be sustained following the grant period.

''(f) EVALUATION.—The Secretary shall contract with a third-party organization with expertise in evaluation to evaluate such demonstration grant program and, not later than 180 days after the conclusion of the grant program under subsection (e), submit a report to the Secretary. The evaluation and report may include an analysis of whether and to what extent the services provided through the grant program described in this section resulted in improved health, education, employment, and community integration outcomes for adults with autism spectrum disorders, or other measures, as the Secretary determines appropriate.

''(g) ADMINISTRATIVE EXPENSES.—Of the amounts appropriated to carry out this section, the Secretary shall set aside not more than 7 percent for administrative expenses, including the expenses related to carrying out the evaluation described in subsection (f).

''(h) SUPPLEMENT, NOT SUPPLANT.—Demonstration grant funds provided under this section shall supplement, not supplant, existing treatments, interventions, and services for individuals with autism spectrum disorders.''.

SEC. 7. MULTIMEDIA CAMPAIGN.

Part R of title III of the Public Health Service Act (42 U.S.C. 280i), as amended by section 6, is further amended by adding at the end the following:

''SEC. 399GG–3. MULTIMEDIA CAMPAIGN.

''(a) IN GENERAL.—The Secretary, in order to enhance existing awareness campaigns and provide for the implementation of new campaigns, shall award grants to public and nonprofit private entities for the purpose of carrying out multimedia campaigns to increase public education and awareness and reduce stigma concerning—

''(1) healthy developmental milestones for infants and children that may assist in the early identification of the signs and symptoms of autism spectrum disorders; and

''(2) autism spectrum disorders through the lifespan and the challenges that individuals with autism spectrum disorders face, which may include transitioning into adulthood, securing appropriate job training or postsecondary education, securing and holding jobs, finding suitable housing, interacting with the correctional system, increasing independence, and attaining a good quality of life.

''(b) ELIGIBILITY.—To be eligible to receive a grant under subsection (a), an entity shall—

''(1) submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require; and

''(2) provide assurance that the multimedia campaign implemented under such grant will provide information that is tailored to the intended audience, which may be a diverse public audience or a specific audience, such as health professionals, criminal justice professionals, or emergency response professionals.''.

SEC. 8. NATIONAL TRAINING INITIATIVES ON AUTISM SPECTRUM DISORDERS.

Part R of title III of the Public Health Service Act (42 U.S.C. 280i), as amended by section 7, is further amended by adding at the end the following:

''SEC. 399GG–4. NATIONAL TRAINING INITIATIVES ON AUTISM SPECTRUM DISORDERS.

''(a) NATIONAL TRAINING INITIATIVE SUPPLEMENTAL GRANTS.—

''(1) IN GENERAL.—The Secretary shall award multiyear national training initiative supplemental grants to eligible entities so that such entities may provide training and technical assistance and to disseminate information, in order to enable such entities to address the unmet needs of individuals with autism spectrum disorders and their families.

''(2) ELIGIBLE ENTITY.—To be eligible to receive assistance under this section an entity shall—

''(A) be a public or private nonprofit entity, including University Centers for Excellence in Developmental Disabilities and other service, training, and academic entities; and

''(B) submit an application as described in paragraph (3).

''(3) REQUIREMENTS.—An eligible entity that desires to receive a grant under this paragraph shall submit to the Secretary an application containing such agreements and information as the Secretary may require, including agreements that the training program shall—

''(A) provide training and technical assistance in evidence-based practices of effective interventions, services, treatments, and supports to children and adults on the autism spectrum and their families, and evaluate the implementation of such practices;

''(B) provide trainees with an appropriate balance of interdisciplinary academic and community-based experiences;

''(C) have a demonstrated capacity to include individuals with autism spectrum disorders, parents, and family members as part of the training program to ensure that a person and family-centered approach is used;

''(D) provide to the Secretary, in the manner prescribed by the Secretary, data regarding the outcomes of the provision of training and technical assistance;

''(E) demonstrate a capacity to share and disseminate materials and practices that are developed and evaluated to be effective in the provision of training and technical assistance; and

''(F) provide assurances that training, technical assistance, and information dissemination performed under grants made pursuant to this paragraph shall be consistent with the goals established under already existing disability programs authorized under Federal law and conducted in coordination with other relevant State agencies and service providers.

''(4) ACTIVITIES.—An entity that receives a grant under this section shall expand and develop interdisciplinary training and continuing education initiatives for health, allied health, and educational professionals by engaging in the following activities:

''(A) Promoting and engaging in training for health, allied health, and educational professionals to identify, diagnose, and develop interventions for individuals with, or at risk of developing, autism spectrum disorders.

''(B) Expanding the availability of training and dissemination of information regarding effective, lifelong interventions, educational services, and community supports.

''(C) Providing training and technical assistance in collaboration with relevant State, regional, or national agencies, institutions of higher education, and advocacy groups or community-based service providers, including health and allied health professionals, employment providers, direct support professionals, emergency first responder personnel, and law enforcement officials.

''(D) Developing mechanisms to provide training and technical assistance, including for-credit courses, intensive summer institutes, continuing education programs, distance-based programs, and web-based information dissemination strategies.

''(E) Collecting data on the outcomes of training and technical assistance programs to meet statewide needs for the expansion of services to children with autism spectrum disorders and adults with autism spectrum disorders.

''(b) TECHNICAL ASSISTANCE.—The Secretary shall reserve 2 percent of the appropriated funds to make a grant to a national organization with demonstrated capacity for providing training and technical assistance to the entities receiving grants under subsection (a) to enable such entities to—

''(1) assist in national dissemination of specific information, including evidence-based and promising best practices, from interdisciplinary training programs, and when appropriate, other entities whose findings would inform the work performed by entities awarded grants;

''(2) compile and disseminate strategies and materials that prove to be effective in the provision of training and technical assistance so that the entire network can benefit from the models, materials, and practices developed in individual programs;

''(3) assist in the coordination of activities of grantees under this section;

''(4) develop an Internet web portal that will provide linkages to each of the individual training initiatives and provide access to training modules, promising training, and technical assistance practices and other materials developed by grantees;

''(5) convene experts from multiple interdisciplinary training programs and individuals with autism spectrum disorders and their families to discuss and make recommendations with regard to training issues related to the assessment, diagnosis of, treatment, interventions and services for, children and adults with autism spectrum disorders; and

''(6) undertake any other functions that the Secretary determines to be appropriate.

''(c) SUPPLEMENT NOT SUPPLANT.—Amounts provided under this section shall be used to supplement, not supplant, amounts otherwise expended for existing network or organizational structures.''.

SEC. 9. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated for fiscal years 2012 through 2016 such sums as may be necessary to carry out this Act.

By Mr. HARKIN (for himself, Mr. BINGAMAN, Mr. BENNET, Mr. FRANKEN, Mr. BROWN of Ohio, and Mrs. GILLIBRAND):

S. 851. A bill to establish expanded learning time initiatives, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mr. HARKIN. Mr. President, as we seek to ensure that our students have the knowledge and skills they need to succeed in college and careers, we must revisit how learning time is structured to help them meet the ever-rising expectations and ever-growing demands of the 21st century global economy. The Time for Innovation Matters in Education Act, or TIME Act, would provide high-need schools with the resources they need to expand the school day, week, or year so students have more time to learn. By providing additional time for more in-depth and rigorous learning opportunities in core and other academic subjects, as well as enrichment activities that contribute to a well-rounded education, we can increase students' academic engagement and outcomes to help close our nation's achievement gap. That is why I am pleased to introduce this legislation, which my colleague Rep. DONALD PAYNE will introduce in the House, today.

Under our present school calendar, most American students spend 6 hours a day for 180 days in school each year. This outdated calendar was designed to meet the needs of a farm- and factory-based economy in the early 20th century, and fails to provide students with the learning time needed to complete a rigorous curriculum and meet high standards. In fact, American students spend about 30 percent less time in school than students in other leading nations, leaving American students at a competitive disadvantage. For example, students in China, Japan, and South Korea attend school 40 days more on average than American students and significantly outperform American students on average in math and science. To strengthen our competitiveness and remain a global leader, we must increase how much learning time we provide our students, especially our at-risk students.

The TIME Act would give schools the flexibility to comprehensively redesign and expand their schedules and increase learning time by at least 30 percent to meet students' diverse academic needs and interests. The TIME Act's goal is not merely to encourage schools to add more time at the end of the day, but to take a close look at how they use their time and to redesign the entire school schedule to create a program or curriculum with teaching and learning opportunities to better meet students' needs. This legislation encourages strong partnerships between schools and community partners such as community-based organizations, institutions of higher education, and cultural organizations to help provide students with a broader and richer learning experience, which should include music, fine arts, and physical education—important pursuits that all too often lose ground in our schools due to a focus on reading and math.

Many schools around the country have expanded learning time in their calendars with promising results, such as Boston's Clarence Edwards Middle School, which was one of the lowest-performing schools just a few years ago. But in only three years of expanded learning time, dedicated school leaders and teachers were able to redesign and transform the school into one of the city's and state's highest-performing schools. Students, particularly those who are furthest behind, benefit from more time for learning, and programs that significantly increase the total number of hours in a regular school schedule lead to gains in student academic achievement. In 2006, minority students and students with disabilities in Clarence Edwards scored far below the state averages in English and math, and while English language learners met state averages in math, none were proficient in English. By 2009, every subgroup met or outperformed state averages, in most cases by wide margins.

According to research, expanded learning time is especially important for our high-need students. Students in disadvantaged families show a drop-off in learning over long summer recesses compared to their higher-income classmates, and they fall farther behind each year. These students are also less likely to have parents with the time and resources to help them with their school work. Expanded learning time can help these students accelerate gains and catch up on their learning gaps by expanding the school year and shortening summer recess. In addition to those at risk of falling behind, more time for learning helps students who are on grade level get ahead by providing additional time for enrichment and a broader curriculum. Additional time also enables more students to participate in experiential and interactive learning, internships, and other work-

based and service learning opportunities in their schools and communities, all of which help keep students engaged in school and make school more relevant.

Equally important, expanded learning time initiatives provide teachers with increased opportunities to work collaboratively and to participate in common planning, within and across grades and subjects, to improve instruction, and, in turn, increase student achievement. This extra time in the school schedule empowers teachers to complete the curriculum, meet the needs of all students, and collaborate with colleagues. The TIME Act requires grantees to design comprehensive plans, in collaboration with teachers, to encompass professional development that focuses on changes in teaching practices and curriculum delivery that will result in improved student academic achievement as well as student engagement and success.

To accurately assess the difference these programs make, the TIME Act calls for a rigorous evaluation that will measure several critical performance indicators. We need to know which models and practices produce the best outcomes for students and this evaluation will ensure that we identify and disseminate them nationwide. As we reauthorize the Elementary and Secondary Education Act, I am committed to helping communities offer expanded learning time so that more students can succeed.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

By Mr. LEAHY (for himself, Mr. ENZI, Mr. SANDERS, Mr. KOHL, Mr. SCHUMER, and Mrs. GILLIBRAND):

S. 852. A bill to improve the H–2A agricultural worker program for use by dairy workers, sheepherders, and goat herders, and for other purposes; to the Committee on the Judiciary.

Mr. LEAHY. Mr. President, in the 111th Congress, after hearing the concerns of Vermont's dairy farmers, I introduced the H–2A Improvement Act in order to give the dairy industry access to legal foreign workers under our agricultural visa program. I am proud to introduce this legislation once again, and I am especially pleased to have Senator ENZI join me as a cosponsor of this bill. I thank the senior Senator from Wyoming for his support, and I look forward to working with him to advance this legislation. I also thank Senators SANDERS, SCHUMER, KOHL, and GILLIBRAND for their support.

Our bill adds an explicit provision to the H–2A law to allow dairy workers, sheepherders, and goatherders to obtain visas through the H–2A visa program to assist American farmers. Under current law, the dairy industry is completely excluded from obtaining lawful H–2A workers. Under current Department of Labor regulations and guidance, the employers of foreign sheepherders and goatherders in the Western States can use the H–2A program. The authority for these employers to do so is not codified, however, and is therefore subject to the whims of a Federal agency. This legislation will provide the express authority and certainty for these important agricultural industries to use the visa program as Congress intended.

Although milk prices have improved over the past year, dairy farmers still struggle to meet their labor needs. I have heard from Vermont farmers, Vermont's Secretary of Agriculture, and the broader dairy industry about the challenges the current situation presents. I recognize that the H–2A program is imperfect, and I recognize that the best solution is the comprehensive approach in the AgJOBS bill. But basic access to the H–2A program is a better option than what dairy farmers now have, which is no access at all. It is simply illogical to subject such an important agricultural sector to unequal treatment. The denial of access to lawful, willing agricultural workers places a substantial burden on employers.

The H–2A Improvement Act contains provisions designed to accommodate the specific needs of dairy farming, sheepherding, and goatherding. It will allow workers in these industries to enter the United States for an initial employment period of 3 years. The bill grants U.S. Citizenship and Immigration Services the authority to approve a worker for an additional 3-year period as needed. After the first 3 year period is completed, the worker is eligible to petition for lawful permanent residency.

The provisions contained in this bill are very similar to provisions that have been a part of the long pending AgJOBS bill, legislation that I continue to strongly support. But the dairy farmers who continue to operate under this unfair system need help now. Just as much as any other segment of agriculture, they too deserve access to the H–2A program to meet their legitimate labor needs.

For years, I have urged the Department of Labor to use its regulatory authority to give dairy farmers access to H–2A workers. I was disappointed that, despite those requests and the recommendations of the broader dairy community, the final H–2A rule released by the Department in February 2010 failed to extend access to the dairy industry.

As a Senator from a State that prides itself on its dairy products and a long tradition of family farming, it is unacceptable that dairy farmers are put in a position of choosing between their livelihoods and taking risks with a potential employee's immigration status. I strongly believe that the vast majority of dairy farmers want to hire a lawful workforce, and our policy should support these goals.

By expanding the H–2A program to include dairy workers, sheepherders and goatherders, the H–2A Improvement Act would protect both American and foreign workers. It would prevent American workers from having to compete with an unauthorized work force, which enables unscrupulous employers to pay lower wages and make employees work under unsafe labor conditions. It would protect foreign workers by requiring that employers comply with existing H–2A regulations, wage and hour laws, and occupational safety laws. It would grant foreign dairy workers the dignity and stability of lawful status, and the opportunity to step out of the shadows and be productive members of the communities in which they work. Despite the imperfections of the current H–2A system, these are the objectives this legislation strives to achieve.

The H–2A Improvement Act is a straight-forward, targeted fix that makes sure all law abiding farmers in America have the same access to foreign agricultural labors. I recognize that many agricultural employers have legitimate frustrations with the current regulatory process. I intend to maintain my strong support of AgJOBS legislation, which would provide the most immediate and substantial benefit to our Nation's farmers and foreign agricultural workers. But I am unwilling to forego an opportunity to enact meaningful, bipartisan legislation to promote basic fairness for dairy, goat, and sheep farmers under our immigration laws. I hope Senators will support this common sense legislation.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 852

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''H–2A Improvement Act''.

SEC. 2. NONIMMIGRANT STATUS FOR DAIRY WORKERS, SHEEPHERDERS, AND GOAT HERDERS.

Section 101(a)(15)(H)(ii)(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(a)) is amended by inserting ''who is coming temporarily to the United States to perform agricultural labor or services as a dairy worker, sheepherder, or goat herder, or'' after ''abandoning''.

SEC. 3. SPECIAL RULES FOR ALIENS EMPLOYED AS DAIRY WORKERS, SHEEPHERDERS, OR GOAT HERDERS.

Section 218 of the Immigration and Nationality Act (8 U.S.C. 1188) is amended—

(1) by redesignating subsections (h) and (i) as subsections (i) and (j), respectively; and

(2) by inserting after subsection (g) the following:

''(h) SPECIAL RULES FOR ALIENS EMPLOYED AS DAIRY WORKERS, SHEEPHERDERS, OR GOAT HERDERS.—

''(1) IN GENERAL.—Notwithstanding any other provision of this Act, an alien admitted as a nonimmigrant under section 101(a)(15)(H)(ii)(a) for employment as a dairy worker, sheepherder, or goat herder—

''(A) may be admitted for an initial period of 3 years; and

''(B) subject to paragraph (3)(E), may have such initial period of admission extended for an additional period of up to 3 years.

''(2) EXEMPTION FROM TEMPORARY OR SEASONAL REQUIREMENT.—Not withstanding section 101(a)(15)(H)(ii)(a), an employer filing a petition to employ H–2A workers in positions as dairy workers, sheepherders, or goat herders shall not be required to show that such positions are of a seasonal or temporary nature.

''(3) ADJUSTMENT TO LAWFUL PERMANENT RESIDENT STATUS.—

''(A) ELIGIBLE ALIEN.—In this paragraph, the term 'eligible alien' means an alien who—

''(i) has H–2A worker status based on employment as a dairy worker, sheepherder, or goat herder;

''(ii) has maintained such status in the United States for a not fewer than 33 of the preceding 36 months; and

''(iii) is seeking to receive an immigrant visa under section 203(b)(3)(A)(iii).

''(B) CLASSIFICATION PETITION.—A petition under section 204 for classification of an eligible alien under section 203(b)(3)(A)(iii) may be filed by—

''(i) the alien's employer on behalf of the eligible alien; or

''(ii) the eligible alien.

''(C) NO LABOR CERTIFICATION REQUIRED.—Notwithstanding section 203(b)(3)(C), no determination under section 212(a)(5)(A) is required with respect to an immigrant visa under section 203(b)(3)(A)(iii) for an eligible alien.

''(D) EFFECT OF PETITION.—The filing of a petition described in subparagraph (B) or an application for adjustment of status based on a petition described in subparagraph (B) shall not be a basis fo denying—

''(i) another petition to employ H–2A workers;

''(ii) an extension of nonimmigrant status for a H–2A worker;

''(iii) admission of an alien as an H–2A worker;

''(iv) a request for a visa for an H–2A worker;

''(v) a request from an alien to modify the alien's immigration status to or from status as an H–2A worker; or

''(vi) a request made for an H–2A worker to extend such worker's stay in the United States.

''(E) EXTENSION OF STAY.—The Secretary of Homeland Security shall extend the stay of an eligible alien having a pending or approved petition described in subparagraph (B) in 1-year increments until a final determination is made on the alien's eligibility for adjustment of status to that of an alien lawfully admitted for permanent residence.

''(F) CONSTRUCTION.—Nothing in this paragraph may be construed to prevent an eligible alien from seeking adjustment of status in accordance with any other provision of law.''.

By Mr. DURBIN:

S. 856. A bill to amend title XI of the Social Security Act to make available to the public aggregate data on providers of services and suppliers under the Medicare program and to allow qualified individuals and groups access to claims and payment data under the Medicare program for purposes of conducting health research and detecting fraud; to the Committee on Finance.

Mr. DURBIN. Mr. President, Congress will soon debate the budget resolution for fiscal year 2012, and one of the issues under consideration is how to contain the cost of the Medicare program. While there is significant disagreement about some of the proposals already put forward, one part of the solution that members on both sides of the aisle agree on is cracking down on waste, fraud, and abuse.

For several years, the Government Accountability Office has designated Medicare as a high risk program because its size and complexity make it a target for waste, fraud and abuse. Medicare pays 4.5 million claims per work day, so catching false or inflated claims is a challenge. As a result, every year an estimated $30–60 billion in Medicare spending is wasted on fraud and abuse.

Under President Obama, the Executive branch has stepped up its enforcement activities. The Department of Health and Human Services and Department of Justice joined together to form Health Care Fraud Prevention and Enforcement Action Teams to combat Medicare fraud. These strike forces have netted hundreds of potential criminals in the past couple of years.

Nongovernmental groups can also play a role in detecting fraud. Normally, individual Medicare providers' billing data is not available to the public as a result of a 1979 lawsuit that blocked disclosure of this information. But under a special arrangement, The Wall Street Journal and Center for Public Integrity were allowed access to a 5 percent sample of the Medicare payment data.

Even using just this small sliver of the data, the newspaper was able to identify suspicious billing and potential abuses of the Medicare system. However, based on the agreement with CMS, the paper could not name individual physicians.

I think that the exercise by the Wall Street Journal shows that outside group provide a valuable complement to the government's own fraud detection research. That is why I am introducing the Medicare Spending Transparency Act today.

The legislation would increase transparency of the Medicare program by providing two things.

First, it would provide access to aggregated claims data.

It would require CMS to annually publish on its website summary level information about how and what Medicare is paying to individual Medicare providers such as hospitals, physicians and home health agencies.

Information would the include the total amount paid, number of unique patients seen, total number of patient visits, and a summary of the services provided. This will provide a snapshot of Medicare spending to interested groups. It will also discourage fraudulent providers from overbilling Medicare.

Secondly, a complete set of Medicare data would be made available to qualified groups or individuals for the purposes of fraud detection and research. All patient identifying information would be protected, consistent with HIPAA and other privacy laws.

To access this information, the individual or group would have to demonstrate technical capacity to make prudent and productive use of the data. Any published analysis of the data must disclose the names, funding sources, employer or other relevant affiliations, and data analysis methods of the researchers.

This legislation would bring transparency to the Medicare program by providing basic information about how taxpayer dollars are being spent. If nongovernmental groups want to dedicate their own resources to rooting out fraud, we should welcome those efforts. I encourage my colleagues to support this common sense legislation.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 856

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Medicare Spending Transparency Act of 2011''.

SEC. 2. PUBLIC AVAILABILITY OF AGGREGATE DATA ON MEDICARE PROVIDERS OF SERVICES AND SUPPLIERS.

(a) PURPOSE.—The purpose of this section is to make aggregate information about providers of services and suppliers under the Medicare program under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) publicly available and to provide a new level of transparency in such program.

(b) PUBLIC AVAILABILITY.—Section 1128J of the Social Security Act (42 U.S.C. 1320a–7k) is amended by adding at the end the following new subsection:

''(f) PUBLIC AVAILABILITY OF CERTAIN MEDICARE DATA.—

''(1) IN GENERAL.—The Secretary shall, to the extent consistent with applicable information, privacy, security, and disclosure laws, including the regulations promulgated under the Health Insurance Portability and Accountability Act of 1996 and section 552a of title 5, United States Code, make available to the public on the Internet website of the Centers for Medicare & Medicaid Services the following data with respect to title XVIII:

''(A) A complete list of the providers of services and suppliers participating in the program under such title, including the business address of such providers of services and suppliers.

''(B) Aggregate information about each such provider of services and supplier, including—

''(i) the total number of individuals furnished items or services by the provider of services or supplier for which payment was made under such title during the preceding year;

''(ii) the number of unique patient encounters conducted by the provider of services or supplier for which payment was made under such title during the preceding year;

''(iii) the average number of codes billed under such title by the provider of services of supplier per patient encounter during the preceding year;

''(iv) the total amount paid to such provider of services or supplier under such title during the preceding year;

''(v) the top 50 billing codes on claims paid under such title to the provider of services or supplier during the preceding year, as determined by volume, including a description of such codes;

''(vi) the top 50 billing codes on such claims paid during such year, as determined by dollar amount, including a description of such codes; and

''(vii) the top 50 diagnosis and procedure code pairs on such claims paid during such year, as determined by volume, including a description of such codes; and

''(2) IMPLEMENTATION.—Not later than 1 year after the date of enactment of the Medicare Spending Transparency Act of 2011, the Secretary shall promulgate regulations to carry out this subsection.''.

SEC. 3. ACCESS TO MEDICARE CLAIMS AND PAYMENT DATA BY QUALIFIED INDIVIDUALS AND GROUPS.

(a) PURPOSE.—The purpose of this section is to allow qualified individuals and groups access to information on claims and payment data under the Medicare program for purposes of conducting health research and detecting fraud under such program.

(b) ACCESS TO MEDICARE CLAIMS AND PAYMENT DATA BY QUALIFIED INDIVIDUALS AND GROUPS.—Section 1128J of the Social Security Act (42 U.S.C. 1320a–7k), as amended by section 2, is amended by adding at the end the following new subsection:

''(g) ACCESS TO MEDICARE CLAIMS AND PAYMENT DATA BY QUALIFIED INDIVIDUALS AND GROUPS.—

''(1) IN GENERAL.—For purposes of conducting health research and detecting fraud under title XVIII, and to the extent consistent with applicable information, privacy, security, and disclosure laws, including the regulations promulgated under the Health Insurance Portability and Accountability Act of 1996 and section 552a of title 5, United States Code, and subject to any information systems security requirements under such laws or otherwise required by the Secretary, a qualified individual or group shall have access to claims and payment data of the Department of Health and Human Services and its contractors related to title XVIII. Notwithstanding any other provision of law, such data shall include the identity of individual providers of services and suppliers under such title.

''(2) DEFINITION OF QUALIFIED INDIVIDUAL OR GROUP.—

''(A) IN GENERAL.—In this subsection, the term 'qualified individual or group' means an individual or entity that the Secretary has determined, in accordance with subparagraph (B), has relevant experience, knowledge, and technical expertise in medicine, statistics, health care billing, practice patterns, health care fraud detection, and analysis to use data provided to the individual or the entity under this subsection in an appropriate, responsible, and ethical manner and for the purposes described in paragraph (1).

''(B) PROCEDURES.—The Secretary shall establish procedures for determining, in a timely manner, whether an individual or entity is a qualified individual or group.

''(3) PROCEDURES.—The Secretary shall establish procedures for the storage and use of data provided to a qualified individual or group under this subsection. Such procedures shall ensure that, in the case where the qualified individual or group publishes an analysis of such data (or any analysis using such data), the qualified individual or group discloses the following information (in a form and manner, and at a time, specified by the Secretary):

''(A) The name of the qualified individual or group.

''(B) The sources of any funding for the qualified individual or group.

''(C) Any employer or other relevant affiliations of the qualified individual or group.

''(D) The data analysis methods used by the qualified individual or group in the analysis involved.''.

By Mr. GRASSLEY (for himself and Mr. CASEY):

S. 857. A bill to amend the Elementary and Secondary Education Act of 1965 to aid gifted and talented learners, including high-ability learners not formally identified as gifted; to the Committee on Health, Education, Labor, and Pensions.

Mr. GRASSLEY. Mr. President, the last reauthorization of the Elementary and Secondary Education Act of 1965 was specifically designed ''To close the achievement gap with accountability, flexibility, and choice, so that no child is left behind.'' Going into the next reauthorization of this law, there has already been much discussion about the extent to which each element of that goal has been achieved. While there is some evidence of a narrowing of the achievement gap between disadvantaged and minority students and their more advantaged peers when it comes to meeting minimum ''proficiency'' goals, the achievement gap among high-ability students has been widening. Some of our most promising students, the scientists, inventors, and problem solvers of the future, are being left behind.

I want to be clear that I am not necessarily talking just about high-achieving students. I am talking about high-ability students with gifts and talents that go beyond simply the ability to master grade level content. There is sometimes a tendency to assume that gifted students are the straight A students and vice versa, the students we needn't worry about because they are doing fine on their own. Sadly, that's far from true. A student may get straight A's because his or her abilities and pace of learning just happen to be exactly matched with the grade level curriculum and pace of instruction. Those are not the students I am talking about. By definition, a gifted and talented students is one who gives evidence of high achievement capability and needs services beyond the standard content provided in the standard way in order to fully develop those capabilities.

In fact, gifted students may significantly underperform. Many high-ability students get poor grades due to boredom. Some drop out of school or exhibit problem behaviors, and gifted students are often well represented in alternative schools. Still, even if they are getting straight A's on content that is not challenging to them, they are still underperforming. That hidden gap between achievement and potential ought to be alarming to all of us who are concerned about our Nation's future economic competitiveness.

On the most recent international tests, students in China topped the charts in math, science, and reading, while U.S. students were in the middle to bottom of the pack. Few American students are reaching the most advanced achievement levels on national and state-level tests, with miniscule numbers of children of color or children from poverty reaching those levels. A dynamic economy needs a steady supply of individuals capable of achieving at advanced levels, yet we rely on imported talent while systematically holding back our brightest young minds here at home.

I would recommend to my colleagues the book Genius Denied by Jan and Bob Davidson of the Davidson Institute in Nevada. It describes the many obstacles faced by some of our brightest students in trying to get an appropriate education. The book tells the story of a boy named Carlos who didn't speak until he was 3½ years old, but then began to speak in complete sentences like a much older child. His mother had been told he might be autistic or have a learning disability, but when she had him tested, she learned he was actually gifted. He learned to read and write with incredible speed and was able to grasp simple algebra problems. However, in his Kindergarten class, they were learning to add single digits by grouping teddy bears. He was miserable, and despite his natural love of learning, he cried to stay home from school. He was teased for being different and the stress of school got to be so great that his hair started falling out. He began talking about wishing that he was dumb or even dead.

The book also talks about a boy named Tim who is dyslexic and also profoundly gifted. His gifts compensated for his inability to read so he was able to earn normal grades, but his school would not make appropriate accommodations for his learning disability because he was achieving at acceptable levels. School officials also maintained they had no obligation to accommodate his gifts. This left Tim frustrated. His zeal for learning waned because his disability held him back while his gifts went undeveloped, but both went unaddressed by his school because he was not failing. Eventually, his mother was forced to pull him out of the public school and educate him at home.

Many schools have special gifted and talented programs with staff trained in gifted education strategies, but a great many others do not. This leads to the uneven availability of appropriate services. Title I schools are far less likely to have any services for gifted students. Is this because there are no high-ability disadvantaged students? Certainly not. There are high-ability students in every school and low income doesn't mean low ability. It is of course appropriate to ensure that struggling students receive the support they need to achieve to their potential, but when disadvantaged high-ability students go unrecognized and unchallenged, thus falling short of the level of achievement they are capable of attaining, the tremendous loss of human

potential is truly tragic both for the students and for our society.

So should every cash-strapped Title I school hire special teachers with a background in gifted and talented education and start offering gifted education programming? Well, that would be ideal, and would likely help improve the academic achievement of all students in those schools, but a lack of funds need not be a barrier to schools meeting the unique learning needs of their high-ability students. For instance, a report by some of the leading experts in the field at the University of Iowa's Belin-Blank Center titled ''A Nation Deceived: How Schools Hold Back America's Brightest Students'' outlines both the problem of schools systematically failing to support their high-ability students and an almost no-cost solution—acceleration. Simply allowing students to take classes with their intellectual peers, where the curriculum is matched to their ability rather than to their age, often results in better academic results as well as happier, better adjusted students. Also, knowing that all teachers have high-ability students with unique learning needs in their classrooms, there is a great need for professional development opportunities to incorporate the ability to recognize and meet those needs.

Today, I am introducing a bill, with Senator CASEY of Pennsylvania, to ensure that Federal education policy no longer overlooks the needs of high-ability students. It's called the TALENT Act, which stands for: To Aid Gifted and High-Ability Learners by Empowering the Nation's Teachers. My bill corrects the lack of focus on high-ability students, especially those students in underserved settings, including rural communities, by including them in the school, district, and state planning process that already exists under the Elementary and Secondary Education Act. It also raises the expectation that teachers have the skills to address the special learning needs of various populations of students, including gifted and high-ability learners. To that end, my bill provides for professional development grants to help general education teachers and other school personnel better understand how to recognize and respond to the needs of high-ability students. Finally, because we have much to learn about how best to address the very unique learning needs of this often overlooked population of students, my bill retools and builds upon the goals and purpose of the existing Javits Gifted and Talented Students Education Act so that we continue to explore and test strategies to identify and serve high-ability students from underserved groups. These strategies can then be put into the hands of teachers across the country.

Meeting the needs of our brightest students, the ones our country is counting on for our future prosperity, is not a luxury, it is a necessity. That isn't a justification for embarking on some sort of new spending and sticking them with the bill, however. Instead, my legislation would accomplish its goals in a cost-effective way by amending existing law to account for the needs of gifted and high-ability learners as well as retooling the old Javits program to have a greater impact. For too long, Federal education policy has been so focused on preventing failure that we have neglected to promote and encourage success. We can no longer afford to ignore the needs of our brightest students and thus squander their potential. My legislation will put our country on track to tap that potential which is so essential to the future happiness of the students and the future prosperity of our Nation.

By Mr. LEVIN (for himself and Ms. STABENOW):

S. 860. A bill to ensure that methodologies and technologies used by the Bureau of Customs and Border Protection to screen for and detect the presence of chemical, nuclear, biological, and radiological weapons in municipal solid waste are as effective as the methodologies and technologies used by the Bureau to screen for those materials in other items of commerce entering the United States through commercial motor vehicle transport; to the Committee on Homeland Security and Governmental Affairs.

Mr. LEVIN. Mr. President, I have been fighting over the past several years to stop the thousands of trash shipments entering into Michigan from Canada. This year brought some welcome good news: Canada has stopped shipping its city trash to Michigan, eliminating about 1.5 million tons of trash a year that had been dumped into Michigan landfills, and taking more than 40,000 trucks a year off Michigan roads. The end of these shipments fulfills a 2005 agreement that Senator STABENOW and I reached with Ontario officials to end all shipments of municipally managed trash to Michigan by the end of 2010.

However, private trash shipments from Canada are still being brought into Michigan. Tons of waste from private companies, including from construction, industry, and commercial sources, are being imported into Michigan for disposal in our landfills. Most of these shipments enter at three border crossings in Michigan: Port Huron, Sault Ste Marie, and Detroit. The loads of municipal solid waste are more than just a nuisance. These trash trucks from Canada pose a threat to our environment, health, and security.

This legislation Senator STABENOW and I are introducing today would require the Bureau of Customs and Border Protection of the Department of Homeland Security to report to Congress on the methodologies used by the Bureau to screen for the presence of chemical, nuclear, biological, and radiological weapons in municipal solid waste. The report would need to indicate whether the techniques used by the Bureau to screen for these dangerous materials in municipal solid waste are as effective as the methodologies used by the Bureau to screen for such materials in other items of commerce entering the United States. If the Bureau of Customs cannot demonstrate that screening of municipal waste shipments is adequate, then they have 6 months to implement the technologies to implement adequate screening procedures. If such measures are not implemented, then the Secretary of Homeland Security shall deny entry of any commercial motor vehicle carrying municipal solid waste from Canada until the Secretary certifies that the methods and technology used to inspect the trash trucks are as effective as the methods and technology used to inspect other vehicles.

I believe this legislation will help to protect the people of this country, and I hope this Congress will act quickly on this legislation.

Mr. President, I ask for unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 860

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SCREENING OF MUNICIPAL SOLID WASTE.

(a) DEFINITIONS.—In this section:

(1) BUREAU.—The term '' Bureau'' means the Bureau of Customs and Border Protection.

(2) COMMERCIAL MOTOR VEHICLE.—The term ''commercial motor vehicle'' has the meaning given the term in section 31101 of title 49, United States Code.

(3) COMMISSIONER.—The term ''Commissioner'' means the Commissioner of the Bureau.

(4) MUNICIPAL SOLID WASTE.—The term ''municipal solid waste'' includes sludge (as defined in section 1004 of the Solid Waste Disposal Act (42 U.S.C. 6903)).

(b) REPORTS TO CONGRESS.—Not later than 90 days after the date of enactment of this Act, the Commissioner shall submit to Congress a report that—

(1) indicates whether the methodologies and technologies used by the Bureau to screen for and detect the presence of chemical, nuclear, biological, and radiological weapons in municipal solid waste are as effective as the methodologies and technologies used by the Bureau to screen for those materials in other items of commerce entering the United States through commercial motor vehicle transport; and

(2) if the report indicates that the methodologies and technologies used to screen municipal solid waste are less effective than those used to screen other items of commerce, identifies the actions that the Bureau will take to achieve the same level of effectiveness in the screening of municipal solid waste, including actions necessary to meet the need for additional screening technologies.

(c) IMPACT ON COMMERCIAL MOTOR VEHICLES.—If the Commissioner fails to fully implement an action identified under subsection (b)(2) before the earlier of the date that is 180 days after the date on which the report under subsection (b) is required to be submitted or the date that is 180 days after

the date on which the report is submitted, the Secretary shall deny entry into the United States of any commercial motor vehicle carrying municipal solid waste until the Secretary certifies to Congress that the methodologies and technologies used by the Bureau to screen for and detect the presence of chemical, nuclear, biological, and radiological weapons in municipal solid waste are as effective as the methodologies and technologies used by the Bureau to screen for those materials in other items of commerce entering into the United States through commercial motor vehicle transport.

By Ms. LANDRIEU (for herself and Mr. VITTER):

S. 861. A bill to restore the natural resources, ecosystems, fisheries, marine habitats, and coastal wetland of Gulf Coast States, to create jobs and revive the economic health of communities adversely affected by the explosion on, and sinking of, the mobile offshore drilling unit Deepwater Horizon, and for other purposes; to the Committee on Environment and Public Works.

Ms. LANDRIEU. Mr. President, I am going to speak for 2 or 3 minutes in a brief introduction, and then turn it over to my colleague from Louisiana. We are both very excited and enthusiastic to present to the Senate and to Congress work that has been underway for almost a year.

As you know, next week on April 20, we will be marking the 1-year anniversary of the Deepwater Horizon explosion, which killed 11 men—they are still in our thoughts and prayers, and their families to this day—injured dozens of others and shocked millions with the explosion that occurred a year ago next Wednesday.

There are many steps our Nation has to take and must take to respond to that horrific incident. Senator VITTER and I are on the floor today to introduce the Restore the Gulf Coast Act of 2011, which we believe is one of the most important things that needs to be done in response to this incident.

It was frankly long overdue even before this tragedy happened, and I will briefly explain. This gulf coast is a very important coast of America.

I know all of the people of our coasts believe they are all important—but we who live on the gulf coast are particularly proud of the coast of Texas, Louisiana, Mississippi, Alabama, and Florida because on this coast not only do we have port and maritime activities, which is true of every coast, we also support the Nation in hosting a very important domestic oil and gas industry, which is primarily offshore, but a great deal on shore, both close and on our marshes.

In addition, we have a very vibrant and robust fishing industry, both commercial and recreational. We have ecotourism and migratory bird routes from the south going north. Obviously this is a flyway for migratory birds and extremely important to wildlife enthusiasts and hunters and fishermen. May I also add—and not let us forget—the tourism industry. So we say proudly in the gulf coast, we are America's working coast. We seek a balance between mining and exploring for and using our natural resources, and balancing that so this coast can be sustainable.

This is a great opportunity for the Nation to do right by the gulf coast. It is a great opportunity for the polluters to step up and do the right thing. It is a great opportunity to give a break to taxpayers because the bill Senator VITTER and I are putting forward—and we hope our other colleagues will join us in—will basically say the fine BP is going to pay—and maybe other contractors as well—that 80 percent of that fine should go to the area where the injury occurred.

I am going to take the next minute to put up this horrifying picture that people will remember because a year ago this is what the site looked like when the Deepwater Horizon exploded and 5 million barrels of oil escaped from this tragedy and marred the beaches and marshes and ocean, and we are still recovering, and will for years.

But because of the 5 million barrels of oil that were spilled, this polluter, BP, and its contractors are going to have to pay a very serious fine to the Federal Government. We believe that fine is best directed to help the environment which was injured and to get the taxpayers off the hook and put the polluters on the hook for picking up this tab, and to do so in a way that is fair to the Gulf Coast States. That is what Senator VITTER will speak about in more detail.

Let me show you one picture, happily. Today, the beaches along the gulf coast—in large measure—look like this, as shown in this picture. This is the way they normally look. Because not only do we drill for oil and gas off of our waters, but our children swim in this water. We recreate and have picnics along the beach. This is the way we would like this beach to look for decades to come.

If we are successful in getting our bill passed through the Congress and signed by the President in the near future, this is possible, along with pictures like this one I show you, which represents a great and proud industry: the shrimping industry on the gulf coast, which supplies fresh seafood for restaurants all over our Nation and, in some cases, the world.

So at this point, let me turn it to Senator VITTER for some more detail. I want to say, it has been a pleasure and I thank the Senator for his support. We want this to be a bipartisan effort. Both the industry and environmental groups are very interested in working with us on this issue. We think it is the right policy for our country.

I yield to Senator VITTER.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. VITTER. Mr. President, I am proud to join my colleague Senator LANDRIEU in introducing today this RESTORE the Gulf Coast Act of 2011. I want to also thank her and compliment her on her leadership on this issue. Senator LANDRIEU has been developing this legislation tirelessly since the tragedy, working with many others who will soon be cosponsors, we hope, in this effort.

I also want to recognize Congressman STEVE SCALISE and his Louisiana House colleagues for having similar legislation in the House.

As we near this 1-year anniversary of the disaster, first we need to remember the victims, the human victims—the 11 people who lost their lives and their families. Those families still have a huge hole in their lives, and we need to continue to remember them and pray for them.

But we also need to help restore the affected area. A lot of other lives were impacted through the environmental and economic devastation. We need to work on that as well.

This RESTORE the Gulf Coast Act of 2011 would go a long way in restoring those lives, in healing those impacts. This was a horrible tragedy, and, of course, the physical, the environmental damage was borne by these five Gulf Coast States. Therefore, we think it is more than fair that 80 percent of the fines directly related to this event—which would not have been incurred, would not be in existence but for this tragedy—be dedicated to restoration along the gulf coast.

Senator LANDRIEU, with my support, and others, has worked out a very fair formula to impact all of the Gulf Coast States in a positive way. We think it is more than fair because it assures some minimum funding to all of the affected States and then has another pot of money that is specifically focused on direct impacts. We think this is a very fair way to go about it. It also dovetails with the work that has been going on in the States and federally through the President's commission on impacts.

So we think this would be an excellent way to approach it. It is more than fair to the Federal Government and to the Federal taxpayer because the money retained that is still flowing to the Federal Treasury more than covers all the expenses of the Federal Government related to this event. It goes well beyond those direct expenses.

Again, I thank my colleague for her leadership, and I ask all of our colleagues to come together around this effort. This concept has been explicitly endorsed by President Obama. This concept has been explicitly endorsed by the President's commission on the oil-spill. All of those folks have absolutely said, yes, 80 percent of these Clean Water Act fines need to stay on the gulf coast for much-needed restoration. This legislation will get that done in a fair, straightforward way. I urge all of my colleagues to support it and help pass it in the next few weeks and months.

Mr. President, with that, I turn the floor back to my colleague from Louisiana.

The PRESIDING OFFICER. The Senator from Louisiana.

Ms. LANDRIEU. Mr. President, I see other colleagues on the floor waiting to speak so I will try to wrap up these remarks in about 5 minutes. But I do want to add a few things and thank my colleague again. He is on the committee that will take this bill into consideration. That committee is chaired by Senator BARBARA BOXER. I want to thank her, our colleague from California, the Chair of the EPW Committee, and her staff, who have been working with us very closely over the last year as we fashioned this approach. I think the Senator, of course, will speak for herself, but I think it is in her philosophy that the polluters should pay, not the taxpayer, and that the area that was injured should be the area that receives the response. It is important that the environment that was injured should be first attended to first. That is the essence and nature of our bill.

But to put a couple of other things in the RECORD, Senator VITTER mentioned this, but it is worth repeating. President Obama has already endorsed this general concept, and I want to thank him for his early leadership on this issue. I had some real reservations early on about the national oilspill commission. I honestly did not think there were enough people representing the industry perspective, only the environmental perspective. But I was happy to see that commission report came out fairly balanced. Both Bob Graham, who is a former colleague of ours from Florida, and Bill Reilly, the former EPA Director under President Bush, came to the same conclusion: that one of the best ways to spend this fine money would be restoring this very important coastal area. This should not just be for the gulf coast but for the Nation. Frankly, the world should take notice and to try to find a path forward for coastal communities to have sustainable economies.

This is an important question, not just for the gulf coast, not just for the east coast, not just for the west coast, but I might say, this might be one of the great questions in the world today. 60 percent or more of the population of the world lives near coastlines. The question of how can people live there productively, safely, and how the environment can sustain them in that growth and development is an important question to get answers to.

Let me say, as a resident of the gulf coast, we do not have enough answers. We do not have enough money to ask questions. That is what this money will go for: some science and technology, some basic research, and, most importantly, some money to restore our coast—to do the right things by this environment.

I want to recognize the entities that support this cause. Secretary Ray Mabus, the Secretary of the Navy added to his portfolio to examine this issue, and he, too, arrived at the same conclusion: that a very excellent and smart way to spend some of these fine moneys would be on these programs.

Just a couple of minutes more to put some facts into the RECORD; and other Senators from other States—Florida, Texas, Mississippi, and Alabama—can enter their own data.

I think it is important for people to understand, when we talk about the coast of Louisiana, just the coast of Louisiana—this is going to be hard for people to believe, but it is actually true—if you count the tidal miles of Louisiana, which is about 7,000 tidal miles from the tip here, as shown on this map, all the way over to Texas from our Mississippi border—7,000 tidal miles—if you stretch that out, it is the same as going from Miami to Seattle. I need people to get that in their mind.

I know this looks like a little shore because it is not a big shore like California or Florida. But the nature of this shore—because it is not just a beach; it is America's greatest wetlands and marshes—if you stretched it out with all of its inlets and bays and estuaries, it would go from Miami to Seattle.

This area is threatened, and has been for years. Yes, the oil and gas industry, unfortunately, has contributed to some of this damage. But it is also because the Mississippi River flows through here, and it has been dammed and tamed as best as men and women can try to tame natural things. The hydraulics have changed. The sea level has risen. This area is under great threat.

Mr. President, 1,500 square miles have been lost since 1930; 25 square miles of wetlands each year, which means a football field every 30 minutes. This is an urgent matter. There is no loss of land anywhere in the continental United States that has as much threat to it as there is to this coast. We have struggled for years to find a revenue stream to help fix it. We understand the rest of the country says: Why should we fix it? It is not our coast. But what we say back is: This coast is important to the whole Nation. It drains 40 percent of the continent. It is the greatest river system in North America. No one can get wheat out of Kansas or Iowa without coming through this Mississippi River. So there is a national interest.

Seventeen percent of GDP is basically supported and created by this gulf coast economy.

We are also willing to pay our own way as well. Our parishes have taxed themselves. The State has set up a constitutional safeguard, a lockbox—if we had only done that with Social Security. We are happy to have a lockbox for the wetlands money that comes in, so it can only be used for that purpose. So we are very proud of the actions our locals have taken. Now it is time for the Federal Government to act.

A few more statistics: 30 percent of the commercial fisheries in the United States come off this coast, and $1.7 billion in economic impact for recreational fishing—again, over 50 percent of the domestic oil and gas, because we drill for oil and gas here, that keep lights on and electricity flowing in Chambers such as this, in rooms and buildings all over our country. So that is why this is so important.

I am going to add some other statistics for the RECORD about some of the economic impacts of this. Again, this is an important coast to the country and it is an important effort for the world for us in America to get this right. Think about the drilling that is occurring off the coast of Africa or Brazil or Australia or Israel and what happens. Let's prevent any explosions. Let's prevent these disasters. We are struggling to do that, and the record is pretty good, despite the criticism that comes, and that is a speech for another day.

But the question is, When there is an accident, when this happens, how do we take that penalty money and invest it in the coast so it is more resilient and it will benefit people in every way over a long period of time in a very balanced fashion.

I conclude by urging my colleagues along the gulf coast, from Florida to Alabama to Mississippi and Texas, Republicans and Democrats alike, Members of the House as well, to step forward and join me and Senator VITTER. We are open to ideas and thoughts about how the money should be allocated but within general sets of principles we have outlined today. I wish to, again, thank Senator BOXER whose committee will consider this in the very near future. We are hoping for a hearing in the very near future and then a markup on this bill to move it forward to the President's desk.

Mr. President, I ask unanimous consent to have printed in the RECORD some further statistics about this horrific spill and our valuable coast.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

On April 20, 11 men died in a massive oil rig explosion in the Gulf of Mexico.

For 3 months, oil flowed uncontrollably into the waters of the Gulf of Mexico. 4.9 million barrels of oil was discharged during the spill. That equates to 50,000 barrels of oil each day.

600 miles of the Gulf coastline were oiled. More than half of that coastline is in Louisiana.

320 miles of Louisiana's coastline were oiled and some oil is still lingering in the marshes near Bay Jimmy on the east side of Plaquemine Parish.

6,814 dead animals have been collected, including 6,104 birds, 609 sea turtles, 100 dolphins and other mammals, and 1 other reptile.

86,985 square miles of waters were closed to fishing. Approximately 36% of Federal waters in the Gulf of Mexico were closed to fishing for months.

30 percent of commercial fisheries in the United States are located in the Gulf of Mexico.

It is estimated that $2.5 billion were lost in our Gulf of Mexico fishing industry.

$23 billion is estimated in impacts to tourism across the Gulf Coast over a three-year

period, as estimated by the U.S. Travel Association.

The Gulf Coast accounts for a $1.7 billion economic impact to the nation from recreational fishing.

30 percent of the nation's crude oil supply and 34 percent of the natural gas consumed in the U.S. are produced in Louisiana or adjacent Outer Continental Shelf (OCS).

Nearly 50 percent of all the domestically produced oil and gas that fuels this nation comes from the Gulf of Mexico.

$8 to 10 billion in direct OCS revenues go to the U.S. Treasury each year.

$3 trillion is contributed to the national economy by the Gulf Coast.

12 million people live in coastal Louisiana.

17 percent of the National GDP comes from the Gulf Coast.

1,900 square miles of land have been lost in Louisiana since 1930.

25 square miles of wetlands are lost each year—or a football field-sized area every 30 minutes.

By Mr. NELSON of Florida:

S. 862. A bill to provide for a comprehensive Gulf of Mexico restoration plan, and for other purposes; to the Committee on Environment and Public Works.

Mr. NELSON Of Florida. Mr. President, I rise today, 360 days after the Deepwater Horizon oil rig exploded in the Gulf of Mexico, taking the lives of 11 Americans and forever changing the lives of their friends and families. Following the explosion, hundreds of millions of gallons of oil spewed out of that monster well for months, devastating the environment and the economy of the Gulf Coast. It is my hope and my belief that by the passage of time, the hard work and dedication of individuals, and the power of mother nature, the Gulf Coast will recover. But it will not be immediate.

I can't believe Congress hasn't addressed things like liability, and that some in Congress still are dead set on carrying out the oil industry's agenda, regardless of all the safety, economic and environmental concerns. Meantime, the companies say we need to allow additional offshore drilling. What they don't say is we have already given them tens of millions of additional acres in the Gulf of Mexico where they haven't even started drilling yet.

Under current law, the party responsible for an oil spill will be assessed fines for violations of the Clean Water Act. Those fines go to the Oil Spill Liability Trust Fund. But several folks have suggested that those fines should go to the Gulf Coast—to restore the environment, provide economic recovery, and to make the Gulf more resilient to disasters—including the Secretary of the Navy Ray Mabus, and the President's Oil Spill Commission headed up by Senator Bob Graham and Bill Reilly. Just like some of the lessons we learned after the Exxon-Valdez oil spill led to the passage of landmark laws, we need to take the lessons of the Deepwater Horizon oil spill and restore the Gulf.

So today, before the 1 year anniversary of the Deepwater Horizon, I am introducing a bill to put the Gulf Coast back to work and return it to the healthy, vibrant ecosystem it used to be—complete with sugar white sand beaches and some of the best fishing in the world. I have heard from city commissioners, hotel workers, fishermen and Americans that visit our beautiful Gulf coast that this is the right thing to do. The Gulf of Mexico Recovery, Restoration, and Resiliency Act will get funding to local governments for environmental education, restoration and research, as well as workforce development, and tourism promotion projects. It will create a Council with state and federal members to develop a comprehensive plan for the Gulf of Mexico. This bill will ensure long-term cooperative monitoring of the status of our fishery resources—where fishermen will work alongside scientists to protect their livelihoods by collecting the best data.

Most importantly, this bill will bring together all of the folks who care about the Gulf and provide them with the funding to restore it. Specifically, the bill creates a Citizen's Advisory Committee and a Science Advisory Committee to provide input on the direction of Gulf restoration activities. Our federal resource partners like the Department of Interior, the National Oceanic and Atmospheric Administration, and the Environmental Protection Agency will all have a seat at the table. Our State and local voices will be heard and have opportunities to undertake projects that support a healthy Gulf and a vibrant coastal economy.

It was heartbreaking less than a year ago to watch as oil spewed into the Gulf of Mexico, to hear of dead dolphins washing ashore, and to speak with folks who have lost their businesses because nobody came to the beach last summer. But it is also gives me hope to know that Gulf residents are a resilient, hard-working type. I know that if we can get them the tools and a strong plan for rebuilding, the Gulf will start to recover. We can make it right by sending the Clean Water Act fines to the areas that took the hit. So I'm asking that my Senate colleagues will support my efforts to help restore this national treasure, and I look forward to working towards that goal.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 862

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Comprehensive Gulf of Mexico Recovery, Restoration, and Resiliency Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) CITIZENS' ADVISORY COMMITTEE.—The term ''Citizens' Advisory Committee'' means the Gulf of Mexico Regional Citizens' Advisory Committee established by section 8(a).

(2) CLEAN ENERGY PRODUCTION AND DEVELOPMENT.—The term ''clean energy production and development'' means any electricity generation, transmission, storage, heating, cooling, industrial process, or manufacturing project the primary purpose of which is the deployment, development, or production of an energy system or technology that avoids, reduces, or sequesters air pollutants or anthropogenic greenhouse gases.

(3) COUNCIL.—The term ''Council'' means the Gulf of Mexico Recovery Council established by section 3(a).

(4) ELIGIBLE ENTITY.—The term ''eligible entity'' means an organization that—

(A) is a consortium of 1 or more public and private institutions of higher education in a Gulf State;

(B) is formally established by a board of higher education in a Gulf State for the purpose of collaborating on marine science research;

(C) carries out 1 or more operations that are physically located in the Gulf coast; and

(D) demonstrates experience arising from—

(i) the conduct of the types of activities described in section 6; and

(ii) the ability to carry out each requirement described in subsections (c), (d), and (e) of section 6.

(5) FEDERAL AGENCY.—The term ''Federal agency'' has the meaning given the term in section 1004 of the Solid Waste Disposal Act (42 U.S.C. 6903).

(6) FISHERY ENDOWMENT.—The term ''Fishery Endowment'' means the Gulf of Mexico Fishery Endowment established under section 7(a).

(7) FUND.—The term ''Fund'' means the Gulf of Mexico Recovery Fund established by section 4(a).

(8) GULF.—The term ''Gulf'' means the submerged land of the outer Continental Shelf, and the areas of the exclusive economic zone of the United States, within the Gulf of Mexico, including associated coastal watersheds, estuaries, beaches, and wetlands.

(9) GULF COAST.—The term ''Gulf coast'' means—

(A) each coastal zone (as determined pursuant to the Coastal Zone Management Act of 1972 (16 U.S.C. 1451 et seq.)) of each Gulf State (including water adjacent to the Gulf State); and

(B) submerged land of the outer Continental Shelf located in the Gulf of Mexico.

(10) GULF OIL SPILL.—The term ''Gulf oil spill'' means the discharge of oil and the use of oil dispersants that began in 2010 in connection with the blowout and explosion of the mobile offshore drilling unit *Deepwater Horizon* that occurred on April 20, 2010, and resulting hydrocarbon releases into the environment.

(11) GULF STATE.—The term ''Gulf State'' means any of the States of—

(A) Alabama;

(B) Florida;

(C) Louisiana;

(D) Mississippi; and

(E) Texas.

(12) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given the term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002).

(13) LOCAL POLITICAL SUBDIVISION.—The term ''local political subdivision'' means any city, county, township, town, borough, parish, village, or other general purpose political subdivision of a State.

(14) NATURAL RESOURCE TRUSTEE.—The term ''natural resource trustee'' means each of the Federal and State trustees designated under title I of the Oil Pollution Act of 1990 (33 U.S.C. 2701 et seq.) with respect to natural resource damages relating to the Gulf oil spill.

(15) OBSERVATION SYSTEM.—The term ''Observation System'' means the Gulf of Mexico

Observation System established under section 6(a).

(16) PLAN.—The term ''Plan'' means the Comprehensive Gulf of Mexico Recovery Plan developed under section 5(a).

(17) STRATEGY.—The term ''Strategy'' means the regional ecosystem restoration strategy developed by the Gulf Coast Ecosystem Restoration Task Force established by Executive Order 13554 (16 U.S.C. 1451 note; relating to the Gulf Coast Ecosystem Restoration Task Force).

SEC. 3. GULF OF MEXICO RECOVERY COUNCIL.

(a) ESTABLISHMENT.—There is established the Gulf of Mexico Recovery Council.

(b) MEMBERSHIP.—The Council shall be composed of each member of the Gulf Coast Ecosystem Restoration Task Force established by Executive Order 13554 (16 U.S.C. 1451 note; relating to the Gulf Coast Ecosystem Restoration Task Force).

(c) CHAIRPERSON.—The President shall select a Chairperson from among the members of the Council.

(d) DUTIES.—The Council, in coordination with the natural resource trustees, shall—

(1) develop the Plan;

(2) establish guidelines for the provision of, and provide, grants in accordance with subsection (e);

(3) establish the Observation System;

(4) establish the Fishery Endowment;

(5) coordinate the sharing of scientific information and other research associated with Gulf coast economic development, ecosystem restoration, and public health rehabilitation;

(6) form partnerships with Federal and State agencies, institutions of higher education, research consortia, private companies, and other relevant entities; and

(7) submit to the appropriate committees of Congress an annual report under subsection (f).

(e) GRANTS.—

(1) IN GENERAL.—Using amounts made available for expenditure from the Fund for a fiscal year, the Council shall provide grants in accordance with this subsection.

(2) GRANTS TO LOCAL POLITICAL SUBDIVISIONS.—

(A) IN GENERAL.—For each fiscal year, of the amounts made available for expenditure from the Fund, the Council shall use 45 percent of the amounts to provide grants to local political subdivisions.

(B) REQUEST FOR GRANT PROPOSALS.—Not later than 30 days after the date of enactment of this Act, and every 180 days thereafter until such time as the percentage of amounts specified in subparagraph (A) for a fiscal year has been provided in the form of grants under this paragraph, the Council shall issue to each local political subdivision affected by the Gulf oil spill, as determined by the Council, a request for proposal for grants for activities relating to Gulf coast economic development, ecosystem restoration, and public health rehabilitation, including—

(i) environmental restoration and remediation (including remediation in coastal and marine ecosystems);

(ii) academic and applied research regarding the economy, environment, and public health of the local political subdivision;

(iii) seafood marketing;

(iv) tourism and tourism marketing;

(v) coastal land acquisition;

(vi) ecosystem resource planning;

(vii) renewable and clean energy production and development, energy conservation, and related retrofitting projects;

(viii) workforce development; and

(ix) environmental education.

(C) CONSISTENCY WITH REGIONAL ECOSYSTEM RESTORATION STRATEGY.—The Council shall ensure that any funds made available under this paragraph shall be used for projects and activities that are consistent with the Strategy.

(D) TIMING OF PROVISION OF GRANTS.—The Council shall provide a grant under this paragraph not later than 120 days after the date on which the Council receives a proposal for the grant described in subparagraph (B).

(3) GRANTS FROM COUNCIL FOR PLAN AND OBSERVATION SYSTEM.—

(A) IN GENERAL.—For each fiscal year, of the amounts made available for expenditure from the Fund, the Council shall use 50 percent of the amounts to provide grants for use in—

(i) funding projects, programs, or activities to meet the goals described in section 5(b); and

(ii) carrying out section 6.

(B) ELIGIBLE RECIPIENTS.—The Council may provide a grant under this paragraph—

(i) for a purpose described in subparagraph (A)(i), to—

(I) a Federal or State agency;

(II) an institution of higher education; or

(III) a local political subdivision; and

(ii) for the purpose described in subparagraph (A)(ii), to eligible entities selected by the Council under section 6(b)(2)(A).

(C) CONDITION FOR RECEIPT OF GRANT.—As a condition on the receipt of a grant under this paragraph, and eligible recipient described in subparagraph (B)(i) shall agree to coordinate with the Council to develop and modify proposed projects to address needs under, and achieve the goals of, the Plan.

(4) METHOD OF ALLOCATION.—

(A) IN GENERAL.—The Council shall allocate the amounts to be used within each Gulf State under this paragraph in accordance with subparagraph (B).

(B) ALLOCATION.—

(i) PROPORTIONATE SHARE OF LENGTH OF GULF COAST SHORELINE.—Of the amounts allocated to a Gulf State described in subparagraph (A) for each fiscal year, 60 percent shall be allocated based on the proportion that, as determined by the Council based on the most recently available data from, or accepted by, the Office of Coast Survey of the National Oceanic and Atmospheric Administration—

(I) the aggregate length of the Gulf coast shoreline of the Gulf State; bears to

(II) the aggregate length of the Gulf coast shoreline of all Gulf States.

(ii) PROPORTIONATE SHARE OF AGGREGATE POPULATION.—Of the amounts allocated to a Gulf State described in subparagraph (A) for each fiscal year, 40 percent shall be allocated based on the proportion that, as determined by the Council based on data collected during the most recent decennial census—

(I) the aggregate population of all counties located, in whole or in part, within the designated Gulf coast boundaries of the Gulf State; bears to

(II) the aggregate population of all counties located, in whole or in part, within the designated Gulf coast boundaries in all Gulf States.

(iii) ADJUSTMENT AUTHORITY.—In carrying out this paragraph for a fiscal year, the Council may increase or decrease the percentages of funds provided under clauses (i) and (ii) for the fiscal year by not more than 5 percent, based on the severity of impacts of the Gulf oil spill on a particular Gulf State, as determined by the Council, on the condition that the total of the percentages under those clauses remains 100 percent after all such increases and decreases.

(5) ADMINISTRATIVE EXPENSES.—Not more than 5 percent of the amount of any grant provided under this subsection may be used for administrative expenses.

(6) FISHERY ENDOWMENT.—For each fiscal year, an amount equal to 5 percent of the amounts in the Fund shall be—

(A) deposited by the Council in a subaccount in the Treasury; and

(B) made available to the Administrator of the National Oceanic and Atmospheric Administration and the Regional Gulf of Mexico Fishery Management Council for use in administering and implementing the Fishery Endowment.

(f) ANNUAL REPORTS.—Not later than September 30, 2012, and annually thereafter, the Council shall submit to the appropriate committees of Congress a report that, for the period covered by the report, contains a description of each—

(1) activity of the Council, including each grant provided by the Council under subsection (e); and

(2) policy, plan, activity, and project carried out under this Act.

(g) AUTHORITY TO TRANSFER FUND.—The Council may transfer amounts from the Fund to Federal agencies for the purpose of carrying out this Act, including for the purposes of—

(1) carrying out Plan;

(2) administering the Fishery Endowment; and

(3) administering the Observation System.

(h) NONAPPLICABILITY OF FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Council.

SEC. 4. GULF OF MEXICO RECOVERY FUND.

(a) ESTABLISHMENT.—There is established in the Treasury of the United States a fund to be known as the ''Gulf of Mexico Recovery Fund'', to be administered by the Council for authorized uses described in subsection (c).

(b) TRANSFERS TO FUND.—Notwithstanding any other provision of law, the Secretary of the Treasury shall deposit in the Fund amounts equal to not less than 100 percent of any amounts collected by the United States before, on, or after the date of enactment of this Act, and available on or after the date of enactment of this Act, as penalties, settlements, or fines under sections 309 and 311 of the Federal Water Pollution Control Act (33 U.S.C. 1319, 1321) in relation to the Gulf oil spill.

(c) AUTHORIZED USES.—Amounts in the Fund shall be available to the Council for the conduct of activities relating to Gulf coast economic development, ecosystem restoration, and public health rehabilitation in accordance with this Act, including the provision of grants under section 3(e).

SEC. 5. COMPREHENSIVE GULF OF MEXICO RECOVERY PLAN.

(a) DEVELOPMENT OF PLAN.—In accordance with subsection (b), the Council, in accordance with the Strategy and taking into consideration the advice of the Scientific Advisory Committee and the Citizens' Advisory Committee, shall develop a comprehensive plan to restore, revitalize, and increase the resiliency of the Gulf of Mexico ecosystem.

(b) GOALS.—The goals of the Plan shall include, with respect to the Gulf coast—

(1) ecosystem monitoring; and

(2) ecosystem recovery and resiliency, with an emphasis on a holistic, comprehensive approach covering coastal, nearshore, deep water.

(c) IMPLEMENTATION.—The Council shall provide grants under section 4(c)(3)(A) for use in funding projects, programs, or activities to meet the goals described in subsection (b).

SEC. 6. GULF OF MEXICO OBSERVATION SYSTEM.

(a) ESTABLISHMENT.—The Council shall establish the Gulf of Mexico Observation System to observe, monitor, and map the Gulf in a comprehensive manner.

(b) ADMINISTRATION.—The Observation System shall be—

(1) implemented through a Gulf of Mexico Exploration Research Center; and

(2) administered by 1 or more eligible entities that—

(A) are selected by the Council based on an application demonstrating the ability of the eligible entity to carry out this section; and

(B) receive a grant for that purpose under section 3(e)(3)(A)(ii).

(c) FACILITATION OF EXISTING TECHNOLOGIES.—An eligible entity administering the Observation System under subsection (b) shall facilitate the use of existing technologies to quickly increase, to the maximum extent practicable, observation and monitoring capabilities in the Gulf.

(d) DEVELOPMENT OF NEW TECHNOLOGIES.—An eligible entity administering the Observation System under subsection (b) shall facilitate the development of new monitoring technologies.

(e) COORDINATION WITH NATIONAL INTEGRATED COASTAL AND OCEAN OBSERVATION SYSTEM.—The Council shall ensure that the Observation System is developed in coordination with the National Integrated Coastal and Ocean Observation System established under section 12304(a) of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3603(a)).

SEC. 7. GULF OF MEXICO FISHERY ENDOWMENT.

(a) ESTABLISHMENT.—As soon as practicable after the date of enactment of this Act, the Council shall establish a fishery endowment to ensure, to the maximum extent practicable, the long-term sustainability of fish stocks and the recreational, commercial, and charter fishing industry in the Gulf of Mexico.

(b) FUNDING.—For each fiscal year, of the amounts made available for expenditure from the subaccount described in section 3(e)(6)(A), 95 percent of the interest accrued in the subaccount may be expended for, with respect to the Gulf of Mexico—

(1) data collection and stock assessments;

(2) pilot programs for—

(A) fishery independent data; and

(B) spawning aggregations reduction;

(3) cooperative research; and

(4) training and education on sustainable fishing practices and gear use.

(c) ADMINISTRATION; IMPLEMENTATION.—The Fishery Endowment shall be—

(1) administered by the Administrator of the National Oceanic and Atmospheric Administration; and

(2) implemented by the Regional Gulf of Mexico Fishery Management Council.

SEC. 8. CITIZENS ADVISORY COMMITTEE.

(a) ESTABLISHMENT.—There is established the Citizens' Advisory Committee.

(b) MEMBERSHIP.—

(1) IN GENERAL.—The Citizens' Advisory Committee shall be composed of 39 members, of whom—

(A) 30 members shall be voting members—

(i) of whom—

(I) 6 members shall be residents of, and represent, the State of Alabama;

(II) 6 members shall be residents of, and represent, the State of Florida;

(III) 6 members shall be residents of, and represent, the State of Louisiana;

(IV) 6 members shall be residents of, and represent, the State of Mississippi; and

(V) 6 members shall be residents of, and represent, the State of Texas; and

(ii) each of whom shall represent an interest of the State of which the member represents, including an interest relating to—

(I) the commercial fin fish and shellfish industry;

(II) the charter fishing industry;

(III) the restaurant, hotel, and tourism industries;

(IV) indigenous peoples communities;

(V) the marine and coastal conservation community; and

(VI) incorporated and unincorporated municipalities; and

(B) 9 members shall be nonvoting members, of whom—

(i) 1 member shall be appointed by, and represent, the Secretary of the department in which the Coast Guard is operating;

(ii) 1 member shall be appointed by, and represent, the Administrator of the Environmental Protection Agency;

(iii) 1 member shall be appointed by, and represent, the Administrator of the National Oceanic and Atmospheric Administration;

(iv) 1 member shall be appointed by, and represent, the Secretary of the Interior;

(v) 1 member shall be appointed by, and represent, the lead maritime environmental and natural resources management and enforcement agency of the State of Alabama;

(vi) 1 member shall be appointed by, and represent, the lead maritime environmental and natural resources management and enforcement agency of the State of Florida;

(vii) 1 member shall be appointed by, and represent, the lead maritime environmental and natural resources management and enforcement agency of the State of Louisiana;

(viii) 1 member shall be appointed by, and represent, the lead maritime environmental and natural resources management and enforcement agency of the State of Mississippi; and

(ix) 1 member shall be appointed by, and represent, the lead maritime environmental and natural resources management and enforcement agency of the State of Texas.

(2) GEOGRAPHIC BALANCE.—Voting and nonvoting members representing States shall be appointed equally from each State represented on the Citizens' Advisory Committee.

(c) TERMS.—

(1) IN GENERAL.—Except as provided in paragraph (2), the voting members of the Citizens' Advisory Committee shall be appointed for a term of 3 years.

(2) INITIAL APPOINTMENTS.—To establish the terms of the group of first appointments of voting members to the Citizens' Advisory Committee, a drawing of lots among the initial members shall be conducted under which—

(A) ⅓ of the group shall serve for a period of 3 years;

(B) ⅓ of the group shall serve for a period of 2 years; and

(C) ⅓ of the group shall serve for a period 1 year.

(3) DURATION OF COMMITTEE.—The authority of the Citizens' Advisory Committee shall continue during the lifetime of energy development, transportation, and facility removal activities in the Gulf of Mexico.

(d) ADMINISTRATION.—

(1) IN GENERAL.—The Citizens' Advisory Committee shall—

(A) elect a Chairperson from among the members of the Citizens' Advisory Committee;

(B) select a staff; and

(C) make policies with regard to the internal operating procedures of the Citizens' Advisory Committee.

(2) SELF-GOVERNANCE.—

(A) INITIAL MEETING.—After the date on which the Secretary of the department in which the Coast Guard is operating conducts an initial organizational meeting for the Citizens' Advisory Committee, the Citizens' Advisory Committee shall be self-governing.

(B) INITIAL MEETING.—Not later than 60 days after the date on which all members of the Citizens' Advisory Committee have been appointed, the Citizens' Advisory Committee shall hold the initial meeting of the Citizens' Advisory Committee.

(C) PERIODIC MEETINGS.—The Citizens' Advisory Committee shall conduct meetings not less frequently than 1 meeting per calendar year.

(3) TRANSPARENCY.—Subject to subsection (e)(2), the Citizens' Advisory Committee shall—

(A) conduct the operations of the Citizens' Advisory Committee in a manner that is accessible by the public;

(B) ensure that each work product adopted by the Citizens' Advisory Committee is publicly accessible;

(C) conduct not less than 1 meeting during each calendar year that is open to the public, for which the Citizens' Advisory Committee shall provide public notice not later than 30 days before the date of the meeting; and

(D) maintain a public website containing, at a minimum—

(i) recommendations made by the Citizens' Advisory Committee, and information as to whether the recommendations have been adopted (including an explanation of each reason of the Citizens' Advisory Committee for not adopting a recommendation);

(ii) a description of plans under review, carried out in a manner that does not disclose any confidential or privileged information;

(iii) a statement of industry standards; and

(iv) an interactive component that enables the public—

(I) to submit questions and comments; and

(II) to report problems.

(4) CONFLICTS OF INTEREST.—An individual selected as a voting member of the Citizens' Advisory Committee may not engage in any activity that may conflict with the execution of the functions or duties of the individual as a member of the Citizens' Advisory Committee.

(e) INFORMATION FROM FEDERAL AGENCIES AND INDUSTRY.—

(1) IN GENERAL.—The Citizens' Advisory Committee may request directly from any Federal agency information, suggestions, estimates, and statistics to carry out this section.

(2) ACCESS.—The Citizens' Advisory Committee shall have access to—

(A) facilities and nonproprietary records of the oil and gas industry that are relevant to the proper execution of the duties of the Citizens' Advisory Committee under this section; and

(B) records containing proprietary information if—

(i) the records are relevant to the proper execution of the duties of the Citizens' Advisory Committee under this section; and

(ii) the proprietary information is redacted to the extent necessary and appropriate.

(f) COMMITTEE RECOMMENDATIONS.—All recommendations of the Committee shall only be advisory.

(g) LOCATION AND COMPENSATION.—

(1) OFFICE LOCATIONS.—The Council shall establish offices in 1 or more Gulf States, as the Citizens' Advisory Committee determines to be necessary and appropriate to carry out the operations of the Citizens' Advisory Committee.

(2) COMPENSATION.—A member of the Citizens' Advisory Committee shall—

(A) serve without compensation; and

(B) be allowed travel expenses, including per diem in lieu of subsistence, at rates authorized for an employee of an agency under subchapter I of chapter 57 of title 5, United States Code (except by express authorization of the Citizens' Advisory Committee in any case in which the rates are inadequate to reimburse a member not eligible for travel rates of the Federal Government).

(h) REPORTS.—

(1) DUTY OF COMPTROLLER GENERAL OF THE UNITED STATES.—Not later than 3 years after the date of establishment of the Citizens' Advisory Committee, and every 3 years thereafter, the Comptroller General of the United States shall submit to the President and the appropriate committees of Congress a report that contains a description of, for the period covered by the report, the operations and expenditures of the Citizens' Advisory Committee in carrying out this section (including any recommendation of the Comptroller General of the United States).

(2) DUTY OF CITIZENS' ADVISORY COMMITTEE.—Not later than 2 years after the date of establishment of the Citizens' Advisory Committee, and every 2 years thereafter, the Citizens' Advisory Committee shall submit to the appropriate committees of Congress a report that contains, for the period covered by the report, a description of—

(A) the extent of achievement of safe operations in the Gulf of oil and gas activities;

(B) unresolved problems and concerns with operations, activities, and plans; and

(C) the operations and expenditures, needs, issues, and recommendations of the Citizens' Advisory Committee.

SEC. 9. SCIENTIFIC ADVISORY COMMITTEE.

(a) ESTABLISHMENT.—There is established the Scientific Advisory Committee to provide advice to the Council regarding the science behind the Plan and long-term monitoring and restoration of the Gulf coast ecosystem.

(b) MEMBERSHIP.—The Scientific Advisory Committee shall be composed of 16 members, of whom—

(1) 10 shall be voting members, of whom—

(A) with respect to the State of Alabama, 2 members shall be appointed by the State, of whom—

(i) 1 shall be a scientist employed by an institution of higher education located in the State; and

(ii) 1 shall be a representative of the environmental protection or quality agency of the State;

(B) with respect to the State of Florida, 2 members shall be appointed by the State, of whom—

(i) 1 shall be a scientist employed by an institution of higher education located in the State; and

(ii) 1 shall be a representative of the environmental protection or quality agency of the State;

(C) with respect to the State of Louisiana, 2 members shall be appointed by the State, of whom—

(i) 1 shall be a scientist employed by an institution of higher education located in the State; and

(ii) 1 shall be a representative of the environmental protection or quality agency of the State;

(D) with respect to the State of Mississippi, 2 members shall be appointed by the State, of whom—

(i) 1 shall be a scientist employed by an institution of higher education located in the State; and

(ii) 1 shall be a representative of the environmental protection or quality agency of the State; and

(E) with respect to the State of Texas, 2 members shall be appointed by the State, of whom—

(i) 1 shall be a scientist employed by an institution of higher education located in the State; and

(ii) 1 shall be a representative of the environmental protection or quality agency of the State; and

(2) 4 shall be nonvoting members, of whom—

(A) 1 member shall be appointed by the Administrator of the National Oceanic and Atmospheric Administration;

(B) 1 member shall be appointed by the Administrator of the Environmental Protection Agency;

(C) 1 member shall be appointed by the Director of the National Institute for Standards and Technology; and

(D) 1 member shall be appointed by the Secretary of the Interior.

(c) DUTIES.—Not later than 2 years after the date of enactment of this Act, and biennially thereafter, the Scientific Advisory Committee shall prepare and submit to the Council a report that describes, for the period covered by the report, the science regarding—

(1) impacts to the Gulf and Gulf coast from the Gulf oil spill;

(2) the progress of restoration activities for the Gulf and Gulf coast; and

(3) the implementation of the Plan.

SEC. 10. EFFECT ON OTHER LAW.

Nothing in this section supersedes or otherwise affects any provision of Federal law, including, in particular, laws providing recovery for injury to natural resources under the Oil Pollution Act of 1990 (33 U.S.C 2701 et seq.).

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 145—DESIGNATING APRIL 15, 2011, AS ''NATIONAL TEA PARTY DAY''

Mr. VITTER (for himself and Mr. LEE) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 145

Whereas the deficit, as of April 15, 2011, is the third consecutive deficit in excess of $1,000,000,000,000 in 3 years, and in the history of the United States;

Whereas the taxpayers of the United States understand that the so-called ''Stimulus Bill'', the American Recovery and Reinvestment Act of 2009 (Public Law 111–5), included a laundry list of spending projects that has only increased our national debt;

Whereas passage of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5) was undertaken with guarantees of restricting unemployment to levels equal to or less than 8 percent, yet unemployment rates have consistently exceeded 8 percent;

Whereas Congress should pass, and the States should ratify, a balanced budget amendment to the Constitution to ensure structural reform that will force Congress and the President to balance the budget;

Whereas future bailouts of Wall Street have been codified by the Dodd–Frank Wall Street Reform and Consumer Protection Act (Public Law 111–203);

Whereas the taxpayers of the United States understand that the bailouts of Wall Street by the United States Government have been ineffective and a waste of taxpayer funding;

Whereas the Federal Government must borrow approximately 40 cents of every dollar of Federal spending, causing our Nation to continue on an unsustainable path of increasing debt;

Whereas Congress should enact permanently lower tax rates and a simpler tax code so that taxpayers and business owners no longer face heavy compliance costs and the uncertainty of tax rates that increase automatically;

Whereas the taxpayers of the United States agree that the United States Government should stop wasteful spending, reduce the tax burden on families and businesses, and focus on policies that will lead to job creation and economic growth; and

Whereas taxpayers in the United States are expressing their opposition to efforts to raise taxes, the unsustainable debt, the failure to enact systematic budget reforms, and skyrocketing spending by the United States Government by organizing ''Taxed Enough Already'' parties, also known as ''TEA'' parties: Now, therefore, be it

Resolved, That the Senate designates April 15, 2011, as ''National TEA Party Day''.

SENATE RESOLUTION 146—EXPRESSING THE SENSE OF THE SENATE THAT IT IS NOT IN THE VITAL INTEREST OF THE UNITED STATES TO INTERVENE MILITARILY IN LIBYA, CALLING ON NATO TO ENSURE THAT MEMBER STATES DEDICATE THE RESOURCES NECESSARY TO ENSURE THAT OBJECTIVES AS OUTLINED IN THE UNITED NATIONS RESOLUTIONS 1970 AND 1973 ARE ACCOMPLISHED, AND TO URGE MEMBERS OF THE ARAB LEAGUE WHO HAVE YET TO PARTICIPATE IN OPERATIONS OVER LIBYA TO PROVIDE ADDITIONAL MILITARY AND FINANCIAL ASSISTANCE

Mr. ENSIGN (for himself, Mrs. HUTCHISON, and Mr. MANCHIN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 146

Whereas, on March 28, 2011, President Barack Obama, in an address to the Nation, said ''. . . at my direction, America led an effort with our allies at the United Nations Security Council to pass a historic resolution that authorized a no-fly zone to stop the regime's attacks from the air and further authorized all necessary measures to protect the Libyan people'';

Whereas, in that same address to the Nation, President Obama said he ordered military action to prevent ''. . . a massacre that would have reverberated across the region and stained the conscience of the world'';

Whereas, on March 19, 2011, following passage of United Nations Resolution 1973, the United States began conducting air and sea strikes against Libya in what was labeled Operation Odyssey Dawn;

Whereas President Obama has not sought from Congress authorization for the use of military force against Libya;

Whereas passage of a non-binding, simple resolution by the Senate is not equivalent to an authorization for the use of military force, passed by both the House and the Senate and signed by the President;

Whereas Senate Resolution 85 (112th Congress) should not be interpreted as an expression of congressional consent for United States military intervention in Libya;

Whereas, on March 31, 2011, the United States Armed Forces transferred command of air operations over Libya to the North Atlantic Treaty Organization (NATO) under Operation Unified Protector;

Whereas, at the time of the transfer to NATO, the United States had conducted 1,206 sorties and launched 216 Tomahawk missiles, while other NATO forces had conducted 784 sorties and launched 7 Tomahawk missiles;

Whereas the United States Armed Forces have performed and continue to perform

their assigned missions brilliantly and have once again demonstrated that they are the best in the world;

Whereas, prior to the United States transferring command to NATO, President Obama stated, ''Going forward, the lead in enforcing the no-fly zone and protecting civilians on the ground will transition to our allies and partners, and I am fully confident that our coalition will keep the pressure on Qaddafi's remaining forces.'';

Whereas, President Obama also stated that the United States would ''play a supporting role'' following transition to NATO, and that because of this transition, the risk and cost of this operation would be reduced significantly;

Whereas, after April 2, 2011, no United States combat aircraft were to fly strike missions over Libya unless specifically requested by NATO;

Whereas, after April 2, 2011, NATO immediately requested and was granted approval for a 48-hour extension of United States strike aircraft for participation in operations over Libya;

Whereas United States combat aircraft are currently scheduled to remain on standby in the region, in the event NATO commanders request additional assistance;

Whereas, Abdel Fattah Younes, head of the rebel forces, stated on April 5, 2011 that NATO has been ''disappointing'' and ''slow'' in calling in airstrikes, which have allowed Moammar Qaddafi's military to gain momentum and push back rebel forces;

Whereas, of the 21 members in the Arab League, only 2 countries have contributed any military resources to support United Nations Resolutions 1970 and 1973; and

Whereas it is in the interest of Arab nations to work with coalition forces to work to end violence, attacks, and abuses of civilians in Libya: Now, therefore, be it

Resolved, That it is the sense of the Senate that—

(1) United States military intervention in Libya, as explained by the President, is not in the vital interests of the United States;

(2) the President should have consulted with members of Congress prior to committing the United States Armed Forces either independently or as a major part of NATO operations;

(3) the President should obtain authorization from Congress before providing further military and financial support to operations in Libya and should not assume that such an authorization would equate to the United States Armed Forces leading any future strike or support operations;

(4) Prior to further involvement of United States military personnel or equipment, fellow NATO members and other nations that have a vital interest in the region should agree to provide a substantial portion of the military and financial burdens associated with Operation Unified Protector; and

(5) members of the Arab League should ensure that all of their military resources are available to enforce United Nations Resolutions 1970 and 1973 (2011).

SENATE RESOLUTION 147—RECOGNIZING THE CELEBRATION OF NATIONAL STUDENT EMPLOYMENT WEEK AT THE UNIVERSITY OF MINNESOTA DULUTH

Ms. KLOBUCHAR submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 147

Whereas National Student Employment Week offers the University of Minnesota Duluth the opportunity to recognize students who work while attending college;

Whereas the University of Minnesota Duluth is committed to increasing awareness of student employment as an educational experience for students, as well as an alternative to financial aid;

Whereas there are nearly 1,500 student employees at University of Minnesota Duluth;

Whereas the University of Minnesota Duluth recognizes how important student employees are to their employers; and

Whereas National Student Employment Week is celebrated the week of April 11 through 17, 2011: Now, therefore, be it

Resolved, That the Senate recognizes the celebration of National Student Employment Week at the University of Minnesota Duluth.

SENATE RESOLUTION 148—CALLING ON THE PRESIDENT TO SUBMIT TO CONGRESS A DETAILED DESCRIPTION OF UNITED STATES POLICY OBJECTIVES IN LIBYA, BOTH DURING AND AFTER MUAMMAR QADDAFI'S RULE, AND A PLAN TO ACHIEVE THEM, AND TO SEEK CONGRESSIONAL AUTHORIZATION FOR THE USE OF MILITARY FORCE AGAINST LIBYA

Mr. CORNYN (for himself, Ms. COLLINS, Mr. BLUNT, Mr. LEE, Mr. ROBERTS, and Mr. INHOFE) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 148

Whereas, on February 15, 2011, protests against longtime Libyan dictator Muammar Qaddafi began in Benghazi, Libya, following the arrest of human rights advocate Fathi Tarbel;

Whereas, on March 10, 2011, rebels in Libya, armed with outdated anti-aircraft guns and facing overwhelming firepower from Qaddafi forces, were forced to retreat from strongholds in eastern Libya, while doctors in Libya reported that civilian casualties had doubled, mostly as the result of airstrikes ordered by Qaddafi;

Whereas, on March 10, 2011, France became the first country to recognize the Libyan Transitional National Council, organized by the Libyan rebel leadership, as the legitimate government of Libya;

Whereas, on March 12, 2011, Amr Moussa, secretary general of the Arab League, announced, ''The Arab League has officially requested the United Nations Security Council to impose a no-fly zone against any military action against the Libyan people.'';

Whereas, on March 16, 2011, Muammar Qaddafi's forces neared the rebel stronghold of Benghazi, and Saif al-Islam, Qaddafi's son, vowed that ''everything will be over in 48 hours'';

Whereas, on March 16, 2011, following United Nations Security Council negotiations, U.S. Permanent Representative to the United Nations Susan Rice announced United States support for a no-fly zone, stating, ''But the U.S. view is that we need to be prepared to contemplate steps that include, but perhaps go beyond, a no-fly zone.'';

Whereas, on March 17, 2011, the United Nations Security Council voted to approve a no-fly zone over Libya, passing United Nations Security Council Resolution 1973, which authorized ''all necessary measures'' to protect civilians;

Whereas, on March 19, 2011, President Barack Obama authorized United States military operations against Libya, and Operation Odyssey Dawn commenced;

Whereas, on March 19, 2011, the United States Armed Forces began air and sea strikes against targets along the coast of Libya against Libyan air defenses;

Whereas, on March 21, 2011, President Obama sent a letter notifying Congress that he had ordered strikes on Libya and outlining United States military actions in Libya during the preceding 48 hours;

Whereas, on March 23, 2011, Muammar Qaddafi's forces shelled the town of Misrata, held by Libyan rebels, killing dozens of civilians;

Whereas, on March 24, 2011, coalition forces hit military targets deep inside Libya, but failed to prevent Qaddafi's tanks from re-entering Misrata and besieging its main hospital;

Whereas, on March 24, 2011, North Atlantic Treaty Organisation (NATO) Secretary-General Anders Fogh Rasmussen announced that NATO would take command of enforcing the no-fly zone over Libya and was considering taking control of the full United Nations-backed military mission;

Whereas, on March 30, 2011, forces loyal to Muammar Qaddafi pressed further east with an artillery offensive, pushing Libyan rebels back more than 95 miles towards Brega;

Whereas, on March 31, 2011, United States Africa Command, which had led the initial phases of military operations against Libya under Operation Odyssey Dawn, transferred command and control of international air operations over Libya to NATO;

Whereas, as of March 31, 2011, Operation Unified Protector, under sole command of NATO, is now responsible for the arms embargo, no-fly zone, and actions to protect civilians in Libya;

Whereas, as of April 4, 2011, in support of Operation Odyssey Dawn and Operation Unified Protector, the United States had flown approximately 1,600 military sorties and, as of April 7, 2011, had launched 228 Tomahawk Land Attack Missiles and spent approximately $632,000,000;

Whereas President Obama has repeatedly indicated that his policy on Libya is that Muammar Qaddafi should no longer serve as the leader of the Government of Libya;

Whereas, on February 26, 2011, 11 days after the protests began, President Obama discussed the situation in Libya with Chancellor of Germany Angela Merkel and, according to a White House statement, said, ''When a leader's only means of staying in power is to use mass violence against his own people, he has lost the legitimacy to rule and needs to do what is right for his country by leaving now.'';

Whereas, on March 3, 2011, President Obama, at a joint press conference with President of Mexico Felipe Calderon, said, ''Muammar Qaddafi has lost the legitimacy to lead and he must leave. . . [W]e will continue to send the clear message that it's time for Qaddafi to go.'';

Whereas, on March 18, 2011, President Obama, at a joint press conference with President of Chile Sebastian Pinera, said, ''I have also stated that it is U.S. policy that Qaddafi needs to go. And we got a wide range of tools in addition to our military efforts to support that policy.'';

Whereas, on March 28, 2011, President Obama, in an address to the Nation, began to draw a distinction between United States political and military objectives in Libya, saying, ''There is no question that Libya—and the world—would be better off with Qaddafi out of power. I, along with many other world leaders, have embraced that goal, and will actively pursue it through non-military means.'';

Whereas, on March 29, 2011, President Obama, in an interview on NBC Nightly News, continued to draw this distinction, saying, ''Our primary military goal is to protect civilian populations and to set up the no-fly zone. Our primary strategic goal is for Qaddafi to step down so that the Libyan people have an opportunity to live a decent life.'';

Whereas, despite President Obama's policy that Muammar Qaddafi should no longer serve as the leader of the Government of Libya, President Obama has not presented Congress with a plan to achieve that policy objective;

Whereas President Obama has not sought from Congress any type of authorization for the use of military force against Libya;

Whereas passage of a non-binding, simple resolution by the Senate is not equivalent to an authorization for the use of military force, passed by both the Senate and the House of Representatives and signed by the President; and

Whereas senior officials in the Obama Administration, including Secretary of State Hillary Rodham Clinton, Secretary of Defense Robert Gates, and Harold Koh, the Department of State's Legal Adviser, have incorrectly pointed to the Senate passage of a non-binding resolution, Senate Resolution 85 (112th Congress), as an expression of congressional consent for the United States military intervention in Libya: Now, therefore, be it

Resolved, That it is the sense of the Senate that—

(1) the President should submit to Congress—

(A) a detailed description of United States policy objectives in Libya, both during and after Muammar Qaddafi's rule;

(B) a detailed plan to achieve those objectives;

(C) a detailed estimate of the full cost of the United States military operations in Libya and any other actions required to implement the plan; and

(D) a detailed description of the limitations the President has placed on the nature, duration, and scope of United States military operations in Libya, as referenced in his March 21, 2011, letter to Congress; and

(2) the President should seek a congressional authorization for the use of military force against Libya.

Mr. CORNYN. Mr. President, moments ago, I sent to the desk a resolution on my behalf, as well as that of Senator COLLINS, Senator BLUNT, Senator LEE, Senator ROBERTS, and Senator INHOFE, relating to the military operations in Libya. I would like to speak for a few moments about that and about my concerns.

Like all of our colleagues, I respect our troops and honor them and, of course, their sense of duty, which obligates them to do whatever the Commander in Chief has directed them to do. And, of course, I respect the role of our President as Commander in Chief. But I have grown increasingly concerned that the role of Congress in consultation and in communication with the White House on matters of such grave import to our country and our men and women in uniform as intervening in a foreign country—that the powers of Congress have seemingly been ignored or certainly eroded.

We know this is not new. Since the end of World War II, to my recollection, the U.S. Congress has never exercised its authority under article I, section 8 of the Constitution to declare war. Instead, when our nation has been involved in military operations, we have had something other than a war declared by Congress, but most often with communication and consultation and even authorization by the Congress.

I believe it is imperative, particularly in light of the events subsequent to our intervention in Libya, that the President should submit a plan to Congress on Libya. I believe the President should also come to Congress and ask for a congressional authorization for our continued participation, even in a NATO mission of which the United States bears a disproportionate responsibility.

Like many Americans, I admire the Libyans who protested against Muammar Qaddafi beginning on February 15 of this year. And the timeline, I believe, is important. February 15. They showed they wanted the same things as people in Tunisia, Egypt, Bahrain, Syria, Iran, and so many other nations in the Middle East; that is, a chance to live in freedom and to have a voice in determining their own future.

But, like many Americans, I was also concerned that the people of Libya got so little encouragement from our own President. True, President Obama said on March 3 that Qaddafi had lost legitimacy and he ''must step down from power and leave'' immediately. That was on March 3. He indicated this was the policy of the U.S.—that regime change was our goal in Libya—regime change. But he obviously had no plan to accomplish that goal or to further assist the Libyan people in accomplishing it themselves, other than handing the responsibility off to NATO. Now, this is not like handing it off to some third party that is alien to us or not part of us. We—the United States—are a significant part of NATO's operations. For example, in Afghanistan, basically for every one coalition troop from other NATO countries, there are two American troops, and we bear the proportionate financial responsibility as well.

The President watched as Qaddafi forces regained the momentum against those who had taken up arms against the regime. France—France—became the first nation to recognize the Libyan Transitional National Council as the legitimate government of Libya on March 10. And then the Arab League asked that a no-fly zone be imposed over Libya on March 12. Finally, on March 17—this was almost a month after the first protests against Qaddafi in Libya—the United Nations Security Council approved a no-fly zone over Libya, as well as necessary measures to protect civilians in that country.

U.N. Security Council resolutions take a lot of time to negotiate. There is obviously the need for a lot of consultation between the nations making up the U.N. Security Council. That is why I am only left to wonder why it was during this period of time that the President made so little effort to consult with Congress in a substantive way. I admit he appeared to act like he checked the box once or twice. He sent us a letter on March 21—2 days after Operation Odyssey Dawn began—letting us know what we could have learned from reading the newspaper and watching cable television, that he had ordered strikes on Libya. But the level of consultation with Congress about Libya was nothing like what we had in the years leading up to U.S. military involvement in Iraq and Afghanistan, where Congress issued an explicit authorization for use of military force at the request of the President of the United States.

This is not just a constitutional powers matter. I think this is also a matter of communicating with the American people about the reasons for our intervention in Libya and expressing to the American people what the plan is so they can do what they naturally want to do; that is, provide support for our men and women in uniform, particularly when they are in harm's way.

The President waited until 9 days after our planes and missiles were in the air to make his case to the American people in a speech at the National Defense University. During that speech, the President began to draw a very confusing distinction between our political and military objectives in Libya, saying:

> There is no question that Libya—and the world—will be better off with Qaddafi out of power. I, along with many other world leaders, have embraced that goal, and will actively pursue it through non-military means.

Or, as he put it in an interview the next day, he said:

> Our primary military goal is to protect civilian populations and to set up the no-fly zone. Our primary strategic goal is for Qaddafi to step down so that the Libyan people have an opportunity to live a decent life.

I bet I am not the only person in the country who is confused by this dichotomy between our military goals and our strategic goals. I think they should be the same.

We know the American people still have many questions about what we are doing in Libya and why. As a matter of fact, I met this morning with some Texas Army National Guardsmen who were visiting the Capitol just today, who asked me a question on this very subject because they are confused. If our men and women in uniform are confused about the President's objective, and the American people do not understand what it is either, it means there has not been a good case made explaining the need for military intervention and the ongoing operations. But do not take my word for it. According to a Pew Research poll on April 3, only 30 percent of Americans believe the United States or our allies have a clear goal in Libya—30 percent. Our troops deserve more clarity.

The President told our troops that their involvement in Libya would last a matter of days, not weeks. These men

and women, as we all acknowledge, are the finest fighting force in the world. They can accomplish any mission given to them. But they can also tell the difference between days and weeks. Our troops can tell that they are still responsible for about 25 percent of the NATO support missions in Libya. They hear the voices calling for NATO to expand its operations. And then they know that any expansion of NATO's mission, in scope or duration, puts more of them in harm's way. They simply deserve more clarity, as do the American people.

So I think the Congress, on behalf of the American people, consistent with our constitutional responsibilities and our shared power in matters as serious as this, deserve a plan from the President of the United States, so he can present it to us and we can have what we sorely need, which is a genuine debate about our role in the future—the way forward in Libya.

So what should that plan look like? I will make a few suggestions. I believe a credible plan should contain a detailed description of U.S. policy objectives in Libya both during and after Qaddafi's rule. It should include a detailed plan to achieve those objectives. And particularly in these times when we are struggling with enormous debt and deficits, it should include a detailed estimate of the costs of U.S. military operations in Libya and any other actions required to implement the plan.

Congress, of course, has the responsibility for the federal purse strings and would be asked to appropriate the money, so I think it is entirely appropriate that the President present to us a plan that we can debate and vote on in the form of an authorization.

I think a credible plan should also include a detailed description of the limitations the President has placed on the nature, duration, and scope of U.S. military operations in Libya—the limitations he referred to in his letter of March 21 to Congress.

A plan from the President would, of course, be a catalyst for a long-overdue debate right here in the Halls of what we call occasionally the world's greatest deliberative body. But we cannot deliberate without debate and without an honest appraisal of where we are and where we are going. In fact, it is clear, just by referring back to the debate we had on Iraq and Afghanistan, that the amount of time devoted in this body to Libya is dwarfed by the fulsome debates we had over a period of years relative to our military operations in Iraq and Afghanistan.

Now, what questions should a Senate debate over Libya hope to address? Well, I can think of a few.

Was the Secretary of Defense correct when he said Libya is not a vital interest for the United States?

Is the situation on the ground in Libya—as reported by the news—basically now a stalemate? Remember that the initial U.S. commander of coalition operations in Libya, General Carter Ham, testified before the Armed Services Committee just last week. He agreed with that assessment that it was essentially now a stalemate.

I think this is, to me, the simplest, the most direct question: If the President's goal was to stop Qaddafi from killing Libyans, civilians rebelling against him and protesting against his tyrannical rule, how in the world do we stop the killing without stopping the killer? That would be Muammar Qaddafi. How can we stop the killing of civilians until we achieve the objective of removing him by any means necessary?

I think it is also appropriate to inquire as to whether the Pottery Barn rule applies in Libya. Colin Powell, former Secretary of State and Chairman of the Joint Chiefs of Staff, once observed that, Once you break it, you own it, the so-called Pottery Barn rule.

Has the administration's focus on Libya distracted it from our ongoing efforts in Afghanistan and Iraq, which are both vital interests? We have committed huge amounts of blood and treasure to success in both of those countries, and I think Congress needs to know, and we need to have a fulsome debate, about whether this mission in Libya has distracted from those other two vital missions.

We also need to talk about whether NATO's performance in Libya has jeopardized its effectiveness and reputation. Is there a risk that the alliance is already splitting because of caveats or restrictions that some of the coalition members are placing on their participation in the ongoing intervention in Libya?

Finally, I think we need to know, because certainly everything that happens becomes precedent for some future action, whether there is something that one might call an ''Obama doctrine.'' Is it that the United States will use military force when requested by our allies such as France or, perhaps, international bodies such as the Arab League or the United Nations, but not otherwise? Is it something like the United States will protect civilians when they capture the world's media attention, but ignore their suffering otherwise? Is it something that explains why, for example, we are engaged in Libya but not engaged in Syria?

Remember that Syria is a nation that is slaughtering its own civilians—a humanitarian crisis, I would submit. It is a known state sponsor of terrorism, so designated by the U.S. Department of State, and it is a well-known and notorious conduit for arms from Iran to the Lebanese Hezbollah. Whatever the Obama doctrine is, why doesn't it apply to Syria? We need to ask those questions and I think we need and deserve—and the American people even more so deserve—answers.

I believe our debate in the Senate should result in a vote on a congressional authorization for the President's plan, whatever that is, in Libya, but we ought to have a conversation, we ought to communicate, we ought to have a consultation, not allow the President to treat Congress like a potted plant when it comes to intervening in a foreign nation in a military fashion. I believe the President should ask Congress for an authorization, and I believe we should vote on one.

I certainly don't believe that what we have done so far, which is pass a simple resolution without much notice or debate, is sufficient. Frankly, I don't understand why some of my colleagues are so willing to acquiesce to the President, thereby conceding to the executive branch all authority in dealing with a matter of this gravity and seriousness.

I believe a robust debate about Libya would be good for the Senate, it would be good for the House of Representatives, I think it would be good for the American people, and I think it would be good for the President. If the President takes action knowing that the American people and the Congress are behind his plan, that is good for America, and that is what we need.

I am afraid, though, that the President is taking the support of the American people for granted. The American people instinctively want to support our Commander in Chief, but history shows our military operations are most successful when the people of the United States are behind them. When the American people are not—when they become disengaged or disillusioned—success becomes much more difficult, not just in Libya but for future missions as well. I hope the President will act in such a way that shows respect for Congress as a coequal branch of government, and for the American people, who expect that their representatives will debate questions of this gravity in the open and ask the questions they themselves would ask before their sons and daughters are put in danger. I hope the American people will have the benefit of a vigorous debate on Libya in the Senate.

It is with that objective in mind that my colleagues and I have submitted a resolution. I know there are other resolutions. I believe the Senator from Connecticut and the Senator from Massachusetts and the Senator from Arizona have another one. I am advised that Senator ENSIGN from Nevada and Senator HUTCHISON from Texas have another one. I think we need to consider all of those views and have a debate and vote on these issues.

SENATE RESOLUTION 149—RECOGNIZING AND SUPPORTING THE GOALS AND IDEALS OF SEXUAL ASSAULT AWARENESS MONTH

Mr. CASEY submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 149

Whereas on average, a person is sexually assaulted in the United States every 2 ½ minutes;

Whereas the Department of Justice reports that more than 200,000 people in the United States are sexually assaulted each year;

Whereas 1 in 6 women and 1 in 33 men have been victims of rape or attempted rape;

Whereas the Department of Defense received 2,908 reports of sexual assault involving members of the Armed Forces in fiscal year 2008, representing an 8 percent increase from fiscal year 2007;

Whereas children and young adults are most at risk of sexual assault, as 44 percent of sexual assault victims are under 18 years of age, and 80 percent are under the 30 years of age;

Whereas sexual assault affects women, men, and children of all racial, social, religious, age, ethnic, and economic groups in the United States;

Whereas women, children, and men suffer multiple types of sexual violence, including acquaintance, stranger, spousal, and gang rape, incest, child sexual molestation, forced prostitution, trafficking, forced pornography, ritual abuse, sexual harassment, and stalking;

Whereas it is estimated that the percentage of completed or attempted rape victimization among women in institutions of higher education is between 20 and 25 percent over the course of a college career;

Whereas, in addition to the immediate physical and emotional costs, sexual assault has associated consequences that may include post-traumatic stress disorder, substance abuse, major depression, homelessness, eating disorders, and suicide;

Whereas only 41 percent of sexual assault victims pursue prosecution by reporting their attack to law enforcement agencies;

Whereas ⅔ of sexual crimes are committed by persons who are not strangers to the victims;

Whereas sexual assault survivors suffer emotional scars long after the physical scars have healed;

Whereas, because of advances in DNA technology, law enforcement agencies have the potential to identify the rapists in tens of thousands of unsolved rape cases;

Whereas aggressive prosecution can lead to the incarceration of rapists and therefore prevent those individuals from committing further crimes;

Whereas national, State, territory, and tribal coalitions, community-based rape crisis centers, and other organizations across the United States are committed to increasing public awareness of sexual violence and its prevalence, and to eliminating sexual violence through prevention and education;

Whereas important partnerships have been formed among criminal and juvenile justice agencies, health professionals, public health workers, educators, first responders, and victim service providers;

Whereas free, confidential help is available to all survivors of sexual assault through the National Sexual Assault Hotline, more than 1,000 rape crisis centers across the United States, and other organizations that provide services to assist survivors of sexual assault;

Whereas in 2011, the Department of Defense and the Rape, Abuse & Incest National Network (RAINN) launched the DoD Safe Helpline, which provides live, one-on-one help to members of the United States Armed Forces who have been sexually assaulted;

Whereas the DoD Safe Helpline provides live help to active duty personnel and other members of the DoD community worldwide by phone (877-995-5247) and online at SafeHelpline.org, as well as installation-based referrals via texting;

Whereas, according to a 2010 survey of rape crisis centers by the National Alliance to End Sexual Violence, 72 percent of programs have experienced a reduction in funding over 2009 levels, 56 percent have experienced a reduction in staffing, 23 percent have a waiting list for services, and funding and staffing cuts have resulted in an overall 50 percent reduction in the provision of institutional advocacy services;

Whereas individual and collective efforts reflect the dream of the people of the United States for a nation where individuals and organizations actively work to prevent all forms of sexual violence and no sexual assault victim goes unserved or ever feels that there is no path to justice; and

Whereas April is recognized as ''National Sexual Assault Awareness and Prevention Month'': Now, therefore, be it

Resolved, That—

(1) it is the sense of the Senate that—

(A) National Sexual Assault Awareness and Prevention Month provides a special opportunity to educate the people of the United States about sexual violence and to encourage the prevention of sexual assault, the improved treatment of survivors of sexual assault, and the prosecution of perpetrators of sexual assault;

(B) it is appropriate to properly acknowledge the more than 20,000,000 men and women who have survived sexual assault in the United States and salute the efforts of survivors, volunteers, and professionals who combat sexual assault;

(C) national and community organizations and private sector supporters should be recognized and applauded for their work in promoting awareness about sexual assault, providing information and treatment to survivors of sexual assault, and increasing the number of successful prosecutions of perpetrators of sexual assault; and

(D) public safety, law enforcement, and health professionals should be recognized and applauded for their hard work and innovative strategies to increase the percentage of sexual assault cases that result in the prosecution and incarceration of the offenders;

(2) the Senate strongly recommends that national and community organizations, businesses in the private sector, institutions of higher education, and the media promote, through National Sexual Assault Awareness and Prevention Month, awareness of sexual violence and strategies to decrease the incidence of sexual assault; and

(3) the Senate supports the goals and ideals of National Sexual Assault Awareness and Prevention Month.

SENATE RESOLUTION 150—CALLING FOR THE PROTECTION OF RELIGIOUS MINORITY RIGHTS AND FREEDOMS IN THE ARAB WORLD

Mr. INHOFE submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 150

Whereas, on January 25, 2011, in Tahrir Square, Egyptian protestors found their voice when they successfully ended the 30-plus year rule of President Mubarak and began the work of creating a true democratic government, a government that supports and protects inalienable rights and freedoms, including the freedom of religion;

Whereas the fervor and spirit of these revolutions have taken wing in other Arab nations such as Tunisia, Libya, and Syria;

Whereas, reminiscent of the 1968 ''Prague Spring'' in the former Czechoslovakia, many have called this revolutionary period an ''Arab Spring'', where ordinary citizens have taken to the streets demanding an end to corruption, political cronyism, and government repression;

Whereas, in the midst of newly acquired freedoms, including those of speech, press, and assembly, it is extremely important that religious minorities in these countries be protected from violence and guaranteed the freedom to practice their religion and to express religious thought;

Whereas Article 18 of the Universal Declaration of Human Rights recognizes that ''[e]veryone has the right to freedom of thought, conscience, and religion; this right includes freedom to change his religion or belief, and freedom, either alone or in community with others and in public or private, to manifest his religion or belief in teaching, practice, worship, and observance'';

Whereas the freedom to worship by minority religious communities in Arab nations has come under repeated and deadly attack in recent months;

Whereas, on November 1, 2010, the deadliest ever recorded attack on Iraqi Christians occurred at the Sayidat al-Nejat Catholic Cathedral located in central Baghdad, where militants stormed the church and detonated 2 suicide vests filled with ball bearings, killing 58 and wounding 78 parishioners;

Whereas, on January 1, 2011, a suicide bomber blew himself up in front of the Saint George and Bishop Peter Church in Cairo, killing 21 Egyptian Coptic Christians, a Christian minority group that accounts for 9 percent of Egypt's population of 80,000,000;

Whereas the freedom to proselytize by minority religious communities in Arab nations has also come under repeated and deadly attack in recent months through so-called blasphemy laws that are punishable by death;

Whereas, on January 4, 2011, Governor Salman Tasser, who courageously sought to release Aasia Bibi, a Christian woman and mother of 5 who was sentenced to death under Pakistan's blasphemy laws, was gunned down by his own security guard because of his support for reforming the blasphemy laws; and

Whereas, on March 2, 2011, Shahbaz Bhatti, Pakistan's only Christian cabinet member and passionate supporter of interfaith tolerance and repeal of Pakistan's blasphemy law, was assassinated by multiple gunmen, leaving his body and vehicle riddled with 80 bullets and anti-Christian pamphlets strewn over his body: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes, in this spirit of Arab Spring revolution, that religious minority freedoms and rights must be protected; and

(2) urges in the strongest terms that the United States Government lead the international effort to repeal existing blasphemy laws.

SENATE RESOLUTION 151—CONGRATULATING THE UNIVERSITY OF MINNESOTA DULUTH MEN'S ICE HOCKEY TEAM ON WINNING THEIR FIRST NATIONAL COLLEGIATE ATHLETIC ASSOCIATION (NCAA) DIVISION I MEN'S HOCKEY NATIONAL CHAMPIONSHIP

Ms. KLOBUCHAR submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 151

Whereas on Saturday, April 9, 2011, the University of Minnesota Duluth won the 2011 NCAA Division I Men's Ice Hockey Championship;

Whereas this is the first national championship for the University of Minnesota Duluth Bulldogs men's ice hockey team (the ''University of Minnesota Duluth'');

Whereas the University of Minnesota Duluth won the Frozen Four championship game with a 3 to 2 sudden death win over the University of Michigan;

Whereas on Thursday, April 7, 2011, the University of Minnesota Duluth defeated the University of Notre Dame in the Frozen Four semifinal game with a score of 4 to 3 to advance to the national championship game;

Whereas the game was played before a sell-out crowd of more than 19,200 fans at the Xcel Energy Center in St. Paul, Minnesota;

Whereas the University of Minnesota Duluth finished the 2010-2011 season with the most wins since the 2003-2004 season;

Whereas in the 2010-2011 season the University of Minnesota Duluth had the most fans for a home schedule in 50 Division I seasons, averaging more than 6,800 fans;

Whereas the University of Minnesota Duluth never lost more than 1 game in a row, a first in program history; and

Whereas the University of Minnesota Duluth had 6 wins and 1 loss in the postseason, closing with 4 straight wins and beating the top 2 teams in the Eastern College Athletic Conference in the East Regional and the top 2 teams in the Central Collegiate Hockey Association in the Frozen Four: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the achievements of the players, coaches, students, and staff whose hard work and dedication helped the University of Minnesota Duluth win the 2011 NCAA Division I Men's Hockey National Championship; and

(2) recognizes University of Minnesota Duluth Chancellor Lendley Black and Athletic Director Bob Nielson, who have shown great leadership in bringing athletic success to the University of Minnesota Duluth.

SENATE RESOLUTION 152—DESIGNATING APRIL 30, 2011, AS ''DIA DE LOS NINOS: CELEBRATING YOUNG AMERICANS''

Mr. MENENDEZ (for himself, Mr. DURBIN, Mr. REID of Nevada, and Mr. LAUTENBERG) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 152

Whereas many nations throughout the world, and especially within the Western hemisphere, celebrate ''Dia de los Niños'', or ''Day of the Children'', on the 30th of April, in recognition and celebration of their country's future – their children;

Whereas children represent the hopes and dreams of the people of the United States and children are the center of families in the United States;

Whereas the people of the United States should nurture and invest in children to preserve and enhance economic prosperity, democracy, and the American spirit;

Whereas according to the 2010 Census report, there are more than 50,000,000 individuals of Hispanic descent living in the United States, more than 17,000,000 of whom are children;

Whereas Hispanics in the United States, the youngest and fastest growing ethnic community in the Nation, continue the tradition of honoring their children on Dia de los Niños, and wish to share this custom with the rest of the Nation;

Whereas the primary teachers of family values, morality, and culture are parents and family members, and we rely on children to pass on family values, morals, and culture to future generations;

Whereas the importance of literacy and education are most often communicated to children through family members;

Whereas families should be encouraged to engage in family and community activities that include extended and elderly family members, and that encourage children to explore and develop confidence;

Whereas the designation of a day to honor the children of the United States will help affirm for the people of the United States the significance of family, education, and community;

Whereas the designation of a day of special recognition for the children of the United States will provide an opportunity for children to reflect on their future, to articulate their aspirations, and to find comfort and security in the support of their family members and communities;

Whereas the National Latino Children's Institute, serving as a voice for children, has worked with cities throughout the Nation to declare April 30, 2011, to be ''Dia de los Niños: Celebrating Young Americans'', a day to bring together Hispanics and other communities nationwide to celebrate and uplift children; and

Whereas the children of a nation are the responsibility of all of its people, and people should be encouraged to celebrate the gifts of children to society: Now, therefore, be it

Resolved, That the Senate—

(1) designates April 30, 2011, as ''Dia de los Niños: Celebrating Young Americans''; and

(2) calls on the people of the United States to join with all children, families, organizations, communities, churches, cities, and States across the Nation to observe the day with appropriate ceremonies, including activities that—

(A) center around children, and are free or minimal in cost so as to encourage and facilitate the participation of all people;

(B) are positive and uplifting, and help children express their hopes and dreams;

(C) provide opportunities for children of all backgrounds to learn about one another's cultures and to share ideas;

(D) include all members of the family, especially extended and elderly family members, so as to promote greater communication among the generations within a family, enabling children to appreciate and benefit from the experiences and wisdom of their elderly family members;

(E) provide opportunities for families within a community to get acquainted; and

(F) provide children with the support they need to develop skills and confidence, and to find the inner strength and the will and fire of the human spirit to make their dreams come true.

SENATE RESOLUTION 153—RECOGNIZING THE 25TH ANNIVERSARY OF THE CHERNOBYL NUCLEAR DISASTER

Mr. LUGAR (for himself and Mr. KERRY) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 153

Whereas at 1:23 A.M. on April 26, 1986, during an experiment, a major explosion occurred at the Chernobyl Nuclear Power Plant in Unit 4, a RBMK 1000-type, graphite-moderated nuclear power reactor in Pripyat;

Whereas the initial explosion dispersed a stream of radioactive particles over nearby towns, farms, and eventually to many other countries;

Whereas 500,000 brave firefighters, engineers, technicians, and emergency workers worked for more than 6 months to minimize one of the worst civilian nuclear disasters in history;

Whereas radioactivity emanating from the Chernobyl disaster has been detected in Belarus, Poland, Russia, Scandinavia, and other areas;

Whereas since the disaster, serious health, environmental, and socioeconomic repercussions have been identified in many areas near the Chernobyl plant;

Whereas the Chernobyl Forum, an initiative by the International Atomic Energy Agency in cooperation with the World Health Organization, numerous United Nations agencies, and the governments of Ukraine, Belarus, and Russia, was launched in 2003 to examine the scientific evidence of human and environmental effects of the nuclear disaster at Chernobyl;

Whereas the Chernobyl Forum's examination of the catastrophe has contributed to the understanding of the effects caused by the nuclear disaster;

Whereas the Chernobyl Forum found that more than 5,000,000 people lived in ''contaminated'' areas in Ukraine, Belarus, Russia, and other countries;

Whereas the lives and wellness of people in the affected areas continue to be impacted by the catastrophic Chernobyl nuclear disaster;

Whereas the government of the United States, the people of the United States, and the international community have provided contributions to humanitarian organizations to address the effects of the Chernobyl disaster;

Whereas the Chernobyl Shelter Fund (CSF) was established in December 1997 by the G7, in cooperation with Ukraine;

Whereas the purpose of the CSF has been to construct a safe confinement over the damaged Chernobyl Unit 4 and to convert the site to a stable and environmentally safe condition;

Whereas the Nuclear Safety Account (NSA), supported by the United States and 16 other donors, finances the Interim Spent Fuel Storage Facility that allows for the decommissioning of Chernobyl Units 1 through 3;

Whereas April 26, 2011, is the 25th anniversary of the Chernobyl nuclear disaster; and

Whereas the ongoing crisis in Japan at the Fukushima nuclear power plant serves as a reminder to the United States and the international community of the need to make strong commitments to nuclear security throughout the world: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the 25th anniversary of the Chernobyl nuclear disaster and the courage of the Ukrainian people in persevering to address the consequences of the disaster;

(2) commends efforts to mitigate the consequences of the Chernobyl nuclear disaster, including the assistance that the United States and the international community have given to the Chernobyl Shelter Fund and the Interim Spent Fuel Storage Facility; and

(3) requests that the Secretary of the Senate transmit an enrolled copy of this resolution to the Ambassador of Ukraine to the United States.

SENATE RESOLUTION 154—DESIGNATING JULY 8, 2011, AS ''COLLECTOR CAR APPRECIATION DAY'' AND RECOGNIZING THAT THE COLLECTION AND RESTORATION OF HISTORIC AND CLASSIC CARS IS AN IMPORTANT PART OF PRESERVING THE TECHNOLOGICAL ACHIEVEMENTS AND CULTURAL HERITAGE OF THE UNITED STATES

Mr. TESTER (for himself and Mr. BURR) submitted the following resolution; which was considered and agreed to:

S. RES. 154

Whereas many people in the United States maintain classic automobiles as a pastime and do so with great passion and as a means of individual expression;

Whereas the Senate recognizes the effect that the more than 100-year history of the automobile has had on the economic progress of the Nation and supports wholeheartedly all activities involved in the restoration and exhibition of classic automobiles;

Whereas collection, restoration, and preservation of automobiles is an activity shared across generations and across all segments of society;

Whereas thousands of local car clubs and related businesses have been instrumental in preserving a historic part of the heritage of this Nation by encouraging the restoration and exhibition of such vintage works of art;

Whereas automotive restoration provides well-paying, high-skilled jobs for people in all 50 States; and

Whereas automobiles have provided the inspiration for music, photography, cinema, fashion, and other artistic pursuits that have become part of the popular culture of the United States: Now therefore, be it

Resolved, That the Senate—

(1) designates July 8, 2011, as ''Collector Car Appreciation Day'';

(2) recognizes that the collection and restoration of historic and classic cars is an important part of preserving the technological achievements and cultural heritage of the United States; and

(3) encourages the people of the United States to engage in events and commemorations of ''Collector Car Appreciation Day'' that create opportunities for collector car owners to educate young people on the importance of preserving the cultural heritage of the United States, including through the collection and restoration of collector cars.

SENATE RESOLUTION 155—DESIGNATING APRIL 23, 2011, AS ''NATIONAL ADOPT A LIBRARY DAY''

Mr. WEBB (for himself, Ms. SNOWE, Mr. COCHRAN, and Mr. WARNER) submitted the following resolution; which was considered and agreed to:

S. RES. 155

Whereas libraries are an essential part of the communities and the national system of education in the United States;

Whereas the people of the United States benefit significantly from libraries that serve as an open place for people of all ages and backgrounds to use books and other resources that offer pathways to learning, self-discovery, and the pursuit of knowledge;

Whereas the libraries of the United States depend on the generous donations and the support of individuals and groups to ensure that people who are unable to purchase books still have access to a wide variety of resources;

Whereas certain nonprofit organizations facilitate the donation of books to schools and libraries across the United States, in order to extend the joy of reading to millions of people in the United States and to prevent used books from being thrown away;

Whereas as of the date of agreement to this resolution, the libraries of the United States have provided valuable resources to individuals who are affected by the economic crisis by encouraging continued education and job training; and

Whereas several States that recognize the importance of libraries and reading have adopted resolutions commemorating April 23 as ''Adopt A Library Day'': Now, therefore, be it

Resolved, That the Senate—

(1) designates April 23, 2011, as ''National Adopt A Library Day'';

(2) honors the organizations that facilitate donations to schools and libraries;

(3) urges people in the United States who own unused books to donate such books to local libraries;

(4) strongly supports children and families who take advantage of the resources provided by schools and libraries; and

(5) encourages the people of the United States to observe ''National Adopt A Library Day'' with appropriate ceremonies and activities.

SENATE RESOLUTION 156—DESIGNATING APRIL 15 THROUGH 17, 2011, AS ''GLOBAL YOUTH SERVICE DAYS''

Ms. MURKOWSKI (for herself, Mr. BEGICH, Mrs. FEINSTEIN, Mr. UDALL of Colorado, Mr. AKAKA, Ms. MIKULSKI, Mr. LEVIN, Ms. STABENOW, Mr. COCHRAN, Mrs. MURRAY, and Mr. COONS) submitted the following resolution; which was considered and agreed to:

S. RES. 156

Whereas Global Youth Service Days is an annual campaign that celebrates and mobilizes the millions of young people who improve their communities each day through community service and service-learning programs;

Whereas the goals of Global Youth Service Days are—

(1) to mobilize and support young people to address the needs of their communities, their countries, and the world through community service and service-learning;

(2) to mobilize and support schools and organizations to provide meaningful opportunities for youth engagement;

(3) to educate the public, the media, and policymakers about the year-round contributions of young people as community leaders;

(4) to recognize and celebrate young people as community assets, resources, leaders, and problem-solvers; and

(5) to inspire and sustain a lifelong commitment to service and civic engagement;

Whereas Global Youth Service Days, a program of Youth Service America, is the largest service event in the world and the only service event dedicated to engaging young people ages 5 through 25;

Whereas, in 2011, Global Youth Service Days is being observed for the 23rd consecutive year in the United States and for the 12th year globally in more than 100 countries;

Whereas Global Youth Service Days provides an opportunity for young people to position themselves as assets, resources, active citizens, and community leaders through the application of their knowledge, idealism, energy, creativity, and unique perspective to improving their communities by addressing a myriad of critical issues, such as childhood obesity, illiteracy, hunger, environmental degradation, public safety, and disaster preparedness;

Whereas, in 2011, thousands of participants in schools and community-based organizations plan to hold Global Youth Service Days activities as part of a Semester of Service, an extended service-learning campaign launched on Martin Luther King, Jr. Day of Service, in which young people spend the semester addressing a meaningful community need connected to intentional learning goals or academic standards over the course of at least 70 hours;

Whereas Global Youth Service Days engages millions of young people worldwide with the support of the Global Youth Service Network of the Youth Service America, including more than 200 national and international partners, 100 State and local lead agencies, and thousands of local schools, afterschool programs, youth development organizations, community organizations, faith-based organizations, government agencies, businesses, neighborhood associations, and families;

Whereas, in 2011, Youth Service America intends to distribute more than $1,000,000 in grants to more than 800 projects led by young people, including State Farm GYSD Lead Agency and Good Neighbor grants, UnitedHealth Heroes grants, Sodexo Youth and Lead Organizer grants, Disney Friends for Change grants, Learn and Serve America STEMester of Service grants, NEA Youth Leaders for Literacy grants, and MLK Semester of Service Lead Organizer Grants;

Whereas high quality community service and service-learning programs increase—

(1) the academic engagement and achievement of young people;

(2) the workforce readiness and 21st century skills of young people;

(3) the civic knowledge and engagement of young people;

(4) the intercultural understanding and global citizenship of young people; and

(5) the connectedness and commitment of young people to their communities; and

Whereas section 198(g) of the National and Community Service Act of 1990 (42 U.S.C. 12653(g)) recognizes Global Youth Service Days as national days of service and calls on the Corporation for National and Community Service, other Federal agencies and departments, and the President of the United States to recognize and support youth-led activities on the designated days: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes and commends the significant contributions of young people of the United States and encourages the continued engagement and support of young people dedicated to serving their neighbors, their communities, and the United States;

(2) designates April 15 through 17, 2011, as ''Global Youth Service Days''; and

(3) calls on the people of the United States to observe Global Youth Service Days by—

(A) encouraging young people to participate in community service and service-learning projects and to join their peers in those projects;

(B) recognizing the volunteer efforts of the young people of the United States throughout the year; and

(C) supporting the volunteer efforts of young people and engaging them in meaningful community service, service-learning, and decision-making opportunities as an investment in the future of the United States.

SENATE RESOLUTION 157—DESIGNATING APRIL 21, 2011, AS ''POWERTALK 21 DAY''

Ms. KLOBUCHAR (for herself and Mr. VITTER) submitted the following resolution; which was considered and agreed to:

S. RES. 157

Whereas the goal of PowerTalk 21 Day is to encourage parents and caregivers to embrace their important role in influencing the decisions of the young people of the United States about drinking alcohol;

Whereas high school students who use alcohol or other substances are 5 times more likely to drop out of school or believe good grades are not important;

Whereas teen alcohol use kills about 6,000 people each year, more than all other illegal drugs combined; and

Whereas 74 percent of kids say that their parents are their primary influence when it comes to decisions about drinking alcohol: Now, therefore, be it

Resolved, That the Senate—

(1) designates April 21, 2011, as ''PowerTalk 21 Day'';

(2) recognizes the importance of parents talking with their teens about alcohol; and

(3) urges all people of the United States to join in the efforts to raise awareness of the importance of parents and teens talking together about alcohol in order to reduce the risks and dangers posed to teens and communities by underage drinking.

SENATE CONCURRENT RESOLUTION 13—HONORING THE SERVICE AND SACRIFICE OF MEMBERS OF THE UNITED STATES ARMED FORCES WHO ARE SERVING IN, OR HAVE SERVED IN, OPERATION ENDURING FREEDOM, OPERATION IRAQI FREEDOM, AND OPERATION NEW DAWN

Mr. ISAKSON (for himself, Mr. BEGICH, Mr. BOOZMAN, Mr. BROWN of Massachusetts, Mr. BURR, Mr. JOHANNS, Mr. MORAN, Mrs. MURRAY, Mr. SANDERS, and Mr. WEBB) submitted the following concurrent resolution; which was referred to the Committee on Armed Services:

S. CON. RES. 13

Whereas over 2,000,000 members of the United States Armed Forces have deployed to theaters of war since the commencement of Operation Enduring Freedom, Operation Iraqi Freedom, and Operation New Dawn;

Whereas hundreds of thousands of members of the United States Armed Forces have deployed for multiple tours of duty, leaving their homes, their families, and in many cases, their civilian jobs;

Whereas more than 5,500 members of the United States Armed Forces have made the ultimate sacrifice for the United States while serving in Iraq or Afghanistan;

Whereas tens of thousands of members of the United States Armed Forces have been seriously wounded in the line of duty while serving in Iraq or Afghanistan;

Whereas the members of the United States Armed Forces who have participated in Operation Enduring Freedom, Operation Iraqi Freedom, and Operation New Dawn have answered the call to duty of the United States, serving bravely and nobly and, in most cases, without fanfare or acclaim;

Whereas those members of the United States Armed Forces and veterans have personified the virtues of patriotism, service, duty, courage, and sacrifice; and

Whereas the people of the United States recognize the service and sacrifices made by those members of the United States Armed Forces and veterans, as well as their families: Now, therefore, be it

Resolved by the Senate (the House of Representatives concurring), That Congress—

(1) honors the members of the United States Armed Forces who are serving in, or have served in, Operation Enduring Freedom, Operation Iraqi Freedom, and Operation New Dawn; and

(2) calls on the people of the United States to reflect on the service of those members of the United States Armed Forces and veterans and to hold those members and veterans in a special place of honor, both now and in the future.

AMENDMENTS SUBMITTED AND PROPOSED

SA 295. Mr. PORTMAN submitted an amendment intended to be proposed by him to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table.

SA 296. Mr. PORTMAN submitted an amendment intended to be proposed to amendment SA 186 proposed by Mr. CORNYN to the bill S. 493, supra; which was ordered to lie on the table.

SA 297. Ms. SNOWE submitted an amendment intended to be proposed by her to the bill S. 493, supra; which was ordered to lie on the table.

SA 298. Ms. SNOWE submitted an amendment intended to be proposed by her to the bill S. 493, supra; which was ordered to lie on the table.

SA 299. Ms. SNOWE (for herself and Mr. COBURN) submitted an amendment intended to be proposed by her to the bill S. 493, supra; which was ordered to lie on the table.

SA 300. Mr. DEMINT submitted an amendment intended to be proposed to amendment SA 199 proposed by Mr. PAUL to the bill S. 493, supra; which was ordered to lie on the table.

SA 301. Mr. REID (for Ms. SNOWE) proposed an amendment to the resolution S. Res. 109, honoring and supporting women in North Africa and the Middle East whose bravery, compassion, and commitment to putting the wellbeing of others before their own have proven that courage can be contagious.

SA 302. Mr. REID (for Ms. SNOWE) proposed an amendment to the resolution S. Res. 109, supra.

TEXT OF AMENDMENTS

SA 295. Mr. PORTMAN submitted an amendment intended to be proposed by him to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. INCLUSION OF APPLICATION TO INDEPENDENT REGULATORY AGENCIES.

(a) IN GENERAL.—Section 421(1) of the Congressional Budget and Impoundment Control Act of 1974 (2 U.S.C. 658(1)) is amended by striking '', but does not include independent regulatory agencies''.

(b) EXEMPTION FOR MONETARY POLICY.—The Unfunded Mandates Reform Act of 1995 (2 U.S.C. 1501 et seq.) is amended by inserting after section 5 the following:

''SEC. 6. EXEMPTION FOR MONETARY POLICY.

''Nothing in title II, III, or IV shall apply to rules that concern monetary policy proposed or implemented by the Board of Governors of the Federal Reserve System or the Federal Open Market Committee.''.

SA 296. Mr. PORTMAN submitted an amendment intended to be proposed to amendment SA 186 proposed by Mr. CORNYN to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. _____. INCLUSION OF APPLICATION TO INDEPENDENT REGULATORY AGENCIES.

(a) IN GENERAL.—Section 421(1) of the Congressional Budget and Impoundment Control Act of 1974 (2 U.S.C. 658(1)) is amended by striking '', but does not include independent regulatory agencies''.

(b) EXEMPTION FOR MONETARY POLICY.—The Unfunded Mandates Reform Act of 1995 (2 U.S.C. 1501 et seq.) is amended by inserting after section 5 the following:

''SEC. 6. EXEMPTION FOR MONETARY POLICY.

''Nothing in title II, III, or IV shall apply to rules that concern monetary policy proposed or implemented by the Board of Governors of the Federal Reserve System or the Federal Open Market Committee.''.

SA 297. Ms. SNOWE submitted an amendment intended to be proposed by her to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table; as follows:

On page 89, strike line 18 and all that follows through page 91, line 6, and insert the following:

''(A) continue the most recent study under this section relating to the issues described in subparagraphs (A), (B), (C), and (E) of subsection (a)(1), except that, for purposes of this subparagraph, subparagraphs (A), (B), (C), and (E) of subsection (a)(1) shall be applied by substituting 'SBIR program and STTR program' for 'SBIR program' each place it appears;

''(B) evaluate, for the STTR program—

''(i) the partnerships created between small businesses and research institutions, including the number of new partnerships created, the effectiveness of partnerships in achieving technical objectives of research projects and the degree of difficulty or ease in negotiating details of cooperative research agreements, including issues relating to intellectual property rights; and

''(ii) the effectiveness of the program at transferring technology and capabilities developed by Federal funding from research institutions to small business concerns;

''(C) study the effectiveness of the government and public databases described in section 9(k) of the Small Business Act (15 U.S.C. 638(k)) in reducing vulnerabilities of the SBIR program and the STTR program to fraud, waste, and abuse, particularly with respect to Federal agencies funding duplicative proposals and business concerns falsifying information in proposals;

''(D) estimate, to the extent practicable, the number of jobs created by the SBIR programs and STTR programs of the agencies; and

''(E) make recommendations with respect to the issues described in subparagraphs (B) and (C) of this subparagraph and subparagraphs (A), (D), and (E) of subsection (a)(2), except that, for purposes of this subparagraph, subparagraphs (A), (D), and (E) of subsection (a)(2) shall be applied by substituting

'SBIR program and STTR program' for 'SBIR program' each place it appears.

''(2) CONSULTATION.—An agreement under paragraph (1) shall require the National Research Council to ensure there is participation by and consultation with the small business community, the Administration, and other interested parties as described in subsection (b).

''(3) REPORTING.—An agreement under paragraph (1) shall require that not later than 4 years after the date of enactment of the SBIR/STTR Reauthorization Act of 2011, and every 4 years thereafter, the National Research Council shall submit to the head of each agency entering into the agreement, the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business and the Committee on Science, Space, and Technology of the House of Representatives a report regarding the study conducted under paragraph (1) that contains the recommendations described in paragraph (1).''.

SA 298. Ms. SNOWE submitted an amendment intended to be proposed by her to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table; as follows:

On page 96, line 13, strike the quotation marks and the second period and insert the following:

''(4) REPORTS.—For each of the 3 full fiscal years beginning after the date of enactment of this subsection, each Federal agency that uses funds in accordance with this subsection shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Science, Space, and Technology and the Committee on Small Business of the House of Representatives a report that includes—

''(A) the total amount used in accordance with this subsection; and

''(B) the amount used for each of the activities described in subparagraphs (A) through (K) of paragraph (1).''.

SA 299. Ms. SNOWE (for herself and Mr. COBURN) submitted an amendment intended to be proposed by her to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE—SMALL BUSINESS REGULATORY FREEDOM

SEC. __01. FINDINGS.

Congress finds the following:

(1) A vibrant and growing small business sector is critical to the recovery of the economy of the United States.

(2) Regulations designed for application to large-scale entities have been applied uniformly to small businesses and other small entities, sometimes inhibiting the ability of small entities to create new jobs.

(3) Uniform Federal regulatory and reporting requirements in many instances have imposed on small businesses and other small entities unnecessary and disproportionately burdensome demands, including legal, accounting, and consulting costs, thereby threatening the viability of small entities and the ability of small entities to compete and create new jobs in a global marketplace.

(4) Since 1980, Federal agencies have been required to recognize and take account of the differences in the scale and resources of regulated entities, but in many instances have failed to do so.

(5) In 2009, there were nearly 70,000 pages in the Federal Register, and, according to research by the Office of Advocacy of the Small Business Administration, the annual cost of Federal regulations totals $1,750,000,000,000. Small firms bear a disproportionate burden, paying approximately 36 percent more per employee than larger firms in annual regulatory compliance costs.

(6) All agencies in the Federal Government should fully consider the costs, including indirect economic impacts and the potential for job loss, of proposed rules, periodically review existing regulations to determine their impact on small entities, and repeal regulations that are unnecessarily duplicative or have outlived their stated purpose.

(7) It is the intention of Congress to amend chapter 6 of title 5, United States Code, to ensure that all impacts, including foreseeable indirect effects, of proposed and final rules are considered by agencies during the rulemaking process and that the agencies assess a full range of alternatives that will limit adverse economic consequences, enhance economic benefits, and fully address potential job loss.

SEC. __02. INCLUDING INDIRECT ECONOMIC IMPACT IN SMALL ENTITY ANALYSES.

Section 601 of title 5, United States Code, is amended by adding at the end the following:

''(9) the term 'economic impact' means, with respect to a proposed or final rule—

''(A) the economic effects on small entities directly regulated by the rule; and

''(B) the reasonably foreseeable economic effects of the rule on small entities that—

''(i) purchase products or services from, sell products or services to, or otherwise conduct business with entities directly regulated by the rule;

''(ii) are directly regulated by other governmental entities as a result of the rule; or

''(iii) are not directly regulated by the agency as a result of the rule but are otherwise subject to other agency regulations as a result of the rule.''.

SEC. __03. JUDICIAL REVIEW TO ALLOW SMALL ENTITIES TO CHALLENGE PROPOSED REGULATIONS.

Section 611(a) of title 5, United States Code, is amended—

(1) in paragraph (1), by inserting ''603,'' after ''601,'';

(2) in paragraph (2), by inserting ''603,'' after ''601,'';

(3) by striking paragraph (3) and inserting the following:

''(3) A small entity may seek such review during the 1-year period beginning on the date of final agency action, except that—

''(A) if a provision of law requires that an action challenging a final agency action be commenced before the expiration of 1 year, the lesser period shall apply to an action for judicial review under this section; and

''(B) in the case of noncompliance with section 603 or 605(b), a small entity may seek judicial review of agency compliance with such section before the close of the public comment period.''; and

(4) in paragraph (4)—

(A) in subparagraph (A), by striking '', and'' and inserting a semicolon;

(B) in subparagraph (B), by striking the period and inserting ''; or''; and

(C) by adding at the end the following:

''(C) issuing an injunction prohibiting an agency from taking any agency action with respect to a rulemaking until that agency is in compliance with the requirements of section 603 or 605.''.

SEC. __04. PERIODIC REVIEW.

Section 610 of title 5, United States Code, is amended to read as follows:

''§ 610. Periodic review of rules

''(a)(1) Not later than 180 days after the date of enactment of the SBIR/STTR Reauthorization Act of 2011, each agency shall establish a plan for the periodic review of—

''(A) each rule issued by the agency that the head of the agency determines has a significant economic impact on a substantial number of small entities, without regard to whether the agency performed an analysis under section 604 with respect to the rule; and

''(B) any small entity compliance guide required to be published by the agency under section 212 of the Small Business Regulatory Enforcement Fairness Act of 1996 (5 U.S.C. 601 note).

''(2) In reviewing rules and small entity compliance guides under paragraph (1), the agency shall determine whether the rules and guides should—

''(A) be amended or rescinded, consistent with the stated objectives of applicable statutes, to minimize any significant adverse economic impacts on a substantial number of small entities (including an estimate of any adverse impacts on job creation and employment by small entities); or

''(B) continue in effect without change.

''(3) Each agency shall publish the plan established under paragraph (1) in the Federal Register and on the Web site of the agency.

''(4) An agency may amend the plan established under paragraph (1) at any time by publishing the amendment in the Federal Register and on the Web site of the agency.

''(b) Each plan established under subsection (a) shall provide for—

''(1) the review of each rule and small entity compliance guide described in subsection (a)(1) in effect on the date of enactment of the SBIR/STTR Reauthorization Act of 2011—

''(A) not later than 9 years after the date of publication of the plan in the Federal Register; and

''(B) every 9 years thereafter; and

''(2) the review of each rule adopted and small entity compliance guide described in subsection (a)(1) that is published after the date of enactment of the SBIR/STTR Reauthorization Act of 2011—

''(A) not later than 9 years after the publication of the final rule in the Federal Register; and

''(B) every 9 years thereafter.

''(c) In reviewing rules under the plan required under subsection (a), the agency shall consider—

''(1) the continued need for the rule;

''(2) the nature of complaints received by the agency from small entities concerning the rule;

''(3) comments by the Regulatory Enforcement Ombudsman and the Chief Counsel for Advocacy of the Small Business Administration;

''(4) the complexity of the rule;

''(5) the extent to which the rule overlaps, duplicates, or conflicts with other Federal rules and, unless the head of the agency determines it to be infeasible, State and local rules;

''(6) the contribution of the rule to the cumulative economic impact of all Federal rules on the class of small entities affected by the rule, unless the head of the agency determines that such a calculation cannot be made;

''(7) the length of time since the rule has been evaluated, or the degree to which technology, economic conditions, or other factors have changed in the area affected by the rule; and

''(8) the economic impact of the rule, including—

''(A) the estimated number of small entities to which the rule will apply;

''(B) the estimated number of small entity jobs that will be lost or created due to the rule; and

''(C) the projected reporting, recordkeeping, and other compliance requirements of the proposed rule, including—

''(i) an estimate of the classes of small entities that will be subject to the requirement; and

''(ii) the type of professional skills necessary for preparation of the report or record.

''(d)(1) Each agency shall submit an annual report regarding the results of the review required under subsection (a) to—

''(A) Congress; and

''(B) in the case of an agency that is not an independent regulatory agency (as defined in section 3502(5) of title 44), the Administrator of the Office of Information and Regulatory Affairs of the Office of Management and Budget.

''(2) Each report required under paragraph (1) shall include a description of any rule or guide with respect to which the agency made a determination of infeasibility under paragraph (5) or (6) of subsection (c), together with a detailed explanation of the reasons for the determination.

''(e) Each agency shall publish in the Federal Register and on the Web site of the agency a list of the rules and small entity compliance guides to be reviewed under the plan required under subsection (a) that includes—

''(1) a brief description of each rule or guide;

''(2) for each rule, the reason why the head of the agency determined that the rule has a significant economic impact on a substantial number of small entities (without regard to whether the agency had prepared a final regulatory flexibility analysis for the rule); and

''(3) a request for comments from the public, the Chief Counsel for Advocacy of the Small Business Administration, and the Regulatory Enforcement Ombudsman concerning the enforcement of the rules or publication of the guides.

''(f)(1) Not later than 6 months after each date described in subsection (b)(1), the Inspector General for each agency shall—

''(A) determine whether the agency has conducted the review required under subsection (b) appropriately; and

''(B) notify the head of the agency of—

''(i) the results of the determination under subparagraph (A); and

''(ii) any issues preventing the Inspector General from determining that the agency has conducted the review under subsection (b) appropriately.

''(2)(A) Not later than 6 months after the date on which the head of an agency receives a notice under paragraph (1)(B) that the agency has not conducted the review under subsection (b) appropriately, the agency shall address the issues identified in the notice.

''(B) Not later than 30 days after the last day of the 6-month period described in subparagraph (A), the Inspector General for an agency that receives a notice described in subparagraph (A) shall—

''(i) determine whether the agency has addressed the issues identified in the notice; and

''(ii) notify Congress if the Inspector General determines that the agency has not addressed the issues identified in the notice; and

''(C) Not later than 30 days after the date on which the Inspector General for an agency transmits a notice under subparagraph (B)(ii), an amount equal to 1 percent of the amount appropriated for the fiscal year to the appropriations account of the agency that is used to pay salaries shall be rescinded.

''(D) Nothing in this paragraph may be construed to prevent Congress from acting to prevent a rescission under subparagraph (C).''.

SEC. __05. REQUIRING SMALL BUSINESS REVIEW PANELS FOR ADDITIONAL AGENCIES.

(a) AGENCIES.—Section 609 of title 5, United States Code, is amended—

(1) in subsection (b)—

(A) by striking ''a covered agency'' the first place it appears and inserting ''an agency designated under subsection (d)''; and

(B) by striking ''a covered agency'' each place it appears and inserting ''the agency'';

(2) by striking subsection (d), as amended by section 1100G(a) of Public Law 111–203 (124 Stat. 2112), and inserting the following:

''(d)(1)(A) On and after the date of enactment of the SBIR/STTR Reauthorization Act of 2011, the Environmental Protection Agency and the Occupational Safety and Health Administration of the Department of Labor shall be—

''(i) agencies designated under this subsection; and

''(ii) subject to the requirements of subsection (b).

''(B) On and after the designated transfer date established under section 1062 of Public Law 111–203 (12 U.S.C. 5582), the Bureau of Consumer Financial Protection shall be—

''(i) an agency designated under this subsection; and

''(ii) subject to the requirements of subsection (b).

''(2) The Chief Counsel for Advocacy shall designate as agencies that shall be subject to the requirements of subsection (b) on and after the date of the designation—

''(A) 3 agencies for the first year after the date of enactment of the SBIR/STTR Reauthorization Act of 2011;

''(B) in addition to the agencies designated under subparagraph (A), 3 agencies for the second year after the date of enactment of the SBIR/STTR Reauthorization Act of 2011; and

''(C) in addition to the agencies designated under subparagraphs (A) and (B), 3 agencies for the third year after the date of enactment of the SBIR/STTR Reauthorization Act of 2011.

''(3) The Chief Counsel for Advocacy shall designate agencies under paragraph (2) based on the economic impact of the rules of the agency on small entities, beginning with agencies with the largest economic impact on small entities.''; and

(3) in subsection (e)(1), by striking ''the covered agency'' and inserting ''the agency''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) SECTION 603.—Section 603(d) of title 5, United States Code, as added by section 1100G(b) of Public Law 111–203 (124 Stat. 2112), is amended—

(A) in paragraph (1), by striking ''a covered agency, as defined in section 609(d)(2)'' and inserting ''the Bureau of Consumer Financial Protection''; and

(B) in paragraph (2), by striking ''A covered agency, as defined in section 609(d)(2),'' and inserting ''The Bureau of Consumer Financial Protection''.

(2) SECTION 604.—Section 604(a) of title 5, United States Code, is amended—

(A) by redesignating the second paragraph designated as paragraph (6) (relating to covered agencies), as added by section 1100G(c)(3) of Public Law 111–203 (124 Stat. 2113), as paragraph (7); and

(B) in paragraph (7), as so redesignated—

(i) by striking ''a covered agency, as defined in section 609(d)(2)'' and inserting ''the Bureau of Consumer Financial Protection''; and

(ii) by striking ''the agency'' and inserting ''the Bureau''.

(3) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the date of enactment of this Act and apply on and after the designated transfer date established under section 1062 of Public Law 111–203 (12 U.S.C. 5582).

SEC. __06. EXPANDING THE REGULATORY FLEXIBILITY ACT TO AGENCY GUIDANCE DOCUMENTS.

Section 601(2) of title 5, United States Code, is amended by inserting after ''public comment'' the following: ''and any significant guidance document, as defined in the Office of Management and Budget Final Bulletin for Agency Good Guidance Procedures (72 Fed. Reg. 3432; January 25, 2007)''.

SEC. __07. REQUIRING THE INTERNAL REVENUE SERVICE TO CONSIDER SMALL ENTITY IMPACT.

(a) IN GENERAL.—Section 603(a) of title 5, United States Code, is amended, in the fifth sentence, by striking ''but only'' and all that follows through the period at the end and inserting ''but only to the extent that such interpretative rules, or the statutes upon which such rules are based, impose on small entities a collection of information requirement or a recordkeeping requirement.''.

(b) DEFINITIONS.—Section 601 of title 5, United States Code, as amended by section 3 of this Act, is amended—

(1) in paragraph (6), by striking ''and'' at the end; and

(2) by striking paragraphs (7) and (8) and inserting the following:

''(7) the term 'collection of information' has the meaning given that term in section 3502(3) of title 44;

''(8) the term 'recordkeeping requirement' has the meaning given that term in section 3502(13) of title 44; and''.

SEC. __08. REPORTING ON ENFORCEMENT ACTIONS RELATING TO SMALL ENTITIES.

Section 223 of the Small Business Regulatory Enforcement Fairness Act of 1996 (5 U.S.C. 601 note) is amended—

(1) in subsection (a)—

(A) by striking ''Each agency'' and inserting the following:

''(1) ESTABLISHMENT OF POLICY OR PROGRAM.—Each agency''; and

(B) by adding at the end the following:

''(2) REVIEW OF CIVIL PENALTIES.—Not later than 2 years after the date of enactment of the SBIR/STTR Reauthorization Act of 2011, and every 2 years thereafter, each agency regulating the activities of small entities shall review the civil penalties imposed by the agency for violations of a statutory or regulatory requirement by a small entity to determine whether a reduction or waiver of the civil penalties is appropriate.''; and

(2) in subsection (c)—

(A) by striking ''Agencies shall report'' and all that follows through ''the scope'' and inserting ''Not later than 2 years after the date of enactment of the SBIR/STTR Reauthorization Act of 2011, and every 2 years thereafter, each agency shall submit to the Committee on Small Business and Entrepreneurship and the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Small Business and the Committee on the Judiciary of the House of Representatives a report discussing the scope''; and

(B) by striking ''and the total amount of penalty reductions and waivers'' and inserting ''the total amount of penalty reductions and waivers, and the results of the most recent review under subsection (a)(2)''.

SEC. __09. REQUIRING MORE DETAILED SMALL ENTITY ANALYSES.

(a) INITIAL REGULATORY FLEXIBILITY ANALYSIS.—Section 603 of title 5, United States Code, as amended by section 1100G(b) of Public Law 111–203 (124 Stat. 2112), is amended—

(1) by striking subsection (b) and inserting the following:

''(b) Each initial regulatory flexibility analysis required under this section shall contain a detailed statement—

''(1) describing the reasons why action by the agency is being considered;

''(2) describing the objectives of, and legal basis for, the proposed rule;

''(3) estimating the number and type of small entities to which the proposed rule will apply;

''(4) describing the projected reporting, recordkeeping, and other compliance requirements of the proposed rule, including an estimate of the classes of small entities which will be subject to the requirement and the type of professional skills necessary for preparation of the report and record;

''(5) describing all relevant Federal rules which may duplicate, overlap, or conflict with the proposed rule, or the reasons why such a description could not be provided; and

''(6) estimating the additional cumulative economic impact of the proposed rule on small entities, including job loss by small entities, beyond that already imposed on the class of small entities by the agency, or the reasons why such an estimate is not available.''; and

(2) by adding at the end the following:

''(e) An agency shall notify the Chief Counsel for Advocacy of the Small Business Administration of any draft rules that may have a significant economic impact on a substantial number of small entities—

''(1) when the agency submits a draft rule to the Office of Information and Regulatory Affairs of the Office of Management and Budget under Executive Order 12866, if that order requires the submission; or

''(2) if no submission to the Office of Information and Regulatory Affairs is required—

''(A) a reasonable period before publication of the rule by the agency; and

''(B) in any event, not later than 3 months before the date on which the agency publishes the rule.''.

(b) FINAL REGULATORY FLEXIBILITY ANALYSIS.—

(1) IN GENERAL.—Section 604(a) of title 5, United States Code, is amended—

(A) by inserting ''detailed'' before ''description'' each place it appears;

(B) in paragraph (2)—

(i) by inserting ''detailed'' before ''statement'' each place it appears; and

(ii) by inserting ''(or certification of the proposed rule under section 605(b))'' after ''initial regulatory flexibility analysis'';

(C) in paragraph (4), by striking ''an explanation'' and inserting ''a detailed explanation''; and

(D) in paragraph (6) (relating to a description of steps taken to minimize significant economic impact), as added by section 1601 of the Small Business Jobs Act of 2010 (Public Law 111–240; 124 Stat. 2251), by inserting ''detailed'' before ''statement''.

(2) PUBLICATION OF ANALYSIS ON WEB SITE, ETC.—Section 604(b) of title 5, United States Code, is amended to read as follows:

''(b) The agency shall—

''(1) make copies of the final regulatory flexibility analysis available to the public, including by publishing the entire final regulatory flexibility analysis on the Web site of the agency; and

''(2) publish in the Federal Register the final regulatory flexibility analysis, or a summary of the analysis that includes the telephone number, mailing address, and address of the Web site where the complete final regulatory flexibility analysis may be obtained.''.

(c) CROSS-REFERENCES TO OTHER ANALYSES.—Section 605(a) of title 5, United States Code, is amended to read as follows:

''(a) A Federal agency shall be deemed to have satisfied a requirement regarding the content of a regulatory flexibility agenda or regulatory flexibility analysis under section 602, 603, or 604, if the Federal agency provides in the agenda or regulatory flexibility analysis a cross-reference to the specific portion of an agenda or analysis that is required by another law and that satisfies the requirement under section 602, 603, or 604.''.

(d) CERTIFICATIONS.—Section 605(b) of title 5, United States Code, is amended, in the second sentence, by striking ''statement providing the factual'' and inserting ''detailed statement providing the factual and legal''.

(e) QUANTIFICATION REQUIREMENTS.—Section 607 of title 5, United States Code, is amended to read as follows:

''§ 607. Quantification requirements

''In complying with sections 603 and 604, an agency shall provide—

''(1) a quantifiable or numerical description of the effects of the proposed or final rule, including an estimate of the potential for job loss, and alternatives to the proposed or final rule; or

''(2) a more general descriptive statement regarding the potential for job loss and a detailed statement explaining why quantification under paragraph (1) is not practicable or reliable.''.

SEC. __10. ENSURING THAT AGENCIES CONSIDER SMALL ENTITY IMPACT DURING THE RULEMAKING PROCESS.

Section 605(b) of title 5, United States Code, is amended—

(1) by inserting ''(1)'' after ''(b)''; and

(2) by adding at the end the following:

''(2) If, after publication of the certification required under paragraph (1), the head of the agency determines that there will be a significant economic impact on a substantial number of small entities, the agency shall comply with the requirements of section 603 before the publication of the final rule, by—

''(A) publishing an initial regulatory flexibility analysis for public comment; or

''(B) re-proposing the rule with an initial regulatory flexibility analysis.

''(3) The head of an agency may not make a certification relating to a rule under this subsection, unless the head of the agency has determined—

''(A) the average cost of the rule for small entities affected or reasonably presumed to be affected by the rule;

''(B) the number of small entities affected or reasonably presumed to be affected by the rule; and

''(C) the number of affected small entities for which that cost will be significant.

''(4) Before publishing a certification and a statement providing the factual basis for the certification under paragraph (1), the head of an agency shall—

''(A) transmit a copy of the certification and statement to the Chief Counsel for Advocacy of the Small Business Administration; and

''(B) consult with the Chief Counsel for Advocacy of the Small Business Administration on the accuracy of the certification and statement.''.

SEC. __11. ADDITIONAL POWERS OF THE OFFICE OF ADVOCACY.

Section 203 of Public Law 94–305 (15 U.S.C. 634c) is amended—

(1) in paragraph (5), by striking ''and'' at the end;

(2) in paragraph (6), by striking the period at the end and inserting ''; and''; and

(3) by inserting after paragraph (6) the following:

''(7) at the discretion of the Chief Counsel for Advocacy, comment on regulatory action by an agency that affects small businesses, without regard to whether the agency is required to file a notice of proposed rulemaking under section 553 of title 5, United States Code, with respect to the action.''.

SEC. __12. FUNDING AND OFFSETS.

(a) AUTHORIZATION.—There are authorized to be appropriated to the Small Business Administration, for any costs of carrying out this title and the amendments made by this title (including the costs of hiring additional employees)—

(1) $1,000,000 for fiscal year 2012;

(2) $2,000,000 for fiscal year 2013; and

(3) $3,000,000 for fiscal year 2014.

(b) REPEALS.—In order to offset the costs of carrying out this title and the amendments made by this title and to reduce the Federal deficit, the following provisions of law are repealed, effective on the date of enactment of this Act:

(1) Section 21(n) of the Small Business Act (15 U.S.C. 648).

(2) Section 27 of the Small Business Act (15 U.S.C. 654).

(3) Section 1203(c) of the Energy Security and Efficiency Act of 2007 (15 U.S.C. 657h(c)).

SEC. __13. TECHNICAL AND CONFORMING AMENDMENTS.

(a) HEADING.—Section 605 of title 5, United States Code, is amended in the section heading by striking ''**Avoidance**'' and all that follows and inserting the following: ''**Incorporations by reference and certification.**''.

(b) TABLE OF SECTIONS.—The table of sections for chapter 6 of title 5, United States Code, is amended—

(1) by striking the item relating to section 605 and inserting the following:

''605. Incorporations by reference and certifications.'';

and

(2) by striking the item relating to section 607 inserting the following:

''607. Quantification requirements.''.

SA 300. Mr. DEMINT submitted an amendment intended to be proposed to amendment SA 199 proposed by Mr. PAUL to the bill S. 493, to reauthorize and improve the SBIR and STTR programs, and for other purposes; which was ordered to lie on the table; as follows:

On page 6 of the amendment, after line 12, add the following:

SEC. __26. NATIONAL SECURITY WAIVER.

(a) NATIONAL SECURITY WAIVER.—The funding restrictions in sections 6, 8, 10, and 16 may be waived by the Secretary of Defense for programs or activities determined by the Secretary to be vital to the national security of the United States.

(b) CONGRESSIONAL EARMARKS OFFSET.—

(1) IN GENERAL.—Any language specifying an earmark in an appropriations Act for fiscal year 2010, or in a committee report or joint explanatory statement accompanying such an Act, shall have no legal effect.

(2) DEFINITION.—For purposes of this subsection, the term ''earmark'' means a congressional earmark or congressionally directed spending item, as defined in clause 9(e) of rule XXI of the Rules of the House of Representatives and paragraph 5(a) of rule XLIV.

(3) REDUCTION REQUIRED.—Any funds appropriated in fiscal year 2011 to any program shall be reduced by the total amount of congressional earmarks or congressionally directed spending items contained within a committee report or jointly explanatory statement accompanying such an Act that provided appropriations to the program in fiscal year 2010.

(4) RESCISSION.—The amounts reduced by paragraph (3) are rescinded and returned to the Treasury.

(5) PRIOR LAW.—Paragraphs (3) and (4) shall not apply to any programs or accounts that were reduced in the same manner by the Further Continuing Appropriations Amendments, 2011 (Public Law 112–4) or any other Act that takes effect prior to date of enactment of this Act.

SA 301. Mr. REID (for Ms. SNOWE) proposed an amendment to the resolution S. Res. 109, honoring and supporting women in North Africa and the Middle East whose bravery, compassion, and commitment to putting the wellbeing of others before their own have proven that courage can be contagious; as follows:

On page 4, beginning on line 12, strike ''and supports'' and all that follows through ''these rights'' on line 14.

SA 302. Mr. REID (for Ms. SNOWE) proposed an amendment to the resolution S. Res. 109, honoring and supporting women in North Africa and the Middle East whose bravery, compassion, and commitment to putting the wellbeing of others before their own have proven that courage can be contagious; as follows:

In the ninth whereas clause of the preamble, strike ''the United Nations Security Council and''.

NOTICE OF INTENT

Mr. DEMINT. Mr. President, I submit the following notice in writing: In accordance with Rule V of the Standing Rules of the Senate, I hereby give notice in writing that it is my intention to move to suspend rule XXII, Paragraph 2, for the purpose of proposing and considering DeMint Amendment No. 165 to S. 493, including germaneness requirements.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ENVIRONMENT AND PUBLIC WORKS

Mrs. BOXER. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works be authorized to meet during the session of the Senate on April 14, 2011.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mrs. BOXER. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on April 14, 2011.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mrs. BOXER. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on April 14, 2011, at 2:30 p.m., to hold a hearing entitled, ''Assessing the FY 2012 Budget for Africa.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mrs. BOXER. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on April 14, 2011, at 10 a.m., to conduct a hearing entitled, ''Federal Regulation: How Best to Advance the Public Interest?''.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON INDIAN AFFAIRS

Mrs. BOXER. Mr. President, I ask unanimous consent that the Committee on Indian Affairs be authorized to meet during the session of the Senate on April 14, 2011, at 2:15 p.m., in room 628 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mrs. BOXER. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on April 14, 2011, at 10 a.m., in SD–226 of the Dirksen Senate Office Building, to conduct an exective business meeting.

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mrs. BOXER. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on April 14, 2011, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. LEE. Mr. President, I ask unanimous consent that the privilege of the floor be granted to Mitchell McBride, an intern on my staff.

The PRESIDING OFFICER. Without objection, it is so ordered.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to executive session to consider the following nominations: Calendar Nos. 59, 60, 63, 64, 65, 66, 68, 85, 87, 88, 89, 90, 91, 92, 93, 94, 96, 98, 99, 100, 101, 104, 105, and all the nominations on the Secretary's desk in the Marine Corps, Army, Navy, and Air Force; that the nominations be confirmed en bloc, the motions to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order to any of the nominations; that any statements related to the nominations be printed in the RECORD; that President Obama be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

The nominations considered and confirmed are as follows:

OFFICE OF SPECIAL COUNSEL

Carolyn N. Lerner, of Maryland, to be Special Counsel, Office of Special Counsel, for the term of five years.

NATIONAL SCIENCE FOUNDATION

Kelvin K. Droegemeier, of Oklahoma, to be a Member of the National Science Board, National Science Foundation for a term expiring May 10, 2016.

DEPARTMENT OF COMMERCE

Kathryn D. Sullivan, of Ohio, to be an Assistant Secretary of Commerce.

MARINE MAMMAL COMMISSION

Frances M.D. Gulland, of California, to be a Member of the Marine Mammal Commission for a term expiring May 13, 2012.

DEPARTMENT OF TRANSPORTATION

Ann D. Begeman, of Virginia, to be a Member of the Surface Transportation Board for a term expiring December 31, 2015.

FEDERAL MARITIME COMMISSION

Mario Cordero, of California, to be a Federal Maritime Commissioner for the term expiring June 30, 2014.

Rebecca F. Dye, of North Carolina, to be a Federal Maritime Commissioner for the term expiring June 30, 2015.

DEPARTMENT OF ENERGY

Peter Bruce Lyons, of New Mexico, to be an Assistant Secretary of Energy (Nuclear Energy).

DEPARTMENT OF STATE

Nils Maarten Parin Daulaire, of Virginia, to be Representative of the United States on the Executive Board of the World Health Organization.

Joseph M. Torsella, of Pennsylvania, to be Representative of the United States of America to the United Nations for U.N. Management and Reform, with the rank of Ambassador.

Joseph M. Torsella, of Pennsylvania, to be Alternate Representative of the United States of America to the Sessions of the General Assembly of the United Nations, during his tenure of service as Representative of the United States of America to the United Nations for U.N. Management and Reform.

Kurt Walter Tong, of Maryland, a Career Member of the Senior Foreign Service, Class of Counselor, for the rank of Ambassador during his tenure of service as United States Senior Official for the Asia-Pacific Economic Cooperation (APEC) Forum.

Suzan D. Johnson Cook, of New York, to be Ambassador at Large for International Religious Freedom.

Robert Patterson, of New York, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Turkmenistan.

Jonathan Scott Gration, of New Jersey, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Kenya.

Michelle D. Gavin, of the District of Columbia, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Botswana.

DEPARTMENT OF HOMELAND SECURITY

Rafael Borras, of Maryland, to be Under Secretary for Management, Department of Homeland Security.

IN THE ARMY

The following named officer for appointment in the United States Army to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be general

Lt. Gen. Robert W. Cone

IN THE AIR FORCE

The following named officer for appointment in the United States Air Force to the

grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. David S. Fadok

IN THE ARMY

The following named officer for appointment in the United States Army to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be general

Lt. Gen. David M. Rodriguez

The following named officers for appointment in the United States Army to the grade indicated under title 10, U.S.C., sections 624 and 3064:

To be brigadier general

Colonel Norvell V. Coots
Colonel Dennis D. Doyle
Colonel Brian C. Lein

EXECUTIVE OFFICE OF THE PRESIDENT

Katharine G. Abraham, of Iowa, to be a Member of the Council of Economic Advisers, vice Christina Duckworth Romer.

Carl Shapiro, of California, to be a Member of the Council of Economic Advisers.

NOMINATIONS PLACED ON THE SECRETARY'S DESK

IN THE AIR FORCE

PN365 AIR FORCE nominations (52) beginning TRAVIS R. ADAMS, and ending ILAINA M. WINGLER, which nominations were received by the Senate and appeared in the Congressional Record of March 30, 2011.

PN366 AIR FORCE nominations (109) beginning FREDERICK C. ABAN, and ending CATHERINE L. WYNN, which nominations were received by the Senate and appeared in the Congressional Record of March 30, 2011.

PN381 AIR FORCE nominations (2) beginning ALLAN K. DOAN, and ending ANDREW L. WRIGHT, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN382 AIR FORCE nominations (4) beginning BUDI R. BAHUREKSA, and ending MUHAMMAD A. SHEIKH, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

IN THE ARMY

PN353 ARMY nomination of Michael K. Pyle, which was received by the Senate and appeared in the Congressional Record of March 16, 2011.

PN354 ARMY nomination of Janet Manning, which was received by the Senate and appeared in the Congressional Record of March 16, 2011.

PN355 ARMY nominations (58) beginning JOHN H. BARKEMEYER, and ending D010566, which nominations were received by the Senate and appeared in the Congressional Record of March 16, 2011.

PN368 ARMY nominations (3) beginning MICHAEL G. POND, and ending WILLIAM M. STEPHENS, which nominations were received by the Senate and appeared in the Congressional Record of March 30, 2011.

PN383 ARMY nomination of Juan J. Derojas, which was received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN384 ARMY nomination of David S. Goins, which was received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN385 ARMY nomination of Kimberly A. Speck, which was received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN386 ARMY nomination of Lyndall J. Soule, which was received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN387 ARMY nominations (2) beginning JAMES J. HOULIHAN, and ending JASON S. KIM, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN388 ARMY nominations (3) beginning JOSHUA P. STAUFFER, and ending BRIDGET C. WOLFE, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN389 ARMY nominations (3) beginning EDWIN ROBINS, and ending JEFFREY M. TIEDE, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN390 ARMY nominations (4) beginning RICHARD J. SCHOONMAKER, and ending EDWARD W. LUMPKINS, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN391 ARMY nominations (4) beginning JOHN H. BORDES, and ending EDNA J. SMITH, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN392 ARMY nominations (13) beginning RICHARD R. JORDAN, and ending APRIL B. TURNER, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN424 ARMY nominations (5) beginning CARLSON A. BRADLEY, and ending SYLVESTER E. WALLER, which nominations were received by the Senate and appeared in the Congressional Record of April 8, 2011.

IN THE MARINE CORPS

PN194 MARINE CORPS nominations (2) beginning Peter G. Bailiff, and ending Timothy D. Sechrest, which nominations were received by the Senate and appeared in the Congressional Record of February 2, 2011.

PN266 MARINE CORPS nominations (139) beginning JOE H. ADKINS, JR., and ending JAMES B. ZIENTEK, which nominations were received by the Senate and appeared in the Congressional Record of February 16, 2011.

IN THE NAVY

PN371 NAVY nomination of Medrina B. Gilliam, which was received by the Senate and appeared in the Congressional Record of March 30, 2011.

PN393 NAVY nomination of David S. Plurad, which was received by the Senate and appeared in the Congressional Record of March 31, 2011.

PN394 NAVY nominations (3) beginning JAMES P. KITZMILLER, and ending JONATHAN D. SZCZESNY, which nominations were received by the Senate and appeared in the Congressional Record of March 31, 2011.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will resume legislative session.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. REID. Mr. President, I ask unanimous consent that on Monday, May 2, 2011, at 4:30 p.m., the Senate proceed to executive session to consider the following nominations: Calendar Nos. 74 and 76; that there be 1 hour of debate equally divided in the usual form; that upon the use or yielding back of time, Calendar No. 74 be confirmed and the Senate proceed to vote without intervening action or debate on Calendar No. 76; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order to any of the nominations; that any statements related to the nominations be printed in the RECORD; that the President be immediately notified of the Senate's action, and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

CONDITIONAL ADJOURNMENT OF THE HOUSE OF REPRESENTATIVES AND CONDITIONAL RECESS OR ADJOURNMENT OF THE SENATE

Mr. REID. I ask unanimous consent that the Senate proceed to H. Con. Res. 43.

The PRESIDING OFFICER. The clerk will report the concurrent resolution by title.

The assistant legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 43) providing for a conditional adjournment of the House of Representatives and a conditional recess or adjournment of the Senate.

There being no objection, the Senate proceeded to consider the concurrent resolution.

Mr. REID. I ask unanimous consent that the concurrent resolution be agreed to, the motion to reconsider be laid upon the table, with no intervening action or debate, and any statements related to this measure be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (H. Con. Res. 43) was agreed to, as follows:

H. CON. RES. 43

Resolved by the House of Representatives (the Senate concurring), That when the House adjourns on the legislative day of Friday, April 15, 2011, or Saturday, April 16, 2011, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand adjourned until 2 p.m. on Monday, May 2, 2011, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first; and that when the Senate recesses or adjourns on any day from Thursday, April 14, 2011, through Friday, April 29, 2011, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand recessed or adjourned until noon on Monday, May 2, 2011, or such other time on that day as may be specified in the motion to recess or adjourn, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first.

SEC. 2. The Speaker of the House and the Majority Leader of the Senate, or their respective designees, acting jointly after consultation with the Minority Leader of the House and the Minority Leader of the Senate, shall notify the Members of the House and the Senate, respectively, to reassemble at such place and time as they may designate if, in their opinion, the public interest shall warrant it.

AMENDING THE RONALD REAGAN CENTENNIAL COMMISSION ACT

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of H.R. 1308.

The PRESIDING OFFICER. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 1308) to amend the Ronald Reagan Centennial Commission Act to extend the termination date for the Commission, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. REID. Mr. President, I ask unanimous consent that the bill be read three times and passed, the motion to reconsider be laid upon the table, there be no intervening action or debate, and that any statements related to this bill be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 1308) was ordered to a third reading, was read the third time, and passed.

FOOD SAFETY ACCOUNTABILITY ACT OF 2011

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 21, S. 216.

The PRESIDING OFFICER. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (S. 216) to increase criminal penalties for certain knowing and intentional violations relating to food that is misbranded or adulterated.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on the Judiciary, with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Food Safety Accountability Act of 2011''.

SEC. 2. CRIMINAL PENALTIES.

Section 303(a) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 333(a)) is amended—

(1) in paragraph (1), by striking ''Any'' and inserting ''Except as provided in paragraph (2) or (3), any'';

(2) in paragraph (2), by striking ''Notwithstanding the provisions of paragraph (1) of this section, if'' and inserting ''If''; and

(3) by adding at the end the following:

''(3) Any person who violates subsection (a), (b), (c), or (k) of section 301 with respect to any food—

''(A) knowingly and intentionally to defraud or mislead; and

''(B) with conscious or reckless disregard of a risk of death or serious bodily injury,

shall be fined under title 18, United States Code, imprisoned for not more than 10 years, or both.''.

Mr. LEAHY. Mr. President, today, the Senate will pass the Food Safety Accountability Act, an important bill to hold criminals who poison our food supply accountable for their crimes. I would like to thank Senators KLOBUCHAR, FRANKEN, DURBIN, FEINSTEIN, KOHL, and BLUMENTHAL for their support. Senators HATCH, SESSIONS, COBURN, and GRASSLEY had concerns about the breadth of the bill, and we were able to work together to address those concerns. The bill received unanimous, bipartisan support when it was reported out of the Judiciary Committee, and I am pleased that it has now received similar support from the Senate. I urge the House to quickly take up the Senate bill and join us in taking this important step toward protecting our food supply.

The Food Safety Accountability Act increases the sentences that prosecutors can seek for people who violate our food safety laws in those cases where there is conscious or reckless disregard of a risk of death or serious bodily injury. Last summer, a salmonella outbreak caused hundreds of people to fall ill and triggered a national egg recall. The cause of the outbreak is still under investigation, but salmonella poisoning is all too common and sometimes results from inexcusable knowing conduct like that carefully targeted by the Food Safety Accountability Act.

In the last Congress, a mother from Vermont, Gabrielle Meunier, testified before the Senate Agriculture Committee about her 7-year-old son, Christopher, who became severely ill and was hospitalized for 6 days after he developed salmonella poisoning from peanut crackers 2 years ago. Thankfully, Christopher recovered, but Mrs. Meunier's story highlighted improvements that are needed in our food safety system. No parent should have to go through what Mrs. Meunier experienced. The American people should be confident that the food they buy for their families is safe.

Current statutes do not provide sufficient criminal sanctions for those who knowingly violate our food safety laws. Knowingly distributing adulterated food is already illegal, but it is merely a misdemeanor right now, and the Sentencing Commission has found that it generally does not result in jail time. The fines and recalls that usually result from criminal violations under current law fall short in protecting the public from harmful products. Too often, those who are willing to endanger our children in pursuit of profits view such fines or recalls as merely the cost of doing business.

The company responsible for the eggs at the root of the last summer's salmonella crisis has a long history of environmental, immigration, labor, and food safety violations. It is clear that fines are not enough to protect the public and effectively deter this unacceptable conduct. We need to make sure that those who knowingly poison the food supply will go to jail. This bill will help to do that. This bill significantly increases the chances that those who commit food safety crimes will face jail time, rather than a slap on the wrist, for their criminal conduct.

Food safety received considerable attention last year, and I was pleased that Congress finally passed comprehensive food safety reforms. But our work is not done. On behalf of the hundreds of individuals sickened by recent salmonella outbreaks, I urge the House to quickly pass the Food Safety Accountability Act and join the Senate in continuing to improve our food safety system.

Mr. REID. Mr. President, I ask unanimous consent that the committee substitute amendment be agreed to, the bill, as amended, be read a third time and passed, the motions to reconsider be laid upon the table, with no intervening action or debate, and any statements related to the bill be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee amendment in the nature of a substitute was agreed to.

The bill was ordered to be engrossed for a third reading and was read the third time.

The bill (S. 216), as amended, was passed.

HONORING AND SUPPORTING WOMEN IN NORTH AFRICA AND THE MIDDLE EAST

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 33, S. Res. 109.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 109) honoring and supporting women in North Africa and the Middle East whose bravery, compassion, and commitment to putting the wellbeing of others before their own have proven that courage can be contagious.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. Mr. President, I ask unanimous consent that the amendments at the desk be agreed to, the resolution, as amended, be agreed to, the preamble, as amended, be agreed to, and the motions to reconsider be laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendments (Nos. 301 and 302) were agreed to, as follows:

AMENDMENT NO. 301

(Purpose: To amend the resolution)

On page 4, beginning on line 12, strike '', and supports'' and all that follows through ''these rights'' on line 14.

AMENDMENT NO. 302

(Purpose: To amend the preamble)

In the ninth whereas clause of the preamble, strike ''the United Nations Security Council and''.

The resolution (S. Res. 109), as amended, was agreed to.

The preamble, as amended, was agreed to.

The resolution, as amended, with its preamble, as amended, reads as follows:

S. RES. 109

Whereas, in the course of peaceful protests in countries throughout North Africa and

the Middle East, women have stood shoulder-to-shoulder with men to advance their rights;

Whereas Secretary of State Hillary Rodham Clinton has said, ''The rights of women and girls is the unfinished business of the 21st Century.'';

Whereas, in late December 2010 and January 2011, Tunisia underwent a political upheaval, dubbed the ''Jasmine Revolution,'' resulting in the fleeing of President of Tunisia Zine El Abidine Ben Ali from the country on January 14, 2011;

Whereas one of the first voices of the ''Jasmine Revolution'' was the sister of Mohammad Bouazizi, the young man whose death led to many of the peaceful protests in Tunisia;

Whereas, on January 25, 2011, demonstrations began across Egypt with thousands of protesters peacefully calling for a new government, free and fair elections, significant constitutional and political reforms, greater economic opportunity, and an end to government corruption;

Whereas women in Egypt have utilized social media to galvanize support among men and women for peaceful protest;

Whereas huge crowds came out to protest peacefully in Egypt, and women were among those that faced tear gas and who pitched their tents and slept in the cold in Tahrir Square;

Whereas hundreds of women took part in a rally in Cairo on March 8, 2011, the 100th Anniversary of International Women's Day, to remind women in Egypt that they must have a voice in their nation's future;

Whereas, on February 25, 2011, the international community condemned the violence and use of force against civilians in Libya;

Whereas, according to press reports, women in Libya have been working behind the scenes making a profound difference to promote reform and keep the momentum of the uprising alive, listening to worried fathers whose sons are fighting on the frontlines, keeping up with the day-to-day clashes and casualty numbers, and holding meetings about health and education issues, as well as participating in the demonstrations themselves;

Whereas, according to press reports, women are among the leaders of demonstrations calling for reform in Yemen;

Whereas women's groups in countries such as Morocco, Jordan, Lebanon, and Iran have attempted to harness critical support regarding legislation affecting their rights;

Whereas women around the world continue to face significant obstacles in all aspects of their lives, including denial of basic human rights, discrimination, and gender-based violence;

Whereas women, young and old, have marched in the streets of countries from Tunisia to Iran demanding freedom from oppression; and

Whereas women across North Africa and the Middle East aspire for freedom, democracy, and rule of law: Now, therefore, be it

Resolved, That the Senate—

(1) honors the women in North Africa and the Middle East who have worked to ensure that women are guaranteed equality and basic human rights;

(2) recognizes that the empowerment of women is inextricably linked to the potential of nations to generate economic growth and sustainable democracy;

(3) acknowledges that women in North Africa and the Middle East are demanding to be included in making choices that will affect their own lives and their families;

(4) reaffirms the commitment of the United States to the universal rights of freedom of assembly, freedom of speech, and freedom of association, including via the Internet;

(5) celebrates this year's centennial anniversary of International Women's Day, a global day to celebrate the economic, political, and social achievements of women past, present, and future, and a day to recognize the obstacles that women still face in the struggle for equal rights and opportunities;

(6) condemns any efforts to provoke or instigate violence against women, and calls upon all parties to refrain from all violent and criminal acts; and

(7) underscores the vital importance of women's rights and political participation as leaders in North Africa and the Middle East consider constitutional reforms and shape new governments.

NATIONAL CHILD ABUSE PREVENTION MONTH

Mr. REID. Mr. President, I ask unanimous consent that the Judiciary Committee be discharged from further consideration of S. Res. 127, and the Senate proceed to the matter.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 127) designating April 2011 as ''National Child Abuse Prevention Month.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 127) was agreed to.

The preamble was agreed to.

The resolution, with its preamble, reads as follows:

S. RES. 127

Whereas in 2009, approximately 702,000 children were determined to be victims of abuse or neglect;

Whereas in 2009, an estimated 1,770 children died as a result of abuse or neglect;

Whereas in 2009, an estimated 80.8 percent of the children who died due to abuse or neglect were under the age of 4;

Whereas in 2009, of the children under the age of 4 who died due to abuse or neglect, 46.2 percent were under the age of 1;

Whereas abused or neglected children have a higher risk for developing health problems in adulthood, including alcoholism, depression, drug abuse, eating disorders, obesity, suicide, and certain chronic diseases;

Whereas a National Institute of Justice study indicated that abused or neglected children—

(1) are 11 times more likely to be arrested for criminal behavior as juveniles; and

(2) are 2.7 times more likely to be arrested for violent and criminal behavior as adults;

Whereas an estimated ⅓ of abused or neglected children grow up to abuse or neglect their own children;

Whereas providing community-based services to families impacted by child abuse or neglect may be far less costly than—

(1) the emotional and physical damage inflicted on children who have been abused or neglected;

(2) providing other services to abused or neglected children, including child protective, law enforcement, court, foster care, or health care services; or

(3) providing treatment to adults recovering from child abuse; and

Whereas child abuse and neglect have long-term economic and societal costs: Now, therefore, be it

Resolved, That the Senate—

(1) designates April 2011 as ''National Child Abuse Prevention Month'';

(2) recognizes and applauds the national and community organizations that work to promote awareness about child abuse and neglect, including by identifying risk factors and developing prevention strategies;

(3) supports the proclamation issued by President Obama declaring April 2011 to be ''National Child Abuse Prevention Month''; and

(4) should increase public awareness of prevention programs relating to child abuse and neglect, and continue to work with States to reduce the incidence of child abuse and neglect in the United States.

PUBLIC SERVICE RECOGNITION WEEK

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to Calendar No. 35, S. Res. 128.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 128) expressing the sense of the Senate that public servants should be commended for their dedication and continued service to the Nation during Public Service Recognition Week, May 1 through 7, 2011.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, the motions to reconsider be laid upon the table, with no intervening action or debate, and any statements related to the matter be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 128) was agreed to.

The preamble was agreed to.

The resolution, with its preamble, reads as follows:

S. RES. 128

Whereas Public Service Recognition Week provides an opportunity to recognize and promote the important contributions of public servants and honor the diverse men and women who meet the needs of the Nation through work at all levels of government;

Whereas millions of individuals work in government service in every city, county, and State across America and in hundreds of cities abroad;

Whereas public service is a noble calling involving a variety of challenging and rewarding professions;

Whereas Federal, State, and local governments are responsive, innovative, and effective because of the outstanding work of public servants;

Whereas the United States of America is a great and prosperous Nation, and public service employees contribute significantly to that greatness and prosperity;

Whereas the Nation benefits daily from the knowledge and skills of these highly trained individuals;

Whereas public servants—

(1) defend our freedom and advance United States interests around the world;

(2) provide vital strategic support functions to our military and serve in the National Guard and Reserves;

(3) fight crime and fires;

(4) ensure equal access to secure, efficient, and affordable mail service;

(5) deliver Social Security and Medicare benefits;

(6) fight disease and promote better health;

(7) protect the environment and the Nation's parks;

(8) enforce laws guaranteeing equal employment opportunity and healthy working conditions;

(9) defend and secure critical infrastructure;

(10) help the Nation recover from natural disasters and terrorist attacks;

(11) teach and work in our schools and libraries;

(12) develop new technologies and explore the earth, moon, and space to help improve our understanding of how our world changes;

(13) improve and secure our transportation systems;

(14) promote economic growth; and

(15) assist our Nation's veterans;

Whereas members of the uniformed services and civilian employees at all levels of government make significant contributions to the general welfare of the United States, and are on the front lines in the fight against terrorism and in maintaining homeland security;

Whereas public servants work in a professional manner to build relationships with other countries and cultures in order to better represent America's interests and promote American ideals;

Whereas public servants alert Congress and the public to government waste, fraud, abuse, and dangers to public health;

Whereas the men and women serving in the Armed Forces of the United States, as well as those skilled trade and craft Federal employees who provide support to their efforts, are committed to doing their jobs regardless of the circumstances, and contribute greatly to the security of the Nation and the world;

Whereas public servants have bravely fought in armed conflict in defense of this Nation and its ideals and deserve the care and benefits they have earned through their honorable service;

Whereas government workers have much to offer, as demonstrated by their expertise and innovative ideas, and serve as examples by passing on institutional knowledge to train the next generation of public servants;

Whereas May 1 through 7, 2011, has been designated Public Service Recognition Week to honor America's Federal, State, and local government employees; and

Whereas Public Service Recognition Week is celebrating its 27th anniversary: Now, therefore, be it

Resolved, That the Senate—

(1) commends public servants for their outstanding contributions to this great Nation during Public Service Recognition Week and throughout the year;

(2) salutes government employees for their unyielding dedication and spirit for public service;

(3) honors those government employees who have given their lives in service to their country;

(4) calls upon a new generation to consider a career in public service as an honorable profession; and

(5) encourages efforts to promote public service careers at all levels of government.

CALLING ON THE UNITED NATIONS TO RESCIND THE GOLDSTONE REPORT

Mr. REID. Mr. President, I ask unanimous consent that the Foreign Relations Committee be discharged from further consideration of S. Res. 138 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 138) calling on the United Nations to rescind the Goldstone report, and for other purposes.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, the motions to reconsider be laid upon the table, with no intervening action or debate, and any statements be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 138) was agreed to.

The preamble was agreed to.

The resolution, with its preamble, reads as follows:

S. RES. 138

Whereas, on January 12, 2009, the United Nations Human Rights Council passed Resolution S–9/1, authorizing a ''fact-finding mission'' regarding the conduct of the Government of Israel during Operation Cast Lead between December 27, 2008, and January 18, 2009;

Whereas that resolution prejudged the outcome of the fact finding mission by mandating that it investigate ''violations of international human rights law and international humanitarian law by the occupying power, Israel, against the Palestinian people'';

Whereas, on September 15, 2009, the ''United Nations Fact Finding Mission on the Gaza Conflict'' released its report, now known as the ''Goldstone report'', named for its chair, South African Jurist Richard Goldstone;

Whereas the report made numerous unsubstantiated assertions against Israel, in particular accusing the Government of Israel of committing war crimes by deliberately targeting civilians during its operations in Gaza;

Whereas the report downplayed the overwhelming evidence that Hamas deliberately used Palestinian civilians and civilian institutions as human shields against Israel and deliberately targeted Israeli civilians with rocket fire for over eight years prior to the operation;

Whereas the United Nations Human Rights Council voted to welcome the report, to endorse its recommendations, and to condemn Israel without mentioning Hamas;

Whereas, as a result of the report, the United Nations General Assembly has passed two resolutions endorsing the report's findings, the United Nations Secretary-General has been requested to submit several reports on implementation of its recommendations, and the Human Rights Council is scheduled to follow up on implementation of the report during future sessions;

Whereas the findings of the Goldstone report and the subsequent and continued United Nations member state actions following up on those findings have caused and continue to cause extensive harm to Israel's standing in the world and could potentially create legal problems for Israel and its leaders;

Whereas Justice Richard Goldstone publicly retracted the central claims of the report he authored in an op-ed in The Washington Post on April 2, 2011;

Whereas Justice Goldstone wrote in that article that if he ''had known then what I know now, the Goldstone Report would have been a different document'';

Whereas Justice Goldstone concluded that, contrary to his report's findings, the Government of Israel did not intentionally target civilians in the Gaza Strip as a matter of policy;

Whereas, in contrast, Justice Goldstone states that the crimes committed by Hamas were clearly intentional, were targeted at civilians, and constitute a violation of international law;

Whereas Justice Goldstone also conceded that the number of civilian casualties in Gaza was far smaller than the report alleged;

Whereas Justice Goldstone admitted that Israel investigated the findings in the report, while expressing disappointment that Hamas has not taken any steps to look into the report's findings; and

Whereas Justice Goldstone concluded that ''Israel, like any other sovereign nation, has the right and obligation to defend itself and its citizens'': Now, therefore, be it

Resolved, That the Senate—

(1) calls on the United Nations Human Rights Council members to reflect the author's repudiation of the Goldstone report's central findings, rescind the report, and reconsider further Council actions with respect to the report's findings;

(2) urges United Nations Secretary-General Ban Ki Moon to work with United Nations member states to reform the United Nations Human Rights Council so that it no longer unfairly, disproportionately, and falsely criticizes Israel on a regular basis;

(3) requests Secretary-General Ban Ki Moon to do all in his power to redress the damage to Israel's reputation caused by the Goldstone report;

(4) asks the Secretary-General to do all he can to urge member states to prevent any further United Nations action on the report's findings; and

(5) urges the United States to take a leadership role in getting the United Nations and its bodies to prevent any further action on the report's findings and limit the damage that this libelous report has caused to our close ally Israel and to the reputation of the United Nations.

PERMITTING USE OF THE CAPITOL ROTUNDA

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H. Con. Res. 33.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report.

The assistant legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 33) permitting the use of the rotunda of the Capitol for a ceremony as part of the commemoration of the days of remembrance of victims of the Holocaust.

There being no objection, the Senate proceeded to consider the concurrent resolution.

Mr. REID. Mr. President, I ask unanimous consent that the concurrent resolution be agreed to, that the motion to reconsider be laid upon the table, there be no intervening action or debate, and that any statements related to this matter be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (H. Con. Res. 33) was agreed to.

RESOLUTIONS SUBMITTED TODAY

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration en bloc of the following resolutions, which were submitted earlier today: S. Res. 154, S. Res. 155, S. Res. 156, and S. Res. 157.

There being no objection, the Senate proceeded to consider the resolutions en bloc.

Mr. REID. Mr. President, I ask unanimous consent that the resolutions be agreed to, the preambles be agreed to, the motions to reconsider be laid upon the table en bloc, with no intervening action or debate, and that any statements related to the resolutions be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolutions (S. Res. 154, S. Res. 155, S. Res. 156, S. Res. 157) were agreed to.

The preambles were agreed to.

The resolutions, with their preambles, read as follows:

S. RES. 154

Whereas many people in the United States maintain classic automobiles as a pastime and do so with great passion and as a means of individual expression;

Whereas the Senate recognizes the effect that the more than 100-year history of the automobile has had on the economic progress of the Nation and supports wholeheartedly all activities involved in the restoration and exhibition of classic automobiles;

Whereas collection, restoration, and preservation of automobiles is an activity shared across generations and across all segments of society;

Whereas thousands of local car clubs and related businesses have been instrumental in preserving a historic part of the heritage of this Nation by encouraging the restoration and exhibition of such vintage works of art;

Whereas automotive restoration provides well-paying, high-skilled jobs for people in all 50 States; and

Whereas automobiles have provided the inspiration for music, photography, cinema, fashion, and other artistic pursuits that have become part of the popular culture of the United States: Now therefore, be it

Resolved, That the Senate—

(1) designates July 8, 2011, as ''Collector Car Appreciation Day'';

(2) recognizes that the collection and restoration of historic and classic cars is an important part of preserving the technological achievements and cultural heritage of the United States; and

(3) encourages the people of the United States to engage in events and commemorations of ''Collector Car Appreciation Day'' that create opportunities for collector car owners to educate young people on the importance of preserving the cultural heritage of the United States, including through the collection and restoration of collector cars.

S. RES. 155

Whereas libraries are an essential part of the communities and the national system of education in the United States;

Whereas the people of the United States benefit significantly from libraries that serve as an open place for people of all ages and backgrounds to use books and other resources that offer pathways to learning, self-discovery, and the pursuit of knowledge;

Whereas the libraries of the United States depend on the generous donations and the support of individuals and groups to ensure that people who are unable to purchase books still have access to a wide variety of resources;

Whereas certain nonprofit organizations facilitate the donation of books to schools and libraries across the United States, in order to extend the joy of reading to millions of people in the United States and to prevent used books from being thrown away;

Whereas as of the date of agreement to this resolution, the libraries of the United States have provided valuable resources to individuals who are affected by the economic crisis by encouraging continued education and job training; and

Whereas several States that recognize the importance of libraries and reading have adopted resolutions commemorating April 23 as ''Adopt A Library Day'': Now, therefore, be it

Resolved, That the Senate—

(1) designates April 23, 2011, as ''National Adopt A Library Day'';

(2) honors the organizations that facilitate donations to schools and libraries;

(3) urges people in the United States who own unused books to donate such books to local libraries;

(4) strongly supports children and families who take advantage of the resources provided by schools and libraries; and

(5) encourages the people of the United States to observe ''National Adopt A Library Day'' with appropriate ceremonies and activities.

S. RES. 156

Whereas Global Youth Service Days is an annual campaign that celebrates and mobilizes the millions of young people who improve their communities each day through community service and service-learning programs;

Whereas the goals of Global Youth Service Days are—

(1) to mobilize and support young people to address the needs of their communities, their countries, and the world through community service and service-learning;

(2) to mobilize and support schools and organizations to provide meaningful opportunities for youth engagement;

(3) to educate the public, the media, and policymakers about the year-round contributions of young people as community leaders;

(4) to recognize and celebrate young people as community assets, resources, leaders, and problem-solvers; and

(5) to inspire and sustain a lifelong commitment to service and civic engagement;

Whereas Global Youth Service Days, a program of Youth Service America, is the largest service event in the world and the only service event dedicated to engaging young people ages 5 through 25;

Whereas, in 2011, Global Youth Service Days is being observed for the 23rd consecutive year in the United States and for the 12th year globally in more than 100 countries;

Whereas Global Youth Service Days provides an opportunity for young people to position themselves as assets, resources, active citizens, and community leaders through the application of their knowledge, idealism, energy, creativity, and unique perspective to improving their communities by addressing a myriad of critical issues, such as childhood obesity, illiteracy, hunger, environmental degradation, public safety, and disaster preparedness;

Whereas, in 2011, thousands of participants in schools and community-based organizations plan to hold Global Youth Service Days activities as part of a Semester of Service, an extended service-learning campaign launched on Martin Luther King, Jr. Day of Service, in which young people spend the semester addressing a meaningful community need connected to intentional learning goals or academic standards over the course of at least 70 hours;

Whereas Global Youth Service Days engages millions of young people worldwide with the support of the Global Youth Service Network of the Youth Service America, including more than 200 national and international partners, 100 State and local lead agencies, and thousands of local schools, afterschool programs, youth development organizations, community organizations, faith-based organizations, government agencies, businesses, neighborhood associations, and families;

Whereas, in 2011, Youth Service America intends to distribute more than $1,000,000 in grants to more than 800 projects led by young people, including State Farm GYSD Lead Agency and Good Neighbor grants, UnitedHealth Heroes grants, Sodexo Youth and Lead Organizer grants, Disney Friends for Change grants, Learn and Serve America STEMester of Service grants, NEA Youth Leaders for Literacy grants, and MLK Semester of Service Lead Organizer Grants;

Whereas high quality community service and service-learning programs increase—

(1) the academic engagement and achievement of young people;

(2) the workforce readiness and 21st century skills of young people;

(3) the civic knowledge and engagement of young people;

(4) the intercultural understanding and global citizenship of young people; and

(5) the connectedness and commitment of young people to their communities; and

Whereas section 198(g) of the National and Community Service Act of 1990 (42 U.S.C. 12653(g)) recognizes Global Youth Service Days as national days of service and calls on the Corporation for National and Community Service, other Federal agencies and departments, and the President of the United States to recognize and support youth-led activities on the designated days: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes and commends the significant contributions of young people of the United States and encourages the continued engagement and support of young people dedicated to serving their neighbors, their communities, and the United States;

(2) designates April 15 through 17, 2011, as ''Global Youth Service Days''; and

(3) calls on the people of the United States to observe Global Youth Service Days by—

(A) encouraging young people to participate in community service and service-learning projects and to join their peers in those projects;

(B) recognizing the volunteer efforts of the young people of the United States throughout the year; and

(C) supporting the volunteer efforts of young people and engaging them in meaningful community service, service-learning, and decision-making opportunities as an investment in the future of the United States.

S. RES. 157

Whereas the goal of PowerTalk 21 Day is to encourage parents and caregivers to embrace their important role in influencing the decisions of the young people of the United States about drinking alcohol;

Whereas high school students who use alcohol or other substances are 5 times more likely to drop out of school or believe good grades are not important;

Whereas teen alcohol use kills about 6,000 people each year, more than all other illegal drugs combined; and

Whereas 74 percent of kids say that their parents are their primary influence when it comes to decisions about drinking alcohol: Now, therefore, be it

Resolved, That the Senate—

(1) designates April 21, 2011, as ''PowerTalk 21 Day'';

(2) recognizes the importance of parents talking with their teens about alcohol; and

(3) urges all people of the United States to join in the efforts to raise awareness of the importance of parents and teens talking together about alcohol in order to reduce the risks and dangers posed to teens and communities by underage drinking.

GLOBAL YOUTH SERVICE DAYS

Ms. MURKOWSKI. Mr. President, I wish to speak about a resolution designating April 15 through 17, 2011, as Global Youth Service Days'' that recognizes and commends the significant community service efforts that youth are making in communities across the country and around the world on this weekend in April and every day. This resolution also encourages the citizens of the United States to acknowledge and support these volunteer efforts. Passage of this resolution sends a very strong message of support to the thousands of youth across our great nation who are contributing positively to their communities—your efforts are recognized and appreciated.

Beginning this Friday, April 15, youth from across the United States and around the world will carry out community service projects in areas ranging from hunger to literacy to the environment. Through this service, many will embark on a lifelong path of service and civic engagement in more than 100 countries around the world.

Mr. President, the participation of youth in service to their communities is more than just a way to spend a Saturday afternoon. All year long, young people across America—indeed across the globe—identify and address the needs of their communities, make positive differences in the world around them, learn leadership and organizational skills, and gain insights into the problems of their fellow citizens.

The positive effects of this service are not limited to the projects our young people complete. Youth who are engaged in volunteer service and service-learning activities do better in school than their classmates who do not volunteer because they see a direct connection to what they are learning and the real world in which they live. Youth who engage in volunteering and other positive activities are also more likely to avoid risky behaviors, such as drug and alcohol use, crime, and promiscuity. Service within the community also contributes positively to young people's character development, civic participation, and philanthropic activity as adults.

Youth service also plays a role in encouraging our young people to stay in school. A survey by Civic Enterprises found that 47 percent of high school dropouts reported that boredom in school was a primary reason why they dropped out. High quality service-learning activities can, however, help young people see that school matters to them personally.

It is important, therefore, that the U.S. Senate encourage youth to engage in community service and to congratulate them for the service they provide. I thank Senators BEGICH, FEINSTEIN, AKAKA, MIKULSKI, LEVIN, STABENOW, COCHRAN, MURRAY, and MARK UDALL for joining with me in cosponsoring this resolution and all other Senators for supporting passage of it.

In an effort to recognize and support youth volunteers in my State, I am proud to acknowledge some of the activities that will occur this year in Alaska in observance of National and Global Youth Service Days:

Anchorage's Promise, which works to mobilize all sectors of the community to build the character and competence of Anchorage's children and youth, will sponsor the annual Kids' Day three-day events in Anchorage again this year. Youth will provide significant service to their peers and to adults who will attend Kids' Day activities this weekend:

Over 100 youth and AmeriCorps members will spend their day volunteering at Kids' Day in order to help make it a safe, fun, and successful event.

Teens will serve as greeters, pass out bags, help vendors set up their booths, and clean up during and after the event.

Kindness for Kids, Inc. will provide students with materials to stuff and sew pillows which will later be delivered to the children in the hospital.

Adults and youth will be able to make cards to express support for our troops.

Youth who formed the Japan Relief Fund will sell bracelets they have made the benefit the relief efforts of the Red Cross in Japan.

Anchorage's Promise Youth Advisory Board will present Teen City Center Stage, a positive, judgment-free space where teens can create graffiti art, join youth-led organizations, and enjoy entertainment.

Students from Chugiak High School's Family Career and Community Leaders of America program will present a family meal toolkit that will contain healthy family meal recipes that incorporate simple, affordable, and healthy food choices.

Volunteer students from the Anchorage School district will read to their younger peers as part of ''Wild About Reading''. The child will then get to take the book home.

Youth volunteers with Volunteers of America Alaska and Communities Mobilizing for Change on Alcohol will provide an art project and information on underage drinking.

The Anchorage Public Library Teen Advisory Board will help kids decorate banners that will be put on display in the library.

In addition to the Kids' Day events, young people from every region of Alaska will serve their many ways, including:

Students at Pacific Northern Academy have donated hand-made fleece scarves, hats, blankets, greeting cards, meal, and decorations to various local agencies in Anchorage.

Youth volunteers, coordinated by the Anchorage Public Library, will help organize summer reading celebration materials.

Members of the St. John's United Methodist Church youth group spent their spring break volunteering at the Food Bank of Alaska in Anchorage.

Last November, the Wrangell Community Youth Action Group collected and donated over 10,000 pounds of food for needy families and Thanksgiving dinners in their community.

Hundreds of Boy Scouts and Girl Scouts participated in ''Scouting for Food'' last weekend by distributing flyers about their food drive in neighborhoods, and then going door-to-door collecting the donations.

The St. Francis Xavier Youth Group held a cake auction to raise $2,590 to support a mission in Jamaica that helps the poor with food, transportation, and education.

The Anchorage's Promise Youth Advisory Board volunteered at Covenant House Alaska to assist them in preparing for First Friday, a monthly art walk that takes place in downtown Anchorage. YAB members put together sandwiches, made name tags, and made labels for the art work that was displayed.

Members of the Chugiak Family Career and Community Leaders of America held a Christmas party for the homeless teens at Anchorage's Covenant House.

Youth from Two Rivers donated clothing items to Big Brothers Big Sisters of America.

Youth in Dillingham have created a ''Chain of Kindness'' to which people from the community contribute links when they observe acts of kindness. The chain is hung in the entrance of the local high school.

The Alaska Youth for Environmental Action has created a resolution for the Anchorage assembly on beginning an annual ''Week without Bags,'' to encourage consumers to bring their own bags to the grocery store and encourage retailers to provide incentive for customers that do so.

Mr. President, I am so proud of all of these young people and many more across my State of Alaska. I value their idealism, energy, creativity, and unique perspectives as they volunteer to make their communities better and assist those in need.

Many similarly wonderful activities will be taking place all across the nation. I encourage all of my colleagues to visit the Youth Service America Web site www.ysa.org to find out about the selfless and creative youth who are contributing in their own States this year.

Mr. President, I yield the floor.

DISCHARGE AND REFERRAL—S. 375

Mr. REID. Mr. President, I ask unanimous consent that the Committee on Agriculture, Nutrition and Forestry be discharged from further consideration of S. 375 and the bill be referred to the Energy and Natural Resources Committee.

The PRESIDING OFFICER. Without objection, it is so ordered.

APPOINTMENTS

The PRESIDING OFFICER. The Chair, on behalf of the President pro tempore, pursuant to Public Law 100–696, appoints the Senator from North Dakota (Mr. HOEVEN) as a member of the United States Capitol Preservation Commission, vice the Senator from Alaska (Ms. MURKOWSKI).

The Chair announces, on behalf of the majority leader, pursuant to Public Law 101–509, the reappointment of Steve Zink of Nevada to the Advisory Committee on the Records of Congress.

The Chair, on behalf of the President pro tempore and upon the recommendation of the majority leader, pursuant to Public Law 106–554, appoints the Senator from Connecticut (Mr. BLUMENTHAL) to the Board of Directors of the Vietnam Education Foundation, vice the Senator from Virginia (Mr. WEBB).

The Chair, on behalf of the President of the Senate, and after consultation with the majority leader, pursuant to Public Law 106–286, appoints the following Members to serve on the Congressional-Executive Commission on the People's Republic of China: the Honorable MAX BAUCUS of Montana, the Honorable CARL LEVIN of Michigan, the Honorable DIANNE FEINSTEIN of California, the Honorable SHERROD BROWN of Ohio, and the Honorable JEFF MERKLEY of Oregon.

SIGNING AUTHORITY

Mr. REID. Mr. President, I ask unanimous consent that during the adjournment of the Senate, the majority leader or Senator ROCKEFELLER be authorized to sign duly enrolled bills or joint resolutions.

The PRESIDING OFFICER. Without objection, it is so ordered.

APPOINTMENT AUTHORITY

Mr. REID. Mr. President, I ask unanimous consent that notwithstanding the upcoming recess or adjournment of the Senate, the President pro tempore and the majority and minority leaders be authorized to make appointments to commissions, committees, boards, conferences, or interparliamentary conferences authorized by law, by concurrent action of the two Houses, or by order of the Senate.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR MONDAY, MAY 2, 2011

Mr. REID. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn under the provisions of H. Con. Res. 43, the adjournment resolution, until 2 p.m. on Monday, May 2; that following the prayer and pledge, the Journal of proceedings be approved to date, the morning hour be deemed expired, the time for the two leaders be reserved for their use later in the day; that the Senate proceed to a period for the transaction of morning business for debate only until 4:30 p.m., with Senators permitted to speak for up to 10 minutes each; further, that following morning business, the Senate proceed to executive session under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. REID. Mr. President, therefore, the first rollcall vote will be at 5:30 p.m. when we return. That vote will be on the confirmation of Executive Calendar No. 76, the nomination of Kevin Hunter Sharp to be U.S. District Judge for the Middle District of Tennessee.

I appreciate everyone's patience, including the Presiding Officer, in completing the business of the Senate for this period of time. I hope everyone has a good work period. Some will go a long way away, maybe as far as Alaska.

ADJOURNMENT UNTIL MONDAY, MAY 2, 2011, AT 2 P.M.

Mr. REID. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order.

There being no objection, the Senate, at 7:55 p.m., adjourned until Monday, May 2, 2011, at 2 p.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF STATE

JONATHAN DON FARRAR, OF CALIFORNIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER-COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF NICARAGUA.

STUART E. JONES, OF VIRGINIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER-COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE HASHEMITE KINGDOM OF JORDAN.

LISA J. KUBISKE, OF VIRGINIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER-COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF HONDURAS.

DEREK J. MITCHELL, OF CONNECTICUT, TO BE SPECIAL REPRESENTATIVE AND POLICY COORDINATOR FOR BURMA, WITH THE RANK OF AMBASSADOR. (NEW POSITION)

NUCLEAR REGULATORY COMMISSION

WILLIAM CHARLES OSTENDORFF, OF VIRGINIA, TO BE A MEMBER OF THE NUCLEAR REGULATORY COMMISSION FOR THE TERM OF FIVE YEARS EXPIRING JUNE 30, 2016. (REAPPOINTMENT)

NATIONAL SCIENCE FOUNDATION

ROBERT J. ZIMMER, OF ILLINOIS, TO BE A MEMBER OF THE NATIONAL SCIENCE BOARD, NATIONAL SCIENCE FOUNDATION, FOR A TERM EXPIRING MAY 10, 2016, VICE JON C. STRAUSS, TERM EXPIRED.

CONFIRMATIONS

Executive nominations confirmed by the Senate, April 14, 2011:

OFFICE OF SPECIAL COUNSEL

CAROLYN N. LERNER, OF MARYLAND, TO BE SPECIAL COUNSEL, OFFICE OF SPECIAL COUNSEL, FOR THE TERM OF FIVE YEARS.

NATIONAL SCIENCE FOUNDATION

KELVIN K. DROEGEMEIER, OF OKLAHOMA, TO BE A MEMBER OF THE NATIONAL SCIENCE BOARD, NATIONAL SCIENCE FOUNDATION FOR A TERM EXPIRING MAY 10, 2016.

DEPARTMENT OF COMMERCE

KATHRYN D. SULLIVAN, OF OHIO, TO BE AN ASSISTANT SECRETARY OF COMMERCE.

MARINE MAMMAL COMMISSION

FRANCES M.D. GULLAND, OF CALIFORNIA, TO BE A MEMBER OF THE MARINE MAMMAL COMMISSION FOR A TERM EXPIRING MAY 13, 2012.

DEPARTMENT OF TRANSPORTATION

ANN D. BEGEMAN, OF VIRGINIA, TO BE A MEMBER OF THE SURFACE TRANSPORTATION BOARD FOR A TERM EXPIRING DECEMBER 31, 2015.

FEDERAL MARITIME COMMISSION

MARIO CORDERO, OF CALIFORNIA, TO BE A FEDERAL MARITIME COMMISSIONER FOR THE TERM EXPIRING JUNE 30, 2014.

REBECCA F. DYE, OF NORTH CAROLINA, TO BE A FEDERAL MARITIME COMMISSIONER FOR THE TERM EXPIRING JUNE 30, 2015.

DEPARTMENT OF ENERGY

PETER BRUCE LYONS, OF NEW MEXICO, TO BE AN ASSISTANT SECRETARY OF ENERGY (NUCLEAR ENERGY).

DEPARTMENT OF STATE

NILS MAARTEN PARIN DAULAIRE, OF VIRGINIA, TO BE REPRESENTATIVE OF THE UNITED STATES ON THE EXECUTIVE BOARD OF THE WORLD HEALTH ORGANIZATION.

JOSEPH M. TORSELLA, OF PENNSYLVANIA, TO BE REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE UNITED NATIONS FOR U.N. MANAGEMENT AND REFORM, WITH THE RANK OF AMBASSADOR.

JOSEPH M. TORSELLA, OF PENNSYLVANIA, TO BE ALTERNATE REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE SESSIONS OF THE GENERAL ASSEMBLY OF THE UNITED NATIONS, DURING HIS TENURE OF SERVICE AS REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE UNITED NATIONS FOR U.N. MANAGEMENT AND REFORM.

KURT WALTER TONG, OF MARYLAND, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF COUNSELOR, FOR THE RANK OF AMBASSADOR DURING HIS TENURE OF SERVICE AS UNITED STATES SENIOR OFFICIAL FOR THE ASIA-PACIFIC ECONOMIC COOPERATION (APEC) FORUM.

SUZAN D. JOHNSON COOK, OF NEW YORK, TO BE AMBASSADOR AT LARGE FOR INTERNATIONAL RELIGIOUS FREEDOM.

ROBERT PATTERSON, OF NEW YORK, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO TURKMENISTAN.

JONATHAN SCOTT GRATION, OF NEW JERSEY, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF KENYA.

MICHELLE D. GAVIN, OF THE DISTRICT OF COLUMBIA, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF BOTSWANA.

DEPARTMENT OF HOMELAND SECURITY

RAFAEL BORRAS, OF MARYLAND, TO BE UNDER SECRETARY FOR MANAGEMENT, DEPARTMENT OF HOMELAND SECURITY.

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be general

LT. GEN. ROBERT W. CONE

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. DAVID S. FADOK

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be general

LT. GEN. DAVID M. RODRIGUEZ

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 624 AND 3064:

To be brigadier general

COLONEL NORVELL V. COOTS
COLONEL DENNIS D. DOYLE
COLONEL BRIAN C. LEIN

EXECUTIVE OFFICE OF THE PRESIDENT

KATHARINE G. ABRAHAM, OF IOWA, TO BE A MEMBER OF THE COUNCIL OF ECONOMIC ADVISERS.

CARL SHAPIRO, OF CALIFORNIA, TO BE A MEMBER OF THE COUNCIL OF ECONOMIC ADVISERS.

IN THE AIR FORCE

AIR FORCE NOMINATIONS BEGINNING WITH TRAVIS R. ADAMS AND ENDING WITH ILAINA M. WINGLER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 30, 2011.

AIR FORCE NOMINATIONS BEGINNING WITH FREDERICK C. ABAN AND ENDING WITH CATHERINE L. WYNN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 30, 2011.

AIR FORCE NOMINATIONS BEGINNING WITH ALLAN K. DOAN AND ENDING WITH ANDREW L. WRIGHT, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

AIR FORCE NOMINATIONS BEGINNING WITH BUDI R. BAHUREKSA AND ENDING WITH MUHAMMAD A. SHEIKH, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

IN THE ARMY

ARMY NOMINATION OF MICHAEL K. PYLE, TO BE COLONEL.

ARMY NOMINATION OF JANET MANNING, TO BE COLONEL.

ARMY NOMINATIONS BEGINNING WITH JOHN H. BARKEMEYER AND ENDING WITH D010566, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 16, 2011.

ARMY NOMINATIONS BEGINNING WITH MICHAEL G. POND AND ENDING WITH WILLIAM M. STEPHENS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 30, 2011.

ARMY NOMINATION OF JUAN J. DEROJAS, TO BE COLONEL.

ARMY NOMINATION OF DAVID S. GOINS, TO BE MAJOR.

ARMY NOMINATION OF KIMBERLY A. SPECK, TO BE MAJOR.

ARMY NOMINATION OF LYNDALL J. SOULE, TO BE MAJOR.

ARMY NOMINATIONS BEGINNING WITH JAMES J. HOULIHAN AND ENDING WITH JASON S. KIM, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

ARMY NOMINATIONS BEGINNING WITH JOSHUA P. STAUFFER AND ENDING WITH BRIDGET C. WOLFE, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

ARMY NOMINATIONS BEGINNING WITH EDWIN ROBINS AND ENDING WITH JEFFREY M. TIEDE, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

ARMY NOMINATIONS BEGINNING WITH RICHARD J. SCHOONMAKER AND ENDING WITH EDWARD W. LUMPKINS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

ARMY NOMINATIONS BEGINNING WITH JOHN H. BORDES AND ENDING WITH EDNA J. SMITH, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

ARMY NOMINATIONS BEGINNING WITH RICHARD R. JORDAN AND ENDING WITH APRIL B. TURNER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

ARMY NOMINATIONS BEGINNING WITH CARLSON A. BRADLEY AND ENDING WITH SYLVESTER E. WALLER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON APRIL 8, 2011.

IN THE MARINE CORPS

MARINE CORPS NOMINATIONS BEGINNING WITH PETER G. BAILIFF AND ENDING WITH TIMOTHY D. SECHREST, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON FEBRUARY 2, 2011.

MARINE CORPS NOMINATIONS BEGINNING WITH JOE H. ADKINS, JR. AND ENDING WITH JAMES B. ZIENTEK, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON FEBRUARY 16, 2011.

IN THE NAVY

NAVY NOMINATION OF MEDRINA B. GILLIAM, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATION OF DAVID S. PLURAD, TO BE CAPTAIN.

NAVY NOMINATIONS BEGINNING WITH JAMES P. KITZMILLER AND ENDING WITH JONATHAN D. SZCZESNY, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON MARCH 31, 2011.

EXTENSIONS OF REMARKS

SUPPORT THE DEPARTMENT OF ENERGY'S LOAN GUARANTEE PROGRAM

HON. MAURICE D. HINCHEY
OF NEW YORK
IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. HINCHEY. Mr. Speaker, President Obama recently unveiled a new plan to reduce foreign oil imports by one-third over the next decade, which is timely given the instability sweeping across oil producing countries in the Middle East. To achieve that goal necessarily involves more fully developing renewable energy which his Administration and the Congress are committed to achieving. In my district, I am pleased that over a dozen new solar and solar-related companies have opened in the last three years, creating hundreds of jobs while reducing our reliance on foreign sources and protecting our environment.

The Department of Energy's Loan Guarantee Program is a critical factor in our country's effort to be a world leader in renewable energy. I would like to place in the RECORD a recent article in the Huffington Post on the importance of DOE's loan guarantee program and the potential loss of thousands of megawatts of bankable electricity and the tens of thousands of jobs if it is not allowed to continue.

A WIN-WIN FOR CLEAN ENERGY
(By Uwe T. Schmidt)

The nuclear tragedy in Japan and the disturbing upheaval in Libya and the Middle East have dominated the headlines, but it also serves as a haunting reminder that America's own energy security may be in peril unless we accelerate efforts to more fully develop energy alternatives that are reliable, safe and sufficient to meet our future needs.

Achieving energy independence has been a laudable but daunting goal since the first energy crisis in 1979. Fortunately, the Obama administration and Congress have embraced policies intended to spur investment and development in renewable energy projects, but it will take a major effort by the private sector and the support of government at all levels.

The private sector is doing its part. They have invested heavily in new, innovative technologies, assembled the engineering and technical support, arranged the necessary financing, and have been engaged at all levels to secure the Federal and local permitting and ultimately the requisite utility and distribution outlets.

Solar Trust of America (STA) is one of many American companies that are investing millions and utilizing proven technology to achieve California's ambitious goal of 33 percent renewable energy by year 2020. Such goals are unlikely without private-public collaboration. It is our job to harness the solar potential in areas like STA's thermal solar project site near Blythe in Southeastern California, utilizing our parabolic trough technology that will ultimately produce 1,000 megawatts of bankable electricity that is sufficient to supply 300,000 households with electricity, avoiding over 2,000,000 tons of carbon dioxide emissions.

Our business model is unique in that it encompasses the entire American-based supply chain that involves engineering and technology specialists, financing through private equity funds, creating new demands for steel and other metals, project development and construction of the facilities, and management and operation of the plants.

Finally, it is a job producer. The first two of our four MW Blythe plants will employ 1,000 union construction jobs, another 7,500 supply chain jobs throughout the country, 100 on-going plant operations and post construction positions and, of course, the residual economic benefits to the local communities.

What is the government's role and how can it partner with STA and other companies to achieve these goals? Congress previously authorized a renewable energy loan guarantee program which is vital to securing the necessary financing to build large scale, sophisticated solar power plants and other renewable projects.

Without it, U.S. companies will be confronted with the sudden reversal of a national policy that two years ago encouraged them to invest in energy alternatives. Our Blythe plant is one of several major solar projects that has advanced through a diligent DOE review process for over a year and has met all the Federal and state permitting requirements.

STA and other solar companies have commenced preliminary site work just as Congress is considering legislation that would all but eliminate the loan guarantee program. Ironically, the House of Representatives passed a spending bill last month that would delete the loan guarantee program for renewable and clean coal technologies but left untouched loan guarantees for building nuclear plants.

This is not a government grant but simply a guarantee to facilitate the financing on loans to bring advanced technology to the market. Every dollar appropriated by Congress to DOE's Loan Guarantee Program spurs $13 dollars in private investments and indeed whatever taxpayer funds are involved are repaid in full with interest.

The DOE loan guarantee is a ''win-win'' for government and the companies involved and will not only advance the cause of energy independence but will create hundreds of thousands of jobs across the country.

Yet all this is at risk if Congress rolls back the program and put into jeopardy the enormous amounts of private capital already committed and the tens of thousands of sustainable jobs involved in the construction and operation of the plants. Apparently there are no guarantees when the Congress acts in a politically charged atmosphere.

For our nation to fully develop renewable energy, it is clear that neither the private sector nor government can do it alone. It requires a partnership.

As we advance into this new millennium, it is now understood that our raw resources are finite, the planet is fragile, and that energy consumption to sustain growth globally is our greatest challenge. The answer to all this is renewable energy. There are no boundaries or limits to what we can accomplish if we work together.

HONORING OUR NATION'S NURSES

HON. GARY C. PETERS
OF MICHIGAN
IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. PETERS. Mr. Speaker, I rise today on behalf of our nation's nurses, and in recognition of the exemplary healthcare they provide to patients all across our country. Nurses represent the largest group of healthcare professionals, standing at the front lines of our nation's healthcare system. They are our brothers, our daughters, our neighbors and friends. My own sister was a nurse and my mother was a nurse's aide, and I remember the dedication and sense of service they brought to their job every day.

I'm sure that everyone in this chamber can remember one time, if not many, when a loved one needed medical help or felt ill. Often, a nurse is the first person by our side when we need it most. Often, their compassion, their expertise, and their decisions make all the difference.

Recently, my office had the chance to welcome my constituent Grace Paranzino, as a part of the Nurse in Washington Internship Program. She spoke of her experiences in nursing, and how we as a nation can better serve the needs of those who so often serve ours. For all the vital services they provide, nurses are severely short-staffed across the country: 2.5 million nursing positions are currently waiting to be filled. The Health Resources and Services Administration predicts that by 2030, that number could climb even higher to nearly 30%.

Nurses across this country need our help. They need lawmakers here in Washington to enact smart policies that don't impede their ability to save lives and ease suffering. They also need us to encourage qualified, professional, and educated citizens like themselves to take up the profession of nursing.

Therefore, I ask my colleagues to join me today in applauding these nurses from my home state of Michigan and across the country.

RECOGNIZING THE IMPORTANCE OF THE NATIONAL MATH AND SCIENCE INITIATIVE

HON. CHAKA FATTAH
OF PENNSYLVANIA
IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. FATTAH. Mr. Speaker, I rise today to draw the attention of my colleagues to the National Math and Science Initiative (NMSI). This initiative, focusing on recommendations put forth by the National Academies of Science's 2005 report, ''Rising above the Gathering Storm,'' seeks to enhance science and technology enterprise in the United States. Specifically, NMSI and the National Academies argue

that the most effective way to do this is to dramatically improve K–12 math and science education. They will achieve this end through increasing the production of more, and more effective, math and science educators, strengthening the skills of existing classroom teachers through training programs, and expanding the pipeline of students with the desire and preparation to pursue science, technology, engineering and mathematics (STEM) in higher education.

As the Commerce, Justice, Science Subcommittee Ranking Member, I have had the opportunity to hear witnesses testify to the incredible discoveries and innovations currently underway to address some of our nation's most pressing concerns—energy security, global climate change and human health and development. These same experts have repeated the same refrain—absent a significant change in course, the United States is poised to lose our global supremacy in scientific discovery and enterprise. I am greatly encouraged that NMSI has taken on this challenge and is engaging a diverse range of partners to develop a new generation of mathematicians, engineers and researchers.

I would specifically like to take this opportunity to recognize one of NMSI's founding sponsors, the ExxonMobil Foundation. In a show of great community-mindedness and corporate responsibility, ExxonMobil has committed $125 million to NMSI. These funds, among other purposes, will go to increase access to and successful completion of Advanced Placement courses in the nation's high schools. I have long been an advocate of the AP program, and other efforts to increase rigor and college-readiness for all students in all schools. I am grateful to have such a partner, and to have the opportunity to engage with NMSI, ExxonMobil and others committed to addressing this critical question of global competitiveness.

Difficult budget times call for creative solutions and I believe it would serve Members of this body well to turn attention to these innovative public-private partnerships which serve our nation's young people and economic future well.

IN HONOR OF KENNETH H. COOPER, M.D., M.P.H.

HON. PETE SESSIONS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. SESSIONS. Mr. Speaker, I rise today to recognize Kenneth H. Cooper, M.D., M.P.H., my friend, renowned physician, and the Father of Aerobics.

The importance of cardiovascular exercise and fitness in our world today can be attributed to the dedicated efforts of Dr. Cooper. Throughout his career, Dr. Cooper has focused on preventive medicine and his work has revolutionized the physical fitness world. Aside from working with the National Aeronautics Space Administration (NASA) to create a fitness program for astronauts and designing the ''Cooper test'' used by the military to assess fitness, Dr. Cooper also trained the 1970 Brazilian soccer team to a World Cup victory. At the local, national, and international levels, Dr. Cooper has educated numerous individuals about the importance of diet and exercise and motivated them to adopt healthy lifestyles. He is also aggressively combating the childhood obesity epidemic with the Our Kids' Health initiative and by working with legislators to bring physical education back into our schools. The impact of Dr. Cooper's work spans across the globe; I know he has made our world a healthier place.

His family, friends, colleagues, and patients will gather to honor him at Health Needs a Hero on May 22, 2011 in Austin, Texas. I am delighted to join them in recognizing Dr. Cooper's many achievements and contributions to the health and medical fields. Mr. Speaker, I ask my esteemed colleagues to join me in recognizing Dr. Cooper.

IN RECOGNITION OF THE 2011 VIENNA VOLUNTEER RECOGNITION DAY HONOREES

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. CONNOLLY of Virginia. Mr. Speaker, it is my great honor to recognize outstanding citizens of our community. Each year, the Town of Vienna celebrates the extraordinary contributions of its residents with a ''Volunteer Recognition Day'' to honor those individuals and organizations who have been nominated by members of the community for their commitment to improving the community.

Communities are only as strong as the residents who live there. Through their selfless actions, civic activists improve the quality of life for all and help improve their towns and neighborhoods. The recipients of the 2011 Vienna Volunteer Recognition Honors are shining examples of how each of us can contribute to the betterment of our communities.

I am pleased to recognize the following individuals for their accomplishments: Robert Borgatti, Harold Bonacquist, Miles Bowen, Sydney Bowen, Linda Collins, Mike Davis, Alma Frank, Laurie Harmon, L.F. Jennings, Steve Kenney, Mark Lander, Ann Martin, Marjorie Midili, John ''Jack'' Reichert, Jr., Mr. and Mrs. Tim Sampson and family, John Shults, Susan Stillman, Anne Stuntz, Howard Svigals, Dorothy Evans, Bill Farrell, Mike Garbacz, Julius Hankin, Jean Jennings, Marcie Lee, Harry Mason, Ralph Nider, Eileen (Casey) Tarr, June Terry, Maria Alvarez-Lundie, Diane Eckert, Sara Freund, Cynthia Kohrmann, Sharmila Rao, Deborah Roney, Katie Wolffe, Liz DiFrancisco, Barbara Mackie Franklin and Dan Mulville.

Mr. Speaker, I ask my colleagues to join me in thanking these individuals and in congratulating them on their contributions to their community. Civic engagement is what defines a community, and it is thanks to these individuals that Vienna will remain a wonderful place to call home. Their contributions and leadership have been a great benefit to our community and truly merit our highest praise.

REPEALING PREVENTION AND PUBLIC HEALTH FUND

SPEECH OF

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Wednesday, April 13, 2011

The House in Committee of the Whole House on the State of the Union had under consideration the bill (H.R. 1217) to repeal the Prevention and Public Health Fund:

Ms. ESHOO. Madam Chair, I rise in opposition to H.R. 1217, a bill to repeal the Prevention and Public Health Fund.

Prevention works. It's the best way to keep costs down and keep people healthy.

For decades our healthcare system has been designed to treat patients once they're sick. This is inefficient and costly. The Prevention and Public Health Fund included in healthcare reform is finally starting to change this backward system and invest efforts to keep people healthy.

The Fund is important because it offers flexibility—grants are awarded to states, communities, and local public health groups to implement local prevention programs that work for the local community.

Any person in this chamber who is concerned about the rising cost of healthcare in our country should be embracing the Prevention and Public Health Fund. Study after study has proven that prevention saves money. This legislation willfully ignores this fact and instead, favors an ''every man for himself'' approach.

Is it any wonder why we spend more on healthcare than any country in the world with lackluster results? Other nations are out-investing us in prevention, public health infrastructure, and primary care. Smart healthcare saves money.

Unfortunately, we're also considering several bills this week to eliminate healthcare and none of them are wise. Efforts to chip away at the first meaningful health reform our country has ever seen are shortsighted and foolish . . . even worse is to take away basic preventive health services that women already have. Ninety seven percent of the services Planned Parenthood provides have nothing to do with abortion and everything to do with family planning, diabetes care, vaccines, physicals, and, for men, testicular cancer screenings. Eliminating funding for the preventive services of Planned Parenthood will increase the number of abortions in our country and reverse the positive results of mammograms and cervical care.

I urge my colleagues to vote against these efforts.

HONORING TOMMY MARSH FOR WINNING THE LESSONS OF THE AFRICAN-AMERICAN EXPERIENCE WRITING CONTEST

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. COURTNEY. Mr. Speaker, I rise today to recognize Tommy Marsh as a winner of the second annual Lessons of the African-American Experience Creative Writing Contest.

Tommy is currently in the fifth grade at North Stonington Elementary School, which is located in North Stonington, Connecticut.

In celebration of Black History Month, I sponsored a creative writing contest for all third through eighth grade students within the Second District. As we know, Black History Month is a time to reflect on the struggles and triumphs of our nation's past. The lessons learned during this month continue to serve as the stepping stones of our nation's future. Tommy's essay eloquently embraces this belief.

Tommy's essay shows a remarkable enthusiasm for learning that is inspiring to all. He creatively discusses Rosa Parks and Wael Ghonim, describing how one defiant act has the power to affect an entire nation. For this, his essay was among the winners selected.

PERSONAL EXPLANATION

HON. LOUISE McINTOSH SLAUGHTER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. SLAUGHTER. Mr. Speaker, I was unavoidably detained on official business and missed rollcall vote No. 263. Had I been present, I would have voted ''aye'' on rollcall vote No. 263.

IN RECOGNITION OF MS. TERI O'CONNOR

HON. FRANK PALLONE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. PALLONE. Mr. Speaker, I rise today to recognize Ms. Teri O'Connor, the recipient of the 2011 Women of Distinction Award presented by the Girl Scouts of the Jersey Shore. Ms. O'Connor has demonstrated unwavering commitment to serving the people of Monmouth County. Ms. O'Connor's devotion is undoubtedly deserving of this body's recognition.

Ms. O'Connor is currently the County Administrator for Monmouth County and manages the day-to-day operations of 60 county departments comprised of over 3,000 employees. Her responsibilities include supervising, directing and managing all county administrative departments, divisions and offices. She is also responsible for carrying out the policies and directives of the Board of Chosen Freeholders. In addition to her duties as County Administrator, Ms. O'Connor admirably serves as Administrator and Freeholder Representative to the Emergency Management Homeland Security Working Group since 2002. She has also supervised the County Insurance Office for 13 years. Ms. O'Connor is currently Freeholder Liaison to the Freehold Center Partnership as well as County Representative to Freehold's Downtown Planning & Design Committee. Through her personal, professional and community achievements, Ms. O'Connor embodies the mission of the Girl Scouts to help young girls build courage, confidence and character.

Mr. Speaker, please join me in leading this body in congratulating Ms. O'Connor for receiving the prestigious Women of Distinction Award, presented by the Girl Scouts of the Jersey Shore. Her steadfast dedication is an example of what hard work and determination can accomplish.

APPLAUDING SUSAN G. KOMEN FOR THE CURE®

HON. EDDIE BERNICE JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, understanding the basics regarding risk factors, diagnosis, and treatment of breast cancer, has made a positive continuous journey towards better management and victory over the disease. The American Cancer Society in 2010 estimated that among U.S. women there would be more than 207,000 new cases of invasive breast cancer and nearly 40,000 breast cancer deaths.

However, despite the alarming numbers, there remains hope for a cure of this disease. Because of the efforts of Nancy G. Brinker who lost her sister to the fight of breast cancer, Ms. Brinker has done everything in her power to fulfill her promise of ending breast cancer forever. And, I am proud that the Susan G. Komen for the Cure®, is headquartered in my District, the 30th Congressional District of Texas.

Beyond leading the charge of eradicating breast cancer for women in the United States, Susan G. Komen for the Cure® remains the premier global leader at the forefront of the breast cancer movement since their 1982 inception. Komen has significantly contributed to the advancement of breast cancer research, education, advocacy, health services and social support programs in the United States and through partnerships in more than 50 countries as sustained by more than 100,000 volunteers who work in a network of 124 affiliates worldwide. Further, the organization is attributed to investing more than $1.9 billion to the fight for breast cancer for women. I applaud the Susan G. Komen for the Cure® for their accomplishments, dedication, and commitment to unparalleled breast cancer advocacy efforts. As global citizens, by educating women about the available predictive screening and preventive care, we can successfully help our women, mothers, sisters and daughters to live longer, healthier lives.

A MAN OF GRACE

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. WILSON of South Carolina. Mr. Speaker, I submit the following:

A
A man
A man of grace
Our Lord, upon this place
Had so placed
As a true reflection of His face
All in this temple of democracy's faith
This shrine our forefathers had so embraced
For America was founded on such faith
For no other experiment has since been raised
For Father Dan, you were a pioneer
As America's first Catholic chaplin so here
To spread the word, upon each morning heard
To council and to inspire, lifting hearts higher
All for our Nation's leaders, you never tired
As an instrument of our Lord's heart
Oh how you fine faith, has so done its part
To bring a Congress through storms and dark
All but with, the light of your fine heart
And our Lord's word, casting out the dark
And we will miss your kind warm face
And your inspiring call to God, on each new day
And your warm heart, filled with such grace
Forever, in our hearts you shall hold a place
For your blessings bestowed upon us all
Answering our Lord's call, call to faith
For such people, Heaven so holds a place
For such men of grace

In honor of father Dan Coughlin, and all of the hearts you have touched over the years . . . bless you—Albert Carey Caswell.

INTRODUCTION OF THE MEDICARE ACCESS TO REHABILITATION ACT OF 2011

HON. XAVIER BECERRA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. BECERRA. Mr. Speaker, I rise in support of the bipartisan Medicare Access to Rehabilitation Act of 2011 which Representative JAMES GERLACH and I are introducing today. This important bill repeals the monetary caps that limit beneficiary access to medically necessary outpatient physical therapy, occupational therapy, and speech-language pathology services. Senators BEN CARDIN and SUSAN COLLINS are introducing this legislation in the Senate.

To remove all uncertainty for Medicare beneficiaries about being able to receive the appropriate therapy, the bipartisan Medicare Access to Rehabilitation Act of 2011 creates a stable payment environment so that health professionals can focus on providing quality health care. Rehabilitation services provided by physical therapists, occupational therapists, and speech-language pathologists are essential to assisting individuals reach their highest functional level possible and the monetary caps are inconsistent with this objective.

A March 2008 Center for Medicare and Medicaid Services, CMS, study provided evidence that enforcement of the monetary caps could cause Medicare beneficiaries harm since it may require them to delay necessary medical care, force others to assume higher out-of-pocket costs, and disrupt the continuum of care for many seniors and individuals with disabilities. Specifically, the study demonstrated that the sickest patients who suffered from Parkinson's disease or who have multiple medical problems were most likely to exceed the monetary caps.

Since inclusion of the caps in the Balanced Budget Act of 1997, both Democratic and Republican Congresses and Administrations have interceded to prevent their implementation and enforcement citing the negative impact the caps would have on elderly patients' access to necessary services. Most recently, Congress extended through 2011 the existing medical exceptions process that gives the

Secretary of Health and Human Services the authority to allow patients to exceed the monetary caps if deemed medically necessary.

Mr. Speaker, I urge my colleagues to continue ensuring that Americans have access to the highest quality physical therapy, occupational therapy, and speech and language pathology services by supporting this legislation.

INTRODUCTION OF THE IMPROVING ACCESS TO MEDICARE COVERAGE ACT

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. COURTNEY. Mr. Speaker, today I am reintroducing legislation to improve a component of our Medicare program that has left many without coverage of needed services and guaranteed benefits. My legislation, the Improving Access to Medicare Coverage Act, will allow time spent on hospital observation status to count towards a three-day qualifying hospital stay requirement for skilled nursing care services. Under current regulations established by the Centers for Medicare and Medicaid Services (CMS), only those that have received an inpatient designation and have a hospital stay of at least three days, qualify for Medicare coverage of skilled nursing care. Those on observation status, which is often indistinguishable from inpatient care, are excluded from this coverage because of an outdated and unfair CMS policy.

Our systems of care have changed, and so should our Medicare policies. This point has been reiterated in cases heard by administrative law judges involving Medicare coverage of skilled care and observation status designations. Many of these cases have supported the notion that Medicare should cover skilled nursing care, regardless if the patient's qualifying hospital stay is as an inpatient or on observation status. While administrative law judges have often supported patients in these cases, the CMS policy creates a system with arbitrary winners and losers, based on access to legal appeals. My legislation will fix this broken system.

The Improving Access to Medicare Coverage Act will count time spent in hospital observation status towards the three-day hospital stay requirement for skilled nursing care. My bill will also establish a 90-day appeals period following passage for those that have been denied coverage after January 1, 2011 due to this CMS policy. The appeals process will allow those that have a qualifying hospital stay—either as an inpatient or on observation status—after January 1, 2011 to be eligible for skilled nursing care. While I believe that the legislative text clarifies that the appeals process is available to any Medicare beneficiary that has been denied coverage after January 1, 2011 due to this policy, there should be no doubt as to my congressional intent. It is my intent that any individual, regardless of whether an initial appeals process has expired, can appeal during the 90-day window following passage so long as their hospital stay and subsequent denial of skilled care occurred after January 1, 2011.

I also want to thank the Center for Medicare Advocacy for bringing to light the impact of this broken policy. I look forward to working with the Center and the other organizations that have expressed their support of this legislation to bring resolution to this issue that has negatively impacted many of my constituents, and patients and families across the country, for far too long.

IN RECOGNITION OF THE LIFE AND LEGACY OF JOHN A. SMITH

HON. SUSAN A. DAVIS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mrs. DAVIS of California. Mr. Speaker, I rise today to recognize a leader in San Diego's veterans' community, and a treasured member of the San Diego family.

Mr. Smith was buried today in Miramar National Cemetery. My thoughts are with his family and friends as they mourn the loss of this honorable and dedicated man.

Mr. Smith joined the Army in 1966 and served as a medic with the 1st Air Cavalry Division in Vietnam. He was wounded three times while serving and was medically retired as a disabled veteran in 1972.

Following his time in military service, Mr. Smith became committed to honoring and advocating for veterans. His involvement with the Veterans Village of San Diego, and its annual Stand Down event to provide services to homeless veterans, exemplify his personal dedication to helping veterans experience an improved quality of life.

Through his active membership with the United Veterans Council, U.S. Veterans of Foreign Wars (VFW), American Legion, Military Order of the Purple Heart, Vietnam Veterans of America, and other organizations helping veterans, Mr. Smith touched many lives. He was also a special representative for the California Department of Veterans Affairs. His admirable reputation in San Diego is known far and wide in the veteran community. In 2004, Mr. Smith was honored as the San Diego County Veteran of the Year.

Mr. Smith's sense of integrity, dedication to service, and commitment to his community should serve as examples to us all. He will be missed.

RECOGNIZING AND HONORING GREATER KALAMAZOO ASSOCIATION OF REALTORS

HON. FRED UPTON

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. UPTON. Mr. Speaker, it is with great pleasure I rise today to recognize and honor the Greater Kalamazoo Association of REALTORS. For 100 years, this organization and its members have proudly served the people of southwest Michigan, while setting the bar for excellence within the real estate industry.

What began a century ago as a group of 29 individuals with the common purpose of promoting real estate in Kalamazoo, Michigan, the Greater Kalamazoo Association of REALTORS has grown to an organization with hundreds of members representing over 100 real estate firms.

Since 1911, the Greater Kalamazoo Association of REALTORS has been a leader in real estate, all the while maintaining the same professional and ethical standards upon which it was founded. From creating the first exchange of real estate listings in the State of Michigan to helping usher new industry technologies, Kalamazoo realtors represent the best in their field.

As we know, any organization or body is only as strong as the sum of its members. I would like to thank all of the members of the Greater Kalamazoo Association of REALTORS for their longstanding commitment to local economic growth as well as their work to improve housing standards and home financing, and promote private property rights and commonsense, pro-growth policies. They are truly leaders in putting Michigan back on track.

HONORING THE COMBAT SERVICE OF CORPORAL COLBEY YAZZIE

HON. PAUL A. GOSAR

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. GOSAR. Mr. Speaker, I rise today to honor one of our country's wounded warriors.

Corporal Colbey Yazzie, a resident of Kayenta, Arizona and a 2007 graduate of Monument Valley High School, volunteered to serve our nation and joined the elite ranks of the United States Marine Corps just after high school graduation. We have spoken to Corporal Yazzie's father, Henry, who we know could not be more proud of his son. Corporal Yazzie is also a member of the Navajo Nation, a tribe that has provided our country with brave warriors year after year for decades. For this sacrifice, I stand here and pay our respects as a nation and I ask for a moment of prayer.

Today I want to specifically honor Corporal Colbey Yazzie. Corporal Colbey Yazzie was deployed in support of Operation Enduring Freedom in Afghanistan. He was assigned to the Marine Corps Combat Engineers. Corporal Yazzie was seriously wounded while supporting combat operations while engaged in a dismounted marine force patrol in Helmand Province, Afghanistan. He detonated a push plate improvised explosive device while on this combat patrol, and the resulting explosion severed his right leg above the knee.

Just shortly before Corporal Colbey Yazzie was injured, author Bing West travelled with Corporal Yazzie's unit, and described the high level of professionalism, determination and bravery these Marines demonstrated day in and day out. I truly wished everyone in America understood the sacrifice, bravery and diligence our Marines embody. The article is called "With the Warriors: Patrol Base Fires, Sangin District, Helmand Province, Afghanistan'' and was published in the March 7th edition of the National Review. Let me excerpt some of what Mr. West wrote about Corporal Yazzie and his unit, again, shortly before Corporal Yazzie was injured:

The view from this platoon outpost in southern Afghanistan is unobstructed, both visually and strategically. On all sides stretch flat, bare, winter farmlands dotted with walled compounds. The strategy is aggressive patrolling to kill and drive out the

Taliban, who have acted as the rural government here for 15 years. . . .

The patrol base, named Fires because of the intensity of the daily fighting, was at the northern edge of the Marine advance. When I arrived in mid-January, Lt. Vic Garcia, the seasoned platoon commander, handed me two tourniquets. ''If someone goes down near you on patrol,'' he said, ''wrap him real tight and watch where you step.'' Garcia explained that the Taliban roam in small gangs among the farm compounds, sow mines, and attack from the flanks. When we set out on a combat patrol, the 15 Marines walked in single file across brown, furrowed farmlands suggestive of New England in early spring. Lance Cpl. Colbey Yazzie, a full-blooded Navajo Indian, swept a narrow path with his metal detector, while his Irish-American partner, Lance Cpl. Kyle Doyle, watched out for snipers.

Near a footbridge across an irrigation canal, Yaz clenched his fist to halt the platoon, then knelt down and scratched at the dirt. He took out wire cutters, snipped a few wires, and held up two small boards wrapped in tape. Glued to the underside of each board was a sliver of metal. When a foot pressed down on the boards, the metal plates came together, completing an electrical circuit connecting a flashlight battery to a plastic jug filled with explosives. Yaz attached a small charge to the IED (improvised explosive device) and blew it up, and the patrol continued.

In 100 days of patrolling four kilometers north of the Sangin district center, Kilo Company of the 3rd Battalion, 5th Marine Regiment had found 115 IEDs. Another 14 had exploded. Of the 136 Marines in Kilo, nine had been killed and 35 severely wounded. Of four platoon commanders, one had been killed and another had lost a leg to a mine. . . .

After discovering the first IED, we walked north at a steady, careful pace. Not one farmer was out tilling the lands sown with mines. Yaz again clenched his fist, knelt down, disarmed and blew up an IED. The patrol continued for a while, then halted suspiciously at the edge of a large field. On the far side were two long compound walls, dotted with ''murder holes''—small peepholes for the Taliban rifle barrels.

The Marines peered at the wall through the telescopic sights on their rifles. Suddenly, the squad leader, Sgt. Philip McCulloch, fired a single shot. The Marines' counter is equally simple. One element peels off to flank the enemy, while another keeps aimed fire on the enemy position. If the Taliban remains too long in a fixed location, indirect fire (fire without a line of sight to the target, as from artillery) is called in. Every Marine has a telescopic rifle, and most of the fleeting targets are about 400 meters distant.

Yaz was leading the patrol back by a different route across a furrowed field when he stopped a third time. Again he uncovered a pressure-plate IED. ''That's crazy,'' McCulloch said. ''An IED in the middle of nowhere.'' That IED was sure to blow the legs off a passing farmer—or a Marine. Yaz pointed to three small rocks several feet away, a tipoff for a passing Taliban gang that there was a mine in the vicinity.

A few minutes later, we walked past a crumbled wall, startling two dark brown coyotes. Again Yaz stopped, knelt. and disarmed a pressure plate. Four mines in the path of one patrol, and he had found them all.

Bing West, ''With the Warriors'' (emphasis added). What Mr. West has described here is an amazing act of bravery and professionalism by Corporal Yazzie and his fellow Marines. In just one patrol, on one afternoon, Corporal Yazzie located and disarmed four IEDs. Four hidden bombs designed to kill or maim indiscriminately, whether it is a child, a farmer, or a Marine. By doing his job, Corporal Yazzie can be credited with saving lives and limbs that day, and likely on many other days.

But Corporal Yazzie's service was not free. There is a high cost that has been paid, and continues to be paid. On March 26, 2011, in an effort to save lives, Corporal Yazzie detonated an IED and sacrificed his right leg.

Corporal Yazzie, we honor your service. To the others in your unit, and the rest of the Marine Corps, please know, we honor your service and sacrifice as well. You are not forgotten. You are appreciated more than you know.

INTRODUCTION OF THE SOCIAL SECURITY IDENTITY DEFENSE ACT OF 2011

HON. THOMAS E. PETRI

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. PETRI. Mr. Speaker, today, along with Rep. JOE DONNELLY of Indiana, I am introducing the Social Security Identity Defense Act of 2011, legislation to enhance the ability of the Internal Revenue Service to fight identity theft when that agency becomes aware of the fraudulent use of a taxpayer's personal information.

This legislation is a direct response to the experience of constituents of mine in Princeton, Wisconsin. After a routine review of his credit report, this constituent found accounts opened by another person that had used his Social Security number. This discovery raised many concerns, not the least of which that this person's income might be reported to the IRS under his Social Security number. Upon contacting the IRS, he was told that the IRS was aware of the situation and that they had known about it for some time.

Not surprisingly, this answer was not altogether comforting. The IRS knew that someone else had been using his Social Security number, but kept that information to themselves. While the IRS remained silent, additional frauds were committed, resulting in the credit accounts opened using my constituent's personal information. When he raised this issue with the IRS, he was astounded by the agency's answer. Privacy statutes prevent the IRS from discussing the return information of one taxpayer with anyone else. In the view of the IRS, the fraudulent use of my constituent's Social Security number was the personal return information of another taxpayer, and this fraud could not be disclosed to the rightful owner of that personal identifier.

This policy makes no sense and actually puts the IRS on the wrong side in the fight against identity theft. Our legislation aims to correct this problem by changing the privacy statutes to direct the IRS to inform a taxpayer when it learns through its normal course of business that a Social Security number assigned to that taxpayer has been used fraudulently by another worker.

In May 2006, President George W. Bush signed an executive order establishing the Identity Theft Task Force made up of the U.S. Attorney General, the Chairman of the Federal Trade Commission, several heads of cabinet-level departments, and various other officers of the U.S. Government. The Task Force was directed to implement a policy ''effectively to deter, prevent, detect, investigate, proceed against, and prosecute unlawful use by persons of the identifying information of other persons.'' Elaborating on this policy goal, the Executive Order went on to specify actions to increase safeguards that Federal departments and agencies could implement to better secure government-held personal data.

In responding to the President's charge, the Task Force issued a strategic plan, including numerous specific recommendations focused on improvements in four key areas. Keeping sensitive consumer data out of the hands of identity thieves; increasing the obstacles to the fraudulent use of any personal data obtained by an identity thief; assistance for victims of identity theft; and deterring this crime by aggressive prosecution and punishment of identity thieves.

Combating identity theft is an important and difficult job. I believe that the Task Force has made a commendable contribution to this effort and that implementation of its recommendations by public and private entities will help in fighting this crime. As the report itself notes, ''Only an approach that encompasses effective prevention, public awareness and education, victim assistance, and law enforcement measures, and fully engages federal, state, and local authorities will be successful in protecting citizens and private entities from the crime.''

The recommendations included in this strategic plan, however, do not include improved efforts by the IRS in assisting honest taxpayers in fighting identity theft. For this reason, the Social Security Identity Defense Act picks up where this strategic plan left off and provides an additional vital tool for our government to deploy.

Under this legislation, the IRS would be required to share any information in its possession about the fraudulent use of a taxpayer's personal information with that information's rightful owner. The agency also would be directed to transmit information that may be evidence of an identity theft to the FBI so that the Bureau can make this material available to state and local law enforcement agencies upon their request. Finally, the Social Security Identity Defense Act calls for the IRS to direct employers not to include a Social Security number on a W–2 form when that agency is aware that the employee is making fraudulent use of that number.

These are important steps forward. They will empower both citizens and law enforcement agencies in their efforts to combat identity theft, and they will limit the use of personal identifiers in the commission of future crimes. I urge my colleagues to join me and Rep. DONNELLY in this effort by cosponsoring the Social Security Defense Act.

INTRODUCING THE NATIONAL PATRIOTS MEMORIAL ACT

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. NORTON. Mr. Speaker, today I introduce the National Patriots Memorial Act. The

bill will authorize the establishment of a memorial on federal land in the District of Columbia to honor the patriots of the Revolutionary War and the War of 1812, as well as our international allies that fought in support of gaining and then preserving our nation's freedom during these wars. Funding for the memorial will come entirely from private funds.

The National Patriots Memorial will be an important addition to the nation and to the District of Columbia alike. The memorial will preserve the history of the Revolutionary War and the War of 1812, and celebrate the patriots and allies who fought in them. The National Patriots Memorial also will remind the nation that DC residents fought in the Revolutionary War, the war that created the nation itself, and the War of 1812, just as our residents have served in all of the nation's wars, and are doing so today. The memorial also will serve to educate visitors to the nation's capital about the early years of our country's issues, conflicts, and growth.

I urge my colleagues to support the bill.

HONORING RICHARD E. WINNIE

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. LEE. Mr. Speaker, I rise today with my colleague, Mr. STARK to honor the extraordinary life of Mr. Richard E. Winnie, a brilliant legal mind whose combination of integrity, acumen and good humor made him an outstanding public servant and invaluable in his role as County Counsel for the County of Alameda. With Richard E. Winnie's passing on March 28, 2011 at the age of 63, we look to the remarkable legacy of his life's work and the joy he inspired in his many friends and loved ones.

Richard E. Winnie was born April 14, 1947 to Emily and H. Edward Winnie in Oakland, California. The family eventually settled in Eureka, California, where Richard attended high school. He graduated magna cum laude with a B.A. in Economics from Humboldt State University, HSU, received his master's degree in Public Policy at the University of California, Berkeley, and his law degree from the University of San Francisco. Mr. Winnie's early interest in civic service and local municipalities began while still a student at HSU in his work for the Eureka City Manager's office and the Associated Students Council.

His next destination was Washington, DC, where from 1971 to 1977, he served the Urban Institute's State and Local Government Research Program as a policy analyst. During his time there, Mr. Winnie authored several publications on municipal government, one of which became the Institute's largest-selling published text.

In 1975, Mr. Winnie was admitted to the California Bar. He returned to his roots to serve as Oakland City Attorney from 1981 to 1987, and also worked for the cities of Berkeley, Palo Alto, and Santa Rosa. For the next 6 years, he specialized in property, business and municipal law as a partner with Jacobs, Spotswood, Ryken, and Winnie, and in 1993 began a 4-year stint as an advisor to the Government of Armenia in its transition to independence and a market economy. In fact, Mr. Winnie's penchant for international legal guidance had a global reach. Over the course of his career in the Bay Area, he also helped to develop local property laws for emerging governments throughout the South Caucases, Central Asia, Southeastern Europe, and small parts of South America and the Middle East.

After specializing in public law as a partner of Oakland's Wendel, Rosen, Black, and Dean from 1994 to 1997, Mr. Winnie began his 13-year tenure as Alameda County's top legal advisor to the Board of Supervisors, County Administration and the Oakland-Alameda County Coliseum Authority. In his role as County Counsel, Mr. Winnie's many accomplishments included successful litigation to restrict gun shows at the Alameda County Fair, to allow public access to Oakland's waterfronts and to confront legal clashes with local professional sports teams. Among his many accolades and associations, Mr. Winnie served numerous local boards, was a member of the U.S. Supreme Court Bar, worked to promote microenterprise with the New America Foundation, and received HSU's Distinguished Alumni Award in 2009.

Richard E. Winnie was known for fostering mutual relationships of respect and pride among his talented staff and colleagues. In his legal dealings, he was skilled at eliciting an agreement through logic, diplomacy, and steady professionalism. And in his free time, he enjoyed being a youth mentor, an avid baseball fan, an accomplished mountain climber and a prolific party host. Mr. Winnie will be remembered as much for his ability to inspire people, as his ability to make them laugh.

Today, the residents of California's 9th and 13th Congressional Districts salute and honor a stalwart member of our community and a dear friend, Mr. Richard E. Winnie. The countless contributions he made to others throughout his life are lasting and significant. We express our sincere condolences to his extended group of loved ones, friends and colleagues. He will be deeply missed.

PERSONAL EXPLANATION

HON. CHARLES F. BASS

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. BASS of New Hampshire. Mr. Speaker, while I was present for rollcall vote 200 on March 30, 2011, my vote was not recorded. This vote was on H. Res. 186, the rule providing for consideration of H.R. 471 to reauthorize the DC opportunity scholarship program.

Had my vote been recorded, I would have voted in favor of H. Res. 186.

HONORING NICOLE PASSONNO STOTT

HON. GUS M. BILIRAKIS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. BILIRAKIS. Mr. Speaker, I rise today to honor NASA Astronaut Nicole Passonno Stott, who served on the final mission of the Space Shuttle *Discovery*.

So many Americans look to the space program with pride and admiration. Many children aspire to one day become astronauts, which is where Mrs. Stott found her calling. Mrs. Stott is alumna of Clearwater High School, which is in my congressional district. She began her career at NASA in 1988, holding various positions within NASA Shuttle Processing, the Space Station Hardware Integration Office, the NASA Aircraft Operations Division, and the Astronaut Office Station Operations Branch.

In 2000, Mrs. Stott began astronaut candidate training and in 2009 completed her first long duration space flight on the International Space Station. She returned to the International Space Station in 2010, as part of the 39th and final mission for *Discovery*.

The space program is a huge economic engine for the state of Florida. Not only are breakthroughs made in science and technology, but the byproducts of this research also spur tremendous advancements in the medical field. I am particularly intrigued by the work NASA has done with prosthetics research that has benefitted our wounded warriors.

I look forward to watching the continued success of the space program in the future and watching future generations of my constituents advance science and technology, just as Mrs. Stott has done.

CONGRATULATING LAURA ELIZABETH HAHN

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. COURTNEY. Mr. Speaker, I rise today to recognize and congratulate Laura Elizabeth Hahn from Colchester, Connecticut on her selection into the Army Reserve Teen Panel. The honorable members of the Army Reserve make enormous sacrifices to guarantee the security of our great nation. In addition, their family members bravely make sacrifices every day in order to allow the soldiers to continue serving the nation. We recognize that this environment is often the hardest on children, who have to deal with unique pressures at a young age. This is why the Army Reserve Teen Panel, a select group of 30 high school students who represent and advocate for Army Reserve youth globally, exists and this is why Laura's selection should be honored.

Laura is currently a sophomore at Bacon Academy in Colchester, where she is an honors student. At Bacon Academy, Laura is also a varsity cross-country runner, a member of the Junior Engineering Technology Society, and a participant in the Science, Technology, Engineering, Math Club. Prior to her selection as a member of the Army Reserve Teen Panel, Laura has had experience serving as an ambassador; first with People to People in England and France, and more recently with the Trinity Lutheran Church as a youth delegate to the ELCA youth gathering in New Orleans. These experiences have well prepared Laura to fulfill all of her responsibilities as a member of the Army Reserve Teen Panel.

As a member of the Army Reserve Teen Panel, Laura will attend national panel conferences and serve as a junior mentor during Army Reserve Youth, Leadership, Education,

and Development summits. Laura will also be expected to volunteer in her community, write articles for the Army Reserve Teen Panel's quarterly newspaper, and prepare presentations to inform Army Reserve Leadership about the issues of Army Reserve youth. I am confident that Laura will excel in her position as a member of the Army Reserve Teen Panel.

I would like to offer my continued support of the Army Reserve Teen Panel and the bright young men and women like Laura who represent our Army Reserve youth. I would like to express my gratitude, once again, to the Army Reserve members who fight for America. Once again congratulations to Laura Hahn and thank you to the military personnel and their families who sacrifice so much for our Nation.

REINTRODUCTION OF THE SEPTEMBER 11 FAMILY HUMANITARIAN RELIEF AND PATRIOTISM ACT

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mrs. MALONEY. Mr. Speaker, today, I am reintroducing the bipartisan September 11 Family Humanitarian Relief and Patriotism Act with Representatives PETER KING, JERROLD NADLER, GARY ACKERMAN, RUSH HOLT, RAUL GRIJALVA, YVETTE CLARKE, ANTHONY WEINER, ELIOT ENGEL and STEVE ISRAEL.

The losses that resulted from terrorist attacks of September 11, 2001 are tremendous. For a dozen individuals, the turmoil of the attacks continues as they remain in jeopardy of being deported since their immigration status was linked to a family member who was employed at the World Trade Center. To address this situation, I am reintroducing the September 11 Family Humanitarian Relief and Patriotism Act, which would provide for the adjustment of status or the cancellation of removal for those who are the spouse, child, dependent son, or dependent daughter of victims who were killed on 9/11.

The Department of Homeland Security under the Bush administration and the Obama administration has allowed the affected spouses and children to stay here while a permanent solution is crafted by Congress. Nearly ten years later, the surviving spouses and children of legal employment-based visa holders and undocumented workers who were killed during the attacks should no longer be in limbo.

I urge my colleagues to support this legislation. Those who lost so much on 9/11 deserve answers and should be given legal status in the U.S.

CELEBRATING THE SRI LANKAN NEW YEAR

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. WILSON of South Carolina. Mr. Speaker, having just ended a decades long conflict in which the government finally defeated terrorist forces within its borders, the Republic of Sri Lanka recently celebrated its second New Year at complete peace.

In his New Year address, President Mahinda Rajapaksa stated celebrating the New Year is a ''time when all enjoy the freedom achieved in our Motherland. Therefore, this New Year will help bring a renewal in spirit and new expectations to the people about future progress.''

I would like to wish a happy new year to the 250,000 Sri Lankan-Americans, along with the 21 million citizens of Sri Lanka, a dynamic nation of South Asia.

During this time of national reconciliation, I look forward to a new era of Sri Lankan-American relations built on economic, strategic, and political cooperation between our two democratic societies.

CELEBRATING EARTH DAY

HON. ALBIO SIRES

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. SIRES. Mr. Speaker, on April 22nd, we celebrate the 41st Earth Day and recognize the achievements Americans have made to improve our environment.

Since the first Earth Day in 1970, Americans have worked to improve the air we breathe and the water we drink. Four decades later, we have made great strides towards protecting our planet for future generations by making investments in a clean energy economy to create millions of American jobs, lower energy costs for American families and businesses, and reduce our dependence on foreign oil and our carbon foot print

We must tackle tough environmental challenges, such as climate change, through investments in a clean energy economy to wean our nation off of our dangerous dependence on foreign oil and create green American jobs. It is also important that as we find ways to reduce our deficit that we do not jeopardize the safeguards in place to protect our air and water.

It is necessary to continue to push forward with a clean energy plan, but the environmental challenges we face cannot be solved by laws alone. That is why it is important on this day for every American to take a moment and recognize the simple things that they can do within their own homes and communities to contribute to a cleaner and healthier planet Earth.

GASOLINE PRICES

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. BARLETTA. Mr. Speaker, I'm angry.

This week, I drove down to Washington from my hometown of Hazleton—a commute I make each week. As I filled up my tank, I got angry.

At home right now, gas prices average about $3.80 a gallon. That's almost a dollar a gallon more than just six months ago.

In some parts of my district, gas is now at $4 a gallon.

Mr. Speaker, I am angry. People back home are angry, and this Congress should be angry.

For too long, Washington has been ignoring our nation's need for liquid fuel.

Let's be completely honest: We need liquid fuel, and we will always need liquid fuel—in my lifetime, in my children's lifetimes, in my grandson's lifetime.

So why isn't Washington doing anything to address that need?

Alternative energy is fine. Solar power, wind power, even nuclear power—those are all well and good, but they're not going to move our nation's cars. They're not going to move our nation's trucks and trains. They're not going to keep our planes in the air.

Why does every energy plan we have seem to downplay our need for liquid fuel—liquid fuel that can be and should be produced here at home?

Instead, we rely on foreign sources for our liquid fuel. The United States may be the richest, most powerful nation in the world, but we ask other countries to provide the resources we need to power our factories, drive our vehicles, heat our homes, and live our lives.

And when there is a problem virtually anywhere in the world, we pay for it here at the pump. We pay for it when we buy milk, bread and eggs. We pay for it when we pick up our kids at school. We pay for it when a police car patrols our neighborhoods. We pay for it when we go on vacation.

So much of our economy is tied to the rise and fall of gas prices. And every single sign we see—the unrest in the Middle East, the economic tiger in the Far East, the coming seasonal spike in energy prices as Americans head into the summer vacation season—compels us to act.

And what is Washington doing? Nothing.

And that's what makes me—and the American people—so angry about this problem.

It's not that we don't have the resources. We do. From the Arctic to the Gulf of Mexico, we have plenty of liquid fuel here in the United States. We also have plenty of other natural resources that can be used to free up liquid fuel to move our cars, trucks, trains, and planes.

For example, in my home state of Pennsylvania, we have up to 500 trillion cubic feet of natural gas available in the Marcellus shale. In northeastern Pennsylvania, we're sitting on more natural gas than Saudi Arabia has oil! What's more, there's research that indicates there is another, deeper layer of different shale that can yield even more natural gas in the future.

It's not that we don't have the innovators. We do. In and near my district, we have brilliant people figuring out ways to extract natural gas from Marcellus shale, and make our abundant coal cleaner, and turn that hard coal into liquid fuel.

So what's the problem?

To me, the answer is simple: Washington.

At a time when gas prices are crushing our economy, we must use all the ways we can to provide people with some relief.

Instead, we tie up liquid fuel producers in red tape.

We need to cut that tape. We need to tap in to our nation's vast natural liquid fuel resources. And we must encourage innovation for new liquid fuel sources.

Every day I come here, we talk about continuing resolutions and budgets and taxes and creating jobs.

But absolutely nothing we can do right now will stimulate our economy as much as putting more gasoline, diesel, home heating oil, aviation fuel, and other liquid fuel into the market.

What in the world is Washington waiting for?

COMMEMORATING THE 25TH ANNIVERSARY OF THE CHERNOBYL NUCLEAR DISASTER

HON. MIKE QUIGLEY

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. QUIGLEY. Mr. Speaker, on behalf of more than 111,000 of my constituents who are of Polish descent, I rise to commemorate the 25th anniversary of the nuclear disaster at Chernobyl. We remember those in Russia, Belarus, and Ukraine, many of whom suffered the loss of life, health, and home as a result of this tragedy.

The accident at the nuclear power plant in Chernobyl occurred on April 26, 1986, and is considered to be the most serious nuclear disaster in human history. A flawed reactor ruptured, causing a cloud of highly radioactive smoke to be spread over a wide geographic area. Unaware of the seriousness of the situation, firemen and emergency workers were summoned to the catastrophe. Many received high doses of radiation and later died as a result.

The entire town of Pripyat was forced to evacuate, and, in total, it is believed that more than 200,000 people were forced to relocate due to the Chernobyl disaster. An area of more than 150,000 square kilometers is considered to be contaminated, and the immediate area around the plant is still, for the most part, uninhabited.

This tragedy came at a huge human and environmental cost, and so it is of the utmost importance that it not be forgotten. For this reason, I would like to acknowledge the work of the Kyiv Committee of the Chicago Sister Cities International Program which is working to commemorate the anniversary of this tragedy through a program highlighting response and recovery efforts.

Mr. Speaker, on this, the 25th anniversary of the Chernobyl tragedy, I invite my colleagues to remember those who suffered as a result of this disaster, as well as recognize the efforts of the Chicago Sister Cities International Program. Only by commemorating and learning from this catastrophe will we able to move forward towards a safe and productive future for nuclear energy.

IN RECOGNITION OF WILLIAM P. HITE AND THE UNITED ASSOCIATION

HON. BOB FILNER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. FILNER. Mr. Speaker, I rise today to congratulate General President William P. Hite for his selection as the 2011 recipient of the Military Officers Association of America's Distinguished Service Award.

This most recent recognition and honor are well deserved. As General President of the 350,000 members of the United Association of Plumbers, Pipe Fitters, Welders, Sprinkler Fitters, and HVAC Technicians, Bill has worked tirelessly to ensure members of our armed forces have access to the very best careers in his industry.

His organization provides one of the best services available to our veterans. The Veterans in Piping Program trains veterans for the finest careers in the industry. The United Association's Veterans in Piping partnership with the Marines at Camp Pendleton is considered by many to be the most successful military transition program in the country. Secretary of Labor Hilda Solis described it as ''an awesome program'' and one that ''should be expanded throughout the United States.'' It differs from other programs in that it trains Marines prior to discharge—at no cost to the individual—in a certifiable skill, and then provides the network and connections to ensure job placement. Every graduate of the program has been successfully placed in the position of second year Apprentice or higher with the exception of a handful who have either re-enlisted or gone on to college.

General President Hite's service to our armed forces and veterans is accentuated by a distinguished career in public service. He was appointed by President George W. Bush to the Task Force on Rebuilding the Gulf Coast and to the Committee for Trade Policy and Negotiations; and, by President Barack Obama to the President's Export Council. He has been called upon by the leaders of both of our political parties in recognition of his fidelity, objectivity, and candor. These characteristics have made him among the most respected labor leaders in the United States.

As we recognize General President Hite and the United Association today, I wish to point out that he is a third generation union member and the membership of the United Association voluntarily bears all of the costs of its veterans programs. The membership supports the men and women of our armed forces with a record of commitment that is second to none. I am particularly and personally proud of the work that San Diego based Local 230 has done to implement this successful and innovative program at Camp Pendleton.

HONORING YAZMIN SPEARMAN FOR WINNING THE LESSONS OF THE AFRICAN-AMERICAN EXPERIENCE WRITING CONTEST

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. COURTNEY. Mr. Speaker, I rise today to recognize Yazmin Spearman as a winner of the second annual Lessons of the African-American Experience Creative Writing Contest. Yazmin is currently in the eighth grade at the Interdistrict School for Arts and Communication, which is located in New London, Connecticut.

In celebration of Black History Month, I sponsored a creative writing contest for all third through eighth grade students within the Second District. As we know, Black History Month is a time to reflect on the struggles and triumphs of our nation's past. The lessons learned during this month continue to serve as the stepping stones of our nation's future. Yazmin's essay ''African American Music History: The Reason I Remember Black History Month'' eloquently embraces this belief.

Yazmin's essay shows a remarkable enthusiasm for learning that is inspiring to all. She identifies the principles of perseverance and discipline as embodied by Marion Anderson and Stevie Wonder. Yazmin creatively discusses how their successes and failures encourage her dreams of becoming a musician. For this, her essay was among the winners selected.

RECOGNIZING MONICA GUZMAN ON BEING NAMED THE 2011 U.S. SMALL BUSINESS ADMINISTRATION'S WOMEN IN BUSINESS CHAMPION OF THE YEAR FOR GUAM

HON. MADELEINE Z. BORDALLO

OF GUAM

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. BORDALLO. Mr. Speaker, I rise today to recognize Ms. Monica Okada Guzman for her years of outstanding business leadership and community involvement on Guam. Ms. Guzman is the Chief Executive Officer and Managing Partner of Galaide Group, a full service communications and public relations firm on Guam. She was recently named the 2011 U.S. Small Business Administration's Women in Business Champion of the Year for Guam.

Ms. Guzman partnered with local artist Ron Castro in 1998 to form the Galaide Group, which provides services that combine Chamorro culture, art, and language with public relations and advertising campaigns on Guam. Under Ms. Guzman's leadership, the Galaide Group has grown to 45 employees, more than half of whom are women. The Group has expanded its services to provide a full range of communications and public relations services to public and private sector clients on Guam. Ms. Guzman's efforts with the ''We Are Guam'' project through the Guam Visitors Bureau indentified many women leaders on Guam to serve as Village Ambassadors and promote Chamorro cultural traditions. Her business has also focused on developing small business opportunities on Guam, and it helped to coordinate the Guam Industry Forum series and the Guam Economic Forum. These projects promoted awareness of business opportunities on Guam and helped to form partnerships between local small businesses and off-island firms.

Ms. Guzman is actively involved in a variety of community organizations on Guam. She has worked with the Guam Women's Club, Women in Movement, and the Guam Make-a-Wish Foundation. She is also a member of the Board of Directors for the Guam Council on the Arts and Humanities and TASI, an organization dedicated to the preservation of traditional canoe construction, sailing, and navigation practices.

I congratulate Monica Guzman on being named the 2011 U.S. Small Business Administration's Women in Business Champion of

the Year for Guam. I join the people of Guam in commending her for her award and thanking her for her contributions to our community.

THIRD ANNUAL DC TAP FESTIVAL

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. NORTON. Mr. Speaker, I rise today to ask the House of Representatives to join me in celebrating the third annual DC Tap Festival, taking place in Washington, DC from April 15–April 17, 2011. I also ask the House to recognize its founders, Chloe and Maud Arnold, both of whom are natives of the District of Columbia, for their contributions to our great city and to the art form, tap dance.

The third annual DC Tap Festival will attract over four generations of tap dancers from around the world, and will heighten global respect and appreciation for a rich American art form, tap dance. The mission of the DC Tap Festival is to unite the global tap community, bringing people together from around the world to celebrate dance, while bridging the gap between the hip-hop and jazz generations through the classic, timeless art form of tap dance. The DC Tap Festival is a forum for the creative and artistic processes.

We acknowledge the founders, sisters Chloe and Maud Arnold, for their commitment to this city. They have received international acclaim for tap dancing, after studying at two Washington-based dance companies, DC Dance Collective and Duke Ellington School of the Arts, and performing at highly acclaimed D.C. venues such as Dance Place and the Kennedy Center. The Arnold sisters have returned to their hometown, every year for the past three years, to celebrate tap dance and to encourage the next generation of tappers to pursue their dreams. This year, the DC Tap Festival welcomes groups from as far away as Taiwan, and will showcase a fabulous array of tap-dance techniques and styles in a variety of musical genres through workshops, jam sessions, cutting contests, and an all-star concert performance.

Chloe and Maud Arnold were fortunate to grow up in D.C. during a time when funding for arts programs was available. They have trained with tap-dance legends such as Harold Nicholas of the Nicholas Brothers, Pegleg Bates, Buster Brown, Gregory Hines, Savion Glover, and with dancer and arts patron extraordinaire Debbie Allen. Both sisters are graduates of Columbia University's Film School, and performers, choreographers, and teachers worldwide.

In addition to being an art form, dance can be an aerobic activity that helps to improve heart health, strengthen muscles, increase flexibility, and burn calories. As I work to celebrate dance as an art form and to promote the health benefits of dancing, I will reintroduce a resolution to recognize July 31st as National Dance Day, both in the nation's capital and throughout the United States.

On July 31, 2010, with a few thousand District residents and tourists, we gathered on the National Mall to watch, learn from and dance with Fluria Flamenco, Step Afrika, Beat Ya Feet Kings, Capitol Movement Project, DCypher, Banneker Ball Room Dancing Club, and many more. I was joined on the Mall by ''So You Think You Can Dance'' co-creator, executive producer, and judge Nigel Lythgoe, by Dominique Dawes, the U.S. Olympic gymnast and a member of the President's Council on Fitness, Sports & Nutrition, and by the Dizzy Feet Foundation to promote dance as an avenue for physical fitness and artistic expression. Our country has an adult and childhood overweight and obesity epidemic, and we need to promote physical activity among children and adults, especially dancing, the exercise that many of us most enjoy!

I ask the House to join me in celebrating the third annual DC Tap Festival, taking place in Washington, DC from April 15–April 17, 2011, and to recognize Chloe and Maud Arnold's lifetime of passion for tap dancing and hard and productive work and service to the community.

RECOGNIZING ALBERT WU ON BEING NAMED THE 2011 U.S. SMALL BUSINESS ADMINISTRATION'S MINORITY SMALL BUSINESS CHAMPION OF THE YEAR FOR GUAM

HON. MADELEINE Z. BORDALLO

OF GUAM

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. BORDALLO. Mr. Speaker, I rise today to recognize Mr. Albert Wu for his years of outstanding business leadership and community involvement on Guam. Mr. Wu is the Executive Partner of FADA Investment LLC, a small business that owns and manages numerous real estate properties on Guam. He was recently named the 2011 U.S. Small Business Administration's Minority Small Business Champion of the Year for Guam.

Albert Wu was born in Taipei, Taiwan to Chuck C. Wu and Shiu Fong Wu. He and his family moved to Guam in 1972—when he was just 11 years old. After completing his secondary education in the Guam public school system, Mr. Wu went on to attend California State University in Los Angeles; he graduated in 1983 with a Bachelor of Science degree in Civil Engineering. After graduation, Mr. Wu worked for several California businesses, but he returned to Guam to assist with his family's business, Sunny Wholesalers. In 1991, Mr. Wu married Shana Wu, and they have three children: Stephanie, Alexander, and Sophia.

In the early 1990s, Mr. Wu founded AAA Cellular, which later became HafaTel GSM Telephone, a wireless communications company on Guam. HafaTel provided affordable telecommunication rates to over 15,000 subscribers and revolutionized Guam's wireless communications industry as the first provider of GSM and SMS texting services on the island. Mr. Wu helped to serve minority groups on Guam by providing multi-lingual services and offering affordable fees for clients to communicate with family and friends off-island. In 2007, Mr. Wu sold HafaTel and founded FADA Investment LLC, a real estate property management firm.

Mr. Wu is an active member of our island community. He has been involved in several charitable and civic organizations, including the Chinese Chamber of Commerce, the Chinese School Foundation, and the Make-a-Wish Foundation. Through his involvement in these organizations he has helped to improve our island community.

I congratulate Alfred Wu on being named the 2011 U.S. Small Business Administration's Minority Small Business Champion of the Year for Guam. I join the people of Guam in commending him for his award and thanking him for his contributions to our community.

TRIBUTE TO MR. CHARLIE STILLITANO

HON. BILL PASCRELL, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. PASCRELL. Mr. Speaker, I would like to call to your attention to the work of a man I am proud to represent in Congress and prouder still to call friend, Mr. Charlie Stillitano. Charlie has been named Man of the Year by the Milan Club and was recognized in a ceremony on Saturday, March 26, 2011.

It is only fitting that he be honored in this, the permanent record of the greatest freely elected body on earth, for he has a long history of dedication and commitment to his community.

Charlie Stillitano is a man who has led a most distinguished career in the world of professional sports. He is a great American who has found a way to put his passion for soccer and love for others into all that he does. Charlie began this journey at Princeton University where he was a four-year starter, three-time All-Ivy, All-American Captain of the Men's Varsity Soccer Team. He also received his Juris Doctorate Degree from Rutgers University.

His unparalleled career took off in 1992, serving as the Venue Executive Director for the FIFA World Cup right here in the tri-state New York area.

Following the 1994 FIFA World Cup Mr. Stillitano was named Vice President and General Manager of the NY/NJ MetroStars' Major League Soccer Team. Under Charlie, the MetroStars were able to secure the services of some of the world's top Managers including Carlos Alberto Parreira (former Brazilian National Team World Champion Coach), Carlos Queiroz (2-time World Youth Champion Coach with the Portuguese National Team) and Bora Mulitinovich (former U.S. National Team Coach); and international stars such as Roberto Donadoni (of Italy), Branco (Brazil), Anthony De Avila (Colombia), Lothar Matthaus (Germany), Shaun Bartlett (South Africa), Tony Meola (USA), Tab Ramos (USA) and Nicola Caricola (Italy).

During this time, Mr. Stillitano created and established an international division which became responsible for implementing numerous successful football events such as the 1995 Parmalat Cup, 1996 FIFA World All-Star Game, 1996 U.S. Cup, 1998 Colombia vs. Scotland and Jamaica vs. The Caribbean All-Stars Matches.

Following five successful years as Vice President and General Manager with the MetroStars, Charlie continued his work with Metromedia Company as the Managing Director of the newly formed Metromedia Soccer Properties, LLC.

Metromedia Soccer Properties was responsible for the development of Metromedia's

international soccer business, including exploring the acquisition of soccer clubs, stadium development and the international match business.

Charlie's influence in the soccer world cannot be overstated. Over the course of fifteen years, from 1993–2007, Charlie also served as an inaugural Board Member of the U.S. Soccer Foundation; as its Vice Chairman for 11 years and Chairman of the Grants Committee for 14 years until his retirement from the U.S. Soccer Foundation in 2007.

Mr. Stillitano currently serves as an esteemed soccer agent at CAA Sports (a division of Creative Artists Agency), which represents more than 400 of the world's best athletes in team sports such as baseball, football, hockey and soccer, in addition to icons in individual sports, on-air broadcasters and numerous other sports personalities. Based out of CAA's New York office, Charlie represents many of the world's leading athletes and sports personalities, including Cristiano Ronaldo, Jose Mourinho, Deco, Chelsea FC-the English Premier Club and the 2009 European Champions-FC Barcelona.

The job of a United States Congressman involves much that is rewarding, yet nothing compares to recognizing the accomplishments of community leaders like Charlie Stillitano. I applaud the Milan Club for its initiative in naming Charlie the 2011 Man of the Year.

Mr. Speaker, I ask that you join our colleagues, the members of the Milan Club, Charlie's family and friends, all those who have been touched by Charlie and me in recognizing the outstanding and invaluable achievements of Charlie Stillitano.

RECOGNIZING REANNA A. CRUZ ON BEING NAMED THE 2011 U.S. SMALL BUSINESS ADMINISTRATION'S FINANCIAL SERVICES CHAMPION OF THE YEAR

HON. MADELEINE Z. BORDALLO

OF GUAM

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. BORDALLO. Mr. Speaker, I rise today to recognize Ms. Reanna A. Cruz for her years of outstanding financial expertise, business leadership, and community involvement on Guam. Ms. Cruz is Assistant Vice President and Commercial Loan Officer for the Bank of Guam. She was recently named the Guam Financial Services Champion of the Year for 2011 by the U.S. Small Business Administration (SBA).

Ms. Cruz graduated from the University of Guam in 2001, with a Bachelor of Arts in Finance and Economics. Shortly thereafter, she joined the Bank of Guam as a management trainee. In 2003, she joined the Commercial Banking Group and helped increase its SBA lending portfolio. Ms. Cruz was selected to receive special training in SBAExpress and Community Express Loan Programs. Helped in part by her expertise, the Bank earned the SBA Lender of the Year in 2010. Further, in her role as an assistant vice president, she assisted community organizations and the Small Business Development Center assess ways to improve the relationship between financial institutions and small businesses.

Ms. Cruz also serves as a mentor to junior loan officers, one of whom was named the 2010 SBA Loan Officer of the Year. Her contributions to the small business community and her understanding of modern financial services tools have helped the Bank of Guam grow and adapt to changes in the industry. Additionally, Ms. Cruz is an active volunteer for the Soroptimist International of the Marianas, where she helps women entrepreneurs navigate the challenges that many small business owners encounter.

I congratulate Reanna Cruz on being named the 2011 U.S. Small Business Administration's Financial Services Champion of the Year for Guam. I join the people of Guam in commending her for her award and thanking her for her contributions to our community.

HONORING COLONEL JOHN LAZAR

HON. THADDEUS G. McCOTTER

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. McCOTTER. Mr. Speaker, today I rise to honor and acknowledge Colonel John Lazar, upon his retirement after having served this great Nation since 1981, most recently as Director of Operational Contracting Support and Policy with the Office of the Deputy Assistant Secretary of the Army.

In 1981 John Lazar enlisted in the United States Army. Upon his graduation with a Bachelor of Science from the United States Military Academy at West Point in 1986, he was commissioned as an Armor officer. Colonel Lazar went on to serve as a Tank Platoon Leader, Scout Platoon Leader and Assistant Battalion Operations Officer in the 1st Battalion 68th Armor Regiment at Wildflecken, Germany. He commanded Alpha Troop 5th Squadron 12th U.S. Cavalry at Fort Knox, Kentucky, served as an Assistant Professor as a member of the faculty at West Point, as Chief of the Joint Contracting Center in Hungary and as a Brigade Operations Officer for the United States Army Contracting Command Europe. Colonel Lazar commanded the Defense Contract Management Agency of both Canada and Central Iraq. He also served as Military Deputy to the Director of Acquisition Resources and Analysis in the Office of the Under Secretary of Defense for Acquisition, Technology and Logistics.

Colonel Lazar has earned several graduate degrees including a Master of Science in Kinesiology from Indiana University in 1994, a Master of Arts in Procurement and Acquisition Management from Webster University in 2000, and a Master of Science in Strategic Studies from the United States Army War College in 2007. He has a vast military education consisting of Armor Officer Basic and Advanced Courses, Combined Arms Services Staff School, Command and General Staff College as well as the aforementioned United States Army War College. Colonel Lazar holds acquisition certificates of Level II in Program Management and Level III in Contracting.

Highly decorated and awarded in his career, Colonel John Lazar has earned the Defense Superior Service Medal, Bronze Star, Defense Meritorious Service Medal, Meritorious Service Medal with three Oak Leaf Clusters, Armed Forces Expeditionary Medal, Iraq Campaign Medal, Global War on Terrorism Expeditionary Medal, and the NATO Medal with Yugoslavia Bar.

Mr. Speaker, since 1981 Colonel John Lazar has faithfully served the citizens of the United States. As he enters the next phase of his life with his beloved wife Renee and their three children Erika, Jacob and Matthew, he leaves behind a legacy of dedication, integrity, and excellence. Today, I ask my colleagues to join me in congratulating Colonel John Lazar upon his retirement and recognizing his years of loyal service to our community and country.

RECOGNIZING VICENTE D. ADA ON BEING NAMED THE 2011 U.S. SMALL BUSINESS ADMINISTRATION'S JEFFREY BUTLAND FAMILY-OWNED SMALL BUSINESS OF THE YEAR FOR GUAM

HON. MADELEINE Z. BORDALLO

OF GUAM

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. BORDALLO. Mr. Speaker, I rise today to recognize Mr. Vicente D. Ada for many years of outstanding business leadership and contributions to our island community. Mr. Ada is the founder of Ada's Mortuary, Inc., a family-run funeral service on Guam. His company was recently named the 2011 U.S. Small Business Administration's Jeffrey Butland Family-Owned Small Business of the Year for Guam.

In 1972 Mr. Ada founded Pacific Funeral Home, which was renamed Ada's Mortuary, Inc. in the mid-1990s. Under his leadership, the mortuary has grown from a small, home-based business with limited inventory into a full-service operation that provides funeral services for more than 300 families on Guam every year. Throughout its history and growth, Mr. Ada has maintained Ada's Mortuary as a family-run business—with many of his children, grandchildren, great-grandchildren, and their spouses getting their first real-work experience there. Mr. Ada has successfully guided Ada's Mortuary from a small, family-run, operation into Guam's most successful funeral service business.

Mr. Ada has been actively involved in public service to our nation and on Guam. He is a veteran of the U.S. Air Force and a former Senator in the 11th, 12th, 13th and 14th Guam Legislatures. Mr. Ada has also focused his business to supports youth development by participating in school-to-work programs, which allows youth to gain work experience at the company. Ada's Mortuary also provides caskets and funeral services, at no cost, to certain religious orders, unborn children, and families who cannot afford to bury their loved ones.

I congratulate Vicente Ada on being named the U.S. Small Business Administration's Jeffrey Butland Family-Owned Small Business of the Year for Guam. I join the people of Guam in commending him on this award and thanking him for his contributions to our community.

HONORING RAMON CORTINES FOR HIS EXTRAORDINARY CAREER EDUCATING OUR NATION'S CHILDREN

HON. LAURA RICHARDSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. RICHARDSON. Mr. Speaker, I rise today to honor Ramon Cortines, a great educator who has spent more than a half century serving America's youth at the elementary, middle, and high school levels. His remarkable career as an educator dates back to 1956 when he began teaching in the small town of Aptos, California. Since then he has worked for seven school districts, spanning the country from New York to Los Angeles.

In his 55 years as an educator, Mr. Cortines has held many titles: professor, administrator, principal, chancellor, senior advisor, deputy mayor, superintendent—you name it, he's done it. But if you were to walk up to him on the street and ask him what he does, his response would be simple: ''I'm a teacher.'' Now the Superintendent of the Los Angeles Unified School District, Mr. Cortines will soon begin a much-deserved retirement. It is therefore my pleasure to publicly thank him for all he has done for our children. I highlight his career with the hope that many bright young Americans follow his example of service.

Mr. Cortines earned a bachelor's degree in speech and education as well as a pair of master's degrees in school administration and adult learning, from Pasadena College. After serving in the U.S. Army from 1953 to 1955, he took his first teaching job in Aptos, CA. In the following years he served as a teacher and administrator in Covina, CA; an administrator and superintendent in Pasadena, CA; a superintendent in San Jose, CA; and a superintendent in San Francisco, CA.

In 1993, he was appointed Chancellor of the New York City Schools, where he served for two years. He soon went on to become the Senior Advisor to U.S. Secretary of Education Richard Riley under the Clinton Administration.

For several months in 2000 he served as the interim superintendent of the Los Angeles Unified School District, then went on to become Los Angeles' Deputy Mayor for Education, Youth, and Families. In addition to advising numerous non-governmental organizations and working at Harvard, Columbia, Stanford, and Brown universities, Mr. Cortines accepted his most recent post as the Superintendent of the Los Angeles Unified School District on January 1, 2009.

Superintendent Cortines assumed this position with the same goals that he advanced as its interim director in 2000. He consistently challenged Los Angeles' lowest-performing students and schools to perform at a higher level, improving overall academic achievement and ensuring that every classroom and child is properly equipped to learn. He streamlined internal operations and encouraged greater decision-making among the administration of every school in the nation's second largest school district.

Mr. Speaker, Superintendent Ramon Cortines is one of this country's great educators, and though we are sad to see him go, we are thankful for his years of service and the impact he has made on the American system of education. I commend him for his remarkable achievements.

40TH ANNIVERSARY OF THE GAY AND LESBIAN ACTIVISTS ALLIANCE OF WASHINGTON, DC (GLAA)

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. NORTON. Mr. Speaker, I rise today to ask the House of Representatives to join me in celebrating the 40th anniversary of the Gay and Lesbian Activists Alliance of Washington, DC (GLAA), a valued organization that has become a local leader in the struggle for equal rights for the gay, lesbian, bisexual, and transgender (GLBT) community.

Since its founding in April 1971, GLAA has been a respected and tireless advocate for full and equal rights for the District of Columbia, and has been at the forefront of efforts to strengthen enforcement of the landmark D.C. Human Rights Act of 1977. One of GLAA's most significant achievements, on which it worked with coalition partners, D.C. elected officials, and District residents, was the enactment of the District of Columbia Religious Freedom and Civil Rights Equality Amendment, which permits same-sex couples to marry in the District of Columbia.

In addition to its leadership on GLBT rights in the District, GLAA has always provided leadership on a wide range of civil rights issues, such as family rights, police accountability, and access to condoms in prisons and D.C. public schools. GLAA also emphasizes effective public health strategies and accountability in the fight against HIV/AIDS in the District.

At GLAA's 40th anniversary reception on April 20, 2011, the recipients of its 2011 Distinguished Service Awards will be recognized, including The Right Reverend John Bryson Chane, an Episcopal Bishop of Washington since 2002, a leader on issues of faith, politics and religion, an advocate for seniors, homeless and GLBT citizens, and a leader on interfaith dialogue and study; Sharon Farmer, a native of the District of Columbia and the first African American and woman to serve as Director of White House Photography, where she shot news stories, political campaigns, cultural events, conferences and portraits, including of President Bill Clinton and First Lady Hillary Rodham Clinton; David Friedman, Director of the D.C. Regional Office of the Anti-Defamation League of B'nai B'rith, a co-founder of the Bias Crimes Task Force, and a longstanding ally of the GLBT community who advocates for victims of hate crimes and legislation to address bullying and harassment of GLBT students in D.C. public schools; Theodore ''Teddy'' Guerrant, the longest serving accompanist in the gay and lesbian choral movement, including with the Gay Men's Chorus of Washington, DC since 1983, an accompanist for the Central Maryland Chorale for eleven years, a member of the National Philharmonic Chorale at Strathmore Music Center for twenty-nine years, and an Organist-Choirmaster at St. Margaret's Episcopal Church in Washington, DC for thirteen years; Ronald King, a longtime public servant in the District of Columbia who served as a Director of Prevention and Intervention Services for the HIV/AIDS Administration, a Government Co-Chair of the D.C. HIV Prevention Community Planning Group, a manager of the first Centers for Disease Control & Prevention-funded outreach program in the District of Columbia for Black and Latino sexual minorities and of several HIV/AIDS programs, and co-founder of the DC Needle Exchange Coalition and the award-winning AIDS Program of the National Basketball Players Association; and David C. Ward, co-curator, with Jonathan Katz, of the National Portrait Gallery's landmark ''Hide/Seek'' exhibition who defended the integrity of the show in the face of censorship and controversy, an author, poet, and literary critic, as well as an historian at the Smithsonian's National Portrait Gallery.

I ask the House to join me in honoring the recipients of GLAA's 2011 Distinguished Service Award and celebrating GLAA's 40th anniversary of contributions to the GLBT community in the District of Columbia.

RECOGNIZING CENCIO VY ON BEING NAMED THE 2011 U.S. SMALL BUSINESS ADMINISTRATION'S SMALL BUSINESS PERSON OF THE YEAR FOR GUAM

HON. MADELEINE Z. BORDALLO

OF GUAM

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Ms. BORDALLO. Mr. Speaker, I rise today to recognize Mr. Cencio Tan C. Vy for his years of outstanding business leadership on Guam. Mr. Vy is the President of Benson Guam Enterprises, a locally-owned construction materials and hardware supplier. He was recently named the 2011 U.S. Small Business Administration's Small Business Person of the Year for Guam.

Cencio Vy came to Guam in 1980 to help manage Benson Guam Enterprise, a construction materials supplier founded by his father, Tan Beng Chiat, in 1976 to help rebuilding efforts in the wake of Super Typhoon Pamela. One year later, at the age of 19, Mr. Vy was given full responsibility for business operations, and he grew the company, developing his business model through mentoring by his father and his own innovations. Under his leadership, Bensons has grown from five employees to 50, and his company is one of the largest construction materials suppliers on Guam. Over the years, Bensons has been able to weather both natural and economic headships, including several devastating typhoons and economic recessions in the Asia-Pacific region and the United States.

Mr. Vy is married to Noriko Vy and they have three children: Hardy, Mikkel (deceased), and Cefani. Aside from managing Bensons, he opened and operates Guam's only commercial golf driving range, which he opened in 1991. In 1997, Mr. Vy entered into a joint venture with his brother-in-law and Japanese investors to open two semi-conductor factories in Japan.

I congratulate Cencio Vy on being named the 2011 U.S. Small Business Administration's Small Business Person of the Year for Guam. I join the people of Guam in commending him for his award and thanking him for his contributions to our community.

REMEMBERING BEA MOTEN-FOSTER

HON. MIKE PENCE

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 14, 2011

Mr. PENCE. Mr. Speaker, I rise today to honor a kind-hearted and generous woman who will forever be remembered by Hoosiers in my district. Bea Moten-Foster was the owner and publisher of the Muncie Times, and she will be greatly missed by those in the community.

Bea was born in Selma, Alabama. Her media career began soon after she graduated from high school when she took a position as a radio announcer in Birmingham, Alabama. She went on to work in television and radio in Miami, New York City and Indianapolis.

Bea moved to Muncie in the early 1980's and later married a professor at Ball State University, Robert O. Foster. Bea immediately began to impact the Muncie community. She organized Muncie's city-wide celebration of Black History Month, helped launch the Muncie coalition of 100 Black Women, and helped establish the Muncie Black Expo.

Some of Bea's other accomplishments include founding the Muncie Times, an African-American newspaper in 1991. The twice monthly publication now has a circulation of over 10,000 readers. She was also awarded the Indiana Black Expo 2010 Trail Blazer Award, the Sagamore of the Wabash, the Spirit of Chief Muncie Award, and the Indiana State Chamber of Commerce's Outstanding Business Person of the Year for 1996.

Those who were closest to Bea will remember her commitment to faith and family. Bea's daughter, the Reverend Pamela Emmanuel, said the motto her mother passed on to her was ''Never accept 'No,' from somebody who doesn't have the power to say ''Yes.'" Bea's leadership in the Muncie community as well as her compassion for troubled youth will be sorely missed. I offer my sincere condolences to her beloved family, daughter Reverend Pamela Emmanuel, who will be continuing Bea's legacy and leading the Muncie Times, and her two grandchildren, Ebonye Endsley and Korey Van Horn.

Daily Digest

HIGHLIGHTS

Senate passed H.R. 1473, Department of Defense and Full-Year Continuing Appropriations Act.

Senate agreed to H. Con. Res. 43, Adjournment Resolution.

Senate

Chamber Action

Routine Proceedings, pages S2459–S2558

Measures Introduced: Forty-eight bills and fifteen resolutions were introduced, as follows: S. 816–863, S. J. Res. 11, S. Res. 145–157, and S. Con. Res. 13. **Pages S2506–08**

Measures Reported:

S. Res. 128, expressing the sense of the Senate that public servants should be commended for their dedication and continued service to the Nation during Public Service Recognition Week, May 1 through 7, 2011. **Page S2505**

Measures Passed:

Department of Defense and Full-Year Continuing Appropriations Act: By 81 yeas to 19 nays (Vote No. 61), Senate passed H.R. 1473, making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011. (Pursuant to the order of April 13, 2011, requiring 60 affirmative votes, the bill was passed.) **Page S2493**

Adjournment Resolution: Senate agreed to H. Con. Res. 43, providing for a conditional adjournment of the House of Representatives and a conditional recess or adjournment of the Senate. **Page S2551**

Ronald Reagan Centennial Commission Act: Senate passed H.R. 1308, to amend the Ronald Reagan Centennial Commission Act to extend the termination date for the Commission. **Pages S2551–52**

Food Safety Accountability Act: Senate passed S. 216, to increase criminal penalties for certain knowing and intentional violations relating to food that is misbranded or adulterated, after agreeing to the committee amendment in the nature of a substitute. **Page S2552**

Honoring Women in North Africa and the Middle East: Senate agreed to S. Res. 109, honoring and supporting women in North Africa and the Middle East whose bravery, compassion, and commitment to putting the wellbeing of others before their own have proven that courage can be contagious, after agreeing to the following amendments proposed thereto: **Pages S2552–53**

Reid (for Snowe) Amendment No. 301, to amend the resolution. **Page S2552**

Reid (for Snowe) Amendment No. 302, to amend the preamble. **Page S2552**

National Child Abuse Prevention Month: Committee on the Judiciary was discharged from further consideration of S. Res. 127, designating April 2011 as "National Child Abuse Prevention Month", and the resolution was then agreed to. **Page S2553**

Public Service Recognition Week: Senate agreed to S. Res. 128, expressing the sense of the Senate that public servants should be commended for their dedication and continued service to the Nation during Public Service Recognition Week, May 1 through 7, 2011. **Pages S2553–54**

Goldstone Report: Committee on Foreign Relations was discharged from further consideration of S. Res. 138, calling on the United Nations to rescind the Goldstone report, and the resolution was then agreed to. **Page S2554**

Authorizing Use of Capitol Rotunda: Senate agreed to H. Con. Res. 33, permitting the use of the rotunda of the Capitol for a ceremony as part of the commemoration of the days of remembrance of victims of the Holocaust. **Pages S2554–55**

Collector Car Appreciation Day: Senate agreed to S. Res. 154, designating July 8, 2011, as "Collector Car Appreciation Day" and recognizing that the collection and restoration of historic and classic cars is an important part of preserving the technological

achievements and cultural heritage of the United States. Page S2555

National Adopt A Library Day: Senate agreed to S. Res. 155, designating April 23, 2011, as "National Adopt A Library Day". Page S2555

Global Youth Service Days: Senate agreed to S. Res. 156, designating April 15 through 17, 2011, as "Global Youth Service Days". Page S2555

PowerTalk 21 Day: Senate agreed to S. Res. 157, designating April 21, 2011, as "PowerTalk 21 Day". Page S2556

Measures Failed:

Enrollment Correction: By 47 yeas to 53 nays (Vote No. 59), Senate failed to agree to H. Con. Res. 35, directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473. (Pursuant to the order of April 13, 2011, requiring 60 affirmative votes, the concurrent resolution was not agreed to.) Pages S2492–93

Enrollment Correction: By 42 yeas to 58 nays (Vote No. 60), Senate failed to agree to H. Con. Res. 36, directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473. (Pursuant to the order of April 13, 2011, requiring 60 affirmative votes, the concurrent resolution was not agreed to.) Page S2493

Appointments:

Congressional-Executive Commission on the People's Republic of China: The Chair, on behalf of the President of the Senate, and after consultation with the Majority Leader, pursuant to Public Law 106–286, appointed the following Members to serve on the Congressional-Executive Commission on the People's Republic of China: Senators Baucus, Levin, Feinstein, Brown (OH), and Merkley. Page S2557

Board of Directors of the Vietnam Education Foundation: The Chair, on behalf of the President pro tempore and upon the recommendation of the Majority Leader, pursuant to Public Law 106–554, appointed Senator Blumenthal, to the Board of Directors of the Vietnam Education Foundation, vice Senator Webb. Page S2557

Advisory Committee on the Records of Congress: The Chair announced, on behalf of the Majority Leader, pursuant to Public Law 101–509, the reappointment of Steve Zink of Nevada to the Advisory Committee on the Records of Congress. Page S2557

United States Capitol Preservation Commission: The Chair, on behalf of the President pro tempore, pursuant to Public Law 100–696, appointed Senator Hoeven as a member of the United States Capitol Preservation Commission, vice Senator Murkowski. Page S2557

Good Neighbor Forestry Act—Referral Agreement: A unanimous-consent agreement was reached providing that the Committee on Agriculture, Nutrition and Forestry be discharged from further consideration of S. 375, to authorize the Secretary of Agriculture and the Secretary of the Interior to enter into cooperative agreements with State foresters authorizing State foresters to provide certain forest, rangeland, and watershed restoration and protection services, and the bill then be referred to the Committee on Energy and Natural Resources. Page S2556

Signing Authority—Agreement: A unanimous-consent agreement was reached providing that during this adjournment of the Senate, the Majority Leader, Senator Rockefeller, be authorized to sign duly enrolled bills or joint resolutions. Page S2557

Authorizing Leadership To Make Appointments—Agreement: A unanimous-consent agreement was reached providing that, notwithstanding the upcoming recess or adjournment of the Senate, the President of the Senate, the President Pro Tempore, and the Majority and Minority Leaders be authorized to make appointments to commissions, committees, boards, conferences, or interparliamentary conferences authorized by law, by concurrent action of the two Houses, or by order of the Senate. Page S2557

Nominations—Agreement: A unanimous-consent-time agreement was reached providing that at 4:30 p.m., on Monday, May 2, 2011, Senate begin consideration of the nomination of Roy Bale Dalton, Jr., of Florida, to be United States District Judge for the Middle District of Florida, and the nomination of Kevin Hunter Sharp, of Tennessee, to be United States District Judge for the Middle District of Tennessee; that there one hour of debate equally divided in the usual form; that upon the use or yielding back of time, the nomination of Roy Bale Dalton, Jr., of Florida, to be United States District Judge for the Middle District of Florida, be confirmed, and Senate vote, without intervening action or debate, on confirmation of the nomination of Kevin Hunter Sharp, of Tennessee, to be United States District Judge for the Middle District of Tennessee; and that no further motions be in order to any of the nominations. Page S2551

Nominations Confirmed: Senate confirmed the following nominations:

Kathryn D. Sullivan, of Ohio, to be an Assistant Secretary of Commerce.

Frances M.D. Gulland, of California, to be a Member of the Marine Mammal Commission for a term expiring May 13, 2012.

Ann D. Begeman, of Virginia, to be a Member of the Surface Transportation Board for a term expiring December 31, 2015.

Peter Bruce Lyons, of New Mexico, to be an Assistant Secretary of Energy (Nuclear Energy).

Kurt Walter Tong, of Maryland, a Career Member of the Senior Foreign Service, Class of Counselor, for the rank of Ambassador during his tenure of service as United States Senior Official for the Asia-Pacific Economic Cooperation (APEC) Forum.

Joseph M. Torsella, of Pennsylvania, to be Representative of the United States of America to the United Nations for U.N. Management and Reform, with the rank of Ambassador.

Joseph M. Torsella, of Pennsylvania, to be Alternate Representative of the United States of America to the Sessions of the General Assembly of the United Nations, during his tenure of service as Representative of the United States of America to the United Nations for U.N. Management and Reform.

Nils Maarten Parin Daulaire, of Virginia, to be Representative of the United States on the Executive Board of the World Health Organization.

Kelvin K. Droegemeier, of Oklahoma, to be a Member of the National Science Board, National Science Foundation for a term expiring May 10, 2016.

Carolyn N. Lerner, of Maryland, to be Special Counsel, Office of Special Counsel, for the term of five years.

Mario Cordero, of California, to be a Federal Maritime Commissioner for the term expiring June 30, 2014.

Rebecca F. Dye, of North Carolina, to be a Federal Maritime Commissioner for the term expiring June 30, 2015.

Rafael Borras, of Maryland, to be Under Secretary for Management, Department of Homeland Security.

Katharine G. Abraham, of Iowa, to be a Member of the Council of Economic Advisers.

Suzan D. Johnson Cook, of New York, to be Ambassador at Large for International Religious Freedom.

Jonathan Scott Gration, of New Jersey, to be Ambassador to the Republic of Kenya.

Michelle D. Gavin, of the District of Columbia, to be Ambassador to the Republic of Botswana.

Carl Shapiro, of California, to be a Member of the Council of Economic Advisers.

Robert Patterson, of New York, to be Ambassador to Turkmenistan.

1 Air Force nomination in the rank of general.

5 Army nominations in the rank of general.

Routine lists in the Air Force, Army, Marine Corps, and Navy. **Pages S2557–58**

Nominations Received: Senate received the following nominations:

Jonathan Don Farrar, of California, to be Ambassador to the Republic of Nicaragua.

Stuart E. Jones, of Virginia, to be Ambassador to the Hashemite Kingdom of Jordan.

Lisa J. Kubiske, of Virginia, to be Ambassador to the Republic of Honduras.

Derek J. Mitchell, of Connecticut, to be Special Representative and Policy Coordinator for Burma, with the rank of Ambassador.

William Charles Ostendorff, of Virginia, to be a Member of the Nuclear Regulatory Commission for the term of five years expiring June 30, 2016.

Robert J. Zimmer, of Illinois, to be a Member of the National Science Board, National Science Foundation, for a term expiring May 10, 2016.

Page S2557

Messages from the House: **Page S2504**

Measures Referred: **Page S2505**

Enrolled Bills Presented: **Page S2505**

Executive Communications: **Page S2505**

Executive Reports of Committees: **Pages S2505–06**

Additional Cosponsors: **Pages S2508–10**

Statements on Introduced Bills/Resolutions: **Pages S2510–46**

Additional Statements: **Pages S2501–04**

Amendments Submitted: **Pages S2546–50**

Notices of Intent: **Page S2550**

Authorities for Committees to Meet: **Page S2550**

Privileges of the Floor: **Page S2550**

Record Votes: Three record votes were taken today. (Total—61) **Pages S2492–93**

Adjournment: Senate convened at 9:30 a.m. and adjourned, pursuant to the provisions of H. Con. Res. 43, at 7:55 p.m., until 2 p.m. on Monday, May 2, 2011. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S2557.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: DEPARTMENT OF COMMERCE

Committee on Appropriations: Subcommittee on Commerce, Justice, Science, and Related Agencies concluded a hearing to examine proposed budget estimates for fiscal year 2012 for the Department of Commerce, after receiving testimony from Gary Locke, Secretary of Commerce.

APPROPRIATIONS: DEPARTMENT OF ARMY AND THE DEPARTMENT OF AIR FORCE

Committee on Appropriations: Subcommittee on Military Construction and Veterans Affairs, and Related Agencies concluded a hearing to examine proposed budget estimates for fiscal year 2012 for the Department of Army and the Department of Air Force, after receiving testimony from Katherine G. Hammack, Assistant Secretary of the Army for Installations, Energy, and Environment, Major General James C. Boozer, Director, Operations Directorate, Office to the Assistant Chief of Staff for Installation Management, Major General Raymond W. Carpenter, Acting Director, Army National Guard, James Snyder, Assistant Chief, U.S. Army Reserve, Terry A. Yonkers, Assistant Secretary of the Air Force for Installations, Environment, and Logistics, Major General Timothy A. Byers, The Air Force Civil Engineer, Major General William H. Etter, Deputy Director, Air National Guard, and Major General James Jackson, Deputy Chief, Air Force Reserve, all of the Department of Defense.

BUSINESS MEETING

Committee on Armed Services: Committee ordered favorably reported 421 nominations in the Army, Navy, Air Force, and Marine Corps.

BUSINESS MEETING

Committee on Banking, Housing, and Urban Affairs: Committee ordered favorably reported the nominations of Katharine G. Abraham, of Iowa, and Carl Shapiro, of California, both to be a Member of the Council of Economic Advisers, Executive Office of the President, and Eric L. Hirschhorn, of Maryland, to be Under Secretary of Commerce for Export Administration.

SURFACE TRANSPORTATION AUTHORIZATION

Committee on Environment and Public Works: Committee concluded a hearing to examine issues for surface transportation authorization, after receiving testimony from Brian Searles, Vermont Agency of Transportation Secretary, Montpelier; Michael P. Lewis, Rhode Island Department of Transportation Director, Providence; Gary Ridley, Oklahoma Secretary of Transportation, Oklahoma City; John Cox, Wyoming Department of Transportation Director, Cheyenne, on behalf of the Idaho Department of Transportation, Montana Department of Transportation, North Dakota Department of Transportation, and South Dakota Department of Transportation; John R. Cooper, Alabama Department of Transportation Director, Montgomery; Frederick W. Smith, FedEx Corporation, Washington, D.C.; and Sharon Thomas, City of Las Cruces Councilwoman, Las Cruces, New Mexico.

BUSINESS MEETING

Committee on Environment and Public Works: Committee ordered favorably reported the following business items:

S. 782, to amend the Public Works and Economic Development Act of 1965 to reauthorize that Act, with an amendment;

S. 680, to authorize the Administrator of General Services to convey a parcel of real property in the District of Columbia to provide for the establishment of a National Women's History Museum, with an amendment; and

S. 710, to amend the Solid Waste Disposal Act to direct the Administrator of the Environmental Protection Agency to establish a hazardous waste electronic manifest system.

BUSINESS MEETING

Committee on Finance: Committee ordered favorably reported the nominations of Jenni Rane LeCompte, of the District of Columbia, to be an Assistant Secretary, and David S. Cohen, of Maryland, to be Under Secretary for Terrorism and Financial Crimes, both of the Department of the Treasury.

AFRICA BUDGET

Committee on Foreign Relations: Subcommittee on African Affairs concluded a hearing to examine assessing the fiscal year 2012 budget for Africa, after receiving testimony from Johnnie Carson, Assistant Secretary for African Affairs, and Eric Goosby, United States Global AIDS Coordinator, both of the Department of State; Raja Jandhyala, Deputy Assistant Administrator for Africa, United States Agency for International Development; and Patrick C. Fine, Millennium Challenge Corporation, Washington, D.C.

FEDERAL REGULATION

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine Federal regulation, focusing on how to best advance

the public interest, after receiving testimony from Cass R. Sunstein, Administrator, Office of Information and Regulatory Affairs, Office of Management and Budget.

INDIAN AFFAIRS LEGISLATION

Committee on Indian Affairs: Committee concluded a hearing to examine S. 636, to provide the Quileute Indian Tribe Tsunami and Flood Protection, S. 703, to amend the Long-Term Leasing Act, and S. 546, to extend the Federal recognition to the Little Shell Tribe of Chippewa Indians of Montana, after receiving testimony from Donald Laverdure, Principal Deputy Assistant Secretary for Indian Affairs, and George T. Skibine, Deputy Assistant Secretary for Management, Indian Affairs, both of the Department of the Interior; John Sinclair, Havre, Montana, and K. Jerome Gottschalk, Native American Rights Fund, Boulder, Colorado, both on behalf of the Little Shell Tribe of Chippewa Indians of Montana; Bonita Cleveland, Quileute Tribe, La Push, Washington; and Robert Tippeconnie, National Congress of American Indians, and Cheryl A. Causley, National American Indian Housing Council, both of Washington, D.C.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 37 public bills, H.R. 1532–1568; 1 private bill, H.R. 1569; and 7 resolutions, H. Con. Res. 42–43; and H. Res. 224–228 were introduced. **Pages H2853–55**

Additional Cosponsors: **Pages H2857–58**

Reports Filed: There were no reports filed today.

Recess: The House recessed at 10:36 a.m. and reconvened at 11 a.m. **Page H2673**

Chaplain: The prayer was offered by the guest chaplain, Reverend Arthur Cavitt, St. Charles Lwanga Center, St. Louis, Missouri. **Page H2673**

Journal: The House agreed to the Speaker's approval of the Journal by a yea-and-nay vote of 311 yeas to 106 nays with 2 voting "present", Roll No. 267. **Page H2686**

Adjournment Resolution: The House agreed to H. Con. Res. 43, providing for a conditional adjournment of the House of Representatives and a conditional recess or adjournment of the Senate, by a yea-and-nay vote of 243 yeas to 178 nays, Roll No. 269. **Pages H2686–87, H2794**

Department of Defense and Full-Year Continuing Appropriations Act, 2011: The House passed H.R. 1473, making appropriations for the Department of Defense and the other departments and agencies of the Government for the fiscal year ending September 30, 2011, by a yea-and-nay vote of 260 yeas to 167 nays, Roll No. 268. **Pages H2687–H2794**

H. Res. 218, the rule providing for consideration of the bill, was agreed to yesterday, April 13th.

Directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473: The House agreed to H. Con. Res. 35, directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473, by a yea-and-nay vote of 240 yeas to 185 nays, Roll No. 270. **Pages H2795–98, H2802–03**

H. Res. 218, the rule providing for consideration of the concurrent resolution, was agreed to yesterday, April 13th.

Directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473: The House agreed to H. Con. Res. 36, directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1473, by a yea-and-nay vote of 241 yeas to 185 nays with 1 voting "present", Roll No. 271. **Pages H2798–H2802, H2803**

H. Res. 218, the rule providing for consideration of the concurrent resolution, was agreed to yesterday, April 13th.

Motion to Adjourn: Rejected the Jackson (IL) motion to adjourn by a recorded vote of 11 ayes to 412 noes, Roll No. 272. **Pages H2803–04**

Establishing the budget for the United States Government for fiscal year 2012 and setting forth appropriate budgetary levels for fiscal years 2013 through 2021: The House began consideration of H. Con. Res. 34, to establish the budget for the United States Government for fiscal year

2012 and set forth appropriate budgetary levels for fiscal years 2013 through 2021. Consideration is expected to resume tomorrow, April 15th.

Page H2804–11, H2812–15, H2815–51

Pursuant to the rule, the amendment in the nature of a substitute printed in part A of H. Rept. 112–62 shall be considered as an original concurrent resolution for the purpose of amendment under the five-minute rule. **Page H2837**

Proceedings Postponed:

Cleaver amendment in the nature of a substitute (No. 1 printed in part B of H. Rept. 112–62) that seeks to make significant investments in education, job training, transportation and infrastructure, and advanced research and development programs that will accelerate our economic recovery. Would also protect the social safety net without cutting Social Security, Medicaid or Medicare. Would raise new revenue by making our tax system more fair. Would also close certain corporate tax loopholes and preferences, which will save trillions of dollars on the deficit over the next decade. **Pages H2843–51**

H. Res. 223, the rule providing for consideration of the concurrent resolution, was agreed to by a yea-and-nay vote of 243 yeas to 181 nays, Roll No. 266, after the previous question was ordered by a yea-and-nay vote of 238 yeas to 183 nays, Roll No. 265.

Pages H2675–86

Senate Messages: Messages received from the Senate today appear on pages H2811 and H2815.

Quorum Calls—Votes: Seven yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H2684–85, H2685–86, H2686, H2793–94, H2794, H2802–03, H2803, and H2804. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 10:15 p.m.

Committee Meetings

CREDIT CONDITIONS IN RURAL AMERICA

Committee on Agriculture: Subcommittee on Department Operations, Oversight, and Credit held a hearing on credit conditions in rural America. Testimony was heard from Val Dolcini, Acting Administrator, Farm Service Agency, Department of Agriculture; Leland Strom, Chairman and CEO, Farm Credit Administration; and public witnesses.

INTERIOR, ENVIRONMENT—PUBLIC WITNESS DAY

Committee on Appropriations: Subcommittee on Interior, Environment, and Related Agencies held a Public Witness Day. Testimony was heard from public witnesses.

DEFENSE—APPROPRIATIONS

Committee on Appropriations: Subcommittee on Defense held a hearing on U.S. Pacific Command and U.S. Forces Korea. This was a closed hearing. Testimony was heard from Admiral Robert F. Willard, U.S. Navy, Commander, United States Pacific Command; General Walter L. Sharp, Commander, United Nations Command; Commander, Republic of Korea-United States Combined Forces Command; and Commander, United States Forces Korea.

FINANCIAL SERVICES AND GENERAL GOVERNMENT—APPROPRIATIONS

Committee on Appropriations: Subcommittee on Financial Services and General Government held a hearing on U.S. Supreme Court—FY 2012 Budget. Testimony was heard from Justice Anthony Kennedy and Justice Stephen G. Breyer.

LABOR, HEALTH AND HUMAN SERVICES, EDUCATION—APPROPRIATIONS

Committee on Appropriations: Subcommittee on Labor, Health and Human Services, Education and Related Agencies held a hearing on Department of Labor Enforcement Programs. Testimony was heard from David Michaels, Assistant Secretary of Labor for Occupational Safety and Health; and Joseph A. Main, Assistant Secretary of Labor for Mine Safety and Health.

STATE, FOREIGN OPERATIONS—APPROPRIATIONS

Committee on Appropriations: Subcommittee on State, Foreign Operations, and Related Agencies, Public Witness Day. Testimony was heard from public witnesses.

FY 2012 NATIONAL DEFENSE AUTHORIZATION

Committee on Armed Services: Full Committee held a hearing to receive testimony from Members on their national defense priorities for the fiscal year 2012 national defense authorization bill. Testimony was heard from Members of the 112th Congress.

ACCOUNTABILITY AT ARLINGTON NATIONAL CEMETERY

Committee on Armed Services: Subcommittee on Oversight and Investigations held a hearing on accountability at Arlington National Cemetery. Testimony was heard from Colonel William Koch, USAF (ret.); Kathryn A. Condon, Executive Director, Army National Cemeteries Program, Office of the Secretary of the Army; Patrick Hallinan, Superintendent, Arlington National Cemetery; and Karl F. Schneider, Principal Deputy to the Assistant Secretary of the Army, Manpower and Reserve Affairs.

IMPLEMENTATION OF THE DAVIS-BACON ACT—DEPARTMENT OF LABOR

Committee on Education and the Workforce: Subcommittee on Workforce Protections held a hearing on Examining the Department of Labor's Implementation of the Davis-Bacon Act. Testimony was heard from Andrew Sherrill, Director of Education, Workforce, and Income Security, GAO; Tom Markey, Deputy Administrator for Program Operations, Wage and Hour Division, Department of Labor; and public witnesses.

DANGER OF PRESCRIPTION DRUG DIVERSION

Committee on Energy and Commerce: Subcommittee on Commerce, Manufacturing, and Trade held a hearing "Warning: The Growing Danger of Prescription Drug Diversion." Testimony was heard from Gil Kerlikowske, Director, Office of National Drug Control Policy; Michele M. Leonhart, Administrator, DEA; Rick Scott, Governor, Florida; Steve Beshear, Governor, Kentucky; and public witnesses.

RECYCLING COAL COMBUSTION RESIDUALS ACCESSIBILITY

Committee on Energy and Commerce: Subcommittee on Environment and the Economy held a hearing on H.R. 1391, the Recycling Coal Combustion Residuals Accessibility Act of 2011. Testimony was heard from Mathy Stanislaus, Assistant Administrator for Office of Solid Waste and Emergency Response, EPA.

RULE ON RISK RETENTION

Committee on Financial Services: Subcommittee on Capital Markets and Government Sponsored Enterprises held a hearing entitled "Understanding the Implications and Consequences of the Proposed Rule on Risk Retention". Testimony was heard from Scott Alvarez, General Counsel, Federal Reserve Board; Meredith Cross, Director of the Division of Corporation Finance, SEC; Michael Krimminger, General Counsel, FDIC; Julie Williams, First Senior Deputy Comptroller and Chief Counsel, Office of the Comptroller of the Currency; Bob Ryan, Acting Commissioner, Federal Housing Administration; and Patrick Lawler, Chief Economist and Associate Director, Office of Policy Analysis and Research, Federal Housing Finance Agency.

FINANCIAL STABILITY OVERSIGHT COUNCIL

Committee on Financial Services: Subcommittee on Oversight and Investigations held a hearing entitled "Oversight of the Financial Stability Oversight Council". Testimony was heard from Gary Gensler, Chairman, Commodity Futures Trading Commission; Jeffrey A. Goldstein, Under Secretary for Domestic Finance, Department of the Treasury; John Huff, Director, Missouri Department of Insurance, Financial Institutions, and Professional Registration; J. Nellie Liang, Director, Office of Financial Stability Policy and Research, Federal Reserve; Robert W. Cook, Director, Division of Trading and Markets, SEC; Arthur J. Murton, Director, Division of Insurance and Research, FDIC; and Tim Long, Chief National Bank Examiner and Senior Deputy Comptroller for Regulatory Policy, Office of the Comptroller of the Currency.

MISCELLANEOUS MEASURES

Committee on Foreign Affairs: Full Committee held a markup. The following were ordered reported, as amended: H.R. 1016, Assessing Progress in Haiti Act; H.R. 1280, to amend the Atomic Energy Act of 1954 to require congressional approval of agreements for peaceful nuclear cooperation with foreign countries, and for other purposes; H.R. 515, Belarus Democracy Reauthorization Act of 2011; and H.R. 1326, Furthering International Nuclear Safety Act of 2011.

STATE DEPARTMENT'S COUNTERTERRORISM OFFICE

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation and Trade held a hearing on the State Department's Counterterrorism Office: Budget, Reorganization, Policies. Testimony was heard from Daniel Benjamin, Ambassador-at-Large, Coordinator for Counterterrorism, Department of State.

PRESIDENT'S 2012 BUDGET REQUEST FOR EUROPE AND EURASIA

Committee on Foreign Affairs: Subcommittee on Europe and Eurasia held a hearing on Budget Oversight: Examining the President's 2012 Budget Request for Europe and Eurasia. Testimony was heard from Daniel Rosenblum, Coordinator of U.S. Assistance to Europe and Eurasia, Bureau of Central and South Asian Affairs, Department of State; Susan Elliot, Deputy Assistant Secretary, Bureau of European and Eurasian Affairs, Department of State; Paige Alexander, Assistant Administrator, Bureau for Europe and Eurasia, U.S. Agency for International Development; and Nisha Biswal, Assistant Administrator, Bureau for Asia, U.S. Agency for International Development.

MISCELLANEOUS MEASURES

Committee on Homeland Security: Subcommittee on Cybersecurity, Infrastructure Protection and Security Technologies held a markup on H.R. 901, Chemical Facility Anti-Terrorism Security Authorization Act

of 2011. The bill was forwarded to the full Committee without amendment.

ELECTION ASSISTANCE COMMISSION

Committee on House Administration: Subcommittee on Elections held a hearing on H.R. 672, to terminate the Election Assistance Commission, and for other purposes. Testimony was heard from Rep. Hoyer; Bill Gardner, Secretary of State, New Hampshire; Delbert Hosemann, Secretary of State, Mississippi; Kurt Browning, Secretary of State, Florida; Jill LaVine, Registrar of Voters; County of Sacremento; and public witnesses.

MISCELLANEOUS MEASURES

Committee on the Judiciary: Full Committee held a markup on H.R. 1249, The America Invents Act. The bill was ordered reported, as amended.

STATE AND MUNICIPAL DEBT

Committee on Oversight and Government Reform: Full Committee held a hearing entitled ''State and Municipal Debt: Tough Choices Ahead''. Testimony was heard from Scott Walker, Governor, Wisconsin; and public witnesses.

TSUNAMI WARNING, PREPAREDNESS, AND INTERAGENCY COOPERATION

Committee on Oversight and Government Reform: Subcommittee on National Security, Homeland Defense and Foreign Operations held a hearing entitled, ''Tsunami Warning, Preparedness, and Interagency Cooperation: Lessons Learned.'' Testimony was heard from William Leith, Acting Associate Director for Natural Hazards, Geological Survey, Department of Interior; Mary Glackin, Deputy Under Secretary for Oceans and Atmosphere, NOAA, Department of Commerce; Nancy Ward, Regional Administrator—Region IX, FEMA, Department of Homeland Security; Kenneth Murphy, Regional Administrator—Region X, FEMA, Department of Homeland Security; John Madden, Director, Division of Homeland Security and Emergency Management, Alaska.

FDA MEDICAL DEVICE APPROVAL

Committee on Oversight and Government Reform: Subcommittee on Health Care, District of Columbia, Census and the National Archives held a hearing entitled, ''Pathway to FDA Medical Device Approval: Is there a Better Way?'' Testimony was heard from Rep. Paulsen; Jeffrey Shuren, Director, Centers for Devices and Radiological Health, FDA; and public witnesses.

NATIONAL NANOTECHNOLOGY INITIATIVE

Committee on Science, Space, and Technology: Subcommittee on Research and Science Education held a hearing on Nanotechnology: Oversight of the National Nanotechnology Initiative and Priorities for the Future. Testimony was heard from Clayton Teague, Director, National Nanotechnology Coordination Office; and public witnesses.

DRILLING FOR A SOLUTION

Committee on Small Business: Subcommittee on Agriculture, Energy and Trade held a hearing entitled ''Drilling for a Solution: Finding Ways to Curtail the Crushing Effect of High Gas Prices on Small Business''. Testimony was heard from public witnesses.

RICHARD H. POFF FEDERAL BUILDING RENOVATION

Committee on Transportation and Infrastructure: Subcommittee on Economic Development, Public Buildings, and Emergency Management held a hearing entitled ''Richard H. Poff Federal Building Renovation: Is it Costing the Taxpayer Too Much?'' Testimony was heard from Rep. Goodlatte, Brian Miller, Inspector General, GAO; David H. Ehrenwerth, Regional Administration, GAO; and Julia Dudley, Clerk, U.S. District Court, Western District of Virginia.

BIOMETRIC IDS FOR PILOTS AND TRANSPORTATION WORKERS

Committee on Transportation and Infrastructure: Full Committee held a hearing on Biometric IDs for Pilots and Transportation Workers: Diary of Failures. Testimony was heard from Peggy Gilligan, Associate Administrator for Aviation Safety, FAA; and Cita Furlani, Director, Information Technology Laboratory, National Institute of Standards and Technology.

SOCIAL SECURITY ADMINISTRATION'S ROLE IN VERIFYING EMPLOYMENT ELIGIBILITY

Committee on Ways and Means: Subcommittee on Social Security held a hearing on the Social Security Administration's role in verifying employment eligibility. Testimony was heard from Richard M. Stana, Director, Homeland Security and Justice, GAO; Marianna LaCanfora, Assistant Deputy Commissioner, Office of Retirement and Disability Policy, Social Security Administration; and public witnesses.

FY 2012 BUDGET—DEPARTMENT OF HOMELAND SECURITY AND DEPARTMENT OF JUSTICE

House Permanent Select Committee on Intelligence: Full Committee held a hearing on FY 2012 Budget—Department of Homeland Security and Department of

Justice. This is a closed hearing. Testimony was heard from departmental officials.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR FRIDAY, APRIL 15, 2011

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

Committee on Appropriations, Subcommittee on Interior, Environment, and Related Agencies, Public Witness Days, 9:30 a.m., B–308 Rayburn.

Subcommittee on Financial Services and General Government, hearing on Treasury {TIGTA} FY 2012 Budget, 10 a.m., 2358–C Rayburn.

Committee on Energy and Commerce, Subcommittee on Energy and Power, hearing on the Recent EPA Rulemakings Relating to Boilers, Cement Manufacturing Plants, and Utilities, 9 a.m., 2123 Rayburn.

Committee on Foreign Affairs, Subcommittee on Oversight and Investigations, hearing on Communist Chinese Cyber-Attacks, Cyber-Espionage and Theft of American Technology, 12 p.m., 2172 Rayburn.

Committee on Homeland Security, Subcommittee on Cybersecurity, Infrastructure Protection and Security Technologies, hearing entitled ''The DHS Cybersecurity Mission: Promoting Innovation and Securing Critical Infrastructure.'' 10 a.m., 311 Cannon.

Committee on the Judiciary, Subcommittee on the Constitution, hearing on Defending Marriage, 10 a.m., 2141 Rayburn.

Committee on Oversight and Government Reform, Subcommittee on National Security, Homeland Defense and Foreign Operations and the Committee on Natural Resources, Subcommittee on National Parks, Forests and Public Lands, joint hearing entitled, ''The Border: Are Environmental Laws and Regulations Impeding Security and Harming the Environment?'' 9:30 a.m., 2154 Rayburn.

Subcommittee on Government Organization, Efficiency and Financial Management, hearing entitled, ''Improper Payments: Finding Solutions.'' 10 a.m., 2247 Rayburn.

House Permanent Select Committee on Intelligence, Full Committee, hearing on FY 2012 Budget—Military Intelligence Program and General Defense Intelligence Program, 9 a.m., HVC–304. This is a closed hearing.

Next Meeting of the SENATE

2 p.m., Monday, May 2

Senate Chamber

Program for Monday: After the transaction of any morning business (not to extend beyond 4:30 p.m.), Senate will begin consideration of the nomination of Roy Bale Dalton, Jr., of Florida, to be United States District Judge for the Middle District of Florida, and the nomination of Kevin Hunter Sharp, of Tennessee, to be United States District Judge for the Middle District of Tennessee. At approximately 5:30 p.m., Senate will confirm the nomination of Roy Bale Dalton, Jr., of Florida, to be United States District Judge for the Middle District of Florida, and vote on confirmation of the nomination of Kevin Hunter Sharp, of Tennessee, to be United States District Judge for the Middle District of Tennessee.

Next Meeting of the HOUSE OF REPRESENTATIVES

9 a.m., Friday, April 15

House Chamber

Program for Friday: Complete consideration of H. Con. Res. 34—Establishing the budget for the United States Government for fiscal year 2012 and setting forth appropriate budgetary levels for fiscal years 2013 through 2021.

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